

CHAPTER I

GENERAL PROVISIONS AND ZONING

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GENERAL PLANNING DEPARTMENT INFORMATION

HISTORY

The City Council originally established the City Planning Department by ordinance, adopted on April 9, 1920. The Department included a Commission of 51 members, serving without salary, and one paid secretary. At that time, the City had an area of 364 square miles and a population of 576,000. In 1925, when the citizens adopted the original City Charter, the City Planning Commission, together with all other Commissions of City Government, was changed to five members. The new City Charter adopted in June of 1999, operative in July 2000, expanded the City Planning Commission to nine members. The new City Charter also created seven area planning commissions each covering different areas of the City.

Over the years, the Department has grown to a total of over 260 staff members. During this same period, the City has grown to an area of 467 square miles with a population of about 3.9 million people.

FUNCTIONS

The Department is charged with the responsibility of preparing, maintaining and implementing a General Plan for the development of the City. The General Plan consists of the Framework Element, which provides overall guidance for the future of the City, various other citywide elements including the state-mandated elements such as the Transportation, Open Space and the Land Use among others. The Land Use Element is largely made up of the community plans that fall for a range of allowable land uses and intensities of uses as well as other matters relating to the use of land unique to each of the City's many communities. The Department periodically updates these plans as needed.

The Planning Department implements the General Plan utilizing a variety of tools, mainly through the application of zoning regulations and the division of land into separate parcels. Traditional zones, specific plans, overlay districts, special use permits, such as conditional uses, and a variety of other instruments all regulate the use of land. The zoning portion of the Municipal Code, specific plans and other regulatory tools establish development standards applicable to matters such as heights of structures, setbacks, lot coverage, open space, parking, design and the like. Those seeking relief from the strict application of these regulations, apply to the Department, which can grant that relief, when justified, through use of variances or other similar tools tailored for specific purposes. The Department of City Planning in conjunction with other City Agencies regulates the division of land into separate lots in accordance with the State Subdivision Map Act. The Department also reports on the acquisition or development of land for public use.

ORGANIZATION

The **CITY PLANNING COMMISSION** is composed of nine private citizens who serve without salary, except for a small attendance fee. The Planning Commission is responsible for giving advice and making recommendations to the Mayor, Council, Director of Planning, and other City departments and agencies with respect to zoning ordinances, amendments to the General Plan and related activities, including legislation. The Commission studies planning policy matter and makes reports and recommendations to other governmental officers or agencies as may be necessary to implement and secure compliance with the General Plan; and performs other functions prescribed by the Charter or ordinance. The Commission holds public hearings to hear evidence that forms the basis of its decisions.

The **AREA PLANNING COMMISSIONS** each consist of five private citizens who serve without salary, except for a small attendance fee. These commissions largely serve as appeals boards for actions taken by the Department or the Zoning Administrator on such matters as, conditional uses and variances. When authorized to do so by ordinance, the Area Planning Commissions also act as original decision makers on some zoning matters and advise the City Planning Commission and the Department on changes to the General Plan affecting their geographical areas. The Commission holds public hearings to hear evidence that forms the basis of its decisions.

The **DIRECTOR OF PLANNING** is the chief administrative officer of the Department and is responsible for the appointment and removal of all employees, annual departmental budget preparation and the expenditure of funds. The Director is responsible for preparing the General Plan of the City and amendments to the General Plan; all zoning and other land use regulations and requirements, including maps of all districts and zones; investigating and acting on the design and improvement of all subdivisions of land as the advisory agency under the State Subdivision Map Act; and having those additional powers and duties as provided by ordinance. The Director is assisted by three Deputy Directors who take responsibility for overseeing the various operations of the Planning Department. The professional staff is grouped functionally into the following divisions:

a. Three **COMMUNITY PLANNING DIVISIONS**; the Valley, West/Coastal and Metro community planning divisions; prepare and revise plans for various sections of the City and recommend changes in zoning, site plan review applications and other matters involving specific plans and other special zoning tools to the Area and City Planning Commissions and the City Council.

b. The **DEPARTMENT SYSTEMS AND GEOGRAPHIC INFORMATION SYSTEM (GIS) DIVISION** is responsible for the orderly development and coordination of automated equipment and systems applications. The division is responsible for developing and maintaining the City's Zoning Map Automation System (ZMAS) and the Department's case tracking system as well as providing systems and GIS support to the Department.

c. The **CITYWIDE PLANNING DIVISION** prepares and revises the citywide elements of the General Plan and is responsible for the Department's Annual Report on growth and infrastructure.

d. The **OFFICE OF ZONING ADMINISTRATION** is responsible for investigating and making determinations on all applications for variances from zoning ordinances, many conditional uses and other special zoning permits. A determination made by a Zoning Administrator is final unless appealed. Another function of the Office of Zoning Administration is performed within the Code Studies Section which is responsible for conducting comprehensive studies resulting in amendments to the Planning and Zoning Code. The Office includes the Division of Land, which administers the State Subdivision Map Act including the processing of applications for tract and parcel maps as well as other related minor procedures. The Department's environmental review function for private applications is also located in this division. The division also operates the public office located at 201 North Figueroa Street in downtown Los Angeles.

e. The **ADMINISTRATIVE SERVICES DIVISION** is responsible for the administrative management of the Department—handling its accounting, personnel, and supply needs; providing its general graphics, drafting and clerical services; assisting the Director of Planning in preparing the Department's annual budget requests and providing management information services.

PROCEDURES

Requests for action by the Department of City Planning are made in the form of applications filed at the Department's two public offices. At the time an application is filed and accepted, a fee must be paid by the applicant dependent on the type of action requested and in accordance with current fee schedules established by the City Council. Cases are usually set for hearing before a Zoning Administrator, hearing officer or one of the Planning Commissions. A recommendation to a Planning Commission or a decision is rendered and distributed.

APPEALS

In many instances, applicants or persons aggrieved by a decision may appeal that action. On matters acted upon by the City Planning Commission, an appeal may be made to the City Council. On matters acted upon by a Zoning Administrator or the Director of Planning, an appeal may be made to Area Planning Commissions or City Planning Commission as prescribed by law and, thereafter, in certain cases, to the City Council. Details on these and other appealable decisions can be obtained from a Department office. For an appeal, the appellant must file an appeal, together with the appropriate fee imposed by ordinance, at the Department's public counters.

ARTICLE 1

GENERAL PROVISIONS

Section

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SEC. 11.00. PROVISIONS APPLICABLE TO CODE.

(Amended by Ord. No. 175,676, Eff. 1/11/04.)

(a) **Short Title. Reference to Code in Prosecutions. Designation in Ordinances.** This Code, which consists of criminal or regulatory ordinances of this City, shall be known as the “Official Los Angeles Municipal Code,” and it shall be sufficient to refer to the Code as the “Los Angeles Municipal Code” in any prosecution for the violation of any of its provisions; it shall also be sufficient to designate any ordinance adding to, amending or repealing this Code or a portion of this Code as an addition or amendment to or a repeal of the “Los Angeles Municipal Code.”

(b) **Existing Law Continued.** The provisions of this Code, to the extent they are substantially the same as existing provisions relating to the same subject matter, shall be construed as restatements and continuations of the Code and not as new enactments.

(c) **Construction.** The provisions of this Code and all proceedings under it are to be construed with a view to effect its objectives and to promote justice.

(d) **Effect of Code on Past Actions and Obligations Previously Accrued.** Neither the adoption of this Code nor the repeal of any ordinance of this City shall in any manner affect the prosecution for violation of ordinances, which violations were committed prior to the effective date of the ordinance, nor be construed as a waiver of any license or penalty at the effective date due and unpaid under the ordinance, nor be construed as affecting any of the provisions of the ordinance relating to the collection of any license or penalty or the penal provisions applicable to any violation, nor to affect the validity of any bond or cash deposit in lieu of a bond, required to be posted, filed or deposited pursuant to any ordinance or its violation, and all rights and obligations associated with the ordinance shall continue in full force and effect.

(e) **References to Specific Ordinances.** The provisions of this Code shall not in any manner affect deposits or other matters of record which refer to, or are otherwise connected with ordinances that are specially designated by a number or otherwise and which are included within this Code, but those references shall be construed to apply to the corresponding provisions contained within this Code.

(f) **Heading, Effect of.** Division, chapter, article and section headings contained in this Code shall not be deemed to govern, limit, modify or in any manner affect the scope, meaning or intent of the provisions of any division, chapter, article or section.

(g) **Reference to Acts or Omissions Within This City.** This Code shall refer only to the omission or commission of acts within the territorial limits of the City of Los Angeles and that territory outside of this City over which the City has jurisdiction or control by virtue of the Constitution, Charter or any law, or by reason of ownership or control of property.

(h) **Proof of Notice.** Proof of giving any notice may be made by the certificate of any officer or employee of this City or by affidavit of any person over the age of 18 years, which shows service in conformity with this Code or other provisions of law applicable to the subject matter concerned.

(i) **Notices, Service of.** Whenever a notice is required to be given under this Code, unless different provisions in this Code are otherwise specifically made applicable, the notice may be given either by personal delivery to the person to be notified or by deposit in the United States Mail in a sealed envelope, postage prepaid, addressed to the person to be notified at the person’s last known business or residence address as it appears in the public records or other records pertaining to the matter to which the notice is directed. Service by mail shall be deemed to have been completed at the time of deposit in the mail.

(j) **Prohibited Acts; Include Causing, Permitting, Suffering.** Whenever in this Code any act or omission is made unlawful it shall include causing, permitting, aiding, abetting, suffering or concealing the fact of the act or omission.

(k) **Validity of Code.** If any section, subsection, sentence, clause, phrase or portion of this Code is for any reason held to be invalid or unconstitutional by the decision of any court of competent jurisdiction, that decision shall not affect the validity of the remaining portions of this Code. The Council of this City hereby declares that it would have adopted this Code and each section, subsection, sentence, clause, phrase or portion of the Code, irrespective of the fact that any one portion or more sections, subsections clauses, phrases or portions are declared invalid or unconstitutional.

(l) In addition to any other remedy or penalty provided by this Code, any violation of any provision of this Code is declared to be a public nuisance and may be abated by the City or by the City Attorney on behalf of the people of the State of California as a nuisance by means of a restraining order, injunction or any other order or judgment in law or equity issued by a court of competent jurisdiction. The City or the City Attorney, on behalf of the people of the State of California, may seek injunctive relief to enjoin violations of, or to compel compliance with, the provisions of this Code or seek any other relief or remedy available at law or equity. **(Amended by Ord. No. 177,103, Eff. 12/18/05.)**

Violations of this Code are deemed continuing violations and each day that a violation continues is deemed to be a new and separate

offense and subject to a maximum civil penalty of \$2,500 for each and every offense.

As part of any civil action, the court may require posting of a performance bond to ensure compliance with this Code, applicable state codes, court order or judgment.

(m) It shall be unlawful for any person to violate any provision or fail to comply with any of the requirements of this Code. Any person violating any of the provisions or failing to comply with any of the mandatory requirements of this Code, shall be guilty of a misdemeanor unless that violation or failure is declared in this Code to be an infraction. An infraction shall be tried and be punishable as provided in Section 19.6 of the Penal Code and the provisions of this section. Any violation of this Code that is designated as a misdemeanor, may be charged by the City Attorney as either a misdemeanor or an infraction.

Every violation of this Code is punishable as a misdemeanor unless provision is otherwise made, and shall be punishable by a fine of not more than \$1,000.00 or by imprisonment in the County Jail for a period of not more than six months, or by both a fine and imprisonment.

Every violation of this Code that is established as an infraction, or is charged as an infraction, is punishable by a fine as set forth in this Code section, or as otherwise provided in this Code, not to exceed \$250.00 for each violation.

Violations of this Code may be addressed through the use of an Administrative Citation as set forth in Article 1.2 of Chapter 1 of this Code. The administrative fines prescribed by Chapter 1, Article 1.2 may be sought as an alternative to other legally available civil and criminal remedies. **(Amended by Ord. No. 184,766, Eff. 3/27/17.)**

Each person shall be guilty of a separate offense for each and every day during any portion of which any violation of any provision of this Code is committed, continued or permitted by that person, and shall be punishable accordingly.

(n) Pursuant to Government Code Section 38773, the City may summarily abate any nuisance at the expense of the persons creating, causing, committing, or maintaining it and the expense of the abatement of the nuisance may be a lien against the property on which it is maintained and a personal obligation against the property owner.

(o) Pursuant to Government Code Section 38773.7, upon entry of a second or subsequent civil or criminal judgment within a two-year period that finds an owner of property responsible for a condition that may be abated in accordance with California Government Code Section 38773.5, a court may order the owner to pay treble the costs of the abatement. These costs shall not include conditions abated pursuant to California Health and Safety Code Section 17980.

SEC. 11.01. DEFINITIONS AND INTERPRETATION.

(a) The following words and phrases whenever used in this Code shall be construed as defined in this section unless from the context a different meaning is intended, or unless a different meaning is specifically defined and more particularly directed to the use of such words or phrases:

“**City**” shall mean the area within the territorial city limits of the City of Los Angeles and such territory outside of this City over which the City has jurisdiction or control by virtue of any Constitutional or Charter provision, or any law, “**Council**” shall mean the City Council of this City. “**Oath**” includes affirmation.

“**Find**” or “**Finding**” shall mean a written finding. **(Added by Ord. No. 182,095, Eff. 5/7/12.)**

“**Health Department**” or “**Department of Health**,” after 6/30/64, shall mean the Los Angeles County Health Department. **(Added by Ord. No. 127,508, Eff. 6/29/64.)**

“**Health Officer**” or “**Health Authority**” or “**Board of Health Commissioners**,” after 6/30/64, shall mean the County Health Officer of the County of Los Angeles, or their duly authorized representative **(Added by Ord. No. 127,508, Eff. 6/29/64.)**

“**Office**”. The use of the title of any officer, employee, or any office or ordinance or Charter shall mean such officer, employee, office, ordinance or Charter of the City of Los Angeles unless otherwise specifically designated.

“**Person**” shall mean natural person, joint venture, joint stock company, partnership, association, club, company, corporation, business trust, or organization, or the manager, lessee, agent, servant, officer or employee of any of them.

“**Planning Committee**” shall mean the Planning and Land Use Management Committee of the City Council. **(Added by Ord. No. 164,740, Eff. 5/27/89, Oper. 7/1/89.)**

“**Shall**” and “**May**.” “**Shall**” is mandatory; “**May**” is permissive.

“**Street**” shall include all streets, highways, avenues lanes, alleys, courts places, squares, curbs or other public ways in this City which have been or may hereafter be dedicated and open to public use, or such other public property so designated in any law of this State.

There is nothing in the context of the Los Angeles Municipal Code... which justifies holding that the word streets is used therein to designate a "roadway" exclusive of sidewalks. Unless it is associated with language restricting its meaning, the term street in its ordinary acceptance, includes sidewalks.

People v. Noble. Cr.A 1498.

See also Note 11(a) 44 C.J. p 883; *Bonnett v San Francisco*, 65 Cal 230; *Marini v. Graham*, 67 Cal 130, 132; *Ex parte Taylor*, 87 Cal. 91, 94; *Vanderhurst v. Tholcke*, 113 Cal. 147, 150.

"Written" shall include printed, typewritten, mimeographed or multigraphed.

(b) **Grammatical Interpretation.**

"Genders." Any gender includes the other genders.

"Singular and Plural." The singular number includes the plural, and the plural, the singular.

"Tenses." Words used in the present tense include the past and future tenses and vice versa.

"Use of Words and Phrases." Words and phrases used in this Code and not specifically defined shall be construed according to the context and approved usage of the language.

(c) **Civil Code Provisions.** The provisions of Sections 13 and 1645 of the Civil Code of the State of California are hereby adopted in the interpretation of words and phrases, unless otherwise provided herein.

SEC. 11.02. INCONSISTENT PERMITS AND LICENSES.

(Amended by Ord. No. 134,358, Eff. 6/8/67.)

Notwithstanding any other provisions of this Code or any other ordinance of the City of Los Angeles, no permit or license shall be issued in violation of any provisions of this Code or any other ordinance of the City of Los Angeles; if any permit or license is issued in violation of any provision of this Code or any other ordinance of the City of Los Angeles the same shall be void. Any permit or license issued, which purports to authorize the doing of any act prohibited by any other provision of this Code or any other ordinance of the City of Los Angeles, shall be void. Provided, however, that upon publication of a zone change, height district or building line ordinance the Superintendent of Building may issue a permit for a building or structure which will comply with all of the requirements of the new zone, height district or building line. No such permit shall be issued unless the applicant has first executed and filed with the Superintendent of Building a notarized agreement assuming all risk and agreeing to remove all buildings or structures authorized by the permit in the event the zone change, height district or building line ordinance should become effective.

SEC. 11.03. POST WAR RENEWAL OF LICENSES OF CRAFTSPERSONS AND OTHERS.

(a) Whenever by any provision of this Code, any license, permit or certificate of qualification is required for carrying on any business, trade, craft, profession or occupation and as a prerequisite the issuance thereof any examination fee shall be required in any case where the applicant for the license, permit or certificate was previously the holder of a similar one, provided the applicant shows that the applicant's failure to renew the former license, permit or certificate, or to keep it in full force and effect, resulted from the applicant's induction or entrance into the armed forces of the United States or of any allied nation, and provided the application for renewal is made within six months after the applicant's honorable discharge from service, and provided proof satisfactory to the issuing board or officer of the city is furnished by the applicant that the applicant has not been physically or mentally incapacitated to properly carry on the business, trade, craft, profession or occupation in question.

(b) Whenever, as to any such license, permit or certificate of qualification, a fee is charged both for the original issuance and for the annual renewal thereof, any application made as provided in Subsection (a) shall be deemed an application for a renewal, and the current renewal fee only shall be charged therefor, to be prorated for the unexpired portion of the license year; except that in no case shall the required renewal fee be less than \$1.00.

(c) This section shall be construed to apply as to licenses required under Article I of Chapter 2 of this Code.

SEC. 11.04. DELINQUENT ACCOUNTS – UNCOLLECTIBLE CANCELLATION.

(Added by Ord. No. 107,216, Eff. 5/5/56.)

If any board, commission, or head of any department finds that any money is due, or believed to be due the City as and for fees for permits, or resulting from the issuance of any permit, or as the result of the contemplated issuance of a permit, or resulting from any services performed by the City at the special instance and request of the debtor, or resulting from any act of the debtor, and is uncollectible, or that efforts to collect any such sum would be disproportionately costly with relation to the probable outcome of the collecting efforts, such board, commission, or head of a department, may prepare a report setting forth the findings and reasons therefor and submit said findings and reasons to a Board of Review consisting of the Controller, the City Treasurer and the City Attorney, or the

duly appointed representative of each. Upon unanimous approval of the findings by the Board of Review, the board, commission or head of the department concerned, may remove from the active accounts receivable of such board, commission or department any unpaid sum owing, or believed to be owing to the City from any person, when the account involved is less than the sum of \$1000.00. If the report relates to an obligation or claim owing, or believed to be owing to the City, which amounts to \$1000.00 or more, the Board of Review shall make its recommendations upon the findings, and if the Board of Review unanimously approved the findings it shall submit them to the Council together with the findings of the Board, Commission or head of a department. If the Board of Review does not unanimously approve the findings, the matter shall be returned to the board, commission or head of the department. Upon the approval of the findings by the Council, the board, commission or head of the department concerned may remove from the active accounts receivable the amount so approved. The removal from the active accounts receivable of any board, commission or head of a department of any unpaid obligation as hereinabove provided, shall not preclude the City from collection or attempting to collect any such sum that later proves to be collectible. Should any such sum so owing to the City not be collected within the period of the Statute of Limitations of the State of California, and applicable to any such obligation, then the board, commission or head of a department may write off and cancel said obligation. **(Amended by Ord. No. 157,016, Eff. 9/24/82.)**

SEC. 11.05. EFFECT OF RENUMBERING OR REDESIGNATION OF PROVISIONS OR SECTIONS IN STATUTES OR CODES OF THE STATE OF CALIFORNIA WHICH ARE REFERRED TO IN THE LOS ANGELES MUNICIPAL CODE.

(Added by Ord. No. 116,431, Eff. 7/30/60.)

Whenever in this Code reference is made to any designation or numbered provision of any Statute or Code of the State of California, such reference shall be deemed to be to such provision or section as it may be redesignated or renumbered from time to time by act of the Legislature of the State of California in amending or recodifying such Statute, Code or provision or section thereof, to the extent that by such legislative act the intent and meaning of the provision or section remains substantially unchanged.

SEC. 11.06. VIOLATION OF MUNICIPAL ORDINANCES – CITATION IN LIEU OF TAKING ARRESTED PERSON BEFORE MAGISTRATE.

(Amended by Ord. No. 142,214, Eff. 8/23/71.)

(a) In any case in which a person is arrested for the violation of any provision of this Code, or any ordinance of this City, by a regularly appointed, salaried officer of the Los Angeles Police Department, or by any peace officer, and such person does not demand to be taken before a magistrate, such arresting officer may prepare a written notice to appear and release the person on the person's promise to appear, as prescribed by Chapter 5C (commencing with Section 853.6) of the Penal Code. The provision of such chapter shall thereafter apply with reference to any proceeding based upon the issuance of a written notice to appear pursuant to this authority.

(b) In any case in which a person is arrested for the violation of any provision of this Code, or any ordinance of this City, by any officer or employee of this City who is not a peace officer, but who has been authorized by ordinance pursuant to Penal Code Section 836.5 to make such arrests, and such person does not demand to be taken before a magistrate, such arresting officer or employee shall prepare a written notice to appear and release the person on the person's promise to appear as prescribed by Chapter 5C (commencing with Section 853.6) of the Penal Code. The provisions of such code shall thereafter apply with reference to any proceeding based upon the issuance of a written notice to appear pursuant to this authority.

SEC. 11.07. BAD CHECK COLLECTION FEES.

(Added by Ord. No. 124,508, Eff. 6/6/63.)

(a) **(Amended by Ord. No. 143,860, Eff. 10/30/72.)** Whenever any person pays any fee, charge, deposit, or amount due the City by check, and said check proves to be non-negotiable or is unhonored, the following fee can be charged to and collected from such person in addition to the full amount of the fee, charge, deposit, or amount otherwise due:

\$10.00 for each nonnegotiable or unhonored check. **(Amended by Ord. No. 157,613, Eff. 5/26/83.)**

\$25.00 per hour or fraction thereof for any investigation which is made necessary in order to collect or receive an money due after seven calendar days from the date said check was received.

EXCEPTIONS:

1. Any department, division, office or bureau of this City may, by resolution of its board of commissioners, or if none, by order of its general manager, decline to enforce the provisions of this section with respect to those fees, charges deposits, or other amounts which it has the duty of collecting if it determines that collection of the fees provided for in this section is unreasonable or unnecessary. The controller shall be promptly notified of each such action.

2. The chief accounting employee of each department, division, office or bureau of this City enforcing this section may waive the fees provided for herein if that employee determines that such fees are not collectible without unreasonable cost to the City, and the full amount of all fees, charges, deposits, or other amounts for which the non-negotiable or unhonored check has been written has been collected. The Controller shall be promptly notified of each such action. **(Amended by Ord. No. 157,202, Eff.**

12/11/82.)

(b) This section shall not apply to checks which are returned or unhonored due solely to acknowledged bank error and the check is made good within three days after its original return.

(c) Any person who presents a non-negotiable or unhonored check in payment of fees or charges established by this Code may be placed on a cash-only payment basis by the enforcing department, office, division or bureau for that payment and future payments. **(Amended by Ord. No. 157,613, Eff. 5/26/83.)**

(d) All fees imposed and collected under the provisions of this section shall be deposited in the General Fund.

(e) There shall be no implementation of Exceptions 1 or 2 of this section unless the concerned department head has approved and caused to be filed and kept current with the Controller a statement of departmental policies and procedures wherein collection of fees under this section shall not be required and may be waived. The procedures shall require that the department head notify the Controller in each instance of any waiver of fee and identify in that notice to the Controller the specific policy or procedure applicable in the instance involved. **(Amended by Ord. No. 157,202, Eff. 12/11/82.)**

SEC. 11.08. CITY DEPARTMENTS EXEMPT FROM PAYING FEES OR CHARGES REQUIRED BY THIS CODE.

(a) Notwithstanding any other Provision of this Code to the contrary, no budgetary department, bureau or office of the City shall pay any fee or charge required by this Code for any license or permit, or for the performance of any official service provided for in this Code; nor shall any fee or charge otherwise imposed by this Code be required in connection with the relocation or restoration of buildings or structures determined pursuant to Article 5 of Chapter 7 of Division 22 of the Los Angeles Administrative Code to be historical or cultural monuments, and which have been, or are in the process of being, permanently located at a site or facility approved by the City Council for the purposes of preserving, maintaining, and exhibiting such monuments. **(Amended by Ord. No. 147,994, Eff. 2/21/76.)**

(b) This section shall not apply to any department, bureau or office of this City which has control of its own funds, except the Library and Recreation and Parks Departments; or to fees or charges which are reimbursable from any of the following Funds: Revolving, Trust, Bond or Capital Improvement Projects.

(c) In order to receive such exemption, however, an such exempt departments, bureaus or offices shall attach to each permit or license application a written certification signed by the administrative head of the department, bureau or office that such permit or license is not to be reimbursed from a Revolving, Trust, Bond or Capital Improvement Project Fund. Provided further that any permittee or license exempt under the provisions of subsection (a) hereof because such permit or license is sought in connection with the relocation or restoration of buildings or structures determined to be cultural or historical monuments, as provided for herein, shall attach to each permit or license application a written certification by the Cultural Heritage Board that such building or structure is a cultural or historical monument and is being relocated to or improved upon a site or facility approved by the City Council for the purposes of preserving, maintaining and exhibiting such monuments. **(Amended by Ord. No. 147,994, Eff. 2/21/76.)**

SEC. 11.09. ADMINISTRATIVE DETERMINATIONS – NOTICE – JUDICIAL REVIEW.

The provisions of Section 1094.6 of the Code of Civil Procedure of the State of California shall be applicable in the City of Los Angeles to decisions by the City, or by any officer, employee, board, commission or other agency of the City. As used in this section, “**decision**” means an adjudicatory administrative decision made, after hearing, suspending, demoting, or dismissing an officer or employee, revoking or denying an application for a permit or a license, or denying an application for any retirement benefit or allowance. **(Added by Ord. No. 152,078, Eff. 4/22/79.)**

SEC. 11.10. EXEMPTIONS RELATING TO THE LOS ANGELES 200TH ANNIVERSARY CELEBRATION.

(a) Notwithstanding any other provision of this Code to the contrary, no non-profit organization heretofore established to plan the Los Angeles 200th Anniversary Celebration, and formally so recognized by the City of Los Angeles, shall pay any fee or charge required by this Code for any license or permit required in connection with the Los Angeles 200th Anniversary Celebration. **(Added by Ord. No. 154,677, Eff. 12/29/80.)**

SEC. 11.11. USE OF THE METRIC SYSTEM OF MEASURE AS AN ALTERNATIVE SYSTEM OF MEASUREMENT (Added by Ord. No. 171,464, Eff. 2/6/97.)

(a) **Scope.** This section shall apply to any activity or work of any Bureau or Department of the City engaged in administering or enforcing any City ordinances, State or Federal enactments or any regulations where units of distance, weight or force are used in any regulatory, enforcement, design or control activity or posting of limits.

(b) **Use of Metric System of Measure Authorized.**

1. Notwithstanding any provision of this Code to the contrary, commencing with the effective date of this ordinance, any Bureau or Department of the City may use the metric system of measure in enforcing any enactments, statutes, ordinances, codes or regulations subject to its jurisdiction; provided, however, that such use is not contrary to any applicable State of California or Federal regulations or enactments.

2. The metric system of measure authorized by this section is that system of units and measurements defined and described in the Federal Metric Conversion Act of 1975 (15 U.S.C. 2056) and commonly referred to as the ‘**System Internationale d’Unites**’.

3. It is intended that whenever any City code or ordinance contains an Imperial unit of measure that the equivalent unit in metric measure may be used and that the conversion shall be made using nationally recognized conversion factors. Where metric units are used, all metric values shall be direct conversions of the values expressed in the official enactment, ordinance, code or regulation. In the case of linear measurements, conversion shall be based on the Standard U.S. Survey Foot defined as 0.3048006 parts of a meter. Converted values may be rounded to a reasonable number of decimal places; provided however that no such rounding shall result in any increase in any fee collected or dedication or taking of land, any increase in any upper or lower limit of speed or any reduction in any standard of minimum clearance.

(c) **Public Notice.** Prior to commencing the use of the metric system of measure a public notice of intent to do so shall be approved by the governing officer or body of the Department. The notice shall identify the Department or Bureau proposing the use of the metric system of values and shall enumerate the provisions containing the numeric values and measurements that will be converted. The notice shall further state whether or not a dual system of measurement will be permitted. After approval by the Department, the notice shall be transmitted to the City Council which may approve or disapprove the notice by resolution. After approval by the City Council the notice shall be published in a newspaper of general circulation for a period not less than 30 days or for such longer period as may be applicable where a longer notice period is specified for an amendment to any code.

SEC. 11.12. SUMMARY OF FEES FOR BUREAU OF ENGINEERING SERVICES PROVIDED PURSUANT TO THE PROVISIONS OF THIS CHAPTER.

(Amended by Ord. No. 184,718, Eff. 3/4/17.)

The following table is a summary of fees for Bureau of Engineering services provided pursuant to the provisions of this Chapter. If there is any discrepancy between the provisions of this summary and the Sections of this Code imposing the fees, the provisions of the Sections of this Code imposing the fees shall prevail. Additional charges may be imposed pursuant to the provisions of Sections 61.14 and 61.15 of this Code.

Permit / Service Description	LAMC Section	Fee
Highway dedication investigation [1]	12.37 F.1.	\$546
Highway dedication processing [1]	12.37 F.2.	\$3,193
Survey monument bond processing [1]	17.07 E.3.	\$443
Private street name processing [1]	18.09 G.2.	\$4,326
Tentative subdivision map < 20 lots [1] [2]	19.02 A.1.(g)	\$8,240
Tentative subdivision map ≥ 20 lots [1] [2]	19.02 A.1.(g)	Actual
Modification or revision of tentative subdivision map [1] [2]	19.02 A.1.(g)	\$1,854
Final subdivision map < 20 lots [1] [2]	19.02 A.2.(a)	\$8,240
Final subdivision map ≥ 20 lots [1] [2]	19.02 A.2.(a)	Actual
Final subdivision map airspace subdivision [1] [2]	19.02 A.2.(a)	Actual
Final subdivision map Very High Fire Hazard Severity Zone surcharge [1] [2]	19.02 A.2.(b)	50%
Final subdivision map resubmission [1] [2]	19.02 A.2.(c)	\$824
Final subdivision map reversion to acreage surcharge [1] [2]	19.02 A.2.(d)	\$2,549
Preliminary parcel map [1] [2]	19.02 B.1.(f)	\$8,240
Preliminary parcel map revision or modification [1] [2]	19.02 B.1.(f)	\$824
Parcel map exemption [1] [2]	19.02 B.1.(f)	\$1,262
Certificate of compliance [1] [2]	19.02 B.2.	\$1,262
Final parcel map [1] [2]	19.02 B.3.(a)	\$8,240
Final parcel map airspace subdivision [1] [2]	19.02 B.3.(a)	Actual
Final parcel map Very High Fire Hazard Severity Zone surcharge [1] [2]	19.02 B.3.(b)	50%
Final parcel map resubmission [1] [2]	19.02 B.3.(c)	\$824
Final parcel map reversion to acreage surcharge [1] [2]	19.02 B.3.(d)	\$1,854
Final parcel map waiver [1] [2]	19.02 B.3.(e)	\$1,262
Private street map [1] [2]	19.02 C.1.(c)	\$6,304

Private street map revision or modification [1] [2]	19.02 C.1.(c)	\$630
Flood hazard compliance basic review [1] [2]	19.07 A.	\$273
Elevation certificate processing [1] [2]	19.07 A.	\$273
Floodproofing certificate processing [1] [2]	19.07 A.	\$273
Letter of map change / conditional letter of map change processing [1] [2]	19.07 A.	\$273
Flood hazard compliance additional review up to 16 hours [1] [2]	19.07 B.	\$149/hour
Flood hazard compliance additional review more than 16 hours [1] [2]	19.07 C.	Actual

Footnotes:

[1] A surcharge of 7% or \$1, whichever is greater, will be added to the listed fee pursuant to LAMC Section 61.03.

[2] A surcharge of 3% or \$1, whichever is greater, will be added to the listed fee pursuant to LAMC Section 19.08. The surcharge shall be returned to 2% or \$1, whichever is greater, when the cost of BuildLA is recovered under LAMC Section 19.08.
(Amended by Ord. No. 184,548, Eff. 12/11/16.)

SEC. 11.13. RECOMMENDATION, ACTION OR APPROVAL BY THE COMMUNITY REDEVELOPMENT AGENCY OF THE CITY OF LOS ANGELES (CRA/LA), A DESIGNATED LOCAL AUTHORITY SUCCESSOR TO THE COMMUNITY REDEVELOPMENT AGENCY OF THE CITY OF LOS ANGELES (CRA/LA-DLA).

(Added by Ord. No. 186,325, Eff. 11/11/19.)

As of the effective date of this ordinance, the City shall review and take action regarding any Redevelopment Plan Amendment or land use approval or entitlement pursuant to Section 11.5.14 and other applicable provisions of this Code. Notwithstanding any contrary provision of this Code, the Community Redevelopment Law, the Redevelopment Regulations, or any applicable specific plan, supplemental use district, or other land use regulation adopted by the City, the City shall not be required to consult with or provide notice to the former Community Redevelopment Agency of the City of Los Angeles (CRA/LA) or the CRA/LA, a Designated Local Authority Successor to the Community Redevelopment Agency of the City of Los Angeles (CRA/LA-DLA). In addition, CRA/LA-DLA shall have no further authority or responsibility to perform related land use functions including, but not limited to: preparing staff reports pertaining to land use decisions; making findings; making interpretations; imposing conditions; making recommendations; reviewing, granting or denying land use approvals or entitlements; hearing appeals; and/or amending Redevelopment Regulations.

ARTICLE 1.2

ADMINISTRATIVE CITATIONS

(Added by Ord. No. 182,610, Eff. 8/2/13.)

Section

- 11.2.01 Purpose and Intent.
- 11.2.02 Definitions.
- 11.2.03 Issuance of Administrative Citation.
- 11.2.04 Administrative Fines.
- 11.2.05 Service Procedures.
- 11.2.06 Contents of Administrative Citation.
- 11.2.07 Satisfaction of the Administrative Citation.
- 11.2.08 Appeal of the Administrative Citation.
- 11.2.09 Administrative Hearing.
- 11.2.10 Right to Judicial Review.
- 11.2.11 Failure to Pay Administrative Fines and Costs.
- 11.2.12 Deposit of Monies Collected.
- 11.2.13 Severability.

SEC. 11.2.01. PURPOSE AND INTENT.

(a) The City Council of the City of Los Angeles finds that there is a need for an alternative method of enforcement for violations of this Code, applicable statutory provisions, ordinances, uniform codes adopted by the City, orders issued by a commission, board, hearing officer, or other body authorized to issue orders, and any conditions or requirements imposed on or by any entitlement, permit, or environmental document issued or approved by the City.

(b) The City Council finds and determines that an administrative citation program (the Program) is an effective alternative method of

enforcement for these violations.

(c) The primary purpose and intent of the City Council, through the adoption of this Article, is to create an alternative method of problem resolution and enforcement that:

1. Fosters timely compliance with the law in order to protect public health, safety and welfare;
2. Provides for the fair, efficient and effective administration of justice;
3. Provides an administrative process that openly and fairly allows for the appeal and review of Administrative Citations and fines imposed;
4. Minimizes the delay and expense of Code enforcement through the only currently available options of criminal prosecution and civil litigation; and
5. Deters the use of dilatory and frivolous challenges to Administrative Violations and facilitate the prompt collection of fines.

(d) The procedures established in this Article shall be an alternative to criminal, civil and any other legal enforcement remedies provided in this Code. Issuance of an Administrative Citation shall not be deemed a waiver of any other enforcement remedies provided in this Code. The selection of issuing an Administrative Citation or another enforcement remedy provided in this Code lies within the sole discretion of the Issuing Department and, as applicable, by the City Attorney, and shall be consistent with the purpose and intent of this Article. **(Amended by Ord. No. 184,766, Eff. 3/27/17.)**

(e) It is the intent of the City Council that this Administrative Citation Enforcement Program be implemented as a pilot program and in a phased manner. Accordingly, the City Attorney is requested to work with the various departments of the City that have responsibility for enforcing Code provisions and addressing Code violations and are authorized to participate in the Program to implement the Program in the most effective manner to address quality of life issues and to provide training and other preparation in the issuance of Administrative Citations and the process of enforcing them. The phased implementation of the Program shall begin with the Police Department and the Animal Services Department, and the Program may thereafter be implemented one department at a time with the Housing Department and Building and Safety Department being next in order. Prior to proposing the implementation of the Program in the latter two departments, the City Attorney will report to the City Council regarding the implementation of the Program in the Police Department and the Animal Services Department, the experience with and results of the Program, and any recommendations for modifying the Program, and a list of the primary Code sections that will be enforced through the Program by each department. The Housing Department, Building and Safety Department, and other City Departments may be added to the Program with the prior approval of the City Council. The City Attorney will report quarterly to the Council on the implementation of the Program, the experience with and results of the Program, and any recommendations for modifying the Program, and, for information purposes only, a list of the primary Code sections that will be enforced through the Program by each department. Prior to the end of the third year after implementation of the Program, the City Administrative Officer (CAO) shall report to the City Council on the implementation and progress of the Program, and thereafter the Council will determine whether to continue or end the Program.

SEC. 11.2.02. DEFINITIONS.

For purposes of this Article, the following words and phrases are defined:

“Administrative Citation” means a notice of Administrative Violation issued by an Enforcement Officer.

“Administrative Costs” means all direct and indirect costs incurred as a result of an Administrative Citation hearing, including, but not limited to, reasonable attorney fees, and costs relating to the initial review, scheduling, and processing of the administrative hearing.

“Administrative Fine” means the fine or penalty imposed on the Responsible Person for an Administrative Violation.

“Administrative Hearing Officer” means an independent neutral decision-maker designated by the City as set forth in this Article, such as pro tem judges provided by the Los Angeles Superior Court, Administrative Law Judges as defined by the State of California, and individuals trained in dispute resolution with a minimum of 25 hours of classroom and practical training and experience performing duties related to mediation and conflict resolution in accordance with the requirements of the California Dispute Resolution Programs Act of 1986 (16 CCR Section 3622), who shall be subject to disqualification for bias, prejudice, conflict, or any other reason for which a judicial hearing officer may be disqualified. Administrative Hearing Officers shall not be City employees.

“Administrative Violation” means any violation of this Code, applicable statutory provisions, ordinances, uniform codes adopted by the City, orders issued by a commission, board, hearing officer, or other body authorized to issue orders, or any conditions or requirements imposed on or by any entitlement, permit, or environmental document issued or approved by the City.

“Continuing Violation” means any Administrative Violation pertaining to a condition or matter, including but not limited to building, plumbing, electrical, or other structural or zoning matter that does not create an imminent hazard to health or safety. A Continuing Violation does not include an Administrative Violation that can be corrected by the Responsible Party through the immediate cessation or discontinuation of any prohibited activity or by the immediate implementation of a required activity as determined by the Issuing Department. **(Amended by Ord. No. 183,272, Eff. 11/14/14.)**

“Enforcement Costs” means all direct and indirect costs incurred by the Issuing Department in investigating, inspecting, or abating any Administrative Violation, including, but not limited to, noncompliance fees as specified in Section 98.0411 and costs incurred in preparing for and attending an Administrative Citation hearing.

“Enforcement Officer” means any police officer, inspector, or other employee or agent of the City having the power to

enforce any Administrative Violation, including Enforcement Officers of non-City entities that have the authority to perform such enforcement through cooperation agreements with the LAPD or other City Departments.

“**Issuing Department**” means the City department or office that has authority and responsibility for enforcing Administrative Violations subject to an Administrative Citation, including non- City entities that have the authority to perform such enforcement through cooperation agreements with the LAPD or other City Departments.

“**Minor**” means any person under the age of eighteen years.

“**Responsible Person**” means any person, as defined in Section 11.01(a), who is any of the following:

1. A person who causes or materially contributes to the causation of an Administrative Violation;
2. A person who maintains or allows an Administrative Violation to continue by the person’s action or inaction;
3. A person whose agent, employee, or independent contractor causes or materially contributes to the causation of an Administrative Violation;
4. An on-site manager of a business who is responsible for the activities occurring at the premises where an Administrative Violation occurs;
5. A trustee or other person who is given the legal authority to manage property on behalf of someone else where an Administrative Violation occurs;
6. A person who is a parent or guardian having custody and control of a Minor who contributes to the causation of an Administrative Violation;
7. A person who is the owner of, or who exercises control over, or any lessee or sub lessee with the current right of possession of, real property where a property related Administrative Violation occurs.

SEC. 11.2.03. ISSUANCE OF ADMINISTRATIVE CITATION.

(a) Except as provided in Subsection (b) of this Section, whenever an Enforcement Officer determines that an Administrative Violation has occurred, the Enforcement Officer is authorized to issue an Administrative Citation to the Responsible Person(s). If the Responsible Person is a Minor, the Enforcement Officer is authorized to issue an Administrative Citation to the parent(s) or guardian(s) having custody and control of the Minor. Notification of the Administrative Violation to the holder of any lease, mortgage, deed of trust, or other encumbrance of record shall conform to the policies and procedures established by the City Attorney’s Office.

(b) When the Administrative Violation pertains to a Continuing Violation, a reasonable period of time to correct the Administrative Violation must be afforded to the Responsible Person prior to imposing an Administrative Fine. If the Administrative Violation is remedied prior to the expiration of the correction period, no Administrative Fine shall be imposed. However, the Responsible Person shall remain liable for and shall pay the Enforcement Costs associated with the Administrative Violation.

(c) Each Administrative Violation shall constitute a separate and distinct offense subject to an Administrative Fine, as provided for in this Article. Each and every day an Administrative Violation exists shall constitute a separate and distinct offense subject to an Administrative Fine, as provided for in this Article.

SEC. 11.2.04. ADMINISTRATIVE FINES.

(a) The amount of the Administrative Fine shall be ascertained by the Enforcement Officer, in accordance with the Administrative Fine schedules set forth in Subsection (b) of this Section, subject to the following limitations:

1. For those Code sections that include the penalty of an infraction, an Administrative Violation issued instead of an infraction shall provide for an Administrative Fine that does not exceed the maximum fine set forth in this Code for that infraction. If the amount of the fine for the infraction is not specified in this Code, the amount of the Administrative Fine shall not exceed the maximum fine provided for in Subdivisions (b) and (c) of Section 36900 of the California Government Code. **(Amended by Ord. No. 184,766, Eff. 3/27/17.)**

2. For Administrative Violations involving improvements to, or the use of, buildings, structures, or land for which permits or approval are required but were not obtained, the Administrative Fine levied shall be in the following amounts. For Administrative Violations involving improvements to, or the use of, buildings, structures, or land for which no permit could have been obtained, as determined by the Los Angeles Department of Building and Safety, and no variance was sought, the Administrative Fine levied shall be at four times (4x) the following amounts.

SQUARE FOOTAGE OF THE IMPROVEMENT OR USE IN VIOLATION	ADMINISTRATIVE FINE PER DAY OF VIOLATION		
	First Violation	Second Violation	Third Violation and All Subsequent Violations
SQUARE FOOTAGE OF THE IMPROVEMENT OR USE IN VIOLATION	ADMINISTRATIVE FINE PER DAY OF VIOLATION		
	First Violation	Second Violation	Third Violation and All Subsequent Violations
250 to less than 500	\$1,000	\$2,000	\$4,000
500 to less than 2,500	\$2,000	\$4,000	\$8,000
2,500 to less than 5,000	\$3,000	\$6,000	\$12,000
5,000 to less than 10,000	\$4,000	\$8,000	\$16,000
10,000 to less than 25,000	\$8,000	\$16,000	\$32,000
25,000 or more	\$16,000	\$32,000	\$64,000

Administrative Violations involving improvements of less than 250 square feet or that are not measureable by square footage shall be cited in accordance with Subsection (b) of this Section.

3. For Administrative Violations involving sign regulations, the Administrative Fine levied shall be in the following amounts:

SQUARE FOOTAGE OF THE SIGN IN VIOLATION	ADMINISTRATIVE FINE PER DAY OF VIOLATION		
	First Violation	Second Violation	Third Violation and All Subsequent Violations
SQUARE FOOTAGE OF THE SIGN IN VIOLATION	ADMINISTRATIVE FINE PER DAY OF VIOLATION		
	First Violation	Second Violation	Third Violation and All Subsequent Violations
Less than 150 square feet	\$2,000	\$4,000	\$8,000
150 to less than 300 square feet	\$4,000	\$8,000	\$16,000
300 to less than 450 square feet	\$6,000	\$12,000	\$24,000
450 to less than 600 square feet	\$8,000	\$16,000	\$32,000
600 to less than 750 square feet	\$10,000	\$20,000	\$40,000
750 or more square feet	\$12,000	\$24,000	\$48,000

(b) For all other Administrative Violations, the Administrative Fine imposed shall be in the following amounts, unless otherwise specified in this Code. **(Amended by Ord. No. 185,451, Eff. 4/15/18.)**

1. Two hundred and fifty dollars (\$250) for a first violation; provided, however, that the amount shall be one hundred dollars (\$100) for a first violation of any provision of Chapter V, Article 3, Sections 53.00 and following, of this Code.

2. Five hundred dollars (\$500) for a second violation of the same code provision, statute, ordinance, order, condition or requirement; provided, however, that the amount shall be two hundred and fifty dollars (\$250) for a second violation of the same provision of Chapter V, Article 3, Sections 53.00 and following, of this Code.

3. One thousand dollars (\$1,000) for a third or any subsequent violation of the same code provision, statute, ordinance, order, condition or requirement; provided, however, that the amount shall be five hundred dollars (\$500) for a third, and one thousand dollars (\$1,000) for a fourth or any subsequent, violation of the same provision of Chapter V, Article 3, Sections 53.00 and following, of this Code.

4. Nothing in this section shall preclude or limit the Administrative Hearing Officer's authority to impose a greater Administrative Fine, not to exceed one thousand dollars (\$1,000), in accordance with Subsection (b) of Section 11.2.09.

SEC. 11.2.05. SERVICE PROCEDURES.

(a) An Administrative Citation in a form developed by the Issuing Department and subject to the approval of the City Attorney may be issued to the Responsible Person(s) by an Enforcement Officer for Administrative Violations in the following manner:

1. **Personal Service.** In any case where an Administrative Citation is issued to an individual, the Enforcement Officer shall:

A. Locate the individual and serve the Administrative Citation on the Responsible Person(s). If the Responsible Person is a Minor, the Enforcement Officer shall also attempt to serve the Administrative Citation on the parent(s) or guardian(s) having custody and control of the Minor.

B. Obtain on the Administrative Citation the signature of the Responsible Person. If the Responsible Person refuses or fails to sign the Administrative Citation, the failure or refusal to sign shall not affect the validity of the Administrative Citation and subsequent proceedings.

2. **Service by Mail.** If the Enforcement Officer is unable to locate the Responsible Person for the Administrative Violation, the Administrative Citation may be mailed to the Responsible Person by first class mail. If the Responsible Person is known to be a Minor, the Administrative Citation shall be mailed to the parent(s) or guardian(s) having custody and control of the Minor by first class mail.

A. If the Responsible Person is the property owner where a property related Administrative Violation occurs, the Administrative Citation shall be sent to the mailing address shown on the County's last equalized property tax assessment rolls (if any), and the last known address of the Responsible Person.

B. If the Responsible Person is the tenant or other possessor of property where a property related Administrative Violation occurs, the Administrative Citation shall be sent to the property address.

(b) Service pursuant to Subdivision 1. of Subsection (a) of this Section shall be deemed effective at the time of personal delivery. Service pursuant to Subdivision 2. of Subsection (a) of this Section shall be deemed effective five (5) calendar days following the date of mailing.

SEC. 11.2.06. CONTENTS OF ADMINISTRATIVE CITATION.

(a) The City Attorney shall develop policies and procedures to ensure that the contents of the Administrative Citation provide the Responsible Person with adequate notice regarding the Administrative Violation(s), potential liability, and all rights of appeal.

(b) Where an Administrative Violation can be corrected, the Administrative Citation shall require the Responsible Person to immediately correct the Administrative Violations and shall explain the consequences of failure to correct the Administrative Violations.

(c) If the Administrative Violation pertains to a Continuing Violation, a reasonable period of time to correct the Administrative Violation must be specified on the citation in addition to an explanation of the consequences for failing to correct the Administrative Violation.

SEC. 11.2.07. SATISFACTION OF THE ADMINISTRATIVE CITATION.

Upon receipt of an Administrative Citation, the Responsible Person shall either:

(a) **Pay the Fine. (Amended by Ord. No. 183,272, Eff. 11/14/14.)** Pay the Administrative Fine within twenty (20) calendar days after the notice of the Administrative Violation is sent to the Responsible Person.

1. Payment of the Administrative Fine waives the Responsible Person's right to the administrative hearing and appeal process as outlined in Sections 11.2.08 and 11.2.09, below.

2. Payment of an Administrative Fine shall not excuse or discharge a failure to correct an Administrative Violation, as defined in Subsection (b) of Section 11.2.03, nor shall it bar the Enforcement Officer or Issuing Department from taking any other enforcement action in response to an Administrative Violation; or

(b) **Remedy the Administrative Violation.** If a specified amount of time was provided to correct an Administrative Violation, as defined in Subsection (b) of Section 11.2.03, and the Responsible Person remedies the Administrative Violation within the time granted, no Administrative Fine shall be imposed. The Administrative Citation shall not be deemed to have been satisfied until the Responsible Person provides proof to the Issuing Department that, within the time allotted by the Administrative Citation, the Administrative Violation was satisfactorily remedied. In addition, the Issuing Department may also demand to inspect the condition that gave rise to the issuance of the Administrative Citation to determine whether the Administrative Violation has been satisfactorily remedied.

The Responsible Person who remedies the Administrative Violation shall remain liable for and shall pay the Enforcement Costs associated with the Administrative Violation. Timely correction of the Administrative Violation does not absolve the Responsible Person of this liability. Collection of Enforcement Costs of violations remedied in this manner shall be the responsibility of the Issuing Department.

SEC. 11.2.08. APPEAL OF THE ADMINISTRATIVE CITATION.

(a) **Request for Initial Review and Administrative Hearing. (Amended by Ord. No. 183,272, Eff. 11/14/14.)** If the Responsible Person chooses to contest the Administrative Citation, the Responsible Person shall submit to the City Attorney a request to do so on an official form provided by the City no later than twenty (20) calendar days after the notice of the Administrative Violation is sent to the Responsible Person. Said form, hereinafter referred to as a Request for Initial Review, shall notify the Responsible Person that an initial review regarding the validity of the Administrative Citation will be conducted prior to scheduling an administrative hearing and shall comply with the policy and procedures established by the City Attorney.

1. **Initial Review of Administrative Citation.** Upon receipt of the Request for Initial Review, as provided in Subsection (a) of this Section, the City Attorney will conduct an initial review to determine the validity of the Administrative Citation and the appropriate remedy. The City Attorney may make either of the determinations set forth below or, in the exercise of the City Attorney's independent discretion, determine to refer the matter to be addressed through other available remedies including, but not limited to, criminal proceedings, civil action, injunctive relief, specific performance, and any other remedies provided by law.

A. If, following the initial review, the City Attorney determines that the Administrative Violation did not occur, or that extenuating circumstances make dismissal of the Administrative Citation appropriate in the interest of justice, the Administrative Citation shall be dismissed and the Responsible Person notified by mail.

B. If, following the initial review, the City Attorney does not dismiss the Administrative Citation and determines that the administrative remedy being sought is appropriate, the Responsible Person shall be notified by mail and informed of the Responsible Person's obligation to pay the Administrative Fine within fifteen (15) days of the mailing, or of the Responsible Person's right to request an administrative hearing pursuant to Subdivision (2) of this Subsection.

2. **Contest the Initial Review.** If the Responsible Person chooses to contest the outcome of the initial review, within fifteen (15) days of the mailing of the results of the initial review, the Responsible Person shall submit a written request, on an official form provided by the City, requesting an administrative hearing. Said form, hereinafter referred to as a Request for Administrative Hearing, shall include an advance deposit in the full amount of the Administrative Fine or One Thousand dollars (\$1,000), whichever is less, or written proof of financial hardship as specified in Paragraph A. of this Subsection. A hearing shall

be scheduled when the aforementioned conditions are met. A Responsible Party who fails to submit a Request for Administrative Hearing within fifteen (15) days, or who fails to make the required deposit or provide written proof of financial hardship, will have waived the right to contest the Initial Review.

A. In lieu of the advance deposit required pursuant to Subdivision (2) of this Subsection, written proof of financial hardship, which shall be in the form of a declaration signed by the Responsible Person under penalty of perjury, shall be filed with the City Attorney. The declaration shall state that the Responsible Person earned less than 50% of the median income for the Los Angeles area during the previous tax year, as reported on the Responsible Person's federal income tax return filed with the Internal Revenue Service. The median income for the applicable year shall be as determined by the United States Department of Housing and Urban Development.

3. **Code Compliance Fund.** All monies derived from the advance deposits identified in Subdivision (2) of this Subsection shall be deposited into the Code Compliance Fund, established pursuant to Article 11 of Chapter 6 of Division 5, Section 5.121.11 of the Los Angeles Administrative Code, and held until the conclusion of the administrative hearing process at which time the monies will either be transferred to the General Fund or refunded to the Responsible Person.

(b) In the event the Responsible Person fails or refuses to satisfy any of the alternatives set forth in Subsection (a) of this Section, as applicable, then the Administrative Fine shall be immediately due and owing the City and may be collected in any manner allowed by law for collection of a debt. The Responsible Person shall also be responsible for any additional fines and costs as set forth in Section 11.2.11.

SEC. 11.2.09. ADMINISTRATIVE HEARING.

(a) **Authority for the Administrative Hearing Process.** The City Attorney shall create an administrative hearing and appeals process that is consistent with this Article and with due process principles. The City Attorney shall develop, and submit to the City Council for approval prior to the start of the Program, written policies and procedures for the hearing and appeals process and written policies and procedures for the selection and appointment of one or more independent Administrative Hearing Officers to hear and decide administrative citation appeals. The administrative hearing shall be conducted in accordance with the procedures promulgated by the City Attorney.

(b) **Powers of the Administrative Hearing Officers.** The written policies and procedures developed by the City Attorney pursuant to Subsection (a) of this Section shall set forth the scope of the powers of the Administrative Hearing Officer in accordance with this Section. These enumerated powers include, but are not limited to:

1. The Administrative Hearing Officer shall determine whether the Administrative Violation specified in the Administrative Citation occurred;
2. The Administrative Hearing Officer shall determine whether the assessed Administrative Fine is in accordance with the Administrative Fine schedules provided in Section 11.2.04;
3. The Administrative Hearing Officer shall consider any aggravating or mitigating factors that warrant deviation from the Administrative Fine schedules, provided in Section 11.2.04, so that a greater or lesser Administrative Fine should be imposed. The factors that the Administrative Hearing Officer shall consider, include, but are not limited to:
 - A. the seriousness of the Administrative Violation;
 - B. the duration of the Administrative Violation;
 - C. efforts, if any, to correct the Administrative Violation;
 - D. the negative impacts of the Administrative Violation on the community;
 - E. any instances in which the Responsible Person has been responsible for the same or similar Administrative Violations in the past; and
 - F. any other factors that justice may require.
4. The Administrative Hearing Officer shall assess all Administrative Costs associated with the appeal of the Administrative Citation;
5. The Administrative Hearing Officer shall assess all Enforcement Costs;
6. The Administrative Hearing Officer has the authority to require a Responsible Person to deposit an amount equal to any assessed Administrative Costs or Enforcement Costs in accordance with the policies and procedures established pursuant to the City Attorney.

(c) **Time for Administrative Hearing.**

1. The City Attorney shall develop policies and procedures that ensure adequate notice and a timely administrative hearing. The Responsible Person shall be notified in writing of the date and time of the hearing by mailing the notice to the address provided by the Responsible Person in the Request for Administrative Hearing.
2. The Responsible Person(s) or Issuing Department may request one continuance pursuant to the procedures established by the City Attorney.
3. The Administrative Hearing Officer may, in the Administrative Hearing Officer's discretion, grant or deny a continuance of the hearing date upon a request by the Responsible Party or the Issuing department and a showing of good cause.

(d) **Failure to Attend Administrative Hearing.**

1. If the Responsible Person or the Responsible Person's representative fails to attend the scheduled hearing, the Responsible Person shall be deemed to have waived their right to an administrative hearing. Under these circumstances, the Administrative Hearing Officer shall find the Responsible Person in default, and shall issue a written notice to that effect. A default under this Section shall constitute a forfeiture of the Administrative Fine and a waiver of any right to challenge the assessed Enforcement Costs and Administrative Costs. A default under this Section shall also be a bar to judicial review of the hearing officer decision based upon failure to exhaust administrative remedies. A default under this provision may be set aside by the Administrative

Hearing Officer at the request of the Responsible Party upon a showing of good cause for failing to appear at the Administrative Hearing.

2. A Responsible Person who has been issued an Administrative Citation and who has requested an administrative hearing to challenge the citation as provided in this Article may request in writing that the Responsible Person's challenge to the citation be withdrawn and the hearing cancelled. Upon receipt of a request to withdraw a challenge to the Administrative Citation, the City shall cancel the pending hearing, and issue a written notice to that effect. A withdrawal under this Subdivision shall constitute a forfeiture of the Administrative Fine and a waiver of any right to challenge the assessed Enforcement Costs and Administrative Costs. A withdrawal under this Subdivision shall also be a bar to judicial review of the hearing officer decision based upon failure to exhaust administrative remedies.

3. If a financial hardship waiver was granted pursuant to Subdivision 2. of Subsection (a) of Section 11.2.08, and the Responsible Person is in default as provided in Subdivision 1. of this Subsection, or a challenge to the citation is withdrawn pursuant to Subdivision 2. of this Subsection, the Administrative Fine, Enforcement Costs, and Administrative Costs shall be due and payable by the Responsible Person(s) to the City within twenty (20) calendar days following the date that had been set for the administrative hearing.

4. The City may dismiss an Administrative Citation at any time if it is determined to have been issued in error.

(e) Procedures at the Administrative Hearing.

1. Administrative hearings are informal in nature, and formal rules of evidence and discovery do not apply. The proceedings shall be audio-recorded by the City.

2. The City bears the burden of proof at an administrative hearing to establish the existence of the Administrative Violation specified on the citation. The Administrative Hearing Officer shall use preponderance of the evidence as the standard of proof in deciding the issues.

3. The Administrative Citation and any additional documents submitted by the Issuing Department shall be accepted by the Administrative Hearing Officer as prima facie evidence of the respective facts contained in those documents. The Enforcement Officer may attend the hearing but is not required to do so.

4. Each party shall have the opportunity to testify, cross-examine witnesses, and present witnesses and evidence in support of the party's case. Written and oral evidence submitted at the hearing shall be submitted under penalty of perjury. Documentary and other tangible evidence must be authenticated to the satisfaction of the Administrative Hearing Officer. Nothing shall preclude the use of telephonic or other electronic means of communication if deemed appropriate by the Administrative Hearing Officer.

(f) Decision of the Administrative Hearing Officer. After considering all of the testimony and evidence submitted at the hearing, the Administrative Hearing Officer shall, within fifteen (15) days thereafter, render a decision in writing. The decision rendered by the Administrative Hearing Officer is not exclusive and does not preclude or foreclose the City Attorney's Office from pursuing any and all other remedies provided by law. The Administrative Hearing Officer shall render a decision as follows:

1. Determine that the Administrative Violation specified in the citation is founded, and impose an Administrative Fine in the amount set forth in the citation and if the Administrative Violation has not been corrected as of the date of the hearing, order correction of the Administrative Violation; or

2. Determine that the Administrative Violation specified in the citation is founded, but that the Administrative Fine was incorrectly assessed with the Administrative Fine schedules as provided for in Section 11.2.04, warranting imposition of a lesser or greater Administrative Fine than that prescribed in the citation and impose a lesser or greater Administrative Fine and, if the Administrative Violation has not been corrected as of the date of the hearing, order that the Administrative Violation be corrected; or

3. Determine that the Administrative Violation specified in the citation is founded, but that the Issuing Department or the Responsible Party has introduced credible evidence of aggravating or mitigating circumstances warranting imposition of a greater or lesser penalty than that prescribed in the Administrative Fine schedules, as provided for in Section 11.2.04, and impose a greater or lesser Administrative Fine, and if the Administrative Violation has not been corrected as of the date of the hearing, order that the Administrative Violation be corrected; or

4. Determine that the Administrative Violation specified in the citation did not occur and cancel the Administrative Fine; and

5. Determine the amount of the Enforcement Costs and associated Administrative Costs to be imposed, if any.

(g) The Administrative Order shall include the reasons for the decision and be served on all parties by any one of the methods listed in Section 11.2.05 of this Article or through service by first-class mail, postage prepaid on the Responsible Person(s) at the address the Responsible Person(s) provided in the Request for Administrative Hearing. In addition to the matters set forth in Subsection (f) of this Section, the decision rendered by the Administrative Hearing Officer shall address the following:

1. Administrative Fines.

A. If the Administrative Hearing Officer imposes an Administrative Fine, the City shall keep the funds deposited at the time of the hearing request. If the deposited funds are less than the Administrative Fine, the Responsible Person(s) shall pay the outstanding amount of the Administrative Fine to the City within twenty (20) calendar days of the Administrative Order becoming final. If the deposited funds equal more than the Administrative Fine, the City shall promptly refund the appropriate amount of the funds to the Responsible Person(s).

B. If the Administrative Hearing Officer determines that the Administrative Violation specified in the citation did not occur and cancels the Administrative Fine, then the City shall promptly refund the amount of funds deposited by the Responsible Person at the time of the hearing request and no Enforcement Costs or Administrative Costs shall be assessed.

2. Enforcement Costs and Administrative Costs.

A. **Enforcement Costs.** The Administrative Order shall assess all reasonable Enforcement Costs to be paid by the Responsible Person. The Responsible Person(s) shall pay the Enforcement Costs to the City within twenty (20) calendar days of the Administrative Order becoming final.

B. **Administrative Costs.** The Administrative Order shall assess all reasonable Administrative Costs to be paid by the Responsible Person. The Responsible Person(s) shall pay the Administrative Costs to the City within twenty (20) calendar

days of the Administrative Order becoming final.

3. The Administrative Order shall become final on the date of mailing or other service, and shall notify the Responsible Person(s) of their right to appeal.

SEC. 11.2.10. RIGHT TO JUDICIAL REVIEW.

(a) Once an Administrative Order becomes final as provided in this Article, no further appeal may be filed pursuant to the provisions of this Code, except as provided for in this Section, or as otherwise provided by law.

(b) Once an Administrative Order becomes final, the time in which judicial review of the order must be sought shall be governed by California Code of Civil Procedure Section 1094.6.

(c) Should any court of competent jurisdiction determine that the City must provide an appeal to any final Administrative Order in a manner other than set forth in California Code of Civil Procedure section 1094.6, then it is the intent of the City Council that the administrative penalty process remain as provided herein and to provide that any appeal which is timely requested follow the procedures set forth in Government Code Section 53069.4.

SEC. 11.2.11. FAILURE TO PAY ADMINISTRATIVE FINES AND COSTS.

(Amended by Ord. No. 184,766, Eff. 3/27/17.)

(a) Any Responsible Person who is issued an Administrative Citation pursuant to this article, excluding Administrative Violations defined in Subsection (b) of Section 11.2.03, and does not pay within 15 calendar days, shall be assessed a late payment collection fee of \$50.00 which shall be charged in addition to any other assessed fines and fees. The City may use any civil legal remedy available to collect any unpaid Administrative Fine, including, but not limited to, civil action, injunctive relief, specific performance and the recordation of a lien or a notice of the Administrative Violation against real property pursuant to the procedures set forth in this Code and in accordance with applicable law.

(b) Any Responsible Person who is issued an Administrative Citation pursuant to this article for an Administrative Violation defined in Subsection (b) of Section 11.2.03, and does not pay within 15 calendar days from the conclusion of the time afforded to remedy the Administrative Violation, shall be assessed a late payment collection fee of \$50.00 which shall be charged in addition to any other assessed fines and fees. The City may use any civil legal remedy available to collect any unpaid Administrative Fine, including, but not limited to, civil action, injunctive relief, specific performance and the recordation of a lien or a notice of the Administrative Violation against real property pursuant to the procedures set forth in this Code and in accordance with applicable law.

(c) Notwithstanding Subsections (a) and (b) of this section, if the Responsible Person chooses to contest the Administrative Citation pursuant to Section 11.2.08 of this article, and fails to pay the assessed Administrative Fine, Enforcement Costs, and Administrative Costs within 20 calendar days of the Administrative Order becoming final, the Responsible Person shall be assessed a late payment collection fee of \$50.00, which shall be charged in addition to any other assessed fines and fees. The City may use any civil legal remedy available to collect any unpaid Administrative Fine or to gain compliance with the Administrative Order. These remedies include, but are not limited to, civil action, injunctive relief, specific performance and the recordation of a lien or a notice of the Administrative Violation against real property pursuant to the procedures set forth in this Code and in accordance with applicable law.

(d) In the event a civil action is commenced to collect the Administrative Fine, Enforcement Costs, or Administrative Costs, the City shall be entitled to recover reasonable attorney's fees and all costs associated with the civil action. Costs include, but are not limited to, staff time incurred in the collection of the Administrative Fine, Enforcement Costs and Administrative Costs, and those costs set forth in Code of Civil Procedure Section 1033.5.

SEC. 11.2.12. DEPOSIT OF MONIES COLLECTED.

All monies collected pursuant to the provisions of this Article shall be deposited in the Code Compliance Fund, established pursuant to Article 11 of Chapter 6 of Division 5, Sections 5.121.11 and following, of the Los Angeles Administrative Code.

SEC. 11.2.13. SEVERABILITY.

If any section, subsection, subdivision, sentence, clause, or phrase of this Article is for any reason held to be invalid or unconstitutional by decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of the Article. The City Council hereby declares that it would have passed this Article and each section, subsection, subdivision, clause or phrase thereof irrespective of the fact that one or more other sections, subsections, subdivisions, clauses or phrases may be declared to be invalid or unconstitutional.

ARTICLE 1.5

PLANNING – COMPREHENSIVE PLANNING PROGRAM

(Amended in Entirety by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

Section

- 11.5.1 Title.
- 11.5.2 Area Planning Commissions.
- 11.5.3 Director of Planning (Director).
- 11.5.4 City Planning Commission.
- 11.5.5 Mandatory Referrals – Authority of Commission – Requirements.
- 11.5.6 General Plan.
- 11.5.7 Specific Plan Procedures.
- 11.5.8 General Plan Review.
- 11.5.9 Withdrawal of Application.
- 11.5.10 Withdrawal of Appeal.
- 11.5.11 Affordable Housing.
- 11.5.12 Delegation of Council’s Authority to Consent to Extensions of Time for Council Action.
- 11.5.13 CEQA Procedures.
- 11.5.14 Redevelopment Plan Procedures.
- 11.5.15 Environmental Protection Measures.

SEC. 11.5.1. TITLE.

This article shall be known as the “**Comprehensive Planning Program of the City of Los Angeles**”.

SEC. 11.5.2. AREA PLANNING COMMISSIONS.

See Sec. 13A.1.4 (Area Planning Commission) of Chapter 1A of this Code.

SEC. 11.5.3. DIRECTOR OF PLANNING (DIRECTOR).

See Sec. 13A.1.6 (Director of Planning) of Chapter 1A of this Code.

SEC. 11.5.4. CITY PLANNING COMMISSION.

See Sec. 13A.1.3 (City Planning Commission) of Chapter 1A of this Code.

SEC. 11.5.5. MANDATORY REFERRALS – AUTHORITY OF COMMISSION – REQUIREMENTS.

See Sec. 13A.1.3 (City Planning Commission) of Chapter 1A of this Code.

SEC. 11.5.6. GENERAL PLAN.

Pursuant to Charter Section 555, the City’s comprehensive General Plan may be adopted, and amended from time to time, pursuant to Sec. 13B.1.1 (General Plan Adoption/Amendment) of Chapter 1A of this Code, either as a whole, by complete subject elements, by geographic areas or by portions of elements or areas, provided that any area or portion of an area has significant social, economic or physical identity.

A. **Initiation of Plan Amendment.** As provided in Charter Section 555 , an amendment to the General Plan may be initiated by the Council, the City Planning Commission or the Director of Planning. Initiations by the Council or City Planning Commission shall be by majority vote. If an amendment is initiated by the Council or City Planning Commission, then it shall be transmitted to the Director for report and recommendation to the City Planning Commission.

Whether initiated by the Director, the Council or the City Planning Commission, the Director shall prepare the amendment and

a report recommending action by the City Planning Commission. The report shall contain an explanation of the reasons for the action recommended.

After the Director prepares a Plan amendment and report, the Director shall transmit the file to the City Planning Commission for its action. Nothing in this section shall restrict the adoption of a General Plan amendment which permits the development of a project if:

1. The project (a) is located in an area classified on January 1, 2016, as a Regional Center, a Downtown Center, in an area zoned as Industrial, or a Major Transit Stop including all land within a one-half mile radius of a Major Transit Stop; or (b) each residential unit in the project, exclusive of a manager's unit or units, is affordable to, and occupied by, either a Lower or Very Low Income household;
2. All building and construction work on the project will be performed at all tiers by contractors which (a) are licensed by the State of California and the City of Los Angeles; (b) shall make a good-faith effort to ensure that at least 30% of all their respective workforces' construction workers' hours of Project Work shall be performed by permanent residents of the City of Los Angeles of which at least 10% of all their respective workforces' construction workers' hours of Project Work shall be performed by Transitional Workers whose primary place of residence is within a 5-mile radius of the covered project; (c) employ only construction workers which possess all licenses and certifications required by the State of California and the City of Los Angeles; (d) pay their construction workers performing project work the wages prevailing in the project area determined pursuant to California Labor Code § 1770; and (e) have at least 60% of their respective construction workforces on the project from: (1) workers who have graduated from a Joint Labor Management apprenticeship training program approved by the State of California, or have at least as many hours of on-the-job experience in the applicable craft which would be required to graduate from such a state-approved apprenticeship training program, and (2) registered apprentices in an apprenticeship training program approved by the State of California or an out-of-state, federally-approved apprenticeship program; and
3. If the General Plan amendment results in increased allowable residential floor area, density or height, or allows a residential use where previously not allowed, projects with ten or more residential dwelling units shall also provide affordable housing consistent with the provisions of Section 5 of the Build Better LA Initiative.

For the purposes of this Section the following terms have the meaning shown:

"Economically Disadvantaged Area" means a zip code that includes a census tract or portion thereof in which the median annual household income is less than \$40,000 per year, as measured and reported by the U.S. Census Bureau in the 2010 U.S. Census and as updated by the parties upon the U.S. Census Bureau issuing updated Median Annual Household Income data by census tract in the American Community Survey.

"Extremely Economically Disadvantaged Area" means a zip code that includes a census tract or portion thereof in which the median annual household income is less than \$32,000 per year, as measured and reported by the U.S. Census Bureau in the 2010 U.S. Census and as updated by the parties upon the U.S. Census Bureau issuing updated Median Annual Household Income data by census tract in the American Community Survey.

"Transitional Worker" means an individual who, at the time of commencing work on the project, resides in an Economically Disadvantaged Area or Extremely Economically Disadvantaged Area and faces at least two of the following barriers to employment: (1) being homeless; (2) being a custodial single parent; (3) receiving public assistance; (4) lacking a GED or high school diploma; (5) having a criminal record or other involvement with the criminal justice system; (6) suffering from chronic unemployment; (7) emancipated from the foster care system; (8) being a veteran; or (9) being an apprentice with less than 15% of the apprenticeship hours required to graduate to journey level in a program.

The Department of Public Works, Bureau of Contract Administration shall bear administrative responsibilities for the labor standards required by this section.

SEC. 11.5.7. SPECIFIC PLAN PROCEDURES.

A. **Definition, Purpose and Objectives.** See Div. 13B.4. (Specific Plan Implementation) and Sec. 13B.1.2 (Specific Plan Adoption/Amendment) of Chapter 1A of this Code.

B. **Relationship To Provisions of Specific Plans.** See Div. 13B.4. (Specific Plan Implementation) of Chapter 1A of this Code.

C. **Project Compliance Review.** See Div. 13B.4. (Specific Plan Implementation) of Chapter 1A of this Code.

D. **Modification of a Project Permit Compliance – Director of Planning With Appeals to the Area Planning Commission.** See Div. 13B.4. (Specific Plan Implementation) of Chapter 1A of this Code.

E. **Project Adjustments.** See Div. 13B.4. (Specific Plan Implementation) of Chapter 1A of this Code.

Project Adjustments shall be limited to:

1. Adjustments permitting project height to exceed the designated height limitation on the property involved by less than ten percent;
2. When the calculation of the maximum number of permitted multiple-family dwelling units results in a fraction, the number of total dwelling units may be rounded up to the next whole number, if the lot area remaining after calculating the maximum number of permitted dwelling units is at least 90 percent of the lot area required by the specific plan regulation to permit one additional dwelling unit;
3. Adjustments permitting portions of buildings to extend into a required yard, setback or other open space a distance of less than 20 percent of the minimum width or depth of the required yard, setback or open space;
4. Adjustments to minimum landscaped area requirements of less than 20 percent, or minor adjustments to required types of landscape materials;
5. Adjustments to permitted signs that:
 - (a) exceed the maximum sign size (area) limitation by less than 20 percent;
 - (b) exceed the limit on the maximum number of signs by no more than 20 percent; or
 - (c) exceed the maximum sign height by no more than 2 feet;
6. Adjustments from the minimum or maximum number of required parking spaces associated with a project of less than 10 percent; and
7. Minor adjustments from other specific plan development regulations, which do not substantially alter the execution or intent of those specific plan regulations to the proposed project, and which do not change the permitted use, floor area, density or intensity, height or bulk, setbacks or yards, lot coverage limitations, or parking standards regulated by the specific plan.

F. **Project Exception.** In addition to the applicability provisions of Sec. 13B.4.5.A.2. (Specific Plan Implementation; Project Exception; Applicability; Project Exception Relationship to Other Entitlements) of Chapter 1A of this Code, the following describes when Project Exceptions are needed:

1. **Exception for Wireless Telecommunications Facilities.** Notwithstanding the provisions of the first unnumbered paragraph of this subdivision, the installation of wireless antennas and associated equipment cabinets on the rooftops of buildings in the C and M Zones when established in conformance with the standards contained in Section 12.21 A.21. do not need a Project Exception, except that rooftop antennas located within a scenic parkway specific plan, scenic corridor specific plan, or a roadway designated as a scenic highway within a specific plan area shall be subject to a Project Exception. Any application involving the use, height, installation or maintenance of wireless telecommunication facilities that do not comply with the provisions of Section 12.21 A.21. and which are located within specific plan areas shall be filed pursuant to Section 12.24 W.49. of this Code and considered by the Zoning Administrator as the initial decision-maker, except that applications located within a scenic parkway specific plan, scenic corridor specific plan, or a roadway designated as a scenic highway within a specific plan area shall be subject to a Project Exception.
2. **Eldercare Facilities.** An applicant who files an application involving Eldercare Facilities seeking relief from specific plan regulations need not apply for a Project Exception pursuant to Subsection F. of this section but need only apply for and receive an approval pursuant to Section 14.3.1 of this Code.

G. **Amendments to Specific Plans.** See Sec. 13B.1.2 (Specific Plan Adoption/Amendment) of Chapter 1A of this Code.

H. **Interpretations of Specific Plans.** See Div. 13B.4. (Specific Plan Implementation) of Chapter 1A of this Code.

SEC. 11.5.8. GENERAL PLAN REVIEW.

A. **Planning Areas.** The City is hereby divided into 37 planning areas. Each planning area constitutes an area for which either a community plan, a district plan, or other portion of the Land Use Element of the General Plan has been adopted by the City. The boundaries of each planning area shall be those of the applicable adopted community or district plan, or other portion of the Land Use Element of the General Plan as they existed on enactment of this section. These boundaries may be only changed by amendment to the General Plan pursuant to the procedures set forth in Section 11.5.6 of this Code. No amendment to a plan for any of the 37 planning areas, including reduction in the number of such areas, changes in their respective boundaries, land uses permitted within or at any particular location in any such area, or any other material change, may be made until the completion of a comprehensive assessment of such proposed changes by the Planning Department to ensure that such changes do not:

1. Reduce the capacity for creation and preservation of affordable housing and access to local jobs; or
2. Undermine California Government Code Section 65915 or any other affordable housing incentive program; and

The changes must include a program to create and monitor an inventory of units within the Community Plan Area that are: subject to a recorded covenant, ordinance or law that restricts rents to levels affordable to persons and families of Lower or Very Low-Income; subject to the City Rent Stabilization Ordinance; and/or occupied by Lower- Income or Very Low-Income households.

B. Action on Proposed Amendments. The City Planning Commission shall receive the assessment by the Planning Department and shall by vote make a recommendation to accept or reject the amendment. The Commission's recommendation will be received by City Council and the Council shall vote to either accept or reject the proposed amendment. The current plans for the 37 planning areas shall remain in full force and effect until or unless the City Council votes to amend them in accordance with this section.

C. After adoption of Subsections A. and B., above, which were adopted by voter initiative in Ordinance No. 184,745, the City adopted the Downtown Community Plan Update, in compliance with the requirements of this section, to consolidate the Central City Community Plan and the Central City North Community Plan to the Downtown Community Plan. As such, notwithstanding the references in Subsections A. and B., the City is divided into 36 planning areas and 34 community plan areas. Any references in the Code to the Central City Community Plan or the Central City North Community Plan shall mean the Downtown Community Plan. **(Added by Ord. No. 188,424, Eff. 1/20/25, Oper. 1/27/25.)**

SEC. 11.5.9. WITHDRAWAL OF APPLICATION.

See Sec. 13A.2.3.D. (Applications; Withdrawal of Application) of Chapter 1A of this Code.

SEC. 11.5.10. WITHDRAWAL OF APPEAL.

See Sec. 13A.2.8.D. (Appeals; Withdrawal of Appeals) of Chapter 1A of this Code.

SEC. 11.5.11. AFFORDABLE HOUSING.

(a) **Affordable Housing.** To be eligible for a discretionary General Plan amendment pursuant to Subdivision B. of Section 11.5.6 of the Los Angeles Municipal Code or otherwise, or any zone change or height- district change that results in increased allowable residential floor area, density or height, or allows a residential use where previously not allowed, Projects with ten or more residential dwelling units shall meet one of the following on- site affordability provisions, or satisfy one of the alternative options in subdivision (b) and shall comply with the job standards in subdivision (i).

1. Rental Projects shall provide the following:

(i) No less than the affordability percentage corresponding to the level of density increase as provided in California Government Code Section 65915(f), inclusive of any Replacement Units; or

(ii) If the General Plan amendment, zone change or height district change results in a residential density increase greater than 35%, then the Project shall provide no less than 5% of the total units at rents affordable to Extremely Low Income households, and either 6% of the total units at rents affordable to Very Low Income households or 15% of the total units at rents affordable to Lower Income households, inclusive of any Replacement Units; or

(iii) If the General Plan amendment, zone change or height district change allows a residential use where not previously allowed, then the Project shall provide no less than 5% of the total units at rents affordable to Extremely Low Income households, and either 11% of the total units at rents affordable to Very Low Income households or 20% of the total units at rents affordable to Lower Income households, inclusive of any Replacement Units.

2. For-sale Projects shall provide the following:

(i) No less than the affordability percentage corresponding to the level of density increase as provided in California Government Code Section 65915(f), inclusive of any Replacement Units; or

(ii) If the general plan amendment, zone change or height district change results in a residential density increase greater than 35% or allows a residential use where not previously allowed, then the Project shall provide no less than 11% of the total units at rents affordable to Very Low Income households, or 20% of the total units at rents affordable to Lower Income households, or 40% of the total units at rents affordable to Moderate Income households, inclusive of any Replacement Units.

3. 100% affordable. Each residential unit in the Project, exclusive of a manager's unit or units, is affordable to, and occupied by, either a Lower or Very Low Income household.

4. Projects with both for-sale and rental units. When a Project includes both for-sale and rental dwelling units, the

provisions of this Section that apply to for-sale residential development shall apply to that portion of the Project that consists of for-sale dwelling units, while the provisions of this Section that apply to rental dwelling units shall apply to that portion of the development that consists of rental dwelling units.

All Projects qualifying for development bonuses pursuant to this Section shall be required to meet any applicable replacement requirements of California Government Code Section 65915(c)(3).

A Developer seeking and receiving a density or development bonus under the provisions of California Government Code Section 65915 or any other State or local program that provides development bonuses shall not be eligible for the development bonuses pursuant to this Section. For purposes of this provision, development bonuses shall include discretionary General Plan amendments, zone changes, and height district changes.

(b) **Alternative Compliance Options.** A Project may satisfy the affordability provisions of this section through the following off-site options in lieu of providing affordable units on site:

1. **Off-site Construction.** The affordability provisions of this Section may be satisfied by constructing off-site affordable units at the following rate:

- (i) No less than the same number of on- site affordable units, at the same or greater mix of unit type and affordability levels as provided in paragraph (a), if constructed within one-half mile of the outer edge of the Project;
- (ii) No less than 1.25 times the number of on-site affordable units, at the same or greater mix of unit type and affordability levels as provided in paragraph (a), if constructed within 2 miles of the outer edge of the Project;
- (iii) No less than 1.5 times the number of on-site affordable units, at the same or greater mix of unit type and affordability levels as provided in paragraph (a), if constructed within 3 miles of the outer edge of the Project.

The off-site units created pursuant to this paragraph must be on a site that is zoned for residential development at a density to accommodate at least the number of otherwise required units; is suitable for development of the units in terms of configuration, physical characteristics, location, access, adjacent uses and other relevant planning and development criteria; and environmental review has been completed to the satisfaction of the City prior to acceptance of the site by the City. The development of off-site affordable units shall include integration of community space and services as required by the Housing and Community Investment Department for comparable affordable housing development. The first Certificate of Occupancy for the off-site units shall be issued prior to or concurrent with the first Certificate of Occupancy for the original Project. In no event shall the Certificate of Occupancy for the market rate units for the original project be issued prior to the Certificate of Occupancy for the affordable off-site units. Individual affordable units constructed as part of an off-site project under this Section shall not receive development subsidies from any Federal, State or local program established for the purpose of providing affordable housing, and shall not be counted to satisfy any affordable housing requirement for the off-site development. Other units in the same offsite project may receive such subsidies. In addition, subsidies may be used, only with the express written permission by the Department of Housing and Community Investment, to deepen the affordability of an affordable unit beyond the level of affordability required by this Section.

2. **Off-site Acquisition.** The affordability provisions of this Section may be satisfied by the acquisition of property containing At-Risk Affordable Units and converting the units to non-profit, Community Land Trust, and/or tenant ownership prior to issuance of the Certificate of Occupancy for the original Project. Prior to transferring ownership to a qualified entity, the At-Risk Affordable Units shall achieve a minimum of a C2 rating based on the Fannie Mae Uniform Appraisal Dataset Property Condition Ratings, as assessed and certified by the Housing and Community Investment Department (HCID), or as required by HCID to be completed by the Developer and subsequently certified by HCID. Any entity taking ownership of At-Risk Affordable Units pursuant to this Section shall record an affordability covenant, consistent with the provisions of subsection (d), guaranteeing affordability to Lower or Very Low Income Households. The number of At Risk Affordable Units that must be acquired and converted to non-profit or tenant ownership under this subdivision shall be as follows:

- (i) No less than the same number of on- site affordable units, at the same or greater mix of unit type and affordability levels as provided in paragraph (a), if acquired within one-half mile of the outer edge of the Project;
- (ii) No less than 1.25 times the number of on-site affordable units, at the same or greater mix of unit type and affordability levels as provided in paragraph (a), if acquired within 1 mile of the outer edge of the Project;
- (iii) No less than 1.5 times the number of on-site affordable units, and affordability levels as provided in paragraph at the same or greater mix of unit type if acquired within 2 miles of the outer edge of the Project.

3. **In-Lieu Fee.** The affordability provisions of this Section may be satisfied by the payment of a fee to the City in lieu of constructing the affordable units within the Project. The in-lieu fee shall be determined by the City based on the following:

- (i) The number of units equivalent to 1.1 times the required number of on-site affordable units pursuant to paragraph (a), in the same proportion of affordability, multiplied by the applicable Affordability Gap, as defined herein.
- (ii) No later than 90 days from the enactment of this ordinance, the City shall produce a study identifying the

Affordability Gap for rental and ownership units of each bedroom size (studio, 1 bedroom, 2 bedroom and 3 bedroom) for each required affordability level. For rental housing, the study shall collect and determine, by unit type and affordability level, the following information from recently completed affordable housing projects funded by the City's Affordable Housing Trust Fund: total development costs and operating expenses. The study shall also determine the amounts of permanent financing available based on restricted rents and prevailing interest rates. The difference between the total development cost and permanent financing amount shall be the Affordability Gaps per unit by unit type and affordability level. For ownership housing, the study shall identify the market median sales prices by unit type in the 37 Community Plan areas. It shall determine the restricted sales prices of for-sale units by unit type and affordability level. The difference between the market median sales price and the restricted sales price shall be the Affordability Gaps per unit by unit type and affordability level.

(iii) The City shall adjust the fee every two years, based on the results of a new Affordability Gaps study (as defined Section 5(b)(3)(ii)). An Affordability Gaps study, the proposed adjusted Affordability Gaps, and the adjusted fees shall be published within 2 years of the date that the original Affordability Gaps study is released, and consecutively thereafter by the date that is 2 years after the release of the previous Gaps study.

The fee is due and payable to the Affordable Housing Trust Fund at the time of and in no event later than issuance of the first building permit, concurrent with and proportional to project phases. The Developer shall have an option to defer payment of all or a portion of the fee upon agreeing to pay a Deferral Surcharge, with the fee and the Deferral Surcharge due and payable at the time of and in no event later than issuance of the Certificate of Occupancy. The Deferral Surcharge will be assessed at the Wall Street Journal Prime Rate plus 200 basis points at the time such fee is due, at the issuance of the building permit. The Deferral Surcharge fee shall be deposited into the Affordable Housing Trust Fund and accounted for and used as provided in Section (c).

(c) **Use of Funds.** All monies contributed pursuant to this Section shall be deposited in the City's Affordable Housing Trust Fund. All funds collected under this Section shall be used in the following manner:

1. Except as provided in Subdivision 2. below, the funds collected under this Section shall be used to create and/or preserve housing affordable to Extremely Low-, Very Low-, and Lower-Income households.

2. The City shall designate and separately account for all Deferral Surcharge payments that it receives under this Section to support the creation and/or preservation of affordable housing within one-half mile of a Major Transit Stop ("TOC area"), with priority to TOC Areas where there is a demonstrated decline in units affordable to and/or occupied by Extremely Low, Very Low and/or Lower Income households. Use of the Deferral Surcharge funds shall include but not be limited to the following:

(i) Acquisition and/or remediation of land, and/or acquisition, construction, rehabilitation, and/or financing of housing units by a Community Land Trust or non-profit entity which guarantees perpetual affordability of these units for Extremely Low, Very Low and/or Lower-Income Households or a term of affordability of these units that has a duration of a minimum of 55 years.

(ii) Funding for proactive enforcement of the City's Rent Stabilization Ordinance.

(d) **Continuing Affordability / Standards for Affordable Units.**

1. All affordable rental housing units created or acquired pursuant to this Section shall be subject to an affordability covenant acceptable to the Housing and Community Investment Department, and recorded with the Los Angeles County Recorder, guaranteeing continuing affordability to the targeted income group for no less than 55 years. In addition, when units are acquired and conveyed pursuant to the Off-Site Acquisition option, the Developer and/or entity taking ownership of the units shall create and implement a plan to prevent involuntary displacement of current tenants. Affordable units provided under this Section shall be comparable to the market rate units in the Project (or off-site location in the case of off-site affordable units) in terms of unit type, number of bedrooms per unit, quality of exterior appearance, energy efficiency, and overall quality of construction.

2. All for-sale housing units created pursuant to this Section shall be subject to an affordability covenant acceptable to the Los Angeles Housing and Community Investment Department, and recorded with the Los Angeles County Recorder, consistent with the for-sale requirements of California Government Code Section 65915(c)(2).

3. A longer term of affordability may be required if the Project receives a subsidy which requires a longer term of affordability. If the duration of affordability covenants provided for in this subsection conflicts with any other government requirement, the longest duration shall control.

(e) **Developer Incentives.** In addition to the requested General Plan amendments, zone changes and/or height district changes, a Project that provides affordable housing consistent with this Section shall also be entitled to three incentives or concessions specified in California Government Code Section 65915(k) or the applicable Affordable Housing Incentive Program.

(f) **Processing.** A Project that provides affordable housing consistent with this Section shall be entitled to review and processing by the Expedited Processing Section of the Planning Department dedicated solely to processing entitlements for such Projects with the goal of expediting such Projects.

(g) **City Council Approved Adjustments to Affordable Housing Set-asides Contained Herein.** The City may, by majority vote of City Council, adjust the affordable housing percentages set forth in this Section upon a showing of substantial evidence that such adjustments are necessary to maximize affordable housing while ensuring a reasonable return on investment for Developers.

(h) **Waiver / Adjustment.** Notwithstanding any other provision of this Section, the requirements of this Section may be waived or adjusted only if a Project applicant shows, based on substantial evidence, that compliance with its requirements would result in a deprivation of the applicant's constitutional rights. The applicant shall bear the burden of presenting substantial evidence to support the request and set forth in detail the factual and legal basis for the claim, including all supporting technical documentation.

In determining whether an applicant has presented substantial evidence to support the request for waiver / adjustment, if upon legal advice provided by or at the behest of the City Attorney, it is determined that applying the requirements of this Section would effectuate an unconstitutional taking of property or otherwise have an unconstitutional application to the property, the requirements of this Section shall be adjusted or waived only to the extent necessary to avoid an unconstitutional result. If an adjustment or waiver is granted, any change in the use within the project shall invalidate the adjustment or waiver. If it is determined that no violation of the United States or California Constitutions would occur through application of this Section, the requirements of this Section remain fully applicable.

(i) All building and construction work on the project will be performed at all tiers by contractors which (a) are licensed by the State of California and the City of Los Angeles; (b) shall make a good-faith effort to ensure that at least 30% of all their respective workforces' construction workers' hours of Project Work shall be performed by permanent residents of the City of Los Angeles of which at least 10% of all their respective workforces' construction workers' hours of Project Work shall be performed by Transitional Workers whose primary place of residence is within a 5-mile radius of the covered project; (c) employ only construction workers which possess all licenses and certifications required by the State of California and the City of Los Angeles; (d) pay their construction workers performing project work the area standard wages in the project area; and (e) have at least 60% of their respective construction workforces on the project from: (1) workers who have graduated from a Joint Labor Management apprenticeship training program approved by the State of California, or have at least as many hours of on-the-job experience in the applicable craft which would be required to graduate from such a state approved apprenticeship training program, and (2) registered apprentices in an apprenticeship training program approved by the State of California or an out-of-state, federally-approved apprenticeship program. The Department of Public Works, Bureau of Contract Administration, shall bear administrative responsibilities for the labor standards required by this subsection.

(j) **Definitions.**

"At-Risk Affordable Unit" shall mean any residential dwelling unit that receives government assistance under prescribed federal, State, and/or local programs, or any combination of rental assistance and is eligible to convert to market rate due to termination (opt-out) of a rent subsidy contract, prepayment of a subsidized mortgage, or expiration of rental restrictions. These assistance programs include, but are not limited to, Housing Choice Vouchers (formerly Section 8), project-based rental assistance, subsidized mortgage programs (e.g., FHA), or expiring rent/deed restrictions with the use of State or local funding programs, including Community Redevelopment Agency Covenants.

"Community Land Trust" shall mean a California nonprofit corporation that: (1) has no part of its net earnings inuring to the benefit of any member, founder, contributor, or individual; (2) is neither sponsored by, controlled by, nor under the direction of a for-profit organization; (3) has a corporate membership of adult residents of a particular geographic area as described in the bylaws of the corporation; (4) has a board of directors that: (A) includes a majority of members who are elected by the corporate membership; (B) includes representation by persons occupying and/or leasing any structural improvements on the land; and (C) includes representation by persons residing within the geographic area specified in the bylaws of the corporation who neither lease land from the corporation nor occupy structural improvements controlled by the corporation; (5) acquires and retains parcels of land, primarily for conveyance under long-term ground leases; (6) transfers ownership of many or all of the structural improvements located on such leased parcels to the lessees; and (7) retains a preemptive option to purchase such structural improvements at a price determined by formula that is designed to ensure that the improvements remain affordable to low and moderate income households in perpetuity.

"Developer" shall mean the owner of the Project and, if different from the owner, any person, firm, partnership, association, joint venture, corporation, or any entity or combination of entities which develops or causes to be developed the residential housing project and, if applicable, provides off-site affordable units, together with their successors and assigns, but does not include a lender, any governmental entity or the general contractor working for any developer.

"Economically Disadvantaged Area" means a zip code that includes a census tract or portion thereof in which the median annual household income is less than \$40,000 per year, as measured and reported by the U.S. Census Bureau in the 2010 U.S. Census and as updated by the parties upon the U.S. Census Bureau issuing updated Median Annual Household Income data by census tract in the American Community Survey.

"Extremely Economically Disadvantaged Area" means a zip code that includes a census tract or portion thereof in which the median annual household income is less than \$32,000 per year, as measured and reported by the U.S. Census Bureau in the 2010 U.S. Census and as updated by the parties upon the U.S. Census Bureau issuing updated Median Annual Household Income data by census tract in the American Community Survey.

"Extremely Low-Income Households" is defined in Section 50106 of the Health and Safety Code.

"Lower Income Households" is defined in Section 50079.5 of the Health and Safety Code.

“Project” shall mean the construction, erection, alteration of, or addition to a structure. The term Project shall not include interior or exterior improvements that do not increase the floor area over that of an existing structure, and shall not mean any construction for which a building permit or demolition permit is required to comply with an order issued by the Department of Building and Safety to repair, remove, or demolish an unsafe or substandard condition, or to rebuild as a result of destruction by fire, earthquake or natural disaster, provided that the development is not prohibited by any provision of the Los Angeles Municipal Code and the development does not increase the square footage beyond what previously existed on the site.

“Replacement Unit” shall mean any unit that would need to be replaced pursuant to California Government Code Section 65915(c)(3) if the Project was seeking a density bonus.

“Transitional Worker” means an individual who, at the time of commencing work on the project, resides in an Economically Disadvantaged Area or Extremely Economically Disadvantaged Area and faces at least two of the following barriers to employment: (1) being homeless; (2) being a custodial single parent; (3) receiving public assistance; (4) lacking a GED or high school diploma; (5) having a criminal record or other involvement with the criminal justice system; (6) suffering from chronic unemployment; (7) emancipated from the foster care system; (8) being a veteran; or (9) being an apprentice with less than 15% of the apprenticeship hours required to graduate to journey level in a program.

“Very Low-Income Households” is defined in Section 50105 of the Health and Safety Code.

SEC. 11.5.12. DELEGATION OF COUNCIL'S AUTHORITY TO CONSENT TO EXTENSIONS OF TIME FOR COUNCIL ACTION.

See Sec. 13A.2.5.A.2 (Decisions; Decision Time Period) of Chapter 1A of this Code.

SEC. 11.5.13. CEQA PROCEDURES.

See Div. 13B.11. (California Environmental Quality Act Provisions) of Chapter 1A of this Code.

SEC. 11.5.14. REDEVELOPMENT PLAN PROCEDURES.

(Amended by Ord. No. 188,648, Eff. 6/20/25.)

See Div. 13B.12. (Redevelopment Plan Procedures) of Chapter 1A of this Code.

SEC. 11.5.15. ENVIRONMENTAL PROTECTION MEASURES.

(Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)

A. **Intent.** This section is intended to:

1. Ensure that development in the City does not result in detrimental impacts to those residing or working in and around construction activities, and to abutting properties, and the public right-of-way, including the habitat, cultural resources, and historic or fragile buildings.
2. Provide a mechanism for mitigation measures adopted pursuant to the California Environmental Quality Act (CEQA) for City plans, policies, or regulations to be made enforceable on future development projects consistent with CEQA Guidelines, Section 15162.4.
3. Provide a flexible mechanism to adopt and amend uniformly applicable development standards to allow streamlined environmental review, including pursuant to CEQA Guidelines Section 15183.3.

B. **Applicability.** No building permit shall be issued by the Department of Building and Safety without the applicant demonstrating compliance with any regulations adopted by the Director of Planning under this section to implement environmental protection measures.

C. **Adoption and Maintenance of the Environmental Protection Measures Handbook.** The Director of Planning, as deemed necessary and appropriate, is authorized to prepare, maintain, amend, and adopt environmental protection measures to meet the intent of this Division, and to prepare, maintain, amend and adopt regulations to implement the environmental protection measures. The Director of Planning may, as deemed appropriate, use technical consultants or a consultant advisory panel to make recommendations on new environmental protection measures or updates to existing environmental protection measures.

D. **Noncompliance.** Failure to comply with the environmental protection measures, regulations adopted pursuant to this section, any condition or commitments made in compliance with the environmental protection measures or their implementing regulations, or any provision of this section, is a violation of the code, subject to all available administrative, criminal and civil remedies for a violation of this Code. Additionally, upon verification of non-compliance, the City may require as deemed necessary and appropriate the applicant or

property owner to retain at its own expense an independent consultant, subject to the City’s approval, to ensure compliance with the environmental protection measures or regulations, and any conditions or commitments made in compliance with the environmental protection measures or regulations.

ARTICLE 2

SPECIFIC PLANNING – ZONING – COMPREHENSIVE ZONING PLAN

(Title Amended by Ord. No. 138,800, Eff. 6/13/69, Oper. 6/23/69.)

Section

- 12.00 Title.
- 12.01 Continuation of Existing Regulations.
- 12.02 Purpose.
- 12.03 Definitions.
- 12.04 Zones – Districts – Symbols.
- 12.04.01 Violations of Specific Plans.
- 12.04.05 “OS” Open Space Zone.
- 12.04.09 “PF” Public Facilities Zone.
- 12.05 “A1” Agriculture Zone.
- 12.06 “A2” Agricultural Zone.
- 12.07 “RA” Suburban Zone.
- 12.07.01 “RE” Residential Estate Zone.
- 12.07.1 “RS” Suburban Zone.
- 12.08 “R1” One-family Zone.
- 12.08.1 RU Residential Urban Zone.
- 12.08.3 RZ Residential Zero Side Yard Zone.
- 12.08.5 “RW1” Residential Waterways Zone.
- 12.09 “R2” Two-Family Zone.
- 12.09.1 “RD” Restricted Density Multiple Dwelling Zone.
- 12.09.3 “RMP” Mobilehome Park Zone.
- 12.09.5 “RW2” Residential Waterways Zone.
- 12.10 “R3” Multiple Dwelling Zone.
- 12.10.5 RAS3 Residential/Accessory Services Zone Purpose Statement.
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- 12.11.5 RAS4 Residential/Accessory Services Zone Purpose Statement.
- 12.12 “R5” Multiple Dwelling Zone.
- 12.12.1 “P” Automobile Parking Zone.
- 12.12.1.5 “PB” Parking Building Zone.
- 12.12.2 “CR” Limited Commercial Zone.
- 12.13 “C1” Limited Commercial Zone.
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- 12.14 “C2” Commercial Zone.
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- 12.16.1 “CW” Central City West Specific Plan Zone.
- 12.16.2 ADP Alameda District Specific Plan Zone.
- 12.16.3 LASED Los Angeles Sports and Entertainment District Specific Plan Zone.
- 12.16.4 CEC Convention and Event Center Specific Plan Zone.
- 12.16.5 USC-1A University of Southern California University Park Campus Specific Plan Subarea 1A Zone.
- 12.16.6 USC-1B University of Southern California University Park Campus Specific Plan Subarea 1B Zone.
- 12.16.7 USC-2 University of Southern California University Park Campus Specific Plan Subarea 2 Zone.
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- 12.17 “C5” Commercial Zone.
- 12.17.1 “CM” Commercial Manufacturing Zone.
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SEC. 12.00. TITLE.

This article shall be known as the “Comprehensive Zoning Plan of the City of Los Angeles.”

It is well settled that a municipality may divide land into districts and prescribe regulations governing the uses permitted therein, and that zoning ordinances when reasonable in object and not arbitrary in operation constitute a justifiable exercise of police power, and as intendment is in favor of the validity of such ordinances the court will not substitute its judgment for that of the zoning action.

Lockard v. The City of Los Angeles, 33 Cal. 2d 453.

Clemens v. The City of Los Angeles, 36 Cal.2d 95.

Wheeler v. Gregg, 90 Cal. App. 2d 348.

Burke v. City of Los Angeles, 68 Cal. App.2d 189.

Ex Parte Quong Wo, 161 Cal 222.

Miller v. Board of Public Works, 95 Cal. 485.

Zahn v. Board of Public Works, 195 Cal. 497.

People v. Norton, 108 Cal. App. Supp. 767.

Otis v. City of Los Angeles, 52 Cal. App. 2d 605.

Hadacheck v. Alexander, 169 Cal. 616.

Brown v. City of Los Angeles, 183 Cal. 783, 789.

Ex Parte Hadacheck, 165 Cal. 416.

Marblehead Land Co. v. City of Los Angeles, 47 Fed. 2d 528.

Kort v. City of Los Angeles, 52 Cal. App. 2d 804.

Acker v. Baldwin, 18 Cal 2d 341.

In re Ruppe, 80 Cal. App. 629.

Village of Euclid v. Amber Realty Co., 272 U.S. 365, 71 L. Ed. 303.

Wilkins v. City of San Bernardino, 29 Cal 2d 332.

The right to use private property may be restricted by an ordinance which follows a reasonable plan even though the use is neither a nuisance per se, nor a menace to health, safety or morals in the district from which it is excluded. A retroactive ordinance which causes substantial injury to a business which is not a nuisance would be unreasonable and unjustifiable.

People v. Nixon, CR A 2201.

Comprehensive Zoning is a legitimate exercise of the police power and city ordinances prohibiting the production of oil in designated zones are valid if reasonable and not arbitrary.

Beverly Oil Company v. City of Los Angeles, 40 Cal. 2d 552.

Any zoning regulation is a valid exercise of the police power which is necessary to subserve the ends for which the police power exists, namely, the promotion of the public health, safety, morals, and general welfare. The police power as evidence in zoning ordinances has a much wider scope than the mere oppression of offensive users of property. Such regulations do not constitute a taking of property for which compensations must be made.

Miller v. Board of Public Works, 195 Cal. 482.

It is not a ground of invalidity of a zoning ordinance that a business is lawful, innocent, inoffensive and dignified, for if restrictions on business could be invalidated on that ground there could be no such thing as comprehensive city planning.

Kort v. City of Los Angeles, 52 Cal. App. 2d, 804, 809.

A master plan or some over-all plan contemplated by a city in the development and building up of a subdivision need not be approved and adopted before authority vests in relation to conditions imposed by the city on a subdivider, where a Charter contemplates that portion of the plan may be adopted.

Ayers v. City of Los Angeles, 34 Cal. 2d 31.

SEC. 12.01. CONTINUATION OF EXISTING REGULATIONS.

The provisions of this article, in so far as they are substantially the same as existing ordinances relating to the same subject matter, shall be construed as restatements and continuations and not as new enactments.

SEC. 12.02. PURPOSE.

The purpose of this article is to consolidate and coordinate all existing zoning regulations and provisions into one comprehensive zoning plan in order to designate, regulate and restrict the location and use of buildings, structures and land, for agriculture, residence, commerce, trade, industry or other purposes; to regulate and limit the height, number of stories, and size of buildings and other structures hereafter erected or altered to regulate and determine the size of yards and other open spaces and to regulate and limit the density of population; and for said purposes to divide the City into zones of such number, shape and area as may be deemed best suited to carry out these regulations and provide for their enforcement. Further, such regulations are deemed necessary in order to encourage the most appropriate use of land; to conserve and stabilize the value of property; to provide adequate open spaces for light and air, and to prevent and fight fires; to prevent undue concentration of population; to lessen congestion on streets; to facilitate adequate provisions for community utilities and facilities such as transportation, water, sewerage, schools, parks and other public requirements; and to promote health, safety, and the general welfare all in accordance with the comprehensive plan.

The zoning regulations are not contracts by the City and may therefore be modified by the latter. Property is always held subject to the valid exercise of the police power. The theory of vested rights relates only to such rights as an owner of property may possess not to have their property rezoned after the owner of the property has started construction thereon or was making a use thereof permitted by law, when such obstruction or use does not constitute a nuisance and the adoption of the zoning ordinance does not give a property owner any vested rights.

Wheeler v. Gregg, 90 Cal. App. 2d 348 at 365.

No person has a vested right in the exercise of the police power. An exercise of the same may not be limited by a prior contract or restricted covenants.

Wheeler v. Gregg, 90 Cal. App. 2d 348, 367.

Acker v. Baldwin, 18 Cal. 2d 341.

When a building is partly in one zone and partly in another, a person who conducts a prohibited business in the portion of such building where such business is prohibited, held, guilty of violation of the zoning ordinance, even though conduct of such business in other part of building would have been lawful.

People v. Nixon CR A 2201.

The use of a lot restricted to non-business uses as place where automobiles stood on concrete slab while being serviced from pump located on lot zoned for business, held to be a use of restricted lot for business purposes in violation of zoning ordinance.

People v. Myers, CR A550.

An ordinance which forbids the erection and maintenance of a dwelling house except where such dwelling has adequate and permanent access to a permanent or public street is valid.

Mitchell v. Morris, 94 Cal. App. 2d 446.

It is not an unlawful exercise of police power to amend a zoning ordinance and extend the limits of an area in which conduct of a certain business is prohibited when no construction or building has been started.

Dobbins v. City of Los Angeles, 139 Cal. 179.

Marblehead Land Co. v. City of Los Angeles, 47 F.2d 528.

A zoning ordinance is not void or discriminatory because there is a territory outside the district in which a business subject to the police power is permitted, exactly similar to that inside the district where it is prohibited.

Brown v. City of Los Angeles, 183 Cal. 783.

Where three separately numbered lots are enclosed with a fence and occupied and used as a single parcel, house being on one lot and horses were kept on other lot, held, the entire premises were used for a single family residence with customary outbuildings within meaning of county ordinance.

People v. Smith, CK A 1696.

Where zone boundary line runs through a building, held, fact that defendant was uncertain as to where such line ran is not a defense to charge of conducting business in a forbidden zone.

People v. Nixon, CR A 2201.

Zoning ordinances, when reasonable in object and not arbitrary in operation, constitute a justifiable exercise of the police power, and such power extends to the regulation of uses of property which do not actually amount to nuisances.

Jones v. City Of Los Angeles, 211 Cal. 304

Where a vendor of property conceals the fact that a violation of zoning regulations exists thereon, the purchaser is not bound by constructive notice of the applicable zoning ordinance, and said vendor's failure to disclose such violation constitutes actual fraud.

Barder v. McClung, 93 Cal. App. 2d 692.

Zoning Ordinances which have been held invalid fall roughly into four categories: 1. Where the zoning ordinance attempts to exclude and prohibit existing and established uses or businesses that are not nuisances. 2. Where restrictions create a monopoly. 3. Where the use of adjacent property renders the land entirely unsuited to or unusable for the only purpose permitted by the ordinance. 4. Where a small parcel is restricted and given less rights than surrounding property, as where a lot in the center of a business district is limited to use for residential purposes, thereby creating an "island" in the middle of a larger area devoted to other uses.

Wilkins v. City of San Bernardino, 29 Cal. 2d 332,340.

The terms "buildable area" and "building site", Article 1, Section 3(11) of the City Charter of Los Angeles are defined to include a "Designated Building Site" as that term is defined in and provided for by Section 2 of uncodified Ordinance 159,802, Eff. 6/9/85.

SEC. 12.03. DEFINITIONS.

For the purpose of Article 2 to 6 inclusive of this chapter, certain terms and words are herewith defined as follows:

ABANDONED AUTOMOBILE. Any motor vehicle, which when operated upon a highway is required to be registered by the California Vehicle Code, whose registration has been expired for a period of six months or more. Notwithstanding the foregoing definition, a motor vehicle stored within a permitted building or structure shall not be considered to be an abandoned automobile. **(Added by Ord. No. 131,925, Eff. 4/11/66.)**

ACCESSORY BUILDING. A detached subordinate building, the use of which is customarily incidental to that of the main building or to the main use of the land and which is located in the same or a less restrictive zone and on the same lot with the main building or use. The relationship between the more restrictive and the less restrictive zones shall be determined by the sequence of zones set forth in Sec. 12.23 B.1.(c). **(Amended by Ord. No. 106,571, Eff. 1/1/56.)**

ACCESSORY DWELLING UNIT (ADU). An attached or detached residential dwelling unit that provides complete independent living facilities for one or more persons and is located on a lot with a proposed or existing primary residence. It shall include permanent provisions for living, sleeping, eating, cooking, and sanitation on the same lot as the single- family or multi-family dwelling is or will be situated. ADUs include efficiency units as defined in Section 17958.1 of the Health and Safety Code, manufactured homes as defined in Section 18007 of the Health and Safety Code, and Movable Tiny Houses. **(Added by Ord. No. 186,481, Eff. 12/19/19.)**

ACCESSORY LIVING QUARTERS. An accessory building used solely as the temporary dwelling of guests of the occupants of the premises; such dwelling having no kitchen facilities and not rented or otherwise used as a separate dwelling unit. **(Added by Ord. No. 107,884, Eff. 9/23/56.)**

ACCESSORY USE. **(Amended by Ord. No. 182,095, Eff. 5/7/12.)** A use, which is customarily incidental to that of the main building or the main use of the land and which is located in the same zone or a less restrictive zone and on the same lot with a main building or main use. The relationship between the more restrictive zones and the less restrictive zones shall be determined by the sequence of zones set forth in Section 12.23 B. of this Code.

The garaging, maintaining or storage of any commercial vehicle on private property which exceeds a registered net weight of 5,600 pounds shall not be considered an accessory use in the "R" Zones. The rental, storage, or storage for rental purposes of a commercial vehicle which exceeds a registered net weight of 5,600 pounds shall not be considered an accessory use in any zone more restrictive than the MR-1 Zone, except as approved by conditional use.

An accessory use shall also include the keeping of domestic animals, subject to other provisions of this article; and the keeping of wild animals, under an appropriate permit issued by the Department of Animal Services as provided for in Section 53.38 of the Code, but in no event including the following wild animals: bear, civet, coyote, eagle, eland, elephant, elk, giraffe, gnu, gorilla, hyena, hippopotamus, jaguar, leopard, lion, lynx, moose, orangutan, venomous reptile, puma, rhinoceros, sea lion, tiger, vulture, walrus, wart hog, wolf or yak.

The sale of not more than one dog or cat litter from a domestic household in a 12-month period shall be considered accessory to a residential use.

The noncommercial keeping of birds (not including fowl) without regard to their number shall be an accessory use in the RA, RE, RS, R1, RU and RZ Zones. However, if the Department of Animal Services determines that the keeping of birds or the keeping of a particular number of birds at a particular location constitutes a nuisance or a health or safety hazard, then the keeping of birds under those circumstance shall not be an accessory use.

For the purposes of this section, the occasional sale of birds which is incidental to the keeping of birds as a hobby, does not constitute a commercial use.

Garage and/or yard sales shall be considered accessory to a residential use, if the sale is only incidental to the individual's

residential occupancy of the premises; and

1. The sales are confined to the sale of used items which were originally received or purchased for use in the household; and
2. The sales are restricted to a maximum of five sales events per calendar year as a means of disposing of used items originally received or purchased for use in the household; and
3. The sales are limited to not more than two consecutive days per event; and
4. The sales are limited to not more than ten days per calendar year total; and
5. The sales are limited to the hours between 9 a.m. and 5 p.m.

For purposes of this section, the term accessory use shall not apply to any garage and/or yard sales where new goods or merchandise, or items that were not intended to be used in the household are offered or displayed for sale or exchange. (**“Department of Animal Regulation” renamed “Department of Animal Services” by Ord. No. 174,735, Eff. 9/13/02.**)

ACUTELY LOW INCOME. The income level defined in Section 50063.5 of the California Health and Safety Code. (**Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.**)

ADDITION, GROUND FLOOR. An expansion of the exterior perimeter of a building measured at five feet or more above adjacent grade at any point. (**Added by Ord. No. 169,775, Eff. 6/2/94.**)

ADJACENT GROUND ELEVATION. Same as grade. (**Amended by Ord. No. 131,309, Eff. 4/24/66.**)

ADMINISTRATOR – See “Zoning Administrator”.

AGRICULTURAL WASTE. All plant materials generated from the growing and harvesting of agricultural crops, vegetables and fruits. (**Added by Ord. No. 170,054, 11/13/94.**)

AIRPORT OR AIRCRAFT LANDING FIELD. Any runway landing area or other facility designed, used, or intended to be used either publicly or privately by any person for the landing and taking off of aircraft including all necessary taxiways, aircraft storage and tiedown areas, hangars and other necessary buildings and open spaces.

ALZHEIMER’S/DEMENTIA CARE HOUSING. Residential housing that is licensed by the California Department of Social Services and provides 24-hour care for people suffering from Alzheimer’s disease or other disorders resulting in dementia. The residential units shall be guest rooms only. The housing may be a component of an Eldercare Facility. (**Added by Ord. No. 178,063, Eff. 12/30/06.**)

ANIMAL KEEPING ENCLOSURE. Any structure or fence which establishes the perimeter of an animal keeping and maintenance area. (**Added by Ord. No. 157,144, Eff. 11/22/82.**)

ANIMAL KEEPING STRUCTURE. Any structure, as defined by this Code, which has a roof and may have one or more sides and is used in whole or in part for the housing or shelter of animals. (**Amended by Ord. No. 161,352, Eff. 7/20/86.**)

APARTMENT. Same as dwelling unit. (**Added by Ord. No. 107,884, Eff. 9/23/56.**)

APARTMENT HOTEL. A residential building designed or used for both two or more dwelling units and six or more guest rooms or suites of rooms. (**Amended by Ord. No. 107,884, Eff. 9/23/56.**)

APARTMENT HOUSE. A residential building designed or used for three or more dwelling units or a combination of three or more dwelling units and not more than five guest rooms or suites of rooms. (**Amended by Ord. No. 107,884, Eff. 9/23/56.**)

APIARY. (**Added by Ord. No. 183,920, Eff. 12/6/15.**) The place where bees are kept and maintained, usually in a collection of hives or colonies.

AREA MEDIAN INCOME (AMI). The median income in Los Angeles County as determined annually by the California Department of Housing and Community Development (HCD) or any successor agency, adjusted for household size. (**Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.**)

AREA PLANNING COMMISSIONS. See Sec. 13A.1.4. (Area Planning Commission) of Chapter 1A of this Code. (**Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.**)

ASSISTED LIVING CARE HOUSING. Residential housing that is licensed by the California Department of Social Services and provides assistance to people 62 years of age or older who require assistance with two or more non-medical activities of daily living as defined in the Department of Social Services licensing requirements. The residential units may consist either of dwelling units or guest rooms. Full time medical services shall not be provided on the premises. The housing may be a component of an

Eldercare Facility. (Added by Ord. No. 178,063, Eff. 12/30/06.)

ATTENDED BICYCLE PARKING SERVICE. A service by which a bicycle is left in the care of an attendant(s) with provision for identifying the bicycle's owner. Once stored, a bicycle left in the care of an attendant(s) shall be accessible only to the attendant(s), with the storage location not necessarily in the same location as the pick-up and drop-off point. (Added by Ord. No. 185,480, Eff. 5/9/18.)

AUTOMOBILE DISMANTLING YARD. Any property or place where the business of an automobile dismantler, as defined by California Vehicle Code Section 220, is conducted. (Added by Ord. No. 152,770, Eff. 9/15/79.)

AUTOMOBILE FOR HIRE. An automobile for hire is a motor vehicle, other than a commercial vehicle with registered net weight in excess of 5,600 pounds, which is let or rented or offered for rental, lease or hire to another for consideration. (Added by Ord. No. 148,857, Eff. 10/31/76.)

AUTOMOBILE AND TRAILER SALES AREA. An open area other than a street, used for the display, sale or rental of new or used automobiles or trailers, and where no repair work is done except minor incidental repair of automobiles or trailers to be displayed, sold or rented on the premises.

AUTOMOTIVE FUELING AND SERVICE STATION. A business which dispenses automotive fuel to the public and may provide the following incidental services: tube and tire repairing, battery servicing, automotive lubrication, mechanical adjustments, changing of spark plugs and other similar maintenance activities. (Added by Ord. No. 169,130, Eff. 12/16/93.)

AUTOMOTIVE REPAIR. A use involving the diagnosing of malfunctions, repairing or maintaining of motor vehicles. Included in this definition are body shops, paint shops, tire stores, muffler shops, auto electric shops, van conversions, lubrication centers, auto-sound shops, auto-alarm shops, auto upholstery shops, wheel alignment shops and other similar automotive related repair or installation businesses; automotive repair does not include automotive fueling and service stations as defined in this section and installers of automotive telecommunication devices and computers. (Added by Ord. No. 169,130, Eff. 12/16/93.)

AUTOMOTIVE USE. The primary sale of used automobiles. In addition, this phrase shall include automotive repair and automobile and trailer sales area, as defined in this section. (Added by Ord. No. 178,382, Eff. 3/24/07.)

BACHELOR APARTMENT. Same as Efficiency Dwelling Unit. (Amended by Ord. No. 138,456, Eff. 5/30/69.)

BASE FLOOR. That story of a main building, at or above grade, which is not considered a basement, and which has the greatest number of square feet confined within the exterior walls, including the area of the attached covered parking at the same story. (Amended by Ord. No. 184,802, Eff. 3/17/17.)

BASEMENT. Any level below the First Story of a Building. The ceiling of a Basement shall not be more than four vertical feet higher than the finished floor level of the First Story. (Amended by Ord. No. 184,802, Eff. 3/17/17.)

BED AND BREAKFAST FACILITY. A building or portion thereof which is used as a temporary lodging place for fewer than thirty consecutive days and which does not contain more than five guest rooms and one kitchen. (Added by Ord. No. 172,792, Eff. 10/4/99.)

BEE. Any stage of life of the common domestic honey bee (*Apis Mellifera*). (Added by Ord. No. 183,920, Eff. 12/6/15.)

BEEKEEPING, BACKYARD. The keeping or maintenance of an apiary in a hive as an accessory use. (Added by Ord. No. 183,920, Eff. 12/6/15.)

BICYCLE CAGE. A locked bicycle parking area that has been fenced off to prohibit access by the general public. Bicycle cages shall contain bicycle racks that provide a means of securing the bicycle frame at two points to a securely anchored rack. (Added by Ord. No. 182,386, Eff. 3/13/13.)

BICYCLE CORRAL. Any on-street public parking space in which multiple short-term bicycle parking racks have been installed. (Added by Ord. No. 182,386, Eff. 3/13/13.)

BICYCLE ROOM. A locked bicycle parking area that has been walled off to prohibit access by the general public. Bicycle rooms shall contain bicycle racks that provide a means of securing the bicycle frame at two points to a securely anchored rack. (Added by Ord. No. 182,386, Eff. 3/13/13.)

BICYCLE SHARE DOCK. A device designed to receive a bicycle for locked storage as part of a system that directly rents bicycles on a short-term basis. (Added by Ord. No. 185,480, Eff. 5/9/18.)

BICYCLE SHARE SERVICE PROVIDER. An entity operating a system that directly provides bicycles for rent on a short-term basis. (Added by Ord. No. 185,480, Eff. 5/9/18.)

BICYCLE SHARE STATION. A combination of multiple bicycle share docks, automated payment equipment, and related equipment associated with bicycle share. (Added by Ord. No. 185,480, Eff. 5/9/18.)

BLOODMOBILE. A vehicle, or portable structure transported by a vehicle, easily transportable in one or more sections, which is used to provide blood collection services on a temporary basis in any one location. (Added by Ord. No. 166,045, Eff. 8/17/90.)

BOARD. (Repealed by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)

BOARDING OR ROOMING HOUSE. A dwelling containing a single dwelling unit and not more than five guest rooms or suites of rooms, where lodging is provided with or without meals, for compensation. (Amended by Ord. No. 107,884, Eff. 9/23/56.)

BUILDABLE AREA. (Amended by Ord. No. 171,662, Eff. 8/17/97.) All that portion of a lot located within the proper zone for the proposed main building, excluding those portions of the lot which must be reserved for yard spaces, building line setback space, or which may only be used for accessory buildings or uses. For the purpose of computing the height district limitations on total floor area in buildings of any height, the buildable area that would apply to a one-story building on the lot shall be used.

Notwithstanding the above, in computing the height district limitations on total floor area for any development of residential dwelling units, or of both residential dwelling units and commercial uses, in the C2, C4, or C5 zones, buildable area shall have the same meaning as lot area. The additional square footage permitted by this calculation for residential use shall not result in an increase in the number of dwelling units beyond that which would have otherwise been permitted but may only be used to increase the floor area or number of habitable rooms within individual dwelling units.

This alternate definition of buildable area shall not apply within the following specific plan areas: Central City West, Century City North, Century City South, Coastal Bluffs, Devonshire/Topanga Corridor, Foothill Boulevard Corridor, Granada Hills, Oxford Triangle, Pacific Palisades Commercial Village/Neighborhoods, Playa Vista Area D, Porter Ranch Land Use/Transportation, San Pedro, Valley Village, and Westwood Village. This alternative definition shall also not apply to any lot for which a "Q" or "D" limitation setting forth a floor area limitation had been imposed before July 1, 1997. In the event of a conflict with any other adopted specific plan, the most restrictive provision shall prevail.

BUILDING. Any structure having a roof supported by columns or walls, for the housing, shelter or enclosure of persons, animals, chattels or property of any kind. (Amended by Ord. No. 107,884, Eff. 9/23/56.)

BUNGALOW COURT. A group of three or more single, duplex, or triplex dwelling structures oriented around a shared outdoor space on a single parcel. (Added by Ord. No. 185,462, Eff. 4/18/18.)

CARGO CONTAINER. Any container (refrigerated or non-refrigerated) that permits the temporary storage and protection of cargo, and which may be transported by ship, rail or truck without intermediate loading and unloading of the contents of the container. (Added by Ord. No. 177,244, Eff. 2/18/06.)

CARGO CONTAINER STORAGE YARD. An open-air site or facility, the primary use of which is the keeping of empty cargo containers, and equipment, and may have as accessory uses the storage of container chassis and truck cabs, repair facilities, warehouses and offices associated with the movement or storage of cargo containers. This definition does not include draying, freighting or trucking yards or terminals. (Added by Ord. No. 177,244, Eff. 2/18/06.)

CEMETERY. Land used or intended to be used for the burial of the dead and dedicated for cemetery purposes, including columbariums, crematories, mausoleums and mortuaries when operated in conjunction with and within the boundary of such cemetery.

CHILD CARE FACILITY. A facility in which non-residential care is provided for children, 16 years of age or under, when licensed as a day care facility for children by the State of California or other agency designated by the State, under the categories defined in Section 30019 of Title 22 of the State of California Administrative Code. (Added by Ord. No. 145,474, Eff. 3/2/74.)

CHIPPING/GRINDING FACILITY. Any facility which temporarily stores and/or processes source-separated green waste and/or wood waste by means of chipping, grinding, mixing and/or screening to produce a material of varying particle size. The material produced by the above described processes may be used as ground cover, biofuel, wood chips, animal bedding, worm food or other similar uses. This definition shall not include any chipping and/or grinding of green waste and/or wood waste conducted for noncommercial, nonprofit purpose. (Added by Ord. No. 170,054, 11/13/94.)

CITY PLANNING COMMISSION. See Sec. 13A.1.3. (City Planning Commission) of Chapter 1A of this Code. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

COASTAL ZONE. The Coastal Zone, as defined in California Public Resources Code, Division 20 (commencing with Section 30000). (Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)

COLLECTION BIN. Any box, canister, receptacle, or other container that can be opened and closed, and is used for collecting salvageable personal property, including, but not limited to, clothing, shoes, books, and household items for periodic off-site processing and/or redistribution. For purposes of this definition, salvageable personal property shall not include recyclable materials not intended for re-use, including, but not limited to, newspapers, plastic, glass, aluminum, electronics, toxic or

hazardous materials, and solid waste; nor any personal property that, because of its size, does not fit inside the Collection Bin. **(Added by Ord. No. 187,248, 12/13/21.)**

COMMERCIAL COACH. A vehicle with or without motive power, designed and equipped for human occupancy for industrial, professional or commercial purposes. **(Added by Ord. No. 161,716, Eff. 12/6/86.)**

COMMERCIAL CORNER DEVELOPMENT. **(Amended by Ord. No. 175,223, Eff. 6/30/03.)**

(1) Any commercially used corner lot located in a C or M zone in Height District Nos. 1, 1-L, 1-VL or 1-XL, the lot line of which adjoins, is separated only by an alley adjacent to, or is located across the street from, any portion of a lot zoned A or R, or improved with any residential use (except in an M zone), or

(2) Any multi-family residentially used corner lot located in a C zone in Height District Nos. 1, 1-L, 1-VL or 1-XL, the lot line of which adjoins, is separated only by an alley adjacent to, or is located across the street from, any portion of a lot zoned RW1 or more restrictive zone.

For purposes of this definition, a Commercial Corner Development can be located on more than one lot only if the lots are adjacent, not divided by a public street, have a common parking area, and one or more buildings are erected or are proposed to be erected upon the lots.

COMMISSION. **(Repealed by Ord. No. 173,374, Eff. 8/3/00.)**

COMMUNITY APARTMENT PROJECT. The same as defined by Section 11004 of the California Business and Professions Code. **(Added by Ord. No. 151,432, Eff. 10/12/78.)**

COMPACTION. The densification of a Fill by mechanical means. **(Added by Ord. No. 181,624, Eff. 5/9/11.)**

COMPOSTING FACILITY. Any facility which processes source-separated organic materials to a stabilized state through controlled biological decomposition where the resultant material is beneficial to plant growth or soil structure when used as a soil amendment. Materials may initially be chipped, shredded, and/or screened on site prior to being composted. Composting may be conducted in an in-vessel system or in the open, such as windrow composting or aerated static pile composting. This definition shall not include any composting of green waste and/or wood waste conducted for non commercial, nonprofit purpose. **(Added by Ord. No. 170,054, 11/13/94.)**

CONDOMINIUM. The same as defined by Section 783 of the California Civil Code. **(Added by Ord. No. 151,432, Eff. 10/12/78.)**

CONVERSION PROJECT, COMMERCIAL/ INDUSTRIAL. An existing building used exclusively for commercial or industrial purposes, or both, proposed for conversion to a condominium or stock cooperative to be used exclusively for such purposes through approval of a tract or parcel map. For purposes of this definition, the term “existing” means that the building was constructed prior to 1945, or if it was built after 1945, a certificate of occupancy was issued for the building prior to the time of map application. **(Added by Ord. No. 154,960, Eff. 4/3/81.)**

CONVERSION PROJECT, COMMERCIAL/ INDUSTRIAL TO RESIDENTIAL. An existing building used exclusively for commercial or industrial purposes, or both, proposed for conversion to a condominium, stock cooperative or community apartment to be used exclusively for residential purposes through approval of a tract or parcel map. For purposes of this definition, the term “existing” means that the building was constructed prior to 1945 or, if it was built after 1945, a certificate of occupancy was issued for the building prior to the time of map application. **(Added by Ord. No. 154,960, Eff. 4/3/81.)**

CONVERSION PROJECT, RESIDENTIAL. An existing apartment house, apartment hotel, hotel, multiple dwelling or group dwelling used exclusively for residential purposes proposed for conversion to a condominium, stock cooperative, or community apartment project to be used exclusively for residential purposes through approval of a tract or parcel map. For purposes of this definition, the term “existing” means that the building was constructed prior to 1945 or, if it was built after 1945, a certificate of occupancy has been issued for the building prior to the time of map application. **(Amended by Ord. No. 154,960, Eff. 4/3/81.)**

CONVERSION PROJECT, RESIDENTIAL TO COMMERCIAL/INDUSTRIAL. An existing apartment house, apartment hotel, hotel, multiple dwelling or group dwelling used exclusively for residential purposes proposed for conversion to a condominium or stock cooperative which is to be used exclusively for commercial or industrial purposes through approval of a tract or parcel map. For purposes of this definition, the term “existing” means that the building was constructed prior to 1945 or, if it was built after 1945, a certificate of occupancy was issued for the building prior to the time of map application. **(Added by Ord. No. 154,960, Eff. 4/3/81.)**

CORPORATE HEADQUARTERS OR REGIONAL HOME OFFICE. The main administrative center or centers of one or more enterprises whose day-to-day functions is the retrieval and/or dissemination of information to a subsidiary and/or client business in and outside the City’s jurisdiction, through the means of electronic or data processing. **(Added by Ord. No. 169,366, Eff. 4/1/94.)**

COUNSELING AND REFERRAL FACILITY. (Added by Ord. No. 149,517, Eff. 5/26/77.) A neighborhood facility which provides counseling services and subsequently refers applicants to appropriate licensed social service agencies offering professional remedial assistance. Counseling and referral services may be offered in one or more of the following areas: welfare, housing, employment, health, education, legal matters, job development, consumer action, recreation, family problems, juvenile problems, probation, and neighborhood improvement. Tutoring and legal aid shall be permitted as an accessory use only.

The facility may also administer the implementation of government funded programs established to provide low-income housing, job development classes and recreation.

The facility shall:

- (a) permit no more than 5 employees, and;
- (b) where located in a residentially developed area, maintain the residential character of the exterior of the building.

CURB LEVEL. The level of the established curb in front of the building measured at the center of such front. Where no curb level has been established, the City Engineer shall establish such curb level or its equivalent for the purpose of this article.

CURING FACILITY. Any composting facility, as defined by this Code, where additional and/or final biological stabilization is attained after most of the readily metabolized material has been decomposed, and where no chipping, grinding, or screening of material takes place. This definition shall not include any curing of green waste and/or wood waste conducted for noncommercial, nonprofit purpose. (Added by Ord. No. 170,054, 11/13/94.)

CUT. A portion of land surface or areas from which earth has been removed or will be removed by excavation. (Added by Ord. No. 181,624, Eff. 5/9/11.)

DANCE HALL. Any place where public dances are held or conducted, other than when incidental to the operation of a hotel, apartment hotel, banquet room, catering hall, church, school or lodge. (Amended by Ord. No. 169,990, Eff. 9/17/94.)

DANCE HALL, HOSTESS. Any dance hall or place conducting public dances where partners are provided for dancing or social contacts by those conducting, managing, maintaining or operating such public dances for patrons or guests and for which such patrons or guests pay a fee or other consideration. (Added by Ord. No. 155,718, Eff. 8/6/81.)

DANCE, PUBLIC. A gathering of persons in or upon any premises where dancing is participated in and to which premises the public is admitted. (Added by Ord. No. 155,718, Eff. 8/6/81.)

DAY CARE FACILITY. Same as Child Care Facility. (Added by Ord. No. 145,474, Eff. 3/2/74.)

DAY-CARE HOME. (Deleted by Ord. No. 173,085, Eff. 3/19/00.)

DAY-CARE HOME, LARGE FAMILY. (Deleted by Ord. No. 173,085, Eff. 3/19/00.)

DAY-CARE HOME, SMALL FAMILY. (Deleted by Ord. No. 173,085, Eff. 3/19/00.)

DENSITY BONUS. A density increase over the otherwise Maximum Allowable Residential Density, as of the date of application by the applicant to the City. (Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)

DESIGNATED HISTORIC RESOURCE. A building, structure, object, landscaping element, or natural feature listed or designated as a historical resource, either individually, or as a contributor to a district, at the local, state, or national level. Including but not limited to a listing in the National Register of Historic Places or California Register of Historical Resources, or designation as a Historic-Cultural Monument or Historic Preservation Overlay Zone. (Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)

DESTROYED. Damaged so as to not be habitable as determined by the Department of Building and Safety. (Added by Ord. No. 153,144, Eff. 12/28/79.)

DEVELOPMENT PROJECT. Includes any project involving the issuance of a City Planning approval or a building permit from the Los Angeles Department of Building and Safety to allow the alteration of the size of, construction, or demolition of any structure, or a change in the density or intensity of use of land, and is subject to the requirements for development projects under Section 66300.6 of the California Government Code. (Added by Ord. No. 188,481, Eff. 2/11/25, Oper. 2/11/25.)

DEVELOPMENT STANDARD. A site or construction condition applicable to a development pursuant to any ordinance, land use plan, law, policy, resolution, regulation or other local condition that is adopted or imposed by the City through its various powers, as defined in California Government Code Section 65915(o)(2). (Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)

DINING AREA. A recess from a room or an alcove, adjoining and interconnected with the kitchen by a door or opening. (Added by Ord. No. 146,421, Eff. 9/14/74.)

DIRECTOR OF PLANNING (DIRECTOR). See Sec. 13A.1.6. (Director of Planning) of Chapter 1A of this Code. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

DISASTER. Fire, flood, wind, earthquake, or other calamity, act of God or the public enemy. (Added by Ord. No. 153,144, Eff. 12/28/79.)

DORMITORY. A guest room designed, intended or occupied as sleeping quarters by more than two persons. Every 100 square feet of superficial floor area in a dormitory shall be considered as a separate guest room. (Added by Ord. No. 107,884, Eff. 9/23/56.)

DOWNTOWN DESIGN GUIDE PROJECT AREA. (Deleted by Ord. No. 188,420, Eff. 1/20/25, Oper. 1/27/25.)

DRIVE-THROUGH FAST-FOOD ESTABLISHMENT. Any establishment which dispenses food for consumption on or off the premises to an individual in a vehicle. (Added by Ord. No. 166,904, Eff. 5/18/91.)

DWELLING. Any residential building, other than an Apartment House, Hotel or Apartment Hotel. (Amended by Ord. No. 107,884, Eff. 9/23/56.)

DWELLING, GROUP. Two or more one- family, two-family or multiple dwelling, apartment houses or boarding or rooming houses, located on the same lot. (Amended by Ord. No. 107,884, Eff. 9/23/56.)

DWELLING, MULTIPLE. A dwelling containing two dwelling units and not more than five guest rooms. (Amended by Ord. No. 107,884, Eff. 9/23/56.)

DWELLING, ONE-FAMILY. A detached dwelling containing only one dwelling unit. (Amended by Ord. No. 107,884, Eff. 9/23/56.)

DWELLING, TWO-FAMILY. A dwelling containing two dwelling units. (Amended by Ord. No. 107,884, Eff. 9/23/56.)

DWELLING UNIT. A group of two or more rooms, one of which is a kitchen, designed for occupancy by one family for living and sleeping purposes. (Amended by Ord. No. 107,884, Eff. 9/23/56.)

DWELLING UNIT, LOW INCOME. (Deleted by Ord. No. 180,308, Eff. 12/7/08.)

DWELLING UNIT, MODERATE INCOME. (Deleted by Ord. No. 180,308, Eff. 12/7/08.)

EDUCATIONAL INSTITUTIONS. Colleges or universities supported wholly or in part by public funds and other colleges or universities giving general academic instruction as prescribed by the State Board of Education.

EFFICIENCY DWELLING UNIT. A room located within an apartment house or apartment hotel used or intended to be used for residential purposes which has a kitchen and living and sleeping quarters combined therein, and which complies with the requirements of Section 91.4930.2 of this Code. (Added by Ord. No. 138,456. Eff. 5/30/69.)

ELDERCARE FACILITY. One functionally operated facility, which provides residential housing for persons 62 years of age and older, and which combines in one facility, two or more of the following housing types: Senior Independent Housing, Assisted Living Care Housing, Skilled Nursing Care Housing, and/or Alzheimer's/Dementia Care Housing. A minimum of 75 percent of the floor area, exclusive of common areas, shall consist of Senior Independent Housing and/or Assisted Living Care Housing. (Added by Ord. No. 178,063, Eff. 12/30/06.)

ELEVATION. Vertical distance in feet above sea level. (Added by Ord. No. 181,624, Eff. 5/9/11.)

ENCROACHMENT PLANE. An invisible inclined plane sloping inward at a forty-five degree angle from the vertical extension of the required front and side yard setbacks that originates at a specified height. A building may not intersect the encroachment plane. The encroachment plane restriction does not apply to roof structures and equipment as allowed by Section 12.21.1 B.3. For the purpose of this definition, height shall be measured from the existing or finished grade, whichever is lower, along the required front and side yard setbacks. (Added by Ord. No. 184,802, Eff. 3/17/17.)

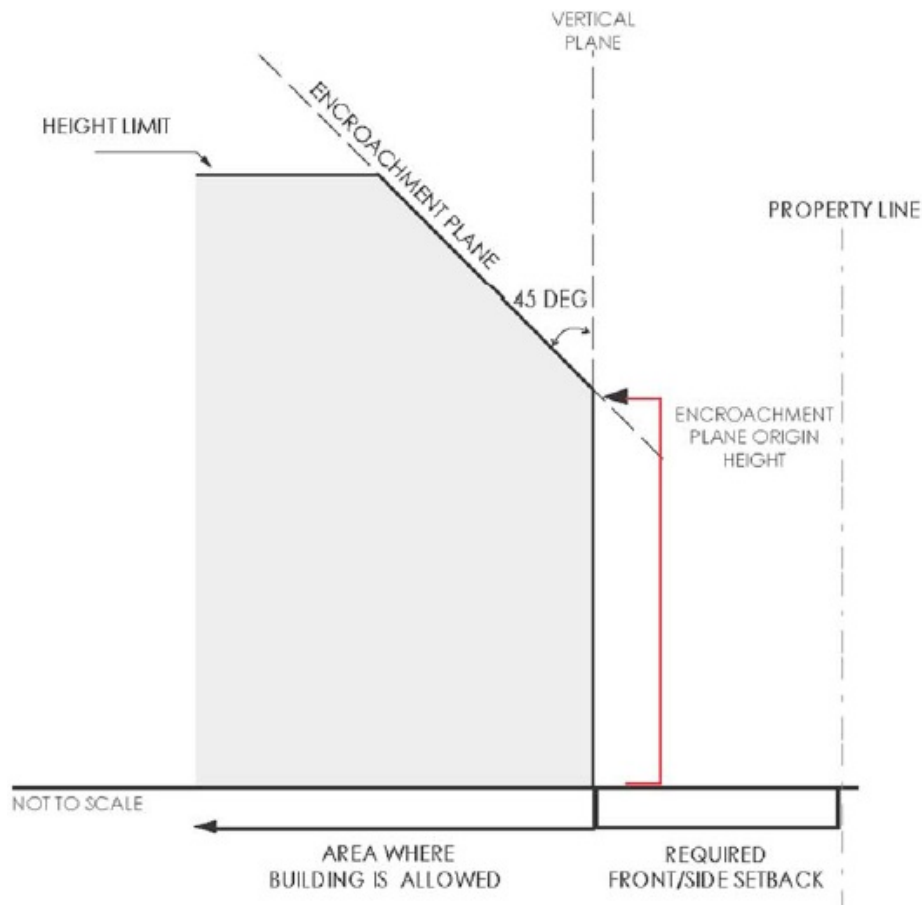


Figure 12.03-1: Encroachment Plane diagram.

Different zones have different encroachment plane origin heights. (Added by Ord. No. 184,802, Eff. 3/17/17.)

EQUINE. Any horse, pony, donkey, burro, or mule which is 12 months of age or older and is issued a current Equine License by the City Department of Animal Services. An animal which is under 12 months of age and is the offspring of or is unweaned and being nursed by a female equine lawfully kept on the property where said animal is kept shall not be considered an equine and shall be allowed by right on said property. (“Department of Animal Regulation” renamed “Department of Animal Services” by Ord. No. 174,735, Eff. 9/13/02.)

EQUINE ENCLOSURE. Any structure or fence which establishes the perimeter of an equine keeping and maintenance area. (Added by Ord. No. 157,144, Eff. 11/22/82.)

EXTREMELY LOW INCOME. The income level defined in Section 50106 of the California Health and Safety Code. (Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)

FACTORY-BUILT HOME. A residential building, dwelling unit, or individual dwelling room or combination of rooms, or building component, assembly, or system manufactured in such a manner that all concealed parts or processes of manufacture cannot be inspected before installation at the building site without disassembly of, or damage to the part. This home shall comply with all applicable provisions of the California State Factory-Built Housing law. The term “**factory-built home**” shall not include a mobilehome, mobile accessory building or structure, recreational vehicle, or commercial coach. (Added by Ord. No. 161,716, Eff. 12/6/86.)

FAMILY. One or more persons living together in a dwelling unit, with common access to, and common use of all living, kitchen, and eating areas within the dwelling unit. (Amended by Ord. No. 177,325, Eff. 3/18/06.)

FAMILY DAY CARE HOME. A dwelling unit that regularly provides care, protection, and supervision for 14 or fewer children, in the provider’s own home, for periods of less than 24 hours per day, while the parents or guardians are away, and is either a large family day care home or a small family day care home. (Added by Ord. No. 173,085, Eff. 3/19/00.)

FAMILY DAY CARE HOME, LARGE. A family day care home for 9 to 14 children, including children under the age of 10 years who reside at the home, as set forth in Health and Safety Code Section 1597.465. (Amended by Ord. No. 176,545, Eff. 5/2/05.)

FAMILY DAY CARE HOME, SMALL. A family day care home for 8 or fewer children, including children under the age of 10 years who reside at the home, as set forth in Health and Safety Code Section 1597.44. (Amended by Ord. No. 176,545, Eff. 5/2/05.)

FARMING. The cultivation of berries, flowers, fruits, grains, herbs, mushrooms, nuts, ornamental plants, seedlings or vegetables for use on-site or sale or distribution on-site or off-site. **(Added by Ord. No. 181,188, Eff. 7/18/10.)**

FILL. The depositing of soil, rock or other earth materials by artificial means. **(Added by Ord. No. 181,624, Eff. 5/9/11.)**

FLOOR AREA. The area in square feet confined within the exterior walls of a Building, but not including the area of the following: exterior walls, stairways, shafts, rooms housing Building-operating equipment or machinery, parking areas with associated driveways and ramps, space dedicated to bicycle parking, space for the landing and storage of helicopters, Outdoor Dining Areas, and Basement storage areas. Buildings on properties zoned RA, RE, RS, and R1, except properties in the Coastal Zone which are not designated as Hillside Area, are subject to the definition of Residential Floor Area. **(Amended by Ord. No. 188,073, Eff. 1/31/24.)**

FLOOR AREA, RESIDENTIAL. (Amended by Ord. No. 184,802, Eff. 3/17/17.) The area in square feet confined within the exterior walls of a residential or non-residential Building on a Lot in an RA, RE, RS, or R1 Zone. Any floor or portion of a floor with a ceiling height greater than 14 feet shall count as twice the square footage of that area. The area of stairways and elevator shafts shall only be counted once regardless of ceiling height. Area of an attic or portion of an attic with a ceiling height of more than 7 feet shall be included in the Residential Floor Area calculation.

Except that the following areas shall not be counted:

1. Required Covered Parking.

(a) The total area of 200 square feet per parking space that is required to be covered, up to a maximum of 400 square feet, shall be exempted from being counted as Residential Floor Area if all of said parking, whether detached or attached, is located in accordance with the following criteria:

(1) Said parking is located within the rear half of the Lot, or at least 55 feet from a Front Lot Line.

(2) On a Through Lot with no Rear Lot Line, said parking is set back from both Front Lot Lines a distance of at least 40 feet.

(b) If the parking that is required to be covered is not located in accordance with Paragraph (a) above, then only 200 square feet shall be exempted from being counted as Residential Floor Area.

(c) In any event, the required parking area exempted from counting as Residential Floor Area by this exception shall be limited to 400 square feet per Lot.

2. Detached Accessory Buildings. Detached Accessory Buildings not exceeding 200 square feet; however, the total combined area exempted of all the Detached Accessory Buildings on a Lot shall not exceed 400 square feet.

3. Lattice Roof Porches, Patios, and Breezeways. Porches, patios, and breezeways that have a Lattice Roof, as defined in this section.

4. Basements. For Lots not located in the Hillside Area or Coastal Zone, any Basement when the Elevation of the upper surface of the floor or roof above the Basement does not exceed 2 feet in height at any point above the finished or natural Grade, whichever is lower.

For Lots located in the Hillside Area, any Basement when the Elevation of the upper surface of the floor or roof above the Basement does not exceed 3 feet in height at any point above the finished or natural Grade, whichever is lower, for at least 60 percent of the perimeter length of the exterior Basement walls.

For all Lots, the following shall not disqualify said Basement from this exemption:

(a) A maximum of one (1), 20-foot wide depressed driveway with direct access to the required covered parking spaces; and

(b) A maximum of two (2) light- wells which are not visible from a public right-of-way and do not project more than three feet from the exterior walls of the Basement and no wider than 6 feet.

FLOOR AREA RATIO (FAR). A ratio establishing relationship between a property and the amount of development permitted for that property, and is expressed as a percentage or a ratio of the Buildable Area or Lot size (example: "3 times the Buildable Area" or "3:1"). **(Added by Ord. No. 181,624, Eff. 5/9/11.)**

FLOOR AREA RATIO, RESIDENTIAL (RFAR). A ratio establishing the relationship between a property and the amount of development permitted for that property, expressed as a percentage or a ratio of the Lot size (example: "0.45 of the Lot size"). **(Added by Ord. No. 184,802, Eff. 3/17/17.)**

FOSTER CARE HOME. A dwelling unit in which full-time care is provided for unrelated children, 16 years of age or under, as part of the family, when such use is licensed by the State of California or other agency designated by the State as a full-time foster home. Foster care children may be in addition to those permitted under the definition of “**Family**” contained in this section. **(Added by Ord. No. 145,474, Eff. 3/2/74)**

FRONTAGE. All property fronting on one (1) side of a street between intersecting or intercepting streets, or between a street and right-of-way, waterway, end of dead-end street, or city boundary measured along the street line. An intercepting street shall determine only the boundary of the frontage on the side of the street which it intercepts.

GARAGE, PRIVATE. An accessory building or portion of a main building designed or used for parking or storage of motor vehicles of the occupants of a residential use. **(Amended by Ord. No. 144,082, Eff. 12/11/72.)**

GARAGE, PUBLIC. A building or portion of a building designed or used for the repairing, equipping or servicing of motor vehicles, or for the parking or storage of motor vehicles for remuneration, hire, sale, or convenience of the occupants of the premises or the general public, but not including a private garage. **(Amended by Ord. No. 144,082, Eff. 12/11/72.)**

GENERAL PLAN. A General Plan is a comprehensive declaration of purposes, policies and programs for the development of the city, which includes, where applicable, diagrams, maps and text setting forth objections, principles, standards and other features, and which has been adopted by the City Council. **(Added by Ord. No. 138,800, Eff. 6/13/69, Oper. 6/23/69.)**

GRADE (ADJACENT GROUND LEVEL). Is the lowest point of elevation of the finished surface of the ground, paving or sidewalk within the area between the building and the property line, or when the property line is more than 5 feet from the building, between the building and a line 5 feet from the building. This definition does not apply to any building or structure located within the boundaries of the Century City North or Century City South Specific Plans and which is subject to Section 12.21.2 of this Code. **(Amended by Ord. No. 160,657, Eff. 2/17/86, Oper. 6/17/86.)**

GRADE, HILLSIDE AREA. For the purpose of measuring height on an R1, RS, RE, or RA zoned Lot in the Hillside Area, pursuant to Section 12.21 C.10. of this Code, Hillside Area Grade shall be defined as the Elevation, at the perimeter of a Building or Structure, of the finished or natural surface of the ground, whichever is lower, or the finished surface of the ground established in conformance with a grading plan approved pursuant to a recorded tract or parcel map action. Retaining walls shall not raise the effective Elevation of Grade for purposes of measuring Height of a Building or Structure **(Amended by Ord. No. 184,802, Eff. 3/17/17.)**

GRADING. Any Cut or Fill, or combination thereof, or recompaction of soil, rock or other earth materials. **(Added by Ord. No. 181,624, Eff. 5/9/11.)**

GRADING, LANDFORM. A contour grading method which creates artificial Slopes with curves and varying Slope ratios in the horizontal plane designed to simulate the appearance of surrounding natural terrain. The graded Slopes are non-linear in plan view, have varying Slope gradients, and significant transition zones between human-made and natural Slopes resulting in pad configurations that are irregular. The concept of Landform Grading incorporates the created ravine and ridge shapes with protective drainage control systems and integrated landscaping designs. **(Added by Ord. No. 181,624, Eff. 5/9/11.)**

GRADING, REMEDIAL. For the purposes of Section 12.21 C.10. of this Code, Remedial Grading shall mean grading recommended by a California Licensed Geologist and/or Licensed Engineer prepared in accordance with Sections 91.7006.2, 91.7006.3, and 91.7006.4 of this Code, and approved by the Department of Building and Safety - Grading Division, that is necessary to mitigate a geologic or geotechnical hazard on a site (including for access driveways), including, but not limited to: 1) correction of hazardous soil and earth conditions, when notified by the Department of Building and Safety in accordance with Section 91.7005.7 of this Code, 2) removal and re-compaction of soil for a Building site to remediate expansive, compressible or seismically unstable soils, 3) grading required to provide a minimum factor of safety of 1.5 for stability of slopes, and/or 4) grading to bring existing steep non-conforming graded slopes into conformance with current Code requirements for fill and excavated slope gradients. **(Added by Ord. No. 181,624, Eff. 5/9/11.)**

GREATER DOWNTOWN HOUSING INCENTIVE AREA. Those portions of the Southeast Community Plan Area generally bounded by 1-10 freeway on the north, the 1-110 freeway and Figueroa Street (south of Adams Boulevard) on the west, Grand Avenue (south of 21st Street) on the east, and Washington Boulevard and Martin Luther King Jr. Boulevard (west of Broadway Place) on the south, as shown in the map in Section 2 of Ordinance No. 188,426. **(Amended by Ord. No. 188,426, Eff. 1/20/25, Oper. 1/27/25.)**

GREEN WASTES. All yard trimmings and/or leaves, grass clippings, agricultural wastes and vegetative landscaping materials generated from the maintenance of yards, parks or other similar facilities. **(Added by Ord. No. 170,054, 11/13/94.)**

GROUND FLOOR. The story or basement within a portion of a building that has an access door that is directly accessible to and fronts on the street, and the elevation of the floor level is within three feet above or below the adjacent curb. The point on the adjacent curb is determined by drawing a line perpendicular to the door between the centerline of such door and the curb of the street. No portion of a ground floor can be located directly above or below another ground floor. **(Added by Ord. No. 174,999, Eff. 1/15/03.)**

GUEST HOUSE. A dwelling containing not more than five guest rooms or suites of rooms, but with no kitchen facilities.

(Amended by Ord. No. 107,884, Eff. 9/23/56.)

GUEST ROOM. Any habitable room except a kitchen, designed or used for occupancy by one or more persons and not in a dwelling unit. (Added by Ord. No. 107,884, Eff. 9/23/56.)

HEIGHT OF BUILDING OR STRUCTURE. Is the vertical distance above grade measured to the highest point of the roof, structure, or the parapet wall, whichever is highest. Retaining walls shall not be used for the purpose of raising the effective elevation of the finished grade for purposes of measuring the height of a building or structure. This definition does not apply to any building or structure located within the boundaries of the Century City North and Century City South Specific Plans and which is subject to Section 12.21.2 of this Code. (Added by Ord. No. 160,657, Eff. 2/17/86, Oper. 6/17/86.)

HIGH QUALITY TRANSIT SERVICE. A transit route with service frequency of 15 minutes or less during peak commute hours in one direction. For the purpose of determining service interval frequency, a bus route may include a combination of overlapping bus lines when part of a “colinear” or “family” line as determined in coordination with the Southern California Association of Governments (SCAG) and local transit agencies, may be considered as one service route for the purpose of calculating service interval frequency. (Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)

HIGHER OPPORTUNITY AREAS. High and Highest Resource Areas as defined and identified by the California Tax Credit Allocation Committee (TCAC). (Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)

HIGHWAY, MAJOR. Any street designated as a major highway on the Highways and Freeways maps of the Transportation Element of the General Plan. (Amended by Ord. No. 172,840, Eff. 11/4/99.)

HIGHWAY, SECONDARY. Any street designated as a secondary highway on the Highways and Freeways maps of the Transportation Element of the General Plan. (Amended by Ord. No. 172,840, Eff. 11/4/99.)

HILLSIDE AREA. Any land designated as Hillside Area as shown in the shaded portion of the Department of City Planning Hillside Area Map, dated September 23, 2009, attached to Council File No. 09-1390. The map is maintained by the Department of City Planning as part of the Geographic Information Systems database. (Amended by Ord. No. 181,128, Eff. 5/3/10.)

HISTORIC VEHICLE COLLECTION. One or more vehicles, as defined by Sections 5004(a)(1), (2) and (3) of the California Vehicle Code, special interest vehicles, as defined by Section 5051(b) of the California Vehicle Code, out-of-production vehicles of historical importance, as determined by the Zoning Administrator or parts cars, as defined in Section 5051(c) of the California Vehicle Code, which are collected, restored, or maintained for non-commercial hobby or historical purposes. (Added by Ord. No. 161,931, Eff. 3/2/87.)

HIVE. A structure that houses a bee colony. (Added by Ord. No. 183,920, Eff. 12/6/15.)

HOME OCCUPATION. An occupation carried on by the occupant or occupants of a dwelling as a secondary use in connection with the main use of the property, subject to the regulations of Section 12.05 A.16. of this Code. For dwelling units where a home occupation is conducted, the home occupation shall be considered a residential use for zoning purposes. (Amended by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)

HOME-SHARING. An accessory use of a Host’s Primary Residence for a maximum of 120 days in a calendar year for the purpose of providing Short- Term Rental in compliance with the registration and other requirements of Los Angeles Municipal Code Section 12.22 A.32. For purposes of this definition, the terms “Host”, “Short-Term Rental” and “Primary Residence” shall have the same meaning as defined in Section 12.22 A.32. of this Code. (Added by Ord. No. 185,931, Eff. 7/1/19.)

HOSTEL. A one-family dwelling, boarding or rooming house, dormitory, apartment hotel or apartment house which is advertised as a hostel or which is listed with any recognized national or international hostel organization. (Added by Ord. No. 167,689, Eff. 5/9/92.)

HOTEL. A residential building designated or used for or containing six or more guest rooms, or suites of rooms, which may also contain not more than one dwelling unit, but not including any institution in which human beings are housed or detained under legal restraint. (Amended by Ord. No. 138,685, Eff. 7/10/69.)

HOTEL DEVELOPMENT PROJECT. A Development Project that includes the creation of hotel/motel guest rooms, apartment hotels, hostels, or transient-occupancy residential structure dwelling units or an addition of 25 percent or more new hotel/motel guest rooms, apartment hotels, hostels, or transient-occupancy residential structure dwelling units to an existing hotel. (Added by Ord. No. 188,072, Eff. 7/1/24.)

HOUSEHOLD, LOW INCOME. (Deleted by Ord. No. 180,308, Eff. 12/7/08.)

HOUSEHOLD, MODERATE INCOME. (Deleted by Ord. No. 180,308, Eff. 12/7/08.)

HOUSEHOLD MOVING RENTAL TRUCK. Any motor vehicle which is displayed, stored or offered for rental without a driver, used and maintained solely for the transportation of property, primarily used for the do-it-yourself movement of personal or household goods by private individuals on a short-term basis, having only two axles, and equipped with a body of no more

than 22 feet in length measured at the vehicle chassis nor more than 12 feet in height measured from the surface upon which the involved truck rests. Such vehicle may exceed 5600 pounds in registered net weight. **(Amended by Ord. No. 151,717, Eff. 1/13/79.)**

HOUSING AUTHORITY. **(Deleted by Ord. No. 180,308, Eff. 12/7/08.)**

HOUSING DEVELOPMENT. As defined in California Government Code Section 65915(i), which is a development project with five or more residential units including mixed-use developments; and subdivisions or common interest developments as defined in California Civil Code Section 4100. **(Amended by Ord. No. 188,481, Eff. 2/11/25, Oper. 2/11/25.)**

HOUSING DEVELOPMENT PROJECT. Has the same meaning as defined in paragraph (2) of subdivision (h) of California Government Code Section 65589.5, except that it also includes projects that involve no discretionary approvals and projects that include a proposal to construct a single dwelling unit. **(Added by Ord. No. 188,481, Eff. 2/11/25, Oper. 2/11/25.)**

HOUSING DIRECTOR. **(Deleted by Ord. No. 180,308, Eff. 12/7/08.)**

IN-VESSEL COMPOSTING. A process in which compostable material is enclosed in a drum, silo or similar structure where the environmental conditions are controlled and the compostable material is aerated and mechanically agitated. This process allows for accelerated decomposition. **(Added by Ord. No. 170,054, 11/13/94.)**

INCENTIVE. A reduction in a site Development Standard or a modification to zoning code requirements or architectural design requirements that results in identifiable and actual cost reductions to provide for affordable housing costs as defined in California Government Code Section 65915(k). **(Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

INOPERABLE VEHICLE. Any motor vehicle or trailer which is incapable of immediate and sustained movement for which it was designed. **(Added by Ord. No. 176,840, Eff. 9/4/05.)**

JOINT LIVING AND WORK QUARTERS. A residential occupancy of one or more rooms or floors used as a dwelling unit with adequate work space reserved for, and regularly used by, one or more persons residing there. **(Amended by Ord. No. 181,133, Eff. 5/11/10.)**

JUNIOR ACCESSORY DWELLING UNIT (JADU). A unit that is no more than 500 square feet in size and contained entirely within a single-family residence. A Junior Accessory Dwelling unit may include separate sanitation facilities, or may share sanitation facilities with the existing structure. **(Added by Ord. No. 186,481, Eff. 12/19/19.)**

JUNK YARD. Any property or place where the business of a junk dealer, as defined by either Section 21601 of the California Business and Profession's Code or Section 103.305 of the Los Angeles Municipal Code, is conducted – other than wholly within an enclosed building. In addition, a junk yard shall include property used for the storage of impounded, abandoned, partially dismantled, obsolete or wrecked automobiles – other than wholly within an enclosed building. Junk Yard does not include an Historic Vehicle Collection when maintained as an Accessory Use as defined by Section 12.03 of the Municipal Code, or Scrap Metal Processing Yard as defined in the Municipal Code. **(Amended by Ord. No. 161,931, Eff. 3/2/87.)**

KENNEL. Any lot, building, structure, enclosure or premises where four or more dogs that are each at least four months of age are kept or maintained, with the exception of a Pet Shop. **(Amended by Ord. No. 186,372, Eff. 12/10/19.)**

A municipality may lawfully regulate the number of dogs that may be kept and may also prescribe an age limit.
Miller v. City of Arcadia, (1932) 121 Cal. App. 660.

KITCHEN. Any room or any portion of a dwelling unit, whether an enclosing subdivision thereof or otherwise, used or intended or designed to be used for cooking and preparing food except a light house-keeping room or that portion of a recreation room in a multiple residential use, or in an accessory building appurtenant thereto, containing the facilities for the cooking and preparation of food. **(Amended by Ord. No. 140,191, Eff. 5/15/70, Operative 10/12/70.)**

LEACHATES. Any liquid which has come into contact with or percolated through composting or curing materials and contains extracted or dissolved substances therefrom, or any other liquid which has been generated by the decomposition process. **(Added by Ord. No. 170,054, 11/13/94.)**

LIGHT HOUSEKEEPING ROOM. Any guest room which is designed and used as a bedroom and for the cooking and preparing of food, in a conformance with the provisions of Section 91.4930.1 of Article 1, Chapter 9 of this Code. For the purpose of applying the lot area and automobile parking space requirements of the various zones, each light housekeeping room shall be considered as a separate guest room. **(Added by Ord. No. 113,548, Eff. 6/10/59.)**

LOADING SPACE. An off street space or berth on the same lot with a building, or contiguous to a group of buildings, for the temporary parking of a commercial vehicle while loading or unloading merchandise or materials, and which abuts upon a street, alley or other appropriate means of access.

LOT. A parcel of land occupied or to be occupied by a use, building or unit group of buildings and accessory buildings and uses, together with the yards, open spaces, lot width and lot area as are required by this chapter and fronting for a distance of at least 20 feet upon a street as defined here, or upon a private street as defined in Article 8 of this chapter. The width of an access-

strip portion of a lot shall not be less than 20 feet at any point. In a residential planned development or an approved small lot subdivision a lot need have only the street frontage or access as is provided on the recorded subdivision tract or parcel map for the development. **(Amended by Ord. No. 176,354, Eff. 1/31/05.)**

LOT – AIR SPACE. **(Added by Ord. No. 156,681, Eff. 6/21/82.)** A division of the space above or below a lot as defined in this section with a finite width, length, and upper and lower elevation occupied or to be occupied by a use, building or portion thereof, unit group of buildings or portions thereof, and accessory buildings or portions thereof or accessory uses. An air space lot shall be identified on a final map or a parcel map recorded in the office of the County Recorder with a separate and distinct number or letter.

An air space lot shall have such access to a street (as defined in this section) or private street (as defined in Article 8 of this chapter) by means of one or more easements or other entitlements to use in a form satisfactory to the Advisory Agency and the City Engineer.

LOT, CORNER. A lot situated at the intersection of two (2) or more streets having an angle of intersection of not more than one hundred thirty five (135) degrees.

LOT, DOWNHILL. A Lot for which the Front Lot Line, or Street which serves as the primary vehicular access point for the required parking, is at a higher Elevation than the Rear Lot Line. **(Added by Ord. No. 181,624, Eff. 5/9/11.)**

LOT, FLAG. A lot so shaped and designed that the main building site area is set back from the street on which it fronts and includes an access strip not less than 20 feet in width at any point connecting the main building site area to the frontage street. **(Added by Ord. No. 137,956, Eff. 3/2/69.)**

LOT, INTERIOR. A lot other than a corner lot.

LOT, KEY. The first interior lot to the rear of a reversed corner lot and not separated therefrom by an alley.

LOT, REVERSED CORNER. A corner lot the side street line of which is substantially a continuation of the front line of the first lot to its rear.

LOT, THROUGH. A lot having a frontage on two parallel or approximately parallel streets, but not including those lots having frontage on a street and frontage on a navigable public canal or waterway parallel or approximately parallel to said street. **(Amended by Ord. No. 184,802, Eff. 3/17/17.)**

LOT, TRANSITIONAL. The first 100 feet of a lot in an RA or R Zone having a side line adjoining or separated only by an alley from a lot in a C or M Zone. **(Amended by Ord. No. 111,049, Eff. 5/3/58.)**

LOT, UPHILL. A Lot for which the Front Lot Line, or Street which serves as the primary vehicular access point for the required parking, is at a lower Elevation than the Rear Lot Line. **(Added by Ord. No. 181,624, Eff. 5/9/11.)**

LOT, VACANT. A lot on which no building, temporary or permanent, is erected. **(Added by Ord. No. 153,361, Eff. 3/2/80.)**

LOT AREA. The total horizontal area within the lot lines of a lot.

LOT DEPTH. The horizontal distance between the front and rear lot lines measured in the mean direction of the side lot lines.

LOT LINE, FRONT. In the case of an interior lot, the line separating the lot from the street or place, and in the case of a corner lot, a line separating the narrowest street frontage of the lot from the street, except in those cases where the latest tract deed restrictions specify another line as the front lot line.

LOT LINE, REAR. A lot line which is opposite and most distant from the front lot line and, in the case of an irregular, triangular, or gore-shaped lot, a line ten (10) feet in length within the lot, parallel to and at the maximum distance from the front line.

LOT LINE, SIDE. Any lot boundary line not a front lot line or a rear lot line.

LOT WIDTH. The horizontal distance between the side lot lines measured at right angles to the lot depth at a point midway between the front and rear lot lines.

LOW TO MODERATE COST HOUSING. Housing for which the rent does not exceed the current Fair Market Rent for Existing Housing standards applicable to Los Angeles City as established for Section 8 and 23 Housing Assistance Payments Program by the United States Department of Housing and Urban Development. **(Added by Ord. No. 151,432, Eff. 10/12/78.)**

LOWER INCOME. The income level defined in California Health and Safety Code Section 50079.5. **(Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

MAJOR REMODEL – HILLSIDE. Any remodeling of a main building on a lot in the Hillside Area whenever the aggregate

value of all alterations within a one-year period exceeds 50 percent of the replacement cost of the main building. **(Added by Ord. No. 168,159, Eff. 9/14/92.)**

MAJOR TRANSIT STOP. In addition to California Public Resources Code Section 21064.3, a site containing a rail or bus rapid transit station or the intersection of two or more bus routes with a service interval of 20 minutes or less during the morning and afternoon peak commute periods in either direction. The stations or bus routes may be existing, under construction, or included in the most recent Southern California Association of Governments (SCAG) Regional Transportation Plan (RTP). A bus route may include a combination of overlapping bus lines and may be considered as one service route for the purpose of calculating service interval frequency, when part of a “colinear”, or “family” line, as determined in coordination with SCAG and transit agencies. **(Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

MANUFACTURED HOME. The term “manufactured home” shall include a factory-built home and mobilehome but shall not include a recreational vehicle, or commercial coach. **(Added by Ord. No. 161,716, Eff. 12/6/86.)**

MAXIMUM ALLOWABLE RESIDENTIAL DENSITY. The greatest number of units allowed on a project site as defined in California Government Code Section 65915(o)(6). **(Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

MINI-SHOPPING CENTER. (Amended by Ord. No. 175,223, Eff. 6/30/03.) A building or group of buildings located on a lot or lots, having all of the following characteristics:

- (1) Size – comprised of less than 65,000 square feet of lot area before any dedications required in connection with the building permit or other permits for the Mini-Shopping Center;
- (2) Use – used for more than one retail establishment, such as a store, shop, business, service or facility;
- (3) Zoning – located in the C or M1, M2 or M3 Zones; and
- (4) Improvements – improved with a structure or structures that do not exceed a height of three stories.

For purposes of this definition, a Mini-Shopping Center can be located on more than one lot only if the lots are adjacent, not divided by a public street, have a common parking area, and one or more buildings are erected or are proposed to be erected upon the lots.

The definition of Mini-Shopping Center shall not include the following:

An automobile service station, including service bay areas, where accessory food sales do not exceed 600 square feet of floor area and other accessory uses do not exceed 500 square feet of floor area; or

Commercial buildings composed of general business or professional offices, including those of a real estate or stock broker, or an insurance or building and loan company, with 30% or less of the total square footage containing related commercial/retail uses that are located on the first and second floors, so long as parking is provided for the commercial/retail uses as required by Section 12.21 A.4.

MINOR EMERGENCY REPAIRS. Those repairs to a currently State licensed motor vehicle owned by the occupants of the property which do not require the complete immobilization of the vehicle in excess of 24 hours duration or does not require the removal of the engine transmission, rear-end or more than one wheel. Minor emergency repairs does not include body and fender work. **(Added by Ord. No. 137,210, Eff. 10/12/68.)**

MOBILE MEDICAL FACILITY. A vehicle, or portable structure transported by a vehicle, easily transportable in one or more sections, which is used to provide primarily diagnostic or preventive medical services on a temporary basis in any one location. **(Added by Ord. No. 166,045, Eff. 8/17/90.)**

MOBILEHOME. When used in Sections 12.08.1, 12.09.3, and 12.24 of this Code, this term shall mean a structure transportable in one or more sections, designed and equipped to be used as a dwelling unit or accessory to a dwelling unit. This structure shall comply with all applicable provisions of the California State Mobilehomes – Manufactured Housing Act. The term “mobilehome” shall not include a factory-built home, recreational vehicle, or commercial coach. **(Amended by Ord. No. 164,904, Eff. 7/6/89.)**

MOBILEHOME PARK. When used in Sections 12.09.3, 12.24, and 17.50 of this Code, this term shall mean any lot or portion of a lot used to provide rental or lease sites for two or more individual mobilehomes or trailers used as one-family dwellings. **(Amended by Ord. No. 164,904, Eff. 7/6/89.)**

MOBILEHOME SITE. When used in Section 12.24 of this Code, this term shall mean that portion of a mobilehome park set aside and designated for the occupancy of a mobilehome or trailer and including the area set aside or used for parking and buildings or structures such as awnings, cabanas or ramadas which are accessory to the mobilehome or trailer. **(Added by Ord. No. 161,716, Eff. 12/6/86.)**

MODEL DWELLING. (Deleted by Ord. No. 172,839, Eff. 11/1/99.)

MODERATE AND LOWER OPPORTUNITY AREAS. Moderate Resource, Low Resource, and High-Poverty & Segregation Areas as defined and identified by the California Tax Credit Allocation Committee (TCAC). **(Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

MODERATE INCOME. The income level defined in California Health and Safety Code Section 50093. **(Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

MOVABLE TINY HOUSE. **(Added by Ord. No. 186,481, Eff. 12/19/19.)** An enclosed space intended for separate, independent living quarters of one Family as defined in Section 12.03 of this Code and that meets all of the following:

- (a) Is licensed and registered with the California Department of Motor Vehicles;
- (b) Meets the American National Standards Institute (ANSI) 119.5 requirements or the National Fire Protection Association (NFPA) 1192 standards, and is certified for ANSI or NFPA compliance;
- (c) Cannot move under its own power;
- (d) Is no larger than allowed by California State Law for movement on public highways; and
- (e) Is no smaller than 150 and no larger than 430 square feet as measured within the exterior faces of the exterior walls.

MULCH. A woody vegetative material used as a nonnutritive ground cover to control erosion, improve water retention and retard weed growth. **(Added by Ord. No. 170,054, 11/13/94.)**

MULCHING FACILITY. Any facility which receives, temporarily stores and processes primarily source-separated carbonaceous wood waste and/or yard trimmings into a mulch. Examples of such materials include clean wood waste, tree and shrub trimming, leaves and other high carbon, low nitrogen material which decompose at a slow rate and have little leachate or odor-causing potential. Processing of such materials is achieved by chipping and screening to attain a uniform particle size and may include limited aging of the material to achieve a desired appearance. This definition shall not include any mulching of green waste and/or wood waste conducted for noncommercial, nonprofit purpose. **(Added by Ord. No. 170,054, 11/13/94.)**

NATURE PRESERVE. An area in its natural state which serves as a habitat for flora and/or fauna indigenous to the area, or as a corridor linking such habitats, including but not limited to a bird sanctuary, and which is designated as a nature preserve on the applicable community or district plan by footnote or other means, and where permitted uses are only incidental to the preservation and enhancement of the preserve. **(Added by Ord. No. 166,168, Eff. 10/3/90.)**

NEIGHBORHOOD RETAIL AND SERVICE USES. Uses that involve business activity serving the general public, pursuant to Section 13.07 C. of this Code. Neighborhood Retail and Neighborhood Services include, but are not limited to, retail, professional and personal services, hospitality, restaurants, and entertainment. **(Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

NONCONFORMING BUILDING. A building, structure or portion thereof, which does not conform to the regulations of this chapter and which lawfully existed at the time the regulations, with which it does not conform, became effective.

NONCONFORMING LOT. A lot whose width, area or other dimensions does not conform to the regulations of this chapter and which lawfully existed at the time the regulations with which it does not conform became effective. **(Amended by Ord. No. 127,777, Eff. 8/1/64.)**

NONCONFORMING USE. A use of building or land which does not conform to the regulations of this chapter and which lawfully existed at the time the regulations with which it does not conform became effective.

NON-CONTRIBUTOR. Any building, structure, natural feature, lot, or landscaping that is identified in a Historic Resources Survey or an official nomination form accepted by the relevant agency for a designated federal, state, or local historic district as a Non-Contributing Element, or not listed in the Historic Resources Survey or nomination form. **(Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

ONE HUNDRED PERCENT AFFORDABLE HOUSING PROJECT. A Housing Development Project, as defined in California Government Code Section 65589.5, that involves the construction of, addition to, or remodeling of any building or buildings which results in the creation of five or more additional residential units; and exclusive of any manager's units, units are subject to a recorded affordability restriction for a term of at least 55 years (or 99 years) for projects in which the units are for rent, or at least 45 years (or 99 years) for projects in which the units are for sale, as set forth in Section 16.61 of this Code. With the exception of a manager's unit or units, or staff units for Projects utilizing California Government Code Section 65913.16, all units (including bonus units) shall be Restricted Affordable Units for Lower Income households, except that up to 20 percent may be for Moderate Income households. **(Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

OUTDOOR DINING AREA. A covered or uncovered, but not fully enclosed area which may include but is not limited to an

open-to-sky parking area, patio, courtyard, or plaza, that is located in a space within the same lot as the restaurant to which it serves as an accessory use, but is outside of the enclosed building or structure in which the restaurant is located, and is used for the service and consumption of food and drinks by the patrons of the restaurant. **(Added by Ord. No. 188,073, Eff. 1/31/24.)**

OUTDOOR EATING AREA. When used in Sections 12.12.2, 12.13, 12.14, 12.21.1 and 12.24, this term shall refer to a covered or uncovered portion of a ground floor restaurant which is not completely enclosed within the building; is used primarily for the consumption of food and/or drinks by the patrons of the restaurant; and is not larger than 50 percent of the dining area of the ground floor restaurant. A “**ground floor**” restaurant refers to any restaurant with an average finished floor elevation either below or not more than three feet above natural grade as measured from any point along the exterior building wall closest to the restaurant. **(Amended by Ord. No. 165,403, Eff. 2/17/90.)**

PARALLEL PARKING STALL. A parking stall having its length parallel with its access aisle. **(Amended by Ord. No. 142,306, Oper. 2/9/72.)**

PARKING AREA, PRIVATE. An open area located on the same lot with a dwelling, apartment house, hotel or apartment hotel, for the parking of automobiles of the occupants of such building. **(Amended by Ord. No. 138,859, Eff. 8/21/69.)**

PARKING AREA, PUBLIC. Any open area other than a street or a private parking area, used for the parking of more than four automobiles.

PARKING BAY. The width of two rows of parking stalls and the aisle between, or on a single loaded aisle with width of one row of parking stalls and the access aisle. **(Added by Ord. No. 142,306, Oper. 2/9/72.)**

PARKING. BUILDING. Any garage designed and used primarily for the parking of automobiles. **(Amended by Ord. No. 144,082, Eff. 12/11/72.)**

PARKING SPACE, AUTOMOBILE. Space within a building or a private or public parking area, exclusive of driveways, ramps, columns, office and work areas, for the parking of one (1) automobile.

PARKING STALL. Same as Parking Space, Automobile. **(Added by Ord. No. 142,306, Oper. 2/9/72.)**

PET SHOP. Any retail or commercial establishment, store or department of any store, or any place of business open to the public where dogs, cats, rabbits, birds, reptiles or any other animals are kept and offered for adoption or sale, for hire, or sold, irrespective of the age of the animals, provided that the facility operates pursuant to a pet shop permit issued by the Department of Animal Services, and is not used for the breeding of dogs, cats or rabbits or the commercial boarding of animals. The term “Pet Shop” shall include “Pet Store”, and “Animal Adoption Facility”. **(Added by Ord. No. 186,372, Eff. 12/10/19.)**

PHILANTHROPIC INSTITUTION. A nonprofit, charitable institution devoted to the housing, training or care of children, or of aged, indigent, handicapped or underprivileged persons, but not including the following: office buildings, except as an accessory to and located on the same lot with an institutional activity, as listed above; hospitals, clinics or sanitariums, correctional institutions, institutions or homes for the insane or those of unsound mind; lodging houses or dormitories providing temporary quarters for transient unemployed persons; organizations devoted to collecting and salvaging new or used materials, or organizations devoted principally to distributing food, clothing or supplies on a charitable basis.

POOL. Any constructed pool used for swimming, bathing or wading or as a fishpond or similar use. **(Added by Ord. No. 109,714, Eff. 8/26/57.)**

PRINCIPAL USE. The main permitted use of land or structures as distinguished from an accessory use. **(Added by Ord. No. 152,467, Eff. 7/14/79.)**

PRIVATELY OWNED PUBLIC SPACES (POPS). **(Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)** An open space located on private property physically accessible to the public, such as but not limited to, plazas, arcades, paseos, through-block pedestrian connections, or open-air concourses located in or around buildings. To ensure that such open spaces are available to the public, each space must meet the following criteria:

1. Be physically open to the general public for use free of charge between sunrise and sunset, or during regular business hours, whichever is longer.
2. Be equal to, or greater than the common open space required by Section 12.21 G.2.(a) of this Code and shall have at least one clear minimum dimension of 15 feet in any direction. Planters used for trees and landscaping may be located within the required 15-foot dimension provided that planters do not exceed a height of 42 inches.
3. Provide at least one tree (non-palm species) for every 1,000 square feet of POPS space.
4. Be identified by a Privately Owned Public Space (POPS) way-finding sign posted at every public entrance to the amenity space in accordance with the Public Amenity Space Sign Standards as established by the Director of Planning, and in accordance with Div. 4C.11. (Signs) of Chapter 1A of this Code.

5. Provide at least three ground floor pedestrian amenities as listed below:

- a. Movable seating/furniture.
- b. At grade planting area.
- c. Hydration station inclusive of a water fountain or bottle refill station.
- d. Urban garden for community use.
- e. Play and/or exercise equipment.
- f. Running water elements.
- g. Shade structures.

PROTECTED UNITS. (Added by Ord. No. 188,481, Eff. 2/11/25, Oper. 2/11/25.) Means any of the following:

- (a) Residential dwelling units that are or were subject to a recorded covenant, ordinance, or law that restricts rents to levels affordable to persons and families of lower or very low income within the past five years.
- (b) Residential dwelling units that are or were subject to the Rent Stabilization Ordinance pursuant to Article I of Chapter XV of this Code, or any other form of rent or price control through a public entity's valid exercise of its police power within the past five years.
- (c) Residential dwelling units that are or were rented by lower or very low income households within the past five years.
- (d) Residential dwelling units that were withdrawn from rent or lease in accordance with the Ellis Act (Chapter 12.75 (commencing with Section 7060) of Division 7 of Title 1 of the California Government Code) within the past 10 years.

RECREATION ROOM. A room contained in either a main building or an accessory building, designed to be utilized primarily for games, the pursuit of hobbies, social gatherings, and such activities. Such a room may contain such plumbing fixtures as are utilized in a bar or for hobby activities. Such a room in a single-family or two-family dwelling or in an accessory building appurtenant to a single-family or two-family dwelling, may not include facilities for the cooking and preparation of food. However, in a multiple residential use or in an accessory building appurtenant thereto, a recreation room which is for the common use of all the dwelling units therein may contain the facilities for the cooking and preparing of food. (Added by Ord. No. 138,685, Eff. 7/10/69.)

RECREATIONAL VEHICLE. A portable vehicle mounted on wheels, with or without motive power, and primarily designed and constructed to provide human habitation for recreational, camping, travel or emergency purposes. (Added by Ord. No. 161,716, Eff. 12/6/86.)

RECREATIONAL VEHICLE PARK. Any lot or portion of a lot permitted by conditional use to provide rental or lease sites for individual recreational vehicles which are occupied for temporary purposes. (Added by Ord. No. 161,716, Eff. 12/6/86.)

RECYCLABLE MATERIALS. Items or materials to be recycled or reused, including but not limited to yard waste, paper, plastic, glass, metal, newspaper, and cardboard. (Added by Ord. No. 171,687, Eff. 8/19/97.)

RECYCLING AREA OR ROOM. An outdoor space or a room within a building which is designated for the collection of Recyclable Materials generated by the use(s) occupying only that site, is approved by the Fire Department and the Department of Building and Safety, and has the space to accommodate Recycling Receptacles. (Added by Ord. No. 171,687, Eff. 8/19/97.)

RECYCLING CENTER, MOBILE. A receptacle, usually a trailer, for the collection of recyclable materials that is drawn by motor power and bears a valid state license. (Added by Ord. No. 158,503, Eff. 1/1/84.)

RECYCLING CENTER OPERATOR OR JUNK DEALER. A person having a fixed place of business in the City and engaging in, conducting, managing or carrying on the business of buying, selling or otherwise charging or re-selling for reuse, materials approved for collection at an approved Recycling Center or Buyback Center, Recycling Materials Processing Facility, Recycling Materials Sorting Facility or Junk Yard as defined by this Code. (Amended by Ord. No. 171,687, Eff. 8/19/97.)

RECYCLING CENTER OR SITE. (Deleted by Ord. No. 171,687, Eff. 8/19/97.)

RECYCLING CHUTE. Any vertical smooth shaft used to convey recyclable materials from the upper floors of a building to a recyclable storage bin or room at the bottom end of the chute. (Added by Ord. No. 181,227, Eff. 9/1/10.)

RECYCLING COLLECTION OR BUYBACK CENTER. A facility where Recyclable Materials are deposited or redeemed for monetary value, and which may include baling or crushing operations for the purposes of efficiency of storage and transfer

(volume reduction), but shall not include sorting or processing activities for other than temporary storage purposes. **(Added by Ord. No. 171,687, Eff. 8/19/97.)**

RECYCLING MATERIALS PROCESSING FACILITY. A facility which accepts Recyclable Materials for sorting and processing on the site. For the purpose of this definition, processing shall mean the process of changing the physical characteristics of a Recyclable Material, including the shredding, smelting, grinding and crushing of cans, bottles, and other materials, for other than temporary storage purposes. **(Added by Ord. No. 171,687, Eff. 8/19/97.)**

RECYCLING MATERIALS SORTING FACILITY. A facility which accepts commingled or source-separated Recyclable Materials of various types, which are separated on the site using a manual or automated system. For the purpose of this definition, source-separated Recyclable Materials are those which are separated from the waste stream at their point of generation for the purpose of recycling. This may include baling or crushing operations for the purposes of efficiency of storage and transfer (volume reduction), but shall not include processing activities for other than temporary storage purposes. **(Added by Ord. No. 171,687, Eff. 8/19/97.)**

RECYCLING RECEPTACLE. A container which is suitable for the collection of Recyclable Materials. Containers shall be covered, durable, waterproof, rustproof, and of incombustible construction, and shall provide protection against the environment or be in completely enclosed indoor recycling areas. Containers must be clearly labeled to indicate the type of material to be deposited. **(Added by Ord. No. 171,687, Eff. 8/19/97.)**

REGISTERED NET WEIGHT. Registered net weight of a commercial vehicle is the unladen weight, as that term is defined by State Vehicle Code Section 660 and evidenced on the registration card kept within a commercial vehicle pursuant to State Vehicle Code Section 4454 or 4455 as the registration weight of a commercial vehicle pursuant to State Vehicle Code Section 9400. **(Added by Ord. No. 148,857, Eff. 10/30/76.)**

RENTABLE FLOOR AREA. The floor area in a building, exclusive of corridors, stairs, elevator shafts, laboratories, flues and janitor's storage closets.

REPLACE. Has the same meaning as provided in subparagraphs (B) and (C) of paragraph (3) of subdivision (c) of Section 65915 of the California Government Code. **(Added by Ord. No. 188,481, Eff. 2/11/25, Oper. 2/11/25.)**

RESIDENTIAL BUILDING. A building or portion thereof designed or used for human habitation. **(Added by Ord. No. 107,884, Eff. 9/23/56.)**

RESIDENTIAL PLANNING DEVELOPMENT. A group of residential buildings and appurtenant structures located and arranged in accordance with the requirement of the RPD - residential planned development district (Sec. 13.04) in which the property is located. A residential planned development may include schools. It may also include churches, hospitals, infirmaries, recreational and commercial uses, as an integral part of the development and intended for use by its occupants, to an extent commensurate with the planned population of the RPD district. **(Added by Ord. No. 141,474, Eff. 2/27/71.)**

RESIDENTIAL VEHICLE. A mobilehome, or a travel trailer containing a minimum of two hundred and twenty (220) square feet of superficial floor area exclusive of bath, closet and water closet areas, as defined by the California Health and Safety Code Sections 18211 and 18219. Such residential vehicle shall contain cooking, eating, sleeping, toilet and bathing facilities and shall display a California Department of Housing and Community Development insignia issued within one year prior to the date of application for the use of land permit herein required and a valid current California vehicle license. **(Added by Ord. No. 153,144, Eff. 12/28/79.)**

RESTRICTED AFFORDABLE UNIT. A residential unit for which rental or mortgage amounts are subject to a recorded affordability restriction so as to be affordable to and occupied by Acutely Low Income, Extremely Low, Very Low, Lower or Moderate-Income households, as defined by the California Department of Housing and Community Development (HCD) or any successor agency. Affordable means that rents or housing costs should not exceed requirements set forth in California Health and Safety Code Section 50052.5 for for-sale residential units, California Health and Safety Code Section 50053 for rental residential units, United States Department of Housing and Urban Development (HUD), or by the California Tax Credit Allocation Committee. **(Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

RETIREMENT HOTEL. A building with guest rooms and/or dwelling units in which 90 percent or more of the occupants are age 62 or older and for which a covenant running with the land is recorded limiting the use as such for as long as the building contains any guest rooms. **(Added by Ord. No. 159,714, Eff. 4/8/85.)**

REVERSE VENDING MACHINE. An automated mechanical device which accepts one or more types of empty beverage containers including aluminum cans, glass and plastic bottles, and which issues a cash refund or a redeemable credit slip with a value not less than the container's redemption value as determined by the State of California. A reverse vending machine may sort and process containers mechanically, provided that the entire process is enclosed within the machine. **(Added by Ord. No. 168,662, Eff. 4/29/93.)**

REVERSE VENDING MACHINE COMMODITY STORAGE BIN. A non-automated container which is covered and made of durable, incombustible, rustproof and waterproof construction, which is used to store the processed aluminum cans, glass and plastic bottles that are removed from a reverse vending machine. **(Added by Ord. No. 168,662, Eff. 4/29/93.)**

ROOF, LATTICE. A roof covering constructed as an Open Egg-Crate Roof or Spaced Roof. An Open Egg-Crate roof is constructed of lattice members so that a sphere of 10 inches minimum in diameter can pass through. All lattice members must have a minimum nominal width of 2 inches. A Spaced Roof is constructed of members running in one direction only with a minimum clear spacing between the members of not less than 4 inches. In addition, beams supporting and placed perpendicular to the members shall be spaced not less than 24 inches on center. All members or beams must have a minimum nominal width of 2 inches. **(Added by Ord. No. 181,624, Eff. 5/9/11.)**

ROOM, HABITABLE. **(Amended by Ord. No. 146,421, Eff. 9/14/74.)** An enclosed subdivision in a residential building commonly used for living purposes, but not including any lobby, hall, closet, storage space, water closet, bath, toilet, slop sink, general utility room or service porch. A recess from a room or an alcove (other than a dining area) having 50 square feet or more of floor area and so located that it could be partitioned off to form a habitable room, shall be considered a habitable room.

For the purpose of applying the automobile parking space requirements of this article, any kitchen as defined herein shall be considered a habitable room and, if it is a part of a room designed for other than food preparation or eating purposes, such remaining portion shall also be considered a habitable room.

For the purpose of applying the lot area requirements of this article, a kitchen less than 100 square feet of room area from wall to wall shall not be considered a habitable room.

For the purpose of applying the open space requirements of Section 12.21 G., a kitchen as defined herein shall not be considered a habitable room. **(Added by Ord. No. 171,753, Eff. 11/17/97.)**

SCHOOLS, ELEMENTARY AND HIGH. An institution of learning which offers instruction in several branches of learning and study required to be taught in the public schools by the Education Code of the State of California. High schools include Junior and Senior.

SCRAP METAL PROCESSING YARD. Any establishment or place of business which is maintained, used or operated solely for the processing and preparing of scrap metal for remelting by steel mills and foundries. **(Added by Ord. No. 145,040, Eff. 10/15/73.)**

SENIOR INDEPENDENT HOUSING. Residential housing that consists of dwelling units for persons 62 years of age and older and may include common dining areas or other community rooms. Full time medical services shall not be provided on the premises. It may be a component of an Eldercare Facility. **(Added by Ord. No. 178,063, Eff. 12/30/06.)**

SEA LEVEL RISE AREA. An area of the coast that is vulnerable to five feet of sea level rise, as determined by the National Oceanic and Atmospheric Administration, the Ocean Protection Council, the United States Geological Survey, the University of California, and as accepted for use by the Director of Planning, or as determined by a local coastal hazards vulnerability assessment. **(Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

SERVANTS QUARTERS. An accessory building located on the same premises with the main building, used solely as the dwelling of persons employed on the premises, such quarters having no kitchen facilities and not rented or otherwise used as a separate dwelling unit. **(Added by Ord. No. 107,884, Eff. 9/23/56.)**

SHELTER FOR THE HOMELESS. A facility operated by a "provider", other than a "community care facility" as defined in California Health and Safety Code Section 1502, which provides temporary accommodations to homeless persons and/or families and which meets the standards for shelters contained in Title 25, Division 1, Chapter 7 of the California Code of Regulations. The term "temporary accommodations" means that a homeless person or family will be allowed to reside at the shelter for a time period not to exceed six months. For the purpose of this definition, a "provider" shall mean a government agency, religious institution, non-profit charitable organization, or private non-profit organization which provides, or contracts with recognized community organizations to provide, emergency or temporary shelter for the homeless, and which has been certified by the Housing Department of the City of Los Angeles to meet all applicable requirements contained in the California Health and Safety Code and the California Code of Regulations. **(Amended by Ord. No. 187,122, Eff. 8/8/21.)**

SHOWCASE THEATER. **(Added by Ord. No. 148,910, Eff. 11/17/76.)** A theater which meets all of the following criteria:

- (1) seats 90 persons or less;
- (2) is nonprofit and tax-exempt;
- (3) provides live entertainment; and
- (4) employs fewer than five persons (exclusive of performers).

SKILLED NURSING CARE HOUSING. Residential housing that is licensed by the California Department of Health and provides acute, intermediate, or long-term skilled nursing care and consists only of guest rooms for its residents. Full time medical services may be provided on the premises. It may be a component of an Eldercare Facility. **(Added by Ord. No. 178,063, Eff. 12/30/06.)**

SLOPE. An inclined ground surface the inclination of which is expressed as a ratio of horizontal distance to vertical distance (i.e. 2:1 or 1:1) or as a percentage (i.e. 50% or 100%). **(Added by Ord. No. 181,624, Eff. 5/9/11.)**

SLOPE BAND. The area of a property contained within a defined Slope interval as identified in Section 12.21 C.10. of this Code and shown on a Slope Analysis Map prepared by a licensed surveyor based on a survey of the natural/existing topography. Slope bands need not necessarily be located in a contiguous manner and can be one or more areas as small or as large as they exist on said property. **(Added by Ord. No. 181,624, Eff. 5/9/11.)**

SOLID WASTE ALTERNATIVE TECHNOLOGY PROCESSING FACILITY. A facility that has one or more technological systems which extracts, recovers or generates usable materials and/or energy from solid waste, as defined in Section 40191 of California Public Resources Code. **(Added by Ord. No. 181,272, Eff. 9/28/10.)**

SPECIFIC ADVERSE IMPACT. Per California Government Code Section 65589.5(d)(2), a significant, quantifiable, direct, and unavoidable impact, based on objective, identified written public health or safety standards, policies, or conditions as they existed on the date the application was deemed complete. **(Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

SPECIFIC PLAN. See Div. 13C.1. (Administration Definitions) of Chapter 1A of this Code. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

STABLE, PRIVATE. A detached accessory building which has a roof and may have one or more sides and is used in whole or in part for the housing or shelter of an equine or equines owned by the occupants of the premises and not kept for remuneration, hire or sale. **(Amended by Ord. No. 157,144, Eff. 11/22/82; Clarified by Ord. No. 157,219, Eff. 12/3/82.)**

STABLE, PUBLIC. A stable other than a private stable.

STANDARD HILLSIDE LIMITED STREET. a street (public or private) with a minimum width of 36 feet and paved to a minimum roadway width of 28 feet, as determined by the Bureau of Engineering. **(Amended by Ord No. 169,961, Eff. 8/29/94.)**

STOCK COOPERATIVE. The same as defined by Section 11003.2 of the California Business and Professions Code. **(Added by Ord. No. 153,024, Eff. 1/10/79.)**

STORAGE BUILDING FOR HOUSEHOLD GOODS. A building that offers secure self-storage for household goods in individual rooms, compartments, lockers or containers to which clients bring goods for storage and retrieve them any time during normal business hours without any assistance from the operator of the building. For purposes of this definition, storage of these goods may not be in containers, such as boxes, barrels and/or drums set on pallets or racks, or that require the use of forklifts or other similar mechanical equipment for access or mobility. A storage building for household goods does not include the storage of commercial inventory to be sold, displayed, rented or otherwise relocated for sale. **(Added by Ord. No. 173,979, Eff. 6/29/01.)**

STORY. The space in a Building between two vertically adjacent finished floor levels or, for the topmost level of a Building, the space between its finished floor level and the roof directly above it. Finished floor levels within four vertical feet of each other shall be deemed a single Story. Any space that is defined as a Basement is not considered a Story. **(Amended by Ord. No. 184,802, Eff. 3/17/17.)**

STORY, FIRST. The lowest Story of a Building where the finished floor level directly above the Story is more than six feet above grade for more than 50 percent of the total perimeter of the Building or is more than 12 feet above grade at any point. If no such Story exists, then the topmost Story of a Building shall be deemed the First Story. **(Added by Ord. No. 184,802, Eff. 3/17/17.)**

STREET. Any public thoroughfare other than an alley or walk, except that in those cases where a subdivision has been recorded containing lots which abut only on an alley or walk, said alley or walk may be considered to be a street.

STREET – COLLECTOR. Any street designated as a collector street on an adopted community plan element of the general plan. **(Added by Ord. No. 150,799, Eff. 6/5/78.)**

STRUCTURAL ALTERATIONS. Any change which would prolong the life of the supporting members of a building or structure, such as bearing walls, columns, beams or girders.

STRUCTURE. Anything constructed or erected which is supported directly or indirectly on the earth, but not including any vehicle which conforms to the California State Vehicle Act. **(Amended by Ord. No. 107,884, Eff. 9/23/56.)**

SUBSTANDARD HILLSIDE LIMITED STREET. A Street which does not meet the minimum requirements of a Standard Hillside Limited Street as defined in Section 12.03 of this Code (public or private) with a width less than 36 feet and paved to a roadway width of less than 28 feet, as determined by the Bureau of Engineering. **(Amended by Ord. No. 181,624, Eff. 5/9/11.)**

SUITE. A group of habitable rooms designed as a unit, and occupied by only one family, but not including a kitchen or other facilities for the preparation of food, with entrances and exits which are common to all rooms comprising the suite. **(Added by**

SUPPORTIVE HOUSING. Housing with no limit on length of stay for persons with low incomes who have one or more disabilities and may include, among other populations, adults, emancipated minors, families with children, elderly persons, young adults aging out of the foster care system, individuals exiting from institutional settings, veterans, and homeless people. The housing is linked to onsite or offsite Supportive Services, and any Floor Area used for the delivery of Supportive Services shall be considered accessory to the residential use. **(Added by Ord. No. 185,489, Eff. 4/20/18.)**

SUPPORTIVE SERVICES. Services that are provided on a voluntary basis to residents of Supportive Housing and Transitional Housing, including, but not limited to, a combination of subsidized, permanent housing, intensive case management, medical and mental health care, substance abuse treatment, employment services, benefits advocacy, and other services or service referrals necessary to obtain and maintain housing. **(Added by Ord. No. 185,489, Eff. 4/20/18.)**

SURVEYED HISTORIC RESOURCE. Any building, structure, object, site, landscape, or natural feature identified through a Historic Resources Survey as eligible for listing as either an individual resource or as a contributor to a historic district under a local, state or federal designation program, including but not limited to listing in the National Register of Historic Places or California Register of Historical Resources, or designation as a Historic-Cultural Monument or as a Historic Preservation Overlay Zone. This term does not include a non-contributor to an eligible historic district. **(Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

TEMPORARY GEOLOGICAL EXPLORATORY CORE HOLE. A seismic test hole or exploratory core hole used or intended to be used exclusively for geophysical, geological, and other exploratory testing for oil, natural gas or other hydrocarbon substances. **(Amended by Ord. No. 152,744, Eff. 9/10/79.)**

TENANT. A person who rents, leases or sub- leases, through either a written or oral agreement, residential real property from another. **(Added by Ord. No. 151,432, Eff. 10/12/78.)**

TENNIS OR PADDLE TENNIS COURT. A game court designed for the purpose of playing tennis, paddle tennis or similar game, utilizing a concrete slab or other conventionally accepted hard playing surface, an enclosing fence and frequently overhead lighting fixtures. **(Added by Ord. No. 151,466, Eff. 10/27/78.)**

TOWNHOUSE. A dwelling unit, structurally separated from another dwelling unit or other dwelling units in a building containing two or more dwelling units, and complying with the provisions of Section 91.2305(k)(2) of this Code, and which may be sold jointly with the lot upon which the dwelling unit is situated. Provided, however, that common roofing, flashing, and siding are permitted so as to enclose the airspace resulting from said structural separation. **(Added by Ord. No. 141,474, Eff. 2/27/71.)**

TRAILER OR AUTOMOBILE TRAILER. A vehicle without motive power, designed to be drawn by a motor vehicle and to be used for human habitation or for carrying persons and property, the terms “trailer” and “automobile trailer” shall not include a mobilehome. **(Amended by Ord. No. 161,716, Eff. 12/6/86.)**

TRANSIENT OCCUPANCY RESIDENTIAL STRUCTURE. A residential building designed or used for one or more dwelling units or a combination of three or more dwelling units and not more than five guest rooms or suites of rooms wherein occupancy, by any person by reason of concession, permit, right of access, license, or other agreement is for a period of 30 consecutive calendar days or less, counting portions of calendar days as full days. **(Added by Ord. No 167,689, Eff. 5/9/92.)**

TRANSITIONAL HOUSING. A building where housing linked to Supportive Services is offered, usually for a period of up to 24 months, to facilitate movement to permanent housing for persons with low incomes who may have one or more disabilities, and may include adults, emancipated minors, families with children, elderly persons, young adults aging out of the foster care system, individuals exiting from institutional settings, veterans, and homeless people. **(Added by Ord. No. 185,489, Eff. 4/20/18.)**

TRASH CHUTE. Any vertical smooth shaft used to convey rubbish, trash, or garbage from the upper floors of a building to a trash storage bin or room at the bottom end of the chute. **(Added by Ord. No. 181,227, Eff. 9/1/10.)**

TRUCK GARDENING. The cultivation of berries, flowers, fruits, grains herbs, mushrooms, nuts, ornamental plants, seedlings or vegetables for use on-site or sale or distribution off-site. **(Added by Ord. No. 181,188, Eff. 7/18/10.)**

UNDERFLOOR SPACE. A space between the ground and the floor directly above. **(Added by Ord. No. 109,714, Eff. 8/26/57.)**

URBAN AGRICULTURE INCENTIVE ZONE. **(Added by Ord. No. 185,023, Eff. 8/6/17.)** Any land designated as being eligible for the Urban Agriculture Incentive Zone Act, in accordance with California Government Code Sections 51040 - 51042 and County of Los Angeles Planning and Zoning Code Sections 22.52.3400 et seq., as may be amended from time to time, and as also shown in the Department of City Planning’s Urban Agriculture Incentive Zone Map, dated August 2016, attached to Council File No. 14-1378. The map is maintained by the Department of City Planning as part of the Geographic Information Systems database, and identifies all current farming and gardening zones, which may be amended from time to time.

The map shall be used by the Director of Planning, or the Director's designee, to determine eligibility for the City of Los Angeles' Urban Agriculture Incentive Zone Program, as set forth in Los Angeles Administrative Code Sections 19.170 et seq., based on the criteria outlined in California Government Code Sections 51040 through 51042, the County of Los Angeles Planning and Zoning Code Sections 22.52.3430 through 22.52.3450, as may be amended from time to time.

USE. The purpose for which land or a building is arranged, designed or intended or for which either land or a building is or may be occupied or maintained.

UTILITY RENTAL TRAILER. Any non- passenger carrying, box-type open or van designed to be towed by a passenger vehicle, not exceeding 3,500 pounds gross vehicle weight (GAW), and not exceeding 96 inches in total width, nor 72 inches in box width, nor 14 feet in box length. **(Added by Ord. No. 148,857, Eff. 10/30/76.)**

VEHICLE, COMMERCIAL. Any vehicle, excluding Household Moving Rental Trucks, and Utility Rental Trailers, which when operated upon a highway is required to be registered as a commercial vehicle by the Vehicle Code of the State of California or by any other jurisdiction and which is used or maintained for the transportation of persons for hire, compensation, or profit, or designed, used or maintained primarily for the transportation of property. **(Amended by Ord. No. 148,857, Eff. 10/30/76.)**

VERY HIGH FIRE HAZARD SEVERITY ZONES. Refer to Section 57.4911.1.1 of this Code. **(Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

VERY LOW INCOME. The income level as defined in California Health and Safety Code Section 50105. **(Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

WINDROW COMPOSTING. The process in which compostable material is placed in elongated piles or windrows which are mechanically turned or aerated to encourage decomposition and to reduce odors. **(Added by Ord. No. 170,054, 11/13/94.)**

WOOD WASTES. Any untreated and/or unpainted wood material such as pallets, plywood and other construction related scrap lumber, stumps and tree trimming. **(Added by Ord. No. 170,054, 11/13/94.)**

YARD. An open space other than a court, on a lot, unoccupied and unobstructed from the ground upward, except as otherwise provided in this article.

YARD, FRONT. A yard extending across the full width of a lot, the depth of which is the minimum horizontal distance between the front lot line and a line parallel thereto on the lot.

YARD, REAR. A yard extending across the full width of the lot, the depth of which is the minimum horizontal distance between the rear lot line and a line parallel thereto on the lot. **(Amended by Ord. No. 121,925, Eff. 6/4/62.)**

YARD, SIDE. A yard more than six (6) inches in width between a main building and the side lot line, extending from the front yard or the front lot line where no front yard is required, to the rear yard. The width of the required side yard shall be measured horizontally from the nearest point of the side lot line toward the nearest part of the main building.

ZONING ADMINISTRATOR. See Div. 13C.1. (Administration Definitions) of Chapter 1A of this Code. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

SEC. 12.04. ZONES – DISTRICTS – SYMBOLS.

(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)

A. In order to regulate the use of property, as provided for in this article, the City is divided into the following Zones: **(Amended by Ord. No. 182,343, Eff. 1/23/13.)**

1. OS Open Space Zone;
2. A1 Agricultural Zone;
3. A2 Agricultural Zone;
4. RA Suburban Zone;
5. RE Residential Zone;
6. RS Suburban Zone;
7. R1 One-Family Zone;
8. RU Residential Urban Zone;

9. RZ Residential Zero Side Yard Zone;
10. RW1 One-Family Residential Waterways Zone;
11. R2 Two-Family Zone;
12. RD Restricted Density Multiple Dwelling Zone;
13. RMP Mobile Home Park Zone;
14. RW2 Two-Family Residential Waterways Zone;
15. R3 Multiple Dwelling Zone;
16. RAS3 Residential/Accessory Services Zone;
17. R4 Multiple Dwelling Zone;
18. RAS4 Residential/Accessory Services Zone;
19. R5 Multiple Dwelling Zone;
20. P Automobile Parking Zone;
21. PB Parking Building Zone;
22. CR Limited Commercial Zone;
23. C1 Limited Commercial Zone;
24. C1.5 Limited Commercial Zone;
25. C2 Commercial Zone;
26. C4 Commercial Zone;
27. C5 Commercial Zone;
28. CM Commercial Manufacturing Zone;
29. MR1 Restricted Industrial Zone;
30. M1 Limited Industrial Zone;
31. MR2 Restricted Light Industrial Zone;
32. M2 Light Industrial Zone;
33. M3 Heavy Industrial Zone;
34. PF Public Facilities Zone; and
35. SL Ocean-Submerged Land Zone.

The order of restrictiveness of these zones, the first being the most restrictive and last being the least restrictive, is as follows:

OS, A1, A2, RA, RE, RS, R1, RU, RZ, RW1, R2, RD, RMP, RW2, R3, RAS3, R4, RAS4, R5, CR, C1, C1.5, C4, C2, C5, CM, MR1, M1, MR2, M2, M3 and PF.

In addition, there shall be the following Specific Plan Zones:

1. CCS Century City South Studio Zone;
2. CM (GM) Commercial Manufacturing (Glencoe/Maxella) Zone;
3. CW Central City West Specific Plan Zone;
4. WC Warner Center Specific Plan Zone;

5. ADP Alameda District Specific Plan Zone;
6. LASED Los Angeles Sports and Entertainment District Specific Plan Zone;
7. LAX Los Angeles International Airport Specific Plan Zone;
8. USC-1A University of Southern California University Park Campus Specific Plan Subarea 1A Zone;
9. USC-1B University of Southern California University Park Campus Specific Plan Subarea 1B Zone;
10. USC-2 University of Southern California University Park Campus Specific Plan Subarea 2 Zone; and
11. USC-3 University of Southern California University Park Campus Specific Plan Subarea 3 Zone.
12. Ponte Vista at San Pedro Specific Plan Zone. **(Added by Ord. No. 182,937, Eff. 4/21/14.)**
13. EC Exposition Corridor Transit Neighborhood Plan (Specific Plan) Zone. **(Added by Ord. No. 185,672, Eff. 12/26/19.)**
14. DNSP District NoHo Specific Plan Zone. **(Added by Ord. No. 188,143, Eff. 4/22/24.)**

B. The Zone symbols and the boundaries of these Zones are shown on the “**Zoning Map**” made up of separate map sheets and made a part of Article 2, Chapter 1 of the Los Angeles Municipal Code. The “**Zoning Map**” and all of the notations, references, and other information, shown on the map are as much a part of this article as if fully set forth here. **(Amended by Ord. No. 176,343, Eff. 1/20/05.)**

C. In order to more adequately regulate and restrict the height and floor area of buildings and structures, each lot shall include a height district designation, except for lots in the HI Hybrid Industrial Live/Work Zone, where the height and floor area of buildings and structures shall be regulated by Section 12.04.06*, and except for lots in the R1V, R1F, R1R One-Family Variation Zones, where the height and Residential Floor Area of buildings and structures shall be regulated by Sections 12.08 C.5.(b) - (d). Height district designations shall be numbered from 1 to 4, CRA 1 to 4, EZ 1 to 4 and CSA 1 to 4, and shall regulate the height or floor area of buildings and structures as provided in Sections 12.21.1, 12.21.2, 12.21.3, 12.21.4 and 12.21.5. The height districts and their boundaries are shown on the Zoning Map by a combination of zone symbols and height district number markings, e.g., R2-1, C2-2, M1-3, C1-CRA1, MS-EZ2, C2-CSA3, etc. Where a lot is located in more than one height district, the applicable zone symbol designations shall be separated by a slash mark, e.g., R2-CRA/CSA, C2-EZI/CRA2, etc. The symbol “HD” preceding height district number markings, when shown on the Zoning Map or used in a zoning ordinance, is an abbreviation for the words “height district” and refers to height districts. The height districts for the “CW” Zone are the height districts shown in Section 6 of the Central City West Specific Plan. The height districts for the “ADP” Zone are the height districts shown in Section 7 of the Alameda District Specific Plan. The height districts for the “LASED” Zone are the height districts shown in Section 10 of the Los Angeles Sports and Entertainment District Specific Plan. The height districts for the “USC-1A”, “USC-1B”, “USC-2” and “USC-3” Zones are the height districts shown in Section 7 of the University of Southern California University Park Campus Specific Plan. The height districts for the “PVSP” Zone are the Subareas shown in Section 5 of the Ponte Vista at San Pedro Specific Plan. The height districts for the “EC” Zone are the Subareas shown in Section 2 of the Exposition Corridor Transit Neighborhood Plan (Specific Plan). **(Amended by Ord. No. 185,672, Eff. 12/26/19.)**

***Editor’s note:** The ordinance that added Sec. 12.04.06, Ord. No. 184.099, was rescinded by Ord. No. 185,423.

D. Certain portions of the City are also designated as being in one or more of the following districts, by the provision of Article 3 of this chapter: **(Amended by Ord. No. 184,827, Eff. 3/24/17.)**

- “O” Oil Drilling District
- “S” Animal Slaughtering
- “G” Surface Mining District
- “RPD” Residential Planned Development District
- “K” Equinekeeping District
- “CA” Commercial and Artcraft District
- “POD” Pedestrian Oriented District
- “CDO” Community Design Overlay District
- “MU” Mixed Use District
- “FH” Fence Height District
- “SN” Sign District
- “RFA” Residential Floor Area District
- “NSO” Neighborhood Stabilization Overlay District
- “CPIO” Community Plan Implementation Overlay District
- “HS” Hillside Standards Overlay District
- “MPR” Modified Parking Requirement District
- “RIO” River Improvement Overlay District
- “CUGU” Clean Up Green Up Overlay District
- “RG” Rear Detached Garage District
- “HCR” Hillside Construction Regulation District

The “**Zoning Map**” is amended to indicate these districts and the boundaries of each district.

Land classified in an “O” Oil Drilling District, “S” Animal Slaughtering District, “G” Surface Mining District, “RPD” Residential Planned Development District, “K” Equinekeeping District, “CA” Commercial and Artcraft District, “POD” Pedestrian Oriented District, “CDO” Community Design Overlay District, “MU” Mixed Use District, “FH” Fence Height District, “SN” Sign District, “RFA” Residential Floor Area District, “NSO” Neighborhood Stabilization Overlay District, “CPIO” Community Plan Implementation Overlay District, “RIO” River Improvement Overlay District, “CUGU” Clean Up Green Up Overlay District, “RG” Rear Detached Garage District” or “HCR” Hillside Construction Regulation District is also classified in one or more zones, and land classified in the “P” Automobile Parking Zone may also be classified in an “A” or “R” Zone.

These classifications are indicated on the “**Zoning Map**” with a combination of symbols, *e.g.*, **R2-2-O**, **C2-4-S**, **M1-3-G**, **M1-1-P** and **R2-O**, **C2-G**, etc., where height districts have not been established.

E. The boundaries of Redevelopment Project Areas, as geographically defined in Section 12.21.3 and 11.5.14 and as specifically designated on Map A; Enterprise Zones, as defined in Section 12.21.4 and as specifically designated on Maps numbered 48 through 50; and Centers Study Areas, as defined in Section 12.21.5, shall be shown on the “**Zoning Map**”. (Amended by Ord. No. 186,325, Eff. 11/11/19.)

F. In order to provide a practicable method for the development of land, the topography of which creates problems in development, to permit the efficient design and use of building sites and local streets, and to secure compliance with the General Plan in certain hillside or mountainous areas of the City of Los Angeles, certain portions of the city classified in the RA and RE Zones are also designated as being in an “**H**” Hillside or Mountainous Area. The boundaries of said Hillside or Mountainous Areas are shown by the use of the symbol “**H**” in conjunction with the applicable Zone symbols on portions of the “**Zoning Map**.” (Amended by Ord. No. 141,821, Eff. 5/24/71.)

SEC. 12.04.01. VIOLATIONS OF SPECIFIC PLANS.

(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

See Sec. 13B.4.1.E. (General Provisions; Violations of Specific Plans) of Chapter 1A of this Code.

SEC. 12.04.05. “OS” OPEN SPACE ZONE.

(Added by Ord. No. 166,168, Eff. 10/3/90.)

The following regulations shall apply in the “**OS**” Open Space Zone:

A. Purpose. It is the purpose of the “**OS**” Open Space Zone to provide regulations for publicly owned land in order to implement the City’s adopted General Plan, including the recreation, parks and open space designations in the City’s adopted district and community plans, and other relevant elements, including the Open Space, Conservation and Public Recreation Elements. Implementation of the General Plan will serve to protect and preserve natural resources and natural features of the environment; to provide outdoor recreation opportunities and advance the public health and welfare; to enhance environmental quality; to encourage the management of public lands in a manner which protects environmental characteristics; and to encourage the maintenance of open pace uses on all publicly owned park and recreation land, and open space public land which is essentially unimproved.

B. Use. The following regulations hall apply to publicly owned land classified in the “**OS**” Open Space Zone: no building, structure or land shall be used and no building or structure shall be erected, moved onto the site, structurally altered, enlarged or maintained, except for the following uses:

1. The following uses and activities when conducted in accordance with the limitations hereafter specified.

- (a) **Types of Uses.**

- (i) Parks and recreation facilities, including: bicycle trails, equestrian trails, walking trails, nature trails, park land/lawn areas, childrens’ play areas, child care facilities, picnic facilities, and athletic fields (not to exceed 200 seats in park) used for park and recreation purposes. (Amended by Ord. No. 176,545, Eff. 5/2/05.)

- (ii) Natural resource preserves for the managed production of resources, including, but not limited to, forest lands, waterways and watersheds used for commercial fisheries; agricultural lands used for food and plant production; areas containing major mineral deposits (“G” Surface Mining Districts) and other similar uses.

- (iii) Marine and ecological preserves, sanctuaries and habitat protection sites.

- (iv) Sanitary landfill sites which have received certificates of closure in compliance with federal and state regulations.

- (v) Public water supply reservoirs (uncovered) and accessory uses which are incidental to the operation and continued maintenance of such reservoirs.

(vi) Water conservation areas, including percolation basins and flood plain areas.

(b) Limitations: (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

(1) The use may not be located on land which includes a lake, river, or stream or which is designated by the City as an historic or cultural landmark, unless approved as a Class 3 Conditional Use Permit pursuant to Section 12.24 U.19. of this Chapter and Sec. 13B.2.3 (Class 3 Conditional Use Permit) of Chapter 1A of this Code.

(2) Any change of use from a conditional use or deemed to be approved conditional use described in Section 12.24 U.19. of this Chapter to any of the above uses shall require conditional use approval pursuant to Sec. 13B.2.3 (Class 3 Conditional Use Permit) of Chapter 1A of this Code.

2. Conditional uses as allowed pursuant to Section 12.24 U.19. and Section 12.24 W.49. of this Chapter when the location is approved pursuant to Div. 13B.2. (Quasi-Judicial Review) of Chapter 1A of this Code. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

SEC. 12.04.09. “PF” PUBLIC FACILITIES ZONE.

(Added by Ord. No. 166,972, Eff. 6/30/91.)

The following regulations shall apply in the “PF” Public Facilities Zone:

A. Purpose. It is the purpose of the “PF” Public Facilities Zone to provide regulations for the use and development of publicly owned land in order to implement the City’s adopted General Plan, including, the circulation and service systems designations in the City’s adopted district and community plans, and other relevant General Plan elements, including the circulation, public recreation and service systems elements.

B. Use. The following regulations shall apply to publicly owned land classified in the “PF” Public Facilities Zone. No building, structure or land shall be used and no building or structure shall be erected, moved onto a site, structurally altered, enlarged or maintained, except for the following uses:

1. Farming and nurseries, under power transmission rights-of-way. **(Amended by Ord. No. 181,188, Eff. 7/18/10.)**

2. Public parking facilities located under freeway rights-of-way.

3. Fire stations and police stations.

4. Government buildings, structures, offices and service facilities including maintenance yards, provided, however, that those uses identified in Section 12.24 U.21. shall require approval of a Class 3 Conditional Use Permit pursuant to Sec. 13B.2.3 (Class 3 Conditional Use Permit) of Chapter 1A of this Code. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

5. Public libraries not located inside public parks.

6. Post offices and related facilities.

7. Public health facilities, including clinics and hospitals.

8. Public elementary and secondary schools.

9. Any joint public and private development uses permitted in the most restrictive adjoining zones if approved by the Director utilizing the procedures described in Sec. 13B.2.4. (Project Review) of Chapter 1A of this Code. The phrase “adjoining zones” refers to the zones on properties abutting, across the street or alley from or having a common corner with the subject property. If there are two or more different adjoining zones, then only the uses permitted by the most restrictive zone shall be permitted. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

10. Conditional uses as allowed pursuant to Section 12.24 U.21. and Section 12.24 W.49. of this Chapter when the location is approved pursuant to Div. 13B.2. (Quasi-Judicial Review) of Chapter 1A of this Code. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

11. Any joint public and private development that is a Qualified Permanent Supportive Housing Project developed pursuant to Section 14.00 A.13. of this Code, utilizing the uses and standards permitted by the least restrictive adjoining zone. The phrase “adjoining zone” refers to the zone on properties abutting, across the street or alley from, or having a common corner with, the subject property. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

SEC. 12.05. “A1” AGRICULTURE ZONE.

The following regulations shall apply in the “A1” Agriculture Zone.

A. Use. No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged or maintained, except for the following uses, and when a “Supplemental Use District” is created by the provisions of Article 3 of this chapter, for such uses as may be permitted thereon.

1. One-Family dwellings.
2. **(None).**
3. **(None).**
4. Parks, playgrounds or community centers, owned and operated by the government agency.
5. Golf courses, except driving tees or ranges, miniature and pitch and putt courses having an average fairway length per hole of less than 125 yards, courses illuminated for nighttime play and similar uses operated for commercial purposes. **(Amended by Ord. No. 123,664, Eff. 3/10/63.)**
6. Farming, nurseries, aviaries, and apiaries. **(Amended by Ord. No. 181,188, Eff. 7/18/10.)**
7. **(Amended by Ord. No. 158,126, Eff. 8/22/83.)** The keeping of equines, bovines, goats or other domestic livestock, and not to exceed five swine, and the keeping of poultry, fowl, rabbits, fish or frogs, chinchillas and other small animals in conjunction with the residential use of the lot, provided:
 - (a) That these activities are not for commercial purposes, except that a maximum of two currently licensed equines not owned by the resident of the involved property may be boarded (for which monetary compensation may be paid) or kept on that property as an accessory use, and except that chickens, rabbits or chinchillas may be kept for commercial purposes on lots of five acres or more. **(Amended by Ord. No. 161,352, Eff. 7/20/86.)**
 - (b) The keeping of equines, bovines, goats or other domestic livestock shall be permitted only on lots having an area of 17,500 square feet or more. Where equines and/or bovines are being kept, the number kept shall not exceed one equine or bovine for each 4,000 square feet of lot area. **(Amended by Ord. No. 159,341, Eff. 10/11/84.)**
8. **(None).**
9. Any other similar uses or enterprises customarily carried on in the field of general agriculture and not obnoxious or detrimental to the public welfare.
10. Conditional uses enumerated in Sec. 12.24 of this Chapter when the location is approved pursuant to the provisions of Div. 13B.2. (Quasi-Judicial Review) of Chapter 1A of this Code. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**
11. Accessory buildings including a private garage, accessory living quarters, servant’s quarters, recreation room, greenhouse, lathhouse, stable, barn, corral, pen, coop, building or room for packing products raised on the premises or other similar structure. Accessory living quarters, servant’s quarters, recreation room and a private garage, or any combination of such uses may be included in one building not exceeding two stories in height. **(Amended by Ord. No. 122,543, Eff. 9/2/62.)**

For location of accessory buildings, refer to Sec. 12.21 C. and Sec. 12.22 C.
12. Accessory uses. **(Amended by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**
13. One stand for the display and sale of only those products produced upon the same premises, provided that the plan for the construction of such stand is approved by the Department of Building and Safety; that it does not exceed an area of two hundred (200) square feet; and that it is located not nearer than ten (10) feet to any street or highway.
14. Name plates and signs as provided for in Sec. 12.21 A.7.
15. **(Deleted by Ord. No. 171,687, Eff. 8/19/97.)**
16. **Home Occupations**, subject to all of the following conditions and standards: **(Added by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**
 - (a) **Conditions and Standards.**
 - (1) No changes are made which alter the residential character or appearance of the dwelling unit or property in any manner which precludes its residential use. Activities associated with the home occupation

may not be visible from the outside of the dwelling unit, except for truck gardening. **(Amended by Ord. No. 181,188, Eff. 7/18/10.)**

(2) Notwithstanding Section 12.21 A.7. of this Code, signs and window or outside displays in connection with the home occupation are prohibited.

(3) The use shall be conducted within the main dwelling unit, except for truck gardening, and only by persons residing within the dwelling unit. However, no more than one person not residing on the premises may be employed to work on the premises as part of all of the home occupations. **(Amended by Ord. No. 181,188, Eff. 7/18/10.)**

(4) Parking provided for the building must continue to be maintained pursuant to Section 12.21 A.4.(m) of this Code.

(5) Visitors' parked cars shall not displace or impede the use of required parking spaces.

(6) The home occupation shall not generate greater vehicular or pedestrian traffic than is normal for the district in which the home occupation is located.

(7) The use causes no public nuisance or disruption to the residential character of the neighborhood.

(8) No more than one client visit or one client vehicle per hour shall be permitted, and only from 8:00 a.m. to 8:00 p.m. for all of the home occupations. **(Amended by Ord. No. 181,188, Eff. 7/18/10.)**

(9) The home occupation shall not involve the use of commercial vehicles for delivery of materials to or from the premises other than a vehicle not to exceed one ton capacity, owned by the operator of the home occupation. There shall be no parking or storing of commercial vehicles on the site or on public streets in connection with the home occupation. As used herein, commercial vehicles are as defined in the California Vehicle Code and, in addition, shall include construction equipment or any other mobile paraphernalia used in connection with such use. No person shall store equipment including, but not limited to, trailers or trucks in excess of one ton or wheeled construction equipment on property zoned for residential purposes.

(10) Deliveries and pickups are limited to two per day for all of the home occupations carried on in the dwelling, and only to services which normally make deliveries to or pickups from households in residential areas.

(11) No material or mechanized equipment is utilized which is not associated with normal residential use.

(12) Incidental storage related to the home occupations may be located in the dwelling unit, but shall not be located in any open areas, covered patios or carports. However, an attached or detached garage, provided the required covered parking spaces are maintained, or a detached, fully enclosed accessory building may be used for incidental storage, but such storage area shall not exceed 400 square feet. **(Amended by Ord. No. 171,696, Eff. 9/27/97.)**

(13) Any advertising for the home occupation does not contain the address of the dwelling unit.

(14) No excessive noise in violation of the provisions of Sections 111.00, 112.00 and 114.00 of this Code is caused by the use, nor any excessive light, dust, fumes, vibration or electrical interference beyond that normally expected for a residential use.

(15) No "**extremely hazardous substances**," as listed in Section 355 (Appendix A) of Title 40 of the Code of Federal Regulations, are used, sold or stored on the site; and no "**hazardous materials**," as listed in Article 9, Title 22 of the California Health and Safety Code, are utilized except those associated with normal household use.

(16) No space or equipment used in the home occupation is rented out to other parties not residing on the premises.

(17) Any "**industrial home work**" (as defined by the California Labor Code) performed for an employer conforms to the provisions of Sections 2650 et seq. of the California Labor Code.

(18) The home occupation does not include any uses regulated under Section 12.24 or 12.27 of this Code.

(19) No sales or exchange of products, processing, manufacturing, display or servicing of any product is conducted on the premises, except for handicrafts, or intellectual or artistic products, or direct sales, or sales where the orders have been previously made by telephone, at a prior meeting or a sales party, and in

accordance with the other standards of operation. Nothing in this section shall be construed as to permit other retail or wholesale sales in residential zones. Nor shall anything in this section be construed as allowing any type of on- site sales or distribution in connection with truck gardening. **(Amended by Ord. No. 181,188, Eff. 7/18/10.)**

(20) A person wishing to conduct a home occupation must obtain a City business license, if a license is required to perform the occupation, from the Office of Finance. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

(21) **(Deleted by Ord. No. 172,170, Eff. 9/27/98.)**

Monies collected from registration fees and from any fines imposed for violations of these provisions shall be deposited in the Home Occupation Trust Fund established pursuant to Section 5.486 of the Los Angeles Administrative Code. The money in this account shall be used to offset the costs by the Department of Building and Safety and the City Clerk's Office for administering the provisions of the home occupation ordinance.

(b) **Prohibited Uses.** Any use which disrupts, and is inconsistent with, the residential character of the neighborhood is prohibited. The following home occupations, including but not limited to other similar uses, and uses as determined by the Zoning Administrator are prohibited:

Adult entertainment

Ambulance service

Animal training

Automotive repair, painting, body/fender work, upholstery, detailing, washing, including motorcycles, trucks, trailers and boats.

Beautician or barber

Body piercing

Dentist, except as a secondary office which is not used for the general practice of dentistry, but may be used for consultation and emergency treatment as an adjunct to a principal office located elsewhere.

Funeral chapel or home

Firearms manufacturing or sales

Garment manufacturing

Gunsmith

Massage therapist, unless the therapist has procured a massage technician's license and a massage business license, as needed, from the Los Angeles Police Department.

Medical physician (non- psychiatric), except as a secondary office which is not used for the general practice of medicine, but may be used for consultation and emergency treatment as an adjunct to a principal office located elsewhere.

Photography lab, other than for occupant's own use.

Recording/motion picture/video production studios, except for editing of pre-recorded material.

Restaurant

Retail sales

Tattoo studio

Tow truck service

Upholstery

Veterinary services and other uses which entail the harboring, training, care, breeding, raising or grooming of dogs, cats, birds, or other domestic animals on the premises, except those which are permitted

by this article (other than those owned by the resident)

Welding or machine shop

Yoga/spa retreat center

(c) **Authority of The Zoning Administrator.** Notwithstanding any other provisions of this Code, the Zoning Administrator may require the discontinuance of a home occupation if the Zoning Administrator finds that as operated or maintained there has been a violation of any of the conditions or standards set forth in this section pursuant to Sec. 13B.6.2. (Nuisance Abatement/Revocation) of Chapter 1A of this Code. The Zoning Administrator shall have the authority to prescribe additional conditions and standards of operation for any category of home occupation that may require additional conditions. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

(d) **Administrative Fines.** An administrative fine of \$250.00 may be collected by the Department of Building and Safety for any violation of the conditions and standards of Section 12.05 A.16.(a) and administrative fines of \$500.00 may be collected for repeated violations pursuant to the following provisions. These administrative fine provisions are in addition to any other fines and penalties authorized by law. It shall be unlawful to conduct any home occupation as set forth in Section 12.05 A.16.(b) of this Code.

(1) **Definitions.** As used in this subparagraph the term “Superintendent” means the Superintendent of the Department of Building and Safety. The term “Department” means the Department of Building and Safety.

(2) **Order to Comply.** For any home occupation found to be in violation of Section 12.05 A.16.(a) of this Code, the Superintendent shall send an Order to Comply to the operator of the home occupation use. The Order to Comply shall clearly state the following:

(i) The violation must be corrected by a Compliance Date specified in the Order, which date shall be no more than 15 days from the date the Order is mailed.

(ii) Failure to correct the violation on or before the Compliance Date may result in the imposition of an administrative fine in the amount of \$250.00.

(3) **Reinspection.** The Superintendent shall reinspect a property for which an Order to Comply was issued pursuant to this paragraph subsequent to the Compliance Date.

(4) **Failure to Correct Violation.** If any violation specified in the Order to Comply is not corrected prior to the Compliance Date as specified in the Order to Comply, an administrative fine of \$250.00 may be collected by the Department.

If the Department determines that a fine is due, then it shall notify the person cited by United States mail in a sealed envelope, with postage paid. If the person cited is the owner of the property, the notice shall be addressed to the last known address of the owner as that address appears in the last equalized assessment roll. If the person to be cited is a tenant, the notice shall be addressed to the location where the home occupation is being conducted. Service of the notice shall be deemed to have been completed at the time of deposit with the United States Postal Service.

The person cited shall remit the fine to the Department within 30 days after the date of mailing of the notice. If the person cited fails to do so, then the Department, by sending a second notification by certified mail, may demand payment of the fine from the person cited and may prohibit the issuance of any building permit, license or approval to the cited persons until such fees are paid.

(5) **Repeated Violations.** Notwithstanding any provision of this subsection to the contrary, if an Order to Comply is issued for a violation of Section 12.05 A.16., and after compliance with it a subsequent Order to Comply is issued for a violation of the same section of this Code occurring within one year of the date of the initial Order, an administrative fine of \$500.00 may be collected by the Department.

(6) **Discontinuance of Use. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)** Three violations of any condition set forth in Section 12.05 A.16.(a) of this Code which has resulted in an Order to Comply being issued under Paragraph (d)(2) may result in the imposition of proceedings to discontinue the home occupation use. The Director shall have jurisdiction to discontinue a home occupation use by giving notice to the record owner of the home occupation by issuing A Notice of Intention to Discontinue the Home Occupation (Notice). The Notice shall provide an opportunity for the home occupation user to either

(a) submit information to the Director by a date certain to show cause why the home occupation should not be discontinued or

(b) appear at a time and place before the Director pursuant to the procedures prescribed in Section 12.24 of the Code to show cause why the use should not be discontinued.

Upon the expiration of the time periods set forth in the Notice, the Director may discontinue the home occupation use.

(e) **Truck Gardening.** Truck gardening shall be subject to the provisions of this subdivision if the main use of the lot is a dwelling. **(Added by Ord. No. 181,188, Eff. 7/18/10.)**

B. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi-Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection A. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

C. Area. No building or structure nor the enlargement of any building or structure shall be hereafter erected or maintained unless the following yards and lot areas are provided and maintained in connection with such building, structure or enlargement.

1. **Front Yard.** There shall be a front yard of not less than twenty (20) percent of the depth of the lot, but such front yard need not exceed twenty-five (25) feet.

2. **Side Yards.** There shall be a side yard on each side of a main building of not less than ten (10) percent of the width of the lot, but such side yard need not exceed twenty-five (25) feet and shall not be less than three (3) feet in width.

3. **Rear Yard.** There shall be a rear yard of not less than twenty-five (25) percent of the depth of the lot, but such rear yard need not exceed twenty-five (25) feet.

4. **Lot Area. (Amended by Ord. No. 150,624, Eff. 4/13/78.)** Every lot farm or other parcel of land shall have a minimum average width of 300 feet and a minimum area of five acres for all uses permitted in this section, except that:

(a) The lot area for goat or cattle dairies shall not be less than 20 acres.

(b) The lot area per dwelling unit shall be not less than two and one-half acres, but in no case shall more than two dwellings be permitted on any one lot.

In no case shall a farm or other parcel of land be reduced to less than five acres. Provided, that where a lot has less width or less area than herein required and was held under separate ownership or was of record at the time this article became effective, such lot may be occupied by any use permitted in this section, except for those uses as set forth in Subdivision 5. of Subsection A. of this section.

Exceptions to area regulations are provided for in Section 12.22 C.

SEC. 12.06. "A2" AGRICULTURAL ZONE.

The following regulations apply in the "A2" Agricultural Zone:

A. Use. No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged, or maintained, except for the following uses, and, when a "Supplemental Use District" is created by the provisions of Article 3 of this chapter, for such uses as may be permitted therein.

1. Any use permitted in the "A1" Zone, provided that all such uses, except those specified in Paragraph 2. below, shall conform to all the regulations of said Zone.

2. Any of the following uses, which need conform only to the regulations of this section:

(a) One-family dwellings.

(b) **(None)**

(c) **(None)**

(d) Parks, playgrounds or community centers, owned and operated by a governmental agency.

(e) Golf courses, except driving tees or ranges, miniature and pitch and putt courses having an average fairway length per hole of less than 125 yards, courses illuminated for nighttime play and similar uses operated for commercial purposes. **(Amended by Ord. No. 123,664, Eff. 3/10/63.)**

(f) Farming, nurseries, aviaries, and apiaries. **(Amended by Ord. No. 181,188, Eff. 7/18/10.)**

(g) **(Amended by Ord. No. 158,156, Eff. 8/22/83.)** The keeping of equines, bovines, goats or other domestic livestock (other than swine), poultry, fowl, rabbits, fish or frogs, chinchillas and other small animals, in conjunction with the residential use of the lot provided:

(1) That these activities are not for commercial purposes, except that a maximum of two currently licensed equines not owned by the resident of the involved property may be boarded (for which monetary compensation may be paid) or kept on the property as an accessory use, and except that chickens, rabbits and chinchillas may be kept for commercial purposes on lots of five acres or more. **(Amended by Ord. No. 161,352, Eff. 7/20/86.)**

(2) The keeping of equines, bovines, goats or other domestic livestock (other than swine) shall be permitted only on lots having an area of 17,500 square feet or more. Where equines and/or bovines are being kept, the number kept shall not exceed one equine or bovine for each 4,000 square feet of lot area. **(Amended by Ord. No. 159,341, Eff. 10/11/84.)**

(h) **(Amended by Ord. No. 122,543, Eff. 9/2/62.)** Accessory buildings, including a private garage, accessory living quarters, servant's quarters, recreation room, greenhouse, lathhouse, stable, barn, corral, pen, coop, building or room for packing products raised on the premises or other similar structure. Accessory living quarters, servant's quarters, recreation room and private garage, or any combination of such uses may be included in one building not exceeding two stories in height.

For location of accessory buildings, refer to Sec. 12.21 C. and Sec. 12.22 C.

(i) Accessory uses and home occupations, subject to the conditions specified in Section 12.05 A.16. of this Code. **(Amended by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**

(j) Name plates and signs as provided for in Sec. 12.21 A.7.

B. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi-Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection A. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

C. Area. No building or structure nor the enlargement of any building or structure shall be hereafter erected or maintained unless the following yards and lot areas are provided and maintained in connection with such building, structure or enlargement:

1. **Yards – Front,** side and rear, same as required in “A1” Zone — Sec. 12.05 C.

2. **Lot Area (Amended by Ord. No. 123,664, Eff. 3/10/63.)** Every lot, farm or other parcel of land shall have a minimum average width of 150 feet and a minimum area of two acres for all uses permitted in this section, except as otherwise required in Subsection A. of this section. The lot area per dwelling unit shall not be less than one acre, and in no case shall more than two dwellings be permitted on any one lot.

In no case shall a farm or other parcel of land be reduced to less than two acres. Provided, that where a lot has less width or less area than herein required and was held under separate ownership or was of record at the time this article became effective, such lot may be occupied by any use permitted in this section, except for those uses requiring five or 20 acres, as set forth in Subsection A. of this section.

Exceptions to area regulations are provided for in Section 12.22 C.

SEC. 12.07. “RA” SUBURBAN ZONE.

The following regulations shall apply to the “RA” Suburban Zone:

A. Use. No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged or maintained except for the following uses, and when a “Supplemental Use District” is created by the provisions of Article 3 of this chapter, for such uses as may be permitted therein:

1. One-family dwellings.
2. **(Deleted by Ord. No. 171,687, Eff. 8/19/97.)**
3. **(None)**
4. Parks, playgrounds or community centers, owned and operated by a government agency.
5. Golf courses, except driving tees or ranges, miniature and pitch and putt courses having an average fairway length per hole of less than 125 yards, courses illuminated for nighttime play and similar uses operated for commercial purposes. **(Amended by Ord. No. 123,664, Eff. 3/10/63.)**
6. Truck gardening and nurseries. **(Amended by Ord. No. 181,188, Eff. 7/18/10.)**
7. **(Amended by Ord. No. 159,341, Eff. 10/11/84.)** The keeping of equines, bovines, goats or other domestic livestock other than swine), poultry, fowl, rabbits, chinchillas and other small animals, in conjunction with the residential use of the lot, provided:
 - (a) That these activities are not for commercial purposes, except that a maximum of two currently licensed equines not owned by the resident of the involved property may be boarded (for which monetary compensation may be paid) or kept on that property as an accessory use. **(Amended by Ord. No. 161,352, Eff. 7/20/86.)**
 - (b) The keeping of equines, bovines, goats or other domestic livestock (other than swine) shall be permitted only on lots having an area of 17,500 square feet or more; provided, however, that such keeping of domestic livestock shall also be permitted on lots which were of record as of November 19, 1966 and qualified for the minimum lot area requirement of 17,500 square feet by including the area of one-half of the abutting streets. Where equines and/or bovines are being kept, the number shall not exceed one equine or bovine for each 4,000 square feet of lot area.
8. Two-family dwellings, on lots having a side lot line adjoining a lot in a commercial or industrial Zone, provided that: **(Amended by Ord. No. 126,309, Eff. 2/13/64.)**
 - (a) The lot on which the dwelling is located does not extend more than 100 feet from the boundary of the less restricted Zone which it adjoins;
 - (b) There is a minimum lot area of 20,000 square feet for each two family dwelling.
9. **(None).**
10. Conditional uses enumerated in Sec. 12.24 of this Chapter when the location is approved pursuant to the provisions of Div. 13B.2. (Quasi-Judicial Review) of Chapter 1A of this Code. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**
11. Accessory buildings, including private garages, accessory living quarters, servants quarters, recreation rooms, greenhouses, bathhouses, or private stables, provided that:
 - (a) An accessory living quarters, servants quarters, recreation room or a private garage or any combination of said uses may be included in one building not exceeding two stories in height.
 - (b) No stable is located or maintained on a lot having an area of less than 17,500 square feet and its capacity does not exceed one equine for each 4,000 square feet of lot area. **(Amended by Ord. No. 157,144, Eff. 11/22/82.)**
 - (c) Automobile parking space is required in connection with permitted uses and additional space may be provided in accordance with the provisions of Section 12.21 A.

For the location of accessory buildings, refer to Sec. 12.21 C. and Sec. 12.22 C. **(Amended by Ord. No. 107,884, Eff. 9/23/56.)**
12. Accessory uses and home occupations, subject to the conditions specified in Section 12.05 A.16. of this Code. **(Amended by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**
13. Backyard beekeeping, as an accessory use, provided that: **(Added by Ord. No. 183,920, Eff. 12/6/15.)**
 - (a) The person who is the owner of or in possession of an apiary is registered as a beekeeper with the County of Los Angeles Agricultural Commission.

- (b) The number of hives is limited to one for every 2,500 square feet of lot area.
- (c) Hives are not located in the required front yard of a lot, including through lots.
- (d) Hives are located a minimum of five feet from the front, side, and rear lot lines and a minimum of 20 feet from public rights-of-way or private streets.
- (e) Hive entrances face away from, or parallel to, the nearest lot line adjacent to another lot.
- (f) A six-foot wall, fence, or hedge is located between hives and adjacent lots, or hives are placed at a minimum of eight feet above ground level of the adjacent lot. The purpose of this provision is to provide a solid barrier to help direct bees over six feet above ground level when departing the lot to minimize interactions between bees and individuals in the vicinity.
- (g) A water source for bees shall be provided at all times on the property where the bees are kept to discourage bee visitation at swimming pools, hose bibs and other water sources on adjacent public or surrounding property.

14. Names, plates and signs as provided for in Sec. 12.21 A.7.

B. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi-Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection A. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

C. Area (Development Standards). No building or structure nor the enlargement of any building or structure shall be erected or maintained unless the following yards, lot areas, and floor area limitations are provided and maintained in connection with the building, structure, or enlargement: **(Amended by Ord. No. 179,883, Eff. 6/29/08.)**

1. **Front Yard.** There shall be a front yard of not less than 20% of the depth of the lot, but such front yard need not exceed 25 feet, provided, however, that where all of the developed lots which have front yards that vary in depth by not more than ten feet comprise 40% or more of the frontage, the minimum front yard depth shall be the average depth of the front yards of such lots. Where there are two or more possible combinations of developed lots comprising 40% or more of the frontage, each of which has front yards that vary in depth of not more than ten feet, the minimum front yard depth shall be the average depth of the front yards of that combination which has the shallowest average depth. In determining the required front yard, buildings located on key lots, entirely on the rear half of lots, or on lots in the "C" or "M" Zones, shall not be counted, provided, however, that nothing contained in this paragraph shall be deemed to require front yards which exceed 40 feet in depth. **(Amended by Ord. No. 139,155, Eff. 10/16/69.)**

On key lots the minimum front yard may be the average of the required front yard for the adjoining interior lot and the required side yard along the street side of a reversed corner lot, but such minimum front yard may apply for a distance of not more than 100 feet from the rear lot line of the reversed corner lot, beyond which point the front line specified in the above paragraph shall apply. Where existing buildings on either or both of said adjoining lots are located nearer to the front or side lot lines than the yards required by this article, the yards established by such existing buildings may be used in computing the required front yard for a key lot.

2. **Side Yards. (Amended by Ord. No. 169,775, Eff. 6/2/94.)**

(a) There shall be a side yard on each side of a main building of not less than ten feet, except that where the lot is less than 70 feet in width, and was of record prior to July 1, 1966, the side yard may be reduced to ten percent of the width of the lot, but in no event less than three feet. Provided, however, that where a side yard of less than ten feet in width is permitted pursuant to the foregoing provisions, and the building erected on the lot is three or more stories in height, one foot shall be added to such side yard.

(b) In lieu of the additional one foot side yard for buildings of three or more stories specified above, for new construction of a main building or ground floor addition to the main building on a lot not located in a Hillside Area or a Coastal Zone, one foot shall be added to each required side yard for each increment of ten feet or fraction thereof of height above the first 18 feet of height of the main building.

(c) Side yard requirements in specific plans, Historic Overlay Zones or in subdivision approvals shall take precedence over requirements in this subsection. This subsection shall apply in these areas, however, where there are no side yard requirements provided in the specific plan, Historic Overlay Zone or in the subdivision approval.

3. **Rear Yard.** There shall be a rear yard of not less than twenty-five (25) percent of the depth of the lot, but such rear yard need not exceed twenty-five (25) feet.

4. **Lot Area.** Every lot shall have a minimum width of 70 feet and a minimum area of 17,500 square feet. The minimum lot area per dwelling unit shall be 17,500 square feet except for a two-family dwelling on lots having a side lot adjoining a lot in a commercial or industrial Zone as provided for in Subsection A. of this section. **(Amended by Ord No. 133,218, Eff. 11/19/66.)**

Provided, however, that on property located within the RA Zone and also within the “H” Hillside or Mountainous Area for which a Master Plan including dwelling unit densities has been adopted by the Council, the number of lots may be limited and the maximum areas may be increased so that the number of dwelling units permitted will not substantially exceed the densities shown on the Plan. **(Amended by Ord. No. 129,693, Eff. 5/2/65.)**

There may be lots with less than the minimum width and area, as provided by Section 17.05 H. of this Code, and there may be a single dwelling on each lot if the lot is shown with a separate letter or lot number on a recorded Subdivision Tract Map or Parcel Map. **(Amended by Ord. No. 130,871, Eff. 9/20/65.)**

Exceptions to area regulations are provided for in Sec. 12.22 C. **(Amended by Ord. No. 129,673, Eff. 5/2/65.)**

5. **Maximum Residential Floor Area. (Amended by Ord. No. 184,802, Eff. 3/17/17.)** For a lot located in a Hillside Area or Coastal Zone, the maximum Residential Floor Area shall comply with Section 12.21.1 A.1. of this Code.

For all other lots, the maximum Residential Floor Area contained in all buildings and accessory buildings shall not exceed 25 percent of the lot area when the lot is less than 20,000 square feet. For lots 20,000 square feet or greater, the maximum Residential Floor Area shall not exceed 20 percent of the lot area, or 5,000 square feet, whichever is greater.

An additional 20 percent of the maximum Residential Floor Area for that lot shall be allowed if any of the methods listed below are utilized. Only one 20 percent bonus per property is allowed.

(a) The total Residential Floor Area of each story other than the base floor in a multi-story building does not exceed 75 percent of the base floor area; or

(b) The cumulative length of the exterior walls facing the front lot line, equal to a minimum of 25 percent of the building width, shall be stepped-back a distance of at least 20 percent of the building depth from a plane parallel to the lot width established at the point of the building closest to the front lot line. When the front lot line is not straight, a line connecting the points where the side lot lines and the front lot line intersect shall be used. When through-lots have two front yards, the step-back shall be provided along both front lot lines.

For the purposes of this provision, all exterior walls that intersect a plane parallel to the front lot line at 45 degrees or less shall be considered to be facing the front lot line. The building width shall be the greatest distance between the exterior walls of the building measured parallel to the lot width. The building depth shall be the greatest distance between the exterior walls of the building measured parallel to the lot depth.

6. **Verification of Existing Residential Floor Area. (Amended by Ord. No. 184,802, Eff. 3/17/17.)** For additions with cumulative Residential Floor Area of less than 1,000 square feet constructed after January 1, 2008, or remodels of buildings built prior to January 1, 2008, the existing Residential Floor Area shall be determined based on the building records or the building square footage shown on the most recent Los Angeles County Tax Assessor’s records at the time the plans are submitted to the Department of Building and Safety and a plan check fee is paid. Except that Residential Floor Area may be calculated as defined in Section 12.03 of this Code when a complete set of fully dimensioned plans with area calculations of all the structures on the lot, prepared by a licensed architect or engineer, is submitted by the applicant.

Any work that does not qualify as a remodel, as defined in the paragraph below, or additions that are 1,000 square feet or larger shall require a complete set of fully dimensioned plans with area calculations of all the structures on the lot prepared by a licensed architect or engineer.

For the purposes of implementing this subdivision, a remodel shall mean the alteration of an existing building or structure provided that at least 50 percent of the perimeter length of the contiguous exterior walls and 50 percent of the roof are retained.

SEC. 12.07.01. “RE” RESIDENTIAL ESTATE ZONE.

The following regulations shall apply to the “RE” Residential Estate Zone:

A. Use. No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged, or maintained except for the following uses, and when a “**Supplemental Use District**” is created by the provisions of Article 3 of this chapter, for such uses as may be permitted therein:

1. One-family dwellings.

2. Parks, playgrounds or community centers, owned and operated by a government agency.
3. **(Amended by Ord. No. 181,188, Eff. 7/18/10.)** Truck gardening; the keeping of equines, poultry, rabbits and chinchillas in conjunction with the residential use of the lot, provided that:
 - (a) Such animal keeping is not for commercial purposes.
 - (b) The keeping of equines shall be permitted only on lots having an area of 17,500 square feet or more. Where equines are being kept, the number of such animals being kept shall not exceed one for each 4,000 square feet of lot area.
4. Two-family dwellings on lots having a side lot adjoining a lot in a commercial or industrial Zone, provided that: **(Amended by Ord. No. 126,309, Eff. 2/13/64.)**
 - (a) The lot on which the dwelling is located does not extend more than 85 feet from the boundary of the less restricted Zone which it adjoins;
 - (b) The area of the lot on which the dwelling is located is not less than the minimum specified in Subdivision 4. of Subsection C. of this section. **(Amended by Ord. No. 127,777, Eff. 8/1/64.)**
5. **(Deleted by Ord. No. 171,687, Eff. 8/19/97.)**
6. Accessory buildings, including private garages, accessory living quarters, servant's quarters, recreation rooms, or private stables provided that:
 - (a) No accessory living quarters or servant's quarters are located or maintained on a lot having an area of less than 20,000 square feet.
 - (b) No stable is located or maintained on a lot having an area of less than 20,000 square feet and its capacity does not exceed one equine for each 5,000 square feet of lot area. **(Amended by Ord. No. 157,144, Eff. 11/22/82.)**
 - (c) An accessory living quarters, servant's quarters, recreation room or private garage or any combination of said uses may be included in one building, not exceeding two stories in height. **(Amended by Ord. No. 108,661, Eff. 2/11/57.)**
 - (d) Automobile parking space is required in connection with permitted uses and additional spaces may be provided in accordance with the provisions of Section 12.21 A.

For location of accessory buildings, refer to Sec. 12.21 C. and Sec. 12.22 C. **(Amended by Ord. No. 107,884, Eff. 9/23/56.)**
7. Conditional uses enumerated in Sec. 12.24 when the location is approved pursuant to the provisions of said section. **(Amended by Ord. No. 117,450, Eff. 12/18/60.)**
8. Accessory uses and home occupations, subject to the conditions specified in Section 12.05 A.16. of this Code. **(Amended by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**
9. Name plates and signs as provided for in Section 12.21 A. of this Code. **(Added by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**
10. Backyard beekeeping, as an accessory use, provided that the activity complies with the performance standards established in Section 12.07 A.13. of this Code. **(Added by Ord. No. 183,920, Eff. 12/6/15.)**

B. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi-Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection A. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

C. Area (Development Standards). No building or structure nor the enlargement of any building or structure shall be erected or maintained unless the following yards, lot areas, and floor area limitations are provided and maintained in connection with the building, structure, or enlargement: **(Amended by Ord. No. 179,883, Eff. 6/29/08.)**

1. **Front Yard.** There shall be a front yard of not less than 20% of the depth of the lot, but such front yard need not exceed 25 feet; provided, however, that where all of the developed lots which have front yards that vary in depth by not more than ten feet comprise 40% or more of the frontage, the minimum front yard depth shall be the average depth of the front yards of each such lot. Where there are two or more possible combinations of developed lots comprising 40% or more of the frontage, each of which has front yards that vary in depth by not more than ten feet, the minimum front yard depth shall be the average depth of the front yards of that combination which has the shallowest average depth. In determining the required front yard buildings located on key lots, entirely on the rear half of lots, or on lots in the "C" or "M" Zones, shall not be counted, provided, however, that nothing contained in this paragraph shall be deemed to require front yards which exceed 40 feet in depth. (Amended by Ord. No. 139,155, Eff. 10/16/69.)

On key lots the minimum front yard may be the average of the required front yard for the adjoining interior lot and the required side yard along the street side of a reversed corner lot, but such minimum front yard may apply for a distance of not more than 85 feet from the rear lot line of the reversed corner lot, beyond which point the front yard specified in the above paragraph shall apply. Where existing buildings on either or both of said adjoining lots are located nearer to the front or side lot lines than the yard required by this article, the yards established by such existing buildings may be used in computing the required front yard for a key lot.

2. **Side Yards. (Amended by Ord. No. 169,775, Eff. 6/2/94.)**

(a) **RE9, RE11, RE15 Zones.** On a lot in the RE9 or RE11 Zone, there shall be a side yard on each side of a main building of not less than five feet, except that, where the lot is less than 50 feet in width, the side yard may be reduced to ten percent of the width of the lot, but in no event less than three feet. On a lot designated RE15, there shall be a side yard on each side of a main building of not less than ten percent of the lot width, but in no event less than five feet, however, the side yard need not exceed ten feet.

Notwithstanding the above paragraph, on a lot in the RE9 or RE11 Zone which is not located in a Hillside Area or Coastal Zone, there shall be a side yard on each side of a main building of not less than seven feet, except that where the lot is less than 70 feet in width, the side yard may be reduced to ten percent of the width of the lot, but in no event to less than three feet.

(b) **RE20, and RE40 Zones.** On a lot in the RE20 or RE40 Zone, there shall be a side yard of not less than ten feet on each side of a main building.

(c) For a building more than two- stories in height, one-foot shall be added to the width of each required side yard for each additional story above the second story.

In lieu of the additional side yard requirement in the above paragraph, for new construction of a main building or a ground floor addition to the main building on a lot in the RE9, RE11, RE15, or RE20 Zone which is not located in a Hillside Area or Coastal Zone, if the main building exceeds 18 feet in height, then one-foot shall be added to the width of each required side yard for each increment of ten feet or fraction thereof above the first 18 feet of height of the main building.

(d) Side yard requirements in specific plans, Historic Preservation Overlay Zones or in subdivision approvals shall take precedence over this subdivision. This subdivision shall apply in these areas, however, when there are no such side yard requirements.

3. **Rear Yard.** There shall be a rear yard of not less than 25% of the depth of the lot, but such rear yard need not exceed 25 feet.

4. **Lot Area.** Every lot classified in the RE Zone is, according to the lot area requirements, further designated as RE9, RE11, RE15, RE20 or RE40. Where the Zoning Map shows only the designation RE, the land shall be considered as being classified as RE11, and the Zoning Map, heretofore made a part of Section 12.04 of this Code, is hereby amended to indicate said designation without additional procedure. (Amended by Ord. No. 137,892, Eff. 2/7/69.)

Every lot shall have a minimum width and area as follows:

[LOT SIZE "RE" ZONE]
(Amended by Ord No. 137,892, Eff. 2/7/69.)

[Zone]	Minimum Lot Width	Minimum Lot Area
RE9	65 feet	9,000 square feet
RE11	70 feet	11,000 square feet
RE15	80 feet	15,000 square feet
RE20	80 feet	20,000 square feet
RE40	80 feet	40,000 square feet

The minimum lot area per dwelling unit shall be the same as the minimum lot area, except for two-family dwellings on lots having a side lot line adjoining a lot in a commercial or industrial Zone as provided for in Subsection A. of this section.

Provided, however, that on the property located within the RE Zone and also within an “H” Hillside or Mountainous Area for which a General Plan including dwelling unit densities has been adopted by the Council, the number of lots may be limited and the minimum area may be increased so that the number of dwelling units permitted will not substantially exceed the densities shown on the plan. **(Amended by Ord. No. 141,821, Eff. 5/24/71.)**

There may be lots with less than the minimum width and area, as provided by Section 17.05 H. of this Code, and there may be a single- family dwelling on each such lot if the lot is shown with a separate letter or lot number on a recorded Subdivision Tract Map or a Parcel Map. **(Amended by Ord. No. 130,871, Eff. 9/20/65.)**

Exceptions to area regulations are provided for in Sec. 12.22 C.

5. Maximum Residential Floor Area. (Amended by Ord. No. 184,802, Eff. 3/17/17.) For a lot located in a Hillside Area or Coastal Zone, the maximum Residential Floor Area shall comply with Section 12.21.1 A.1. of this Code.

For all other lots, the maximum Residential Floor Area contained in all buildings and accessory buildings shall be as follows: In the RE9 and RE11 Zones, the maximum Residential Floor Area shall be 40 percent of the lot area when the lot is less than 15,000 square feet. For lots 15,000 square feet or greater in the RE9 and RE11 Zones, the maximum Residential Floor Area shall be 35 percent of the lot area or 6,000 square feet, whichever is greater. For lots in the RE15, RE20 and RE40 Zones, the maximum Residential Floor Area shall be 35 percent of the lot area.

An additional 20 percent of the maximum Residential Floor Area for that lot shall be allowed if any of the methods listed below are utilized. Only one 20 percent bonus per property is allowed.

(a) The total Residential Floor Area of each story other than the base floor in a multi-story building does not exceed 75 percent of the base floor area; or

(b) The cumulative length of the exterior walls facing the front lot line, equal to a minimum of 25 percent of the building width shall be stepped-back a distance of at least 20 percent of the building depth from a plane parallel to the lot width established at the point of the building closest to the front lot line. When the front lot line is not straight, a line connecting the points where the side lot lines and the front lot line intersect shall be used. When through-lots have two front yards, the step-back shall be provided along both front lot lines.

For the purposes of this provision, all exterior walls that intersect a plane parallel to the front lot line at 45 degrees or less shall be considered to be facing the front lot line. The building width shall be the greatest distance between the exterior walls of the building measured parallel to the lot width. The building depth shall be the greatest distance between the exterior walls of the building measured parallel to the lot depth.

6. Verification of Existing Residential Floor Area. (Amended by Ord. No. 184,802, Eff. 3/17/17.) For additions with cumulative Residential Floor Area of less than 1,000 square feet constructed after January 1, 2008, or remodels of buildings built prior to January 1, 2008, the existing Residential Floor Area shall be determined based on the building records or the building square footage shown on the most recent Los Angeles County Tax Assessor’s records at the time the plans are submitted to the Department of Building and Safety and a plan check fee is paid. Except that Residential Floor Area may be calculated as defined in Section 12.03 of this Code when a complete set of fully dimensioned plans with area calculations of all the structures on the lot, prepared by a licensed architect or engineer, is submitted by the applicant.

Any work that does not qualify as a remodel, as defined in the paragraph below, or additions that are 1,000 square feet or larger shall require a complete set of fully dimensioned plans with area calculations of all the structures on the lot prepared by a licensed architect or engineer.

For the purposes of implementing this subdivision, a remodel shall mean the alteration of an existing building or structure provided that at least 50 percent of the perimeter length of the contiguous exterior walls and 50 percent of the roof are retained.

SEC. 12.07.1. “RS” SUBURBAN ZONE.

The following regulations shall apply in the “RS” Suburban Zone:

A. Use — No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged, or maintained, except for the following uses, and when a “**Supplemental Use District**” is created by the provisions of Article 3 of this chapter, for such uses as may be permitted therein:

1. One-family dwellings.

2. Parks, playgrounds or community centers, owned and operated by a governmental agency.
3. **(Amended by Ord. No. 181,188, Eff. 7/18/10.)** Truck gardening; the keeping of equines, poultry, rabbits and chinchillas in conjunction with the residential use of the lot, provided that:
 - (a) Such animal keeping is not for commercial purposes.
 - (b) The keeping of equines shall be permitted only on lots having an area of 20,000 square feet or more. Where equines are being kept, the number of such animals being kept shall not exceed one for each 5,000 square feet of lot area.
4. Two-family dwellings on lots having a side lot line adjoining a lot in a commercial or industrial Zone, provided that: **(Amended by Ord. No. 126,309, Eff. 2/13/64.)**
 - (a) The lot on which the dwelling is located does not extend more than 75 feet from the boundary of the less restricted Zone which it adjoins;
 - (b) There is a minimum lot area of 7,500 square feet for each two-family dwelling.
5. **(Deleted by Ord. No. 171,687, Eff. 8/19/97.)**
6. Accessory buildings, including private garages, accessory living quarters, servant's quarters, recreation rooms, or private stables, provided that:
 - (a) No accessory living quarters nor servant's quarters are located or maintained on a lot having an area of less than 15,000 square feet;
 - (b) No stable is located or maintained on a lot having an area of less than 20,000 square feet and its capacity does not exceed one equine or each 5,000 square feet of lot area. **(Amended by Ord. No. 157,144, Eff. 11/22/82.)**
 - (c) An accessory living quarters, servant's quarters, recreation room or private garage or any combination of said uses may be included within one building not exceeding two stories in height.
 - (d) Automobile parking space is required in connection with permitted uses and additional space may be provided in accordance with the provisions of Sec. 12.21 A.

For the location of accessory buildings, refer to Sec. 12.21 C. and Sec. 12.22 C. **(Amended by Ord. No. 107,884, Eff. 9/23/56.)**
7. Conditional uses enumerated in Sec. 12.24 when the location is approved pursuant to the provisions of said section. **(Amended by Ord. No. 117,450, Eff. 12/18/60.)**
8. Accessory uses and home occupations, subject to the conditions specified in Section 12.05 A.16. of this Code. **(Amended by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**
9. Name plates and signs as provided for in Section 12.21 A. of this Code. **(Added by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**
10. Backyard beekeeping, as an accessory use, provided that the activity complies with the performance standards established in Section 12.07 A.13. of this Code. **(Added by Ord. No. 183,920, Eff. 12/6/15.)**

B. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi-Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection A. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

C. Area (Development Standards). No building or structure nor the enlargement of any building or structure shall be erected or maintained unless the following yards, lot areas, and floor area limitations are provided and maintained in connection with the building, structure, or enlargement: **(Amended by Ord. No. 179,883, Eff. 6/29/08.)**

1. **Front Yard.** There shall be a front yard or not less than 20% of the depth of the lot, but such front yard need not exceed 25 feet provided, however, that where all of the developed lots which have front yards that vary in depth by not more than 10 feet comprise 40% or more of the frontage, the minimum front yard depth shall be the average depth of the

front yards of such lots. Where there are two or more possible combinations of developed lots comprising 40% or more of the frontage each of which has front yards that vary in depth by not more than ten feet, the minimum front yard depth shall be the average depth of the front yards of that combination which has the shallowest average depth. In determining the required front yard, buildings located on key lots, entirely on the rear half of lots, or on lots in the "C" or "M" Zones, shall not be counted, provided, however, that nothing contained in this paragraph shall be deemed to require front yards which exceed 40 feet in depth. **(Amended by Ord. No. 139,155, Eff. 10/16/69.)**

On key lots the minimum front yard may be the average of the required front yard for the adjoining interior lot and the required side yard along the street side of a reversed corner lot, but such minimum front yard may apply for a distance or not more than 85 feet from the rear lot line of the reversed corner lot, beyond which point the front yard specified in the above paragraph shall apply. Where existing buildings on either or both of said adjoining lots are located nearer to the front or side lot lines than the yard required by this article, the yards established by such existing buildings may be used in computing the required front yard for a key lot.

2. Side Yards. (Amended by Ord. No. 169,775, Eff. 6/2/94.)

(a) For a main building not more than two-stories in height, there shall be a side yard on each side of the building of not less than five feet, except that where the lot is less than 50 feet in width, the side yard may be reduced to ten percent of the width of the lot, but in no event to less than three feet in width. For a building more than two-stories in height, one-foot shall be added to the width of each yard for each additional story above the second story.

(b) In lieu of the additional one-foot side yard for each story above the second story as required above, for new construction of a main building or a ground floor addition to the main building on a lot not located in a Hillside Area or Coastal Zone, one-foot shall be added to each required side yard for each increment of ten feet or fraction thereof above the first 18 feet.

(c) Side yard requirements in specific plans, Historic Preservation Overlay Zones or in subdivision approvals shall take precedence over this subdivision. This subdivision shall apply in these areas, however, when there are no such side yard requirements.

3. Rear Yard. There shall be a rear yard of not less than 20 feet in depth. **(Amended by Ord. No. 121,925, Eff. 6/4/62.)**

4. Lot Area. (Amended by Ord. No. 153,478, Eff. 4/12/80.) Every lot shall have a minimum width of 60 feet and a minimum area of 7,500 square feet. The minimum lot area per dwelling unit shall also be 7,500 square feet, except for two-family dwellings on lots having a side lot line adjoining a lot in a commercial or industrial Zone as provided for in Subsection A. of this section.

Provided, however, that on property located within the "RS" Zone and also within a "H" Hillside or Mountainous Area for which a General Plan including dwelling unit densities has been adopted by the City Council, the number of lots may be limited and the minimum required areas may be increased so that the number of dwelling units permitted will not substantially exceed the densities shown on the Plan.

There may be lots with less than the minimum required width and area, as provided by Section 17.05 H. of this Code, and there may be a single-family dwelling on each such lot if the lot is shown with a separate letter or lot number on a recorded Subdivision Tract Map or Parcel Map.

Further exceptions to area regulations are provided for in Section 12.22 C.

5. Maximum Residential Floor Area. (Amended by Ord. No. 184,802, Eff. 3/17/17.) For a lot located in a Hillside Area or Coastal Zone, the maximum floor area shall comply with Section 12.21.1 A.1. of this Code.

For all other lots, the maximum Residential Floor Area contained in all buildings and accessory buildings shall not exceed 45 percent of the lot area when the lot is less than 9,000 square feet. For Lots 9,000 square feet or greater, the Residential Floor Area shall not exceed 40 percent of the lot area or 4,050 square feet, whichever is greater.

An additional 20 percent of the maximum Residential Floor Area for that lot shall be allowed if any of the methods listed below are utilized. Only one 20 percent bonus per property is allowed.

(a) The total Residential Floor Area of each story other than the base floor in a multi-story building does not exceed 75 percent of the base floor area; or

(b) The cumulative length of the exterior walls facing the front lot line, equal to a minimum of 25 percent of the building width shall be stepped-back a distance of at least 20 percent of the building depth from a plane parallel to the lot width established at the point of the building closest to the front lot line. When the front lot line is not straight, a line connecting the points where the side lot lines and the front lot line intersect shall be used. When through-lots have two front yards, the step-back shall be provided along both front lot lines.

For the purposes of this provision, all exterior walls that intersect a plane parallel to the front lot line at 45 degrees or less shall be considered to be facing the front lot line. The building width shall be the greatest distance between the exterior walls of the building measured parallel to the lot width. The building depth shall be the greatest distance between the exterior walls of the building measured parallel to the lot depth.

6. Verification of Existing Residential Floor Area. (Amended by Ord. No. 184,802, Eff. 3/17/17.) For additions with cumulative Residential Floor Area of less than 1,000 square feet constructed after January 1, 2008, or remodels of buildings built prior to January 1, 2008, the existing Residential Floor Area shall be determined based on the building records or the building square footage shown on the most recent Los Angeles County Tax Assessor's records at the time the plans are submitted to the Department of Building and Safety and a plan check fee is paid. Except that Residential Floor Area may be calculated as defined in Section 12.03 of this Code when a complete set of fully dimensioned plans with area calculations of all the structures on the lot, prepared by a licensed architect or engineer, is submitted by the applicant.

Any work that does not qualify as a remodel, as defined in the paragraph below, or additions that are 1,000 square feet or larger shall require a complete set of fully dimensioned plans with area calculations of all the structures on the lot prepared by a licensed architect or engineer.

For the purposes of implementing this subdivision, a remodel shall mean the alteration of an existing building or structure provided that at least 50 percent of the perimeter length of the contiguous exterior walls and 50 percent of the roof are retained.

SEC. 12.08. "R1" ONE-FAMILY ZONE.

The following regulations shall apply in the "R1" One-Family Zone:

A. Use. No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged or maintained except for the following uses, and when a "**Supplemental Use District**" is created by the provisions of Article 3 of this chapter, for such uses as may be permitted therein:

1. One-family dwelling.
2. Parks, playgrounds or community centers, owned and operated by a governmental agency.
3. **(Amended by Ord. No. 181,188, Eff. 7/18/10.)** Truck gardening; the keeping of equines, poultry, rabbits and chinchillas in conjunction with the residential use of the lot, provided that:
 - (a) Such animal keeping is not for commercial purposes.
 - (b) The keeping of equines shall be permitted only on lots having an area of 20,000 square feet or more. Where equines are being kept, the number of such animals being kept shall not exceed one for each 5,000 square feet of lot area.
4. Two-family dwellings on lots having a side lot line adjoining a lot in a commercial or industrial zone, provided that: **(Amended by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**
 - (a) The lot on which the use is located does not extend more than 65 feet from the boundary of the less restrictive zone which it adjoins; and
 - (b) There is a minimum lot area of 5,000 square feet for each two-family dwelling.
5. **(Deleted by Ord. No. 171,687, Eff. 8/19/97.)**
6. Conditional uses enumerated in Sec. 12.24 when the location is approved pursuant to the provisions of said section. **(Amended by Ord. No. 117,450, Eff. 12/18/60.)**
7. Accessory buildings, including private garages, accessory living quarters, servant's quarters, recreation rooms, or private stables, provided that:
 - (a) No accessory living quarters nor servant's quarters are located or maintained on a lot having an area less than 10,000 square feet;
 - (b) No stable is located or maintained on a lot having an area of less than 20,000 square feet and its capacity does not exceed one equine for each 5,000 square feet of lot area. **(Amended by Ord. No. 157,144, Eff. 11/22/82.)**
 - (c) An accessory living quarters, servant's quarters, recreation room or private garage or any combination of

said uses may be included in one building not exceeding two stories in height;

(d) Automobile parking space is required in connection with permitted uses and additional space may be provided in accordance with the provisions of Sec. 12.21 A.

For the location of accessory buildings, refer to Sec. 12.21 C. and Sec. 12.22 C. **(Amended by Ord. No. 107,884, Eff. 9/23/56.)**

8. Accessory uses and home occupations, subject to the conditions specified in Section 12.05 A.16. of this Code. **(Amended by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**

9. Name plates and signs as provided for in Sec. 12.21 A.7.

10. Backyard beekeeping, as an accessory use, provided that the activity complies with the performance standards established in Section 12.07 A.13. of this Code. **(Added by Ord. No. 183,920, Eff. 12/6/15.)**

B. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi-Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection A. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

C. Area (Development Standards). No building or structure nor the enlargement of any building or structure shall be erected or maintained unless the following yards, lot areas, and floor area limitations are provided and maintained in connection with the building, structure, or enlargement: **(Amended by Ord. No. 179,883, Eff. 6/29/08.)**

1. **Front Yard.** There shall be a front yard of not less than 20% of the depth of the lot, but such front yard need not exceed 20 feet; provided, however that where all of the developed lots which have front yards that vary in depth by not more than ten feet comprise 40% or more of the frontage, the minimum front yard shall be the average depth of the front yard of such lots. Where there are two or more possible combinations of developed lots comprising 40% or more of the frontage, each of which as front yards that vary in depth by not more than ten feet, the minimum front yard depth shall be the average depth of the front yards of that combination which has the shallowest average depth. In determining the required front yard, buildings located on key lots, entirely on the rear half of lots, or on lots in the "C" or "M" Zones, shall not be counted; provided, however, that nothing contained in this paragraph shall be deemed to require front yards which exceed 40 feet in depth. **(Amended by Ord. No. 139,155, Eff. 10/16/69.)**

On key lots the minimum front yard may be the average of the required front yard for the adjoining interior lot and the required side yard along the street side of a reversed corner lot, but such minimum front yard may apply for a distance of not more than 65 feet from the rear lot line of the reversed corner lot, beyond which point the front yard specified in the above paragraph shall apply. Where existing buildings on either or both of said adjoining lots are located nearer to the front or side lot lines than the yards required by this article, the yards established by such existing buildings may be used in computing the required front yard for a key lot.

2. **Side Yards. (Amended by Ord. No. 184,802, Eff. 3/17/17.)**

(a) For a main building not more than two stories in height, there shall be a side yard on each side of the building of not less than 5 feet, except that where the lot is less than 50 feet in width, the side yard may be reduced to 10 percent of the width of the lot, but in no event to less than 3 feet in width. For a building more than two stories in height, 1 foot shall be added to the width of each yard for each additional story above the second story.

All portions of a building that have a side wall exceeding 14 feet in height and a continuous length greater than 45 feet shall have an offset/plane break that is a minimum depth of five feet beyond the required yard and a minimum length of 10 feet. For the purpose of this Subdivision, height shall be measured from the existing or finished grade, whichever is lower, at each point along the perimeter of the building.

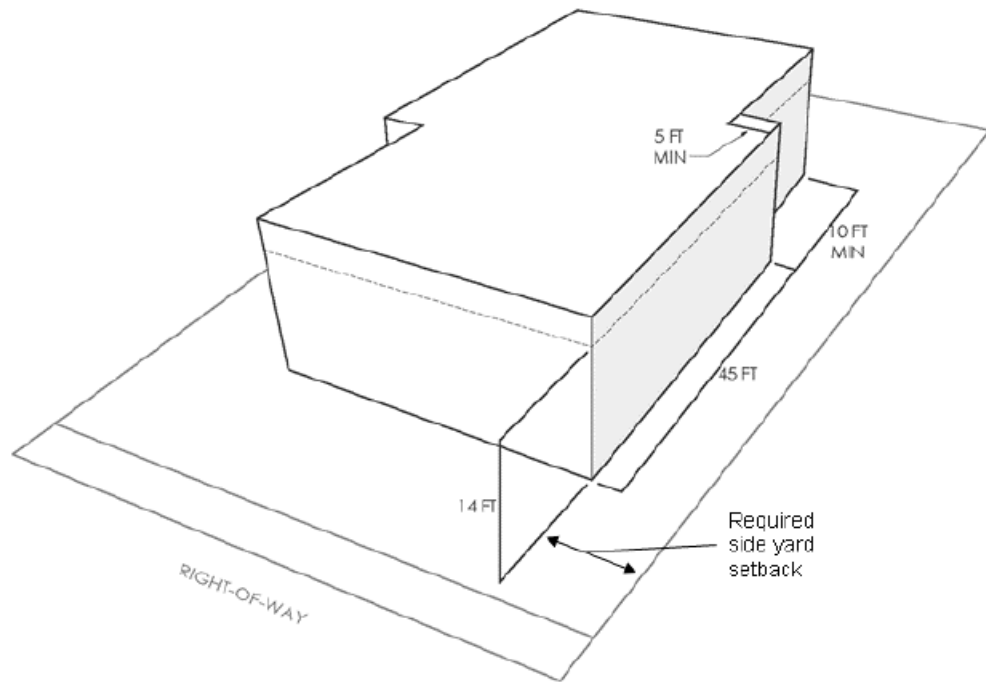


Figure 12.08 C.2.(a): Plane break diagram.

(b) In lieu of the additional one-foot side yard for each story above the second story as required above, for new construction of a main building or a ground floor addition to the main building on a lot not located in a Hillside Area or Coastal Zone, one-foot shall be added to each required side yard for each increment of ten feet or fraction thereof above the first 18 feet.

(c) Side yard requirements in specific plans, Historic Preservation Overlay Zones or in subdivision approvals shall take precedence over this subdivision. This subdivision shall apply in these areas, however, when there are no such side yard requirements.

(d) Any occupied rooftop deck shall be set back at least three feet from the minimum required side yard. This provision shall not apply to any rooftop deck located on the street side of a Corner Lot.

3. **Rear Yard.** There shall be a rear yard of not less than 15 feet in depth. (Amended by Ord. No. 121,925, Eff. 6/4/62.)

4. **Lot Area.** (Amended by Ord. No. 153,478, Eff. 4/12/80.) Every lot shall have a minimum width of 50 feet and a minimum area of 5,000 square feet. The minimum lot area per dwelling unit shall also be 5,000 square feet, except for two-family dwellings on lots having a side lot line adjoining a lot in a commercial or industrial zone as provided for in Subsection A. of this section.

There may be lots with less than the minimum required area and there may be a single dwelling on each such lot if the lot is shown with a separate letter or lot number on a recorded Subdivision Tract Map or a Parcel Map.

There may be lots with less than the minimum width and area as provided for in Section 17.05 H.7. Further exceptions to area regulations are provided for in Section 12.22 C.

5. **Maximum Residential Floor Area and Massing.** (Amended by Ord. No. 184,802, Eff. 3/17/17.)

(a) **R1.** For a lot located in a Hillside Area or Coastal Zone, the maximum floor area shall comply with Section 12.21.1 A.1. of this Code.

For lots outside of a Hillside Area or Coastal Zone, the maximum Residential Floor Area contained in all buildings and accessory buildings shall not exceed 45 percent of the lot area (a Residential Floor Area ratio of 0.45).

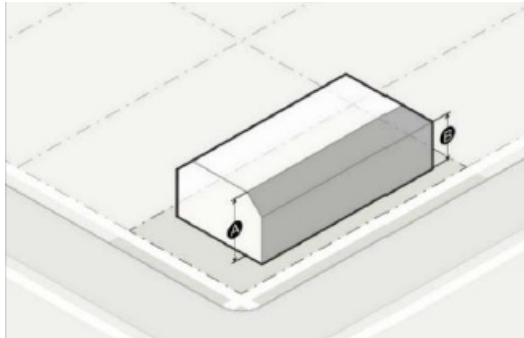
The encroachment plane shall originate from a point that is 20 feet in height from the existing or finished grade, whichever is lower, along the required front and side yard setbacks.

(b) **R1V, Variable-Mass.** These zones are intended to address issues of neighborhood character and to facilitate the compatibility of new construction, additions, and alterations in single-family neighborhoods having an existing variety of building forms. The intent of this variation is to allow flexibility in the location of massing within a maximum building envelope that respects the scale of other houses in the vicinity.

The maximum Residential Floor Area contained in all buildings on a lot shall not exceed the specified Residential Floor Area ratio for the corresponding zone per size of the lot as listed in Table 12.08 C.5.(b). The maximum lot coverage, maximum Height of Building, and maximum height at which the encroachment plane begins shall not exceed the amounts specified for each zone in Table 12.08 C.5.(b).

Table 12.08 C.5.(b)

R1 VARIABLE-MASS VARIATION ZONES DEVELOPMENT STANDARDS



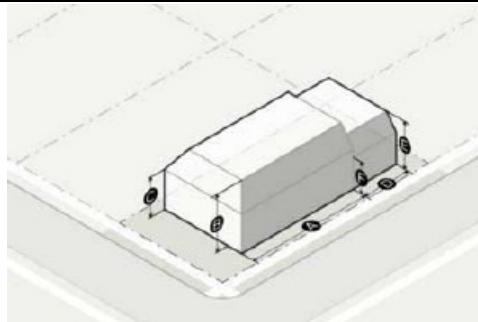
Lot Size and Residential Floor Area Ratio		R1V1	R1V2	R1V3	R1V4	Max Lot Coverage
	Up to 6,000 SF	.65	.55	.45	.40	50%
	6,001 to 7,000 SF	.63	.53	.43	.38	48%
	7,001 to 8,000 SF	.61	.51	.41	.36	46%
	8,001 to 9,000 SF	.59	.49	.39	.34	44%
	9,001 to 10,000 SF	.57	.47	.37	.32	42%
	Over 10,000 SF	.55	.45	.35	.30	40%
Mass						
(A)	Height of Building (max)	30'	30'	28'	20'	
(B)	Encroachment Plane Origin Height	22'	22'	20'	14'	
	Angle of Encroachment Plane	45°	45°	45°	45°	

(c) **R1F, Front-Mass.** These zones are intended to address issues of neighborhood character and to facilitate the compatibility of new construction, additions and alterations in single-family neighborhoods where the predominate building form includes a two-story mass at the front of the lot and a one-story mass at the rear of the lot. The intent of this variation is to allow taller massing at the front of the lot and mandate shorter massing at the rear of the lot that respects the scale and form of other houses in the vicinity.

The maximum Residential Floor Area contained in all buildings shall not exceed the specified Residential Floor Area ratio for the corresponding zone per size of the lot as listed in Table 12.08 C.5.(c). The maximum lot coverage, the maximum height of the front and rear masses, and the maximum height at which the encroachment plane begins for the front and rear masses shall not exceed the amounts specified for each zone in Table 12.08 C.5. (c).

Table 12.08 C.5.(c)

R1 FRONT-MASS VARIATION ZONES DEVELOPMENT STANDARDS



Lot Size and Residential Floor Area Ratio		R1F1	R1F2	R1F3	R1F4	Max Lot Coverage
	Up to 6,000 SF	.65	.55	.45	.40	50%
	6,001 to 7,000 SF	.63	.53	.43	.38	48%

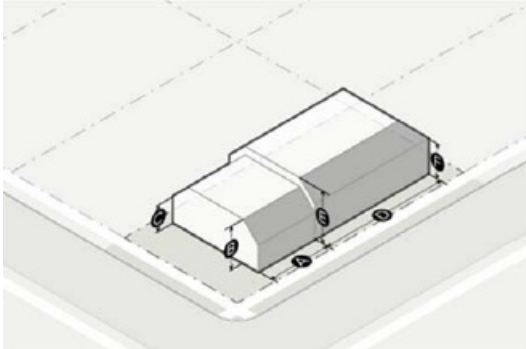
	7,001 to 8,000 SF	.61	.51	.41	.36	46%
	8,001 to 9,000 SF	.59	.49	.39	.34	44%
	9,001 to 10,000 SF	.57	.47	.37	.32	42%
	Over 10,000 SF	.55	.45	.35	.30	40%
Front Mass						
(A)	Front envelope depth, from front yard setback (min)	–	–	–	–	
(B)	Height of Mass (max)	30'	30'	28'	26'	
(C)	Encroachment Plane Origin Height	22'	22'	20'	18'	
	Angle of Encroachment Plane	45°	45°	45°	45°	
Rear Mass						
(D)	Rear envelope depth, from rear yard setback (min)	25'	25'	25'	25'	
(E)	Height of Mass (max)	24'	24'	20'	18'	
(F)	Encroachment Plane Origin Height	16'	16'	14'	14'	
	Angle of Encroachment Plane	45°	45°	45°	45°	

(d) **R1R, Rear-Mass.** These zones are intended to address issues of neighborhood character and to facilitate the compatibility of new construction, additions and alterations in single-family neighborhoods where the predominate building form includes a one-story mass at the front of the lot and a two-story mass at the rear of the lot. The intent of this variation is to mandate shorter massing at the front of the lot and allow taller massing at the rear of the lot that respects the scale and form of other houses in the vicinity.

The maximum Residential Floor Area contained in all buildings shall not exceed the specified Residential Floor Area ratio for the corresponding zone per size of the lot as listed in Table 12.08 C.5.(d). The maximum lot coverage, the maximum height of the front and rear masses, and the maximum height at which the encroachment plane begins for the front and rear masses shall not exceed the amounts specified for each zone in Table 12.08 C.5.(d).

(1) **Exceptions.**

(i) Lots that are 90 feet or less in depth shall not be subject to two different massing requirements. Said lots shall be exempt from the Front Mass development standards listed in Table 12.08 C.5.(d), and instead the Rear Mass massing requirements specified in Table 12.08 C.5.(d) shall apply to the entire building.

Table 12.08 C.5.(d)					
R1 REAR-MASS VARIATION ZONES DEVELOPMENT STANDARDS					
					
Lot Size and Residential Floor Area Ratio	R1R1	R1R2	R1R3	R1R4	Max Lot Coverage
Up to 6,000 SF	.65	.55	.45	.40	50%
6,001 to 7,000 SF	.63	.53	.43	.38	48%
7,001 to 8,000 SF	.61	.51	.41	.36	46%
8,001 to 9,000 SF	.59	.49	.39	.34	44%
9,001 to 10,000 SF	.57	.47	.37	.32	42%
Over 10,000 SF	.55	.45	.35	.30	40%
Front Mass					
(A)	Front envelope depth, from front yard setback (min)	30'	30'	30'	30'

(B)	Height of Mass (max)	24'	24'	20'	18'	
(C)	Encroachment Plane Origin Height	16'	16'	12'	12'	
	Angle of Encroachment Plane	45°	45°	45°	45°	
Rear Mass						
(D)	Rear envelope depth, from rear yard setback (min)	–	–	–	–	
(E)	Height of Mass (max)	30'	30'	28'	26'	
(F)	Encroachment Plane Origin Height	22'	22'	20'	18'	
	Angle of Encroachment Plane	45°	45°	45°	45°	

(e) **R1H, Hillside Area.** These zones are intended to address issues of neighborhood character and to facilitate the compatibility of new construction, additions and alterations to one-family houses in Hillside Areas having an existing variety of building forms. The intent of this variation is to allow flexibility in the location of massing within a maximum building envelope that respects the scale of other houses in the vicinity. A lot designated an R1H Zone shall comply with all of the R1 Hillside Area Development Standards pursuant to Section 12.21 C.10., except that R1H lots shall be subject to the Residential Floor Area ratios in Table 12.21 C.10-2b of their corresponding zone.

6. Verification of Existing Residential Floor Area. (Amended by Ord. No. 184,802, Eff. 3/17/17.) For additions with cumulative Residential Floor Area of less than 1,000 square feet constructed after January 1, 2008, or remodels of buildings built prior to January 1, 2008, the existing Residential Floor Area shall be determined based on the building records or the building square footage shown on the most recent Los Angeles County Tax Assessor's records at the time the plans are submitted to the Department of Building and Safety and a plan check fee is paid. Except that Residential Floor Area may be calculated as defined in Section 12.03 of this Code when a complete set of fully dimensioned plans with area calculations of all the structures on the lot, prepared by a licensed architect or engineer, is submitted by the applicant.

Any work that does not qualify as a remodel, as defined in the paragraph below, or additions that are 1,000 square feet or larger shall require a complete set of fully dimensioned plans with area calculations of all the structures on the lot prepared by a licensed architect or engineer.

For the purposes of implementing this subdivision, a remodel shall mean the alteration of an existing building or structure provided that at least 50 percent of the perimeter length of the contiguous exterior walls and 50 percent of the roof are retained.

7. Definitions and Standards. (Added by Ord. No. 184,802, Eff. 3/17/17.) For the purposes of this Subsection the following definitions and standards shall apply:

a. **Height of Mass, Front or Rear.** The height of the front mass is the vertical distance above Grade measured to the highest point of the roof, structure, or parapet wall, whichever is highest of the front mass. The height of the rear mass is the vertical distance above Grade measured to the highest point of the roof, structure, or parapet wall, whichever is highest of the rear mass. Retaining walls shall not be used for the purpose of raising the effective elevation of the finished grade for purposes of measuring the height of either mass.

However, whenever the highest point of elevation of the adjoining sidewalk or ground surface within a 5-foot horizontal distance measured from the exterior wall of a building exceeds grade level by more than 20 feet, a building or structure may exceed the maximum front or rear mass height in number of feet prescribed in this section by not more than 12 feet. However, such additional height shall not be permitted to the extent that such additional height causes any portion of the building or structure to exceed a front or rear mass height in number of feet as prescribed by this section as measured from the highest point of the front or rear mass roof structure or parapet wall to the elevation of the ground surface which is vertically below this point of measurement.

b. **Lot Coverage** is the area of a parcel covered by any structures extending more than six feet above grade. However, 400 square feet of required covered parking that is detached and located within the rear half of the lot shall be exempt from lot coverage calculations.

SEC. 12.08.1. RU RESIDENTIAL URBAN ZONE. (Added by Ord. No. 161,716, Eff. 12/6/86.)

The following regulations shall apply in the RU Residential Urban Zone:

A. Purpose. The regulations set forth in this section are designed to encourage the subdivision of small single-family residential lots for development with manufactured homes, including mobilehomes installed on permanent foundations, factory-built homes, or conventional site built homes. The small area and yard requirements are intended to facilitate the economical and flexible use of land, thus increasing the City's stock of lower cost single-family housing. It is also the purpose of this zone to

ensure that such developments are located in proper relationship to other uses and are compatible with those uses.

B. Use. (Amended by Ord. No. 173,492, Eff. 10/10/00.) No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged or maintained, except for the following uses, and, when a “**Supplemental Use District**” is created, for those uses as may be permitted in that district. The provisions of this section shall not apply to properties in a Hillside area as defined in Section 91.7003 of this Code and which exceed an average natural slope of 15 percent as calculated according to the slope density formula used by the City Planning Department.

1. One-family dwellings, including factory-built homes, mobilehomes installed on permanent foundations and conventional site-built homes.
2. Parks, playgrounds or community centers, owned and operated by a governmental agency.
3. Conditional uses enumerated in Section 12.24 when the location is approved pursuant to the provisions of that section.
4. Accessory buildings, including private garages and recreation rooms. For the location of accessory buildings, refer to Sections 12.21 C. and 12.22 C.
5. Accessory uses and home occupations, subject to the conditions specified in Section 12.05 A.16. of this Code. **(Amended by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**
6. Name plates and signs, and required automobile parking spaces as provided for in Section 12.21 A. of this Code. **(Added by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**

C. Area. No building or structure shall be erected or maintained, nor shall any building or structure be enlarged unless the following yards and lot areas are provided and maintained in connection with such building, structure or enlargement:

1. **Front Yard.** There shall be a front yard of not less than 10 feet in depth; provided, however, that when a lot is developed with a mobilehome, pursuant to a change of zone where a “Q” Qualified Condition has been imposed limiting the use of the lot to a mobilehome, there shall be a front yard of not less than 7 feet in depth.
2. **Side Yards.** There shall be a side yard of not less than 3 feet in width on each side of a main building. The required side yard may be eliminated on one side of each lot, provided that:
 - a. The remaining side yard is increased to not less than 6 feet in width;
 - b. The buildings or structures are so located that the 0-foot side yard on one lot adjoins the increased side yard on the adjoining lot;
 - c. Prior to the issuance of any building permit for the installation of a mobilehome, factory-built home or a building permit for a conventional site-built home, where a side yard is eliminated on one side of the lot and the remaining side yard is increased to not less than six feet in width, pursuant to this section, the owner or owners of that lot shall obtain from the owner or owners of the lot abutting the zero-foot side yard an easement granting the right to ingress and egress for maintenance purposes. That easement shall have a minimum width of three feet and shall be located along the lot line adjacent to the zero-foot side yard. That easement shall be recorded in the Office of the County Recorder of Los Angeles County; and a copy of that recorded easement shall be submitted to the Department of Building and Safety prior to the issuance of a building permit;
 - d. No exterior wall openings shall be permitted on the side of the building or structure located on a lot line; and all requirements of Chapter IX, Article I, shall be complied with;
 - e. No accessory buildings or structures shall be permitted in the increased side yard, notwithstanding any other provisions of this article; and
 - f. Reduced side yards shall not be permitted adjacent to lots which are not developed with 0-foot side yards or are adjacent to a street, alley or walkway.
3. **Rear Yard.** There shall be a rear yard of not less than 10 feet in depth; provided, however, that when a lot is developed with a mobilehome, pursuant to a change of zone where a “Q” Qualified Condition has been imposed limiting the use of the lot to a mobilehome, there shall be a rear yard of not less than 3 feet in depth.
4. **Lot Area.** Every lot shall have a minimum width of 35 feet and a minimum area of 3,500 square feet. Exceptions to area regulations are provided for in Section 12.22 C.
5. **Minimum Acreage.** A minimum of five acres shall be required whenever property zoned R1 or designated on an adopted community plan or district plan as corresponding to the R1 Zone or a more restrictive zone is proposed to be reclassified in the RU zone.

D. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi-Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection B. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

SEC. 12.08.3. RZ RESIDENTIAL ZERO SIDE YARD ZONE.

(Added by Ord. No. 159,532, Eff. 1/3/85.)

The following regulations shall apply in the RZ Residential Zero Side Yard Zone.

A. Purpose. The regulations set forth in this section are to provide for a 0-foot side yard, single- family residential zone.

B. Use. No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged, or maintained, except for the following uses, and, when a “**Supplemental Use District**” is created by the provisions of Article 3 of this chapter, for such uses as may be permitted therein:

1. Dwellings constructed across not more than five contiguous lots with no more than one dwelling unit on each lot, provided that:

a. The dwelling unit on each lot shall be structurally separated from the dwelling unit on the adjacent lot, provided, however, that footings slab foundations, roof sheathing, roofing and exterior wall coverings may cross the lot lines. Adjacent dwelling units shall be separated by walls which comply with the provisions of the exception of Section 91.0502 (h)2.A. of this Code and which extend from the slab foundation to the roof sheathing. Common footings on the lot lines shall underlie and support said walls between dwelling units.

b. Electrical, plumbing, heating, air conditioning and sewer systems for each dwelling unit shall be separate and independent of such system for each other dwelling unit.

c. Prior to the issuance of any building permit for such development, the owner or owners shall execute and record a declaration of covenants, conditions and servitudes in a form designed to run with the land and satisfactory to the City Attorney, binding themselves and all future owners and inuring to their mutual benefit and that of the City of Los Angeles. The declaration shall contain provisions:

(1) That the owners of all lots on which such building is located shall be jointly and severally responsible for the maintenance and repair of the building’s footings, slab foundations, roof sheathing, roofing, common walls, exterior walls and any other common portion of the building;

(2) That the costs for such maintenance and repair shall be shared equitably by the owners of the lots on which the building is located;

(3) Providing the manner in which decisions concerning such maintenance and repair and their payment shall be decided;

(4) That the owners of each such lot shall have a right of access to each others lot for the purpose of affecting such maintenance and repair; and

(5) Providing for the rights of individual lot owners concerning the demolition or modification of any portion of the building, including a provision that no common element be modified without the consent of all affected lot owners.

Said declaration may provide for the establishment of an association of property owners to administer the provisions of the declaration, and, if so, shall provide for its organization and government as well as for the assessment of lot owners to provide for the costs of maintenance, repair and administration.

A Copy of such declaration shall be delivered to the Department of Building and Safety prior to the issuance of a building permit, and copies shall be delivered to any prospective owner of a lot prior to the sale of that lot.

2. One-Family Dwellings.

3. Parks, playgrounds or community centers owned and operated by governmental agency.

4. Accessory buildings, including private garages and recreation rooms For location of accessory buildings, refer to Sections 12.21 C. and 12.22 C.

5. Conditional uses enumerated in Section 12.24 when the location is approved pursuant to the provisions of said section.

6. Accessory uses and home occupations, subject to the conditions specified in Section 12.05 A.16. of this Code. **(Amended by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**

7. Name plates and signs, and required automobile parking spaces as provided for in Section 12.21 A. of this Code. **(Added by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**

C. Area. No building or structure shall be erected or maintained, nor shall any building or structure be enlarged, unless the following yards and lot areas are provided and maintained in connection with such building, structure, or enlargement:

1. **Front Yard.** There shall be a front yard of not less than ten feet in depth. The provisions of Section 12.22 C.4., 5. and 8. of this Code, permitting reduced front yards, shall not apply.

2. **Side Yard.** **(Amended by Ord. No. 162,133, Eff. 5/9/87.)**

a. Except as exempted by Paragraph b. or Paragraph c. of this subdivision, there shall be a side yard of not less than three feet in width on each side of a main building of not more than two stories. For a building more than two stories in height, one foot shall be added to the width of such side yard for each story above the second story.

b. No side yard shall be required along any lot line across which line a dwelling is constructed in accordance with Section 12.08.3 B.1. of this Code.

c. No side yard shall be required on one side of each lot developed with a detached one-family dwelling, provided that any of the following requirements are met:

(1) The remaining side yard shall be increased to not less than double the width otherwise required.

(2) Buildings or structures shall be so located that the zero foot side yard on one lot adjoins the increased side yard on the adjoining lot.

(3) Prior to the issuance of any building permit for a dwelling where a side yard is eliminated on one side of the lot and the remaining side yard is increased to not less than double that otherwise required pursuant to this section, the owner or owners of that lot shall obtain from the owner or owners of the lot abutting the zero- foot side yard an easement granting the right of ingress and egress for maintenance purposes The easement shall have a minimum width of three feet and shall be located along the lot line adjacent to the zero-foot side yard. The easement shall be recorded in the Office of the County Recorder of Los Angeles County, and a copy indicating recordation shall be submitted to the Department of Building and Safety prior to the issuance of a building permit.

(4) Exterior wall openings shall not be permitted on the side of any building or structure on a lot line, and there shall be compliance with all requirements of Chapter IX, Article 1 of this Code.

(5) Accessory buildings or structures shall not be permitted in the increased side yard, notwithstanding any other provisions of this article.

(6) Reduced side yards shall only be permitted on a lot which is adjacent to a lot developed with a zero-foot side yard; no reduced side yard may be located adjacent to a street, alley or walkway.

3. **Rear Yard.**

a. Except as exempted by Paragraph b. of this subdivision there shall be a rear yard of not less than 15 feet in depth.

b. No rear yard shall be required along any lot line across which line a dwelling is constructed in accordance with Section 12.08.3 B.1. of this Code.

4. If a lot is developed without a rear yard, the area of the front yard and/or any side yards shall be increased so that the total increase in the combined areas of the front yard and any side yards shall equal 110% of the area which would otherwise have been contained in a rear yard.

5. **Lot Area.**

a. Every lot with a driveway on the frontage shall have a minimum lot width and frontage of 30 feet; provided,

however, that for flag lots and lots on cul-de-sacs and curved streets, the minimum frontage and lot width within the front yard setback may be not less than 20 feet. Every lot without a driveway on the frontage shall have a minimum lot width and frontage of 25 feet.

b. Every lot classified in the RZ Zone shall be designated on the Zone Map according to the area of the lot. Lots may be designated as: RZ2.5 (2,500 square feet), RZ3 (3,000 square feet), or RZ4 (4,000 square feet). Every lot shall have the minimum lot area so designated. **(Amended by Ord. No. 162,133, Eff. 5/9/87.)**

c. Exceptions to area regulations are provided for in Section 12.22 C. of this Code.

D. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi-Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection B. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

SEC. 12.08.5. "RW1" RESIDENTIAL WATERWAYS ZONE. **(Added by Ord. No. 138,095, Eff. 4/19/69.)**

The following regulations shall apply in the "RW1" Residential Waterways Zone:

A. Purpose. The regulations set forth in this section are to make possible the utilization of certain lots fronting on navigable public canals or waterways, or separated therefrom only by a public street, which make up, or are a portion of, a sizeable system of recreational waterways when such lots are predominantly those which were recorded prior to June 1, 1946.

Because of exceptional past history, present conditions, the proximity of such lots to recreational water areas, and their usual location in areas which enjoy optimum climatic conditions, the best development of the property may require variation from some of the standard housing requirements necessary or desirable in the rest of the City.

B. Use. No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged, or maintained, except for the following uses, and when a "Supplemental Use District" is created by the provisions of Article 3 of this chapter, for such uses as may be permitted therein:

1. One-family dwelling.

2. Accessory buildings, including private garages, accessory living quarters, servants quarters, or recreation rooms, provided that:

(a) No accessory living quarters nor servants quarters are located or maintained on a lot having an area of less than 4,600 square feet.

(b) An accessory living quarters, servants quarters, recreation room or private garage or any combination of said uses may be included in one building not exceeding two stories in height. For location of accessory buildings, refer to Sections 12.21 C. and 12.22 C.

3. Conditional uses enumerated in Section 12.24 when the location is approved pursuant to the provisions of said section.

4. Accessory uses and home occupations, subject to the conditions specified in Section 12.05 A.16. of this Code. **(Amended by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**

5. Name plates and signs, and required automobile parking spaces as provided for in Section 12.21 A. of this Code. **(Added by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**

C. Area. No building or structure shall be erected or maintained nor shall any building or structure be enlarged unless the following yards and lot areas are provided and maintained in connection with such building, structure or enlargement:

1. **Front Yard** – There shall be a front yard of not less than ten feet in depth. Notwithstanding any provisions of this article to the contrary;

(a) The front yard shall be measured from the lot line nearest to, or separating the lot from, the navigable public canal or waterway, and in the case of a corner lot, from the line separating the narrowest canal frontage of the lot from the navigable public canal or waterway, or from the public street lying between the lot and the navigable public canal or waterway, except in those cases where the latest tract deed restrictions specify another line as the

front lot line.

(b) No stairway, platform, landing, or porch shall extend or project into said required front yard space more than 48 inches, and in no case shall any such stairway, platform, landing, or porch exceed a height of 30 inches above the finished ground level adjacent thereto in said front yard space.

(c) No cornice, belt course, still or other similar architectural projection, but not including eaves, shall project into said required front yard space more than 12 inches.

2. **Side Yard** – There shall be a side yard on each side of a building of not less than 10 percent of the width of the lot, but in no event less than three feet in width. **(Amended by Ord. No. 151,601, Eff. 11/25/78.)**

3. **Rear Yard** – There shall be a rear yard of not less than 15 feet in depth. In no event shall any exterior wall of the first story of the main building be located closer than nine feet from the rear lot line. In the event three or more automobile parking spaces are provided in an attached garage or carport on the same lot for each dwelling unit, no exterior wall of the main building shall be located closer than five feet from the rear lot line. Notwithstanding any provisions of this article to the contrary, the rear lot line is that line opposite and most distant from the lot line separating the narrowest canal frontage of the lot from the navigable public canal or waterway. **(Amended by Ord. No. 150,336, Eff. 12/31/77.)**

4. **Lot Area** – Every lot shall have a minimum width of 28 feet and a minimum area of 2,300 square feet. **(Amended by Ord. No. 150,336, Eff. 12/31/77.)**

5. **Open Space** – There shall be usable open space, such as patio, garden, deck or recreational area, in the amount of ten percent of the lot area for each story of a main building on the lot. Such open space shall be in addition to the areas which are included in required yards and may be not less than 100 square feet in size. For multi-storied buildings, such open space need not be evenly distributed between all floors of the main building, but in no event may more than two-thirds of the total usable open space required be located above the first story of the main building. **(Amended by Ord. No. 150,336, Eff. 12/31/77.)**

D. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi-Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection B. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

SEC. 12.09. “R2” TWO-FAMILY ZONE.

The following regulations shall apply in the “R2” Two- family Zone:

A. Use – No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged, or maintained, except for the following uses, and when a “Supplemental Use District” is created by the provisions of Article 3 of this chapter, for such uses as may be permitted therein:

1. Any use permitted in the “R1” One- family Zone.

2. A two-family dwelling or two single- family dwellings. **(Amended by Ord. No. 147,542, Eff. 9/3/75.)**

3. Apartment houses, boarding or rooming houses, or multiple dwellings on lots having a side lot line adjoining a lot in a commercial or industrial zone, provided that: **(Amended by Ord. No. 185,462, Eff. 4/18/18.)**

(a) The use, including the accessory buildings and uses and required yards, does not extend more than 65 feet from the boundary of the less restrictive zone which it adjoins; and

(b) The lot area per dwelling unit or guest room regulations of the RD1.5 zone shall apply to these uses.

4. **(None)**

5. Accessory buildings, including required automobile parking space – same as R1 Zone – Section 12.08 A. **(Amended by Ord. No. 107,884, Eff. 9/23/56.)**

6. Accessory uses and home occupations, subject to the conditions specified in Section 12.05 A.16. of this Code. **(Amended by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**

7. Name plates and signs as provided for in Sec. 12.21 A.7.

B. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi-Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection A. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

C. Area – No building or structure nor the enlargement of any building or structure shall be hereafter erected or maintained unless the following yards and lot areas are provided and maintained in connection with such building, structure or enlargement:

1. **Front Yard** – Same as required in “R1” Zone—Sec. 12.08 C.1.

2. **Side Yard** – Same as required in “R1” Zone—Sec. 12.08 C.2.

3. **Rear Yard** – Same as required in “R1” Zone—Sec. 12.08 C.3.

4. **Lot Area (Amended by Ord. No. 177,103, Eff. 12/18/05.)** – Every lot shall have a minimum width of 50 feet and a minimum area of 5,000 square feet. The minimum lot area per dwelling unit shall be 2,500 square feet, except for apartment houses, boarding or rooming houses, and multiple dwellings on lots having a side lot line adjoining a lot in a commercial or industrial zone as provided for in Subsection A. of this section, which uses shall comply with the lot area per dwelling unit and guest room regulations of the RD1.5 Zone.

Provided, that where a lot has a width of less than 50 feet or an area of less than 5,000 square feet and was held under separate ownership or was of record at the time this article became effective, the lot may be occupied by any use permitted in this section, except those uses requiring more than 5,000 square feet of lot area. In no case, however, shall a two-family dwelling or two-family dwellings be allowed on a lot with an area of less than 4,000 square feet.

Exceptions to area regulations are provided for in Section 12.22 C. of this Code.

SEC. 12.09.1. “RD” RESTRICTED DENSITY MULTIPLE DWELLING ZONE.

(Added by Ord. No. 127,777, Eff. 8/1/64.)

The following regulations shall apply in the “RD” Restricted Density Multiple Dwelling Zone:

A. Use. No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged or maintained, except for the following uses, and when a “**Supplemental Use District**” is created by the provisions of Article 3 of this chapter, for such uses as may be permitted therein:

1. One-family dwellings.

2. Two-family dwellings.

3. Multiple dwellings or group dwellings.

4. Apartment houses.

5. Park, playgrounds or community center, owned and operated by a governmental agency.

6. **(Amended by Ord. No. 157,144, Eff. 11/22/82.)** The keeping of equines, in conjunction with the residential use of the lot, and subject to the following limitations:

(a) Such activities are not for commercial purposes.

(b) The keeping of equines shall be permitted only on lots having an area of 20,000 square feet or more. Where equines are being kept, the number of such animals being kept shall not exceed one for each 5,000 square feet of lot area.

7. Accessory buildings, including private garages, accessory living quarters, servants quarters, recreation rooms, or private stables, provided that:

(a) Every accessory building containing accessory living quarters or servants quarters shall constitute a dwelling and the lot area requirements of the zone in which it is located shall be complied with.

(b) No stable is located or maintained on a lot having an area of less than 20,000 square feet and its capacity does not exceed one equine for each 5,000 square feet of lot area. **(Amended by Ord. No. 157,144, Eff. 11/22/82.)**

(c) An accessory living quarters, servants quarters, recreation room or private garage or any combination of said uses may be included in one building not exceeding two stories in height. For location of accessory buildings, refer to Section 12.21 C.

8. Conditional uses enumerated in Sec. 12.24 when the location is approved pursuant to the provisions of said section.

9. Accessory uses and home occupations, subject to the conditions specified in Section 12.05 A.16. of this Code. **(Amended by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**

10. **(Deleted by Ord. No. 171,687, Eff. 8/19/97.)**

11. Name plates and signs, and required automobile parking spaces as provided for in Section 12.21 A. of this Code. **(Added by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**

B. Area. (Amended by Ord. No. 158,381, Eff. 11/20/83.) No building or structure nor the enlargement of any building or structure shall be erected or maintained unless the following yards and lot areas are provided and maintained in connection with such building, structure or enlargement:

1. **Front Yard.** There shall be a front yard of not less than 15 feet in depth in the RD1.5, RD2, RD3 and RD4 Zones and not less than 20 feet in depth in the RD5 and RD6 Zones.

2. **Side Yards:**

(a) **RD1.5 and RD2 Zones.** For a main building not more than two stories in height in the RD1.5 and RD2 zones, there shall be a side yard on each side of said building of not less than five feet, except that where the lot is less than 50 feet in width, the side yard may be reduced to 10% of the width of the lot, but in no event to less than three feet in width. For a building more than two stories in height in the RD1.5 and RD2 zones, one foot shall be added to the width of such yard for each additional story above the second story, but in no event shall a side yard of more than 16 feet in width be required.

(b) **RD3 and RD4 Zones.** There shall be a side yard on each side of a main building in the RD3 and RD4 zones of not less than five feet or 10% of the width of the lot, whichever is larger, but in no event shall a side yard of more than 10 feet be required.

(c) **RD5 and RD6 Zones.** There shall be a side yard on each side of a main building in the RD5 and RD6 zones of not less than 10 feet in width.

3. **Rear Yards.** There shall be a rear yard of not less than 15 feet in depth in the RD1.5, RD2, RD3 and RD4 Zones and not less than 25 feet in depth in the RD5 and RD6 Zones.

4. **Lot Area.** Every lot classified in the "RD" Zone is, according to the lot area requirements, further designated as RD1.5, RD2, RD3, RD4, RD5 and RD6.

Every lot shall have a minimum width, area and lot area per dwelling unit or guest room as follows:

[LOT SIZE – "RD"ZONE]

Zone	Minimum Lot Width (feet)	Minimum Lot Area (Square feet)	Minimum Lot Area Per Dwelling Unit or Guest Room (square feet)
RD1.5	50	5,000	1,500
RD2	50	5,000	2,000
RD3	60	6,000	3,000
RD4	60	8,000	4,000
RD5	70	10,000	5,000
RD6	70	12,000	6,000

Exceptions to area regulations are provided for in Section 12.22 C.

5. **Minimum Density.** In the RD1.5 and RD2 zones, located within a High or Medium High Residential Market Area established by the City Council pursuant to LAMC Section 19.18 C.1., a minimum density of one Dwelling Unit or Guest Room, inclusive of Accessory Dwelling Units, for every 2,000 square feet of lot area is required for every Housing

Development Project on a lot meeting the minimum width and lot area requirements for the zone, prior to any subdivision, except when Section 12.22 C.28. applies. The minimum density calculation shall be rounded up to the nearest unit to ensure the minimum density standard is met. If the minimum lot area per Dwelling Unit or Guest Room for the zone does not allow for construction of the required minimum density, the minimum density shall not apply. **(Added by Ord. No. 188,479, Eff. 2/11/25, Oper. 2/11/25.)**

C. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi- Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection A. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

SEC. 12.09.3. “RMP” MOBILEHOME PARK ZONE.
(Added by Ord. No. 164,904, Eff. 7/6/89.)

The following regulations shall apply in the “RMP” Mobilehome Park Zone:

A. Purpose. It is the purpose of the “RMP” Mobilehome Park Zone to encourage the provision of affordable housing in the City as provided in the Housing Element of the General Plan, by permitting both the retention and expansion of existing mobilehome parks and the establishment of new mobilehome parks. It is also the purpose of this ordinance to encourage the maintenance of the property for residential uses by allowing land zoned RMP to be used for single family dwellings. Because of the usual location of these lots in areas with industrial and manufacturing uses, the preservation of the property for single family residential use may require the variation from some of the standard housing requirements necessary or desirable in the rest of the City. Accordingly, the large lot minimum yard area requirements are necessary to ensure compatibility between single family residential uses and possible surrounding nonresidential uses.

B. Use. No building, structure or land shall be used and no building or structure shall be erected, moved onto the site, structurally altered, enlarged or maintained, except for such uses as may be permitted therein:

1. Mobilehome parks.
2. One-family dwellings.
3. Parks, playgrounds or community centers, owned and operated by a governmental agency.
4. Truck gardening; the keeping of equines, poultry, rabbits and chinchillas, in conjunction with the residential use of the lot, provided that such animal keeping is not for commercial purposes. **(Amended by Ord. No. 181,188, Eff. 7/18/10.)**
5. **(Deleted by Ord. No. 171,687, Eff. 8/19/97.)**
6. Accessory buildings or structures, including private garages, accessory living quarters, servants quarters, recreation rooms, private stables, recreation centers, laundry rooms, greenhouses, bathhouses, storage buildings, enclosed trash areas and mobilehome park manager’s residence (which structure may be a one-family dwelling on permanent foundation). However, such structures may not exceed two stories in height. For the location of accessory buildings, refer to Sections 12.21 C. and 12.22 C.
7. Conditional uses enumerated in Section 12.24 when the location is approved pursuant to the provisions of said section.
8. Accessory uses and home occupations, subject to the conditions specified in Section 12.05 A.16. of this Code. **(Amended by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**
9. Name plates and signs as provided for in Section 12.21 A. of this Code. **(Amended by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**

C. Area. No building or structure nor the enlargement of a building or structure shall be hereafter erected or maintained unless the following yards and lot areas are provided and maintained in connection with such building, structure, or enlargement.

1. **Front yard** – For one-family dwellings, there shall be a front yard of not less than 20 percent of the depth of the lot, but such front yard need not exceed 25 feet.
2. **Side yards** – For one-family dwellings, there shall be a side yard on each side of a main building of not less than 10 feet.

3. **Rear Yard** – For one-family dwellings, there shall be a rear yard of not less than 25 percent of the depth of the lot, but such rear yard need not exceed 25 feet.

4. **Lot Area** – Every lot used for a one-family dwelling shall have a width of 80 feet and a minimum area of 20,000 square feet.

The above area requirements shall not apply to mobilehomes parks or mobilehomes located within mobilehome parks. Mobilehome parks are subject to the yard and area requirements of Title 25 of the California Administrative Code. Further exceptions to area regulations are provided for in Section 12.22 C.

SEC. 12.09.5. “RW2” RESIDENTIAL WATERWAYS ZONE.

(Added by Ord. No. 138,095, Eff. 4/19/69.)

The following regulations shall apply in the “RW2” Residential Water ways Zone:

A. Purpose. The regulations set forth in this section are to make possible the utilization of certain lots fronting on navigable public canals or waterways, or separated therefrom only by a public street, which make up, or are a portion of, a sizable system of recreational waterways when such lots are predominantly those which were recorded prior to June 1, 1946.

Because of exceptional past history, present conditions, the proximity of such lots to recreational water areas, and their usual location in areas which enjoy optimum climatic conditions, the best development of the property may require variation from some of the standard housing requirements necessary or desirable to the rest of the City.

B. Use. No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged, or maintained, except for the following uses, and when a “Supplemental Use District” is created by the provisions of Article 3 of this chapter, for such uses as may be permitted therein:

1. One-family dwellings.
2. Two-family dwellings.
3. Accessory buildings, including private garages, accessory living quarters, servants quarters, or recreational rooms, provided that:
 - (a) Every accessory building containing accessory living quarters or servants quarters shall constitute a dwelling for the purposes of computing the applicable lot area requirements of this zone.
 - (b) An accessory living quarters, servants quarters, recreation room or private garage, or any combination of said uses, may be included in one building not exceeding two stories in height. For location of accessory buildings, refer to Section 12.21 C. and 12.22 C.
4. Conditional uses enumerated in Section 12.24 when the location is approved pursuant to the provisions of said section.
5. Accessory uses and home occupations, subject to the conditions specified in Section 12.05 A.16. of this Code. **(Amended by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**
6. Name plates and signs, and required automobile parking spaces as provided for in Section 12.21 A. of this Code. **(Added by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**

C. Area – No building or structure shall be erected or maintained nor shall any building or structure be enlarged unless the following yards and lot areas are provided and maintained in connection with such building, structure or enlargement:

1. **Front Yard** – Same as required in “RW1” Zones—Section 12.08.5 C.1.
2. **Side Yards** – **(Amended by Ord. No. 150,336, Eff. 12/31/77.)** – Side yards shall be required in accordance with the provisions of either paragraphs (a), (b) or (c) below and the limitations hereafter specified:
 - (a) For a main building of not more than two stories in height there shall be a side yard on each side of said building of not less than ten percent of the width of the lot, but in no event of less than three feet in width. For a building more than two stories in height, one foot shall be added to the width of such side yard for each additional story above the second story.
 - (b) There may be a side yard on only one side of a main building, provided that:
 - (1) For a main building of not more than two stories in height, said required side yard shall be at least

four feet in width. For a building more than two stories in height, one foot shall be added to the width of such side yard for each additional story above the second story.

(2) The main building is structurally independent with an unpierced wall from the ground to the weatherproofing material of the roof covering between said main building and any adjacent main building.

(3) An adjoining lot is developed in a similar manner so that the two main buildings will be adjacent to each other with no side yard between.

(c) No side yards shall be required for a main building on the interior lot or lots of groups of adjacent lots when:

(1) The group of adjacent lots includes at least three, but not more than five, lots.

(2) For a main building constructed on an end lot of such a group of lots, a side yard as required in paragraph (b)(1) of this subdivision is provided and maintained abutting the outermost lot line.

(3) The main building on each lot of such group of lots is structurally independent with an unpierced wall from the ground to the weatherproofing material of the roof covering between it and any adjacent main building.

3. **Rear Yard** – There shall be a rear yard of not less than 15 feet in depth. Notwithstanding any provisions of this article to the contrary, the rear lot line is that line opposite and most distant from the lot line separating the narrowest canal frontage of the lot from the navigable public canal or waterway. **(Amended by Ord. No. 150,336, Eff. 12/31/77.)**

4. **Lot Area** – Every lot shall have a minimum width of 28 feet and a minimum area of 2,300 square feet. The minimum lot area per dwelling unit shall be 1,150 square feet.

5. **Open Space** – Same as required in “RW1” Zone – Section 12.08.5 C.5.

6. **Limitations** – **(Amended by Ord. No. 150,336, Eff. 12/31/77.)** – No person shall be issued a building permit for any lot being developed without a side yard on each side of the main building until:

(a) A site plan has been first filed with and approved by the City Planning Commission pursuant to Sec. 13B.2.3 (Class 3 Conditional Use Permit) of Chapter 1A of this Code. Buildings constructed upon said lot must conform to the approved site plan. Every person applying for a building permit for such a lot shall file with the City Planning Commission a site plan which will show the location of the proposed building or buildings and the location of any existing buildings on adjacent lots. Said site plan shall be accompanied by such other plans or data as may be required by the Commission; and **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

(b) The owner, or owners, of the adjacent lot, or lots, which are a portion of a side-by-side development, as specified in Section 12.09.5 C.2.(b), or which are a portion of a group development as specified in Section 12.09.5 C.2.(c), records an agreement in the Office of the County Recorder whereby the owner, or owners, agree to develop said property with a main building in the manner indicated on the site plan approved by the City Planning Commission.

D. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi-Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection B. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

SEC. 12.10. “R3” MULTIPLE DWELLING ZONE.

The following regulations shall apply in the “R3” Multiple Dwelling Zone:

A. Use – No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged, or maintained, except for the following uses, and, when a “Supplemental Use District” is created by the provisions of Article 3 of this chapter, for such uses as may be permitted therein:

1. Any use permitted in the “R2” Two- family Zone.

2. Group dwellings.

3. Multiple dwellings.
4. Apartment houses. **(Added by Ord. No. 107,884, Eff. 9/23/56.)**
5. Boarding houses, rooming houses or light housekeeping rooms. **(Amended by Ord. No. 113,548, Eff. 6/28/59.)**
- 5.5. Child care facilities for not more than 20 children. **(Added by No. 145,474, Eff. 3/2/74.)**
6. Accessory uses and home occupations, subject to the conditions specified in Section 12.05 A.16. of this Code. **(Amended by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**
7. **(None)**
8. Accessory buildings – Same as R1 Zone – Sec. 12.08 A. **(Amended by Ord. No. 107,884, Eff. 9/23/56.)**
9. **(Deleted by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**
10. Name plates and signs, and required automobile parking spaces as provided for in Section 12.21 A. of this Code. **(Amended by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**
11. Senior Independent Housing. **(Added by Ord. No. 178,063, Eff. 12/30/06.)**
12. Assisted Living Care Housing. **(Added by Ord. No. 178,063, Eff. 12/30/06.)**

B. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi-Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection A. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

C. Area – No building or structure nor the enlargement of any building or structure shall be hereafter erected or maintained unless the following yards and lot areas are provided and maintained in connection with such building, structure or enlargement:

1. **Front Yard** – There shall be a front yard of not less than 15 feet; provided, however, that on key lots the minimum front yard shall be 10 feet. **(Amended by Ord. No. 138,744, Eff. 12/24/69.)**
2. **Side Yards** – For a main building not more than two stories in height there shall be a side yard on each side of said building of not less than five feet, except that where the lot is less than 50 feet in width, the side yard may be reduced to 10% of the width of the lot, but in no event to less than three feet in width. For a building more than two stories in height, one foot shall be added to the width of such side yard for each additional story above the second story, but in no event shall a side yard of more than 16 feet in width be required. **(Amended by Ord. No. 110,225, Eff. 11/23/57.)**
3. **Rear Yard** – There shall be a rear yard of not less than 15 feet in depth. **(Amended by Ord. No. 121,925, Eff. 6/4/62.)**
4. **Lot Area** – **(Amended by Ord. No. 174,994, Eff. 1/15/03.)** Every lot shall have a minimum width of 50 feet and a minimum area of 5,000 square feet. The minimum lot area per dwelling unit shall be 800 square feet.

However, where a lot has a width of less than 50 feet or an area of less than 5,000 square feet and was held under separate ownership or was of record as of September 23, 1956, and the lot was created in conformance with the Subdivision Map Act, the lot may be occupied by any use permitted in this section, except for those uses explicitly requiring more than 5,000 square feet of lot area. In no case, however, shall more than two dwelling units be permitted where a lot has an area of less than 4,000 square feet.

The minimum lot area per guest room shall be 500 square feet.

Exceptions to area regulations are provided for in Section 12.22 C.

5. **Minimum Density.** A minimum density of one Dwelling Unit or Guest Room, inclusive of Accessory Dwelling Units, for every 2,000 square feet of lot area is required for every Housing Development Project on lots meeting the minimum width and lot area requirements for the zone, prior to any subdivision, except when Section 12.22 C.28. applies. The minimum density calculation shall be rounded up to the nearest unit to ensure the minimum density standard is met. If the minimum lot area per Dwelling Unit or Guest Room for the zone does not allow for construction of the required minimum density, the minimum density shall not apply. **(Added by Ord. No. 188,479, Eff. 2/11/25, Oper. 2/11/25.)**

SEC. 12.10.5. RAS3 RESIDENTIAL/ACCESSORY SERVICES ZONE PURPOSE STATEMENT.
(Added by Ord. No. 174,999, Eff. 1/15/03.)

The purpose of this zone is to provide a mechanism to increase housing opportunities, enhance neighborhoods, and revitalize older commercial corridors. The RAS3 Zone is intended to provide a tool to accommodate projected population growth in mixed use and residential projects that is compatible with existing residential neighborhoods.

The following regulations shall apply in the RAS3 Residential/Accessory Services Zone:

A. Use. No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged, or maintained, except for the following uses:

1. Any use permitted in the “R3” Multiple Dwelling Zone.
2. The following uses when located on the ground floor of any residential building permitted in the “R3” Multiple Dwelling Zone when conducted in accordance with the limitations specified in Subsection B., below:
 - (a) Bakery goods shop;
 - (b) Bank;
 - (c) Barber shop or beauty parlor;
 - (d) Book or stationery store;
 - (e) Childcare facility;
 - (f) Clothes cleaning agency or pressing establishment (excluding chemical processing);
 - (g) Clothing store;
 - (h) Clubs or lodges, bridge clubs, fraternal or religious associations;
 - (i) Community facilities as defined in Section 13.09 B.3.;
 - (j) Recreation centers owned and operated by governmental agencies;
 - (k) Confectionery stores;
 - (l) Counseling and referral facilities;
 - (m) Custom dressmaking or millinery stores;
 - (n) Drug stores or pharmacies;
 - (o) Dry goods or notions stores;
 - (p) Florist or gift shops;
 - (q) Grocery, fruit, or vegetable stores;
 - (r) Hardware or electric appliance stores (no repairs on premises);
 - (s) Jewelry stores;
 - (t) Joint Live/work quarters;
 - (u) Meat markets or delicatessens;
 - (v) Offices, business or professional;
 - (w) Photographer;
 - (x) Property management office;
 - (y) Restaurants, tea rooms or cafes (excluding dancing or entertainment and excluding restaurants with drive-through services);

- (z) Schools;
- (aa) Shoe stores or shoe repair stores;
- (bb) Laundries or cleaning establishments or a self-service type, using only automatic machines with non-flammable cleaning fluid;
- (cc) Other uses similar to the above list, when determined as provided for in Section 12.21 A.2.;
- (dd) Uses (not involving open storage) customarily incident to any of the above- named uses and accessory buildings (including storage garages) when located on the same lot. Automobile parking space required in connection with permitted uses as provided for in Section 12.21 A.4.;
- (ee) Facilities for the development of software (including the reproduction of software and data) and other computer and media-related projects and services, not including hardware.

3. Uses permitted in a "Supplemental Use District" when created pursuant to the provisions of Article 3 of this chapter.

B. Restrictions and Limitations.

1. All merchandise shall be new and shall be sold at retail only.
2. All activities are conducted wholly within an enclosed building, except that restaurants may have Outdoor Dining Areas. **(Amended by Ord. No. 188,073, Eff. 1/31/24.)**
3. All products produced, whether primary or incidental, are sold on the premises, and not more than five persons are engaged in the production or in servicing of materials.
4. Notwithstanding the provisions of Section 12.21 A.7., each tenant space may only have one exterior wall sign or projecting sign, not exceeding 20 feet square feet in area, provided the sign does not extend more than two feet beyond the wall of the building, and does not project above the floor of the story immediately above the ground floor. Signs shall not be internally illuminated.
5. Prior approval in accordance with the provisions of Section 12.24.1 shall be required for any lot designated as Public, Quasi-Public, Public/Quasi-Public Use, other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings.

C. Area. No building or structure nor the enlargement of any building or structure shall be erected or maintained unless the following yards and lot areas are provided and maintained in connection with the building, structure or enlargement.

1. **Front Yard.** There shall be a front yard of not less than five feet in depth, except that where the adjoining building on each side maintains a front yard of less than five feet in depth, the required front yard shall be the average of the front yards of the existing building or buildings.
2. **Side Yard.** Not required for the ground floor portion of buildings, when the ground floor is used exclusively for commercial purposes. For all portions of buildings erected and used for residential purposes, there shall be side yards of not less than five feet in width along the residential portion of the perimeter of the building.
3. **Rear Yard.** There shall be a rear yard of not less than 15 feet in depth when the subject property is located adjacent to property zoned RD or more restrictive, otherwise there shall be a rear yard of not less than five feet in depth.
4. **Lot Area.** Every lot shall have a minimum width of 50 feet and a minimum area of 5,000 square feet. The minimum lot area per dwelling unit shall be 800 square feet of lot area for each dwelling unit.

Provided, that where a lot has a width of less than 50 feet or an area of less than 5,000 square feet and was held under separate ownership or was of record as of September 23, 1956, and the lot was created in conformance with the Subdivision Map Act, the lot may be occupied by any use permitted in this section, except for those uses explicitly requiring more than 5,000 square feet of lot area, and the lot area per dwelling unit shall be not less than 800 square feet. In no case, however, shall more than two dwelling units be permitted where a lot has an area of less than 4,000 square feet.

The minimum lot area per guest room shall be 200 square feet.

Exceptions to area regulations are provided for in Section 12.22 C.

5. **Loading Space.** A loading space shall be provided in accordance with Section 12.21 C.6. for any building that contains a commercial use on the ground floor.

6. **Minimum Density.** A minimum density of one Dwelling Unit or Guest Room, inclusive of Accessory Dwelling Units, for every 2,000 square feet of lot area is required for every Housing Development Project on lots meeting the minimum width and lot area requirements for the zone, prior to any subdivision, except when Section 12.22 C.28. applies. The minimum density calculation shall be rounded up to the nearest unit to ensure the minimum density standard is met. If the minimum lot area per Dwelling Unit or Guest Room for the zone does not allow for construction of the required minimum density, the minimum density shall not apply. **(Added by Ord. No. 188,479, Eff. 2/11/25, Oper. 2/11/25.)**

SEC. 12.11. “R4” MULTIPLE DWELLING ZONE.

The following regulations shall apply in the “R4” Multiple Dwelling Zone:

A. Use – No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged, or maintained, except for the following uses, and, when a “Supplemental Use District” is created by the provisions of Article 3 of this chapter, for such uses as may be permitted therein:

1. Any use permitted in the “R3” Multiple Dwelling Zone.
 2. Churches (except rescue mission or temporary revival) or philanthropic institutions, with yards as required in Sec. 12.21 C.
 3. Child care facilities or nursery schools. **(Amended by Ord. No. 145,474, Eff. 3/2/74.)**
 4. **(Deleted by Ord. No. 188,072, Eff. 7/1/24.)**
 5. Fraternity or sorority houses and dormitories.
 6. Schools, elementary and high, or educational institutions, with yards as required in Sec. 12.21 C.3.
 7. Museums or libraries (non-profit) with yards as required in Sec. 12.21 C.3.
 8. Accessory uses and home occupations, subject to the conditions specified in Section 12.05 A.16. of this Code. **(Amended by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**
 9. Retirement hotels, as defined in Section 12.03. **(Added by Ord. No. 159,714, Eff. 4/8/85.)**
 10. Accessory buildings, including private garages, accessory living quarters, guest homes, recreation rooms, or private stables, provided that:
 - (a) No stable is located or maintained on a lot having an area of less than 20,000 square feet and its capacity does not exceed one equine for each 5,000 square feet of lot area. **(Amended by Ord. No. 157,144, Eff. 11/22/82.)**
 - (b) Accessory living quarters, a guest house, recreation room or a private garage or any combination of said uses may be included in one building, not exceeding two stories in height;
 - (c) An accessory living quarters or guest house shall be considered as a dwelling unit in determining the minimum lot area necessary for the proposed development.
- For the location of accessory buildings, refer to Sec. 12.21 C and Sec. 12.22 C. **(Amended by Ord. No. 107,884, Eff. 9/23/56.)**
11. **(Deleted by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**
 12. Name plates and signs, and required parking spaces as provided for in Section 12.21 A. of this Code. **(Amended by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**

It is not an unreasonable exercise of the police power to prohibit the maintenance of signs respecting a person’s business in front of a dwelling house in an R-4 district.
Kort v. City of Los Angeles. 52 Cal. App. 2d 804.

It is within the police power to regulate the size of signs and the information contained thereon.
Serve Yourself Gas, etc. v. Brock, 39 Cal. 2d 813.
 13. Shelter for the homeless (as defined in Section 12.03 of this Code) containing not more than 30 beds and designed to serve not more than 30 persons. Except within the Central City Community Plan area, any shelter for the homeless

established pursuant to this subdivision shall be located at least 600 feet from another such shelter. The minimum number of off-street parking spaces provided in conjunction with such use shall comply with the requirements of Section 12.21 A.4.(w) of this Code. **(Added by Ord. No. 161,427, Eff. 8/2/86.)**

14. Eldercare Facility. **(Added by Ord. No. 178,063, Eff. 12/30/06.)**

B. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi-Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection A. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

C. Area. No building or structure nor the enlargement of any building or structure shall be hereafter erected or maintained unless the following yards and lot areas are provided and maintained in connection with such building, structure or enlargement.

1. **Front Yard** – Same as required in “R3” Zone – Sec. 12.10 C.1.

2. **Side Yards** – For a main building not more than two stores in height, there shall be a side yard on each side of said building of not less than five feet, except that where the lot is less than 50 feet in width, the side yard may be reduced to 10% of the width of the lot, but in no event to less than three feet in width. For a building more than two stories in height, one foot shall be added to the width of such side yard for each additional story above the second story, but in no event shall a side yard of more than 16 feet in width be required. **(Amended by Ord. No. 110,225, Eff. 11/23/57.)**

3. **Rear Yard** – There shall be a rear yard of not less than 15 feet in depth. For a building more than three stories in height, one foot shall be added to the depth of such rear yard for each additional story above the third story, but such rear yard need not exceed 20 feet. **(Amended by Ord. No. 121,925, Eff. 6/4/62.)**

4. **Lot Area** – **(Amended by Ord. No. 174,994, Eff. 1/15/03.)** Every lot shall have a minimum width of 50 feet and a minimum area of 5,000 square feet. The minimum lot area per dwelling unit shall be 400 square feet.

However, where a lot has a width of less than 50 feet or an area of less than 5,000 square feet and was held under separate ownership or was of record as of September 23, 1956, and the lot was created in conformance with the Subdivision Map Act, the lot may be occupied by any use permitted in this section, except for those uses explicitly requiring more than 5,000 square feet of lot area. In no case, however, shall more than two dwelling units be permitted where a lot has an area of less than 4,000 square feet.

The minimum lot area per guest room shall be 200 square feet.

Exceptions to area regulations are provided for in Section 12.22 C.

5. Loading space as required by Section 12.21 C.6.

Exceptions to Area regulations are provided for in Sec. 12.22 C.

6. **Minimum Density.** A minimum density of one Dwelling Unit or Guest Room, inclusive of Accessory Dwelling Units, for every 2,000 square feet of lot area is required for every Housing Development Project on lots meeting the minimum width and lot area requirements for the zone, prior to any subdivision, except when Section 12.22 C.28. applies. The minimum density calculation shall be rounded up to the nearest unit to ensure the minimum density standard is met. If the minimum lot area per Dwelling Unit or Guest Room for the zone does not allow for construction of the required minimum density, the minimum density shall not apply. **(Added by Ord. No. 188,479, Eff. 2/11/25, Oper. 2/11/25.)**

SEC. 12.11.5. RAS4 RESIDENTIAL/ACCESSORY SERVICES ZONE PURPOSE STATEMENT.
(Added by Ord. No. 174,999, Eff. 1/15/03.)

The purpose of this zone is to provide a mechanism to increase housing opportunities, enhance neighborhoods, and revitalize older commercial corridors. The RAS4 Zone is intended to provide a tool to accommodate projected population growth in mixed use and residential projects that is compatible with existing residential neighborhoods.

The following regulations shall apply in the RAS4 Residential/Accessory Services Zone:

A. Use. No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged, or maintained, except for the following uses,

1. Any use permitted in the “R4” Multiple Dwelling Zone.

2. The following uses when located on the ground floor of any residential building permitted in the “R4”

- (a) Bakery goods shop;
- (b) Bank;
- (c) Barber shop or beauty parlor;
- (d) Book or stationery store;
- (e) Childcare facility;
- (f) Clothes cleaning agency or pressing establishment (excluding chemical processing);
- (g) Clothes store;
- (h) Clubs or lodges, bridge clubs, fraternal or religious associations;
- (i) Community facilities as defined in Section 13.09 B.3.;
- (j) Recreation centers owned and operated by governmental agencies;
- (k) Confectionery stores;
- (l) Counseling and referral facilities;
- (m) Custom dressmaking or millinery stores;
- (n) Drug stores or pharmacies;
- (o) Dry goods or notions stores;
- (p) Florist or gift shops;
- (q) Grocery, fruit, or vegetable stores;
- (r) Hardware or electric appliance stores (no repairs on premises);
- (s) Jewelry stores;
- (t) Joint Live/work quarters;
- (u) Meat markets or delicatessens;
- (v) Offices, business or professional;
- (w) Photographer;
- (x) Property management office;
- (y) Restaurants, tea rooms or cafes (excluding dancing or entertainment and excluding restaurants with drive-through services);
- (z) Schools;
- (aa) Shoe stores or shoe repair stores;
- (bb) Laundries or cleaning establishments or a self-service type, using only automatic machines with non-flammable cleaning fluid;
- (cc) Other uses similar to the above list, when determined as provided for in Section 12.21 A.2.;
- (dd) Uses (not involving open storage) customarily incident to any of the above-named uses and accessory buildings (including storage garages) when located on the same lot. Automobile parking space required in connection with permitted uses as provided for in Section 12.21 A.4.;
- (ee) Facilities for the development of software (including the reproduction of software and data) and other

computer and media-related projects and services, not including hardware.

3. Uses permitted in a “Supplemental Use District” when created pursuant to the provisions of Article 3 of this chapter.

B. Restrictions and Limitations.

1. All merchandise shall be new and shall be sold at retail only.
2. All activities are conducted wholly within an enclosed building, except that restaurants may have Outdoor Dining Areas. **(Amended by Ord. No. 188,073, Eff. 1/31/24.)**
3. All products produced, whether primary or incidental, are sold on the premises, and not more than five persons are engaged in the production or in servicing of materials.
4. Notwithstanding the provisions of Section 12.21 A.7., each tenant space may only have one exterior wall sign or projecting sign, not exceeding 20 feet square feet in area, provided the sign does not extend more than two feet beyond the wall of the building, and does not project above the floor of the story immediately above the ground floor. Signs shall not be internally illuminated.
5. Prior approval in accordance with the provisions of Section 12.24.1 shall be required for any lot designated as Public, Quasi-Public, Public/Quasi-Public Use, other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

C. Area. No building or structure nor the enlargement of any building or structure shall be erected or maintained unless the following yards and lot areas are provided and maintained in connection with the building, structure or enlargement.

1. **Front Yard.** There shall be a front yard of not less than five feet in depth, except that where the adjoining building on each side maintains a front yard of less than five feet in depth, the required front yard shall be the average of the front yards of the existing building or buildings.
2. **Side Yard.** Not required for the ground floor portion of buildings, when the ground floor is used exclusively for commercial purposes. For all portions of buildings erected and used for residential purposes, there shall be side yards of not less than five feet in width along the residential portion of the perimeter of the building.
3. **Rear Yard.** There shall be a rear yard of not less than 15 feet in depth when the subject property is located adjacent to property zoned RD or more restrictive, otherwise there shall be a rear yard of not less than five feet in depth.
4. **Lot Area.** Every lot shall have a minimum width of 50 feet and a minimum area of 5,000 square feet. The minimum lot area per dwelling unit shall be 400 square feet of lot area for each dwelling unit.

Provided, that where a lot has a width of less than 50 feet or an area of less than 5,000 square feet and was held under separate ownership or was of record as of September 23, 1956, and the lot was created in conformance with the Subdivision Map Act, the lot may be occupied by any use permitted in this section, except for those uses explicitly requiring more than 5,000 square feet of lot area, and the lot area per dwelling unit shall be not less than 400 square feet. In no case, however, shall more than two dwelling units be permitted where a lot has an area of less than 4,000 square feet.

The minimum lot area per guest room shall be 200 square feet.

Exceptions to area regulations are provided for in Section 12.22 C.

5. **Loading Space.** A loading space shall be provided in accordance with Section 12.21 C.6. for any building that contains a commercial use on the ground floor.
6. **Minimum Density.** A minimum density of one Dwelling Unit or Guest Room, inclusive of Accessory Dwelling Units, for every 2,000 square feet of lot area is required for every Housing Development Project on lots meeting the minimum width and lot area requirements for the zone, prior to any subdivision, except when Section 12.22 C.28. applies. The minimum density calculation shall be rounded up to the nearest unit to ensure the minimum density standard is met. If the minimum lot area per Dwelling Unit or Guest Room for the zone does not allow for construction of the required minimum density, the minimum density shall not apply. **(Added by Ord. No. 188,479, Eff. 2/11/25, Oper. 2/11/25.)**

SEC. 12.12. “R5” MULTIPLE DWELLING ZONE.

The following regulations shall apply in the “R5” Multiple Dwelling Zone:

A. Use. No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged, or maintained, except for the following uses, and, when a “Supplemental Use District” is created by the provisions of Article 3 of this chapter, for such uses as may be permitted therein:

1. Any use permitted in the “R4” Multiple Dwelling Zone.
2. **(Deleted by Ord. No. 188,072, Eff. 7/1/24.)**
3. Retirement hotels, as defined in Section 12.03. **(Added by Ord. No. 159,714, Eff. 4/8/85.)**
4. Clubs or lodges (private non-profit), chartered as such by the State, with yards as required in Sec. 12.21 C.3.
5. Hospitals or sanitariums (except animal hospitals), with yards as required in Sec. 12.21 C.3. **(Amended by Ord. No. 177,325, Eff. 3/18/06.)**
6. Accessory uses and home occupations, subject to the conditions specified in Section 12.05 A.16. of this Code. **(Amended by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**
7. **(None)**
8. Accessory buildings – Same as R4 Zone – Sec. 12.11 A. **(Amended by Ord. No. 107,884, Eff. 9/23/56.)**
9. **(Deleted by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**
10. Name plates and signs, and required parking spaces as provided for in Section 12.21 A. of this Code. **(Amended by Ord. No. 171,427, Eff. 1/4/97, Oper. 3/5/97.)**
11. Skilled Nursing Care Housing. **(Added by Ord. No. 178,063, Eff. 12/30/06.)**
12. Alzheimer’s/Dementia Care Housing. **(Added by Ord. No. 178,063, Eff. 12/30/06.)**

B. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi- Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection A. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

C. Area. No building or structure nor the enlargement of any building or structure shall be hereafter erected or maintained unless the following yards and lot areas are provided and maintained in connection with such building, structure or enlargement:

1. **Front Yard** – Same as required in “R3” Zone – Sec. 12.10 C.1.
2. **Side Yards** – Same as required in “R4” Zone – Sec. 12.11 C.2.
3. **Rear Yard** – Same as required in “R4” Zone – Sec. 12.11 C.3.
4. **Lot Area** – **(Amended by Ord. No. 174,994, Eff. 1/15/03.)** Every lot shall have a minimum width of 50 feet and a minimum area of 5,000 square feet. The minimum lot area per dwelling unit shall be 200 square feet.

However, where a lot has a width of less than 50 feet or an area of less than 5,000 square feet and was held under separate ownership or was of record as of September 23, 1956, and the lot was created in conformance with the Subdivision Map Act, the lot may be occupied by any use permitted in this section, except for those uses explicitly requiring more than 5,000 square feet of lot area. In no case, however, shall more than two dwelling units be permitted where a lot has an area of less than 4,000 square feet.

Exceptions to area regulations are provided for in Section 12.22 C.

5. **Loading Space** – as required by Sec. 12.21 C.6.
6. **Minimum Density.** A minimum density of one Dwelling Unit or Guest Room, inclusive of Accessory Dwelling Units, for every 2,000 square feet of lot area is required for every Housing Development Project on lots meeting the minimum width and lot area requirements for the zone, prior to any subdivision, except when Section 12.22 C.28. applies. The minimum density calculation shall be rounded up to the nearest unit to ensure the minimum density standard is met. If the minimum lot area per Dwelling Unit or Guest Room for the zone does not allow for construction of the required minimum density, the minimum density shall not apply. **(Added by Ord. No. 188,479, Eff. 2/11/25, Oper. 2/11/25.)**

SEC. 12.12.1. “P” AUTOMOBILE PARKING ZONE.

Land classified as a “P” Zone may also be classified in either an “A” or “R” Zone. The following regulations shall apply to the “P” Automobile Parking Zone:

A. Use – No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged, or maintained, except for the following uses, and, when a “Supplemental Use District” is created by the provisions of Article 3 of this chapter, for such uses as may be permitted therein:

1. Public or private parking areas (subject to the regulations of Section 12.21 A.5. and 6.), including the use of such parking areas for ingress to and egress from adjoining buildings. **(Amended by Ord. No. 144,082, Eff. 12/11/72.)**

2. Parking buildings which are located entirely below the natural or finished grade of the lot whichever is lower, and are designed to be obscured from view, including parking buildings which are attached to or integrated with buildings in other zones. Ducts and penthouses enclosing ventilating equipment, if not closer than 50 feet to an A or R Zone, stair shafts and guard railings around depressed ramps, may be located not to exceed 4 feet above grade. **(Amended by Ord. No. 117,399, Eff. 12/4/60.)**

3. **(Amended by Ord. No. 140,890, Eff. 10/17/70.)** — The following signs located on a public parking area or parking building:

(a) Internal traffic directional signs indicating entrance or exit at each permitted driveway. Not more than two such signs shall be permitted at each driveway nor shall any such sign have a surface area in excess of six square feet.

(b) Identification signs displaying only the names of the operators or sponsors of the parking area (including customary emblems or trademarks), the hours of operation and the parking charges made in accordance with the following regulations:

(1) On any lot there may be one such sign not exceeding 25 square feet in area adjacent to any one street, except when required by Sec. 103.202 of this Code. Such sign shall not be located within 30 feet of an A or R Zone.

(2) On a lot having at least 100 feet of frontage along a major or secondary highway in lieu of the sign permitted by Subparagraph (1), there may be an identification sign, the size of which shall be calculated at a ratio of .25 square feet of sign area for each foot of said frontage for the first 100 feet; at a ratio of .50 square feet of sign area for each foot of said frontage beyond the initial 100 feet and up to a total of 200 feet of frontage; and at a ratio of .75 square feet of sign area for each foot of said frontage beyond 200 feet and up to a total of 300 feet of frontage. In no case shall this sign exceed 150 square feet in area, in which, if applicable, advertising may be placed on both a front and back side; a dimension greater than 15 feet on any one side; and on an overall height of 30 feet. Such sign shall not be located within 50 feet of an A or R Zone, and not more than one such sign may be located on any one lot frontage. Said sign may be of a pylon type providing that the combined area of all individual identification plaques do not exceed that allowed for the total lot frontage. Where such identification sign is directly opposite and across the street from an A or R Zone, all lettering and identifying matter shall be placed on a face of the sign which is at right angles to the lot line abutting the highway at the nearest point to the sign.

All signs permitted in the P Zone may be illuminated but shall comply with the requirements set forth in Sec. 62.200 of this Code and shall not contain any flashing, moving or animated parts or features.

(3) All such signs abutting a major or secondary highway or a local street shall be placed clear of the ultimate street dedication line determined in accordance with the current Standard Street Dimensions adopted by the City Planning Commission.

(4) Where the sign area has been previously determined and the lot frontage subsequently altered either by sale, division of land, or other means, a new determination based on the new lot frontages must be made by the Department of City Planning for allowable sign areas in accordance with the provisions of this section. Notwithstanding any other provision of this article, any existing signs which are in excess of the size limitations contained in this section may be maintained, provided that the owner or owners of record of all lots whose frontages were included in the original frontage, record in the office of the County Recorder a covenant or covenants, running with the land, in which said owner or owners agree to erect no new signs until the existing signs which are in excess of the size limitations contained in this section have been removed or are made to conform to said size limitations. A copy of said recorded covenant or covenants shall be filed with the Department of Building and Safety by said owner or owners. Further, if said covenant or covenants are not recorded, any existing signs which are in excess of the size limitations contained in this section must be removed or made to conform to said size limitations within six months of

the date on which the frontage was altered. In addition, the applicant shall advise the Superintendent of Building and Safety in writing within six months that the existing signs which are in excess of the size limitations have been removed.

EXCEPTION: The foregoing provisions shall not apply in those instances where a sign island of C2 Zone has been established within a P-zoned area by means of a Zone Change pursuant to Sec. 13B.1.4. (Zone Change) of Chapter 1A of this Code and/or the adjustment to a zone boundary pursuant to Sec. 13B.5.2. (Adjustment) of Chapter 1A of this Code. In those instances, no building permits for the erection of signs in the surrounding P Zone shall be issued without prior determination and authorization by the action of the decision maker. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

4. Uses customarily incident to the operation of a public parking area, including parking guard or attendant shelters. There may be one such shelter on each public parking area, and one additional shelter for each 300 feet of street frontage in excess of 300 feet. No such shelter shall have a floor area in excess of 50 square feet. Such shelter shall not be located within 15 feet of any street, in any required yard area, not within 30 feet of an A or R Zone. **(Added by Ord. No. 117,399, Eff. 12/4/60.)**

5. Where a lot in a P Zone is also classified in an A or R Zone, such lot may be used either for any purpose permitted in such A or R Zone, or for any purpose enumerated in this subsection but in no event for both purposes. **(Added by Ord. No. 117,399, Eff. 12/4/60.)**

6. **(Amended by Ord. No. 134,633, Eff. 7/17/67.)** Where a combination of the C and P Zones has been established on a lot, a sign or cantilevered canopy, which is permitted on the C Zone portion and is attached to a building thereon, may project not more than 15 feet into the P Zone, provided that such sign or cantilevered canopy is at least eight feet above the subjacent walkway or established grade and that no vertical supports are located in the P Zone.

Where an automobile service station development is to be located on property part of which is in a "C" Zone and part of which is in a "P" Zone, the underground storage tanks which are incidental to the service station may be located in the "P" Zone, and the temporary parking of trucks for purposes of servicing such tanks may be permitted in the "P" Zone.

7. Conditional uses as allowed pursuant to Section 12.24 W.49. of this Code when the location is approved pursuant to the provisions of that section. **(Added by Ord. No. 174,132, Eff. 9/3/01.)**

8. Dwelling unit or units constructed on a lot in a small lot subdivision and approved by the Advisory Agency, pursuant to Article 7 of this Chapter and Div. 13B.7. (Division of Land) of Chapter 1A of this Code, in conformity with the provision of 12.22 C.27. of this Chapter. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

B. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi-Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection A. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

C. Area. Where a lot in a "P" zone is also classified as an "A" or "R" Zone, the area regulations of such "A" or "R" Zone shall apply, except that for a public parking area the front yard may be as provided for in Section 12.21 A.6.(a) of this Code. **(Amended by Ord. No. 152,467, Eff. 7/14/79.)**

SEC. 12.12.1.5. "PB" PARKING BUILDING ZONE.*

* All property within the City of Los Angeles in the PB Zone on the effective date of this ordinance shall hereafter be classified as being in Height District No. 1. The Director of Planning is hereby instructed to make all changes necessary to carry out the purposes and intent of this ordinance.

The following regulations shall apply in the "PB" Parking Building Zone:

A. Use – No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged or maintained, except for the following uses, and, when a "Supplemental Use District" is created by the provisions of Article 3 of this chapter, for such uses as may be permitted therein:

1. Any use permitted in the "P" Automobile Parking Zone.

2. **(Amended by Ord. No. 138,040, Eff. 3/23/69.)** Parking buildings, including those which are attached to or integrated with buildings in other zones, provided that:

(a) The buildings are constructed with a continuous, enclosing wall at least three and one-half feet in height at each floor level, except that the wall shall not be more than three feet in height along those portions of the building within 15 feet of an entrance or exit driveway opening. Said enclosing wall need not be solid but it shall be constructed of material designed and arranged so as to effectively block light emitted on a horizontal plane from the building. **(Amended by Ord. No. 160,273, Eff. 9/16/85.)**

(b) The vehicular entrances and exits to the building are located and maintained in accordance with a plan approved by the Department of Traffic so as to interfere as little as possible with pedestrian and vehicular traffic on the adjacent street.

3. Uses customarily incident to the operation of a parking garage, including the furnishing of gasoline and oil, and lubrication and polishing of automobiles and the exchanging of tires and batteries, provided that all of such uses are conducted completely within the building and not above the ground floor, and that no sign advertising such uses is visible from outside the building. In no event shall the repairing or washing of automobiles be permitted. **(Amended by Ord. No. 122,569, Eff. 9/2/62.)**

4. Conditional uses as allowed pursuant to Section 12.24 W.49. of this Code when the location is approved pursuant to the provisions of that section. **(Added by Ord. No. 174,132, Eff. 9/3/01.)**

B. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi-Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection A. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

C. Area. No building or structure, nor the enlargement of any building or structure shall be erected or maintained unless the following yards are provided and maintained in connection with such building, structure or enlargement:

1. **Front Yard.** Wherever any portion of a frontage in which a "PB" zoned lot is located, is classified in an "A", "RE", "RS", "R1" or "R2" Zone or wherever the portion of the frontage directly opposite and across the street from the lot in the "PB" Zone is classified in an "A", "RE", "RS", "R1", or "R2" Zone, a front yard at least ten feet in depth shall be provided and maintained; except that wherever any portion of a frontage in which a "PB" zoned lot is located, is classified in an "RD", "R3", "R4", or "R5" Zone, or wherever the portion of the frontage directly opposite and across the street from the lot in the "PB" Zone is classified in an "RD", "R3", "R4" or "R5" Zone, a front yard at least five feet in depth shall be provided and maintained. Except for the necessary driveway approaches, the required front yard space shall be fully landscaped with lawn, trees, shrubs or suitable ground cover, which shall be maintained in good condition at all times. In no event shall said required front yard space be used for the parking of automobiles. **(Amended by Ord. No. 127,777, Eff. 8/1/64.)**

2. **Side Yard.** Where the side of a lot in the PB Zone abuts upon the side of a lot in an A or R Zone, a five foot side yard shall be provided and maintained for buildings not more than two stories in height. Where the side of a lot in the PB Zone abuts upon a public street and is located in a frontage in which any portion is classified in an A or R Zone, or is directly opposite and across the street from frontage in the A or R Zone, a five-foot side yard shall be provided and maintained adjoining said street line for buildings not more than two stories in height. For buildings more than two stories in height, one foot shall be added to the width of a required side yard for each additional story above the second story. Except for the necessary driveway approaches or paved pedestrian access ways, the required side yard space shall be landscaped with shrubs, trees or suitable ground cover, which shall be maintained in good condition at all times. **(Amended by Ord. No. 138,040, Eff. 3/23/69.)**

3. **Rear Yard.** Where the rear of a lot in the PB Zone abuts upon a lot in an A or R Zone, a rear yard at least five feet in depth shall be provided and maintained for a building not more than two stories in height. For a building more than two stories in height, one foot shall be added to the depth of such rear yard for each additional story above the second story. Except for the necessary driveway approaches or paved pedestrian access ways, the required rear yard space shall be landscaped with shrubs, trees or suitable ground cover, which shall be maintained in good condition at all times.

4. **Exception.** The provisions of this subsection concerning the requirements for front, side and rear yards shall not apply to the basement portions of a building which are completely below the natural or finished grade of the lot, whichever is lower. **(Amended by Ord. No. 122,569, Eff. 9/2/62.)**

SEC. 12.12.2. "CR" LIMITED COMMERCIAL ZONE.
(Amended by Ord. No. 148,783, Eff. 10/14/76.)

The following regulations shall apply in the "CR" Limited Commercial Zone:

A. Use – (Amended by Ord. No. 144,365, Eff. 4/5/73, Operative 9/1/73.) No building structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged, or maintained, except for the following uses, and, when a “Supplemental Use District” is created by the provisions of Article 3 of this chapter, for such uses as may be permitted therein:

1. The following uses when conducted wholly within an enclosed building:

(a) Bank, or financial institution.

(b) Business college, professional or scientific school or college (classroom or lecture instruction only); not including a music school, trade school, nor any school specializing in manual training, shop work or in the repair or maintenance of machinery or mechanical equipment.

(c) Club or lodge (nonprofit).

(d) **(Deleted by Ord. No. 188,072, Eff. 7/1/24.)**

(e) Museum or library (non-profit).

(f) Office, general business or professional, including that of a real estate or stock broker, or an insurance or building and loan company.

(g) Prescription pharmacy when conducted within a permitted office building, provided: that entrances to the pharmacy are located inside of the building; that no sign or other form of advertising is visible from outside the office building; that no sign or other form of advertising is utilized in any manner whatsoever outside of the building as a means of advertising the prescription pharmacy; and that the prescription pharmacy remains open for business only between the hours of 7:00 a.m. to 8:00 p.m., Monday through Saturday. **(Amended by Ord. No. 165,403, Eff. 2/17/90.)**

(h) Counseling and referral facilities. **(Added by Ord. No. 149,517, Eff. 5/26/77.)**

1.5. Child care facilities or nursery schools. **(Added by Ord. No. 145,474, Eff. 3/2/74.)**

2. Church (except rescue mission or temporary revival).

3. Park, playground, or community center, owned and operated by a governmental agency.

4. Public parking area when located and developed as required in Section 12.21 A.6., with signs as permitted in Section 12.21.1 A.3.

4.5. Any single family dwelling, two- family dwelling or apartment house use permitted in the R4 Multiple Dwelling Zone provided that all the regulations of said zone are complied with. **(Added by Ord. No. 148,783, Eff. 10/14/76.)**

5. School, elementary or high, or educational institution.

6. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)** Signs indicating the name of the person, business, or the type of business occupying the premises, or the name of the building. Such signs shall be attached to a building and all letters, lights and other identification matter shall be confined to only one surface of the sign, which surface shall be parallel with and facing the front lot line; except that on a corner lot such signs may be placed on a building so that the surface on which the identification matter is confined, is parallel with the side street lot line, or where a building is constructed with a diagonal or curved wall facing the adjacent street intersection, the signs may be attached to such wall so that the surface, on which the identification matter is confined, is parallel thereto. No portion of any sign on a lot shall extend along the side street more than 50 feet from the principal street upon which said lot abuts (for the determination of the principal street, refer to Subsection C of this section).

No portion of any such sign shall project more than 12 inches beyond the wall of the building nor project above the roof ridge or parapet wall (whichever is the higher) of the building.

A Zoning Administrator shall determine the application of these regulations concerning the required placement of signs, where such regulations are difficult to apply because of the unusual design of a building or its location on the lot, or because of the odd shape of the lot.

Provided, however, that any name plate or sign permitted on a lot in an R Zone by Section 12.21 A.7. of this Chapter shall likewise be permitted on a lot in a CR Zone containing no building or structure.

7. Conditional uses enumerated in Section 12.24 of this Chapter when approved pursuant to Div. 13B.2. (Quasi-Judicial Review) of Chapter 1A of this Code. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

8. Other uses similar to those listed in this subsection, when determined by a Zoning Administrator, as provided for in Section 12.21 A.2., but not including stores, shops or other establishments where goods, wares or merchandise are displayed, sold or serviced.

9. Uses (not involving open storage) customarily incident to any of the above uses, and accessory buildings (including storage garages), when located on the same lot.

10. Automobile parking space required as provided in Section 12.21 A.4. in connection with all uses permitted in this zone.

11. **(Deleted by Ord. No. 171,687, Eff. 8/19/97.)**

12. Mini-shopping centers which comply with the provisions of Section 12.22 A.23. **(Added by Ord. No. 164,201, Eff. 1/10/89.)**

13. Restaurant, when conducted within a permitted office building, provided: that entrances to the restaurant are located inside of the building; that no sign or other form of advertising is visible from outside the office building; that no sign or other form of advertising is utilized in any manner whatsoever outside of the building as a means of advertising the restaurant; that the restaurant remains open for business only between the hours of 7 a.m. to 8 p.m., Monday through Saturday; and that no entertainment or dancing is conducted or permitted. Notwithstanding the foregoing, Outdoor Dining Areas are permitted. **(Amended by Ord. No. 188,073, Eff. 1/31/24.)**

14. Wireless antennas, including the associated equipment cabinets, located on the rooftops of buildings when established in conformance with the standards contained in Section 12.21 A.21. of this Code, and which are not located within a scenic parkway specific plan, scenic corridor specific plan, a roadway designated as a scenic highway within a specific plan area; or on the rooftops of buildings that are designated on the National Register of Historic Places, including Contributing Buildings in National Register Historic Districts, the California Register of Historic Resources, the City of Los Angeles List of Historic-Cultural Monuments, or a Contributing Structure located in an Historic Preservation Overlay Zone (HPOZ) that has been established pursuant to Section 12.20.3 of this Code. **(Added by Ord. No. 177,120, Eff. 12/26/05.)**

B. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi- Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection A. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

C. Area. (Amended by Ord. No. 144,365, Eff. 4/5/73 Operative, 9/1/73.) No building nor structure nor the enlargement of any building or structure shall be erected or maintained unless the following yards, lot areas and loading spaces are provided and maintained in connection with such building, structure or enlargement.

In applying the provisions of this section, the front lot line of a corner lot shall be the line separating said lot from the principal street upon which it abuts. Where said lot abuts upon a major or secondary highway such highway shall be construed as being the principal street. Where a lot abuts upon two or more highways, and in all other cases, a Zoning Administrator shall determine which street is the principal street.

1. **Front Yard** – There shall be a front yard of not less than 10 feet in depth.

2. **Side Yards** – Side yards shall be required only in the following instances:

(a) Along the side street lot line of every corner lot in the CR Zone.

(b) Where the side lot line of the lot in the CR Zone abuts upon the side of a lot in an A or R Zone.

(c) For all portions of buildings erected and used for residential purposes.

The width of the yard required along the side street lot line shall be not less than 10 percent of the lot width but need not exceed 10 feet and shall not be less than five feet.

The width of the yard abutting an A or R Zone or required for buildings erected and used for residential purposes shall be not less than 10 percent of the lot width, but need not exceed five feet and shall be not less than three feet. One foot shall be added to the width of such side for each story above the second story, but such side yard need not exceed 16 feet in width.

3. **Rear Yards** – There shall be a rear yard of not less than 15 feet in depth. One foot shall be added to the depth of such rear yard for each additional story above the third story.

4. **Lot Area** – The lot area requirements of the R4 Zone (Section 12.11 C.4.) shall apply to all portions of buildings erected and used for residential purposes. **(Amended by Ord. No. 148,783, Eff. 10/13/76.)**

5. **Loading Space** – As required by Section 12.21 C.6. Exceptions to area regulations are provided in Section 12.22 C.

6. **Minimum Density.** A minimum density of one Dwelling Unit or Guest Room, inclusive of Accessory Dwelling Units, for every 2,000 square feet of lot area is required for Housing Development Project on lots meeting the minimum width and lot area requirements for the zone, prior to any subdivision, except when Section 12.22 C.28. applies. The minimum density calculation shall be rounded up to the nearest unit to ensure the minimum density standard is met. If the minimum lot area per Dwelling Unit or Guest Room for the zone does not allow for construction of the required minimum density, the minimum density shall not apply. **(Added by Ord. No. 188,479, Eff. 2/11/25, Oper. 2/11/25.)**

SEC. 12.13. “C1” LIMITED COMMERCIAL ZONE.

The following regulations shall apply to the “C1” Limited Commercial Zone:

A. Use – No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged or maintained, except for the following uses, and when a “**Supplemental Use District**” is created by the provisions of Article 3 of this chapter, for such uses as may be permitted therein:

1. Any use permitted in the CR Limited Commercial Zone but not including a church, educational institution, museum or school (elementary or high), provided that all the regulations of said CR zone are complied with except as provided in this section. Any residential use permitted in the R3 Multiple Residential Zone provided that all the regulations of said R3 zone are complied with except as provided in this section. **(Amended by Ord. No. 157,994, Eff. 9/25/82.)**

1.5. **(Deleted by Ord. No. 188,072, Eff. 7/1/24.)**

2. **(Amended by Ord. No. 140,726, Eff. 9/3/70.)** The following retail stores, shops or businesses when conducted in accordance with the limitations hereafter specified:

(a) Types of Uses:

- (1) Bakery goods shop;
- (2) **(None)**
- (3) Barber shop or beauty parlor;
- (4) Book or stationery store;
- (5) Clothes cleaning agency or pressing establishment;
- (6) Clubs or lodges, bridge clubs, fraternal or religious associations; **(Amended by Ord. No. 144,365, Eff. 4/5/73, Oper. 9/1/73.)**
- (7) Confectionery store;
- (8) Custom dressmaking or millinery store;
- (9) Drugstore;
- (10) Dry goods or notions store;
- (11) Florist or gift shop;
- (12) Grocery, fruit or vegetable store;
- (13) Hospital, sanitarium or clinics (except animal hospitals). **(Amended by Ord. No. 177,325, Eff. 3/18/06.)**
- (14) Hardware or electric appliance store;
- (15) Jewelry store;

- (16) Laundry agency;
- (17) Meat market or delicatessen store;
- (18) Office, business or professional;
- (19) Photographer;

(20) Restaurant, tea room or café (excluding dancing or entertainment). Restaurants with drive-through service that adjoin or are across the street from or separated only by an alley from any portion of a lot in a residential zone or use or in an RA Zone, shall be subject to the conditional use requirements of Section 12.24 W.17. **(Amended by Ord. No. 173,492, Eff. 10/10/00.)**

- (21) Shoe store or shoe repair store;
- (22) Tailor, clothing or wearing apparel shop;

(23) Laundries or cleaning establishments of a self-service type using only automatic machines with non-flammable cleaning fluid; **(Added by Ord. No. 140,726, Eff. 9/4/70.)**

(24) Other uses similar to the above list when determined as provided for in Section 12.21 A.2.; **(Added by Ord. No. 140,726, Eff. 9/4/70.)**

(25) Uses (not involving storage) customarily incident to any of the above-named uses and accessory buildings (including storage garages) when located on the same lot. Automobile parking space required in connection with permitted uses as provided for in Section 12.21 A.4.

(26) **(Amended by Ord. No. 173,754, Eff. 3/5/01.)** Indoor swap meets when authorized pursuant to the provisions of Section 12.24 W.42.

(27) Joint living and work quarters for the following occupations: accountants; architects; artists and artisans; attorneys; computer software and multimedia related professionals; consultants; engineers; fashion, graphic, interior and other designers; insurance, real estate and travel agents; photographers and other similar occupations as determined by the Zoning Administrator, provided that the commercial uses are permitted by the underlying zone. **(First Sentence Amended by Ord. No. 172,572, Eff. 6/3/99.)** For all existing buildings, the yards required shall be the same as the yards observed by the existing structures on the site. For an existing building, for which a building permit was issued before April 1, 1994, and which contains no more than eight living and work quarters, the number of parking spaces required shall be the same as the number of spaces existing on the site. All other buildings used for this purpose must meet the parking and yard requirements for residential buildings. **(Added by Ord. No. 169,670, Eff. 5/13/94.)**

(28) Facilities for the development of software (including the reproduction of software and data) and other computer and media-related products and services, not including hardware. **(Added by Ord. No. 172,106, Eff. 8/14/98.)**

(29) Skilled Nursing Care Housing. **(Added by Ord. No. 178,063, Eff. 12/30/06.)**

(30) Alzheimer's/Dementia Care Housing. **(Added by Ord. No. 178,063, Eff. 12/30/06.)**

(31) Eldercare Facility. **(Added by Ord. No. 178,063, Eff. 12/30/06.)**

(b) Limitations:

(1) **(Amended by Ord. No. 173,492, Eff. 10/10/00.)** All merchandise shall be new and shall be sold at retail only, unless the sale of the merchandise is authorized in an indoor swap meet pursuant to the provisions of Section 12.24 W.42.

(2) All activities are conducted wholly within an enclosed building, except that restaurants may have Outdoor Dining Areas. **(Amended by Ord. No. 188,073, Eff. 1/31/24.)**

(3) All products produced, whether primary or incidental, are sold on the premises, and not more than five persons are engaged in such production or in servicing of materials. **(Amended by Ord. No. 144,365, Eff. 4/5/73, Oper. 9/1/73.)**

(4) Any exterior sign is attached to a building, does not extend more than two feet beyond the wall of the building, and does not project above the roof ridge or parapet wall (whichever is higher) of the building.

(5) **(Added by Ord. No. 174,097, Eff. 8/26/01.)** All retail stores, shops or businesses shall be limited to less than 100,000 square feet of floor area. This limitation shall apply to the cumulative sum of related or successive permits that are a part of a larger project, such as piecemeal additions to a building, or multiple buildings on a lot or adjacent lots, as determined by the Director of Planning.

B. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi-Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection A. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

C. Area. (Amended by Ord. No. 144,365, Eff. 4/5/73, Oper. 9/1/73.) No building or structure nor the enlargement of any building or structure, shall be erected and maintained unless the following yards, lot areas and loading spaces are provided and maintained in connection with such building, structure or enlargement.

In applying the provisions of this section, the front lot line of a corner lot shall be the line separating the lot from the principal street upon which it abuts. Where said lot abuts upon a major or secondary highway such highway shall be construed as being the principal street. Where a lot abuts upon two or more highways, and in all other cases, a Zoning Administrator shall determine which street is the principal street.

1. **Front Yard.** There shall be a front yard of not less than 10 feet in depth.

2. **Side Yards.** Side yards shall be required only in the following instances:

(a) Along the side street lot line of every corner lot in the C1 Zone.

(b) Where the side lot line of the lot in the C1 Zone abuts upon the side of a lot in an A or R Zone.

(c) For all portions of buildings erected and used for residential purposes.

The width of such required side yard shall not be less than 10 percent of the lot width, but need not exceed five feet and shall not be less than three feet in width. Provided, however, that one foot shall be added to the width of the required side yard for each additional story above the second story, but such side yard need not exceed 16 feet in width.

In all other cases, a side yard for a commercial building shall not be required, but if provided, it shall not be less than three feet in width.

3. **Rear Yard.** A rear yard shall be provided only in the following instances:

(a) Where the rear of the lot in the C1 Zone abuts upon a lot in an A or R Zone.

(b) For all portions of buildings erected and used for residential purposes. Such yard shall be provided and maintained at and above the floor level of the lowest story designed or used for residential purposes, and the full height of the building shall be used in computing the required depth of rear yard.

The depth of such required rear yard shall be not less than 15 feet. One foot shall be added to the depth of such rear yard for each additional story above the third story, but such rear yard need not exceed 20 feet in depth.

4. **Lot Area.** The lot area requirements of the R3 Zone (Section 12.10 C.4.) shall apply to all portions of buildings erected and used for residential purposes. Provided, however, that where the lot is in the "H" Hillside or Mountainous Area, there shall be not more than one dwelling unit for each 5,000 square feet of lot area.

5. **Loading Space.** As required by Section 12.21 C.1. Exceptions to Area regulations are provided for in Section 12.22 C.

6. **Minimum Density.** A minimum density of one Dwelling Unit or Guest Room, inclusive of Accessory Dwelling Units, for every 2,000 square feet of lot area is required for every Housing Development Project on lots meeting the minimum width and lot area requirements for the zone, prior to any subdivision, except when Section 12.22 C.28. applies. The minimum density calculation shall be rounded up to the nearest unit to ensure the minimum density standard is met. If the minimum lot area per Dwelling Unit or Guest Room for the zone does not allow for construction of the required minimum density, the minimum density shall not apply. **(Added by Ord. No. 188,479, Eff. 2/11/25, Oper. 2/11/25.)**

SEC. 12.13.5. “C1.5” LIMITED COMMERCIAL ZONE
(Added by Ord. No. 144,365, Eff. 4/5/73, Oper. 9/1/73.)

The following regulations shall apply to the C1.5 Limited Commercial Zone:

A. Use – No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged or maintained, except for the following uses, and when a “**Supplemental Use District**” is created by the provisions of Article 3 of this chapter, for such uses as may be permitted therein.

1. Any use permitted in the C1 Limited Commercial Zone, provided that all regulations and limitations of said C1 zone are complied with except as provided in this section. Any single- family dwelling, two-family dwelling or apartment house use permitted in the R4 Multiple Dwelling Zone provided that all regulations of said R4 zone are complied with except as provided in this section. **(Amended by Ord. No. 156,994, Eff. 9/25/82.)**

2. The following stores, shops, services or facilities when conducted in accordance with the limitations hereafter specified:

(a) Types of Uses:

- (1) Addressograph service.
- (2) Air conditioning equipment service.
- (3) Appliance repair, household.
- (4) Aquarium.
- (5) Auditorium having a seating capacity for not more than 3,000 people.
- (6) **(None)**
- (7) Baths, Turkish and the like.
- (8) Blueprinting and photostating.
- (9) Bootblack stand.
- (10) Broadcasting studio, without transmitting towers.
- (11) Building materials, retail.
- (12) Burglar alarm business.
- (13) Collection agency office.
- (14) Department store.
- (15) Employment agency or bureau.
- (16) Exhibits, commercial or cultural.
- (17) Export import business, with not more than 3,000 square feet of storage area.
- (18) Frozen food store.
- (19) Interior decorating store.
- (20) Locksmith shop.
- (21) Mimeographing service.
- (22) Museum (for profit).
- (23) Newsstand.
- (24) Physical culture institution, reducing salon.
- (25) Rubber or metal stamp store.

- (26) Sound score production.
- (27) Studio, except drama, dancing, music, and motion picture.
- (28) Swimming pool, commercial.
- (29) Telephone exchange.
- (30) Theater, and showcase theater. **(Amended by Ord. No. 148,910, Eff. 11/17/76.)**
- (31) Trading stamp business.
- (32) Typewriter or adding machine repair.

(b) Limitations. (Amended by Ord. No. 156,924, Eff. 8/23/82.)

- (1) All merchandise shall be sold at retail only;
- (2) All merchandise sold shall be new, except merchandise which is sold incidental to the operation of a permitted repair shop; or unless the sale of used merchandise is authorized in an indoor swap meet pursuant to the provisions of Section 12.24 W.42. **(Amended by Ord. No. 173,492, Eff. 10/10/00.)**
- (3) All activities, including storage, with the exception of Outdoor Dining Areas, shall be conducted wholly within an enclosed building. **(Amended by Ord. No. 188,073, Eff. 1/31/24.)**
- (4) All products produced, whether primary or incidental, shall be sold on the premises, and not more than five persons may be engaged in such production or in servicing of materials at the same time.

3. Golf course or club; not including miniature or pitch and putt courses, golf driving tees or ranges, and similar commercial golf uses.

4. Park, playground or recreational or community center, privately operated. **(Amended by Ord. No. 145,250, Eff. 12/24/73.)**

5. Parking buildings and all buildings containing automobile parking as primary or accessory uses. For the purposes of this section, all references to the "PB" Zone in Section 12.12.1.5 shall be deemed to mean the "C1.5" Zone and the requirements and restrictions applicable to the erection, alteration and maintenance of parking buildings and all buildings containing automobile parking as primary or accessory uses therein shall apply in the "C1.5" Zone. **(Amended by Ord. No. 160,273, Eff. 9/16/85.)**

6. Signs as permitted in the C1 Zone - Section 12.13 A.2.(b)(4).

7. Other uses similar to the above, as provided for in Section 12.21 A.2.

8. Uses (not involving open storage) customarily incident to any of the above uses, and accessory buildings, when located on the same lot.

9. Automobile parking space as required in Section 12.21 A.4., or as provided in connection with all uses permitted in this zone.

10. The conducting of any game of bingo pursuant to the provisions of Article 4.5 of Chapter IV of this Code. **(Added by Ord. No. 153,620, Eff. 5/18/80.)**

11. **(Deleted by Ord. No. 188,072, Eff. 7/1/24.)**

12. **(Deleted by Ord. No. 171,687, Eff. 8/19/97.)**

13. **(Deleted by Ord. No. 171,687, Eff. 8/19/97.)**

B. Area – No building or structure nor the enlargement of any building or structure shall be erected or maintained unless the following yards, lot areas and loading spaces are provided and maintained in connection with such building, structure or enlargement.

- 1. **Front Yard.** There shall be a front yard of not less than 10 feet in depth.
- 2. **Side and Rear Yards.** Same as required in the C1 Zone. (Section 12.13 C.2. and 3.)

3. **Lot Area.** The lot areas requirements of the R4 Zone (Section 12.11 C.4.) shall apply to all portions of buildings erected and used for residential purposes.

4. **Loading Space.** As required by Section 12.21 C.6. Exceptions to area regulations are provided for in Section 12.22 C.

5. **Minimum Density.** A minimum density of one Dwelling Unit or Guest Room, inclusive of Accessory Dwelling Units, for every 2,000 square feet of lot area is required for every Housing Development Project on lots meeting the minimum width and lot area requirements for the zone, prior to any subdivision, except when Section 12.22 C.28. applies. The minimum density calculation shall be rounded up to the nearest unit to ensure the minimum density standard is met. If the minimum lot area per Dwelling Unit or Guest Room for the zone does not allow for construction of the required minimum density, the minimum density shall not apply. **(Added by Ord. No. 188,479, Eff. 2/11/25, Oper. 2/11/25.)**

C. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi-Public Use, other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection A. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

SEC. 12.14. "C2" COMMERCIAL ZONE.

The following regulations shall apply in the "C2" Commercial Zone:

A. Use – No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged or maintained, except for the following uses, and when a "**Supplemental Use District**" is created by the provisions of Article 3 of this chapter, for such uses as may be permitted therein:

1. The following stores, shops or businesses when conducted in accordance with the limitations hereafter specified:

(a) Types of uses:

(1) Any use permitted in the C1.5 Limited Commercial Zone by Section 12.13.5 A.2. of this Code or in the C1 Limited Commercial Zone by Section 12.13 A.2. of this Code. **(Added by Ord. No. 156,924, Eff. 8/23/82.)**

(2) Art or antique shop.

(3) Bird store or taxidermist, or a pet shop for the keeping or sale of domestic or wild animals, other than those wild animals specified in the definition of "**Accessory Use**" as set forth in Section 12.03 of this Code, under an appropriate permit issued by the Department of Animal Services as provided in Section 53.38 of this Code. **(Amended by Ord. No. 174,735, Eff. 9/13/02.)**

(4) Carpenter, plumbing or sheet metal shop.

(5) Catering shop.

(6) Feed and fuel store.

(7) Interior decorating or upholstering shop.

(8) Sign painting shop.

(9) Tire shop, provided the tire shop is in compliance with all of the development standards and operating conditions set forth in Section 12.22 A.28. of this Code. **(Amended by Ord. No. 178,382, Eff. 3/24/07.)**

(10) Restaurant, tea room or cafe (including entertainment other than dancing) or a restaurant with an Outdoor Dining Area. **(Amended by Ord. No. 188,073, Eff. 1/31/24.)**

(b) Limitations:

(1) Any of the stores, shops or business listed in Paragraph (a) may be operated as a retail business, i.e., where the majority of the merchandise sold during each calendar month is sold at retail.

As an integral part of any such retail business, there may be manufacturing of products, or assembling, compounding, processing or treating of materials; providing that the majority of such products and materials sold during each calendar month are also sold at retail; that not more than five persons are engaged in such manufacturing of products and assembling, compounding, processing or treating of materials, and that such products, materials and all activities in connection therewith, are not objectionable due to odor, dust, smoke, noise, vibration or other causes.

(2) Any of the stores, shops or businesses listed in Paragraph (a) may be operated as a wholesale business, i.e., where the majority of the merchandise sold during each calendar month is sold at wholesale. The total area of all space used for storage on the premises in connection with any one such business shall not exceed 4,500 square feet. Such limitation shall include all storage space within a building, and all open storage space as provided for in subdivision 42. of this section. No manufacturing of products nor assembly, compounding, processing or treating of materials shall be conducted in connection therewith.

(3) In connection with the stores, shops or businesses listed in Paragraph (a) all activities, other than incidental storage and outdoor eating areas for ground floor restaurants, shall be conducted wholly within a completely enclosed building. **(Amended by Ord. No. 165,403, Eff. 2/17/90.)**

(4) Any Pet Shop where four or more dogs that are each at least four months of age are kept or maintained shall comply with the following: **(Added by Ord. No. 186,372, Eff. 12/10/19.)**

(i) Development Standards:

a. The total number of adult dogs and/or cats in a Pet Shop shall not exceed one for every 45 square feet of floor area of the facility, rounded up to the nearest whole number, up to a maximum of 40 adult dogs and/or cats.

b. Animal boarding areas shall not occupy the first 25 percent of the depth of the portion of the building used as a Pet Shop, or the first 25 feet, whichever is less, as measured from the front of the shop; and animal boarding areas shall be separated from retail, grooming, or food storage areas. This limitation shall not apply to animal display areas.

c. Onsite activities related to keeping or maintaining animals, including, but not limited to, grooming or feeding, shall be conducted wholly within an enclosed building.

d. Outdoor dog runs and training activities are not permitted.

(ii) Operation Standards:

a. Animals shall not be left outside at any time. This shall not preclude dogs being brought in and out for walks.

b. Where a Pet Shop has an entrance on any side that abuts, has a common corner with, or is across a public right-of-way from any residentially zoned land, pets can only be brought through that entrance between 7 a.m. to 9 p.m. daily.

c. The operator shall submit the proposed dog walking route(s) to the Department of Animal Services for review and approval.

d. The maximum number of dogs to be walked by one caretaker at the same time shall be limited to the number that can be safely controlled by the caretaker, not to exceed three dogs at one time. Any dog defecation generated during dog walking shall be removed immediately and disposed of properly.

e. No unreasonable noise or odor shall be detectible beyond the property line. Sound proofing material and/ or air filtration systems shall be used when such measures are deemed necessary by the Department of Animal Services.

2. Advertising signs or structures and billboards.

3. (Amended by Ord. No. 168,516, Eff. 2/14/93.) Amusement enterprises, including a billiard or pool hall use, whether primary or ancillary to the subject business, bowling alley, games of skill and science, penny arcades (except those containing more than four coin or slug-operated or electrically, electronically or mechanically controlled game machines), shooting gallery, skating rink and the like, if all activities other than incidental storage are conducted wholly within a completely enclosed building, provided that:

(a) Billiard or pool hall use, whether primary or ancillary to the subject business, other than those located in a mini-shopping center and subject to conditional use approval pursuant to Section 12.24 W.27., shall also be subject to the following conditions: **(Amended by Ord. No. 173,492, Eff. 10/10/00.)**

(1) The billiard or pool hall use shall be located at least 500 feet from an A or R zone; and

(2) The billiard or pool hall use shall not be open for business or operate between the hours of 2:00 a.m. and 6:00 a.m.

4. Any use permitted in the C1.5 Limited Commercial Zone provided that all regulations and limitations of the C1.5 Limited Commercial Zone are complied with except as provided in this section. **(Amended by Ord. No. 156,994, Eff. 9/25/82.)**

5. Auditoriums having a seating capacity for not more than three thousand (3,000) people.

6. **(Amended by Ord. No. 169,584, Eff. 4/23/94.)** Automotive fueling and service station, provided that:

(a) **(Amended by Ord. No. 172,468, Eff. 4/1/99.)** All tire and tube repairing, battery servicing, automotive lubrication, mechanical adjustments and other vehicle maintenance activities shall be conducted wholly within a building, except for:

(1) Those servicing operations which are normally made in the area immediately adjacent to the pump island; and

(2) The following services when conducted within the first 18 feet in depth measured perpendicular to the entire length of the building wall containing a garage bay door, provided said area shall not displace any required parking:

(i) electrical diagnostics;

(ii) battery charging and changing; and

(iii) tire removal and replacement, if the vehicle is elevated no more than 12 inches off the ground measured to the bottom of the tire. A portable hoist may be used for this function.

Except as provided in (2)(iii) above, automotive hoists of any type or size shall be located or operated only inside a building.

(b) A six-foot high concrete or masonry wall, for the entire length of the property line, shall be constructed on any lot line which abuts an "A" or "R" Zone, or is separated therefrom only by an alley provided, however, that for a distance of 15 feet from the intersection of the lot line with the street, said wall shall be only 3 feet 6 inches high, and provided further, that where a lot line abuts an alley and the alley is used for ingress and egress the wall may be omitted for a distance not to exceed 25 feet from the intersection of said lot line with the street. Such walls shall be without openings and shall be of solid masonry or concrete with a minimum nominal thickness of 6 inches. Such walls shall be protected from damage or destruction by automobiles by the erection or installation of wheel blocks, guard rails or other appropriate devices on the property.

(c) No driveway approach shall be located within five feet of any property line abutting in an "A" or "R" Zone, said distance to be measured from the intersection of the lot line with the street to the far side of the nearest side slope of the driveway.

(d) No part of any pump island shall be located within 12 feet of any street.

(e) Display and/or storage of merchandise for sale, must be confined to the rear half of the lot measured from all street frontages, except that display of automotive merchandise for sale shall be permitted in enclosed buildings, on the pump islands, in the open within three feet of the exterior walls of the main building, and is not more than two portable or semi-portable cabinets, provided each of said cabinets shall not exceed 6 feet in height, nor exceed 40 square feet in base area, and provided further that said cabinets are located not less than 50 feet from all street lines. The display, rental and/or storage of household moving rental trucks and/or utility rental trailers as defined in Section 12.03 of this Code shall also be permitted in connection with an automobile service station, which is currently active in dispensing gasoline and oil to the general public, and pursuant to the following restrictions:

(1) If the adjoining property, on any two of the three sides of the involved parcel not abutting the main street is in the C1.5, C2, C4 or C5 zone, then up to 10% of the lot area may be used for the display, rental, and/or storage of household moving rental trucks or utility rental trailers.

(2) If the adjoining property, on any two of the three sides of the involved parcel not abutting the main street is in the CM or a less restrictive zone, then up to 25% of the lot area may be used for the display, rental, and/or storage of household moving rental trucks or utility rental trailers.

No storage, display or rental of household moving rental trucks or utility rental trailers permitted by Subparagraphs 1. and 2. above shall take place within 25 feet of a residential zone.

Except for the storage, display or rental of household moving rental trucks and utility rental trailers permitted herein, there shall be no rental, storage or storage for rental purposes of equipment commonly used by contractors or commercial vehicles which exceed a registered net weight of 5,600 pounds.

(f) Except as permitted in Subsection (e) hereof, open-air storage of merchandise or materials, including rubbish containers, used tires, used batteries and items of a similar nature must be confined to a storage area completely enclosed by a solid, non- combustible wall or fence (with necessary self-closing gates) six feet in height. Said storage area must be at least 150 square feet in area. No merchandise or material shall be stored higher than said wall or fence.

(g) Lights used to illuminate the service station site shall be arranged so as to reflect the light away from the adjacent premises in an "A" or "R" Zone and the light standard for such lights shall not exceed 20 feet in height.

(h) **(Repealed by Ord. No. 169,130, Eff. 12/16/93.)**

(i) **(Repealed by Ord. No. 169,130, Eff. 12/16/93.)**

(j) Notwithstanding Section 12.24 W.27. of this Code, the automotive fueling station use shall be in compliance with all of the development standards and operating conditions set forth in Section 12.22 A.28. of this Code. **(Added by Ord. No. 178,382, Eff. 3/24/07.)**

7. **(Amended by Ord. No. 178,382, Eff. 3/24/07.)** Used automobile and trailer sales area, provided the used automobile and trailer sales area is in compliance with all of the development standards and operating conditions set forth in Section 12.22 A.28. of this Code.

New automobile sales area and a secondary used automobile sales area, provided that all of the following conditions are met:

(a) The lot containing the automobile sales areas is located and developed in compliance with the provisions set forth in Section 12.21 A.6. of this Code.

(b) Any incidental repair of automobiles shall be done within a building.

8. Baseball or football stadiums or boxing arenas, having a seating capacity for not more than three thousand (3,000) people.

9. Automotive laundry or wash rack, provided the automotive laundry or wash rack is in compliance with all of the development standards and operating conditions set forth in Section 12.22 A.28. of this Code. **(Amended by Ord. No. 178,382, Eff. 3/24/07.)**

10. Church. **(Added by Ord. No. 145,250, Eff. 12/24/73.)**

11. **(Deleted by Ord. No. 171,687, Eff. 8/19/97.)**

12. Film and tape editing and motion picture reconstruction, provided that only safety film is used; and projection and screening rooms associated with such uses shall seat no more than 100 persons. **(Added by Ord. No. 162,514, Eff. 7/31/87.)**

13. Circus or amusement enterprise of a similar type, transient in character.

14. **(Amended by Ord. No. 173,492, Eff. 10/10/00.)** Drive-in businesses, including theaters, refreshment stands, restaurants, food stores, and the like when not subject to the conditional use requirements of Section 12.24 W.

15. Ferris wheels, carousels, merry-go- rounds, and the like.

16. Film exchange.

17. Hospitals, sanitariums or clinics, except animal hospitals, when located as required by Section 12.21 D.

18. Ice storage house, not more than five (5) tons capacity.

19. Medical or dental clinics and laboratories.
20. Music conservatory or music instruction.
21. Newsstand.
22. Nursery, flower or plant, provided that all incidental equipment and supplies, including fertilizer and empty cans, are kept within a building.
23. Parcel delivery service, branch, if all activities including storage and loading and unloading, are conducted within a completely enclosed building.
24. Parking buildings and all buildings containing automobile parking as primary or accessory uses. All buildings containing automobile parking shall be subject to the requirements of Sections 12.21 A.5. and 12.12.1.5 A. of this Code. **(Amended by Ord. No. 160,273, Eff. 9/16/85.)**
25. Pony riding ring, without stables.
26. Printing, publishing or lithographing establishments.
27. Automotive repair, provided the automotive repair is in compliance with all of the development standards and operating conditions set forth in Section 12.22 A.28. of this Code. **(Amended by Ord. No. 178,382, Eff. 3/24/07.)**
28. **(None)**
29. Public services, including electric distributing substation, fire or police station, telephone exchange, and the like.
30. Second-hand store, except pawnshops, if all activities other than incidental storage are conducted wholly within a completely enclosed building. **(Amended by Ord. No. 171,257, Eff. 10/4/96.)**
31. **(Repealed by Ord. No. 173,979, Eff. 6/29/01.)**
32. Studios (except motion picture).
33. School (elementary or high), educational institution, or private school. **(Added by Ord. No. 145,250, Eff. 12/24/73.)**
34. **(Amended by Ord. No. 173,492, Eff. 10/10/00.)** Indoor swap meets when authorized pursuant to the provisions of Section 12.24 W.42.
35. Trade school, if not objectionable due to noise, odor, vibration, or other similar causes.
36. Wedding chapel, rescue mission or temporary revival church.
37. Massage parlor, where massage, alcohol rub, formentation, electric or magnetic treatment, or similar treatment or manipulation of the human body is administered by a medical practitioner, chiropractor, acupuncturist, physical therapist or similar professional person licensed by the State of California, and including an athletic club, health club, school, gymnasium, state licensed cosmetology or barber establishment, reducing salon, spa or similar establishment where massage or similar manipulation of the human body is offered as an incidental or accessory service. **(Added by Ord. No. 155,718, Eff. 8/6/81.)**
38. Laundries or cleaning establishment, provided that:
 - (a) All activities other than incidental storage are conducted wholly within a completely enclosed building;
 - (b) Not more than five persons are engaged in operating any laundry or cleaning establishment, excluding personnel engaged wholly in pressing, office and delivery work;
 - (c) The majority of the articles washed or cleaned during each calendar month period are handled at retail;
 - (d) The operations are not objectionable due to odor, dust, smoke, noise, vibration or other causes;
 - (e) Not more than two clothes cleaning units shall be used in any clothes cleaning establishment, neither of which shall have a rated load capacity of more than 40 pounds, or in lieu of the aforesaid two clothes cleaning units there may be used one unit with a rated load capacity of more than 40 pounds but it shall in no event exceed a rated load capacity of 80 pounds, and no cleaning fluid shall be used which is explosive or flammable at temperatures below 138.5 degrees Fahrenheit. **(Amended by Ord. No. 143,291, Eff. 6/20/72.)**

39. Miniature or pitch and putt golf courses, golf driving tees or ranges, and similar commercial golf uses. **(Amended by Ord. No. 144,365, Eff. 4/5/73, Oper. 9/1/73.)**

40. Other uses similar to the above, as provided for in Sec. 12.21 A.2.

41. Conditional uses enumerated in Sec. 12.24 when the location is approved pursuant to the provisions of said section. **(Amended by Ord. No. 117,450, Eff. 12/18/60.)**

42. **(Amended by Ord. No. 162,336, Eff. 6/6/87.)** Uses customarily incident to any of the above uses, and accessory buildings, when located on the same lot. Open storage of materials and equipment, including used materials and equipment, shall be permitted only when incidental to the use of an office, store or other commercial building located on the front portion of the same lot, and provided that:

(a) Such storage is located on the rear one-half of the lot and is confined to an area of not to exceed three thousand (3,000) square feet;

(b) No power driven excavating or road building equipment is stored on the premises;

(c) The storage area is completely enclosed by a solid wall or fence not less than six (6) feet in height with necessary solid gates of the same height;

(d) No material or equipment is stored to a height greater than that of the wall or fence enclosing the storage area; and

(e) There shall be no rental, storage or storage for rental purposes of a commercial vehicle which exceeds a registered net weight of 5,600 pounds.

The phrase "used materials and equipment" includes vehicles, boats, or airplanes which are inoperable, wrecked, damaged or unlicensed, i.e. not currently licensed by the Department of Motor Vehicles.

43. Automobile parking space required for dwellings and for buildings other than dwellings, as provided for in Sec. 12.21 A.4.

44. Shelter for the homeless (as defined in Section 12.03 of this Code) containing not more than 30 beds and designed to serve not more than 30 persons. Except within the Central City Community Plan area, any shelter for the homeless established pursuant to this subdivision shall be located at least 600 feet from another such shelter. The residential yard requirements of this section shall not apply to a shelter in an existing non-residential building. The minimum number of off-street parking spaces provided in conjunction with such use shall comply with the requirements of Section 12.21 A.4. (w) of this Code. **(Added by Ord. No. 161,427, Eff. 8/2/86.)**

45. Motion picture, television, video and other media production, no outdoor sets. **(Added by Ord. No. 172,106, Eff. 8/14/98.)**

B. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi- Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection A. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

C. Area. (Amended by Ord. No. 144,365, Eff. 4/5/73, Oper. 9/1/73.) No building or structure nor the enlargement of any building or structure shall be hereafter erected or maintained unless the following yards, lot areas and loading spaces are provided and maintained in connection with such building, structure or enlargement:

1. **Front Yard** – Not required.

2. **Side and Rear Yards** – Not required for buildings erected and used exclusively for commercial purposes.

For all portions of buildings erected and used for residential purposes, side and rear yard conforming to the requirements of the R4 Zone (Section 12.11 C.2. and 3.) shall be provided and maintained at the floor level of the first story used in whole or in part for residential purposes.

3. **Lot Area** – The lot area requirements of the R4 Zone (Section 12.11 C.4.) shall apply to all portions of buildings used for residential purposes.

4. **Loading Space** – As required by Section 12.21 C.6., Exceptions to area regulations are provided for in Section

5. **Minimum Density.** A minimum density of one Dwelling Unit or Guest Room, inclusive of Accessory Dwelling Units, for every 2,000 square feet of lot area is required for every Housing Development Project on lots meeting the minimum width and lot area requirements for the zone, prior to any subdivision, except when Section 12.22 C.28. applies. The minimum density calculation shall be rounded up to the nearest unit to ensure the minimum density standard is met. If the minimum lot area per Dwelling Unit or Guest Room for the zone does not allow for construction of the required minimum density, the minimum density shall not apply. **(Added by Ord. No. 188,479, Eff. 2/11/25, Oper. 2/11/25.)**

SEC. 12.16. “C4” COMMERCIAL ZONE.

The following regulations shall apply in the “C4” Commercial Zone:

A. Use – No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged, or maintained except for the following uses, and when a “**Supplemental Use District**” is created by the provisions of Article 3 of this Chapter, for such uses as may be permitted therein:

1. **(None).**

2. **(Amended by Ord. No. 158,741, Eff. 3/29/84.)** Any use permitted in the C2 Zone, provided that all regulations and limitations of said C2 Commercial Zone are complied with, except:

(a) **(Amended by Ord. No. 177,103, Eff. 12/18/05.)** The following amusement enterprises:

- (1) boxing arena;
- (2) games of skill and science;
- (3) merry-go-round, ferris wheel or carousel;
- (4) penny arcade;
- (5) shooting gallery;
- (6) skating rink;
- (7) Strip tease show. This use shall include an adult cabaret, as defined in Section 12.70 B. of this Code;
- (8) billiard or pool hall;
- (9) bowling alley;
- (10) indoor swap meets, unless authorized pursuant to the provisions of Section 12.24 W.42.; and
- (11) other similar uses, but not including the conducting of any game of bingo authorized pursuant to the provisions of Article 4.5 of Chapter IV of this Code.

(b) **(Repealed by Ord. No. 178,382, Eff. 3/24/07.)**

(c) Baseball or football stadium.

(d) Carpenter shop.

(e) Circus or amusement enterprises of a similar type, transient in character.

(f) Feed and fuel store.

(g) Hospital or sanitarium.

(h) Ice storage house.

(i) **(Deleted by Ord. No. 171,756, Eff. 11/21/97.)**

(j) Pawnshop.

(k) **(Deleted by Ord. No. 171,756, Eff. 11/21/97.)**

- (l) Plumbing or sheet metal shop.
- (m) Pony riding ring.
- (n) Public services, including electric distributing substation
- (o) Second hand store.
- (p) Gymnasiums, health clubs and other similar uses. **(Amended by Ord. No. 177,103, Eff. 12/18/05.)**
- (q) Public auctions, except those ordered by a Court of competent jurisdiction.

This ordinance is constitutional.
People v. Feigenbaum, CR A 2704; 2791.

- (r) Other uses similar to those hereby excepted, as determined by the Administrator.
- (s) **(None)**
- (t) **(Repealed by Ord. No. 178,382, Eff. 3/24/07.)**
- (u) **(Repealed by Ord. No. 178,382, Eff. 3/24/07.)**

B. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi- Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on those maps as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on those maps as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection A. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

C. Area. (Amended by Ord. No. 148,783, Eff. 10/13/76.) – No building or structure nor the enlargement of any building or structure shall be hereafter erected or maintained unless the following yards, lot areas and loading spaces are provided and maintained in connection with such building, structure or enlargement.

1. **Front Yard.** Not required.
2. **Side and Rear Yards.** Not required for buildings erected and used exclusively for commercial purposes.

For all portions of buildings erected and used for residential purposes, side and rear yards conforming to the requirements of the R4 Zone (Section 12.11 C.2. and 3.) shall be provided and maintained at the floor level of the first story used for residential purposes.

3. **Lot Area.** The lot area requirements of the R4 Zone (Section 12.11 C.4.) shall apply to all portions of buildings erected and used for residential purposes. **(Amended by Ord. No. 148,783, Eff. 10/13/76.)**

4. **Loading Space** – As required by Section 12.21 C.6. Exceptions to area regulations are provided for in Section 12.22 C.

5. **Minimum Density.** A minimum density of one Dwelling Unit or Guest Room, inclusive of Accessory Dwelling Units, for every 2,000 square feet of lot area is required for every Housing Development Project on lots meeting the minimum width and lot area requirements for the zone, prior to any subdivision, except when Section 12.22 C.28. applies. The minimum density calculation shall be rounded up to the nearest unit to ensure the minimum density standard is met. If the minimum lot area per Dwelling Unit or Guest Room for the zone does not allow for construction of the required minimum density, the minimum density shall not apply. **(Added by Ord. No. 188,479, Eff. 2/11/25, Oper. 2/11/25.)**

SEC. 12.16.1. “CW” CENTRAL CITY WEST SPECIFIC PLAN ZONE. **(Added by Ord. No. 166,704, Eff. 4/3/91.)**

The following regulations shall apply in the “CW” Central City West Specific Plan Zone:

A. Purpose. The regulations set forth in this section are intended to reflect the regulations contained in the Central City West Specific Plan Ordinance.

B. Use. No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged or maintained, except as permitted by Section 5 of the Central City West Specific Plan Ordinance.

C. Area. No building or structure nor the enlargement of any building or structure shall be erected or maintained unless the yard, area and loading spaces required by Section 5 of the Central City West Specific Plan are provided and maintained in connection with the building, structure or enlargement.

SEC. 12.16.2. ADP ALAMEDA DISTRICT SPECIFIC PLAN ZONE.

(Added by Ord. No. 171,130, Eff. 8/6/96.)

The following regulations shall apply in the “ADP” Alameda District Specific Plan Zone:

A. Purpose. The regulations set forth in this Section are intended to reflect the regulations contained in the Alameda District Specific Plan Ordinance.

B. Use. No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged or maintained, except as permitted by Sections 6 and 7 of the Alameda District Specific Plan Ordinance.

C. Area. No building or structure nor the enlargement of any building or structure shall be erected or maintained unless the yard, area and loading spaces required by Section 7 of the Alameda District Specific Plan Ordinance are provided and maintained in connection with the building, structure or enlargement.

SEC. 12.16.3. LASED LOS ANGELES SPORTS AND ENTERTAINMENT DISTRICT SPECIFIC PLAN ZONE.

(Added by Ord. No. 174,225, Eff. 10/13/01.)

The following regulations shall apply in the “LASED” Los Angeles Sports and Entertainment District Specific Plan Zone:

A. Purpose. The purposes set forth in the Los Angeles Sports and Entertainment District Specific Plan Ordinance are incorporated by this reference into these regulations.

B. Use. No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged or maintained, except as permitted by the Los Angeles Sports and Entertainment District Specific Plan Ordinance.

C. Area. No building or structure, nor the enlargement of any building or structure, shall be erected or maintained unless the requirements of the Los Angeles Sports and Entertainment District Specific Plan Ordinance are met and maintained in connection with the building, structure or enlargement.

SEC. 12.16.4. CEC CONVENTION AND EVENT CENTER SPECIFIC PLAN ZONE.

(Added by Ord. No. 182,268, Eff. 11/13/12.)

The following regulations shall apply in the “CEC” Convention and Event Center Specific Plan Zone:

A. Purpose. The purposes set forth in the Convention and Event Center Specific Plan Ordinance are incorporated by this reference into these regulations.

B. Use. No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged or maintained, except as permitted by the Convention and Event Center Specific Plan Ordinance.

C. Area. No building or structure, nor the enlargement of any building or structure, shall be erected or maintained unless the height, area, and parking requirements of the Convention and Event Center Specific Plan Ordinance are met and maintained in connection with the building, structure or enlargement.

SEC. 12.16.5. USC-1A UNIVERSITY OF SOUTHERN CALIFORNIA UNIVERSITY PARK CAMPUS SPECIFIC PLAN SUBAREA 1A ZONE.

(Added by Ord. No. 182,343, Eff. 1/23/13.)

The following regulations shall apply in the “USC-1A” University of Southern California University Park Campus Specific Plan Area 1 Zone:

A. Purpose. The purposes set forth in the University of Southern California University Park Campus Specific Plan Ordinance are incorporated by this reference into these regulations.

B. Use. No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged or maintained, except as permitted by provisions applicable to this zone set forth in the University of Southern California University Park Campus Specific Plan Ordinance.

C. Area. No building or structure, nor the enlargement of any building or structure, shall be erected or maintained unless the provisions applicable to this zone set forth in the University of Southern California University Park Campus Specific Plan Ordinance are met and maintained in connection with the building, structure or enlargement.

SEC. 12.16.6. USC-1B UNIVERSITY OF SOUTHERN CALIFORNIA UNIVERSITY PARK CAMPUS SPECIFIC PLAN SUBAREA 1B ZONE.

(Added by Ord. No. 182,343, Eff. 1/23/13.)

The following regulations shall apply in the “USC-1B” University of Southern California University Park Campus Specific Plan Subarea 1B Zone:

A. Purpose. The purposes set forth in the University of Southern California University Park Campus Specific Plan Ordinance are incorporated by this reference into these regulations.

B. Use. No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged or maintained, except as permitted by provisions applicable to this zone set forth in the University of Southern California University Park Campus Specific Plan Ordinance.

C. Area. No building or structure, nor the enlargement of any building or structure, shall be erected or maintained unless the provisions applicable to this zone set forth in the University of Southern California University Park Campus Specific Plan Ordinance are met and maintained in connection with the building, structure or enlargement.

SEC. 12.16.7. USC-2 UNIVERSITY OF SOUTHERN CALIFORNIA UNIVERSITY PARK CAMPUS SPECIFIC PLAN SUBAREA 2 ZONE.

(Added by Ord. No. 182,343, Eff. 1/23/13.)

The following regulations shall apply in the “USC-2” University of Southern California University Park Campus Specific Plan Subarea 2 Zone:

A. Purpose. The purposes set forth in the University of Southern California University Park Campus Specific Plan Ordinance are incorporated by this reference into these regulations.

B. Use. No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged or maintained, except as permitted by provisions applicable to this zone set forth in the University of Southern California University Park Campus Specific Plan Ordinance.

C. Area. No building or structure, nor the enlargement of any building or structure, shall be erected or maintained unless the provisions applicable to this zone set forth in the University of Southern California University Park Campus Specific Plan Ordinance are met and maintained in connection with the building, structure or enlargement.

SEC. 12.16.8. USC-3 UNIVERSITY OF SOUTHERN CALIFORNIA UNIVERSITY PARK CAMPUS SPECIFIC PLAN SUBAREA 3 ZONE.

(Added by Ord. No. 182,343, Eff. 1/23/13.)

The following regulations shall apply in the “USC-3” University of Southern California University Park Campus Specific Plan Subarea 3 Zone:

A. Purpose. The purposes set forth in the University of Southern California University Park Campus Specific Plan Ordinance are incorporated by this reference into these regulations.

B. Use. No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged or maintained, except as permitted by provisions applicable to this zone set forth in the University of Southern California University Park Campus Specific Plan Ordinance.

C. Area. No building or structure, nor the enlargement of any building or structure, shall be erected or maintained unless the provisions applicable to this zone set forth in the University of Southern California University Park Campus Specific Plan Ordinance are met and maintained in connection with the building, structure or enlargement.

SEC. 12.16.9. PVSP PONTE VISTA AT SAN PEDRO SPECIFIC PLAN ZONE.

(Added by Ord. No. 182,937, Eff. 4/21/14.)

The following regulations shall apply in the “PVSP” Ponte Vista at San Pedro Specific Plan Zone:

A. Purpose. The purposes set forth in the Ponte Vista at San Pedro Specific Plan Ordinance are incorporated by this reference into these regulations.

B. Use. No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged or maintained, except as permitted by the Ponte Vista at San Pedro Specific Plan Ordinance.

C. Area. No building or structure, nor the enlargement of any building or structure, shall be erected or maintained unless the height, area, and parking requirements of the Ponte Vista at San Pedro Specific Plan Ordinance are met and maintained in connection with the building, structure or enlargement.

SEC. 12.16.10. DNSP DISTRICT NOHO SPECIFIC PLAN ZONE.

(Added by Ord. No. 188,143, Eff. 4/22/24.)

The following regulations shall apply in the “DNSP” District NoHo Specific Plan Zone:

A. Purpose. The purposes set forth in the District NoHo Specific Plan Ordinance are incorporated by this reference into these regulations.

B. Use. No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged or maintained, except as permitted by the District NoHo Specific Plan Ordinance.

C. Area. No building or structure, nor the enlargement of any building or structure, shall be erected or maintained unless the provisions applicable to this zone set forth in the District NoHo Specific Plan Ordinance are met and maintained in connection with the building, structure or enlargement.

SEC. 12.17. “C5” COMMERCIAL ZONE.

The following regulations shall apply in the “C5” Commercial Zone:

A. Use— No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged or maintained, except for the following uses, and, when a “**Supplemental Use District**” is created by the provisions of Article 3 of this chapter, for such uses as may be permitted therein:

1. Any use permitted in the “C2” Zone, provided that all regulations of said zone are complied with;
2. Jewelry manufacturing, including manufacturing of products from precious or semi-precious stones or metals.
(Amended by Ord. No. 154,899, Eff. 3/22/81.)
3. **(Amended by Ord. No. 162,335, Eff. 6/6/87.)** Uses customarily incident to any of the above uses, and accessory buildings, when located on the same lot. Open storage of materials and equipment, including used materials and equipment, shall be permitted only when incidental to the use of an office, store or other commercial building located on the front portion of the same lot, and provided that:
 - (a) Such storage is located on the rear one-half of the lot and is confined to an area of not to exceed three thousand (3,000) square feet;
 - (b) No power driven excavating or road building equipment is stored on the premises;
 - (c) The storage area is completely enclosed by a solid wall or fence not less than six feet in height with necessary solid gates of the same height; and
 - (d) No material or equipment is stored to a height greater than that of the wall or fence enclosing the storage area.

The phrase “**used materials and equipment**” includes vehicles, boats, or airplanes which are inoperable, wrecked, damaged or unlicensed, i.e. not currently licensed by the Department of Motor Vehicles.
4. Automobile parking space required for dwellings and for buildings other than dwellings, as provided for in Section 12.21 A.4.

B. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi-Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection A. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

C. Area. (Amended by Ord. No. 144,365, Eff. 4/5/73, Oper. 9/1/73.) No building or structure nor the enlargement of any building or structure shall be hereafter erected or maintained unless the following yards, lot areas and loading spaces are provided and maintained in connection with such building, structure or enlargement:

1. **Yards** – Not required for buildings erected and used exclusively for commercial purposes;

For all portions of buildings erected and used for residential purposes, side and rear yards conforming to the requirements of the R4 Zone (Section 12.11 C.2. and 3.) shall be provided and maintained at the floor level of the first story used for residential purposes.

2. **Lot Area** – The lot area requirements of the R4 Zone (Section 12.11 C.4.) shall apply to all portions of buildings erected and used for residential purposes. **(Amended by Ord. No. 148,783, Eff. 10/13/76.)**

3. **Loading Space** – As required by Section 12.21 C.6. Exceptions to area regulations are provided in Section 12.22 C.

4. **Minimum Density.** A minimum density of one Dwelling Unit or Guest Room, inclusive of Accessory Dwelling Units, for every 2,000 square feet of lot area is required for every Housing Development Project on lots meeting the minimum width and lot area requirements for the zone, prior to any subdivision, except when Section 12.22 C.28. applies. The minimum density calculation shall be rounded up to the nearest unit to ensure the minimum density standard is met. If the minimum lot area per Dwelling Unit or Guest Room for the zone does not allow for construction of the required minimum density, the minimum density shall not apply. **(Added by Ord. No. 188,479, Eff. 2/11/25, Oper. 2/11/25.)**

SEC. 12.17.1. “CM” COMMERCIAL MANUFACTURING ZONE.

The following regulations shall apply in the “CM” Commercial Manufacturing Zone:

A. Use – No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged or maintained, except for the following uses, and, when a “**Supplemental Use District**” is created by the provisions of Article 3 of this chapter for such uses as may be permitted therein:

1. Any use permitted in the C2 Zone, provided that these uses are conducted in full compliance with all of the regulations of the zone, except that these uses may be conducted as wholesale businesses without limitation on the floor area used for storage. Provided further that residential uses shall be permitted but shall be limited to shelters for the homeless, joint living and work quarters, and those uses permitted in the R3 Multiple Residential Zone, which R3 uses shall be in compliance with all the regulations of the R3 Zone, except that front yard setbacks are not required. **(Amended by Ord. No. 181,133, Eff. 5/11/10.)**

Provided further that the following uses are prohibited in the CM Zone:

- (a) churches;
- (b) child care facilities or nursery schools unless permitted by Section 12.22 A.3. or approved pursuant to the provisions of Section 12.24;
- (c) fraternity or sorority houses or dormitories;
- (d) hospitals or sanitariums unless approved pursuant to the provisions of Section 12.24;
- (e) museums or libraries;
- (f) schools or educational institutions unless approved pursuant to the provisions of Section 12.24;
- (g) indoor swap meets, unless approved pursuant to the provisions of Section 12.24.
2. The following manufacturing and industrial establishments and uses, when conducted in accordance with the limitations hereinafter specified:
 - (a) **Types of Uses:**
 - (1) The manufacturing, assembling, compounding or treating of articles or merchandise from the following previously prepared materials: bone, canvas, cloth, felt, fur, glass, leather (except machine belting), paper, plastics, shell, textiles and yarn;
 - (2) Assembly of electrical appliances, electronic instruments and devices, and radios and phonographs, including the manufacture of small parts only, such as coils, condensers, transformers, crystal holders, and the like;
 - (3) Ceramic products manufacturing, provided that the total capacity of all kilns in any one establishment may not exceed eight cubic feet and that there shall be no pulverizing of clay;
 - (4) Scientific instrument and equipment manufacturing or precision machine shop.
 - (5) Addressograph service.
 - (6) Bakery or bakery goods distributor.
 - (7) Book bindery.
 - (8) Box lunch preparation or catering establishment.
 - (9) Candy, confectionery or ice cream manufacturing.
 - (10) Cosmetics, toiletries (except soap) or perfume manufacturing or blending.
 - (11) Jewelry manufacturing, including manufacturing of products from precious or semi-precious stones or metals.

- (12) Laboratories, experimental, film, motion picture, research and testing.
- (13) **(Deleted by Ord. No. 172,106, Eff. 8/14/98.)**
- (14) Optical goods manufacturing.
- (15) Packaging business.
- (16) Storage building or warehouse.

(b) Limitations:

- (1) All activities other than incidental storage shall be conducted wholly within a completely enclosed building.
 - (2) The building shall be so constructed, the machinery and equipment shall be so installed and maintained, and the activity shall be so conducted, that all noise, vibration, dust, odor and all other objectionable factors, shall be so confined or reduced to the extent that no annoyance or injury will result to persons residing in the vicinity. Whenever there is any difficulty in determining the application of these provisions to any specific case, the Department of Building and Safety shall make such determination.
 - (3) No motor exceed one H.P. shall be used to operate any lathe, drill press, grinder, shaper, milling machine, saw, polisher or metal cutter; and
 - (4) No punch press exceeding five tons rated capacity nor drop hammer or automatic screw machine may be used.
3. Other uses similar to the above, as provided for in Section 12.21 A.2. of this Code.
4. **(Amended by Ord. No. 162,335, Eff. 6/6/87.)** Uses customarily incident to the above uses, and accessory buildings, when located on the same lot. Open storage of materials and equipment, including used materials and equipment, shall be permitted only when incidental to the use of an office, store or manufacturing building located on the front portion of the same lot, and provided that:
- (a) Such storage is located on the rear one-half of the lot and is confined to an area of not to exceed three thousand (3,000) square feet;
 - (b) The storage area is completely enclosed by a solid wall or fence not less than six feet in height with necessary solid gates of the same height; and
 - (c) No material or equipment is stored to a height greater than that of the wall or fence enclosing the storage area.
- The phrase “**used materials and equipment**” includes vehicles, boats, or airplanes which are inoperable, wrecked, damaged or unlicensed, i.e. not currently licensed by the Department of Motor Vehicles.
5. Automobile parking space required for dwellings and for buildings other than dwellings, provided for in Section 12.21 A.4. of this Code.

B. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi-Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection A. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

C. Area – No building or structure nor the enlargement of any building or structure shall be erected or maintained unless the following yards, lot areas and loading spaces are provided and maintained in connection with such building, structure or enlargement.

1. **Yards. (Amended by Ord. No. 144,365, Eff. 4/5/73, Operative 9/1/73.)** Not required for buildings erected and used exclusively for commercial or industrial purposes.

For all portions of buildings erected and used for residential purposes, side yards and rear yards conforming to the requirements of the R4 Zone (Section 12.11 C.2. and 3.) shall be provided and maintained at the floor level of the first story used for residential purposes.

2. **Lot Area.** The lot area requirements of the “**R3**” Zone (Section 12.10 C.4.) shall apply to all portions of buildings erected and used for residential purposes. **(Amended by Ord. No. 143,239, Eff. 5/7/72.)**

3. **Loading Spaces.** Loading spaces shall be same as required by Subsection C.6. of Section 12.21 of this Code. Exceptions to area regulations are provided for in Section 12.22 C.

4. **Minimum Density.** A minimum density of one Dwelling Unit or Guest Room, inclusive of Accessory Dwelling Units, for every 2,000 square feet of lot area is required for every Housing Development Project on lots meeting the minimum width and lot area requirements for the zone, prior to any subdivision, except when Section 12.22 C.28. applies. The minimum density calculation shall be rounded up to the nearest unit to ensure the minimum density standard is met. If the minimum lot area per Dwelling Unit or Guest Room for the zone does not allow for construction of the required minimum density, the minimum density shall not apply. **(Added by Ord. No. 188,479, Eff. 2/11/25, Oper. 2/11/25.)**

SEC. 12.17.2. “CM(GM)” COMMERCIAL MANUFACTURING (GLENCOE/MAXELLA) SPECIFIC PLAN ZONE.
(Added by Ord. No. 169,103, Eff. 11/21/93.)

The following regulations shall apply in the “**CM(GM)**” Commercial Manufacturing (Glencoe/Maxella) Specific Plan Zone.

A. Purpose. The regulations set forth in this section are intended to reflect the regulations contained in the Glencoe/Maxella Specific Plan Ordinance.

B. Use. No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged or maintained, except as permitted by Sections 6 and 7 of the Glencoe/Maxella Specific Plan Ordinance.

C. Area. No building or structure nor the enlargement of any building or structure shall be erected or maintained unless the yard requirements set forth in Section 6 of the Glencoe/Maxella Specific Plan are provided and maintained in connection with the building, structure or enlargement.

SEC. 12.17.5. “MR1” RESTRICTED INDUSTRIAL ZONE.

(Amended by Ord. No. 148,969, Eff. 12/16/76.)

The following purpose and regulations shall apply to “MR1” Restricted Industrial Zone:

A. Purpose:

1. To protect industrial land for industrial use, and prohibit unrelated commercial and other non-industrial uses.
2. To provide a reasonable range or interim uses in this zone, so that land owners may receive income from temporary use, while the industrial land reserve is being protected for future growth.
3. To upgrade industrial development standards,
 - a. so that industry will be a better neighbor to residences
 - b. to protect industrial investment against incompatible residential, commercial and industrial uses, and
 - c. to prevent future industrial blight.
4. To preserve industrial land for light industrial uses and to provide for non-retail businesses which enhance the City’s employment base. **(Added by Ord. No. 169,366, Eff. 4/1/94.)**
5. To reflect and accommodate the shift in industrial land use from traditional industrial activity to uses such as those involving record management, Research and Development, information processing, electronic technology, and medical research. **(Added by Ord. No. 169,366, Eff. 4/1/94.)**

B. Use. (Amended by Ord. No. 148,969, Eff. 12/16/76.) No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged or maintained, except for the following uses, or where a “**Supplemental Use District**” is created by the provisions of Article 3 of this chapter, for such uses as may be permitted therein.

1. Any use specified in Section 12.17.1 A.2., as first permitted in the CM Zone provided that all regulations of said zone are complied with.
2. **(Amended by Ord. No. 156,994, Eff. 9/25/82.)** Any use permitted in the C2 Commercial Zone, provided that these uses are conducted in accordance with all building enclosure and fence enclosure limitations of said C2 zone, and further provided:
 - (a) Any such use is devoted primarily to the manufacturing of products, or assembling, compounding, processing or treating of materials and that all retail business conducted in connection with such use is only incidental to the main use; or
 - (b) Any such use is devoted primarily to the development of software and other computer or media-related products or services, or **(Added by Ord. No. 172,106, Eff. 8/14/98.)**
 - (c) Any such use is conducted only as an accessory use to the main use, and provides services for those persons employed on the premises. **(Renumbered by Ord. No. 172,106, Eff. 8/14/98.)**
3. The following uses:
 - a. Farming, nurseries, aviaries and apiaries. **(Amended by Ord. No. 181,188, Eff. 7/18/10.)**
 - b. Bank.
 - c. Clinic.
 - d. Laboratory or research and development center.
 - e. Offices, accessory to the primary industrial use of the lot, and showrooms for products produced on the premises; provided that the total floor area of such offices and showrooms does not exceed the floor area of the

primary industrial use, and that all of the merchandise sold during each calendar month is sold at wholesale. **(Amended by Ord. No. 169,366, Eff. 4/1/94.)**

f. Printing and publishing, wholesale.

g. Recreation facility, open or enclosed, as an accessory use incidental to the primary industrial use of the lot, provided that such recreation facility shall not exceed 10 percent of the total lot area. **(Amended by Ord. No. 159,916, Eff. 7/7/85.)**

h. Restaurant (including café), as an accessory use incidental to the primary industrial use of the lot and for the exclusive use of persons employed on such lot and provided that there shall be no outdoor signs advertising such restaurant. **(Amended by Ord. No. 159,916, Eff. 7/7/85.)**

i. Corporate headquarters, record-keeping and computer support facilities for the processing of retrievable information and systems control. **(Added by Ord. No. 169,366, Eff. 4/1/94.)**

j. Office buildings if used only for offices of industrial firms, industrial engineering firms, and other professional, administrative, and clerical services needed by industries in the area. **(Added by Ord. No. 169,366, Eff. 4/1/94.)**

k. Facilities for the development and/or production and manufacture of computer and media-related products and services, including hardware. **(Added by Ord. No. 172,106, Eff. 8/14/98.)**

l. Wireless antennas, including the associated equipment cabinets, located on the rooftops of buildings when established in conformance with the standards contained in Section 12.21 A.21. of this Code, and which are not located within a scenic parkway specific plan, scenic corridor specific plan, or a roadway designated as a scenic highway within a specific plan area; or on the rooftops of buildings that are designated on the National Register of Historic Places, including Contributing Buildings in National Register Historic Districts, the California Register of Historic Resources, the City of Los Angeles List of Historic-Cultural Monuments, or a Contributing Structure located in an Historic Preservation Overlay Zone (HPOZ) that has been established pursuant to Section 12.20.3 of this Code. **(Added by Ord. No. 177,120, Eff. 12/26/05.)**

4. The following uses when conducted wholly within a completely enclosed building, except for incidental storage, and conducted in accordance with the limitations hereafter specified:

a. The manufacturing, compound ing, processing or treating of such products as drugs, pharmaceuticals, and perfumed toilet soap (no refining or rendering of fats or oils).

b. The manufacturing, compound ing, assembling, or treating of articles or merchandise from the following previously prepared materials, cork, feather, fibre, hair, horn, tobacco, and paint (not employing a boiling process).

c. The manufacturing of ceramic products, provided that there is no pulverizing of clay.

d. The manufacturing of concrete or cement products.

e. The manufacturing and maintenance of electrical and neon signs, billboards, commercial advertising structures, light sheet metal products, including heating and ventilating ducts and equipment, cornices, eaves and the like.

f. The manufacturing of food products (except fish products, sauerkraut, vinegar, yeast, or the rendering or refining of fats and oils), provided that no noxious or offensive odors are permitted to emanate from the premises.

g. The manufacture of machine belting from previously tanned leather.

h. The manufacturing of musical instruments, toys, novelties, and metal stamps.

i. The manufacturing of plastic, rubber or synthetic rubber products, such as washers, gloves, bathing caps, tableware, buttons, stamps, mats, and the like, not involving the use of rolling mills of more than 60 inches in length, or the use of Banbury Mills.

j. Blacksmith shops and machine shops not involving the use of drop hammers, automatic screw machines, or punch presses with a rated capacity of over 20 tons; provided, that punch presses with a rated capacity of over 20 tons may be used, if they are located within the building and are installed and cushioned in accordance with a plan which the Department of Building and Safety has determined will satisfactorily prevent the emanation of objectionable noise and vibration to adjoining property.

k. Distribution, plants, parcel delivery service, ice and cold storage plants, a bottling plants.

- l. Laundry, cleaning and dyeing works, and carpet and rug cleaning plants.
 - m. **(None)**
 - n. Truck repairing or overhauling; wholesale automobile assembling, rebuilding or conditioning; wholesale rebuilding of automobile parts accessories or assemblies; tire retreading or recapping; battery manufacturing; and the like.
 - o. Veterinary, dog and cat hospitals, kennels, or facilities for breeding and boarding of animals (no outside keeping of animals - no open runs). In no case, however, shall any new kennel or animal breeding and boarding facility be constructed where any portion of the parcel is located within 500 feet of a residential zone without obtaining a conditional use permit pursuant to Section 12.24 of this Code. **(Amended by Ord. No. 169,013, Eff. 9/28/93.)**
 - p. Woodworking shops and sash and door manufacturing including only incidental mill work; provided that if a planner, router, sticker or moulder is maintained, all doors and windows in the outside walls of the room in which said machinery is located, shall be kept closed while said machinery is in use.
 - q. Cannery or bottling plant (except fish products or sauerkraut). **(Amended by Ord. No. 148,969, Eff. 12/16/76.)**
 - r. Cigarette factory. **(Amended by Ord. No. 148,969, Eff. 12/16/76.)**
 - s. Electroplating works. **(Amended by Ord. No. 148,969, Eff. 12/16/76.)**
 - t. Furniture manufacturing (only incidental mill work - planers, routers, stickers, and moulders operated in room with doors and windows closed). **(Amended by Ord. No. 148,969, Eff. 12/16/76.)**
 - u. **(None)**
 - v. Heat treating, case hardening, tempering, apply solid film lubricants and similar processing of small parts used in manufacturing of mechanical apparatus, devices or equipment. **(Amended by Ord. No. 148,969, Eff. 12/16/76.)**
 - w. Metal spinning. **(Amended by Ord. No. 148,969, Eff. 12/16/76.)**
5. The following uses when conducted wholly within a completely enclosed building or within an area enclosed on all sides with a solid wall or solid fence not less than six feet in height, when no material or equipment is stored to a height greater than that of the enclosing wall or fence and the wall or fence is maintained as provided in Section 12.21 A.9.:
- a. Building material sales yard, including the sale of rock, sand, gravel and the like as an incidental part of the main business, but excluding concrete mixing.
 - b. Contractor's equipment storage yard or plant.
 - c. Draying, freighting, or trucking yard or terminal.
 - d. Lumber yard, retail, including only incidental mill work; provided that any planer, router, sticker or moulder used for such mill work shall be maintained in a completely enclosed building or room within a building, and that all doors and windows in the outside walls of such building or room shall be kept closed while said machinery is in use.
 - e. Motion picture, television, video and other media production, with outdoor sets. **(Amended by Ord. No. 172,106, Eff. 8/14/98.)**
 - f. Open storage, not including the storage of impounded, abandoned, partially dismantled, obsolete or wrecked automobiles or similar equipment, or salvage, junk or scrap metal yards, provided no material or equipment is stored to a height greater than that of the wall or fence enclosing the storage area.
 - g. Parking of trucks or buses.
 - h. Public utility service yard or electrical receiving or transforming station.
 - i. Small boat building, except shipbuilding.
6. Other uses similar to the above, as provided in Section 12.21 A.2. but not including uses which are or may become obnoxious or offensive by reason of emission of odor, dust, smoke, noise, gas, fumes, cinders, vibration, refuse matter or water-carried waste, as determined by a Zoning Administrator.

7. Conditional uses enumerated in Section 12.24 when the location is approved pursuant to the provisions of said section.

8. Public parking areas and parking buildings as primary or accessory uses, and loading space required or provided in connection with the permitted uses, as provided in Section 12.21 A. and 12.21 C.6. of this Code.

9. Uses customarily incident to any of the above uses, and accessory buildings when located on the same lot, provided:

a. A dwelling shall be considered to be a permissible accessory building only when it is designed for and used solely by a guard or caretaker (including the guard's or caretaker's family) of an industrial development or of a permitted use which requires 24-hour supervision and is located on the same lot with such development or use.

b. **(Amended by Ord. No. 162,335, Eff. 6/6/87.)** Open storage of materials and equipment, including used materials and equipment, shall be permitted only within an area enclosed on all sides with a solid wall or fence not less than six feet in height. No material or equipment shall be stored to a height greater than that of the wall or fence enclosing the storage area, except that storage in lumber yards may be at a height greater than said wall or fence.

The phrase **"used materials and equipment"** includes vehicles, boats, or airplanes which are inoperable, wrecked, damaged or unlicensed i.e. not currently licensed by the Department of Motor Vehicles.

c. Signs or advertising structures shall indicate only the name, occupation, or nature of activities conducted, services offered or the product sold or manufactured on the premises.

d. Open storage of materials and equipment, including used materials and equipment existing on a lot when it is zoned "MR," shall be enclosed as described herein. It shall be completely enclosed within a building or within an area enclosed on all sides with a solid wall or solid fence of a height sufficient to screen the use from public view, but in no event less than six feet in height within one year after a lot is zoned MR. The phrase **"used materials and equipment"** includes vehicles, boats, or airplanes which are inoperable, wrecked, damaged or unlicensed, i.e. not currently licensed by the Department of Motor Vehicles. **(Amended by Ord. No. 162,335, Eff. 6/6/87.)**

C. Limitations. (Amended by Ord. No. 146,030, Eff. 7/11/74.) All required buildings and enclosing walls or fences shall be so constructed, the machinery and equipment shall be so installed and maintained, and the activity shall be so conducted, that all noise, vibration, dust, odor and all other objectionable factors, shall be confined or reduced to the extent that no annoyance or injury will result to persons residing in the vicinity.

Whenever there is any difficulty in determining the application of these provisions to any specific case, the Department of Building and Safety shall make such determinations.

D. Area. (Amended by Ord. No. 148,969, Eff. 12/16/76.) No building or structure nor the enlargement of any building or structure shall be hereafter erected or maintained unless the following yards and lot areas are provided and maintained in connection with such building, structure or enlargement:

1. **Front Yard** – On all lots 100 feet in depth or less, 5 feet; on all lots in excess of 100 feet in depth, 15 feet. All front yards shall be suitably landscaped and maintained except for necessary driveways and walkways.

2. **Side Yards** – Side yards conforming to the requirements of the "R4" Zone (Section 12.11 C.2.) shall be provided and maintained in connection with buildings erected and used principally for residential purposes.

3. **Rear Yard** – No rear yard shall be required for buildings erected and used exclusively for commercial or industrial purposes, a rear yard conforming to the requirements of the "R4" Zone (Section 12.11 C.3.) shall be provided and maintained at the floor level of the first story used in whole or in part for residential purposes.

4. **Lot Area** – The lot area required of the "R4" Zone (Section 12.11 C.4.) shall apply to buildings erected and used exclusively for dwelling purposes. For buildings other than those erected and used exclusively for dwelling purposes such requirements shall apply only to that portion of a building used for dwelling purposes.

5. **Loading Space** – As required by Section 12.21 C.6. Exceptions to area regulations are provided for in Section 12.22 C.

E. Fence Modification. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

1. **Authority of Director** – The Director of Planning or the Director's authorized representative, upon application pursuant to Sec. 13B.5.2. (Adjustment) of Chapter 1A of this Code, may defer the wall or fence requirements of this section, for portions of walls or fences, in the following instances:

a. Where adjoining property is located in the M2 or M3 Zone and is developed with any of the uses first listed in Section 12.19 A. or Section 12.20 A.

b. Where substantial fences, walls, buildings or geographic features are located on the subject property or on adjacent property and serve to enclose the subject use as well or more effectively than the wall or fence required by this section.

2. **Compliance** – Should the use, fence, wall or building providing justification for such modification be removed, such wall or fence shall be provided in compliance with this section within six months from the date of such removal.

F. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi-Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection B. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

SEC. 12.17.5.5. “CCS” CENTURY CITY SOUTH SPECIFIC PLAN STUDIO ZONE.

(Added by Ord. No. 168,861, Eff. 8/7/93.)

The following purpose and regulations shall apply in the CCS Century City South Specific Plan Studio Zone:

A. Purpose. The regulations set forth in this section are intended to reflect the regulations contained in the Century City South Specific Plan Ordinance.

B. Use. No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged or maintained, except as permitted by Section 6B of the Century City South Specific Plan Ordinance.

C. Area. No building or structure, nor the enlargement of any building or structure, shall be erected or maintained unless the yard and area requirements of Section 6B of the Century City South Specific Plan are provided and maintained in connection with the building, structure or enlargement.

SEC. 12.17.6. “M1” LIMITED INDUSTRIAL ZONE.

(Renumbered by Ord. No. 148,969, Eff. 12/16/76.)

The following regulations shall apply in the “M1” Limited Industrial Zone:

A. Use. (Amended by Ord. No. 173,492, Eff. 10/10/00.) No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged or maintained, except for the following uses, and when a “**Supplemental Use District**” is created, for those uses as may be permitted in that district:

1. Any use permitted in the MR1 Zone provided that all regulations of the zone are complied with, except that front yard setbacks are not required.

2. Any commercial use permitted in the C2 Zone except sanitariums and hospitals, provided that these uses are conducted in accordance with all building enclosure and fence enclosure limitations of the C2 Zone. Pet Shops in the M1 Zone or less restrictive zones are not required to comply with the standards listed in Section 12.14 A.1.(b)(4). **(Amended by Ord. No. 186,372, Eff. 12/10/19.)**

3. The following uses when conducted wholly within a completely enclosed building, except for incidental storage.

(a) Foundry, except iron or brass; or those in which noxious fumes or odors are produced.

(b) Poultry or rabbit killing incidental to a retail business on the same premises.

(c) Rental of equipment commonly used by contractors, including rental, storage, or storage for rental purposes of household moving rental trucks and utility rental trailers or commercial vehicles of any weight.

4. Stadiums, arenas, auditoriums and the like, having a seating capacity of more than 3,000 people.

5. Other uses similar to the above, as provided for in Section 12.21 A.2., but not including uses which are or may become obnoxious or offensive by reason of omission of odor, dust, smoke, noise, gas, fumes, cinders, vibration, refuse matter or water-carried waste, as determined by a Zoning Administrator.

6. Uses customarily incident to any of the above uses, and accessory buildings when located on the same lot, provided:

(a) A dwelling shall be considered to be a permissible accessory building when it is designed for and used solely by a guard or caretaker (including the guard's or caretaker's family) of an industrial development or of a permitted use that requires a 24-hour supervision, and is located on the same lot with the development or use;

(b) Open storage of materials and equipment, including used materials and equipment, shall be permitted only within an area enclosed on all sides with a solid wall or fence, no less than six feet in height with necessary solid gates of the same height.

The phrase "**used materials and equipment**" includes vehicles, boats, or airplanes which are inoperable, wrecked, damaged or unlicensed, i.e. not currently licensed by the Department of Motor Vehicles.

7. Automobile parking spaces required for dwellings and for buildings other than dwellings, as provided for in Section 12.21 A.4.

8. Official Police Garages as designated by the Los Angeles Police Commission for the storage of impounded, abandoned or partially dismantled automobiles, subject to the following limitations:

(a) the use is located 300 feet or more from property in an A or R zone;

(b) the use is conducted wholly within an area completely enclosed with a solid masonry wall or solid fence no less than eight feet in height with necessary solid gates of the same height;

(c) no dismantling of vehicles or crushing, smashing, baling or reduction of metal takes place on the premises;

(d) all property adjacent to any street is landscaped to a minimum depth of two feet measured at a right angle from the adjacent street, and extending the full length of property contiguous to the street except for area necessary for ingress and egress; and

(e) paved off-street parking spaces are provided for buildings as required by Section 12.21 A., and in addition for all other portions of the lot, other than public parking areas, as follows:

(1) for one or fewer acres, a minimum of six spaces;

(2) for more than one acre but not more than two acres, one space for each 12,000 square feet of lot area; and

(3) for each acre exceeding two acres, one space for each acre of lot area; and

(f) no material shall be stored to a height greater than the height of the enclosing wall or fence.

9. Indoor swap meets when authorized pursuant to the provisions of Section 12.24 W.42.

10. Storage buildings for household goods, including truck rentals, provided the building or structure is more than 500 feet from an A or R Zone or residential use as measured from the lot lines, and the building or structure is no more than 37 feet in height. **(Added by Ord. No. 173,979, Eff. 6/29/01.)**

11. Wireless telecommunication facilities, including radio and television transmitters, which meet all the requirements of the wireless telecommunication facilities standards set forth in Section 12.21 A.20. of this Code, except when located across the street from, abutting, or adjoining a residential use or A or R Zone, including the RA zone. **(Added by Ord. No. 174,132, Eff. 9/3/01.)**

12. Notwithstanding the provisions of Section 12.22 A.28. of this Code to the contrary, a primary used automobile and trailer sales area, provided that the automobile and trailer sales area is located and developed in compliance with the provisions of Section 12.21 A.6. of this Code, and that any incidental repair of automobiles or trailers is conducted wholly within a building. **(Added by Ord. No. 178,382, Eff. 3/24/07.)**

13. **(Added by Ord. No. 178,382, Eff. 3/24/07.)** Notwithstanding the provisions of Section 12.22 A.28. of this Code to the contrary, automotive repair, provided that all of the following conditions are met:

(a) The lot containing the automotive repair use is located more than 500 feet from any school, lot with a Certificate of Occupancy for a one-family dwelling, multiple-family dwelling, or mixed use project containing a residential use, or an A or R zone. If the lot is located 500 feet or less from any school, lot with a Certificate of Occupancy for a one-family dwelling, multiple-family dwelling, or mixed use project containing a residential use, or an A or R zone, automotive repair is prohibited unless approved pursuant to the provisions of Section 12.24 W.4. of this Code.

(b) All automotive spray painting shall be conducted in full compliance with the provisions of Article 7, Chapter V of this Code, regulating these installations; provided further, that any spray painting shall be done within a building.

(c) All other operations shall be conducted wholly within a building enclosed on at least three sides, except for the following activities, which may be conducted within the first 18 feet in depth in front of the garage bay door measured perpendicular to the entire length of the building wall containing a garage bay door, provided that this area does not displace any required parking:

(1) electrical diagnostics;

(2) battery charging and changing;

(3) tire removal and replacement, so long as the vehicle is elevated no more than 12 inches off the ground measured to the bottom of the tire. A portable hoist may be used for this function only.

(d) Except as provided in Paragraph (c)(3) above, automotive hoists, of any type or size, shall be located and operated only inside a building enclosed on at least three sides.

(e) A minimum of 500 square feet of storage area shall be provided (open storage shall comply with Section 12.14 A.42. of this Code);

(f) Notwithstanding Paragraphs (a) and (c) of this subdivision, an automotive sound shop or automotive alarm shop shall be permitted if it complies with the following:

(1) all operations are wholly conducted within a fully enclosed building; and

(2) no portion of the building or its associated parking area shall be within 50 feet of any school, lot with a Certificate of Occupancy for a one- family dwelling, multiple-family dwelling, or mixed use project containing a residential use, or an A or R zoned lot.

14. **(Added by Ord. No. 178,382, Eff. 3/24/07.)** Notwithstanding the provisions of Section 12.22 A.28. of this Code to the contrary, automotive laundry or wash rack, in which power driven or steam cleaning machinery is used or any coin-operated automotive laundry or wash rack.

(a) Any automotive laundry or wash rack, in which power driven or steam cleaning machinery is used shall maintain noise levels below the levels provided in Table II of Section 111.03 of this Code.

(b) The comparison between the noise emanating from the automotive laundry or wash rack and from Table II shall be made in the manner set forth in Section 111.02(a) of this Code.

(c) Every wash rack shall be constructed or arranged so that entrances, exits, and openings shall not face any residentially zoned property within 100 feet of the entrances, exits or openings.

B. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi-Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection A. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

C. Area – No building or structure nor the enlargement of any building or structure shall be hereafter erected or maintained unless the following yard and lot areas are provided and maintained in connection with such building, structure or enlargement:

1. **Front Yard** – Not required.

2. **Side Yard** – Side yard conforming to the requirements of the “R4” Zone (Sec. 12.11 C.2.) shall be provided and maintained in connection with buildings erected and used principally for residential purposes.

3. **Rear Yard** – No rear yard shall be required for buildings erected and used exclusively for commercial or industrial purposes. For buildings other than those erected and used exclusively for commercial or industrial purposes, a rear yard conforming to the requirements of the “R4” Zone (Sec. 12.11 C.3.) shall be provided and maintained at the floor level of the first story used in whole or in part for dwelling purposes.

4. **Lot Area** – The lot area requirement of the “R4” Zone (Sec. 12.11 C.4.) shall apply to buildings erected and used exclusively for dwelling purposes. For buildings other than those erected and used exclusively for dwelling purpose such

requirements shall apply only to that portion of a building used for dwelling purposes.

5. **Loading Space** – as required by Sec. 12.21 C.6.

Exception to Area relations are provided for in Sec. 12.22 C.

SEC. 12.18. “MR2” RESTRICTED LIGHT INDUSTRIAL ZONE.
(Renumbered by Ord. No. 148,969, Eff. 12/16/76.)

The following purpose and regulations shall apply in the “MR2” Restricted Light Industrial Zone.

A. Purpose.

1. To protect industrial land for industrial use, and prohibit unrelated commercial and other non-industrial uses.
2. To provide a reasonable range of interim uses in the zone, so that land owners can receive income from temporary use, while the industrial land reserve is being protected for future growth.
3. upgrade industrial development standards:
 - a. so that industry will be a better neighbor to residences,
 - b. to protect industrial investment against incompatible industry, and
 - c. to prevent future industrial slums.
4. To preserve industrial land for light industrial uses and non-retail businesses which will enhance the City’s employment base. **(Added by Ord. No. 169,366, Eff. 4/1/94.)**
5. To reflect and accommodate the shift in industrial land uses from traditional industrial activity to uses such as those involving record management, Research and Development, information processing, electronic technology, and medical research. **(Added by Ord. No. 169,366, Eff. 4/1/94.)**

B. Use. (Amended by Ord. No. 148,969, Eff. 12/16/76.) – No structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged or maintained, except for the following uses, or, where a “**Supplemental Use District**” is created by the provisions of Article 3 of this chapter, for such uses as may be permitted therein:

1. Any use permitted in the MR1 Zone provided that all regulations of said zone are complied with.
2. The following uses:
 - a. Bag cleaning (employing tabular vacuum cleaning and efficient dust collecting equipment - in completely enclosed building).
 - b. Bolt or screw thread rolling or cutting.
 - c. Bottle washing, collection or storage (in a completely enclosed building).
 - d. Box factory or cooperage.
 - e. Brewery.
 - f. Canvas, cloth, cork, excelsior or textile manufacturing.
 - g. Carpet or rug manufacturing.
 - h. Coil spring manufacturing (inner springs for mattresses and upholstered furniture using only coiling and knotting machines - light weight wire).
 - i. Die casting.
 - j. Electrical equipment manufacturing.
 - k. Enameling works.
 - l. Fencing, woven wire, manufacturing (from previously fabricated material - no galvanizing).

- m. Insecticide or pesticide blending or mixing (previously manufactured ingredients - cold process).
- n. Liquid fertilizer manufacturing (from previously manufactured chemicals and other inorganic materials by dissolving in water).
- o. Lubricating oil, canning and packaging.
- p. Match manufacturing, safety paper only.
- q. Mortuary or mortuary schools, embalming business or undertaking business.
- r. Pickle, yeast or vinegar manufacturing (in a completely enclosed building).
- s. Roll forming of metal, cold process.
- t. Aircraft factory. **(Added by Ord. No. 148,969, Eff. 12/16/76.)**
- u. Animal keeping or raising (no hog ranches having more than 5 swine or stockyards or cattle-feeding yard). In no case, however, shall any new animal kennel be constructed within 500 feet of a residential zone without issuance of a conditional use permit. **(Amended by Ord. No. 150,138, Eff. 10/31/77.)**
- v. Furniture manufacturing. **(Added by Ord. No. 148,969, Eff. 12/16/76.)**
- w. Oxygen or nitrogen manufacturing, compressing and bulk storage in tanks. **(Added by Ord. No. 148,969, Eff. 12/16/76.)**
- x. Screw machine products manufacturing. **(Added by Ord. No. 148,969, Eff. 12/16/76.)**
- y. Storage, sorting, collecting or baling of rags, paper, scrap metal or junk, when conducted wholly within an enclosed building. **(Added by Ord. No. 148,969, Eff. 12/16/76.)**

3. The following uses when conducted wholly within a completely enclosed building or within an area enclosed on all sides with a solid wall or solid fence not less than eight feet in height, when no materials or equipment is stored to a height greater than that of the enclosing wall or fence (except that in lumber yards lumber may be stored to a height greater than said wall or fence) and the wall or fence is maintained as provided in Section 12.21 A.9. **(Amended by Ord. No. 148,969, Eff. 12/16/76.)**

- a. Building materials salvage yard.
- b. Monument works.
- c. Planing mill or wholesale lumber yards.
- d. **(Deleted by Ord. No. 171,687, Eff. 8/19/97.)**

4. Other uses similar to the above as provided for in Section 12.21 A.2. but not including uses which are or may become obnoxious or offensive by emission of odor, dust, smoke, noise, gas, fumes, cinders, vibration, refuse matter or water-carried waste, as determined by a Zoning Administrator.

5. Uses customarily incident to any of the above uses, and accessory buildings when located on the same lot, provided:

- a. A dwelling shall be considered to be a permissible accessory building only when it is designed for and used solely by a guard or caretaker (including the guard's or caretaker's family) of an industrial development or of a permitted use which requires 24-hour supervision and is located on the same lot with such development or use.
- b. Open storage of materials and equipment, including used materials and equipment, shall be permitted only within an area enclosed on all sides with a solid wall or solid fence not less than eight feet in height with necessary solid gates of the same height. No material or equipment shall be stored to a height greater than that of the wall or fence enclosing the storage area. However, storage in lumber yards, other than storage of used materials or equipment may be at a height greater than said wall or fence. The phrase "**used materials and equipment**" includes vehicles, boats, or airplanes which are inoperable, wrecked, damaged or unlicensed, i.e. not currently licensed by the Department of Motor Vehicles. **(Amended by Ord. No. 162,335, Eff. 6/6/87.)**
- c. Signs or advertising structures shall indicate only the name, occupation or nature of activities conducted, services offered or the products sold or manufactured on the premises.
- d. Open storage of materials and equipment, including used materials and equipment, existing on a lot when it is zoned "**MR**," shall be enclosed as described herein. It shall be completely enclosed within a building or within

an area enclosed on all sides with a solid wall or solid fence, including necessary solid gates, of a height sufficient to screen the use from public view, but in no event less than eight feet in height, within one year after the lot is zoned MR. The phrase “**used materials and equipment**” includes vehicles, boats, or airplanes which are inoperable, wrecked, damaged or unlicensed, i.e. not currently licensed by the Department of Motor Vehicles. (Amended by Ord. No. 162,335, Eff. 6/6/87.)

6. Public parking areas and parking buildings as primary or accessory uses, and loading space required or provided in connection with the permitted uses, as provided in Sections 12.21 A. and 12.21 C.6. of this Code.

C. Area. (Amended by Ord. No. 148,969, Eff. 12/16/76.) No building or structure nor the enlargement of any building or structure shall be hereafter erected or maintained unless the following yards and lot areas are provided and maintained in connection with such building, structure or enlargement.

1. **Front Yard** – On all lots 100 feet in depth or less, 5 feet; on all lots in excess of 100 feet in depth, 15 feet. All front yards shall be suitably landscaped and maintained except for necessary driveways and walkways.

2. **Side Yard** – Side yards conforming to the requirements of the “R4” Zone (Section 12.11 C.2.) shall be provided and maintained in connection with buildings erected and used principally for residential purposes.

3. **Rear Yard** – No rear yard shall be required for buildings erected and used exclusively for commercial or industrial purposes. For buildings other than those erected and used exclusively for commercial or industrial purposes, a rear yard, conforming to the requirements of the “R4” Zone (Section 12.11 C.3.) shall be provided and maintained at the floor level of the first story used in whole or in part for residential purposes.

4. **Lot Area** – The lot area requirements of the “R5” Zone (Section 12.12 C.4.) shall apply to buildings erected and used exclusively for dwelling purposes. For buildings other than those erected and used exclusively for dwelling purposes such requirements shall apply only to that portion of a building used for dwelling purposes.

D. Fence Modifications. Same as the MR1 Zone and subject to the same limitations of Section 12.17.5 E. (Added by Ord. No. 146,030, Eff. 7/11/74.)

E. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi- Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection B. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

SEC. 12.18.1. “WC” WARNER CENTER SPECIFIC PLAN ZONE.

(Added by Ord. No. 168,870, Eff. 8/9/93.)

The following regulations shall apply in the “WC” Warner Center Specific Plan Zone:

A. Purpose. The regulations set forth in this section are intended to reflect the regulations contained in the Warner Center Specific Plan Ordinance.

B. Use. No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged or maintained, except as permitted by Sections 7 and 10 of the Warner Center Specific Plan Ordinance.

C. Area. No building or structure shall be erected or maintained nor shall the enlargement of any building or structure be erected or maintained unless the yard, lot area, setback and loading spaces required by Sections 7 and 10 of the Warner Center Specific Plan are provided and maintained in connection with the building, structure or enlargement.

SEC. 12.19. “M2” LIGHT INDUSTRIAL ZONE.

(Amended by Ord. No. 146,030, Eff. 7/11/74.)

The following regulations shall apply to the “M2” Light Industrial Zone:

A. Use – No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged, or maintained, except for the following uses, and, when a “**Supplemental Use District**” is created by the provisions of Article 3 of this chapter, for such uses as may be permitted therein:

1. Any open lot use permitted in an “A” or “R” Zone, which does not involve the use of buildings or structures other than accessory buildings incident to the use of the land.

1.5. **(Amended by Ord. No. 146,030, Eff. 7/11/74.)** Any use permitted in the M1 or MR2 Zone, whether conducted within or without a building or enclosed area, but not including any of the following:

(a) Any building, structure or portion thereof permitted in any “R” Zone, other than accessory buildings which are incidental to the use of the land.

(b) Any building containing dwelling units or guest rooms.

(c) The storage, display, processing or sales of second-hand boxes, crates, barrels, drums, furniture, or household appliances unless conducted in accordance with the limitations specified in Subsection A.4(b) of this section.

(d) The storage of impounded, abandoned, partially dismantled, obsolete or wrecked automobiles unless conducted in accordance with the limitations specified in Subsection A.4(b) of this section.

(e) The open air sale of merchandise from a privately owned vacant lot or drive-in theater. **(Added by Ord. No. 156,684, Eff. 6/19/82.)**

(f) Concrete or cement products manufactured in the open. **(Added by Ord. No. 158,939, Eff. 6/21/84.)**

(g) The open storage of materials and equipment, including used materials and equipment unless conducted in accordance with the limitations specified in Subsection A.4(b) of this section. The phrase “used materials and equipment” includes vehicles, boats, or airplanes which are inoperable, wrecked, damaged or unlicensed, i.e. not currently licensed by the Department of Motor Vehicles. **(Added by Ord. No. 162,335, Eff. 6/6/87.)**

(h) **(Amended by Ord. No. 173,492, Eff. 10/10/00.)** Indoor swap meets unless authorized pursuant to the provisions of Section 12.24 W.42.

2. **(None)**

3. Airport or aircraft landing field.

3.5. **(None)**

4. The following uses when conducted in accordance with the limitations hereafter specified:

(a) **Types of Use. (Amended by Ord. No. 152,770, Eff. 9/15/79.)**

(1) Automobile dismantling yard.

(2) Junk yard.

(3) Storage, display, processing or sales of second-hand furniture and appliances.

(4) Storage, display, processing, or sales of second-hand boxes, crates, barrels, drums, or similar containers. **(Added by Ord. No. 158,939, Eff. 6/21/84.)**

(5) The open storage of materials and equipment, including used materials and equipment. The phrase “**used materials and equipment**” includes vehicles, boats, or airplanes which are inoperable, wrecked, damaged or unlicensed, i.e. not currently licensed by the Department of Motor Vehicles. **(Added by Ord. No. 162,335, Eff. 6/6/87.)**

(b) **Limitations.**

(1) No crushing, smashing, baling or reduction of metal is conducted on the premises unless such is conducted without producing substantial amounts of dust and is so conducted that the noise emanating therefrom, as measured from any point on adjacent property shall be no more audible than the noise emanating from ordinary street traffic and from other commercial or industrial uses measured at the same point on said adjacent property; provided, however, that such noise shall be permitted in the event it does not exceed the levels provided in Section 111.03 of this Code as measured from any point on adjacent property in an “A”, “R”, “C”, “P” or “M” zone. **(Amended by Ord. No. 156,363, Eff. 3/29/82.)**

(2) The use is conducted wholly within an enclosed building or within an area completely enclosed with a solid masonry wall not less than eight feet in height with necessary solid gates of like height; or within an area completely enclosed with a solid fence not less than eight feet in height with necessary solid gates of like height. **(Amended by Ord. No. 137,470, Eff. 11/29/68.)**

(3) In the event the use is conducted in an area enclosed by a wall or fence as hereinabove provided, no material shall be stored to a height greater than the height of the enclosing wall or fence, except that the storage of empty second-hand wooden boxes and at when located at least 300 feet from a more restrictive zone or use, may be permitted an additional foot above the enclosing wall or fence for each two feet such boxes are set back from said enclosing wall or fence; provided that such stacking shall not exceed 18 feet in height. In no event shall such stacks violate the limitations imposed by Section 57.315.4.2 of the Los Angeles Municipal Code. **(Amended by Ord. No. 165,342, Eff. 1/19/90.)**

(4) **(Amended by Ord. No. 145,040, Eff. 1/15/73.)** Paved off- street parking spaces are provided for buildings as required by Section 12.21 A. of this Code, and for all other portions of the lot, other than public parking areas, as follows:

- (i) For up to the first acre a minimum of six spaces;
- (ii) For the second acre – one space for each 12,000 square feet of lot area; and
- (iii) For each acre exceeding two – one space for each acre of lot area.

(5) In the event the use is conducted in an area enclosed by a wall or fence as hereinabove provided, all property adjacent to any street is landscaped to a minimum depth of two feet measured at a right angle from the adjacent street and extending the full length of the property contiguous to such street except for areas necessary for ingress and egress. **(Amended by Ord. No. 137,470, Eff. 11/29/68.)**

5. Cemetery, columbarium, crematory or mausoleum.

6. Circus quarters, menagerie or keeping of wild animals.

7. **(None)**

8. Morgue.

9. Riding academy or stable.

10. Rifle range.

11. **(None)**

12. Other uses similar to the above, as provided in Section 12.21 A.2. but not including use which are or may become obnoxious or offensive by reason of emission of odor, dust, smoke, noise, gas, fumes, cinders, vibration, refuse matter or water-carried waste, as determined by the Administrator.

13. Uses customarily incident to any of the above uses and accessory buildings, when located on the same lot. A dwelling shall be considered to be a permissible accessory building only when it is designed for a used solely by a guard or caretaker (including the guard's or caretaker's family) of an industrial development or of a permitted use which requires 24-hour supervision and is located on the same lot with such development or use.

14. Automobile parking space and loading space required in connection with permitted uses, as provided for in Section 12.21 A. and Section 12.21 C.6.

15. Curing, composting and mulching facilities, including all accessory buildings, as well as chipping and grinding facilities when conducted within a wholly enclosed building. **(Added by Ord. No. 170,054, 11/13/94.)**

16. Cargo container storage yard, when located in whole or in part within the boundaries of the Port of Los Angeles Community Plan area. **(Added by Ord. No. 177,244, Eff. 2/18/06.)**

B. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi-Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection A. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

C. Area. No building or structure nor the enlargement of any building or structure shall be hereafter erected or maintained unless the following yards and lot areas are provided and maintained in connection with such building, structure or enlargement.

1. **Front Yard** – Not required.

2. **Side Yard** – Side yards conforming to the requirements of the “R5” Zone (Sec. 12.12 C.2.) shall be provided and maintained in connection with buildings erected and used principally for residential purposes.

3. **Rear Yard** – No rear yard shall be required for buildings erected used exclusively for commercial or industrial purposes. For buildings other than those erected and used exclusively for commercial or industrial purposes, a rear yard conforming to the requirements of the “R4” Zone (Sec. 12.11 C.3.) shall be provided and maintained at the floor level of the first story used in whole or in part for dwelling purposes.

4. **Lot Areas** – The lot area requirements of the “R5” Zone Sec. 12.12 C.4. shall apply to buildings erected and used exclusively for dwelling purposes. For buildings other than those erected and used exclusively for dwelling purposes such requirements shall apply only to that portion of a building used for dwelling purposes.

5. **Loading Spaces** – as required by Sec. 12.21 C.6.

Exceptions to area regulations are provided for in Sec. 12.22 C.

SEC. 12.19.1. LAX LOS ANGELES INTERNATIONAL AIRPORT ZONE.

(Added by Ord. No. 176,343, Eff. 1/20/05.)

The following regulations shall apply in the “LAX” Los Angeles International Airport Specific Plan Zone:

A. Purpose. This section creates a new LAX Zone and the regulations set forth in this section refer to the regulations contained in the LAX Specific Plan.

B. Use. No building, structure or land shall be used and no building or structure shall be erected, structurally altered, enlarged, or maintained, except as permitted by the LAX Specific Plan.

C. Area. No building or structure, nor the enlargement of any building or structure, shall be erected or maintained unless the requirements of the LAX Specific Plan are met and maintained in connection with the building, structure or enlargement.

D. The provisions of this section apply only to properties owned by the Los Angeles World Airports (LAWA) or which LAWA has the right to possess. Properties not owned by LAWA or which LAWA does not have the right to possess shall only be subject to the LAX Zone regulations if and when LAWA either obtains ownership or the right to possession. Until that time, the property shall retain the zoning in effect at the time this ordinance becomes effective and shall not be subject to the LAX Zone regulations. If and when LAWA does become the owner or obtains the right to possess, the LAX Zone shall immediately become operative for that property.

SEC. 12.20. “M3” HEAVY INDUSTRIAL ZONE.

The following regulations shall apply in the “M3” Heavy Industrial Zone.

A. Use (Amended by Ord. No. 184,246, Eff. 6/4/16.) – No building, structure or land shall be used and no structure shall be erected, structurally altered, enlarged or maintained, except for the following uses, and, when a “**Supplemental Use District**” is created by the provisions of Article 3 of this chapter, for such uses as may be permitted therein:

1. Any use permitted in the “M2” zone, except the following: **(Amended by Ord. No. 163,073, Eff. 1/30/88.)**

(a) Any building, structure or portion thereof permitted in any R Zone, other than accessory buildings which are incident to the use of the land, unless approved pursuant to the provisions of Section 12.24. **(Amended by Ord. No. 145,474, Eff. 3/2/74.)**

(b) Any building containing dwelling units or guest rooms.

(c) Hospitals or sanitariums, except animal hospitals. **(Amended by Ord. No. 145,250, Eff. 12/24/73.)**

(d) The open air sale of merchandise from a privately owned vacant lot or drive-in theater. **(Amended by Ord. No. 156,684, Eff. 6/19/82.)**

(e) **(Amended by Ord. No. 173,492, Eff. 10/10/00.)** Indoor swap meets, unless authorized pursuant to the provisions of Section 12.24 W.42.

2. Acetylene gas manufacture or storage.

3. Alcohol manufacture.

4. Ammonia, bleaching powder, or chlorine manufacture.
5. The following uses when conducted in accordance with the limitations hereafter specified.

(a) **Types of uses. (Amended by Ord. No. 152,770, Eff. 9/15/79.)**

- (1) Automobile dismantling yard.
- (2) Junk yard.
- (3) Storage, display, processing or sales of second-hand furniture and appliances.
- (4) Scrap metal processing yard.
- (5) The open storage of material and equipment, including used materials and equipment. The phrase "used materials and equipment" includes vehicles, boats, or airplanes which are inoperable, wrecked, damaged or unlicensed. i.e. not currently licensed by the Department of Motor Vehicles. **(Added by Ord. No. 162,335, Eff. 6/6/87.)**
- (6) Cargo container storage yard, when established and operated in conformance with the standards contained in Section 12.21 A.22. of this Code. **(Added by Ord. No. 177,244, Eff. 2/18/06.)**

(b) **Limitations.** The uses set forth in Paragraph (a) above, except for cargo container storage yards when established and operated in conformance with the standards contained in Section 12.21 A.22. of this Code, are subject to the following limitations: **(Amended by Ord. No. 177,244, Eff. 2/18/06.)**

- (1) Notwithstanding any provision of Section 12.23 C.6. of this Code, from and after August 25, 1970, all of the uses described in Paragraph (a) of this subdivision in the "M3" Zone shall be conducted wholly within an enclosed building, or shall be completely enclosed with a solid wall or solid fence not less than eight feet in height with necessary solid gates of like height.
- (2) Where a required wall or fence has been erected between the area wherein the use is conducted and a street, no material is stored to a height greater than that of such wall or fence within 50 feet thereof unless the height of the wall or fence is 10 feet or more in which case the distance within which no material may be stored above the height of the wall or fence shall be 37 feet. Provided, however, that a scrap metal processing yard that is entirely located at least 500 feet from a more restrictive zone, is exempt from the above stacking limitations.
- (3) Paved off-street parking spaces have been provided as specified in Section 12.19 A.4.(b)(4).
- (4) Landscaping is provided as specified in Section 12.19 A.4.(b)(5).

EXCEPTION:

Any of the uses enumerated in Section 12.20 A.5., located on land which is entirely separated from a more restrictive zone in the City of Los Angeles by a body of water at least 500 feet wide shall be exempt from the foregoing enclosure limitations.

(c) **Compliance.** Any use lawfully existing in the M3 Zone to which Paragraph (b) of this subdivision is applicable shall be completely removed from such zone within one year unless said use has been made to comply with that regulation. Provided, however, that upon a showing that substantial compliance has been effected, the Director of Planning may grant an extension of time to complete the work necessary to effect compliance. No extension so granted shall exceed six months in duration, nor shall more than one such extension be granted with respect to any individual use. **(Amended by Ord. No. 145,040, Eff. 10/15/73.)**

6. Blast furnace or coke oven.
7. Boiler works.
8. Brick, tile or terra cotta manufacture.
9. Chemical manufacture.
10. Concrete or cement products manufacture in the open.
11. Cotton gin or oil mill.
12. Fish smoking, curing or canning.

13. Freight classification yard.
14. Iron or steel foundry or fabrication plant and heavyweight casting.
15. Lamp black manufacture.
16. Oilcloth or linoleum manufacture.

17. Oil drilling and production of oil, gas or hydrocarbons, except that oil drilling and production of oil, gas and hydrocarbons within 500 feet of a more restrictive zone shall be subject to the provisions of Subsection A. and H. of Section 13.01 of this article. **(Amended by Ord. No. 116,820, Eff. 9/26/60.)**

18. Ore reduction.
19. Paint, oil (including linseed), shellac, turpentine, lacquer or varnish manufacture.
20. Paper and pulp manufacture.
21. Petroleum products manufacture.
22. Plastic manufacture.
23. Potash works.
24. Pyroxyline manufacture.
25. Quarry or stone mill.
26. Railroad repair shops.

27. Rock, sand or gravel distribution; surface mining operations subject to the restrictions provided in Section 13.03. **(Amended by Ord. No. 155,950, Eff. 12/5/81.)**

28. Rolling mills.
29. Rubber or gutta-percha manufacture or treatment.
30. Salt works.
31. Soap manufacture.
32. Sodium compounds manufacture.
33. Stove or shoe polish manufacture.
34. Tar distillation or tar products manufacture.
35. Wool pulling or scoring.

36. And in general those uses which may be obnoxious or offensive by reason of emission of odor, dust, smoke, gas, noise, vibration, and the like; provided, however, that none of the following uses shall be located nearer than five hundred (500) feet to a more restricted zone.

- (a) Acid manufacture.
- (b) Automobile, equine or motorcycle race track. **(Amended by Ord. No. 157,144, Eff. 11/22/82.)**
- (c) Cement, lime, gypsum or plaster of paris manufacture.
- (d) Distillation of bones.
- (e) Drop forge industries manufacturing forgings with power hammers.
- (f) Explosives, manufacture or storage, subject to other provisions of this Code. **(Amended by Ord. No. 111,587, Eff. 8/9/58.)**
- (g) **(None)**

- (h) Fertilizer manufacture.
- (i) Garbage, offal, or dead animal dumping. **(Added by Ord. No. 158,939, Eff. 6/21/84.)**
- (j) Gas manufacture.
- (k) Glue manufacture.
- (l) Petroleum refining.
- (m) Smelting of tin, copper, zinc or iron ores.
- (n) Stock yards or feeding pens.
- (o) **(None)**
- (p) Tannery or the curing or storage of raw hides.

37. Uses customarily incident to any of the above uses and accessory buildings when located on the same lot.

For the location of accessory buildings refer to Sec. 12.11 C.2. and Sec. 12.22 C.12.

38. Automobile parking space, for buildings other than dwellings, as required by Sec. 12.21 A.4.

B. Restriction. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) For any lot designated as Public, Quasi-Public, Public/Quasi-Public Use, Other Public, or Open Space on the land use map of the applicable community or district plan; any lot shown on the map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities; any lot shown on the map as the location of a freeway right-of-way; and any property annexed to the City of Los Angeles where a plan amendment was not adopted as part of the annexation proceedings:

Any of the uses permitted by Subsection A. of this section shall require prior approval in accordance with the provisions of Section 12.24.1 of this Code.

C. Loading Space – No building or structure, nor the enlargement of any building or structure, shall be erected or maintained unless a loading space conforming to the provisions of Sec. 12.21 C.6. is provided and maintained in connection with such building, structure or enlargement.

SEC. 12.20.1. SL OCEAN – SUBMERGED LAND ZONE. **(Amended by Ord. No. 142,081, Eff. 7/22/71.)**

The following regulations shall apply to the SL Ocean Submerged Land Zone:

A. Nature, Scope and Purpose. The Los Angeles City seacoast and off shore water and underwater areas constitute a unique and important geographical and scenic resource, utilized for shipping, industry, commerce, residence and recreation.

Offshore zoning and incidental districts are a related and appropriate extension of city planning and zoning principles and practices on land. Their basic purpose is to protect all users of affected land from the recognized problems and depreciation brought about by unregulated development. Particular purposes in Los Angeles include (1) protection of the recreational, residential and scenic uses of coast areas, now much in demand for these uses and with greater demand forecast for the future; (2) preservation of the near seaward prospect of residential zones along the coast, where this outlook constitutes part of the environment and value of overlooking onshore properties and (3) provision for such other uses as benefit the public and City without significant impairment of these recreational and residential uses.

To permit new coastline or offshore developments of conflicting type which are not essential to the public interest and could jeopardize or downgrade existing recreational and residential users, would not constitute proper consideration of public necessity, convenience, general welfare and good zoning practice.

To realize the purposes enumerated above, in accordance with established city planning principles, practice and supportive zoning, certain general objectives must be met and certain specific requirements are normally necessary for the constructive control of offshore activities, whether achieved by zone change, variance, special district or otherwise.

1. There must be no chemical and biological contamination, visual clouding or soiling of urban coastline, beaches or offshore waters by industrial/commercial uses.

2. Installations onshore, temporary or relatively permanent, must be of such size, nature, location and spacing that they do not significantly interfere with or adversely affect the residential and recreational use, operation, environment or

enjoyment of coastline and offshore areas.

3. The preservation of urban coastline and offshore areas, above and below water level, in the natural state or for recreation and residence, should take precedence if their function and enjoyment are threatened by additional potentially conflicting offshore uses which are not clearly of greater public necessity and interest.

4. Any shoreline industrial/commercial uses should be of limited and designated duration, with provision for complete removal of installations and restoration of the prior or natural state after expiration of the permissible time period, unless such removal and restoration are unnecessary to maintain desirable recreational and residential environment.

5. No industrial/commercial operations should be undertaken where or when they may cause significant alterations to the underlying geologic stability of other areas, offshore and onshore, or otherwise bring about undesirable changes of basic topographical condition.

6. Piers, jetties, causeways, human-made islands, bridges or other connective structures should be prohibited, except when they enhance the recreational/residential environment.

7. Emission of smoke, steam, chemical, odor, sound, artificial light or other form of atmospheric pollutant or environmental impairment from any seaside industrial/commercial installation or facility should be controlled to fulfill the purposes of this zoning.

8. No provision of offshore urban zoning should conflict with state, federal or international rights or control established by law within the same geographical areas.

B. Use. No property of any kind shall be used except for the following uses or when a Supplemental Use District is created by the provisions of Article 3 of this chapter, provided, however, that in no event shall any property be used for surface-type operations (either above or below water level) relating to oil drilling and production of oil, gas or hydrocarbons.

1. Navigation

2. The following uses when conducted in accordance with the limitations hereafter specified:

(a) **Types of Uses:**

(1) Commercial Shipping;

(2) Fishing;

(3) Recreation;

(4) Any use required by any trust or legislative grant to the City of Los Angeles.

(b) **Limitations.** (Amended by Ord. No. 173,492, Eff. 10/10/00.) No piers, jetties, human-made islands, floating installations or the like are permitted in connection with any of the above uses unless authorized under the provisions of Section 12.24 U.

SEC. 12.20.2. COASTAL DEVELOPMENT PERMITS (PRIOR TO CERTIFICATION OF THE LOCAL COASTAL PROGRAM.)

(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

See Sec. 13B.9.1. (Coastal Development Permit (Pre-Certification)) of Chapter 1A of this Code.

SEC. 12.20.2.1. COASTAL DEVELOPMENT PERMIT PROCEDURES AFTER CERTIFICATION OF THE LOCAL COASTAL PROGRAM.

(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

See Sec. 13B.9.2. (Coastal Development Permit (Post-Certification)) of Chapter 1A of this Code.

SEC. 12.20.3. "HP" HISTORIC PRESERVATION OVERLAY ZONE.

(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

See Div. 13B.8. (Historic Preservation) of Chapter 1A of this Code.

SEC. 12.21. GENERAL PROVISIONS.

A. Use.

1. Conformance and Permits Required.

(a) **Permits and Licenses.** No building or structure shall be erected, reconstructed, structurally altered, enlarged, moved, or maintained, nor shall any building, structure, or land be used or designed to be used for any use other than is permitted in the zone in which such building, structure, or land is located and then only after applying for and securing all permits and licenses required by all laws and ordinances. **(Amended by Ord. No. 131,319, Eff. 1/16/66.)**

(b) **Flexible Units.** Whenever a layout within any dwelling unit or guest room is designed with multiple hallway entrances, multiple toilet and bath facilities or bar sink installations, so that it can be easily divided into or used for separate apartments or guest rooms, the lot area requirements and the automobile parking requirements shall be based upon the highest possible number of dwelling units or guest rooms obtainable from any such arrangement. **(Amended by Ord. No. 149,118, Eff. 2/5/77.)**

2. **Other Use and Yard Determinations by the Zoning Administrator.** See Sec. 13A.1.7.D.2 (Zoning Administrator; Specific Authority; Zoning Administrator Interpretation) of Chapter 1A of this Code. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

3. **Zone Group Classification.** Whenever the terms A Zone, R Zone, C Zone, or M Zone are used in this article, they shall be deemed to refer to all zones containing the same letters in their title; provided, however, the term A zone shall include the RA Zone, the term R Zone shall include the RD, RE, RS, RW, RU, RZ, and RMP Zones, the term C Zone shall include the CR, CM and the CM(GM) Zones, and the term M Zone shall include the MR Zones. **(Amended by Ord. No. 169,103, Eff. 11/21/93.)**

4. **Off-Street Automobile Parking Requirements.** **(Amended by Ord. No. 185,480, Eff. 5/9/18.)** A garage or an off-street automobile parking area shall be provided in connection with and at the time of the erection of each of the buildings or structures hereinafter specified, or at the time such buildings or structures are altered, enlarged, converted or increased in capacity by the addition of dwelling units, guest rooms, beds for institutions, floor area or seating capacity. The parking space capacity required in said garage or parking area shall be determined by the amount of dwelling units, guest rooms, beds for institutions, floor area or seats so provided, and said garage or parking area shall be maintained thereafter in connection with such buildings or structures.

New or existing automobile parking spaces required by the Code for all uses may be replaced by bicycle parking at a ratio of one standard or compact automobile parking space for every four required or non-required bicycle parking spaces provided, so long as the number of compact stalls complies with Section 12.21 A.5.(c) of this Code. In cases where additional bicycle parking spaces are required as a result of an addition to an existing building, the maximum number of bicycle parking spaces eligible to be applied toward the required number of automobile parking spaces shall be calculated based on the total number of bicycle parking spaces provided for the existing building plus the number of bicycle parking spaces provided for the addition. Notwithstanding the foregoing, no more than 20 percent of the required automobile parking spaces for nonresidential uses shall be replaced at a site. Automobile parking spaces for nonresidential projects or buildings located within 1,500 feet of a major transit stop, as defined in Subdivision (b) of Section 21155 of the California Public Resources Code as that section may be amended from time to time, may replace up to 30 percent of the required automobile parking spaces with bicycle parking. For buildings with less than 20 required automobile parking spaces, those spaces may be replaced subject to the limits described in this Subdivision, not exceeding a total of four parking spaces replaced.

Residential buildings, including hotels, motels and apartment hotels, may replace 10 percent of the required automobile parking with bicycle parking. Automobile parking spaces for residential projects or buildings located within 1,500 feet of a major transit stop, as defined in Subdivision (b) of Section 21155 of the California Public Resources Code, may replace up to 15 percent of the required automobile parking spaces with bicycle parking. If a residential building includes at least the minimum number of restricted affordable units to receive a density bonus, pursuant to California Government Code Section 65915(b), then up to 30 percent of the required automobile parking may be replaced. In such cases, the replacement of automobile parking with bicycle parking shall be implemented in lieu of the parking options in California Government Code Section 65915(p). **(Amended by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

For the purposes of this subdivision, the 1,500-foot distance shall be measured horizontally based on the shortest distance between any point on the lot and a qualified major transit stop.

In cases where additional automobile parking spaces are required as a result of an addition to an existing building, the maximum number of required automobile parking spaces eligible to be satisfied using bicycle parking spaces shall be calculated based on the total number of automobile parking spaces provided for the existing building plus the number of automobile parking spaces required for the addition.

Bicycle parking installed pursuant to this section may be installed in existing automobile parking spaces and shall not be considered to violate the maintenance of existing parking as defined by section 12.21 A.4.(m). The ratio of short- to long-term bicycle parking provided for pursuant to this section shall be provided in accordance with the requirements set forth for each use as defined by Section 12.21 A.16.(a). If additional bicycle parking is provided beyond the requirements of Section 12.21 A.16.,

or provided when not required by Code, the ratio of short- to long- term bicycle parking provided may be determined by the business or property owner.

(a) **For Dwelling Units. (Amended by Ord. No. 176,354, Eff. 1/31/05.)** In all zones, there shall be at least two automobile parking spaces on the same lot with each one-family dwelling thereon, and in any RW Zone there shall be at least two automobile parking spaces per dwelling unit which shall be upon the same lot with the dwelling unit. However, for small lot subdivisions approved pursuant to Article 7 of this Chapter in conformity with the provisions of Section 12.22 C.27. of this Code, the required parking spaces shall not be required to be located on the same lot with each dwelling unit, but shall be provided within the boundaries of the parcel or tract map. The ratio of parking spaces required for all other dwelling units shall be at least one parking space for each dwelling unit of less than three habitable rooms, one and one-half parking spaces for each dwelling unit of three habitable rooms, and two parking spaces for each dwelling unit of more than three habitable rooms. Where the lot is located in an RA, RE, RS, R1, RU, RZ, RMP, or RW Zone, the required parking spaces shall be provided within a private garage. Where the lot is located in an R2 Zone, at least one of the required parking spaces per dwelling unit shall be provided within a private garage. Any door or doors installed at the automobile entry to a garage serving a one or two-family dwelling where one or more required parking spaces is located shall be of conventional design constructed so as to permit the simultaneous entry of automobiles into each required parking space without damaging the door or door frame and constructed so as to permit the flow of air through the automobile entry when the door is in the fully closed position.

The above area requirements shall not apply to mobilehomes parks or mobilehomes located within mobilehome parks. Mobilehome parks are subject to the requirements of Title 25 of the California Administrative Code.

(b) **For Guest Rooms.** Automobile parking spaces shall be provided in the following ratio for the guest rooms included within any building: (Amended by Ord. No. 129,334, Eff. 2/28/65.)

- (1) One parking space for each individual guest room or suite of rooms for the first 30;
- (2) One additional parking space for each two guest rooms or suites of rooms in excess of 30 but not exceeding 60; and
- (3) One additional parking space for each three guest rooms or suites of rooms in excess of 60.

(c) **For Commercial and Industrial Buildings. (Amended by Ord. No. 182,386, Eff. 3/13/13.)** Except as otherwise provided in subparagraphs (1) through (7) below, there shall be at least one automobile parking space for each 500 square feet of combined floor area contained within all the office, business, commercial, research and development buildings, and manufacturing or industrial buildings on any lot.

A specific plan may impose less restrictive parking requirements, if it expressly states that the specific plan's parking provisions are intended to supersede the standards set forth in this paragraph.

(1) **Warehouse:** Where a building or portion thereof is designed, arranged or used as a warehouse including storage buildings for household goods and has a gross floor area in excess of 10,000 square feet, in addition to the one automobile parking space for each 500 square feet of floor area for the first 10,000 square feet, only one parking space need be provided for each 5,000 square feet of floor area in excess of the first 10,000 square feet contained in such warehouse. Such warehouse may not be changed to another use unless additional parking space is provided to meet the requirements contained herein for such other uses.

(2) **Health Clubs:** There shall be at least one automobile parking space for each 100 square feet of floor area in the building being utilized for a health club, athletic club, bath house, gymnasium, dance studio, dance hall, or any similar establishment, which operates as a private facility or offers the use of the premises and equipment to the general public for physical exercise, dance or sports activities. This provision does not include such a facility located in a building which is accessory to an elementary school, junior high school or senior high school as defined in Section 12.03 of this article or any other institution of learning under the jurisdiction of the State Department of Education. This provision does not include such a facility located within an office building of at least 50,000 square feet or more of gross floor area, or located within the Downtown Business District parking exception area described in Paragraph (i) of this subdivision.

(3) **Restaurants and Bars, General:** There shall be at least one automobile parking space for each 100 square feet of gross floor area included within the total square footage of any restaurant, café, coffee shop, tea room, fast food establishment, bar, night club, or any similar establishment, which dispenses food or refreshments or provides dancing or live entertainment. This requirement shall only apply to an establishment which has a gross floor area greater than 1,000 square feet. An establishment which provides no seating and exclusively dispenses food or refreshments to be eaten off the premises is not included in this definition and shall instead meet the requirement for general retail uses.

(4) **Restaurant, Small:** If a restaurant, café, coffee shop, or other dining establishment has a gross floor area of 1,000 square feet or less, then it need provide only one automobile parking space for each 200 square feet of gross floor area. However, if such an establishment has a separate bar, or provides dancing or live entertainment, then

additional parking shall be provided to meet the requirements for general restaurants set forth in Subparagraph (3) of this paragraph.

(5) **Retail Stores, General: (Amended by Ord. No. 173,992, Eff. 7/6/01.)** Retail establishments and discount wholesalers selling to the general public, shall provide at least four automobile parking spaces for each 1,000 square feet of gross floor area.

(6) **Retail, Furniture Stores:** Furniture stores, major appliance stores, or similar establishments shall provide at least one automobile parking space for each 500 square feet of gross floor area.

(7) **Trade Schools:** Trade schools, business colleges, professional or scientific schools, music schools, chiropractic schools, or any similar commercial school shall provide at least one automobile parking space for each 50 square feet of floor area contained within classrooms and assembly areas, or one parking space for each five fixed seats contained within classrooms and assembly areas, whichever provides the greater number of parking spaces. This does not include classroom area where heavy equipment is used in conjunction with training, which shall instead provide at least one parking space for each 500 square feet of floor area.

(d) **For Institutions. (Amended by Ord. No. 145,088, Eff. 10/18/73.)** There shall be at least one automobile parking space for each 500 square feet of floor area contained within any philanthropic institution, governmental office building, or similar use. Institutions which provide medical services, such as hospitals, sanitariums, convalescent homes, clinics, medical office buildings and other medical service facilities shall make the following provisions for off-street automobile parking.

(1) Hospitals shall provide 2.0 automobile parking spaces for each patient bed for which the hospital is licensed.

(2) Sanitariums and convalescent homes shall provide one automobile parking space for each 500 square feet of floor area, or 0.2 automobile parking spaces per patient bed, for which the facility is licensed, whichever provides the greater number of automobile parking spaces.

(3) Clinics, as defined in Health and Safety Code Section 1202, medical office buildings and other medical service facilities shall provide one automobile parking space per 200 square feet of total floor area.

(4) Any institution providing a mixture of medical services, such as a combined hospital/clinic facility, shall meet the requirements for automobile parking spaces as if each portion of the facility were an independent entity.

(5) **(Added by Ord. No. 178,063, Eff. 12/30/06.)** Any Eldercare Facility shall meet the following requirements for automobile parking spaces for each housing type within the facility.

Housing Type	Required Parking For Each Housing Type (whether or not included within an Eldercare Facility)
Senior Independent Housing	1 automobile parking space for each dwelling unit
Assisted Living Care Housing	1 automobile parking space for each dwelling unit or 1 automobile parking space for each guest room
Skilled Nursing Care Housing	0.2 automobile parking space for each guest bed
Alzheimer's/Dementia Care Housing	0.2 automobile parking space for each guest bed

(e) **For Auditoriums.** There shall be at least one automobile parking space for each five seats contained within any theatre, church, high school, college or university auditorium, or general auditorium, stadium or other similar place of assembly. Where there are no fixed seats in the auditorium or place of assembly, there shall be one parking space for each 35 square feet of floor area (exclusive of stage) contained therein.

(f) **For Elementary Schools.** There shall be one automobile parking space on the same lot with each classroom contained in any elementary school.

(g) **Location of Parking Area.** The automobile parking spaces required by Paragraphs (b), (c), (d) and (e) hereof, shall be provided either on the same lot as the use for which they are intended to serve or on another lot not more than 750 feet distant therefrom; said distance to be measured horizontally along the streets between the two lots, except that where the parking area is located adjacent to an alley, public walk or private easement which is easily usable for pedestrian travel between the parking area and the use it is to serve, the 750-foot distance may be measured along said alley, walk or easement. **(Amended by Ord. No. 145,088, Eff. 10/18/73.)**

(h) **Access Driveways.** An access driveway shall be provided and maintained between each automobile parking space or area and a street, or alley, or a private street or easement approved in accordance with the provisions of Article 8 of this Chapter and Sec. 13B.7.7. (Private Street Map) of Chapter 1A of this Code. Such access driveway shall be located

entirely on the lot which it serves. However, an access driveway need not be located entirely on the same lot as the dwelling and parking space it serves if the driveway lot and dwelling existed on September 6, 1961, and additions and alterations may be made to such dwelling, and accessory buildings may be added on such lot, if no additional dwelling units or guest rooms are created. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

(i) **Exception Downtown Business District. (Amended by Ord. No. 137,036, Eff. 9/22/68.)** Notwithstanding any other provisions of this section to the contrary, within that area hereinafter described, the off-street automobile parking spaces required in connection with the following buildings, structures or uses shall be located on the same lot or not more than 1,500 feet therefrom and said spaces shall be provided in the following ratio:

(1) For auditoriums and other similar places of assembly, one space for each 10 fixed seats or one space for each 100 square feet of floor area (exclusive of stage) where there are no fixed seats;

(2) For hospitals, philanthropic institutions, governmental office buildings, and similar uses, at least one parking space for each 1,000 square feet of floor area.

(3) For business, commercial or industrial buildings, having a gross floor area of 7,500 square feet or more, at least one parking space for each 1,000 square feet of floor area in said building, exclusive of floor areas used for automobile parking space, for basement storage, or for rooms housing mechanical equipment incidental to the operation of buildings; provided that, for a warehouse having a gross floor area of 10,000 square feet or more, in addition to one automobile parking space for each 1,000 square feet of floor area for the first 10,000 square feet, the automobile parking required for that portion of the warehouse in excess of the first 10,000 square feet of floor area shall be one space for each 5,000 square feet. **(Amended by Ord. No. 137,557, Eff. 12/26/68.)**

This exception shall apply only to property located within the area bounded by Pico Boulevard from the Harbor Freeway to Figueroa Street; Figueroa Street from Pico Boulevard to Venice Boulevard; Venice Boulevard from Figueroa Street to Main Street; Sixteenth Street from Main Street to Maple Avenue; Maple Avenue from Sixteenth Street to Olympic Boulevard; Olympic Boulevard from Maple Avenue to San Julian Street; San Julian Street from Olympic Boulevard to Ninth Street; Ninth Street from San Julian Street to Gladys Avenue; Olympic Boulevard from Gladys Avenue to Central Avenue; Central Avenue from Olympic Boulevard to Third Street; Third Street from Central Avenue to Alameda Street; Alameda Street from Third Street to Sunset Boulevard; Sunset Boulevard from Alameda Street to North Broadway; North Broadway from Sunset Boulevard to Temple Street; Temple Street from North Broadway to Hill Street; Hill Street from Temple Street to First Street; First Street from Hill Street to the Harbor Freeway; the Harbor Freeway from First Street to Pico Boulevard. **(Amended by Ord. No. 147,460, Eff. 8/31/75.)**

(j) **Combination of Uses. (Amended by Ord. No. 165,773, Eff. 5/21/90.)**

(1) Where there is a combination of uses on a lot, the number of automobile parking spaces required shall be the sum of the requirements of the various uses, except as provided below.

(2) If there is office space auxiliary to a manufacturing, warehouse, or other industrial use on the same lot, the office use shall have its required parking spaces computed at the same ratio as the industrial use. However, if the office space exceeds 10 percent of the total gross floor area of a building, then the balance of the office space in excess of 10 percent shall have its required spaces computed at the ratio specified for office use.

(3) For an office building with a total gross floor area of at least 50,000 square feet, and if the retail space in the building does not exceed five percent of the total gross floor area, or 15,000 square feet, whichever is the smaller amount, then any retail space in the building shall have its required parking spaces computed at the same ratio as the office use.

(k) **Fractional Space.** When the application of these regulations results in the requirement of a fractional automobile space, any fraction up to and including one-half may be disregarded and any fraction over one-half shall be construed as requiring one automobile parking space.

(l) **Use of Passageways.** In no event shall the passageways provided in compliance with the requirements of Subdivision 2. of Subsection C. of this section be considered as also providing the automobile parking space or any portion of the parking space required hereby.

(m) **For Existing Buildings. (Amended by Ord. No. 182,110, Eff. 5/29/12.)** Off-street automobile parking space being maintained in connection with any existing main building or structure shall be maintained so long as said main building or structure remains, unless an equivalent substitute number of such spaces are provided and thereafter maintained conforming to the requirements of this paragraph; provided, however, that this regulation shall not require the maintenance of more automobile parking space than is required herein for a new building or structure identical to said existing building or structure, nor the maintenance of such space for any type of main building or structure other than those specified herein. Further, provided, however, that if a building or structure constructed after the effective date of this ordinance is of insufficient floor area at the time of its construction to be required to provide parking spaces by the

requirements of this section, but is subsequently increased in floor area in such a manner that it would be subject to said requirements, parking spaces shall then be provided on the basis of the total resulting floor area.

Exceptions:

(1) Notwithstanding any other provisions of this section to the contrary and for any existing high rise building cited under Los Angeles Municipal Code Section 91.8604.6.3, the Department of Building and Safety may reduce the number of required parking spaces by the number of spaces which the Department of Building and Safety determines are needed to install a water storage tank to enlarge an existing fire pump room, or to install a new fire pump room.

(2) The Department of Building and Safety may reduce the number of required parking spaces by the number of spaces which the Department of Building and Safety determines are needed to provide disabled parking spaces as required by State access laws.

(3) Notwithstanding any other provisions of this section to the contrary, the Department of Building and Safety may reduce the number of required parking spaces by the number of spaces that are necessarily displaced as a result of compliance with Divisions 93 and 95 of Article 1 of Chapter IX of the Los Angeles Municipal Code. The reduction shall not exceed 20 percent of required parking spaces or one (1) space, whichever is greater. This exception does not nullify any existing obligations under the Rent Stabilization Ordinance in Chapter XV, Article 1, of the Los Angeles Municipal Code. **(Added by Ord. No. 185,633, Eff. 7/9/18.)**

(n) In no event shall automobile parking space which is provided for a building or use, as required by this section, be considered as providing any of the required space for another building or use.

(o) **Waiver.** All or a portion of the off- street automobile parking spaces required by this Section may be waived when the lot involved is located within the boundaries of an assessment district for the acquisition of publicly owned automobile parking lots, or is located adjacent to land used or being acquired for publicly owned parking lots. The City Planning Commission, pursuant to Sec. 13B.2.3. (Class 3 Conditional Use Permit) of Chapter 1A of this Code, with the assistance of the Off-Street Parking Bureau, shall determine to what extent and on which lots the required parking may be waived, but in no event shall the total number of the waived parking spaces exceed the total number provided on the publicly owned parking lots. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

(p) **Exception for Central City Area.** **(Added by Ord. No. 129,334, Eff. 2/28/65.)** Notwithstanding any other provisions of this section to the contrary, within that area hereinafter described, the off-street automobile parking spaces required in connection with the following residential uses shall be located on the same lot and said spaces shall be provided in the following ratio:

(1) One space for each dwelling unit, except where there are more than six dwelling units of more than three habitable rooms per unit on any lot, the ratio of parking spaces required for all of such units shall be at least one and one-quarter parking spaces for each dwelling unit of more than three habitable rooms.

(2) One space for each two individual guest rooms or suites of rooms for the first 20, one additional parking space for each four guest rooms or suites of rooms in excess of 20 but not exceeding 40, and one additional parking space for each six guest rooms or suites of rooms in excess of 40.

With regard to any development for which architectural and structural plans sufficient for a complete plan check were accepted by the Department of Building and Safety and for which a complete and full plan check fee was paid on or before May 11, 1988, and for which no subsequent changes are made to those plans which increase the number of dwelling units or guest rooms:

This exception shall apply to property located within the area bounded by Western Avenue from Melrose Avenue to Washington Boulevard, Washington Boulevard to Vermont Avenue, Vermont Avenue from Washington Boulevard to the Santa Monica Freeway, the Santa Monica Freeway from Vermont Avenue to Hoover Street, Hoover Street from the Santa Monica Freeway to Union Avenue, Union Avenue from Hoover Street to Washington Boulevard, Washington Boulevard from Union Avenue to the Harbor Freeway, the Harbor Freeway from Washington Boulevard to Figueroa Street, Figueroa Street from Harbor Freeway to Jefferson Boulevard, Jefferson Boulevard from Figueroa Street to Broadway, Broadway from Jefferson Boulevard to Martin Luther King, Jr. Boulevard, Martin Luther King, Jr. Boulevard from Broadway to Central Avenue, Central Avenue from Martin Luther King, Jr. Boulevard to 41st Street, 41st Street from Central Avenue to the City Boundary at Alameda Street, City Boundary north and east to Soto Street, Soto Street from the City Boundary to Valley Boulevard, Valley Boulevard from Soto Street to North Main Street, North Main Street from Valley Boulevard to the Golden State Freeway, the Golden State Freeway from North Main Street to the Pasadena Freeway, the Pasadena Freeway from the Golden State Freeway to Stadium Way, Stadium Way from the Pasadena Freeway to Elysian Park Avenue, Elysian Park Avenue from Stadium Way to Lilac Terrace, Lilac Terrace from Stadium Way to Sunset Boulevard, Sunset Boulevard from Lilac Terrace to Silver Lake Boulevard, Silver Lake Boulevard from Sunset Boulevard to the Hollywood Freeway, the Hollywood Freeway from Silver Lake

Boulevard to Melrose Avenue, Melrose Avenue from the Hollywood Freeway to Western Avenue. **(Amended by Ord. No. 163,666, Eff. 7/2/88.)**

With regard to any development for which architectural and structural plans sufficient for a complete plan check were not accepted by the Department of Building and Safety and for which a complete and full plan check fee was paid after May 11, 1988 and before November 22, 1988:

This exception shall apply to property located within the area bounded by Western Avenue from Wilshire Boulevard to Washington Boulevard, Washington Boulevard to Vermont Avenue, Vermont Avenue from Washington Boulevard to the Santa Monica Freeway, the Santa Monica Freeway from Vermont Avenue to Hoover Street, Hoover Street from Santa Monica Freeway to Union Avenue, Union Avenue from Hoover Street to Washington Boulevard, Washington Boulevard from Union Avenue to the Harbor Freeway, the Harbor Freeway from Washington Boulevard to Figueroa Street, Figueroa Street from the Harbor Freeway to Jefferson Boulevard, Jefferson Boulevard from Figueroa Street to Broadway, Broadway from Jefferson Boulevard to Martin Luther King, Jr. Boulevard, Martin Luther King, Jr. Boulevard from Broadway to Central Avenue, Central Avenue from Martin Luther King, Jr. Boulevard to 41st Street, 41st Street from Central Avenue to the City Boundary at Alameda street, City Boundary north and east to Soto Street, Soto Street from the City Boundary to Valley Boulevard, Valley Boulevard from Soto Street to North Main street, North Main Street from Valley Boulevard to the Golden State Freeway, the Golden State Freeway from North Main Street to the Pasadena Freeway, the Pasadena Freeway from the Golden State Freeway to Stadium Way, Stadium Way from the Pasadena Freeway to Elysian Park Avenue, Elysian Park Avenue from Stadium Way to Lilac Terrace, Lilac Terrace from Stadium Way to Sunset Boulevard, Sunset Boulevard from Lilac Terrace to Alvarado Street, Alvarado Street from Sunset Boulevard to Kent street, Kent Street from Alvarado Street to Coronado Street, Coronado Street from Kent Street to Temple Street, Temple Street from Coronado Street to Coronado Street, Coronado Street from Temple Street to Third Street, Third Street from Coronado Street to Hoover Street, Hoover Street from Third Street to Beverly Boulevard, Beverly Boulevard from Hoover Street to First Street, First Street from Beverly Boulevard to Vermont Avenue, Vermont Avenue from First Street to Wilshire Boulevard, Wilshire Boulevard from Vermont Avenue to Western Avenue. **(Amended by Ord. No. 164,394, Eff. 3/13/89.)**

With regard to any development for which architectural and structural plans sufficient for complete plan check were not accepted by the Department of Building and Safety and for which a complete and full plan check fee was paid on or after November 22, 1988:

This exception shall apply to property located within the area bounded by beginning at the Los Angeles River and Alhambra Avenue; thence southwesterly along Alhambra Avenue to Main Street; thence southwesterly along Main Street to Ord Street; thence westerly along Ord Street to North Broadway; thence southerly along North Broadway to Sunset Boulevard; thence northwesterly along Sunset Boulevard to Pasadena Freeway; thence southwesterly along the Pasadena Freeway and the Harbor Freeway to Fourth Street; thence northwesterly along Fourth Street to Third Street; thence northwesterly along Third street to Bixel Street; thence southwesterly along Bixel Street to Fifth Street; thence northwesterly along Fifth Street to Lucas Avenue; thence southwesterly along Lucas Avenue to Sixth Street; thence northwesterly along Sixth Street to Valencia Street; thence southwesterly along Valencia Street to Seventh Street; thence southeasterly along Seventh Street to Garland Avenue; thence southwesterly along Garland Avenue to Ninth Street; thence southeasterly along Ninth Street to the Harbor Freeway; thence southwesterly and southerly along the Harbor Freeway to Figueroa Street; thence southerly along Figueroa Street from the Harbor Freeway to Jefferson Boulevard; thence easterly along Jefferson Boulevard from Figueroa street to Broadway; thence southerly along Broadway from Jefferson Boulevard to Martin Luther King, Jr. Boulevard; thence easterly along Martin Luther King, Jr. Boulevard from Broadway to Central Avenue; thence southerly along Central Avenue from Martin Luther King, Jr. Boulevard to 41st Street; thence easterly along 41st Street from Central Avenue to the City Boundary at Alameda Street; thence northerly along City boundary to 24th Street; thence easterly along City boundary to the Los Angeles River; thence northerly to the westbound transition connecting the Golden State and the Santa Monica Freeways; thence northeasterly along said transition to 7th Street; thence westerly along 7th Street to Anderson Street; thence northerly along Anderson Street to Sunrise Street; thence easterly along Sunrise Street to Clarence Street; thence northerly along Clarence street to Jesse Street; thence westerly along Jesse Street to Anderson Street: thence northerly along Anderson Street to Whittier Boulevard; thence easterly along Whittier Boulevard to Clarence Street; thence northerly along Clarence Street to 6th Street; thence easterly along 6th Street and its easterly prolongation to the southerly prolongation of Gless Street; thence northerly along said southerly prolongation of Gless Street to the alley southerly of 4th Street; thence westerly along the alley southerly of 4th Street to Clarence Street; thence northerly along Clarence Street to 1st Street; thence westerly along First Street to the Los Angeles River; thence northeasterly along the Los Angeles River to the Santa Ana Freeway; thence westerly and northwesterly along the Santa Ana Freeway to Spring Street; thence northeasterly along Spring Street to Macy Street; thence easterly along Macy Street to Alameda Street; thence northeasterly along Alameda Street to the westerly prolongation of the southerly line of former Bauchet Street as described in deed recorded Book 37112, page 408, of Official Records, in the office of said County Recorder; thence easterly along said southerly line of said former Bauchet Street and continuing along said southerly line in its various courses intersection with in the southeasterly line of former Date Street, as described in said deed recorded in Book 37112, page 408 of Official Records; thence northeasterly along said southeasterly line of former Date Street and continuing along its northeasterly prolongation to Vignes Street; thence southeasterly along Vignes Street to Bauchet Street; thence westerly along Bauchet Street to Avila Street; thence southerly

along Avila Street to Macy Street; thence easterly along Macy Street to Los Angeles River; thence northerly and northeasterly along the Los Angeles River to Alhambra Avenue. **(Added by Ord. No. 164,394, Eff. 3/13/89.)**

(q) **Exception. Dwelling on Narrow Lot.** Where only one single-family dwelling is located on a nonconforming lot 40 feet or less in width and not abutting an alley, only one automobile parking space need be provided. This exception shall not apply to any lot in the A1, A2, RA, RE, RS, R1 or RD Zones which fronts on a Substandard Hillside Limited Street. **(Amended by Ord. No. 168,159, Eff. 9/14/92.)**

(r) **Exception for Teen Posts.** Notwithstanding any other provisions on this section to the contrary, no off-street automobile parking spaces shall be required in connection with a building or structure, or portion thereof, used primarily for the operation of a "Teen Post" administered by Teen Post, Incorporated, a delegate agency of the Greater Los Angeles Community Action Agency, or its successors. This exception shall be effective to and including December 31, 1974, only. Thereafter, the off-street automobile parking requirements of the Comprehensive Zoning Plan of the City of Los Angeles shall apply fully to such a use, and any certificate of occupancy issued for such a use during the time this paragraph is in effect not having the required number of off-street automobile parking spaces shall automatically be cancelled and the building shall no longer be so occupied or used unless and until the required automobile parking spaces are provided and a new certificate is issued. **(Amended by Ord. No. 145,487, Eff. 2/24/74.)**

(s) **Parking Requirements for Air Space Lots.** Notwithstanding any provision of this section to the contrary, in the case of developments containing one or more air space lots, required automobile parking spaces may be located anywhere on the lot which has had the spaces above or below it divided by such air space lot or lots. All other parking requirements of this section shall apply to developments containing one or more air space lots. **(Added by Ord. No. 156,681, Eff. 6/21/82.)**

(t) **Exception for Rental Units Resulting from Conversion of One-Family Dwellings.** Notwithstanding any other provision of this subdivision to the contrary, in the RD, R2, R3, R4 and R5 zones, only one automobile parking space is required for each dwelling unit which results from the conversion of an existing one-family dwelling, by the interior structural alteration thereof or by the addition of not more than 250 square feet of floor area thereto, into two or more dwelling units and all such newly created dwelling units are rental units. **(Added by Ord. No. 157,220, Eff. 12/11/82.)**

(u) **Senior Independent Housing / Assisted Living Care Housing / Housing Development Occupied By Disabled Persons.** **(Amended by Ord. No. 178,063, Eff. 12/30/06.)** Except for Skilled Nursing Care Housing and Alzheimer's / Dementia Care Housing, the number of parking spaces required for Senior Independent Housing, Assisted Living Care Housing, or a housing development occupied by disabled persons as set forth below, may be reduced to 50 percent of the number otherwise required by this subdivision if all of the following requirements are met:

(1) Each dwelling unit or guest room in the development shall be occupied by at least one person who is disabled or 62 years of age or older, except for management or maintenance personnel who are required to live on the premises. For purposes of this paragraph, a disabled person is a person who has: (a) physical or mental disabilities, which seriously restricts that person from operating a motor vehicle; (b) is expected to be of long, continued and indefinite duration; (c) substantially impedes their ability to live independently; and (d) is of a nature that the ability to live independently could be improved by more suitable housing conditions.

(2) There shall also be provided at least ten square feet of indoor recreation space and at least 50 square feet of usable open space for each dwelling unit in the development, both of which shall be available and accessible to all residents of the development. The open space may be located on the ground, on terraces or on rooftops, shall be landscaped or developed for active or passive recreation and may include roofed recreation areas, swimming pools, or unenclosed porches where not otherwise prohibited. The open space may include walkways, but shall not include land used for required front or side yards, private streets, driveways, passageways, parking, loading or service areas.

(3) Prior to the issuance of a building permit for construction of the development, the owner shall execute and record in the Office of the County Recorder of Los Angeles County, as a covenant running with the land for the benefit of the City of Los Angeles, an agreement that if the Department of Building and Safety determines that the development ceases to qualify under Subparagraph (1) above, the owner will at the written request of the Department of Building and Safety develop the additional parking spaces otherwise required for the development by this subdivision.

(v) **Exception for Pre-1934 Public Branch Libraries.** Notwithstanding any other provision of this Code to the contrary, no off-street automobile parking spaces shall be required in connection with a building or structure, or portion thereof, or subsequent addition thereto, which is used primarily for the operation of a City of Los Angeles public branch library if built prior to 1934 and administered by the City Board of Library Commissioners. **(Added by Ord. No. 159,920, Eff. 7/7/85.)**

(w) **Shelter for the Homeless.** The number of automobile parking spaces required for a "shelter for the homeless" as defined in Section 12.03 of this Code, located within 1,000 feet of a public transit stop may be reduced to 25 percent of the number otherwise required by Paragraphs (a) through (v), inclusive, of this Subdivision 4., but in no event less than two spaces for any such shelter. The number of automobile parking spaces required for a "**shelter for the homeless**" as

defined in Section 12.03 of this Code, located 1,000 feet or more from a public transit stop, may be reduced to 25 percent of the number otherwise required by Paragraphs (a) through (v), inclusive, of this Subdivision 4., plus two spaces. **(Added by Ord. No. 161,427, Eff. 8/2/86.)**

(x) Exception for Council Approved Agreements and Historic/Cultural Buildings, and Specified Exception Areas. (Added by Ord. No. 165,773, Eff. 5/21/90.)

(1) For any project for which an Owner Participation Agreement or Developer Disposition Agreement has been signed between the owner or developer of a project and the Community Redevelopment Agency and approved by Council before February 28, 1989, the parking required shall be either the number of parking spaces described in the subject agreement, or the parking required by the Los Angeles Municipal Code as of February 29, 1989, whichever is greater.

(2) Notwithstanding any provisions of the Los Angeles Municipal Code to the contrary, for any structure designated on the National Register of Historic places or State or City list of historical or cultural monuments, no additional automobile or bicycle parking spaces need be provided in connection with a change of use. Nevertheless, a decision-making body, as part of a discretionary approval related to a change of use, may impose conditions requiring additional parking requirements in connection with the change of use. Existing parking for such buildings shall be maintained if the proposed use requires the same or more parking. If the floor area of such a building is increased, then automobile and bicycle parking shall be provided for the increased floor area as set forth in Sections 12.21 A.4. and 12.21 A.16. The parking requirements for existing buildings set forth in Section 12.21 A.4.(m) shall still apply to an historic building and any change of use of that building. **(Amended by Ord. No. 182,386, Eff. 3/13/13.)**

(3) Except for the Downtown Business District parking area described in Section 12.21 A.4.(i) the following described areas there need only be two parking spaces for every one thousand square feet of combined gross floor area of commercial office, business, retail, restaurant, bar and related uses, trade schools, or research and development buildings on any lot:

1. Chinatown Redevelopment Project Area, delineated by Ordinance No. 153,385;
2. Hollywood Redevelopment Project Area, delineated by Ordinance No. 161,202;
3. Wilshire Center/Koreatown Recovery Redevelopment Project Area, delineated by Ordinance No. 170,806; **(Amended by Ord. No. 177,103, Eff. 12/18/05.)**
4. Central Business District Redevelopment Project Areas delineated by Ordinance Nos. 140,069; 113,231; 135,900; 140,662; 147,480;
5. North Hollywood Redevelopment Area, delineated by Ordinance No. 152,030;
6. Any Enterprise Zone as that term is defined in Section 12.21.4 of this Code. **(Amended by Ord. No. 177,103, Eff. 12/18/05.)**
7. **(Repealed by Ord. No. 177,103, Eff. 12/18/05.)**
8. **(Repealed by Ord. No. 177,103, Eff. 12/18/05.)**
9. **(Repealed by Ord. No. 177,103, Eff. 12/18/05.)**
10. **(Repealed by Ord. No. 177,103, Eff. 12/18/05.)**

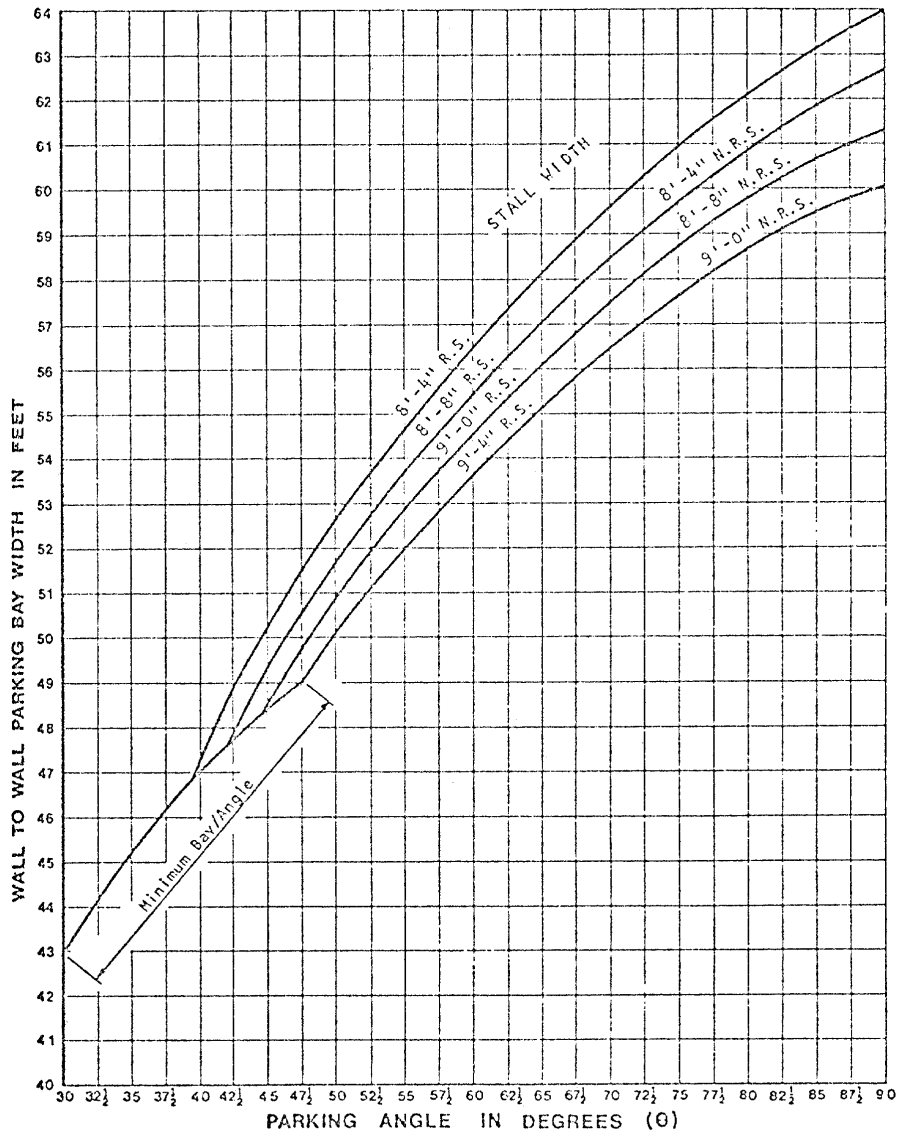
(y) City Planning Commission Authority for Reduced On-Site Parking with Remote Off-site Parking or Transportation Alternatives. The City Planning Commission may, upon application, authorize reduced on-site parking and remote off-site parking. The City Planning Commission authorization may only be approved in connection with a City Planning Commission approval of an application or appeal otherwise subject to its jurisdiction including the following: the City Planning Commission action on an application for a zone change, height district change, supplemental use district, and conditional use pursuant to Sec. 13B.2.3. (Class 3 Conditional Use Permit) of Chapter 1A of this Code; the City Planning Commission action on a tentative tract map appeal, a vesting tentative tract map appeal, a development agreement; and the City Planning Commission action on a request for a density bonus greater than the minimum 25 percent required by California Government Code Section 65915, exception from a specific plan, or a project permit pursuant to a moratorium ordinance or interim control ordinance. In exercising this authority, the City Planning Commission shall act on an application in the same manner and subject to the same limitations as applicable to the Zoning Administrator, under Section 12.24 X. of this Chapter. However, the procedures for notice, hearing, time limits, appeals and Council review shall be the same as those applicable to the underlying discretionary approval. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

(z) Downtown Community Plan Area Projects. Any project wholly within the boundaries of the Downtown

Community Plan Area for which an entitlement application was deemed complete prior to the operative date of Chapter 1A of the LAMC shall be exempt from the minimum parking requirements in this Subdivision 4. **(Added by Ord. No. 188,421, Eff. 1/20/25, Oper. 1/27/25.)**

5. **Design of Parking Facilities.** Every parking area and garage providing required or non-required parking stalls, other than those parking areas in garages lawfully in existence on February 9, 1972, shall be designed, improved, and maintained in accordance with the following regulations, provided, however, that any parking stall in which the normal turning pattern is obstructed shall be designed in accordance with standards established by the Superintendent of Building. **(Amended by Ord. No. 142,418, Eff. 10/15/71, Oper. 2/9/72.)**

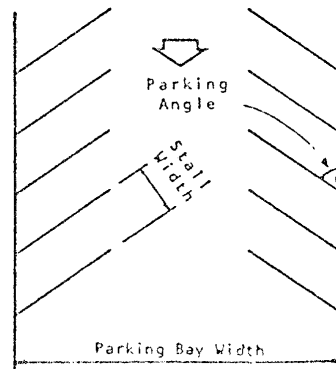
PARKING BAY DIMENSIONS CHART NO. 1
(Added by Ord. NO. 142,306, Eff. 9/13/71, Oper. 2/9/72.)



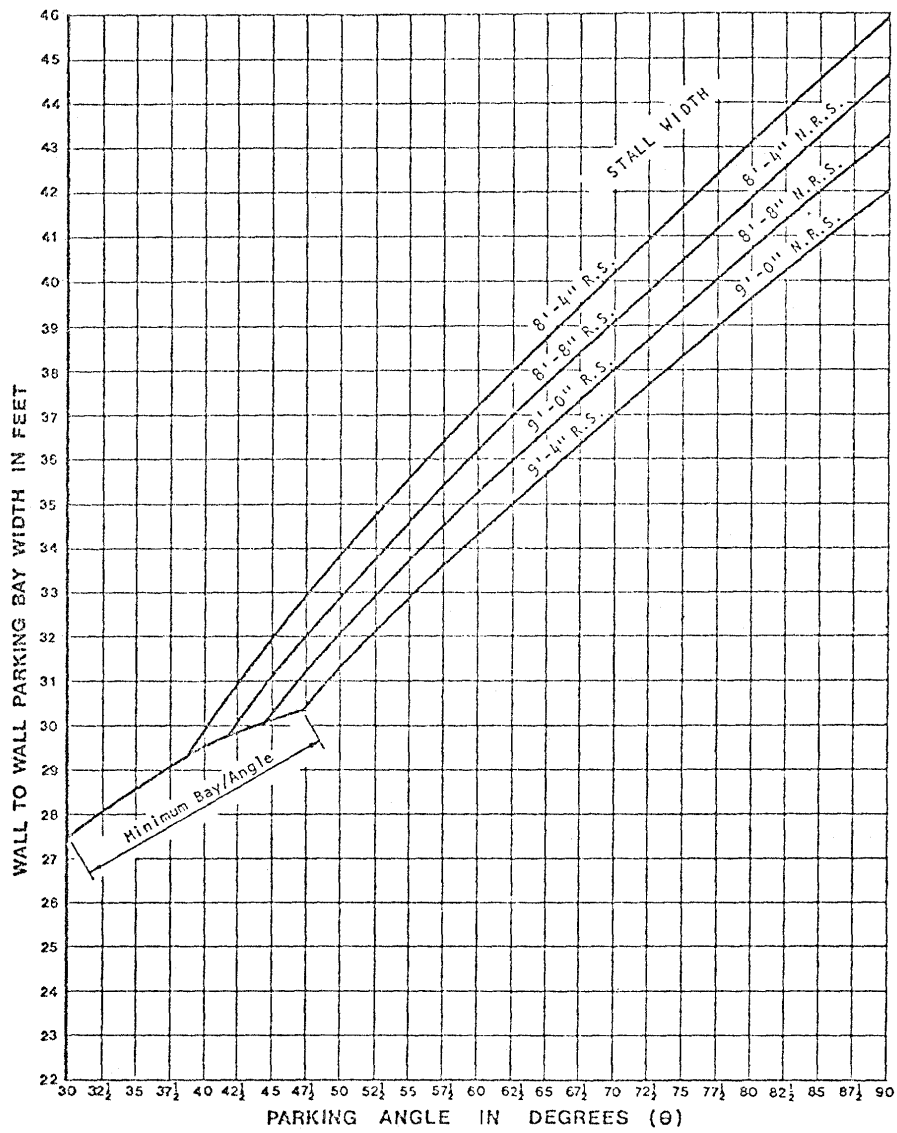
PARKING BAY DIMENSIONS
CHART NO. 1

ONE-WAY TRAFFIC
DOUBLE-LOADED AISLES

R.S. Required Parking Stalls
N.R.S. Non-required Parking Stalls



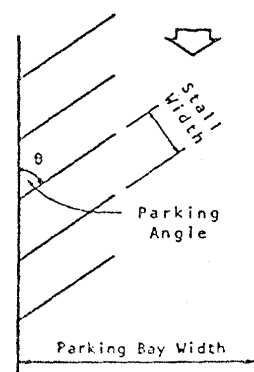
PARKING BAY DIMENSIONS CHART NO. 2
(Added by Ord. NO. 142,306, Eff. 9/13/71, Oper. 2/9/72.)



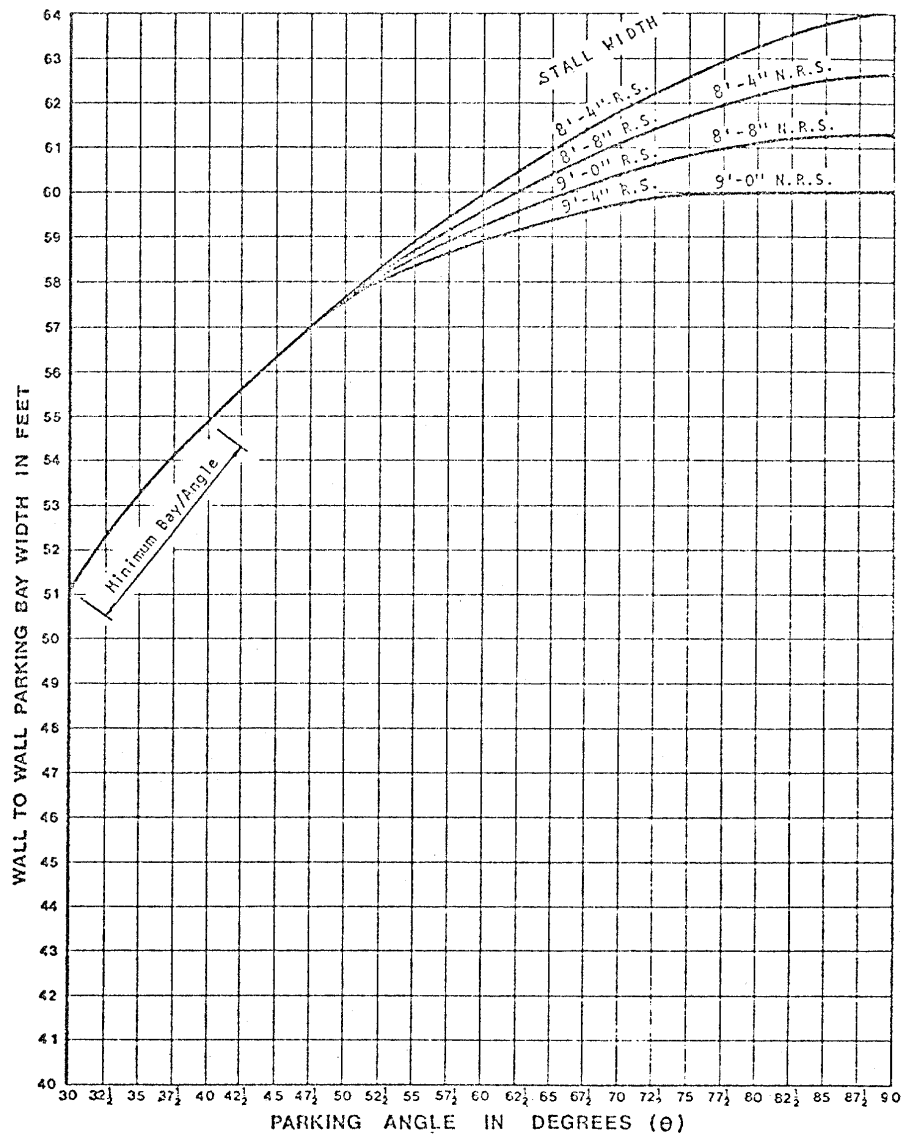
PARKING BAY DIMENSIONS CHART NO. 2

ONE-WAY TRAFFIC
SINGLE-LOADED AISLES

R.S. Required Parking Stalls
N.R.S. Non-required Parking Stalls



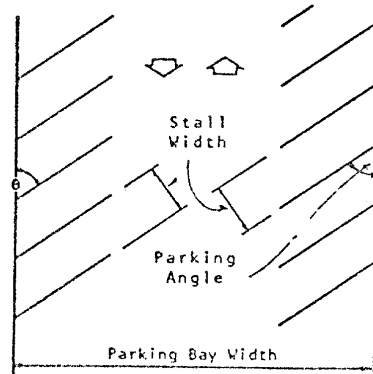
PARKING BAY DIMENSIONS CHART NO. 3 (Added by Ord. NO. 142,306, Eff. 9/13/71, Oper. 2/9/72.)



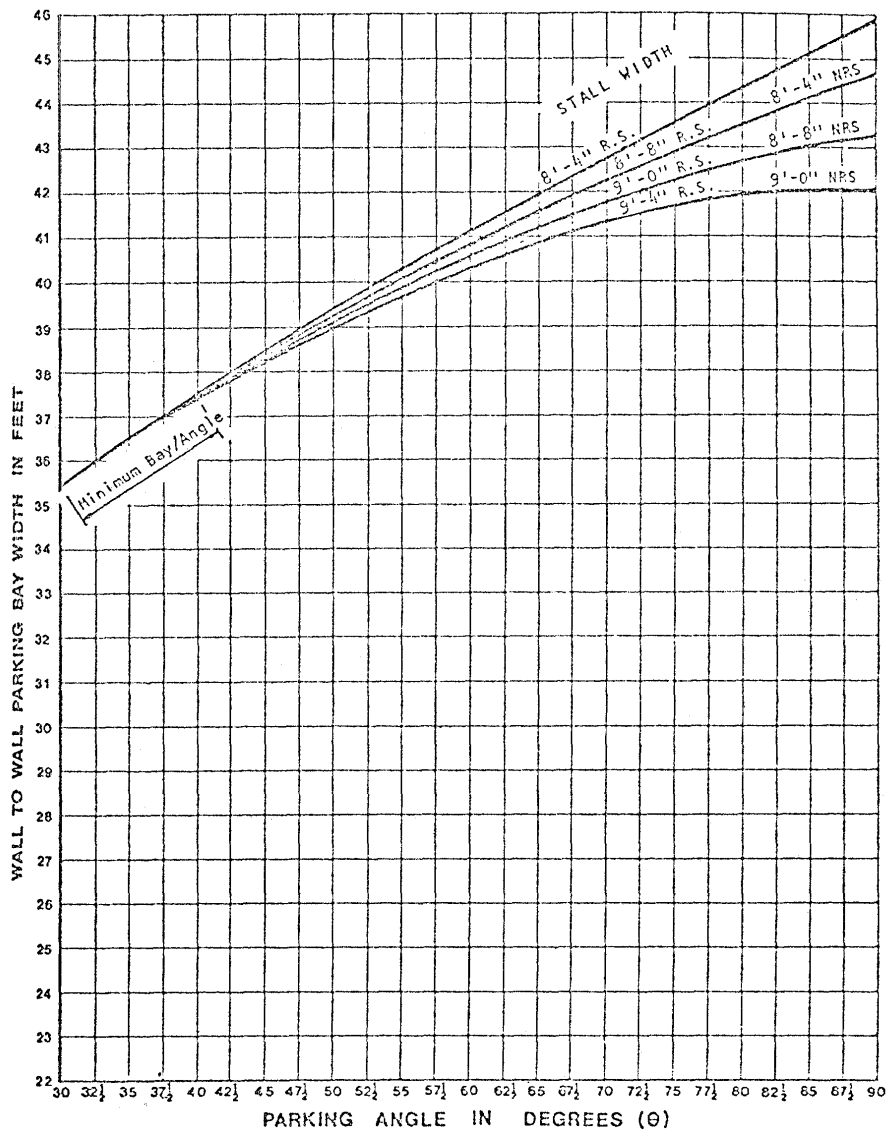
PARKING BAY DIMENSIONS CHART NO. 3

TWO-WAY TRAFFIC
DOUBLE-LOADED AISLES

R.S. Required Parking Stalls
N.R.S. Non-required Parking Stalls



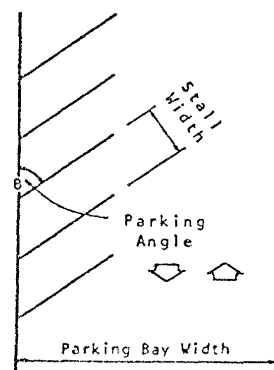
PARKING BAY DIMENSIONS CHART NO. 4 (Added by Ord. NO. 142,306, Eff. 9/13/71, Oper. 2/9/72.)



PARKING BAY DIMENSIONS CHART NO. 4

TWO-WAY TRAFFIC
SINGLE-LOADED AISLES

R.S. Required Parking Stalls
N.R.S. Non-required Parking Stalls



(a) **Parking Stall Dimensions.** (Amended by Ord. No. 142,306, Eff. 9/13/71, Oper. 2/9/72.)

(1) **Width.** (Amended by Ord. No. 179,191, Eff. 11/5/07.) Every parking stall provided for dwelling units shall be at least 8 feet 6 inches wide, every compact stall shall be at least 7 feet 6 inches wide, and every other parking stall shall be at least 8 feet 4 inches wide, except that:

(i) Every parallel parking stall shall be at least 8 feet wide;

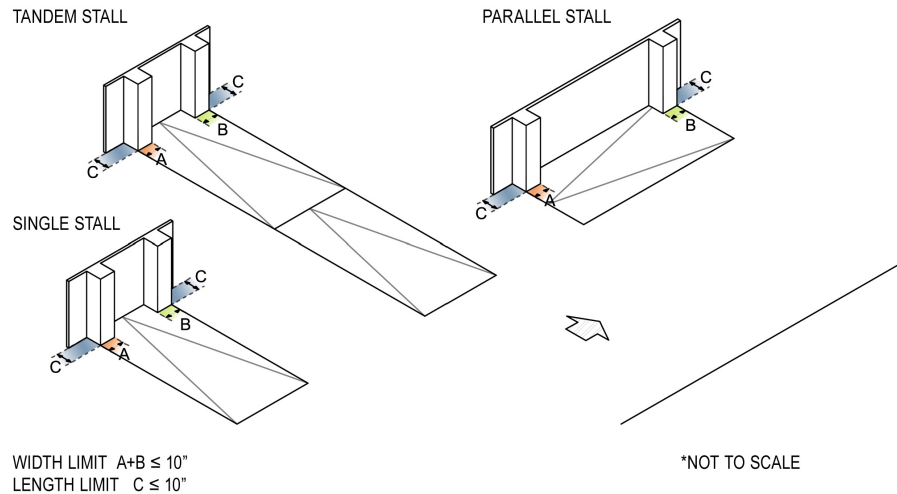
(ii) Every parking stall, other than those provided for a one-family or two-family dwelling, which is adjoined on either side of its longer dimension by a fence, wall, partition, column, post or similar obstruction, and said obstruction is located less than 14 feet from the access aisle measured along the length of the stall, shall have its minimum width increased by at least 10 inches on the side of the obstruction.

(iii) **Exception:** (Added by Ord. No. 182,110, Eff. 5/29/12.) The required width and length of a

parking stall may be reduced to accommodate a structure solely supporting a solar energy system if it meets all of the following conditions:

- a. The structural elements are within 10 inches of a corner of the stall farthest from the access aisle or driveway.
- b. For tandem spaces, dimensions are reduced only for the stall farthest from the access driveway.
- c. The reductions are not applied to a disabled parking stall.
- d. The parking lot already exists and is not new construction.

See diagram below:



(2) **Length.** Every compact parking stall shall be at least 15 feet long, every parallel parking stall shall be at least 26 feet long, and every other parking stall shall be at least 18 feet long.

(b) **Parking Bay Dimensions.** The minimum width of each parking bay shall be determined by the stall width and parking angle in accordance with Chart Nos. 1, 2, 3 and 4 of this section. Where parking stalls of two bays interlock the parking bays may overlap. (Amended by Ord. No. 142,306, Eff. 9/13/71, Oper. 2/9/72.)

(c) **Compact Stalls.** (Amended by Ord. No. 156,979, Eff. 9/25/82.) In each parking area or garage devoted to parking for dwelling uses all parking stalls in excess of one parking stall per dwelling unit may be designed as compact parking stalls to accommodate compact cars.

In each parking area or garage containing 10 or more parking stalls for other than dwelling uses, not more than 40 percent of the required stalls may be designed as compact stalls to accommodate compact cars. Such restriction shall not apply to parking stalls in excess of the number of required stalls. All other provisions of this section shall apply to each parking stall.

The minimum bay widths required by Paragraph (b) of this subdivision may be reduced for bays or portions of bays containing compact stalls.

Each stall designed to accommodate a compact car shall be clearly marked as a compact stall. Each parking area or garage containing 10 or more parking stalls of which more than 20 percent are in compact stalls shall have a sign posted at each entrance or other appropriate locations which shall contain the following information: (i) compact cars are to be parked in compact stalls when available, (ii) standard-sized cars shall not be parked in compact only stalls, (iii) problems concerning parking should be reported to the property owner or a designated representative, and (iv) the phone number of the property owner or designated representative.

The sign requirements of this section shall not apply to any parking area or garage that has been granted authority by the Office of Zoning Administrator to increase compact parking prior to May 21, 1981 so long as such parking area or garage conforms to the terms and conditions of such grant.

(d) **Attended Commercial Parking Lots.** A public parking area containing no required parking stalls and providing attendants to park the vehicles at all times when said area is open for use shall be designed in compliance with Paragraphs (c), (f), (g), (i) and (k) of this subdivision, but shall not be subject to the requirements set forth in any other paragraph of this subdivision. (Amended by Ord. No. 142,306, Eff. 9/13/71, Oper. 2/9/72.)

(e) **Driveway Location.** Access driveways to every parking area and garage shall be designed in accordance with Sections 62.105.1, 62.105.2, 62.105.3 and 62.105.4 of this Code, and in a manner to provide the minimum practical interference with the use of adjacent property and with pedestrian or vehicular traffic.

Such driveways shall be located in accordance with a plan approved by the Department of Building and Safety in the following instances:

- (1) On a lot in a P (including any combination with an A or R Zone) or PB Zone.
- (2) For every parking area or garage having a capacity of more than 25 automobiles or trucks.

The Department of Building and Safety shall disapprove any plan which it determines fails to meet the standards established by this paragraph.

(f) **Driveway Width. (Amended by Ord. No. 184,802, Eff. 3/17/17.)** Every access driveway shall be at least 9 feet in width in the A, RE, RS, R1, RU, RZ, R2, RMP and RW Zones, and 10 feet in width in the RD, R3, RAS3, R4, RAS4, R5, P, PB, C and M Zones; provided, however, every access driveway serving a parking area or garage having a capacity of more than 25 automobiles or trucks shall be at least 19 feet in width, or in lieu thereof, there shall be two access driveways, each of which is at least 10 feet in width; provided, further, however, that an access driveway serving an apartment house erected in the R2 Zone shall be at least 10 feet in width.

Except that in the R1 Zone, when not designated as a Hillside Area on the Department of City Planning Hillside Area Map, driveway width at the front property line shall not exceed 25 percent of the lot width or the width of any currently existing driveway, whichever is greater; provided, however, that nothing in this paragraph shall be deemed to require a driveway less than 9 feet in width at the front property line.

(g) **Driveway and Ramp Slopes.** The slope of every driveway or ramp shall not exceed 20 percent, except that where an existing driveway being used for access is required to be modified because of a public improvement project, such grade may exceed 20 percent provided the design is approved by the City Engineer.

Transition slopes in driveways and ramps shall be designed to the standards established by the Superintendent of Building and the City Engineer.

(h) **Tandem Parking. (Amended by Ord. No. 179,191, Eff. 11/5/07.)** Each required parking stall within a parking area or garage shall be accessible. Automobiles may be parked in tandem in the following instances:

- (1) In a public garage or public parking area, which provides attendants to park vehicles at all times the garage or area is open for use.
- (2) In a private garage or private parking area serving a one-family dwelling, an apartment house, apartment hotel, hotel, two-family dwelling, or multiple or group dwelling, where the tandem parking is not more than two cars in depth. Tandem parking shall not be allowed in parking areas for recreational vehicles or guest parking.

(i) **Parking Stall Location. (Amended by Ord. No. 144,082, Eff. 12/11/72.)** Each automobile parking stall shall be so located that:

- (1) No automobile is required to back onto any public street or sidewalk to leave the parking stall, parking bay or driveway, except where such parking stalls, parking bays or driveways serve not more than two dwelling units and where the driveway access is to a street other than a major or secondary highway. **(Amended by Ord. No. 151,608, Eff. 11/26/78.)**
- (2) Parking maneuvers can be accomplished without driving onto that portion of a required front yard where driveways are prohibited. Car stops or other barriers shall be provided in accordance with Section 12.21 A.6. **(Amended by Ord. No. 144,082, Eff. 12/11/72.)**

(j) **Internal Circulation.** All portions of a public parking area or, public garage shall be accessible to all other portions thereof without requiring the use of any public street, unless the Department of Transportation determines that such use is not detrimental to the flow of traffic. **(Amended by Ord. No. 152,425, Eff. 6/29/79.)**

The driveway width within a public garage shall maintain a constant width for its entire length. **(Added by Ord. No. 179,191, Eff. 11/5/07.)**

(k) **Lighting. (Amended by Ord. No. 171,858, Eff. 1/23/98.)** All lights used to illuminate a parking area shall be designed, located and arranged so as to reflect the light away from any street and any adjacent premises.

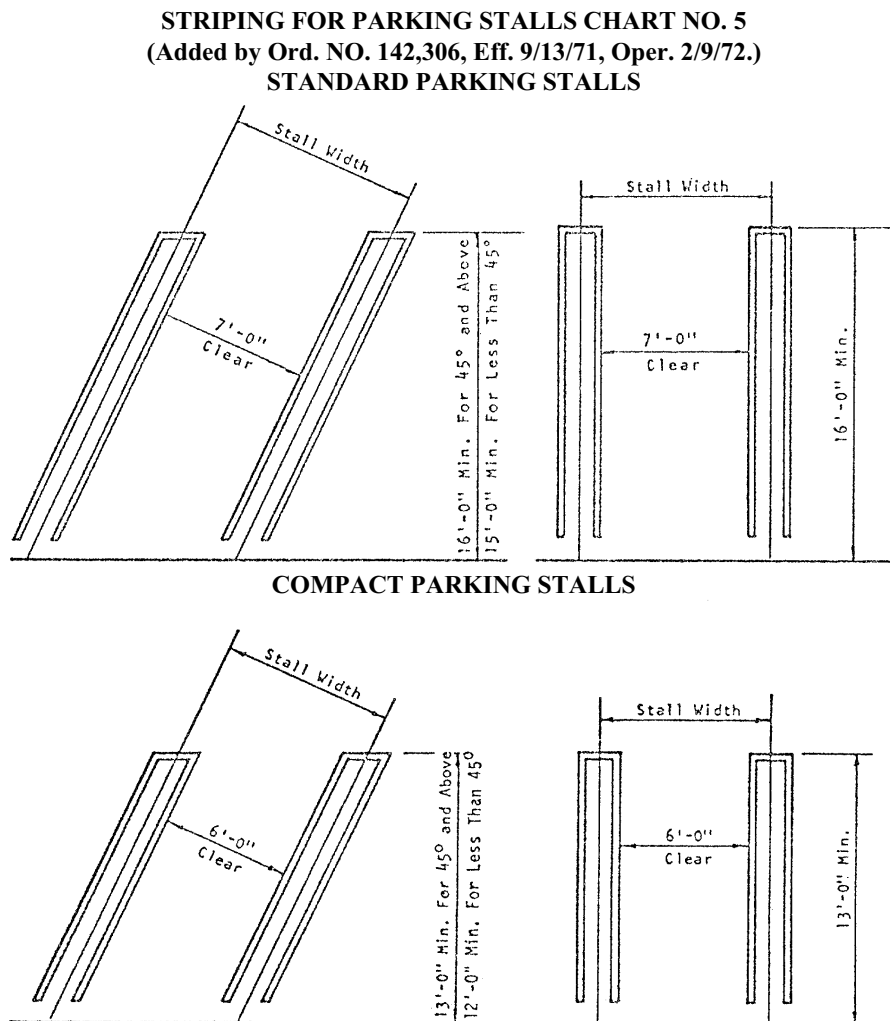
EXCEPTION: (Amended by Ord. No. 177,103, Eff. 12/18/05.)

Lights in compliance with Sections 91.6305 and 91.8607 of the Code.

All parking areas and garages provided for three or more dwelling units or guest rooms shall have an average surface illumination of not less than 0.2 footcandles (2.15 lx).

(l) **Striping.** All parking stalls, other than those serving a one-family dwelling, shall be striped substantially in accordance with the illustrations set forth on Chart No. 5 of this section. (Amended by Ord. No. 179,191, Eff. 11/5/07.)

(m) **Mechanical Automobile Lifts and Robotic Parking Structures.** The stacking of two or more automobiles via a mechanical car lift or computerized parking structure is permitted in all zones. The platform of the mechanical lift on which the automobile is first placed shall be individually and easily accessible and shall be placed so that the location of the platform and vehicular access to the platform meet the requirements of paragraphs (a), (b), and (i) of this subdivision. The lift equipment or computerized parking structure shall meet any applicable building, mechanical and electrical code requirements as approved by the Department of Building and Safety. (Added by Ord. No. 179,191, Eff. 11/5/07.)



6. **Automobile Parking and Sales Area – Improvement.** Every public or private parking area or automobile, manufactured home or trailer sales area other than those lawfully in existence on August 21, 1969, shall be arranged, improved and maintained in accordance with the following regulations: (Amended by Ord. No. 161,716, Eff. 12/6/86.)

(a) **Yard Areas.** (Title and Par. (a) amended by Ord. No. 152,949, Eff. 9/21/79.) Where a public parking area is the principal use of land in the A or R zones, or in any combination of an A or R zone with a P zone, the public parking area shall not extend into the portion of the lot within 10 feet of the front lot line.

Where parking is an accessory use of land in the A and R zones, the parking area may occupy the remainder of the lot, except for the required A or R zone front yard, and a five foot side yard along the side street lot line of a corner lot.

(b) (None)

(c) **Paving and Car Stops.** (Amended by Ord. No. 182,431, Eff. 3/24/13.) Every parking area, every parking garage required by the provisions of this article, every automobile storage area (except those areas utilized for the temporary storage of automobiles for not to exceed six months in any calendar year), every automobile, manufactured home or trailer sales area, and every driveway shall be paved with hard, durable asphaltic paving which has been mixed at a plant and is at least two inches thick after compaction, with portland cement paving at least three inches thick or with an alternative

paving material described below. All such areas shall have appropriate bumper guards, wheel stops, steel posts, walls, curbs, suitable landscaping or other installations adequate to prevent vehicles from parking or maneuvering on those portions of a lot upon which a driveway or parking area is prohibited, or into a public right-of-way, or where those portions of a lot are needed to prevent encroachment on walkways or adjoining properties.

Alternative Paving Materials. An alternative paving material is one of the following: porous asphalt, porous concrete, permeable interlocking concrete pavers, permeable pavers, decomposed granite, crushed rock, gravel, and restrained systems (a plastic or concrete grid system confined on all sides to restrict lateral movement, and filled with gravel or grass in the voids.) Alternative paving materials are permitted for use in every parking area, automobile storage area, automobile, manufactured home or trailer sales area, and driveways, subject to:

(1) Any product installed within areas designated by the Fire Department as fire lane must be approved by the Fire Department.

(2) Permeable interlocking concrete pavers and permeable pavers shall have a minimum thickness of 80 mm (3.14 inches).

(3) If plantings are an element of the alternative paving material, the irrigation system shall not utilize potable water except for plant establishment.

(4) Products and underlying drainage material shall be installed per manufacturers' specifications. Sub-grade soils shall be compacted as required per the product installation specifications.

(5) Decomposed granite, crushed rock and gravel shall only be allowed for driveways and parking areas serving only one or two residential unit(s).

(6) All projects shall be compliant with all other provisions of the Los Angeles Municipal Code and any applicable standards or guidelines.

(d) **Wall Required.** Every public or private parking area, or automobile, manufactured home or trailer sales area shall be completely enclosed with a wall except that no wall shall be required: **(Amended by Ord. No. 161,716, Eff. 12/6/86.)**

(1) across necessary driveways;

(2) on a lot in an M2 or M3 Zone;

(3) along a lot line abutting an alley, a public parking area, or a P (not including the A or R zones), PB, C or M zones;

(4) along any portion of a lot line, including the front lot line where no parking area or access driveway is located within 15 feet of said line, when adequate safeguards are provided to prevent vehicles from occupying said 15 foot space and said space is landscaped;

(5) along any lot line of an automobile sales area that abuts a street, provided, however, such sales area incorporates landscaped area or areas in the amount of at least three percent of said sales area.

(e) **Wall Height. (Amended by Ord. No. 147,913, Eff. 1/23/76.)** The wall required by Paragraph (d) hereof or constructed in compliance with Paragraphs (g) or (h) hereof, shall be not less than five feet nine inches in height, except under the following circumstances:

(1) The wall shall not be less than four feet in height in any lot where the surface of the parking area is raised one foot nine inches or more above the natural ground, said wall to be measured from the finished grade of the parking area. Provided, however, that where the wall requirements here specified would exceed those specified in Section 12.22 C.20.(f), the provisions of Section 12.22 C.20.(f) shall control.

(2) The wall shall not be less than three feet in height under the following circumstances:

(ii-a) On that portion of a lot in the A or R zone which extends into the required front yard;

(ii-b) On that portion of a lot in a P (not including the A or R zones), PB, C or M1 zone within 15 feet of the front lot line

(ii-c) On that portion of a corner lot within five feet of the side street lot line.

(ii-d) Along any lot line abutting a street.

(f) **Wall Construction and Maintenance. (Amended by Ord. No. 158,894, Eff. 6/8/84.)** Walls required by this subdivision or constructed in compliance with Paragraphs (g) and (h) hereof, when located along the lot lines of parking

areas and said lot lines abutting a street, shall be of concrete or masonry construction, but need not be solid walls, provided that any open areas in said walls shall be designed for architectural effect. Walls, or portions of walls, abutting a street and constructed above the minimum three foot height required by this subdivision shall be designed to permit visibility into the parking area from the street and shall be constructed of wrought iron, vista-type masonry or other materials as approved by the Department of Building and Safety.

All other walls required by this subdivision shall be without openings, and shall be of concrete or masonry provided, however, that other materials may be used in the construction of the wall enclosing a private parking area containing not more than four parking spaces. All concrete or masonry walls shall have a minimum nominal thickness of six inches unless designed to withstand lateral force and constructed pursuant to plans approved by the Department of Building and Safety.

All walls shall be maintained in good condition.

(g) **Improvement.** Where a lot located in all zones but the A, R, or A or R in combination with a P zone is used for a public parking area for more than 20 vehicles and is offering as its prime service the commercial parking of motor vehicles for the public at large, at least two percent of the parking area shall be devoted to improvement as follows:

(1) One-half of the required two percent improvement shall be credited for street trees planted in accordance with plans approved by the Street Tree Division of the Bureau of Street Maintenance. Approval shall be granted for any plan which complies with the Master Plan for Street Trees. Existing street trees shall be considered in satisfying this provision;

(2) One-half of the required two percent improvement shall be credited for walls, providing walls are constructed along all lot lines abutting a street. Existing walls shall be credited.

(3) Up to and including one-half of the two percent improvement shall be credited for landscaped setback areas, provided that the total of such setback area is equal to that percent of the total parking area being created.

(4) Up to and including one-half of the two percent improvement shall be credited for interior landscaping, provided that the total of such landscaped area is equal to that percent of the total parking area being credited.

(5) On those lots having no street frontage two percent improvement shall be credited for interior landscaping, provided that the total of such landscaped area is equal to the percent of the total parking area credited.

(h) **Improvement.** Where a lot located in either an A, R, or A or R in combination with a P zone, or is serving as a parking area for the primary use of as specific building or buildings, and said lot is used for a public or private parking area for more than 20 vehicles, at least four percent of the parking area shall be devoted to improvements as follows:

(1) One-fourth of the required four percent improvement shall be credited for street trees planted in accordance with plans approved by the Street Tree Division. Approval shall be granted for any plan which complies with the Master Plan for Street Trees. Existing street trees shall be considered in satisfying this provision;

(2) One-fourth of the required four percent improvement shall be credited for walls, provided that walls are constructed along all lot lines abutting a street. Existing walls shall be credited;

(3) Up to and including three-fourths of the four percent improvement shall be credited for landscaped setback areas, provided that the total of said setback area is equal to the percent of the total parking area credited;

(4) Up to and including three-fourths of the four percent improvement shall be credited for interior landscaping, provided that the total of such landscaped area is equal to that percent of the total parking area being credited;

(5) On those lots having no street frontage, four percent improvement shall be credited for interior landscaping provided the total of such landscaped area is equal to that percent of the total parking area being credited.

(i) **Landscaping. (Amended by Ord. No. 152,467, Eff. 7/14/79.)** Those portions of a lot developed as a public parking area on which automobile parking is prohibited by paragraph (a) above, or otherwise not improved, shall be fully landscaped with lawn, trees, shrubs or suitable groundcover, and no portion except the access driveways shall be paved.

Where a wall is not required along any lot line of an automobile sales area abutting a street, said sales area shall incorporate a landscaped area or areas in the amount of at least three percent of said sales areas.

All landscaping required by the provisions of this subsection or provided in compliance with Paragraphs (g) or (h) hereof shall be installed in accordance with a plan approved by the City Planning Department. Approval shall be granted for any wherein the design and materials proposed therein are reasonably appropriate for the use and appearance of the parking area. Such landscaped areas shall be equipped with a water sprinkler system and shall be maintained free of weeds and debris.

(j) **Lighting.** All lights used to illuminate an automobile, manufactured home or trailer sales area shall be designed, located and arranged so as to reflect the light away from any street and any adjacent premises. Parking areas and garages shall conform to the lighting requirements of Sec. 12.21 A.5.(k). **(Amended by Ord. No. 161,716, Eff. 12/6/86.)**

(k) **Intersection Obstruction.** The provisions of this subsection shall not be construed as permitting any obstruction at a street intersection contrary to the provisions of Section 62.200 of this Code.

7. **(Amended by Ord. No. 174,547, Eff. 6/10/02.)** No nameplate, sign or advertising matter of any kind shall be placed or maintained on any lot in any zone except in accordance with the following regulations:

(a) All nameplates, signs and advertising matter on a lot in an "A" or "R" Zone shall pertain to a permitted use (except that no signs shall be permitted to identify a home occupation) or indicate the name of the occupant and shall be located on the same lot with that use;

(b) No nameplate, sign or advertising matter, which is attached to a building on a lot in an "A" or "R" Zone, may project above the roof ridge or parapet wall (whichever is the higher) of the building;

(c) No illuminated nameplate, identification sign or advertising matter, which is permitted by this subdivision, may be of the flashing, moving or animated type;

(d) There may be only one unlighted nameplate for each dwelling unit on a lot in an "A" or "R" Zone indicating the name of the occupant, (except that no signs shall be permitted to identify a home occupation), and no nameplate may exceed three square feet in area in an "A" Zone, nor exceed one and one-half square feet in area in an "R" Zone;

(e) There may be one or more unlighted signs pertaining to the sale of farm products raised or produced on the premises, but the total area of all these signs shall not exceed 20 square feet on any lot in an "A" Zone, nor exceed 12 feet on any lot in an "R" Zone;

(f) There may be one or more unlighted signs pertaining to the prospective rental or sale of the property, but the total area of all these signs shall not exceed 20 square feet on any lot in an "A" Zone, nor exceed 12 square feet on any lot in an "R" Zone;

(g) There may be one identification sign for each farm, ranch, estate or building other than a dwelling in an "A" Zone, but that identification sign may not exceed 20 square feet in area;

(h) There may be one or more signs identifying the buildings or permitted use (except that no signs shall be permitted to identify a home occupation) on any lot in any "R" Zone, but no one sign may have a surface area which exceeds 20 square feet, nor shall the total surface area of all these signs exceed 30 square feet;

(i) There may be one church bulletin board, not exceeding 18 square feet in area, on any lot in any "A" or "R" Zone;

(j) There may be one or more signs, warning against trespassing, on any lot in an "A" Zone, but no one sign shall exceed three square feet in area.

(k) **Temporary Subdivision Directional Signs.** Notwithstanding any other provision of this article, a Zoning Administrator may approve the use of any property in an "A" or "R" Zone for the erection and maintenance of temporary unlighted subdivision directional signs, which are neither reflective nor fluorescent, if the Zoning Administrator finds that the location of the signs is proper in relation to uses of adjacent property and that the use will not be materially detrimental to the property of other persons located in that vicinity. This approval shall be subject to the following regulations:

(1) An application shall be filed in the Office of Zoning Administration upon a form and accompanied by the data and information as has been prescribed by the Office. Each application shall be consented to and acknowledged by the owner or lessee of each parcel of property upon which a sign is to erected. Only one application need be filed for all temporary, unlighted, subdivision directional signs relating to a single subdivision separately numbered and recorded by the Los Angeles County Recorder. The manner of installation and conditions regulating number, size and type of signs shall be determined and approved by a Zoning Administrator. To the extent possible, the Zoning Administrator shall make available a list or explanation of those installation features and conditions that are usually required.

(2) An approval to erect and maintain signs pursuant to this paragraph shall be valid for one year. If, after one year, 3/4 of the dwelling units or lots have not been sold or leased for the first time, approval for retaining the directional signs for not more than an additional one-year period may be granted by a Zoning Administrator.

(3) No sign erected pursuant to this paragraph shall exceed 12 square feet in area.

(4) One temporary, unlighted, subdivision directional sign may be approved for location adjacent to each street which constitutes a separate and distinct direction on the route from a major or secondary highway to a subdivision

site. Where there are two or more major or secondary highways from which there are routes to a subdivision site, signs may be approved only along two routes.

(5) The erection and maintenance of temporary, unlighted, subdivision directional signs may be approved only on vacant property; however, if a Zoning Administrator determines that vacant property is not available in locations where provisions for travel directions are essential, the Zoning Administrator may approve developed property for the location of signs.

(6) Signs may not be located within the public right-of-way of any highway, street, alley, or on any other public right-of-way.

(7) All signs permitted by this paragraph shall be removed within five days after the expiration of the authorized time period. Each application shall contain a statement signed by the applicant, the owner of the signs, and the owner or lessee of the property upon which the signs are to be placed, agreeing that if the signs are not removed as required above, they may be confiscated, removed and destroyed by the City without further notice. Prior to the erection of any signs authorized pursuant to any single application, the applicant shall deposit \$100 with the Department of Building and Safety for the purposes of defraying any expense incurred by the City in the removal of the signs. This money shall be refunded on the expiration of the prescribed time period if all of the signs have been removed by the applicant, the owner of the signs, or the owner and the lessee of the property where the signs are placed.

(8) Any sign erected pursuant to these regulations may be used only for the purpose of providing necessary travel direction to a subdivision development located in the City of Los Angeles, and must include the name of the owner, the City Planning Department file number, and the expiration date of the approval period. The sign may contain the name of the land development project to which it pertains, including a characteristic trademark or other identifying insignia. The content of each sign shall be subject to approval by a Zoning Administrator.

(9) The approval of temporary subdivision directional signs pursuant to these regulations does not release the applicant from the responsibilities of complying with any provisions of the Los Angeles Municipal Code pertaining to building permit requirements or any other provisions of the Code regulating signs.

(10) **Appeals.** Appeals from a determination by a Zoning Administrator may be taken to the Area Planning Commission in the manner prescribed in Section 12.24 I.

(l) **Off-site signs.** No off-site sign shall be allowed in any zone, except when off-site signs are specifically permitted pursuant to a legally adopted specific plan, supplemental use district, an approved development agreement, or a relocation agreement entered into pursuant to California Business and Professions Code Section 5412. Further, legally permitted existing signs shall not be altered or enlarged. **(Amended by Ord. No. 176,800, Eff. 8/15/05.)**

8. Dismantling, Repairing and Storing of Vehicles – Where Prohibited. (Added by Ord. No. 137,210, Eff. 10/12/68.)

(a) No person shall dismantle, repair, or otherwise perform any work upon any vehicle, machine, motor, appliance or other similar device, other than to effect minor emergency repairs to a motor vehicle, on any property in the A or R Zones unless such activity is incidental to a permitted or a conditionally permitted use and is conducted within a building or within an area wholly enclosed from view by a wall or fence conforming to the requirements of this Code.

(b) No vehicle (except those upon which minor emergency repairs are presently being effected), machine, motor, appliance or other similar device from which any part has been removed, or which is inoperable for any reason, shall be stored, maintained, or kept on any property in the A or R Zones as an activity incidental to a permitted or conditionally permitted use except within a building or within an area which is wholly enclosed from view by a wall or fence conforming to the requirements of this Code.

9. Fences and Walls. Whenever fences or walls are required by any of the provisions of this chapter or by a variance, conditional use, supplemental use district or other authorized Planning Department determination, said fences or walls shall be maintained in good repair and shall be kept vertical, uniform and structurally sound, and all repairs shall blend in with said fence or wall and be compatible therewith in color and material. Fences constructed of wood, metal, Masonite, or similar materials shall be uniformly painted or stained or otherwise treated or sealed to prevent weathering or deterioration. **(Amended by Ord. No. 146,030, Eff. 7/11/74.)**

10. Alcoholic Beverages. Notwithstanding any other provisions of this Chapter to the contrary, no building, structure or land shall be used for sale or dispensing for consideration of any alcoholic beverage, including beer and wine, for consumption on the premises except upon premises approved for that use in accordance with the provisions of Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code. The provisions of this subdivision shall not abrogate, however, any right to the continued use of premises for these purposes pursuant to Sec. 13B.2.2.A.3. (Class 2 Conditional Use Permit; Applicability; Existing Uses) of Chapter 1A of this Code. Certain restaurants may be excepted from the provisions of this Subdivision and Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code. pursuant to authority of the Zoning Administrator contained in Section 12.24 X.2. of this Chapter. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

11. **Tennis or Paddle Tennis Courts.** A tennis or paddle tennis court, constructed as an accessory use to the primary residential use on the same lot in the A or R Zones, shall comply with specific construction and operation standards as may be established by the Zoning Administrator pursuant to Subsection C.4. of this section and shall be located as required in Subsection C.5. of this section. **(Amended by Ord. No. 177,103, Eff. 12/18/05.)**

12. **Protected Tree and Shrub Relocation and Replacement.** All existing protected trees and shrubs and relocation and replacement trees and shrubs specified by the Advisory Agency in accordance with Sections 17.02, 17.05, 17.06, 17.51 and 17.52 of this Code shall be indicated on a plot plan attached to the building permit issued pursuant to this Code. In addition, the trees or shrubs shall be identified and described by map and documentation as required by the Advisory Agency. A Certificate of Occupancy may be issued by the Department of Building and Safety, provided the owner of the property or authorized person representing the owner of the property (licensed contractor) obtains from the Advisory Agency, in consultation with the City's Chief Forester and prior to the final inspection for the construction, a written or electronic document certifying that all the conditions set forth by the Advisory Agency relative to protected trees have been met. **(Amended by Ord. No. 186,873, Eff. 2/4/21.)**

13. **Permitted Incidental Use for Bingo.** The conducting of any game of bingo authorized pursuant to the provisions of Article 4.5 of Chapter IV of this Code shall be permitted in the A, R, CR and C1 zones as an activity incidental to any permitted or conditionally permitted use therein for a school, church, lodge, auditorium, recreational and community center or other similar use, provided that the off-street automobile parking space requirements of Subdivision 4. of Section 12.21 A. have been satisfied. Parking spaces provided in satisfaction of such requirements for the permitted incidental use for bingo shall not be subject to the requirements set forth in Subdivisions 5., 6. and 9. of Section 12.21 A. of this Code. **(Amended by Ord. No. 153,620, Eff. 5/18/80.)**

14. **Alcoholic Beverages.** **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)** Notwithstanding any other provisions of this Chapter to the contrary, no building, structure or land shall be used for the sale or dispensing for consideration of any alcoholic beverage, including beer and wine, for consumption off-site of the premises except upon premises approved for that use in accordance with the provisions of Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code. The provisions of this subdivision shall not abrogate any right to the continued use of premises for those purposes pursuant to Sec. 13B.2.2.A.3. (Class 2 Conditional Use Permit; Applicability; Existing Uses) of Chapter 1A of this Code.

The provisions of this Subdivision shall not apply to the sale or dispensing, for consideration, of alcoholic beverages, including beer and wine, for consumption off-site of the premises, if the premises are located within the area of an operative specific plan which provides for conditional use approval for the sale or dispensing. If such a specific plan ceases to be operative, then a conditional use approval granted pursuant to the provisions of that specific plan, for the sales or dispensing, may continue subject to the same rights and limitations as a conditional use granted pursuant to the provisions of Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code.

15. **(Repealed by Ord. No. 171,740, Eff. 10/27/97.)**

16. **Bicycle Parking and Shower Facilities.** **(Amended by Ord. No. 185,480, Eff. 5/9/18.)** Bicycle parking spaces and facilities for employee showers and lockers shall be provided for new development and additions that increase the floor area of a building as follows:

(a) **Land Uses.**

(1) **Residential.**

(i) **Dwelling Units.** For all residential buildings other than hotels and motels containing more than three dwelling units, long- and short-term bicycle parking shall be provided according to the ratios specified for each marginal increment of dwelling units specified in Table 12.21 A.16.(a)(1)(i). A minimum of two short-term bicycle parking spaces shall be provided in all cases.

Table 12.21 A.16.(a)(1)(i)

Required Short-term and Long-term Bicycle Parking Spaces by Residential Dwelling Unit

Dwelling Units	Short-term Spaces	Long-term Spaces
1 - 25	1 space per 10 units	1 space per unit
26 - 100	1 space per 15 units	1 space per 1.5 units
101 - 200	1 space per 20 units	1 space per 2 units
201+	1 space per 40 units	1 space per 4 units

(a) Developments such as townhouses that include individually accessed private garages for each unit shall not be required to provide long-term bicycle parking.

(b) Required short- and long-term bicycle parking for the following types of senior and eldercare housing shall be the same as for institutional uses in Table 12.21 A.16.(a)(2): Alzheimer's/Dementia Care Housing; Assisted Living Care Housing; Eldercare Facility; Senior Independent Housing; Skilled Nursing Care Housing; Home for the Aged, No Medical or Nursing Care; Home for the Aged, with Special Care, Philanthropic; Home for the Aged, with Special Care, Private; and Retirement Hotel.

(ii) **Guest Rooms.** All hotels, motels, and apartment hotels containing more than five guest rooms shall provide both short- and long- term bicycle parking, respectively, at a rate of one per ten guest rooms. A minimum of two short-term and two long-term bicycle parking spaces shall be provided.

(iii) **Buildings With Dwelling Units and Guest Rooms.** The total amount of bicycle parking for a building containing both dwelling units and guest rooms shall be calculated by adding the number of required bicycle parking spaces for dwelling units to the number of required bicycle parking spaces for guest rooms. Any combination that results in more than five combined dwelling units and guest rooms will require bicycle parking.

(2) **Commercial, Institutional, and Industrial Uses.** For all commercial, institutional, and industrial uses that require automobile parking under Subsections 12.21 A.4.(c), (d), (e) and (f), short- and long- term bicycle parking shall be provided as per Table 12.21 A.16.(a)(2).

(i) For uses listed in Table 12.21 A.16.(a)(2) a minimum of two short-term and two long-term bicycle parking spaces shall be provided.

(ii) After the first 100 bicycle parking spaces are provided for uses listed in Table 12.21 A.16.(a)(2), additional spaces may be provided at the minimum number required by the California Green Building Standards Code Section 5.106.4, as that section may be amended from time to time.

Table 12.21 A.16.(a)(2)

Required Bicycle Parking Spaces per Building Floor Area as Defined under Section 12.03

Land Use	Short-term Bicycle Parking	Long-term Bicycle Parking
Land Use	Short-term Bicycle Parking	Long-term Bicycle Parking
Commercial Uses		
Office	1 per 10,000 sq. ft. (minimum 2)	1 per 5,000 sq. ft. (minimum 2)
Warehouse	1 per 10,000 sq. ft. (minimum 2)	1 per 10,000 sq. ft. (minimum 2)
Health Clubs	1 per 2,000 sq. ft. (minimum 2)	1 per 2,000 sq. ft. (minimum 2)
Restaurants and Bars, General	1 per 2,000 sq. ft. (minimum 2)	1 per 2,000 sq. ft. (minimum 2)
Restaurant, Small (floor area less than 1,000 sq. ft.)	2 per restaurant	2 per restaurant
Retail Stores, General	1 per 2,000 sq. ft. (minimum 2)	1 per 2,000 sq. ft. (minimum 2)
Retail, Furniture Stores	1 per 10,000 sq. ft. (minimum 2)	1 per 10,000 sq. ft. (minimum 2)
Trade Schools, Private Universities, and Private Colleges	1 per 500 square feet or 1 per 50 fixed seats whichever is greater (minimum 2)	1 per 1,000 square feet or 1 per 100 fixed seats whichever is greater (minimum 2)
All other Commercial Uses	1 per 10,000 sq. ft. (minimum 2)	1 per 10,000 sq. ft. (minimum 2)
Institutional Uses		
All Institutional Uses	1 per 10,000 sq. ft. (minimum 2)	1 per 5,000 sq. ft. (minimum 2)
Industrial Uses		
All Industrial Uses	1 per 10,000 sq. ft. (minimum 2)	1 per 10,000 sq. ft. (minimum 2)
Other Uses		

Auditoriums	1 per 350 square feet or 1 per 50 fixed seats whichever is greater (minimum 2)	1 per 700 square feet or 1 per 100 fixed seats whichever is greater (minimum 2)
Private Elementary Schools, Private High Schools, and Charter Schools	4 per classroom (minimum 2)	1 per 10 classrooms (minimum 2)

(3) **Combination of Uses.** Where there is a combination of uses on a lot, the number of bicycle parking spaces required shall be the sum of the requirements of the various uses. The exceptions provided in Section 12.21 A.4.(j) for automobile parking shall also apply to bicycle parking.

(4) **City Owned and Leased Buildings and Parking Lots.** In all buildings or parking lots used by the City of Los Angeles for government purposes, including government office buildings, both short-term and long-term bicycle parking shall be provided at a rate of 10 percent of the required parking available on the site. However, short- and long-term bicycle parking shall be no less than five spaces each for the entire site.

Buildings and lots owned by the City of Los Angeles that are leased for private uses shall meet the bicycle parking required for commercial uses as detailed in Table 12.21 A.16.(a)(2).

(5) **Parks.** In Neighborhood Recreation Sites, Community Recreation Sites, Regional Parks, and School Playgrounds, as defined in Section 1 of the Service Systems Element - Public Recreation Plan of the City's General Plan, short-term bicycle parking shall be provided at a rate of 10 percent of the required automobile parking with a minimum of five short-term bicycle parking spaces. In Neighborhood Recreation Sites, Community Recreation Sites, Regional Parks, and School Playgrounds where no automobile parking is provided, at least five short-term bicycle parking spaces will be provided, except that in park space of less than two acres in which there are no recreational facilities requiring building permits, no short-term bicycle parking shall be required. Long-term bicycle parking shall be provided as required in the California Green Building Standards Code Section 5.106.4 as that section may be amended from time to time.

(6) **Unmanned Facilities.** No bicycle parking shall be required for unmanned facilities, such as stand-alone public restrooms in parks or unmanned cellular antenna facilities.

(b) **Fractions.** When the application of these regulations results in the requirement of a fractional bicycle space, any fraction up to and including one-half may be disregarded, and any fraction over one-half shall be construed as requiring one bicycle parking space.

(c) **Change of Use.** Buildings undergoing a change of use shall not be required to provide bicycle parking. This includes adaptive reuse projects pursuant to Section 12.22 A.26.

(d) Bicycle Parking Facility Requirements.

(1) **Short-Term Bicycle Parking.** Short-term bicycle parking shall consist of bicycle racks that support the bicycle frame at two points. Racks that support only the wheel of the bicycle are not permissible.

(i) Racks shall allow for the bicycle frame and at least one wheel to be locked to the racks.

(ii) The bicycle rack shall allow for the use of a cable as well as a U- shaped lock.

(iii) If bicycles can be locked to each side of the rack, each side shall be counted toward a required space.

(iv) Racks shall be securely anchored to a permanent surface.

(v) If more than 20 short-term bicycle parking spaces are provided, at least 50 percent shall be covered by a roof or overhang.

(2) **Long-Term Bicycle Parking.** Long-term bicycle parking shall be secured from the general public and enclosed on all sides and protect bicycles from inclement weather.

(i) Acceptable examples of long-term bicycle parking include bicycle lockers, bicycle rooms, bicycle cages, or commercially operated attended bicycle facilities.

(ii) Except in the case of lockers and commercially operated attended bicycle parking, all long-term parking shall provide a means of securing the bicycle frame at two points to a securely anchored rack.

(3) Bicycle Share Stations.

(i) Bicycle share stations shall comply with all requirements for such stations established by the Department of Transportation.

(ii) Bicycle share stations shall be exempt from the requirements in Sections 12.21 A.16.(d)(1) and (2).

(e) **Design Standards.**

(1) **Dimensions.**

(i) Each bicycle parking space shall be a minimum 6 feet (72 inches) in length.

(a) **Vertical Storage.** Long-term bicycle parking may be mounted so that the bicycle is stored vertically. Such devices that hold the bicycle by the wheel shall be designed to support the bicycle without damaging the wheels. Vertically installed bicycle parking shall be a minimum of 4 feet (48 inches) deep and 6 feet (72 inches) in height.

(b) **Stacked Storage.** Long-term or short-term bicycle parking may be mounted so that bicycles are stored in a stacked, two-tier layout, provided such parking is primarily an attended bicycle facility where facility staff parks the bicycles, or such racks provide mechanical assistance for lifting the bicycle.

(c) **Horizontal Storage.** Where bicycles are stored horizontally, devices that hold the bicycle upright by wheel contact shall hold at least 180 degrees of wheel arc.

(ii) Short-term bicycle parking spaces shall be a minimum of 2 feet (24 inches) wide.

(a) Individual racks installed beside each other that allow bicycles to be locked to either side of the rack shall be spaced a minimum of 30 inches on center.

(b) Racks installed parallel to walls shall be a minimum of 30 inches from the wall, except that bicycle parking spaces providing a tray or channel for insertion of bicycle wheels may be placed a minimum of 20 inches from the wall, or 14 inches from the wall if such spaces are on the upper level of a stacked, two-tier rack.

(c) Bicycle parking spaces arranged in a vertically staggered layout that permits bicycles to be placed in and removed from each individual space without interference from bicycles in adjoining spaces may be spaced a minimum of 16 inches on center.

(iii) Long-term bicycle parking spaces shall be sized to permit safe, efficient, and convenient access to each individual bicycle parking space without interference from bicycles in adjoining spaces, as described below:

(a) Individual racks installed beside each other within bicycle rooms or bicycle cages that allow bicycles to be locked to either side of the rack shall be spaced a minimum of 30 inches on center.

(b) Racks installed parallel to walls shall be a minimum of 30 inches from the wall, with the exception that bicycle parking spaces that provide a tray into which the bicycle wheels may be inserted may be placed a minimum of 20 inches from the wall, or 14 inches from the wall if such spaces are on the upper level of a stacked, two-tier rack.

(c) Triangular lockers with varying widths may be used so long as the opening is at least 2 feet (24 inches) wide.

(d) Bicycle parking spaces arranged in a vertically staggered layout that permits bicycles to be placed in and removed from each individual space without interference from bicycles in adjoining spaces may be spaced a minimum of 16 inches on center.

(e) If more than 20 long-term bicycle parking spaces are provided, a workspace of 100 square feet shall be provided adjacent to the long-term bicycle parking to allow bicyclists to maintain their bicycles. However, where long-term bicycle parking is provided in more than one location, a single workspace may be provided adjacent to the location with the greatest number of long-term bicycle parking spaces.

(iv) For single-tiered bicycle parking, minimum headroom of 7 feet (84 inches) shall be provided. For facilities where two tiers of bicycle parking are installed one above another, minimum headroom of 4 feet (48 inches) shall be provided for each tier.

(v) Bicycle parking spaces shall be separated from automobile parking spaces or aisles by a wall, fence,

or curb or by at least 5 feet of open space marked to prohibit parking.

Where bicycle parking is adjacent to accessible automobile parking, aisles or loading areas provided for accessible spaces may count towards the open space requirement for bicycle parking so long as they are immediately adjacent to the bicycle parking.

(2) **Siting Requirements.**

(i) **Location.** Required bicycle parking shall be provided on the same lot as the use for which it is intended to serve, or in a parking facility serving that use. Bicycle parking shall be located so as to allow bicyclists safe and convenient access to and from the site. Bicyclists shall not be required to rely on stairways or escalators for access or to share access with motor vehicles. Elevators providing access for bicyclists shall be sized to accommodate standard adult bicycle dimensions with both wheels on the floor (at least 6 feet by 2 feet).

(ii) **Unreasonable Rules Prohibited.** A building, lot, or garage shall not establish unreasonable rules that interfere with the ability of bicyclists to safely and conveniently access bicycle parking. Such rules include shorter operating hours than those of the building or those of the automobile parking, prohibitions on walking of bicycles in pedestrian areas that provide access to bicycle parking, and prohibitions on bicycles in elevators where elevators are used to provide access to bicycle parking. The provisions of this section do not prohibit property owners from requiring bicycles to be walked in pedestrian-only areas.

(iii) **Short-Term Bicycle Parking.** Short-term bicycle parking shall be located so as to provide safe and convenient access to visitors. For new construction, at least 50 percent of short-term bicycle parking shall be located outside buildings; however, no more than eight short-term bicycle parking spaces per 100 linear feet of street frontage shall be required to be outside. The remaining required short-term bicycle parking spaces may be provided inside the building on the ground floor, or inside the parking garage on the ground floor with a direct access to a public street.

(a) For new developments, short-term bicycle parking shall be located to maximize visibility from a pedestrian entrance. For new or existing buildings, where short-term bicycle parking is located within buildings or parking garages, signage is required at each building entrance as per Section 12.21 A.16.(d)(4).

(b) Short-term bicycle parking spaces shall be located no farther than 100 feet of walking distance from a pedestrian entrance.

(c) For buildings with more than one pedestrian entrance, short-term bicycle parking shall be distributed in approximately equal proportions among all pedestrian entrances. In buildings with three or more pedestrian entrances, no more than 50 percent of all short-term bicycle parking spaces shall be assigned to a single pedestrian entrance.

(iv) **Long-Term Bicycle Parking.** Long-term bicycle parking spaces shall be provided in one of the following locations, or in a combination thereof:

(a) On the ground floor within 100 feet of the major entrance to the lobby. There shall be safe and convenient access between the public right-of-way, the bicycle parking space, and the lobby area.

(b) In the off-street automobile parking area, subject to the following limitations:

(1) Long-term bicycle parking inside a parking garage shall be no more than 200 feet from a pedestrian entrance to the main building, and located so as to provide reasonably convenient access from the bicycle parking to the nearest walkway, ramp, or elevator providing access to the building.

(2) Long-term bicycle parking inside a parking garage shall be located within the space available on the building's pedestrian entry level, after required handicapped-accessible parking stalls and other required elements have been provided. Remaining long-term bicycle parking may be provided on other levels of the parking garage in accordance with the provisions of this Subparagraph (iv).

(c) One level above or below the ground floor, within 100 feet of the elevator, ramp, walkway, or other building entrance on that story. In such cases, elevator or ramp access to the building shall be provided.

(d) Residential long-term bicycle parking may be provided in common storage facilities on residential floors in accordance with Sections 12.21 A.16.(d) and (e). If residential long-term

bicycle parking is provided on residential floors, the amount of bicycle parking on each floor shall be equal to or greater than 50 percent of the number of dwelling units on the same floor.

(v) **Bicycle Share Station Docks.** Bicycle share station docks counted toward the requirements for short-term bicycle parking spaces as permitted in Section 12.21 A.16.(f)(3) shall conform to Sections 12.21 A.16.(e)(2)(i) and (e)(2)(iii)(a) and (b).

(vi) **Combination of Uses.** Where there is a combination of uses on a lot, long-term bicycle parking may be provided in one or more bicycle parking facilities within 200 feet of each use.

(vii) **Multiple Buildings.** For a development site with multiple buildings, required bicycle parking may be sited in one or more bicycle parking facilities within 200 feet of each building.

(viii) **Attended Bicycle Parking Service.** Where short-term or long-term bicycle parking is provided by means of an Attended Bicycle Parking Service, the pick-up and drop-off location shall either comply with the siting requirements of this Subparagraph (2) above or be co-located with any valet automobile parking pick-up or drop-off location provided on the same site for the subject use. Where such a facility is provided, the bicycle storage area need not comply with the siting requirements of this Subparagraph (2) above. In addition, the pick-up and drop-off location for an Attended Bicycle Parking Service need not comply with the siting requirements for combinations of uses or multiple buildings.

If some or all required bicycle parking spaces are provided by means of an attended bicycle parking service, the service shall be available to building occupants at all times during the hours the building is in operation. If, for any reason, an Attended Bicycle Parking Service is discontinued, the associated land uses may no longer count the attended bicycle parking service toward the required number of bicycle parking spaces and shall be required to provide a number of bicycle parking spaces equivalent to the number formerly provided by the attended bicycle parking service.

(3) **Lighting.** Adequate lighting shall be provided to ensure safe access to bicycle parking facilities in accordance with Section 12.21 A.5.(k).

(4) **Signage.** Where bicycle parking is not clearly visible from the street, legible reflectorized signs shall be permanently posted at the street entrances to each site indicating the availability and location of bicycle parking within the site. All signs must comply with Section 14.4.7 of this Code.

(f) **Additional Requirements and Allowances.**

(1) **Bicycle Parking in the Public Right-of-Way.**

(i) Short-term bicycle parking spaces located immediately in front of a site within the public right-of-way may be counted towards the short-term bicycle parking requirements of said site.

(ii) Business operators or property owners may install and maintain their own racks within the public right-of-way unless a City owned rack already exists.

(a) Business operators or property owners are responsible for applying for a permit with the Bureau of Engineering to install short-term bicycle parking within the public right-of-way. A Bureau of Engineering permit may be issued only after the business operator or property owner receives issuance of plan approval or a permit by the Department of Transportation pursuant to LAMC Section 85.04.

(b) All bicycle parking installed in this manner shall meet the rules and regulations set out by the Bureau of Engineering Standard Plan S-671.

(c) Business operators or property owners who choose to install bicycle parking within the public right-of-way are responsible for maintaining the racks according to the standards set forth in a Covenant Maintenance Agreement with the Department of Transportation.

(2) **Bicycle Corrals.**

(i) **City-funded Bicycle Corrals.** Any site located within 500 feet of a City funded bicycle corral may count up to four bicycle parking spaces towards their required short-term bicycle parking spaces.

(ii) **Bicycle Corral Parking Incentive Program.** Business operators or property owners may submit an application to the Department of Transportation to install and maintain their own bicycle corrals immediately in front of their property in the public right-of-way.

(a) Businesses or property owners who do so may count all the bicycle parking within the

bicycle corral towards their required number of short-term bicycle parking spaces. In such cases, short-term bicycle parking installed in such a manner shall not be counted towards the bicycle parking requirements of surrounding businesses.

(b) Business operators or property owners shall pay the construction and maintenance costs of building said bicycle corrals.

(c) Multiple businesses or property owners may submit an application to the Department of Transportation's Bicycle Program as a group and split the costs to construct and maintain the corral.

(1) In such cases, a single business shall be responsible for assuming the maintenance responsibilities detailed in a Covenant Maintenance Agreement as outlined below.

(2) The business responsible for maintaining the bicycle corral may count the full amount of bicycle parking in the corral towards its short-term bicycle parking requirements.

(3) All other businesses may count up to half of the bicycle parking spaces in the corral towards their required short-term bicycle parking spaces so long as they provide a financial contribution.

(d) Business operators or property owners shall be responsible for applying for a permit with the Bureau of Engineering to install bicycle corrals within the public right-of-way.

(e) Business operators or property owners who choose to install bicycle corrals within the public right-of-way shall be responsible for maintaining the racks according to the standards set forth in a Covenant Maintenance Agreement with the Department of Transportation.

(f) If, for any reason, the responsibility for maintaining a bicycle corral is returned to the City of Los Angeles, it shall be considered a City-funded bicycle corral.

(iii) If, for any reason, the City determines that a bicycle corral must be removed, business owners shall no longer be able to count the spaces removed toward their required bicycle parking. In such cases, said businesses shall be required to provide any bicycle spaces lost in the removal of the corral. Failure to comply may result in the revocation of a business's Certificate of Occupancy and a fine for Code violation.

(3) Bicycle Share Stations.

(i) Business operators or property owners may allow a bicycle share service provider to install one or more bicycle share stations on their property, provided that such bicycle share station(s) shall be part of a bicycle share system approved by the Department of Transportation and comply with all location criteria established by the Department of Transportation for bicycle share stations.

(ii) Any site within 500 feet of a bicycle share station may count up to four bicycle share docks toward the required number of short-term bicycle parking spaces for a building or buildings on the same lot. In all cases, the number of bicycle share docks counted toward the required number of short-term bicycle parking spaces shall not exceed 10 percent of the total number of short-term bicycle parking spaces required for the subject site.

(iii) Where bicycle share docks are counted toward the required number of short-term bicycle parking spaces, residential and non-residential uses may replace a percentage of the required automobile parking spaces with bicycle share docks in a manner consistent with the limitations and replacement ratio established in Section 12.21 A.4.

(iv) If, for any reason, bicycle share docks are removed, the associated land uses may no longer count the docks removed toward required bicycle parking and shall be required to replace the number of docks formerly counted toward required bicycle parking with an equivalent number of bicycle parking spaces.

(4) Showers and Personal Lockers. Showers and personal lockers shall be provided as required per LAMC Section 91.6307. Personal lockers shall only be required for long-term bicycle parking in nonresidential uses. If showers and personal lockers are provided, such showers and personal lockers shall remain available for the use of building occupants, including residents and/or employees, arriving by bicycle.

(g) Exceptions. The provisions of this section do not apply to any of the following projects, which shall comply with the regulations as of March 13, 2013, as applicable:

(1) Any entitlement application filed and accepted as complete prior to March 13, 2013 with the exception of CEQA review as determined by the Department of City Planning.

(2) Any project for which the City has approved an entitlement application as of March 13, 2013, but that has not yet submitted plans and appropriate fees to the Department of Building and Safety for plan check, as determined by the Department of City Planning.

(h) **Alternative Compliance – Director’s Authority.** The Director of Planning or the Director’s designee shall have initial decision- making authority to approve an alternative to the design standards specified in Section 12.21 A.16.(e)(1) or to the siting requirements specified in Section 12.21 A.16.(e)(2)(iii) and (iv) with an appeal to the Area Planning Commission in accordance with the procedures set forth in Sec. 13B.5.1. (Alternative Compliance) of Chapter 1A of this Code. An applicant may request such approval by submitting an application and paying a filing fee equivalent to that established for a “Miscellaneous Clearance - Director”. This fee is set forth in Section 19.04 of this Code. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

(1) **Findings.** The Director’s determination shall include written findings in support of the decision. In order to grant approval of the alternative design or siting, the Director must find that the location, dimensions, position, security, and spacing allow for safe and reasonably accessible and convenient short or long-term storage of bicycles for the anticipated users of the bicycle parking, and that the proposed design or siting meets the needs of bicyclists at least as effectively as the requirements of Section 12.21 A.16.(e)(1).

17. One-Family Dwellings, Accessory Buildings and Additions. Hillside Regulations. Notwithstanding any other provisions of this Code to the contrary, the following regulations shall apply to any Major Remodel - Hillside, or construction of or addition to any One-Family Dwelling or Accessory Building on a Lot in the A1, A2 or RD Zones which is located in whole or in part in a Hillside Area as defined in Section 12.03 of this Code. **(Amended by Ord. No. 181,624, Eff. 5/9/11.)**

(a) Front Yards.

(1) For any lot that fronts on a Substandard Hillside Limited Street, there shall be a minimum front yard of at least five feet. For lots having a zoning classification that contains a provision calling for observance of the prevailing setback, the prevailing setback regulations shall apply, so long as a front yard of no less than five feet is provided. **(Amended by Ord. No. 174,652, Eff. 7/27/02.)**

(2) For any lot which fronts on a Standard Hillside Limited Street, the front yard shall be as otherwise required by this Code.

(3) Notwithstanding any other provisions of this Code to the contrary, open unenclosed stairways, porches, platforms and landing places not covered by a roof or canopy shall not project or extend into the front yard. Balconies with 10 feet of vertical clearance beneath them may project or extend no more than 30 inches into a front yard. **(Added by Ord. No. 168,728, Eff. 5/30/93.)**

(b) Side Yards.

(1) For any main building, each side yard shall be not less than five feet, unless the lot is less than 40 feet in width, then each side yard shall be not less than four feet.

(2) For any main Building on a Lot in the RD Zones, the above required Side Yard or the Side Yard required by the zone in which the Lot is located, whichever requirement is greater, shall be increased one foot for each increment of ten feet or fraction thereof above the first 18 feet of height of the main Building. **(Amended by Ord. No. 181,624, Eff. 5/9/11.)**

(c) Height.

(1) On any lot where the slope of the lot measured from the lowest point of elevation of the lot to the highest point is 66 percent or less, no building or structure shall exceed 36 feet in height as measured from grade.

(2) On any lot which has a slope of greater than 66 percent as measured from the lowest point of elevation of the lot to the highest point, no building or structure shall exceed 45 feet in height as measured from grade.

EXCEPTION: Notwithstanding the provisions of Paragraph (2) above to the contrary, where the slope of the lot as measured from the highest point of the lot within five horizontal feet of an exterior wall of the main building to the lowest point of the lot within five horizontal feet of an exterior wall of the main building is less than 66 percent, then no portion of the main building shall exceed 36 feet in height.

(3) Roof structures may exceed the otherwise allowable height limit, provided the structures conform to the provisions of Section 12.21.1 B. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

(i) Skylights shall not exceed the otherwise allowable height limit by more than 30 inches, nor shall skylights which exceed the otherwise allowable height cover more than 33 1/3 percent of the roof area upon which the skylight is constructed.

(ii) Roof structures housing stairways shall not exceed the otherwise allowable height limit by more than five feet, nor shall they be greater than 36 square feet in area.

(4) For any lot, where the elevation of the ground at a point 50 feet from the front lot line and midway between the side lot lines is 33 feet or more higher than the lowest point of the front lot line, no portion of a building or structure within 20 feet of the front lot line shall exceed 24 feet in height. The 24 foot maximum building and structure height shall be measured from the elevation at the centerline or midpoint of the street on which the lot fronts.

(5) For the purpose of measuring height pursuant to this subdivision, grade shall be defined as the elevation of the finished or natural surface of the ground, whichever is lower, or the finished surface of the ground established in conformance with a grading plan approved pursuant to a recorded tract or parcel map action. Retaining walls shall not raise the effective elevation of grade for purposes of measuring height of a building or structure.

(d) Fire Protection.

(1) Notwithstanding any other provisions of this Code to the contrary, any new construction of a one-family dwelling or detached accessory building, shall be protected throughout with an approved automatic fire sprinkler system, in compliance with the Los Angeles Plumbing Code.

(2) An approved automatic fire sprinkler system in compliance with the Los Angeles Plumbing Code shall be installed:

(i) whenever an addition to an existing one-family dwelling or accessory building increases the floor area by 50 percent or more of the area of the existing dwelling or building; or

(ii) whenever the aggregate value of Major Remodels within a one-year period exceeds 50 percent of the replacement cost of the dwelling or accessory building; and the dwelling or accessory building is on a lot located on a Substandard Hillside Limited Street and located either more than two miles from a fire station housing a Los Angeles City Fire Department Truck Company or more than one and one-half miles from a fire station housing a Los Angeles Fire Department Engine Company. **(Amended by Ord. No. 168,728, Eff. 5/30/93.)**

(3) The sprinkler system required in (i) and (ii) above shall be sufficient to cover the entire dwelling or building, unless otherwise determined by the Department of Building and Safety, and shall be installed in compliance with all applicable codes.

(4) The provisions of Paragraphs (i) and (ii) above shall not apply to accessory structures such as gazebos, pergolas, or storage sheds provided these structures are not supported by or attached to any portion of a dwelling or accessory building and do not exceed 200 square feet in floor area.

(e) Street Access. (Amended by Ord. No. 174,652, Eff. 7/27/02.)

(1) For any new construction of, or addition to, a one-family dwelling on a lot fronting on a Substandard Hillside Limited Street, no building permit or grading permit shall be issued unless at least one-half of the width of the street(s) has been dedicated for the full width of the frontage of the lot to Standard Hillside Limited Street dimensions or to a lesser width as determined by the City Engineer. Upon payment of the fee imposed pursuant to the provisions of Section 12.37 F.3., an applicant may seek relief from this dedication requirement pursuant to the provisions of Section 12.37 I. **(Last Sentence Amended by Ord. No. 184,718, Eff. 3/4/17.)**

(2) For any new construction of, or addition to, a one-family dwelling on a lot fronting on a Substandard Hillside Limited Street that is improved with a roadway width of less than 20 feet, no building permit or grading permit shall be issued unless the construction or addition has been approved pursuant to Section 12.24 X.21.

(3) For any new construction of, or addition to, a one-family dwelling on a lot that does not have a vehicular access route from a street improved with a minimum 20 foot wide continuous paved roadway from the driveway apron that provides access to the main residence to the boundary of the Hillside Area, no building permit or grading permit shall be issued unless the construction or addition meets the requirements of this Subdivision or has been approved pursuant to Section 12.24 X.21.

(f) Lot Coverage.

(1) Buildings and structures extending more than six feet above natural ground level shall cover no more than 40 percent of the area of a lot.

(2) Notwithstanding (1) above, for a lot which is substandard as to width (less than 50 feet) and as to area (less than 5,000 square feet), buildings and structures shall cover no more than 45 percent of the area of a lot.

(g) **Sewer Connection.** No building permit shall be issued for the construction of any new one-family dwelling on a lot located 200 feet or less from a sewer mainline unless a sewer connection is provided to the satisfaction of the City Engineer.

(h) **Off-Street Parking Requirements. (Amended by Ord No. 169,961, Eff. 8/29/94.)** No building or grading permit shall be issued for the construction of any one-family dwelling, accessory building, Major Remodel-Hillside, or addition thereto located on a lot which fronts on a Substandard Hillside Limited Street, unless the following requirements are met.

In addition to the off-street automobile parking spaces required by Section 12.21 A.4.(a), the following off-street parking spaces shall be provided:

(1) For a main building and any accessory building, excluding floor area devoted to required parking, which exceed a combined floor area of 2,400 square feet, there shall be one additional parking space provided for each additional increment of 1,000 square feet or fraction thereof of floor area for a maximum of five total on-site spaces.

(2) Notwithstanding the provisions of Section 12.21 C.1.(g) of this Code to the contrary, the additional parking spaces required by this paragraph may be uncovered and in tandem, and may be located within the required 5-foot front yard.

(3) If the requirements in this paragraph require the grading of 1,000 cubic yards or more of earth, then no building or grading permit shall be issued for a new one-family dwelling, accessory building, Major Remodel-Hillside, or addition to the above on a lot which fronts on a Substandard Hillside Limited Street unless the Zoning Administrator has issued an approval pursuant to Section 12.24 X.21. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

(i) **Exceptions. (Amended by Ord No. 169,961, Eff. 8/29/94.)** The provisions of this Subdivision 17. shall not apply to:

(1) One-family dwellings, accessory buildings and additions thereto within a subdivision for which a tentative or final tract map was approved by the City of Los Angeles after February 1, 1985, and is still valid, provided that the map resulted in the establishment of covenants, conditions and restrictions governing building height, yards, open space or lot coverage, and provided, further, that such covenants, conditions and restrictions were recorded on or after February 1, 1985.

(2) **(Amended by Ord. No. 174,652, Eff. 7/27/02.)** Any construction on a lot with a vehicular access from a street improved with a minimum 28 foot wide continuous paved roadway within the Hillside Area, provided:

(i) the roadway begins at the driveway apron which provides access to the main residence and ends where the roadway intersects a designated collector street, or a secondary or major highway where the collector, major or secondary highway roadway also has a minimum continuous paved roadway width of 28 feet from the apron to the edge of the Hillside Area boundaries.

(ii) the area within the vehicular access does not contain any encroachment which would prohibit the passage of emergency vehicles.

(3) Any additions made after September 14, 1992, to a one-family dwelling existing prior to that date, provided:

(a) the total cumulative floor area of all such additions does not exceed 750 square feet (excluded from calculations of this 750 square foot limitation is floor area devoted to required parking); and

(b) the resulting building does not exceed the height of the original building or the height permitted in Paragraph (c) of this subdivision, whichever is greater; and

(c) at least two off-street parking spaces are provided.

(4) Any remodeling of a main building on a lot in the Hillside Area, as defined in Section 12.03, which does not add square footage and for which the aggregate value of all of the alterations within a one-year period does not exceed 50 percent of the replacement cost of the main building.

(5) Where architectural and structural plans sufficient for a complete plan check for a building permit for a building or structure were accepted by the Department of Building and Safety and for which a plan check fee was collected on or before the effective date of this subdivision, and for which no subsequent changes are made to those plans which increase the height nor reduce front or side yards. However, any building permit shall become invalid if construction pursuant to the permit is not commenced within 18 months of the date the plan check fee was collected. **(Added by Ord. No. 174,652, Eff. 7/27/02.)**

18. Recycling Centers And Facilities. (Added by Ord. No. 171,687, Eff. 8/19/97.)

(a) Any educational institution, church, league or charitable institution, or any organization described in Section 501(c)(3) or (4) of the Internal Revenue Code shall be allowed to collect cans, bottles, papers, and plastic on its grounds as an accessory use or on City property, if approved by the City department with jurisdiction over that property, in all zones provided that:

(1) the area for depositing Recyclable Materials does not exceed 200 square feet and shall be a minimum of 10 feet from all buildings, and 150 feet from the property line of any adjoining property in an A or R Zone, except for areas for the collection of newspapers only;

(2) all Recycling Receptacles are covered, durable, waterproof, rustproof, and of incombustible construction;

(3) notwithstanding other provisions of this Code, Recycling Receptacles are enclosed by an eight-foot chain link fence with wooden slats, concrete block or similar construction (enclosure), which shall be properly maintained at all times;

(4) either the Recycling Receptacle or the enclosure is clearly identified with the business name, address, telephone number, hours of operation and notice that no material is to be left outside the enclosure;

(5) each Recycling Receptacle clearly indicates the type of material to be deposited;

(6) on a daily basis the area for depositing Recyclable Materials is kept free of litter, debris, spillage, bugs, rodents, odors, and other similar undesirable hazards;

(7) the hours of operation are Monday through Saturday from 8 a.m. to 4 p.m., and Sunday from 10 a.m. to 4 p.m., except when the collection site is further than 500 feet from any A or R Zone, then the permitted hours of operation are seven days a week from dawn until dusk.

(8) the enclosure is kept secure from unauthorized entry by a locking gate or guard maintaining security for the main building;

(9) the enclosure does not diminish the required number of parking spaces or impair traffic flow; and

(10) newspapers are emptied from Recycling Receptacles when full or every week, whichever occurs first and all other materials are emptied from Recycling Receptacles when full or every 72 hours, whichever occurs first.

(11) The baling of newspapers is permitted; however can or bottle crushing is not permitted.

(12) An administrative fine of \$250.00 may be collected by the Department of Building and Safety pursuant to the procedures set forth in Paragraph (g) of this subdivision for any violation of the provisions of this subparagraph.

(b) Any educational institution, church, league, or charitable institution, or any organization described in Section 501(c)(3) or (4) of the Internal Revenue Code shall be permitted the use of Mobile Recycling Centers as defined in Section 12.03 of this Code, for organized drives for the collection of cans, bottles, papers, and plastic in all zones provided that:

(1) collections may be made on the grounds of the organization sponsoring the collection drive unless otherwise authorized by the Department of Building and Safety, or on a continuous basis at a recycling center certified by the California Department of Conservation, Recycling Division;

(2) the collection of materials shall not be conducted on the site of an existing residential structure;

(3) not more than three drives shall be conducted on the same site within a 12- month period and the duration of any drive shall not exceed 30 days. No drive shall be conducted within a 90-day period following a prior drive on the same site or within 1,000 feet of the same site;

(4) a permit for which no fee shall be charged must be obtained from the Board of Police Commissioners for the purpose of verifying proper time limitations prior to initiation of any drive conducted pursuant to this subdivision; **(Amended by Ord. No. 173,283, Eff. 6/26/00, Oper. 7/1/00.)**

(5) the Mobile Recycling Center shall be a minimum of 10 feet from all buildings; and

(6) the Mobile Recycling Center shall be maintained such that it is secured from unauthorized entry.

(7) An administrative fine of \$250.00 may be collected by the Department of Building and Safety pursuant to the procedures set forth in Paragraph (g) of this subdivision for any violation of the provisions of this paragraph.

(c) **Recycling Collection or Buyback Centers**, including reverse vending machines and Mobile Recycling Centers, as defined in Section 12.03 of this Code, shall be permitted in conjunction with grocery markets in the C1 or any less restrictive zone, or in the P or PB Zone in conjunction with a grocery market on the same site in a C1 or less restrictive zone.

(1) All Recycling Collection or Buyback Centers established pursuant to this paragraph must be in conjunction with a grocery market on the same site.

(2) For the purposes of this paragraph, the term “**grocery market**” shall mean a retail business, of which greater than one half of the floor area is devoted to the sale of food items for consumption or use off the premises, excluding alcoholic beverages.

(3) No portion of the recycling operation may be closer than 100' to any A or R zone. **(Added by Ord. No. 176,840, Eff. 9/4/05.)**

(4) The area for depositing Recyclable Materials does not exceed a total of 600 square feet of the lot area. **(Added by Ord. No. 176,840, Eff. 9/4/05.)**

(5) The requirements of Paragraph (d)(3), and (d)(5) through (19) of this Subdivision must be complied with at all times except that no reduction of any kind in required parking spaces is allowed. **(Added by Ord. No. 176,840, Eff. 9/4/05.)**

(d) The depositing of glass, cans, papers, plastic, beverage containers, and similar Recyclable Materials, Recycling Collection or Buyback Centers, and Mobile Recycling Centers, shall be permitted in the M2 and M3 Zones without obtaining a conditional use permit pursuant to Section 12.24 U.22.(b) of this Chapter and Sec. 13B.2.3. (Class 3 Conditional Use Permit) of Chapter 1A of this Code, provided that all of the following conditions are met: **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

(1) the lot upon which the Recycling Collection or Buyback Center is located is not within 1,000 feet of any A, R, C, P, PB, MR, or M1 Zone or use;

(2) the area for depositing Recyclable Materials does not exceed a total of 1,000 square feet;

(3) the area for depositing Recyclable Materials shall be a minimum of 10 feet from all property lines, except for Reverse Vending Machines and Reverse Vending Machine Commodity Storage Bins located 24 inches or less from the exterior wall of a building;

(4) the entire site shall be enclosed by a 6-foot high concrete block or masonry wall. In addition, if the facility is located in any C, P or PB Zone, a five-foot landscaped buffer, approved by the City Planning Department as provided in Section 12.21 A.6.(i) of this Code, shall be maintained along all street frontages;

(5) all Recycling Receptacles shall be covered, durable, waterproof, rustproof, of incombustible construction, and of sufficient capacity to accommodate the materials collected;

(6) except for Reverse Vending Machine Commodity Storage Bins, either the Recycling Receptacle or the enclosure is clearly identified with the operator's name, address, telephone number, hours of operation, and a notice that no material shall be left outside the enclosure, and each Recycling Receptacle must clearly indicate the type of material to be deposited.

(7) on a daily basis the site is kept free of litter, debris, spillage, bugs, rodents, odors, and other similar undesirable hazards;

(8) Recyclable Materials, other than Recyclable Materials contained in reverse vending machine commodity storage bins, are emptied from Recycling Receptacles when full or every week, whichever occurs first;

(9) all recycled goods shall be placed or stored in Recycling Receptacles and not be left out on the site by the end of the business day;

(10) paper products and other lightweight materials shall be immediately placed into covered Recycling Receptacles when they are dropped off;

(11) the hours of operation shall not exceed Monday through Friday from 7 a.m. to 8 p.m., Saturday from 8 a.m. to 6 p.m., and Sunday from 10 a.m. to 6 p.m., except for Reverse Vending Machines that are located within 24 inches of the exterior wall of a building, which may operate from 7 a.m. to 10 p.m., seven days a week;

(12) all Recycling Receptacles and containers shall be kept secure from unauthorized entry to prevent scavenging and theft of recyclable materials;

(13) the area for depositing Recyclable Materials and/or enclosure shall not impair traffic flow nor diminish the required parking spaces except that up to 10 percent of the required parking spaces may be used as part of the area utilized for Recyclable Materials; provided, however, that if the area for depositing Recyclable Materials is abandoned, then the parking spaces shall be reestablished;

(14) any activity involving baling and hand sorting of Recyclable Materials, as well as automated can conveyor/magnetic or mechanical separators, and crushers for can, glass, or plastic bottles, is conducted in compliance with Section 12.19 A.4.(b)(1) of this Code.

(15) at least one trash receptacle shall be provided within a recycling site;

(16) the area for collection of Recyclable Materials, and all driveways, parking areas, storage areas, and loading zones shall be paved and maintained in good condition;

(17) a source of running water shall be maintained on the site; and

(18) no Recycling Center Operator shall permit loitering, camping, public begging, consumption of alcoholic beverages, use of illegal narcotics, or any other criminal activity on any premises over which the Recycling Center Operator has control.

(19) An administrative fine of \$250.00 may be collected by the Department of Building and Safety pursuant to the procedures set forth in Paragraph (g) of this subdivision for any violation of the provisions of this paragraph.

(e) **Recycling Materials Sorting Facilities** shall be permitted in all M and MR Zones without obtaining a conditional use permit pursuant to Section 12.24. U.22.(d) of this Chapter and Sec. 13B.2.3. (Class 3 Conditional Use Permit) of Chapter 1A of this Code, provided that all of the following conditions are met: **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

(1) the facility is located at least 1,000 feet from any A, R, C, P, or PB Zone or use;

(2) the facility shall be operated by a Recycling Center Operator or Junk Dealer;

(3) notwithstanding any other provisions of the Code, no processing of Recyclable Materials, shall be permitted at the facility;

(4) Recyclable Materials to be sorted shall be limited to paper, cardboard, glass, metal, plastic and other items that are deemed appropriate by the Department of Building and Safety, Bureau of Sanitation, and Fire Department;

(5) the hours of operation shall be limited to 7 a.m. to 8 p.m., seven days a week, if the facility is located within 1,000 feet of an A or R Zone or any residential use. Otherwise, operation may be 24 hours a day. All operations must comply with Section 111.03 of this Code. The facility and all related activities shall be administered by on-site personnel during the hours the center is open;

(6) no depositing of Recyclable Materials shall be permitted during hours the center is not open;

(7) the facility shall be clearly identified with the operator's name, address, telephone number, hours of operation and a notice stating that no material shall be left outside the recycling center enclosure;

(8) Recycling Receptacles shall be provided that are durable, waterproof, rustproof and of incombustible construction and of a capacity which are sufficient to accommodate the materials collected;

(9) automated sorting and separating machinery shall be permitted, provided that the machinery is conducted in compliance with Section 12.19 A.4.(b)(1) of this Code;

(10) adequate parking, loading, and drive through space to accommodate customers, shall be provided as required in Section 12.19 A.4.(b)(4) of this Code;

(11) the facility shall be maintained in a clean, safe and sanitary condition on a daily basis;

(12) a source of running water shall be maintained on the site;

(13) the facility shall utilize some type of dust mitigation and/or wind mitigation measures to prevent blowing debris;

(14) the facility shall comply with the other limitations as set forth in Section 12.19 A.4.(b) of this Code;

(15) the facility shall be surrounded by a 6-foot high concrete block wall and a 5-foot landscaped buffer,

approved by the City Planning Department as provided in Section 12.21 A.6.(i) of this Code, adjoining all street frontages; and

(16) no Recycling Center Operator shall permit loitering, camping, public begging, consumption of alcoholic beverages, use of illegal narcotics, or any other criminal activity on any premises over which the Recycling Center Operator has control.

(17) An administrative fine of \$250.00 may be collected by the Department of Building and Safety pursuant to the procedures set forth in Paragraph (g) of this subdivision for any violation of the provisions of this paragraph.

(f) **Recycling Materials Processing Facilities** shall be permitted in the M2 and M3 Zones without obtaining a conditional use permit pursuant to Section 12.24. U.22.(c) of this Chapter and Sec. 13B.2.3. (Class 3 Conditional Use Permit) of Chapter 1A of this Code, provided that all of the following conditions are met: **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

(1) the facility shall be located at least 1,000 feet from any A, R, C, P, PB, MR, or M1 Zone or use;

(2) the facility shall be operated by a Recycling Center Operator or Junk Dealer;

(3) notwithstanding any other provisions of the Code, Recyclable Materials collected and processed on the site shall be limited to paper, cardboard, glass, metal, plastic and other items that are deemed appropriate by the Department of Building and Safety, Bureau of Sanitation, and Fire Department;

(4) hours of operation shall be limited to 7 a.m. to 8 p.m., seven days a week, if the facility is located within 1,000 feet of an A or R Zone or any residential use. Otherwise, operation may be 24 hours a day. All operations must comply with Section 111.03 of this Code. The facility and all related activities shall be administered by on-site personnel during the hours the center is open;

(5) no depositing of Recyclable Materials shall be permitted during hours the center is not open;

(6) the facility shall be clearly identified with the operator's name, address, telephone number, hours of operation and a notice stating that no material shall be left outside the recycling center enclosure;

(7) if Recycling Receptacles are used for storage of materials on site, they shall be durable, waterproof, rustproof, and of incombustible construction;

(8) processing machinery, such as weighing scales and crushing and separating machines shall be permitted, provided that the machinery is conducted in compliance with Section 12.19 A.4.(b)(1) of this Code;

(9) the facility shall provide adequate parking, loading, and drive through space to accommodate customers, as required in Section 12.19 A.4.(b)(4) of this Code;

(10) the facility shall be maintained in a clean, safe and sanitary condition on a daily basis;

(11) a source of running water shall be maintained on the site;

(12) the facility shall utilize some type of dust mitigation and/or wind mitigation measures to prevent blowing debris;

(13) the facility shall comply with the other limitations as set forth in Section 12.19 A.4.(b) of this Code;

(14) the facility shall be surrounded by a 6-foot high concrete block wall and a 5-foot landscaped buffer, approved by the City Planning Department as provided in Section 12.21 A.6.(i) of this Code, adjoining all street frontages; and

(15) no Recycling Center Operator shall permit loitering, camping, public begging, consumption of alcoholic beverages, use of illegal narcotics, or any other criminal activity on any premises over which the Recycling Center Operator has control.

(16) An administrative fine of \$250.00 may be collected by the Department of Building and Safety pursuant to the procedures set forth in Paragraph (g) of this subdivision for any violation of the provisions of this paragraph.

(g) Any violation of the provisions of this subdivision shall be enforced pursuant to Sec. 13B.10.3. (Annual Inspection Monitoring of Auto Dismantling Yards, Junk Yards, Scrap Metal or Recycling Materials Processing Yards, Recycling Collection and/or Buyback Centers, Recycling Materials Sorting Facilities and Cargo Container Storage Yards) of Chapter 1 A of this Code. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

19. Areas For Collecting And Loading Recyclable Materials. (Added by Ord. No. 171,687, Eff. 8/19/97.)

(a) **Purpose.** In accordance with state regulations regarding recycling facilities, these provisions that require adequate areas for collecting and loading Recyclable Materials serve to divert solid waste and address source reduction, recycling, and composting activities.

(b) **Definitions.** As used in this subdivision, the term “development project” shall mean any of the following:

(1) The issuance of a building permit for a commercial, industrial, or institutional building where solid waste generated by the facility is collected and loaded.

(2) The issuance of a building permit for a marina where solid waste generated by the facility is collected and loaded. For the purpose of this definition, the floor area of a marina is the space dedicated to the docking or mooring of marine vessels.

(3) Any new public facility where solid waste generated by the facility is collected and loaded, or any improvements to an area of an existing public facility used to collect and load solid waste generated by the facility. For purposes of this definition, a public facility includes but is not limited to buildings, structures, marinas, and outdoor recreation areas owned by a local agency.

(4) The issuance of a building permit for a residential building having four or more living units where solid waste generated by the units is collected and loaded.

(5) The issuance of a building permit for four or more residential units, including detached single-family homes, where solid waste generated by the units is collected and loaded and serves all four or more units.

(c) **Requirements for Recycling Areas or Rooms in a Development Project.** All new development projects, all existing multiple-family residential development projects of four or more units where the addition of floor area is 25 percent or more, and all other existing development projects where the addition of floor area is 30 percent or more, shall provide an adequate Recycling Area or Room, as defined in Section 12.03 of this Code, for collection and loading of Recyclable Materials. When a new development project provides a Trash Chute or an existing development project adds a Trash Chute, a Recycling Chute shall also be provided in both cases. Recycling Chutes shall be clearly marked “recycling only” at every point of entry. **(Amended by Ord. No. 181,227, Eff. 9/1/10.)**

Any existing development project for which multiple building permits are issued within a 12- month period which results in the expansion of the existing development project beyond the above thresholds shall also provide a Recycling Area or Room.

The Recycling Area or Room shall be available for use by persons residing or employed on the property, but shall be kept secured from unauthorized entry by the general public. No payment shall be made to persons depositing Recyclable Materials and no processing of Recyclable Materials shall be permitted, except for periodic loading of materials into a vehicle for removal from the site. The following requirements shall also apply:

(1) It shall be the responsibility of the property owner and lessee to supply and maintain Recycling Area(s) or Room(s) and Recycling Receptacles that are adequate for the collection of all Recyclable Materials generated by the use(s) occupying the site;

(2) The Recycling Area or Room shall comply with the following standards for minimum size:

(i) for multiple-family residential uses of 20 or less dwelling units, or commercial, industrial or institutional uses with a total floor area of less than 3,000 square feet, the minimum Recycling Area or Room shall be 30 square feet;

(ii) for multiple-family residential uses of 21 to 50 dwelling units, or commercial, industrial or institutional uses having a total floor area of 3,001 to 7,500 square feet, the minimum Recycling Area or Room shall be 60 square feet;

(iii) for multiple-family residential uses of 51 or more dwelling units, or commercial, industrial or institutional uses having a total floor area of greater than 7,500 square feet, the minimum Recycling Area or Room shall be 100 square feet;

(iv) every Recycling Area or Room shall contain a minimum vertical space of at least eight feet;

(3) The Recycling Area or Room shall be of adequate size for the collection of all Recyclable Materials generated by the use(s) occupying the site, without such materials overflowing the area or forcing significant amounts of Recyclable Materials to be discarded as general refuse, or the Department of Building and Safety shall determine the area to be inadequate and require a larger space, even if the area provided exceeds the minimum requirements listed in Subparagraph (2) above;

(4) To encourage active participation in recycling to the maximum extent possible, each property owner, manager, or lessee shall inform all tenants and/or employees living or working on the property of the availability and location of the Recycling Area(s) or Room(s), the types of materials that are collected for recycling, that the recycling collection facilities are located on the property pursuant to state law requiring the diversion of a substantial portion of solid waste;

(5) Each property owner or lessee shall contract with a recycler or hauler for the pick-up of Recyclable Materials, separate from trash collection, when receptacles are full or every week, whichever occurs first;

(6) No toxic or hazardous material shall be stored in Recycling Areas or Rooms recycling or receptacles;

(7) All Recyclable Materials shall be placed or stored in Recycling Receptacles. Paper products and other lightweight materials shall be immediately placed into covered Recycling Receptacles when they are dropped off;

(8) On a daily basis the Recycling Area or Room shall be kept free of litter, debris, spillage, bugs, rodents, odors, and other similar undesirable hazards;

(9) The Recycling Area or Room shall be clearly identified by one or more signs designating it for recycling collection and loading;

(10) The Recycling Area or Room shall be available for use by persons residing or employed on the property, but shall be kept secured from unauthorized entry by the general public;

(11) Recycling Areas or Rooms shall not diminish the required number of parking spaces or impair traffic flow;

(12) Recycling Areas or Rooms shall be placed alongside of trash areas or rooms wherever possible and shall comply with the following: **(Amended by Ord. No. 181,227, Eff. 9/1/10.)**

(i) Recycling Rooms shall comply with Section 91.6102 of this Code and must be equipped with an automatic sprinkler system pursuant to Section 57.304.2.2 of this Code.

(ii) outdoor Recycling Areas in commercial, industrial, or public facilities, or residential buildings having four or more living units shall be confined to the rear one-half of the lot and shall not exceed an area of 300 square feet.

(iii) outdoor Recycling Areas shall be completely enclosed by an eight-foot wall or chain link fence with wooden slates, concrete block, or similar construction (enclosure) with gates of the same height. No material shall exceed the height of the wall or fence. The enclosure shall be constructed with a concrete floor sloped to drain, and a water faucet for hose attachment shall be located adjacent to or within the enclosure. The enclosure shall be secured by a locking gate.

(iv) pursuant to Section 57.304.2.2 of the Code, outdoor Recycling Areas shall be located a minimum of 10 feet from any building or building opening except when located adjacent to a minimum one- hour wall and a minimum of 10 feet from any building opening.

20. Wireless Telecommunication Facilities (WTF) Standards. (Added by Ord. No. 174,132, Eff. 9/3/01.) Notwithstanding any provision of this Code to the contrary, the following standards shall apply to the placement of all wireless telecommunication facilities. These standards shall not apply to satellite dish antennae, radio and television transmitters and antennae incidental to residential use.

(a) General Requirements

(1) **Antenna Requirements.** The antenna on any monopole or support structure must meet the minimum siting distances to habitable structures required for compliance with Federal Communications Commission (FCC) regulations and standards governing the environmental effects of radio frequency emissions. The grouping of WTF on a site is encouraged where technically feasible. The footing of the antenna shall be structurally designed to support a monopole which is at least 15 feet higher than the monopole under review, while being within the applicable requirements of the height district, in order to allow a future wireless network to replace an existing monopole with a new monopole capable of supporting co-location.

If it is determined that additional height is necessary to support co-location, the Zoning Administrator is authorized to consider reasonable modifications to pole height, and the co-location of additional equipment within the 15 feet extension limit pursuant to Section 12.24 W.49. of this Chapter and Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

Monopoles, dishes and other antenna equipment not regulated by the Federal Aviation Administration (FAA) shall have a non-reflective finish to minimize the visibility of the structure and not be illuminated, unless required

by the FAA.

(2) **Antenna Setback**

(i) **Monopole setback.** Monopoles shall be designed at the minimum functional height. All monopoles shall be set back a distance equal to 20 percent of the height of the monopole, from all abutting streets, residential uses, and in all zones, or areas with access to the public, unless a qualified structural engineer specifies in writing that any collapse of the pole will occur within a lesser distance under all foreseeable circumstances.

The monopole shall be certified by a professional structural engineer licensed in the State of California to meet any structural standards for steel antenna towers and structures set in the Electronic Industries Association/ Telecommunications Industries Association Standards referenced as EIA/TIA-222-E and as amended. Monopoles shall meet the main building setback requirements of the underlying zone. The setback shall be sufficient to:

- a. provide for an adequate vegetative, topographic or other buffer as set forth in Subparagraph (5) (Screening) and (6) (Landscaping) of Paragraph (a) of this subsection;
- b. preserve the privacy of adjoining residential property; and
- c. protect adjoining property from the potential impact of pole failure.

(ii) **Attached or Roof Mounted Antenna Setback.** Roof mounted antennas shall be located at the greatest feasible distance from the edge of the building. Equipment facilities and antennas shall not extend more than ten feet above the highest point of the roof top, unless mounted on the walls of a penthouse.

(3) **Locating Antenna at Existing Sites.** An effort shall be made to locate new WTF on existing approved structures or sites, when feasible.

(4) **Visual impact.** The WTF shall be designed to have the least possible visual impact on the environment, taking into consideration technical, engineering, economic and other pertinent factors. Antennas clustered at the same site shall be of the same general height and facilities of the same design.

(5) **Screening**

(i) Ground, roof and pole mounted antennas shall be screened by fencing, buildings or parapets that appear to be an integral part of the building or landscaping so that not more than 25 percent of the combined tower structure and antenna height is visible from grade level of adjoining property and adjoining public rights- of-way.

(ii) Dish antennas shall not be light reflective or have any sign copy on them nor shall they be illuminated, unless required by the FAA.

(iii) Building mounted antennas shall be screened from view under most circumstances, if the antennas would otherwise be visible to adjacent properties and adjacent public rights- of-way.

Omni-directional antennas may not be required to be screened if it is demonstrated that the screening device would create a greater visual impact than the unscreened antennas.

The screening shall include parapets, walls or similar architectural elements provided that it is painted and textured to integrate with the architecture of the building.

As an alternative screening method, landscaping positioned on the premises to screen antennas from adjacent properties may be proposed in lieu of, or in combination with, architectural screening. Antennas shall be mounted on the parapet, penthouse wall or facade, building mounted antennas shall be painted and textured or otherwise architecturally integrated to match the existing building.

(iv) Support structure antennas shall be placed on premises to minimize visual impacts to adjacent non-industrial properties and adjacent public rights-of-way. Landscaping shall be positioned on the premises to minimize the visual impacts to adjacent non-industrial properties and adjacent public rights-of-way.

(v) Accessory equipment and associated equipment facilities shall be located either in an interior space in the existing building or in an attached or detached exterior building. Exterior equipment buildings constructed on premises shall be architecturally similar to the existing building or otherwise architecturally integrated.

(vi) Monopoles shall be of tapered design (e.g., three foot base to 1.5 foot top) with no climbing spikes.

Whenever possible, existing light standards in parking lots should be used with antennas above electroliers.

(6) **Landscaping and Maintenance.** Landscaping shall be required at the perimeter of the property which abuts streets, residential uses, and in all zones, or areas with access to the public as follows:

(i) For monopoles, a landscaped buffer area to soften the visual impact shall commence at the property line. At least one row of shrubs shall be spaced not more than three feet apart. Materials shall be of a variety which can be expected to grow to form a continuous hedge at least five feet in height within two years of planting. At least one row of trees or shrubs, not less than four feet in height at the time of planting, and spaced not more than 15 feet apart, also shall be provided. Appropriate irrigation and maintenance to sustain any required landscaping shall be required.

(ii) Pursuant to Section 12.24 W.49. of this Chapter and Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code, the decision-maker may allow use of an alternate detailed plan and specifications for landscaping and screening, including plantings, fences, walls, sign and structural applications, manufactured devices and other features designed to screen, camouflage and buffer antennas, poles and accessory uses. The antenna and supporting structure or monopole shall be of a design and treated with an architectural material so that it is camouflaged to resemble a tree with a single trunk and branches on its upper part, or shall be designed using other similar stealth techniques. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

(7) **Signal Interference.** Claims of interference with the operations of any business or residential use due to the operations of the facility shall be subject to correction by the permittee. Any claim shall be reviewed by a qualified, mutually agreeable third party who will test actual site conditions and propose mitigation of any interference determined to be due to the operation of the facility.

(8) **Time Limits.** All wireless telecommunication facilities shall be removed within 90 days of discontinuance of use.

(b) **Application Requirements Checklist for Discretionary Actions.** In addition to the submittal requirements prescribed for conditional use permits pursuant to Section 12.24 W.49. of this Chapter and Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code, an application for approval of a new, modified or additional wireless telecommunication facilities shall contain all of the following information: **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

(1) **Site Plan.** Site Plans or plot plans, drawn to scale, and elevation drawings, including “before” and “after” photographs specifying the location of antennas, support structures, power poles, utility boxes, transmission building and/or other accessory uses, access, parking, fences, signs, landscaped areas and adjacent land uses. A listing of the applicant’s existing wireless telecommunication facilities shall also be included. Plans and drawings shall demonstrate compliance with the siting distances of Subparagraph (1) (Antenna Requirements) and Subparagraph (2) (Antenna Setback) of Paragraph (a) of this subdivision.

(2) **Landscape and Irrigation Plan.** A Landscaping and Irrigation Plan, drawn to scale, and elevation drawings including “before” and “after” photographs indicating size, spacing and type of plantings required in Subparagraph (6) of Paragraph (a) (Landscaping), and indicating steps to be taken to provide screening as required in Subparagraph (5) of Paragraph (a) (Screening) to meet the visual impact standard of Subparagraph (4) of Paragraph (a) (Visual Impact) of this subdivision.

(3) **Structural Integrity Report.** A Structural Integrity Report from a professional engineer licensed in the State of California documenting the following:

(i) Tower height and design, including technical, engineering, economic, and other pertinent factors governing selection of the proposed design;

(ii) Total anticipated capacity of the structure, including number and types of antennas which can be accommodated;

(iii) Failure characteristics of the tower and demonstration that site and setbacks are of adequate size to contain debris in the event of failure; and

(iv) Specific design and reconstruction plans to allow shared use. (This submission is required only in the event that the applicant intends to share use of the facility by subsequent reinforcement and reconstruction of the WTF.)

(4) **FAA and FCC Coordination.** Statements regarding the regulations of the Federal Aviation Administration (FAA) and the Federal Communications Commission (FCC), respectively, that:

(i) (required only if the WTF is near an airfield) the application has not been found to be a hazard to air

navigation under Part 77, Federal Aviation, Federal Aviation Regulations, or a statement from the applicant that no compliance with Part 77 is required, and the reasons therefor; and/or

(ii) (required of all WTF applicants) the application complies with the regulations of the Federal Communications Commission, or a statement from the applicant that compliance is not necessary, and the reasons therefor.

(5) **Evidence of Co-location Efforts.** Evidence submitted to the Department of City Planning on those requiring discretionary review pursuant to Section 12.24 W.49. of this Code or to the Department of Building and Safety for those that are permitted by right prior to the issuance of a building permit, that an effort was made to locate on an existing WTF site including coverage/interference analysis and capacity analysis and a brief statement as to other reasons for success or no success, including a listing of alternative sites that were examined, as set forth in Subparagraph (3) Locating Antenna at Existing Sites) and Subparagraph (5) (Screening) of Paragraph (a) of this subdivision.

(6) **Existing Facilities Information.** A listing of addresses and type (i.e., monopole, antenna) of all WTF's within the City of Los Angeles which are operated by the applicant.

(7) **Coverage/Capacity Report (Propagation Study).** A coverage/ interference analysis and capacity analysis (also known as a propagation study) that the location and height of the antennas as proposed is necessary to meet the frequency re-use and spacing needs of the system and to provide adequate wireless telecom munication coverage and capacity to areas which cannot be adequately served by locating the antennas in a less restrictive zone or that an effort was made to locate on existing sites or towers, with no success.

(c) **Approval Criteria.** In addition to the findings for approval required pursuant to Section 12.24 W.49. of this Chapter and Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code, a Zoning Administrator may allow a new, modified or additional wireless telecommunication antenna or facility use based on additional findings that the following criteria are met: **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

(1) The site is of a size and shape sufficient to provide the following setbacks:

(i) For a monopole or tower, the tower setback requirements of Subparagraph (2) (Antenna Setback) of Paragraph (a) of this subdivision are met as to those portions of the property abutting the residential or public uses.

(ii) For all other towers or monopoles, the site shall be of sufficient size to provide the setback required in the underlying zone between the base of the tower, accessory structures and uses, and guy anchors, if any, to all abutting property lines.

(2) The required setbacks shall be improved to meet the screening and landscaping standards of Subparagraph (5) (Screening) and Subparagraph (6) (Landscaping) of Paragraph (a) of this subdivision to the extent possible within the area provided.

(3) The visual impact standard of Subparagraph (4) of Paragraph (a) of this subdivision is met; and

(4) An effort in good faith was made by the applicant to locate on existing sites or facilities in accordance with the guidelines of Subparagraph (3) (Locating Antenna at Existing Sites) of Paragraph (a) of this subdivision.

(d) **Variations from the Citywide Wireless Telecommunication Standards.** The Zoning Administrator shall have the authority to consider requests to vary from these standards pursuant to Section 12.24 W.49. of this Chapter and Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

21. Rooftop Wireless Telecommunications Facilities. (Added by Ord. No. 177,120, Eff. 12/26/05.) Notwithstanding Subdivision 20., above, wireless antennas, including the associated equipment cabinets, are permitted by right, including those within any geographic specific plan areas, when located on the rooftops of buildings in the C and M Zones. However, these wireless antennas and associated equipment cabinets are not permitted by right pursuant to this subdivision on the rooftops of buildings located within a scenic parkway specific plan, scenic corridor specific plan, a roadway designated as a scenic highway within a specific plan area; or buildings that are designated on the National Register of Historic Places, including Contributing Buildings in National Register Historic Districts, the California Register of Historic Resources, the City of Los Angeles List of Historic-Cultural Monuments, or a Contributing Structure located in an Historic Preservation Overlay Zone (HPOZ) that has been established pursuant to Section 12.20.3 of this Code. The following standards shall apply to wireless antennas and the associated equipment cabinets permitted by this subdivision:

(a) The antenna and any equipment cabinet are located on rooftops which are at least 40 feet in height above grade, provided the wireless antennas and associated equipment cabinets do not exceed any applicable height limit;

(b) The antenna and any equipment cabinet are enclosed on all sides, including the roof, with a fiberglass or similar covering material for screening approved by the Department of Building and Safety. Notwithstanding LAMC Section 12.03, the area under such enclosure shall not be considered floor area;

(c) The structure covering the antenna and any equipment cabinet is painted and textured to match the exterior walls of the building;

(d) The total of all the wireless antenna structures and associated equipment cabinets on a rooftop does not cover more than 10 percent of the total area of the roof; and

(e) The height of any wireless antenna structures and associated equipment cabinets is limited to ten feet above the highest point of the rooftop, as measured from immediately adjacent to the rooftop surface where the wireless antenna structures and associated equipment cabinets are located unless mounted on the walls of a penthouse, in which case the wireless antenna structures and associated equipment cabinets shall not exceed the height of the penthouse; and

(f) Prior to issuance of any building permit authorizing the rooftop installation of a wireless antenna structure and associated equipment cabinets, the permit applicant shall provide the Department of Building and Safety with evidence that the council district office where the site of the proposed installation is located has been given a 20-day written notice prior to the issuance of such permit. This notification shall contain the name and address of the building permit applicant and the property address of the proposed installation and the approximate date of start of installation. This notification shall be by certified mail, return receipt requested.

Wireless antennas and rooftop equipment cabinets which do not meet these standards shall require a conditional use permit pursuant to Section 12.24 W.49. of this Chapter and Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

22. Cargo Container Storage Yard. (Added by Ord. No. 177,244, Eff. 2/18/06.) Cargo container storage yards may be permitted by right in the M3 Zone. The following standards shall apply to all cargo container storage yards, except those located in whole or in part within the boundaries of the Port of Los Angeles Community Plan Area.

(a) The following provisions apply to the stacking of cargo containers:

(1) The stacking of cargo containers more than 20 feet high shall only be permitted if a structural analysis done by a licensed engineer or architect in the State of California is submitted to and approved by the Los Angeles Department of Building and Safety (LADBS).

(2) Cargo container stacking within 300 feet or less of a residential zone shall be limited to a maximum height of 30 feet. There is no maximum container height limit beyond 300 feet of a residential zone, except as limited by any applicable height limitation and Paragraph (h)(1) below.

(b) Cargo container storage yards shall obtain a “use of land” permit from LADBS for one or more contiguous lots maintained as one site.

(c) The perimeter of each site with a separate “use of land” permit shall be enclosed by a minimum eight-foot high fence or wall.

(1) Fencing may be constructed of chain-link, however fencing adjacent to a Class I or II Major Highway shall also comply with Paragraph (h)(3) below; and

(2) Fencing shall be maintained in good condition and appearance. All walls, fences and other structures shall be maintained free of graffiti; and

(3) Sheet metal shall be prohibited as a fencing material; and

(4) There shall be no requirement to fence each individual lot where multiple lots are maintained as one site under a valid “use of land” permit, including individual lots that may be separated by a public right- of-way, easement or other land occupied by a revocable permit.

(d) The entire site shall be graded pursuant to Chapter IX of this Code.

(e) All driveways, access ways and parking areas shall be covered with a decomposed granite, crushed gravel or similar material and be treated with dust control methods.

(f) An annual site inspection shall be conducted by LADBS pursuant to Section 12.26 F. of this Code.

(g) All containers must be empty and cleaned of any residue which may pose any kind of physical or health risk.

(h) In addition to the above specified requirements, the following conditions shall also apply to sites that are located

adjacent to a Class I or II Major Highway. However, for those portions of the site that are separated from the roadway by a grade change of more than ten feet within five feet of the property line, Subparagraphs (2) and (3) of this paragraph shall not apply:

(1) Cargo container stacking shall be limited to a maximum height of 20 feet within 20 feet of the property line adjoining a Class I or II Major Highway. There is no maximum cargo container height limit beyond 20 feet of a Class I or II Major Highway, except as limited by Paragraph (a) above.

(2) A minimum five foot setback shall be provided along the street frontage adjacent to a Class I or II Major Highway. The setback shall be fully landscaped with drought resistant plants, ground cover and trees; with one minimum 15-gallon size tree planted for each 15 linear feet of street frontage and minimum three shrubs for each tree. The entire landscaped area shall be well maintained at all times.

(3) A solid wall or fence shall be required on the street frontage adjacent to a Class I or II Major Highway. The wall or fence shall be located within the required setback, and at the rear of the landscaped area between the landscaping and the use. A chain-link fence with slats and growing vines may be permitted in place of a solid wall or fence.

23. Regulation of Collection Bins. (Added by Ord. No. 187,248, Eff. 12/13/21.)

(a) **Purpose.** The purpose of this section is to establish operational, aesthetic, and maintenance standards to ensure the placement of a Collection Bin does not negatively impact public health, safety, or welfare.

(b) **Permit Required for Collection Bin.** It shall be unlawful to place, operate, maintain or allow a Collection Bin to remain on any lot unless a building permit for a use of land and a currently valid certificate of occupancy for the Collection Bin are first obtained from the Department of Building and Safety; or if the certificate of occupancy for the Collection Bin has been revoked pursuant to LAMC Section 12.26 F.4. Each Collection Bin shall require a separate building permit and certificate of occupancy. No building permit or certificate of occupancy shall be issued for a Collection Bin on a lot that has received two or more Orders to Comply for violating the provisions of this subdivision.

(c) Location of Permitted Collection Bins.

(1) Collection Bins shall only be located on lots in commercial zones that contain at least one operating business.

(2) Collection Bins shall not be located:

(i) Within 20 feet of any public right-of-way.

(ii) Within 10 feet of any lot line adjoining another lot.

(iii) Within 100 feet of any A- or R-zoned lot.

(iv) Within any required landscaped area.

(v) Within any area that will reduce the number or size of, or impede access to, any required parking spaces on the lot on which the Collection Bin is located.

(vi) Within any area that will impede access to, or be located within, a trash enclosure area.

(vii) Within any area that will impair the functioning of exhaust, ventilation, or fire extinguishing systems.

(3) No more than one Collection Bin shall be located on any lot.

(d) Permit Requirements.

(1) When applying for a Collection Bin permit in accordance with LAMC Section 91.106.3 et seq., the applicant must submit the following information to the Department of Building and Safety in an affidavit signed under penalty of perjury:

(i) The Collection Bin operator's contact information, including name, address, email, website (if available), and telephone number.

(ii) A certification that the Collection Bin will operate with a valid Business Tax Registration Certificate in the Collection Bin operator's name or reason for exemption issued by the City of Los Angeles.

(iii) If the operator holds itself out as a non-profit organization, a statement that it meets the definition

of nonprofit organization in Section 501(c)(3) of the United States Internal Revenue Code or Section 150(c) of the California Welfare and Institutions Code.

(iv) If the operator holds itself out as a for-profit organization, a statement that it holds a valid Certificate of Good Standing issued by the California Secretary of State.

(v) If the operator and the owner of the lot on which the Collection Bin will be located are the same person or entity, written acknowledgment that the operator understands that they are liable for violations of this subdivision. If the operator and the owner of the lot on which the Collection Bin will be located are different persons or entities, written acknowledgment signed by both parties that both understand that they are jointly and severally liable for violations of this subdivision.

(vi) The applicant shall record the affidavit with the Office of the County Recorder.

(2) The applicant shall also submit the following information with each application for a Collection Bin:

(i) A site plan identifying the following:

- a. Boundaries of the lot on which the Collection Bin will be located.
- b. Location of all buildings on the lot.
- c. Proposed Collection Bin location.
- d. Distance from the proposed Collection Bin to the lot lines and to the nearest buildings on the lot.
- e. Locations and dimensions of all existing and proposed driveways, landscaped areas, easements, and parking spaces on the lot.

(ii) Elevations showing the height, width, depth, and general appearance of the Collection Bin, and the materials of which the Collection Bin is fabricated.

(iii) Any other reasonable information regarding time, place, and manner of the operation, location, and/or maintenance of the proposed Collection Bin that the Superintendent of Building of the Department of Building and Safety or the Superintendent of Building's designee requires to evaluate the proposed Collection Bin consistent with the requirements of this subdivision.

(3) The site plan shall also contain the signature of the operator, and the lot owner or a legally authorized representative thereof if the operator and lot owner are different persons or entities, attesting under penalty of perjury that the information contained in the site plan is true, correct, and complete.

(e) **City Council Office Notification.** Upon acceptance of a building permit application for a Collection Bin, the Department of Building and Safety shall forward a copy of the application to the City Council office for the Council District in which the Collection Bin will be located.

(f) **Structure, Materials, Dimensions, and Identification.**

(1) The exterior of each Collection Bin shall conspicuously display the following official required information using lettering at least one inch high. Printed or otherwise displayed information at each side of the bin shall comply with the size limitations for Information Signs set forth in Section 14.4.7 of the LAMC and shall be exempt from sign permit regulations set forth in Section 91.6201.2 LAMC.

(i) "OFFICIAL REQUIRED INFORMATION OF THE CITY OF LOS ANGELES SHALL NOT BE DEFACED:"

(ii) Collection Bin operator's name, address, and telephone number as stated in the Collection Bin operator's current Business Tax Registration Certificate.

(iii) Lot owner's name.

(iv) Address of the lot.

(v) "Any person that wishes to register a complaint regarding this Collection Bin with the Department of Building and Safety may call the 3-1-1 telephone line for further information."

(vi) "Only the following types of donations may be placed in this Collection Bin: clothing, books, shoes, and household items."

(vii) “Recyclable materials not intended for re-use shall not be placed in this Collection Bin. This includes, but is not limited to, newspapers, plastic, glass, aluminum, electronics, toxic or hazardous materials, and solid waste. No donations, trash, or any other items shall be placed outside of this Collection Bin.”

(viii) “The operator of this Collection Bin shall ensure that all items left in the Collection Bin are regularly collected by the 1st and 15th day of each month.”

(ix) The types of articles accepted in the Collection Bin (e.g., “CLOTHING, BOOKS, SHOES AND HOUSEHOLD ITEMS ONLY”).

(4) Each Collection Bin shall comply with all State law informational requirements for Collection Bins, including but not limited to those set forth in Welfare and Institutions Code, Sections 150 through 153. If these or any other State law informational requirements conflict with any informational requirements set forth in this subdivision, the State law informational requirements shall take precedence.

(5) No Collection Bin shall exceed dimensions of 82 inches in height, 50 inches in depth, and 60 inches in width.

(6) In order to prevent unauthorized access to the Collection Bin and theft of donations, a tamper-resistant locking mechanism shall secure the opening of the Collection Bin.

(7) The Collection Bin shall be fabricated of durable noncombustible, and waterproof materials.

(8) Notwithstanding any other provisions of this Code to the contrary, the Collection Bin shall be located upon ground that is paved with Portland cement at least 3 inches thick. The cement shall extend over the entire area and extend not less than 24 inches beyond the face of the Collection Bin where the collection opening is located. The Collection Bin shall be anchored to the ground in a manner approved by the Department of Building and Safety.

(g) **Maintenance.** Collection Bins shall be emptied in accordance with their posted pick-up schedule, and the area surrounding the Collection Bin shall be maintained free of overflow of donated items, litter, debris, dumped materials, posted bills, and graffiti at all times.

(h) **Lighting.** Collection bins shall be illuminated between sunset and sunrise by a light source providing at least 1 foot candle of light.

(i) **Annual Inspections.** The Department of Building and Safety shall conduct annual inspections of permitted Collection Bins, and collect annual inspection fees, pursuant to LAMC Section 12.26 F.3.

24. Outdoor Dining Area Regulations for Restaurants (Al Fresco Ordinance). (Added by Ord. No. 188,073, Eff. 1/31/24.)

(a) **Purpose.** The purpose of this section is to establish eligibility, development, and operational standards to facilitate Outdoor Dining Areas to support public health, safety, and welfare.

(b) **Applicability.** Outdoor Dining Areas on private property in all RAS, C, and M zones, or wherever restaurants are allowed, shall be permitted pursuant to the regulations in this Subsection. This ordinance and the Outdoor Dining Area standards expressed herein may, at the applicant’s request, supersede conditions associated with outdoor dining which were previously applied under a discretionary approval.

(c) **Eligibility.** A restaurant that currently provides and/or proposes to offer Outdoor Dining Areas shall have all necessary permits, including a certificate of occupancy, to operate a restaurant. A restaurant operator, however, that has been the subject of a wage claim under LAMC Section 188.00, et seq. (Los Angeles Office of Wage Standards Ordinance) that has resulted in an adverse order, decision, or award shall be ineligible.

(1) **Hazardous Site Assessment.** If the Outdoor Dining Area involves soil disturbance on land that is a known hazardous materials release site listed on the Hazardous Waste and Substances Sites Cortese List, the operator shall prepare a Phase I Environmental Site Assessment (ESA) and, if needed, a Phase II ESA and shall comply with any necessary remediation(s). A “No Further Action” letter, or some other comparable documentation issued by the appropriate regulatory agency shall be required in order for the restaurant operator to be eligible for the Al Fresco Program.

(2) **Historic-Cultural Monument (HCM) and Historic Preservation Overlay Zones.** Properties that have either been designated as an HCM, pursuant to LAAC Section 22.171 (Cultural Heritage Ordinance), or are located within a Historic Preservation Overlay Zones, pursuant to LAMC Section 12.20.3 (HPOZ Ordinance) may be eligible for the Al Fresco Ordinance, but shall be required to comply with the requirements and processes set forth in the Cultural Heritage Ordinance and the HPOZ Ordinance.

(d) Outdoor Dining Area Standards.

(1) Development Standards, Operational Requirements and Prohibitions.

- (i) The Outdoor Dining Area shall have an enclosure of no more than 75 percent, except that:
 - a. Moveable, non-permanent delineators are exempt from counting towards the maximum enclosure.
 - b. The Outdoor Dining Area may have an enclosure of up to 100 percent if the roof coverage is no more than 25 percent.
- (ii) Background music and speakers are prohibited in Outdoor Dining Areas.
- (iii) Television monitors and other similar audiovisual devices are prohibited in Outdoor Dining Areas.
- (iv) Live music, live entertainment including but not limited to disc jockeys, karaoke, dancing, pool tables, billiard tables, and adult entertainment uses are prohibited in Outdoor Dining Areas.
- (v) An Outdoor Dining Area shall operate no later than 10:30 p.m. on Sundays through Thursdays and no later than 11:00 p.m. on Fridays and Saturdays, if abutting or across an alley from a residential zone, not including the RAS zone. If the Outdoor Dining Area is not abutting or across an alley from a residential zone, then the Outdoor Dining Area is subject to any applicable hours limitation imposed by law, discretionary action, or previously issued permit.
- (vi) Notwithstanding any provisions to the contrary, the noise levels of the Outdoor Dining Area shall not exceed the standards set forth in the Noise Ordinance (Ordinance No. 156,363).
- (vii) Outdoor Dining Areas shall be cleaned nightly and adjoining sidewalk areas shall be kept free of debris, litter, and graffiti.
- (viii) A City-issued identification shall be posted in the Outdoor Dining Area and made clearly visible to the public, indicating that the area is subject to the standards of the Al Fresco Ordinance. The identification shall include the City's MyLA311 portal as the contact information for complaints or concerns regarding the operation of the Outdoor Dining Area during regular business hours. A hotline phone number and contact information for LADBS shall be provided for complaints or concerns regarding the operation of the Outdoor Dining Area that occur after business hours. A telephone number of the restaurant operator or manager shall be provided for complaints or concerns regarding the operation of the Outdoor Dining Area.
- (ix) A sign reminding guests to be respectful of surrounding neighbors shall be posted in the Outdoor Dining Area.

(2) Parking Relief Allowance. When an Outdoor Dining Area is located in a building's parking area, automobile parking spaces may be replaced by an Outdoor Dining Area, except that at least one automobile parking space must be provided, subject to the following exemptions:

- (i) The primary restaurant contains 3,000 square feet or less of floor area;
- (ii) The Outdoor Dining Area is 1,000 square feet or less; or,
- (iii) As otherwise prohibited by state or federal law.

(3) Alcohol Service Standards.

- (i) In addition to all the standards listed above in LAMC Section 12.21 A.24.(d)(1) and (2), all of the following standards apply when alcohol service is provided in an Outdoor Dining Area on private property pursuant to the administrative alcohol authorization process in LAMC Section 12.21 A.24.(e) below:
 - a. All alcohol shall be delivered to and served at tables by employees.
 - b. All patrons shall be seated.
 - c. Only fixed or portable bars not used as a point of sale are permitted in an Outdoor Dining Area.
- (ii) When a revocable permit is issued for outdoor dining in the public right-of-way and alcohol service

is proposed pursuant to the administrative alcohol authorization process in LAMC Section 12.21 A.24.(e) below, all the following standards apply:

- a. All alcohol shall be delivered to and served at tables by employees.
- b. All patrons shall be seated.
- c. Only fixed or portable bars not used as a point of sale are permitted in an Outdoor Dining Area.

(e) Administration.

(1) **Alcohol Authorizations.** Notwithstanding the provisions of LAMC Section 12.24 W.1., modifications or expansions of alcohol service for an Outdoor Dining Area may be authorized pursuant to this Subsection through an administrative verification process. No fee shall be charged for administrative verification of AI Fresco deemed approved status. Deemed approved status must be obtained within six months of the expiration of the previously-issued temporary authorization (LA AI Fresco authorization).

(i) Restaurants shall be considered deemed approved and authorized to continue operations in compliance with the standards listed above in LAMC Section 12.21 A.24.(d) if the restaurant operator continually meets all the following eligibility criteria:

- a. Have a valid LA AI Fresco authorization issued or renewed as of the effective date of this Ordinance that has not been previously revoked for violations;
- b. Have a valid approval for alcohol service from the Department of City Planning or have existing alcohol sales with no conditional use approval prior to March 1, 1977; and
- c. Have a license to sell alcohol from the California Department of Alcoholic Beverage Control; and
- d. Is not subject to any of the enforcement mechanisms set forth in Paragraph (f) that, upon further investigation by the City, result in a citation, the imposition of fines or penalties, or revocation.

(ii) Restaurants that did not receive deemed approved status shall be authorized to serve alcohol in Outdoor Dining Areas pursuant to an Expanded Outdoor Dining Area clearance issued pursuant to this section, in compliance with the standards listed above in LAMC Section 12.21 A.24.(d) if the restaurant operator continually meets the all the following eligibility criteria:

- a. The “Building Permit Clearance - Minor” fee, pursuant to LAMC Section 19.04 of this Code, shall be paid prior to the issuance of an Expanded Outdoor Dining Area clearance.
- b. Have a valid approval for alcohol service from the Department of City Planning or have existing alcohol sales with no conditional use approval prior to March 1, 1977;
- c. Have a license to sell alcohol from the California Department of Alcoholic Beverage Control; and
- d. Is not subject to any of the enforcement mechanisms set forth in Paragraph (f) that, upon further investigation by the City, result in a citation, the imposition of fines or penalties, or revocation.

(2) Waiver.

(i) Relief from the Outdoor Dining Area enclosure standard in LAMC Section 12.21 A.24.(d)(1)(i) may be requested through the approval of plans on the original discretionary entitlement pursuant to LAMC Section 12.24 M. If there is no original discretionary entitlement, relief may be requested through a Conditional Use Permit pursuant to LAMC Section 12.24 W.32.

(ii) Relief from the Outdoor Dining Area background music and speakers prohibition in LAMC Section 12.21 A.24.(d)(1)(ii) may be requested through a Conditional Use Permit pursuant to LAMC Section 12.24 W.32.

(f) Enforcement.

(1) Failure to comply with any of the regulations and standards set forth herein shall constitute a violation of the AI Fresco Ordinance and may result in a citation, Administrative Citation, Orders to Comply and/or other

available enforcement mechanisms identified herein or in the LAMC.

(2) The City shall have the authority to conduct inspections, consistent with LAMC Section 98.0105, to verify compliance with all of the requirements prescribed in LAMC Section 12.21 A.24. The owner and restaurant operator shall be notified of the deficiency or violation and shall be required to timely correct and eliminate the deficiency or violation.

(3) Enforcement of the requirements pursuant to LAMC Section 12.21 A.24. is not exhaustive and the City may pursue other remedies.

(4) **Citations and/or Orders to Comply.** A citation for violating LAMC Section 12.21 A.24. shall include, but is not limited to, Administrative Citations and/or Notice to Appear Citations issued by the Los Angeles Police Department, and Orders to Comply and/or Notices of Violation issued by the Department of Building and Safety.

(5) **Administrative Process Applicable to Administrative Citations.** Unless otherwise specified herein, all Administrative Citations issued for violations of LAMC Section 12.21 A.24. shall be subject to the provisions set forth in Article 1.2 of Chapter I of this Code, including, but not limited to, an administrative hearing and appeal process as set forth in LAMC Section 11.2.01, et seq., and the City's authority to use any civil remedy available to collect any unpaid administrative fine.

(6) **Revocation of Outdoor Dining Areas.**

(i) **Definitions.** As used in this subsection, the following terms are defined as follows:

a. **BOARD.** The Board of Building and Safety Commissioners.

b. **DEPARTMENT.** The Los Angeles Department of Building and Safety.

c. **SUPERINTENDENT.** The Superintendent of Building or the Superintendent's authorized representative.

(ii) **Applicability.** The provisions of this subsection shall apply to every Outdoor Dining Area operating pursuant to LAMC Section 12.21 A.24. with a valid Certificate of Occupancy and a valid permit.

(iii) **Revocation Proceedings Resulting from Citations and Other Enforcement Mechanisms.** Regardless of any previous corrective actions or payments of fines and fees, any combination of four or more Notice to Appear Citations, Orders to Comply, Notices of Violation or Administrative Citations issued by Los Angeles Police Department, Department of Building and Safety or other City Departments for any violation under LAMC Section 12.21 A.24. or the Noise Ordinance may result in revocation proceedings for any Certificate of Occupancy or permits, or both, issued to authorize an Outdoor Dining Area pursuant to LAMC Section 12.21 A.24. The revocation proceedings shall be commenced by issuance of a Notice of Intent to Revoke ("Notice"), which shall be sent to the owner of the property and the restaurant operator of the Outdoor Dining Area. The Notice shall state the following:

a. The date and place of the revocation hearing, which shall be scheduled at least 15 days and not more than 90 days from the date of issuance of the Notice.

b. A list of all violations under LAMC Section 12.21 A.24. or the Noise Ordinance for which a Notice to Appear Citation, Order to Comply, Notice of Violation, or Administrative Citation was issued by Los Angeles Police Department, Department of Building and Safety or other City Department.

c. Copies of all Notice to Appear Citations, Orders to Comply, Notices of Violation and Administrative Citations related to these violations, unless the copies were previously furnished to the owner or restaurant operator.

d. The owner or restaurant operator is entitled to be represented by legal counsel at any revocation hearing.

(iv) **Revocation Hearing.** On the date specified in the Notice, a revocation hearing shall be held before the Board. The Board shall determine whether the Certificate of Occupancy or permit, or both, shall be revoked. Revocation shall be ordered by the Board for multiple violations of LAMC Section 12.21 A.24. or the Noise Ordinance, four or more Notice to Appear Citations, Orders to Comply, or Notice of Violation or Administrative Citations issued to the property owner of record or restaurant operator by the Los Angeles Police Department, the Department of Building and Safety or any other City Department.

(v) In making its determination, the Board may hear from the owner, restaurant operator, or other interested party. The determination of the Board is final.

(vi) **Reversion of Uses.** Upon the Board's determination to revoke any Certificate of Occupancy or permits issued to authorize an Outdoor Dining Area, the Board may order the owner or restaurant operator to obtain all necessary permits to remove all improvements in the Outdoor Dining Area. The Board may also order the restaurant operator to obtain all necessary permits to restore the use and condition that existed prior to the development of the Outdoor Dining Area or convert the Outdoor Dining Area to a conforming use.

(vii) **Permits Suspension Period.** The Board may determine that no new Certificate of Occupancy or permits authorizing an Outdoor Dining Area shall be issued for a period of up to 12 consecutive months, as counted from the date the revocation determination is made by the Board.

(viii) Each violation of the Code and each day of operation without a Certificate of Occupancy or a building permit is a misdemeanor.

(7) **Criminal and Other Remedies Available.** Any violation of LAMC Section 12.21 A.24. may be prosecuted as a misdemeanor. In cases where the City Attorney elects to criminally prosecute a violation, the defendant shall be subject to all applicable penalties authorized by LAMC Section 11.00(m), and not the administrative fines authorized by this section.

(g) **Relationship to Other Zoning Provisions.** An Outdoor Dining Area shall not be considered a project nor require any design review procedures under any Specific Plan, Supplemental Use District, or other overlay, except for Historic Preservation Overlay Zones (HPOZs) pursuant to LAMC Section 12.20.3, including but not limited to the Ordinances listed by number below. Furthermore, the Outdoor Dining Area Standards in LAMC Section 12.21 A.24.(d) shall prevail and supersede any conflicting provisions found in any Specific Plans, Supplemental Use Districts, or other overlays, except HPOZs, or Chapter I of this Code.

- (1) 171,139 (Alameda District Specific Plan)
- (2) 174,663 (Avenue 57 Transit Oriented District)
- (3) 182,576 (Bunker Hill Specific Plan)
- (4) 156,122 (Century City North Specific Plan)
- (5) 186,370 (Century City West Specific Plan)
- (6) 168,862 (Century City South Specific Plan)
- (7) 170,046 (Coastal Bluffs Specific Plan)
- (8) 186,105 (Coastal Transportation Corridor Specific Plan)
- (9) 185,042 (Coliseum District Specific Plan)
- (10) 178,098 (Colorado Boulevard Specific Plan)
- (11) 182,617 (Cornfield Arroyo Seco Specific Plan)
- (12) 184,795 (Crenshaw Corridor Specific Plan)
- (13) 168,937 (Devonshire/Topanga Corridor Specific Plan)
- (14) 186,402 (Exposition Corridor Transit Neighborhood Plan)
- (15) 170,694 (Foothill Boulevard Corridor Specific Plan)
- (16) 171,946 (Glencoe/Maxella Specific Plan)
- (17) 184,296 (Granada Hills Specific Plan)
- (18) 168,121 (Hollywoodland Specific Plan)
- (19) 184,346 (Jordan Downs Urban Village Specific Plan)
- (20) 167,940 (Los Angeles Airport/EI Segundo Dunes Specific Plan)
- (21) 185,164 (Los Angeles International Airport (LAX) Specific Plan)

- (22) 181,334 (Los Angeles Sports and Entertainment District Specific Plan)
- (23) 181,605 (Loyola Marymount University Specific Plan)
- (24) 167,943 (Mulholland Scenic Parkway Specific Plan)
- (25) 171,128 (North University Park Hills Specific Plan)
- (26) 163,202 (North Westwood Village Specific Plan)
- (27) 170,155 (Oxford Triangle Specific Plan)
- (28) 184,371 (Pacific Palisades Commercial Village and Neighborhood Specific Plan)
- (29) 184,539 (Paramount Pictures Specific Plan)
- (30) 162,530 (Park Mile Specific Plan)
- (31) 165,638 (Playa Vista Area B Specific Plan)
- (32) 165,639 (Playa Vista Area C Specific Plan)
- (33) 176,235 (Playa Vista Area D Specific Plan)
- (34) 180,083 (Porter Ranch Land Use / Transportation Specific Plan)
- (35) 175,736 (San Gabriel / Verdugo Mountains Scenic Preservation Specific Plan)
- (36) 166,352 (San Pedro Specific Plan)
- (37) 173,381 (San Vicente Scenic Corridor Specific Plan)
- (38) 182,343 (University of Southern California University Park Campus Specific Plan)
- (39) 168,613 (Valley Village Specific Plan)
- (40) 175,693 (Venice Coastal Zone Specific Plan)
- (41) 174,052 (Ventura-Cahuenga Boulevard Corridor Specific Plan)
- (42) 173,749 (Vermont/Western Transit Oriented District Specific Plan (Station Neighborhood Area Plan))
- (43) 182,766 (Warner Center 2035 Plan)
- (44) 186,108 (West Los Angeles Transportation Improvement and Mitigation Specific Plan)
- (45) 187,644 (Westwood Village Specific Plan, Westwood Community Design Review Board Specific Plan)
- (46) 155,044 (Wilshire - Westwood Scenic Corridor Specific Plan)
- (47) 185,539 (San Pedro CPIO District)
- (48) 185,927 (South Los Angeles CPIO District)
- (49) 185,925 (Southeast Los Angeles CPIO District)
- (50) 184,268 (Sylmar CPIO District)
- (51) 184,794 (West Adams-Baldwin Hills-Leimert CPIO District)
- (52) 187,155 (Westchester - Playa del Rey CPIO District)
- (53) 180,871 (Broadway Theater and Entertainment District Design Guide)
- (54) 174,519 (Canoga Park-Commercial Corridor CDO District)
- (55) 108,561 (Cypress Park & Glassell Park CDO)

- (56) 173,508 (Downtown Canoga Park CDO District)
- (57) 179,907 (Downtown Westchester CDO District)
- (58) 180,880 (Echo Park CDO District)
- (59) 178,157 (Fletcher Square CDO District)
- (60) 179,906 (Lincoln Boulevard CDO District)
- (61) 176,658 (Lincoln Heights CDO District)
- (62) 183,011 (Little Tokyo CDO District)
- (63) 180,797 (Loyola Village CDO District)
- (64) 176,331 (Miracle Mile CDO District)
- (65) 175,545 (Pacoima CDO District)
- (66) 175,549 (Panorama City CDO)
- (67) 176,557 (Reseda Central Business District CDO District)
- (68) 174,398 (Sun Valley CDO District)
- (69) 184,366 (Toluca Lake Village CDO)
- (70) 174,420 (Van Nuys Central Business District CDO District)
- (71) 174,161 (West Wilshire Boulevard CDO District)
- (72) 173,676 (Atwater Village POD)
- (73) 171,859 (Westwood/Pico NOD)
- (74) 174,260 (Westwood Boulevard POD)

B. (None)

C. Area

1. Area Regulation – (Exceptions are provided for in Sec. 12.22 C.)

(a) No building or structure shall be erected or maintained and no existing building shall be enlarged, moved or maintained unless all the area regulations are complied with for the zone in which they are located.

A zoning law which prescribes a minimum area for residential lots is valid and constitutional and is not objectionable upon retroactive grounds in destroying the owner's vested property rights, but it looks only to the future in guiding a pattern of home development in the enhancement of the public interest, and a sale of a piece of property which contains less than the minimum area is voidable.

Clemons v. City of Los Angeles, 36 Cal. 2d 95.

A sale of property in violation of the ordinance is voidable at the instance of the buyer.

Harland v. Noto, 105 Cal. App. 2d 740, 743.

Border v. McClung, 93 Cal. App. 2d 692.

(b) No required yard or other open space around an existing building, or which is hereafter provided around any building for the purpose of complying with the provisions of this article, shall be considered as providing a yard or open space for any other building, nor shall any yard or any other required open space on an adjoining lot be considered as providing a yard or open space on a lot wherein a building is to be erected or established.

No required yard or other open space around a building shall be located and maintained on property which is in a more restrictive zone than that of the property on which such building is located; except that where a lot is partly in the P zone and partly in a C or M zone, any P zone may be used to meet any yard requirements of the C or M zone, provided the front yard conforms to the requirements of Section 12.21 C.1.(g) and all unpaved areas of such yards are suitably landscaped. The relationship between the more restrictive and less restrictive zones shall be determined by the sequence of zones set

forth in Section 12.23 B.1.(c). **(Amended by Ord. No. 151,599, Eff. 11/25/78.)**

(c) Except in the RZ Zone, every main building shall be located and maintained on a “lot” or “air space lot” as defined in this article, and all parts of such building shall be connected in a substantial manner by common walls or a continuous roof. In the RZ Zone a main building may be located on not more than five lots. There may not be more than one such building on a lot in the RA, RE, RS, R1, RU, RMP, or RW1 Zones, or on a group of lots in the RZ Zone. **(Amended by Ord. No. 164,904, Eff. 7/6/89.)**

Provided, however, there may be more than one main residential building on a lot in the RW2 Zone, but there shall be no more than one main residential building for each 2,300 square feet of lot area.

(d) **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)** No building or structure shall be erected or maintained on a lot which abuts a street having only a portion of its required width where no part of the street would normally revert to the lot if vacated, or which lot is separated from the a street by only a future street, unless the yards provided and maintained adjacent to the street in connection with the building or structure have a width or depth, which includes the portion of the lot needed to complete the required width of the street, plus the width or depth of the yards required on the lot by other provisions of this article. Where a future street intervenes between the lot and the street, the yards shall be determined as though the lot abutted directly on the future street. In no case, shall this regulation be applied so as to reduce the buildable width of a corner lot to less than 40 feet.

The City Planning Commission, upon request pursuant to Sec. 13B.2.3. (Class 3 Conditional Use Permit) of Chapter 1A of this Code, shall determine a required street width. The determination shall be based upon the standards for street widths contained in the subdivision regulations of the City, the prevailing widths of streets in the immediate, surrounding area, with due consideration given to any particular topographical or geological conditions or sizes of ownership affecting the property involved. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

(e) On any lot of less than one acre in an “RA” or “R” Zone which was of record or held in separate ownership on June 1, 1946, or was subsequently created either by the recording of a division of land map or otherwise in accordance with the applicable zoning regulations, the originally required front yard shall be provided and maintained on such lot in addition to any new front yard required by any subsequent rearrangement of the lot lines by sale or division (without recording a subdivision map) creating a new lot fronting on a different street than that on which said original lot fronted. **(Amended by Ord. No. 140,717, Eff. 8/12/70.)**

(f) No accessory building shall be structurally altered, converted, enlarged or maintained for the purpose of providing living quarters or dwelling units unless such accessory building and all enlargements thereof are made to conform to all the regulations of this article for new buildings.

(g) **(Amended by Ord. No. 173,492, Eff. 10/10/00.)** Every required front, side and rear yard shall be open and unobstructed from the ground to the sky, except for those projections permitted by Sections 12.08.5, 12.09.5 and 12.22.

No automobile parking space shall be provided or maintained within a required front yard. Except where a lot is developed with a building meeting the requirements of Section 12.08.3 B.1., not more than 50 percent of a required front yard shall be designed, improved or used for access driveways.

All portions of the required front yard of one-family dwellings, two-family dwellings, multiple dwellings or group dwellings, apartment houses, hotels, motels, apartment hotels and retirement hotels in the RE, RS, R1, RU, RZ, R2, RD, R3, RAS3, R4, RAS4, R5, or C Zones not used for necessary driveways and walkways, including decorative walkways, shall be used for planting, and shall not otherwise be paved. The planted area in the RD, R3, RAS3, R4, RAS4, R5, or C Zones shall be planted in accordance with a landscape plan prepared by a licensed landscape architect, licensed architect, or landscape contractor to the satisfaction of the Department of City Planning. The planted area shall include at least one tree, which shall be at least 15 gallon in size and at least six feet in height at the time of planting, for each 500 square feet of planted area and shall be equipped with an automatic irrigation system, which shall be properly maintained. **(Amended by Ord. No. 179,191, Eff. 11/5/07.)**

A fee pursuant to Section 19.01 I. shall be paid to the Department of City Planning for the checking of landscape plans, pursuant to this paragraph. However, the fee shall be waived if any other fee has been paid for checking of landscape plans for the same property.

No swimming pool, fish pond or other body of water which is designed or used to contain water 18 inches or more in depth shall be permitted in any required yard space in which fences over 3-1/2 feet in height are prohibited, even though the pool, pond or body of water extends below the adjacent natural ground level.

(h) At each end of a through lot there shall be a front yard of the depth required by this article for the zone in which each street frontage is located, except that only one front yard need be provided on those through lots which abut on a primary, major or secondary highway, as such highways are shown on the “ **(Amended by Ord. No. 141,821, Eff. 5/24/71.)**

Where a through lot is less than 150 feet in depth or is developed as a single building site, and the two required front

yards are provided, no rear yard is required.

(i) No required yard or other open space around an existing building shall be separated in ownership from the portion of the lot upon which the building is located.

(j) The area of a lot upon which a building or use is located shall not be reduced below the total area required for all of the dwelling units or guest rooms contained in the building or required for the specific use, or required because of the height or total floor area contained in the building, by separating the ownership of a portion of the lot from that upon which the building or use is located. No required lot which is provided for a dwelling unit, guest room, specific use or total floor area within a building shall be considered as providing the required lot area for any other dwelling unit, guest room, specific use or total floor area within a building. **(Amended by Ord. No. 110,225, Eff. 11/23/57.)**

(k) No lot or parcel of land held under separate ownership at the time this article becomes effective shall be separated in ownership or reduced in size below the minimum lot width or lot area required by this article, nor shall any lot or parcel of land held under separate ownership at the time this article becomes effective and which has a width or an area less than that required by this article be further reduced in any manner.

(l) In determining the required side and rear yards of a building, any basement containing habitable rooms shall be considered a story. **(Added by Ord. No. 131,309, Eff. 4/24/66.)**

See citation under Section 12.21 C.1.(a)

2. Spaces Between Buildings – Passageways. When more than one residential building or a rear residential building is located on a lot or the entrance to a residential building is not directly from a street, the following passageways and other open spaces shall be provided and maintained.

(a) **(Amended by Ord. No. 151,608, Eff. 11/26/78.)** There shall be at least 20 feet of space between every two-story apartment hotel, apartment house, boarding or rooming house, guest house hotel or multiple dwelling, and any other main building on the same lot. Such space may be reduced to 10 feet where the buildings are located on a corner lot and the space opens directly onto the side street.

In the RD zone there shall be at least 20 feet of space between every main building and any other main building on the same lot where either of the buildings contains three or more dwelling units.

In all other cases there shall be at least 10 feet of space between every residential building and another main building on the same lot.

The width of the space herein required shall be increased by two feet for each story over two contained in any building adjoining said space.

Those regulations do not apply to the spaces required between accessory buildings (not designed as residential buildings) and other buildings on the same lot as otherwise provided for in Subdivision 5. of this subsection.

(b) There shall be a passageway of at least 10 feet in width extending from a street to one entrance of each dwelling unit or guest room in every residential building, except those located in the RW, RU, or RZ Zones, unless there is an entrance to the dwelling unit or guest room opening directly onto a public street or into a hallway opening into a public street or onto a 10-foot passageway extending to a public street. In the RW and RZ Zones, there shall be a passageway at least 4 feet in width, and in the RU Zone, there shall be a passageway at least 3 feet in width, extending from a street, or public right-of-way in the case of the RW Zones, to one entrance of each dwelling unit in every residential building. **(Amended by Ord. No. 161,716, Eff. 12/6/86.)**

The passageway shall be increased by two feet in width for each story over two contained in any building located between the public street and the building which the passageway serves. The passageway shall be located on the same lot as the building which it serves.

Where a one story, one or two-family dwelling has been continuously maintained on the front of a lot since prior to June 1, 1946, with a passageway of less than ten feet but not less than eight feet in width from the street to the rear of said dwelling, an additional one or two family dwelling may be erected and maintained on the rear of the lot, provided the passageway is not further reduced. However, this limited passageway shall be permitted where there are to be only two residential buildings on the lot. **(Amended by Ord. No. 108,661, Eff. 2/11/57.)**

In addition to all other applicable provisions herein, where a building or portion thereof is constructed on or within an air space lot, and such building or portion thereof is used for residential purposes, there shall be a passageway extending from a street to the entrance of such building on the lot which has had the air space above or below it divided by such air space lot or lots. **(Added by Ord. No. 156,681, Eff. 6/21/82.)**

(c) In computing the width of a passageway where the passageway, adjoins a lot line, the width of any required yard adjoining such lot line may be assumed to be a portion of the required width of the passageway.

(d) Any space between buildings or any passageway having less width than that required by this subdivision shall be maintained and shall not be further reduced in any manner.

(e) The passageways and other open spaces required by this subdivision shall be open and unobstructed from ground to sky, except for the projections permitted by the provisions of Section 12.22 C., and except that Solar Structures that provide shade over the habitable area may cover up to 25% of the required open space. **(Amended by Ord. No. 182,110, Eff. 5/29/12.)**

3. Yards for Institutions, Churches, etc. – In the “RA” and “R” Zones, no building, structure or land shall be used and no building shall be erected, structurally altered, converted, enlarged or maintained for a hospital, institution, church, library, museum or other similar use, unless the following yards are provided and maintained:

(a) For hospitals, institutions or similar uses, there shall be a side yard on each side of said buildings of not less than 20% of the width of the lot (except as permitted by (c) hereof, but such side yard need not exceed 25 feet, and shall be not less than ten feet in width where said yard adjoins another lot in an “RA” or “R” Zone.

(b) For churches, clubs, educational institutions, elementary and high schools, libraries or museums, the combined widths of the two side yards on an interior lot shall be not less than 40% of the width of the lot, but need not exceed 50 feet, and on either an interior lot or a corner lot the side yard adjoining another lot in an “RA” or “R” Zone shall be not less than ten feet in width.

(c) The side or rear yard required for the buildings referred to in (a) and (b) hereof, which adjoin property in a “C”, “CM” or “M” Zone, or the side yard which adjoins the street side of a corner lot, may be the same as required for buildings in the “R4” Zone. (Sec. 12.11 C.2. and 3.);

(d) All other yards in connection with buildings referred to in (a) and (b) hereof, shall comply with the regulations on the zone in which the building is located.

(e) For hospitals, institutions, churches, libraries, museums or other similar uses located in a building which combines residential and commercial uses pursuant to Section 12.22 A.18. (developments combining residential and commercial uses), the yard requirements set forth in Section 12.22 A.18.(c) shall apply. **(Added by Ord. No. 156,681, Eff. 6/21/82.)**

(f) Notwithstanding any other provision of this Article to the contrary, for hospitals, institutions, churches, libraries, museums or other similar uses not located in a building which combines residential and commercial uses, the Director of Planning may apply the yard requirements set forth in Section 12.22 A.18.(c) of this Chapter, pursuant to Sec. 13B.2.5. (Director Determination) of Chapter 1A of this Code, if the Director of Planning finds: **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

(1) the use is on a separate lot or air space lot from the residential or commercial uses,

(2) the use is an integral part of a project which combines residential and commercial uses,

(3) the yards permitted by Section 12.22 A.18.(c) are compatible to the surrounding uses.

4. Tennis or Paddle Tennis Court Construction and Operation Standards and Regulations. (Added by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) To establish construction and operation standards and regulations for tennis or paddle tennis courts constructed in the A and R Zones if the courts are accessory to the primary residential use of the subject lots. The standards and regulations may include, but are not limited to: hours of use, type of intensity of lighting and the height and type of windscreens. The standards and regulations shall reasonably restrict and minimize any detrimental effect of the location and design and use of the courts on the occupants of adjoining properties and the neighborhood.

5. Location of Accessory Buildings and Tennis or Paddle Tennis Courts – No accessory building or tennis or paddle tennis court shall be constructed, erected or maintained and no existing accessory building or tennis or paddle tennis court shall be structurally altered, converted, enlarged, moved or maintained unless such accessory building or tennis or paddle tennis court is located on the lot in conformance with the following regulations: **(Amended by Ord. No. 151,466, Eff. 10/27/78.)**

(a) In the “A” and “R” Zones, every animal keeping structure for the housing of equines, cattle, sheep, goats, swine, or other similar animals shall be located on the rear half of a lot, but need not be located more than 100 feet from the front lot line. Every structure shall be located not less than 25 feet from all side lot lines. An animal keeping structure or enclosure shall neither be located closer than 35 feet from the habitable rooms of the animal keeper’s dwelling unit nor closer than 75 feet from the habitable rooms of a neighbor’s dwelling unit. **(Amended by Ord. No. 157,144, Eff. 11/22/82.)**

(b) In the A and R Zones, all other accessory buildings (not regulated by Paragraph (a) above or permitted in the front yard of a sloping lot) shall be located on the rear half of a lot but need not be located more than 55 feet from a front lot line. In the A1 and A2 Zones, such accessory building shall be located not less than ten feet from any side street lot line, and in the RA and R Zones shall be located not closer to the side street lot line than the width of the side yard required for a main building of the same height. **(Amended by Ord. No. 121,925, Eff. 6/4/62.)**

(c) On a reversed corner lot, an accessory building shall not be located nearer to the side lot line on the street side of such corner lot than the front yard depth required on the lot in the rear, nor be located nearer than five feet to the side lot line of such lot. **(Amended by Ord. No. 138,685, Eff. 7/10/69.)**

(d) In the A and R Zones, all accessory buildings shall be located not less than ten feet from any main building or accessory living quarters on the same lot. Provided, however, that where an accessory building (other than a residential building) is not nearer to the adjacent lot line than the width of the side yard required for a main building of the same height, said accessory building and all its projections may be not less than five feet from the side of a main building and all of its projections. **(Amended by Ord. No. 121,925, Eff. 6/4/62.)**

(e) In the A and R Zones, any recreation room in an accessory building and any accessory building designed or used in whole or in part as a residential building or accessory living quarters shall be located not less than five feet from the rear lot line and not nearer to any side lot line than the width of the side yard required for a main building of the same height. **(Amended by Ord. No. 121,925, Eff. 6/4/62.)**

(f) Two-story accessory buildings shall be located not less than five feet from the rear lot line and not nearer to any side lot line than the width of the side yard required for a main building of the same height. **(Amended by Ord. No. 121,925, Eff. 6/4/62.)**

(g) No accessory building shall be erected or maintained within ten feet from the center line of an alley. **(Amended by Ord. No. 125,278, Eff. 9/16/63.)**

(h) No accessory building or use shall be located on a property in a more restrictive zone than that required for the main building or main use to which it is accessory. The relationship between the more restrictive and the less restrictive zones shall be determined by the sequence of the zones set forth in Sec. 12.23 B.1.(c). **(Amended by Ord. No. 107,091, Eff. 4/13/56.)**

(i) In the C and M Zones an accessory building for a residential building shall be located in the same manner as permitted in an R Zone. **(Added by Ord. No. 121,925, Eff. 6/4/62.)**

(j) Except as otherwise required in this subdivision, an accessory building may be located in any portion of a required rear yard, and may be located on that portion of a required side yard which is within 30 feet of the rear lot line. An accessory building may be located in a side yard required for a building more than two stories in height if the accessory building is not closer than five feet to the side lot line. A one-story accessory building for a single-family dwelling may be located in that portion of a required side yard which is within 30 feet of the rear lot line or in a required side yard if not closer than 75 feet to the front lot line nor closer than ten feet to the main building. **(Added by Ord. No. 125,278, Eff. 9/16/63.)**

(k) In the RA and R Zones where a through lot with no required rear yard has a depth of 150 feet or more, an accessory building shall not extend into either required front yard, except that it need not be more than 25 feet from both front lot lines. **(Added by Ord. No. 125,278, Eff. 9/16/63.)**

Where such through lot has a depth of less than 150 feet, an accessory building may be located in one of the required front yards, if such building is set back from the front lot line a distance of not less than ten percent of the lot depth and does not project beyond the front line of an existing main building along the frontage, except that such building need not be located more than 25 feet from both front lot lines.

No accessory building on a through lot shall be nearer to any side lot line than the width of the side yard required for a main building of the same height.

(l) A private garage may be located on the required front yard of a lot having a slope conforming to that specified in Section 12.22 C.6., provided every portion of the garage building is at least five feet from the front lot line. Where the wall of such garage is two-thirds below the natural or finished grade of the lot, whichever is lower, said wall may extend to the adjacent side lot line; in all other cases, said garage shall not be nearer to the side lot line than the width of the side yard required for a main building of the same height. **(Added by Ord. No. 125,278, Eff. 9/16/63.)**

(m) Tennis or paddle tennis courts, including fences and light standards accessory thereto, which are accessory to a primary residential use on the same lot in the A or R zones, shall observe the same side, front and rear yards required for a one-story main building in the zone in which they are located, except as otherwise provided in Section 12.22 C.20.(m) of this code. **(Added by Ord. No. 151,466, Eff. 10/27/78.)**

6. Loading Space.

(a) A loading space shall be provided and maintained on the same lot with every hospital, hotel, or institution building. A loading space shall be provided and maintained on the same lot with every building in the C or M Zones where the lot on which said building is located abuts an alley, provided that when the lot is occupied by a use, such as a service station or a drive-in business, in which the building covers less than the total buildable area, a suitable loading space must be

provided, but it need not comply with all the provisions of this section if its location, size and means of access are approved by the Department of Building and Safety. **(Amended by Ord. No. 174,769, Eff. 9/26/02.)**

EXCEPTION: No loading space shall be required on a lot that abuts an alley in the C Zone when all the buildings are erected, structurally altered, enlarged or maintained and used solely as dwellings or apartment houses. **(Amended by Ord. No. 174,769, Eff. 9/26/02.)**

(b) Every required loading space shall be so located and arranged that delivery vehicles may be driven upon or into said space from the alley. Such loading space shall have a minimum height of 14 feet and shall be directly accessible through a usable door not less than three feet in width and not less than six feet six inches in height opening from the building it is to serve. **(Amended by Ord. No. 138,685, Eff. 7/10/69.)**

(c) Every required loading space shall have a minimum area of 400 square feet, a minimum width of 20 feet measured along the alley line, and a minimum depth of ten feet measured perpendicularly to the alley line except as hereafter provided in this Subsection. Such loading space may be furnished within a building where said building is designed and arranged to include accessible loading space equivalent to that required by this subdivision.

(d) The required loading space shall have a minimum area of 600 square feet where the gross floor area of all buildings on the lot exceeds 50,000 square feet, but not more than 100,000 square feet, a minimum area of 800 square feet where the gross floor area of all buildings is between 100,000 and 200,000 square feet, and shall be increased by an additional 200 square feet for each additional 200,000 square feet or fraction thereof of gross floor area in the building.

(e) The required loading space, on lots less 40 feet in width, shall extend across the full width of the lot at the alley line, but need not exceed 10 feet in depth.

(f) No loading space shall be required on a lot on which a building, other than a residential building, is to be erected, structurally altered, or enlarged, and on which there is an existing separate building being lawfully maintained adjacent to the alley in such manner as to prevent the establishment of the loading space required by the provisions of this subdivision. **(Amended by Ord. No. 130,952, Eff. 11/8/65.)**

(g) No loading space shall be required on unusually shaped lots, oddly located lots, or on hillside lots, when waived by the Department of Building and Safety as provided for in Sec. 12.26-B.

(h) Any loading space being maintained in connection with an existing main building shall be maintained so long as the building remains, provided, however, that this regulation shall not require the maintenance of more loading space than is herein required for a new building, nor the maintenance of such space in any other zone or for any other buildings than those specified herein.

7. Special Requirements for Corner Lots in the C and M Zones. (Added by Ord. No. 143,825, Eff. 10/19/72.)

(a) in addition to any other requirements contained in this article, no building or structure shall be erected within a visibility triangle, or portion thereof, on any lot in the C or M Zones, except a corner lot subject to the provisions of Section 12.37, or which complies with the provisions of Section 17.05 D.4. of this Code. Such visibility triangle shall contain no structure or other obstruction to visibility from two and one-half to ten feet above the adjacent curb levels. For purposes of this subdivision a visibility triangle is defined as the area bounded by:

- (1) The front lot line from its intersection with the side street lot line to a point ten feet from said intersection;
- (2) The side street lot line from its intersection with the front lot line to a point ten feet from said intersection; and
- (3) A diagonal line joining said two points.

Nothing in this subdivision shall prohibit the location of one column or pillar supporting an upper story and having no horizontal dimension of more than 24 inches within the visibility triangle.

(b) The City Engineer may approve and allow such variations from the aforesaid requirements as the City Engineer determines are made necessary by the conditions of the terrain.

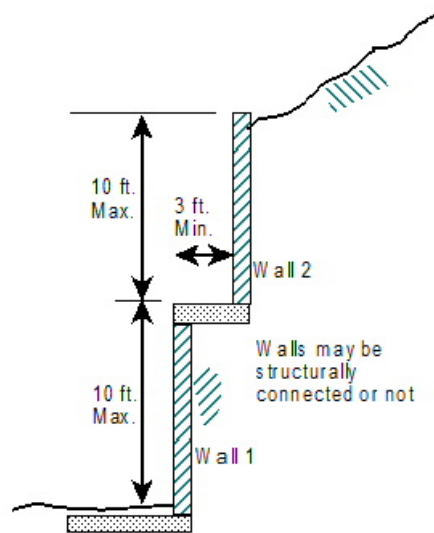
(c) Any person required to provide a visibility triangle in accordance with the provisions of this subdivision may appeal any determination made by the City Engineer to the Board of Public Works. Such an appeal shall be made in writing and shall state in clear and concise language the grounds therefor. The Board of Public Works may grant such waivers or modifications of the requirements of this subdivision as it shall determine are required to prevent any unreasonable hardship under the facts of each case so long as such modifications or waivers are in conformity with the general spirit and intent of the requirements of this subdivision.

(d) The requirements of this subdivision shall be in addition to those requirements set forth in Section 62.200 of this Code.

8. **Retaining Walls in Hillside Areas.** (Added by Ord. No. 176,445, Eff. 3/9/05.) This subdivision applies to retaining walls that meet all of the following criteria: located in the A or R Zones (including the RA Zone), located on land designated as a Hillside Area on the Bureau of Engineering Basic Grid Map No. A-13372, and located on a lot developed or to be developed with dwelling units. For purposes of this subdivision, a “retaining wall” shall be defined as a freestanding continuous structure, as viewed from the top, intended to support earth, which is not attached to a building. Retaining walls are subject to the following restrictions:

(a) A maximum of one free standing vertical or approximately vertical retaining wall may be built on any lot with a maximum height of 12 feet as measured from the top of the wall to the lower side of the adjacent ground elevation. However, as shown in the diagram below, a maximum of two vertical or approximately vertical walls or portions of a wall can be built if they comply with the following:

- (i) The minimum horizontal distance between the two walls is three feet,
- (ii) Neither of the two walls exceed a height of 10 feet measured from the top of each wall to the lower side of the adjacent ground elevation at each wall, and
- (iii) In no case shall the height of a wall located in a required yard exceed the height allowed by Section 12.22 C.20.(f) of this Code.



(b) **Landscaping.** For retaining walls of eight feet or greater in height, the applicant must submit a landscape plan designed to completely hide the retaining wall from view within a reasonable amount of time. The landscape plan shall be subject to the approval of the Director of Planning in accordance with Sections 12.40 through 12.43 of this Code and any Landscape Guidelines established by the City Planning Commission.

(c) **Zoning Administrator approval for taller walls or additional walls.** Retaining walls that exceed the heights or the maximum number allowed in paragraph (a) of this subdivision shall be subject to the approval of a Zoning Administrator under Section 12.24 X.26. of this Code.

(d) **Exception for public agency projects.** This subdivision does not apply to projects undertaken by a public agency.

(e) **Exception for prior approved retaining walls.** This subdivision does not apply to a retaining wall that received a final discretionary approval, as determined by the Director of Planning, from the City under another provision of the Code prior to the effective date of the ordinance adding this new Subdivision 8. to Subsection C. of Section 12.21 of the Los Angeles Municipal Code.

(f) **Exception for retaining walls required by Building and Safety.** The provisions of this subdivision do not apply to any retaining wall built to comply with an order issued by the Department of Building and Safety to repair an unsafe or substandard condition.

9. **Work Space for Joint Living and Work Quarters.** (Added by Ord. No. 181,133, Eff. 5/11/10.) The total floor area in a joint living and work quarters shall be arranged to comply with one of the following standards:

(a) **Tier 1 Standard – Low Percentage of Work Space.** At least ten percent but no more than 25 percent of the total floor area in a joint living and work quarters shall be work space; or

(b) **Tier 2 Standard – Medium Percentage of Work Space.** At least 25 percent but no more than 50 percent of the

total floor area in a joint living and work quarters shall be work space.

10. Single-Family Zone Hillside Area Development Standards. Except as allowed by Sec. 13B.2.2.D.5. (Class 2 Conditional Use Permit; Decision; Conditions of Approval and Inspections) and Sec. 13B.2.3.D.5. (Class 3 Conditional Use Permit; Decision; Conditions of Approval and Inspections) of Chapter 1A of this Code and Section 14.00 A. of this Chapter, for any Lot zoned R1, RS, RE or RA and designated Hillside Area on the Department of City Planning Hillside Area Map, no Building or Structure nor the addition or Major Remodel-Hillside of any Building or Structure shall be erected or maintained unless the following development standards are provided and maintained in connection with the Building, Structure, addition or remodel: **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

(a) **Setback Requirements. (Amended by Ord. No. 184,802, Eff. 3/17/17.)** No Building or Structure shall be erected, enlarged or undergo a Major Remodel-Hillside unless the setbacks as outlined in Table 12.21 C.10-1 are provided and maintained in connection with the Building, Structure, or enlargement.

Table 12.21 C.10-1								
Single-Family Zone Hillside Area Setback Requirements								
	R1	RS	RE9	RE11	RE15	RE20	RE40	RA
Front Yard								
Not less than:	20% of Lot Depth							
Need not exceed:	20 ft	25 ft						
Side Yard								
Not less than:	5 ft	7 ft	10% of Lot Width, but not less than 5 ft	10 ft				
Need not exceed:	n/a				10 ft	n/a		
The required Side Yard may be reduced to 10% of the Lot Width, but in no event to less than 3 ft, where the Lot is less than the following widths:	50 ft	70 ft	n/a				70 ft*	
For Buildings or Structures with a height greater than 18 feet:	One additional foot shall be added to each required Side Yard for each increment of 10 feet or fraction thereof above the first 18 feet.							
For Buildings or Structures that have a side wall exceeding 14 feet in height and a continuous length greater than 45 feet:	An offset/ plane break shall be added that is a minimum depth of five feet beyond the required yard and a minimum length of 10 feet. For the purpose of this Subdivision, height shall be measured from the existing or finished grade, whichever is lower, at each point along the perimeter of the building.							
Rear Yard								
Not less than:	15 ft	20 ft	25% of Lot Depth					
Need not exceed:	n/a		25 ft					
ft - feet n/a - the provision is not applicable Lot Depth - as defined in Section 12.03 of this Code Lot Width - as defined in Section 12.03 of this Code Notes: * Only applicable for Lots which are of record prior to July 1, 1966.								

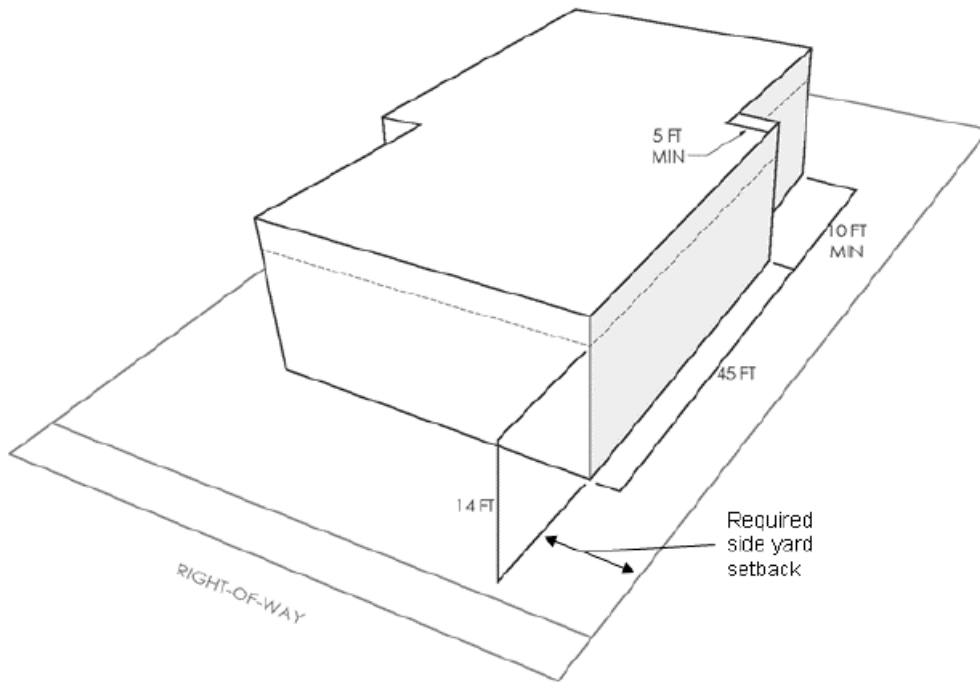


Figure 12.21 C.10.(a): Plane break diagram

Notwithstanding the required yards, or setbacks, outlined in Table 12.21 C.10-1 above, or those exceptions found in Section 12.22 of this Code, the following provisions shall apply:

(1) Prevailing Front Yard Setbacks.

(i) Where there are two or more developed Lots which have Front Yards that vary in depth by not more than 10 feet, and such Lots comprise 40% or more of the Frontage, then the minimum Front Yard depth shall be the average depth of the Front Yards of such Lots.

(ii) Where there are two or more possible combinations of developed Lots comprising 40% or more of the Frontage, and these Lots have Front Yards that vary in depth by not more than 10 feet, then the minimum Front Yard depth shall be the average depth of the Front Yards of that combination which has the shallowest average depth.

(iii) In determining the required Front Yard, the following shall not be taken into account: Buildings located on key Lots, entirely on the rear half of Lots, or on Lots in the “C” or “M” Zones.

(iv) Nothing contained in this Subparagraph (1) shall, however, be deemed to require Front Yards which exceed 40 feet in depth or allow Front Yards that are less than 5 feet in depth. **(Amended by Ord. No. 184,802, Eff. 3/17/17.)**

(2) Front Yard Setback on Lots Fronting on Substandard Hillside Limited Street. For any Lot that fronts on a Substandard Hillside Limited Street, there shall be a minimum Front Yard setback of at least five feet. However, the prevailing Front Yard setback regulations, as outlined in Subparagraph (1) of this Paragraph (a), shall apply, so long as a Front Yard setback of no less than five feet is provided.

(3) Front Yard Setbacks on Key Lots. (Amended by Ord. No. 184,802, Eff. 3/17/17.) On Key Lots, the minimum Front Yard may be the average of the required Front Yard for the adjoining Interior Lot and the required Side Yard along the Street side of a Reversed Corner Lot. But such minimum Front Yard may apply for a distance of not more than 85 feet from the rear Lot line of the Reversed Corner Lot, beyond which point the Front Yard specified in Table 12.21 C.10-1 or Subparagraph (1) of this Paragraph (a) shall apply. Where existing Buildings on either or both of said adjoining Lots are located nearer to the front or side Lot lines than the Yard required by this Paragraph (a), the Yards established by such existing Buildings may be used in computing the required Front Yard for a Key Lot, but may not be less than 5 feet in depth.

(4) Front Yard Setbacks on Through Lots. At each end of a Through Lot, there shall be a Front Yard setback as required by this Paragraph (a) for the zone in which each Street Frontage is located. But only one Front Yard need be provided on those Through Lots which abut on a primary, Major or Secondary Highway, as such highways are shown on the “Highways and Freeways Element of the General Plan”, when the rights to vehicular ingress and egress from such Through Lots to the highways have been abandoned or prohibited by a tract restriction. Where only one Front Yard is required on a Through Lot, as provided herein, the Rear Yard shall be

located on the portion of such Lot adjacent to the highway.

Where a Through Lot is less than 150 feet in depth or is developed as a single Building site, and the two required Front Yards are provided, no Rear Yard is required.

(5) **Front Yard Paving.** All portions of the required Front Yard not used for necessary driveways and walkways, including decorative walkways, shall be used for planting, and shall not otherwise be paved.

(6) **Front Yard on Lots Existing Prior to June 1, 1946.** This provision shall apply to any Lot of less than one acre which was of record or held in separate ownership on June 1, 1946, or was subsequently created either by the recording of a division of land map or otherwise in accordance with the applicable zoning regulations. On any such Lot, the originally required Front Yard shall be provided and maintained in addition to any new Front Yard required by any subsequent rearrangement of the Lot lines by sale or division (without recording a subdivision map) creating a new Lot fronting on a different Street than that on which the original Lot fronted.

(7) **Occupied Rooftop Deck Setback. (Added by Ord. No. 184,802, Eff. 3/17/17.)** In the R1 Zone, any occupied rooftop deck shall be set back at least 3 feet from the minimum required side yard. This provision shall not apply to any rooftop deck located on the street side of a Corner Lot.

(8) **Side and Rear Yards for Basements. (Renumbered by Ord. No. 184,802, Eff. 3/17/17.)** In determining the required Side and Rear Yards of a Building, any Basement containing Habitable Rooms shall be considered a Story.

(9) **Yards in the Coastal Zone. (Renumbered by Ord. No. 184,802, Eff. 3/17/17.)** The following setback requirements shall apply to Lots located in a Coastal Zone:

(i) On a Lot in the RE9 or RE11 Zone, there shall be a Side Yard on each side of a main Building of not less than 5 feet. Where the Lot is less than 50 feet in width, the Side Yard may be reduced to 10% of the width of the Lot, but in no event less than 3 feet.

(ii) In lieu of the additional Side Yard requirement in Table 12.21 C.10-1, for a Building more than two-stories in height on Lots in the R1, RS, or RE Zone, one foot shall be added to the width of each required Side Yard for each additional Story above the second Story.

(iii) On a Lot in the RA Zone, where a Side Yard is less than 10 feet in width, and the Building erected on the Lot is three or more Stories in height, one foot shall be added to such Side Yard.

(10) **Side Yards in Specific Plans, Historic Preservation Overlay Zones or in Subdivision Approvals. (Renumbered by Ord. No. 184,802, Eff. 3/17/17.)** Side Yard requirements in Specific Plans, Historic Preservation Overlay Zones or in subdivision approvals shall take precedence over requirements of this Subdivision 10. Otherwise, this Subdivision shall apply.

(11) **Encroachments Into Required Yards. (Renumbered by Ord. No. 184,802, Eff. 3/17/17.)** Every required Front, Side and Rear Yard shall be open and unobstructed from the ground to the sky except for the following:

(i) **Garages in Front Yards. (Amended by Ord. No. 184,802, Eff. 3/17/17.)** A detached Private Garage may be located on the required Front Yard of a Lot where the Elevation of the ground at a point 50 feet from the front Lot line of a Lot and midway between the side Lot lines differs 10 feet or more from the curb level, provided every portion of the garage Building is at least 5 feet from the front Lot line. Where the wall of such garage is two-thirds below natural or finished Grade of the Lot, whichever is lower, said wall may extend to the adjacent side Lot line; in all other cases, said garage shall not be nearer to the side Lot line than the width of the Side Yard required for a main Building of the same height.

(ii) **Elevated Stairways, Porches, Platforms, Landing Places, or Balconies. (Amended by Ord. No. 184,802, Eff. 3/17/17.)** Balconies with 10 feet or more of vertical clearance beneath them may project or extend no more than 30 inches into a Front Yard. Notwithstanding any other provisions of this Code, on Lots fronting onto a Substandard Hillside Limited Street, elevated stairways, porches, platforms and landing places shall not project or extend into the Front Yard.

(iii) **Other Exceptions.** All of those exceptions found in Subdivision 5. of Subsection C. of Section 12.21 and in Section 12.22 of this Code.

(12) **Pools, Ponds, or Body of Water in Required Yards. (Renumbered by Ord. No. 184,802, Eff. 3/17/17.)** No swimming pool, fish pond or other body of water which is designed or used to contain water 18 inches or more in depth shall be permitted in any required Yard Space in which fences over 42 inches in height are prohibited, even though the pool, pond or body of water extends below the adjacent natural ground level.

(13) **Zoning Administrator's Authority. (Renumbered by Ord. No. 184,802, Eff. 3/17/17.)** For Lots fronting on a Substandard Hillside Limited Street, a Zoning Administrator may grant a reduction of the front Setback requirements of Subparagraph (2) of this Paragraph and Side Yard requirements in Table 12.21 C.10-1, pursuant to the authority and procedures established in Subdivision 28. of Subsection X. of Section 12.24 of this Code; however, in no event shall the Side Yard be less than 4 feet.

(b) **Maximum Residential Floor Area. (Amended by Ord. No. 184,802, Eff. 3/17/17.)** The maximum Residential Floor Area contained in all Buildings and Accessory Buildings shall not exceed the sum of the square footage of each Slope Band multiplied by the corresponding Residential Floor Area Ratio (RFAR) for the zone of the Lot, as outlined in Table 12.21 C.10-2a and Table 12.21 C.10-2b. This formula can be found in Table 12.21 C.10-2c, where "A" is the area of the Lot within each Slope Band, "RFAR" is the RFAR of the corresponding Slope Band, and "RFA" is the sum of the Residential Floor Area of each Slope Band.

Table 12.21 C.10-2a								
Single-Family Zone Hillside Area Residential Floor Area Ratios (RFAR)								
Slope Bands (%)	R1	RS	RE9	RE11	RE15	RE20	RE40	RA
0 - 14.99	0.45	0.45	0.40	0.40	0.35	0.35	0.35	0.25
15 - 29.99	0.45	0.40	0.35	0.35	0.30	0.30	0.30	0.20
30 - 44.99	0.40	0.35	0.30	0.30	0.25	0.25	0.25	0.15
45 - 59.99	0.35	0.30	0.25	0.25	0.20	0.20	0.20	0.10
60 - 99.99	0.30	0.25	0.20	0.20	0.15	0.15	0.15	0.05
100 +	0.00	0.00	0.00	0.00	0.00	0.00	0.00	0.00

Table 12.21 C.10-2b				
Single-Family Zone Hillside Area Residential Floor Area Ratios (RFAR)				
Slope Bands (%)	R1H1	R1H2	R1H3	R1H4
0 - 14.99	0.65	0.55	0.45	0.40
15 - 29.99	0.60	0.50	0.45	0.35
30 - 44.99	0.55	0.45	0.40	0.30
45 - 59.99	0.50	0.40	0.35	0.25
60 - 99.99	0.45	0.35	0.30	0.20
100 +	0.00	0.00	0.00	0.00

Table 12.21 C.10-2c					
Hillside Area Maximum Residential Floor Area Formula					
Slope Bands (%)	Area (sq ft)		RFAR		Residential Floor Area
0 - 14.99	A ¹	X	RFAR ¹	=	RFA ¹
15 - 29.99	A ²	X	RFAR ²	=	RFA ²
30 - 44.99	A ³	X	RFAR ³	=	RFA ³
45 - 59.99	A ⁴	X	RFAR ⁴	=	RFA ⁴
60 - 99.99	A ⁵	X	RFAR ⁵	=	RFA ⁵
100 +	A ⁶	X	RFAR ⁶	=	RFA ⁶
Maximum Residential Floor Area				=	Sum of RFA ¹ through RFA ⁶

(1) **Slope Analysis Map.** As part of an application for a permit to the Department of Building and Safety, or for a Discretionary Approval as defined in Section 16.05 B. of this Code to the Department of City Planning, the applicant shall submit a Slope Analysis Map based on a survey of the natural/existing topography, prepared, stamped and signed by a registered civil engineer or licensed land surveyor, to verify the total area (in square feet) of the portions of a property within each Slope Band identified in Table 12.21 C.10-2a. The Director of Planning, or the Director's designee, shall verify that the Slope Analysis Map has been prepared by a registered civil engineer or licensed land surveyor. In addition, the Director of Planning, or the Director's designee shall approve the calculated Maximum Residential Floor Area for the Lot by the registered civil engineer or licensed land surveyor using the Slope Analysis Map prior to applying for a permit from the Department of Building and Safety.

The map shall have a scale of not less than 1 inch to 100 feet and a contour interval of not more than 10 feet with 2-foot intermediates. The map shall also indicate the datum, source, and scale of topographic data used in the Slope analysis, and shall attest to the fact that the Slope analysis has been accurately calculated.

The Slope Analysis Map shall clearly delineate/identify the Slope Bands (i.e., with contrasting colors or hatching), and shall include a tabulation of the total area in square feet within each Slope Band, as well as the

RFAR and Residential Floor Area value of each corresponding Slope Band as shown on Table 12.21 C.10-2b.

The Slope Analysis Map shall be prepared using CAD-based, GIS-based, or other type of software specifically designed for such purpose.

(2) **Guaranteed Minimum Residential Floor Area.** Notwithstanding the above, the maximum Residential Floor Area for all Buildings and Accessory Buildings on any Lot may be at least the percentage of the Lot size as outlined in Table 12.21 C.10-3 below or 800 square feet, whichever is greater.

Table 12.21 C.10-3	
Guaranteed Minimum Residential Floor Area	
Zone	Percentage of Lot Size
R1	25%
RS	23%
RE9	20%
RE11	20%
RE15	18%
RE20	18%
RE40	18%
RA	13%

The guaranteed minimum for the original zone as stated in the paragraph above may apply to any Lot in place of the maximum Residential Floor Area calculation in Tables 12.21 C.10-2a and 12.21 C.10-2b. In addition, in the event that a Lot has an area that is less than 50 percent of the minimum Lot size for its Zone, was made nonconforming in Lot size as a result of an adopted zone change or code amendment changing the minimum Lot size, and met the minimum Lot size requirements of the original zone, the guaranteed minimum for the original zone as stated in this Subparagraph shall apply.

(3) **Residential Floor Area Bonus for RA, RE and RS Zones.** An additional 20 percent of the maximum Residential Floor Area as determined by Table 12.21 C.10-2 of this Paragraph (b), or an additional 30 percent for Lots where the guaranteed minimum outlined in Subparagraph (2) of this Paragraph (b) is utilized, for that Lot shall be allowed if any of the options listed below is utilized. Only one bonus per property is allowed.

(i) **Proportional Stories Option.** The total Residential Floor Area of each Story other than the Base Floor in a multi-Story Building does not exceed 75 percent of the Base Floor Area. This option shall only apply to flat Building pads where the Slope of the Building pad area prior to any Grading, as measured from the highest and lowest Elevation points of the existing Grade within five horizontal feet of the exterior walls of the proposed Building or Structure, is less than 15 percent; or

(ii) **Front Facade Stepback Option.** The cumulative length of the exterior walls which are not a part of a garage facing the Front Lot Line, equal to a minimum of 25% of the Building width, shall be stepped-back a distance of at least 20% of the Building depth from a plane parallel to the Lot width established at the point of the Building closest to the Front Lot line. When the Front Lot line is not straight, a line connecting the points where the Side Lot lines and the Front Lot line intersect shall be used to establish the plane parallel to the front Lot width. When Through Lots have, or are required to provide, two Front Yard setbacks, the step-back shall be provided along both Front Lot Lines. When referred by the Department of Building and Safety due to unusual Building and/or Lot configuration, the Director of Planning or the Director's designee shall determine that the proposed project complies with this provision and qualifies for a Residential Floor Area bonus.

For the purposes of this provision, all exterior walls that intersect a plane parallel to the Front Lot Line at 45 degrees or less shall be considered to be facing the Front Lot Line. The Building width shall be the greatest distance between the exterior walls of the Building measured parallel to the Lot width. The Building depth shall be the greatest distance between the exterior walls of the Building measured parallel to the Lot depth.

This option shall only apply to Structures which are no within 35 feet of the Frontage along an improved Street and on a "flat" Building pad where the Slope of the Building pad prior to any Grading, as measured from the highest point of the existing Grade within five horizontal feet of the exterior wall of the proposed Building or Structure to the lowest point of the existing natural Grade within five horizontal feet, is less than 15%; or

(iii) **Cumulative Side Yard Setbacks Option.** The combined width of Side Yards shall be at least 25% of the total Lot Width, as defined in Section 12.03 of this Code, but in no event shall a single Side Yard setback be less than 10% of the Lot Width or the minimum required by Paragraph (a) of this Subdivision, whichever is greater. One (1) foot shall be added to each required Side Yard for each increment of 10 feet

or fraction thereof of height above the first 18 feet of height. The width of a required Side Yard setback shall be maintained for the entire length of a Side Yard and cannot alternate from one Side Yard to the other; or

(iv) **18-Foot Envelope Height Option.** For properties which are not in the “1SS” Single-Story Height District, the maximum envelope height, measured pursuant to Subparagraph (1) of Paragraph (d) of this Subdivision 10., shall be no more than 18 feet; or

(v) **Multiple Buildings Option.** In addition to the Lot coverage requirements in Paragraph (e) of this Subdivision, any one Building and Structure extending more than 6 feet above Hillside Area Grade, as defined in Section 12.03 of this Code, shall cover no more than 20% of the area of a Lot. Such Buildings or Structures may only be connected by one breezeway, fully enclosed walkway, elevator, or combination thereof of not more than 5 feet in width; or

(vi) **Minimal Grading Option.** For properties where at least 60% of the Lot is comprised of Slopes which are 30% or greater, as determined by a Slope Analysis Map prepared in accordance with Subparagraph (1) of this Paragraph (b), the total amount of any Grading on the site [including exempted Grading, as outlined in Paragraph (f) of this Subdivision (10)] does not exceed the numeric value of 10% of the total Lot size in cubic yards or 1,000 cubic yards, whichever is less (example: a project involving 500 cubic-yards of Grading on a 5,000 square-foot Lot will be eligible for this bonus option).

(4) Zoning Administrator’s Authority.

(i) **10% Adjustments.** The Zoning Administrator has the authority to grant adjustments from the requirements of this Paragraph (b) of not more than 10%, pursuant to the authority and procedures established in Subsection A. of Section 12.28 of this Code.

(ii) **Residential Floor Area Added to Lots with Existing Buildings Built Prior to August 1, 2010.** The Zoning Administrator has the authority to approve construction that adds Residential Floor Area, in excess of the maximum Residential Floor Area provided in Paragraph (b) of this Section, to a lot that includes a main Building that existed prior to August 1, 2010, and for which permits were previously obtained, pursuant to the authority and procedures established in Subdivision 28. of Subsection X. of Section 12.24 of this Code, provided:

- a. the total cumulative Residential Floor Area of all such additions does not exceed 1,000 square feet; and
- b. the resulting Building does not exceed the height of the original Building or the height permitted in Paragraph (d) of this Subdivision 10. below, whichever is greater; and
- c. at least two off-street covered parking spaces are provided.

(c) **Verification of Existing Residential Floor Area. (Amended by Ord. No. 184,802, Eff. 3/17/17.)** For additions with cumulative Residential Floor Area of less than 1,000 square feet constructed after August 1, 2010, or remodels of Buildings built prior to August 1, 2010, the existing Residential Floor Area shall be determined based on the building records or the Building square footage shown on the most recent Los Angeles County Tax Assessor’s records at the time the plans are submitted to the Department of Building and Safety and a plan check fee is paid. Except that Residential Floor Area may be calculated as defined in Section 12.03 of this Code when a complete set of fully dimensioned plans with area calculations of all the Structures on the Lot, prepared by a licensed architect or engineer, is submitted by the applicant.

Any work that does not qualify as a remodel, as defined in the paragraph below, or additions that are 1,000 square feet or larger shall require a complete set of fully dimensioned plans with area calculations of all the Structures on the Lot prepared by a licensed architect or engineer.

For the purposes of implementing this Paragraph (c), a remodel shall mean the alteration of an existing Building or Structure, provided that at least 50 percent of the perimeter length of the contiguous exterior walls and 50 percent of the roof are retained.

(d) **Height Limits.** No portion of a Building or Structure shall be erected or enlarged which exceeds the envelope height limits as outlined in Table 12.21 C.10-4, or as otherwise stated in the paragraphs below. For the provisions below, whenever Grade is mentioned, it shall mean Hillside Area Grade as defined in Section 12.03 of this Code.

Table 12.21 C.10-4

Maximum Height of Structures (in feet)

Height Districts	R1	RS	RE9	RE11	RE15	RE20	RE40	RA
------------------	----	----	-----	------	------	------	------	----

When the roof of the uppermost Story of a Building or Structure or portion thereof has a Slope of 25% or greater, the maximum height for said portion of Building or Structure thereof shall be as follows:								
1, 1L, & 1VL	33	33	33	36	36	36	36	36
1XL	30	30	30	30	30	30	30	30
1SS	22	22	22	22	22	22	22	22
When the roof of the uppermost Story of a Building or Structure or portion thereof has a Slope of less than 25%, the maximum height for said portion of Building or Structure thereof shall be as follows:								
1, 1L, & 1VL	28	28	28	30	30	30	30	30
1XL	28	28	28	30	30	30	30	30
1SS	18	18	18	18	18	18	18	18

(1) **Measurement of Height.** (Amended by Ord. No. 184,802, Eff. 3/17/17.) Notwithstanding any other provision in this Code, the height limits in Table 12.21 C.10-4 shall be measured as set forth below.

(i) **Maximum Envelope Height.** Envelope height (otherwise known as vertical height or “plumb line” height) shall be the vertical distance from the Hillside Area Grade to a projected plane at the roof Structure or parapet wall located directly above and parallel to the Grade. Measurement of the envelope height shall originate at the adjacent Hillside Area Grade at the exterior walls of a Building or Structure. At no point shall any given section of any part of the proposed Building or Structure exceed the maximum envelope height

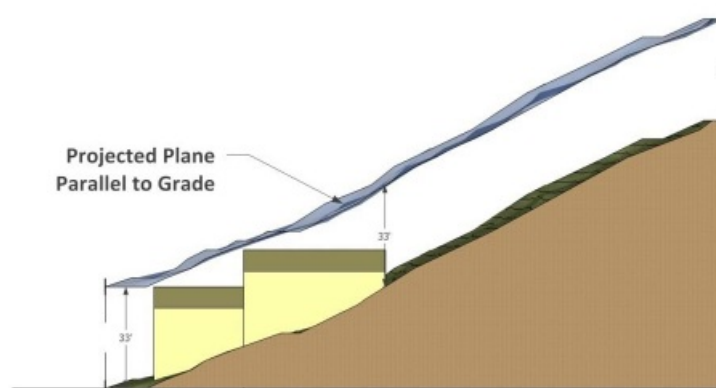


Figure 12.21 C.10.(d)(1)(i):

Maximum Envelope Height diagram

(ii) **Encroachment Plane.** In the R1 Zone, the encroachment plane shall originate from a point that is 20 feet in height from the existing or finished grade, whichever is lower, along the required front and side yard setbacks.

(iii) A topographic map shall be submitted as a separate plan sheet or as part of the site plan identifying the perimeter of the exterior walls, or any other information which the Department of Building and Safety deems necessary to determine compliance with this Paragraph.

(2) **Zoning Administrator’s Authority.** A Zoning Administrator may allow Structures which exceed the maximum envelope height requirements of Subparagraph (1) of this Paragraph (d); however, the increase in height may not result in a Building or Structure which exceeds an overall height of 45 feet, pursuant to the authority and procedures established in Subdivision 28. of Subsection X. of Section 12.24 of this Code. The overall height shall be measured from the lowest Elevation point within 5 horizontal feet of the exterior walls of a Building or Structure to the highest Elevation point of the roof Structure or parapet wall.

(3) **Prevailing Height.** Notwithstanding Table 12.21 C.10-4 of this Paragraph (d), when 40% or more of the existing One-Family Dwellings with Frontage on both sides of the block have Building heights exceeding these limits, the maximum envelope height for any Building on that block may be the average height of the Dwellings exceeding these limits.

(4) **Lots in a Single-Story Height District.** As enabled by Section 12.21.1 A.1. of this Code, on Lots in a “SS” Single Story Height District, shown as “1SS” on a Zoning Map, no Building or Structure shall be erected or enlarged which exceeds one Story.

Notwithstanding the provision in Section 12.21.1 A.8., in determining the number of Stories, any Basement which is exempt from the Residential Floor Area calculation, as outlined in Section 12.03 of this Code, shall not be considered a Story.

(5) **Lots Fronting on Substandard Hillside Limited Streets. (Amended by Ord. No. 184,802, Eff. 3/17/17.)** For any Lot fronting onto a Substandard Hillside Limited Street, as defined in Section 12.03 , no portion of a Building or Structure within 20 feet of the Front Lot Line shall exceed 24 feet in height. The 24-foot maximum Building and Structure height shall be measured from the Elevation at the centerline or midpoint of the Street on which the Lot fronts.

(6) **Unenclosed / Uncovered Cantilevered Balconies. (Amended by Ord. No. 184,802, Eff. 3/17/17.)** Unenclosed/ uncovered cantilevered balconies and “visually permeable railing” (no more than 42 inches in height), may project no more than 5 horizontal feet beyond the maximum envelope height, as limited and measured in Subparagraph (1) of this Paragraph (d).

For the purposes of this Subparagraph (6), “visually permeable railing” means railing constructed of material that is transparent, such as glass or plastic panels, or wrought iron or other solid material which is 80 percent open to light and air.

(7) **Roof Structures.** Roof Structures as described in Table 12.21 C.10-5 below, or similar Structures, may be erected above the height limit specified in Table 12.21 C.10-4.

Table 12.21 C.10-5		
Projecting Roof Structures (Amended by Ord. No. 182,110, Eff. 5/29/12.)		
Roof Structures	Projection Above Height Limit	Setback from Roof Perimeter
Elevator Housing	No more than 5 feet	Not less than 5 feet
Tanks		
Ventilating Fans or similar equipment required to operate and maintain the Building.		
Skylights, covering up to 33 1/3% of the roof area upon which the skylight is constructed.		
Towers		
Steeple		
Flagpoles		
Smokestacks		
Wireless Masts		
Water Tanks		
Silos		
Structures Solely Supporting Solar Energy Systems	See Section 12.21.1 B.3.(c)	See Section 12.21.1 B.3.(c)
Chimneys	No more than 5 feet	None
Exhaust Ducts/Ventilation Shafts		
Stairway Housing, no larger than 36 square feet.		
Skylights, covering more than 33 1/3% of the roof area upon which the skylight is constructed.	No more than 30 inches	

*Solar energy systems as defined by California Civil Code Section 801.5 are exempt per California Government Code Section 65850.5

No roof Structure or any other space above the height limit specified in Table 12.21 C.10-4 shall be allowed for the purpose of providing additional floor space.

(8) **Specific Plans, Historic Preservation Overlay Zones or Subdivision Approvals.** Height limitations in Specific Plans, Historic Preservation Overlay Zones or in subdivision approvals shall take precedence over the requirements of this Section 12.21. Otherwise, this Section 12.21 shall apply.

(e) **Lot Coverage.** Buildings and Structures extending more than 6 feet above natural ground level shall cover no more than 40% of the area of a Lot.

(1) **Lot Coverage on Substandard Lots.** Notwithstanding Paragraph (e) above, for a Lot which is substandard as to width (less than 50 feet) and as to area (less than 5,000 square feet), Buildings and Structures shall cover no more than 45% of the area of a Lot.

(2) **Zoning Administrator’s Authority.** A Zoning Administrator may grant limited deviations from these requirements, pursuant to the authority and procedures established in Subdivision 28. of Subsection X. of Section 12.24 of this Code.

(f) **Grading. (Amended by Ord. No. 184,802, Eff. 3/17/17.)** Notwithstanding any other provisions of this Code, total Grading (Cut and Fill) on a Lot shall be limited as outlined below. No Grading permits shall be issued until a Building permit is approved.

(1) **Maximum Grading Quantities.** The cumulative quantity of Grading, or the total combined value of both Cut and Fill or incremental Cut and Fill, for any one property shall be limited to a base maximum of 1,000 cubic yards plus the numeric value equal to 10% of the total Lot size in cubic yards. Example: a 5,000 square-foot Lot would have a maximum Grading amount of 1,500 cubic yards (1,000 cubic yards for the base amount + 500 cubic yards for the 10% calculation).

However, the cumulative quantity of Grading shall not exceed the maximum “by- right” Grading quantities outlined by Zone in Table 12.21 C.10-6 below.

Table 12.21 C.10-6	
Maximum “By-Right” Grading Quantities	
Table 12.21 C.10-6	
Maximum “By-Right” Grading Quantities	
Zone	Maximum Grading (cubic yards)
R1	1,000
RS	2,200
RE9	2,400
RE11	2,800
RE15	3,200
RE20	4,000
RE40	6,600
RA	3,600

(2) **Import/Export Limits.** Earth import and export activities may take place only between the hours of 9:00 a.m. and 3:00 p.m., Monday through Friday. The maximum quantity of earth import or export shall be limited to the following quantities:

(i) **Lots Fronting on Standard Hillside Limited Streets or Larger.** For a property which fronts onto a Standard Hillside Limited Street or larger, as defined in Section 12.03 of this Code, the maximum quantity of earth import and export combined shall be no more than the maximum “by-right” grading quantities as listed in Table 12.21 C.10-6 above.

(ii) **Lots Fronting on Substandard Hillside Limited Streets.** For a property which fronts onto a Substandard Hillside Limited Street, as defined in Section 12.03 of this Code, the maximum quantity of earth import and export combined shall be no more than 75 percent of the maximum “by-right” grading quantities as listed in Table 12.21 C.10-6 above.

(iii) **Exempted On-Site Grading Activity.** Earth quantities which originate from, or will be utilized for any exempted Grading activity listed in Subparagraph (3) of this Paragraph (f) shall be exempted from the maximum import and export quantities set forth in this Paragraph (f). A plan indicating the destination and/or source (i.e., exempted Grading activity or non-exempted Grading activity) of any import and/or export shall be submitted as part of a Grading permit application.

(3) **Exemptions.** The Grading activities outlined in the sub-subparagraphs below shall be exempt from the Grading and/or earth transport limitations established in Subparagraphs (1) and (2) of this Paragraph (f). However, any excavation from an exempted activity being used as Fill, outside of a 5-foot perimeter from the exempted Grading activities, for any other on-site purpose shall be counted towards the limits established in Subparagraph (1) of this Paragraph (f).

(i) Cut and/or Fill for deepened foundation systems (such as caissons and piles), water storage tanks, required stormwater retention improvements, and required animal keeping site development that do not involve the construction of any freestanding retaining walls.

(ii) Cut and/or Fill, up to 500 cubic yards, for driveways to the required parking or fire department turnaround closest to the accessible Street for which a Lot has ingress/egress rights.

(iii) Remedial Grading as defined in Section 12.03 of this Code as recommended in a Geotechnical Investigation Report, prepared in accordance with Sections 91.7006.2, 91.7006.3 and 91.7006.4 of this Code, and approved by the Department of Building and Safety - Grading Division.

(iv) Fill resulting from Cut underneath the footprint of the main Building, not to exceed 50 percent of said Cut.

(4) **Zoning Administrator's Authority.** A Zoning Administrator may grant the following deviations from the requirements of Subparagraphs (1) and (2) of this Paragraph (f), pursuant to the authority and procedures established in Subdivision 28. of Subsection X. of Section 12.24 of this Code.

(i) Grading in excess of the maximum “by-right” Grading quantities listed in Subparagraph (1) of this Paragraph (f), but in no event shall the quantities exceed the true value of 1,000 cubic yards plus the numeric value equal to 10% of the total Lot size in cubic yards.

(ii) For a property which fronts onto a Standard Hillside Limited Street or larger, as defined in Section 12.03 of this Code, increase the maximum quantity of earth import and export combined greater than the maximum “by-right” grading quantities as listed in Table 12.21 C.10-6, up to the amount calculated pursuant to Subparagraph (1) of this Paragraph (f).

For a property which fronts onto a Substandard Hillside Limited Street, as defined in Section 12.03 of this Code, increase the maximum quantity of earth import and export combined greater than 75 percent of the maximum “by-right” grading quantities as listed in Table 12.21 C.10-6, up to the amount calculated pursuant to Subparagraph (1) of this Paragraph (f).

(5) **New Graded Slopes.** All new Graded Slopes shall be no steeper than 2:1 (horizontal:vertical), except when the Department of Building and Safety - Grading Division has determined that Slopes may exceed 2:1 pursuant to Section 91.105 of this Code.

(6) **Grading Activity on 100% Slopes.** Notwithstanding the Grading, Excavations and Fills provisions in Chapter IX of this Code (the Los Angeles Building Code), when any Grading activity is proposed on any slope of 100 percent or greater, as identified on the Slope Analysis Map, the Department of Building and Safety - Grading Division shall require the Geotechnical Investigation Report (also referred to as a soils and/or geological report) to include the most stringent level of geotechnical analysis and reporting feasible, and in sufficient detail to substantiate and support the design and construction methods being proposed.

A Deputy Grading Inspector, also referred to as a Registered (Licensed) Deputy Inspector, paid for by the owner, will be required to be on site when said Grading activity is being conducted in order to ensure that all work is being done in accordance with the recommendations of the Geotechnical Report, the approved plans, and/or the applicable Grading requirements of the Los Angeles Building Code for applicable Grading or foundation earthwork in Hillside Areas.

(7) **Grading Plan Check Criteria.** Grading plans and reports shall be submitted for approval with Building plans, and shall include those items required by Section 91.7006 of this Code.

(g) **Off-Street Parking Requirements.** Notwithstanding those exceptions found in Section 12.22 of this Code, no Building or Grading permit shall be issued for the construction of any One-Family Dwelling, Accessory Building, or addition thereto, unless the following requirements are met.

(1) **Number of Required Covered Spaces.** There shall be at least two Automobile Parking Spaces on the same Lot with each One-Family Dwelling thereon. These required parking spaces shall be provided within a Private Garage. These required parking spaces shall not be provided or maintained within a required Front Yard, unless otherwise permitted by Subparagraph (10) of Paragraph (a) of this Subdivision 10.

(i) **Exception for Dwelling on Narrow Lot.** Where only one One-Family Dwelling is located on a nonconforming Lot 40 feet or less in width and not abutting an alley, only one Automobile Parking Space need be provided. This exception shall not apply to any Lot which fronts on a Substandard Hillside Limited Street.

(2) **Additional Required Spaces. (Amended by Ord. No. 184,802, Eff. 3/17/17.)** For a main Building and any Accessory Building located on a Lot which fronts on a Substandard Hillside Limited Street, excluding Floor Area devoted to required parking, which exceed a combined Residential Floor Area of 2,400 square feet, there shall be one additional parking space provided for each additional increment of 1,000 square feet or fraction thereof of Floor Area for a maximum of five total on-site spaces. These additional required parking spaces are not required to be covered. Notwithstanding the provisions of Subparagraph (1) of this Paragraph (g), when a Lot fronts onto a Substandard Hillside Limited Street, the additional parking spaces may be located within the required Front Yard.

(i) **Zoning Administrator’s Authority.** A Zoning Administrator may reduce the number of off-street parking spaces required by Subparagraph (2) of this Paragraph (g), pursuant to the authority and procedures established in Subdivision 28. of Subsection X. of Section 12.24 of this Code.

(3) **Parking Stall Dimensions.** In each parking area or garage devoted to parking for Dwelling uses, all Parking Stalls in excess of one per Dwelling Unit may be designed as compact stalls to accommodate parking cars. Every standard Parking Stall provided for Dwelling Units shall be at least 8 feet 6 inches in width and 18 feet in length; every compact stall shall be at least 7 feet 6 inches in width and 15 feet in length.

(4) **Tandem Parking.** Automobile parking may be parked in tandem in a Private Garage or Private Parking Area serving a One-Family Dwelling where the tandem parking is not more than two cars in depth. Each required

Parking Stall within a parking area or garage shall be accessible. Tandem parking shall not be allowed in parking areas for recreational vehicles.

(5) **Garage Doors.** Any door or doors installed at the automobile entry to a garage serving a One-Family Dwelling where the required parking spaces are located shall be of conventional design constructed so as to permit the simultaneous entry of automobiles in each required parking space without damaging the door or door frame and constructed so as to permit the flow of air through the automobile entry when the door is in the fully closed position.

(6) **Driveway Width.** Every access driveway shall be at least 9 feet in width.

(7) **Mechanical Automobile Lifts and Robotic Parking Structures.** The stacking of two or more automobiles via a mechanical car lift or computerized parking Structure is permitted. The platform of the mechanical lift on which the automobile is first placed shall be individually and easily accessible and shall be placed so that the location of the platform and vehicular access to the platform meet the requirements of Paragraphs (a), (b), and (i) of Subdivision 5. of Subsection A. of Section 12.21 of this Code. The lift equipment or computerized parking Structure shall meet any applicable Building, Mechanical and Electrical Code requirements as approved by the Department of Building and Safety.

(h) **Fire Protection.** Notwithstanding any other provisions of this Code to the contrary, on a Lot fronting onto a Substandard Hillside Limited Street, or on any Lot located either more than 2 miles from a fire station housing a Los Angeles City Fire Department Truck Company or more than 1 1/2 miles from a fire station housing a Los Angeles Fire Department Engine Company, the following fire protection measures shall be required.

(1) **New Buildings or Structures.** Any new construction of a One-Family Dwelling or detached Accessory Building shall be protected throughout with an approved automatic fire sprinkler system, in compliance with the Los Angeles Plumbing Code.

(2) **Existing Buildings or Structures.** An approved automatic fire sprinkler system in compliance with the Los Angeles Plumbing Code shall be installed:

(i) whenever an addition to an existing One-Family Dwelling or Accessory Building increases Residential Floor Area by 50% or more of the area of the existing Dwelling or Building; or

(ii) whenever the aggregate value of Major Remodels within a one-year period exceeds 50% of the replacement cost of the Dwelling or Accessory Building.

(3) **Fire Sprinkler Coverage.** The sprinkler systems required in this Paragraph shall be sufficient to cover the entire Dwelling or Building, unless otherwise determined by the Department of Building and Safety, and shall be installed in compliance with all applicable Codes.

(4) **Exempt Accessory Structures.** The provisions of this Paragraph shall not apply to accessory Structures such as gazebos, pergolas, or storage sheds provided these Structures are not supported by or attached to any portion of a Dwelling or Accessory Building and do not exceed 200 square feet in area.

(i) **Street Access.**

(1) **Street Dedication.** For any new construction of, or addition to, a One-Family Dwelling on a Lot fronting on a Substandard Hillside Limited Street, no Building permit or Grading permit shall be issued unless at least one-half of the width of the Street(s) has been dedicated for the full width of the Frontage of the Lot to Standard Hillside Limited Street dimensions or to a lesser width as determined by the City Engineer. The appellate procedures provided in Section 12.37 I. of this Code shall be available for relief from this requirement.

(2) **Adjacent Minimum Roadway Width.** For any new construction of, or addition to a One-Family Dwelling on a Lot fronting on a Substandard Hillside Limited Street that is improved with a roadway width of less than 20 feet, no Building permit or Grading permit shall be issued unless the construction or addition has been approved pursuant to Section 12.24 X.28. of this Code.

(3) **Minimum Roadway Width (Continuous Paved Roadway).** For any new construction of, or addition to, a One-Family Dwelling on a Lot that does not have a vehicular access route from a Street improved with a minimum 20-foot wide continuous paved roadway from the driveway apron that provides access to the main residence to the boundary of the Hillside Area, no Building permit or Grading permit shall be issued unless the construction or addition meets the requirements of this Subdivision 10. or has been approved by a Zoning Administrator pursuant to Section 12.24 X.28. of this Code.

(j) **Sewer Connection.** No Building permit shall be issued for the construction of any new One-Family Dwelling on a Lot located 200 feet or less from a sewer mainline unless a sewer connection is provided to the satisfaction of the City Engineer.

(k) **Hillside Standards Overlay Districts.** The provisions of Paragraphs (b) (Maximum Residential Floor Area), (d) (Height Limits), and (f) (Grading) of this Subdivision 10. may be superseded by a Hillside Neighborhood Overlay adopted pursuant to Section 13.14 of this Code.

(l) **Exceptions.** The provision of this Subdivision shall not apply to:

(1) **Tracts With CC&Rs Approved After February 1, 1985.** One-Family Dwellings, Accessory Buildings and additions thereto within a subdivision for which a tentative or final tract map was approved by the City of Los Angeles after February 1, 1985, and is still valid, provided that the map resulted in the establishment of covenants, conditions and restrictions governing Building height, yards, open space or Lot coverage, and provided, further, that such covenants, conditions and restrictions were recorded on or after February 1, 1985.

(2) **Residential Floor Area Added to Lots with Existing Buildings Built Prior to August 1, 2010. (Amended by Ord. No. 184,802, Eff. 3/17/17.)** Any construction that adds Residential Floor Area, in excess of the maximum Residential Floor Area provided in Paragraph (b) of this Section, to a lot that includes a main Building that existed prior to August 1, 2010, and for which permits were previously obtained, provided that:

(i) the total cumulative Residential Floor Area of all such additions does not exceed 500 square feet (excluded from calculations of this 500 square foot limitations is Floor Area devoted to required covered parking); and

(ii) the resulting Building complies with the requirements of Paragraphs (a) (Setback Requirements), (d) (Height Limits) and (f) (Grading) of this Subdivision 10.

(3) **Hillside Major Remodel.** As defined in Section 12.03 of this Code, any remodeling of a main Building on a Lot in the Hillside Area, which does not add square footage and for which the aggregate value of all the alterations within a one-year period does not exceed 50% of the replacement cost of the main Building.

(4) **Northeast Los Angeles Hillside Ordinance.** Properties subject to the Northeast Los Angeles Hillside Ordinance established by Ordinance No. 180,403, shall be exempted from Paragraphs (b) (Maximum Residential Floor Area), (d) (Height Limits), and (f) (Grading) of this Subdivision 10.

(5) **The Oaks Hillside Ordinance.** Properties subject to The Oaks Hillside Ordinance established by Ordinance No. 181,136, shall be exempted from Paragraphs (b) (Maximum Residential Floor Area), (d) (Height Limits), and (e) (Lot Coverage) of this Subdivision 10.

(6) **Large Active Remedial Grading Projects. (Amended by Ord. No. 184,802, Eff. 3/17/17.)** Properties with active Remedial Grading Permits for 100,000 cubic yards or more which have been issued by the Department of Building and Safety-Grading Division before July 1, 2010, are exempt from Paragraphs (b) (Maximum Residential Floor Area), (d) (Height Limits) and (f) (Grading) of this Subdivision. Such properties shall remain subject to the provisions of Subdivision 17. of Subsection A. of Section 12.21 of this Code, and all other zoning and Building regulations applicable at the time Building Permits are issued. This exception shall expire 85 months after July 1, 2010.

D. Location Of Hospitals. No hospital, sanitarium or clinic for mental, or drug or liquor addict cases shall be established or maintained on any property within 600 feet of the property on which an elementary or high school is being maintained.

E. Use Of Future Streets And Alleys. (Added by Ord. No. 129,499, Eff. 3/28/65.) No building or structure, except a fence, shall be erected or maintained on any portion of a lot which has been designated as a future street or alley, as provided for in Article 7 hereof, nor shall any portion of said future street or future alley be used in providing minimum off-street parking required by this section.

F. On-Site Shopping Cart Containment. (Added by Ord. No. 182,121, Eff. 6/20/12.)

1. **Purpose.** It is the purpose of this subsection to prevent or reduce the accumulation of shopping carts abandoned in neighborhoods. Abandoned shopping carts cause visual blight in neighborhoods, reduce property values in communities, obstruct pedestrian and vehicular traffic in the public rights-of-way, and constitute a hazard to the health, safety, and general welfare of the public throughout the City of Los Angeles. Therefore, development standards are established for projects involving any new retail establishment, or the major remodel of a retail establishment, that provide six or more shopping carts on-site for use by its patrons.

2. **Definitions.** Notwithstanding any provisions of this Code to the contrary, the following definitions shall apply to this subsection:

(a) **Abandoned Shopping Cart.** A shopping cart located beyond the premises of a retail establishment that furnishes shopping carts for use by its patrons.

(b) **Bollard.** An upright post consisting of a piece of timber, concrete, metal or similar material fixed firmly in an

upright position that creates a narrowed passageway restricting the removal of shopping carts from the premises.

(c) **Bureau of Sanitation.** The Bureau of Sanitation of the Department of Public Works or successor agency. (Amended by Ord. No. 182,571, Eff. 7/16/13.)

(d) **Major Remodel.** A major remodel is either:

(1) An addition in excess of 50 percent of the current floor area of a retail establishment that provides at least six or more shopping carts for its patrons, or

(2) An alteration, repair, remodel, or addition with a total building permit valuation in excess of 50 percent of the replacement cost of a building, or portion of a building, occupied by a retail establishment that provides at least six or more shopping carts for its patrons.

(e) **Parking Area.** The parking lot or other property provided by a retail establishment for use by its patrons for parking automobiles or other vehicles.

(f) **Premises.** The area maintained or managed by a retail establishment that provides at least six or more shopping carts for its patrons, including the building, parking area, and adjacent walkways.

(g) **Project.** A new retail establishment, or the major remodel of a retail establishment, that provides or maintains at least six or more shopping carts for use by its patrons.

(h) **Shopping Cart.** A basket of any size, mounted on wheels, rollers or a similar device, including parts, provided by a retail establishment for the purpose of transporting groceries or merchandise of any kind within a retail establishment or parking area of that retail establishment.

3. **Application. (Renumbered by Ord. No. 182,571, Eff. 7/16/13.)** The development standards and containment methods set forth herein to contain shopping carts on premises shall apply to new retail establishments, or the major remodel of retail establishments, after the effective date of this ordinance.

4. **Containment Methods. (Renumbered by Ord. No. 182,571, Eff. 7/16/13.)** A project shall include at least one of the permitted methods to contain shopping carts on the premises. Permitted methods are limited to:

(a) **Bollards.** Installation of bollards;

(b) **Wheel Locking or Stopping Mechanisms.** Equipping shopping carts with a wheel locking or stopping mechanism that is used in conjunction with an electronic magnetic barrier along the perimeter of the retail establishment. The wheel locking or stopping mechanism must activate when the shopping cart crosses the electronic or magnetic barrier;

(c) **Customer Service.** Designation of certain employees to prevent the removal of shopping carts from the premises by assisting patrons with transporting groceries or merchandise to patrons' vehicles and then returning shopping carts to the location where the retail establishment keeps the shopping carts for its patrons;

(d) **Other Methods.** Other methods for onsite containment so long as the Bureau of Street Services has approved the system or method which would effectively contain or control shopping carts on the premises.

5. **Enforcement. (Renumbered and Amended by Ord. No. 182,571, Eff. 7/16/13.)** Notwithstanding the provisions of Section 12.26 of this Code, the Bureau of Sanitation shall have the authority and responsibility to enforce this subsection.

G. Open Space Requirement for Six or More Residential Units. (Added by Ord. No. 171,753, Eff. 11/17/97.)

1. **Purpose.** It is the purpose of this subsection to establish reasonable and uniform regulations to provide usable open space as a means to fulfill the following objectives: afford occupants of multiple residential dwelling units opportunities for outdoor living and recreation; provide safer play areas for children as an alternative to the surrounding streets, parking areas, and alleys; improve the aesthetic quality of multiple residential dwelling units by providing relief to the massing of buildings through the use of landscape materials and reduced lot coverage; and provide a more desirable living environment for occupants of multiple residential dwelling units by increasing natural light and ventilation, improving pedestrian circulation and providing access to on-site recreation facilities.

2. **Regulations.** New construction (resulting in additional floor area and additional units) of a building or group of buildings containing six or more dwelling units on a lot shall provide at a minimum the following usable open space per dwelling unit: 100 square feet for each unit having less than three habitable rooms; 125 square feet for each unit having three habitable rooms; and 175 square feet for each unit having more than three habitable rooms.

For purposes of this subsection, usable open space shall mean an area which is designed and intended to be used for active or passive recreation. Usable open space may consist of private and/or common area as further defined and regulated herein. Parking areas, including access aisles, driveways, and required front and side yards, open space areas located above the first habitable

room level, except as otherwise provided for herein, shall not qualify as usable open space.

(a) **Common Open Space:**

(1) Common open space shall meet each of the following requirements:

- (i) Be open to the sky and have no structures that project into the common open space area, except as provided in Section 12.22 C.20.(b),
- (ii) Be readily accessible to all the residents of the site,
- (iii) Have a minimum area of 400 sq. ft. with no horizontal dimension less than 15 feet when measured perpendicular from any point on each of the boundaries of the open space area,
- (iv) Constitute at least 50% of the total required usable open space in developments built at an R3, RAS3, R4, RAS4, and/or R5 density regardless of the underlying zone. **(Amended by Ord. No. 174,999, Eff. 1/15/03.)**
- (v) Be located at the grade level or first habitable room level, except in developments built at an R3, RAS3, R4, RAS4, and/or R5 density regardless of the underlying zone. **(Amended by Ord. No. 174,999, Eff. 1/15/03.)**

(2) Common open space areas shall incorporate recreational amenities such as swimming pools, spas, picnic tables, benches, children's play areas, ball courts, barbecue areas and sitting areas. **(Amended by Ord. No. 184,505, Eff. 1/11/17.)**

(3) A minimum of 25 percent of the common open space area shall be planted with ground cover, shrubs or trees. At least one 24-inch box tree for every four dwelling units shall be provided on site and may include street trees in the parkway. For a surface area not located directly on finished grade that is used for common open space, and located at ground level or the first habitable room level, shrubs and/or trees shall be contained within permanent planters at least 30-inches in depth, and lawn or ground cover shall be at least 12- inches in depth. All required landscaped areas shall be equipped with an automatic irrigation system and be properly drained.

The Director of Planning or the Director's designee shall have the authority to review and approve or disapprove all proposed landscape plans submitted in compliance with this Paragraph, pursuant to Sec. 13B.3.1. (Administrative Review) of Chapter 1A of this Code. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

(4) Notwithstanding the provisions set forth in this paragraph:

- (i) Recreation rooms at least 600 square feet in area for a development of 16 or more dwelling units, or at least 400 square feet in area for a development of fewer than 16 dwelling units, may qualify as common open space, but shall not qualify for more than 25 percent of the total required usable open space.
- (ii) Roof decks in developments built at an R3 or an RAS3 density, regardless of the underlying zone, may be used as common open space, excluding that portion of the roof within ten feet from the parapet wall. **(Amended by Ord. No. 174,999, Eff. 1/15/03.)**
- (iii) Roof decks in developments built at an R4, RAS4, and/or R5 density, regardless of the underlying zone, may be used in their entirety as common open space. **(Amended by Ord. No. 174,999, Eff. 1/15/03.)**

(b) **Private Open Space.** Private open space is an open space area which is contiguous to and immediately accessible from a single dwelling unit and which meets all of the following requirements of the zones herein specified:

(1) In the RD 1.5 and more restrictive zones:

- (i) private open space shall be located at grade level or the first habitable room level and be open to the sky. Structures may project no more than three feet into the private open space area, provided there is a minimum eight foot vertical clearance under the projection, except as provided in Section 12.22 C.20.(b);
- (ii) private open space shall be enclosed by a solid fence at least four feet in height; and
- (iii) the private open space area shall have no horizontal dimension less than eight feet, when measured perpendicular from any point on each of the boundaries of the open space area and contain a minimum of 100 square feet of which no more than 100 square feet per dwelling unit shall be attributable to the total required open space.

(2) **(Amended by Ord. No. 174,999, Eff. 1/15/03.)** In developments built at an R3, RAS3, R4, RAS4, and/or

R5 density regardless of the underlying zone, private open space may be provided above the first habitable room level. When so provided, it shall:

- (i) contain a minimum of 50 square feet of which no more than 50 square feet per dwelling unit shall be attributable to the total required usable open space;
- (ii) have no horizontal dimension less than six feet when measured perpendicular from any point on each of the boundaries of the open space area; and
- (iii) provide a minimum eight foot vertical clearance under any projection, except as provided in Section 12.22 C.20.(b); and
- (iv) that portion of a balcony which extends or projects into a required front yard in compliance with Section 12.22 C.20.(d) may qualify as usable open space provided it meets each of the above specified requirements set forth in this subparagraph.

3. **Director Determination. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)** If a development proposed with an R3, RAS3, R4, RAS4, or R5 density, regardless of the underlying zone, fails to meet the open space standards of this Subsection, an applicant may apply for a Director Determination, pursuant to Sec. 13B.2.5. (Director Determination) of Chapter 1A of this Code.

(a) **Application.** The applicant shall file an application in the public office of the Department of City Planning upon a form prescribed for that purpose and pay a filing fee equivalent to that established for a “Miscellaneous Plan Approval”. This fee is set forth in Section 19.01 I. of this Chapter. The application shall be accompanied by architectural, landscape and structural plans for the development, and other information as required by the Director of Planning. All open space areas for the development shall be clearly identified in the materials submitted.

(b) **Standards of Review.** No decision granting approval pursuant to Sec. 13B.2.5. (Director Determination) of Chapter 1A of this Code shall exceed:

- (1) a ten percent reduction in the total required usable open space, provided that any reduction is to the common open space portion only; or
- (2) a ten percent increase in the qualifying area of recreation rooms up to a maximum of 35 percent of the total required usable open space; or
- (3) a ten percent reduction in the required area for planting of ground cover, shrubs and trees in common open space, but that reduction shall not decrease the total required usable open space.

(c) **Supplemental Findings.** Despite the findings in Sec. 13B.2.5. (Director Determination) of Chapter 1A of this Code, the Director must find:

- (1) that the open space provided conforms with the objectives of this subsection, and
- (2) that the proposed project complies with the total usable open space requirements.

SEC. 12.21.1. HEIGHT OF BUILDING OR STRUCTURES.

No building or structure shall be erected or enlarged which exceeds the total floor area, the number of stories or the height limits hereinafter specified for the district in which the building or structure is located. Provided, however, that with respect to height, buildings and structures located within the boundaries of the Century City North and Century City South Specific Plans shall comply solely with the requirements of the respective specific plan and the requirements of Section 12.21.2 of this Code; that buildings and structures located within Community Redevelopment Plan Areas shall comply with the requirements of Section 12.21.3 of this Code; that buildings and structures located within Enterprise Zones shall comply with the requirements of Section 12.21.4 of this Code; that buildings and structures located within Centers Study Areas designated on Maps Numbered 1 through 29 referred to in Section 12.21.5 of this Code, shall comply with the requirements of Section 12.21.5 of this Code; and that buildings and structures located in the R1V, R1F, and R1R One-Family Zone Variations shall comply with the requirements of Section 12.21.6 of this Code. Such designations are consistent with the purposes, intent and provisions of the General Plan. **(Amended by Ord. No. 184,802, Eff. 3/17/17.)**

In the A1, A2, RZ, RMP, and RW2 Zones, and in those portions of the RD and R3 Zones, which are also in Height District No. 1, no Building or Structure shall exceed 45 feet in height. In the RA, RE, RS, R1 and R2 Zones in Height District No. 1, located in a Coastal Zone, no Building or Structure shall exceed 45 feet in height. In the RU and RW1 Zones, no Building or Structure shall exceed 30 feet in height. In the RA, RE, RS, and R1 Zones in Height District No. 1, located in a Hillside Area, as defined in Section 12.03 of this Code, no Building or Structure shall exceed the height limits established in Paragraph (d) of Subdivision 10. of Subsection C. of Section 12.21 of this Code. **(Amended by Ord. No. 181,624, Eff. 5/9/11.)**

Notwithstanding the preceding paragraph, the following height regulations shall apply on a Lot that is not located in a Hillside Area or

Coastal Zone: In the R2 Zone, no Building or Structure shall exceed 33 feet in height. In the R1, RS, or RE9 Zones, no Building or Structure shall exceed 33 feet in height; except that when the roof of the uppermost Story of a Building or Structure or portion of the Building or Structure has a Slope of less than 25 percent, the maximum height shall be 28 feet. In the RE11, RE15, RE20, RE 40 or RA Zones, no Building or Structure shall exceed 36 feet in height; except that when the roof of the uppermost Story of a Building or Structure or portion of a Building or Structure has a Slope of less than 25 percent, the maximum height shall be 30 feet. **(Amended by Ord. No. 181,624, Eff. 5/9/11.)**

Notwithstanding the above, when 40 percent or more of the existing One-Family Dwellings with Frontage on both sides of the block have Building heights exceeding these limits, the maximum height for any Building on that block may be the average height of the Dwellings exceeding these limits. Height limitations in Specific Plans, Historic Preservation Overlay Zones or in subdivision approvals shall take precedence over the requirements of this Section 12.21.1. This section shall apply when there are no height limitations imposed on Lots by a Specific Plan or a Historic Overlay Zone or created by a subdivision approval. **(Added by Ord. No. 181,624, Eff. 5/9/11.)**

In the CR Zone and those portions of the RD, R3, and RAS3 Zones, which are in Height District Nos. 2, 3 or 4, no building or structure shall exceed six stories nor shall it exceed 75 feet in height. However, a building designed and used entirely for residential purposes or a residential building in the RAS3 Zone that has commercial uses on the ground floor, shall only be limited as to the number of feet in height. **(Amended by Ord. No. 174,999, Eff. 1/15/03.)**

In the PB Zone, no parking building shall exceed a height of two stories in Height District No. 1; provided, however, that the parking of automobiles shall be permitted on the roof of the parking building if a solid enclosing wall or parapet wall at least three feet six inches in height is provided and maintained around all those portions of the roof which are arranged and used for the parking of automobiles. No parking building in a PB zone shall exceed a height of six stories in Height District No. 2, ten stories in Height District No. 3 or 13 stories in Height District No. 4. Basement floors, located entirely below the natural or finished grade of a lot, whichever is lower, shall not be considered in computing the permitted height of parking buildings in the PB Zone. **(Amended by Ord. No. 122,569, Eff. 9/2/62.)**

A. Limitations.

1. **(Amended by Ord. No. 181,624, Eff. 5/9/11.)** The total Floor Area contained in all the main Buildings on a Lot in a commercial or industrial zone in Height District No. 1 shall not exceed one-and- one-half times the Buildable Area of the Lot; for a Lot in all other zones, except the RA, RE, RS, and R1 Zones, the total Floor Area contained in all the main Buildings on a Lot in Height District No. 1 shall not exceed three times the Buildable Area of the Lot.

For RA, RE, RS, and R1 Zoned properties not located in a Hillside Area or Coastal Zone, the total Residential Floor Area shall comply with the Floor Area restrictions for each zone. For RA, RE, RS, and R1 Zoned properties located in a Hillside Area, as defined in Section 12.03 of this Code, the total Residential Floor Area shall comply with the limits established in Paragraph (b) of Subdivision 10. of Subsection C. of Section 12.21 of this Code. For RA, RE, RS, and R1 Zoned properties in a Coastal Zone not located in a Hillside Area, as defined in Section 12.03 of this Code, the total Floor Area contained in all the main buildings on a Lot shall not exceed three times the Buildable Area of the Lot.

Portions of Height District No. 1 may be designated as being in an “L” Limited Height District, and no Building or Structure in Height District No. 1-L shall exceed six Stories, nor shall it exceed 75 feet in height. Portions of Height District No. 1 may be designated as being in a “VL” Very Limited Height District, and no Building or Structure in Height District No. 1-VL shall exceed three Stories, nor shall it exceed 45 feet in height. Notwithstanding that limitation, portions of Height District No. 1-VL that are also in the RAS3 or RAS4 Zones shall not exceed 50 feet in height. Portions of Height District No. 1 may also be designated as being in an “XL” Extra Limited Height District, and no Building or Structure in Height District No. 1-XL shall exceed two Stories, nor shall the highest point of the roof of any Building or Structure located in this District exceed 30 feet in height. In the RA, RE, RS, and R1 Zones, portions of Height District No. 1 may also be designated as being in an “SS” Single Story Limit Height District, and no Building or Structure in Height District No. 1-SS shall exceed one Story, nor shall the highest point of the roof of any Building or Structure located in this District exceed 18 feet in height. For the purposes of Height District No. 1-SS, a Basement does not count as a Story when the Elevation of the upper surface of the floor or roof above the Basement does not exceed two feet in height at any point above the finished or natural Grade, whichever is lower.

EXCEPTION: A Building in Height District Nos. 1-XL, 1-VL, designed and used entirely for residential purposes, or a Building in the RAS3 or RAS4 Zones shall be limited as to the number of feet in height, but not as to the number of Stories.

2. The total floor area contained in all the buildings on a lot in Height District No. 2 shall not exceed six times the buildable area of said lot. **(Amended by Ord. No. 161,684, Eff. 11/3/86.)**

3. The total floor area contained in all the buildings on a lot in Height District No. 3 shall not exceed ten times the buildable area of said lot. **(Amended by Ord. No. 161,684, Eff. 11/3/86.)**

4. The total floor area contained in all the buildings on a lot in Height District No. 4 shall not exceed thirteen times the buildable area of said lot. **(Amended by Ord. No. 161,684, Eff. 11/3/86.)**

5. In computing the total floor area within a building, the gross area confined within the exterior walls within a building shall be considered as the floor area of that building, except for the space devoted to bicycle parking, stairways, elevator shafts, light courts, rooms housing mechanical equipment incidental to the operation of buildings, and Outdoor Dining Areas. **(Amended by**

6. Whenever any unusual situation or design of building exists so that it is difficult to determine the precise application of those provisions, the Department of Building and Safety shall make such determinations in a manner to carry out the indicated purpose and intent hereof.

7. **(None)**

8. In determining the number of stories, any basement containing habitable rooms shall be considered a story. **(Added by Ord. No. 131,309, Eff. 4/24/66.)**

9. **(Amended by Ord. No. 173,492, Eff. 10/10/00.)** Additional limitations may be required as set forth in Section 12.32 G.3.

10. **(Added by Ord. No. 161,684, Eff. 11/3/86.)** Notwithstanding any other provisions of this section, portions of buildings on a C or M zoned lot governed by the provisions of this section shall not exceed the height limits set forth below when located within the distances specified from a lot classified in the RW1 Zone or a more restrictive zone.

<u>Distance</u>	<u>Height</u>
0 to 49 feet	25 feet
50 to 99 feet	33 feet
100 to 199 feet	61 feet

When the highest existing elevation of the adjacent property in the RW1 Zone or a more restrictive zone exceeds the grade of a C or M zoned property by more than five feet, a building or structure on the C or M zoned property may exceed the height specified above by the number of feet represented by the difference in grade.

Buildings of a height greater than that specified in this subdivision may be authorized by a Zoning Administrator pursuant to Section 12.24 X.22. **(Amended by Ord. No. 173,492, Eff. 10/10/00.)**

B. Exceptions.

1. In Height District No. 1, motion picture studio stages, scenes or skybackings, temporary towers and the like may be erected to a height of 125 feet if said building and structures observe front, side, and rear yards of one foot for each four feet such building or structure exceeds three stories or 45 feet in height. Said yards shall be in addition to any other yards or setbacks required by other provisions of this article.

2. Whenever the highest point of elevation of the adjoining sidewalk or ground surface within a five- foot horizontal distance measured from the exterior wall of a building exceeds grade level by more than 20 feet, a building or structure may exceed the height in number of feet prescribed in this section by not more than 12 feet. However, such additional height shall not be permitted to the extent that such additional height causes any portion of the building or structure to exceed a height in number of feet as prescribed by this section as measured from the highest point of the roof structure or parapet wall to the elevation of the ground surface which is vertically below this point of measurement. The provisions of this subdivision shall not apply to any one-family dwelling subject to the provisions of Section 12.21 A.17. of this Code. **(Amended by Ord. No. 168,159, Eff. 9/14/92.)**

3. Roof Structures and Equipment. (Amended by Ord. No. 182,110, Eff. 5/29/12.)

(a) Tanks or similar equipment required to operate and maintain the building, skylights, towers, steeples, flagpoles, smokestacks, wireless masts, water tanks, silos, or similar structures may be erected above the building height limit by up to five feet if the structure is set back from the roof perimeter by five feet.

Chimney, exhaust ducts, solar water heaters, or any roof structure housing stairways, elevators or ventilation fans may also exceed the building height limit by up to five feet, but are not required to provide a setback from the perimeter of the roof. Where height is limited to seventy-five (75) feet, roof structures for the housing of elevators and stairways may exceed the building height limit by up to twenty (20) feet in height, and where height is limited to thirty (30) feet or forty-five (45) feet, roof structures for the housing of elevators and stairways may exceed the building height limit by up to ten (10) feet in height.

No such structure or any other space above the specified height limit shall be allowed for the purpose of providing additional floor space.

(b) In all zones, except the "A", "R", "CR", "C1" and "C1.5", a roof sign may also be erected above the specified height limit.

(c) Structures and panel assemblies solely supporting solar energy systems ("Solar Structures").

(1) In all zones, Solar Structures may exceed the roof surface by 3 feet even if the roof surface is at or above the allowable building height limit. The height shall be measured to the highest point of the structure and panel

assembly. These structures are not required to provide a setback as described in paragraph (a) of this Subdivision.

(2) Other than the R1 and more restrictive zones, solar structures built on a flat roof may exceed the roof surface by up to 15 feet even if the roof surface is at or above the allowable building height limit. The height shall be measured to the highest point of the structure and panel assembly.

Exception: In the R1 and more restrictive zones, a solar structure may exceed the roof surface by up to 15 feet on a flat roof only if the structure is also used for the purpose of shading a habitable rooftop deck or rooftop parking. The structure(s), however, may not exceed the height limit. Setbacks are not required by this paragraph.

4. In all height districts parking floor space with necessary interior driveways and ramps thereto, space within a roof structure or penthouse for the housing of building operating equipment or machinery, space provided for the landing and storage of helicopters and basement storage space shall not be considered in determining the total floor area within a building. **(Amended by Ord. No. 146,704, Eff. 12/9/74.)**

5. Notwithstanding the height limitations of the height district in which they are located, municipal buildings under the control, operation or management of City departments or agencies may be built to a maximum height of 35 feet. In addition, sports field lighting standards in parks under the control, operation or management of the Board of Recreation and Park Commissioners and used for recreation purposes as determined by that agency may be built to a maximum height of 75 feet and must be equipped with appropriate beam control to direct the light onto the field and prevent glare and spill light from impacting neighboring properties, and shall include automatic timer control with an on/off scheduling system. **(Added by Ord. No. 174,788, Eff. 10/05/02.)**

6. **(Amended by Ord. No. 163,627, Eff. 6/20/88.)** Notwithstanding the provisions of Section 12.21.1 A.10., buildings on a lot in a C or M zone in Height District No. 1 shall not be restricted in height as provided by Section 12.21.1 A.10., under either of the following circumstances:

a. **(Amended by Ord. No. 173,492, Eff. 10/10/00.)** Where one or more of the following discretionary approvals, initiated by application of property owners or their representatives, was granted on or after January 1, 1983, and specifically addressed the height for one or more buildings: change of zone, height district change, exception from a specific plan, conditional use, variance, tract map, parcel map or coastal development permit. If the approval provided for a specific height, then the restriction shall apply to the buildings and structures on the lot; or

b. Where architectural and structural plans sufficient for a complete plan check for a building permit for a building or structure were accepted by the Department of Building and Safety and for which a plan check fee was collected on or before the effective date of this subdivision, and for which no subsequent changes are made to those plans which increase the height. However, any such building permit shall become invalid if construction pursuant to such permit is not commenced within 18 months of the date the plan check fee was collected.

SEC. 12.21.2. HEIGHT OF BUILDINGS OR STRUCTURES IN CENTURY CITY.

(Added by Ord. No. 160,657, Eff. 2/17/86, Oper. 6/17/86.)

Within the boundaries of the Century City North and Century City South Specific Plans **(Ordinance No. 156,122 and 156,121 respectively)**, the following definitions and regulations shall apply:

A. Definitions.

1. **Building, Height of** – The vertical distance between the highest point of the adjacent ground elevation and the ceiling of the top story of the building.

2. **Grade (Adjacent Ground Elevation)** – The lowest point of elevation of the finished surface of the ground between the exterior wall of a building and a point five feet distant from said wall, or the lowest point of elevation of the finished surface of the ground between the exterior wall of the building and the property line if it is less than five feet distant from said wall. In case walls are parallel to and within five feet of a public sidewalk, alley or other public way, the grade shall be the elevation of the sidewalk, alley or public way.

B. Height of buildings or structures.

1. No building shall be erected, enlarged or maintained which exceeds either the total floor area, the number of stories or the height limits hereinafter specified for the district in which the building or structure is located.

2. The total floor area contained in all the main buildings on a lot in Height District No. 1 shall not exceed three times the buildable area of said lot. Portions of Height District No. 1 may be designated as being in an “L” Limited Height District and no building or structure in Height District No. 1-L shall exceed six stories nor shall it exceed 75 feet in height. Portions of Height District No. 1 may be designated as being in a “VL” Very Limited Height District and no building or structure in Height District No. 1-VL shall exceed three stories nor shall it exceed 45 feet in height. Notwithstanding that limitation, portions of Height District No. 1-VL that are also in the RAS3 or RAS4 zones shall not exceed 50 feet in

height. **(Amended by Ord. No. 174,999, Eff. 1/15/03.)**

3. The total floor area contained in all the main building on a lot in Height District No. 2 shall not exceed six times the buildable area of said lot.

4. In computing the total floor area within a building, the gross area confined within the exterior walls within a building, except for the space devoted to stairways, elevator shafts, light courts, and rooms housing mechanical equipment incidental to the operation of buildings, shall be considered as the floor area of that floor of the building.

5. Whenever any unusual situation or design of building exists so that it is difficult to determine the precise application of those provisions, the Department of Building and Safety shall make such determinations in a manner to carry out the indicated purpose and intent thereof.

6. In any zone or height district where buildings are limited to a specific height or number of stories, no portion of any roof shall exceed the permitted building height by more than 14 feet.

7. In determining the number of stories, any basement containing habitable rooms shall be considered a story.

8. **(Deleted by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

C. Exceptions

1. In Height District No. 1, motion picture studio stages, scenes or skybackings, temporary towers and the like may be erected to a height of 125 feet if said buildings and structures observe front, side, and rear yards of one foot for each four feet such building or structure exceeds three stories or 45 feet in height. Said yards shall be in addition to any other yards or setbacks required by other provisions of this article.

2. Buildings or structures erected on sloping ground may exceed the height in number of feet, prescribed in this subsection, insofar as such additional height may be required to overcome differences in adjoining sidewalk or ground elevations, but no building or structure shall exceed the specified height limit for the district in which it is located, measured from the highest point of the adjoining sidewalk or ground level, nor shall any such building or structure exceed the specified height limit by more than 15 feet from any other point of the adjoining sidewalk or ground level. No such building shall have more stories than hereinabove provided.

3. Penthouses or roof structures for the housing of elevators, stair ways, tanks, ventilating fans or similar equipment required to operate and maintain the building, or fire or parapet walls, skylights, towers, steeples, flagpoles, chimneys, smokestacks, wireless masts, water tanks, silos or similar structures, may be erected above the height limit specified in the district in which the property is located, but no such penthouse or roof structure, or any other space above said height limit shall be allowed for the purpose of providing additional floor space. In all zones, except the "A", "R", "CR", "C1", and "C1.5", a roof sign may also be erected above the specified height limit.

4. In all height districts parking floor space with necessary interior driveways and ramps thereto, space within a roof structure or penthouse for the housing of building operating equipment or machinery, space provided for the landing and storage of helicopters and basement storage space shall not be considered in determining the total floor area within a building.

SEC. 12.21.3. HEIGHT OF BUILDINGS OR STRUCTURES IN COMMUNITY REDEVELOPMENT PLAN AREAS. (Added by Ord. No. 161,684, Eff. 11/3/86.)

Within the boundaries of a Community Redevelopment Plan Area for which a redevelopment plan has been adopted pursuant to the California Community Redevelopment Law, the height district limitations set forth below in Subsections A. through F. shall apply:

A. The total floor area contained in all the buildings on a lot in Height District No. CRA 1 shall not exceed three times the buildable area of said lot.

Portions of Height District No. CRA 1 may be designated as being in an "L" Limited Height District, and no building or structure in Height District No. CRA 1L shall exceed six stories, nor shall it exceed 75 feet in height. Portions of Height District No. CRA 1 may be designated as being in a "VL" Very Limited Height District, and no building or structure in Height District No. CRA 1-VL shall exceed three stories, nor shall it exceed 45 feet in height. Notwithstanding that limitation, portions of Height District No. CRA 1-VL that are also in the RAS3 or RAS4 zones shall not exceed 50 feet in height. Portions of Height District No. CRA 1 may also be designated as being in an "XL" Extra Limited Height District, and no building or structure in Height District No. CRA 1-XL shall exceed two stories, nor shall the highest point of the roof of any building or structure located in such District exceed 30 feet in height. **(Amended by Ord. No. 174,999, Eff. 1/15/03.)**

EXCEPTION: A building in Height District Nos. CRA 1-XL, CRA 1-VL and CRA 1-L designed and used entirely for residential purposes, or in the RAS3 or RAS4 Zones, shall be limited as to the number of feet in height, but not as to the number of stories. **(Amended by Ord. No. 174,999, Eff. 1/15/03.)**

B. The total floor area contained in all the buildings on a lot in Height District No. CRA2 shall not exceed six times the buildable area of said lot.

C. The total floor area contained in all the buildings on a lot in Height District No. CRA3 shall not exceed ten times the buildable area of said lot.

D. The total floor area contained in all the buildings on a lot in Height District No. CRA4 shall not exceed thirteen times the buildable area of said lot.

E. Buildings and structures shall further comply with the provisions of Section 12.21.1 A.5., 6., 8., 9. and 10. and Section 12.21.1 B.1., 2., 3. and 4.

F. Additional limitations on the height and/or floor area of any building or structure may be required as set forth in each applicable Community Redevelopment Plan.

Editor's note: Maps formerly associated with this section were deleted by Ord. No. 177,103, Eff. 12/18/05.

SEC. 12.21.4. HEIGHT OF BUILDINGS OR STRUCTURES IN ENTERPRISE ZONES.

(Added by Ord. No. 161,684, Eff. 11/3/86.)

An Enterprise Zone shall be that area designated by City Council resolution and which has received approval as such from the California Department of Commerce under either the Employment and Economic Incentive Act Program or the Enterprise Zone Act Program. Within the boundaries of "Enterprise Zones," the height district limitations set forth below in Subsections A. through F. shall apply:

A. The total floor area contained in all the buildings on a lot in Height District No. EZ1 shall not exceed three times the buildable area of said lot.

Portions of Height District No. EZ 1 may be designated as being in an "L" Limited Height District, and no building or structure in Height District No. EZ 1-L shall exceed six stories, nor shall it exceed 75 feet in height. Portions of Height District No. EZ 1 may be designated as being in a "VL" Very Limited Height District, and no building or structure in Height District No. EZ 1-VL shall exceed three stories, nor shall it exceed 45 feet in height. Notwithstanding that limitation, portions of Height District No. EZ 1-VL that are also in the RAS3 or RAS4 zones shall not exceed 50 feet in height. Portions of Height District No. EZ 1 may also be designated as being in an "XL" Extra Limited Height District, and no building or structure in Height District No. EZ 1-XL shall exceed two stories, nor shall the highest point of the roof of any building or structure located in such District exceed 30 feet in height. **(Amended by Ord. No. 174,999, Eff. 1/15/03.)**

EXCEPTION: A building in Height District Nos. EZ 1-XL, EZ 1-VL and EZ 1-L designed and used entirely for residential purposes, or in the RAS3 or RAS4 Zones, shall be limited as to the number of feet in height, but not as to the number of stories. **(Amended by Ord. No. 174,999, Eff. 1/15/03.)**

B. The total floor area contained in all the buildings on a lot in Height District No. EZ2 shall not exceed six times the buildable area of said lot.

C. The total floor area contained in all the buildings on a lot in Height District No. EZ3 shall not exceed ten times the buildable area of said lot.

D. The total floor area contained in all the buildings on a lot in Height District No. EZ4 shall not exceed thirteen times the buildable area of said lot.

E. Buildings and structures shall further comply with the provisions of Section 12.21.1 A.5., 6., 8., 9. and 10. and Section 12.21.1 B.1., 2., 3. and 4.

F. Additional limitations on the height and/or floor area of any building or structure may be required as set forth in each applicable specific plan.

Editor's note: Maps formerly associated with this section were deleted by Ord. No. 168,035, Eff. 7/30/92.

SEC. 12.21.5. HEIGHT OF BUILDINGS OR STRUCTURES IN CENTERS STUDY AREAS.

(Added by Ord. No. 161,684, Eff. 11/ 3/86.)

Within the boundaries of the Centers Study areas designated on Maps numbered 1 through 3 and 5 through 28 in Council File Nos. 86-0958, 86-0957, 85-0193 and 84-1554, the height district limitations set forth below in Subsections A. through F. shall apply. **(Amended by Ord. No. 177,103, Eff. 12/18/05.)**

A. The total floor area contained in all the buildings on a lot in Height District No. CSA 1 shall not exceed three times the buildable area of said lot.

Portions of Height District No. CSA 1 may be designated as being in an “L” Limited Height District, and no building or structure in Height District No. CSA 1-L shall exceed six stories, nor shall it exceed 75 feet in height. Portions of Height District No. CSA 1 may be designated as being in a “VL” Very Limited Height District, and no building or structure in Height District No. CSA 1-VL shall exceed three stories, nor shall it exceed 45 feet in height. Notwithstanding that limitation, portions of Height District No. CSA 1-VL that are also in the RAS3 or RAS4 zones shall not exceed 50 feet in height. Portions of Height District No. CSA 1 may also be designated as being in an “XL” Extra Limited Height District, and no building or structure in Height District No. CSA 1-XL shall exceed two stories, nor shall the highest point of the roof of any building or structure located in such District exceed 30 feet in height. **(Amended by Ord. No. 174,999, Eff. 1/15/03.)**

EXCEPTION: A building in Height District Nos. CSA 1-XL, CSA1-VL and CSA1-L designed and used entirely for residential purposes, or in the RAS3 or RAS4 Zones, shall be limited as to the number of feet in height, but not as to the number of stories. **(Amended by Ord. No. 174,999, Eff. 1/15/03.)**

B. The total floor area contained in all the buildings on a lot in Height District No. CSA2 shall not exceed six times the buildable area of said lot.

C. The total floor area contained in all the buildings on a lot in Height District No. CSA3 shall not exceed ten times the buildable area of said lot.

D. The total floor area contained in all the buildings on a lot in Height District No. CSA4 shall not exceed thirteen times the buildable area of said lot.

E. Buildings and structures shall further comply with the provisions of Section 12.21.1 A.5., 6., 8., 9. and 10. and Section 12.21.1 B.1., 2., 3. and 4.

F. Additional limitations on the height and/or floor area of any building or structure may be required as set forth in any applicable specific plan.

Editor’s note: Maps formerly associated with this section were deleted by Ord. No. 177,103, Eff. 12/18/05.

SEC. 12.21.6. HEIGHT OF BUILDINGS OR STRUCTURES IN ALL R1V, R1F, AND R1R ONE-FAMILY ZONE VARIATIONS.

(Added by Ord. No. 184,802, Eff. 3/17/17.)

Lots zoned R1V, R1F and R1R shall comply with all height limitations in 12.08 C.5.(b) - (d).

SEC. 12.22. EXCEPTIONS.

A. Use.

1. **Private Garage Not Required – Topography** – Where a lot abuts upon a street or place which due to topographic conditions or excessive grades is not accessible by automobile, and such lot is to be occupied by not more than a one-family dwelling, no private garage shall be required.

2. **Public Utilities and Public Services** – The provisions of this article shall not be so construed as to limit or interfere with the construction, installation, operation and maintenance for public utility purposes of water and gas pipes, mains and conduits, electric light and electric power transmission and distribution lines, telephone and telegraph lines, oil pipe lines, sewers and sewer mains, and incidental appurtenances.

3. **Family Day Care Homes.** **(Amended by Ord. No. 173,085, Eff. 3/19/00.)** Notwithstanding any other provisions of this article to the contrary, and in all zones wherein residential uses are permitted by right the following shall apply:

(a) **Small Family Day Care Homes:** Any dwelling unit may be used as a small family day care home, with up to eight children, as defined in Section 12.03, if it is licensed by the State of California as a small family day care home. **(Amended by Ord. No. 176,545, Eff. 5/2/05.)**

(b) **Large Family Day Care Homes:** Any dwelling unit may be used as a large family day care home, with up to 14 children, as defined in Section 12.03, if it is licensed by the State of California as a large family day care home, and if it complies with the conditions set forth in Subparagraph (1) below. **(Amended by Ord. No. 176,545, Eff. 5/2/05.)**

(1) **Conditions.** A large family day care home shall comply with the following conditions:

(i) Provide drop-off facilities, such as curb spaces or driveway area, which are necessary to avoid

interference with traffic and promote the safety of the children;

(ii) Comply with any standards adopted by the State Fire Marshal pursuant to Subdivision (d) of Section 1597.46 of the California Health and Safety Code relating to large family day care homes;

(iii) Comply with all provisions of the Los Angeles Municipal Code relating to large family day care homes and dwelling units;

(iv) The use shall not create an unreasonable level of disruption or interference with the peaceful enjoyment of the adjoining and neighboring properties;

(v) Name plates and signs shall conform to the provisions of Section 12.21 A.7.;

(vi) Play equipment, swings, sandboxes, or structures shall be located in the rear yard only;

(vii) No loud speaker or public address system shall be installed or operated on any open portion of the premises, and any phonograph, radio or other recorded music used in connection with any activity shall be sufficiently modulated to ensure that the use does not disturb the adjoining and neighboring residents;

(viii) The existing residential character of the building and site shall be maintained, including the exterior facade, landscaping, fences, walls, lawn area, and driveways;

(ix) The floor space of any dwelling unit used for the operation of a large family day care home shall not be increased for such use, and the floor space shall not be altered to reasonably preclude its continued use as a dwelling unit; and

(x) There shall be at least 300 feet between the lot containing the building where the proposed large family day care home will be located and the building housing any existing large family day care home. This distance is to be measured along the shortest street route between the two lots as determined by the Department of Recreation and Parks. **(Second Sentence Amended by Ord. No. 181,192, Eff. 7/27/10.)**

(2) Notice of Intention to Operate Large Family Day Care Home. (Amended by Ord. No. 173,492, Eff. 10/10/00.) A Notice of Intention to Operate a Large Family Day Care Home shall be filed in the public office of the Department of City Planning, on forms provided by the Department. The forms shall be accompanied by all information deemed necessary by the Department. The notice shall include verification provided by the Department of Recreation and Parks that the large family day care home is in compliance with the concentration and spacing condition set forth in Section 12.22 A.3.(b)(1)(x) above. **(Sentence Amended by Ord. No. 181,192, Eff. 7/27/10.)** No fee shall be charged and no public hearing shall be required in connection with the filing of the notice.

(3) Exemption from Concentration and Spacing Condition. If a proposed Large Family Day Care Home is not in compliance with the concentration and spacing condition set forth in Section 12.22 A.3.(b)(1)(x) above, then the operator may apply to the Zoning Administrator for an exemption from this condition pursuant to Section 12.24 X.25. **(Amended by Ord. No. 176,545, Eff. 5/2/05.)**

(4) Violation of Conditions – Authority of Zoning Administrator to Require Modification of Conditions of Operation or Discontinuance of Large Family Day Care Homes. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.) Notwithstanding any other provision of this Chapter, the Zoning Administrator may require a modification of the conditions of operation or the discontinuance of a large family day care home if the Zoning Administrator finds that as operated or maintained there has been a violation of any of the conditions or standards set forth in Subparagraph (1) of Paragraph (b) of this Subdivision, or that such use:

(i) jeopardizes or endangers the public health or safety of persons residing in, working on, or occupying the premises; or

(ii) constitutes a public nuisance; or

(iii) violates any provision of this chapter or any other city, state or federal regulations, ordinance or statute.

The procedure for the modification of the conditions of operation or discontinuance of a large family day care home shall be as provided for in Sec. 13B.6.2. (Nuisance Abatement/Revocation) of Chapter 1A of this Code.

4. Sale of Christmas Trees – Notwithstanding any provisions of this article to the contrary, the annual retail sale, including sales by philanthropic, political, patriotic, and charitable associations, of Christmas trees and ornaments shall be permitted in all zones, except the RE, RS, R1, RU, RZ, and RMP Zones, between December first and twenty-fifth, inclusive, and the necessary permits and licenses may be issued provided that: **(Amended by Ord. No. 164,904, Eff. 7/6/89.)**

(a) Any lights used to illuminate the site shall be arranged to reflect the light away from any adjacent residentially-zoned property except that this restriction does not apply to frosted light bulbs of 100 watts or less; and

(b) There shall be no use of any sound equipment in the residential zone in conjunction with the retail sale of Christmas trees; and

(c) The operator of such a sale of Christmas trees shall post a Two Hundred Dollar (\$200.00) cleanup deposit with the Office of the City Clerk prior to any lot preparation or sales; and

(d) The operator of such a sale of Christmas trees shall comply with all other applicable provisions of the Los Angeles Municipal Code.

5. (Title and First Para. Deleted by Ord. No. 172,489, Eff. 4/16/99.)

(a) **(Amended by Ord. No. 173,492, Eff. 10/10/00.)** Notwithstanding any other provisions of Articles 2 and 3 of this chapter to the contrary, no oil well, controlled drill site or temporary geological exploratory hole may be permitted in an A, R, P or C Zone within the area located between the mean high tide line of the City's shoreline and a line 1,000 yards landward from that line. This prohibition shall not be construed or interpreted as affecting:

(1) any shore line areas within the Los Angeles Harbor except for Cabrillo Beach;

(2) any oil well, controlled drill site or a facility for the production of oil gases or other hydrocarbon substances in existence on the effective date of this subdivision;

(3) any connected subterranean gas holding areas and facilities that are operated as a public utility pursuant to Section 14.00; and

(4) subsurface drilling and producing operations more than 500 feet below the surface of this area.

(b) Ordinances 159,607, 159,608 and 159,609, which created Oil Drilling Districts U-171-A, U-172-A and U-173-A, respectively, to allow exploration and production of oil within 1,000 yards of the mean high tide in the City of Los Angeles, are hereby repealed.

(c) This subdivision shall apply to all supplemental use districts within this area for which a vested right for production of oil has not accrued as of the effective date of this subdivision

(d) If any provision or clause of this Ordinance or the application thereof to any person or circumstance is held to be unconstitutional or otherwise invalid by any court of competent jurisdiction, such invalidity shall not affect other Ordinance provisions thereof which can be implemented without the invalid provision, clause or application, and to this end the provisions and causes of this ordinance are declared to be severable.

[Subdivision 5.(a) - (d) adopted by the voters as Initiative Ordinance "O" on November 8, 1988, Eff. 11/30/88.]

6. Infrequent Helicopter Landings. (Amended by Ord. No. 150,623, Eff. 4/13/78.) Notwithstanding any provision of this article to the contrary, helicopters may land and take off in any zone except RA, R, C1 and CR Zones, provided that a permit therefore has first been obtained from the Fire Department under the provisions of Division 5, Article 7 of Chapter 5 of this Code. Such helicopter landings and takeoffs shall not exceed three per day in or upon any single location or premises except that the Fire Department may permit as many such landings and takeoffs in or upon any single location or premises in a day as it determines are required by the individual nature of each such helicopter use, including occasions of civic interest, and are consistent with the public health, safety, general welfare and intent of this article. In the RA, R, C1 or CR Zones helicopters may land and take off in or upon any single location not more than two times per calendar year in a park, school ground or other similar type of public open space, for educational programs sponsored by the Los Angeles Police Department or the Los Angeles City Unified School District, provided that the Fire Department permit referred to above has first been obtained. Nothing herein shall prevent nor curtail the operation of emergency helicopter landing facilities as required in Section 57.4705 of the Los Angeles Municipal Code.

The provisions of this subdivision shall not be construed or interpreted as permitting the establishment of a regularly operating airport, aircraft landing field, heliport or helistop.

7. Temporary Operations of Carnivals and Rides. (Added by Ord. No. 130,076, Eff. 5/26/65.)— Notwithstanding any provisions of this article to the contrary, carnival shows and amusement enterprises of a similar type may be operated in the P Zone for a period of not to exceed five consecutive days in any 30 day period in or upon any single location, provided that:

(1) All such operations are conducted at least 200 feet from any school or adjoining occupied property classified in any A or R Zone.

(2) Such operations do not cause or produce any dust, gas, smoke, noise, fumes, odors, or vibrations detrimental to

other property in the neighborhood or to the welfare of the occupants thereof.

(3) Any lights used to illuminate the event are arranged so as to reflect the light away from any adjacent residentially used premises.

(4) No public address system in connection with the event is installed on the property unless it is modulated so as not to be disturbing to occupants of any nearby dwelling units.

(5) All structures, apparatus and appurtenances shall be removed from the premises the next day following the closing of the carnival.

(6) The hours of such operation to be limited between the hours of 10:00 a.m. and 10:00 p.m.

8. Occasional Use of Private Homes for Adult Education Classes. (Added by Ord. No. 132,573, Eff. 8/5/66.) — Notwithstanding any provision of this article to the contrary, adult education classes shall be permitted in homes in the RA or R Zones and no additional off-street parking shall be required in conjunction therewith, provided that:

(a) Classes are held not more than one day a week for a period not to exceed three hours per day and each class does not meet for more than fifteen weeks in any one semester.

(b) Classes are purely incidental to the use of the property as a home and no more than thirty persons are permitted to attend each class.

(c) Classes primarily involve oral discussions and no laboratory equipment, heavy machinery, or large tools are used in connection therewith, except small record players, slide projectors and other similar audiovisual teaching aids.

(d) All classes are scheduled on the first floor of the building.

For the purpose of this subdivision “**adult education classes**” shall mean any educational programs conducted by University Extension of University of California or any other comparable university.

No certificate of occupancy shall be required in connection with the use authorized by this ordinance.

9. Maintenance of Accessory Structures. (Amended by Ord. No. 172,839, Eff. 11/1/99.) Notwithstanding any provisions of this article to the contrary, an accessory building or structure may be maintained on a lot without a main building and a residential building may be maintained on a lot without the required off-street parking for the periods of time as authorized by the Advisory Agency in conformance with Article 7 of Chapter 1 of this Code.

10. Model. (Amended by Ord. No. 174,999, Eff. 1/15/03.) Notwithstanding any other provision of this article, a model or models, as defined in Article 7 of Chapter 1 of this Code, may be erected and maintained on any lot or site designated by the Advisory Agency as a site for a model or models on an approved or conditionally approved tentative map, in the A, RE, RS, R1, RU, RZ, RMP, or RW1 Zones with respect to one-family homes, and in the R2, RD, RW2, R3, RAS3, R4, RAS4, or R5 Zones with respect to multiple unit structures, i.e., buildings containing more than one dwelling unit, for a period of time as determined by the Advisory Agency, provided that:

(a) In an “**H**” hillside or mountainous area, a grading plan for the entire approved or conditionally approved subdivision or any final map unit thereof has been approved by the Grading Division of the Department of Building and Safety and a Grading Certificate has been issued for the property involved or that the grading is being carried on under the authorization of a valid grading permit.

(b) Necessary easements for the installation of water system facilities and underground utilities have been dedicated and the developer has guaranteed the cost of relocation or future adjustment of these facilities to the satisfaction of the Department of Water and Power.

(c) The owner assumes liability for any damage caused to water system facilities and underground utilities prior to final street improvements in a manner satisfactory to the Department of Water and Power.

(d) Adequate fire protection facilities are provided to the satisfaction of the Fire Department.

(e) Adequate sewer facilities are provided to the satisfaction of the Bureau of Engineering and the Los Angeles County Health Department.

(f) A paved access roadway at least 20 feet in width is provided which is satisfactory to the Department of Building and Safety.

(g) Off-street parking be provided as follows:

(1) For multiple unit structures, the numbers and location of the off-street parking facilities shall be determined

by the Advisory Agency;

(2) For one-family detached structures, one lot for each six model dwellings or fraction thereof shall be located contiguous to the model dwelling sites. All off-street parking facilities and driveways shall be dust-proofed with asphaltic surfacing or with decomposed granite which is sprinkled at sufficient intervals to prevent dust, or by an alternate method of dust control satisfactory to the Department of Building and Safety.

(h) The model dwelling sites are attractively maintained and, with respect to one-family detached structures, attractively landscaped.

(i) Not more than one sign is placed on each designated model dwelling. Said sign shall not exceed 12 square feet in area and shall be used only for identification or directional purposes. Prohibited are banners, posters, pennants, ribbons, streamers, string of light bulbs, spinners, or other similarly moving devices.

(j) Any furnishings placed in the model dwelling are maintained solely for purposes accessory to the display of the model dwelling and in no way are used to sell or promote the sale of such furnishings.

(k) Prior to the issuance of any building permit for a model dwelling, the property owner shall first execute and file with the Superintendent of Building a notarized agreement assuming all risks and agreeing to all of the conditions set forth in this Subdivision 10. With respect to one-family detached structures, the agreement shall further provide that in the event that a final map which includes the property whereon the model dwelling is located is not recorded, all buildings or structures authorized by said permit shall be removed, within 90 days from the expiration of the tentative tract, and that if all buildings and structures are not completely removed as required above, they may be confiscated and removed or demolished by the City without further notice. Prior to the erection of any model dwelling that is a one-family detached structure, authorized pursuant to the approval of any subdivision and contingent thereon, the property owner shall post in the Department of Building and Safety a bond in favor of the City of Los Angeles (to be approved by the City Attorney and duplicates to be furnished to the City Attorney) in an amount satisfactory to the Department of Building and Safety sufficient to defray any expense incurred by the City in the removal or demolition of the model dwelling or dwellings. The bond shall be released to the property owner or person legally entitled thereto either upon recordation of the subdivision tract map or upon removal of the concerned structures or buildings, as the case may be, to the satisfaction of the Superintendent of Building. **(Amended by Ord. No. 158,561, Eff. 1/14/84.)**

(l) This subdivision shall apply to approved or conditionally approved tentative tract maps which include model dwelling units and which have not been recorded as of the effective date of this ordinance. **(Added by Ord. No. 158,561, Eff. 1/14/84.)**

11. **(Amended by Ord. No. 145,410, Eff. 2/16/74.)** Notwithstanding any other provisions of this article, a real estate tract sales office may be established and maintained in one model dwelling approved in accordance with the provisions of Section 12.22 A.10. or in a dwelling constructed on a recorded lot previously designated as a model dwelling site by the Advisory Agency and temporarily serving as an example of houses or units built or to be built in the same subdivision, provided that:

(a) No general real estate brokerage business is conducted on the premises, and any business transacted thereon is limited to the original sale of vacant or improved land shown on the tentative map or units of airspace shown on the condominium plan.

(b) All name plates and signs conform to the provisions of Section 12.21 A.7.

(c) The tract sales office is attractively maintained and, where located in a one-family detached structure, is attractively landscaped.

(d) The property owner has first executed and filed with the Superintendent of Building a notarized agreement agreeing to comply with all other provisions of this Subdivision and, further, agreeing that after all dwelling units in the development are initially sold or rented, all tract sales being conducted within the structure will cease; all signs will be entirely removed from the premises; any residential type of sliding glass door in a private garage doorway will be replaced with a conventional private garage door, and any sales office activity located in a private garage will be discontinued and this area reconverted for the storage of private vehicles. **(Amended by Ord. No. 158,561, Eff. 1/14/84.)**

12. **(Added by Ord. No. 149,472, Eff. 5/14/77.)** Notwithstanding any other provision of this article, equipment and material storage yards used exclusively in connection with public facilities projects may be located in the A, R and C Zones, provided the following conditions are complied with.

(a) That such storage activities not be commenced prior to the execution of the construction contract with the governmental entity authorizing such work, and such storage activity be terminated within 30 days of the expiration of the contract or 30 days after completion of the construction, whichever comes first.

(b) That no storage or related activities be located closer than 25 feet to any residential improvement unless a solid 8 foot high fence be constructed along the entire property line adjoining such improvement, except at parking of employees' personal vehicles shall be permitted within the 25 foot buffer area, and such parking area need not comply with the

requirements of Section 12.21 A.6. of this article.

(c) That the premises and grounds be frequently sprinkled and watered to prevent dust from becoming a nuisance to the neighboring residents.

(d) That there be no stockpiling of materials above 8 feet.

(e) That hours of operation including servicing and maintenance of all stored equipment be only between 7:00 a.m. and 6:00 p.m., and at no time on Saturdays, Sundays or holidays except in emergencies.

Prior to the use of any land for equipment and material storage activities pursuant to this Subdivision, the operator or operators of such storage yard shall obtain a certificate of occupancy of land as provided for in Section 12.26 E. of the Los Angeles Municipal Code. Where it can be shown to the satisfaction of the Superintendent of Building that the conditions of this Subdivision are not being complied with, the Superintendent may revoke the certificate of occupancy. Such revocation may be appealed to the Board of Building and Safety Commissioners pursuant to the provisions of Section 98.0403 of this Code.

13. Infrequent Use of Property for Commercial Filming. (Amended by Ord. No. 170,516, Eff. 6/18/95.) Notwithstanding any of the provisions of this article to the contrary, property in all zones may be used for the purpose of infrequent filming of commercial motion pictures and still photographs, provided that a permit therefor has first been obtained from the City Council, or whomever the Council by order, resolution or ordinance may delegate such authority. The City Council, or whomever the Council by order, resolution or ordinance may delegate such authority shall adopt such rules and regulations concerning the issuance of said permits as may be necessary to assure that filming will be conducted at such times and in such a manner as to cause a minimum of interference with the enjoyment and use of adjacent property, and consistent with public health, safety and general welfare.

14. (None)

15. Parking Requirements For Showcase Theaters. (Added by Ord No 148,910, Eff. 11/18/76.) Notwithstanding any provision of this article to the contrary, the parking for showcase theaters required under Section 12.21 A.4.(e), (g), (i), (m); Section 12.21 A.5.; and Section 12.26 C. and 12.26 E.5. may be provided on the site, or off the site under a written agreement approved by the City Attorney and the Superintendent of Building. Where off-site parking is provided under any written agreement other than a Parking Covenant, such agreement shall be for a minimum of one year and shall be signed by the theater operator and the lessee or owner of the property upon which the required parking spaces shall be located. This agreement shall remain in effect for the duration of the existence of the showcase theater. Such agreement shall be filed with the Department of Building and Safety.

Where the parking covenant or other written agreement provides for parking on a lot which does not meet the design standards set forth in Section 12.21 A.5. and 12.21 A.6. but which parking area met the applicable Municipal Code design standard when originally established, such spaces shall be accepted for purposes of this Subdivision without compliance with the provisions of Section 12.21 A.5. and 12.21 A.6.

16. Outside Automobile Hoists. (Amended by Ord. No. 172,468, Eff. 4/1/99.) Any type of outside automobile hoist in the C2, C4, C5, CM or M1 Zones is prohibited.

17. Temporary Residency in Residential Vehicle Pending Reconstruction of Disaster – Destroyed Dwelling. (Added by Ord. No. 153,144, Eff. 12/28/79.)

(a) **Use of Land Permit.** Notwithstanding any other provision of this Code to the contrary, the Department of Building and Safety may issue a use of land permit to any resident- owner of a single-family dwelling destroyed by disaster to temporarily place and reside in a residential vehicle upon the subject property. Such use of land permit shall be limited to a period of one year from the date of the subject disaster, during which period a building permit for the reconstruction of the subject dwelling unit must be obtained. When such a building permit is obtained the use of land permit shall be valid for an additional period to total no more than two years from the date of the subject disaster or until the dwelling unit is complete, whichever occurs first. No other extension of time shall be granted for such use of land permit.

(b) **Fence Requirement.** Where a residential vehicle is placed within a required yard area, such residential vehicle shall be screened from public view by a fence constructed to the specifications of Section 91.4401(c) of this Code; on corner lots, the restrictions of Section 62.200 of this Code shall also apply. Such fence shall be maintained in good condition and appearance.

(c) **Yard Area Requirements.** Such residential vehicle must observe five-foot front, side and rear yards and adequate access shall be assured to permit the removal of such residential vehicle after reconstruction of the disaster- destroyed dwelling unit.

(d) **Site Restoration.** Within thirty (30) days of the removal of the residential vehicle, all equipment and utilities accessory to such residential vehicle and any nonconforming fence constructed pursuant to this section shall be removed and the site restored to permitted use and condition.

18. Developments Combining Residential and Commercial Uses. Except where the provisions of Section 12.24.1 of this Code apply, notwithstanding any other provision of this chapter to the contrary, the following uses shall be permitted in the following zones subject to the following limitations: **(Amended by Ord. No. 163,679, Eff. 7/18/88.)**

(a) Any use permitted in the R5 Zone on any lot in the CR, C1, C1.5, C2, C4 or C5 Zones provided that such lot is located within the Central City Community Plan Area or within an area designated on an adopted community plan as “Regional Center” or “Regional Commercial”. Any combination of R5 uses and the uses permitted in the underlying commercial zone shall also be permitted on such lot. **(Amended by Ord. No. 182,452, Eff. 4/4/13.)**

(b) Any use permitted in the CR, C1, C1.5, C2, C4 or C5 Zones on any lot in the R5 Zone provided that the lot is located within the Central City Community Plan Area. Any combination of these commercial and residential uses shall also be permitted on the lot. Commercial uses or any combination of commercial and residential uses may be permitted on any lot in the R5 Zone by conditional use pursuant to Section 12.24 W.15. outside the Central City Community Plan Area. **(Amended by Ord. No. 182,452, Eff. 4/4/13.)**

(c) **Yards.** Except as provided herein, the yard requirements of the zone in which the lot is located shall apply.

(1) The yard requirements of the C2 Zone shall apply to buildings located on lots in the R5 Zone in a redevelopment project area approved by the City Council if such buildings are used exclusively for commercial uses.

(2) The following yard requirements shall apply to buildings located on lots in the R5 Zone which are used for any combination of commercial and residential uses:

(i) The yard requirements of the C2 Zone shall apply to the portions of such buildings used exclusively for commercial uses.

(ii) No yard requirements shall apply to the portions of such buildings which are used exclusively for residential uses and which abut a street, private street or alley, if the first floor of such buildings at ground level is used for commercial uses or access to the residential portions of such buildings.

(3) No yard requirements shall apply to the residential portions of buildings located on lots in the CR, C1, C1.5, C2, C4, and C5 Zones used for combined commercial and residential uses, if such portions are used exclusively for residential uses, abut a street, private street or alley, and the first floor of such buildings at ground level is used for commercial uses or for access to the residential portions of such buildings.

(4) No yards shall be required along air space lot boundaries within the interior of buildings.

(d) The residential and commercial density, maximum floor area or height otherwise permitted for any lot shall not be increased by reason of the existence of one or more air space lots.

(e) **Pedestrian Bridges.** Residential uses in a building combining residential and commercial uses shall be limited to the floors above the level of a connecting pedway or pedestrian bridge except that the Director of Planning may modify or waive this requirement if the Director finds unusual topography or other special circumstances justify such modification or waiver.

(f) **(Amended by Ord. No. 173,492, Eff. 10/10/00.)** In the event of a conflict between the terms of this subdivision and the terms of a specific plan enacted prior to December 31, 1981, the terms of the specific plan shall prevail. The terms of this subdivision shall not apply within the boundaries of the Century City North Specific Plan.

19. Dwelling Adjacent to An Equinekeeping Use. **(Amended by Ord. No. 173,492, Eff. 10/10/00.)** Notwithstanding any provision of this Code to the contrary, the City shall not issue a building permit for a residential building (excluding non-habitable rooms) that is less than 35 feet from a legally established equine use, unless the Zoning Administrator makes an exception in accordance with Section 12.24 X.5.

20. Adult Entertainment Businesses. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

(a) **Exceptions from Section 12.70 C. of this Chapter.**

(i) A person may establish and maintain, or continue to operate, an adult entertainment business on a lot within 500 feet of an “A” or “R” Zone, or within the “CR”, “C1” or “C1.5” Zones, if a site consistent with Section 12.70 C. of this Chapter is not reasonably available elsewhere in the City for the establishment or relocation of the subject adult entertainment business. This exception shall only apply to an adult entertainment business which is otherwise in compliance with all other provisions of this chapter including Section 12.70 C. of this Chapter.

A site is “reasonably available” elsewhere in the City if it meets all of the following criteria:

(1) Its use as the proposed adult entertainment business is consistent with all applicable zoning regulations, including Section 12.70 C. of this Chapter.

(2) It is available for use, purchase, or rental as an adult entertainment business.

(3) It has adequate street access, street lighting, and sidewalks.

(4) It is at least 500 feet away from any uses which are or may become obnoxious or offensive by reason of emission of odor, dust, smoke, noise, gas, fumes, cinders, refuse matter or water carried waste.

This exception shall not apply to massage parlors or sexual encounter establishments.

(ii) To apply for an exception, an applicant shall file an application with the Department of City Planning, on a form provided by the Department, identifying the present or proposed location of the adult entertainment business, and accompanied by data supporting the proposed exception and the fee provided for in Section 19.01 of this Chapter.

The procedures described in Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code. An exception shall be approved if it meets the requirements of Subparagraph (i) above.

If the Zoning Administrator, Area Planning Commission or Council disapproves an exception, then it shall make findings of fact showing how a site consistent with Section 12.70 C. of this Chapter is reasonably available elsewhere in the City for the establishment or relocation of the subject adult entertainment business.

(b) Extensions of the Section 12.70 C. of this Chapter Amortization Period.

(i) An adult entertainment business existing on March 6, 1986 and operating within 500 feet of a lot in an “A” Zone or “R” Zone or, within the “CR”, “C1”, or “C1.5” Zones may be continued, as specified below:

(1) If the adult entertainment business is otherwise in compliance with all other provisions of this chapter including Section 12.70 C. of this Chapter; and

(2) If the adult entertainment business is subject to a written lease, entered into prior to March 6, 1986, with a termination date extending beyond March 6, 1988, then the adult entertainment business may continue until the expiration of the present term of the lease but no later than March 6, 1991; or

(3) If the adult entertainment business invokes the investment of money in real property, improvements, or stocks in trade such that a termination date beyond March 6, 1988 is necessary to prevent undue financial hardship, then it may be continued until March 6, 1991.

(ii) To apply for an extension of time, an applicant shall file an application with the Department of City Planning, on a form provided by the Department, identifying the present or proposed location of the adult entertainment business, and accompanied by data supporting the extension request and the fee provided for in Section 19.01 of this Chapter. An extension shall be approved if it meets the requirements of Subparagraph (i) above.

The procedures described in Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code shall be followed to the extent applicable.

An appeal from the determination of the Zoning Administrator on whether a proposed exception meets the requirements of Subparagraph (i) may be taken to the Area Planning Commission in the same manner as prescribed in Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code. The Area Planning Commission’s decision may be appealed to the City Council. The appeal to the Council shall follow the procedures set forth in Sec. 13B.2.3. (Class 3 Conditional Use Permit) of Chapter 1A of this Code. However, a decision on any appeal shall be made within 30 days of the expiration of the appeal period. This time limit may be extended by mutual written consent of the applicant and the Area Planning Commission or Council, whichever then has jurisdiction over the appeal.

If the Zoning Administrator, Area Planning Commission or Council disapproves an extension, then it shall make findings of fact showing how the proposed extension fails to meet the requirements of Subparagraph (i).

21. **(Deleted by Ord. No. 171,687, Eff. 8/19/97.)**

22. **(Deleted by Ord. No. 170,752, Eff. 12/14/95.)**

23. **Mini-Shopping Centers and Commercial Corner Development. (Amended by Ord. No. 175,223, Eff. 6/30/03.)** If the requirements set forth in Paragraph (a) and the conditions set forth in Paragraph (b) of this subdivision are met, and the proposed

use or uses are not enumerated in Section 12.24 W.27., then a conditional use approval pursuant to Section 12.24 W.27. shall not be required for any new use, change of use or addition of floor area to a Mini-Shopping Center or a Commercial Corner Development.

(a) **Development Standards.**

(1) **Height.** Buildings or structures located in Height District Nos. 1 and 1-L shall not exceed a maximum height of 45 feet. However, buildings or structures shall comply with the provisions of Section 12.21.1 A.10., "Transitional Height," of this Code.

(2) **Front Yard.** The front yard requirements set forth in Sections 12.12.2 C., 12.13 C.1. and 12.13.5 B.1. of this Code shall not apply to Mini-Shopping Centers or Commercial Corner Developments.

(3) **Windows.** The exterior walls and doors of a ground floor containing non- residential uses that front adjacent streets shall consist of at least fifty percent transparent windows, unless otherwise prohibited by law.

(4) **Parking.**

(i) Notwithstanding Section 12.21 A.5.(h) of this Code to the contrary, no tandem parking shall be permitted, except those spaces reserved exclusively for residential use.

(ii) Bicycle parking shall be provided as required by Section 12.21 A.16. of this Code.

(iii) Parking in the Downtown Business District shall be provided as required by Section 12.21 A.4.(i) of this Code.

(5) **Lighting.** All public areas of the lot or lots not covered by a building shall have night lighting for safety and security. All other open exterior areas, such as walkways and trash areas, shall have low- level, security-type lighting. All exterior lighting shall be directed onto the lot or lots, and all flood lighting shall be designed to eliminate glare to adjoining properties. All parking areas shall have a minimum of 3/4 foot-candle of flood lighting measured at the pavement.

(6) **Signs.**

(i) In addition to the requirements set forth in Division 62 of this Code, no person shall erect on the lot or lots the following signs, as defined in Section 91.6203 of this Code without first obtaining a conditional use permit: pole signs; projecting signs; or roof signs.

(ii) Monument signs and information signs shall be located only within the landscape-planted areas of the lot or lots.

(7) **Utilities.** All new utility lines which directly service the lot or lots shall be installed underground. If underground service is not currently available, then provisions shall be made for future underground service.

(8) **Walls and Trash Storage.** A solid masonry wall at least six feet in height shall be erected along the lot lines of the lot or lots where the lot or lots abut or are across an alley from any residential zone or use, except for that portion of the lot line where an access driveway is required by the City. Trash storage bins shall be located within a gated, covered enclosure constructed of materials identical to the exterior wall materials of the building.

(9) **Recycling Area or Room.** Every Mini-Shopping Center or Commercial Corner Development shall conform to the requirements of Section 12.21 A.19.(c) of this Code.

(10) **Landscaping.** All landscaping shall comply with Sections 12.41, 12.42 and 12.43 of this Code and the following requirements:

(i) **Landscaping – Setback. (Amended by Ord. No. 177,103, Eff. 12/18/05.)** A landscaped, planted area having a minimum inside width of five feet shall be required along all street frontages of the lot and on the perimeters of all parking areas of the lot or lots which abut a residential zone or use.

Notwithstanding the above, in the Downtown Business District as defined in Section 12.21 A.4.(i) of this Code, a landscape (planted) area having a minimum inside width of five feet shall be required on the perimeters of all parking areas of the lot which abut a residential zone or use.

(ii) **Irrigation System.** An automatic irrigation system shall be provided for all landscaped areas. This system shall be installed prior to the issuance of any certificate of occupancy.

(b) **Conditions of Operation.** A Mini- Shopping Center or a Commercial Corner Development shall comply with the following conditions:

(1) **Maintenance.** The condition of the lot or lots, including but not limited to parking areas, exterior walls, required lighting, and landscaped areas, shall at all times be maintained in a safe and sanitary condition and in a state of good repair. Exterior wall surfaces shall at all times be kept free from graffiti and any marks of vandalism.

(2) **Debris Removal.** The lot or lots shall at all times be kept clear of weeds, rubbish, and all types of litter and combustible materials. Trash receptacles shall be located throughout the open areas of the lot or lots.

(3) **Hours.** Parking lot cleaning and sweeping, and trash collections from and deliveries to a Mini-Shopping Center or Commercial Corner Development, shall occur no earlier than 7 a.m., nor later than 8 p.m., Monday through Friday, and no earlier than 10 a.m., nor later than 4 p.m., on Saturdays and Sundays.

(4) **Landscape Maintenance.** Maintenance of landscaped areas shall include continuous operations of watering, removal of weeds, mowing, trimming, edging, cultivation, reseeding, plant replacement, fertilization, spraying, control of pests, insects, and rodents, or other operations necessary to assure normal plant growth. All trees, shrubs and ground cover shall be maintained as healthy and vigorous at all times. Irrigation systems, installed pursuant to the requirements in Sub- subparagraph (a)(10)(ii) above shall be continuously maintained in accordance with Section 12.41 B.5. of this Code.

(5) **Covenant.** Prior to the issuance of a building permit or land use permit, the owner of the lot or lots shall execute and record a covenant and agreement in a form satisfactory to the Director of Planning, acknowledging that the owner shall implement each of the conditions set forth in Paragraph (b) of this subdivision, and shall not permit the erection of any of the signs enumerated in Paragraph (a)(6) of this subdivision or the establishment of any uses enumerated in Section 12.24 W.27. of this Code without first obtaining a conditional use approval. The covenant and agreement shall run with the land and be binding upon the owners, and any assignees, lessees, heirs, and successors of the owners. The City's right to enforce the covenant and agreement is in addition to any other remedy provided by law.

(c) Existing Building Changed to Mini- Shopping Center or Commercial Corner Development.

(1) An existing building or buildings may be converted to a Mini-Shopping Center or to a Commercial Corner Development without first obtaining a conditional use approval if all of the following requirements are met:

(i) all alterations result in no more than a twenty percent increase in the existing floor area of all of the buildings on a lot or lots;

(ii) the proposed Mini- Shopping Center or the Commercial Corner Development use or uses are not enumerated in Section 12.24 W.27.;

(iii) no sign identified in Paragraph (a)(6) of this subdivision shall be erected on the site; and

(iv) the proposed Mini- Shopping Center or the Commercial Corner Development complies with the conditions of operation of Paragraph (b) of this subdivision.

(2) For an existing Mini-Shopping Center, or existing Commercial Corner Development use, no person shall establish as a new use, any of the uses enumerated in Section 12.24 W.27. of this subdivision without first obtaining a conditional use approval.

(d) Exemptions. The following Projects shall not be subject to this subdivision:

(1) A Mixed Use Project as defined in Section 13.09 B.3. that consists of predominantly residential uses and does not contain commercial uses enumerated in Section 12.24 W.27.;

(2) Adaptive Reuse Projects as defined in Section 12.22 A.26.; and

(3) Libraries, governmental offices, police stations, fire stations, and other government owned related facilities or uses.

(e) Specific Plan Compliance. If, as determined by the Director of Planning or the Director's designee, the provisions of this Section conflict with those of an adopted Specific Plan, then the provisions of the Specific Plan shall prevail.

24. Mobile Medical Facilities and Bloodmobiles. (Added by Ord. No. 166,045, Eff. 8/17/90.)

(a) Notwithstanding any provision of this article to the contrary, any mobile medical facility may operate once a month for no more than 72 consecutive hours, in any single established parking area, in the P, PB, CR, C1, C1.5, C2, C4, CM, M1, M2 and M3 Zones, provided the parking area meets all requirements of the Municipal Code for a parking area and the operation of the facility does not obstruct any driveway access aisle or required parking space.

(b) Notwithstanding any provision of the article to the contrary, any bloodmobile may operate once a month for no more than 72 consecutive hours, in any single established parking area in any zone, provided the parking area meets all requirements of the Municipal Code for a parking area and the operation of the bloodmobile does not obstruct any driveway access aisle or required parking space.

(c) Notwithstanding any provision of this article to the contrary, any mobile medical facility may operate once a week for no more than 72 consecutive hours, in any single established hospital parking area, in the P, PB, CR, C1, C1.5, C2, C4, CM, M1, M2 and M3 zones, provided the parking area meets all requirements of the Municipal Code for a parking area and the operation of the facility does not obstruct any driveway access aisle or required parking space. **(Added by Ord. No. 170,161, Eff. 1/16/95.)**

25. Affordable Housing Incentives – Density Bonus. (INTERIM) (Amended by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)

See Section 12.22 A.37. (State Density Bonus Program) of this Code.

An existing program described outside of former Section 12.22 A.25. of this Code, that follows the procedures of former Section 12.22 A.25.(g) as of February 11, 2025, the operative date of this amendment, shall follow the review procedures outlined in:

(a) Section 12.22 A.37.(d)(1) (Building and Safety Review) of Chapter I of this Code, where the existing program references the procedures of former Section 12.22 A.25.(g)(1) of this Code.

(b) Section 13B.2.5 (Director Determination) of Chapter 1A of this Code, where the existing program references the procedures of former Section 12.22 A.25.(g)(2) of this Code.

(c) Section 12.22 A.37.(d)(3) (City Planning Commission Review) of Chapter I of this Code, where the existing program references the procedures of former Section 12.22 A.25.(g)(3) of this Code.

26. Downtown Adaptive Reuse Projects. (Amended by Ord. No. 174,315, Eff. 12/20/01.)

(a) **Purpose.** The purpose of this Subdivision is to revitalize the Greater Downtown Los Angeles Area and implement the General Plan by facilitating the conversion of older, economically distressed, or historically significant buildings to apartments, live/work units or visitor-serving facilities. This will help to reduce vacant space as well as preserve Downtown's architectural and cultural past and encourage the development of a live/work and residential community Downtown, thus creating a more balanced ratio between housing and jobs in the region's primary employment center. This revitalization will also facilitate the development of a "24-hour city" and encourage mixed commercial and residential uses in order to improve air quality and reduce vehicle trips and vehicle miles traveled by locating residents, jobs, hotels and transit services near each other.

(b) **Application.** If the provisions of Subparagraph (2) of Paragraph (h) and of Subparagraphs (1), (2) or (3) of Paragraph (j) of this subdivision conflict with those of any specific plan, supplemental use district, "Q" condition, "D" limitation, or citywide regulation, any of which were adopted or imposed by City action prior to the effective date of this ordinance, then this Subdivision shall prevail.

(c) **Definition of Adaptive Reuse Project.** Notwithstanding any other provisions of this chapter to the contrary, for the purposes of this subdivision, an Adaptive Reuse Project is any change of use to dwelling units, guest rooms, or joint living and work quarters in all or any portion of any eligible building.

(d) **Eligible Buildings.** The provisions of this subdivision shall apply to Adaptive Reuse Projects in all or any portion of the following buildings in the CR, C1, C1.5, C2, C4, C5, CM and R5 Zones in the Downtown Project Area:

(1) Buildings constructed in accordance with building and zoning codes in effect prior to July 1, 1974. A Certificate of Occupancy, building permit, or other suitable documentation may be submitted as evidence to verify the date of construction.

(2) Buildings constructed in accordance with building and zoning codes in effect on or after July 1, 1974, if:

(i) Five years have elapsed since the date of issuance of final Certificates of Occupancy; and

(ii) A Zoning Administrator finds that the building is no longer economically viable in its current use or uses, pursuant to Section 12.24 X.1.(c). **(Amended by Ord. No. 175,588, Eff. 12/1/03.)**

(3) Buildings designated on the National Register of Historic Places, the California Register of Historical Resources, or the City of Los Angeles List of Historic- Cultural Monuments. Contributing Buildings in National Register Historic Districts or Contributing Structures in Historic Preservation Overlay Zones (HPOZ) established pursuant to Div. 13B.8. (Historic Preservation) of Chapter 1A of this Code are also eligible buildings. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

(e) **M Zones.** The Zoning Administrator may, upon application, permit Adaptive Reuse Projects in all or any portion of any eligible building in the MR1, MR2, M1, M2 and M3 Zones in the Downtown Project Area, pursuant to Section 12.24 X.1.(b). **(Amended by Ord. No. 175,588, Eff. 12/1/03.)**

(f) **Floor Area Averaging.** The Zoning Administrator may, upon application, permit floor area averaging in unified Adaptive Reuse Projects, pursuant to Section 12.24 X.1.(d). **(Amended by Ord. No. 175,588, Eff. 12/1/03.)**

(g) **Downtown Project Area.** The Downtown Project Area includes the following areas:

(1) The Central City Community Plan Area as shown on the General Plan of the City of Los Angeles; and

(2) All that real property in the City of Los Angeles, described by the following boundary lines: Bounded northerly by the centerline of Freeway Number 10 (commonly called the Santa Monica Freeway); bounded southerly by the centerline of Vernon Avenue; bounded easterly and southeasterly by the following centerline courses: beginning at the intersection of the Santa Monica Freeway and Grand Avenue, then southerly along Grand Avenue to the most easterly line of Freeway Number 110 (commonly called the Harbor Freeway), then southerly along that right of way to the centerline of Martin Luther King, Jr. Boulevard, then easterly along Martin Luther King, Jr. Boulevard to the centerline of Grand Avenue, then southerly along Grand Avenue to the centerline of Vernon Avenue. Bounded westerly and northwesterly by the following centerline courses: beginning at the intersection of Vermont Avenue and Vernon Avenue, then northerly along Vermont Avenue to Jefferson Boulevard, then easterly along Jefferson Boulevard to University Avenue, then northerly along University Avenue to 28th Street, then westerly along 28th Street to Severance Street, then northerly along Severance Street to Adams Boulevard, then westerly along Adams Boulevard to Scarff Street, then northerly along Scarff Street to 23rd Street, then southerly along 23rd Street to Bonsallo Avenue, then northerly along Bonsallo Avenue to Washington Boulevard, then westerly along Washington Boulevard to Oak Street, then northerly along Oak Street and its northerly prolongation to the Santa Monica Freeway.

(h) **Incentives.** Notwithstanding any other provisions of this chapter to the contrary, Adaptive Reuse Projects shall be entitled to the incentives set forth below. Except for the provision concerning mezzanines set forth in Subparagraph (1) below, these incentives shall not apply to any new floor area that is added to an Adaptive Reuse Project.

(1) **Mezzanines.** Loft spaces in joint living and work quarters, dwelling units and guest rooms which do not exceed more than 33 percent of the floor area of the space below shall not be considered new floor area. Mezzanines may be included in the calculation of floor area for the purpose of determining compliance with the standards set forth in Paragraph (i) of this subdivision.

(2) **Density.** Dwelling units, joint living and work quarters and guest rooms shall not be subject to the lot area requirements of the zone or height district.

(3) **Off-Street Automobile Parking.** The required number of parking spaces shall be the same as the number of spaces that existed on the site on June 3, 1999, and shall be maintained and not reduced. Adaptive Reuse Projects shall otherwise be exempt from the provisions of Section 12.21 A.4.(m) of this Code.

(4) **Mini-Shopping Center and Commercial Corner Development Regulations.** Adaptive Reuse Projects shall be exempt from the mini-shopping center and commercial corner development regulations set forth in Section 12.22 A.23.

(5) **Site Plan Review.** Adaptive Reuse Projects shall be exempt from the requirements for Site Plan Review set forth in Section 16.05.

(6) **Loading Space.** Where an existing loading space is provided, the provisions of Section 12.21 C.6.(h) shall apply. If no loading spaces exist, then a loading space shall not be required in conjunction with the development of an Adaptive Reuse Project.

(i) **Standards.** Adaptive Reuse Projects permitted pursuant to this subdivision shall be developed in compliance with the following standards:

(1) **Dwelling Units and Joint Living and Work Quarters. (Amended by Ord. No. 175,588, Eff. 12/1/03.)** The minimum floor area for new dwelling units and joint living and work quarters shall be 450 square feet, provided however, that the average floor area of all such units and quarters in a single eligible building, including those that existed prior to June 3, 1999, shall be at least 750 square feet. That minimum average size shall be maintained and not reduced.

Floor area, as defined in Section 12.03 of the Code, shall also not include hallways or other common areas. The floor area of both the living space and the work space shall be combined to determine the size of joint living and work quarters.

(2) **Guest Rooms.** Guest rooms shall include a toilet and bathing facilities.

(j) **Exceptions.** Notwithstanding the nonconforming provisions of Section 12.23, the following exceptions shall apply to the buildings in which Adaptive Reuse Projects are located. These exceptions shall also apply to any building in which new floor area or height was added or observed yards changed on or after July 1, 1974, as evidenced by a valid Certificate of Occupancy.

(1) **Floor Area.** Existing floor area which exceeds that permitted by the zone, height district, specific plan, supplemental use district, or any other land use regulation shall be permitted.

(2) **Height.** Existing height which exceeds that permitted by the zone, height district, specific plan, supplemental use district, or any other land use regulation shall be permitted.

(3) **Yards.** Existing observed yards which do not meet the yards required by the zone, height district, specific plan, supplemental use district, or any other land use regulation shall be permitted.

(k) **Uses.** Notwithstanding the nonconforming provisions of Section 12.23, dwelling units, guest rooms, and joint living and work quarters shall be permitted in Adaptive Reuse Projects, so long as the use is permitted by the underlying zone.

27. **Reasonable Accommodation – Fair Housing Protections for Individuals with Disabilities.** See Sec. 13B.5.5. (Reasonable Accommodation) of Chapter 1A of this Code. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

28. **Automotive Use. (Added by Ord. No. 178,382, Eff. 3/24/07.)** In the C2 or less restrictive zones, a new automotive use, change of use or addition of floor area to an existing automotive use may be established without first obtaining an approval pursuant to Section 12.24 W.4. of this Code if the development standards set forth in Paragraph (a) and the operating conditions set forth in Paragraph (b) of this subdivision are met. Notwithstanding the above, new automobile dealership franchises, and their associated activities, are exempt from the requirements of this subdivision.

(a) **Development Standards.**

(1) **Windows.** The exterior walls and doors of any building, excluding bay doors and/or security grills, housing an automotive use, which are parallel to a street, shall consist of at least 50 percent transparent windows, unless otherwise prohibited by law.

(2) **Bay Doors.** Bay doors or vehicle entrances, exits and openings shall not face any school, lot with a Certificate of Occupancy for a one-family dwelling, multiple-family dwelling, or mixed use project containing a residential use, or A or R zone that is within 100-feet from the face of the building containing the bay door, vehicle entrance, exit or opening.

(3) **Wash Rack.** Every wash rack shall be constructed or arranged so that entrances, exits and openings shall not face any school, lot with a Certificate of Occupancy for a one-family dwelling, multiple-family dwelling, or mixed use project containing a residential use, or A or R zone within 100-feet of the side of the building containing the bay door, vehicle entrance, exit or opening.

(4) **Fences.** Fences or walls erected along the front lot line shall not exceed 36-inches in height.

(5) **Automotive hoists.** Automotive hoists of any type or size, shall be located and operated only inside a building enclosed on at least three sides.

(6) **Signs.**

(i) In addition to the requirements set forth in Sections 91.6201 et seq. of this Code, no person shall erect a pole sign or projecting sign, as defined in Section 91.6203 of this Code, on the lot or lots without first obtaining a conditional use permit pursuant to Section 12.24 W.4. of this Code.

(ii) Monument signs and information signs may only be located within the landscape-planted areas of the lot or lots.

(7) **Utilities.** All new utility lines which directly service the lot or lots shall be installed underground. If underground service is not available at the time the application is submitted and fees paid for plan check, then provisions should be made for future underground service to the satisfaction of the Bureau of Engineering, if determined necessary by the Department of Water and Power.

(8) **Walls and Trash Storage.** A solid masonry wall at least six feet in height shall be erected along the lot lines of the lot or lots where the lot or lots abut or are across an alley from any school, lot with a Certificate of Occupancy for a one-family dwelling, multiple-family dwelling, or mixed use project containing a residential use,

or A or R zone, except for that portion of the lot line where an access driveway is required by the City as determined by the Department of Building and Safety. Trash storage bins shall be located within a gated enclosure constructed of solid masonry and finished to match the exterior wall materials of the main building.

(9) **Landscaping.** All landscaping shall comply with Sections 12.41, 12.42 and 12.43 of this Code and the following requirements:

(i) **Landscaping – Setback.** A landscaped, planted area having a minimum width of five feet shall be required along all street frontages of the lot or lots, except for that portion of the lot line where an access driveway is required by the City as determined by the Department of Building and Safety, and on the perimeters of all parking areas of the lot or lots that abut a residential zone or use.

(ii) **Irrigation System.** An automatic irrigation system shall be provided for all landscaped, planted areas. The system shall be installed and operational prior to the issuance of any certificate of occupancy.

(10) **Lighting.** All exterior and flood lighting shall be directed onto the lot or lots and shall be designed to eliminate any glare to adjoining properties.

(b) **Operating Conditions.**

(1) Spray painting shall not be conducted.

(2) Junkyard or automobile dismantling activities shall not be conducted.

(3) Public address system shall not be permitted.

(4) Site cleaning, sweeping, trash collection, and deliveries to the site shall be limited to the following hours: Monday through Friday, 7:00 a.m. to 7:00 p.m. and Saturday and Sunday 8:00 a.m. to 5:00 p.m. Notwithstanding the above, trash collection shall not be allowed on Sundays or legal holidays.

(5) Hours of operation shall be limited to: Monday through Friday, 7:00 a.m. to 7:00 p.m.; Saturday, 9:00 a.m. to 8:00 p.m.; and Sunday, 11:00 a.m. to 8:00 p.m.

(6) All loading, including those of vehicles, shall occur on-site.

(7) Vehicles being repaired shall be stored on-site. Any off-site parking shall comply with Section 12.21 A.6. of this Code.

(8) Accessory sales activities shall not occur outside a fully enclosed building.

(9) Trailers and/or temporary modular buildings shall not be permitted as a work area.

(10) Arcades or game machines shall not be permitted.

(11) Temporary canopy tents shall not be permitted when the tents are visible from the street.

(12) The site where the automotive use is located shall be kept clear of weeds, rubbish, and all types of litter and combustible materials at all times. One trash receptacles shall be located for every 200 square feet of open space and shall be uniformly distributed throughout the open areas of the site.

(13) Any automotive laundry or wash rack, in which power driven or steam cleaning machinery is used, shall maintain noise levels below the levels provided in Table II of Section 111.03 of this Code. The comparison between the noise emanating from the automotive laundry or wash rack and from Table II shall be made in the manner set forth in Section 111.02(a) of this Code.

(14) Any automotive sound shop or automotive alarm shop shall be wholly conducted within a fully enclosed building. No portion of the building or its associated parking area shall be within 50 feet of any school, lot with a Certificate of Occupancy for a one-family dwelling, multiple-family dwelling, or mixed use project containing a residential use, A or R zoned lot.

(15) All operational conditions imposed by the Department of Building and Safety in its annual inspections of automotive repair and used vehicle sales area pursuant to Section 12.26 I. of this Code shall be followed.

(16) On-site pennants, banners, ribbons, streamers, spinners, balloons and supergraphic signs are prohibited.

(17) All windows and glass doors shall be maintained free of any signs.

(18) **Covenant.** Prior to the issuance of a building permit or land use permit, the owner of the lot or lots shall

execute and record a covenant and agreement in a form satisfactory to the Director of Planning, acknowledging that the owner shall implement each of the conditions set forth in this paragraph, and shall not permit the establishment of any uses enumerated in Section 12.24 W.4. of this Code without first obtaining a conditional use approval. The covenant and agreement shall run with the land and be binding upon the owners, and any assignees, lessees, heirs, and successors of the owners. The City's right to enforce the covenant and agreement is in addition to any other remedy provided by law.

(c) **Existing Building Changed to Automotive Use and/or an Existing Automotive Use Being Expanded or Remodeled.** An existing building or buildings may be converted or an existing automotive use may be expanded without first obtaining a conditional use approval if all of the following requirements are met:

- (1) All alterations result in no more than a 20 percent increase in the existing floor area of all of the buildings on a lot or lots cumulatively over the previous five years.
- (2) The proposed automotive use complies with all the conditions of operation of Paragraph (b) above.
- (3) Any reuse of an existing structure that is required to go through a CUP process shall have all standards established by the Zoning Administrator.

(d) **Specific Plan Compliance.** Notwithstanding any other provision of this Code to the contrary, if the Director determines that the provisions of this subdivision conflict with those of an adopted Specific Plan, pedestrian oriented, commercial and artwork, community design overlay, historic preservation overlay or transit-oriented district, area or zone, then the provisions of that Specific Plan, district, area or zone shall prevail.

29. **Floor Area Bonus for the Greater Downtown Housing Incentive Area. (Added by Ord. No. 179,076, Eff. 9/23/07.)**

(a) **Definitions.**

Area Median Income (AMI) - the median income in the Los Angeles County as determined annually by the United States Department of Housing and Urban Development (HUD), or any successor agency, adjusted for household size.

Floor Area Bonus - an increase in floor area greater than the otherwise maximum allowable floor area, as set forth in Section 12.21.1 of the Code.

Income, Very Low, Low or Moderate - annual income of a household that does not exceed amounts designated for each income category as determined by HUD, or any successor agency.

Income, Workforce - the annual income of a household that does not exceed 150% of the Area Median Income as determined by HUD, or any successor agency.

Restricted Affordable Unit - a residential unit for which rental or mortgage amounts are restricted so as to be affordable to and occupied by Very Low, Low, Moderate or Workforce Income households, as determined by the Los Angeles Housing Department. (Amended by Ord. No. 187,122, Eff. 8/8/21.)

(b) **Eligibility for Floor Area Bonus.** A residential (including Apartment Hotel and mixed-use) building in the Greater Downtown Housing Incentive Area containing the requisite number of Restricted Affordable Units as determined by the Department of City Planning and as set forth in Subparagraphs (1), (2) and (3) below shall be granted the following incentives in accordance with Paragraph (c) below:

- (1) 5% of the total number of dwelling units shall be provided for Very Low Income households; and
- (2) One of the following shall be provided:
 - (i) 10% of the total number of dwelling units for Low Income households; or
 - (ii) 15% of the total number of dwelling units for Moderate Income households; or
 - (iii) 20% of the total number of dwelling units for Workforce Income households.
- (3) Any dwelling unit or guest room occupied by a household earning less than 50% of the Area Median Income that is demolished or otherwise eliminated shall be replaced on a one-for-one basis within the Community Plan Area in which it is located.
- (4) Fractional Units. In calculating Restricted Affordable Units, any number resulting in a fraction shall be rounded up to the next whole number.

(c) **Incentives.**

(1) A 35% increase in total floor area. In computing the total floor area of a residential building or residential portion of a building, any public area accessible to all residents, including public common areas that serve both residential and commercial uses, and any unenclosed architectural features and areas of a building shall not be considered part of the total floor area of a residential or residential portion of a building. The floor area shall be measured to the center line of partitions separating public and non-public common areas.

(2) The open space required by Section 12.21 G. of this chapter shall be reduced by one-half, provided that a fee equivalent to the amount of the relevant park fee, pursuant to Section 19.17, shall be paid for all dwelling units, with the following exception: units qualifying under Section 12.33 C.3.(d) shall be allowed to reduce the open space requirement by one-half without payment of such fee. The in-lieu fee shall be placed in a trust fund with the Department of Recreation and Parks for the purpose of acquisition, development and maintenance of open space and/or streetscape amenities within the Greater Downtown Housing Incentive Area, and within the Community Plan Area in which the project is located. The in-lieu fee is independent of any required park and recreation impact fee. **(Amended by Ord. No. 184,505, Eff. 1/11/17.)**

(3) No parking space shall be required for dwelling units or guest rooms dedicated to or set-aside for households that earn less than 50% of the Area Median Income as determined by the Los Angeles Housing Department. **(Amended by Ord. No. 187,122, Eff. 8/8/21.)**

(4) No more than one parking space (including spaces allocated for guest parking) shall be required for each dwelling unit.

(d) **Covenant.** Prior to issuance of a building permit to create a residential or mixed- use building or an Apartment Hotel, the following shall apply:

(1) For any project qualifying for a Floor Area Bonus that contains rental housing for Low, Very Low, Moderate or Workforce Income households, a covenant acceptable to the Los Angeles Housing Department shall be recorded with the Los Angeles County Recorder, guaranteeing that the affordability criteria will be observed for at least 55 or 99 years as specified in Section 16.61 A. of this Code, from the issuance of the Certificate of Occupancy. **(Amended by Ord. No. 188,481, Eff. 2/11/25, Oper. 2/11/25.)**

(2) For any project qualifying for a Floor Area Bonus that contains for-sale housing for Moderate or Workforce Income households, a covenant acceptable to the Los Angeles Housing Department and consistent with the for-sale requirements of California Government Code Section 65915(c)(2) shall be recorded with the Los Angeles County Recorder. **(Amended by Ord. No. 187,122, Eff. 8/8/21.)**

(3) If the duration of affordability covenants provided for in this subdivision conflicts with the duration for any other government requirement, the longest duration shall control.

30. Downtown Design Guide. (Deleted by Ord. No. 188,420, Eff. 1/20/25, Oper. 1/27/25.)

31. Transit Oriented Communities Affordable Housing Incentive Program. (Initiative Ordinance 184,745, adopted by the voters on 11/8/16.)

(a) **Application of TOC Affordable Housing Incentive Program.** This Transit Oriented Communities Affordable Housing Incentive Program, and the provisions contained in the TOC Affordable Housing Incentive Program Guidelines, shall apply to all Housing Developments that are located within a one-half mile radius of a Major Transit Stop, as defined in subdivision (b) of Section 21155 of the California Public Resources Code. Each one-half mile radius around a Major Transit Stop shall constitute a unique Transit Oriented Communities Affordable Housing Incentive Area.

(b) **Preparation and Content of TOC Incentive Guidelines.** Within 90 days of enactment of this Ordinance, the Director of Planning shall prepare TOC Affordable Housing Incentive Program Guidelines ("TOC Guidelines") that provide the eligibility standards, incentives, and other necessary components of this TOC Incentive Program described herein. Nothing in the TOC Guidelines shall restrict any right authorized in the underlying zone or height district. The TOC Guidelines shall be drafted consistent with the purposes of this Subdivision and shall include the following:

(1) **Eligibility for TOC Incentives.** A Housing Development located within a TOC Affordable Housing Incentive Area shall be eligible for TOC Incentives if it provides minimum required percentages of On-Site Restricted Affordable Units, meets the applicable replacement requirements of Section 16.60 of this Code, and does not seek or receive a density or development bonus under the provisions of California Government Code Section 65915 or any other State or local program that provides development bonuses. Minimum required percentages of On-Site Restricted Affordable Units shall be determined by the Department of City Planning and set forth in the TOC Guidelines at rates that meet or exceed 11% of the total number of dwelling units affordable to Very Low income households; or 20% of the total number of dwelling units affordable to Lower Income households. The Department of City Planning shall also establish an option for a Developer to qualify for the TOC Incentives by providing a minimum percentage of units for Extremely Low Income Households, which shall be set at no less than 7%. In calculating the required Restricted Affordable Units, the percentage shall be based on the

total final project unit count, and any number resulting in a fraction shall be rounded up to the next whole number. In creating the TOC Guidelines, the Department of City Planning shall identify incentives for projects that adhere to the labor standards required in Section 5 of this Ordinance provided, that no such incentives will be created that have the effect of undermining the affordable housing incentives contained herein or in Government Code Section 65915. **(Amended by Ord. No. 188,481, Eff. 2/11/25, Oper. 2/11/25.)**

(2) **TOC Incentives.** An Eligible Housing Development shall be granted TOC Incentives, as determined by the Department of City Planning consistent with the following:

(i) **Residential Density increase.** An Eligible Housing Development shall be granted increased residential density at rates that shall meet or exceed a 35% increase. In establishing the density allowances, the Department of City Planning may allow adjustments to minimum square feet per dwelling unit, floor area ratio, or both, and may allow different levels of density increase depending on the Project's base zone and density.

(ii) **Parking.** An Eligible Housing Development shall be granted parking reductions consistent with California Government Code Section 65915(p).

(iii) **Incentives and Concessions.** An Eligible Housing Development may be granted up to either two or three incentives or concessions based upon the requirements set forth in California Government Code Section 65915(d)(2).

(c) **Approval of TOC Guidelines and Incentives.** The City Planning Commission shall review the TOC Guidelines and shall by vote make a recommendation to adopt or reject the TOC Guidelines.

(d) **Process for Changing TOC Incentives and Eligibility.** The TOC Incentives and the required percentages for On-Site Restricted Affordable Units may be adjusted for an individual TOC Affordable Housing Incentive Area through a Community Plan update, Transit Neighborhood Plan, or Specific Plan, provided that the required percentages for On-Site Restricted Affordable Units may not be reduced below the percentages set forth in subdivision (b).

(e) **Procedures.** Application for the TOC Incentives shall be made on a form provided by the Department of City Planning, and shall follow the procedures outlined in Los Angeles Municipal Code Section 12.22 A.25.(g).

(f) **Covenant.** Prior to issuance of a building permit to create a Housing Development, the following shall apply:

(1) For any Housing Development qualifying for a TOC Incentive that contains rental housing for Extremely Low, Very Low, or Lower Income households, a covenant acceptable to the Los Angeles Housing Department shall be recorded with the Los Angeles County Recorder, guaranteeing that the affordability criteria will be observed for 55 or 99 years as specified in Section 16.61 A. of this Code. **(Amended by Ord. No. 188,481, Eff. 2/11/25, Oper. 2/11/25.)**

(2) For any Housing Development qualifying for a TOC Incentive that contains for-sale housing, a covenant acceptable to the Los Angeles Housing Department and consistent with the for-sale requirements of California Government Code Section 65915(c)(2) shall be recorded with the Los Angeles County Recorder. **(Amended by Ord. No. 187,122, Eff. 8/8/21.)**

(3) If the duration of affordability covenants provided for in this subdivision conflicts with the duration for any other government requirement, the longest duration shall control.

(g) **Definitions.**

"Eligible Housing Development" shall mean a Housing Development that includes On-Site Restricted Affordable Units at a rate that meets or exceeds the minimum requirements to satisfy the TOC Incentives, as determined by the Department of City Planning and as set forth in paragraph (b)(1) above.

"Extremely Low-Income Households" is defined in Section 50106 of the Health and Safety Code.

"Housing Development" shall mean the construction of five or more new residential dwellings units, the addition of five or more residential dwelling units to an existing building or buildings, the remodeling of a building or buildings containing five or more residential dwelling units, or a mixed use development containing residential dwelling units.

"Lower Income Households" is defined in Section 50079.5 of the Health and Safety Code.

"On-Site Restricted Unit" shall mean a residential unit for which rental or mortgage amounts are restricted so as to be affordable to and occupied by Extremely Low, Very Low, or Lower income households, as determined by the Los Angeles Housing Department. **(Amended by Ord. No. 187,122, Eff. 8/8/21.)**

“**Very Low-Income Households**” is defined in Section 50105 of the Health and Safety Code.

32. **Home-Sharing. (Added by Ord. No. 185,931, Eff. 7/1/19.)** In all zones wherein residential uses are permitted by right, the following shall apply:

(a) **Purpose.** The purpose of this subdivision is to allow for the efficient use and sharing of a residential structure which is a Host’s Primary Residence, without detracting from the surrounding residential character or the City’s available housing stock.

(b) **Definitions.** The following definitions shall apply to this subdivision:

(1) **Administrative Guidelines.** The Department of City Planning or Office of Finance may promulgate regulations, which may include, but are not limited to, application requirements, interpretations, conditions, reporting requirements, enforcement procedures, and disclosure requirements, to implement the provisions, and consistent with the intent, of this subdivision.

(2) **Booking Service.** Any reservation and/or payment service provided by a Person that facilitates a Short-Term Rental transaction between a Person and a prospective guest or Transient user, and for which the Person collects or receives, directly or indirectly through an agent or intermediary, a fee in connection with the reservation and/or payment of services provided for the transaction.

(3) **Citation.** Includes any enforcement citation, order, ticket or similar notice of violation, relating to the condition of or activities at a Person’s Primary Residence or property, issued by the Los Angeles Department of Building and Safety, Los Angeles Housing Department, Los Angeles Police Department or Los Angeles Fire Department, including an Administrative Citation issued pursuant to Article 1.2 of the Los Angeles Municipal Code. **(Amended by Ord. No. 187,122, Eff. 8/8/21.)**

(4) **Extended Home-Sharing.** Home-Sharing that is permitted for an unlimited number of days in a calendar year.

(5) **Hosting Platform.** A Person that participates in Short-Term Rental business by collecting or receiving a fee, directly or indirectly through an agent or intermediary, for conducting a Booking Service transaction using any medium of facilitation.

(6) **Host.** An individual who is registered for Home-Sharing as the term is defined in Section 12.03 of this Code.

(7) **Person.** Shall have the same meaning as that term is defined in Section 21.7.2 of this Code.

(8) **Platform Agreement.** A signed agreement between a Home-Sharing Hosting Platform (Platform) and the City, which, among other things, provides that the Platform will collect and submit the Transient Occupancy Tax to the City on behalf of Hosts and Persons listed for Short Term Rentals.

(9) **Primary Residence.** The sole residence from which the Host conducts Home-Sharing and in which the Host resides for more than 6 months of the calendar year.

(10) **Rental Unit.** A Dwelling Unit, Guest Room, Accessory Living Quarters, other residential structure, or portion thereof.

(11) **Short-Term Rental.** A Rental Unit, rented in whole or in part, to any Person(s) for transient use of 30 consecutive days or less. Rental Units within City- approved Hotels, motels, Transient Occupancy Residential Structures and Bed and Breakfasts shall not be considered a Short-Term Rental.

(12) **Transient.** Shall have the same meaning as that term is defined in Section 21.7.2 of this Code.

(c) **Home-Sharing Registration.**

(1) **Application.** To register for Home-Sharing, an applicant shall file an application with the Department of City Planning in a manner provided by the Department, and shall include: information needed to verify the Host’s identification and Primary Residence; identification of a local responsible contact person; a list of all Hosting Platforms to be used; whether Home-Sharing is for an entire Rental Unit or a portion thereof; and any other information required by the instructions on the application and/or by the guidelines promulgated by the Director of Planning. Payment of any filing fee required under Section 19.01 E. shall be included with the application. If the required information for registration, including any filing fee, is not received within 45 days of submittal of the application, the Home-Sharing registration will be considered withdrawn.

(2) **Eligibility Requirements.** The following requirements must be met at the time of submitting an application for Home- Sharing registration:

(i) The applicant has obtained a Transient Occupancy Registration Certificate from the Office of Finance pursuant to Section 21.7.6 of this Code, unless the applicant exclusively lists the applicant's Primary Residence on Hosting Platforms that have a Platform Agreement with the City of Los Angeles.

(ii) The proposed Home- Sharing is consistent with the provisions of this subdivision and is limited to the Host's Primary Residence.

a. A renter or lessee shall not engage in Home- Sharing without prior written approval of the landlord. A renter or lessee shall provide copies of the landlord's written approval to the City at the time of filing the application for registration. A landlord may proactively prohibit Home- Sharing by tenants at any or all of the owner's properties by submitting a notification in writing to the Department of City Planning.

b. A Primary Residence that is subject to affordable housing covenants, and/or Chapter 15 of the Los Angeles Municipal Code ("Rent Stabilization Ordinance"), and/or are income-restricted under City, state or federal law, is not eligible for Home-Sharing.

c. No Primary Residence which is the subject of any pending Citation may be registered for Home-Sharing.

d. No Person may apply for or obtain more than one Home-Sharing registration or otherwise operate more than one Home-Sharing Rental Unit at a time in the City of Los Angeles.

(3) **Expiration and Renewal.** A Home-Sharing registration is valid for one year from the date of issuance. It may not be transferred or assigned and is valid only at the Host's Primary Residence. A Home- Sharing registration may be renewed annually if the Host: (1) pays the renewal fee; (2) has complied with the provisions of this subdivision for the past year; (3) provides information concerning any changes to the previous application for, or renewal of, the Home-Sharing registration; and (4) submits Home-Sharing records described in Subparagraph (e)(2) for the last year to demonstrate compliance with this subdivision, unless the Host lists exclusively on a Hosting Platform with a Platform Agreement that includes a provision for pass-through registration for applicants for a Home-Sharing registration. The records described in Subparagraph (e)(2) shall be made public to the extent required by law.

(4) **Suspensions and Revocations. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)** Notwithstanding any other provision of this Code to the contrary, the Director may require the suspension, modification, discontinuance or revocation of any Home-Sharing registration if it is found that the Host has violated this subdivision or any other city, state, or federal regulation, ordinance or statute.

(i) **Suspension.** If a Host receives two Citations, the Host's Home-Sharing registration shall be suspended for 30 days or as long as at least one Citation is open, whichever is longer. The suspension shall become effective 15 days after the mailing of a Notice of Intent to Suspend the Host. If a Host initiates an appeal of either Citation, the suspension will take effect only if the appeal is not resolved entirely in the Host's favor.

a. A Host may challenge a Citation by submitting an appeal to the City department that issued the Citation and providing notice to the Department of Planning as described in the Administrative Guidelines.

b. Where no process is described in the Citation, a Host may challenge a Citation by submitting an appeal to the Director of Planning in accordance with the process in Sec. 13B.6.1. (Evaluation of Non-Compliance) of Chapter 1A of this Code, with no further appeal to a Commission or City Council.

(ii) **Revocation.** If three Citations have been issued to the Host and have been sustained (after exhaustion of any related remedies, including appeals) within a registration year, the Host's Home-Sharing registration shall be revoked. The revocation of a Host's Home-Sharing registration shall become effective 15 days after the mailing of a Notice of Intent to Revoke to the Host.

a. A Host may challenge a Notice of Intent to Revoke by submitting an appeal to the Director of Planning in accordance with the process in Sec. 13B.6.1. (Evaluation of Non-Compliance) of Chapter 1A of this Code, with no further appeal to a Commission or City Council.

b. Pursuant to the revocation, the Host shall be prohibited from participating in Home-Sharing for one year from the effective date of the Notice of Intent to Revoke.

(iii) **Modification.** The Director may modify, discontinue or revoke any Home-Sharing registration based upon an order to show cause, pursuant to Sec. 13B.6.2. (Nuisance Abatement/Revocation) of

Chapter 1A of this Code, why any proposed modifications, discontinuances or revocations of any Home-Sharing registration should not be issued. The Director shall provide notice to the Host and/or recorded owner and lessee(s) of the Host's Primary Residence to appear at a public hearing at a time and place fixed by the Director to respond to the Director's order to show cause.

(d) Prohibitions.

- (1) No Person shall offer, advertise, book, facilitate or engage in Home Sharing or Short-Term Rental activity in a manner that does not comply with this subdivision.
- (2) A Host may not participate in Home-Sharing unless all advertisements clearly list the City-issued Home Sharing registration number or pending registration status number.
- (3) No Host shall engage in Home- Sharing for more than 120 days in any calendar year unless the City has issued the Host an Extended Home-Sharing registration pursuant to Paragraph (h).
- (4) Accessory Dwelling Units for which a complete building permit application was submitted on or after January 1, 2017, to the Department of Building and Safety pursuant to Section 12.26 A.3. may not be used for Home- Sharing, unless an applicant demonstrates the Accessory Dwelling Unit is the applicant's Primary Residence.
- (5) No Host shall offer, advertise, or engage in Home-Sharing in a non- Residential Building, including but not limited to, a vehicle parked on the property, a storage shed, trailer or any temporary structure, including, but not limited to, a tent.
- (6) If a Host lists a Primary Residence on multiple listings on multiple Hosting Platforms, only one listing may be booked at any given time.
- (7) A Host may not rent all or a portion of the Host's Primary Residence for the purposes of Home-Sharing to more than one group of guests or under more than one booking, at any given time.
- (8) Home Sharing is not permitted in buildings that have been converted from units subject to Chapter 15 of the Los Angeles Municipal Code ("Rent Stabilization Ordinance") to single family homes until five years after the date of conversion.
- (9) Except for allowable Home Occupations, non-residential uses including, but not limited to, sales or exchange of products, events that charge a fee, or the promotion, display or servicing of any product shall not be permitted during Home-Sharing activity.
- (10) A Host shall only advertise on a Hosting Platform that was listed on the Host's Home-Sharing application form, unless the Host has submitted a written request and received written approval from the Department of City Planning to use another Hosting Platform.
- (11) No more than 2 overnight guests (not including children) are allowed per habitable room, not including kitchens, during Home-Sharing activities.
- (12) There shall be no use of sound amplifying equipment, as that term is defined in Section 111.01(j) of this Code after 10:00 p.m. and no evening outdoor congregations of more than 8 people (excluding children) during Home-Sharing activities. Home-Sharing activities are subject to the noise regulations in the Los Angeles Municipal Code.
- (13) A Host whose Home-Sharing registration has been suspended is prohibited from participating in Home-Sharing for the duration of the suspension.
- (14) A Host whose Home-Sharing registration has been revoked may not participate in Home-Sharing unless and until a new registration is authorized.

(e) Host Requirements.

- (1) A Host may be responsible for any nuisance violations, as described in Sec. 13B.6.2. (Nuisance Abatement / Revocation) of Chapter 1A of this Code, arising at the Host's Primary Residence during Home-Sharing activities. The Host, or owner of the Host's Primary Residence if the Host does not own it, may be assessed a minimum inspection fee, as specified in Section 98.0412 of this Code for each site inspection. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**
- (2) The Host shall keep and preserve, for a minimum period of three years, all records regarding each Home-Sharing stay, including the length of stay and the price paid for each stay, and any other records required by Administrative Guidelines promulgated by the Director.

(3) On the Home-Sharing registration application, a Host shall acknowledge and consent to Office of Finance and other City agencies' inspection of records at all reasonable times and places for purposes of enforcement of this Subdivision.

(4) The Host shall fully comply with all the requirements of Article 1.7 of the Los Angeles Municipal Code (establishing the Transient Occupancy Tax) and successor Sections.

(5) The Host shall pay a per-night fee for each night of Home-Sharing, which will be deposited into the Short Term Rental Enforcement Fund per the requirements in Section 5.576 of the Los Angeles Administrative Code. The City Council shall adopt, by resolution, a per-night fee based on an analysis of the cost of implementing, maintaining, and enforcing this subdivision.

(6) Every Host shall provide and maintain working fire extinguishers, smoke detectors, and carbon monoxide detectors, in compliance with fire, life and safety codes; information related to emergency exit routes on the property and contact information, including the contact information of the Host or a designated responsible agent of the Host.

(7) Every Host that lists a Primary Residence located in a Very High Fire Hazard Severity Zone designated by the City of Los Angeles Fire Department pursuant to Government Code Section 51178 shall include in all Host listings and post written notices on any patio or deck that smoking is not permitted in any exterior of the property.

(8) Every Host shall provide a code of conduct to guests that includes the relevant provisions of this Subdivision and other information to address behavioral, safety, security, and other matters, as required in the Department's Administrative Guidelines.

(9) Every Host shall authorize any Hosting Platform on which the Host's Primary Residence is listed to provide to the City the Host listing and other information described in Subsection (f)(4).

(10) Every Host must consent to receive all City notices and citations regarding their Home-Sharing registration by U.S. mail.

(f) Hosting Platform Responsibilities.

(1) Hosting Platforms shall not process or complete any Booking Service transaction for any Person unless the Person has a valid Home-Sharing registration number issued by the City or a pending registration status number.

(2) Hosting Platforms shall not process or complete any Booking Service transaction for any Host listing that has exceeded the authorized 120-day limit in one calendar year unless the Host has obtained an Extended Home-Sharing approval.

(3) Within 45 days of the effective date of this Ordinance, Hosting Platforms with listings located in the City shall provide to the Department of City Planning contact information for an employee or representative responsible for responding to requests for information, including requests related to possible violations of this Subdivision. Hosting Platforms that commence listings in the City after the effective date must provide this information prior to facilitating Home-Sharing activity or providing Booking Services within the City.

(4) Subject to applicable laws, a Hosting Platform with listings in the City shall provide to the Department of City Planning, on at least a monthly basis, in a format as specified by the City, the Home-Sharing registration number of each listing, the name of the person responsible for each listing, the street address of each listing and, for each booking that occurs within the reporting period, the number of days booked.

(5) In the event a Hosting Platform has entered into an agreement with the Office of Finance to collect and remit Transient Occupancy Tax pursuant to Los Angeles Municipal Code Section 21.7.1 et seq., and a Host has assigned the responsibilities for the collection and remittance of the Transient Occupancy Tax to the Hosting Platform, then the Hosting Platform and the Host shall have the same duties and liabilities, including but not limited to the collection and remittance of the tax to the City on a monthly basis.

(6) **Exception.** The provisions of this paragraph shall not apply to a Hosting Platform whenever it (a) complies with the Administrative Guidelines, issued by DCP and approved by resolution of the City Council, that describe how the Platform shall satisfy the Hosting Platform responsibilities in this paragraph, or (b) enters into a Platform Agreement, the terms of which shall be set forth in a master Platform Agreement approved by the City Council, that establishes the manner in which the Hosting Platform supports the City's enforcement of this subdivision and meets the purposes of the Platform responsibilities in this paragraph. Each individual Platform Agreement shall be approved by the City Council.

(g) Enforcement of Violations.

(1) The provisions in this Subsection shall be in addition to any criminal, civil or other legal remedy established by law that may be pursued to address violations of this Subdivision.

(2) Any Person who has failed to comply with the provisions of this Subdivision may be subject to the provisions of Section 11.00 of this Code. The owner and/or operator of any property used for Short Term Rentals, including the Host or owner of any Host Primary Residence, may be assessed a minimum inspection fee, as specified in Section 98.0412 of this Code for each site inspection.

(3) The Director may, at any time, require the modification, discontinuance, or revocation of any Home-Sharing registration in the manner prescribed in Subparagraph (c)(4).

(4) The ACE program in Article 1.2 of this Chapter may be utilized to issue administrative citations and impose fines pursuant to this Subdivision. The citation shall be served by personal service or by depositing in the mail for delivery by the United States Postal Service, in a sealed envelope, postage prepaid, addressed to the operator of the Short Term Rental, the Host, and/or the property owner, if different than the operator or Host, shown on the County's last equalized property tax assessment roll. Fines for violations of this subdivision shall be as follows:

(i) Hosting Platform: a \$1,000 fine per day shall be imposed for any of the following violations:

a. Completing a Booking Service transaction for each listing without a valid City Home-Sharing registration number or pending registration status number.

b. Completing a Booking Service transaction for each listing where more than one property is affiliated with a single Host, or each listing where the Host's home address does not match the listing location.

c. Completing a Booking Service transaction for any listing for a Rental Unit where the Host's Home-Sharing or Extended Home-Sharing registration has been revoked or suspended by the City.

d. Completing a Booking Service transaction for any Rental Unit lacking Extended Home-Sharing approval that has exceeded the authorized 120-day limit for hosting Short-Term Rentals in one calendar year.

(ii) Owner of Primary Residence and/or Host and/or Person:

a. A daily fine of \$500, or two times the nightly rate charged, whichever is greater, for advertising a Rental Unit for the purposes of Short-Term Rental in violation of this Subdivision.

b. A daily fine of \$2,000, or two times the nightly Rent charged, whichever is greater, for each day of Home-Sharing activity beyond the 120 day limit in a calendar year, unless the Host has a valid Extended Home-Sharing Registration.

c. For all other violations of this subdivision, the administrative fine shall be levied according to the amounts described in Section 11.2.04(a)(2) of this Code. The square footage for the use in calculating the fine shall be the amount of indoor space to which the Transient guest has access. If the square footage is unable to be ascertained, it shall be deemed to be between 500 and 2,499 square feet.

(iii) The fine amounts listed above shall be updated annually, from the date of effective date of this ordinance, according to the Consumer Price Index for All Urban Consumers (CPI-U).

(h) **Extended Home-Sharing.** For Hosts who participate in Extended Home-Sharing, the following shall apply:

(1) **Application and Eligibility Requirements.**

(i) **Ministerial Approval.** Extended Home-Sharing may be approved by the Director if, in addition to the eligibility requirements for Home-Sharing, all of the following requirements are met:

a. The Host maintains a current Home-Sharing registration and has maintained a Home-Sharing registration for at least six months or has hosted for at least 60 days based on substantial evidence provided by the Host or Hosting Platform;

b. No more than one Citation was issued within the prior three years; and

c. The Host provides proof of mailing of a notification concerning commencement of Extended Home-Sharing, which includes a Director-issued publication outlining the complaint process, to adjacent and abutting owners and occupants on a form provided by the Department.

(ii) **Discretionary Approval.** A discretionary review of an Extended Home-Sharing application is required if the Host complies with Subparagraph (h)(1)(i)a., but two Citations have been issued within the prior three years.

a. If the Director finds that the matter may have a significant effect on neighboring properties, the Director may set the matter for public hearing. Written notice of the hearing shall be sent by First Class Mail at least 21 days prior to the hearing to the applicant, owners and tenants of the property involved, owners and tenants of all properties adjacent and abutting the proposed Extended Home-Sharing activity, the City Councilmember representing the area in which the property is located, and the applicable Neighborhood Council. If the Director determines that the matter will not have a significant effect on neighboring properties, no hearing shall be held.

b. The Extended Home- Sharing application may only be approved if, in addition to the eligibility requirements for Home-Sharing, all of the following requirements are met, to the satisfaction of the Director of Planning:

1. The Host provides proof of mailing of a notification, which includes a Director-issued publication outlining the complaint process, to adjacent and abutting owners and occupants on a form provided by the Department;

2. In consideration of any comments received by the public on the application, the Director finds the use is in substantial conformance with the following findings:

A. That the Extended Home-Sharing will enhance the built environment in the surrounding neighborhood or will perform a function or provide a service that is essential or beneficial to the community, city or region;

B. That the Extended Home-Sharing operations and other significant features will be compatible with and will not adversely affect or further degrade adjacent properties, the surrounding neighborhood, the availability of housing, or the public health, welfare, and safety;

C. That the Extended Home-Sharing substantially conforms with the purpose, intent, and provisions of the General Plan, the applicable community plan, and any applicable specific plan; and

D. That there is no substantial evidence of continued nuisance behavior from the location.

c. If no appeal is filed within 15 days from the date of the Director's determination approving or denying an Extended Home-Sharing application, the Director's decision is final. An appeal to the Area Planning Commission may be filed by the applicant or any adjacent and abutting owner and occupant. An appeal shall be filed at the public counter of the Planning Department within 15 days of the date of the Director's decision. The appeal shall set forth specifically how the appellant believes the Director's findings and decision are in error. The Area Planning Commission may grant, conditionally grant or deny the appeal. The failure of the Commission to act upon an appeal within 75 days after the expiration of the appeal period, or within an additional period as may be agreed upon by the applicant and the Director, shall be deemed a denial of the appeal and the original action on the matter shall become final.

(2) **Ineligibility.** If the Host's Home-Sharing registration has been suspended or revoked, the Host is not eligible to apply for Extended Home- Sharing for two years from the effective date of the revocation or suspension or as long as a Citation remains open or unresolved, whichever is later.

(3) **Expiration and Renewal.** An Extended Home-Sharing registration is valid for one year from the date of issuance. An Extended Home-Sharing registration is subject to the same expiration and renewal terms described in Subparagraph (c)(3) and may be renewed annually if the Host meets the same renewal requirements in that subparagraph.

(4) **Revocations.** An Extended Home Sharing approval shall be revoked if there are two Citations within a registration year in accordance with the process set forth in Paragraph (c)(4). Pursuant to the revocation, the Host shall be prohibited from participating in Home-Sharing for two years from the effective date of the Notice of Revocation or as long as a Citation remains open or unresolved, whichever is later.

(i) **Administration and Regulations.** No Person shall fail to comply with the Administrative Guidelines.

(j) **Effective Date.** This ordinance shall take effect on July 1, 2019.

(k) **Severability.** If any provision of this Subdivision is found to be unconstitutional or otherwise invalid by any court of competent jurisdiction, that invalidity shall not affect the remaining provisions of this Subdivision which can be implemented without the invalidated provisions, and to this end, the invalid provisions of this Subdivision are declared to be severable. The City Council hereby declares that it would have adopted each and every provision and portion thereof not declared invalid or unconstitutional, without regard to whether any portion of the ordinance would subsequently be declared invalid or unconstitutional.

33. Accessory Dwelling Units (ADU) and Junior Accessory Dwelling Units (JADU). (Added by Ord. No. 186,481, Eff. 12/19/19.)

(a) **Purpose.** The purpose of this subdivision is to provide for the creation of ADUs and JADUs consistent with California Government Code Sections 65852.2 and 65852.22, as amended from time to time.

(b) **Applicability.** The following development standards shall apply:

- (1) A detached ADU shall be approved if in compliance with all of the provisions provided in Paragraphs (c) and (d).
- (2) An attached ADU shall be approved if in compliance with all of the provisions provided in Paragraphs (c) and (e).
- (3) A Movable Tiny House (MTH) shall be approved if in compliance with all of the provisions in Paragraph (c), except for those provisions in Paragraph (c) which apply solely to buildings and structures; and all of the provisions in Paragraph (f).
- (4) A JADU shall be approved if in compliance with all of the provisions provided in Sections 65852.2(e)(1)(A) and 65852.22 of the Government Code.
- (5) An ADU described by Section 65852.2(e)(1)(A) or (C) of the Government Code shall be approved if in compliance with all of the applicable provisions in Section 65852.2(e) of the Government Code.
- (6) An ADU described by Section 65852.2(e)(1)(B) or (D) of the Government Code shall be approved if in compliance with all of the applicable provisions in Section 65852.2(e) of the Government Code; and all of the applicable provisions of Paragraphs (c), (d) and (e) of this subdivision, except for those provisions which do not allow such an ADU otherwise in compliance with all applicable provisions in Section 65852.2(e) of the Government Code; and all of the provisions provided in Paragraph (g).

(c) Development Standards.

(1) Comply with all applicable objective provisions required pursuant to Chapter 1 of this Code, including provisions stated in the underlying applicable zone and height district, Specific Plan, Historic Preservation Overlay Zone, Community Planning Implementation Overlay and other applicable zoning ordinances, policies or other documents established pursuant to Chapter 1, Article 3 of this Code. In any instance where there is conflict, this subdivision shall govern. Notwithstanding the prior two sentences and notwithstanding anything to the contrary in this Subdivision 33:

(i) No minimum lot size requirement shall apply to an ADU;

(ii) No minimum square footage requirement for either an attached or detached ADU shall apply that prohibits an efficiency unit;

(iii) No other minimum or maximum size for an ADU, including size based upon a percentage of the proposed or existing primary dwelling, or limits on lot coverage, floor area ratio, open space, and minimum lot size, shall apply for either attached or detached dwellings that does not permit at least an 800 square foot ADU that is at least 16 feet in height with 4-foot side and rear yard setbacks to be constructed in compliance with all other local development standards.

(2) An ADU which complies with this subdivision shall not require a discretionary planning approval. The ADU project shall be reviewed in a ministerial and administrative manner, limited to only considering the project's compliance with the applicable objective standards. An application to create an ADU shall be acted upon within 60 days from the date the City receives a completed application if there is an existing single-family or multi-family dwelling on the lot. If the permit application to create an ADU unit is submitted with a permit application to create a new single-family dwelling on the lot, the City may delay acting on the permit application for the ADU until the City acts on the permit application to create the new single-family dwelling. If the applicant requests a delay, the 60-day time period shall be tolled for the period of the delay.

(3) Except where otherwise prohibited by this subdivision, an ADU is permitted in all zones where residential uses are permitted by right.

(4) No ADU is permitted on any lot that is located in both a Very High Fire Hazard Severity Zone designated by the City of Los Angeles Fire Department pursuant to Government Code Section 51178 and a Hillside Area as defined by the Hillside Area Map pursuant to Section 12.03 of this Code, unless it meets one of the following exceptions:

(i) The ADU is located within the boundaries of either the Northeast Los Angeles Community Plan Area or the Silver Lake - Echo Park - Elysian Valley Community Plan Area; or

(ii) The ADU complies with all of the following requirements:

a. Notwithstanding Subparagraph (c)(10) below, the ADU is protected throughout with an approved automatic fire sprinkler system, in compliance with the Los Angeles Plumbing Code;

b. Notwithstanding Subparagraph (c)(12) below, one off-street parking space is provided for the ADU; and

c. The ADU is located on a lot fronting on a street that is improved with a roadway width of 20 feet or more in unobstructed width, as measured along the entire frontage of the subject property, after any associated dedication and improvement. In the event the ADU is located on a Through Lot or a Corner Lot, the lot must front on at least one street that is improved with a roadway width of 20 feet or more in unobstructed width after any associated dedication and improvement.

(5) Except as otherwise permitted by this subdivision, only one ADU is permitted per lot.

(6) An ADU may only be created on a lot that contains a proposed or existing dwelling. Other non-residential uses and accessory residential uses may be permitted on the lot, consistent with the uses permitted by the zone.

(7) No passageway for an ADU, nor space between buildings, as per LAMC 12.21 C.2. and LAMC 12.21 C.5. (d), is required in conjunction with the construction of an ADU. Building Code separation requirements still apply.

(8) No additional setbacks shall be required for an existing living area or accessory structure, or a structure constructed in the same location and to the same dimensions as an existing structure, converted to an ADU or portion of an ADU. A setback of no more than 4 feet from the side and rear lot lines shall be required for an accessory dwelling unit that is not converted from an existing structure or a new structure constructed in the same location and to the same dimensions as an existing structure.

(9) ADUs are required to comply with all applicable Building and Residential Codes for the proposed use.

(10) ADUs are not required to provide fire sprinklers if they are not required for the primary residence.

(11) ADUs located where a private sewage disposal system is being used, shall require approval by the local health officer.

(12) Parking Requirements:

(i) **ADU Parking.** One parking space is required for an ADU, except that no parking is required for an ADU that is:

a. Located within one-half mile walking distance of a public transit. For this purpose, public transit means a location, including, but not limited to, a bus stop or train station, where the public may access buses, trains, subways, and other forms of transportation that charge set fares, run on fixed routes, and are available to the public; or

b. Located within one block of a designated pick-up and drop-off location of a car share vehicle; or

c. Located in an architecturally and historically significant district listed in or formally determined eligible for listing in the National Register of Historic Places or California Register of Historical Resources or located in any City Historic Preservation Overlay Zone; or

d. Part of the proposed or existing primary residence or an accessory structure.

(ii) **ADU Parking Location.** ADU parking is allowed in any yard area or passageway. When located in a required front yard, the parking must be located on an existing driveway. Parking may be provided through tandem parking where two or more automobiles are parked on a driveway or in any other location on a lot, lined up behind one another. Driveway access areas located in the required front yard shall not be expanded to provide required parking. Other objective parking and driveway standards in the LAMC

apply, including those found in Sections 12.21 A.5. and 12.21 A.6. However, Section 12.21 A.6.(d) of this Code shall not apply to parking required for an ADU.

(iii) **Replacement Parking.** No replacement parking shall be required when a garage, carport or covered parking structure is demolished in conjunction with the construction of an ADU or converted to an ADU.

(d) **Detached Accessory Dwelling Unit Requirements.** Detached ADUs, except those described in Paragraph (f), below, must comply with all provisions of Paragraph (c) and all of the following provisions provided in this Paragraph (d). In addition, Detached ADUs must comply with all applicable provisions of Section 12.21 C.5. that are not in conflict with these Paragraphs (c) and (d).

(1) The Floor Area for a detached ADU shall not exceed 1,200 square feet. Limits on Floor Area on a lot apply separately and may further limit allowable Detached ADU square footage, except as otherwise provided by this Subdivision 33.

(2) Structures containing a detached ADU shall not be greater than two stories.

(3) Detached ADUs shall not be located between a proposed or existing dwelling unit and the street adjoining the front yard, except in the following cases:

(i) Where the ADU is on a Through Lot and complies with LAMC Section 12.21 C.5.(k); or

(ii) Where the ADU is being added to a lawfully existing garage or accessory structure building.

(e) **Attached Accessory Dwelling Unit Requirements.** Attached ADUs can be either attached to or completely contained within an existing or proposed dwelling, and must comply with all provisions in Paragraph (c) and all of the following provisions in this Paragraph (e):

(1) If there is an existing primary dwelling, the Floor Area of an attached ADU may not exceed 50 percent of the existing primary dwelling.

(2) Limits on Floor Area on a lot apply separately and may further limit allowable attached ADU square footage, except as otherwise provided by this Subdivision 33.

(3) Nothing in this subdivision shall prohibit an attached ADU with a Floor Area of less than 850 square feet, or less than 1,000 square feet for an attached ADU that provides for more than one bedroom.

(f) **Requirements for Movable Tiny Houses as Accessory Dwelling Units.** A Movable Tiny House must comply with all of the provisions provided in Paragraph (c) except for any provisions in Paragraph (c) which apply solely to buildings and structures; and this Paragraph (f):

(1) Only one Movable Tiny House is allowed to be located on a lot and no lot may be approved for more than one moveable tiny house in a twelve month period.

(2) When sited on a lot, the undercarriage (wheels, axles, tongue and hitch) shall be hidden from view.

(3) The wheels and leveling or support jacks must sit on a paved surface compliant with LAMC 12.21 A.6.(c).

(4) Mechanical equipment shall be incorporated into the structure and not located on the roof.

(5) Movable Tiny Houses shall be connected to water, sewer and electric utilities.

(6) Moveable Tiny Houses are not required to have separate street addresses from the primary dwelling unit.

(7) Movable Tiny Houses are not required to have sprinklers, but shall follow the ANSI A119.5 or NFPA 1192 standards relating to health, fire and life-safety.

(8) Movable Tiny Houses shall have the following design elements:

(i) **Cladding and Trim.** Materials used on the exterior of a moveable tiny house shall exclude single piece composite, laminates, or interlocked metal sheathing.

(ii) **Windows and Doors.** Windows shall be at least double pane glass and labeled for building use, and shall include exterior trim. Windows and doors shall not have radius corners.

(iii) **Roofing.** Roofs shall have a minimum of a 12:2 pitch for greater than 50 percent of the roof area, and shall not be composed of wooden shingles.

(iv) **Extensions.** All exterior walls and roof of a moveable any tiny house used as an ADU shall be fixed with no slide-outs, tip-outs, nor other forms of mechanically articulating room area extensions.

(9) Movable Tiny Houses shall not be greater than two stories.

(10) Movable Tiny Houses shall not be located between the proposed or existing single-family dwelling unit and the street adjoining the front yard, except where the Movable Tiny House is on a Through Lot and complies with LAMC 12.21 C.5.(k).

(g) **Accessory Dwelling Units Otherwise Required By State Law.** An application for a building permit shall be approved to create an ADU pursuant to Section 65852.2(e)(1)(B) or (D) of the Government Code within a residential or mixed-use zone, in compliance with all of the applicable provisions in Section 65852.2(e) of the Government Code; and all of the applicable provisions of Paragraphs (c), (d) and (e) of this subdivision, except for those provisions which do not allow such an ADU otherwise in compliance with all applicable provisions in Section 65852.2(e) of the Government Code; and all of the following requirements:

(1) An ADU created pursuant to Section 65852.2(e)(1)(B) of the Government Code shall have a Floor Area of not more than 800 square feet and a height of no more than 16 feet; and

(2) An ADU created pursuant to Section 65852.2(e)(1)(B) or (D) of the Government Code shall not be located on any lot that is located in both a Very High Fire Hazard Severity Zone designated by the City of Los Angeles Fire Department pursuant to Government Code Section 51178 and a Hillside Area as defined by the Hillside Area Map pursuant to Section 12.03 of this Code, unless it meets one of the exceptions stated in Subparagraph (4) of Paragraph (c) of this subdivision.

(h) **General Provisions.** The following general provisions apply to all ADUs, JADUs, and lots where any ADU or JADU is located.

(1) In the event where an ADU or JADU would be created as a result of a conversion of an entire existing dwelling unit, any newly constructed dwelling unit located between the ADU or JADU, and the rear lot line, shall not exceed 1,200 square feet.

(2) In cases where additional dwelling units are added to a lot after the creation of the ADU or JADU, an ADU and JADU will be counted towards the overall number of dwelling units as permitted by the zone.

(3) ADUs and JADUs may be rented but shall not be sold separate from the existing or proposed dwelling unit on the same lot. Movable Tiny Houses may be sold when removed from the lot.

(4) Applicants for ministerial approval of a permit application for the creation of an ADU or JADU shall not be required to correct nonconforming zoning conditions. For this purpose, nonconforming zoning condition means a physical improvement on a property that does not conform to current zoning standards.

(5) A certificate of occupancy for an ADU or JADU shall not be issued before a certificate of occupancy for the primary dwelling.

(i) **Zoning Administrator Authority.** It is the intent of the City to retain all portions of this subdivision regarding ADUs and JADUs not in conflict with state law. The Zoning Administrator shall have authority to clarify, amend or revoke any provision of this subdivision as may be necessary to comply with any state law regarding ADUs or JADUs.

(j) **Interpretation Consistent with State Law.** This subdivision is not intended to conflict with state law. This subdivision shall be interpreted to be compatible with state enactments.

(k) **California Coastal Act.** Nothing in this subdivision shall be construed to supersede or in any way alter or lessen the effect or application of the California Coastal Act of 1976 [Division 20 (commencing with Section 30000) of the Public Resources Code], except that the Department shall not be required to hold public hearings for coastal development permit applications for ADUs or JADUs.

(l) **Enforcement.** Enforcement of building standards pursuant to Article 1 (commencing with Section 17960) of Chapter 5 of Part 1.5 of Division 13 of the Health and Safety Code for an ADU described in paragraph (1) or (2) below, upon request of an owner of an ADU, shall be delayed subject to compliance with Section 17980.12 of the Health and Safety Code:

(1) The ADU unit was built before January 1, 2020.

(2) The ADU was built on or after January 1, 2020, in a local jurisdiction that, at the time the ADU was built, had a noncompliant ADU ordinance, but the ordinance is compliant at the time the request is made.

34. **Restaurant Beverage Program. (Added by Ord. No. 187,402, Eff. 3/31/22.)** In the CR, C1, C1.5, C2, C4, C5, CM, M1, M2, and M3 Zones, the sale or dispensing of alcoholic beverages for consumption on the premises shall be allowed administratively without obtaining a conditional use approval as otherwise required by Section 12.21 A.10. of this Code if all of the following requirements and standards are met:

(a) **Eligibility Criteria.**

(1) The restaurant is located within an area mapped and adopted by City Council Resolution for the Restaurant Beverage Program. The City Council shall have the ability to establish and subsequently modify the area by the adoption of resolutions based on a finding that the establishment or modification is in conformity with public necessity, convenience, general welfare and good zoning practice.

(2) The restaurant shall be maintained as a bona fide eating place with an operational kitchen where food is prepared onsite and with a full menu containing an assortment of foods. Food service is available at all times during operating hours. The restaurant provides seating and dispenses food and refreshments for consumption on the premises and not solely for the purpose of food takeout or delivery.

(3) The restaurant shall operate under a Type 41 or Type 47 license as issued by the California Department of Alcoholic Beverage Control.

(4) If the restaurant or property has been the subject of nuisance abatement or revocation, it shall be eligible for the Restaurant Beverage Program upon conclusion of those proceedings only if the proceeding(s) did not result in the revocation of any permit or require any corrective conditions.

(5) The restaurant shall have between a minimum of 10 patron seats and a maximum of 150 patron seats, including any outdoor seating.

Exemption. Outdoor Dining Areas pursuant to 12.21 A.24. shall be exempt from the above outdoor seating limitation. **(Added by Ord. No. 188,073, Eff. 1/31/24.)**

(6) The restaurant has obtained the necessary approvals to operate any outdoor seating, including but not limited to, revocable permits issued by the Bureau of Engineering, Department of Public Works.

(7) The restaurant is not a Drive- Through Fast Food Establishment, as defined in the LAMC.

(8) The restaurant is not located in a Hotel, as defined in the LAMC.

(9) The restaurant is not part of any multiple-tenant entitlement pursuant to Sections 12.24 W.1. and 12.24 W.18.(a) of the LAMC.

(10) Daily hours of operation shall be limited to the hours between 7:00 a.m. and 11:00 p.m. for both indoor and outdoor areas. There shall be no after-hours use of the restaurant, other than for routine clean- up and maintenance.

(11) All food and beverages, except for takeout or delivery orders, shall be delivered to tables by an employee.

(12) Pool tables and billiard tables are prohibited.

(13) Dancing and Adult Entertainment pursuant to LAMC Sections 12.24 W.18. and 12.70 are prohibited.

(14) There shall be no minimum drink purchase required of patrons.

(15) There shall be no charge for admission.

(16) The restaurant shall not organize or participate in organized events where participants or customers pre-purchase tickets or tokens to be exchanged for alcoholic beverages at the restaurant.

(17) All service of alcoholic beverages shall be conducted by an employee.

(18) The restaurant shall not sell distilled spirits by the bottle, or wine or champagne bottles that exceed 750 milliliters.

(19) No employee, while working, shall solicit or accept any alcoholic or non- alcoholic beverage from any customer while on the premises.

(20) No employee, while working, shall be engaged for the specific purpose of sitting with or otherwise spending time with customers while on the premises.

- (21) There shall be no age limitation restricting access to any portion of the restaurant.
- (22) The restaurant has a business tax registration certificate issued by the City of Los Angeles.

(b) Development Standards and Operations.

- (1) There shall be no shared seating between the restaurant and other restaurants.
- (2) The restaurant shall only use fixed bars that are depicted on floor plans. Portable bars are prohibited.
- (3) Where booth or group seating is provided, no walls or partitions separating the booth or seating area from the main dining room shall be installed which exceed 48 inches in height above the surface on which occupants' feet are intended to rest. Where a private dining or banquet room is provided, a minimum of 50 percent of the vertical surface area of that portion, extending up to 6 feet above the floor, of any wall or partition separating the private dining or banquet room from the main dining room shall be fully transparent and ensure the occupants are visible to persons looking into the private dining or banquet room.
- (4) For properties abutting or across an alley from an A or R zoned lot:
 - (i) a wholly enclosed building, at least 8 feet in height above grade and extending at least the full length of the outdoor dining area, shall be located between the outdoor dining area and an A or R zoned lot that may or may not be separated by an alley. This requirement shall not apply to outdoor dining permitted on a public sidewalk by a revocable permit issued by the Bureau of Engineering, Department of Public Works; and
 - (ii) outdoor seating shall be limited to the ground floor only.

Exemption. Outdoor Dining Areas pursuant to LAMC Section 12.21 A.24. shall be exempt from the above standards. **(Added by Ord. No. 188,073, Eff. 1/31/24.)**

- (5) Outdoor food and beverage service shall be limited to seated patrons.
- (6) Live entertainment, karaoke, or disc jockeys on the premises are prohibited.
- (7) Television monitors or screens are prohibited in all outdoor areas.
- (8) Music or speakers are prohibited in all outdoor areas.
- (9) Entertainment in conjunction with the restaurant shall be limited to indoor ambient music at a low volume that is not audible outside of the building.
- (10) Any music, sound or noise which is under the control of the restaurant shall comply with Sections 112.06 or 116.01 of the LAMC (citywide noise regulations). A City representative from a department authorized to inspect for compliance with noise regulations may visit the site during operating hours to measure the noise levels. If, upon inspection, it is found that the noise level exceeds the level allowed by the citywide noise regulations, the owner / operator shall be notified and shall be required to modify or eliminate the source of the noise or retain an acoustical engineer to recommend, design, and implement noise control measures within the property, such as noise barriers, sound absorbers, or buffer zones.
- (11) A City-issued placard pursuant to this section issued by the Department of City Planning shall be posted by the restaurant in an area clearly visible to the public, indicating that the restaurant is subject to the requirements and restrictions of the Restaurant Beverage Program.
- (12) A copy of this ordinance shall be retained on the premises at all times and produced upon request by the Los Angeles Police Department, the Department of Building and Safety, the Department of City Planning, or the California Department of Alcoholic Beverage Control.
- (13) No more than 50 percent of the entire restaurant may be closed to the public for private events at a given time.
- (14) Any portion of the restaurant used for private events shall be subject to all the same development standards and operations, including hours of operation, stated herein.
- (15) A telephone number and email address shall be provided for complaints or concerns regarding the operation of the restaurant. The phone number and email address shall be provided on the restaurant's website or, if there is no website, on its social media pages. The phone number and email address also shall be posted on a sign at least 8.5 × 11 inches in size, which shall be updated to reflect any changes, at the following locations:

- (i) Entry, visible to pedestrians; and
- (ii) Customer service desk, front desk or near the reception area.

(16) The restaurant shall respond to complaints within 24 hours. The restaurant shall maintain a log of all calls and emails, detailing the date the complaint was received, the nature of the complaint, and the manner in which the complaint was resolved. This log shall be made available to the Department of Building and Safety upon request.

(c) Security.

(1) Within the restaurant, the interior shall be adequately illuminated so as to make discernible all objects and persons, or have a minimum average surface illumination of 2.0 footcandles (21.5 lx).

(2) All exterior portions of the site shall be adequately illuminated in the evening so as to make discernible the faces and clothing of persons utilizing the space, or have a minimum average surface illumination of 0.2 footcandles (2.15 lx). Lighting shall be directed onto the site without being disruptive to persons on adjacent properties.

(3) A camera surveillance system shall be installed and in operation at all times to monitor the interior, entrance, exits and exterior areas, in front of and around the premises. Recordings shall be maintained for a minimum period of 30 days.

(d) Monitoring.

(1) The restaurant shall maintain the premises and adjoining rights-of-way free of debris and litter.

(2) The restaurant shall monitor both patron and employee conduct on the premises and within the parking areas under its control to prevent behavior that adversely affects or detracts from the quality of life for adjoining residents, property owners, and businesses.

(3) The restaurant shall take all reasonable steps to ensure that the conditions and activities on the premises and within the parking areas under its control do not adversely affect or detract from the quality of life for the adjoining residents, property owners, and businesses. For purposes of this subparagraph, reasonable steps include, but are not limited to:

- (i) Requesting that those persons engaging in conduct that constitutes a nuisance cease such conduct, unless the owner or operator has reasonable cause to believe such request may jeopardize personal safety;

- (ii) Contacting the Los Angeles Police Department or other law enforcement agency if the owner or operator's attempts to abate the nuisance conduct have been unsuccessful, or if the owner or operator has reasonable cause to believe such attempts may jeopardize personal safety; and

- (iii) Taking timely preventive actions to address conditions that facilitate loitering and other nuisance activity on the premises, such as removing furniture from areas adjacent to the entry of the restaurant, or prohibiting persons from using any portion of the premises for the installation or operation of a temporary business or other use.

(4) Within 24 hours of its occurrence, all graffiti on the property under the restaurant's control shall be removed or painted over to match the color of the surface to which it is applied.

(5) All trash and recycling bins under control of the restaurant shall be kept closed and locked at all times when they are not in use, and shall be maintained such that they do not overflow.

(6) Loitering is prohibited in all areas under the control of the restaurant. A "No Loitering or Public Drinking" sign that is a minimum of 4 × 6 inches shall be posted outside next to every exit.

(7) An electronic age verification device shall be retained on the premises available for use during operational hours. This device shall be maintained in operational condition and all employees shall be instructed in its use.

(8) The restaurant shall comply with California Labor Code 6404.5 which prohibits the smoking of tobacco or any non-tobacco substance, including from electronic smoking devices or hookah pipes, within any enclosed place of employment.

(9) A minimum of one on-duty manager with authority over the activities within the restaurant shall be on the premises at all times that the restaurant is open for business. The on-duty manager's responsibilities shall include the monitoring of the premises to ensure compliance with all applicable State laws, Municipal Code requirements and the conditions imposed by the California Department of Alcoholic Beverage Control. The restaurant shall be

responsible for discouraging illegal and criminal activity on the subject premises and any exterior area under its control.

(10) Within the first six months of the Restaurant Beverage Program administrative clearance, all employees involved with the sale of alcohol shall enroll in a training program as required by the California Department of Alcoholic Beverage Control and/or the Los Angeles Police Department, such as the California Department of Alcoholic Beverage Control "Responsible Beverage Service" (RBS) training program. Upon completion of such training, the restaurant shall request the Los Angeles Police Department or California Department of Alcoholic Beverage Control to issue a letter identifying which employees completed the training. Said letter shall be maintained on the premises and shall be made available to the City upon request. All required training shall be conducted for all new hires within three months of their employment.

(e) Administration.

(1) Upon submission of an application for the Restaurant Beverage Program administrative clearance, the applicant shall pay the fees required per LAMC Section 19.04 for: Administrative Clearance – Restaurant Beverage Program; Monitoring Restaurant Beverage Program Compliance; and Inspection and Field Compliance Review of Operations. The applicant must also submit the following with the application:

(i) A floor plan and site plan to the Department of City Planning demonstrating compliance with the requirements and standards pursuant to Section 12.22 A.34. of the LAMC;

(ii) A revocable permit from the Bureau of Engineering, Department of Public Works is required for any outdoor dining area located in the public right-of-way. A copy of the approved revocable permit, including a plan and any conditions thereto, shall be provided to the Department of City Planning prior to placing any seating in the public right-of-way as permitted by this administrative clearance.

(2) Prior to the administrative clearance, the owner and operator shall execute and record a covenant and agreement acknowledging and agreeing to comply with all the terms and conditions established herein in the County Recorder's Office. A certified copy bearing the Recorder's number and date shall be provided to the Department of City Planning. The agreement shall run with the land and shall be binding on any subsequent owners, heirs or assigns.

(3) The City shall have the authority to conduct inspections to verify compliance with any and all of the requirements and standards pursuant to Section 12.22 A.34. of this Code. Upon payment of fees pursuant to Section 19.04, the applicant is subject to the following:

(i) Within the first 24 months of the administrative clearance, an inspector will conduct a site visit to assess compliance with, or violations of, any of the provisions of Section 12.22 A.34. A second inspection shall take place within 36 months of the first inspection.

(ii) The owner and operator shall be notified in writing of the deficiency or violation and required to correct or eliminate the deficiency or violation. Multiple or continued documented violations or Orders to Comply issued by the Department of Building and Safety which are not addressed within the time prescribed, may result in additional corrective actions taken by the City.

(4) The City Council District office, the Los Angeles Police Department, and the Certified Neighborhood Council within which the restaurant is located shall be notified at the time an application for the Restaurant Beverage Program, pursuant to LAMC Section 12.22 A.34., is filed. If the restaurant is not within the boundaries of a Neighborhood Council, then notification to only the applicable Council District office shall be sufficient.

(5) If three citations for violating the Restaurant Beverage Program, LAMC Section 12.22 A.34.(a) through (e), are issued to the restaurant in any two-year period, the existing administrative clearance shall terminate and the restaurant shall not be eligible to rely on the exception to Section 12.21 A.10. or Section 12.24 W.1. of the LAMC provided by Section 12.22 A.34. for five years commencing on the date of the third citation.

(i) A citation shall include citations issued by the Los Angeles Police Department or Orders to Comply issued by the Department of Building and Safety.

(ii) The California Department of Alcoholic Beverage Control shall be notified by the Los Angeles Police Department or other enforcement agency of the issued citations.

(6) The owner or the operator of the restaurant shall reapply for the administrative clearance if there is:

(i) a change in State alcohol license type;

(ii) a modification to the floor plan, including, but not limited to, floor area or number of seats, or a modification to outdoor seating**;

- (iii) a change in the ownership or the operator of the restaurant.

****Exemption.** Modification to the number of seats or outdoor seating for the purposes of Outdoor Dining Areas pursuant to LAMC Section 12.21 A.24. shall not require reapplication. **(Added by Ord. No. 188,073, Eff. 1/31/24.)**

35. Restaurant Beverage Program – Alcohol Sensitive Use Zone. (Added by Ord. No. 187,402, Eff. 3/31/22.) In the CR, C1, C1.5, C2, C4, C5, CM, M1, M2, and M3 Zones, the sale or dispensing of alcoholic beverages for consumption on the premises shall be allowed administratively for one year without obtaining a conditional use approval as otherwise required by Section 12.21 A.10. of this Code if all of the requirements and standards below are met. Upon the completion of the one year provisional period, a review shall be completed and a determination shall be made pursuant to Section 12.22 A.35.(e) if the sale or dispensing of alcoholic beverages for consumption on the premises shall be allowed to continue per the administrative clearance.

(a) Eligibility Criteria.

(1) The restaurant is located within an area mapped and adopted by City Council Resolution for the Restaurant Beverage Program – Alcohol Sensitive Use Zone. The City Council shall have the ability to establish and subsequently modify the area by the adoption of resolutions based on a finding that the establishment or modification is in conformity with public necessity, convenience, general welfare, and good zoning practice. The City Council may further determine, by resolution, if restaurants located in an Alcohol Sensitive Use Zone shall be limited to the sale of beer and wine only during the provisional one year period.

(2) Prior to filing the application, the applicant shall conduct outreach by presenting information about the restaurant at one or more Certified Neighborhood Council meetings, Business Improvement District meetings, or other meetings of such established community organization if the restaurant is not within either a Certified Neighborhood Council or Business Improvement District boundary. Presentations shall include a flyer or other summary including the restaurant name, contact information, projected opening date, menu and alcohol to be sold (beer, wine, and/or distilled spirits).

(3) The restaurant shall be maintained as a bona fide eating place with an operational kitchen where food is prepared onsite and with a full menu containing an assortment of foods. Food service is available at all times during operating hours. The restaurant provides seating and dispenses food and refreshments for consumption on the premises and not solely for the purpose of food takeout or delivery.

(4) The restaurant shall operate under a Type 41 or Type 47 license as issued by the California Department of Alcoholic Beverage Control.

(5) The restaurant shall operate with gross annual sales of alcohol not in excess of 45 percent of the restaurant's total sales.

(6) If the restaurant or property has been the subject of nuisance abatement or revocation, it shall be eligible for the Restaurant Beverage Program – Alcohol Sensitive Use Zone upon conclusion of those proceedings only if the proceeding(s) did not result in the revocation of any permit or require any corrective conditions.

(7) The restaurant shall have between a minimum of 10 patron seats and a maximum of 150 patron seats, including any outdoor seating.

(8) The restaurant has obtained the necessary approvals to operate any outdoor seating, including but not limited to revocable permits issued by the Bureau of Engineering, Department of Public Works.

(9) The restaurant is not a Drive- Through Fast Food Establishment, as defined in the LAMC.

(10) The restaurant is not located in a Hotel, as defined in the LAMC.

(11) The restaurant is not part of any multiple-tenant alcohol entitlement pursuant to Sections 12.24 W.1. and 12.24 W.18.(a) of the LAMC.

(12) Daily hours of operation shall be limited to the hours between 7:00 a.m. and 11:00 p.m. for both indoor and outdoor areas. There shall be no after-hours use of the restaurant, other than for routine clean- up and maintenance.

(13) All food and beverages, except for takeout or delivery orders, shall be delivered to tables by an employee.

(14) Pool tables or billiard tables are prohibited.

(15) Dancing and Adult Entertainment pursuant to LAMC Sections 12.24 W.18. and 12.70 are prohibited.

- (16) There shall be no minimum drink purchase required of patrons.
- (17) There shall be no charge for admission.
- (18) The restaurant shall not organize or participate in organized events where participants or customers pre-purchase tickets or tokens to be exchanged for alcoholic beverages at the restaurant.
- (19) All service of alcoholic beverages shall be conducted by an employee.
- (20) The restaurant shall not sell distilled spirits by the bottle, or wine or champagne bottles that exceed 750 milliliters.
- (21) No employee, while working, shall solicit or accept any alcoholic or non-alcoholic beverage from any customer while on the premises.
- (22) No employee, while working, shall be engaged for the specific purpose of sitting with or otherwise spending time with customers while on the premises.
- (23) There shall be no age limitation restricting access to any portion of the restaurant.
- (24) The restaurant has a business tax registration certificate issued by the City of Los Angeles.

(b) Development Standards and Operations.

- (1) There shall be no shared seating between the restaurant and other restaurants.
- (2) The restaurant shall only use fixed bars that are depicted on floor plans. Portable bars are prohibited.
- (3) Where booth or group seating is provided, no walls or partitions separating the booth or seating area from the main dining room shall be installed which exceed 48 inches in height above the surface on which occupants' feet are intended to rest. Where a private dining or banquet room is provided, a minimum of 50 percent of the vertical surface area of that portion, extending up to 6 feet above the floor, of any wall or partition separating the private dining or banquet room from the main dining room shall be fully transparent and ensure the occupants are visible to persons looking into the private dining or banquet room.
- (4) For properties abutting or across an alley from an A or R zoned lot:
 - (i) a wholly enclosed building, at least 8 feet in height above grade and extending at least the full length of the outdoor dining area, shall be located between the outdoor dining area and an A or R zoned lot that may or may not be separated by an alley. This requirement shall not apply to outdoor dining permitted on a public sidewalk by a revocable permit issued by the Bureau of Engineering, Department of Public Works; and
 - (ii) outdoor seating shall be limited to the ground floor only.
- (5) Outdoor food and beverage service shall be limited to seated patrons.
- (6) Live entertainment, karaoke, or disc jockeys on the premises are prohibited.
- (7) Television monitors or screens are prohibited in all outdoor areas.
- (8) Music or speakers are prohibited in all outdoor areas.
- (9) Entertainment in conjunction with the restaurant shall be limited to indoor ambient music at a low volume that is not audible outside of the building.
- (10) Any music, sound or noise which is under the control of the restaurant shall comply with Sections 112.06 or 116.01 of the LAMC (citywide noise regulations). A City representative from a department authorized to inspect for compliance with noise regulations may visit the site during operating hours to measure the noise levels. If, upon inspection, it is found that the noise level exceeds the level allowed by the citywide noise regulations, the owner/operator shall be notified and shall be required to modify or eliminate the source of the noise or retain an acoustical engineer to recommend, design, and implement noise control measures within the property, such as noise barriers, sound absorbers, or buffer zones.
- (11) A City-issued placard pursuant to this section issued by the Department of City Planning shall be posted by the restaurant in an area clearly visible to the public, indicating that the restaurant is subject to the requirements and restrictions of the Restaurant Beverage Program – Alcohol Sensitive Use Zone.

(12) A copy of this ordinance shall be retained on the premises at all times and produced upon request by the Los Angeles Police Department, the Department of Building and Safety, the Department of City Planning, or the California Department of Alcoholic Beverage Control.

(13) No more than 50 percent of the entire restaurant may be closed to the public for private events at a given time.

(14) Any portion of the restaurant used for private events shall be subject to all the same development standards and operations, including hours of operation, stated herein.

(15) A telephone number and email address shall be provided for complaints or concerns regarding the operation of the restaurant. The phone number and email address shall be provided on the restaurant's website or, if there is no website, on its social media pages. The phone number and email address also shall be posted on a sign at least 8.5 × 11 inches in size, which shall be updated to reflect any changes, at the following locations:

- (i) Entry, visible to pedestrians; and
- (ii) Customer service desk, front desk or near the reception area.

(16) The restaurant shall respond to complaints within 24 hours. The restaurant shall maintain a log of all calls and emails, detailing the date the complaint was received, the nature of the complaint, and the manner in which the complaint was resolved. This log shall be made available to the Department of Building and Safety upon request.

(c) Security.

(1) Within the restaurant, the interior shall be adequately illuminated so as to make discernible all objects and persons, or have a minimum average surface illumination of 2.0 footcandles (21.5 lx).

(2) All exterior portions of the site shall be adequately illuminated in the evening so as to make discernible the faces and clothing of persons utilizing the space, or have a minimum average surface illumination of 0.2 footcandles (2.15 lx). Lighting shall be directed onto the site without being disruptive to persons on adjacent properties.

(3) A camera surveillance system shall be installed and in operation at all times to monitor the interior, entrance, exits and exterior areas, in front of and around the premises. Recordings shall be maintained for a minimum period of 30 days.

(d) Monitoring.

(1) The restaurant shall maintain the premises and adjoining rights-of-way free of debris and litter.

(2) The restaurant shall monitor both patron and employee conduct on the premises and within the parking areas under its control to prevent behavior that adversely affects or detracts from the quality of life for adjoining residents, property owners, and businesses.

(3) The restaurant shall take all reasonable steps to ensure that the conditions and activities on the premises and within the parking areas under its control do not adversely affect or detract from the quality of life for the adjoining residents, property owners, and businesses. For purposes of this subparagraph, reasonable steps include, but are not limited to:

- (i) Requesting that those persons engaging in conduct that constitutes a nuisance cease such conduct, unless the owner or operator has reasonable cause to believe such request may jeopardize personal safety;

- (ii) Contacting the Los Angeles Police Department or other law enforcement agency if the owner or operator's attempts to abate the nuisance conduct have been unsuccessful, or if the owner or operator has reasonable cause to believe such attempts may jeopardize personal safety; and

- (iii) Taking timely preventive actions to address conditions that facilitate loitering and other nuisance activity on the premises, such as removing furniture from areas adjacent to the entry of the restaurant, or prohibiting persons from using any portion of the premises for the installation or operation of a temporary business or other use.

(4) Within 24 hours of its occurrence, all graffiti on the property under the restaurant's control shall be removed or painted over to match the color of the surface to which it is applied.

(5) All trash and recycling bins under control of the restaurant shall be kept closed and locked at all times when

they are not in use, and shall be maintained such that they do not overflow.

(6) Loitering is prohibited in all areas under the control of the restaurant. A “No Loitering or Public Drinking” sign that is a minimum of 4 × 6 inches shall be posted outside next to every exit.

(7) An electronic age verification device shall be retained on the premises available for use during operational hours. This device shall be maintained in operational condition and all employees shall be instructed in its use.

(8) The restaurant shall comply with California Labor Code 6404.5 which prohibits the smoking of tobacco or any non-tobacco substance, including from electronic smoking devices or hookah pipes, within any enclosed place of employment.

(9) A minimum of one on-duty manager with authority over the activities within the restaurant shall be on the premises at all times that the restaurant is open for business. The on-duty manager’s responsibilities shall include the monitoring of the premises to ensure compliance with all applicable State laws, Municipal Code requirements and the conditions imposed by the California Department of Alcoholic Beverage Control. The restaurant shall be responsible for discouraging illegal and criminal activity on the subject premises and any exterior area under its control.

(10) Within the first six months of the Restaurant Beverage Program – Alcohol Sensitive Use Zone administrative clearance, all employees involved with the sale of alcohol shall enroll in a training program as required by the California Department of Alcoholic Beverage Control and/or the Los Angeles Police Department, such as the California Department of Alcoholic Beverage Control “Responsible Beverage Service” (RBS) training program. Upon completion of such training, the restaurant shall request the Los Angeles Police Department or California Department of Alcoholic Beverage Control to issue a letter identifying which employees completed the training. Said letter shall be maintained on the premises and shall be made available to the City upon request. All required training shall be conducted for all new hires within three months of their employment.

(e) Administration.

(1) Upon submission of an application for the Restaurant Beverage Program – Alcohol Sensitive Use Zone administrative clearance, the applicant shall pay the fees required per LAMC Section 19.04 for: Administrative Clearance – Restaurant Beverage Program; Monitoring Restaurant Beverage Program Compliance; and Inspection and Field Compliance Review of Operations. The applicant must also submit the following with the application:

(i) A floor plan and site plan to the Department of City Planning demonstrating compliance with the requirements and standards pursuant to Section 12.22 A.35. of the LAMC;

(ii) The flyer or other summary including the restaurant name, contact information, projected opening date, menu and alcohol to be sold (beer, wine, and/or distilled spirits) prepared and presented for outreach purposes pursuant to LAMC Section 12.22 A.35.(a)(2);

(iii) Proof of outreach conducted pursuant to LAMC Section 12.22 A.35.(a)(2) which shall include an official agenda listing the restaurant as intending to apply for the Restaurant Beverage Program – Alcohol Sensitive Use Zone or a letter on organization letterhead attesting to the appearance or presence of the applicant before the Board; and,

(iv) A revocable permit from the Bureau of Engineering, Department of Public Works is required for any outdoor dining area located in the public right-of-way. A copy of the approved revocable permit, including a plan and any conditions thereto, shall be provided to the Department of City Planning prior to placing any seating in the public right-of-way as permitted by this provisional administrative clearance.

(2) Prior to the administrative clearance, a Covenant and Agreement, on a form provided by the Department of City Planning, acknowledging and agreeing to comply with all the terms established herein shall be recorded in the County Recorder’s Office. The Covenant and Agreement shall run with the land and shall be binding on any subsequent owners, heirs or assigns. After recordation, a certified copy bearing the Recorder’s number and date shall be provided to the Department of City Planning.

(3) The City shall have the authority to conduct inspections to verify compliance with any and all of the requirements and standards pursuant to Section 12.22 A.35. of this Code. Upon payment of fees pursuant to Section 19.04, the applicant is subject to the following:

(i) Within the first 24 months of the administrative clearance, an inspector will conduct a site visit to assess compliance with, or violations of, any of the provisions of Section 12.22 A.35. A second inspection shall take place within 36 months of the first inspection.

(ii) The owner and operator shall be notified in writing of the deficiency or violation and required to correct or eliminate the deficiency or violation. Multiple or continued documented violations or Orders to

Comply issued by the Department of Building and Safety which are not addressed within the time prescribed, may result in additional corrective actions taken by the City.

(4) The City Council District office, the Los Angeles Police Department, and the Certified Neighborhood Council within which the restaurant is located shall be notified at the time an application for the Restaurant Beverage Program – Alcohol Sensitive Use Zone, pursuant to LAMC Section 12.22 A.35., is filed. If the restaurant is not within the boundaries of a Neighborhood Council, then notification to only the applicable Council District office shall be sufficient.

(5) If three citations for violating the Restaurant Beverage Program – Alcohol Sensitive Use Zone, LAMC Section 12.22 A.35.(a) through (e), are issued to the restaurant in any two-year period, the existing administrative clearance shall terminate and the restaurant shall not be eligible to rely on the exception to Section 12.21 A.10. or Section 12.24 W.1. of the LAMC provided by Section 12.22 A.35. of the LAMC for five years commencing on the date of the third citation.

(i) A citation shall include citations issued by the Los Angeles Police Department or Orders to Comply issued by the Department of Building and Safety.

(ii) The California Department of Alcoholic Beverage Control shall be notified by the Los Angeles Police Department or other enforcement agency of the issued citations.

(6) Upon completion of a one year provisional period, which begins the day following issuance of administrative clearance and ends 365 days thereafter, the restaurant's compliance with provisions for the sale and dispensing of alcoholic beverages, as authorized under Section 12.22 A.35., shall be subject to a review, by the Department of City Planning, of the number of validated complaints received by the City pertaining to Section 12.22 A.35. Validated complaints shall consist of complaints which result in any of the following City enforcement actions:

(i) Orders to Comply issued by the Department of Building and Safety for violations of the provisions of Section 12.22 A.35.; and

(ii) Citations issued by the Los Angeles Police Department for violations of the provisions of Section 12.22 A.35.; and

(iii) Any other City enforcement-related action for violations of the provisions of Section 12.22 A.35.;

(a) In response to complaints submitted by the public through a City complaint portal; or

(b) As a result of City- initiated inspections.

(7) If a restaurant receives five or more valid complaints upon the completion of the one year provisional period, the existing administrative clearance shall terminate and the restaurant shall not be eligible to use Section 12.22 A.35. as an exception to Section 12.21 A.10. of the LAMC. Restaurants that are ineligible under Section 12.22 A.35. and wish to continue the sale or dispensing of alcoholic beverages shall only be permitted pursuant to Section 12.24 W.1.

(8) If a restaurant receives four or fewer valid complaints upon completion of the one year provisional period, the restaurant shall be allowed to continue in the Restaurant Beverage Program – Alcohol Sensitive Use Zone. The restaurant shall continue to be subject to the provisions set forth in Section 12.22 A.35.

(9) The owner or the operator of the restaurant shall reapply for the provisional administrative clearance if there is:

(i) a change in State alcohol license type;

(ii) a modification to the floor plan, including, but not limited to, floor area or number of seats, or a modification to outdoor seating; or

(iii) a change in the ownership or the operator of the restaurant.

36. Trucking-Related Uses. (Added by Ord. No. 188,287, Eff. 7/1/24.) Notwithstanding anything to the contrary in Article 2 of this Chapter, within the Geographic Project Area, Trucking-Related Uses shall be prohibited as provided below:

(a) Use Regulations.

(1) **Prohibition.** This Subdivision prohibits the issuance of all permits and certificates of occupancy associated with the establishment or the expansion of all Trucking-Related Uses as a primary use. This prohibition shall not apply to an Electric Vehicle Charging Facility, Large Vehicle, which complies with the development standards in

Subparagraph (2).

(2) **Electric Vehicle Charging Facility, Large Vehicle.** In the Geographic Project Area, Electric Vehicle Charging Facility, Large Vehicle uses shall be subject to the following development standards:

(i) The use shall not be within 200 feet of a Sensitive Use or within 200 feet of a residential or an agricultural zoned parcel.

(ii) The facility is surrounded by a minimum 3.5-foot-high concrete or masonry wall that has a minimum thickness of 8 inches along any lot line abutting a street. Walls shall not include chain link, barbed wire, or concertina. No wall may be constructed of tires, junk, leaves or other discarded materials.

(iii) A minimum 4-foot landscaped buffer shall be required at the frontage lot line with a minimum of 20 perennial plants including shrubs, vines, succulents, grasses and ferns every 50 feet with a minimum height at maturity of three (3) feet, shall be provided on the exterior side of the frontage wall.

(iv) A minimum of three (3) trees with a minimum 15-gallon container size and a minimum caliper of one inch at the planting (or the standard specified by the American Standard for Nursery Stock) shall be required for every 50 feet of the frontage lot line.

(v) Trees shall be planted on the exterior side of the required frontage wall.

(vi) Design and install of irrigation systems pursuant to Guidelines BB-Irrigation Specification (adopted pursuant to Section 12.41 B.2. of the LAMC).

(b) **Expiration.** The Ordinance shall expire upon the effective date of the adoption of a comprehensive update to the Wilmington-Harbor City Community Plan or other amendment to the City's Zoning Ordinance, which regulates Trucking-Related Uses within the Geographic Project Area.

(c) **Definitions.** The following terms and phrases shall be used to construe, and be limited to only construing, this Subdivision A.36.:

(1) **Electric Vehicle Charging Facility, Large Vehicles.** Any fueling station dedicated to providing electric vehicle charging for large vehicles. Large vehicles include vehicles possessing three (3) or more axles, such as trailer trucks, construction vehicles, and motor homes. Electric Vehicle Charging Facility, Large Vehicle, does not include electric vehicle charging stalls within a parking area serving another use or uses.

(2) **Geographic Project Area.** The area of the Wilmington-Harbor City Community Plan, bounded by the following: Sepulveda Boulevard and Lomita Boulevard on the north, Alameda Street on the east, Western Avenue on the west, and the jurisdictional boundary with the Port of Los Angeles on the south (Harry Bridges Boulevard), except the industrial area east of Alameda Street and the Wilmington Industrial Park area located south of G Street, east of Quay Avenue, south of D Street and Lakme Avenue.

(3) **Sensitive Use.** A residential use, a medical use, a school use, or any open space and indoor/outdoor recreational uses, which include, but are not limited to, skate parks, playgrounds, gymnasiums, fitness centers, sports courts, and athletic fields.

(4) **Truck Parking (Parking of Trucks).** A building, structure, or principal use of land used to park freight trucks, freight truck trailers, or the associated equipment/accessories, including, but not limited to, storage of chassis, container stackers, cranes, and forklift trucks.

(5) **Trucking-Related Uses.** Uses where a building, structure or principal use of land relates to the use, operation, service or storage of freight trucks and freight truck operations. Trucking-Related Uses include but are not limited to, Truck Parking, Truck Storage, Trucking Terminal, Trucking Yard, Electric Vehicle Charging Facility, Large Vehicle, and similar uses.

(6) **Truck Storage (Commercial Vehicle Storage).** A building, structure, or principal use of land used to store freight trucks, freight truck trailers, or the associated equipment/accessories, including, but not limited to, storage of chassis, container stackers, cranes, and forklift trucks.

(7) **Trucking Terminal.** A building, structure, or principal use of land where freight trucks dock to unload/load and transport goods, and which may include the storage of freight trucks or truck trailers or associated equipment/accessories, including, but not limited to, chassis, container stackers, cranes, and forklift trucks. Trucking Terminal does not include commercial uses of land such as grocery or retail stores with loading docks.

(8) **Trucking Yard.** A building, structure or principal use of land used to store freight trucks, freight truck trailers or the associated equipment/accessories including but not limited to chassis, container stackers, cranes, and forklift trucks and may include a maintenance yard.

(d) Nothing in this Subsection is intended to allow any uses, not otherwise allowed under this Chapter or any ordinance adopted under this Chapter. And nothing in this Subsection is intended to prohibit any use not explicitly prohibited by this Subsection.

37. **State Density Bonus Program. (Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

(a) **Purpose.** The purpose of this subdivision is to establish procedures for the implementation of State Density Bonus requirements, as set forth in California Government Code Sections 65915 - 65918, and to increase the production of affordable housing, consistent with City policies.

(b) **Definitions.** The following definitions shall apply to this subdivision:

Disabled Veteran. Disabled Veteran shall be as defined in California Government Code Section 18541.

Homeless Person. Homeless Person as defined in the federal McKinney-Vento Homeless Assistance Act (42 U.S.C. Sec. 11301 et seq.).

Incentive. As defined in Section 12.03 of this Code.

Lower Income Student. A student who has a household income and asset level that does not exceed the level for Cal Grant A or Cal Grant B award recipients as set forth in California Education Code Section 69432.7(k)(1). The eligibility of a student to occupy a unit for lower income students under this section shall be verified by an affidavit, award letter, or letter of eligibility provided by the institution of higher education in which the student is enrolled or by the California Student Aid Commission affirming that the student receives or is eligible for financial aid, including an institutional grant or fee waiver from the college or university, the California Student Aid Commission, or the federal government.

Senior Citizens. Individuals who are at least 62 years of age, except that for projects of at least 35 units that are subject to this subdivision, a threshold of 55 years of age may be used, provided all applicable City, state and federal regulations are met.

Senior Citizen Housing Development. A Housing Development that has at least 35 dwelling units or guest rooms, as defined in California Civil Code Sections 51.3 and 51.12, or a mobile home park that limits residency based on age requirements for housing for older persons pursuant to California Civil Code Sections 798.76 or 799.5. It also includes a residential care facility for the elderly, as defined in California Health and Safety Code Section 1569.2.

Shared Housing Building. A residential or mixed-use structure, with five or more Shared Housing Units and one or more common kitchens and dining areas designed for permanent residence of more than 30 days by its tenants as defined in California Government Code Section 65915(o)(7)(A).

Shared Housing Unit. One or more habitable rooms, not within another dwelling unit, that includes a bathroom, sink, refrigerator, and microwave, and is used for permanent residence in a Shared Housing Building, and is as further defined in Government Code Section 65915(o)(7)(B). A Shared Housing Unit shall comply with the definition of "Guest Room" for purposes of zoning and allowable density.

Student Housing Development. Student Housing Development shall be as defined in California Government Code Section 65915(b)(1)(F).

Transitional Foster Youth. Transitional Foster Youth shall be as defined in California Education Code Section 66025.9.

Very Low Vehicle Travel Area. It shall be as defined in California Government Code Section 65915(o)(9).

Waiver. Waivers are reductions in Development Standards that will have the effect of physically precluding the construction of a Housing Development meeting the eligibility criteria of Paragraph (c), at the densities or with the Incentives permitted under this Subdivision 37., as also discussed in California Government Code Section 65915(e). Waivers neither reduce nor increase the number of Incentives to which a project is entitled.

(c) **Eligibility.** To qualify for the provisions of this subdivision, a project must satisfy all of the following:

(1) Meet the definition of a Housing Development or Shared Housing Building, with five or more Dwelling Units or Shared Housing Units (collectively referred to in this Subdivision 37. as "residential units" or "units"), including mixed-use developments. For the purpose of establishing the minimum number of five residential units, Density Bonus units shall be excluded.

(2) Reserve a percentage of the residential units (excluding units added by a Density Bonus) provided in a

project as:

- (i) Restricted Affordable Units for at least one of the following income levels in Table 12.22 A.37.(c)(2)(iii) below, or
- (ii) Restricted residential units, as specified, for one of the Target Populations listed in Table 12.22 A.37.(c)(2)(iii) below.

Table 12.22 A.37.(c)(2)(iii)
Required Percentage of Restricted Units

Income Level	Minimum % of Units Provided (Excluding Units Added by a Density Bonus)
Very Low Income (For Rental or For Sale)	5
Lower Income (For Rental or For Sale)	10
Moderate Income (For Sale)	10
Target Population	Minimum % of Units Provided (Excluding Units Added by a Density Bonus)
Senior Citizen	100 ¹
Transitional Foster Youth, Disabled Veteran, or Homeless Persons ²	10
Lower Income Students ³	20

Footnotes

1. Units must be in a Senior Citizen Housing Development that must comply with Sections 51.2 and 51.3 of the California Civil Code and all units provided in the resulting Senior Citizen Housing Development should be reserved for Senior Citizens regardless of the specifications stated in Table 12.22 A.37.(c)(2)(iii).
2. Units provided for Transitional Foster Youth, Disabled Veterans, or Homeless Persons in Table 12.22 A.37.(c)(2)(iii) shall be provided as Very Low Income Restricted Affordable Units.
3. Units provided for Lower Income Students shall be provided at an affordability level as specified in California Government Code Section 65915(b)(1)(F).

(3) The Housing Development does not require the demolition of a Designated Historic Resource, as demolition is defined in Section 13B.8.1.C of Chapter 1A of this Code, and any proposed alteration to a Designated Historic Resource shall not be approved until any required review pursuant to the Los Angeles Municipal Code, or other state or federal law, is completed.

(d) **Procedures.** A Housing Development that meets the provisions of this subdivision shall be reviewed pursuant to Procedures described in this paragraph. Though an approval of a Density Bonus or Incentive pursuant to this subdivision shall not, in and of itself, trigger a General Plan Amendment, Zone Change, Project Review or other discretionary review actions required by this Code, the applicable procedures set forth in Section 13A.2.10 (Multiple Approvals) of Chapter 1A of this Code shall apply for Housing Developments seeking other discretionary approvals in conjunction with an application pursuant to these procedures in Paragraph (d).

(1) **Los Angeles Department of Building and Safety Review.** A Housing Development seeking Base Incentives described in Paragraph (e) and/or Incentives listed on the Menu of Incentives described in Section 12.22 A.37.(f)(2) of this Code shall be considered ministerial and processed by the Department of Building and Safety.

(i) **Exception.** A Housing Development requesting Incentives from the Menu of Incentives that cannot comply with the criteria established in Section 12.22 A.37.(f)(1)(iii) of this Code shall comply with procedures set forth in Section 12.22 A.37.(d)(2) of this Code.

(2) **Expanded Administrative Review.** The following Housing Developments shall be ministerially reviewed by the Department of City Planning pursuant to Expanded Administrative Review, as set forth by the provisions of Section 13B.3.2 (Expanded Administrative Review) of Chapter 1A of this Code. As defined in this section, ministerial approval means an administrative process to approve a “use by right” as this term is defined in California Government Code Section 65583.2(i). Housing Developments requesting a Waiver in addition to any Incentives shall be subject to the Procedures described in Section 12.22 A.37.(d)(3) of this Code.

(i) **Housing Developments That Request the Public Benefit Options.** Housing Developments that request only Public Benefit Options described in Paragraph (g) in addition to an Incentive listed on the Menu of Incentives shall not be subject to any hearing procedures regardless of the provisions contained in Section 13B.3.2.D of this Code.

(ii) **Housing Developments Requesting Incentives Not on the Menu of Incentives.** Housing Developments that request an Incentive not listed on the Menu of Incentives described in Section 12.22 A.37.(f)(2) of this Code may be subject to a public hearing as described in Section 13B.3.2.D of this Code.

(3) **City Planning Commission Review.** The following Housing Developments must file an application pursuant to the procedures set forth in Section 13B.2.3 (Class 3 Conditional Use Permit) of Chapter 1A of this Code. Notwithstanding the provisions set forth in Section 13B.2.3 of Chapter 1A, the decision of the City Planning Commission shall be final and not further appealable.

(i) **Housing Developments Requesting A Waiver.** A Waiver shall be approved by the applicable decision-making authority unless that decision-making authority makes one of the following findings:

a. The Development Standard associated with a request for a Waiver will not have the effect of physically precluding the construction of a development meeting the eligibility criteria described in Paragraph (c) at the densities or with the Base Incentives and Additional Incentives permitted under this subdivision.

b. The Waiver would have a Specific Adverse Impact as defined in California Government Code Section 65589.5(d)(2), upon public health and safety and for which there is no feasible method to satisfactorily mitigate or avoid the Specific, Adverse Impact. Inconsistency with the zoning ordinance or General Plan land use designation shall not constitute a Specific Adverse Impact upon the public health or safety.

c. The Waiver would have an adverse impact on any real property that is listed in the California Register of Historical Resources.

d. The Waiver would be contrary to state or federal law.

(ii) **Housing Developments Seeking Density Bonuses Exceeding this Subdivision.** In addition to the procedures set forth in Section 13B.2.3 of Chapter 1A of this Code, a Housing Development requesting a Density Bonus that exceeds the Density Bonuses authorized by Section 12.22 A.37.(e) of this Code shall be subject to the requirements and findings set forth in Section 12.24 U.26. of this Code.

(4) **One Hundred Percent Affordable Housing Projects.** One Hundred Percent Affordable Housing Projects shall be reviewed pursuant to Section 12.22 A.39. of this Code.

(5) **Other Discretionary Approvals.** Applicable procedures set forth in Section 13A.2.10 (Multiple Approvals) of Chapter 1A of this Code apply to a Housing Development seeking another discretionary approval in conjunction with an application pursuant to the Procedures in Paragraph (d). Regardless of any other findings that may be applicable, the decision maker must approve the requested Base Incentives and Additional Incentives, either on or not on the Menu of Incentives described in Section 12.22 A.37.(f)(2) of this Code, requested under this subdivision unless the decision maker, based upon substantial evidence, makes one or more of the disapproval findings described in Section 12.22 A.37.(f)(1)(ii) of this Code.

(6) **Applicability of Procedures, Program Standards and Incentives.**

(i) If a public hearing, when required, has been held for a project, and prior to the operative date of this subdivision the project's entitlement application was filed and associated fees paid, the project shall be subject to all applicable provisions of Chapter 1 of this Code, including any Incentive menus or options, that were in effect on the date the application was filed and fees were paid.

(ii) If a public hearing, when required, has not yet been held for a project, and prior to the operative date of this subdivision the project's entitlement application was filed and associated fees paid, the applicant may elect to apply the Procedures and comply with the Program Standards of this subdivision. Any such project shall be subject to all other applicable provisions in Chapter 1 of this Code, including any Incentive menus or options, that were in effect on the date the application was filed and fees were paid.

(iii) If on or after the operative date of this subdivision a new project entitlement application is filed and associated fees are paid, the project shall be subject to all applicable provisions of this subdivision. A project shall only be able to apply the Incentives of this subdivision, including any Incentive menus or options, if on or after the operative date of this subdivision both a new entitlement application is filed and associated fees are paid.

(e) **Base Incentives.** A Housing Development shall be granted any of the Base Incentives established in this paragraph in exchange for the required minimum percentage of Restricted Affordable Units established in Paragraph (c) of this subdivision. A project that qualifies for Base Incentives established in this paragraph shall also be eligible for Additional Incentives pursuant to paragraph (f) and Public Benefit Options pursuant to Paragraph (g) of this subdivision unless otherwise stated.

(1) **Density.**

(i) **For Sale or Rental Housing with Very Low or Lower Income Restricted Affordable Units and**

for Sale Housing with Moderate Income Units. For sale or rental housing with Very Low Income or Lower Income Restricted Affordable Units and For Sale Housing with Moderate Income units shall receive a Density Bonus as follows in Table 12.22 A.37.(e)(1)(i)a., but shall not exceed 50% unless seeking an Additional Density Bonus pursuant to Table 12.22 A.37.(e)(1)(ii)a. Residential units constructed as a result of a Density Bonus may be permitted in geographic areas of the Housing Development other than the areas where Restricted Affordable Units or residential units for a Target Population are located.

Table 12.22 A.37.(e)(1)(i)a.

Required Percentage of Restricted Affordable Unit Set Asides - Density Bonuses

Percentage of Density Bonus	Percentage of Very Low Income	Percentage of Lower Income	Percentage of Moderate Income (For-Sale)
Percentage of Density Bonus	Percentage of Very Low Income	Percentage of Lower Income	Percentage of Moderate Income (For-Sale)
5	-	-	10
6	-	-	11
7	-	-	12
8	-	-	13
9	-	-	14
10	-	-	15
11	-	-	16
12	-	-	17
13	-	-	18
14	-	-	19
15	-	-	20
16	-	-	21
17	-	-	22
18	-	-	23
19	-	-	24
20	5	10	25
20.5	-	-	-
21	-	-	26
21.5	-	11	-
22	-	-	27
22.5	6	-	-
23	-	12	28
23.5	-	-	-
24	-	-	29
24.5	-	13	-
25	7	-	30
25.5	-	-	-
26	-	14	31
26.5	-	-	-
27	-	-	32
27.5	8	15	-
28	-	-	33
28.5	-	-	-
29	-	16	34
29.5	-	-	-
30	9	-	35
30.5	-	17	-
31	-	-	36
31.5	-	-	-

32	-	18	37
32.5	10	-	-
33	-	-	38
33.5	-	19	-
34	-	-	39
34.5	-	-	-
35	11	20	40
38.75	12	21	41
42.5	13	22	42
46.25	14	23	43
50	15	24	44

(ii) **Additional Density Bonus.** A Housing Development that provides Restricted Affordable Units sufficient to qualify for a 50% Density Bonus may seek an Additional Density Bonus pursuant to Table 12.22 A.37.(e)(1)(ii)a. provided that the resulting Housing Development does not restrict more than 50 percent of a Housing Development's residential units, excluding bonus units, to Restricted Affordable Units. The Additional Density Bonus shall be calculated by excluding any Density Bonus units allowed by Table 12.22 A.37.(e)(1)(i)a. The Additional Density Bonus shall also be calculated separately from the Density Bonus allowed by Table 12.22 A.37.(e)(1)(i)a. to account for the rounding of fractional numbers for both the Density Bonus and Additional Density Bonus pursuant to Section 12.22 A.37.(h)(5) of this Code. This Additional Density Bonus provision may be used in lieu of Section 12.24 U.26. of this Code to the extent the bonus is available as specified herein.

Table 12.22 A.37.(e)(1)(ii)a.
Required Percentage of Restricted Affordable Unit Set Asides - Additional Density Bonuses

Percentage of Density Bonus	Percentage of Very Low Income	Percentage of Moderate Income
Percentage of Density Bonus	Percentage of Very Low Income	Percentage of Moderate Income
20	5	5
22.5	-	6
23.75	6	-
25	-	7
27.5	7	8
30	-	9
31.25	8	-
32.5	-	10
35	9	11
38.75	10	12
42.5	-	13
46.25	-	14
50	-	15

(iii) **Housing for Target Populations.** A Housing Development that provides residential units for a Target Population as described in Table 12.22 A.37.(c)(2)(iii), shall receive a Density Bonus as follows in Table 12.22 A.37.(e)(1)(iii)a. The Density Bonus may be granted in lieu of a Density Bonus for residential units set aside as Restricted Affordable Units based on Table 12.22 A.37.(e)(1)(i)a.

Table 12.22 A.37.(e)(1)(iii)a.
Housing for Target Populations - Density Bonuses

Target Population	Percentage of Density Bonus
Senior Citizen	20% of the number of Senior Citizen units
Transitional Foster Youth / Disabled Veterans / Homeless Persons	20% of the number of Target Population units giving rise to a Density Bonus

Lower Income Student Development	Percent Bonus	Percent of Units (excluding bonus units) that are Restricted Affordable Units
	35%	20%
	38.75%	21%
	42.5%	22%
	46.25%	23%
	50%	24%

Footnotes

1. Senior Citizen Housing Development must comply with Sections 51.2 and 51.3 of the California Civil Code.

(iv) **Land Donation.** An applicant for a subdivision, parcel map or other residential development approval that donates land for housing to the City satisfying the criteria of California Government Code Section 65915(g), as verified by the Department of City Planning, shall be granted a Density Bonus of 15% as specified in California Government Code Section 65915(g), in addition to the Density Bonus sought pursuant to Section 12.22 A.37.(e)(1) of this Code, up to a combined maximum density increase of 35%.

(2) **Parking.** Upon the request of an applicant a Housing Developments may reduce the number of required parking spaces set forth in this Code or other applicable City land use regulation as follows, pursuant to California Government Code Section 65915(p):

(i) Parking shall not be required for Housing Developments located within one-half mile of a Major Transit Stop pursuant to California Government Code Section 65863.2.

(ii) If a Housing Development is not eligible for parking reductions pursuant to California Government Code Section 65863.2, a Housing Development may utilize the vehicular parking ratio described in Table 12.22 A.37.(e)(2)(ii)a.

Table 12.22 A.37.(e)(2)(ii)a.

Vehicular Parking Ratio for Eligible Housing Developments

Number of Bedrooms	Parking Spaces per Residential Unit Type
Zero to one bedroom	1
Two to three bedrooms	1.5
Four and more bedrooms	2.5

(iii) Provided parking shall be sold or rented separately from the residential units in Housing Developments with 16 or more units consistent with California Civil Code Section 1947.1, as verified by the Los Angeles Housing Department.

(iv) Required automobile parking ratios apply to all residential units in a Housing Development (not just the Restricted Affordable Units), inclusive of disabled and required guest parking where applicable. All parking spaces provided shall comply with Section 12.21 A.5. of this Code. Except that any combination of standard, compact, tandem or uncovered parking spaces may be provided consistent with California Government Code Section 65915(p)(4). Tandem parking spaces that do not comply with Section 12.21 A.5.(h)(2) of this Code may be provided in any configuration as long as a parking attendant or an automated parking system is provided at all times.

(v) Required parking spaces provided may be uncovered consistent with California Government Code Section 65915(p)(4).

(f) **Additional Incentives.** A Housing Development shall be granted a number of Additional Incentives pursuant to the provisions of this paragraph in addition to the Base Incentives established in Section 12.22 A.37.(e) of this Code.

(1) A Housing Development shall be eligible for a specified number of Additional Incentives based on providing the applicable percentage of residential units (excluding units added by a Density Bonus) listed in Table 12.22 A.37.(f)(1)(i) below as Restricted Affordable Units. A Housing Development may request Incentives listed on the Paragraph (f)(2) Menu of Incentives or request an Incentive not on the Menu of Incentives in order to seek a deviation from a Development Standard elsewhere in the Los Angeles Municipal Code or a Housing Development site's applicable zoning ordinance, Community Plan, Specific Plan, or overlay. Refer to Paragraph (d) for the approval Procedure that is applicable to the Housing Development's Incentive request.

Table 12.22 A.37.(f)(1)(i)

Allowed Number of Additional Incentives

Level of Affordability	Required Percentage of Residential Units Provided as Restricted Affordable Units (Excluding Units Added by a Density Bonus)			
	1 Incentive	2 Incentives	3 Incentives	4 Incentives ¹
Very Low Income (for rental or for sale)	5%	10%	15%	16%
Lower Income (for rental or for sale)	10%	17%	24%	N/A
Moderate Income (for sale)	10%	20%	30%	45%
Lower Income Student Housing	20%	23%	N/A	N/A

Footnotes

1. One Hundred Percent Affordable Housing Projects shall be processed pursuant to Section 12.22 A.39. of this Code.

(ii) An Incentive allowed per Table 12.22 A.37.(f)(1)(i) and requested pursuant to the applicable procedure in Paragraph (d) of this subdivision shall be granted unless any one of the following written findings are made based upon substantial evidence:

a. The Incentive does not result in identifiable and actual cost reductions, consistent with California Government Code Section 65915(k), to provide for affordable housing costs as defined in California Health and Safety Code Section 50052.5, or for rents for the targeted units to be set as specified in California Government Code Section 65915(c).

b. The Incentive will have a Specific Adverse Impact upon public health and safety or on any real property that is listed in the California Register of Historical Resources and for which there is no feasible method to satisfactorily mitigate or avoid the Specific Adverse Impact without rendering the development unaffordable to low-income and moderate-income households. Inconsistency with the zoning ordinance or General Plan land use designation shall not constitute a Specific Adverse Impact upon the public health or safety.

c. The Incentive would be contrary to state or federal law.

(iii) To be eligible for the Menu of Incentives described in Section 12.22 A.37.(f)(2) of this Code, a Housing Development shall comply with the following:

a. The Housing Development shall not be located in a Very High Fire Hazard Severity Zone, a Sea Level Rise Area, or the Coastal Zone.

(iv) **Commercial Off-Site.** Pursuant to California Government Code Section 65915.7, a commercial development may request one Incentive set forth in California Government Code Section 65915.7(b) if the commercial developer directly contributes affordable housing, or enters into a contract for partnered housing described in 65915.7 with a housing developer to construct affordable housing. If Section 65915.7 sunsets, this provision shall be of no further force or effect. If a commercial developer partners with a housing developer, an agreement, subject to approval by the Department of City Planning, shall identify exactly how the commercial developer will contribute affordable housing. Housing constructed pursuant to this Commercial Off-Site provision shall be constructed on the site of the commercial development or on a site that meets all of the following requirements:

a. Located within the boundaries of the City of Los Angeles; and

b. In close proximity to public amenities including schools and employment centers; and

c. Located within one-half mile of a Major Transit Stop.

(2) **Menu of Incentives.** A Housing Development may request one or more of the following Incentives not to exceed the number of Incentives allowed by Table 12.22 A.37.(f)(1)(i). Each request from the Menu of Incentives shall constitute one Incentive request unless otherwise stated.

(i) **Yards.** Housing Developments may request a reduction of otherwise required yards as follows in Table 12.22 A.37.(f)(2)(i)a. In C zones, yard reductions from the Table may be requested as one Incentive. Separately in R zones, yard reductions from the Table may also be requested as one Incentive.

**Table 12.22 A.37.(f)(2)(i)a.
Allowed Yard Incentives**

Zone	Yard Incentive
C Zones	Side, Rear and Front Yards. A Housing Development may utilize any or all of the yard requirements for the RAS3 zone per Section 12.10.5 of this Code. A Housing Development on a commercially zoned site adjacent to a property zoned RD or more restrictive may provide a rear yard of not less than five feet.
R Zones	Front Yards. Front yard reductions are limited to no more than the average of the front yards, regardless of a required Building Line of adjacent buildings along the same street frontage. Or, if a site is a corner lot or adjacent to a vacant lot, the front yard setback may align with the facade of the adjacent building along the same front lot line. If there are no adjacent buildings, no reduction is permitted.
	Side and Rear Yards. Up to 30% decrease in the required width or depth of any individual yard or setback.

(ii) **Floor Area Ratio.** A Housing Development may request an increase in the otherwise allowed Floor Area Ratio (FAR) equal to the percentage of Density Bonus for which the Housing Development is eligible, not to exceed 35% or a maximum FAR of 3.0:1, whichever is greater, if located within a one-half mile radius (2,640 feet) of a Major Transit Stop. In a mixed-use development, the FAR bonus will apply only to the new residential units and required amenity areas for the residential units; and the nonresidential portion shall be limited to the FAR associated with a site's underlying zoning prior to the application of any Incentive.

a. **Exception.** A project on a lot zoned "RD" Restricted Density or more restrictive, or on a lot with a Designated Historic Resource, or Non-Contributor, shall not be eligible for an on- menu FAR incentive.

(iii) **Height.** A Housing Development may request a height increase to permit a maximum of eleven additional feet or one additional story, whichever is lower. This increase in height shall be applicable over the entire development site regardless of the number of underlying height limits, including Transitional Height or stepback requirements, except when the Transitional Height Incentive below is also requested. The height increase may be applied to the maximum allowable height in feet or stories permitted by the zone, including for mixed-use Housing Developments.

a. Notwithstanding Section 12.21.1 of this Code, for Housing Developments where a rooftop deck is provided, roof structures for the housing of an elevator or stairway may exceed the building height limit by up to 17 feet on sites where the applicable Height District limits height to 30 feet or 45 feet provided the proposed roof structure(s) is set back from the roof perimeter by 5 feet.

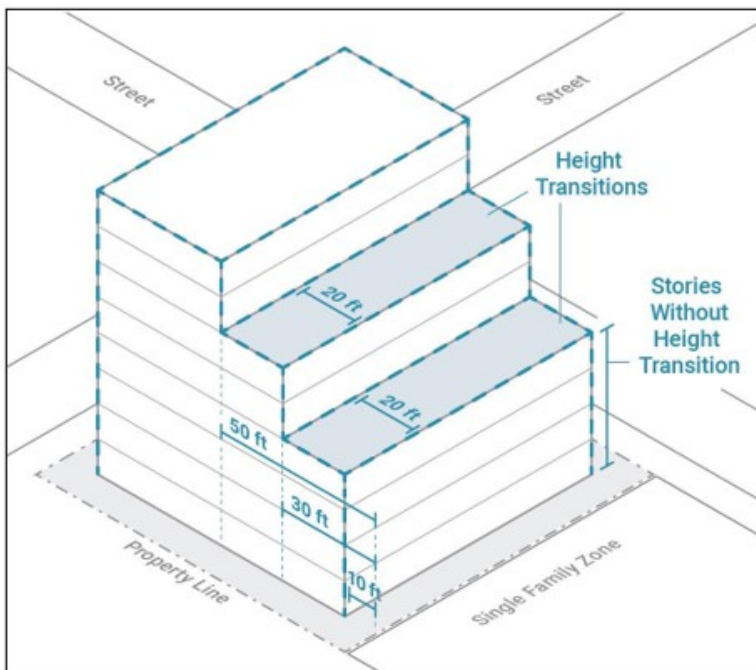
(iv) **Transitional Height.** A Housing Development may select the following transitional height requirements in Table 12.22 A.37.(f)(2)(iv)a. below, as illustrated by Figure 12.22 A.37.(f)(2)(iv)b., in lieu of those found in: Section 12.21.1 A.10. of this Code; any applicable transitional height limits in a Housing Development site's applicable zoning, Community Plan, Specific Plan, or overlay; any requirements for reduced building heights or step-backs when a development site is adjoining a RW1 or more restrictive zone; and the transitional height requirements found in Section 12.21.1 A.10. of this Code or any applicable Specific Plan or overlay for the portion of a Housing Development site abutting the OS zone.

Table 12.22 A.37.(f)(2)(iv)a.
Allowed Transitional Height Incentives

	Step Back Distance*
Side or Rear Step-Back	10-feet
4 Story Step-Back	30-feet
6 Story Step-Back	50-feet

* Setback and Step-back is measured from the property line.

Figure 12.22 A.37.(f)(2)(iv)b.



(v) **Building Spacing and Passageways.** A Housing Development subject to the provisions set forth in Section 12.21 C.2. of this Code may request a reduction in building spacing and passageway requirements as follows:

- a. Up to a 30% reduction in the space between buildings required pursuant to Section 12.21 C.2. (a) of this Code; and
- b. Up to a 50% reduction in the width of the passageway required pursuant to Section 12.21 C.2. (b) of this Code or the space provided to meet a site's side yard requirement, whichever provides a greater reduction. Passageways provided may extend from any public street adjacent to the Housing Developments site.

(vi) **Lot Coverage.** A Housing Development may request up to a 20% increase in lot coverage limits, provided that the landscaping for the Housing Development meets a minimum of 30 points under the Landscape and Site Design Ordinance at Section 12.40 of this Code, and the Landscape and Site Design Point System.

(vii) **Lot Width.** A Housing Development may request up to a 25% decrease from a lot width requirement, provided that the landscaping for the Housing Development meets a minimum of 30 points under the Landscape and Site Design Ordinance at Section 12.40 of this Code, and the Landscape and Site Design Point System.

(viii) **Open Space.** In lieu of the open space calculations set forth in Section 12.21 G.2. of this Code, a Housing Development requesting an open space Incentive may calculate the usable open space requirement as 15% of the total lot area or 10% of the total floor area confined within the perimeter walls of the provided residential units, whichever is greater, provided that the overall design of the Housing Development meets a minimum of 30 points under the Landscape and Site Design Ordinance at Section 12.40 of this Code, and the Landscape and Site Design Point System. Common Open Space shall constitute at least 50% of the usable open space calculated under this incentive and shall be provided as outdoor space and comply with applicable provisions of Section 12.21 G.2.(a) of this Code. Usable open space provided as Private Open Space shall comply with Section 12.21 G.2.(b) of this Code.

(ix) **Density Calculation.** The area of any land required to be dedicated for street or alley purposes may be included as a part of the lot area for purposes of calculating the maximum density permitted by the underlying zone in which the Housing Development is located.

(x) **Averaging of Floor Area Ratio, Density, Parking, or Open Space, and Permitting Vehicular Access.** A Housing Development that is located on one or more contiguous lots, not separated by a street or alley, may average and permit the floor area, density, open space and residential and commercial parking over the project site, and permit vehicular use and access between a less restrictive zone and a more restrictive zone, provided that:

- a. The proposed Housing Development includes the number of Restricted Affordable Units sufficient to qualify for a 35% Density Bonus; and

b. No further lot line adjustment, or any other action that may cause the Housing Development site to be subdivided, shall be permitted subsequent to this grant during the life of the proposed development pursuant to a covenant running with the land that is recorded with the Los Angeles County Recorder prior to the issuance of any building permit; and

c. The proposed uses in the Housing Development are located on areas of the development site where the proposed uses are permitted by the underlying zone(s) of each area; and

d. The proposed Housing Development is located on one or more contiguous lots that are not separated by a street or alley.

(xi) **Supplementary Parking Reductions.** An applicant may request the following reductions as a single Incentive:

a. **Commercial Parking.** A Housing Development may request the elimination of any requirement to provide new, or maintain existing, automobile parking spaces required by Chapter 1 of this Code associated with a commercial use that is proposed in conjunction with the Housing Developments.

b. **General Parking Reduction.** A Housing Development located within one-half mile radius of a High-Quality Transit Service may receive up to a 50% reduction in required parking spaces pursuant to California Government Code Section 65915(p)(5).

(xii) **P Zone.** In lieu of the limitations described in Section 12.12.1 and Section 12.12.1.5 of this Code, in a P or PB zone a Housing Development may include the uses and area standards permitted in the least restrictive adjoining zone. For purposes of this P Zone Incentive the phrase “adjoining zone” refers to the zones of properties abutting, across the street or alley from, or having a common corner with, the subject property.

(xiii) **Relief from a Development Standard.** A Housing Development may request up to 20% relief from a Development Standard contained in Chapter 1 of this Code, a Community Plan, an overlay, a Specific Plan, a Q Condition, or a D Condition. A Housing Development requesting this Incentive must provide landscaping for the Housing Development that meets a minimum of 30 points under the Landscape and Site Design Ordinance in Section 12.40 of this Code, and the Landscape and Site Design Point System. This Incentive may be requested more than once, but shall require the use of an Incentive for each request.

a. **Exception.** This Incentive shall not apply to Development Standards that regulate FAR, height, yards / setbacks, ground story requirements, signs, parking in front of buildings, required trees, pedestrian access, or usable open space. This Incentive also shall not apply to a Designated Historic Resource, or a Non-Contributor.

(xiv) **Senior Independent Housing.** In lieu of otherwise applicable limitations, a Housing Development or Senior Citizen Housing Development that also meets the definition of Senior Independent Housing may be permitted in any zone that would otherwise allow a Housing Development. In addition, a Senior Independent Housing development that qualifies as a Shared Housing Building shall be treated the same as a Shared Housing Building.

(g) **Public Benefit Options.** A Housing Development shall be granted any number of Public Benefit Options pursuant to the provisions described below in addition to the Base Incentives established in Section 12.22 A.37.(e) of this Code and the Additional Incentives described in Section 12.22 A.37.(f) of this Code. A Housing Development located in Sea Level Rise Areas, Very High Fire Hazard Severity Zones, or the Coastal Zone, and a project that provides fewer restricted units than required for the maximum number of Incentives available to an income category or Target Population, shall not be eligible for the Public Benefit Options described in Section 12.22 A.37.(g)(2) or Section 12.22 A.37.(g)(3) of this Code.

(1) **Child Care Facility.** A Housing Development that includes a Child Care Facility located on the premises of, as part of, or adjacent to, the Housing Development; that records a covenant in the project site’s chain of title to the benefit of the City using language to the satisfaction of the City, that requires the Child Care Facility be maintained for at least 55 years; and that complies with the requirements set forth in California Government Code Section 65915(h)(2), shall be granted either of the following:

(i) An increase in the floor area of the Housing Development’s residential unit space equal to the floor area of the Child Care Facility included in the Housing Development; or

(ii) An additional Incentive listed on the Menu of Incentives or not listed on the Menu of Incentives, using the procedures of Section 12.22 A.37.(d)(2) of this Code, that contributes significantly to the economic feasibility of the construction of the Child Care Facility.

(iii) Notwithstanding the Public Benefit Options available under this Subparagraph (1), pursuant to

California Government Code Section 65915(h)(3), a Density Bonus or Incentive for a Child Care Facility shall not be provided if the applicable decision-maker finds, based on substantial evidence, that the community has adequate Child Care Facilities.

(2) **Multi-Bedroom Units.** A Housing Development that includes units with three bedrooms or more, and executes a covenant in favor of the City that is recorded in the development site's chain of title in order to guarantee the qualifying multi-bedroom units will maintain the same bedroom count and will not be converted to additional residential units in the future, shall be granted one of the following options to requested Floor Area and Height Incentives:

(i) A Housing Development that includes units with three bedrooms or more in a minimum of 10% of its overall residential units (including units added by a Density Bonus), shall be granted additional Floor Area and/or Height in addition to what is available on the Menu of Incentives in Section 12.22 A.37.(f)(2) of this Code as follows in Table 12.22 A.37.(g)(2)(i)a.; or

**Table 12.22 A.37.(g)(2)(i)a.
Additional FAR and Height for Multi-Bedroom Units**

Overall Residential Units (including Density Bonus Units)	Additional FAR	Additional Height (Stories)
0 - 30	0.5:1	1
31 - 50	1.0:1	1
51 - 75	1.5:1	2
75+	2.0:1	2

(ii) Any Housing Development that includes a residential unit with three bedrooms or more shall be granted the following Floor Area and Height Incentive options, as described in (a) and (b) below:

a. An exemption of the square footage of all residential units with three or more bedrooms from the Floor Area calculations so that the specified residential units do not count against the maximum Floor Area allowed on the development site; and/or

b. An additional story of height beyond what is available in the applicable height Incentive as listed in the Menu of Incentives at Section 12.22 A.37.(f)(2) of this Code, provided, the square footage of this additional story is limited to the square footage exempted as a result of applying Section 12.22 A.37.(g)(2)(ii)a. of this Code above.

(3) **Surveyed Historic Resource Facade Rehabilitation.** A project incorporating a Surveyed Historic Resource into the project design shall be granted additional Floor Area up to 1.0 FAR and 22 feet in height beyond what is available and requested as an Incentive from on the Menu of Incentives in Section 12.22 A.37.(f)(2) of this Code, provided all of the following standards are met:

(i) The project retains all street Frontage facades to a depth of 10 feet;

(ii) New Floor Area shall be setback behind the 10-foot retention area, except that outdoor open space, balconies, and non-habitable architectural projections may encroach on the 10-foot retention area. In instances where a lot contains dual-frontages, the setback shall be applied from both Frontages; and

(iii) Rehabilitation of the facades is completed pursuant to the Secretary of the Interior's Standards for Rehabilitation as supported by an expert study that has been accepted by the Office of Historic Resources, or demonstrated by the project plans and accepted by the Office of Historic Resources, if consistent with the applicable adopted Implementation Memorandum, Guidelines or Technical Bulletins of the Director of City Planning. This option does not apply if the Office of Historic Resources has determined that the Surveyed Historic Resource is not eligible for listing individually or as a contributor as described in the definition in Section 12.03 of this Code.

(h) **Program Standards.** The following Program Standards shall be applicable to any Housing Development that meets the eligibility criteria established in Paragraph (c) of this subdivision.

(1) **Eligibility For Other Density Bonus Programs.** A Housing Development seeking a Density Bonus or other development incentives pursuant to this subdivision is not eligible for a Density Bonus or other development incentives pursuant to the procedures of any other housing incentive program contained in this Code, a Community Plan, an overlay, Specific Plan, or any other City regulation or guideline. However, a project may utilize the streamlining procedures and Incentives for Adaptive Reuse Projects (Sec. 12.22 A.26. of this Code) and in the Housing Element Sites Streamlining Program (Sec. 16.70 of this Code), provided that the project meets the requirements for all utilized programs.

(2) **Calculating Maximum Allowable Residential Density.** Per California Government Code Section 65915(o)(6), a Housing Development shall calculate its Maximum Allowable Residential Density, before the application of a Density Bonus, using the maximum number of units allowed under a Housing Development site's applicable zoning ordinance, Specific Plan, overlay, or General Plan land use designation, whichever is greater. If a range is permitted, the maximum number of units allowed by the specific zoning range, Specific Plan, or General Plan land use designation shall be applicable when determining a Housing Development's density prior to the application of a Density Bonus. Residential units added using an incentive program contained in a Specific Plan, overlay, or other City program granting development bonuses, shall not count toward a Housing Development's Maximum Allowable Residential Density.

(3) **Calculating Restricted Affordable Units or Target Population Units.** The required number of Restricted Affordable Units or Target Population units shall be calculated based on the number of residential units (excluding units added by a Density Bonus) provided in a Housing Development.

(4) **Calculating a Density Bonus.** In addition to the provisions set forth in Section 12.22 A.37.(h)(2) of this Code, for the purpose of calculating a Density Bonus, the following shall apply:

(i) Residential units that comprise a Housing Development shall be on contiguous lots, not separated by a street or alley, that are the subject of a single development application, but do not need to be based on individual subdivision maps or lots.

(ii) A Shared Housing Unit and its proportional share of associated common area facilities shall comply with the definition of a Guest Room pursuant to California Government Code Section 65915(o)(7)(B).

(iii) An applicant for a Housing Development may have the ability to apply a lesser percentage of Density Bonus, including but not limited to, no Density Bonus.

(5) **Fractional Numbers.**

(i) **Units.** For the purposes of this subdivision, calculations for the following resulting in fractional numbers shall be rounded up to the next whole number:

a. Maximum Allowable Residential Density;

b. Density Bonus units;

c. Number of Restricted Affordable Units or Target Population units;

d. Number of Replacement Housing Units;

e. Vehicular Parking; and

f. Number of Multi-Bedroom Units provided pursuant to Section 12.22 A.37.(g)(2) of this Code.

(6) **Replacement Housing Units and Demolition Protections.** A Housing Development must meet any applicable housing replacement requirements and demolition protections of California Government Code Section 65915(c)(3) and Section 16.60 of this Code, as verified by the Los Angeles Housing Department (LAHD) prior to the issuance of a building permit. Replacement Housing Units required pursuant to this subdivision may count towards any Restricted Affordable Unit requirements.

(7) **Standards for Restricted Affordable Units.** A Housing Development must meet the applicable requirements regarding the size, location, amenities and allocation of Restricted Affordable Units in Sections 16.61 B. and 16.61 C. of this Code, and in any Implementation Memorandum, Technical Bulletin or User Guide prepared and adopted by the Los Angeles Housing Department or Department of City Planning. Restricted Affordable Units are subject to a recorded affordability restriction of 55 years, or 99 years pursuant to Section 16.61 A. of this Code as applicable, running from the issuance of the Certificate of Occupancy, recorded in a covenant acceptable to the Los Angeles Housing Department, and subject to fees as set forth in Section 19.14 of this Code.

(8) **Rent Schedules.** Restricted Affordable Units required as part of a Housing Development shall be rented at rates that do not exceed those specified in California Health and Safety Code 50052.5 for for-sale units or California Health and Safety Code Section 50053 for rental units.

(9) **Implementation Memorandums, FAQs, Forms / Applications and User Guides.** The Director may prepare Implementation Memorandums, Technical Bulletins and/or User Guides for State Density Bonus requirements, as set forth in California Government Code Sections 65915 - 65918, for the purpose of providing additional information pertaining to this subdivision and maintaining consistency with State Density Bonus Law.

(10) **Covenants.** Prior to the issuance of a building permit for any Housing Development qualifying for a Density Bonus pursuant to the provisions of this subdivision, covenants acceptable to the Los Angeles Housing Department and consistent with the requirements in this subdivision and set forth in Section 16.61 of this Code shall be recorded with the Los Angeles County Recorder.

(11) **Story.** A story for purposes of granting an Incentive or Waiver for additional height through this subsection shall be defined as 11 feet.

(i) **Relationship to Other Laws, Plans, Requirements and Codes.** The following provisions shall govern the relationship of this Subdivision 37. to other laws, plans, requirements and codes for any Housing Development that meets the eligibility criteria established in Paragraph (c) of this subdivision.

(1) A Housing Development that meets the eligibility criteria established in Paragraph (c) of this subdivision, and complies with the Procedures established in Paragraph (d) of this subdivision may utilize a multiple family residential dwelling use with a minimum of two-thirds residential floor area even though use limitations may apply to a project site.

(2) If any of the Procedures described in Paragraph (d), Base Incentives described in Paragraph (e), Additional Incentives described in Paragraph (f), Public Benefit Options described in Paragraph (g), or Waivers requested pursuant to Section 12.22 A.37.(d)(3)(i) of this Code, differ from any otherwise applicable Community Plan, Specific Plan, overlay, supplemental use district, “Q” condition, “D” limitation, or citywide regulation established through Chapter 1 of this Code, including but not limited to the Ordinance Nos. listed below, this subdivision shall prevail where the Housing Development applicant elects to seek approval under this subdivision.

(i)	Alameda District Specific Plan (171,139)
(ii)	Avenue 57 Transit Oriented District (174,663)
(iii)	Bunker Hill Specific Plan (182,576)
(iv)	Century City North Specific Plan (156,122)
(v)	Century City West Specific Plan (186,370)
(vi)	Century City South Specific Plan (168,862)
(vii)	Coastal Bluffs Specific Plan (170,046)
(viii)	Coliseum District Specific Plan (185,042)
(ix)	Colorado Boulevard Specific Plan (178,098)
(x)	Convention Center and Arena Specific Plan (188,077)
(xi)	Cornfield Arroyo Seco Specific Plan (182,617)
(xii)	Crenshaw Corridor Specific Plan (184,795)
(xiii)	Devonshire / Topanga Corridor Specific Plan (168,937)
(xiv)	District No Ho Specific Plan (188,144)
(xv)	Exposition Corridor Transit Neighborhood Plan (186,402)
(xvi)	Foothill Boulevard Corridor Specific Plan (170,694)
(xvii)	Girard Tract Specific Plan (170,774)
(xviii)	Glencoe / Maxella Specific Plan (171,946)
(xix)	Granada Hills Specific Plan (184,296)
(xx)	Hollywoodland Specific Plan (168,121)
(xxi)	Jordan Downs Urban Village Specific Plan (184,346)
(xxii)	Los Angeles Airport / El Segundo Dunes Specific Plan (167,940)
(xxiii)	Los Angeles International (LAX) Specific Plan (185,164)
(xxiv)	Los Angeles Sports and Entertainment District Specific Plan (181,334)
(xxv)	Loyola Marymount University Specific Plan (181,605)
(xxvi)	Mt. Washington / Glassell Park Specific Plan (168,707)
(xxvii)	Mulholland Scenic Parkway Specific Plan (167,943)
(xxviii)	North Westwood Village Specific Plan (163,202)
(xxix)	Oxford Triangle Specific Plan (170,155)
(xxx)	Pacific Palisades Commercial Village and Neighborhood Specific Plan (184,371)
(xxxi)	Paramount Pictures Specific Plan (184,539)
(xxxii)	Park Mile Specific Plan (162,530)
(xxxiii)	Playa Vista Area B Specific Plan (165,638)
(xxxiv)	Playa Vista Area C Specific Plan (165,639)

(xxxv)	Playa Vista Area D Specific Plan (176,235)
(xxxvi)	Ponte Vista at San Pedro Specific Plan (182,937 and 182,939)
(xxxvii)	Porter Ranch Land Use / Transportation Specific Plan (180,083)
(xxxviii)	Redevelopment Plans (186,325)
(xxxix)	San Gabriel / Verdugo Mountains Scenic Preservation Specific Plan (175,736)
(xl)	San Vicente Scenic Corridor Specific Plan (173,381)
(xli)	University of Southern California University Park Campus Specific Plan (182,343)
(xlii)	Valley Village Specific Plan (168,613)
(xliii)	Venice Coastal Zone Specific Plan (175,693)
(xliv)	Ventura-Cahuenga Boulevard Corridor Specific Plan (174,052)
(xlv)	Vermont / Western Transit Oriented District Specific Plan (Station Neighborhood Area Plan) (173,749)
(xlvi)	Warner Center 2035 Plan (182,766)
(xlvii)	Westwood Community Multi-Family Specific Plan (163,203 and 163,186)
(xlviii)	Westwood Village Specific Plan, Westwood Community Design Review Board Specific Plan (187,644)
(xlix)	Wilshire - Westwood Scenic Corridor Specific Plan (155,044)

(3) Despite Section 11.05 of this Code (Effect of Renumbering or Redesignation of Provisions or Sections in Statutes or Codes of the State of California Which are Referenced to in the Los Angeles Municipal Code), any references to State or Federal statutes or regulations in this subdivision shall be to those statutes or regulations as written and in effect on the date the ordinance adding those references is adopted. This general rule is intended to control over a specific rule to the contrary and shall not be subject to the rule of statutory construction that where there is a conflict, a specific statute controls over a general statute. References within this subdivision to requirements of other City or government agencies or Chapters of the Los Angeles Municipal Code, as well as other local, state, and federal codes are provided for informational purposes and are not intended to be comprehensive or to provide exemption from any additional applicable regulations from other City or government agencies or sections of the Los Angeles Municipal Code not explicitly referenced in this subdivision.

(j) **Interpretation Consistent with State Density Bonus Law.** This subdivision is intended to be interpreted as consistent with State Density Bonus Law contained in California Government Code Sections 65915 - 65918. If at any time, this subdivision becomes inconsistent with California Government Code Sections 65915 - 65918, as Determined by the Director of Planning, the provisions of State Density Bonus Law shall apply.

38. Mixed Income Incentive Program. (Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)

(a) **Purpose.** The purpose of this subdivision is to establish specific Incentives and procedures for the implementation of State Density Bonus requirements, as set forth in California Government Code Sections 65915 - 65918, and to increase the production of affordable housing near transit, in Higher Opportunity Areas as defined in Section 12.03 of this Code, and on major corridors. In conjunction with the Incentives granted by state law, this subdivision shall offer Incentives through the paragraphs of this subdivision, and Waivers as defined in Section 12.22 A.37. of this Code, for the purposes of increasing the feasibility of housing construction.

(b) **Definitions.** The following definitions shall apply to this subdivision:

Consolidated Development. A residential development, or mixed-use development with two-thirds of the square footage designated for residential units, that consists of multiple lots with the same owner or developer.

Corridor. A major street with Street Designations as designated in the Mobility Element of the General Plan, including a Local, Collector, Avenue, and Boulevard.

Direct Pedestrian Access. A means of approaching or entering a lot from the public right-of-way as a pedestrian.

Finished Floor Elevation. The finished floor height associated with the ground story.

Frequent Bus Service. An existing or planned bus route, as identified in coordination by a local or regional transit agency, with a service frequency of 30 minutes or less during Peak Commute Hours in at least one direction.

Ground Floor Frontage. The lowest story within a building which is accessible to the street, the floor level of which is within three feet above or below curb level, is parallel to or primarily facing any public street, and which is at least 15 feet in depth of the total depth of the structure.

Higher Opportunity Areas. See definition in Section 12.03 of this Code.

Incentive. As defined in Section 12.03 of this Code.

Market Tier. Categories of residential market areas adopted by City Council resolution, as described in the Affordable Housing Linkage Fee Ordinance in Section 19.18 C.1. of this Code, for the purposes of informing the amount of the Linkage Fee to be assessed for a given project.

Moderate and Lower Opportunity Areas. See definition in Section 12.03 of this Code.

Opportunity Corridor. A Corridor in Higher Opportunity Areas as defined in Section 12.03 of this Code.

Opportunity Corridor Transition Area Incentive Project. A project on a site located in whole or in part within 750 feet of an Opportunity Corridor Incentive Area, that involves the construction of, addition to, or remodeling of any building or buildings which result in the creation of four or more residential units.

Peak Commute Hour. Peak periods are considered to be between 6:00 to 9:00 a.m. and 3:00 to 7:00 p.m.

Rapid Bus. A higher quality bus service that may include several key attributes, including full-time dedicated bus lanes, branded vehicles and defined stations, high frequency, limited stops at major intersections, intelligent transportation systems, and possible off-board fare collection and/or all door boarding. Rapid Bus includes, but is not limited to, Metro Bus Rapid Transit lines, Metro Rapid 700 lines, Metro NextGen Tier 1 lines that replaced Metro Rapid 700 lines, Metro G (Orange) and J (Silver Lines), Big Blue Rapid lines and the Rapid 6 Culver City bus. Rapid Bus lines do not need to meet the 15-minute average Peak Commute Hour headways if intersecting at a qualified Major Transit Stop.

Total Units. The complete number of residential units in a project after a Density Bonus is awarded pursuant to this subdivision.

Waiver. See definition in Section 12.22 A.37.(b) of this Code.

(c) **Eligibility.** To qualify for the provisions of this subdivision, a project approved under the Mixed Income Incentive Program must satisfy all of the following eligibility requirements:

(1) Meet the definition of one of the following Project Types; consist of Dwelling Units, referred to in this Subdivision 38. as “residential units” or “units;” contain no Shared Housing Units; and include the minimum Total Units required as described in Table 12.22 A.38.(c)(1)(i):

Table 12.22 A.38.(c)(1)(i)
Eligible Project Types and Total Units Required

Project Type	Minimum Total Units Required
Transit Oriented Incentive Area Project	Five or more
Opportunity Corridor Incentive Area Project	Five or more
Opportunity Corridor Transition Area Incentive Project	Four or more
Type I Unified Adaptive Reuse Project ¹	Five or more

Footnote

¹ See Section 12.22 A.26.(h)(1) of this Code for additional requirements associated with a Type I Unified Adaptive Reuse Project.

(2) Be located in and meet the requirements of a Transit Oriented Incentive Area, Opportunity Corridor Incentive Area, or an Opportunity Corridor Transition Incentive Area as described in Paragraphs (e), (f), and (g) below, except that a property abutting, across the street or alley, or having a common corner with a site eligible for Opportunity Corridor Incentives shall also be eligible for the Opportunity Corridor Incentives as described in Paragraph (f) below.

(3) Reserve a percentage of the project’s Total Units for:

(i) Restricted Affordable Units in at least one of the following income levels as defined on Table 12.22 A.38.(c)(3)(iii), or by providing the combination of income levels as defined on Table 12.22 A.38.(c)(3)(iv); or

(ii) Restricted Affordable Units in an Opportunity Corridor Transition Area Incentive Project in at least one of the following income levels, as defined on Table 12.22 A.38.(c)(3)(v); or

(iii) Twenty percent Restricted Affordable Units for Lower Income Households, consistent with California Government Code Section 65583.2, if a project is proposed on a Lower Income Rezoning Housing Element Site as defined in Section 16.70 of this Code.

Table 12.22 A.38.(c)(3)(iii) ¹

Single Affordability Options for Meeting Restricted Affordable Units

Market Tier	Incentive Program		Minimum Percent of Total Units Provided as Restricted Affordable Units		
	Transit Oriented Incentive Area	Opportunity Corridor Incentive Area	Income Level		
			Extremely Low Income (For Rental or For Sale)	Very Low Income (For Rental or For Sale)	Lower Income (For Rental or For Sale)
Low and Medium Market Tiers	T1	OC-1	9%	12%	21%
	T2	OC-2	10%	14%	23%
	T3	OC-3	11%	15%	25%
High Medium and High Market Tiers	T1	OC-1	11%	14%	23%
	T2	OC-2	12%	16%	25%
	T3	OC-3	13%	17%	27%

Footnote

1. A Type I Unified Adaptive Reuse Project shall provide Restricted Affordable Units in accordance with the project site's Market Tier location and Base Incentives used. Type I Unified Adaptive Reuse Projects that utilize Base Incentives contingent on a site's location in a Transit Oriented Incentive Area shall provide Restricted Affordable Units in conjunction with a site's applicable Transit Oriented Incentive Area Tier. Type I Unified Adaptive Reuse Projects that utilize Base Incentives contingent on a site's location in an Opportunity Corridor Incentive Area shall provide Restricted Affordable Units in conjunction with a site's applicable Opportunity Corridor. Restricted Affordable Units shall be provided and distributed throughout the entire Type I Unified Adaptive Reuse Project in compliance with Section 16.61 B. of this Code.

Table 12.22 A.38.(c)(3)(iv)

Mixed Affordability Options for Meeting Restricted Affordable Units

Opportunity Area	Minimum Percent of Total Units Provided as Restricted Affordable Units ¹			
	Income Level			
	Acutely Low Income (For Rental or For Sale)	Extremely Low Income (For Rental or For Sale)	Very Low Income (For Rental or For Sale)	Moderate Income (For Rental or For Sale)
Moderate and Lower Opportunity Areas	-	4% ²	8%	-
Higher Opportunity Areas	4% ²	4%	-	12%

Footnote:

1. Provided at least one affordability income category is consistent with the minimum affordability requirements pursuant to California Government Code Sections 65915.
2. Projects utilizing the combinations of mixed affordability described in Table 12.22 A.38.(c)(3)(iv) to meet the required Restricted Affordable Units must provide one 3-bedroom covenanted unit per project.

Table 12.22 A.38.(c)(3)(v)

Opportunity Corridor Transition Incentive Area Restricted Affordable Unit Requirements

Incentive Program	Minimum Number of Total Units Provided as Restricted Affordable Units ^{1, 2}		
Opportunity Corridor Transition Incentive Area	Income Level		
	Very Low Income (For Rental or For Sale)	Lower Income (For Rental or For Sale)	Moderate Income (For Rental or For Sale)
CT-1A	-	-	1 unit
CT-1B, and CT-2	1 unit	1 unit	2 unit
CT-3	2 units	2 units	3 units

Footnote:

1. For consolidated lots, the project shall provide the same affordability as required per individual lot. For example, if a project consolidated two lots into one project using CT-2 incentives, the project would be required to provide either 2 Very Low Income or Lower Income units, or 4 Moderate Income units.
2. Provided at least one affordability income category is consistent with the minimum affordability requirements pursuant to California Government Code Sections 65915.

(4) The project site does not include any lots located in: a single family or more restrictive zone (RW and more restrictive zone); a manufacturing zone that does not allow multiple family residential uses (M1, M2, and M3); or the CM, MR1, and MR2 zones where no residential uses are permitted from an applicable planning overlay, “Q” condition or “D” limitation.

(5) The project site does not include any lots located within a Very High Fire Hazard Severity Zone (VHFHSZ), the Coastal Zone, or a Sea Level Rise Area. Except that a project site that is located within a VHFHSZ or Coastal Zone shall be eligible for Opportunity Corridor Incentives as defined in Paragraph (f), if properties that are abutting, are across the street or alley, or have a common corner with the subject property, are not in a VHFHSZ or Coastal Zone, and are eligible for the Opportunity Corridor Incentives as described in Paragraph (f) below.

(6) The project would not require the demolition of any of the following, as demolition is defined in Section 13B.8.1.C of Chapter 1A of this Code.

(i) A Designated Historic Resource; or

(ii) Any Surveyed Historic Resource, eligible or architectural historic resource identified for any historic protection or special consideration or review by an applicable overlay or Specific Plan including sites located in: the South Los Angeles Community Plan Implementation Overlay (CPIO) Section 1-6.C.5.b; the Southeast Los Angeles CPIO Section 1-6.C.5.b; the West Adams CPIO Ch.1, Section 6.C.5.b; the San Pedro CPIO Ch.1, Section 7.C.5.b; Westwood Village Specific Plan; Echo Park Community Design Overlay (CDO) District; or the North University Park Specific Plan.

(7) A project involving a Designated Historic Resource shall be consistent with the Secretary of the Interior’s Standards for Rehabilitation as supported by an expert study that has been accepted by the Office of Historic Resources, or demonstrated by the project plans and accepted by the Office of Historic Resources, if consistent with the applicable adopted Implementation Memorandum, Guidelines or Technical Bulletins of the Director of City Planning.

(8) A project shall not be located in the Boyle Heights Community Plan, the Harbor Gateway Community Plan, the Wilmington-Harbor City Community Plan, the Downtown Community Plan (previously Central City North Community Plan and the Central City Community Plan Areas), and the Cornfield Arroyo Seco Specific Plan.

(d) **Procedures.** A project that meets the provisions of this subdivision shall be reviewed pursuant to the Procedures, as set forth below. An approval of a Density Bonus or Incentive pursuant to this subdivision shall not, in and of itself, trigger a General Plan Amendment, Zone Change, Project Review, the applicable procedures set forth in Section 13A.2.10 (Multiple Approvals) of Chapter 1A of this Code shall apply to projects seeking other discretionary approvals in conjunction with an application pursuant to the Procedures in Paragraph (d).

(1) Los Angeles Department of Building and Safety Review. A project seeking Base Incentives described in Paragraphs (e)(2), (f)(2) or (g)(3), and/or Additional Incentives listed on the Menu of Incentives in Paragraph (h) shall be considered ministerial and processed by the Department of Building and Safety.

(2) **Expanded Administrative Review.** The following projects shall be ministerially approved pursuant to Expanded Administrative Review, as set forth by the provisions of Section 13B.3.2 (Expanded Administrative Review) of Chapter 1A of this Code. As defined in this subdivision, ministerial approval means an administrative process to approve a “use by right” as this term is defined in California Government Code Section 65583.2(i). The following explains how Expanded Administrative Review procedures are applicable:

(i) **A Project That Requests the Public Benefit Options.** A project that requests Public Benefit Options described in Paragraph (i) and Additional Incentives listed on the Menu of Incentives in Paragraph (h), shall not be subject to any hearing procedures regardless of the provisions contained in Section 13B.3.2.D in Chapter 1A of this Code.

(ii) **A Project Requesting Incentives Not Listed on the Menu of Incentives.** A project that requests Incentives not listed on the Menu of Incentives described in Section 12.22 A.38.(h)(2) of this Code may be subject to a public hearing as described in Section 13B.3.2.D in Chapter 1A of this Code. A project also shall satisfy the below criteria in order to remain eligible for approval through this subdivision:

a. A project requesting Incentives not listed in on the Menu of Incentives in Paragraph (h) shall be required to meet a minimum of 35 points under the Landscape and Site Design Ordinance of Section 12.40 of this Code, and the Landscape and Site Design Point System.

b. A project shall refrain from requesting an Incentive not on, or in excess of, the Menu of Incentives in the following Development Standard areas: Floor Area Ratio (FAR), Height, Open Space requirements, tree planting requirements, ground story requirements, and/or yards / setback

requirements. A project that seeks any of these types of Incentives not on the menu are not eligible for approval through this Subdivision 38., and instead shall seek approval pursuant to the Procedures, Incentive menu and other requirements described in Section 12.22 A.37. of this Code.

c. A project utilizing the Opportunity Corridor Transition Incentive Area Base Incentives as defined in Paragraph (g)(3)(i) is only eligible for Incentives contained in Paragraph(g) and is not eligible to combine requests for Incentives on or off any other Incentive menu.

(3) **Director's Determination.** The Director of Planning shall review the following projects pursuant to Section 13B.2.5 of Chapter 1A of this Code.

(i) **Projects Requesting up to One Waiver.** Waivers shall be reviewed pursuant to the Findings described in Section 12.22 A.38.(d)(5) of this Code.

Exception. A project utilizing the Opportunity Corridor Transition Incentive Area Base Incentives as defined in Paragraph (g)(3)(i) is not eligible to request a Waiver.

(4) **City Planning Commission Review.** The following projects must file an application pursuant to Section 13B.2.3 (Class 3 Conditional Use Permit) of Chapter 1A of this Code. Notwithstanding the provisions set forth in Section 13B.2.3. of Chapter 1A, the decision of the City Planning Commission shall be final and not further appealable.

(i) **Projects Requesting More Than One Waiver.** Waivers shall be reviewed pursuant to the Findings described in Section 12.22 A.38.(d)(5) of this Code.

Exception. A project utilizing the Opportunity Corridor Transition Incentive Area Base Incentives as defined in Paragraph (g)(3)(i) is not eligible to request a Waiver.

(5) **Findings for Waivers.** A Waiver requested pursuant to the procedures described in this paragraph shall be approved by the applicable decision-making authority unless that decision-making authority makes one of the following findings:

(i) The Development Standard associated with a request for Waiver or will not have the effect of physically precluding the construction of a development meeting the eligibility criteria described in Paragraph (c) at the densities or with the Base Incentives or Additional Incentives permitted under this subdivision.

(ii) The Waiver would have a Specific Adverse Impact, as defined in California Government Code Section 65589.5(d)(2), upon public health and safety and for which there is no feasible method to satisfactorily mitigate or avoid the Specific, Adverse Impact. Inconsistency with the zoning ordinance or General Plan land use designation shall not constitute a Specific Adverse Impact upon the public health or safety.

(iii) The Waiver would have an adverse impact on any real property that is listed in the California Register of Historical Resources.

(iv) The Waiver would be contrary to state or federal law.

(6) **Other Discretionary Approvals.** Applicable procedures set forth in Section 13A.2.10 (Multiple Approvals) of Chapter 1A of this Code apply to a project seeking another discretionary approval in conjunction with an application pursuant to the Procedures in Paragraph (d). Regardless of any other findings that may be applicable, the decision maker must approve the requested Base Incentives and Additional Incentives, either on or not on the Menu of Incentives described in Paragraph (h), requested under this subdivision unless the decision maker, based upon substantial evidence, makes one or more of the disapproval findings described in Section 12.22 A.38.(h)(1) of this Code.

(7) **One Hundred Percent Affordable Housing Projects.** One Hundred Percent Affordable Housing Projects shall be reviewed pursuant to Section 12.22 A.39. of this Code.

(8) **Density Bonuses, Incentives or Waivers Exceeding this Subdivision.** A project that seeks additional Density Bonuses, Incentives or Waivers beyond what is expressly allowed by this subdivision, shall be reviewed pursuant to Section 12.22 A.37. of this Code, along with the requirements and findings in Section 12.24 U.26. of this Code for additional density if applicable.

(9) **Applicability of Procedures, Program Standards and Incentives.** A project shall only be eligible for review through this Subdivision 38., including any Incentive menus or options, if on or after the operative date of this subdivision both a new entitlement application is filed and associated fees are paid.

(e) **Transit Oriented Incentive Area.**

(1) **Eligibility.** A project may seek Base Incentives by satisfying the eligibility criteria for this project type as described in Paragraph (c), and according to the eligibility criteria for Transit Oriented Incentive Areas described below.

(i) Each one-half mile radius (2,640 feet) around a Major Transit Stop, shall constitute a unique Transit Oriented Incentive Area.

(ii) Each lot within a Transit Oriented Incentive Area shall be determined to be in a specific subarea based on the shortest distance between any point on the lot and a qualified Major Transit Stop as delineated in Table 12.22 A.38.(e)(1)(iv) below.

(iii) Each lot in a Transit Oriented Incentive Area shall be determined to be in a specific Transit Oriented Incentive Area (T-1, T-2, T-3) based on the shortest distance between any point on the lot and a qualified Major Transit Stop.

Table 12.22 A.38.(e)(1)(iv)

Transit Oriented Incentive Area Subareas ¹

Type of Major Transit Stop	Eligibility Subarea Based on Distance to Major Transit Stop		
	T-1	T-2	T-3
Two Regular Buses (intersection of two non- Rapid Bus Lines each with at least 20-minute average peak headways)	< 2,640 feet	-	-
Regular plus Rapid Bus (intersection of a regular bus and a Rapid Bus line)	750 - 2,640 feet	< 750 feet	-
Two Rapid Buses (intersection of two Rapid Bus lines)	1,500 - 2,640 feet	< 1,500 feet	-
Metrolink Rail Stations	750 - 2,640 feet	< 750 feet	-
Metro Rail Stations and Bus Rapid Transit Stations	-	≤ 2,640 feet	< 750 feet from intersection with another rail line or a Rapid Bus

Footnote:

1. Major Transit Stop (MTS), MTS type, and Subarea verification (T-1, 2, 3) are analyzed separately. MTS types and Subareas reliant on the presence of a Rapid Bus, do not need to use the Rapid Bus as the basis for first identifying the MTS. For example, the Regular Plus Rapid Bus MTS type could be based on two regular buses that constitute the MTS, plus a Rapid Bus that stops at the MTS.

(2) **Base Incentives.** A project shall be granted Base Incentives established in Table 12.22 A.38.(e)(2)(i), in exchange for the required minimum percentage of Restricted Affordable Units established in Paragraph (c) of this subdivision. A project that qualifies for Base Incentives established in the table below shall also be eligible for Public Benefit Options listed in Paragraph (i) of this subdivision. For Type I Unified Adaptive Reuse Projects that meet the eligibility criteria established in Section 12.22 A.38.(c) of this Code, notwithstanding the Density Bonuses described in Table 12.22 A.38.(e)(2)(i), the density shall be limited by floor area and Base Incentives for Parking, FAR, and Height shall only apply to the project's new construction.

Table 12.22 A.38.(e)(2)(i)

Transit Oriented Incentive Area Base Incentives

Eligibility Subarea	Density Bonus	Parking	Floor Area Ratio (FAR)	Height
Eligibility Subarea	Density Bonus	Parking	Floor Area Ratio (FAR)	Height
	In each subarea, the maximum increase in the otherwise Maximum Allowable Residential Density shall be as follows:	In each subarea, the required parking ratio shall be as follows: ^{1, 2, 6}	In each subarea, the maximum allowable FAR shall be as follows: ^{3, 4}	In each subarea, the maximum allowable height permitted shall be equal to the following: ⁵

T-1	Moderate and Lower Opportunity Areas: 100%	No parking minimum required. If parking is provided, up to 40% of spaces may be provided as compact vehicular spaces. Tandem parking may also be permitted so long as a 24-hour attendant is present on-site.	R - zones: 40% increase.	One additional story, up to 11 additional feet.
			C - zones: 3.25:1 max. total, or 40% increase, whichever is greater.	
	Higher Opportunity Areas: 120%		R - zones: 40% increase.	
			C - zones: 4.2:1 max. total, or 45% increase, whichever is greater.	
T-2	Moderate and Lower Opportunity Areas: 110%		R - zones: 40% increase.	Two additional stories, up to 22 additional feet.
			C - zones: 4.2:1 max. total, or 50% increase, whichever is greater.	
	Higher Opportunity Areas: Limited by Floor Area		R - zones: 45% increase.	
			C - zones: 4.5:1 max. total, or 50% increase, whichever is greater.	
T-3	Moderate and Lower Opportunity Areas: 120%	R - zones: 45% increase.	Three additional stories up to 33 additional feet.	
		C - zones: 4.5:1 max. total, or 50% increase, whichever is greater.		
	Higher Opportunity Areas: Limited by Floor Area	R - zones: 50% increase.		
		C - zones: 4.65:1 max. total, or 55% increase, whichever is greater.		

Footnotes:

1. Required automobile parking applies for all residential units in a project (not just the Restricted Affordable Units), inclusive of disabled and required guest parking, where applicable. All parking spaces provided shall comply with Section 12.21 A.5. of this Code. Except that any combination of standard, compact or tandem spaces may be provided. Tandem parking spaces that do not comply with Section 12.21 A.5.(h)(2) of this Code may be provided in any configuration as long as a parking attendant or an automated parking system is provided at all times.
2. Pursuant to California Civil Code Section 1947.1, provided parking shall be sold or rented separately from the units in properties with 16 or more units, as verified by the Los Angeles Housing Department.
3. The maximum increase in the allowable Floor Area Ratio (FAR) permitted shall be equal to the table above, provided that any additional floor area provided through this paragraph is utilized only by the new residential units and required amenity areas for the residential units. Any non-residential uses shall be limited to the FAR associated with a site's underlying zoning prior to the application of any Incentive.
4. For the purpose of applying this Incentive, commercial zones include Hybrid Industrial zones, Commercial Manufacturing zones and any defined area in a Specific Plan or overlay district that allows for both commercial uses and residential uses.
5. The increase in height shall be applicable to a project over the entire project site regardless of the number of underlying height limits. The height increase may be applied to the maximum allowable height in feet or stories permitted by the zone, including for mixed-use Projects.
6. Consistent with California Government Code Section 65915(p)(4), required parking spaces provided may be uncovered.

(ii) **Exceptions to Base Incentives.**

a. A site with a Maximum Allowable Residential Density of less than 5 units shall be eligible for the following Density Bonuses:

i. T-1: 60%

ii. T-2: 70%

iii. T-3: 80%

b. A site with a Maximum Allowable Residential Density of less than 5 units that has a Designated Historic Resource or Non-Contributor, shall not be eligible for Incentives to increase allowable FAR or height above one additional story, up to 11 additional feet.

c. In a Specific Plan or overlay district that has a FAR available through its own development bonus or incentive program to provide affordable housing, a project may utilize the bonus FAR of the Specific Plan or overlay district in lieu of the FAR maximum described above in Table 12.22 A.38.(e)(2)(i).

(iii) **Roadway Widening.** A project shall be exempt from any applicable roadway widening requirements, which for the purposes of this Base Incentive shall mean the relocation of an established curb or curb and gutter, pursuant to Section 12.37 of this Code. A project shall further be eligible for relief from some required dedication, where specified by Section 12.37 of this Code. Required dedications and improvements shall conform to the Street Dedication and Improvement Investigation Criteria adopted or amended pursuant to Council File 22-1476. Granting of this Base Incentive for roadway widening relief shall not require a project to seek approval pursuant to the procedures described in Section 12.37 I. (Waiver and Appeals) of this Code. A project utilizing this Incentive shall still be required to dedicate land and complete all other public right-of-way improvements, including but not limited to sidewalk improvements, that may be required. A Waiver of Dedication and Improvement pursuant to Section 12.37 I. (Waivers and Appeals) of this Code shall still be required for projects seeking to be exempt from a required land dedication or required improvement other than roadway widening.

a. **Exceptions.** A project in a Very High Fire Hazard Severity Zone, Hillside Area, Coastal Zone, or a project subject to procedures in Section 13B.2.3 (Class 3 Conditional Use Permit) of Chapter 1A of this Code shall not be eligible for this Base Incentive.

(f) **Opportunity Corridor Incentive Area.**

(1) **Eligibility.** A project may seek Base Incentives by satisfying the eligibility criteria for this project type in Paragraph (c), and the below requirements that include the Opportunity Corridor Incentive Area subareas, described in Table 12.22 A.38.(f)(1)(i), below.

Table 12.22 A.38.(f)(1)(i)
Opportunity Corridor Incentive Area Subareas

Eligibility Subarea	Corridor Requirements	Geographic Criteria
OC-1	Corridors with Frequent Bus Service	Lots in whole or in part in Higher Opportunity Areas
OC-2	Corridors with High Quality Transit Service	
OC-3	Corridors within one-half mile from Metro Rail Station or Portal and Bus Rapid Transit Stop	

(ii) **Corridor Access.** A project must provide Direct Pedestrian Access to the eligible Opportunity Corridor.

(iii) **Frontage.** Each eligible lot must provide a minimum 25-foot frontage along the eligible Corridor, or be part of a Consolidated Development with a 25-foot frontage along the eligible Corridor.

(iv) **Street Designations.** A Corridor in and OC-1 and OC-2 eligibility subareas includes Local and Collector street designations as identified in the Mobility Element of the General Plan. A Corridor in the OC-3 eligibility subarea shall be limited to Avenue and Boulevard street designations as identified in the Mobility Element of the General Plan.

(2) **Base Incentives.** A project shall be granted Base Incentives established in this paragraph as defined in Table 12.22 A.38.(f)(2)(i) below, in exchange for the required minimum percentage of Restricted Affordable Units established in Section 12.22 A.38.(c)(3) of this Code. A project that qualifies for Base Incentives established in Table 12.22 A.38.(f)(2)(i) below shall also be eligible for Public Benefit Options listed in Paragraph (i) of this subdivision. For a Type I Unified Adaptive Reuse Project that meet the eligibility criteria established in Section 12.22 A.38.(c) of this Code, the Base Incentives shall only apply to the project's new residential units and required amenity areas for the residential units.

Table 12.22 A.38.(f)(2)(i)
Opportunity Corridor Incentive Area Base Incentives

Eligibility Subarea	Density Bonus	Parking	Floor Area Ratio	Height
Description	In each subarea, the maximum increase in the otherwise Maximum Allowable Residential Density shall be as follows:	In each subarea, the required parking ratio shall be as follows: ^{1, 2, 5}	In each subarea, the maximum allowable FAR permitted shall be as follows: ³	In each subarea, the maximum allowable height permitted shall be equal to the following: ⁴

OC-1	Limited by Floor Area	No Parking required.	R - zones: 45% increase.	One additional story, up to 11 additional feet; or a maximum allowable height of 5 total stories, whichever is greater.
			C - zones: 4.5:1, or 50% increase, whichever is greater.	
OC-2			R - zones: 50% increase.	Two additional stories, up to 22 additional feet; or a maximum allowable height of 6 total stories, whichever is greater.
			C - zones: 4.65:1, or 55% increase, whichever is greater.	
OC-3			4.8:1, or 60% increase, whichever is greater.	Three additional stories, up to 33 additional feet; or a maximum allowable height of 7 total stories, whichever is greater.

Footnotes:

1. Required automobile parking applies for all residential units in an eligible project (not just the Restricted Affordable Units), inclusive of disabled and required guest parking, where applicable. All parking spaces provided shall comply with LAMC Section 12.21 A.5. Except that any combination of standard, compact or tandem spaces may be provided. Tandem parking spaces that do not comply with LAMC Section 12.21 A.5.(h)(2) may be provided in any configuration as long as a parking attendant or an automated parking system is provided at all times.
2. Pursuant to California Civil Code Section 1947.1, provided parking shall be sold or rented separately from the units in properties with 16 or more units, as verified by the Los Angeles Housing Department.
3. The maximum increase in the allowable FAR permitted shall be equal to the table above, provided that any additional floor area provided through this subdivision is utilized only by the new residential units and required amenity areas for the residential units. Any non-residential uses shall be limited to the FAR associated with a site's underlying zoning prior to the application of any Incentive.
4. The increase in height shall be applicable to a project over the entire project site regardless of the number of underlying height limits. The height increase may be applied to the maximum allowable height in feet or stories permitted by the zone, including for mixed-use projects.
5. Consistent with California Government Code Section 65915(p)(4), required parking spaces provided may be uncovered.

(ii) Exceptions.

a. A site with a Designated Historic Resource or Non-Contributor shall not be eligible for an Incentive to increase allowable FAR or height above one additional story, up to 11 additional feet.

b. In a Specific Plan or overlay district that has a FAR available through a development bonus or incentive program to provide affordable housing, a project may choose to utilize the Bonus FAR and affordability requirement of the Specific Plan or overlay district in lieu of the FAR maximum described above in Table 12.22 A.38.(e)(2)(i).

(iii) Roadway Widening. A project shall be exempt from any applicable roadway widening requirements pursuant to Section 12.37 of this Code which for the purposes of this Base Incentive shall mean the relocation of an established curb or curb and gutter, pursuant to Section 12.37 of this Code. A project shall further be eligible for relief from some required dedication, where specified by Section 12.37 of this Code. Required dedications and improvements shall conform to the Street Dedication and Improvement Investigation Criteria adopted or amended pursuant to Council File 22-1476. Granting of this Base Incentive for roadway widening shall not require a project to seek approval pursuant to the procedures described in Section 12.37 I. (Waiver and Appeals) of this Code. A project utilizing this Incentive shall still be required to dedicate land and complete all other public right-of-way improvements, including but not limited to sidewalk improvements, that may be required. A Waiver of Dedication and Improvement pursuant to Section 12.37 I. (Waivers and Appeals) of this Code shall still be required for projects seeking to be exempt from a required land dedication or required improvement other than roadway widening.

a. **Exceptions.** A project in a Very High Fire Hazard Severity Zone, Hillside Area, Coastal Zone, or Projects subject to procedures in Section 13B.2.3 (Class 3 Conditional Use Permit) of Chapter 1A of this Code shall not be eligible for this Base Incentive.

(g) Opportunity Corridor Transition Incentive Area.

(1) **Eligibility.** A project may seek Base Incentives by satisfying the eligibility criteria for this project type in Paragraph (c), and the below criteria for Opportunity Corridor Transition Incentive Area subareas, described in Table 12.22 A.38.(g)(1)(i), below.

Table 12.22 A.38.(g)(1)(i)
Opportunity Corridor Transition Incentive Area Subareas

Eligibility Subarea	Site Requirements	Eligible Underlying Project Site Zones	Geographic Criteria
CT-1	Lots in whole or in part within 750 feet of the rear property line of a lot located within an Opportunity Corridor Incentive Area.	RD zones and R2 zones	Higher Opportunity Areas
CT-2	Lots in whole or in part within 500 feet of the rear property line of a lot located within an Opportunity Corridor Incentive Area.		
CT-3	Lots in whole or in part within 250 feet of the rear property line of a lot located within an Opportunity Corridor Incentive Area.		

(ii) **Property Line Measurement.** Opportunity Corridor Transition Incentive Area subareas are defined by measuring the distance from the rear property line of the lots located within an Opportunity Corridor Incentive Area. Where a lot is a Reverse Corner Lot in an Opportunity Corridor Incentive Area, distance shall be measured from the lot's property line parallel to the Opportunity Corridor. In the case that lots within the Opportunity Corridor Incentive Area are abutting or are consolidated, the buffer measurement will not be adjusted to accommodate the new rear property line of the consolidated site.

(iii) **Exceptions.**

a. A site with a Designated Historic Resource, or Non-Contributor shall not be eligible for CT-3 Incentives, but is eligible for CT-2 Incentives if the lot meets all other criteria.

(2) A project utilizing the Opportunity Corridor Transition Incentive Area Base Incentives as defined in Paragraph (g)(3)(i) is not eligible to request a Waiver. An Opportunity Corridor Transition Incentive Area Project is also not eligible to combine requests for Incentives on or off any other Incentive menu. However, a project may request to use the Incentives from a lower eligibility subarea.

(3) **Base Incentives.** A project shall be granted Base Incentives established in this paragraph as defined in Table 12.22 A.38.(g)(3)(i) below, in exchange for the required minimum number of Restricted Affordable Units established in Paragraph (c)(3) of this subdivision for the Opportunity Corridor Transition Incentive Area. The Base Incentives in Table 12.22 A.38.(g)(3)(i) are expressed as project site maximums, and are not in addition to a site's underlying Development Standards. The maximum density corresponds to a maximum Floor Area Ratio (FAR) and height in the table cell to the immediate right, and may not be mixed with greater FAR and height maximums. However, nothing in Table 12.22 A.38.(g)(3)(i) is intended to prevent a project from voluntarily providing parking or using a lower maximum density, height or FAR.

Table 12.22 A.38.(g)(3)(i)
Opportunity Corridor Transition Area Base Incentives

Eligibility Subarea	Density Bonus	Floor Area Ratio (maximum permitted)	Parking	Height (maximum permitted)
Eligibility Subarea	Density Bonus	Floor Area Ratio (maximum permitted)	Parking	Height (maximum permitted)
Description	In each subarea, the maximum Density including bonus shall be as follows:	For each subarea, the maximum FAR shall be equal to the following:	Required automobile parking for all residential units in a project (not just the restricted affordable units), inclusive of disabled and required guest parking, where applicable, shall be as follows: ^{1, 3}	In each subarea, the maximum allowable height permitted shall be as follows:
CT-1A ²	4 units	1.15:1		2 stories
CT-1B ²	5 units	1.30:1		
	6 units	1.45:1		
	7 units	1.60:1		
	8 units	1.75:1		

CT-2	9 units	1.90:1	No parking required.	3 stories
	10 units	2.0:1		
CT-3	11 units	2.15:1		
	12 units	2.30:1		
	13 units	2.45:1		
	14 units	2.60:1		
	15 units	2.75:1		
	16 units	2.90:1		

Footnotes:

1. Pursuant to California Civil Code Section 1947.1, provided parking shall be sold or rented separately from the units in properties with 16 or more units, as verified by the Los Angeles Housing Department.
2. Sites are eligible for CT-1 site requirements from Table 12.22 A.38.(g)(1)(i).
3. Consistent with California Government Code Section 65915(p)(4), required parking spaces provided may be uncovered.

(ii) **Lot Requirements.** A project is eligible for a reduction of an otherwise required Lot standard as part of a subdivision as follows:

- a. Minimum Lot Area: 600 square feet
- b. Minimum Lot Width: 15 feet
- c. Minimum Lot Access: A 3-foot pedestrian access easement may be provided in lieu of vehicular access requirements.

(iii) **Yards.** A project is eligible for a reduction of an otherwise required Yard standard to the following minimums:

- a. Front yard setback of 10 feet.
- b. Side yard setback of 4 feet for a three-story structure, or 3 feet for a two-story structure.
- c. No interior side yard setback shall be required for buildings that are part of the same development.
- d. Rear yard setback of 4 feet, provided structures maintain a height of less than 26 feet within 15 feet of the rear property line.
- e. Alley setback of zero feet for structures that maintain a height of less than 26 feet for at least the first 15 feet from the alley.

(iv) **Multi-Bedroom Units.** A project that includes a minimum of 40% of Total Units as 3- bedrooms or larger, shall be granted either additional Floor Area up to 0.5 FAR or an additional 11 feet in height. This is provided the project provides the City with a covenant in favor of the City that is recorded in the development site's chain of title in order to guarantee that the qualifying multi-bedroom units will maintain the same bedroom count and will not be converted to additional residential units in the future.

(v) **Building Spacing and Passageways.** A project does not need to meet zoning requirements related to spaces between buildings or passageways pursuant to Section 12.21 C.2. of this Code.

(vi) **Consolidated Development.** In the case that an Opportunity Corridor Transition Area Incentive Project consolidates multiple lots, the Density Bonuses established in Table 12.22 A.38.(g)(3)(i) shall be available to each lot. However, FAR and height bonuses shall not exceed the maximum permitted in Table 12.22 A.38.(g)(3)(i).

- a. For example, if two CT-1B lots are consolidated into one project, the project is eligible for up to 12 units, with 1.45:1 FAR maximum and a height maximum of 2 stories; or if two CT-2 lots are consolidated in one project, the project is eligible for up to 20 units, with a 2.0:1 FAR maximum and a height maximum of 3 stories.

- b. If a project consolidates two lots of differing incentive areas, for example CT-2 and CT-3, the incentives of the more intense incentive area shall be permitted on both lots.

(vii) **Calculating Floor Area Ratio.** In lieu of the calculation of Buildable Area as defined in Section 12.03 of this Code, Floor Area Ratio or FAR shall be defined as the measurement of the total floor area of all buildings on a lot in relation to the size of the lot, inclusive of yards and setbacks.

(viii) **Roadway Widening.** A project shall be exempt from any applicable roadway widening requirements, which for the purposes of this Base Incentive shall mean the relocation of an established curb or curb and gutter, pursuant to Section 12.37 of this Code. A project shall further be eligible for relief from some required dedication, where specified by Section 12.37 of this Code. Required dedications and improvements shall conform to the Street Dedication and Improvement Investigation Criteria adopted or amended pursuant to Council File 22-1476. Granting of this Base Incentive for roadway widening shall not require a project to seek approval pursuant to the procedures described in Section 12.37 I. (Waiver and Appeals) of this Code. A project utilizing this Incentive shall still be required to dedicate land and complete all other public right-of-way improvements, including but not limited to sidewalk improvements, that may be required. A Waiver of Dedication and Improvement pursuant to Section 12.37 I. (Waivers and Appeals) of this Code shall still be required for projects seeking to be exempt from a required land dedication or required improvement other than roadway widening.

a. **Exceptions.** A project in a Very High Fire Hazard Severity Zone, Hillside Area, Coastal Zone, or a project subject to procedures in Section 13B.2.3 (Class 3 Conditional Use Permit) of Chapter 1A of this Code shall not be eligible for this Base Incentive.

(4) **Performance Standards.** A project approved pursuant to this subdivision shall meet the following Performance Standards, and no deviations from these standards shall be granted, except that any project resulting from the conversion of, or an addition up to a maximum of 1,200 square feet to, an existing structure need not comply with these standards.

(i) **Common Outdoor Open Space Standards.** A project shall provide at-grade Common Outdoor Open Space per Table 12.22 A.38.(g)(4)(ii) that is accessible to all the residential tenants of a project. The Common Outdoor Open Space shall be open to the sky and have no structures that project into the area, except for Outdoor Amenity areas as described in Section 12.03 of this Code, and except for Projections into Yards as provided in Section 12.22 C.20.(b) of this Code. This common open space requirement shall supersede the per residential unit calculation of common open space in Section 12.21 G.2. of this Code. In lieu of the provisions of Section 12.21 G.2. of this Code, a project must meet at least one Common Outdoor Open Space typology from the menu listed in Table 12.22 A.38.(g)(4)(ii), below.

a. **Minimum Planting Area.** The Common Outdoor Open Space provided shall comply with the provisions of Section 12.21 G.2.(a)(3) of this Code regarding minimum planting area.

Table 12.22 A.38.(g)(4)(ii)
Common Outdoor Open Space Types Menu

Common Outdoor Open Space Typologies:	Dimension Requirements (minimum)	Standards
Courtyard	Courtyard width (minimum): 30% of lot width or 15 feet, whichever is greater Courtyard depth (minimum): 40% of lot depth (minimum)	Placement of courtyard shall comply with at least one of the following standards: 1. The courtyard shall be oriented so that it and an existing open space courtyard on an adjoining lot (unseparated by a street or alley) work together to create the effect of one large open space. 2. The courtyard shall be contiguous with the minimum front yard setback creating a single deep combined courtyard that unites the minimum courtyard and front yard spaces. 3. The courtyard shall be an internal courtyard, entirely contained onsite.
Paseo	Paseo width (minimum): 10% of lot width or 10 feet wide, whichever is greater Paseo depth (minimum): 60% of the lot depth	A Paseo shall be located between residential structures, perpendicular to the front lot line. A Paseo shall have a minimum 4 foot wide unobstructed pedestrian pathway accessible from the Ground Floor Frontage. A Paseo may be covered by architectural projections, but no structures or habitable space shall encroach on the Paseo, and it shall be for pedestrian use only.

Rear Yard	Rear Yard width (minimum): 50% of lot width Rear Yard depth (minimum): 10% of lot depth, or 15 feet, whichever is greater	Located adjacent to the rear property lot line and open to the sky.
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(iii) **Entrances.**

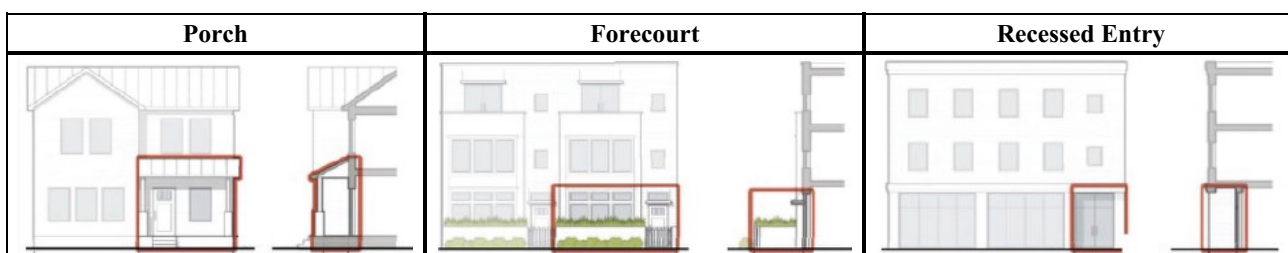
a. **Street-Facing Entrance.** Each unit fronting a public street (provided there is no structure located between the lot line and unit) shall have an entrance facing the public street and one of the following entry features:

1. **Porch.** A wide, raised platform, projecting in front of a street-facing entrance, that is entirely covered but not enclosed. A porch shall have a minimum depth of 4-1/2 feet, a minimum of 30% of the building width, and a finished floor elevation between 2 to 5 feet.

2. **Forecourt.** A yard screened with a short wall, fence or hedge that provides significant privacy for tenants located on the ground story, near sidewalk grade. A forecourt shall have a minimum depth of 8 feet, a minimum width of 10 feet, required covered entrance, and a fence or wall height between 2 feet and 6 inches, to 3 feet and 6 inches.

3. **Recessed Entry.** A space set behind the building face plane providing sheltered access to a street-facing entrance. A recessed entry shall have a depth between 3 to 15 feet minimum, and a maximum width of 5 feet, and a required covered entrance.

Figure 12.22 A.38.(g)(4)(iii)a.4.



(iv) **Ground Floor External Entrances.** A ground floor external entrance to units not located on a street-fronting lot line, shall have an entrance oriented towards the open space when adjacent to the open space.

(v) **Parking Areas, Garages, and Carports.**

a. **Location.**

1. No above-ground parking areas including parking structures and parking stalls, shall be allowed between a Ground Floor Frontage and public right-of-way.

2. A new detached garages or carport shall be located behind the main building(s) facade, furthest from the Ground Floor Frontage Line.

3. An attached parking area shall be located either underground (subterranean or semi-subterranean) or behind any main building.

4. An access driveway shall be provided from an alley when present and determined feasible by the City's Department of Transportation.

(h) **Additional Incentives.** In addition to the Base Incentives established in Paragraphs (e) and (f), a project that satisfies eligibility criteria set forth in Section 12.22 A.38.(c) of this Code shall have the ability to select up to four Incentives from the Menu of Incentives provided in Section 12.22 A.38.(h)(2) of this Code below or use an Incentive to seek a deviation from a Development Standard elsewhere in the Los Angeles Municipal Code. Such a project may receive up to four Incentives provided a project includes the applicable percentage of Restricted Affordable Units (excluding units added by a Density Bonus) that is necessary to obtain the maximum number of Incentives available to an income category under California Government Code Section 65915, as listed in Table 12.22 A.37.(f)(1)(i). Refer to Section 12.22 A.38.(d) of this Code for the approval Procedure that is consistent with the project's Incentive request. A project utilizing the Opportunity Corridor Transition Incentive Area Base Incentives are not eligible for Additional Incentives on or off the Menu of Incentives in Section 12.22 A.38.(h)(2) of this Code. For Type I Unified Adaptive Reuse Projects, Additional Incentives shall only apply to the project's new residential units and required amenity areas for the residential units.

(1) A project shall be eligible for up to four Additional Incentives. A project may request Incentives listed in Paragraph (f)(2) or use an Incentive to seek a deviation from a Development Standard elsewhere in this Code or a project site's applicable zoning ordinance, Community Plan, Specific Plan, or overlay. Refer to Paragraph (d) for the approval Procedure that is consistent with the project's Incentive request.

(i) Incentives requested pursuant to the applicable procedure in Paragraph (d) of this subdivision shall be granted unless any one of the following written findings are made, based upon substantial evidence:

a. The Incentive does not result in identifiable and actual cost reductions, consistent with California Government Code Section 65915(k), to provide for affordable housing costs as defined in California Health and Safety Code Section 50052.5, or for rents for the targeted units to be set as specified in California Government Code Section 65915(c).

b. The Incentive will have a Specific Adverse Impact upon public health and safety or on any real property that is listed in the California Register of Historical Resources and for which there is no feasible method to satisfactorily mitigate or avoid the Specific Adverse Impact without rendering the development unaffordable to low-income and moderate-income households. Inconsistency with the zoning ordinance or General Plan land use designation shall not constitute a Specific Adverse Impact upon the public health or safety.

c. The Incentive would be contrary to state or federal law.

(2) **Menu of Incentives.** A project may elect to request one of the following Incentives not to exceed the allowed number of Incentives pursuant to Paragraph (h)(1) above. Each request from the Menu of Incentives shall constitute one Incentive request unless otherwise stated.

(i) **Yards.** A project may request a reduction of otherwise required yards as follows in Table 12.22 A.38.(h)(2)(i)a. In C zones, yard reductions from the Table may be requested as one Incentive. Separately in R zones, yard reductions from the Table may also be requested as one Incentive.

**Table 12.22 A.38.(h)(2)(i)a.
Allowed Yard Incentives**

Zone	Yard Incentive
C Zones	Side, Rear and Front Yards. A project may utilize any or all of the yard requirements for the RAS3 zone per Section 12.10.5 of this Code. A project on a commercially zoned site adjacent to a property zoned RD or more restrictive may provide a rear yard of not less than five feet.
R Zones	Front Yards. Front yard reductions are limited to no more than the average of the front yards, regardless of a required Building Line of adjacent buildings along the same street frontage. Or, if a site is a corner lot or adjacent to a vacant lot, the front yard setback may align with the facade of the adjacent building along the same front lot line. If there are no adjacent buildings, no reduction is permitted. If a project occupies all the lots on an entire street frontage, a reduction to the front yard is permitted so long as it is to the same dimension as a corresponding increase to the rear yard.
	Side and Rear Yards. Up to 30% decrease in the required width or depth of any individual yard or setback.

(ii) **Ground Floor Height.** A project involving the construction of a new building or addition may receive up to a 20% reduction in any Ground Floor Height restrictions contained in an overlay, Specific Plan, Q condition or D condition.

(iii) **Transitional Height.** A project may select the following transitional height requirements in Table 12.22 A.38.(h)(2)(iii)a. below, as illustrated by Figure 12.22 A.38.(h)(2)(iii)b., in lieu of those found in: Section 12.21.1 A.10. of this Code; any applicable transitional height limits in a project site's applicable zoning, Community Plan, Specific Plan, or overlay; any requirements for reduced building heights or setbacks when a project site is adjoining a RW1 or more restrictive zone; the transitional height requirements found in Section 12.21.1 A.10. of this Code or any applicable Specific Plan or overlay for the portion of a project site abutting the OS zone.

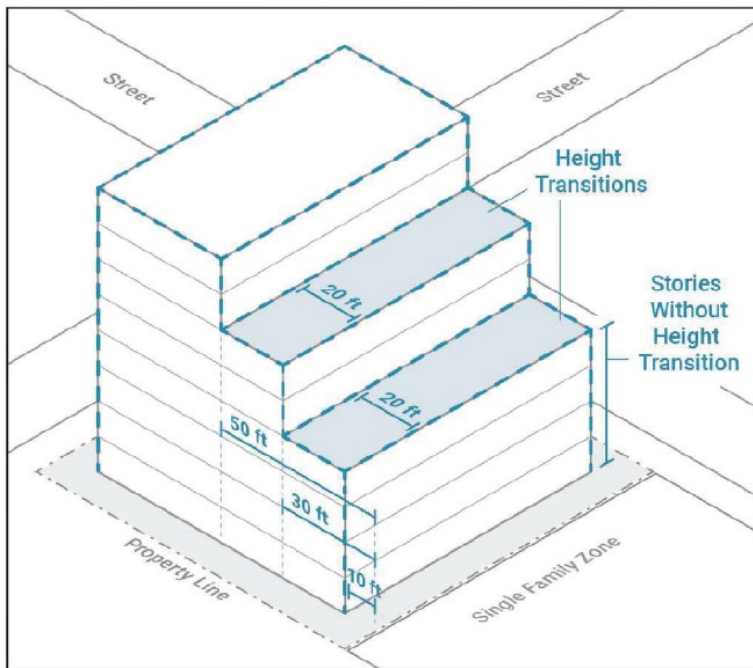
**Table 12.22 A.38.(h)(2)(iii)a.
Allowed Transitional Height Incentives**

	Step Back Distance*
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Side or Rear Setback	10-foot
4 Story Step-Back	30-feet
6 Story Step-Back	50-feet

* Setback and Step-back is measured from the property line.

Figure 12.22 A.38.(h)(2)(iii)b.



(iv) **Building Spacing and Passageways.** A project subject to the provisions set forth in Section 12.21 C.2. of this Code may request a reduction in building spacing and passageway requirements as follows:

- a. Up to a 30% reduction in the space between buildings required pursuant to Section 12.21 C.2. (a) of this Code; and
- b. Up to a 50% reduction in the width of the passageway required pursuant to Section 12.21 C.2. (b) of this Code or the space provided to meet a site's side yard requirement, whichever provides a greater reduction. Passageways provided may extend from any public street adjacent to the project site.

(v) **Lot Coverage.** A project may request up to a 20% increase in lot coverage limits, provided that the landscaping for the project meets a minimum of 30 points under the Landscape and Site Design Ordinance of Section 12.40 of this Code, and the Landscape and Site Design Point System.

(vi) **Lot Width.** A project may request up to a 25% decrease from a lot width requirement, provided that the landscaping for the project meets a minimum of 30 points under the Landscape and Site Design Ordinance of Section 12.40 of this Code, and the Landscape and Site Design Point System.

(vii) **Open Space.** In lieu of the open space calculations set forth in Section 12.21 G.2. of this Code, a project may calculate their usable open space requirement as 15% of the total lot area or 10% of the total floor area confined within the perimeter walls of the provided Residential Units, whichever is greater, provided that the overall design of the project meets a minimum of 30 points under the Landscape and Site Design Ordinance pursuant to Section 12.40 of this Code, and the Landscape and Site Design Point System. Common Open Space shall constitute at least 50% of the usable open space calculated under this incentive and shall be provided as outdoor space and comply with applicable provisions of Section 12.21 G.2.(a) of this Code. Usable open space provided as Private Open Space shall comply with Section 12.21 G.2.(b) of this Code.

(viii) **Density Calculation.** The area of any land required to be dedicated for street or alley purposes may be included as a part of the lot area for purposes of calculating the maximum density permitted by the underlying zone in which the project is located.

(ix) **Averaging of Floor Area Ratio, Density, Parking or Open Space, and Permitting Vehicular Access.** A project that is located on one or more contiguous lots, not separated by a street or alley, may average and permit the floor area, density, open space and residential and commercial parking over the

project site, and permit vehicular use and access between a less restrictive zone and a more restrictive zone, provided that:

a. No further lot line adjustment or any other action that may cause the project site to be subdivided, shall be permitted subsequent to this grant during the life of the proposed project pursuant to a covenant running with the land that is recorded with the Los Angeles County Recorder prior to the issuance of any building permit; and

b. The proposed uses in the project are located on areas of the development site where the proposed uses are permitted by the underlying zone(s) of each lot; and

c. The proposed project is located on one or more contiguous lots that are not separated by a street or alley.

(x) **P Zone.** In lieu of the limitations described in Sections 12.12.1 and 12.12.1.5 of this Code, in a P or PB zone, a project may include the uses and area standards permitted in the least restrictive adjoining zone. For purposes of this P Zone Incentive the phrase “adjoining zone” refers to the zones of properties abutting, across the street or alley from, or having a common corner with, the subject property.

(xi) **Relief from a Development Standard.** A project may request up to 20% relief from a Development Standard contained in Chapter 1 of this Code, an overlay, a Specific Plan, a Community Plan, a Q Condition, or a D Condition. A project requesting this Incentive must provide landscaping for the project that meets a minimum of 30 points under the Landscape and Site Design Ordinance of Section 12.40 of this Code, and the Landscape and Site Design Point System. This Incentive may be requested more than once but shall require the use of an Incentive for each request.

a. **Exception.** This Incentive shall not apply to Development Standards that regulate FAR, height, yards / setbacks, ground story requirements, signs, parking in front of buildings, required trees, pedestrian access, or usable open space. This Incentive shall not apply to a Designated Historic Resource, or Non-Contributor.

(i) **Public Benefit Options.** Per Paragraphs (e)(2) or (f)(2), all Projects that qualify for the Base Incentives contained in this subdivision shall be eligible for one or more of the following Public Benefit Options. A project utilizing the Opportunity Corridor Transition Incentive Area program is not eligible for Public Benefit Options. A project may utilize more than one Public Benefit Option if eligible, and development Incentives granted in exchange for Public Benefits may be stacked. These Public Benefit Options may be combined with the Additional Incentives in Paragraph (h). If a project includes five of the following Public Benefit Options, it shall receive an additional 11 feet in height.

(1) **Child Care Facility.** A project that includes a Child Care Facility located on the premises of, as part of, or adjacent to, the project; and that records a covenant in the project site’s chain of title to the benefit of the City using language to the satisfaction of the City, that requires the Child Care Facility be maintained for at least 55 years; shall be granted either of the following:

(i) An increase in the floor area of the project’s residential unit space equal to the floor area of the Child Care Facility included in the project; or

(ii) An additional Incentive listed on the Menu of Incentives or not listed on the Menu of Incentives, using the procedures of Section 12.22 A.38.(d)(2) of this Code as applicable, that contributes significantly to the economic feasibility of the construction of the Child Care Facility. A project that utilizes this Incentive may request an additional 11 feet in height.

(iii) Notwithstanding the Public Benefit Options available under this Subparagraph (1), pursuant to California Government Code Section 65915(h)(3), a Density Bonus or Incentive for a Child Care Facility shall not be provided if the applicable decision-maker finds, based on substantial evidence, that the community has adequate Child Care Facilities.

(2) **Multi-Bedroom Units.** A project that includes units with three bedrooms or more, and executes a covenant in favor of the City that is recorded in the development site’s chain of title in order to guarantee that the qualifying multi-bedroom units will maintain the same bedroom count and will not be converted to additional residential units in the future, shall be granted one of the following options to requested Floor Area and Height Incentives:

(i) A Housing Development that includes three bedrooms or more in a minimum of 10% of its overall residential units (including units added by a Density Bonus) shall be granted additional Floor Area and/or Height as follows in Table 12.22 A.38.(i)(2)(i)a. in addition to what is available in the applicable FAR and Height incentive as listed for Base Incentives in Table 12.22 A.38.(e)(2)(i) or Table 12.22 A.38.(f)(2)(i); or

Table 12.22 A.38.(i)(2)(i)a.
Additional FAR and Height for Multi-Bedroom Units

Overall Residential Units (including Density Bonus Units)	Additional FAR	Additional Height (Stories)
0 - 30	0.5:1	1
31 - 50	1.0:1	1
51 - 75	1.5:1	2
75+	2.0:1	2

(ii) Any Housing Development that includes residential units with three bedrooms or more shall be granted the following:

a. An exemption of the square footage of all residential units with three or more bedrooms from the floor area calculations so that the specified residential units do not count against the maximum Floor Area allowed on the development site; and/or

b. An additional story of height beyond what is available in the applicable height incentive as listed for Base Incentives in Table 12.22 A.38.(e)(2)(i) or Table 12.22 A.38.(f)(2)(i). The square footage of this additional story shall be limited to the square footage exempted as a result of applying Section 12.22 A.38.(g)(3)(ii)a. of this Code.

(3) **Preservation of Trees.** An additional 11 feet of height may be awarded for a project that maintains existing mature, Significant Trees (any tree that measures 12 inches or more in diameter at 4-1/2 feet above the average natural grade at the base of the tree and/or is more than 35 feet in height), as verified by a focused Tree Report prepared by a certified arborist. A covenant shall be filed in the project site's chain of title to the benefit of the City using language to the satisfaction of the Planning Department that requires the tree to be maintained for at least 15 years unless a certified arborist certifies that the tree is dead, dying, or dangerous to public health.

(4) **Land Donation.** An applicant for a subdivision, parcel map or other residential development approval that donates land for housing to the City satisfying the criteria of California Government Code Section 65915(g), as verified by the Department of City Planning, shall be granted a Density Bonus of 15% as specified in California Government Code Section 65915(g).

(5) **Active Ground Floor Exemption from Calculation of Floor Area.** An active use, up to 1,500 square feet, located on the ground story shall be exempt from the calculation of floor area.

(i) For the purpose of exempting an active use on the ground story from calculating floor area, active space shall be designed and intended for Neighborhood Retail and Service Uses. Areas for circulation, storage, mechanical equipment, parking, lobbies, mailrooms, laundry rooms, utilities, and waste collection shall not account for more than 15% of an area designated as an active use.

(ii) A project utilizing this option shall provide a ground story transparency of a minimum of 60% along the building Frontage.

(iii) A project utilizing this option shall provide a ground floor entrance at minimum every 50 feet along the front property line that provides both ingress and egress pedestrian access to the ground story of the building.

(6) **Privately Owned Public Space.** A project that provides 4% of buildable lot area that is dedicated as Privately Owned Public Space above the project site's required Common Outdoor Open Space, shall be eligible for a zero rear yard setback and shall be eligible to utilize the Additional Incentive titled Relief From a Development Standard, as described in Section 12.22 A.38.(h)(2)(xi) of this Code, in order to deviate from site landscaping requirements.

(7) **Surveyed Historic Resource Facade Rehabilitation.** A project incorporating a Surveyed Historic Resource into the project design shall be granted additional Floor Area up to 1.0 FAR and 22 feet in height beyond what is available and requested as an Incentive from the Base Incentives in Table 12.22 A.38.(e)(2)(i) or Table 12.22 A.38.(f)(2)(i), provided all of the following standards are met:

(i) The project retains all street Frontage facades to a depth of 10 feet, and

(ii) New Floor Area shall be setback behind the 10-foot retention area, except that outdoor open space, balconies, and non-habitable architectural projections may encroach on the 10-foot retention area. In any instance where a lot contains dual-frontages, the setback shall be applied from both Frontages, and

(iii) Rehabilitation of the facade is completed pursuant to the Secretary of the Interior's Standards for

Rehabilitation, as supported by an expert study that has been accepted by the Office of Historic Resources, or demonstrated by the project plans and accepted by the Office of Historic Resources, if consistent with the applicable adopted Implementation Memorandum, Guidelines or Technical Bulletins of the Director of City Planning. This option does not apply if the Office of Historic Resources has determined that the Surveyed Historic Resource is not eligible for listing individually or as a contributor as described in the definition in Section 12.03 of this Code.

(j) **Program Standards.** The following Program Standards shall be applicable to any project that meets the eligibility criteria established in Paragraphs (e), (f), and (g) of this subdivision.

(1) **Eligibility For Other Density Bonus Programs.** A project seeking a Density Bonus or other development incentives pursuant to this subdivision is not eligible for a Density Bonus or other development incentives pursuant to the procedures of any other housing incentive program contained in the Los Angeles Municipal Code, a Community Plan, an overlay, Specific Plan, or any other City regulation or guideline. However, a project may utilize the streamlining procedures and Incentives for Adaptive Reuse Projects (Sec. 12.22 A.26. of this Code) and in the Housing Element Sites Streamlining Program (Sec. 16.70 of this Code), provided that the project meets the requirements for all utilized programs.

(2) **Calculating Maximum Allowable Residential Density.** The Maximum Allowable Residential Density of a project site shall be calculated pursuant to Government Code Section 65915(o)(6), before the application of a Density Bonus, using the maximum number of units allowed under a project site's applicable zoning ordinance, Specific Plan, overlay, or General Plan land use designation, whichever is greater. If a range is permitted, the maximum number of units allowed by the specific zoning range, Specific Plan, or General Plan land use designation shall be applicable when determining a project site's density prior to the application of a Density Bonus. Residential units added using an incentive program contained in a Specific Plan, overlay, or other City program granting development bonuses, shall not count toward a project's Maximum Allowable Residential Density.

(3) **Calculating Restricted Affordable Units.** The required number of Restricted Affordable Units shall be calculated based on a project's Total Units and shall include any unit added by a Density Bonus awarded pursuant to this subdivision.

(4) **Calculating a Density Bonus.** For the purposes of calculating a Density Bonus, the following shall apply:

(i) Residential units that comprise a project shall be on contiguous lots, not separated by a street or alley, that are the subject of a single development application, but do not need to be based on individual subdivision maps or lots.

(ii) An applicant for a project may have the ability to apply a lesser percentage of Density Bonus, including but not limited to, no Density Bonus.

(5) **Fractional Numbers.**

(i) **Units.** For the purposes of this subdivision, calculations for the following resulting in fractional numbers shall be rounded up to the next whole number:

- a. Maximum Allowable Residential Density;
- b. Density Bonus units;
- c. Number of Restricted Affordable Units;
- d. Number of Replacement Housing Units;
- e. Vehicular Parking; and
- f. Number of Multi-Bedroom Units provided pursuant to Section 12.22 A.38.(i)(2) of this Code.

(6) **Multiple Lots.** A building that crosses one or more lots is eligible for the Transit Oriented Incentive Area or Opportunity Corridor Incentive Area that corresponds to the lot with the highest incentive area benefits permitted in Table 12.22 A.38.(e)(1)(iv) or Table 12.22 A.38.(f)(1)(i).

(7) **Update Frequency.** The Director shall have the authority to issue and update eligibility maps on an annual basis in order to align the programs of this Subdivision 38. with updated zoning, transit and geographic data, including updates to Resource Areas as defined and identified by the California Tax Credit Allocation Committee (TCAC), and updates to the locations of Major Transit Stops.

(8) **Updates to Community Plans, Specific Plans, Transit Neighborhood Plans and Overlays.** Community

Plans, Specific Plans, Transit Neighborhood Plans and overlays with sites eligible for project approval through the Mixed Income Incentive Program in this Subdivision 38., shall meet at minimum the Base Incentives and required percentage of Restricted Affordable Units for every lot eligible. If a Community Plan Update, Specific Plan, Transit Neighborhood Plan, or overlay subsequently proposes to exceed the development Incentives or percentages of Restricted Affordable Units set forth in this subdivision, the Community Plan, Specific Plan, Transit Neighborhood Plan, or overlay may supersede the Transit Oriented Incentive Area program. If these provisions are met, these subsequently adopted land use plans shall not be subject to the Update Frequency provisions of Subparagraph (7) of Paragraph (j) above.

(i) **Exception.** If a Community Plan, Specific Plan, Transit Neighborhood Plan, or overlay subsequently assigns a site a zone that does not match the minimum Base Incentives for every lot eligible for the Transit Oriented Incentive Area program, the land use plan shall be required to demonstrate that the zoning action does not result in the net loss of residential capacity.

(9) **Request for a Lower Eligibility Subarea.** Even though a project site may be eligible for a certain Transit Oriented Incentive Area or Opportunity Corridor Incentive Area, an applicant may choose to select a lower Transit Oriented Incentive Area, Opportunity Corridor Incentive Area, or Opportunity Corridor Transition Incentive Area within the applicable Market Tier by providing the percentage of Restricted Affordable Units required for any lower Transit Oriented Incentive Area or Opportunity Corridor Incentive Area and be limited to the Incentives available for the lower Transit Oriented Incentive Area or Opportunity Corridor Incentive Area.

(10) **Replacement Housing Units.** A project approved under this subdivision must meet any applicable housing replacement requirements and demolition protections of California Government Code Section 65915(c)(3) and Section 16.60 of this Code, as verified by the Los Angeles Housing Department (LAHD) prior to the issuance of a building permit. Replacement Housing Units required pursuant to this subparagraph may count towards any Restricted Affordable Unit requirements.

(11) **Standards for Restricted Affordable Units.** A project must meet the applicable requirements regarding the size, location, amenities and allocation of Restricted Affordable Units in Sections 16.61 B. and C. of this Code, and in any Implementation Memorandum, Technical Bulletin or User Guide prepared and adopted by the Los Angeles Housing Department or Department of City Planning. Restricted Affordable Units are subject to a recorded affordability restriction of 55 years, or 99 years pursuant to Section 16.61 A. of this Code as applicable, running from the issuance of the Certificate of Occupancy, recorded in a covenant acceptable to the Los Angeles Housing Department, and subject to fees as set forth in Section 19.14 of this Code.

(12) **Rent Schedules.** Restricted Affordable Units required as part of a project shall be rented at rates that do not exceed those specified in California Health and Safety Code 50052.5 for for-sale units or California Health and Safety Code Section 50053 for rental units. Restricted Affordable Units associated with One Hundred Percent Affordable Housing Projects shall comply with the Restricted Affordable Unit requirements set forth in Section 12.22 A.39.(c) of this Code.

(13) **Implementation Memorandums, FAQs, Forms / Applications and User Guides.** The Director may prepare Implementation Memorandums, FAQs, Forms / Applications and/or User Guides for State Density Bonus requirements, as set forth in California Government Code Sections 65915 - 65918, for the purpose of providing additional information pertaining to this subdivision and maintaining consistency with State Density Bonus Law.

(14) **Covenants.** Prior to the issuance of a building permit for any project qualifying for a Density Bonus pursuant to the provisions of this Subdivision, covenants acceptable to the Los Angeles Housing Department and consistent with the requirements in this subdivision and set forth in Section 16.61 of this Code shall be recorded with the Los Angeles County Recorder.

(15) **Story.** A story for purposes of granting an Incentive or Waiver for additional height through this subsection shall be defined as 11 feet.

(k) **Relationship to Other Laws, Plans, Requirements and Codes.** The following provisions shall govern the relationship of this Subdivision 38. to other laws, plans, requirements and codes for any project that meets the eligibility criteria established in Paragraph (c) of this subdivision.

(1) A project that meets the eligibility criteria established in Paragraph (c) of this subdivision, and complies with the Procedures established in Paragraph (d) of this subdivision, may utilize a multiple family residential dwelling use with a minimum of two-thirds residential floor area even though use limitations may apply to a project site.

(2) If any of the Procedures described in Paragraph (d), Base Incentives described in Paragraphs (e), (f), and (g), Additional Incentives described in Paragraph (h), Public Benefit Options described in Paragraph (i), or Waivers requested pursuant to Section 12.22 A.38.(d)(4) of this Code differ from any otherwise applicable Community Plan, Specific Plan, overlay, supplemental use district, "Q" condition, "D" limitation, or citywide regulation established through Chapter 1 of this Code, including but not limited to the Ordinance Nos. listed

below, this subdivision shall prevail where the project applicant seeks approval through this subdivision.

(i)	Alameda District Specific Plan (171,139)
(ii)	Avenue 57 Transit Oriented District (174,663)
(iii)	Bunker Hill Specific Plan (182,576)
(iv)	Century City North Specific Plan (156,122)
(v)	Century City West Specific Plan (186,370)
(vi)	Century City South Specific Plan (168,862)
(vii)	Coastal Bluffs Specific Plan (170,046)
(viii)	Coliseum District Specific Plan (185,042)
(ix)	Colorado Boulevard Specific Plan (178,098)
(x)	Convention Center and Arena Specific Plan (188,077)
(xi)	Cornfield Arroyo Seco Specific Plan (182,617)
(xii)	Crenshaw Corridor Specific Plan (184,795)
(xiii)	Devonshire / Topanga Corridor Specific Plan (168,937)
(xiv)	District No Ho Specific Plan (188,144)
(xv)	Exposition Corridor Transit Neighborhood Plan (186,402)
(xvi)	Foothill Boulevard Corridor Specific Plan (170,694)
(xvii)	Girard Tract Specific Plan (170,774)
(xviii)	Glencoe / Maxella Specific Plan (171,946)
(xix)	Granada Hills Specific Plan (184,296)
(xx)	Hollywoodland Specific Plan (168,121)
(xxi)	Jordan Downs Urban Village Specific Plan (184,346)
(xxii)	Los Angeles Airport / El Segundo Dunes Specific Plan (167,940)
(xxiii)	Los Angeles International (LAX) Specific Plan (185,164)
(xxiv)	Los Angeles Sports and Entertainment District Specific Plan (181,334)
(xxv)	Loyola Marymount University Specific Plan (181,605)
(xxvi)	Mt. Washington / Glassell Park Specific Plan (168,707)
(xxvii)	Mulholland Scenic Parkway Specific Plan (167,943)
(xxviii)	North Westwood Village Specific Plan (163,202)
(xxix)	Oxford Triangle Specific Plan (170,155)
(xxx)	Pacific Palisades Commercial Village and Neighborhood Specific Plan (184,371)
(xxxi)	Paramount Pictures Specific Plan (184,539)
(xxxii)	Park Mile Specific Plan (162,530)
(xxxiii)	Playa Vista Area B Specific Plan (165,638)
(xxxiv)	Playa Vista Area C Specific Plan (165,639)
(xxxv)	Playa Vista Area D Specific Plan (176,235)
(xxxvi)	Ponte Vista at San Pedro Specific Plan (182,937 and 182,939)
(xxxvii)	Porter Ranch Land Use /Transportation Specific Plan (180,083)
(xxxviii)	Redevelopment Plans (186,325)
(xxxix)	San Gabriel / Verdugo Mountains Scenic Preservation Specific Plan (175,736)
(xl)	San Vicente Scenic Corridor Specific Plan (173,381)
(xli)	University of Southern California University Park Campus Specific Plan (182,343)
(xlii)	Valley Village Specific Plan (168,613)
(xliii)	Venice Coastal Zone Specific Plan (175,693)
(xliv)	Ventura-Cahuenga Boulevard Corridor Specific Plan (174,052)
(xlv)	Vermont / Western Transit Oriented District Specific Plan (Station Neighborhood Area Plan) (173,749)
(xlvi)	Warner Center 2035 Plan (182,766)
(xlvii)	Westwood Community Multi-Family Specific Plan (163,203 and 163,186)
(xlviii)	Westwood Village Specific Plan, Westwood Community Design Review Board Specific Plan (187,644)
(xlix)	Wilshire - Westwood Scenic Corridor Specific Plan (155,044)

(3) Despite Section 11.05 (Effect of Renumbering or Redesignation of Provisions or Sections in Statutes or Codes of the State of California Which are Referenced to in the Los Angeles Municipal Code) of this Code, any

references to State or Federal statutes or regulations in this subdivision shall be to those statutes or regulations as written and in effect on the date the ordinance adding those references is adopted. This general rule is intended to control over a specific rule to the contrary and shall not be subject to the rule of statutory construction that where there is a conflict, a specific statute controls over a general statute. References within this subdivision to requirements of other City or government agencies or chapters of the Los Angeles Municipal Code, as well as other local, state, and federal codes are provided for informational purposes and are not intended to be comprehensive or to provide exemption from any additional applicable regulations from other City or government agencies or sections of the Los Angeles Municipal Code not explicitly referenced in this subdivision.

(l) **Interpretations Consistent with State Density Bonus Law.** This subdivision is intended to be interpreted as consistent with State Density Bonus Law contained in California Government Code Sections 65915 - 65918. If at any time, this subdivision becomes inconsistent with California Government Code Sections 65915 - 65918, as Determined by the Director of Planning the provisions of State Density Bonus Law shall apply.

39. **Affordable Housing Incentive Program. (Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

(a) **Purpose.** The purpose of this subdivision is to establish procedures for implementing State Density Bonus requirements as set forth in California Government Code Sections 65915 - 65918 for affordable housing projects, including Priority Housing Projects, and to increase the production of affordable housing citywide with tailored application for sites on parking (P) zones, public facility (PF) zones, and sites owned by Public Agencies, Faith-Based Organizations and nonprofit Community Land Trusts and Cooperatives. In conjunction with the Incentives granted by state law, this subdivision shall offer Incentives and Waivers for the purposes of increasing the feasibility of affordable housing construction.

(b) **Definitions.** The following definitions shall apply to this subdivision:

Faith-Based Organization Project. A housing project located on land owned entirely, whether directly or through a wholly owned company or corporation, by a Religious Institution at the time of project filing, developed by or in partnership with a Qualified Developer. This includes ownership through an affiliated or associated nonprofit public benefit corporation organized pursuant to the Nonprofit Public Benefit Corporation Law at California Corporations Code, Title 1, Division 2, Part 2, Section 5110 et seq.

General Commercial Uses. A use that involves business activity serving the general public, including retail, professional and personal services, hospitality, and entertainment.

Incentive. As defined in Section 12.03 of this Code.

Moderate Opportunity Areas. Moderate Resource Areas and areas experiencing moderate rates of rapid change as defined and identified by the California Tax Credit Allocation Committee (TCAC).

Public Agency. Refer to California Government Code Section 20056.

Public Land Project. A housing project located in a Public Facility (PF) Zone and/or located on lots owned by a Public Agency.

Qualified Developer. The same meaning as California Government Code Section 65913.16(b)(9)(A) - (C), exclusive of (D). For purposes of this subdivision, a Qualified Developer shall also include a Community Development Financial Institution (CDFI) identified on the United States Department of the Treasury's CDFI Fund list of Certified CDFIs at the time of project filing, provided the CDFI maintains a non-profit status pursuant to Section 501(c)(3) of the United States Internal Revenue Code.

Religious Institution. Refer to California Government Code Section 65913.16(b)(10).

Sea Level Rise Area. As defined in Section 12.03 of this Code.

Shared Equity Project. A housing project located on land owned by a Public Agency, a Community Land Trust as defined in California Revenue and Taxation Code Section 402.1(a)(11)(C)(ii), or a Limited- equity Housing Cooperative or Workforce Housing Cooperative Trust as defined in California Civil Code Section 817, except that residential units, in addition to being sold or rented to income qualified persons, may also be held by the non-profit corporation for the purpose of making Lower Income units (as defined in Sec. 12.03 of this Code) financially stable. The land must be owned by the Public Agency, Community Land Trust, Limited-equity Housing Cooperative or Workforce Housing Cooperative Trust at the time of project filing through the issuance of a Certificate of Occupancy.

Shared Housing Building. As defined in Section 12.22 A.37.(b) of this Code.

Shared Housing Unit. As defined in Section 12.22 A.37.(b) of this Code.

Total Units. The complete number of residential units in a project after a Density Bonus is awarded pursuant to this subdivision.

Very Low Vehicle Travel Area. Refer to California Government Code Section 65915(o)(9).

Waiver. As defined in Section 12.22 A.37.(b) of this Code.

(c) **Eligibility Criteria.** To qualify for the provisions of this subdivision, a project must satisfy the following eligibility requirements:

(1) Satisfy the definition of a One Hundred Percent Affordable Housing Project, Public Land Project, Shared Equity Project, or a Faith-Based Organization Project and have five or more Total Units. A project shall consist of Dwelling Units, except that a One Hundred Percent Affordable Housing Project may also consist of Shared Housing Units in a Shared Housing Building. A One Hundred Percent Affordable Housing Project that contains Shared Housing Units may seek approval through this Subdivision 39., however other projects that contain Shared Housing Units shall seek approval through Section 12.22 A.37. of this Code. For purposes of this Subdivision 39., the terms “residential units” or “units” shall refer to Dwelling Units, but for One Hundred Percent Affordable Housing Projects these terms shall also refer to Shared Housing Units due to the project type.

(2) Reserve a percentage of the project’s Total Units as Restricted Affordable Units as specified in Table 12.22 A.39.(c)(2)(i).

Table 12.22 A.39.(c)(2)(i)
Required Percentage of Restricted Affordable Units

Project Type	Minimum % of Total Units that are Restricted Affordable Units ¹
One Hundred Percent Affordable Housing Project	100% ¹
Public Land Project	80% ²
Faith-Based Organization Project	80% ³
Shared Equity Project	80% ⁴

Footnotes:

1. In a One Hundred Percent Affordable Housing Project per California Government Code Section 65915(b)(1)(G), all units including shared housing units in a shared housing building (including Density Bonus units but excluding a manager’s unit or staff units pursuant to California Government Code Section 65193.16), shall be Restricted Affordable Units for Lower Income households (California Health and Safety Code Section 50079.5), except that up to 20 percent of all units may be for Moderate Income households (California Health and Safety Code Section 50053 and 50093). The affordable rents for at least 20 percent of all units shall be set per California Health and Safety Code Section 50053, and affordable rents for the remaining units shall be set for Lower Income households as determined by the California Tax Credit Allocation Committee. For for-sale units, the affordable housing costs are defined by California Health and Safety Code Section 50052.5.
2. A Public Land Project shall a percentage of residential units (excluding units added by a Density Bonus) as Restricted Affordable Units meeting one of the following income and affordability levels for one of the unit types specified in parentheses: 16 percent Very Low Income (for rent or sale), 25 percent Lower Income (for rent or sale), or 45 percent Moderate Income (for-sale only), as those referenced incomes, rents and housing costs are specified in California Government Code Section 65915. The remaining required Restricted Affordable Units may be set up to the maximum income, affordable rent, and affordable for-sale housing cost, for households earning up to 120 percent of the area median income as determined by the California Tax Credit Allocation Committee, or per California Health and Safety Code Sections 50052.5 and 50053. A project may elect to set these remaining Restricted Affordable Units at a lower income and affordability level. In addition, 20 percent of Total Units (inclusive of Density Bonus units) may be unrestricted.
3. A Faith-Based Organization Project shall provide a percentage of residential units (excluding units added by a Density Bonus) as Restricted Affordable Units meeting one of the following income and affordability levels for one of the unit types specified in parentheses: 16 percent Very Low Income (for rent or sale), 25 percent Lower Income (for rent or sale), or 45 percent Moderate Income (for sale only) as those referenced incomes, rents and housing costs are specified in California Government Code Section 65915. The remaining required Restricted Affordable Units may be set up to the maximum income, affordable rent, and affordable for-sale housing cost for Lower Income households, as determined by the California Tax Credit Allocation Committee or per California Health and Safety Code Sections 50052.5 and 50053; but the exception is that up to 20 percent of the remaining Restricted Affordable Units may be set at an affordable rent or for-sale housing cost to households earning up to 120 percent of the area median income, as determined by the California Tax Credit Allocation Committee or per California Health and Safety Code Sections 50052.5 and 50053. A project may elect to set these remaining required Restricted Affordable Units at a lower income and affordability level. In addition, 20 percent of Total Units may be unrestricted.
4. A Shared Equity Project shall provide a percentage of residential units (excluding units added by a Density Bonus) as Restricted Affordable Units meeting one of the following income and affordability levels for one of the unit types specified in parentheses: 16 percent Very Low Income (for rent or sale), 25 percent Lower Income (for rent or sale), or 45 percent Moderate Income (for-sale only), as those referenced incomes, rents and housing costs are specified in California Government Code Section 65915. The remaining required Restricted Affordable Units may be set up to the maximum income, affordable rent, and affordable for-sale housing cost, for households earning up to 120 percent of the area median income as determined by the California Tax Credit Allocation Committee, or per California Health and Safety Code Sections 50052.5 and 50053. A project may elect to set these remaining Restricted Affordable Units at a lower income and affordability level. In addition, 20 percent of Total Units may be unrestricted.

(3) A One Hundred Percent Affordable Housing Project site shall not include any lots located in a single family or more restrictive residential zone (RW and more restrictive zone) if a project site’s Maximum Allowable Residential Density is less than five units. A Shared Equity Project site shall not include lots located in a single family or more restrictive residential zone (RW and more restrictive).

(4) A Faith-Based Organization Project utilizing land purchased by a Religious Institution after January 1st, 2024, shall not include any lots located in a single family or more restrictive residential zone (RW and more

restrictive) unless the filing Religious Institution owns a lot with an existing Church or House of Worship use located within 528 feet of the project site.

(5) A One Hundred Percent Affordable Project with a Maximum Allowable Residential Density of less than five units, a Faith-Based Organization Project, or a Shared Equity Project, shall not include any lots located in a manufacturing zone that does not allow multiple family residential uses (M1, M2, M3), including sites zoned CM, MR1, and MR2 with no residential uses permitted from an applicable planning overlay.

(6) A One Hundred Percent Affordable Project that has a Maximum Allowable Residential Density of less than five units, a Faith-Based Organization Project, or a Shared Equity Project, shall not include any lots located in a Very High Fire Hazard Severity Zone (VHFHSZ), the Coastal Zone, or a Sea Level Rise Area.

(7) A Faith-Based Organization Project or Shared Equity Project, satisfies both the following where the project is located on a lot with a Surveyed Historic Resource that is classified as a historical resource, as defined by California Public Resources Code Section 21084.1 and determined by the Office of Historic Resources.

(i) If proposed alterations to a Surveyed Historic Resource do not meet the Secretary of the Interior's Standards for Rehabilitation, as supported by an expert study that has been accepted by the Office of Historic Resources, or demonstrated by the project plans and accepted by the Office of Historic Resources, if consistent with the applicable adopted Implementation Memorandum, Guidelines or Technical Bulletins of the Director of the City of Planning, the Discretionary Procedure pursuant to Section 12.22 A.39.(d)(3) of this Code shall be followed; and

(ii) The Faith-Based Organization Project or Shared Equity Project does not require Demolition, as defined in Section 13B.8.1.C of Chapter 1A of this Code, of a Surveyed Historic Resource.

(8) The project does not require the demolition of a Designated Historic Resource, as demolition is defined in Section 13B.8.1.C of Chapter 1A of this Code, and any proposed alteration to a Designated Historic Resource shall not be approved until any required review pursuant to the Los Angeles Municipal Code, or any other state or federal law, is completed.

(9) A Type I Unified Adaptive Reuse Project, as defined in Section 12.22 A.26.(h)(1) of this Code, that meets the definition of a One Hundred Percent Affordable Housing Project, Public Land Project, Faith-Based Organization Project, or a Shared Equity Project, and that complies with the eligibility criteria associated with the corresponding project type, applies both the following:

(i) The portion of the Type I Unified Adaptive Reuse Project consisting of new construction may be eligible for Base Incentives, Additional Incentives, and Public Benefits Options in Section 12.22 A.39. of this Code for the respective project type definition unless otherwise stated; and

(ii) The Type I Unified Adaptive Reuse Project shall comply with the Procedures set forth in Section 12.22 A.39.(d) of this Code based on the corresponding project type definition and associated project request.

(d) **Procedures.** A project that meets the eligibility and other criteria of this subdivision shall be reviewed pursuant to the Procedures set forth below. Though an approval of a Density Bonus or Incentive pursuant to this subdivision shall not, in and of itself, trigger a General Plan Amendment, Zone Change, Project Review or other discretionary review actions required by this Code, the applicable procedures set forth in Section 13A.2.10 (Multiple Approvals) of Chapter 1A of this Code shall apply to projects seeking other discretionary approvals in conjunction with an application pursuant to these procedures in Paragraph (d).

(1) **Los Angeles Department of Building and Safety Review.** A project seeking Base Incentives described in Paragraph (e) and/or Additional Incentives listed on the Menu of Incentives in Paragraph (f) shall be considered ministerial and processed by the Department of Building and Safety.

(i) **Exceptions.**

a. Faith-Based Organization Projects and Shared Equity Projects with a Surveyed Historic Resource shall seek approval pursuant to Subparagraph (2) of Paragraph (d).

(2) **Expanded Administrative Review.** The following projects shall be ministerially approved pursuant to Expanded Administrative Review, as set forth by the provisions of Section 13B.3.2 (Expanded Administrative Review) of Chapter 1A of this Code. As defined in this subdivision, ministerial approval means an administrative process to approve a "use by right" as this term is defined in California Government Code Section 65583.2(i). The following projects use Expanded Administrative Review:

(i) A project that requests the Public Benefit Options. A project that requests only Public Benefit Options in Paragraph (g) and Additional Incentives listed on the Menu of Incentives shall not be subject to

any hearing procedures regardless of the provisions contained in Section 13B.3.2.D of Chapter 1A of this Code.

(ii) A project seeking Additional Incentives not listed on the Menu of Incentives described in Paragraph (f) pursuant to California Government Code Section 65915(d).

(iii) A project that requests only up to one Waiver. The Waiver shall be reviewed pursuant to the Findings described in Section 12.22 A.39.(d)(5) of this Code.

(iv) A Faith-Based Organization Project or Shared Equity Project with a Surveyed Historic Resource.

(v) A project requesting Additional Incentives from the Menu of Incentives that cannot comply with the criteria established in Section 12.22 A.39.(f)(1)(ii) of this Code shall be subject to the Public Hearing procedures described in Section 13B.3.2.D of Chapter 1A of this Code in addition to the general procedures described in Section 13B.3.2 (Expanded Administrative Review) of Chapter 1A of this Code.

(vi) A Public Land Project that received a preceding resolution of support from City Council, and request more than one Waiver. The Waiver shall be reviewed pursuant to the Findings described in Section 12.22 A.39.(d)(5) of this Code.

(3) **Director's Determination.** The Director of Planning shall review the following projects pursuant to Section 13B.2.5 of Chapter 1A of this Code:

(i) A project requesting up to three Waivers. Waivers shall be reviewed pursuant to the Findings described in Section 12.22 A.39.(d)(5) of this Code.

(4) **City Planning Commission Review.** The following projects must file an application pursuant to Section 13B.2.3 of Chapter 1A of this Code. Notwithstanding the provisions set forth in Section 13B.2.3 (Class 3 Conditional Use Permit) of this Code, the decision of the City Planning Commission shall be final and not further appealable.

(i) A project that requests more than three Waivers. Waivers shall be reviewed pursuant to the Findings described in Section 12.22 A.39.(d)(5) of this Code.

(5) **Findings for Waivers.** Any Waivers requested pursuant to the Procedures described in this paragraph shall be approved by the applicable decision-making authority unless that decision-making authority makes one of the following findings:

(i) The Development Standard associated with a request for Waiver will not have the effect of physically precluding the construction of a development meeting the eligibility criteria described in Paragraph (c) at the densities or with the Base Incentives and Additional Incentives permitted under this subdivision.

(ii) The Waiver would have a Specific Adverse Impact, as defined in California Government Code Section 65589.5(d)(2), upon public health and safety and for which there is no feasible method to satisfactorily mitigate or avoid the Specific Adverse Impact. Inconsistency with the zoning ordinance or General Plan land use designation shall not constitute a Specific Adverse Impact upon the public health or safety.

(iii) The Waiver would have an adverse impact on any real property that is listed in the California Register of Historical Resources.

(iv) The Waiver would be contrary to state or federal law.

(6) **Other Discretionary Approvals.** Applicable procedures set forth in Section 13A.2.10 (Multiple Approvals) of Chapter 1A of this Code apply for a project seeking other discretionary approvals in conjunction with an application pursuant to the Procedures in Paragraph (d). Regardless of any other findings that may be applicable, the decision-maker must approve the requested Base Incentives and Additional Incentives, either on or not on the Menu of Incentives described in Section 12.22 A.39.(f)(2) of this Code, requested under this subdivision unless the decision-maker, based upon substantial evidence, makes one or more of the disapproval findings described in Section 12.22 A.39.(f)(1)(i) of this Code.

(7) **Density Bonuses, Incentives or Waivers Exceeding this Subdivision.** A project that seeks additional Density Bonuses, Incentives or Waivers beyond what is expressly allowed by the subdivision, shall be reviewed pursuant to Section 12.22 A.37. of this Code, along with the requirements and findings in Section 12.24 U.26. of this Code, for additional density if applicable.

(8) **Applicability of Procedures, Program Standards and Incentives.** If a public hearing, when required, has

not yet been held for a project, and prior to the operative date of this subdivision a project's entitlement application was filed and associated fees paid, the applicant may elect to apply the Procedures and comply with the Program Standards of this subdivision. Any such project shall be subject to all other applicable provisions in Chapter 1 of this Code, including any Incentive menus or options, that were in effect on the date the application was filed and fees were paid. A project shall only be eligible for the Incentives of this subdivision, including any Incentive menus or options, if on or after the operative date of this subdivision both a new entitlement application is filed and associated fees are paid.

(e) **Base Incentives.** A project that meets the eligibility criteria established in Paragraph (c) may utilize Base Incentives described in this paragraph, in exchange for the required minimum percentage of Restricted Affordable Units established in Paragraph (c) of this subdivision. A project that qualifies for Base Incentives established in Table 12.22 A.39.(e)(1) below shall also be eligible for Public Benefit Options listed in Paragraph (g).

Table 12.22 A.39.(e)(1)

Affordable Housing Incentive Program - Base Incentives

Eligibility Subarea	Density Bonus	Parking	Floor Area Ratio (FAR)	Height
Description	In each Subarea, the maximum increase in the otherwise Maximum Allowable Residential Density shall be as follows:	In each Subarea, the required parking shall be as follows: ^{1, 2}	In each Subarea, the maximum allowable FAR permitted shall be as follows: ³	In each Subarea, the maximum increase in the allowable height permitted shall be equal to the following: ⁴
Citywide	Any Density Bonus provided by California Government Code Section 65915.	0.5 Parking Spaces per Unit. ⁵	Sites with a Maximum Allowable Residential Density of less than 5 units: The maximum FAR shall be equal to 1.5:1. Otherwise, the maximum FAR shall be: 3.0:1, or a 35% increase, whichever is greater.	Sites with a Maximum Allowable Residential Density of less than 5 units: Bonus of up to 11' or 1 story, whichever is greater. Otherwise, a maximum bonus of 22' or 2 stories, whichever is greater.
Lots located within a half mile of a Major Transit Stop or Very Low Vehicle Travel Area ⁶	Limited by Floor Area	No minimum parking required.	Sites with a Maximum Allowable Residential Density of less than 5 units: The maximum FAR shall be equal to 2.0:1. Otherwise, the maximum FAR shall be: 4.5:1, or a 50% increase, whichever is greater.	Sites with a Maximum Allowable Residential Density of less than 5 units: Bonus of up to 11' or 1 story, whichever is greater. Otherwise, a maximum bonus of 33' or 3 stories, whichever is greater.
Higher Opportunity Areas or Moderate Opportunity Areas	Limited by Floor Area	No minimum parking required. Required parking for current or proposed non-residential uses may be reduced by 25%	Sites with a Maximum Allowable Residential Density of less than 5 units: The maximum FAR shall be equal to 2.5:1 Otherwise, the maximum FAR shall be: 4.65:1, or a 55% increase, whichever is greater.	Sites with a Maximum Allowable Residential Density of less than 5 units: Bonus of up to 11' or 1 story, whichever is greater. Otherwise, a maximum bonus of 33' or 3 stories, whichever is greater.

Footnotes:

1. Required automobile parking applies for all residential units in a project (not just the Restricted Affordable Units), inclusive of disabled and required guest parking, where applicable. All parking spaces provided shall comply with LAMC Section 12.21 A.5. Except that any combination of standard, compact or tandem spaces may be provided. Tandem parking spaces that do not comply with LAMC Section 12.21 A.5.(h)(2) may be provided in any configuration as long as a parking attendant or an automated parking system is provided at all times. Consistent with California Government Code Section 65915(p)(4), required parking spaces provided may be uncovered.
2. For consistency with California Government Code Section 65913.6, parking that was previously required under a Conditional Use Permit pursuant to LAMC Section 12.24 for an existing "church" or "house of worship" use, or that would be required as part of a Conditional Use Permit for a proposed "church" or "house of worship" use, shall be reduced by 50%.
3. Provided that any additional floor area provided through this subdivision is utilized only by the new residential units and required amenity areas for the residential

units. Any non-residential uses shall be limited to the FAR associated with a site's underlying zoning prior to the application of any Incentive.

4. The increase in height shall be applicable to a project over the entire project site regardless of the number of underlying height limits. The height increase may be applied to the maximum allowable height in feet or stories permitted by the zone, including for mixed-use projects.
5. No parking shall be required for a project meeting the criteria of California Government Code Section 65915(p)(3). No minimum parking is required for a Faith-Based Organization Project if there is a car share vehicle within one block of the lot.

(2) **Automobile Parking Zone.** In lieu of the limitations described in Sections 12.12.1 and 12.12.1.5 of this Code, in a P or PB zone, a project may utilize the Maximum Allowable Residential Density, uses, and applicable Development Standards permitted in the least restrictive adjoining zone.

(i) **Lots with Dual Zoning.** In cases where a lot contains split zoning with a P or PB Zone, the entire lot may utilize the Maximum Allowable Residential Density, uses, and applicable Development Standards of the least restrictive adjoining zone.

(3) **Public Land Project.** In lieu of the requirements in Sections 12.24 U.21. and 12.04.09 B.9. of this Code, a Public Land Project shall be permitted to utilize a multiple family residential dwelling use; the applicable Incentives identified for projects with a Maximum Allowable Residential Density of five in Table 12.22 A.39.(e) (1); and either:

(i) Utilize Maximum Allowable Residential Density, uses, and applicable Development Standards as permitted in the least restrictive adjoining zone. Regardless of adjacent zoning, all Public Land Projects shall be granted a base Floor Area Ratio of 3.0:1, a base height of three stories or 33 feet whichever is greater; or

(ii) Seek more than one Waiver through an Expanded Administrative Review, as set forth by the provisions of Section 13B.3.2 (Expanded Administrative Review) of Chapter 1A of this Code, where a project has received a preceding resolution of support from City Council.

(4) **Roadway Widening.** A project shall be exempt from any applicable roadway widening requirements, which for the purposes of this Base Incentive shall mean the relocation of an established curb or curb and gutter, pursuant to Section 12.37 of this Code. A project shall further be eligible for relief from some required dedication, where specified by Section 12.37 of this Code. Required dedications and improvements shall conform to the Street Dedication and Improvement Investigation Criteria adopted or amended pursuant to Council File 22-1476. Granting of this Base Incentive for roadway widening shall not require a project to seek approval pursuant to the procedures described in Section 12.37 I. (Waiver and Appeals) of this Code. A project utilizing this Incentive shall still be required to dedicate land and complete all other public right-of-way improvements, including, but not limited to, sidewalk improvements, that may be required. A Waiver of Dedication and Improvement pursuant to Section 12.37 I. (Waivers and Appeals) of this Code shall still be required for projects seeking to be exempt from a required land dedication or required improvement other than roadway widening.

(i) **Exceptions.** A project in a Very High Fire Hazard Severity Zone, Hillside Area, Coastal Zone, or projects subject to procedures in Section 13B.2.3 (Class 3 Conditional Use Permit) of Chapter 1A of this Code shall not be eligible for this Base Incentive.

(5) **Exceptions.**

(i) A One Hundred Percent Affordable Housing Project with five or more units (excluding bonus units) pursuant to section (i) of California Government Code Sections 65915 shall not be eligible for the FAR and Parking Incentives indicated in Table 12.22 A.39.(e)(1) and shall be limited to the Density Bonus, Parking, and Height Incentives for projects meeting the eligibility criteria of California Government Code Section 65915(b)(1)(G), as set forth in California Government Code Section 65915(d), (f) and (p) if any of the following is applicable:

a. The project is located in a Very High Fire Hazard Severity Zone, the Coastal Zone, or a Sea Level Rise Area; or

b. The project is located in a manufacturing zone that does not allow multiple family residential uses (M1, M2, M3) or is located in a hybrid industrial zone (CM, MR1, MR2) with residential use restrictions from an applicable planning overlay.

c. The project is located in a single-family or more restrictive residential zone (RW or more restrictive).

(ii) In a Specific Plan or overlay district that has FAR available through a development bonus or incentive program to provide affordable housing, a project may utilize the bonus FAR of the Specific Plan or overlay district in lieu of the FAR maximum described in Table 12.22 A.39.(e)(1).

(iii) A Faith-Based Organization Project or Shared Equity Project shall be limited to the low density Base Incentives indicated in Table 12.22 A.39.(e)(1) for a site with a Maximum Allowable Residential

Density of less than five units, regardless of the underlying Maximum Allowable Residential Density or zoning of the project site.

a. **Measure ULA Exception.** A Shared Equity Project receiving funding from a program established under Ordinance 187,692 (Measure ULA) shall be eligible for Incentives as determined by the project site's Maximum Allowable Residential Density.

(f) **Additional Incentives.** A project that satisfies the applicable eligibility criteria of this Subdivision 39. shall be granted a number of Additional Incentives pursuant to the provisions described below in addition to the Base Incentives established in Paragraph (e).

(1) A project shall be eligible for up to five Additional Incentives. A project that satisfies the applicable eligibility criteria of this Subdivision 39. may receive up to five Incentives provided a project includes the applicable percentage of Restricted Affordable Units (excluding units added by a Density Bonus) that is necessary to obtain the maximum number of Incentives available to an income category under California Government Code Section 65915, as listed in Table 12.22 A.37.(f)(1)(i). A project may request Incentives listed in the Menu of Incentives in Paragraph (f)(2) or use an Incentive to seek a deviation from a Development Standard elsewhere in the Los Angeles Municipal Code or a project site's applicable zoning ordinance, Community Plan, Specific Plan, or overlay. Refer to Paragraph (d) for the approval Procedure that is consistent with the project's Incentive request.

(i) Incentives requested pursuant to the applicable procedure in Paragraph (d) of this subdivision shall be granted unless any one of the following written findings are made, based upon substantial evidence:

a. The Incentive does not result in identifiable and actual cost reductions, consistent with California Government Code Section 65915(k), to provide for affordable housing costs as defined in California Health and Safety Code Section 50052.5, or for rents for the targeted units to be set as specified in California Government Code Section 65915(c).

b. The Incentive will have a Specific Adverse Impact upon public health and safety or on any real property that is listed in the California Register of Historical Resources and for which there is no feasible method to satisfactorily mitigate or avoid the Specific Adverse Impact without rendering the development unaffordable to low-income and moderate-income households. Inconsistency with the zoning ordinance or General Plan land use designation shall not constitute a Specific Adverse Impact upon the public health or safety.

c. The Incentive would be contrary to state or federal law.

(ii) To be eligible for the Menu of Incentives described in Section 12.22 A.39.(f)(2) of this Code a project shall comply with all of the following:

a. The project shall not be located in a Very High Fire Hazard Severity Zone, Sea Level Rise Area or the Coastal Zone.

b. The project would not require the Demolition, as Demolition is defined in Section 13B.8.1.C of Chapter 1A of this Code, of a Designated Historic Resource, or any Surveyed Historic Resource, eligible or architectural historic resource identified for any historic protection or special consideration or review by an applicable overlay or Specific Plan including sites located in the South Los Angeles Community Plan Implementation Overlay (CPIO) Section 1-6.C.5.b; the Southeast Los Angeles CPIO Section 1-6.C.5.b; the West Adams CPIO Ch.1, Section 6.C.5.b; the San Pedro CPIO Ch.1, Section 7.C.5.b; Westwood Village Specific Plan; Echo Park Community Design Overlay (CDO) District; or the North University Park Specific Plan.

c. The project shall not include any lots located in a manufacturing zone that does not allow multiple family residential uses (M1, M2, M3) or lots located in a hybrid industrial zone (CM, MR1, MR2) with residential use restrictions from an applicable planning overlay, except for Public Land Projects.

(2) **Menu of Incentives.** A project may elect to request any of the following Incentives not to exceed the allowed number of Incentives pursuant to Paragraph (f)(1) above. Each request from the Menu of Incentives shall constitute one Incentive request unless otherwise stated.

(i) **Yards.** A project contained in this subdivision may request a reduction of otherwise required yards as follows in Table 12.22 A.39.(f)(2)(i)a. In C zones, yard reductions from the Table may be requested as one Incentive. Separately in R zones, yard reductions from the Table may also be requested as one Incentive.

Table 12.22 A.39.(f)(2)(i)a.
Affordable Housing Incentive Program - Allowed Yard Incentives

Zone	Yard Incentive
C Zones	Side, Rear and Front Yards. A project may utilize any or all of the yard requirements for the RAS3 zone per Section 12.10.5 of this Code. A project on a commercially zoned site adjacent to a property zoned RD or more restrictive may provide a rear yard of not less than five feet.
R Zones	Front Yards. Front yard reductions are limited to no more than the average of the front yards, regardless of a required Building Line of adjacent buildings along the same street frontage. Or, if a site is a corner lot or adjacent to a vacant lot, the front yard setback may align with the facade of the adjacent building along the same front lot line. If there are no adjacent buildings, no reduction is permitted. If a project occupies all the lots on an entire street frontage, a reduction to the front yard is permitted so long as it is to the same dimension as a corresponding increase to the rear yard.
	Side and Rear Yards. Up to 30% decrease in the required width or depth of any individual yard or setback.

(ii) **Transitional Height.** No otherwise applicable requirement for transitional height including Section 12.21.1 A.10. of this Code, or any applicable transitional height limits in a project site's applicable zoning, Community Plan, Specific Plan, or overlay, including any requirements for reduced building heights when a project site is adjoining a more restrictive zone, shall need to be met.

(iii) **Ground Floor Activation.** Where nonresidential Floor Area is required by a zoning ordinance, Specific Plan, Community Plan Implementation Overlay, Pedestrian Overlay Zone, or other set of Development Standards, including to meet the definition of a Mixed Use Project in Section 13.09 B.3. of this Code, that requirement may be reduced by 50 percent and be satisfied by residential lobbies, community rooms, resident amenities spaces, child care centers, supportive services areas, or common open space or use whose primary purpose is to provide services and assistance to residents of the building or the general public.

(iv) **Ground Floor Height.** A project may request a 30% reduction in any ground floor height requirement.

(v) **Commercial Parking.** A project may request the elimination of any requirement to provide new or maintain existing automobile parking spaces associated with a commercial use that is proposed in conjunction with the project.

(vi) **Building Spacing and Passageways.** A project subject to the provisions set forth in Section 12.21 C.2. of this Code may request a reduction in building spacing and passageway requirements as follows:

a. Up to a 30% reduction in the space between buildings required pursuant to Section 12.21 C.2. (a) of this Code.

b. Up to a 50% reduction in the width of the passageway required pursuant to Section 12.21 C.2. (b) of this Code or the space provided to meet a site's side yard requirement, whichever provides a greater reduction. Passageways provided may extend from any public street adjacent to the project site.

(vii) **Lot Coverage.** Up to a 20% increase in lot coverage limits, provided that the landscaping for the project meets a minimum of 30 points under the Landscape and Site Design Ordinance of Section 12.40 of this Code, and the Landscape and Site Design Point System.

(viii) **Lot Width.** Up to a 25% decrease from a lot width requirement, provided that the landscaping for the project meets a minimum of 30 points under the Landscape and Site Design Ordinance of Section 12.40 of this Code, and the Landscape and Site Design Point System.

(ix) **Open Space.** In lieu of the open space calculations set forth in Section 12.21 G.2. of this Code, a project requesting this Incentive may calculate its usable open space requirement as 15% of the total lot area or 10% of the total floor area confined within the perimeter walls of the provided residential units, whichever is greater, provided that the overall design of the project meets a minimum of 30 points under the Landscape and Site Design Ordinance of Section 12.40 of this Code, and the Landscape and Site Design Point System. Common Open Space shall constitute at least 50% of the usable open space calculated under this incentive and shall be provided as outdoor space and comply with applicable provisions of Section 12.21 G.2.(a) of this Code. Usable open space provided as Private Open Space shall comply with Section 12.21 G.2.(b) of this Code.

(x) **Density Calculation.** The area of any land required to be dedicated for street or alley purposes may

be included as a part of the lot area for purposes of calculating the maximum density permitted by the underlying zone in which the project is located.

(xi) **Averaging of Floor Area Ratio, Density, Parking or Open Space, and Permitting Vehicular Access.** A project that is located on two or more contiguous lots, not separated by a street or alley, may average and permit the floor area, density, open space, and residential and commercial parking over the project site, and permit vehicular use and access between a less restrictive zone and a more restrictive zone, provided that:

- a. No further lot line adjustment or any other action that may cause the project to be subdivided, shall be permitted subsequent to this grant during the life of the proposed project pursuant to a covenant running with the land that is recorded with the Los Angeles County Recorder prior to the issuance of any building permit; and
- b. The proposed uses in the project are located on areas of the development site where the proposed uses are permitted by the underlying zone(s) of each lot; and
- c. The proposed project is located on one or more contiguous lots that are not separated by a street or alley.

(xii) **Relief from a Development Standard.** A project may request up to 20% relief from a Development Standard contained in Chapter 1 of this Code, an overlay, a Specific Plan, a Community Plan, a Q Condition, or a D Condition. A project requesting this Incentive must provide landscaping for the projects that meets a minimum of 30 points under the Landscape and Site Design Ordinance of Section 12.40 of this Code, and the Landscape and Site Design Point System. This Incentive may be requested more than once, but shall require the use of an Incentive for each request.

- a. **Exception.** This Incentive shall not apply to Development Standards that regulate FAR, height, yards / setbacks, signs, parking in front of buildings, required trees, pedestrian access, or usable open space. This Incentive shall not apply to a Designated Historic Resource, or a Non-Contributor.

(xiii) **Lot Requirements.** A Faith-Based Organization Project or a Shared Equity Project on a site with a Maximum Allowable Residential Density of less than five units is eligible for a reduction of otherwise required Lot standards, as part of a subdivision as follows:

- a. Minimum Lot Area: 600 square feet
- b. Minimum Lot Width: 15 feet
- c. Minimum Lot Access: A 3-foot pedestrian access easement may be provided in lieu of vehicular access requirements.

(xiv) **Yards.** A Faith-Based Project or a Shared Equity Project on a site with a Maximum Allowable Residential Density of less than 5 units is eligible for the reduction of otherwise required Yard standards as follows:

- a. Front yard reductions are limited to no more than the average of the front yards, regardless of a required Building Line, of adjacent buildings along the same street frontage. Or, if a site is located on a corner lot or adjacent to a vacant lot, the front yard setback may align with the facade of the adjacent building along the same front lot line. If there are no adjacent buildings, no reduction is permitted. If a project occupies all the lots on an entire street frontage, a reduction to the front yard is permitted so long as it is to the same dimension as a corresponding increase to the rear yard.
- b. A side yard setback of 4 feet for a three-story structure, or side yard setback of 3 feet for a two-story structure.
- c. No interior side yard setback shall be required for buildings that are part of the same development.
- d. Rear yard setbacks of 4 feet, provided structures maintain a height of less than 26 feet within 15 feet of the rear property line.
- e. Alley setbacks of zero feet for structures that maintain a height of less than 26 feet in height for at least the first 15 feet from the alley.

(xv) **Building Spacing and Passageways.** A Faith-Based Organization Project or Shared Equity Project

on a site with a Maximum Allowable Residential Density of less than five units does not need to meet zoning requirements related to building spacing or passageways pursuant to Section 12.21 C.2. of this Code.

(g) **Public Benefits Options.** A project that qualifies for the Base Incentives contained in this Subdivision 39. shall be eligible for one or more of the following Public Benefit Options. A project may utilize more than one Public Benefit Option if eligible, and bonuses granted in exchange for Public Benefits may be stacked. These Public Benefit Options may be combined with the Additional Incentives granted pursuant to Paragraph (f). If a project includes 5 of the following Public Benefit Options, they shall receive an additional 11 feet in height. A Faith-Based Organization Project, or a project located in Very High Fire Hazard Severity Zones, Coastal Zones or Sea Level Rise Areas, shall only be eligible for Public Benefit Options listed in Sections 12.22 A.39.(g)(1) and 12.22 A.39.(g)(4) of this Code.

(1) **Child Care Facility.** A project that includes a Child Care Facility located on the premises of, as part of, or adjacent to, the project; and that records a covenant in the project site's chain of title to the benefit of the City using language to the satisfaction of the City, that requires the Child Care Facility be maintained for at least 55 years, shall be granted either of the following:

(i) An increase in the Floor Area of the project's residential unit space equal to the Floor Area of the Child Care Facility included in the project; or

(ii) An additional Incentive listed on the Menu of Incentives or not listed on the Menu of Incentives, using the procedures of Section 12.22 A.39.(d)(1) or (d)(2) of this Code as applicable, that contributes significantly to the economic feasibility of the construction of the Child Care Facility. A project that utilizes this Incentive may request an additional 11 feet in height.

(iii) Notwithstanding the Public Benefit Options available under this Subparagraph (1), pursuant to California Government Code Section 65915(h)(3), a Density Bonus or Incentive for a Child Care Facility shall not be provided if the applicable decision-maker finds, based on substantial evidence, that the community has adequate Child Care Facilities.

(2) **Multi-Bedroom Units.** A Housing Development that includes units with three bedrooms or more, and executes a covenant in favor of the City that is recorded in the development site's chain of title in order to guarantee the qualifying multi-bedroom units will maintain the same bedroom count and will not be converted to additional residential units in the future, shall be granted one of the following options to requested Floor Area and Height incentives:

(i) A Housing Development that includes three bedrooms or more in a minimum of 10% of its overall residential units (including units added by a Density Bonus), shall be granted additional Floor Area and Height in addition to what is available through the Base Incentives in Section 12.22 A.39.(e) of this Code as follows in Table 12.22 A.39.(g)(2)(i)a.; or

**Table 12.22 A.39.(g)(2)(i)a.
Additional FAR and Height for Multi-Bedroom Units**

Overall Residential Units (including Density Bonus Units)	Additional FAR	Additional Height (Stories)
0 - 30	0.5:1	1
31 - 50	1.0:1	1
51 - 75	1.5:1	2
75+	2.0:1	2

(ii) Any Housing Development that includes residential units with three bedrooms or more shall be granted the following:

a. An exemption of the square footage of all residential units with three or more bedrooms from the floor area calculations, so that the specified bedrooms do not count against the allowed floor area of the site; and/or

b. An additional story of height beyond what is available in the applicable height Incentive as listed for Base Incentives in Paragraph (e). The square footage of this additional story shall be limited to the square footage exempted as a result of applying Section 12.22 A.39.(g)(2)(ii)a. of this Code.

(3) **Preservation of Trees.** Additional 11 feet of height may be awarded for projects that maintain existing mature, Significant Trees (any tree that measures 12 inches or more in diameter at four and one-half feet above the

average natural grade at the base of the tree and/or is more than 35 feet in height), as verified by a focused Tree Report prepared by a certified arborist. A covenant shall be filed in the project site's chain of title to the benefit of the City using language to the satisfaction of the City that requires the tree to be maintained for at least 15 years unless a certified arborist certifies that the tree is dead, dying or dangerous to public health.

(4) **Land Donation.** An applicant for a subdivision, parcel map or other residential development approval that donates land for housing to the City satisfying the criteria of California Government Code Section 65915(g), as verified by the Department of City Planning, shall be granted a Density Bonus of 15% as specified in California Government Code Section 65915(g).

(5) **Active Ground Floor Exemption from Calculation of Floor Area.** Active uses, up to 1,500 square feet, located on the ground story shall be exempt from the calculation of floor area.

(i) For the purposes of exempting active uses on the ground story from calculating floor area, active space shall be designed and intended for Neighborhood Retail and Service Uses. Areas for circulation, storage, mechanical equipment, parking, lobbies, mailrooms, laundry rooms, utilities, and waste collection shall not account for more than 15% of an area designated as an active use.

(ii) Projects utilizing this option shall provide a ground story transparency of a minimum of 60% along the building Frontage.

(iii) Projects utilizing this option shall provide a ground floor entrance at minimum every 50 feet along the front property line that provides both ingress and egress pedestrian access to the ground story of the building.

(6) **Privately Owned Public Space.** A project that provides 4% of buildable lot area that is dedicated as Privately Owned Public Space above the project site's required Common Outdoor Open Space, shall be eligible for a zero rear yard setback and shall be eligible to utilize the Additional Incentive titled Relief From a Development Standard as described in Section 12.22 A.39.(f)(2)(xii) of this Code in order to deviate from site landscaping requirements.

(7) **Surveyed Historic Resource Facade Rehabilitation.** A project incorporating a Surveyed Historic Resource into the project design shall be granted additional Floor Area up to 1.0 FAR and 22 feet in height beyond what is available and requested as an Incentive from the Base Incentives in Table 12.22 A.39.(e)(1), provided all of the following standards are met:

(i) The project retains all street Frontage facades to a depth of 10-feet,

(ii) New Floor Area shall be setback behind the 10-foot retention area, except that outdoor open space, balconies, and non-habitable architectural projections may encroach on the 10-foot retention area. In instances where a lot contains dual-frontages, the setback shall be applied from both Frontages, and

(iii) Rehabilitation of the facades is completed pursuant to the Secretary of the Interior's Standards for Rehabilitation, as supported by an expert study that has been accepted by the Office of Historic Resources, or demonstrated by the project plans and accepted by the Office of Historic Resources, if consistent with the applicable adopted Implementation Memorandum, Guidelines or Technical Bulletins of the Director of City Planning. This option does not apply if the Office of Historic Resources has determined that the Surveyed Historic Resource is not eligible for listing individually or as a contributor as described in the definition in Section 12.03 of this Code.

(h) **Program Standards.** The following program standards shall be applicable to any project that meets the eligibility criteria established in Paragraph (c) of this subdivision.

(1) **Eligibility For Other Density Bonus Programs.** A project seeking a Density Bonus or other development incentives pursuant to this subdivision are not eligible for a Density Bonus or other development incentives pursuant to the procedures of any other housing incentive program contained in the Los Angeles Municipal Code, a Community Plan, an overlay, Specific Plan, or any other City regulation or guideline. However, a project may utilize the streamlining procedures and Incentives for Adaptive Reuse Projects (Sec. 12.22 A.26. of this Code) and in the Housing Element Sites Streamlining Program (Section 16.70 of this Code), provided that the project meets the requirements for all utilized programs.

(2) **Calculating Maximum Allowable Residential Density.** The Maximum Allowable Residential Density of a project site shall be calculated pursuant to California Government Code Section 65915(o)(6), before the application of a Density Bonus, using the maximum number of units allowed under a project site's applicable zoning ordinance, Specific Plan, or General Plan land use designation, whichever is greater. If a range is permitted, the maximum number of units allowed by the specific zoning range, Specific Plan, or General Plan land use designation shall be applicable when determining a project site's density prior to the application of a Density Bonus. Residential units added using an incentive program contained in a Specific Plan, overlay, or other City

program granting development bonuses, shall not count toward a project's Maximum Allowable Residential Density. A project in a P or PB zone shall calculate Maximum Allowable Residential Density using additional provisions pursuant to Section 12.22 A.39.(e)(2) of this Code, and a Public Land Project shall calculate Maximum Allowable Residential Density using additional provisions pursuant to Section 12.22 A.39.(e)(3) of this Code.

(3) **Calculating Restricted Affordable Units.** The required number of Restricted Affordable Units shall be calculated based on the Total Units of a project (including bonus units), or provided residential units excluding bonus units, as specified in this subdivision.

(4) **Calculating a Density Bonus.** For the purposes of calculating a Density Bonus, the following shall apply:

(i) Residential units that comprise a project shall be on contiguous lots, not separated by a street or alley, that are the subject of a single development application, but do not need to be based on individual subdivision maps or lots.

(ii) An applicant for a project has the ability to apply a lesser percentage of Density Bonus, including but not limited to, no Density Bonus.

(5) **Fractional Numbers.**

(i) **Units.** For the purposes of this subdivision, calculations for the following resulting in fractional numbers shall be rounded up to the next whole number:

- a. Maximum Allowable Residential Density;
- b. Density Bonus Units;
- c. Number of Restricted Affordable Units;
- d. Number of Replacement Housing Units;
- e. Vehicular Parking; and
- f. Number of Multi-Bedroom Units provided pursuant to Section 12.22 A.39.(g)(2) of this Code.

(6) **Replacement Housing Units and Demolition Protections.** A project approved under this subdivision must meet any applicable housing replacement requirements and demolition protections of California Government Code Section 65915(c)(3) and Section 16.60 of this Code, as verified by the Los Angeles Housing Department (LAHD) prior to the issuance of a building permit. Replacement Housing Units required pursuant to this subdivision may count towards any Restricted Affordable Unit requirements.

(7) **Standards for Restricted Affordable Units.** A Project must meet the applicable requirements regarding the size, location, amenities and allocation of Restricted Affordable Units in Section 16.61 B. and C. of this Code, and in any Implementation Memorandum, Technical Bulletin or User Guide prepared and adopted by the Los Angeles Housing Department or Department of City Planning. Restricted Affordable Units are subject to a recorded affordability restriction of 55 years, or 99 years pursuant to Section 16.61 A. of this Code as applicable, running from the issuance of the Certificate of Occupancy, recorded in a covenant acceptable to the Los Angeles Housing Department, and subject to fees as set forth in Section 19.14 of the Los Angeles Municipal Code.

(8) **Implementation Memorandums, FAQs, Forms / Applications and User Guides.** The Director may prepare Implementation Memorandums, FAQs, Forms / Applications and/or User Guides for State Density Bonus requirements, as set forth in California Government Code Sections 65915 - 65918, for the purpose of providing additional information pertaining to this subdivision and maintaining consistency with State Density Bonus Law.

(9) **Covenants.** Prior to the issuance of a building permit for any project qualifying for a Density Bonus pursuant to the provisions of this subdivision, covenants acceptable to the Los Angeles Housing Department and consistent with the requirements in this subdivision and set forth in Section 16.61 of this Code shall be recorded with the Los Angeles County Recorder. For Shared Equity Projects covenants shall restrict the resale of the property to a Public Agency, Community Land Trusts as defined in the California Revenue and Taxation Code Section 402.1(a)(11)(C)(ii), Limited Equity Housing Cooperatives, or Workforce Housing Cooperative Trusts as defined in California Civil Code Section 817, or nonprofit affordable housing corporations pursuant to United States Internal Revenue Code Section 501(c)(3).

(10) **Interpretation Consistent with State Density Bonus Law.** This subdivision is intended to be interpreted as consistent with State Density Bonus Law contained in California Government Code Sections 65915 - 65918. If at any time, this subdivision becomes inconsistent with California Government Code Sections 65915 - 65918, as determined by the Director of Planning, the provisions of State Density Bonus Law shall apply.

(11) **Update Frequency.** The Director shall have the authority to issue and update eligibility maps on an annual basis in order to align the programs of this Subdivision 39. with updated zoning, transit, and geographic data updates, including updates to Resource Areas as defined and identified by the California Tax Credit Allocation Committee (TCAC), and updates to the locations of Very Low Vehicle Travel Areas and Major Transit Stops.

(12) **Adjoining Zone.** Refers to the zones of properties abutting, across the street or alley from, or having a common corner with, the subject project site for purposes of this Subdivision 39.

(13) **Income Limits, For-sale Costs, and Rent Schedules.** Restricted Affordable Units required as part of a One Hundred Percent Affordable Housing Project, Public Land Project, Faith-Based Organization Project, or Shared Equity Project shall meet the income limit, for-sale cost and rent schedule requirements specified for these projects in footnotes (1) (2) (3) and (4) of Table 12.22 A.39.(c)(2)(i).

(14) **Story.** A story for purposes of granting an Incentive or Waiver for additional height through this subsection shall be defined as 11 feet.

(i) **Relationship to Other Laws, Plans, Requirements and Codes.** The following provisions shall govern the relationship of this Subdivision 39. to other laws, plans, requirements and codes for any project that meets the eligibility criteria established in Paragraph (c) of this subdivision.

(1) A project that meets the eligibility criteria established in Paragraph (c) of this subdivision, and complies with the Procedures established in Paragraph (d) of this subdivision, may utilize a multiple family residential dwelling use with a minimum of two-thirds residential floor area even though use limitations may apply to a project site.

(2) If any of the Procedures described in Paragraph (d), Base Incentives described in Paragraph (e), Additional Incentives described in Paragraph (f), Public Benefit Options described in Paragraph (g), or Waivers requested pursuant to Sections 12.22 A.39.(d)(2) or 12.22 A.39.(d)(4) of this Code, differ from any otherwise applicable Community Plan, Specific Plan, overlay, supplemental use district, “Q” condition, “D” limitation, or citywide regulation established through Chapter 1 of this Code, including but not limited to the Ordinance Nos. listed below, this subdivision shall prevail where the project applicant seeks approval through this subdivision.

(i)	Alameda District Specific Plan (171,139)
(ii)	Avenue 57 Transit Oriented District (174,663)
(iii)	Bunker Hill Specific Plan (182,576)
(iv)	Century City North Specific Plan (156,122)
(v)	Century City West Specific Plan (186,370)
(vi)	Century City South Specific Plan (168,862)
(vii)	Coastal Bluffs Specific Plan (170,046)
(viii)	Coliseum District Specific Plan (185,042)
(ix)	Colorado Boulevard Specific Plan (178,098)
(x)	Convention Center and Arena Specific Plan (188,077)
(xi)	Cornfield Arroyo Seco Specific Plan (182,617)
(xii)	Crenshaw Corridor Specific Plan (184,795)
(xiii)	Devonshire / Topanga Corridor Specific Plan (168,937)
(xiv)	District No Ho Specific Plan (188,144)
(xv)	Exposition Corridor Transit Neighborhood Plan (186,402)
(xvi)	Foothill Boulevard Corridor Specific Plan (170,694)
(xvii)	Girard Tract Specific Plan (170,774)
(xviii)	Glencoe / Maxella Specific Plan (171,946)
(xix)	Granada Hills Specific Plan (184,296)
(xx)	Hollywoodland Specific Plan (168,121)
(xxi)	Jordan Downs Urban Village Specific Plan (184,346)
(xxii)	Los Angeles Airport / El Segundo Dunes Specific Plan (167,940)
(xxiii)	Los Angeles International (LAX) Specific Plan (185,164)
(xxiv)	Los Angeles Sports and Entertainment District Specific Plan (181,334)
(xxv)	Loyola Marymount University Specific Plan (181,605)
(xxvi)	Mt. Washington / Glassell Park Specific Plan (168,707)
(xxvii)	Mulholland Scenic Parkway Specific Plan (167,943)

(xxviii)	North Westwood Village Specific Plan (163,202)
(xxix)	Oxford Triangle Specific Plan (170,155)
(xxx)	Pacific Palisades Commercial Village and Neighborhood Specific Plan (184,371)
(xxxi)	Paramount Pictures Specific Plan (184,539)
(xxxii)	Park Mile Specific Plan (162,530)
(xxxiii)	Playa Vista Area B Specific Plan (165,638)
(xxxiv)	Playa Vista Area C Specific Plan (165,639)
(xxxv)	Playa Vista Area D Specific Plan (176,235)
(xxxvi)	Ponte Vista at San Pedro Specific Plan (182,937 and 182,939)
(xxxvii)	Porter Ranch Land Use / Transportation Specific Plan (180,083)
(xxxviii)	Redevelopment Plans (186,325)
(xxxix)	San Gabriel / Verdugo Mountains Scenic Preservation Specific Plan (175,736)
(xl)	San Vicente Scenic Corridor Specific Plan (173,381)
(xli)	University of Southern California University Park Campus Specific Plan (182,343)
(xlii)	Valley Village Specific Plan (168,613)
(xliii)	Venice Coastal Zone Specific Plan (175,693)
(xliv)	Ventura-Cahuenga Boulevard Corridor Specific Plan (174,052)
(xlv)	Vermont / Western Transit Oriented District Specific Plan (Station Neighborhood Area Plan) (173,749)
(xlvi)	Warner Center 2035 Plan (182,766)
(xlvii)	Westwood Community Multi-Family Specific Plan (163,203 and 163,186)
(xlviii)	Westwood Village Specific Plan, Westwood Community Design Review Board Specific Plan (187,644)
(xlix)	Wilshire - Westwood Scenic Corridor Specific Plan (155,044)

(3) Despite Section 11.05 (Effect of Renumbering or Redesignation of Provisions or Sections in Statutes or Codes of the State of California Which are Referenced to in the Los Angeles Municipal Code) of this Code, any references to State or Federal statutes or regulations in this subdivision shall be to those statutes or regulations as written and in effect on the date the ordinance adding those references is adopted. This general rule is intended to control over a specific rule to the contrary and shall not be subject to the rule of statutory construction that where there is a conflict, a specific statute controls over a general statute. References within this subdivision to requirements of other City or government agencies or Chapters of the Los Angeles Municipal Code, as well as other local, state, and federal codes are provided for informational purposes and are not intended to be comprehensive or to provide exemption from any additional applicable regulations from other City or government agencies or sections of the Los Angeles Municipal Code not explicitly referenced in this subdivision.

B. (None)

C. AREA.

1. **Building Lines** – Where a Building Line or Setback Line has been established by ordinance, the space between such Building or Setback Line and the front or side lot line may be used as the front or side yard, as the case may be, in lieu of the front or side yard required by this article.

2. **Side Yard Waived for First Story Garage** – Where a residential building is more than two stories or 28 feet in height and the first story is designed and used solely for automobile parking or other accessory purpose, the required side yard need not be increased in width for said first story; provided that the floor surface above such story is not more than seven feet above the adjacent ground elevation at any point, except that the floor surface may be eight feet above the adjacent ground elevation at the exits and entrances to the automobile parking area. **(Added by Ord. No. 109,714, Eff. 8/26/57.)**

3. **Incentives to Produce Housing in the Greater Downtown Housing Incentive Area. (Amended by Ord. No. 179,076, Eff. 9/23/07.)** Notwithstanding any other provision of this chapter to the contrary, for lots in the R4, RAS4, R5, CR, C2, C4, and C5 zones in the Greater Downtown Housing Incentive Area, the following shall apply:

(a) No yard requirements shall apply except as required by the Downtown Design Guide as approved by the City Planning Commission. The Director of Planning or the Director's designee shall stamp and sign the plans showing the required yards. The applicant shall submit the stamped and signed plans to the Department of Building and Safety along with the plans submitted for a building permit. **(Amended by Ord. No. 186,325, Eff. 11/11/19.)**

(b) For the purpose of calculating the buildable area for residential (including Apartment Hotel or mixed-use) buildings, the buildable area shall be the same as the lot area.

(c) The maximum number of dwelling units or guest rooms permitted shall not be limited by the lot area provisions of

this chapter so long as the total floor area utilized by guest rooms does not exceed the total floor area utilized by dwelling units.

(d) Notwithstanding the provisions of Section 12.21 G.2. of this Code to the contrary, there shall be no prescribed percentage of the required open space that must be provided as either common open space or private open space.

4. **(Repealed by Ord. No. 181,076, Eff. 3/28/10.)**

5. **(Repealed by Ord. No. 181,076, Eff. 3/28/10.)**

6. **Front Yard – Sloping Lot** – Where the elevation of the ground at a point fifty (50) feet from the front lot line of a lot and midway between the side lot lines differs ten (10) feet or more from the curb level, the front yard need not exceed fifty (50) percent of that required in the zone.

7. **(None)**

8. **Front Yard – Unit Development** – Where all the lots in a frontage in an “R” Zone are developed as a unit with one-family dwellings, the required front yard may be reduced by not more than five feet on part of the lots, provided the average of the front yard depth for the entire frontage is not less than the minimum front yard required in the zone in which the property is located.

9. **Side Yards Reduced** – Where all the lots in a frontage are developed as a unit with residential buildings, the required side yard may be reduced on one side of each lot, provided that:

(a) The total combined width of the side yards on each lot is not less than the sum of the widths of the side yards required in the zone in which the property is located; and

(b) The buildings are so located that the narrow side yard on one lot adjoins the wide side yard on the adjoining lot; and

(c) No side yard is less than three feet in width for buildings two stories or less in height, nor less than three feet in width, plus the increased width for additional stories above two stories where required by the area regulations of the zone in which the property is located. **(Amended by Ord. No. 138,685, Eff. 7/10/69.)**

Where lots comprising 50% or more of a frontage are developed with buildings having varying side yards conforming to the above regulations, or where all the lots in a frontage have deed restrictions requiring such varying side yards, all the lots in such frontage may be developed in the same manner.

10. **Rear Yard – Includes One-Half Alley.** Except in the RS, R1, RU, RZ, RMP, and R2 Zones, in computing the depth of a rear yard where the rear yard opens onto an alley or in the RW Zone onto a court of not more than 30 feet in width, one-half the width of the alley or court may be assumed to be a portion of the required rear yard. **(Amended by Ord. No. 177,103, Eff. 12/18/05.)**

11. **Rear Yard – Includes Loading Space** – Loading space provided in accordance with this article may occupy a required rear yard or portion thereof but in no case shall any portion of a street or alley be counted as part of the required loading space.

12. **Accessory Buildings in Yards.** Accessory buildings may be located in a required yard in conformance with the provisions of Section 12.21 C.5. **(Amended by Ord. No. 125,278, Eff. 9/16/63.)**

13. **Lots Affected by Acquisitions for Public Use. (Amended by Ord. No. 144,536, Eff. 5/3/73.)** Where a building or structure is located upon a lot portion of which is acquired for any public use, (by condemnation, purchase, dedication, or otherwise) by any governmental entity, or if all or a part of a separate off-street automobile parking area serving such building or structure is acquired for public use, such building or structure may be maintained, and may thereafter be used, maintained or repaired without relocating or altering the same to comply with the area regulations or off-street automobile parking requirements of this article. Further, if such building or structure is partially located upon the area being acquired for public use, it may be relocated upon the same lot or premises or remodeled or reconstructed without observing the required yard space adjacent to the new lot line created by such acquisition, and without reducing the number of dwelling units to conform to the area regulations of the zone in which it is located and without observing the off-street automobile parking requirements of this article. The exemptions provided in this paragraph permit compliance only to the extent that such non-compliance is caused by an acquisition for public use.

If only a portion of an existing building or structure is acquired for public use, the repair, remodeling or reconstruction of the remainder of said building or structure which was made necessary by said acquisition, shall conform to the provisions of the building code. Any portion of the building or structure which is not required to be repaired, remodeled or reconstructed by reason of said acquisition shall not be required to be made to conform to the provisions of the building code, unless it would otherwise be required to conform thereto independently of and in the absence of said acquisition of only a portion of the building or structure.

If a lot resulting from the acquisition of all or a portion of a parcel for public use does not comply with the area requirements of the zone in which it is located, or if a legally existing nonconforming lot is further reduced in size because of such acquisition,

said lot may be utilized and a building permit shall be issued for any purpose permitted in the zone, so long as the lot is not smaller in size or width than one-half (1/2) of the minimum area or width required for the zone. **(Amended by Ord. No. 150,362, Eff. 1/13/78.)**

14. **(None)**

15. **(None)**

16. **Lot Area – Includes One-Half Alley.** In computing the number of dwelling units allowed by the minimum lot area per dwelling unit requirements of this article on a lot abutting upon one or more alleys, one-half the width of such alley or alleys may be assumed to be a portion of the lot. **(Added by Ord. No. 121,925, Eff. 6/4/62.)**

17. **Lot Area Acreage – Includes One-Half Street.** In computing the lot area of a lot in the A1 and A2 Zones, that portion of the width of all abutting streets or highways, which would normally revert to the lot if the street were vacated, may be assumed to be a portion of the lot. **(Amended By Ord. No. 133,218, Eff. 11/19/66.)**

18. **Lot Area in Hillside Subdivisions** – On land located within an RA or RE Zone and also within the “H” Hillside or mountainous area, there may be lots having less than the minimum lot area specified within said zones and there may be a single-family dwelling on each lot if the lot is shown with a separate letter or lot number on a recorded Subdivision Tract Map or Parcel Map. **(Amended By Ord. No. 139,736, Eff. 1/31/70.)**

19. **Through Lot – May Be Two Building Site** – Where a through lot has a depth of 150 feet or more, each half of the lot may be improved as though it is a separate lot, with the rear line of each approximately equidistant from the front lot lines. The location of all buildings and the number of dwelling units therein shall comply with the requirements of the zone in which the through lot is located, except that in any case there may be at least one single-family dwelling on each half. **(Amended By Ord. No 116,389, Eff. 6/29/60.)**

The provisions of this subdivision shall not apply to lots in the RE Zone, or to lots in any zone that are also within the “H” Hillside or Mountainous Area. **(Amended by Ord. No. 127,777, Eff. 8/1/64.)**

20. Projections Into Yards.

(a) A canopy above an entrance and extending over a driveway which leads to a detached garage or a parking space not abutting a dwelling, for the temporary shelter of automobiles, commonly referred to as a porte cochere, may project into a required side yard, but not nearer than 30 in to any lot line, provided such structure is not more than one story in height and 20 feet in length, and is entirely open on at least three sides except for the necessary supporting columns and customary architectural features. **(Amended by Ord. No. 138,685, Eff. 7/10/69.)**

(b) Cornices, belt courses, sills, or other similar architectural features (not including bay windows or vertical projections), may project into a required side yard, other than the side yard adjoining the street lot line of a corner lot, not more than two inches for each one foot of width of such yard, and may project into a required front yard, rear yard, side yard adjoining the street lot line of a corner lot, passageway, or other open space not more than 30 inches, except as provided in Section 12.08.5 C.1.(c), provided the width of a side yard adjoining the street lot line of a corner lot is not reduced to less than three feet. Eaves may project into a required side yard, other than the side yard adjoining the street lot line of a corner lot, not more than four inches for each one foot of width of such side yard, provided the width of such side yard is not reduced to less than two and one-half feet. Eaves may also project into a required front yard, rear yard, side yard adjoining the street lot line of a corner lot, passageway, or other open space not more than 30 inches, provided the width of a side yard adjoining the street lot line of a corner lot is not reduced to less than two and one-half feet. Chimneys may project into a required passageway not more than one foot and may project into a required front yard, rear yard, side yard, or other required open space, except as provided in Section 12.08.5 C.1.(c), not more than two feet, provided the width of any required side yard is not reduced to less than three feet. **(Amended by Ord. No. 138,685, Eff. 7/10/69.)**

(c) Fire escapes may extend or project into any front, side or rear yard not more than four (4) feet.

(d) **(Amended by Ord. No. 138,685, Eff. 7/10/69.)** Except in an RW Zone, where a required passage may not be reduced in any manner, open, unenclosed stairways or balconies, not covered by a roof or canopy, may extend or project into a required rear yard not more than four feet, and such balconies may extend into a required front yard, passageway, other open space, or the side yard adjoining the street lot line of a corner lot, not more than 30 inches, provided the width of a side yard adjoining the street lot line or a corner lot is not reduced to less than 30 inches.

(e) Open, unenclosed porches, platforms, or landing places (including access stairways thereto) not covered by a roof or canopy, which do not extend above the level of the first floor of the building, may extend or project into the required front yard, side yard, rear yard, passageway, or other open space, not more than six feet, provided that in no event shall any such porch, platform or landing space be more than six feet above the natural ground level adjacent thereto. **(Amended by Ord. No. 138,685, Eff. 7/10/69.)**

(f) **Fences and Walls in the A and R Zones.** **(Amended by Ord. No. 154,798, Eff. 2/20/81.)**

(1) **Fences and Walls.** For the purposes of Article 2 through 6 of this chapter, the terms “**fence**” and “**wall**” shall include latticework, ornamental fences, screen walls, hedges or thick growths of shrubs or trees. Fence and wall height shall be measured from the natural ground level adjacent thereto.

(2) **Front Yards. (Amended by Ord. No. 173,754, Eff. 3/5/01.)** In the R Zones, fences, walls, and landscape architectural features of guard railing around depressed ramps, not more than three and one-half feet in height above the natural ground level adjacent to the feature, railing or ramp, may be located and maintained in any required front yard. In the A Zones (including the RA Zone), a fence or wall not more than six feet in height may be located and maintained in the required front yard. In both the A and R Zones, a fence or wall not more than eight feet in height may be located and maintained in the required front yard when authorized by a Zoning Administrator pursuant to Section 12.24 X.7.

In both the A and R zones, an unobstructed chainlink fence not more than ten feet in height may be located and maintained in all yards when required by the Department of Building and Safety pursuant to the provisions of Sections 91.3303 and 91.6103 and Division 89 of Article 1 of Chapter IX of this Code.

(3) **Side Yards, Rear Yards and Other Spaces. (Amended by Ord. No. 173,492, Eff. 10/10/00.)** A fence or wall not more than eight feet in height may be located and maintained within the required side yard, rear yard or other open space of any lot in an RW Zone and within the required side yard, rear yard or other open space of a lot within any other A or R zone which is 40 feet or more in width, provided the lot is not located within the boundary of a “**Hillside Area**”, as defined in Section 91.7003 of this Code.

A fence or wall not more than six feet in height may be located and maintained within the required side yard, rear yard or other open space of any lot in an A or R Zone, other than an RW Zone, which is less than 40 feet in width or which is located within the boundary of a “**Hillside Area**”, as defined in Section 91.7003 of this Code, except that in either case a fence or wall not more than eight feet in height may be located in the yards or other open space when authorized by a Zoning Administrator pursuant to Section 12.21 A.2.

In the A Zones (including the RA Zone), a fence or wall not more than eight feet in height may be located on the side street lot line of any reversed corner lot; provided, however, that if the lot is located within the boundary of a “**Hillside Area**”, as defined in Section 91.7003, the fence or wall shall not exceed six feet in height.

In the R Zones, other than the RW Zones, a fence or wall located within five feet of the side street lot line of a reversed corner lot may not exceed three and one-half feet in height. In the RW Zones, a fence or wall located within three feet of the side street lot line of either a corner lot or a reversed corner lot may not exceed three and one-half feet in height.

(4) **Access Ways.** Access ways shall be maintained in accordance with the provisions of Section 12.22 C.20.(1).

(5) **Maintenance of Fences and Walls.** Fences shall be maintained in accordance with the provisions of Section 12.21 A.9.

(6) **Masonry and Concrete Walls. (Amended by Ord. No. 173,492, Eff. 10/10/00.)** A masonry or concrete fence or wall over three and one-half feet in height shall be built in accordance with the provisions of Section 91.106.1 of this Code.

(7) **Fences and Walls Enclosing Parking Areas.** Fences and walls enclosing parking areas shall be provided in accordance with the provisions of Section 12.21 A.6.

(8) **Fences and Walls Around Pools. (Amended by Ord. No. 173,492, Eff. 10/10/00.)** A fence or wall not exceeding four and one-half feet in height, as required by Section 91.6109 of this Code, may be erected and maintained to enclose a swimming pool, fish pond or other body of water existing in a required yard prior to June 1, 1956.

(9) **Fences and Walls Around Schools.** An open mesh type fence to enclose an elementary or high school site may be located and maintained in any required yard.

(10) **Fences and Walls Around Tennis Courts.** The provisions of Section 12.20 C.20.(m) shall control with respect to tennis court fences.

(11) **Fences and Walls at Street Intersections.** Fences and Walls at street intersections shall comply with the provisions of 62.200 of this Code.

(g) **(None)**

(h) A one-story covered passageway, commonly referred to as a breezeway, not over five feet in width, extending from a main residential building to a private garage or other accessory building may be erected and maintained in a required

rear yard. Such passageway shall be located not less than five feet from all lot lines and shall be unenclosed, except that on a corner lot there may be a wall or fence not over six feet in height along the street side of such passageway.

(i) Landscape features such as trees, shrubs, flowers or plants, shall be permitted in any required front, side, or rear yard, passageway or other open space, provided that they do not produce a hedge effect contrary to the provisions of Paragraphs (f) and (g) above. **(Amended by Ord. No. 107,884, Eff. 9/23/56.)**

(j) Name plates, signs, and advertising matter, as permitted by this article, may be located in any required front yard, side yard, rear yard, passageway or other open space; provided that the total area of all identification signs in any required yard, shall not exceed 12 square feet, and any sign appertaining to the sale of farm products raised or produced on the premises shall be located at least ten feet from any side lot line. **(Amended by Ord. No. 107,884, Eff. 9/23/56.)**

(k) Awnings or canopies without enclosing walls or screening may be attached to the exterior walls of a Group R or Group H Occupancy, provided that: such awnings or canopies do not extend more than four feet into a required front yard or building line space at the front of a lot, and have no vertical support within said yard or space; such awnings or canopies do not extend more than 30 inches into a required side yard, rear yard, building line space at the side of a lot, passageway or other open space, but in no event nearer than 30 inches to an interior lot line; and where such awnings or canopies project into a required front or side yard, passageway or other open space, they may extend only over the windows or doors to be protected and for 12 inches on each side thereof. **(Amended by Ord. No. 121,925, Eff. 6/4/62.)**

(l) Notwithstanding the provisions of this subdivision, no architectural feature, fire escape, porch, balcony, or other projection permitted in a yard, passageway or other open space, shall be located and maintained so as to preclude complete access about and on each side of and in close proximity to main buildings and accessory living quarters at all times. Where a fence or wall is provided or maintained, a gate or other suitable opening at least two and one-half feet in width shall be deemed adequate for access through said fence or wall; provided further that where such fence or wall is located adjacent to an alley and is over six feet in height, adequate access shall be provided through such wall or fence onto the adjacent alley. At least five feet of clear and open space shall be maintained between any two main buildings, including the projections, on any one lot. **(Amended by Ord. No. 154,798, Eff. 2/20/81.)**

(m) **(Added by Ord. No. 151,466, Eff. 10/27/78.)** Tennis or paddle tennis courts, including fences and light which are accessory to a primary residential use on the same lot in the A or R Zones may extend into a portion of the required rear yard of such lot if such court and its appurtenances meet all of the following conditions:

(i) The court surface is not more than 2 feet above the natural adjacent grade at any point.

(ii) The court is enclosed with a fence no higher than 10 feet above the court surface and all portions of such fence above a height of six feet are an open chain link type fence.

(iii) Any light standards and fixtures are no higher than 20 feet above the court surface.

(iv) The court is located a distance from the rear lot line at least equal to the width of the side yard required for a one- story main building in the zone but in no event less than 5 feet.

21. Lot Widths and Yard Requirements for RE15-H Zones. Lot widths and yard area requirements for the R1 Zone shall apply to lots in the RE15-H Zone if said lots are shown as numbered lots on a tentative subdivision tract map or parcel map approved by the Advisory Agency or the Director of Planning for the City of Los Angeles prior to January 1, 1967 and recorded in the Office of the Los Angeles County Recorder prior to July 1, 1967. **(Added by Ord. No. 134,673, Eff. 7/31/67.)**

22. Width and Area Flag Lots in Mountainous Areas. Where a flag lot is situated in the "H" Hillside or the Very High Fire Hazard Severity Zone pursuant to Section 57.4908 of the Municipal Code, the lot width may be calculated by measuring the width of the main buildable portion of said flag lot on a straight line parallel to the general direction of the frontage street and midway between the rear and front lines of the main buildable portion of the flag lot provided, however, that the main buildable portion contains the lot width and not less than 90% of the lot area required for lots in the zone classification in which the flag lot is situated, said lot area to be calculated exclusive of the area contained within the access strip portion of the flag lot. **(Amended by Ord. No. 176,943, Eff. 10/5/05.)**

23. (Repealed by Ord. No. 164,145, Eff. 12/8/88.)

24. Zero Side Yard Lots – Remain Separate Lots. If several lots are developed with building crossing lot lines, as permitted by Section 12.08.3 B.1. of this Code, they shall remain separate lots, notwithstanding such construction across the lot lines. **(Added by Ord. No. 159,532, Eff. 1/3/85.)**

25. Zero Side and Rear Yard Development in Multiple Residential Zones. In the R2, RD, R3, RAS3, R4, RAS4, and R5 Zones, lots may be developed with either attached dwellings crossing lot lines or detached dwellings not crossing lot lines. These dwellings may contain one dwelling unit on a lot and may observe the lot width, yard, passageway and other requirements for development in the RZ Zone. Every lot so developed shall have a minimum lot area of 2,500 square feet. No lots may be developed in accordance with this subdivision unless the lots and uses are approved in connection with a preliminary parcel map, tentative tract map or modification approved subsequent to January 1, 1985. Development so approved shall meet the density

requirement of the zone in which the lots are located. **(Amended by Ord. No. 174,999, Eff. 1/15/03.)**

26. Yards Required for Historically Significant Buildings. Notwithstanding any provision of the Los Angeles Municipal Code to the contrary, in connection with any change of use in an historically significant building, the yards required shall be the same as the yards observed by the existing structures on the site. An historically significant building is defined as a structure that is designated on the National Register of Historic Places, including Contributing Buildings in National Register Historic Districts, the California Register of Historical Resources, the City of Los Angeles List of Historic-Cultural Monuments, or a Contributing Structure in an Historic Preservation Overlay Zone (HPOZ) established pursuant to Div. 13B.8. (Historic Preservation) of Chapter 1A of this Code. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

27. Small Lot Subdivision. (Amended by Ord. No. 185,462, Eff. 4/18/18.) The purpose of this provision is to create alternative fee-simple home ownership within the multi-family and commercial zones. A small lot subdivision shall be permitted in the RD, R3, R4, R5, RAS and the P and C zones pursuant to an approved tract or parcel map. A subdivision for the purposes of small lots enables the construction of new small lot homes and provides opportunities for the preservation of existing residential dwelling units located on a single lot to be rehabilitated as for-sale dwellings on individual small lots.

(a) **Construction of New Small Lots.** Notwithstanding any provisions of this Code relating to minimum lot area, in the RD, R3, R4, R5, RAS and the P and C zones, parcels of land may be subdivided into lots which may contain one, two or three dwelling units, provided that the density of the subdivision complies with the minimum lot area per dwelling unit requirement established for each zone, or, in the case of a P zone, the density of the subdivision shall comply with the minimum lot area per dwelling unit of the least restrictive abutting commercial or multi-family residential zone(s).

(1) A parcel map or tract map, pursuant to Section 17.00 et seq. of this Code, shall be required for the creation of a small lot subdivision. The parcel map or vesting tentative tract map must comply with the Advisory Agency Small Lot Map Standards; and

(2) For small lot subdivision projects, no demolition, grading, building permit or certificate of occupancy shall be issued unless the Director of Planning has reviewed the application, pursuant to Sec. 13B.3.1. (Administrative Review) of Chapter 1A of this Code, and determined that the small lot subdivision project complies with the City Planning Commission's Small Lot Design Standards. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

(i) The Director shall establish guidelines, requirements, and forms as may be necessary to conduct the review of the administrative clearance to determine conformance with the Small Lot Design Standards.

(ii) The application for this administrative clearance shall be filed concurrent with the tract or parcel map application and at any time a subsequent alteration or addition is proposed.

(iii) As a condition of approval, all small lot subdivisions shall be required to conform to the plans approved by the Director of Planning.

(3) The minimum lot width shall be 18 feet and the minimum lot area shall be 600 square feet. The Advisory Agency shall designate the location of front yards in the subdivision tract or parcel map approval.

(4) Access shall be provided to a lot containing a dwelling unit and to its required parking spaces, pursuant to Section 12.21 A.4.(a) by way of a public or private street, an alley, or an access easement.

(5) The lot area coverage by all structures shall not exceed 75% of an approved small lot, unless the tract or parcel map provides an open space easement equivalent to 25% of the lot area of each lot not meeting this provision.

(6) No front, side, or rear yard shall be required between interior lot lines created within an approved small lot subdivision.

(7) The provisions of the front yard of the underlying zone shall apply to the Front Lot Line of the perimeter of the subdivision.

(8) The following shall apply to the perimeter of the subdivision:

(i) For any subdivision that shares a property line with an R1 or more restrictive single family zone, the provisions of the front yard, side yard and rear yard of the underlying zone shall apply. A minimum five-foot side yard shall be required.

(ii) For any subdivision that does not share a property line with an R1 or more restrictive single family zone, the following shall apply:

a. A minimum five-foot yard shall be required along the Side Lot Line of the perimeter of the subdivision; and

b. A minimum ten-foot yard shall be required along the Rear Lot Line of the perimeter of the subdivision, except that where the Rear Lot Line abuts an alley a minimum five-foot rear yard shall be required along the perimeter of the subdivision.

(9) No passageway pursuant to Section 12.21 C.2. of this Code shall be required.

(10) In a P zone, lots may be developed as a small lot subdivision, provided that the General Plan land use designation of the lot is “commercial” or “multiple family residential”.

(11) A dwelling unit in a small lot subdivision shall not be required to comply with Paragraphs (a), (b), and (f) of Section 12.21 A.17. of this Code.

(12) Fences and walls within the yard setback areas adjacent to a public right-of-way, except alleys, and along the perimeter of the proposed subdivision shall be no more than three and one-half feet in height in accordance with Section 12.22 C.20. of this Code. Fences and walls within the yard setback areas along the perimeter, not adjacent to the public right-of-way, of the proposed subdivision shall be no more than six feet in height in accordance with Section 12.22 C.20. of this Code.

(13) Lots created within a small lot subdivision are exempt from the “frontage” requirement as defined in the definition of “Lot” pursuant to Section 12.03.

(b) **Small Lot Subdivisions of Existing Dwelling Units.** The purpose of this Subsection is to further facilitate fee-simple home ownership opportunities through the preservation of existing housing within the City.

Existing Group Dwellings, Bungalow Courts, and detached single, duplex, and triplex dwelling structures maintained under a single ownership with an original building permit issued more than 45 years prior to the date of submittal of the application for subdivision, or where information submitted with the subdivision application indicates that the building(s) is/are more than 45 years old based on the date the application is submitted may be subdivided into small lots and shall comply with Subparagraphs (1), (2) (4), and (9) through (13) of Paragraph (a) of this Subdivision. All existing structures shall be legally constructed with an issued building permit or Certificate of Occupancy.

(1) Notwithstanding any provisions of this Code relating to minimum lot area to the contrary, in the RD, R3, R4, R5, RAS and the P and C zones, parcels of land may be subdivided into lots which may contain one, two or three dwelling units, provided that the density of the subdivision complies with the minimum lot area per dwelling unit requirement established for each zone, or in the case of a P zone, the density of the subdivision shall comply with the minimum lot area per dwelling unit of the least restrictive abutting commercial or multi-family residential zone(s). Bungalow courts and existing structures that are nonconforming as to use, density, yards, or parking may be subdivided provided that the subdivision does not further increase the density nor reduce the yards, and that existing required parking be maintained, respectively.

(2) A nonconforming building, structure, or improvements may be maintained or repaired or structurally altered provided it conforms to Section 12.23 A. of this Code. However, alterations to existing structures shall also be in conformance with the “Bungalow Court and Existing Structure” Small Lot Design Standards adopted by the City Planning Commission.

(3) All existing dwellings shall provide parking as required on each dwelling’s most recently issued permit. No additional parking is required.

(4) All new dwellings added to the small lot subdivisions of existing dwelling units shall be subject to subparagraphs (1) through (13) of Paragraph (a) of this Subdivision, including current setback requirements, parking, and applicable Small Lot Design Standards.

(c) **Exceptions.** The provisions of this section do not apply to any of the following projects, which shall comply with the regulations in effect prior to the effective date of this ordinance, as applicable:

(1) Any small lot subdivision entitlement application filed and accepted and deemed complete prior to the effective date of this ordinance as determined by the Department of City Planning.

(2) Any project for which the City has approved a small lot subdivision discretionary land use entitlement as of the effective date of this ordinance, but that has not yet submitted plans and appropriate fees to the Department of Building and Safety for plan check, as determined by the Department of City Planning.

28. Minimum Density in the RD2, RD1.5, R3, RAS3, R4, RAS4, R5, C1, C1.5, C2, C4, C5 and CM Zones. (Added by Ord. No. 188,479, Eff. 2/11/25, Oper. 2/11/25.) In the RD2, RD1.5, R3, RAS3, R4, RAS4, R5, C1, C1.5, C2, C4, C5 and CM Zones, the minimum density requirements of these zones shall not apply to the following types of development projects or lots, unless located on a site that is designated as a Lower Income Rezoning Housing Element Site:

- (a) An addition, remodel or rehabilitation that results in 1,500 square feet or less of net new Floor Area and that results in no demolition of an existing Dwelling Unit(s);
- (b) A project where the only new Dwelling Unit(s) added to the parcel is an Accessory Dwelling Unit(s);
- (c) A project to reconstruct an Existing Dwelling Unit that has been damaged by a disaster or is deemed unsafe by LADBS and that results in no increase to the amount of Floor Area in the prior building or buildings;
- (d) A development located on any of the environmentally sensitive sites specified in subparagraphs (B) to (K) of California Government Code Section 65913.4(a)(6), including a Very High Fire Hazard Severity Zone, regardless of any mitigation;
- (e) Lots where at least 60% of the Lot is composed of a Slope(s) that is 30% or greater, as determined by a Slope Analysis Map prepared in accordance with LAMC Section 12.21 C.10.(b)(1).
- (f) A lot that is designated as parks or open space in any plan or zoning designation;
- (g) A lot that contains a Designated Historic Resource; or
- (h) A lot that cannot achieve the minimum density requirement due to any objective provision in the Los Angeles Municipal Code that physically precludes the construction of a development, as determined by the Los Angeles Department of Building and Safety, or due to any provision of a Specific Plan, Q, T, or D Condition, or a Community Plan Implementation Overlay.

SEC. 12.22.1. CITY OF LOS ANGELES SAFER FILMING ORDINANCE.

(Title and Section Amended by Ord. No. 182,607, Eff. 8/6/13.)

(A) **Short Title.** This ordinance shall be known as the City of Los Angeles Safer Sex in the Adult Film Industry Act.

(B) **Use of Condoms in the Making of Films Involving Exposure to Blood Borne Pathogens.**

(1) For purposes of this Section, an “**Adult Film**” is defined as any film, video, multimedia or other representation made for commercial purposes of sexual intercourse in which performers actually engage in oral, vaginal, or anal penetration, including but not limited to, penetration by a penis, finger, or inanimate object; oral contact with the anus or genitals of another performer; and/or any other sexual activity that may result in the transmission of blood and/or any other potentially infectious materials as defined in California Code of Regulations, Title 8, Section 5193(b).

(2) For purposes of this Section, “**Producer**” is defined as any person or entity that produces, finances, or directs any Adult Film.

(3) For purposes of this Section, “**Filmed**” and “**Filming**” are defined as the recording of any Adult Film.

(4) No film permit issued under the authority of the City of Los Angeles or the Los Angeles Police Department pursuant to Section 12.22 A.13. of this Code or any other law authorizing the issuance of permits for commercial filming for the production of any Adult Film shall issue unless the Producer of such film provides proof of a public health permit obtained pursuant to Title 11 of Los Angeles County Code, Sections 11.39.005, et al.

(5) Any film permit issued under the authority of the City of Los Angeles or the Los Angeles Police Department pursuant to Section 12.22 A.13. of this Code or any other law authorizing the issuance of permits for commercial filming for the production of any film must expressly condition said permit on compliance with subsection (4) of this section. Any such permit shall reference this Section and contain the following language: “Permittee must abide by all applicable workplace health and safety regulations, including California Code of Regulations Title 8, Section 5193, which mandates barrier protection, including condoms, to shield performers from contact with blood or other potentially infectious material during the production of films.”

(6) The City may charge, or may direct any other person or entity contracting with the City to administer the film permitting process to charge, entertainment industry customers seeking film permits for the production of adult films a fee sufficient to facilitate compliance with, and enforcement of, this section.

SEC. 12.23. NONCONFORMING BUILDING AND USES.

A building or structure with a nonconforming use and a nonconforming building or structure may be maintained, repaired or structurally altered and a nonconforming use may be maintained provided the building or use conformed to the requirements of the zone and any other land use regulations at the time it was built or established, except as otherwise provided in this section. **(Added by Ord. No. 178,599, Eff. 5/26/07.)**

A. Buildings with Nonconforming Area, Height, Encroachment Plane, Yards or Lot Coverage Regulations. (Amended by Ord. No. 184,802, Eff. 3/17/17.)

1. Buildings Nonconforming as to Area or Yard Regulations. A building, nonconforming as to area or yard regulations, may be repaired, altered, or internally remodeled, provided at least 50 percent of the perimeter length of the existing nonconforming portion of the exterior walls of the building are retained. It may be expanded in floor area provided the expansion conforms to the requirements of this Code, subject to the following provisions:

- (a) a building, nonconforming only as to yard regulations, may be added to or enlarged in any manner provided:
 - (i) any addition or enlargement that is located in the required yard that is nonconforming does not encroach into any portion of that required yard to a greater extent than the existing nonconforming building encroaches; and
 - (ii) in no event shall any addition or enlargement reduce the width of a side yard or the depth of a front or rear yard to less than 50 percent of that required by the current yard regulations of the zone and other applicable current land use regulations; and
 - (iii) the total of all additions or enlargements, made since the building became nonconforming as to yard regulations, which encroach into any required yard, shall not exceed in height or length the height or length of that portion of the adjoining nonconforming building that extends into the same required yard.
 - (iv) Notwithstanding Sub- paragraphs (i), (ii) and (iii) of this Sub- paragraph, a building nonconforming as to the Yard regulations on properties zoned RA, RE, RS and R1, not including properties in the Coastal Zone which are not located in a Hillside Area as defined in Section 12.03 of this Code, shall not be added to or enlarged in any manner unless the addition or enlargement conforms to all the current regulations of the zone and other applicable current land use regulations, except as may be approved or permitted pursuant to a discretionary approval as that term is defined in Section 16.05 B. of this Code.
- (b) A residential building, nonconforming as to the area regulations (density), in the OS, A, R, P, PB, C or PF Zones, may be enlarged, provided that the enlargement does not create any additional dwelling units or guest rooms.
- (c) Notwithstanding Paragraphs (a) and (b) above and Subdivision 2. of this Subsection, a building, nonconforming as to the Residential Floor Area regulations on properties zoned RA, RE, RS and R1, not including properties in the Coastal Zone which are not located in a Hillside Area, as defined in Section 12.03 of this Code, shall not be added to or enlarged in any manner unless the addition or enlargement conforms to all the current regulations of the zone and other applicable current land use regulations, except as permitted by Section 12.21 C.10.(I) and except as may be approved or permitted pursuant to a discretionary approval, as that term is defined in Section 16.05 B. of this Code. However, alterations, other than additions or enlargements to existing buildings, may be made provided that at least 50 percent of the perimeter length of the contiguous exterior walls and 50 percent of the roof are retained.

2. Buildings Nonconforming as to Height or Encroachment Plane. A building, nonconforming only as to height or encroachment plane regulations, may not be added to or enlarged in any manner, unless the additions or enlargements conform to all the current regulations of the zone and other applicable current land use regulations, provided that the total aggregate floor area included in all the separate additions or enlargements shall not exceed 50 percent of the floor area of the ground floor of the building or structure.

3. Buildings Nonconforming as to Lot Coverage. A building, nonconforming as to the Lot Coverage regulations on properties zoned RA, RE, RS, and R1, shall not be added to or enlarged in any manner unless the addition or enlargement conforms to all the current regulations of the zone and other applicable current land use regulations, except as may be approved or permitted pursuant to a discretionary approval, as that term is defined in Section 16.05 B. of this Code. However, alterations, other than additions or enlargements to existing buildings, may be made provided that at least 50 percent of the perimeter length of the contiguous exterior walls and 50 percent of the roof are retained.

4. Moving Nonconforming Buildings. A nonconforming building or structure may not be moved, in whole or in part, to any other location on the lot unless every portion of the building or structure that is moved is made to conform to all the current regulations of the zone and other applicable current land use regulations, except as otherwise permitted by Section 12.22 C.13. of this Code.

5. Restoration of Damaged Nonconforming Buildings.

- (a) A nonconforming building or structure, which is damaged or partially destroyed by any fire, flood, wind, earthquake or other calamity or the public enemy, may be restored and the occupancy or use of the building, structure or part of the building or structure, which existed at the time of the damage or destruction, may be continued or resumed, provided that the total cost of restoration does not exceed 75 percent of the replacement value of the building or structure at the time of the damage or destruction. A permit for restoration shall be obtained within a period of two years from the date of the damage or destruction. Except as set forth in Paragraph (b) below, if the damage or destruction exceeds 75 percent of the replacement value of the nonconforming building or structure at the time of the damage or destruction, no repairs or restoration shall be made unless every portion of the building or structure is made to conform to all regulations

for new buildings in the zone in which it is located, and other applicable current land use regulations.

(b) If the damage or destruction of a nonconforming single-family or two-family dwelling, multiple dwelling or apartment house in the OS, A, R, P, PB, C, M or PF Zones exceeds 75 percent of its replacement value at the time of the damage or destruction, the building or structure may be reconstructed provided:

(i) that each side yard is no less than one-half the required side yard for new buildings in the zone in which it is located, or in other applicable current land use regulations, but in no event less than three feet; and

(ii) that the front and rear yards are at least one-half the required front and rear yards for new buildings in the zone in which it is located, or in other applicable current land use regulations; and

(iii) that neither the footing, nor the building or structure projects into any area planned for widening or extension of existing or future streets as determined by the Advisory Agency upon the recommendation of the City Engineer; and

(iv) that the height shall not exceed the allowable height for new buildings or structures in the zone in which it is located, or in other applicable current land use regulations; and

(v) that a building permit for the reconstruction be obtained within two years of the damage or destruction from fire, flood, wind, earthquake, or other calamity or the public enemy.

6. Replacement of Earthquake Hazardous Buildings. Notwithstanding any other provision of this article to the contrary, a building nonconforming as to height, number of stories, lot area, loading space or parking, which is demolished as a result of enforcement of the Earthquake Hazard Reduction Ordinance (Article 1, Chapter IX of this Code), may be reconstructed with the same nonconforming height, number of stories, lot area, loading space or parking as the original building, provided, however, that reconstruction shall be commenced within two years of obtaining a permit for demolition and completed within two years of obtaining a permit for reconstruction. Provided further, that neither the footing, nor any portion of the replacement building may encroach into any area planned for widening or extension of existing or future streets as determined by the Advisory Agency upon the recommendation of the City Engineer.

Additionally, a building nonconforming as to use or yards, which is demolished as a result of enforcement of the Earthquake Hazard Reduction Ordinance, may be reconstructed with the same nonconforming use or yards provided that the approval of a Zoning Administrator is obtained pursuant to Section 12.24 X.16. of this Code.

B. Nonconforming Use of Buildings. (Amended by Ord. No. 178,599, Eff. 5/26/07.)

1. Discontinuance of Manufacturing Use in A and R Zones. In the A and R Zones, any nonconforming use of a building first permitted in the MR1 or less restrictive zone shall be discontinued within five years from June 1, 1946, or five years from the date the use becomes nonconforming, whichever date is later.

2. Discontinuance of Commercial Use in A and R Zones. In the A and R Zones, any nonconforming commercial use of a building shall be discontinued within five years from June 1, 1946, or five years from the date the use becomes nonconforming, whichever date is later. However, the Zoning Administrator may permit its continuation pursuant to the procedures set forth in Section 12.24 X.27. of this Code.

3. Authority of Department of Building and Safety to Issue Orders to Comply. The Department of Building and Safety shall have the authority to issue an order to comply pursuant to Sec. 13A.1.8.B.3. (Department of Building and Safety; Specific Authority; Nonconforming Use) of Chapter 1A of this Code. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

4. Nonconforming Use in Manufacturing Zones. In the M Zones:

(a) A building, nonconforming as to use, which does not contain any dwelling units or guest rooms, shall not be redesigned or rearranged to contain dwelling units or guest rooms;

(b) A building, nonconforming as to use, which contains dwelling units or guest rooms shall not be redesigned or rearranged to be used for any other purpose permitted in an R Zone;

(c) A building, nonconforming as to use, which contains dwelling units or guest rooms, shall not be redesigned or rearranged so as to increase the number of dwelling units or guest rooms in the building;

(d) Residential uses in the M3 Zone, except for caretakers quarters, shall not be permitted to remain beyond five years from the date the use became nonconforming.

5. Expansion of Nonconforming Use. Except as otherwise provided in this subsection, a non-conforming use shall not be expanded into any other portion of the building.

6. **Enlargement of Residential Portion of Buildings Nonconforming as to Use.** The residential portion of a building, nonconforming as to use in the OS, A, R, P, PB, C, or PF Zones, may be enlarged, provided that the enlargement does not create an additional dwelling unit or guest room.

7. **Change of Use.**

(a) Any change of use of a building or a portion of a building must conform to the current regulations of the zone and other applicable current land use regulations.

(b) However, in the R, C, or M Zones, a nonconforming use may be changed to any use that is permitted in a more restrictive zone than the current zone. The sequence of these zones, the first being the most restrictive and the last being the least restrictive, is as follows: OS, A1, A2, RA, RE, RS, R1, RU, RZ, RW1, R2, RD, RMP, RW2, R3, RAS3, R4, RAS4, R5, CR, C1, C1.5, C4, C2, C5, CM, MR1, M1, MR2, M2, M3 and PF. When the use of a nonconforming building is changed to a use that is permitted in a more restrictive zone, the nonconforming building shall not be occupied by a use that is permitted only in a less restrictive zone.

8. **Parking.**

(a) **Determination of Required Parking.** All currently provided parking spaces shall be considered as the required parking for an existing nonconforming use if the parking spaces are less than or equal to the parking required by current regulations.

(b) **Change of Use or Other Alterations.** For the purpose of calculating the parking requirements for a change of use or other alterations, which would require additional parking spaces per this Code, including, but not limited to, additional dwelling units, seating capacity, beds for institutions or guest rooms, existing parking must be maintained and additional parking spaces shall be provided equal to the difference between the number of required parking spaces for the existing use based on current parking regulations set forth in this Code and not on the provisions of Paragraph (a) above, and the number of required parking spaces for the new use or the new capacity created by the alterations, also based on current parking regulations.

(c) **Additions to Buildings or Structures.** The parking requirement for an addition or enlargement to a building or structure that results in an increase in floor area shall be as set forth in the current provisions of this Code. No additional parking spaces shall be required for the original portion of the building, as determined by Paragraphs (a) and (b) of this subdivision, only for the additional portion.

9. **Discontinuance of Use.** A building or structure or portion of a building or structure, which contains a nonconforming use which is discontinued for a continuous period of one year, shall only be occupied by a use that conforms to the current use regulations of the zone and other applicable current land use regulations.

C. **Nonconforming Use of Land.**

1. **Discontinuance of Nonconforming Use of Land. (Amended by Ord. No. 178,599, Eff. 5/26/07.)**

(a) In the A, R or C Zones, a nonconforming use of land shall be discontinued within five years from June 1, 1946, or from the date the use becomes nonconforming, whichever date is later, in each of the following cases:

- (i) where no buildings are utilized in connection with the use;
- (ii) where the only buildings utilized are accessory or incidental to the use;
- (iii) where the use is maintained in connection with a conforming building.

(b) A nonconforming use of land, which is accessory or incidental to the nonconforming use of a building, shall be discontinued on the same date the nonconforming use of the building is discontinued.

2. **Continuation of Nonconforming Use of Land. (Amended by Ord. No. 178,599, Eff. 5/26/07.)** Except as provided in Subdivision 1. above, the nonconforming use of land may be continued, subject to the following limitations:

(a) that the use is not expanded or extended in any way either on the same or adjoining land beyond the limits of what was originally permitted; and

(b) that the use is not changed, except to a use that conforms to the current use regulations of the zone and other applicable current land use regulations; and

(c) in the MR or M1 Zone, the use shall be completely enclosed within a building or within an area enclosed on all sides with a solid wall or solid fence of a height sufficient to screen the use from public view, but in no event less than six feet in height, within one year from the date the use becomes nonconforming; and

(d) if the use is discontinued for a continuous period of one year, it shall not be reestablished.

3. **Continuation of Signs.** Any existing nonconforming sign, as defined in Section 91.6203 of this Code, may be continued, provided that no structural, electrical or mechanical alterations are made to the sign except as permitted in Section 91.6206 of this Code. **(Amended by Ord. No. 178,599, Eff. 5/26/07.)**

4. **Oil Wells. (Amended by Ord. No. 160,874, Eff. 4/ 6/86.)**

(a) No well for the production of oil, gas or other hydrocarbon substances, which is a nonconforming use, shall be re-drilled or deepened.

(b) All such wells, including any incidental storage tanks and drilling or production equipment, shall be completely removed within 20 years from June 1, 1946, or within 20 years from date such use became nonconforming, if said date was subsequent to June 1, 1946; provided, however, a Zoning Administrator may, upon individual application, allow such wells to continue to operate after said removal date, if he determines that such continued operation would be reasonably compatible with the surrounding area and in connection therewith may impose such conditions, including time limitations, as he deems necessary to achieve such compatibility.

(c) Notwithstanding the above, in the Los Angeles City Oil Field such wells may continue operation provided an application is filed with the Office of Zoning Administration on or before November 1, 1986 and is subsequently approved. Any well operator may reapply for Zoning Administrator approval after November 1, 1986 provided the prior approval has not expired.

5. **Commercial Animal Keeping** – The nonconforming keeping, grazing, breeding, raising or training of livestock, poultry, fowl, rabbits, chinchillas, fish, frogs or similar animals for commercial purposes in the RA and R Zones, shall be completely abandoned on or before July 1, 1976 or within 15 years from the date such use became nonconforming. **(Added by Ord. No. 122,543, Eff. 9/2/72.)**

6. **Automobile Dismantling Yards, Junk Yards, and Related Uses. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

(a) Any of the uses to which the provisions of Section 12.19 A.4. of this article are applicable, lawfully existing in the M2 Zone on November 29, 1968, shall be completely removed from the zone within two years unless the use has been made to comply with the limitations applicable to the use. However, upon a showing that substantial compliance with the limitations applicable to a particular use has been effected, the Director of Planning may grant an extension of time to complete the work necessary to effect full compliance. No extension so granted shall exceed one year in duration nor shall more than one extension be granted with respect to any individual use.

(b) Any of the uses to which the provisions of Section 12.20 A.5. are applicable, lawfully existing in the M3 Zone on November 29, 1968, shall be completely removed from the zone within two years unless the use has been made to conform to the limitations applicable to the use. However, upon a showing that substantial compliance with the limitations applicable to a particular use has been effected, the Zoning Administrator may grant an extension of time to complete the work necessary to effect full compliance. The procedure for this extension shall be as set forth in Sec. 13B.2.1. (Class 2 Conditional Use Permit) of Chapter 1A of this Code. No extension so granted shall exceed one year in duration nor shall more than one extension be granted with respect to any individual use. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

(c) The nonconforming use of land for the open storage of materials and equipment, including used materials and equipment, may be continued, but shall be subject to the following limitation: it shall be made to conform to the provisions of this Code on the construction of walls or fences for the open storage of such used materials and equipment within one year from the date the use became nonconforming. The phrase “**used materials and equipment**” includes, but is not limited to, vehicles, boats, or airplanes which are inoperable, wrecked, damaged or unlicensed, i.e., not currently licensed by the Department of Motor Vehicles.

7. **Discontinuance of Nonconforming Hostels and Transient Occupancy Residential Structures. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

(a) Any hostel or transient occupancy residential structure to which the provisions of Sections 12.12.2 A.1.(d), 12.13 A.1.5., and 12.13.5 A.11., of this Article are applicable, existing in or within 500 feet of an A or R zone on May 8, 1992, shall be discontinued within 180 days unless the use has been made to comply with the limitations applicable to that use. However, upon a showing that substantial compliance with the limitations applicable to a particular use has been effected, the Zoning Administrator may grant an extension of time to complete the work necessary to effect full compliance. No extension so granted shall exceed 90 days in duration nor shall more than one extension be granted with respect to any individual use. The procedure for this extension shall be as set forth in Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code.

D. Nonconforming Due To Changes – Whenever a building or structure or a use of a building, structure or land becomes nonconforming because of a change of zone or change in the regulations, and a period of time is specified in this section for the removal

of such non conforming building, structure or use, said period of time shall be computed from the effective date of such change.

This section merely provides for an exception to other sections of the LAMC; it is not to be regarded as a part of the definition of the offense created by other sections of the code and need not be negated by proof or pleading.

People v. Webb, CR A 1762.

The existence of nonconforming uses does not necessarily invalidate a zoning ordinance, and no vested right to violate an ordinance may be acquired by continued violations.

Lockard v. The City of Los Angeles, 33 Cal. 2d 453.

Acker v. Baldwin, 18 Cal. 2d 341.

Uses for commercial purposes in district zoned for residential purposes if subsequent to enactment of zoning ordinance, confers no vested right for continuance thereof.

Burke v. City of Los Angeles, 68 Cal. App. 2d 189.

A nonconforming use cannot be enlarged.

County of San Diego v. McClurken, 37 Cal. 2d 683.

A nonconforming use is subject to the full exercise of the police power and may, like all other activities, be subjected to all reasonable regulations.

People v. Scheib, CR A 2457.

Under a zoning ordinance authorizing applications to an administrative body for permission to put land to a nonconforming use, it is not a denial of an owner's constitutional right to equal protection of the laws to discriminate against the owner by granting such application to some owners and refusing a grant to the owner in the same district.

Otis v. City of Los Angeles, 52 Cal. App. 2d 605.

E. Use Of Nonconforming Lot. A Nonconforming lot may be occupied by any use permitted in the zone in which it is located except for those uses which require a width, area or other lot dimension other than the minimum specified in the area requirements of said zone. However, no more than two dwelling units shall be permitted on a lot with an area less than 4,000 square feet, except on lots located in an RW Zone. **(Amended by Ord. No. 138,095, Eff. 4/19/69.)**

F. Equine Keeping – Nonconforming Lot In “RA” Zone. Equines may be kept and a stable may be erected or maintained on any lot in an “RA” Zone, provided said lot had the area required for the keeping of equines at the time the lot was established. **(Amended by Ord. No. 157,144, Eff. 11/22/82.)**

G. Equine – Nonconforming Uses – Non-“K” Equinekeeping Lots. Notwithstanding any other provisions of this Code to the contrary, equine uses of the land on non- “K” District lots shall be allowed to be continued if, after the legal establishment of the equine use, a neighbor is granted a building permit to construct a dwelling unit within the 75-foot required distance between an equine use and the neighbor's dwelling unit. If, in accordance with the provisions of Section 12.24 X.5., the Zoning Administrator grants permission for a neighbor's dwelling to be constructed closer than 35 feet from a legally existing equine enclosure, the equine enclosure may be considered to be nonconforming if it is relocated not closer than 35 feet from the habitable rooms attached to any dwelling. The nonconforming equine use shall be subject to the following limitations: **(Amended by Ord. No. 173,492, Eff. 10/10/00.)**

1. The equine enclosure shall not be closer than 35 feet to the habitable rooms of any dwelling unit.
2. The subject lot has been designated by an Equine License to stable at least one licensed equine during the 12 months prior to the issuance of the building permit for the neighbor's dwelling unit.
3. The equine enclosure shall not be expanded, extended, or relocated in such a manner as to reduce the nonconforming distance between the enclosure and the habitable rooms of the neighbor's dwelling unit.
4. The nonconforming equine use shall be discontinued if, during a successive 3-year period, no equine is licensed by the Department of Animal Services to be stabled on the subject lot. **(“Department of Animal Regulation” renamed “Department of Animal Services” by Ord. No. 174,735, Eff. 9/13/02.)**

H. (Repealed by Ord. No. 171,740, Eff. 10/27/97.)

I. Equine Nonconforming Uses Adjacent to Residential Buildings. Notwithstanding any provisions of this Code to the contrary, if an equine use not in a “K” District was legally established prior to November 22, 1982, that use shall be allowed to continue, even though the City issued a building permit between November 22, 1982 and July 1, 1986, to construct a residential building on an adjacent lot within the 35-foot required distance between an equine use and the habitable rooms of a residential building on the adjacent lot. This provision shall not apply to building permits authorized by the Zoning Administrator pursuant to Section 12.24 X.5. This nonconforming equine use shall be subject to the following limitations: **(Amended by Ord. No. 173,492, Eff. 10/10/00.)**

1. The subject lot has been designated by an Equine License to stable at least one licensed equine during the 12 months prior to the issuance of the building permit for the residential building on an adjacent lot.
2. The equine enclosure shall not be expanded, extended, or relocated in such a manner as to reduce the nonconforming distance between the enclosure and the habitable rooms of the residential building on an adjacent lot.
3. The nonconforming equine use shall be discontinued if, during a successive 3-year period, no equine is licensed by the Department of Animal Services to be stabled on the subject lot. **(“Department of Animal Regulation” renamed “Department of Animal Services” by Ord. No. 174,735, Eff. 9/13/02.)**

Nothing in this subsection relieves any person from the obligation to comply with the requirements of any county or state law.
(Amended by Ord. No. 173,754, Eff. 3/5/01.)

SEC. 12.24. CONDITIONAL USE PERMITS AND OTHER SIMILAR QUASI-JUDICIAL APPROVALS.
(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

A. Applicability. This Section shall apply to the conditional use approvals listed in Subsections U. and W. and to the other similar quasi-judicial approvals listed in Subsection X. These procedures apply only to uses in zones when not permitted by right.

1. Unless otherwise stated, the procedures for acting upon applications for the conditional use approvals listed in Subsection U. of this Section are established in Sec. 13B.2.3. (Class 3 Conditional Use Permit) of Chapter 1A of this Code.
2. Unless otherwise stated, the procedures for acting upon applications for the conditional use approvals listed in Subsection W. of this Section are established in Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code.
3. Unless otherwise stated, the procedures for acting upon applications for the conditional use approvals listed in Subsection X. of this Section are established in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code.

B. (This subsection intentionally left blank.)

C. Existing Uses. Any lot or portion of a lot which is being lawfully used for any of the purposes enumerated in this section at the time the property is first classified in a zone in which the use is permitted only by conditional use or at the time the use in that zone first becomes subject to the requirements of this section, shall be deemed to be approved for the conditional use and may be continued on the lot. Further, the conditions included in any special district ordinance, exception or variance which authorized the use shall also continue in effect.

Any lot or portion of a lot in the C2, C3, C4, CM or M1 Zones which was being used on June 1, 1951, for the temporary storage of abandoned, dismantled, partially dismantled, obsolete or wrecked automobiles, but not for the dismantling or wrecking of automobiles nor for the storage or sale of used parts, may continue to be so used.

Regulations governing yards, accessory buildings, parking, access, or any other internal features of mobilehome parks shall conform to the provisions of Title 25 of the California Administrative Code or any amendments. If yards, accessory buildings, parking, access, or any other internal features of mobilehome parks are not regulated by Title 25, they shall conform to all applicable provisions of this Code or any other conditions imposed by the City.

Any CM uses lawfully existing prior to March 22, 1981, in any portion of any building in the C5 Zone shall not be extended beyond that portion of the building except as provided by Section 12.24 W. of this Code.

D. Development of Uses.

EXCEPTIONS: A plan approval shall not be required in the following instances:

- (a) For buildings within mobilehome parks located in the M2 Zone, which existed in that zone on September 3, 1961, provided that the entire approval site is retained for mobilehome park use and there is no increase in the number of mobilehome sites.
- (b) For temporary structures erected on the site of a place of worship in an A Zone, if:
 - (1) the structures are erected and maintained not more than five days in any one year;
 - (2) all structures, including temporary facilities, are located at least 40 feet from all exterior lot lines;
 - (3) the required permits are obtained from the Fire Department, and all structures are removed from the premises the next day following the closing of the event;
 - (4) no public address system in connection with the event is installed on the property unless it is modulated so as not to be disturbing to occupants of nearby dwelling units; and
 - (5) any lights used to illuminate the area are arranged to reflect the light away from any adjacent residentially used premises.

E. (This subsection intentionally left blank.)

F. (This subsection intentionally left blank.)

G. (This subsection intentionally left blank.)

H. (This subsection intentionally left blank.)

I. (This subsection intentionally left blank.)

J. (This subsection intentionally left blank.)

K. (This subsection intentionally left blank.)

L. (This subsection intentionally left blank.)

M. (This subsection intentionally left blank.)

N. (This subsection intentionally left blank.)

O. (This subsection intentionally left blank.)

P. (This subsection intentionally left blank.)

Q. (This subsection intentionally left blank.)

R. Planned Residential Developments or Housing Projects Approved as Conditional Uses. No provision of Section 13.04 of this Chapter shall be construed as limiting or modifying the provisions of any conditional use approval, or any other right already existing, for a housing project or planned residential development granted prior to the effective date of that Section. The provisions of this Section shall continue to apply to those developments, and the Commission is authorized to perform all required administrative acts. Provided, however, if a conditional use for a housing project or planned residential development approved prior to the effective date of Section 13.04. of this Chapter is abandoned, or is discontinued for a continuous period of one year, it may not thereafter be re-established unless authorized as a Residential Planned Development Supplemental Use District. The planned residential development shall not be divided or separated in ownership unless authorized under supplemental use district procedures as a residential planned development.

S. (This subsection intentionally left blank.)

T. Vesting Conditional Use Applications. (Amended by Ord. No. 188,072, Eff. 7/1/24.) Vesting conditional use permits may be filed for the following conditional uses under the authority of the City Planning Commission, and Zoning Administrator as described in Subsections U. and W., pursuant to Sec. 13B.2.2. (Class 2 Conditional Use Permit) and Sec. 13B.2.3. (Class 3 Conditional Use Permit) of Chapter 1A of this Code:

Airports or heliports in connection with an airport.

Auditoriums, stadiums and arenas with fewer than 25,000 seats in the MR1 Zone

Buildings over six stories or 75 feet in height within the Wilshire - Westwood Scenic Corridor Specific Plan Area

Churches / Houses of worship (except rescue missions or temporary revivals) in the R Zones, C1, C1.5, CM or M Zone

Correctional or penal institutions

Educational Institutions

Electrical power generating sites

Floor area ratio averaging in unified developments

Golf courses and facilities properly incidental to that use

Hazardous waste facilities in the M2 and M3 Zones where the principal use of the land is for the storage and/or treatment of hazardous waste as defined in California Health and Safety Code Section 25117.1

Hazardous waste facilities in the M3 Zone where the principal use of the land is for the disposal of hazardous waste as defined in California Health and Safety Code Section 25117.1

Hospitals or sanitariums in the A, R, CR, C1, C1.5, CM or M Zones

Land reclamation projects

“Major” development projects

Mixed Commercial / Residential Use Development

Mixed use developments in the R5 Zone located in an approved redevelopment area

Motion picture and television studios in the A, R or C Zones

Natural resources development

Various Uses in the **OS Open Space Zone**

Piers, jetties, human-made islands, floating installations

Various Uses in the **PF Zone**

Reduced on-site parking for housing developments occupied by persons 62 years of age or older in the RD, R3, R4 or R5 Zones

Research and development centers

Schools: public schools, elementary and high (kindergarten through 12th grade); private schools, elementary and high (kindergarten through 12th grade) in the A, RE, RS, R1, RU, RZ, RMP, RW1, R2, RD, RW2, R3, C1, C1.5 or M Zones; and private schools (other than elementary or high (kindergarten through 12th grade) or nursery schools) in the A, R, CR, C1 or C1.5 Zones.

Sea water desalinization facilities and sites where the principal use of the land is for the purposes of a sea water desalinization plant

Notwithstanding the above, hotels and motels with 35 or fewer guest rooms or any hotel or motel within the boundaries of the Specific Plan for Conditional Use Approval for Establishments for the Sale of Alcohol which are generally located in the South Central Area of the City (Ordinance No. 171,681), and stadiums and arenas and auditoriums with more than 25,000 seats, are not eligible for vesting privileges regulated by this Subsection.

U. Conditional Use Permit, Class 3. Unless otherwise stated, the following uses and activities may be permitted in any zone, unless restricted to certain zones or locations, if approved pursuant to Sec. 13B.2.3. (Class 3 Conditional Use Permit) of Chapter 1A of this Code.

1. **Airports or heliports** in connection with an airport.
2. **Auditoriums, stadiums, arenas** and the like.
3. **(This paragraph intentionally left blank.)**
4. **Hotel Development Project. (Added by Ord. No. 188,072, Eff. 7/1/24.)**

(a) **Additional Findings.** In addition to the findings set forth in Section 13B.2.3.E. of this Code, prior to approval of a Hotel Development Project, the City Planning Commission, or the City Council on appeal, shall make findings on each of the following:

- (i) that there is sufficient market demand for the Hotel Development Project proposed;
- (ii) the impact of the employees of the Hotel Development Project on the demand in the City for housing, public transit, childcare, and other social services taking into consideration the impact of the part-time or seasonal nature of work at the Hotel Development Project and of the Hotel Development Project's employees' expected compensation;
- (iii) whether the applicant will take measures to employ residents of neighborhoods adjoining the Hotel Development Project in order to minimize increased demand for regional transportation and to reduce demand for vehicle trips and vehicle miles traveled;
- (iv) whether the applicant will take measures to encourage Hotel Development Project workers and guests to use public transportation, cycling and other non-automotive means of transportation;
- (v) whether the Hotel Development Project will support small businesses in the immediate vicinity and whether the applicant will adopt any measures to increase demand for local goods and services; and
- (vi) whether the Hotel Development Project will not negatively affect the availability of existing affordable and rent-stabilized housing and the project includes the replacement of any rent-stabilized or restricted affordable housing existing on-site within the past ten years with affordable housing and any nonrestricted or rent-stabilized housing with moderate-income housing.

(b) **Vested Rights.** This subdivision shall not be interpreted to impair vested rights under this Code, state law, or common law as long as those vested rights are maintained.

(c) **Relationship to Specific and Community Plans.** The requirements of this subdivision, as they apply to a Hotel Development Project, shall prevail over conflicting provisions in any Specific Plan, including any Community Plan Implementation Overlay District. The foregoing limitation shall not preclude a Specific or Community Plan, or Community Plan Implementation Overlay District, from imposing additional limitations on or requirements of Hotel Development Projects.

5. **Correctional or penal institutions.**

6. **Educational institutions.**

7. **Electric power generating sites, plants or stations,** fueled by any thermal power source or technology, provided that the facilities comply with all applicable state and federal regulations.

8. **Golf courses and facilities** properly incidental to that use.

9. The following **green waste and/or wood waste recycling uses** in the A1 and A2 Zones when conducted in accordance with the limitations after specified:

(a) **Types of uses:**

- (1) Chipping/grinding facility;
- (2) Composting facility;
- (3) Curing facility; and
- (4) Mulching facility;

(b) **Limitations:**

(1) Notwithstanding any provision of Sections 12.05 and 12.06, the uses set forth in Paragraph (a) of this subdivision shall be conducted wholly within an enclosed building, or where deemed appropriate by the City Planning Commission, within an area which is completely enclosed by a solid wall or solid fence which is at least eight feet in height with necessary solid gates of like height.

(2) Where, pursuant to Subparagraph (1) above, the required wall or fence has been erected in an area which adjoins a street, no material shall be stored within the enclosed area to a height greater than that of the wall or fence for a distance of up to 50 feet from such wall or fence, unless the height of the wall or fence is ten feet or more in height. When the height of the wall or fence is ten feet or more, no material shall be stored within the enclosed area to a height greater than that of the wall or fence for a distance of 37 feet from the wall or fence. After the minimum setback of either 50 feet or 37 feet has been observed, materials may be stored over the height of the wall or fence as determined by the City Planning Commission.

(3) The property upon which any use enumerated in this subdivision is conducted shall be landscaped to a minimum distance of five feet measured at a right angle from the adjacent street, except for those areas which are necessary for ingress and egress.

(4) Hours of operation shall be tailored to and be compatible with adjoining uses.

(5) Signs displaying the name of the company and/or operator, address and hours of operation shall be posted at or near the main entrance gate to the recycling facility at all times.

(6) Wood waste and/or green waste recycling activities under this subdivision shall not exceed the noise level set forth in Section 111.03 of this Code as measured from any point on adjacent property which is located in any A, R, C, P or M Zone.

(7) All wood waste and/or green waste recycling uses shall comply with all necessary public safety requirements of Los Angeles Municipal Code Section 57.121. These uses must not emit any odor or smell that is offensive to adjacent uses and must further satisfy all necessary requirements as set forth by applicable state and county agencies.

(8) No standing water shall be allowed to accumulate anywhere on the site.

(9) All leachates shall be collected, controlled, disposed of and shall not be allowed to remain at the site at any

time.

(10) The minimum lot area requirements set forth in Sections 12.05 and 12.06 shall be complied with for any chipping and grinding, composting, curing or mulching facility located in the A1 or A2 Zone.

(11) In addition to the findings otherwise required by this section, before granting an approval the City Planning Commission shall find that adequate safeguards are provided to control impacts resulting from residual waste materials, airborne transmission of dust particles, or debris from stockpiles, storage areas or roadways located on the premises.

10. **Hazardous Waste Facilities** in the M2 and M3 Zones where the principal use of the land is for the storage and/or treatment of hazardous waste as defined in Section 25117.1 of the California Health and Safety Code. In making any finding required pursuant to this section, the City Planning Commission shall consider whether the proposed use is consistent with the adopted County Hazardous Waste Management Plan and any additional siting criteria adopted by the City. In addition, in the case of those applications which are under the jurisdiction of Section 25199.7 of the California Health and Safety Code, time limits for City Planning Commission action shall be set forth in Article 8.7 of the California Health and Safety Code.

In connection with the implementation of these conditional uses, the Director of Planning shall issue administrative guidelines for the processing of these requests, including the levying of additional fees commensurate with the cost of notification and hiring of independent consultants to review the project as authorized by Section 25199.7 of the California Health and Safety Code.

11. **Hazardous Waste Facilities** in the M3 Zone where the principal use of the land is for the disposal of hazardous waste as defined in Section 25117.1 of the California Health and Safety Code. In making any finding required pursuant to this section, the City Planning Commission shall consider whether the proposed use is consistent with the adopted County Hazardous Waste Management Plan and any additional siting criteria adopted by the City. In addition, for those applications which come under the jurisdiction of Section 25199.7 of the California Health and Safety Code, time limits for City Planning Commission action shall be as set forth in Article 8.7 of the California Health and Safety Code.

In connection with the implementation of these conditional uses, the Director of Planning shall issue administrative guidelines for the processing of these requests, including the levying of additional fees commensurate with the cost of notification and the hiring of independent consultants to review the project as authorized by Section 25199.7 of the California Health and Safety Code.

12. **Hospitals or sanitariums** in the A, R, CR, C4, CM or M Zones, and in the C1 or C1.5 Zones if not permitted by right.

13. **Land reclamation projects** through the disposal of rubbish, as the term rubbish is defined in Section 66.00 of this Code and operated or caused to be operated by any city, county, district, or public or municipal corporation.

14. **“Major” development projects**, otherwise permitted by right in the zone(s) in which they are located and in compliance with the limitations and regulations of this article.

(a) **Definitions.** For purposes of this Subdivision the following words and phrases are defined as follows:

Day Laborer means a person who offers themselves to be hired as a laborer for a day, or some other temporary basis.

Economic Assistance Areas means the existing geographically defined areas: State Enterprise Zones, Federal Empowerment Zone, Federal Renewal Community Zone, Redevelopment Project Areas with Unexpired Community Redevelopment Plans, and Earthquake Project Areas, and a one-mile buffer surrounding each of the above-identified zones, as identified by the Economic & Workforce Development Department and as shown on the “Los Angeles Economic Assistance Areas” Map, dated January 2004, which is attached to Council File No. 00-1675 S2 and is on file in the Economic & Workforce Development Department, and which may be amended from time to time.

Home Improvement Store means a Major Development Project that contains 100,000 square feet or more in a building or structure, including the square footage of preexisting structures used as a part of the Home Improvement Store, that sells a large variety of goods, that may include, but are not limited to, the sale of hardware, lumber, plumbing supplies, electrical fixtures and supplies, windows, doors, garden supplies, plants and similar items, used in the maintenance, improvement or expansion of dwellings, buildings or sites.

Major Development Project means the construction of, the addition to, or the alteration of, any buildings or structures, which create or add 250,000 square feet or more of warehouse floor area, 250 or more hotel / motel guest rooms, a Home Improvement Store, or 100,000 square feet or more of floor area in other nonresidential or non-warehouse uses in the C2, C4, C5, CM, M1, M2 and M3 Zones. The above definition shall apply to the cumulative sum of related or successive permits which are part of a larger project, such as piecemeal additions to a building, or multiple buildings on a lot as determined by the Director of Planning. For the purpose of this subdivision, floor area shall be as defined in Section 12.03 of this Code.

Non-taxable Merchandise means products, commodities, or items not subject to California state sales tax. For purposes of this ordinance, the definition of non-taxable merchandise shall not include, without limitation, Sales Floor Area devoted to any of the following categories: services, including the services of a chiropractor, optometrist, optician, physician, surgeon, podiatrist, dentist, spa, gym, nail salon, and travel accommodation services; theaters and other entertainment uses; and food products sold through vending machines.

Sales Floor Area means the interior building space devoted to the sale of merchandise, but excludes restrooms, office space, storage space, automobile service areas, or open-air garden sales space. For the purpose of determining the total sales floor area of a single business establishment, the aggregate square footage of all adjacent stores that share common check stands, management of the business operation of such adjacent stores, controlling ownership interest in the business operation of such adjacent stores, warehouses, or distribution facilities shall be considered a single business establishment.

Superstore means a Major Development Project that sells from the premises goods and merchandise, primarily for personal or household use, and whose total Sales Floor Area exceeds 100,000 square feet and which devote more than 10% of sales floor area to the sale of Non-Taxable Merchandise. This definition excludes wholesale clubs or other establishments selling primarily bulk merchandise and charging membership dues or otherwise restricting merchandise sales to customers paying a periodic assessment fee. This definition also excludes the sale or rental of motor vehicles, except for parts and accessories, and the sale of materials used in construction of buildings or other structures, except for paint, fixtures, and hardware.

(b) **Supplemental Findings.** In addition to the findings set forth in Sec. 13B.2.3. (Class 3 Conditional Use Permit) of Chapter 1A of this Code, the City Planning Commission shall find:

- (1) that the project provides for an arrangement of uses, buildings, structures, open spaces and other improvements that are compatible with the scale and character of the adjacent properties and surrounding neighborhood;
- (2) that the project complies with the height and area regulations of the zone in which it is located; and
- (3) that the project is consistent with the City Planning Commission's design guidelines for Major Development Projects, if any.

(c) **Projects Exempt From Conditional Use Requirement:**

(1) Notwithstanding any provisions of this article to the contrary, any development project which received one or more still-valid discretionary approvals, including but not limited to those listed below, shall be exempt from the conditional use requirement set forth in this subdivision:

- (i) zone change;
- (ii) height district change;
- (iii) supplemental use district;
- (iv) conditional use approval;
- (v) variance or adjustment;
- (vi) parcel map;
- (vii) tentative tract map;
- (viii) coastal development permit;
- (ix) development agreement;
- (x) density bonus greater than the minimums pursuant to Government Code Section 65915;
- (xi) density transfer plan;
- (xii) exception from a geographically specific plan;
- (xiii) project permit pursuant to a moratorium or interim control ordinance or specific plan;
- (xiv) public benefit projects; or
- (xv) other similar discretionary approvals, as determined by the Director.

This exemption shall apply only if the applicable decision-making body determines in writing that the prior discretionary approval, and the required environmental review, considered significant aspects of the approved project's design (such as, but not limited to, building location, height, density, use, parking access) and that the existing environmental documentation under the California Environmental Quality Act is adequate for the issuance of the present permit in light of the conditions specified in Section 21166 of the California Public Resources Code. The Department of City Planning may require supplements to the environmental documentation to keep it current. The Director is hereby authorized to establish procedures to process decisions required under this paragraph.

(2) Any project within the boundaries of a designated Enterprise Zone, or Employment in Economic Incentive Zone provided that an Environmental Impact Report or Environmental Impact Statement was certified as part of the Zone designation process. The project shall instead require a Project Review pursuant to Sec. 13B.2.4. (Project Review) of Chapter 1A of this Code.

(d) Superstores in Economic Assistance Areas.

(1) **Supplemental Findings.** In addition to the findings otherwise required by Sec. 13B.2.3. (Class 3 Conditional Use Permit) of Chapter 1A of this Code and set forth in Paragraph (b) of this Subdivision, prior to approval of a Superstore that is located in an Economic Assistance Area, the City Planning Commission or the City Council on appeal shall find, after consideration of all economic benefits and costs, that the Superstore would not materially adversely affect the economic welfare of the Impact Area, based upon information contained in an economic impact analysis report submitted by the applicant, any other information received or obtained by the Community Development Department or the Community Redevelopment Agency, a recommendation by the Community Development Department, or the Community Redevelopment Agency pursuant to Subparagraph (3) below, and any other information received before or at a public hearing required by Sec. 13B.2.3. (Class 3 Conditional Use Permit) of Chapter 1A of this Code. The phrase "Impact Area" refers to a three mile radius surrounding the proposed location of the Superstore.

(2) **Economic Impact Analysis Report.** An application for approval of a Superstore pursuant to this paragraph shall prepare and submit the economic impact analysis report referenced in Subparagraph (1) to the Community Development Department or to the Community Redevelopment Agency, where appropriate, for review in conjunction with its application to the Department of Planning. The economic impact analysis report shall be reviewed by the Department or Agency and/or a consultant, if deemed necessary by the Department or Agency and paid for in full by the applicant. The Community Development Department and the Community Redevelopment Agency shall complete its review of the report within 60 days after receipt of the report from the applicant. The report shall identify whether:

- (i) Efforts to establish a market larger than 20,000 square feet within the Impact Area have been unsuccessful or whether the proposed use will have an adverse impact or economic benefit on grocery or retail shopping centers in the Impact Area;
- (ii) The Superstore would result in the physical displacement of any businesses, and, if so, the nature of the displaced businesses or would create economic stimulation in the Impact Area;
- (iii) The Superstore would require the demolition of housing, or any other action or change that results in a decrease of extremely low, very low, low or moderate income housing on site;
- (iv) The Superstore would result in the destruction or demolition of any park or other green space, playground, childcare facility, community center;
- (v) The Superstore would provide lower in cost and/or higher in quality goods and services to residents than currently available or that are currently unavailable from a cost benefit perspective within the Impact Area in which the Project is proposed to be located;
- (vi) The Superstore would displace jobs within the Impact Area or provide economic revitalization and/or job creation. For purposes of determining this impact, the applicant must identify the number of jobs displaced or created, the quality of the jobs, whether the jobs are temporary or permanent, and the employment sector in which the lost jobs are located;
- (vii) The Superstore would have a fiscal impact either positive or negative on City tax revenue;
- (viii) Any restrictions exist on the subsequent use of the property on which the Superstore is proposed to be located, including the provisions of a lease if applicable, which, in the event the owner or operator of the Superstore vacates the premises, would require the premises to remain vacant for a significant amount of time;
- (ix) The Superstore will result in any materially adverse or positive economic impacts or blight on the

Impact Area; and

(x) Any measures are available which will mitigate any materially adverse economic impacts, if any, identified by the applicant, if necessary.

(3) **Recommendation.** The Economic & Workforce Development Department, shall review the economic impact analysis report and, after consideration of economic benefits and costs, make a written recommendation as to whether the proposed Superstore will result in a materially adverse economic impact on the Impact Area and, if so, whether conditions are available which will mitigate the economic impact. The written recommendation, including proposed mitigation measures, if any, shall be submitted to the Department of Planning by the Economic & Workforce Development Department, in accordance with the written procedures on file with the Department.

(e) **Home Improvement Stores.**

(1) The City Planning Commission, or the City Council on appeal, may require written Day Laborer operating standards in accordance with Subparagraph (2) of this paragraph to be submitted to the Department for review and approval within 30 days of the mailing of the determination as a condition of approval of any Home Improvement Store. The Day Laborer operating standards will not be required if the City Planning Commission or the City Council on appeal makes the following findings:

(i) There is no existing Day Laborer population in the vicinity of the site proposed for the Home Improvement Store;

(ii) A significant number of Day Laborers are not expected to congregate in and around the Home Improvement Store for the purpose of seeking employment;

(iii) The congregation of Day Laborers in and around the Home Improvement Store will not result in increased trash around the site, increased noise or impede vehicular and pedestrian access to and from the site, as well as throughout its parking lot and adjacent sidewalks;

(iv) The congregation of Day Laborers in and around the Home Improvement Store will not cause potential adverse traffic, trash and loitering impacts to the commercial and residential areas surrounding the site; and

(v) Public or private security is available or economically feasible to reduce or eliminate the potential adverse impacts related to the presence of Day Laborers seeking employment at the Home Improvement Store.

(2) The written Day Laborer operating standards may include, but not be limited to, the following:

(i) A suitable area located on site for Day Laborers seeking employment with customers at the Home Improvement Store (Day Laborer Site) that:

(a) is easily accessible and viewable to Day Laborers seeking employment, as well as potential employers of these individuals;

(b) is located so as not to impede or restrict vehicular or pedestrian access to or from the Home Improvement Store, or throughout the parking lot and adjacent sidewalks;

(c) is designed to complement the overall design of structures located on the site and is integrated into the overall layout of the site;

(d) is equipped with a minimum level of easily accessible and convenient amenities, such as sources of drinking water, toilet and trash facilities, tables and seating, for use by Day Laborers seeking employment;

(e) is covered to provide adequate shelter from the weather;

(f) is open during the hours of operation of the Home Improvement Store.

(ii) A signage plan, indicating the location of signs at appropriate locations throughout the site directing Day Laborers either seeking employment or individuals seeking to employ Day Laborers to the Day Laborer Site.

(iii) A security plan, prepared in consultation with the Los Angeles Police Department.

15. **Motion picture and television studios** and related incidental uses that are located on a motion picture or television studio site, in the A, R, or C Zones, when not permitted by right. These incidental uses may include, but are not limited to, film, video,

audio and other media production, recording and broadcasting, sound labs, film editing, film video and audio processing, sets and props production, computer design, computer graphics, animation, offices and ancillary facilities related to those activities.

16. **(This paragraph intentionally left blank.)**

17. **Natural resources development** (except the drilling or production of oil, gas or other hydrocarbon substances, or the production of rock and gravel), together with the necessary buildings, apparatus or appurtenances incident to that use.

18. **Onshore installations** required in connection with the drilling for or production of oil, gas or hydrocarbons when the installations are permitted by the conditions of the offshore oil drilling district which is to be served.

19. In the **OS Open Space Zone**:

(a) Recreation centers, senior citizen centers, community centers, clubhouses, community rooms, playgrounds, beaches, swimming pools, libraries, tennis courts, game courts, rest rooms, gyms and camping facilities.

(b) Golf courses.

(c) Museums.

(d) Appurtenant structures adjacent to reservoir use, such as water treatment facilities, pumping facilities, distribution facilities and water filtration plants.

(e) Nature preserves, subject to the approval of a detailed site plan and management program approved by the operating agency and by the City Planning Commission pursuant to the procedure set forth in Subsection H. (Modification of Entitlement) of Sec. 13B.2.3. (Class 3 Conditional Use Permit) of Chapter 1A of this Code.

(f) Aquaria, observatories, planetaria and zoos.

(g) High voltage transmission lines (including towers).

(h) Any use set forth in Section 12.04.05 B.1. when located on land which:

(1) includes a lake, river or stream; or

(2) is designated as an historic or cultural landmark.

(i) Change of use from any of the uses listed above to any use described in Section 12.04.05 B.1.

20. **Piers, jetties, human-made islands, floating installations**, or the like in connection with the uses listed in Section 12.20.1 B.2.(a), in the SL Ocean-Submerged Land Zone.

21. The following uses in the **PF Zone**: convention and exhibition centers; government owned parking facilities; flood control facilities; sewage treatment facilities; covered reservoirs; appurtenant structures adjacent to covered and uncovered reservoirs, such as water treatment facilities, water pumping facilities, water distribution facilities, and water filtration plants; sanitary landfills; and any joint public and private development uses more intensive than those permitted in the most restrictive adjoining zones. The phrase "adjoining zones" refers to the zones of properties abutting, across the street or alley from, or having a common corner with, the subject property. In addition to the findings otherwise required by this subdivision, for any joint public and private development uses, the Commission shall find that benefits are provided to the public and that the benefit accruing from the project, whether as a result of additional taxes of the provision of public facilities, is sufficient to outweigh any impairment of the public interest that may be created by the public agencies' proposed use of the land.

22. The following **recycling uses** in the zones listed below, subject to the limitations indicated.

(a) The depositing of glass, cans, papers, plastic, beverage containers, and similar Recyclable Materials, Recycling Collection or Buyback Centers, and Mobile Recycling Centers, in the C2, C5, CM, P, PB, MR1, M1, or MR2 Zones, provided that the facility complies with all of the conditions set forth in Section 12.21 A.18.(d), except when the conditions are specifically modified by the City Planning Commission.

(b) The depositing of glass, cans, papers, plastic, beverage containers, and similar Recyclable Materials, Recycling Collection or Buyback Centers, and Mobile Recycling Centers, in the M2 or M3 Zones when the facility is not in compliance with all of the conditions set forth in Section 12.21 A.18.(d).

(c) Recycling Materials Processing Facilities in the M2 and M3 Zones when the facility is not in compliance with all of the conditions set forth in Section 12.21 A.18.(f).

(d) Recycling Materials Sorting Facilities in the M and MR Zones when the facility is not in compliance with all of the conditions set forth in Section 12.21 A.18.(e).

(e) An application for a conditional use shall be referred forthwith for review to the City Council member of the district in which the property is located.

23. **Research and development centers** for experimental or scientific investigation of materials, methods or products, except in the RA and R Zones.

24. **Schools:**

- (a) Public schools, elementary and high (kindergarten through 12th grade);
- (b) Private schools, elementary and high (kindergarten through 12th grade) in the A, RE, RS, RI, RU, RZ, RMP, RW1, R2, RD, RW2, R3, C1, C1.5, or M Zones;
- (c) Private schools (other than elementary or high (kindergarten through 12th grade) or nursery schools) in the A, R, CR, C1, or C1.5 Zones.

25. **Sea Water Desalinization Facilities** and sites where the principal use of the land is for the purposes of a sea water desalinization plant, provided that the facilities comply with all applicable state and federal regulations.

26. **Density Bonus for a Housing Development in Which the Density Increase Is Greater than the Maximum Permitted in Section 12.22 A.37. (Amended by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25 and Ord. No. 188,481, Eff. 2/11/25, Oper. 2/11/25. See Resolution Eff. 6/18/25.)**

(a) In addition to the findings set forth in Section 13B.2.3. (Class 3 Conditional Use Permit) of Chapter 1A of this Code, the City Planning Commission shall find that:

(1) The project is consistent with and implements the affordable housing provisions of the Housing Element of the General Plan, and does not seek approval through the Housing Element Sites Program (Sec. 16.70 of this Code).

(2) The project contains the requisite number of Restricted Affordable Units, calculated from the number of residential units provided but excluding the residential units added by a Density Bonus, in order to obtain the following initial Density Bonuses under State Law based on a selected single Restricted Affordable Unit income category:

(i) 25% Very Low Income Units for an 88.75% density increase (15% + 10% per California Government Code Section 65915(f) and (v)); or

(ii) 24% Lower Income Units for a 50% density increase (California Government Code Section 65915(f)); or

(iii) 44% Moderate Income Units for a 50% density increase in for-sale projects (per California Government Code Section 65915(f)).

The project also provides the following additional Restricted Affordable Units so that the project may then be granted an additional Density Bonus under the single Restricted Affordable Unit category that is beyond the above State Law Density Bonuses based on the single income category:

(iv) For every additional 1% set aside of Very Low Income Units, the project is granted an additional 2.5% density increase; or

(v) For every additional 1% set aside of Lower Income Units, the project is granted an additional 1.5% density increase; or

(vi) For every additional 1% set aside of Moderate Income Units in for-sale projects, the project is granted an additional 1% density increase.

(vii) In calculating the density increase, number of Restricted Affordable Units, and number of residential units provided exclusive of Density Bonus units, each component of any density calculation resulting in fractional units shall be separately rounded up to the next whole number.

(3) The project meets any applicable dwelling unit replacement requirements and demolition protections of California Government Code Section 65915(c)(3) and Section 16.60 of this Code as verified by the Los Angeles Housing Department (LAHD). Replacement housing units required pursuant to these sections may count toward any on-site Restricted Affordable Unit requirement above;

(4) The project meets the requirements for projects that include affordable housing referenced in Section 16.61

B. and C. of this Code, including the Fair Housing Requirements For Affordable Housing.

(5) The project's Restricted Affordable Units are subject to a recorded affordability restriction of 55 years, or 99 years pursuant to Section 16.61 A. of this Code as applicable, running from the issuance of the Certificate of Occupancy, recorded in a covenant acceptable to the Los Angeles Housing Department, and subject to fees as set forth in Section 19.14 of this Code.

27. Floor area bonus for a residential (including Apartment Hotel and mixed-use) building in the Greater Downtown Housing Incentive Area where the floor area bonus exceeds that permitted pursuant to Section 12.22 A.29. of this Chapter.

In addition to the findings set forth in Sec. 13B.2.3. (Class 3 Conditional Use Permit) of Chapter 1A of this Code, the City Planning Commission shall find:

(a) that the project is consistent with and implements the affordable housing provisions of the General Plan's Housing Element; and

(b) that any residential building (including Apartment Hotels and mixed-use buildings) in the Central City Community Plan Area conforms with the Urban Design Standards and Guidelines for the Central City Community Plan Area.

28. Solid Waste Alternative Technology Processing Facilities in the M2, M3, and PF Zones. In addition to the other findings required by Sec. 13B.2.3. (Class 3 Conditional Use Permit) of Chapter 1A of this Code, the City Planning Commission shall make all of the following findings:

(a) that the proposed location of the facility will not result in an undue concentration of solid waste alternative technology processing facilities in the immediate area, will not create a cumulative impact with special consideration given to the location of solid waste facilities already permitted and will support the equitable distribution of these facilities citywide;

(b) that an effort was made to locate the facility in close proximity to existing solid waste facilities, transfer stations, solid waste resource collection vehicle yards, material recovery facilities and green waste processing facilities;

(c) that the facility will not detrimentally affect nearby residential uses and other sensitive land uses, taking into consideration the number and proximity of residential buildings, churches, schools, hospitals, public playgrounds, nursing homes, day care centers, and other similar uses within a 1,500 foot radius of the proposed site;

(d) that the facility operator will provide a language appropriate quarterly newsletter and other benefits to businesses and residents likely to be impacted by this facility, taking into consideration the location of the proposed site and nearby uses;

(e) that the facility and the vehicles serving the facility are designed, constructed and operated to ensure that they will not create noise, odor, or visual blight that is detrimental to nearby uses;

(f) that access to the facility, on-site parking and vehicle storage will not constitute a traffic hazard or cause significant traffic congestion or disruption of vehicular circulation on adjacent streets; and

(g) that hazardous waste and household hazardous waste as defined in the California Code of Regulations, Title 22, Section 66260.10, universal waste as defined in the California Code of Regulations, Title 22, Section 66261.9, radioactive waste as defined in Section 114985 of the California Health and Safety Code and medical waste as defined in Section 117690 of the California Health and Safety Code, will not be received at the facility.

29. Petroleum-Based Oil Refineries (production of petroleum-based fuels, asphalt, coke or similar products) in an M3 Zone:

(a) Project Types.

(1) New refineries;

(2) Existing refineries expanding operations beyond the current property lines.

(b) Requirements.

(1) Current compliance with all of the required Unified Programs (Unified Hazardous Waste and Hazardous Materials Management Regulatory Program). California Environmental Reporting System (CERS) database submittals may serve as proof of compliance.

(2) Submittal of a health impact assessment of the project for the surrounding vicinity identifying pollution and population indicators, such as, but not limited to, those analyzed in the California Communities Environmental Health Screening Tool; the number of people affected by the project; short term or permanent impacts caused by the project; likelihood that impacts will occur; and recommended mitigation measures.

(3) Submittal of a truck routing plan that minimizes the incidence of a commercial truck traveling past residences, churches, schools, hospitals, public playgrounds, nursing homes, day care centers, and other similar uses.

30. Mixed Commercial / Residential Use Developments.

(a) **Findings.** In addition to the findings set forth in Sec. 13B.2.3. (Class 3 Conditional Use Permit) of Chapter 1A of this Code, the City Planning Commission shall find that:

(1) the project is consistent with and implements the affordable housing provisions of the General Plan's Housing Element;

(2) the project will further the City's goal of achieving an improved jobs-housing relationship, which is needed to improve air quality in the City;

(3) pursuant to an agreement entered into under Government Code Sections 65915 - 65918, the project will include the number of Restricted Affordable Units as set forth in Section 12.24 U.26.(a)(1) through (5) of this Chapter, with any percentage increase in floor area treated the same as a percentage increase in density for purposes of calculating the number of Restricted Affordable Units;

(4) the affordability of all reserved lower income dwelling units will continue for a minimum of 55 or 99 years as specified in Section 16.61 A. of this Code; (**Amended by Ord. No. 188,481, Eff. 2/11/25, Oper. 2/11/25.**)

(5) the construction and amenities provided for the reserved lower income dwelling units will be comparable to those provided for the market rate dwelling units in the development, including the average number of bedrooms and bathrooms per dwelling unit; and

(6) the approval of a mixed use development on the site will provide for affordable housing costs in the housing development.

(b) Only residential dwelling units shall be considered a residential use for purposes of this subdivision's provisions regarding mixed commercial / residential use developments.

(c) In approving a mixed commercial / residential use development in Height District No. 1, the City Planning Commission may permit a floor area ratio for the development not to exceed three times the buildable area of the lot.

(d) In approving a mixed commercial / residential use development, the City Planning Commission may permit a floor area ratio for the development not to exceed twelve times the buildable area of the lot, when the development is located:

(1) in Height District Nos. 2, 3 or 4;

(2) not more than 1,500 feet distant from the portal of a fixed rail transit or bus station or other similar transit facility; or

(3) within a Community Redevelopment Plan Area, an Enterprise Zone or a Centers Study Area, as described in Sections 12.21.3, 12.21.4, and 12.21.5.

(e) Any floor area above the maximum allowed in the plan or the zone, whichever is less, shall be utilized solely for residential development.

(f) The provisions of this subdivision may not be used in combination with the provisions of Subsection W.15., but may be used in combination with the provisions of Section 12.22 A.18.

V. (This subsection intentionally left blank.)

W. Authority of the Zoning Administrator for Conditional Uses / Initial Decision. The following uses and activities may be permitted in any zone, unless restricted to certain zones or locations, if approved by the Zoning Administrator as the initial decision-maker or the Area Planning Commission as the appellate body. The procedures for reviewing applications for these uses shall be those in Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code in addition to those set out below.

1. The sale or dispensing for consideration of alcoholic beverages, including beer and wine, for consumption on the premises or off-site of the premises in the CR, C1, C1.5, C2, C4, C5, CM, MR1, MR2, M1, M2 and M3 Zones, or as an incidental business in or accessory to the operation of clubs, lodges, hotels or apartment hotels, or as an incidental business in or accessory to a conditional use approved pursuant to the provisions of this section, provided that:

(a) **Findings.** In addition to the findings otherwise required by Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code, the Zoning Administrator shall make all of the following findings:

(1) that the proposed use will not adversely affect the welfare of the pertinent community;

(2) that the granting of the application will not result in an undue concentration of premises for the sale or dispensing for consideration of alcoholic beverages, including beer and wine, in the area of the City involved, giving consideration to applicable State laws and to the California Department of Alcoholic Beverage Control's guidelines for undue concentration; and also giving consideration to the number and proximity of these establishments within a one thousand foot radius of the site, the crime rate in the area (especially those crimes involving public drunkenness, the illegal sale or use of narcotics, drugs or alcohol, disturbing the peace and disorderly conduct), and whether revocation or nuisance proceedings have been initiated for any use in the area; and

(3) that the proposed use will not detrimentally affect nearby residentially zoned communities in the area of the City involved, after giving consideration to the distance of the proposed use from residential buildings, churches, schools, hospitals, public playgrounds and other similar uses, and other establishments dispensing, for sale or other consideration, alcoholic beverages, including beer and wine.

(b) **Notice to Councilmember.** Whenever an application for a conditional use has been filed pursuant to this subdivision, the Zoning Administrator shall give notice of this fact promptly to the councilmembers whose districts include portions of the area of the City involved.

(c) **Limitations.** The provisions of this Subdivision shall not apply to the sale or dispensing for consideration of alcoholic beverages, including beer and wine, for consumption off-site of any premises located within the area of an operative specific plan which provides for conditional use approval for sale or dispensing. If that specific plan ceases to be operative, then a conditional use approval granted pursuant to the provisions of that specific plan for sale or dispensing may continue subject to the same rights and limitations as a conditional use granted pursuant to the provisions of this Section.

(d) **Existing Uses.** The use of a lot for an establishment dispensing, for sale or other consideration, alcoholic beverages, including beer and wine, for on-site or off-site consumption may not be continued or re-established without conditional use approval granted in accordance with the provisions of this Section if, after September 13, 1997, there is a substantial change in the mode or character of operation of the establishment, including any expansion by more than 20 percent of the floor area, seating or occupancy, whichever applies; except that construction for which a building permit is required in order to comply with an order issued by the Department of Building and Safety to repair or remedy an unsafe or substandard condition is exempt from this provision. Any expansion of less than 20 percent of the floor area, seating or occupancy, whichever applies, requires the approval of plans pursuant to Subsection H. (Modification of Entitlement) of Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code.

(e) **Exceptions.** Notwithstanding Paragraph (d) above, conditional use approval or a plan approval shall not be required solely for the purposes of providing an Outdoor Dining Area pursuant to LAMC Section 12.21 A.24. **(Added by Ord. No. 188,073, Eff. 1/31/24.)**

2. **Automotive fueling and service stations**, but not including automobile laundry or wash rack in the C1.5 and C4 Zone, subject to:

(a) The site shall abut a major or secondary highway;

(b) No service station activities, other than a public parking area, shall be located within 20 feet of an A or R Zone;

(c) The requirements of Paragraphs (a), (b), (c), (d) and (g) of Section 12.14 A.6. shall apply;

(d) Driveways shall be located and designed so as to minimize conflicts with pedestrian and vehicular traffic, and on a corner lot shall be located 25 feet or more from the intersection of the street lot lines;

(e) Display of merchandise for sale shall be permitted only within enclosed buildings, on the pump islands, in the open within three feet of the exterior walls of the main building, and in not more than two portable or semi-portable cabinets, provided each of the cabinets does not exceed six feet in height, nor 40 square feet in base area, and provided further that these cabinets are located not less than 50 feet from all street lines;

(f) There shall be no rental of equipment, trailers or vehicles;

(g) Storage of materials or equipment shall be permitted only within a completely enclosed building or within an area enclosed on all sides with a solid wall or fence, not less than six feet in height;

(h) Not more than two signs which are freestanding or which project more than two feet above the roof of a building to which they are attached, and not more than two portable signs, shall be permitted;

(i) One percent or more of the area of the lot shall be suitably landscaped and provision shall be made for maintenance

of landscaped areas.

3. **Automotive repair** in the C4 Zone.

4. **Automotive Uses in the C Zones that do not comply with the Development Standards and Operating Conditions enumerated in Sections 12.22 A.28. or in the M Zones that do not comply with Section 12.17.6 of this Code.**

(a) **Standards.** In making a determination on an application for a conditional use filed pursuant to this subdivision, a Zoning Administrator may consider all of the applicable provisions of Section 12.22 A.28. of this Chapter as establishing minimum standards for the approval of automotive uses.

(b) **Supplemental Findings.** In addition to the findings set forth in Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code, the Zoning Administrator shall find:

(1) that project approval will not create or add to a detrimental concentration of automotive uses in the vicinity of the proposed automotive use;

(2) that based on data provided by the Department of Transportation or a licensed traffic engineer, ingress to, egress from and associated parking of the automotive use will not constitute a traffic hazard or cause significant traffic congestion or disruption of vehicular circulation on adjacent streets;

(3) that any spray painting will be conducted within a fully enclosed structure located at least 500 feet away from a school or A or R zone, and that all spray painting will be conducted in full compliance with the provisions of Article 7, Chapter 5 of this Code, as well as South Coast Air Quality Management District Rules 1132 and 1151, regulating these installations; and

(4) that the applicant has submitted an appropriate landscape plan setting forth all plant materials and irrigation systems, and a written maintenance schedule indicating how the landscaping will be maintained.

5. **Bovine feed or sales yards**, riding academies or the commercial grazing, breeding, boarding, raising or training of domestic animals in the A1 or A2 Zones; and the raising, grazing, breeding, boarding or training of equines, riding academies or stables in the RA, MR or M1 Zones.

6. **Cattle or goat dairies** in the A1 or A2 Zones.

7. **(This paragraph intentionally left blank.)**

8. **Chipping and grinding facilities** in the M2 Zone where these facilities are not conducted within a wholly enclosed building.

9. **Churches** (except rescue mission or temporary revival) in the A, RE, RS, R1, RU, RZ, RMP, RW1, R2, RD, RW2, R3, C1, C1.5, CM or M Zones.

10. **Circus quarters or menageries** in the A Zones and MR2 Zone.

11. **CM uses** in the C1, C1.5, C2, C4, and C5 Zones where located within the boundaries of a Redevelopment Project Area, as that term is defined by Section 11.5.14, and when the uses conform to the provisions of the applicable Redevelopment Plan, as that term is defined by Section 11.5.14.

12. **Columbariums, crematories or mausoleums**, other than in cemeteries, in the A, R, C (except CR), M1 and MR2 Zones.

13. **Community antenna facilities** franchised by the City of Los Angeles for cable television or radio service in the A, R, C1 or C1.5 Zones.

14. **Counseling and referral facilities** in the R3, R4 and R5 Zones; provided that, in addition to the findings otherwise required by this section, the Zoning Administrator shall also specifically find that:

(a) The facility will serve the immediate neighborhood in which it is to be located; and

(b) No commercially zoned property equally accessible to that neighborhood is reasonably available for the location of the facility.

15. **Developments Combining Residential and Commercial Uses in the R5 Zone when located outside the Central City Community Plan Area.** Any use or combination of uses in the CR, C1, C1.5, C2, C4, C5 or R5 Zones may be authorized. (For mixed use developments permitted by right, see Section 12.22 A.18. of this Code.)

16. **Drive-in theaters** in the A, R or C1 Zones.

17. **Drive-through fast-food establishments** in all C Zones, except the CR Zone, when located on a lot, the lot line of which adjoins, is across the street from, or separated only by an alley from, any portion of a lot or lots in a residential zone or use or the RA Zone. In addition to the findings otherwise required by Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code, the Zoning Administrator shall also find:

(a) that residential uses in the vicinity of a proposed drive-through fast-food establishment will be adequately protected from any significant noise resulting from outdoor speakers, autos, or other sources of noise associated with the lot;

(b) that all stationary light generated on the lot is screened to avoid any significant adverse impact on nearby residential uses; and

(c) that trash storage, trash pickup hours, driveways, parking locations, screening walls, trees and landscaping are provided for and located so as to minimize disturbance to the occupants of nearby residential uses, and to enhance the privacy of those uses.

18. The following **entertainment uses** in the zones specified:

(a) Dance Halls in the C2, C4, C5, CM, M1, M2 or M3 Zones.

(b) Hostess dance halls in the C2, C5, CM, M1, M2 or M3 Zones.

(c) Massage parlors or sexual encounter establishments as both terms are defined in Section 12.70 in the C2, C5, CM, M1, M2 or M3 Zones and which otherwise comply with all requirements of Section 12.70.

19. **Floor area ratio averaging and residential density transfer in unified developments.**

(a) **Floor Area Ratio Averaging.** The averaging of floor area ratios may be permitted for buildings which will comprise a unified commercial, industrial, or mixed-use development in the C or M zones citywide or in the R5 zone within the Central City Community Plan Area, even if buildings on each individual parcel or lot would exceed the permitted floor area ratio. However, the floor area ratio for the unified development, when calculated as a whole, may not exceed the maximum permitted floor area ratio for the height district(s) in which the unified development is located.

(b) **Residential Density Transfer.** The transfer of residential density may be permitted for buildings which will comprise a unified mixed-use development in the C zones citywide or in the R5 zone within the Central City Community Plan Area, even if buildings on each individual parcel or lot would exceed the permitted density. However, the number of all dwelling units and guest rooms for the unified development, when calculated as a whole, may not exceed the maximum number permitted based on the minimum lot area per dwelling unit and guest room standards set forth in the zone(s) in which the unified development is located.

(c) **Definition.** A unified development for purposes of this subdivision shall mean a development which is:

(1) a combination of functional linkages, such as pedestrian or vehicular connections;

(2) in conjunction with common architectural and landscape features, which constitute distinctive design elements of the development;

(3) is composed of two or more contiguous parcels, or lots of record separated only by a street or alley; and

(4) when the development is viewed from adjoining streets appears to be a consolidated whole.

(d) **Supplemental Finding.** In addition to the findings otherwise required by Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code, before granting an approval, the Zoning Administrator shall find that the development, although located on separate parcels or lots of record, is a unified development as defined by this Subdivision.

(e) **Procedures.** In addition to the requirements of Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code, all persons with an ownership interest in the property requesting floor area ratio averaging, residential density transfer, or both, and all persons with mortgage interests, including those persons holding ground leases, must sign the application. A current title search shall be submitted with the application to ensure that all persons with an ownership interest in the property have signed the application.

(f) **Covenant.** If the Zoning Administrator approves the floor area ratio averaging or residential density transfer, then the applicants shall file a covenant running with the land with the Department of Building and Safety prior to the issuance of any building permits:

(1) guaranteeing to continue the operation and maintenance of the development as a unified development;

(2) indicating the floor area and, if applicable, density used on each parcel and the floor area and, if applicable,

density potential, if any, that would remain;

(3) guaranteeing the continued maintenance of the unifying design elements; and

(4) specifying an individual or entity to be responsible and accountable for this maintenance and the fee for the annual inspection of compliance by the Department of Building and Safety, required pursuant to Section 19.11 of this Chapter.

20. **Foundries** in the MR1 Zone.

21. **Fraternity or sorority houses** in the A, R1, RU, RZ, RMP, RW1, R2, RD, RW2 or R3 Zones.

22. **Garbage**, fat, offal, or dead animal reduction, or rendering in the M3 Zone, provided the site is located at least 500 feet from a more restrictive zone.

23. **Helipoint** incidental to an office building, hospital or residential use.

24. **(Deleted by Ord. No. 188,072, Eff. 7/1/24.)**

25. **Kennels or facilities for breeding and boarding of animals** (no outside keeping of animals - no open runs) in the M Zones where any portion of the parcel is located within 500 feet of any residential zone.

26. **Miniature or pitch and putt golf courses, golf driving tees or ranges, and similar commercial golf uses**, in the A, R, or C1 Zones.

27. **Mini-Shopping Centers** in the C, M1, M2, or M3 Zones and Commercial Corner Developments in any C or M zone, the lot line of which adjoins, is separated only by an alley, or is located across the street from any portion of a lot zoned A or R which: (1) contain a commercial use not otherwise subject to conditional use approval which operates between the hours of 11 p.m. and 7 a.m.; (2) contain an amusement enterprise as enumerated in Section 12.14 A.3. of this Chapter; (3) contain an automobile laundry or wash rack; and/or (4) do not comply with the requirements and conditions enumerated in Section 12.22 A.23. of this Chapter.

(a) **Standards.** In making a determination on an application for a conditional use filed pursuant to this Subdivision, a Zoning Administrator may consider the provisions of Section 12.22 A.23. of this Chapter as establishing minimum standards for the approval of a Mini-Shopping Center or Commercial Corner Development, provided, however, that no building or structure shall exceed the height requirements set forth in Section 12.22 A.23.(a)(1) of this Chapter.

(b) **Findings.** In addition to the findings set forth in Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code, the Zoning Administrator shall find:

(1) that based on data provided by the City Department of Transportation or by a licensed traffic engineer, that ingress to and egress from the project will not create a traffic hazard or cause significant traffic congestion or disruption of vehicular circulation on adjacent streets; and

(2) that project approval will not create or add to a detrimental concentration of Mini-Shopping Centers or Commercial Corner Developments in the vicinity of the proposed project.

(c) **Mini-Shopping Center and Commercial Corner Development Regulations.** Project review pursuant to the Mini-Shopping Center Commercial Corner Development regulations in Section 12.22 A.23. shall not be required for projects in those specific plan areas, as determined by the Director, where similar mini-shopping center or commercial corner development regulations are established by the specific plan and significant project environmental impacts, if any, are mitigated by the measures imposed in the Project Compliance.

28. **Two or more development incentives pursuant to Section 13.09 E.4. for a Mixed Use Project in a Mixed Use District.** In addition to the findings set forth in Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code, the Zoning Administrator shall find that the project provides for an arrangement of uses, buildings, structures, open spaces and other improvements that are compatible with the scale and character of the adjacent properties and surrounding neighborhood.

29. **Mortuaries or funeral parlors** in the C2, C4, C5, CM or M1 Zones.

30. **Nightclubs or other establishments** offering dancing or live entertainment in conjunction with a restaurant within the area governed by the Westwood Village Specific Plan.

31. **Nurseries**, including accessory buildings, necessary only for the growing of flowers, shrubs and trees, but not including any store or office building nor any retail sales on the premises, in the R, C1 and C1.5 Zones.

32. **Outdoor Dining Areas that Deviate from the Standards Set Forth in LAMC Section 12.21 A.24.(d)(1)(i) and (ii) But Maintain a Valid Certificate of Occupancy or Valid Permit Issued by LADBS for an Outdoor Dining Area** in the RAS3,

RAS4, CR, C1, C1.5, C2, C4, C5, CM, M1, M2, and M3 Zones or wherever restaurants are permitted. **(Amended by Ord. No. 188,073, Eff. 1/31/24.)**

33. **Pawnshops** in the C2, C5, CM, M1, M2 and M3 Zones.

34. **Penny arcades** containing five or more coin or slug-operated or electrically, electronically or mechanically controlled game machines in the C2, C5, CM, M1, M2 or M3 Zones.

35. **Private clubs** in the A, R1, RU, RZ, RMP, RW1, R2, RD, RW2, R3 or R4 Zones.

36. **Professional uses** in the R4 or R5 Zones, provided the property fronts a major or secondary highway as these highways are shown on the Highways and Freeways Element of the General Plan, and provided further that these uses shall be conducted within a one or two-family dwelling, the residential character of which shall not be changed, and that no signs shall be permitted other than those specifically allowed in the zone or by a Zoning Administrator.

37. **Public parking areas** in the A or R Zones.

38. **Reduced on-site parking** for Senior Independent Housing, Assisted Living Care Housing, and/or a Housing Development Occupied By Disabled Persons in the RD, R3, RAS3, R4, RAS4, or R5 Zones, CR, C1, C1.5, C2, C4 or C5 Zones, provided that:

(a) For purposes of this subdivision, a disabled person is a person who has: (a) physical or mental disabilities, which seriously restricts that person from operating a motor vehicle; (b) is expected to be of long, continued and indefinite duration; (c) substantially impedes the person's ability to live independently; and (d) is of a nature that the ability to live independently could be improved by more suitable housing conditions.

(b) Parking spaces may be reduced to 25 percent of the number otherwise required by Section 12.21 A.4.(u).

(c) The reduced number of parking spaces provided for each development shall be determined by a Zoning Administrator on the basis of:

(1) anticipated parking needs of occupants, employees and visitors; and

(2) availability of public transit; and

(3) access from the site to medical facilities, shopping, commercial services and community facilities.

(d) Each application for reduction of parking spaces shall be referred promptly for review to the Councilmember of the district in which the property is located.

(e) When a reduction of parking spaces is approved, the owner of the land shall furnish and record an agreement in the Office of the County Recorder of Los Angeles County, California, as a covenant running with the land for the benefit of the City of Los Angeles, providing that, should the use change, the owner will develop the parking spaces to meet the requirements of Sections 12.21 A.4. and 5.

39. **The rental, storage or storage for rental purposes** of household moving rental trucks and utility rental trailers including those which exceed a registered net weight of 5,600 pounds in the C2, C5, CM and MR1 Zones. When acting on an application, a Zoning Administrator shall consider, among other criteria, the following:

(a) that its operation would provide an essential service or retail convenience to the immediate residential neighborhood or a benefit to the community; and

(b) that its operation will be reasonably compatible with and not be detrimental to the public welfare or injurious to the improvements and use of adjacent properties.

40. **Restaurant (including café)** for the use of the general public in the MR1 and MR2 Zones.

41. **The sale of firearms and/or ammunition** in the C1, C1.5, C2, C4, C5, CM, M1, M2 and M3 Zones. In addition to the findings otherwise required by this section, the Zoning Administrator shall also consider whether the proposed use will result in an over-concentration of this use in the area, and the number of firearms available for sale at the site.

42. **The sale of merchandise:**

(a) From a privately owned vacant lot in the C1, C2, M2, and M3 Zones in the open;

(b) From a drive-in theater in the M2 and M3 Zones in the open; or

(c) At an indoor swap meet in the C1, C1.5, C2, C4, C5, M1, M2, and M3 Zones. For purposes of this paragraph, the following definitions shall apply:

(1) “**Indoor swap meet**” shall mean any event where new or secondhand goods are offered or displayed for sale or exchange by ten or more independent vendors within a completely enclosed building. An independent swap meet vendor is any individual, partnership, corporation, business association or other person or entity who is not an employee of the owner or lessee of the subject building; and

(i) A fee is charged by a swap meet operator for the privilege of offering or displaying new or secondhand goods for sale or exchange; or

(ii) A fee is charged to prospective buyers for admission to the area where new or secondhand goods are offered or displayed for sale or exchange.

(2) “**Mini-shopping center**” shall mean any development,

(i) with a lot area of less than forty-five thousand square feet, used for two or more retail sales, services or restaurants, or their combination;

(ii) with the structure or structures located in close proximity to the rear lot line and/or side lot line, and

(iii) with surface parking situated between the structure or structures and the street.

(3) A “**shopping center**” or “**industrial center**” is defined as a unit group of buildings used for commercial and/or industrial purposes together with open space and vehicle parking areas where the occupants of the buildings and their customers have a joint right to use the open space and vehicle parking areas.

EXCEPTIONS: The provisions of this subdivision shall not apply to a retail store or shop in a “mini-shopping center”, in a “shopping center” or in an “industrial center” as defined in Subparagraphs (2) and (3) above, unless that store or shop is being used as the location of an indoor swap meet as defined in Subparagraph (1) above.

43. (This paragraph intentionally left blank.)

44. (This paragraph intentionally left blank.)

45. **Stand for display or sale** of agricultural and farm products raised or produced on the same premises in the RA Zone.

46. **Swine keeping**, more than five, in the A1 Zone, and swine keeping in the A2 and RA Zones.

47. **Temporary geological exploratory core holes** in all zones except the M3 Zone. The Zoning Administrator may approve the use of a site for a period of time deemed necessary to drill, test and abandon temporary geological exploratory core hole(s) provided that the time period may not exceed 200 days unless the Zoning Administrator finds that the drilling activities cannot be completed within 200 days due to depth, or deviation, or number of temporary geological exploratory core hole(s) to be drilled. However, in no event shall the Zoning Administrator increase the time period beyond 200 days by more than an additional 165 days.

48. **Temporary storage** of abandoned, partially dismantled, obsolete or wrecked automobiles (not including the dismantling or wrecking of automobiles or the storage or sale of used parts) in the C2, C4, C5, CM, MR1, or M1 Zones.

49. **Wireless telecommunication facilities**, including radio and television transmitters citywide, other than wireless antennas and associated equipment cabinets on the rooftops of buildings in the C and M Zones, including geographic specific plan areas, which conform to the provisions of Section 12.21 A.21. of this Chapter:

(a) In all zones, except the M1, M2 or M3 Zones;

(b) In the M1, M2, or M3 Zones when the property containing the facility is located across the street from, abutting, or adjoining a residential use or A or R Zone, including the RA Zone, and/or if the facility cannot meet the Wireless Telecommunication Facilities standards contained in Section 12.21 A.20. of this Chapter;

(c) In geographic specific plan areas, except for those located within scenic corridors, scenic parkway specific plan areas or upon roadways designated as scenic highways within specific plan areas, which shall all be reviewed pursuant to Sec. 13B.4.5. (Project Exception) of Chapter 1A of this Code; and

(d) On the rooftops of buildings which are designated on the National Register of Historic Places, including Contributing Buildings in National Register Historic Districts, the California Register of Historic Resources, the City of Los Angeles List of Historic-Cultural Monuments, or a Contributing Structure located in an Historic Preservation Overlay Zone (HPOZ) that has been established pursuant to Section 12.20.3 of this Chapter and Div. 13B.8. (Historic Preservation) of Chapter 1A of this Code.

(e) **Supplemental Findings.** In addition to the findings set forth in Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code, the Zoning Administrator shall consider and balance the benefit of the project to the public with the facility's technological constraints, design, and location, as well as other relevant factors, and in doing so find that the project is consistent with the general requirements of the Wireless Telecommunication Facilities Standards set forth in Section 12.21 A.20. of this Chapter.

50. **Storage buildings for household goods, including truck rentals,** in the C2, C5 and CM Zones; and in the M1, M2 and M3 Zones when within 500 or fewer feet from an A or R Zone or residential use, as measured from the external lot line closest to the A or R Zone. In addition to the findings set forth in Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code, the Zoning Administrator shall find that the project provides for an arrangement of uses, buildings, structures, open spaces and other improvements that are compatible with the scale and character of the adjacent properties and surrounding neighborhood.

51. **Child care facilities or nursery schools** in the A, RE, RS, R1, RU, RZ, RMP, RW, R2, R3, RAS3, or RD Zones, and in the CM and M Zones when providing care primarily for children of employees of businesses/industries in the vicinity.

52. **Project(s) in Neighborhood Stabilization Overlay (NSO) Districts** in the R2, RD, R3, RAS, R4, R5, CR, C1, C1.5, C2, C4 C5, or CM zones that create at least one dwelling unit with five or more habitable rooms.

(a) **Supplemental Findings.** In addition to the findings otherwise required by Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code, and the requirements of Section 12.21 A.4.(a) of this Chapter relating to Off-Street Automobile Parking, the Zoning Administrator shall make the following findings:

(1) That the Project provides additional on-site parking under Section 13.12 C.2. of this Chapter;

(2) That there is no detrimental concentration of large scale, campus serving housing within a one-thousand-foot radius of the proposed Project; and

(3) That the Project conforms to any applicable Historic Preservation Overlay Zone (HPOZ) or Specific Plan.

53. **Structures solely supporting solar energy systems not otherwise permitted.** A Zoning Administrator may, upon application, permit structures that solely support solar energy systems that deviate from any regulation in the zoning code, such as height, lot coverage, and location.

X. Further Authority of the Zoning Administrator for Other Similar Quasi-Judicial Approvals. The following uses and activities may be permitted in any zone, unless otherwise restricted to certain zones or locations, pursuant to Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code. In addition to the findings set forth in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, the Zoning Administrator shall make all applicable findings set forth below. Further, these uses and activities are subject to the additional procedures, regulations and limitations set forth below.

1. **Adaptive Reuse Projects.** A Zoning Administrator may, upon application, permit Adaptive Reuse Projects pursuant to this subdivision. Except that, the provisions of this subdivision shall not apply to those areas set forth in the Adaptive Reuse Incentive Areas Specific Plan, Ordinance No. 175,038. Furthermore, the provisions of this Subdivision shall not apply to the M Zones outside the Downtown Project Area. The boundaries of the Downtown Project Area are described in Section 12.22 A.26.(g) of this Chapter.

In conformance with Paragraph (b) below, the Zoning Administrator may permit Adaptive Reuse Projects in the M Zones inside the Downtown Project Area. Outside the Downtown Project Area, the Zoning Administrator may permit Adaptive Reuse Projects in the C and R5 Zones.

In conformance with Paragraph (c) below, the Zoning Administrator may permit Adaptive Reuse Projects in the C and R5 Zones in all or any portion of a building constructed on or after July 1, 1974, inside the Downtown Project Area.

In conformance with Paragraph (d) below, the Zoning Administrator may permit floor area averaging in unified Adaptive Reuse Projects in the C, M and R5 Zones inside the Downtown Project Area. Outside the Downtown Project Area, the Zoning Administrator may permit this floor area averaging in the C and R5 Zones.

(a) **Definitions.** The definition of "Adaptive Reuse Project" set forth in Section 12.22 A.26.(c) of this Chapter shall apply inside the Downtown Project Area. Outside the Downtown Project Area, the following definitions shall apply:

Adaptive Reuse Project is any change of an existing Non-Residential Use to new dwelling units, guest rooms, or joint living and work quarters in all or any portion of any eligible building.

Non-Residential Use means any use other than dwelling units, guest rooms, or joint living and work quarters. Except that, if all the dwelling units, guest rooms or joint living and work quarters in an eligible building were completely and continuously unoccupied from March 1, 2002, through and including the date an application for an Adaptive Reuse Project is filed pursuant to this subdivision, then those units, rooms or quarters shall be considered to be a Non- Residential Use.

(b) **C, M and R5 Zones.** The following shall apply to Adaptive Reuse Projects in the MR1, MR2, M1, M2 and M3 Zones inside the Downtown Project Area; and to Projects in the CR, C1, C1.5, C2, C4, C5, CM and R5 Zones outside the Downtown Project Area:

(1) **Eligible Buildings.** A Zoning Administrator shall only permit Adaptive Reuse Projects in the following buildings:

(i) Buildings constructed in accordance with building and zoning codes in effect prior to July 1, 1974. A Certificate of Occupancy, building permit, or other suitable documentation may be submitted as evidence to verify the date of construction.

(ii) Buildings constructed in accordance with building and zoning codes in effect on or after July 1, 1974, if: five years have elapsed since the date of issuance of final Certificates of Occupancy; and the Zoning Administrator finds that the building is no longer economically viable in its current use or uses.

In making this finding, the Zoning Administrator shall consider the building's past and current vacancy rate, existing and previous uses, and real estate market information. The Zoning Administrator may require the applicant to submit independently verified documentation.

(iii) Buildings designated on the National Register of Historic Places, the California Register of Historical Resources, or the City of Los Angeles List of Historic-Cultural Monuments. Contributing Buildings in National Register Historic Districts or Contributing Structures in Historic Preservation Overlay Zones (HPOZ) established pursuant to Section 12.20.3 of this Chapter and Div. 13B.8. (Historic Preservation) of Chapter 1A of this Code are also eligible buildings.

(2) **Incentives and Exceptions.** The Zoning Administrator may grant, modify or deny some or all of the incentives set forth in Section 12.22 A.26.(h) of this Chapter, or some or all of the exceptions set forth in Section 12.22 A.26.(j) of this Chapter, to Adaptive Reuse Projects proposed pursuant to this Subdivision. Furthermore, the Zoning Administrator shall have the authority to grant any other incentives or exceptions from the Code required to permit Adaptive Reuse Projects proposed pursuant to this Subdivision, including but not limited to the authority to permit dwelling units, guest rooms and joint living and work quarters in Adaptive Reuse Projects, notwithstanding the nonconforming provisions of Section 12.22 of this Chapter.

(3) **Supplemental Findings and Conditions for the C and R5 Zones.** In addition to the findings set forth in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, if the Adaptive Reuse Project is in the CR, C1, C1.5, C2, C4, C5, CM or R5 Zones outside the Downtown Project Area, then the Zoning Administrator shall find that the Adaptive Reuse Project complies with the standards for dwelling units, guest rooms and joint living and work quarters set forth in Section 12.22 A.26.(i) of this Chapter. Exception: This finding is not required if the Zoning Administrator does not grant the density incentive set forth in Section 12.22 A.26.(h)(2) of this Chapter.

Before approving a reduced parking incentive pursuant to Subparagraph (2) above, the Zoning Administrator shall also find that the surrounding area will not be adversely affected by overflow parking or traffic congestion originating or terminating at the site of the Adaptive Reuse Project.

(4) **Supplemental Findings and Conditions for the M Zones.** In addition to the findings set forth in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, if the Adaptive Reuse Project is in the MR1, MR2, M1, M2 or M3 Zones inside the Downtown Project Area, then the Zoning Administrator shall:

(i) Require that one or more signs or symbols of a size and design approved by the Fire Department are placed by the applicant at designated locations on the exterior of each Adaptive Reuse Project to indicate the presence of residential uses;

(ii) Limit the occupations permitted in joint living and work quarters to the following: accountants; architects; artists and artisans; attorneys; computer software and multimedia related professionals; consultants; engineers; fashion, graphic, interior and other designers; insurance, real estate and travel agents; photographers and similar occupations;

(iii) Find that the Adaptive Reuse Project complies with the standards for dwelling units, guest rooms, and joint living and work quarters set forth in Section 12.22 A.26.(i) of this Chapter;

(iv) Find that the uses of property surrounding the proposed location of the Adaptive Reuse Project will not be detrimental to the safety and welfare of prospective residents; and

(v) Find that the Adaptive Reuse Project will not displace viable industrial uses.

(c) **Buildings constructed on or after July 1, 1974.** The provisions of Section 12.22 A.26. of this Chapter shall apply

to Adaptive Reuse Projects in all or any portion of a building constructed on or after July 1, 1974, in the CR, C1, C1.5, C2, C4, C5, CM, or R5 Zones inside the Downtown Project Area if: five years have elapsed since the date of issuance of final Certificates of Occupancy; and a Zoning Administrator finds that the building is no longer economically viable in its current use or uses.

In making this finding, the Zoning Administrator shall consider the building's past and current vacancy rate, existing and previous uses, and real estate market information. The Zoning Administrator may require the applicant to submit independently verified documentation.

(d) **Floor Area Averaging.** The following shall apply to applications to permit floor area averaging in unified Adaptive Reuse Projects in the CR, C1, C1.5, C2, C4, C5, CM, MR1, MR2, M1, M2, M3, or R5 Zones inside the Downtown Project Area; and to such applications in the CR, C1, C1.5, C2, C4, C5, CM, or R5 Zones outside the Downtown Project Area.

The Zoning Administrator may permit averaging of floor area in unified Adaptive Reuse Projects for purposes of determining compliance with the 750 square foot minimum average unit size standard for dwelling units and joint living and work quarters, as set forth in Section 12.22 A.26.(i) of this Chapter. For purposes of this Subdivision, a unified Adaptive Reuse Project means an Adaptive Reuse Project composed of two or more buildings, so long as the Project has all of the following characteristics: (a) functional linkages, such as pedestrian or vehicular connections; (b) common architectural and landscape features, which constitute distinctive design elements of the Project; and (c) a unified appearance when viewed from adjoining streets. Unified Adaptive Reuse Projects may include lots that abut or are separated only by an alley or are located across the street from any portion of each other.

Individual buildings may fall below the minimum average unit size standard, so long as the average size of all the dwelling units and joint living and work quarters in the unified Adaptive Reuse Project is at least 750 square feet, and no dwelling unit or joint living and work quarters is less than 450 square feet in area. The Zoning Administrator shall determine whether a Project meets the definition of a unified Adaptive Reuse Project as set forth above. All owners of the property requesting floor area averaging must sign the application. A current title search shall be submitted with the application to insure that all required persons have signed the application.

If the Zoning Administrator approves the floor area averaging, then all owners of the property requesting floor area averaging and all owners of each lot contained in the unified Adaptive Reuse Project shall execute and record an affidavit. A copy of each executed and recorded affidavit shall be filed with the Office of Zoning Administration. Each affidavit shall run with the land, be approved by the Zoning Administrator prior to the issuance of any building permits, and shall guarantee the following: (1) The use of any floor area converted to dwelling units or joint living and work quarters shall be maintained and not changed; and (2) The number of these units or quarters approved by the Zoning Administrator shall not be increased.

(e) **Procedures.** An application for permission pursuant to this Subdivision shall follow the procedures set forth in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code. However, the Zoning Administrator may waive the public hearing required in that section if the owners of all properties abutting, across the street or alley from, or having a common corner with the building have expressed in writing no objections to the Adaptive Reuse Project.

2. **Alcoholic Beverages.** A Zoning Administrator may, upon application, permit a restaurant, with seating on the premises for no more than 50 persons, to offer for sale or to dispense for consideration alcoholic beverages, including beer and wine, incidental to meal service.

(a) **Procedures.** Notwithstanding the provisions of Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, an application for permission pursuant to this Subdivision shall instead notify the owners and occupants of all property within and outside the City within 500 feet of the exterior boundaries of the area subject to the application. If, however, the applicant submits with its application the written approval of owners of all properties abutting, across the street or alley from, or having a common corner with the subject corner, then the matter does not have to be set for public hearing.

(b) **Supplemental Findings.** In addition to the findings set forth in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, the Zoning Administrator shall also find:

- (1) that the restaurant contains a kitchen as defined in Section 12.03 of this Chapter;
- (2) that the primary use of the restaurant premises is for sit-down service to patrons;
- (3) that any take-out service is only incidental to the primary sit-down use;
- (4) that the restaurant is not located within 600 feet of a hospital, church, school (including day-care center), public park or playground, or youth facility; and
- (5) that the hours of operation will not adversely affect the surrounding neighborhood.

(c) **Conditions.** The Zoning Administrator may impose any conditions necessary to assure that the premises continue to operate in a manner consistent with the findings. In addition, any application approved pursuant to this Subdivision shall be subject to the following conditions and restrictions:

(1) Alcoholic beverages, including beer and wine, may be sold or dispensed for consideration for consumption on the premises only, and only when served at tables or sit-down counters by employees of the restaurant.

EXCEPTION: However, beer and wine may be sold or dispensed for consideration for consumption beyond the premises in a delicatessen (which is a restaurant having regular take-out service of prepared and unprepared foods), if and only if the sit-down food and beverage service area of the delicatessen occupies in excess of 50 percent of the floor area of the premises (exclusive of the kitchen, restroom, storage and utility areas);

(2) Dancing or live entertainment shall not be permitted on the premises;

(3) A separate cocktail lounge or bar shall not be located on the premises;

(4) Alcoholic beverages or beer or wine shall not be served in conjunction with the operation of any billiard or pool hall, bowling alley, or adult entertainment business as defined in Section 12.70 of this Chapter; and

(5) Alcoholic beverages shall not be sold, dispensed, or allowed to be consumed on the premises between the hours of midnight and 6 o'clock a.m.

3. **Antennas.** A Zoning Administrator may, upon application, permit amateur radio transmission and receiving antennas on lots in A and R Zones which exceed the maximum height otherwise permitted by the provisions of Section 12.21.1. of this Chapter.

(a) **Application.** The application shall include a plot plan, an elevation plan indicating the location and height of the proposed antenna and measures designed to minimize any adverse visual impacts from the antenna. These measures may include the construction of a retractable antenna, screening, painting or increased setbacks from property lines. Notice of the application shall be given to the Fire Department.

(b) **Procedures.** An application for permission pursuant to this Subdivision shall follow the procedures Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code. The Zoning Administrator may waive the public hearing required in that Section if the applicant submits with the application the written approval of owners of all properties abutting, across the street or alley from, or having a common corner with the subject property.

(c) **Supplemental Findings.** In addition to the findings otherwise required by Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, the Zoning Administrator shall also consider the uses to which the proposed antenna will be put, and may give special consideration to an application involving public service uses, such as participation in a radio amateur emergency network.

4. **(This paragraph intentionally left blank.)**

5. **Dwelling Adjacent to an Equinekeeping Use.**

(a) Notwithstanding any provision of this Chapter to the contrary, the Zoning Administrator shall determine that the City may issue a building permit for any residential building which has a habitable room closer than 35 feet from a legally established equine use, if the Zoning Administrator determines that the residential building cannot reasonably be constructed at a location 35 feet or greater from a legally established equine use. This determination may be made after giving consideration to:

(1) Size and configuration of land parcel;

(2) Environmental conditions, including but not limited to topography, geology, drainage and soil;

(3) Public facilities and easements that restrict buildable area location;

(4) Economic hardship; and

(5) Feasibility of relocating the equine enclosure.

(b) **Procedures.** An application for permission pursuant to this Subdivision shall follow the procedures set forth in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code. Provided, however, that if the owners of all the private property contiguous to the property involved in the application sign a waiver of having a public hearing, then no notice or hearing shall be required.

6. **Farmer's Markets.** A Zoning Administrator may, upon application, permit the operation of certified farmer's markets, as

defined in Section 1392.2, Title 3, of the California Code of Regulations as that section may be amended from time to time, on any lot in an R Zone subject to the following:

(a) **Application.** A copy of each application shall be provided to the Councilmember of the district in which the property is located. A Zoning Administrator shall approve an application only if all the following requirements are met:

- (1) The operation is conducted by one or more certified producers, by a nonprofit organization or by a local government agency;
- (2) If selling fruits, nuts or vegetables, the producer is authorized by the County Agricultural Commissioner to sell directly to consumers these products that are produced upon the land which the certified producer farms and owns, rents, leases or sharecrops; and
- (3) If selling eggs, honey, fish, and other seafood and freshwater products, live plants and other agricultural products, the market operator and producer secure all necessary licenses, certificates and health permits which are required to sell these products directly to consumers, provided these products are raised, grown or caught and processed, if necessary, in California.

(b) **Procedures.** An application for permission pursuant to this subdivision shall follow the procedures for set forth in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code. A hearing is not required if the applicant submits with its application the written approval of the owners of all properties abutting, across the street or alley from or having a common corner with the subject property, and, in addition, the written approval of 60 percent of the owners of properties within a radius of 300 feet of the subject property.

(c) **Requirements.**

- (1) All market activities shall be conducted only between the hours of 7:00 a.m. and 7:00 p.m., except that necessary preparation of the site for sales activities and cleanup may be conducted for not more than one hour before and one hour after this period. No Certified Farmers' Market may operate more than twice in the same week;
- (2) Any light used at any time during market activities shall be shielded so as not to shine directly or indirectly on adjacent property or streets;
- (3) The operator of a Certified Farmers' Market shall provide trash containers during the hours of operation;
- (4) Signs advertising the market shall conform to Article 4.4 of this Code;
- (5) The noise level of any activity related to a Certified Farmers' Market, including noise resulting from the use of amplified sound equipment, shall not exceed the ambient noise levels applicable to an R Zone as set forth in Section 111.03 of the Municipal Code;
- (6) Any portion of the lot used for market activities shall be cleaned at the close of hours of operation. For purposes of this section only, "cleaned" shall include, but not be limited to, the removal of stalls, materials, debris, trash, etc., used in conjunction with market activities;
- (7) The operator of a Certified Farmers' Market shall maintain a list of vendors participating in the Certified Farmers' Market during the day of operation;
- (8) Certification of the Certified Farmers' Market and contact information for the operator shall be posted at the main entry and provided as part of the application. The contact person shall be available during the hours of operation and shall respond to any complaints. The operator shall keep a log of complaints with the date and time received, and their disposition; and
- (9) Electronic Benefit Transfer (EBT) Card payments shall be accepted at the Certified Farmers' Market. A Food and Nutrition Service (FNS) Number issued by the United States Department of Agriculture shall be provided on the application as proof of EBT card acceptance.

(d) **Violations.** The Zoning Administrator may consider revoking the grant for failure to maintain the site in a satisfactory manner or failure to comply with the requirements above.

7. Fences or Walls in A or R Zones.

(a) A Zoning Administrator may, upon application, permit fences, walls or gates not to exceed eight feet in height, including light fixtures, in the required front yard, side yard or rear yard of any lot or on the side lot line along the street of a reversed corner lot in the A and R Zones.

(b) **Procedures.** An application for permission pursuant to this subdivision shall follow the procedures set forth in Sec.

13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code. A public hearing may not be required if the applicant submits with the application the written approval of the owners of all properties abutting, across the street or alley from, or having a common corner with the subject property. However, for requests for fences in the required front yard, (except for game court fences) only the written approval of the owners of properties abutting on the side or across the street from the subject property need be submitted.

(c) **Supplemental Findings.** In addition to the findings otherwise required by Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, the Zoning Administrator shall consider the environmental effects and appropriateness of materials, design and location of any proposed fence or wall, including any detrimental effects on the view which may be enjoyed by the occupants of adjoining properties, and security to the subject property which the fence or wall would provide.

8. **Fences within 1,000 Feet of Public Beach.**

(a) A Zoning Administrator may, upon application, permit fences, walls or hedges, not exceeding six feet in height, in the required front yards of lots within groups of lots, provided all of the lots within a group are in an R Zone and are within 1,000 feet of a public beach, and further provided, that all of the lots are affected by the problems of lack of privacy, dogs being released upon the property by persons utilizing the public beaches, or refuse being strewn upon the property by persons utilizing the public beaches.

(b) **Procedures.** An application for permission pursuant to this subdivision shall follow the procedures set forth in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code. A public hearing may not be required if the applicant submits with the application the written approval of the owners of all properties abutting, across the street or alley from, or having a common corner with the subject property. However, for requests for fences in the required front yard, (except for game court fences) only the written approval of the owners of properties abutting on the side or across the street from the subject property need be submitted.

9. **Foster Care Homes.** Notwithstanding any other provision of this Chapter, any person may, with the express written permission of a Zoning Administrator and subject to the following limitations, use a dwelling unit for the operation of:

(a) A foster care home occupied by a total of five or six children in the A, R, CR, C1 or C1.5 Zones; provided that the total number of persons (including servants) living in any dwelling unit used as a foster care home shall not exceed eight; or

(b) **Limitations.**

(1) The floor space of any dwelling unit used as a foster care home shall not be increased for that use and the floor space shall not be arranged so that it would reasonably preclude the use of the buildings for purposes otherwise permitted in the zone in which the property is located.

(2) No permission for the operation of a foster care home shall become valid unless it is licensed for foster care use by the State of California, or other agency designated by the State, and the operation shall not be valid for more than one year.

(c) **Procedures.** An application for permission pursuant to this subdivision shall follow the procedures set forth in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code.

10. **Height and Reduced Side Yards.** A Zoning Administrator may, upon application, permit buildings and structures on a lot or group of lots in the RA, RE20, RE15, RE11, RE9, RS, R1 and R2 Zones where the lot is not located in a Hillside Area or Coastal Zone, to exceed the maximum height or number of stories otherwise permitted by the provisions of Section 12.21.1 of this Chapter; or to reduce the required side yards otherwise required in this Chapter.

(a) **Supplemental Findings for Height.** In addition to the findings otherwise required by Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, a Zoning Administrator shall find:

(1) that the increase in height shall not result in a building or structure that exceeds an overall height of 45 feet;

(2) that the increased height will result in a building or structure which is compatible in scale with existing structures and uses in the same zone and vicinity; and

(3) that the grant is necessary for the preservation and enjoyment of a substantial property right possessed by other property owners in the same zone and vicinity.

(b) **Supplemental Findings for Reduced Yards.** In addition to the findings otherwise required by Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, a Zoning Administrator shall find:

(1) that the reduction will not result in side yards of less than three feet; and

(2) that the reduction will not be materially detrimental to the public welfare or injurious to the property or improvements in the same zone or vicinity in which the property is located.

(c) **Procedures.** An application for permission pursuant to this subdivision shall follow the procedures for set forth in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code.

(d) **Fees.** Fees for these determinations shall be those provided pursuant to Section 19.01 U. of this Chapter when a public hearing is required and one-half the amount of that provided under Section 19.01 U. of this Chapter when the public hearing has been waived pursuant to Sec. 13B.5.2. (Adjustment) of Chapter 1A of this Code.

11. **Hillside Area.** A Zoning Administrator may, upon application, permit Buildings and Structures on Lots in the A1, A2, and RD Zones which are located in a Hillside Area as defined in Section 12.03 of this Chapter to:

- (a) exceed the maximum 36-foot height limitation required by Section 12.21 A.17.(c);
- (b) reduce the front or side yards required by Section 12.21 A.17.(a) and (b) of this Chapter;
- (c) increase the maximum lot coverage limitations of Section 12.21 A.17.(f) of this Chapter; and
- (d) reduce the number of off-street parking spaces otherwise required by Section 12.21 A.17.(h) of this Chapter.

(e) **Supplemental Findings.** In addition to the findings required by Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, a Zoning Administrator shall find the following:

(1) **Height:**

- (i) that the increase in height will not result in a building or structure which exceeds an overall height of 45 feet; and
- (ii) that the increase in height will result in a building or structure which is compatible in scale with existing structures in the vicinity; and
- (iii) that the grant is necessary for the preservation and enjoyment of a substantial property right possessed by other property in the area.

(2) **Yards:**

- (i) that the reduction in yards will not result in side yards of less than four feet; and
- (ii) that the reduction in yards will not be materially detrimental to the public welfare or injurious to the adjacent property or improvements.

(3) **Lot Coverage:**

- (i) that the increase in lot coverage will not result in a total lot coverage in excess of 50 percent of the lot area;
- (ii) that the increase in lot coverage will result in a development which is compatible in size and scale with other improvements in the immediate neighborhood; and
- (iii) that the increase in lot coverage will not result in a loss of privacy or access to light enjoyed by adjacent properties.

(4) **Off-Street Parking:**

- (i) that the reduction of the parking requirements will not create an adverse impact on street access or circulation in the surrounding neighborhood; and
- (ii) that the reduction of the parking requirements will not be materially detrimental or injurious to the property or improvements in the vicinity in which the lot is located.

(5) **Procedures.** An application for permission pursuant to this subdivision shall follow the procedures set forth in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code.

12. **Historic Buildings.** A Zoning Administrator may, upon application, permit commercial uses in a building and/or permit reduced parking otherwise required in this Chapter, for a building that is designated on the National Register of Historic Places, including Contributing Buildings in National Register Historic Districts, the California Register of Historical Resources, the City of Los Angeles List of Historic-Cultural Monuments, or a Contributing Structure located in an Historic Preservation Overlay

Zone (HPOZ) that has been established pursuant to Div. 13B.8. (Historic Preservation) of Chapter 1A of this Code.

If the commercial use and/or reduction in parking involves any changes to the exterior physical appearance of the building, then the applicant must submit the following with an application for permission. If the building is a Contributing Structure in an HPOZ, an approved Certificate of Appropriateness must be submitted with the application for permission. If the building is a nationally, State or locally designated historically significant building outside of an HPOZ, written clearance from the General Manager of the Department of Cultural Affairs, or the General Manager's designee, that the project complies with the Secretary of the Interior's Standards for Rehabilitation must be submitted with the application for permission.

(a) The Zoning Administrator may permit one or more of the following commercial uses with reduced parking in the A1, A2, RA, RE, RS, R1, RU, RZ, RW1, R2, RD, RW2, R3, R4, and R5 Zones:

(1) Bed and Breakfast Facilities, subject to the following limitations:

- (i) The owner must reside within the building;
- (ii) Food service shall be limited to registered guests only. No restaurant or cooking facilities within guest rooms shall be permitted; and
- (iii) No amplified music, lawn parties, private parties, receptions, outdoor weddings, or similar activities shall be allowed, unless specifically permitted by the Zoning Administrator.

(2) Joint living and work quarters for the following occupations: accountants; architects; artists and artisans; attorneys; computer software and multimedia related professionals; consultants; engineers; fashion, graphic, interior and other designers; insurance, real estate, and travel agents; photographers; and other similar occupations as determined by the Zoning Administrator.

(b) The Zoning Administrator may permit one or more of the following commercial uses with reduced parking in the RD, R3, R4, and R5 Zones:

(1) Full-service restaurants and cafes, subject to the following limitations:

- (i) Seating capacity is limited to a maximum of 25 persons; and
- (ii) Live entertainment is limited to one unamplified instrument and no amplification is used in conjunction with the entertainment, unless specifically permitted by the Zoning Administrator;

(2) Offices of civic and social organizations and philanthropic institutions;

(3) Offices for providers of professional services, including accountants; architects; attorneys; computer software and multimedia related professionals; consultants; engineers; fashion, graphic, interior and other designers; insurance, real estate, and travel agents; photographers; and other similar occupations as determined by the Zoning Administrator; and

(4) Retail sales, limited to no more than 800 square feet of floor area of the following uses on condition that no exterior displays or lawn sales are permitted:

- (i) Antiques;
- (ii) Art gallery;
- (iii) Collectibles;
- (iv) Florist shops; and

(v) Rare books, except those regulated under Section 12.70 of this Chapter.

(c) The Zoning Administrator shall have the authority to impose limitations on hours of operation, deliveries, and other restrictions and conditions necessary to ensure the compatibility of the commercial use with the surrounding area or HPOZ, or to protect the historic character of the building.

The Zoning Administrator may permit no more than one non-illuminated or non-neon wall sign or projecting sign. The sign must be made of wood and shall not exceed six square feet in area.

The Zoning Administrator may reduce or eliminate off-street automobile parking spaces required by this article if there is no area available for parking on the site, or if the provision of required parking would harm the historic character of the building.

(d) The Zoning Administrator may reduce or eliminate off-street automobile parking spaces required by this article in connection with a change of use in the CR, C1, C1.5, C2, C4, C5 or CM Zones if there is no area available for parking on the site, or if the provision of required parking would harm the historic character of the building.

(e) **Supplemental Findings.** In addition to the findings required by Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, the Zoning Administrator shall also make the following findings before granting an application pursuant to this Subdivision:

(1) The commercial use and/or reduced parking is compatible with, and will not adversely impact property within, the surrounding area or HPOZ; and

(2) The commercial use and/or reduced parking is reasonably necessary to provide for the continued preservation of the historically significant building and is compatible with its historic character.

For applications for properties within HPOZs, the Zoning Administrator shall take into consideration the relationship between the approved Preservation Plan and the proposed commercial use and/or reduced parking.

(f) **Procedure.** When an application for permission pursuant to this Subdivision has been received and deemed complete for a Contributing Structure in an HPOZ, the Zoning Administrator shall notify the applicable Historic Preservation Board. When an application for permission has been received and deemed complete for a building that is designated on the National Register of Historic Places, including Contributing Buildings in National Register Historic Districts, the California Register of Historical Resources, or the City of Los Angeles List of Historic-Cultural Monuments, the Zoning Administrator shall notify the Cultural Heritage Commission.

Notwithstanding the provisions of Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, an application for permission pursuant to this Subdivision shall instead notify the owners and occupants of all property within and outside the City within 500 feet of the exterior boundaries of the area subject to the application:

(1) When it can reasonably be anticipated that approval of the application could have a significant adverse effect on adjoining properties or on the immediate neighborhood; or

(2) When the application is likely to evoke public controversy.

In all other cases an application pursuant to this subdivision may not be set for public hearing, unless the Chief Zoning Administrator determines that a hearing would further the public interest.

If the application is for a Contributing Structure in an HPOZ, a public hearing may not be required if the applicant secures and submits with the application the written approval of the applicable Historic Preservation Board. Alternatively, if the applicant submits with the application the written approval of owners of all properties abutting, across the street or alley from, or having a common corner with the subject corner, then the matter may not be set for public hearing.

13. Joint Living and Work Quarters. A Zoning Administrator may, upon application, permit joint living and work quarters for artists and artisans, including individual architects and designers, in commercial and industrial buildings in the CR, MR1, MR2, M1, M2, and M3 Zones, and permit joint living and work quarters with reduced parking in the C1, C1.5, C2, C4, C5 and CM Zones.

(a) **Supplemental Findings.** In addition to the findings otherwise required by Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, the Zoning Administrator shall also find:

(1) that the uses of property surrounding the proposed location of the joint living and work quarters and the use of the proposed location will not be detrimental to the health, safety and welfare of prospective residents of the quarters; and

(2) that the proposed joint living and work quarters will not displace viable industrial uses and will not substantially lessen the likelihood that the property will be available in the future for industrial uses.

(b) **Requirements.** The Zoning Administrator shall also require:

(1) that the authorized use shall be of no force and effect unless and until satisfactory evidence is presented to the Zoning Administrator for review and attachment to the file that a business tax registration certificate has been issued to each tenant by the Office of Finance pursuant to Los Angeles Administrative Code Section 21.03 permitting those persons to engage in business as artists or artisans; and

(2) that one or more signs or symbols of a size and design approved by the Fire Department shall be placed by the applicant at designated locations on the exterior of each building approved as joint living and work quarters to indicate that these buildings are used for residential purposes.

(c) **Zoning Administrator Authority.** The Zoning Administrator has the authority to:

- (1) Reduce or eliminate yards and setbacks required by this article if they cannot be provided;
- (2) Reduce or eliminate off-street automobile parking spaces required by this article if there is no area available for parking on the site; and
- (3) Waive the public hearing if the owners of all the properties abutting, across the street or alley from, or having a common corner with the building have expressed no objections to the quarters in writing.

(d) **Procedures.** An application for permission pursuant to this subdivision shall follow the procedures set forth in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code. However, the Zoning Administrator may waive the public hearing required in that section if the owners of all properties abutting, across the street or alley from, or having a common corner with the buildings have expressed in writing no objections to the quarters.

14. **Mixed Use Districts.** A Zoning Administrator may, upon application, permit Projects comprised exclusively of dwelling units on lots in the CR, C1, C1.5, C2, C4, or C5 Zones within Mixed Use Districts pursuant to Section 13.09 C.3. of this Chapter.

(a) **Procedures.** Notwithstanding the provisions of Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, an application made pursuant to this Subdivision shall instead notify the owners and occupants of all property within and outside the City within 500 feet of the exterior boundaries of the area subject to the application. The Zoning Administrator may waive the public hearing required in that section if the applicant submits with the application the written approval of owners of all properties abutting, across the street or alley from, or having a common corner with the subject property.

(b) **Supplemental Findings.** In addition to the findings otherwise required by Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, a Zoning Administrator shall find that the character of the Mixed Use District shall not be adversely affected by the proposed Project and that the Project is appropriately integrated with the surrounding commercial uses.

15. **Model Dwellings Within Council- Approved Redevelopment Areas.** Prior or subsequent to the recordation of a final tract map, the Zoning Administrator may, upon application for a model dwelling, designate certain lots as sites for the construction of model dwellings, provided that the construction is occurring within the boundaries of a Council-approved Community Redevelopment Agency project area. In no case, however, shall more than 20 lots in a tract be designated as sites for the construction of models nor shall more than 15% of the lots in a tract or units and in no case shall more than 20 units in any proposed building be designated as model sites.

The Zoning Administrator may also permit the operation of one sales office within any of the designated model dwellings on the proposed site. In designating certain proposed lots for use as sites for model dwellings or sales offices, the Zoning Administrator may impose any conditions specified in Sections 12.22 A.10. and 12.22 A.11. of this Chapter or any other conditions which are appropriate to the particular model dwelling sites or sales offices being considered. In those cases where the Community Redevelopment Agency is the applicant, there shall be no fee for the designation of a site for the construction of model dwellings; in all other cases the fee, if any, shall be as set forth in this Code.

An application made pursuant to this subdivision shall follow the procedures set forth in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code.

16. **Nonconforming Rights Related to Earthquake Safety Ordinance.** A Zoning Administrator may, upon application, permit a building, nonconforming as to use or yards which is demolished as a result of enforcement of the Earthquake Safety Ordinance (Division 68, Article 1, Chapter IX of the Los Angeles Municipal Code), to be reconstructed with the same nonconforming use or yards as the original building.

(a) **Supplemental Findings.** In addition to the findings otherwise required by Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, a Zoning Administrator shall require and find the following:

- (1) that neither the footing nor any portion of the replacement building encroaches into any area planned for widening or extension of existing or future streets; and
- (2) that reconstruction be commenced within two years of obtaining a permit for demolition and completed within two years of obtaining a permit for reconstruction; and
- (3) that the continued nonconforming use of the property or the continued maintenance of nonconforming yards will not be materially detrimental to the public welfare and will not have a substantial adverse impact on or be injurious to the properties or improvements in the vicinity.

(b) **Procedures.** Notwithstanding the provisions of Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, an application pursuant to this Subdivision involving a nonconforming use shall instead notify the owners and occupants of all property within and outside the City within 500 feet of the exterior boundaries of the area subject to the

application. The Zoning Administrator may waive the public hearing if the applicant has secured the approval for the reconstruction from the owners of all properties abutting, across the street or alley from, or having a common corner with the subject property. If that approval is obtained from the surrounding property owners, the Zoning Administrator may waive the public hearing if the administrator makes the following written findings:

- (1) that the nonconforming use will not have a significant adverse effect on adjoining property or on the immediate neighborhood; and
- (2) that the nonconforming use is not likely to evoke public controversy.

An application pursuant to this Subdivision involving only a nonconforming yard may be set for a public hearing in accordance with the same procedures as above, if the Zoning Administrator determines that the public interest requires a hearing. However, when a public hearing is held, the notice shall be given in the same manner as required in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code.

17. Parking Requirements for Commercial or Industrial Uses With Parking Management Alternatives in the C and M Zones.

(a) Reduced On-Site Parking with Transportation Alternatives.

(1) Notwithstanding any other provision of the Los Angeles Municipal Code, the Zoning Administrator may, upon application, authorize reduced on-site parking for commercial or industrial uses in the C or M Zones, involving arrivals at the site by at least 100 employees and/or tenants, if the number of the reduced parking spaces is no less than sixty percent of the number of parking spaces otherwise required by this Code. This authorization shall be known as the “reduced on-site parking / transportation alternatives authorization”.

(2) **Supplemental Findings.** In addition to the findings otherwise required by Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, before approving this authorization, the Zoning Administrator shall find, based on the Parking Management Program Administrative Guidelines prepared by the City of Los Angeles and/or other standards acceptable to the City of Los Angeles Department of Transportation, that the Parking Management Plan submitted by the applicant pursuant to Subdivision (c) below will result in:

- (i) Sufficient on-site parking spaces and transportation alternatives to single-occupant automobiles (including carpools, vanpools, mass transit systems, buses or bicycles), provided by the owner or lessee for the employees and/or tenants, to accommodate anticipated parking demand; and
 - (ii) No on-street parking created by the use in the area immediately surrounding the use; and
 - (iii) An achievable level of employee and/or tenant use of transportation alternatives.
- (3) The areas in which the on-site parking spaces referred to in (i) above are located must be clearly posted for the sole use of employees and/or tenants of the use.
- (4) The Zoning Administrator may impose additional conditions as are deemed necessary to protect the public health, safety or welfare of the adjacent area and to assure compliance with the objectives of this subsection.
- (5) No change in the use of the transportation alternatives referred to in (i) above may be made until reviewed and approved by the Zoning Administrator.

(b) Reduced On-Site Parking with Remote Off-Site Parking.

(1) Notwithstanding any other provision of the Los Angeles Municipal Code, the Zoning Administrator may, upon application, authorize remote off-site parking at distances greater than those authorized by Section 12.21 A.4.(g) and (i) of this Chapter for commercial or industrial uses, in the C or M Zones, involving arrivals at the site by at least 100 employees and/or tenants, if the remote off-site parking does not exceed seventy-five percent of the number of parking spaces otherwise required by this Code. This authorization shall be known as the “reduced on-site parking / remote off-site parking authorization”.

(2) **Supplemental Findings.** In addition to the findings otherwise required by Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, before approving the authorization, the Zoning Administrator shall find, based on the Parking Management Program Administrative Guidelines prepared by the City of Los Angeles and/or other standards acceptable to the City of Los Angeles Department of Transportation, that the Parking Management Plan submitted by the applicant pursuant to Paragraph (c) will provide for:

- (i) Remote off-site parking spaces used solely by the employees and/or tenants of the commercial or industrial use; and
- (ii) An adequate form of transportation provided by the applicant or applicant’s successor and used by

employees and tenants between the remote off-site parking location and the commercial or industrial use to a level sufficient to transport all persons using the remote parking location.

(3) The Zoning Administrator may impose such additional conditions as are deemed necessary to protect the public health, safety or welfare of the adjacent area and to assure compliance with the objectives of this subsection.

(4) No change in the use of the form of transportation referred to in (ii) above may be made until reviewed and approved by the Zoning Administrator.

(c) **Application.** The application for a reduced on-site parking / transportation alternative authorization or a reduced on-site parking / remote off-site parking authorization shall be accompanied by a parking management plan. The plan shall include, but not be limited to the following information:

(1) The number of parking spaces on-site and the number of location of spaces off-site proposed to be maintained;

(2) The number and kinds of transportation alternatives proposed for the reduced on-site / transportation alternative authorization and the forms of transportation proposed between the commercial or industrial use and the remote off-site parking location for the reduced on-site parking / remote off-site parking authorization; and

(3) The level of employee and/or tenant use of transportation alternatives and forms of transportation identified in (2) above expected to be achieved and maintained.

(d) **Annual Review.** Each year, prior to the anniversary date of the approval of any authorization received pursuant to this Subdivision, the owner, subsequent owner or lessee shall submit a report and request for review to the Zoning Administrator containing the information regarding the implementation of the Parking Management Plan as the Zoning Administrator shall specify. Within thirty days of receiving this report, the Zoning Administrator shall approve, disapprove or conditionally approve the report, imposing any additional conditions to the authorization as deemed appropriate in light of information contained in the report. If the Zoning Administrator disapproves an annual report, a revised report shall be filed within thirty days for the Zoning Administrator's review. If the revised report is disapproved, the Zoning Administrator shall set the matter for revocation hearing in the manner set forth in Sec. 13B.6.1. (Evaluation of Non- Compliance) of Chapter 1A of this Code.

(e) **Limitations.** This Subsection is not intended to mean nor shall be interpreted to authorize any development in excess of the density, including floor area, floor area ratio, dwelling units or guest rooms, otherwise permitted by an applicable zone, specific plan or other regulation.

(f) **Procedures.** An application made pursuant to this subdivision shall follow the procedures set forth in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code.

18. **Parking Requirements for Showcase Theaters.** Where the off-street parking requirements of Section 12.21 A.4.(e) and (g) of this Chapter cannot be met, a Zoning Administrator may, upon application, approve slight modifications from those paragraphs.

(a) Slight modifications from the number of parking spaces required shall not exceed 20 percent of the required parking;

(b) **Procedures.** An application made pursuant to this subdivision shall follow the procedures set forth in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code. A \$50 filing fee shall accompany the filing of any application for slight modification.

19. **Reduction in parking.** A Zoning Administrator may, upon application, permit a reduction in the number of off-street parking spaces required by Section 12.21 A.4.(e) of this Chapter for any auditorium or similar place of assembly without fixed seats which is located in the City of Los Angeles within a park under the control, operation or management of the Board of Recreation and Park Commissioners.

(a) **Limitations.**

(1) The number of parking spaces shall not be fewer than one parking space for each 200 square feet of floor area contained in the auditorium or similar place of assembly;

(2) **Supplemental Findings.** Before approving a parking reduction pursuant to this Subdivision, a Zoning Administrator shall find that the surrounding area will not be adversely affected by overflow parking or traffic congestion originating or terminating at the park site and that the reduction will not otherwise be materially detrimental to the public welfare or injurious to the properties or improvements in the surrounding area.

(b) **Procedures.** Notwithstanding the provisions of Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of

this Code, in the following cases, an application made pursuant to this Subdivision shall instead notify the owners and occupants of all property within and outside the City within 500 feet of the exterior boundaries of the area subject to the application.

(1) When property classified in a multiple-residential zone, or an area which the Zoning Administrator determines is characterized by traffic or parking congestion, is located 500 feet or less from the exterior boundary of the park site within which the auditorium or similar place of assembly is situated;

(2) When it can reasonably be anticipated that approval of the application could have a significant adverse effect on adjoining properties or on the immediate neighborhood; or

(3) When the application is likely to evoke public controversy.

(c) In all other cases, an application pursuant to this subdivision need not be set for public hearing unless the Zoning Administrator determines that a hearing would further the public interest.

(d) A copy of each application shall be promptly transmitted for review to the Councilmember of the district in which the property is located.

20. **Shared Parking.** A Zoning Administrator may, upon application, permit two or more uses to share their off-street parking spaces, if the Zoning Administrator determines that a lower total number of parking spaces than would otherwise be required will provide adequate parking for these uses.

(a) **Requirements.** The Zoning Administrator's determination shall be based on an analysis of parking demand. This analysis shall be conducted on an hourly basis, 24 hours per day, for seven consecutive days. The Zoning Administrator shall permit a reduced total parking requirement according to the greatest parking requirement of the shared uses, under the following conditions and circumstances:

(1) The maximum distance between each participating building or use and the nearest point of the shared parking facility shall be 750 feet, measured as provided in Section 12.21 A.4.(g) of this Chapter.

(2) The applicant and parties operating the shared parking facility shall submit written evidence in a form satisfactory to the Office of Zoning Administration which describes the nature of the uses, hours of operation, parking requirements, and the allocation of parking spaces, and which demonstrates that the required parking for each use will be available taking into account their hours of operation.

(3) Reserved or otherwise restricted spaces shall not be shared.

(4) Additional documents, covenants, deed restrictions, or other agreements shall be executed and recorded as may be deemed necessary by the Zoning Administrator, in order to assure the continued maintenance and operation of the shared spaces, under the terms and conditions set forth in the original shared parking arrangement.

(b) **Procedures.** Notwithstanding the provisions of Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, an application for permission pursuant to this Subdivision shall instead notify the owners and occupants of all property within and outside the City within 500 feet of the exterior boundaries of the area subject to the application.

21. **Substandard Hillside Street, Street Access or Grading for Parking in Hillside.**

(a) **Requirements.** If an owner seeks relief, a Zoning Administrator may permit the Grading and construction of Buildings and Structures on Lots in the A1, A2 and RD Zones, which:

(1) do not meet the requirements of Section 12.21 A.17.(e)(2) of this Chapter, because they front on a Substandard Hillside Limited Street improved to a roadway width of less than 20 feet,

(2) do not meet the requirements of Section 12.21 A.17.(e)(3) of this Chapter, because they do not have vehicular access from streets improved with a minimum 20 foot wide continuous paved roadway from the driveway apron that provides access to the main residence to the boundary of the Hillside Area; or

(3) providing parking in compliance with Section 12.21 A.17.(h) of this Chapter requires the grading of more than 1,000 cubic yards of earth.

(b) **Supplemental Findings.** In addition to the findings otherwise required by Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, a Zoning Administrator shall find:

(1) that the vehicular traffic associated with the building or structure will not create an adverse impact on street access or circulation in the surrounding neighborhood; and

(2) that the building or structure will not be materially detrimental or injurious to the adjacent property or improvements; and

(3) that the building or structure will not have a materially adverse safety impact on the surrounding neighborhood; and

(4) that the site and/or existing improvements make strict adherence to Section 12.21 A.17.(e) or (h) of this Chapter impractical or infeasible.

(c) **Procedures.** An application for permission pursuant to this subdivision shall follow the procedures set forth in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code.

22. **Transitional Height.**

(a) **Requirements.** A Zoning Administrator may, upon application, permit buildings and structures on lots in C and M Zones to exceed the maximum heights otherwise permitted by the provisions of Section 12.21.1 A.10. of this Chapter. In addition to the findings set forth in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, the Zoning Administrator shall find that the project provides for an arrangement of uses, buildings, structures, open spaces and other improvements that are compatible with the scale and character of the adjacent properties and surrounding neighborhood.

(b) **Procedures.** An application for permission pursuant to this subdivision shall follow the procedures set forth in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code.

23. To permit in the Commercial zones **uses which support motion picture and television production** and other entertainment industries and are not on, or integrated with a motion picture and television studio site. Support uses may include, but are not limited to, sound labs, film editing, film video and audio processing, sets and props production, computer design, computer graphics, animation, offices and ancillary facilities.

(a) **Findings.** In addition to the findings set forth in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, the Zoning Administrator shall also find that the use is conducted so that its products or services are intended to be utilized by the motion picture, television, video or radio industry or other entertainment industries.

(b) **Procedures.** Notwithstanding the provisions of Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, an application for permission pursuant to this Subdivision shall be set for public hearing, and notice shall be given to the owners and occupants of all property within and outside the City within 500 feet of the exterior boundaries of the area subject to the application, unless the applicant has secured and submits with the application the written approval of the owners of all properties abutting, across the street or alley from, or having a common corner with the subject property.

24. **Child care facilities.** A Zoning Administrator may grant an application to permit a child care facility for 21 to 50 children in the R3 and RAS3 zones.

(a) **Procedures.** An application for permission pursuant to this subdivision shall follow the procedures set forth in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code. The Zoning Administrator may waive the public hearing required in that section if the applicant submits with the application written approval of the proposed child care facility signed by the owners of all properties abutting, across the street or alley from or having a common corner with the subject property.

25. **Large Family Day Care Home.**

(a) Pursuant to Section 12.22 A.3.(b)(3) of this Chapter, a Zoning Administrator may grant an application to permit a Large Family Day Care Home within 300 feet of any existing Large Family Day Care Home. The application shall include information to show that the proposed use will meet the following standards:

(1) Drop-off and pick-up areas are provided, as are necessary to avoid interference with traffic and promote the safety of the children; and

(2) The day care home complies with all applicable State and local laws and requirements relating to child care facilities; and

(3) The use does not create an unreasonable level of disruption or interference with the peaceful enjoyment of the neighboring residents; and

(4) All play equipment and structures are located in the rear yard only; and

(5) No loudspeaker or public address system shall be installed or operated on any open portion of the premises, and any recorded music used in connection with any activity shall be significantly modulated to ensure that the use does not disturb the neighboring residents.

(b) **Procedures.** An application for permission pursuant to this subdivision shall follow the procedures set forth in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code. The Zoning Administrator may waive the public hearing required in that section if the applicant submits with the application the written approval of the proposed child care facility signed by the owners of all properties abutting, across the street or alley from or having a common corner with the subject property.

26. Retaining Walls in Hillside Areas.

(a) A Zoning Administrator may, upon application, permit retaining walls that exceed the height or maximum number allowed in Section 12.21 C.8.(a) of this Code.

(b) **Procedures.** An application pursuant to this subdivision shall follow the procedures set forth in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code.

27. Continuation of Nonconforming Use of Building. A Zoning Administrator may, upon application, permit the continuation of a nonconforming commercial use of a building or structure in an A or R Zone for an additional period of time as specified beyond the discontinuance date as established pursuant either to a previous grant or to Section 12.23 B.2. of this Chapter.

Any application for a continuation of a nonconforming use of a building or structure must be filed with the Department of City Planning within 90 days following the service of an order to comply by the Department of Building and Safety upon an owner of a nonconforming use, or, in those instances where the Department is unable with reasonable effort to serve the owner, then within 90 days after the service by the Department of the order by leaving it with an occupant of the nonconforming use. If the application is not filed within 90 days, it shall not be considered pursuant to this subdivision.

Notwithstanding the provisions of Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, an application pursuant to this Subdivision shall instead notify the owners and occupants of all property within and outside the City within 500 feet of the exterior boundaries of the area subject to the application, unless the applicant has secured approval for the continuance of the nonconforming use from the owners of all properties abutting, across the street or alley from, or having a common corner with the subject property. If approval is obtained from the surrounding property owners, the Zoning Administrator may waive the public hearing if the Zoning Administrator makes written findings that the nonconforming use will not have a significant adverse effect on adjoining property or on the immediate neighborhood, and that the nonconforming use is not likely to evoke public controversy.

The Department of City Planning shall process these applications for continuation in accordance with Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, except that the time limits prescribed for the making of a decision by a Zoning Administrator shall not apply. Appeals from a Zoning Administrator's decision approving or disapproving the continuation of a nonconforming use of a building or structure may be taken to the Area Planning Commission pursuant to Sec. 13B.2.1.G. (Class 1 Conditional Use Permit; Appeals) of Chapter 1A of this Code. No further appeal shall be permitted.

No fee shall be required for the initial application for a continuation. A fee shall be required for the second and subsequent requests for continuation pursuant to Section 19.01 F. of this Chapter.

28. Single-Family Zones in Hillside Area. A Zoning Administrator may, upon application, grant the deviations outlined in Paragraph (a) of this Subdivision 28. on Lots in the R1, RS, RE, and RA Zones which are located in a Hillside Area as defined in Section 12.03 of this Code.

(a) **Zoning Administrator Authority.** If an owner seeks relief, a Zoning Administrator has the authority to grant the following deviations:

(1) **Setback Requirements.** A reduction of the Front and Side Yard setback requirements outlined in Section 12.21 C.10.(a) of this Chapter for Lots fronting on a Substandard Hillside Limited Street; however, in no event shall the Side Yard be less than 4 feet.

(2) **Additions to Structures Existing Prior to August 1, 2010.** Any additions made after August 1, 2010, to a One-Family Dwelling existing prior to that date for which permits have been previously obtained which exceed the requirements of Section 12.21 C.10.(b) of this Chapter, provided:

(i) the total cumulative Residential Floor Area of all such additions does not exceed 1,000 square feet; and

(ii) the resulting Building does not exceed the height of the original Building or the height permitted in Section 12.21 C.10.(d) of this Chapter, whichever is greater; and

(iii) at least two off-street covered parking spaces are provided.

(3) **Height.** Exceed the maximum envelope height requirements required by Section 12.21 C.10.(d) of this

Chapter; however, the increase in height may not result in a Building or Structure which exceeds an overall height of 45 feet. The overall height shall be measured from the lowest Elevation point, within 5 horizontal feet of the exterior walls of a Building or Structure, to the highest elevation point of the roof Structure or parapet wall.

(4) **Lot Coverage.** Increase the maximum Lot coverage limitations as outlined in Section 12.21 C.10.(e) of this Chapter, up to a maximum of 50% of the Lot area.

(5) **Grading.**

(i) Grading in excess of the maximum “by-right” Grading quantities listed in Section 12.21 C.10.(f)(1) of this Chapter, but in no event shall the quantities exceed the true value of 500 cubic yards plus the numeric value equal to 5% of the total Lot size in cubic yards.

(ii) For a property which fronts onto a Standard Hillside Limited Street of Larger, as defined in Section 12.03 of this Code, increase the maximum quantity of earth import or export greater than 500 cubic yards, and increase the maximum quantity of export greater than 1,000 cubic yards; calculated pursuant to Section 12.21 C.10.(f)(2) of this Chapter.

For a property which fronts onto a Substandard Hillside Limited Street, as defined in Section 12.03 of this Code, increase the maximum quantity of earth import greater than 375 cubic yards, and increase the maximum quantity of earth export greater than 750 cubic yards; calculated pursuant to Section 12.21 C.10.(f)(2) of this Chapter.

(6) **Off-Street Parking.** Reduce the number of off-street parking spaces required by Section 12.21 C.10.(g)(2) of this Chapter.

(7) **Street Access.** The construction of Buildings and Structures on Lots in the R1, RS, RE, and RA Zones which:

(i) **Adjacent Minimum Roadway Width.** Do not meet the requirements of Section 12.21 C.10.(i)(2) of this Chapter because they front on a Substandard Hillside Limited Street improved to a roadway width of less than 20 feet.

(ii) **Minimum Roadway Width (Continuous Paved Roadway).** Do not meet the requirements of Section 12.21 C.10.(i)(3) of this Chapter because they do not have vehicular access from streets improved with a minimum 20-foot wide continuous paved roadway from the driveway apron that provides access to the main residence to the boundary of the Hillside Area.

(b) **Supplemental Findings.** In addition to the findings otherwise required by Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, the Zoning Administrator shall find that approval of any use in this Subsection is in conformity with the public necessity, convenience, general welfare and good zoning practice and that the action will be in substantial conformance with the various elements and objectives of the General Plan, and that the approval is consistent with the following applicable findings:

(1) **Setback Requirements.** That the reduction in yards will not be materially detrimental to the public welfare or injurious to the adjacent property or improvements.

(2) **Additions to Structures Existing Prior to August 1, 2010.** That the increase in Residential Floor Area will result in a Building or Structure which is compatible in scale with existing Structures in the vicinity; and that the approval is necessary for the preservation and enjoyment of a substantial property right possessed by other property in the vicinity.

(3) **Height.** That the increase in height will result in a Building or Structure which is compatible in scale with existing Structures in the vicinity; and that the approval is necessary for the preservation and enjoyment of a substantial property right possessed by other property in the vicinity.

(4) **Lot Coverage.** That the increase in Lot coverage will result in a development which is compatible in size and scale with other improvements in the immediate neighborhood; and that the increase will not result in a loss of privacy or access to light enjoyed by adjacent properties.

(5) **Grading.**

(i) That Grading in excess of the absolute maximum Grading quantities listed in Section 12.21 C.10.(f)(1) of this Chapter is done in accordance with the Department of City Planning - Planning Guidelines Landform Grading Manual (adopted by the City Council on June 1983), and is used to reflect original landform and result in minimum disturbance to natural terrain. Notching into hillsides is encouraged so that projects are built into natural terrain as much as possible.

(ii) That the increase in the maximum quantity of earth import or export will not lead to the significant alteration of the existing natural terrain, that the hauling of earth is being done in a manner that does not significantly affect the existing conditions of the Street improvements and traffic of the Streets along the haul route, and that potentially significant impacts to the public health, safety, and welfare of the surrounding community are being mitigated to the fullest extent feasible.

(6) **Off-Street Parking.** That the reduction of the parking requirements will not create an adverse impact on Street access or circulation in the surrounding neighborhood; and that the reduction will not be materially detrimental or injurious to the property or improvements in the vicinity in which the Lot is located.

(7) **Street Access.**

(i) That the vehicular traffic associated with the Building or Structure will not create an adverse impact on Street access or circulation in the surrounding neighborhood; and

(ii) That the Building or Structure will not be materially detrimental or injurious to the adjacent property or improvements; and

(iii) That the Building or Structure will not have a materially adverse safety impact on the surrounding neighborhood.

(iv) That the site and/or existing improvements make strict adherence to Section 12.21 C.10.(i) of this Chapter impractical or infeasible.

(c) **Procedures.** An application pursuant to this Subdivision 28. shall follow the procedures set forth in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code. Except that public hearings for fences, walls, and retaining walls within required yards may not be required if the applicant submits with the application the written approval of the owners of all properties abutting, across the Street or alley from, or having a common corner with the subject property.

Import / Export (Haul Route) Review. Upon filing an application pursuant to this Subdivision. for the import or export of earth materials pursuant to the authority granted in Subparagraph (5) of Paragraph (a) of this Subdivision, the Zoning Administrator shall request that the General Manager of the Department of Transportation investigate the circumstances of the proposed import or export of earth materials and the effect thereof upon the public health, safety, and welfare. The Zoning Administrator shall request the City Engineer to determine the effect of any import or export on the structural integrity of the public Streets and to determine the effect on public safety relative to Street alignment, width, and Grade.

In taking action on such Class 1 Conditional Use Permit, the Zoning Administrator shall impose conditions of approval to mitigate any detrimental effects of the hauling operations necessary to import or export earth, including but not limited to: limiting truck weight, length and/or speed; and other conditions of approval as may be necessary to ensure repair of damages to public Streets along the hauling route that may reasonably be expected to be caused by hauling operations. Such additional conditions may include a condition that the developer shall file a bond for the benefit of the City. Any such bond shall be in a form approved by the City Attorney, executed by the developer and a corporate surety authorized to do business in the State in an amount sufficient to cover the repair of any damage to the public Streets reasonably expected to be caused by the hauling operations. The conditions of the bond shall guarantee to indemnify the City for all costs and expense in repairing the damaged Streets or other public facilities. In lieu of a surety bond, the developer may file a cash bond with the Department upon the same terms and conditions and in an amount equal to that which would be required in the surety bond. The deposit submitted may be in the form of cash or negotiable United States securities. The term of such effect until the completion of the hauling operations and subsequent inspection of the affected public Streets by the Department of Public Works.

29. **Historical Vehicle Collection.** A Zoning Administrator may allow the maintenance of a Historic Vehicle Collection as an accessory use. In addition to the findings set forth in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, the Zoning Administrator shall find:

(a) that all the historic vehicles and parts maintained in outdoor storage, whether currently licensed or unlicensed, or whether operable or inoperable constitute an Historic Vehicle Collection;

(b) the Historic Vehicle Collection occupies less than 50 percent of the area of the lot for lots comprising 10,000 square feet or less, or 70 percent of the area of the lot for lots comprising more than 10,000 square feet.

(c) the Historic Vehicle Collection is fully screened from ordinary public view by means of a suitable fence, trees, shrubbery, opaque covering or other appropriate means;

(d) no portion of the Historic Vehicle Collection is located within five feet of any building or within any side yards required by this Code; and

(e) plans for the maintenance of the Historic Vehicle Collection have been submitted to and approved by the Zoning

Administrator in accordance with the procedures in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code and subject to the same fees as in Section 19.01 E. of this Chapter for relief from fence height limitation.

30. Reduced Parking in a Modified Parking Requirement (MPR) District. A Zoning Administrator may, upon application, reduce the number of off-street parking spaces required by Section 12.21 A.4. of this Chapter, provided that the project is located within a Modified Parking Requirement (MPR) District established through the application of Section 13.15 of this Chapter, and provided further that the MPR District authorizes the Zoning Administrator to reduce the number of off-street parking spaces.

Y. Special Permission for Reduction of Off-Street Parking Spaces by the Director. A reduction in the number of off-street parking spaces required by Section 12.21 A.4. of this Chapter may be permitted by the Director as the initial decision-maker or by the Area Planning Commission as the appellate body. The procedures for decisions on these uses shall be the same as those for Variances as provided in Sec. 13B.5.3. (Variance) of Chapter 1A of this Code in addition to those set out below, except that the initial decision-maker shall be the Director, there is only one level of appeal and the findings necessary to grant the reduction shall be that the action is in conformity with the public necessity, convenience, general welfare and good zoning practice and that the action will be in substantial conformance with the various elements and objectives of the General Plan.

If the Director finds that a commercial or industrial building is located on a lot not more than 1,500 feet distant from the portal of a fixed rail transit station, or bus station, or other similar transit facility, then the required number of parking spaces for that commercial or industrial building shall be decreased by ten percent of the number otherwise required by Section 12.21 A.4.(c) of this Chapter. If the Director makes this finding, then no more than 90 percent of the parking spaces required by Section 12.21 A.4.(c) of this Chapter are required to be provided on the lot. The 1,500-foot distance shall be measured as specified in Section 12.21 A.4.(g) of this Chapter. A portal shall be defined as the street-level entrance, exit or escalator of a transit station.

A station may be used as the basis of a reduction if the Director decides that it is currently in use; that a full funding contract for a proposed station's location and portals have been signed by all funding partners; or that a resolution to fund a preferred alignment has been adopted by the Los Angeles County Transportation Commission by a resolution detailing specific stations and portal locations. Before approving a parking reduction application filed pursuant to this subdivision, a Director shall find that the surrounding area will not be adversely affected by overflow parking or traffic congestion originating or terminating at the lot, and that the reduction will not otherwise be materially detrimental to the public welfare or injurious to the properties or improvements in the surrounding area.

In the following cases, an application pursuant to this subsection shall be set for public hearing and notice shall be given pursuant to Sec. 13B.5.3. (Variance) of Chapter 1A of this Code:

- (i) when it can reasonably be anticipated that approval of the application could have a significant adverse effect on adjoining properties or on the immediate neighborhood; or
- (ii) when the application is likely to evoke public controversy. In all other cases an application pursuant to this subdivision need not be set for public hearing, unless the Director determines that a hearing would further the public interest.

A copy of each application shall be promptly submitted to the Councilmember of the district in which the property is located.

Z. Revocation. See Sec. 13B.6.1. (Evaluation of Non-Compliance) of Chapter 1A of this Code.

AA. Additional Revocation Authority. See Sec. 13A.1.6.D.5. (Director of Planning; Specific Authority) of Chapter 1A of this Code.

SEC. 12.24.1. LAND USE DETERMINATION BY CITY PLANNING COMMISSION. **(Title Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

A. Purpose. The principal objective of the Land Use Element of the General Plan is to provide for the proper location of all types of land use. Among those land use categories which are necessary to the public health, safety, welfare and convenience are Public, Quasi-Public, Public/ Quasi-Public Use, Other Public and Open Space. Physical development in these areas is intended to be used in a manner consistent with such designated purposes. This principle also applies to property shown, on the land use map of the General Plan as having existing lakes, waterways, reservoirs, debris basins, or similar facilities, or as the location of a freeway right-of-way; and to any property annexed to the City of Los Angeles where a Plan amendment was not adopted as part of the annexation proceedings. Any other use of these parcels requires special consideration as to its appropriateness in relation to adjacent uses, to the development of the community, and to the various Elements of the General Plan. Therefore, the development of such locations shall be regulated by the following provisions of this section.

B. Scope. This section shall apply to any property designated by the land use map of the applicable Community or District Plan for a land use category of Public, Quasi-Public, Public/Quasi-Public Use, Other Public, or Open Space, and to property shown on such map as having existing lakes, waterways, reservoirs, debris basins, or similar facilities, or as the location of a freeway right-of-way. This section shall also apply to any property which was annexed to the City of Los Angeles where a Plan amendment was not adopted as part of the annexation proceedings.

Notwithstanding the above, this section shall not apply to any of the following:

1. The issuance of a building permit for any alteration, remodeling or repair of an existing building or structure if such

alteration does not increase the height, floor area, number of occupants, dwelling units, guest rooms, or parking previously existing for said building or structure and does not change the use;

2. A use consisting of one single-family dwelling, including accessory uses;
3. A residential use consisting of more than one dwelling units, including accessory uses, which does not exceed 10% of the density permitted by the zoning on said lot;
4. A nonresidential use permitted by the zoning of a lot, provided that such, use (including all buildings, driveways, roadways, or other paved or impermeable surfaces) does not cover more than 20% of the lot area, and that any proposed buildings or structures do not exceed two stories or 25 feet in height;
5. Any valid conditional use, which has not expired;
6. Any tentative tract where a determination of consistency with the General Plan was adopted or approved after January 1, 1979, and has not expired, provided such action was taken subsequent to the adoption of the Community or District Plan land use designation for the area involved;
7. Uses expressly exempted from the provisions of this section by an ordinance changing the zone classification of a lot;
8. A use permitted by an ordinance establishing a Supplemental Use District pursuant to Sec. 13B.1.3. (Zoning Code Amendment) of Chapter 1A of this Code; **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**
9. Developments where a final determination of consistency with the General Plan was made prior to June 1, 1988, pursuant to Sections 5 or 6 of Ordinance No 159,748, the Interim Permit Consistency Ordinance;
10. Parks, playgrounds or community centers, owned and operated by a federal state or local governmental agency;
11. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)** Projects subject to Section 15.00 of this Code;
12. Property within the boundaries of the adopted Port of Los Angeles District Plan and subject to the provisions of the adopted Port Master Plan, which is a local coastal program implementing the provisions of the California Coastal Act of 1976; and
13. Property for which a written determination of exception by the Director of Planning pursuant to Subsection H. of this section has been obtained.

C. Authority of City Planning Commission. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) If the City Planning Commission finds that a lot is within the scope of this section, as set forth in Subsection B., then the City Planning Commission may approve a use permitted by the zoning of the lot if it finds that the proposed use at the proposed location will be proper in relation to adjacent uses, desirable to the public convenience or welfare and that the use and location will be consistent with the objectives of the various elements of the General Plan. In making a determination of consistency, the City Planning Commission shall consider whether the density, intensity, (i.e., floor area), height and use of the proposed development are permitted by and compatible with the designated use, density, intensity, height (or range of uses, densities, intensities or heights) set forth for adjacent and surrounding properties on the land use map of the applicable community or district plan and as those designations are further explained by any footnotes on the map and the text of the plan.

D. Conditions of Approval. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) In granting an approval of a use pursuant to this section, the City Planning Commission may impose conditions as it deems necessary to protect the best interests of the surrounding property or neighborhood, to assure that the proposed use will be compatible with land uses, zoning classifications, and other restrictions of adjacent and surrounding properties, and to secure an appropriate development in harmony with the objectives of the General Plan.

E. Procedure and Appeal. The procedures for approval and appeal of any land use determination pursuant to this section shall be by the City Planning Commission as the initial decision-maker or the Council as the appellate body. The procedures for reviewing deciding on applications shall be those in Sec. 13B.2.3. (Class 3 Conditional Use Permit) of Chapter 1A of this Code. A land use determination made pursuant to this section shall be deemed a conditional use for and subject to the provisions of Sec. 13B.2.3. (Class 3 Conditional Use Permit) and 13B.6.1. (Evaluation of Non-Compliance) of Chapter 1A of this Code. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

F. Existing Uses. For any lot or portion thereof being lawfully used at the time this section becomes effective, such use shall be deemed to be an approved use for purposes of this section. Further, the conditions included in any special district ordinance, exception or variance which authorizes such use shall also continue in effect.

G. (Deleted by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

H. Exception. Notwithstanding any provisions of this section to the contrary, a lot is excepted from the provisions of this section if

the Director of Planning, pursuant to an application therefor, makes the following findings:

1. that the General Plan/Zoning Consistency Program has been completed for the subject property;
2. that the subject property is designated on the applicable Community or District Plan land use map as Public, Quasi-Public, Public/Quasi-Public Use, Other Public, or Open Space; that the density, intensity (i.e., floor area), height and use of the proposed development are permitted by and consistent with the designated use, density, intensity, height set forth for all adjacent and surrounding properties on the land use map of the applicable Community or District Plan, and as such designations are further explained by any footnotes on the map and the text of such Plan; and
3. that the density, intensity (i.e., floor area), height and use of the proposed development are permitted by and consistent with the designated use, density, intensity, height set forth for all adjacent and surrounding properties on the land use map of the applicable Community or District Plan, and as such designations are further explained by any footnotes on the map and the text of such Plan; and
4. that at the time of the completion of the General Plan/Zoning Consistency Program, the subject property was not owned or operated by any federal, state, or local governmental agency.

The Director shall also make a finding as to the use of the subject property at the time of the completion of the General Plan/Zoning Consistency Program for the subject property. If the Director finds that the property was vacant or undeveloped land or was being used for any of the following uses, then the Director shall disapprove the exception request:

- (i) Park;
- (ii) Recreation Site;
- (iii) School, including College;
- (iv) Golf Course, or Club;
- (v) Natural Resource Preserve;
- (vi) Public or Private Beach;
- (vii) Lake, Waterway, Reservoir; Debris Basin, or Similar Facilities;
- (viii) Freeway rights-of-way;
- (ix) Street ; or
- (x) Public Utility rights-of-way (not including railroad rights-of-way).

I. Map Symbol. A pound symbol, “#”, or other appropriate designation, may be placed on the Zoning Map at the conclusion of the General Plan/Zoning Consistency Program for a Community or District Plan area. A pound symbol on the Zoning Map indicates that the Director of Planning has determined the properties so marked are designated by the land use map of the applicable Community or District Plan, for Public, Quasi-Public, Public/Quasi- Public Use, Other Public, or Open Space use. A pound symbol may also indicate that the Director has determined the properties so marked are shown on such District or Community Plan maps as being lakes, waterways, reservoirs, debris basins, or similar facilities, or as the location of a freeway right-of-way.

The purpose of this symbol is to provide assistance to the public and appropriate City agencies in the administration of this section. It does not change the zoning classification of the parcel.

However, if the Director determines that a pound symbol has been placed on the Zoning Map as a result of an error, then the Director shall make a written finding to that effect and authorize such correction to the map as may be necessary. The fact that a property or use comes within an exception under Subsection B. of this section does not require the removal of a pound symbol from the Zoning Map.

A property which is designated on a District or Community Plan in a manner which causes it to be subject to the provisions of this section shall be governed by this section whether or not the Zoning Map bears a pound symbol for that property.

SEC. 12.25. TIME LIMITATIONS.

(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

Utilization of Approvals.

1. See Sec. 13A.2.7. (Scope of Decision) of Chapter 1A of this Code.
2. **Approvals with Effective Dates Between July 15, 2005 and December 31, 2010.** The expiration period of any approval

by the Zoning Administrator, Director of Planning, an Area Planning Commission, or the City Planning Commission as initial decision makers (as well as any approval by a Deputy Advisory Agency acting in the capacity as a Zoning Administrator or as the Director of Planning's designee), pursuant to the provisions of Chapter 1 (General Provisions and Zoning) or any ordinance adopted pursuant to Chapter 1 (General Provisions and Zoning), shall automatically be increased by 60 months if the effective date of approval was July 15, 2005, through December 31, 2007; by 48 months if the effective date of approval was January 1, 2008, through December 31, 2008; and 24 months if the effective date of approval was January 1, 2009, through December 31, 2010, provided that the Director makes a written finding that the prior discretionary approval and the required environmental review considered significant aspects of the approved project and that the existing environmental documentation under the California Environmental Quality Act is adequate for the issuance of the extension. This one-time extension of time supersedes any previous extensions of time granted pursuant to Ordinances Nos. 180,647 and/or 181,269.

SEC. 12.26. DEPARTMENT OF BUILDING AND SAFETY.

(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

A. See Sec. 13A.1.8. (Department of Building and Safety) and Sec. 13B.10.1. (General Provisions) of Chapter 1A of this Code.

B. Parking Facility Modifications. The Superintendent of Building may grant slight modifications in the requirements of Section 12.21 A.5. of this Code if it is impractical to apply the design criteria set forth therein due to the unusual topography, peculiar shape of location of the lot, or where parking angles are less than 40 degrees. The Superintendent of Building may also grant slight modifications in such requirements where such modifications will improve the design or functioning of the parking area or garage, or where attendant parking is assured to the Superintendent of Building's satisfaction.

The power to grant such modifications shall be exercised in accordance with the procedure established in Section 98.0403 of this Code.

C. Certificate of Occupancy. No vacant land shall be occupied or used, except for agricultural uses, and no building erected or structurally altered shall be occupied or used until a certificate of occupancy shall have been issued by the Superintendent of Building.

1. Certificate of Occupancy for a Building.

(a) A certificate of occupancy for a new building or the enlargement or alteration of an existing building shall be applied for coincident with the application for a building permit. The certificate of occupancy shall be issued after the request for it has been made in writing to the Superintendent of Building after the erection, enlargement or alteration of the building or part of the building has been completed in conformity with the provisions of these regulations. Pending the issuance of a regular certificate, a temporary certificate of occupancy may be issued by the Superintendent of Building for a period not to exceed six months, during the completion of alterations or during partial occupancy of a building pending its completion. Such temporary certificate shall not be construed as in any way altering the respective rights, duties, or obligations of the owners or of the City relating to the use or occupancy of the premises or any other matter covered by this chapter, and such temporary certificate shall not be issued except under such restrictions and provisions as will adequately insure the safety of the occupants.

(b) Whenever the automobile parking spaces which are required for a building by the provisions of this Article, are provided on a lot other than the one on which the building is located, the certificate of occupancy for said building shall be valid only while such parking spaces are being so maintained and shall bear a notation to that effect. Said certificate shall be kept posted in a conspicuous place in the building. The Superintendent of Building shall keep a record of each lot on which required automobile parking spaces are provided for a building located on another lot, and whenever the Superintendent of Building finds that such automobile parking spaces are no longer so maintained, the Superintendent of Building shall notify the persons having custody of the building of that fact. If at any time such automobile parking spaces are not being maintained, the certificate of occupancy shall automatically be cancelled and said building shall not thereafter be occupied or used until the required automobile parking spaces are again provided and a new certificate is issued.

(c) Whenever a lot abutting a public alley in the "C" Zone is developed and used solely for dwelling or apartment house purposes with no more than 20 dwelling units on the lot and no loading space is provided, the certificate of occupancy for any building thereon shall be valid only while all the buildings on said lot are maintained for said use and the certificate shall bear a notation to that effect. If at any time any of the buildings on said lot are structurally altered or enlarged, or the use thereof is changed to a hospital, hotel, institution, commercial or industrial purposes, or a dwelling or apartment house so as to exceed 20 dwelling units on the lot, the certificate shall automatically be cancelled and none of the buildings on said lot shall thereafter be occupied or used until the required loading space is provided and a new certificate is issued.

(d) Wherever authority is granted to permit the sale of a lot in a residential planned development contingent upon the possession of an interest in common areas and facilities which are appurtenant to said lot, The Certificate of Occupancy for buildings on said lot shall be valid only while said interest is held by the owner. Said interest may be through shares of stock or voting membership in an owners association.

2. Certificate of Occupancy for Land. A certificate of occupancy for the use of vacant land or a change in the character of the use of land, including the construction of tennis or paddle tennis courts, as herein provided, shall be applied for before any

such land shall be occupied or used for any purpose except that of tilling the soil and the growing therein of farm, garden or orchard products; and a certificate of occupancy shall be issued after the application has been made, provided such use is in conformity with the provisions of the Municipal Code.

3. **Certificate of Occupancy – Contents – Filing Fee.** The Certificate of Occupancy shall state that the building or proposed use of a building or land conforms to the provisions of this chapter. A record of all certificates shall be kept on file in the office of the Superintendent of Building, and copies shall be furnished, on request, to any person having a proprietary or tenancy interest in the building or land affected. A fee shall be charged for each original certificate of occupancy pursuant to Subdivision 10. of Subsection (b) of Section 91.0304 of the Los Angeles Municipal Code.

No excavation for any building shall be started before application has been made for a certificate of occupancy.

4. **Plats.** All applications for a certificate of occupancy shall be made on a printed form to be furnished by the Superintendent of Building, and shall contain accurate information and dimensions as to the size and location of the lot, the size and location of the buildings or structures on the lot, the dimensions of all yards and open spaces, and such other information as may be necessary to provide for the enforcement of these regulations. Where complete and accurate information is not readily available from existing records, the Superintendent of Building may require the applicant to furnish a survey of the lot prepared by a licensed surveyor. The applications and plats shall be kept in the office of the Superintendent of Building, and the duplicate copy shall be kept at the building at all times during construction.

5. **Recorded Agreements.** Whenever the off- street automobile parking spaces required by this section are provided on a different lot from that on which the use they are to serve is located, as a prerequisite to the issuance of the required building permit or certificate of occupancy, the owner or owners of said lot on which parking is to be provided shall record an agreement in the Office of the County Recorder of Los Angeles County, California, as a covenant running with the land for the benefit of the City of Los Angeles, providing that such owner or owners shall continue to maintain said parking spaces so long as the building or use they are intended to serve is maintained.

Whenever the total floor area permitted on a lot is to be included in a building which will not cover the entire buildable area of the lot, as a prerequisite to the issuance of the required building permit, the owner or owners of record of said lot shall record in the office of the County Recorder of Los Angeles County, California, a covenant running with the land for the benefit of the City of Los Angeles providing that so long as said building is maintained on said lot said owner or owners will not erect any additional buildings on the unoccupied buildable area of the lot.

D. Auto Dismantling Yards, Junk Yards, Scrap Metal or Recycling Materials Processing Yards, Recycling Collection and/or Buyback Centers, Recycling Materials Sorting Facilities and Cargo Container Storage Yards. See Sec. 13B.10.3. (Annual Inspection Monitoring of Auto Dismantling Yards, Junk Yards, Scrap Metal or Recycling Materials Processing Yards, Recycling Collection and/or Buyback Centers, Recycling Materials Sorting Facilities and Cargo Container Storage Yards) of Chapter 1A of this Code.

E. Building Permits. No tennis or paddle tennis court accessory to a primary residential use on the same lot in the A or R Zones shall be constructed until application for a building permit therefor has been filed with and issued by the Department of Building and Safety.

F. Automotive Repair Garage and Used Vehicle Sales Areas. See Sec. 13B.10.4. (Annual Inspection Monitoring of Automotive Repair Garage and Used Vehicle Sales Areas) of Chapter 1A of this Code.

Minimum Standards.

(a) All automotive repair garages shall comply with the following minimum standards:

(1) All body and fender repairing when conducted within 300 feet of an A or R Zone shall be done within a completely enclosed building or room. The doors of such building or room may be open during the following hours:

(i) From 7 a.m. until 8 p.m. on Mondays through Fridays;

(ii) From 9 a.m. until 8 p.m. on Saturdays; and

(iii) From 11 a.m. until 8 p.m. on Sundays.

At all other times, the doors of such building or room shall be closed, except at intervals necessary for ingress and egress.

(2) All body and fender repairing when conducted within 150 feet of an A or R Zone shall be done within a completely enclosed building or room with stationary windows. The doors of such building or room may be opened only at intervals necessary for ingress and egress, except that garage bay doors may be open during the hours of operation set forth in Paragraph (1) of this subdivision, provided:

(i) A minimum 10-foot-high solid masonry fence or a minimum 10-foot-high intervening commercial or

industrial building enclosed on at least three sides is maintained at the property line adjacent to the A or R Zone, or;

(ii) Doors facing a public street shall be closer to the property line adjacent to the public street than the required yard setback of any adjacent A or R Zone.

(3) All automotive spray painting shall be done in full compliance with the provisions of Article 7 of Chapter 5 of the Code regulating these installations; provided further, that no spray painting may be done except in an approved spray booth or room approved for this use that is located within a wholly enclosed building. In the M2 or M3 Zone a spray booth approved for use outside of a building may be utilized if allowed by all other jurisdictions having authority over spray painting.

(4) Except for allowable outside uses when conducted in the M2 or M3 Zones, all other operations shall be conducted within a building enclosed on at least three sides, except for the following, which may be conducted within the first 18 feet in depth measured perpendicular to the entire length of the building wall containing a garage bay door; said area shall not displace any required parking:

(i) electrical diagnostics;

(ii) battery charging and changing;

(iii) tire removal and replacement, provided the vehicle is not elevated more than 12 inches off the ground measured to the bottom of the tire. A portable hoist only, may be used for this purpose.

(5) If the building is located within 50 feet of a lot in an A or R Zone with no intervening street, the wall of the building nearest such Zone shall have no openings other than doors or stationary windows. Such doors shall be permitted only if the building is adjacent to an alley and may be opened only at intervals necessary for ingress or egress.

(6) Automotive hoists, of any type or size, except as provided in Paragraph (4)(iii) above or allowed and operated in an M2 or M3 Zone, shall be located or operated only inside a fully enclosed building.

(b) All Used Vehicle Sales Areas shall comply with the following:

(1) All used vehicle sales areas established after January 1, 2005, shall provide supplemental customer parking, on site, of at least one space for every 2,000 square feet of vehicle sales area. This parking is in addition to all other parking required for the lot and shall be conspicuously posted and used for customer parking only. There shall be a minimum of two customer parking spaces provided for any used vehicle sales area.

(2) All repair work done on site must comply with the provisions of this subsection whether or not the repairs are done on customer or dealer owned vehicles.

(3) All other provisions of the Code which apply to used vehicle sales must be complied with at all times.

(4) **Exception:** Display of not more than three vehicles for purposes of sale or trade, at any one time, which is accessory to an approved use on the same lot and not occupying any required parking spaces, does not require a separate certificate of occupancy, additional parking, or annual inspection.

(c) Nothing in this section shall relieve any person from complying with any applicable requirements contained in Sections 12.14, 80.73.1, 80.73.2 or any other provision of the Code.

G. Transportation Demand Management and Trip Reduction Measures.

1. **Definitions.** For the purpose of this section, certain words and terms are defined as follows:

Carpool. A vehicle carrying two to five persons to and from work on a regular schedule.

Development. The construction of new non-residential floor area.

Gross Floor Area. That area in square feet confined within the outside surface of the exterior walls of a building, as calculated by adding the total square footage of each of the floors in the building, except for that square footage devoted to vehicle parking and necessary interior driveways and ramps.

Preferential Parking. Parking spaces, designated or assigned through use of a sign or painted space markings for Carpools or Vanpools, that are provided in a location more convenient to the entrance for the place of employment than parking spaces provided for single-occupant vehicles.

Transportation Demand Management (TDM). The alteration of travel behavior through programs of incentives,

services, and policies, including encouraging the use of alternatives to single-occupant vehicles such as public transit, cycling, walking, carpooling / vanpooling and changes in work schedule that move trips out of the peak period or eliminate them altogether (as in the case in telecommuting or compressed work weeks).

Trip Reduction. Reduction in the number of work-related trips made by single-occupant vehicles.

Vanpool. A vehicle carrying six or more persons to and from work on a regular schedule, and on a prepaid basis.

Vehicle. Any motorized form of transportation, including but not limited to automobiles, vans, buses and motorcycles.

2. **Applicability.** This subdivision applies only to the construction of new non-residential gross floor area. Prior to the issuance of a building permit, the owner / applicant shall agree, by way of a covenant that runs with the land, to provide and maintain in a state of good repair the following applicable transportation demand management and trip reduction measures.

3. **Requirements.**

(a) **Development in excess of 25,000 square feet of gross floor area.** The owner shall provide a bulletin board, display case, or kiosk (displaying transportation information) where the greatest number of employees are likely to see it. The transportation information displayed should include, but is not limited to, the following:

- (1) Current routes and schedules for public transit serving the site;
- (2) Telephone numbers for referrals on transportation information including numbers for the regional ridesharing agency and local transit operations;
- (3) Ridesharing promotion material supplied by commuter-oriented organizations;
- (4) Regional / local bicycle route and facility information;
- (5) A listing of on-site services or facilities which are available for carpoolers, vanpoolers, bicyclists, and transit riders.

(b) **Development in excess of 50,000 square feet of gross floor area.** The owner shall comply with Paragraph (a) above and in addition shall provide:

- (1) A designated parking area for employee carpools and vanpools as close as practical to the main pedestrian entrance(s) of the building(s). This area shall include at least ten percent of the parking spaces required for the site. The spaces shall be signed and striped sufficient to meet the employee demand for such spaces. The carpool / vanpool parking area shall be identified on the driveway and circulation plan upon application for a building permit;
- (2) One permanent, clearly identified (signed and striped) carpool / vanpool parking space for the first 50,000 to 100,000 square feet of gross floor area and one additional permanent, clearly identified (signed and striped) carpool / vanpool parking space for any development over 100,000 square feet of gross floor area;
- (3) Parking spaces clearly identified (signed and striped) shall be provided in the designated carpool / vanpool parking area at any time during the building's occupancy sufficient to meet employee demand for such spaces. Absent such demand, parking spaces within the designated carpool / vanpool parking area may be used by other vehicles;
- (4) No signed and striped parking spaces for carpool / vanpool parking shall displace any handicapped parking;
- (5) A statement that preferential carpool / vanpool spaces are available on- site and a description of the method for obtaining permission to use such spaces shall be included on the required transportation information board;
- (6) A minimum vertical clearance of 7 feet 2 inches shall be provided for all parking spaces and accessways used by vanpool vehicles when located within a parking structure;
- (7) Bicycle parking shall be provided in conformance with Section 12.21 A.16. of this Code.

(c) **Development in excess of 100,000 square feet of gross floor area.** The owner shall comply with Paragraphs (a) and (b) above and shall provide:

- (1) A safe and convenient area in which carpool / vanpool vehicles may load and unload passengers other than in their assigned parking area;
- (2) Sidewalks or other designated pathways following direct and safe routes from the external pedestrian circulation system to each building in the development;

(3) If determined necessary by the City to mitigate the project impact, bus stop improvements shall be provided. The City will consult with the local bus service providers in determining appropriate improvements. When locating bus stops and/or planning building entrances, entrances shall be designed to provide safe and efficient access to nearby transit stations/stops;

(4) Safe and convenient access from the external circulation system to bicycle parking facilities on-site.

4. **Exceptions.** The provisions of this subsection shall not apply to developments for which an application has been deemed complete by the City pursuant to Government Code Section 65943, or for which a Notice of Preparation for a Draft Environmental Impact Report has been circulated or for which plans sufficient for a complete plan check were accepted by the Department of Building and Safety, on or before the effective date of this ordinance.

5. **Monitoring.** The Department of Transportation shall be responsible for monitoring the owner / applicant's continual implementation and maintenance of the project trip reduction features required by this ordinance.

6. **Enforcement.** Applicants shall execute and record a Covenant and Agreement that the trip reduction features required by this ordinance will be maintained, that required material specified in Subdivision 3.(a)(1) - (5) will be continually posted, and that additional carpool / vanpool spaces within the designated preferential area will be signed and striped for the use of ridesharing employees based on demand for such spaces. The Covenant and Agreement shall be acceptable to the Department of Transportation.

7. **Hardship Exemption.** In cases of extreme hardship, duly established to its satisfaction, the City Council, acting in its legislative capacity, and by resolution, may grant an exemption from any/or all the provisions of this ordinance. In granting such an exemption, the City Council shall make the following findings:

- (a) Specific features of the development make it infeasible to satisfy all of the provisions of this subsection; and
- (b) The applicant has committed to provide equivalent alternative measures to reduce vehicle trips.

H. Appeals from Building Department Determinations. See Sec. 13B.10.2. (Appeals from LADBS Determinations) of Chapter 1A of this Code.

SEC. 12.27. VARIANCES.

(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

See Sec. 13B.5.3. (Variance) of Chapter 1A of this Code.

SEC. 12.27.1. ADMINISTRATIVE NUISANCE ABATEMENT PROCEEDINGS.

(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

See Sec. 13B.6.2. (Nuisance Abatement/Revocation) of Chapter 1A of this Code.

SEC. 12.28. ADJUSTMENTS AND SLIGHT MODIFICATIONS.

(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

A. Adjustments. The Director shall have the authority to grant adjustments in the Yard, area, Building line and height requirements of Chapter 1 of this Code, pursuant to Sec. 13B.5.2. (Adjustment) of Chapter 1A of this Code. An adjustment shall not be permitted for relief from a density (Lot area per unit) or height requirement, excluding fences and hedges, if the request represents an increase of 20 percent or more than what is otherwise permitted by this Code. A request for an increase of 20 percent or more shall be made as an application for a variance pursuant to Sec. 13B.5.3. (Variance) of Chapter 1A of this Code, except as may be permitted by other provisions of Chapter 1 of this Code.

The Director shall also have the authority to grant adjustments in Residential Floor Area of no more than a ten percent increase beyond what is otherwise permitted by Chapter 1 of this Code. A request for an increase in Residential Floor Area greater than ten percent shall be made as an application for a variance pursuant to Sec. 13B.5.3. (Variance) of Chapter 1A of this Code, except as may be permitted by other provisions of Chapter 1 of this Code.

B. The Director shall have the authority to grant slight modifications in the yard and area requirements of Chapter 1 of this Code where circumstances make the literal application of the yard and area requirements impractical. Slight Modifications from the yard and area requirements shall be limited to:

1. deviations permitting portions of buildings to extend into a required yard or other open space a distance of no more than 20 percent of the width or depth of the required yard or open space only when the request is filed incidental to another application or

appeal within the jurisdiction of the Director; and

2. deviations of no more than ten percent from the required lot area regulations. In those cases, the procedures for notice, hearing, time limits and appeals shall be the same as those applicable to the underlying application or appeal. In granting a slight modification, the Director may impose conditions related to the interests addressed in the findings set forth in Sec. 13B.5.2.E.

C. Procedures for Adjustments. See Sec. 13B.5.2. (Adjustment) of Chapter 1A of this Code.

D. Public Hearing and Notice.

1. Notwithstanding the provisions of Sec. 13B.5.2 (Adjustment) of Chapter 1A of this Code, an application for an adjustment to permit a game court, including a tennis or paddle tennis court, accessory to a primary residential use on the same lot, or to permit the erection of light standards in conjunction with that use shall be set for public hearing and notice shall be given in the same manner required for adjustments unless the applicant has secured the approval of the owners of all properties abutting, across the street or alley from or having a common corner with the subject property.

2. For R1, RS, RE and RA Zoned properties, the Zoning Administrator must conduct a public hearing for any Adjustment requests.

SEC. 12.29. VIOLATION OF CONDITIONS – PENALTY.

(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

See Sec. 13A.2.7. (Scope of Decision) of Chapter 1A of this Code.

SEC. 12.30. BOUNDARIES OF ZONES.

(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)

A. Purpose. It is intended that zone and height district boundaries coincide with street, alley, or lot lines, unless otherwise shown on the zoning map. However, under certain conditions, zone boundaries do not precisely coincide with street, alley, or lot lines and in those cases, the Director shall make adjustments pursuant to this section. Boundary adjustments are normally requested in contemplation of more extensive development of the property involved. In connection with those plans, standard street dedication is essential. Therefore, the following procedure is necessary to be established so that standard dedication and improvement of streets and alleys abutting the subject property may be required, where reasonable, as a prerequisite to the approval of the zone boundary adjustment.

B. Street, Alley or Lot Lines. The zone boundaries shall be either street, alley or lot lines unless otherwise shown on the zoning map, and where the indicated boundaries on the zoning map are approximately street, alley or lot lines, the street, alley or lot lines shall be construed to be the boundaries of those zones.

C. Scale on Map. Where the zone boundary lines are not approximately street alley or lot lines, or where property indicated on the zoning map is acreage and not subdivided into lots and blocks, the zone boundary lines on the zoning map shall be determined by the scale contained on the map.

D. Symbol for Zone. Where one symbol is used on the zoning map to indicate the zone classification of an area divided by an alley or alleys, that symbol shall establish the classification of the whole of that area.

E. Street or Right of Way – Allocation or Division. A street, alley, railroad or railway right-of-way, watercourse, channel or body of water, included on the zoning map shall, unless otherwise indicated, be included within the zones of adjoining property on either side of the street, alley, railroad or railway right-of-way, watercourse, channel or body of water; and where the street, alley, right- of-way, watercourse, channel or body of water, serves as a boundary between two or more different zones, a line midway in the street, alley, right-of-way, watercourse, channel or body of water, and extending in the general direction of its long dimension shall be considered the boundary between zones.

F. Vacated Street or Alley. In the event a dedicated street or alley shown on the zoning map is vacated by ordinance, the property formerly in the street or alley shall be included within the zone of the adjoining property on either side of the vacated street or alley. In the event the street or alley was a zone boundary between two or more different zones, the new zone boundary shall be the former center line of the vacated street or alley.

G. Individual Adjustments. The Director may, upon written request and after notice and hearing to the owners of the property affected by the proposed decision, make minor adjustments in the location of zone boundaries to carry out the intent of this section when:

1. Property as shown on the zoning map was in acreage but has been subsequently divided or approved for division into parcels or lots and blocks by a parcel map or final tract map and the parcel or lot and block arrangement does not conform to that anticipated when the zone boundaries were established;

2. Property was redivided or approved for redivision by a parcel or final tract map into a different arrangement of lots and

blocks than indicated on the zoning map; or

3. A lot which was of record in the Los Angeles County Recorder's Office on July 30, 1962, and which was on that date and is, at the time the request is made, in two different zones as determined by scaling the zoning map and where there is nothing apparent on the map to indicate that the zone boundary line should be retained in its scaled location. Where uncertainty exists in applying the provisions of this section or where revision is necessary to correct dimensional or mapping errors the Director may, upon the Director's own initiative, or upon the request of the Planning Department staff, determine the location of the zone boundary lines by written decision. Zone boundary adjustments permitted pursuant to this subsection shall be limited to a distance of no more than 50 feet. When the adjustment is requested prior to recordation because of a situation arising as described in Subdivisions 1. and 2. of this subsection the Director's decision shall not become effective until after the parcel map or final tract map has been recorded with the Office of the County Recorder.

H. Director Decision. Whenever the public necessity, convenience, general welfare or good zoning practice justify the action, the Director may approve, conditionally approve or deny any zone boundary adjustment pursuant to Sec. 13B.5.2. (Adjustment) of Chapter 1A of this Code. The Director may impose any conditions the Director deems appropriate to mitigate the negative impacts created by the development made possible by a zone boundary adjustment. One of the conditions may require that the abutting streets, alleys or highways be dedicated and improved in conformance with the standards for improvement of streets, alleys and highways, if the Director determines that traffic on the abutting streets, alleys or highways will be increased or impeded as a result of the zone boundary adjustment. However, an offer to dedicate and/or filing of a bond in conformance with the procedures set forth in Section 12.37 C. and D. of this Chapter shall be construed as compliance with these requirements. The zoning map in the City Planning Department shall be made to conform with the Director's decision after the conditions imposed, if any, by the Director have been fulfilled. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

I. Maps. A reproducible map shall accompany each application for boundary adjustments. This map shall be legibly drawn using a scale of 100 feet or 200 feet to the inch and in addition to data the Director may require in order to make a proper decision on the request for boundary adjustment, the map shall clearly show the following:

1. The dimensions and legal description of the parcel, the existing zone lines and the distance from the parcel to the nearest cross street; and
2. The abutting streets, alleys and highways and their dedicated width.

J. Height Districts. The procedure provided for in this section for the decisions on boundaries of zones shall also be followed in deciding boundaries of height districts.

K. Adjustment of C or M and P or PB Zone Boundaries.

1. Where a combination of C or M and P or PB Zones has been established on a lot, the Director may, upon written request from the owner of the property involved, adjust the boundary between the C or M Zone and the P or PB Zone, provided that the C or M Zone is not increased in area and that no portion of the C or M Zone is adjusted to within 50 feet of a street, center line of an alley or an A or R Zone, except that the C or M Zone may be as close to any particular street, alley center line or lot line in an A or R Zone as it was prior to the adjustment of the boundary. This exception shall not apply to a lot or portion of a lot in the C or M Zone which is less than 250 square feet.

2. **(Deleted by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

SEC. 12.31. INTERPRETATION – PURPOSE – CONFLICT.

(Amended by Ord. No. 141,821, Eff. 5/24/71.)

In interpreting and applying the provisions of this chapter, they shall be held to be the minimum requirements for the promotion of the public health, safety, comfort, convenience and general welfare. It is not intended by this chapter to interfere with or abrogate or annul any easement, covenant or other agreement between parties. Where this chapter imposes a greater restriction upon the use of buildings or land, or upon the height of buildings, or requires larger open spaces than are imposed or required by other ordinances, rules, regulations or by easements, covenants or agreements, the provisions of this chapter shall control. Provided, that such provisions shall not apply to any variance or exception granted prior to the effective date of this article: (a) by ordinance pursuant to the provisions of Ordinances Nos. 42,666 (N.S.), 66,750, 74,140 or Chapter I of the Los Angeles Municipal Code, and which variance or exception has been utilized and not repealed by Section 12.27 B.6. of this chapter; (b) by determination of the Administrator or Board pursuant to the provisions of Chapter I of said Code; and (c) by determination of the former Board of City Planning Commissioners pursuant to the provisions of Ordinance No. 74,145 or Chapter I of said Code. Provided, further, that such provisions shall not be interpreted or construed as interfering with the continuation of those existing specific uses which heretofore were required by Ordinance to be located in the following special districts:

- (a) Cemetery Districts – Ordinance No. 19,534 (N.S.);
- (b) Undertaking Districts – Ordinance No. 31,746 (N.S.);
- (c) Public Camp Districts – Ordinance No. 44,434 (N.S.);

(d) Mental Sanitarium Districts – Ordinance No. 58,647; and

(e) Rabbit and Poultry Slaughter House District – Ordinance No. 65,050.

In no case, however, shall any of the above uses be extended or expanded onto property not so used at the time this article became effective.

SEC. 12.32. LAND USE LEGISLATIVE ACTIONS.

(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

A. See Sec. 13B.1.2. (Specific Plan Adoption / Amendment), Sec. 13B.1.3. (Zoning Code Amendment) and Sec. 13B.1.4.B. (Zone Change) of Chapter 1A .

B. (This subsection intentionally left blank.)

C. (This subsection intentionally left blank.)

D. (This subsection intentionally left blank.)

E. Amendment to the Zoning Regulations. See Sec. 13B.1.3. (Zoning Code Amendment) of Chapter 1A of this Code.

F. Zone Changes and Height District Changes. See Sec. 13B.1.4 (Zone Change) of Chapter 1A of this Code.

G. Special Zoning Classifications.

1. T Classification.

(a) **Purpose.** In the consideration of a proposed change of zone pursuant to Sec. 13B.1.4. (Zone Change) of Chapter 1A of this Code, it may be determined that public necessity, convenience and general welfare require that provision be made for the orderly arrangement of the property concerned into lots and/or that provision be made for adequate streets, drainage facilities, grading, sewers, utilities, park and recreational facilities; and/or that provision be made for payments of fees in lieu of dedications and/or that provision be made for other dedications; and/or that provision be made for improvements; all in order that the property concerned and the area within which it is located may be properly developed in accordance with the different and additional uses to be permitted within the zone to which the property is proposed for change.

(b) **T Classification.** Instead of immediately and finally rezoning the property or changing the height district, the ordinance shall place it in a T or Tentative classification pending the recordation of a Final Map in compliance with the provisions and requirements of Article 7 of this chapter, or, in certain instances hereinafter specified by the recordation of a Parcel Map in compliance with said provisions and requirements, or, where no map is necessary, by completion or assurance of all dedications, payments, and improvements which are required by the Council to be provided, to the satisfaction of the appropriate City departments. For the purposes of this Subsection, the term “**payments**” shall include dedications or payments pursuant to Section 12.33 of this Chapter.

(c) **Map Symbol.** The T or Tentative classification shall be indicated by the symbol T in parentheses preceding the proposed zoning designation; for example, (T)R4-2.

(d) **Allowed Uses.** While property remains in the T Tentative classification, and until the Department of Building and Safety has received notification from the Department of the recordation of the Final Map or Parcel Map, or the completion or assurance of the required dedications, payments or improvements, which are to the satisfaction of the appropriate City departments in accordance with those conditions as have been imposed by the City Council, the property may continue to be used only for the purposes permitted in the zone applicable to the property prior to its T Tentative classification. No permits shall be issued, no buildings or structures shall be erected or constructed, and no land shall be used for any other purpose. Provided, however, that grading or other improvements which have been required as a prerequisite to the approval of the Final Map or Parcel Map or other required dedications, payments and improvements of the property may be accomplished. The Council may also permit the removal of the T Tentative classification by the recordation of a Parcel Map or by completion of all required dedications, payments and improvements in lieu of a Final Map after report and recommendations from the Director that all the necessary improvements can be accomplished and assured under Parcel Map procedures; or where no map is necessary, completion of all required dedications, payments and improvements.

(e) **Time Limit.** Property shall remain in the T Tentative classification until a Final Map or a Parcel Map of the property has been approved by the Council and recorded in the County Recorder’s Office, or until the Department has notified the Superintendent of Building of the completion to the satisfaction of the appropriate City agencies of all required dedications, payments and improvements, or until the classification expires as provided in this subsection. Unless otherwise authorized by the City Council, dedications, payments and improvements must be completed for the entire area subject to the change of zone.

(f) **Removal of T.** When a Final Map or Parcel Map has been approved by the Council and recorded, or the Superintendent of Building has been notified by the Department of the completion of all required dedications, payments, and improvements, the property shall no longer be designated as being within the T Tentative classification, the T Tentative designation shall be removed from City records, and the new zone designation shall become finally effective. The Council may authorize the removal of a T Tentative classification by any procedure which assures any appropriate dedications, payments or improvements including any dedication, payment or improvement described in Section 12.33 of this chapter. If the Tentative classification expires, the zone change and height district proceedings shall terminate and the property shall be redesignated as described in Paragraph (h) below.

(g) **Assurance of Dedications, Payments and Improvements.** Prior to making a report and recommendation, the Director of Planning or the Director of Planning's authorized representative shall obtain a report from the Bureau of Engineering as to whether all the necessary improvements can be accomplished and assured under Parcel Map procedures, or, if no map is necessary, without a map. The report shall be made within 40 calendar days of the date of request or within additional time as may be agreed upon by the Department and the Bureau of Engineering.

(h) **Time Limit. (Amended by Ord. No. 182,106, Eff. 5/20/12.)** Except as provided in Subdivision 2. of this subsection, as to those properties placed in the T classification subsequent to March 26, 1973, property shall not remain in a T Tentative classification for more than six years after the effective date of the ordinance creating it without the recording of a Final Tract Map or a Final Parcel Map, or a decision by the Department that all required dedications, payments and improvements have been made or assured to the satisfaction of the appropriate City agencies.

EXCEPTIONS: Property may remain in a T Tentative classification for an additional 60 months if the ordinance creating the classification took effect between July 15, 2005, and December 31, 2007; an additional 48 months if the ordinance took effect between January 1, 2008, through December 31, 2008; and an additional 24 months if the ordinance took effect between January 1, 2009, and December 31, 2010, provided that the Director makes a written finding that the prior discretionary approval and the required environmental review considered significant aspects of the approved project and that the existing environmental documentation under the California Environmental Quality Act is adequate for the issuance of the extension. Property may also remain in a T Tentative classification for a longer period of time through operation of Sec. 13A.2.7.A.2. of the Code.

When these time limitations expire, the T Tentative Zone classification and the zoning authorized thereby shall become null and void, the rezoning proceeding shall be terminated, and the property thereafter may only be utilized for those purposes permitted prior to the commencement of the rezoning proceedings and shall be so redesignated.

(i) **Time limit Does Not Include Moratoria.** The time limit for property placed in a T Tentative classification which is also the subject of a Tentative Map shall not include any time during which a development moratorium, as defined in California Government Code Section 66452.6(b), has been imposed and is in existence after the effective date of the ordinance placing the property in a T Tentative classification, provided that the moratorium affects the property and does not exceed five years. Provided further that for property placed in a T Tentative Classification which is also the subject of a Tentative Map and which requires the expenditure of \$125,000.00 or more to construct, improve, or finance the construction or improvement of public improvements outside the property boundaries of the Tentative Map, excluding improvements of public rights-of-way which abut the boundary of the property to be subdivided and which are reasonably related to the development of that property, then the T Tentative Classification shall be extended for the life of the Tentative Map.

(j) **Restoration to Former Zoning.** Except as provided for in subdivision 2. of this subsection, as to those properties placed in the T Tentative classification prior to March 26, 1973 and which remain in a T Tentative classification for more than six years, the City Planning Commission, the Director or the Director's designee may investigate the circumstances therefor. When deemed appropriate by the Commission or upon the request of the Council, and after due notice to the owner of the property as shown on the records of the City Engineer or the records of the County Assessor, the City Planning Commission, the Director or the Director's designee shall submit a report and recommendation to the Council concerning the restoration of the property to its former zoning or height district classification. Where the recommendation is that the property be changed to its former classification, or when the Council requests that the property be changed to its former classification, an ordinance accomplishing the change shall be transmitted with the report and recommendation to the Council. Notwithstanding any other provisions of this Code to the contrary, no public hearing need be held nor further notice given as a prerequisite to the adoption of an ordinance restoring the property to its former classification. **(Amended by Ord. No. 181,595, Eff. 4/10/11.)**

(k) **General Plan Consistency.** In the implementation of Paragraph (i) of this Subdivision, the former zoning or height district classification may be inconsistent with the current General Plan designation for the property. In this case, the property shall be changed to the least intense zoning or height district classification consistent with the General Plan.

2. Q Qualified Classification.

(a) **Purpose.** Except where property is being changed to the RA, RE, RS or R1 Zone, provision may be made in a zoning ordinance pursuant to Sect.13B.1.4. (Zone Change) of Chapter 1A of this Code, that the property not be utilized

for all the uses ordinarily permitted in a particular zone classification and/or that the development of the site shall conform to certain specified standards, if the limitations are deemed necessary to:

- (1) Protect the best interests of and assure a development more compatible with the surrounding property or neighborhood;
- (2) Secure an appropriate development in harmony with the objectives of the General Plan; or
- (3) Prevent or mitigate potential adverse environmental effects of the zone change.

(b) Q Classification.

(1) Where limitations are deemed necessary the zoning ordinance may, instead of immediately and finally changing the zone or height district on the property, place it in a Q Qualified classification. Except as provided for in Paragraphs (f) of (g) of this subdivision, the Q Qualified classification shall be deemed to be a temporary classification until the time the proceedings are either terminated or completed as provided in this section.

(2) Prior to the issuance of permits for the construction of buildings or structures authorized by the Qualified enactment, the plans for them shall be submitted to and approved by the Director as being in full compliance with all limitations and standards set forth in the ordinance.

(c) Map Symbol. The Q classification shall be indicated by the symbol Q in parentheses preceding the proposed designation; for example, (Q)C2-1.

(d) Allowed Uses. While property remains in a Q Qualified classification, whether temporary or permanent as provided for in Subdivision 3. of this subsection, it may be used for any of the uses permitted in the zone applicable to the property prior to its Q Qualified classification, unless the use or uses are prohibited in the zone classification to which the property is being changed, or are subject to limitations as are specified in the Qualified classification to which the property is being changed. Prior to the issuance of permits for the construction of buildings or structures authorized by reason of the Qualified zone enactment, the plans therefor must be submitted to and approved by the Director of Planning or by the Director of Planning's designated representative as being in full compliance with all limitations and standards set forth in that ordinance.

(e) Certificate of Occupancy. Property shall remain in a temporary (Q) Qualified classification for the period of time provided in Paragraph (f) of this subsection or until a Certificate of Occupancy is issued by the Superintendent of Building for one or more of the uses first permitted by the Qualified zone ordinance. The Superintendent of Building shall notify the Director of the issuance of the Certificate of Occupancy. Once the Certificate of Occupancy is issued: (i) the (Q) Qualified classification shall no longer be considered temporary; (ii) the parentheses shall be removed from the designation; and (iii) the new zone designation shall become finally effective and shall be placed on the appropriate City records with the symbol "Q" being a permanent part of the symbol designation; for example QR3-1. All applicable limitations and/or standards within the Qualified classification ordinance shall thereafter be considered to apply permanently to the specific uses. The temporary Qualified classification and the accompanying conditions that have become permanent and are shown with brackets shall have the same status as those that have become permanent, but shown with neither parenthesis nor brackets. **(Amended by Ord. No. 177,103, Eff. 12/18/05.)**

(f) Time Limit. (Amended by Ord. No. 182,106, Eff. 5/20/12.) Except as provided below and in Subsection I., property shall not remain in a Q Qualified classification for more than six years unless during that time:

- (1) there is substantial physical development of the property to allow for one or more of the uses for which the Q Qualified classification was adopted; or
- (2) if no physical development is necessary, then the property is used for one or more of the purposes for which the Q Qualified classification was adopted.

EXCEPTION: Property may remain in a Q Qualified classification for an additional 60 months if the ordinance creating the classification took effect between July 15, 2005, and December 31, 2007; an additional 48 months if the ordinance took effect between January 1, 2008, through December 31, 2008; and an additional 24 months if the ordinance took effect between January 1, 2009, and December 31, 2010, provided that the Director makes a written finding that the prior discretionary approval and the required environmental review considered significant aspects of the approved project and that the existing environmental documentation under the California Environmental Quality Act is adequate for the issuance of the extension.

When these time limitations expire, the Q Qualified classification and the authority contained therein shall become null and void, the rezoning proceedings shall be terminated, and the property thereafter may only be utilized for those purposes permitted prior to the commencement of the rezoning proceedings.

In addition, the Director may determine that the development has not been continuously and

expeditiously carried on to completion, but that one or more usable units has been completed and that the partial development will meet the requirements for the utilization of the (Q) classification. The Director may impose conditions on the partial development to meet the intent of this subdivision. The Director shall advise the Department of Building and Safety of the Director's decision. Thereafter, a Certificate of Occupancy may be issued after compliance with the Director's decision, and the temporary (Q) classification shall be permanent on that portion of the property determined by the Director to be appropriate to the completed portion of the development. The Qualified classification and the authority contained therein shall become null and void as to the remainder of the property. Notwithstanding any other provision of this Code to the contrary, no public hearing need be held nor notice be given before terminating the (Q) Qualified classification and restricting the property to its previously permitted uses.

(g) **Non-Conforming Improvements.** In the event that buildings or structures designed for occupancy by uses which were not permitted prior to the (Q) Qualified classification are located on property on which the (Q) Qualified classification is terminated, the buildings or structures shall be completely removed forthwith by the owner at the owner's own expense, unless their design is altered and they are immediately completed in full compliance with all applicable regulations for uses permitted prior to the (Q) Qualified classification.

(h) **Q's with T's.** Property may simultaneously be classified as being in a (Q) or [Q] Qualified classification and T Tentative classification. The T designation shall be removed prior to utilization of the additional uses permitted by the (Q) or [Q] Qualified classification. In no event shall there be any change in the time limitations of this section or any extension of them.

(i) **Time Limit Does Not Include Moratoria.** However, for property placed in a Q Qualified classification which is also the subject of a Tentative Map, the six year time period for the Q Qualified Classification shall not include any time during which a development moratorium, as defined in California Government Code Section 66452.6(f), has been imposed and is in existence after the effective date of the ordinance placing the property in a Q Qualified Classification, provided that the moratorium affects the property and does not exceed five years. Provided further that for property placed in a Q Qualified Classification which is also the subject of a Tentative Map and which requires the expenditure of \$125,000.00 or more to construct, improve, or finance the construction or improvement of public improvements outside the property boundaries of the Tentative Map, excluding improvements of public rights-of-way which abut the boundary of the property to be subdivided and which are reasonably related to the development of that property, then the Q Qualified classification shall be extended for the life of the Tentative Map, including any time extensions approved by the Advisory Agency. For the purposes of this subsection, a zone change or height district change shall be deemed a change incident to division of land when the project's environmental analysis includes a description of both the change and the division of land, and the proposed development of the site does not deviate substantially from the original project description. In particular, the proposed development shall be substantially the same regarding density, the number of dwelling units, the amount of floor area, uses, height and massing of buildings, amount of grading, and other relevant attributes.

(j) **Q Conditions in the RA, RE, RS and R1 Zones. (Added by Ord. No. 174,406, Eff. 2/28/02.)** Notwithstanding Paragraph (a) of this Subdivision, properties being changed to the RA, RE, RS and R1 zones may be placed in the "Q" Qualified classification in order to impose conditions to mitigate adverse environmental effects of the zone change identified in a Mitigated Negative Declaration or Environmental Impact Report.

3. **Permanent [Q] Qualified Classification.** In consideration of a proposed change of zone or height district, the Council may determine to impose a permanent Q Qualified classification rather than a classification which expires. The permanent Qualified classification shall be identified on the Zoning Map by the symbol Q in brackets, preceding the proposed zoning designation; for example, [Q]M2-1; or, in combination with a T Tentative classification, [T][Q]C2-2. There shall be no time limit on removal of the brackets around the [Q] Qualified designation nor on removal of the T Tentative designation. After the conditions of the permanent [Q] Qualified classification have been fulfilled, the brackets surrounding the Q symbol shall be removed. After the conditions of the T Tentative classification have been fulfilled, the symbol [T] shall be removed from the zone designation.

4. **D Development Limitations.**

(a) **Purpose.** Notwithstanding any provisions of Section 12.21.1 of this Code to the contrary, provisions may be made in an ordinance establishing or changing any Height District pursuant to Sec. 13B.1.4 (Zone Change) of Chapter 1A of this Code that a building or structure may be built to a specific maximum height or floor area ratio less than that ordinarily permitted in the particular Height District classification; or that buildings may cover only a fixed percentage of the area of the lot; or that buildings be set back in addition to setbacks otherwise required by this Code. These limitations shall be known as D Development limitations.

(b) **Findings.** In establishing D limitations, the Council shall find that any or all the limitations are necessary:

(1) to protect the best interests of and assure a development more compatible with the surrounding property or neighborhood, and

(2) to secure an appropriate development in harmony with the objectives of the General Plan, or

(3) to prevent or mitigate potentially adverse environmental effects of the Height District establishment or change.

(c) **Map Designation.** The imposition of D Development limitations shall be indicated by the symbol D following the Height District designated on the Zone Map; for example, C2-1-L-D, R4-2-D, RD1.5-1-VL-D, etc.).

(d) **Permanence of D Development Limitations.** D Development limitations shall not be affected by any failure to remove a (T) Tentative classification or the parentheses of a Q Qualified classification.

H. Amendments of the T Classification and Clarifications of the Q Classification or D Limitation.

1. **Application.** A request for an amendment of Council's instructions involving the T Classification or a clarification of a Q Classification or D Limitation set forth in an ordinance pursuant to Sec. 13B.1.4. (Zone Change) of Chapter 1A of this Code may be filed by one or more of the owners or lessees of the subject property with the Department on a form accompanied by information required by the Department and by a fee as provided in Section 19.01.

2. **Guidelines.** The City Planning Commission shall adopt guidelines for the Director to utilize in considering these requests. The City Planning Commission may amend the guidelines from time to time as it deems appropriate.

3. **Hearing.** Proceedings for an amendment to Council instructions or a clarification need not be set for hearing.

4. **Director's Authority.**

(a) **Approval of Request.** If the Director decides that the request complies with the City Planning Commission's guidelines, then the Director may approve or conditionally approve a request subject to the findings below.

(b) **Disapproval of Request.** If the Director decides that the request does not comply with the City Planning Commission guidelines for considering requests for amendments or clarifications, the Director shall deny the request. The decision of the Director that a request does not comply with the City Planning Commission guidelines shall be final.

5. **Findings.** The Director, or the City Council on appeal, shall approve an amendment or clarification if the Director or the City Council finds that:

(a) The request is consistent with the City Planning Commission guidelines; and

(b) The amendment or clarification is necessary in order to carry out the intent of the City Council in adopting the T or Q Classification or D Limitation; and

(c) The amendment or clarification would have only a minimal effect on adjacent property and would not result in a significant or substantial deprivation of the property rights of other property owners.

6. **Notice of Decision.**

(a) **Notice.** After making a decision pursuant to this subsection, the Director or City Clerk, as appropriate, shall notify the applicant in writing. Written notice shall also be mailed to the owners of all property within and outside of the City that is within 300 feet of the exterior boundaries of the property involved, using for the purpose of notification the last known name and address of owners shown upon the records of the City Engineer or the records of the County Assessor. **(Amended by Ord. No. 181,595, Eff. 4/10/11.)**

(b) **Expanded Notice.**

(1) If all property within the 300-foot radius is under the same ownership as the property involved in the proceeding, then the owners of all property which adjoins the ownership, or is separated only by a street, alley, public right-of-way or other easement, shall also be notified as provided in this subdivision.

(2) If these notice provisions will not result in notice being given to at least 20 different owners of at least 20 different parcels of property other than the subject property, then the 300-foot radius for notification shall be increased in increments of 50 feet until the required number of owners, and parcels of property, are encompassed within the expanded area. Notification shall then be given to all property owners within that area.

7. **Effective Date of Decision.** A decision of the Director pursuant to this subdivision shall become final and effective upon the close of the 20 day appeal period, if not appealed.

8. **Appeals of Director's Decision.** **(Amended by Ord. No. 173,492, Eff. 10/10/00.)** An applicant or any person aggrieved by a decision of the Director may appeal that decision to the City Council. The appeal shall be in writing and shall set forth specifically where there is error or abuse of discretion in the decision by the Director pursuant to this subdivision. The appeal shall be filed with the Department of City Planning and accompanied by a fee as provided in Section 19.01 of this Code. The City Council may approve, conditionally approve, or disapprove the appeal if it finds there is error or abuse of discretion in the

determination by the Director. If the Council makes this decision, it shall make written findings pursuant to Subdivision 5. of this subsection. The decision of the City Council shall be final.

I. (This subsection intentionally left blank.)

J. F Funded Improvement Classification.

1. **Purpose.** In consideration of a proposed change of zone pursuant to Sec. 13B.1.4. (Zone Change) of Chapter 1A of this Code, the Council may determine that public necessity, convenience or general welfare indicate rezoning for an area is desirable, but that street lighting and fire hydrants in the area are so lacking or inadequate that provision for these facilities shall be made prior to the more intensive use of the area contemplated by the zone change.

2. **Improvements.** If the Council determines that provision should be made for street lighting, fire hydrants, or both, it shall designate the improvements. The ordinance changing the zone of the property concerned may in addition to rezoning the property place it in an F or Funded Improvement classification pending installation of all designated street lighting and fire hydrants by the owners of the property, or payment of a pro rata share of the cost of improvement as estimated by the City Engineer. Unless otherwise determined by the Council, the entire area rezoned in each zone change case shall have its own separate Funded Improvement Account.

3. **Map Symbol.** The F or Funded Improvement classification shall be indicated by the symbol F in parentheses immediately before the combination of symbols designation; for example, (F)R3-1.

4. **Issuance of Permits.** While the property remains in an F Funded Improvement classification, and until the Department of Building and Safety has received notification from the Board of Public Works that the required improvements have been installed to the satisfaction of the City Engineer, or that the pro rata share of the improvement charge has been paid to the City, or that the improvements are assured by an assessment district, the property may continue to be used only for the purposes permitted in the zone applicable to the property prior to its F Funded Improvement classification. No permits shall be issued, no buildings or structures shall be erected or constructed, and no land shall be used for any other purpose.

5. Funded Improvement Accounts.

(a) **Establishment.** Unless otherwise determined by the Council, the Board of Public Works shall establish a separate Funded Improvement Account for each zone change area placed in the F Funded Improvement classification. Each account shall be maintained until the funds are expended to complete all the designated improvements in that the area, or until the Board of Public Works determines the account is no longer necessary.

(b) **Unit Charges.** The Board of Public Works shall establish one or more standard unit charge, based upon front footage, acreage, or other equitable measurements. The charges shall be estimated by the City Engineer to be sufficient to reimburse the City for its cost of installation, materials, design, surveying, inspection, testing of materials, appurtenant work, and all other applicable costs. Unit charges may vary depending on geographic or other special conditions. Upon request, the City Engineer shall advise any property owner of the total charge for the installation of the required improvements, and the proportionate share of the charges for the property. In the event a property owner installs any of the improvements designated for the property, a proportionate adjustment of the pro rata improvement charge shall be made.

(c) **Earlier Improvements.** The Board of Public Works may authorize the earlier installation of certain of the designated improvements which are more urgently needed than the others when its Funded Improvement Account contains sufficient funds to cover the cost of the improvements.

(d) **Completion of Improvements.** When 60% of the total estimated improvement charges have been collected in any Funded Improvement Account, the Board of Public Works may cause the designated improvements for the area to be completed either by the City or by contract, using monies from the revolving fund established by Paragraph (e) below for the remainder of the costs, if sufficient amounts are available in it. Upon completion of all the designated improvements in a zone change area placed in the F Funded Improvement classification, the Funded Improvement Account for that area shall be terminated.

(e) **Revolving Fund.** There is hereby established the Funded Improvement Revolving Fund to be administered by the Board of Public Works, which shall be used to finance completion of improvements in areas in the F Funded Improvement classification. The Council, after a report from the Board of Public Works, may appropriate monies to the Fund. The Board of Public Works shall periodically report to the Council on the operation of the Revolving Fund as well as any need for additional funds. When a Funded Improvement Account for a rezoned area has been terminated, all remaining pro rata improvement charges due as a prerequisite to obtaining building permits shall be paid into the Revolving Fund.

(f) **Removal of F Classification.** Each parcel of property shall remain in the F Funded Improvement classification until the owner has installed all designated improvements determined by the City Engineer to pertain to the property, or has paid the improvement charges, or the improvements have been completed or guaranteed under assessment proceedings, and the Board of Public Works has notified the Department of Building and Safety. Thereafter, each parcel shall no longer be designated as being within the classification and the F Funded Improvement designation shall be removed from the

City records. A copy of the notification shall be furnished to the Department.

K. (Deleted by Ord. No. 182,242, Eff. 10/9/12.)

L. (Deleted by Ord. No. 182,242, Eff. 10/9/12.)

M. Changes of Zone Relating to Projects Subject to Section 12.24.1. In connection with a change of zone subject to the provisions of Section 12.24.1 of this Code, the ordinance changing the zone may provide that one or more of the uses permitted by that ordinance shall be exempt from the requirements of this Code.

N. Changes Incident to Self-Contained Communities.

1. **Agricultural Zones.** Where property is in an A1, A2 or RA Zone, a proposed plan for the development of a new self-contained community with a town lot subdivision design may be submitted to the Commission for its consideration, provided the plan indicates that adequate provision is made for school and playground sites, municipal facilities, utilities and other services.

2. **Subdivision Map Required.** If the Commission finds that the location and plan of the proposed community are tentatively acceptable, it shall initiate the zone changes which may be necessary for the completion of the plan. After holding the public hearing required in connection with the proposed zone changes, the Commission may approve the plan including the proposed zone changes, but the approval shall be subject to the filing and recordation of a subdivision map conforming to the plan. If the self-contained community plan and the proposed zone changes are approved by the Commission, the plan and the proposed zone changes shall be submitted to the Council for its consideration. If the Council concurs in the action of the Commission, the ordinance required to effect the changes shall be presented to the Council only after a tentative subdivision map has been submitted to and approved by the Council.

O. Establishment or Change of H Hillside Areas.

1. **Procedure.** Whenever the public necessity, convenience or general welfare justify the action, the Council by ordinance may create or change the boundaries of an H Hillside Area. The fees to be paid and the procedure to be followed shall be the same as prescribed in Sec. 13B.1.4. (Zone Change) of Chapter 1A of this Code for a change of zone. However, where the establishment or change of an H Hillside Area is initiated by the Council or the Commission and consists of a parcel or parcels of land totaling in excess of 20 acres, publication in a newspaper of general circulation, designated by the City Clerk for official advertising in the area involved, not less than 24 days prior to the date of the public hearing, giving notice of the time, place and purpose of the hearing shall be sufficient notice of the hearing, and the mailing of individual notices shall not be required.

2. **Exception.** Where the Commission initiates a change of zone from the R1-H to the RE15-H zone on property generally described in Subdivision 3. of this Subsection, publication in a newspaper of general circulation, designated by the City Clerk for official advertising in the area involved, at least 24 days prior to the date of the public hearing, giving notice of the time, place and purpose of the hearing shall be sufficient notice, and the mailing of individual notices shall not be required.

3. **Boundaries.** Sunset Boulevard from Pacific Coast Highway to Western Avenue, Western Avenue and its northerly extension to the common city boundary line between Los Angeles City and the City of Glendale, westerly on the City boundary line from the northerly extension of Western Avenue to Lankershim Boulevard, southerly on Lankershim Boulevard to Ventura Boulevard, westerly on Ventura Boulevard from Lankershim Boulevard to the westerly City boundary line, southerly on the westerly City boundary line to Pacific Coast Highway, and easterly on Pacific Coast Highway to Sunset Boulevard.

P. (This subsection intentionally left blank.)

Q. (This subsection intentionally left blank.)

R. Building Lines.

1. **Purpose.** It is the purpose of this article to provide regulations for the establishment, change or removal of building lines along any street or portion of a street in order to provide for the systematic execution of the General Plan; to obtain a minimum uniform alignment from the street at which buildings, structures or improvements may be built or maintained; to preserve the commonly accepted characteristics of residential districts; to protect and implement the “**Highways and Freeways Element of the General Plan**”; to provide sufficient open spaces for public and private transportation; to facilitate adequate street improvements; to prevent the spread of major fires and to facilitate the fighting of fires; and to promote the public peace, health, safety, comfort, convenience, interest and general welfare.

2. **Procedures for Establishment, Change or Removal of Building Lines.** Except for the provisions below, the procedures set forth in Sec. 13B.1.4 (Zone Change) of Chapter 1A of this Code shall be used for the establishment, change or removal of building lines.

(a) **Initial Decision-Maker.** Area Planning Commissions shall have the authority to make recommendations on building line ordinances.

(b) **Notice.** Notwithstanding the notice requirements of Sec. 13B.1.4 (Zone Change) of Chapter 1A of this Code, the

following notice shall be required for actions on building lines:

(1) **By Mailing Notices:** A written notice shall be mailed at least 24 days prior to the date of the hearing to the applicant, to the owner or owners of the property involved and to the owners of properties abutting that portion of the street on which the building line is to be established, changed or removed. The written notice shall be mailed to the last known name and address of the owners as shown upon the records of the City Engineer or the records of the County Assessor; or

(2) **By Posting Notices on the Street Affected:** The Board of Public Works shall be notified whenever a public hearing on a building line proceeding is set. The Board shall cause copies of the notice of the public hearings to be posted within 20 days after receiving the notification and at least 24 days prior to the date set for public hearing. The Board shall post at least three notices, not more than 300 feet apart, in front of each block or part of a block along the street involved in the building line proceeding.

(c) **Public Hearing for Certain Building Line Actions.** Notwithstanding the provisions of Sec. 13B.1.4. (Zone Change) of Chapter 1A of this Code, no separate public hearings will be required for the establishment, change or removal of a building line when it is incidental to subdivisions or zone changes as specified in Paragraphs (e) and (f) of this Subdivision.

(d) **Action on Building Line Change.** The procedures in Sec. 13B.1.4. (Zone Change) of Chapter 1A of this Code shall be used for establishment or change to a building line.

(e) **Building Line Incident to Subdivision.** In connection with the consideration of a tentative subdivision map by the Advisory Agency, the Advisory Agency may recommend to the Area Planning Commission or the City Planning Commission, whichever is considering the matter, the establishment, change or removal of a building line on streets within the subdivision, if the Advisory Agency finds it is necessary for the proper development and use of the lots or to achieve any purpose set forth in Subdivision 1. of this Subsection. The recommendation shall be in the form of a written report. Upon the receipt of the report, the Commission shall advise the subdivider that the proposed building line matter will be considered at a regular Commission meeting. The meeting shall constitute the required public hearing and no further notice need be given. If the Commission approves the establishment, change or removal of a building line, an ordinance in conformity with that recommendation shall be presented to the Council for adoption concurrently with its action on the final subdivision tract map.

(f) **Building Line Incident to Zone Change.** In connection with its hearing and consideration of a proposed zone change, the Area Planning Commission or the City Planning Commission may also consider the establishment, change or removal of a building line on the property involved or on adjoining property under the same ownership as the property involved in the zone change proceeding. If the Commission finds that it is necessary to establish, change, or remove a building line in order to give proper effect to the zoning proposed in the proceeding, or to achieve any purpose set forth in Subdivision 1 of this Subsection, the Commission may act upon the building line matter simultaneously with the zone change proposal. Only one notice of public hearing need be given concerning the proposed zone change and the building line proceeding and both matters may be considered at the one public hearing. If the Commission approves the establishment, change or removal of a building line, an ordinance in conformity with that recommendation shall be presented to the City Council for adoption concurrently with the ordinance involving the proposed zone change.

(g) **Notification to Building and Safety.** The Department of Building and Safety shall be notified relative to an initial City Council or Area Planning Commission approval of a building line proceeding, and whenever the proceeding is terminated by the City Council.

3. **Building Permits Shall Not Be Issued During Proceedings.** After the approval of a building line proceeding by the Area Planning Commission or by the Council upon an appeal from a disapproval, and until the time the ordinance establishing, changing or removing a building line in the proceedings becomes effective, or until the time the proceedings are terminated by the City Council, no building permit shall be issued for the erection of any building, structure or improvement between any proposed building line and the street line, and any permits so issued shall be void.

4. **Compliance.** After the effective date of any ordinance establishing a building line, no person shall build or maintain any building, structure, wall, fence, hedge or other improvement within the space between the street line and the building line so established, and the Department of Building and Safety shall refuse to issue any permit for any building, structure or improvement within that space.

5. **Exceptions – Nonconforming Buildings.**

(a) **Permitted Projections.** Any improvements or projection permitted in a front yard, or in a side yard adjoining a street by Section 12.22 C.20. of Article II, may extend or be located in the same manner in the space between an established building line and the adjacent street line. Further, a marquee may extend into the space between an established building line and the adjacent street line a distance of not more than 12 feet from the face of the building to which it is attached, providing the building be lawfully devoted to a business use.

(b) **Nonconforming Buildings.** A nonconforming building, structure or improvement may be maintained except as

otherwise provided in Sections 12.23 A. and 12.23 D.

(c) **Subsurface Improvements.** The provisions of this article do not apply to buildings, structures or improvements located below the natural or finished grade of a lot whichever is lower.

(d) **Street Vacation.** Any building line existing along a public street hereafter vacated shall be deemed automatically removed when the City Council makes its order of vacation unless the order of vacation provides otherwise.

(e) **Enforcement.** The provisions of Div. 13B.10. (Department of Building and Safety) of Chapter 1A of this Code concerning enforcement of the zoning regulations shall also apply to the enforcement of the provisions of this article.

S. Supplemental Use Districts. (Amended by Ord. No. 181,412, Eff. 1/2/11.)

1. **Purpose.** The purpose of Article 3 of this chapter is to regulate and restrict the location of certain types of uses whose requirements are difficult to anticipate and cannot adequately be provided for in the “Comprehensive Zoning Plan”. These uses, the boundaries of the districts where they are permitted, the limitations governing their operations, and the procedure for the establishment of new districts, are provided for in Article 3 of this chapter. Except for the “Supplemental Uses” permitted by Article 3 of this chapter, all property within the districts hereby established is subject to the provisions of the “Comprehensive Zoning Plan”.

2. **Districts. (Amended by Ord. No. 188,081, Eff. 2/5/24.)** In order to carry out the provisions of this article, the following districts are established:

- “O” Oil Drilling District
- “S” Animal Slaughtering District
- “G” Surface Mining District
- “RPD” Residential Planning Development District
- “K” Equinekeeping District
- “CA” Commercial and Artcraft District
- “POD” Pedestrian Oriented District
- “CDO” Community Design Overlay District
- “MU” Mixed Use District
- \ “FH” Fence Height District
- “SN” Sign District
- “TON” Transportation Communication Network District
- “RFA” Residential Floor Area District
- “NSO” Neighborhood Stabilization Overlay District
- “CPIO” Community Plan Implementation Overlay District
- “HS” Hillside Standards Overlay District
- “MPR” Modified Parking Requirement District
- “RIO” River Improvement Overlay District
- “CUGU” Clean Up Green Up Overlay District
- “RG” Rear Detached Garage District
- “HCR” Hillside Construction Regulation District

These districts and their boundaries are shown on portions of the “Zoning Map” as provided for in Section 12.04 and made a part thereof by a combination of the zone and district symbols. This map and the notations, references and other information shown on it which pertain to the boundaries of these districts are made a part of this article as if fully described here. Reference is hereby made to those maps, notations, references and other information for full particulars.

3. Establishment of Districts.

(a) **Requirements.** The procedure for initiation or an application to establish, change the boundaries of or repeal a supplemental use district shall be as set forth in Sec. 13B.1.4. (Zone Change) of Chapter 1A of this Code with the following additional requirements.

(b) **(Repealed by Ord. No. 188,081, Eff. 2/5/24, Oper. 1/22/24.)**

(c) **Action on the Initiation or Application.**

(1) **Authority.** Notwithstanding the provisions of Subsection C., only the City Planning Commission is authorized to make recommendations regarding approval or disapproval in whole or in part on an application for or the initiation of the establishment of a supplemental use district to the Council.

(2) **Notice.** Notice of the public hearing shall also be given to the Bureau of Engineering and Department of Transportation for an application or initiation to establish a supplemental use district.

(3) **(Repealed by Ord. No. 188,081, Eff. 2/5/24, Oper. 1/22/24.)**

(4) **Disapproval – Appeal to Council.** If the City Planning Commission recommends disapproval of an application, in whole or in part, any owner or lessee of property included in a proposed district may appeal that decision to the Council by filing an appeal with the City Planning Commission pursuant to the procedure set forth in Subsection D. of this section.

4. **Administrative Clearance – Director Authority for Sign Off.** See Sec 13B.3.1. (Administrative Review) of Chapter 1A of this Code.

SEC. 12.33. PARK FEES AND LAND DEDICATION.

(Title and Section Amended by Ord. No. 184,505, Eff. 1/11/17.)

A. Purpose. New residential dwelling units increase demand on existing park and recreational facilities and create the need for additional facilities. The purpose of this Section is to enable the acquisition of land and the collection of fees to be used for the purpose of developing new or rehabilitating existing recreational facilities in order to create a healthy and sustainable city.

B. Types of Fees. The type and amount of park and recreation impact fee associated with a project depends on the type of project being developed. Subdivision projects consisting of more than 50 residential units are subject to a Quimby in-lieu fee. All other residential projects are subject to a park mitigation fee. Collectively, these fees are referred to in this Code as park fees.

C. Subject Properties. All new residential dwelling units and joint living and work quarters shall be required to dedicate land, pay a fee or provide a combination of land dedication and fee payment for the purpose of acquiring, expanding and improving park and recreational facilities for new residents. For the purposes of this subsection, dwelling units, Accessory Dwelling Units, Junior Accessory Dwelling Units, and joint living and work quarters shall be referred to as “dwelling units” or “residential dwelling units”. **(Amended by Ord. No. 186,481, Eff. 12/19/19.)**

1. **Residential Subdivision Projects That Contain More Than 50 Dwelling Units.** A subdivision containing more than 50 dwelling units shall be required to participate in an early consultation with the Department of Recreation and Parks and Department of City Planning pursuant to Subsection D. and may be required to dedicate land, make park improvements, pay a park fee or provide a combination of land dedication and park fee payment.

2. **All Other Residential Projects.** For residential subdivision projects containing 50 or fewer dwelling units or for non-subdivision residential projects that are seeking a building permit for a project application that contains any number of net new dwelling units, the project shall pay a park fee pursuant to Subsection E. Applicants may choose to dedicate land or new park and recreational facilities, and/or improve existing park and recreational facilities in lieu of payment of a park fee.

3. **Exemptions.** The following types of development shall not be required to pay a park fee:

- (a) Alterations, renovations or expansion of an existing residential building or structure where no additional dwelling units are created.
- (b) Replacement of existing dwelling units on the same lot resulting in no net increase of residential dwelling units.
- (c) The replacement of a destroyed or partially destroyed or damaged building or structure where no additional dwelling units are created.
- (d) Affordable housing pursuant to Subsection G. of this Section.
- (e) Accessory Dwelling Units and Junior Accessory Dwelling Units. **(Amended by Ord. No. 186,481, Eff. 12/19/19.)**
- (f) Non-residential development.

D. Residential Subdivision Projects That Contain More Than 50 Dwelling Units.

1. **Early Consultation.** Applicants shall meet with the Department of Recreation and Parks and Department of City Planning staff in advance of submitting a tract map application for a project of more than 50 units. The purpose of this early consultation is to discuss whether the City requires land dedication for the project and/or to discuss credits available to the applicant, if any. The Department of Recreation and Parks shall provide written verification of the consultation to the project applicant within ten (10) business days of the meeting. Written verification of this consultation shall be required before the Department of City Planning accepts an application for a tentative tract map.

2. Formula for Park Land Dedication.

- (a) The Department of Recreation and Parks shall calculate the amount of land to be dedicated by determining the number of non- exempt (per Section 12.33 C.3.) net new dwelling units in the proposed project and multiply that number by the average number of people per occupied dwelling unit and multiplying that by the park service factor:

$$LD = (DU \times P) \times F$$

LD: Land to be dedicated in acres.

DU: Total number of new market-rate dwelling units.

P: Average number of people per occupied dwelling unit as determined by the most recent version of the U.S. Census for the City of Los Angeles.

F: Park service factor, as indicated by the Department of Recreation and Parks rate and fee schedule.

(b) Any land dedication for park and recreation purposes shall not be deducted from a site's gross lot area for the purposes of calculating project density, lot area, buildable area or floor area ratio.

(c) If after recording the final map there is an increase in the number of dwelling units to be built or a change in the number and/or type of dwelling units designated which increases the number of persons served by the subdivision, the project applicant shall be required to dedicate additional land and/or pay additional fees, as determined by the Department of Recreation and Parks and the City Planning Department.

3. **Park Land Dedication Radius.** Any land dedication for park and recreation purposes shall be located within a certain radius from the project site, as specified below:

(a) Neighborhood Park: within a 2-mile distance

(b) Community Park: within a 5-mile distance

(c) Regional Park: within a 10-mile distance

4. **Review of Land Dedication.**

(a) Upon receiving the project application for the tentative tract map, the Department of City Planning shall transmit the project application with land dedication to the Department of Recreation and Parks.

(b) After receipt of the project application, the Department of Recreation and Parks shall determine whether the land dedication proposal complies with the Department of Recreation and Parks's existing park and recreation standards and requirements.

(c) If the Department of Recreation and Parks determines that the land dedication proposal meets the standards and requirements of the department, the General Manager of the Department of Recreation and Parks shall prepare a report to the Board of Recreation and Parks Commissioners regarding the proposed dedication. The Board of Recreation and Parks Commissioners may accept or decline the land dedication.

5. **Payment of Park Fee.** If the project will not be dedicating land for park and recreational purposes, the project applicant shall pay a park fee pursuant to Subsection E. of this section.

E. Park Fees for Non-Subdivision Residential Projects, Residential Subdivisions With 50 Units or Fewer, or Residential Subdivisions With More Than 50 Units That Are Not Dedicating Land.

1. **Fees and Fee Schedule.** The park fee amount depends on the type of project. The Department of Recreation and Parks shall collect these fees pursuant to Section 19.17 and the Department of Recreation and Parks rate and fee schedule.

2. **Fee Calculation.** The Department of Recreation and Parks shall calculate the amount of the park fee due for each residential development project by determining the number of new non-exempt (pursuant to Section 12.33 C.3.) dwelling units in the proposed project and multiplying the number of units by the park fee amount per dwelling unit according to the following formula:

$$\text{Project Park Fee} = \text{DU} \times \text{PRF}$$

DU: Total number of new, non-exempt (per Section 12.33 C.3.) dwelling units.

PRF: Park Fee per unit.

3. **Fee Expenditure Radius.** Recreational sites and facilities shall be located within a certain radius from the project site, as specified below:

(a) Neighborhood park: within a 2-mile distance.

(b) Community park: within a 5-mile distance.

(c) Regional park: within a 10-mile distance.

4. **Phase-in Period.** The park fee shall be phased in as described in Section 19.17 of this Code.

5. **Indexing.** Any fee imposed by this section shall be adjusted on July 1st of each year by a percentage equal to a weighted average of: (1) the percentage change in the Construction Cost Index for Los Angeles, as published by Engineering News-Record, or its successor publication, for the 12-month period between March in the year in which the adjustment is made and the month of March in the immediately preceding year; and (2) the percentage change in the Federal Reserve Economic Data All-Transactions House Price Index for Los Angeles-Long Beach-Glendale, CA (MASD) as published quarterly by the Federal Reserve Bank of St. Louis, or its successor publication, from the fourth calendar quarter most recent to the year in which the adjustment is made to the fourth calendar quarter immediately preceding it. **(Amended by Ord. No. 188,475, Eff. 3/10/25.)**

6. **Fee Payment Timing.**

(a) **Residential Subdivision Projects.** The park fee for residential subdivisions shall be calculated and collected prior to final subdivision map approval.

(b) **Residential Non-Subdivision Projects.** For other residential development projects, the park fee shall be calculated and collected prior to the issuance of the Certificate of Occupancy.

F. Park Fee as Additional Requirement. The park fee enacted by this Section is a fee imposed on residential development projects reflecting each project's proportionate share of the cost of providing park land and improvements necessary to meet the needs created by each respective development. As such, the park fee is additional and supplemental to, and not in substitution of, on-site open space requirements required by the City's Municipal Code, specific plan(s), or any other planning document, such as those included in Section 12.21.

G. Affordable Housing Exemption.

1. Notwithstanding any other provision contained in this section, new residential dwelling units which are rented or sold to persons or households of very-low, low or moderate income shall receive an affordable housing exemption from the park fee and land dedication requirement.

(a) An affordable housing unit shall receive an exemption from the requirement for dedication of land for park and recreational purposes and/or payment of the park fee if the affordable housing unit is affordable to a household at or below 120% of AMI.

(b) In projects with a mix of market-rate and affordable housing units, only the affordable housing units shall receive this exemption.

2. For any affordable housing unit qualifying for an exemption, a covenant acceptable to the Los Angeles Housing Department shall be recorded with the Los Angeles County Recorder, guaranteeing that the affordability criteria will be observed for at least 55 years from the issuance of the Certificate of Occupancy or a longer period of time if required by the construction or mortgage financing assistance program, mortgage assistance program, or rental subsidy program. **(Amended by Ord. No. 187,122, Eff. 8/8/21.)**

3. The Los Angeles Housing Department shall evaluate the project application to ensure it meets the above requirements and shall advise the Department of Recreation and Parks and the Department of City Planning about whether the project meets those requirements. **(Amended by Ord. No. 187,122, Eff. 8/8/21.)**

4. Should any qualifying affordable housing unit cease to operate as a qualifying affordable housing unit before the 55-year period has expired, then the parks fee for each said unit shall be paid to the City at the then current rate.

H. Credits.

1. **Public Land Dedication or Improvement to Dedicated Land.**

(a) **Public Land Dedication.** In lieu of paying the park fee, land may be dedicated to the City of Los Angeles for public park and recreational purposes, at the City's option. This may be with or without recreational facility improvements. The amount of land to be dedicated shall be determined pursuant to one of the following formulas, and credit shall be granted, square foot for square foot, for any land dedicated to the City:

Subdivision Projects:

$$LD = (DU \times P) \times F1$$

LD: Land to be dedicated in acres.

DU: Total number of net new, non-exempt (per Section 12.33 C.3.) dwelling units.

P: Average number of people per occupied dwelling unit as determined by the most recent version of the U.S. Census for the City of Los Angeles.

F1: Park service factor for subdivision projects, as indicated by the Department of Recreation and Parks rate and fee schedule.

Non-Subdivision Projects:

$$LD = (DU \times P) \times F2$$

LD: Land to be dedicated in acres.

DU: Total number of net new, non-exempt (per Section 12.33 C.3.) dwelling units.

P: Average number of people per occupied dwelling unit as determined by the most recent version of the U.S. Census for the City of Los Angeles.

F2: Park service factor for non- subdivision projects, as indicated by the Department of Recreation and Parks rate and fee schedule.

(b) **Improvement to Dedicated Land.** In lieu of paying the park fee or dedicating land, the City may permit improvements to be made to land being dedicated as a City park or recreational facility.

(c) The total amount of credits shall not exceed 100 percent of the calculated requirement for the park fee or land dedication.

(d) Credit shall be granted for the property dedicated pursuant to this Section, dollar for dollar, in satisfaction of any park fee required to be paid. The cost and subsequent credit should bear a reasonable relationship to an independent assessment of the construction cost for the facility, such as the estimates provided by RSMeans Building Construction Cost Data or similar measure. Credits may be awarded for on-site or off-site land dedication and/or park improvements.

(e) The Department of Recreation and Parks shall determine whether the proposal complies with the department's park and recreational standards and requirements. If the department determines the proposal meets the department's standards and requirements, the General Manager of the Department of Recreation and Parks shall prepare a report to the Board of Recreation and Parks Commissioners regarding the proposed dedication or improvement. The Board of Recreation and Parks Commissioners may accept or decline the land dedication, new park and recreational facility, or improvement to existing park and facilities.

(f) If the dedication and/or improvement is accepted by the Board of Recreation and Parks Commissioners in lieu of the park fee or land dedication, or any portion thereof, the City shall reduce or waive the fee, or land dedication, or any portion thereof, upon dedication of the property and/or guarantee of the improvement. The guarantee of the improvement shall be to the satisfaction of the Department of Recreation and Parks and shall be by a deposit with the Department of Recreation and Parks of an irrevocable deposit instrument issued by a bank, savings and loan association or other depository whose deposits are insured by an instrumentality of the federal government. The deposit must be fully insured by such instrumentality. The deposit instrument must be in a form that permits collection by the City of Los Angeles at maturity without further consent of any other party.

2. **Privately Owned Park and Recreational Facilities.** Where facilities for park and recreational purposes are provided in a proposed residential development and such facilities will be privately owned and maintained by the future owners of the development, the areas occupied by such facilities shall be partially credited against the requirement of dedication of land for park and recreational purposes of the payment of a park fee thereof, provided that the following standards are met to the satisfaction of the Department of Recreation and Parks: (1) that each facility is available for use by all the residents of the residential development; and (2) that the area and the facilities satisfy the recreation and park needs of the residential development so as to reduce the need for public recreation and park facilities to serve the project residents.

(a) The amount of credits for non-publicly accessible park and recreational facilities shall not exceed 35 percent of the calculated requirement for the park and recreation impact fee or land dedication. Credits may be awarded for on-site or off-site private facilities.

(b) The amount of credits for publicly accessible, privately maintained park and recreational facilities shall not exceed 100 percent of the calculated requirement for the park and recreation impact fee or land dedication. Credits may be awarded for on-site or off-site private facilities.

(c) Private park and recreational facilities shall include a variety of active and passive amenities, as determined by the Department of Recreation and Parks.

(d) Credit shall be granted, dollar for dollar, for any recreational and park impact fees required to be paid for the property pursuant to this Section, as determined by the Department of Recreation and Parks. The cost and subsequent credit should bear a reasonable relationship to an independent assessment of the construction cost for the facility, such as the estimates provided by RSMeans Building Construction Cost Data or similar.

(e) Credits shall not be given for the following:

(1) Yards, court areas, setbacks and other open space areas required to be maintained by the City's Municipal Code, specific plan or any other planning document.

(2) Common open space and/or private open space required by the City's Municipal Code, specific plan(s), or any other planning document, such as those included in Section 12.21.

(f) The granting of credits shall also be subject to the following:

(1) The private ownership and maintenance of the facilities shall be adequately provided for by written agreements; and

(2) The use of the private facilities, whether publicly or non-publicly accessible, is restricted for park and recreational purposes by recorded covenants acceptable to the Department of Recreation and Parks which run with the land and which cannot be defeated or eliminated without the consent of the City Council; and

(3) The proposed facilities are reasonably adaptable for use for park and recreational purposes, taking into consideration such factors as size, shape, topography, geology, access and location of the private open space land; and

(4) The proposed non-public facilities are available for use by all the residents of the proposed residential development; and

(5) Any proposed publicly- accessible, privately-maintained park and recreational facilities are accessible for use by the general public with no discrimination between residents and non-residents, are open at hours comparable to those of City parks and facilities, and have appropriate signage indicating that the space is public; and

(6) The facilities are in substantial accordance with, and meet the policies and standards for, the development of park and recreational facilities.

3. **Dwelling Unit Construction Tax Credit.** A credit shall be allowed whenever a dwelling unit construction tax previously has been paid pursuant to Section 21.10.3 of the Municipal Code for dwelling units constructed on land for which a fee is required to be paid in accordance with the provisions of this Section. Said credit shall be equal to the amount of the tax previously paid, but shall not exceed the amount of any fee required to be paid under the provisions of this Section.

4. **Credit Request Timing.** The project applicant shall submit any requests for credit, and the Department of Recreation and Parks may only approve such requests, prior to the approval of the Final Map or prior to the date of final inspection, or the date of the Certificate of Occupancy, whichever is earliest and applicable, and prior to the dedication of any land or payment of any park fee.

I. Park Fee Account and Accounting.

1. **Park Fee Account.** The City of Los Angeles establishes a separate park and recreation fee trust fund account (hereinafter "account") to which any park fee collected by the City shall be posted. The funds of the account shall not be commingled with any other funds or revenues of the City. Any interest accrued by the account shall be used solely for the purposes of park and recreational facility acquisition, expansion and improvement.

2. **Park Fee Accounting.** Within 180 days after the last day of each fiscal year, the Department of Recreation and Parks shall report to the Board of Commissioners of Recreation and Parks on the amount of the fee income (including interest income), expenditures, status of the trust fund account, and intrafund transfers. The Department of Recreation and Parks shall also report on each of the park and recreational facilities on which fees were committed in the last fiscal year and the approximate date by which the construction of the park and recreational facilities will commence. The City shall maintain accounts and prepare reports in accordance with California Government Code Section 66001 or successor section.

3. Refund of Fees Under the Government Code.

(a) Park fees collected pursuant to this section shall be committed by the City within five years of receipt of payment for a residential development project to serve or benefit residents of the project for which the fees were collected.

(b) If the fees are not committed as specified in this section, Quimby fees shall be refunded in accordance with California Government Code Section 66477 or successor section. All other park fees shall be refunded in accordance with California Government Code Section 66001 or successor section.

4. **Other Refunds.** In the event that an applicant requests a refund for reasons not set forth in Government Code Sections 66001 or 66477, or their successor sections, if any, the applicant shall submit a claim for a refund with the Department of Recreation and Parks. Upon the department's determination, the fee payer may receive a refund, without interest, of the fees paid pursuant to this section; however, the portion of any fee revenue received by the City as reimbursement of its costs in administering the provisions of this section shall not be refunded. The fee payer shall submit an application for a refund to the City within one year of payment. Failure to timely submit the required application for refund shall constitute an absolute waiver of any right to the refund.

J. Use of Park Fees or Lands Dedicated Pursuant to this Section.

1. The dedicated lands or park fees collected pursuant to this section shall be used for the acquisition, improvement and expansion of public parks and recreational facilities. The fees shall be committed and expended in accordance with the provisions and procedures established in this section. The park fee may be used to pay the principal sum and interest and other finance costs on bonds, notes or other obligations issued by, or on behalf of, the City to finance such park and recreational facility improvements; and any administrative costs incurred by the City in accordance with this section.

2. Interest accrued on Quimby in-lieu fees collected pursuant to this section may be applied outside the project development for which the original fees were collected, provided that the Department of Recreation and Parks holds a public hearing prior to committing the interest, and uses the interest to develop new or rehabilitate existing neighborhood or community parks or recreational facilities within the City. All such public parks and recreational facilities shall comply with the principles and standards set forth in the General Plan.

3. All such public parks and recreational facilities shall comply with the principles and standards set forth in the General Plan.

4. The park or recreational facilities acquired, improved or expanded shall be publicly accessible and serve or benefit the project that dedicated the land or paid the fees.

K. Effective Date.

1. This ordinance shall take effect on the 60th day following its adoption.

2. Any park fee paid prior to the effective date of this ordinance shall not be recalculated pursuant to the provisions of this ordinance.

3. Any project that would otherwise be subject to a park fee pursuant to this section but has acquired vested rights under Section 12.26 A.3. of this Code prior to the effective date of this ordinance, and/or has an approved vesting tentative map pursuant to Section 17.15, the application for which has been deemed complete prior to the effective date of this ordinance, shall not be subject to a park fee.

4. Any Accessory Dwelling Unit or Junior Accessory Dwelling Unit project where the park fee has not yet been paid and a Certificate of Occupancy has not been issued by the Department of Building and Safety prior to the effective date of this ordinance shall not be subject to a park fee. **(Added by Ord. No. 186,481, Eff. 12/19/19.)**

L. Severability. If any provision of this ordinance is found to be unconstitutional or otherwise invalid by any court of competent jurisdiction, that invalidity shall not affect the remaining provisions of this ordinance, which can be implemented without the invalid provisions and, to this end, the provisions of this ordinance are declared to be severable. The City Council hereby declares that it would have adopted each and every provision and portion thereof not declared invalid or unconstitutional, without regard to whether any portion of the ordinance would subsequently be declared invalid or unconstitutional.

SEC. 12.34. APPLICATION OF PROVISIONS.

The provisions of this chapter shall apply to all buildings, structures or land owned, operated or controlled by any person, Corporation or to the extent permitted by law, governmental agency. **(Amended by Ord. No. 142,870, Eff. 3/9/72.)**

SEC. 12.35. ZONING OF ANNEXED OR UNZONED AREAS.

(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)

All land or territory annexed to the City after the effective date of this section shall be immediately classified in the R1 Zone and in Height District No. 1 (R1-1) unless the Council specifically determines otherwise by ordinance. The Council may establish specific zoning by ordinance for land or territory to be annexed. The zoning ordinance may be adopted concurrently with the annexation. Unless the specific zoning is established by ordinance, the Zoning Map shall be amended to indicate the land or territory annexed as R1-1 without additional proceedings.

Any land or territory in the City which is not indicated on the Zoning Map as being in any zone shall be construed as being classified in the same zone as that existing on the side of the street opposite the subject land or territory, and the Zoning Map is hereby amended to indicate that zone without additional procedure.

In those portions of the City where height districts have been established, any land or territory which is not indicated on the Zoning Map as being in any height district shall be construed as being classified in the same height district as that existing on the side of the street opposite the subject land or territory, and the Zoning Map is hereby amended to indicate that height district without additional procedure.

Where uncertainty exists as to the zone or height district to be indicated on the map, the zone or height district shall be determined by the City Planning Commission by written decision.

SEC. 12.36. PROJECTS REQUIRING MULTIPLE APPROVALS. (CHARTER § 564).
(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

See Sec. 13A.2.10. (Multiple Approvals) of Chapter 1A of this Code.

SEC. 12.37. HIGHWAY AND COLLECTOR STREET DEDICATION AND IMPROVEMENT.
(Title amended by Ord. No. 150,799, Eff. 6/5/78.)

A. Requirement. No building or structure shall be erected or enlarged, and no building permit shall be issued therefor, on any lot in any R3 or less restrictive zone (as such order of restrictiveness is set forth in Subsection B. of Section 12.23); or on any lot in the RD1.5, RD2 or RD3 Zones; if such lot abuts a major or secondary highway or collector street unless the one-half of the highway or collector street which is located on the same side of the center of the highway or collector street as such lot has been dedicated and improved for the full width of the lot so as to meet the standards for such highway or collector street provided in Subsection H. of this section; and further provided that in the case of either a corner lot or an L- shaped interior lot abutting a major or secondary highway and a local street which intersect, that one-half of the local street, on the same side of the center of said local street as such lot, has been dedicated and improved for that portion of said lot or lots within 300 feet of the ultimate property line of said highway so as to meet the standards for local streets provided in Subsection H. of this section and provide adequate right-turn ingress to and egress from the highway; or such dedication and improvement has been assured to the satisfaction of the City Engineer respectively. As used in this section, the Center/Control line of the arterial or collector street shall mean the center of those arterial or collector streets as shown on the Citywide Circulation System Map of the Circulation Element of the General Plan or, with respect to collector streets, on the adopted community plans of the Land Use Element of the General Plan on file in the offices of the Department of City Planning. **(Amended by Ord. No. 184,718, Eff. 3/4/17.)**

1. The maximum area of land required to be so dedicated shall not exceed 25% of the area of any such lot which was of record on March 1, 1962 in the Los Angeles County Recorder's Office. In no event shall such dedication reduce the lot below a width of 50 feet or an area of 5,000 square feet.

2. No such dedication for any highway, collector street or any other street shall be required with respect to those portions of such a lot occupied by a legally existing main building which is to remain.

3. No additional improvement shall be required on such a lot where complete roadway, curb, gutter and sidewalk improvements exist within the present dedication contiguous thereto.

4. No building or structure shall be erected on any such lot after March 1, 1962 within the dedication required by Subsection H. of this section.

5. No dedication shall be required where the existing right-of-way is equal to or greater than the street standard, even where the improved sidewalk does not meet the standard dimension. **(Amended by Ord. No. 184,718, Eff. 3/4/17.)**

6. Where the existing improved roadway meets or exceeds the street standard, no dedication shall be required except as necessary to bring the abutting sidewalk dimension into compliance with the street standard as depicted in the most recent version of the Bureau of Engineering's standard plan number S470. **(Added by Ord. No. 184,718, Eff. 3/4/17.)**

7. Nothing herein shall preclude the decision maker on a discretionary entitlement from requiring a dedication or improvement greater than what is set forth in this section, if the decision maker determines that a greater dedication or improvement bears an essential nexus and rough proportionality to a project impact. **(Added by Ord. No. 184,718, Eff. 3/4/17.)**

8. For streets accompanied by a parallel frontage and/or service road and for streets designated as divided streets, existing roadway dimensions are deemed to be in compliance with the street standards and no additional dedication or improvement is required. A dedication for sidewalk improvement shall be required, however, as necessary to bring the abutting sidewalk dimension into compliance with the street standard. **(Added by Ord. No. 184,718, Eff. 3/4/17.)**

9. Additional dedication and improvement requirements may be imposed in order to ensure compliance with the Americans with Disabilities Act. **(Added by Ord. No. 184,718, Eff. 3/4/17.)**

10. Notwithstanding the above, in order to obtain street consistency, the Bureau of Engineering on a by-right project, or the decision maker on a discretionary entitlement, may modify this section's dedication and improvement requirements for meandering streets or portions of streets that lack uniform roadway widths, including for divided streets, and streets accompanied by a parallel frontage and/or service road. **(Added by Ord. No. 184,718, Eff. 3/4/17.)**

The guidelines developed by Streets Standards Committees shall be consistent with the goals and purpose of the Transportation Element of the General Plan as determined by the City Planning Commission. These guidelines shall also establish a procedure for notice to interested persons, including the Council-member of the district where the property is located.

B. Exceptions. (Amended by Ord. No. 172,315, Eff. 12/31/98.) The provisions of Subsection A. of this section shall not apply to the

following construction projects:

1. One single-family dwelling with customary accessory buildings when erected on a vacant lot.
2. Additions and accessory buildings incidental to a legally existing residential building, provided no additional dwelling units or guest rooms are created.
3. Additions and accessory buildings incidental to a legally existing non-residential building, provided that the total cumulative floor area of all such additions and accessory buildings shall not exceed 500 square feet.

C. Dedication Procedure.

1. Any person required to dedicate land by the provisions of this section shall make an offer to dedicate, properly executed by all parties of interest including beneficiaries in deeds of trust as shown by a current preliminary title report prepared by a Title Company approved by the City Engineer for that purpose. The trustee under a deed of trust shall not be required to execute the dedicatory instrument, unless, in the view of the City Engineer, such execution is necessary to satisfactorily dedicate the land. Such report shall be furnished by the applicant. Such offer shall be on a form approved by the City Attorney and the City Engineer; be in such terms as to be binding on the owner, the owner's heirs, assigns or successors in interest and shall continue until the City Council accepts or rejects such offer or until one year from the date such offer is filed with the City Engineer for processing, whichever occurs first. The offer shall provide that the dedication will be complete upon acceptance by the City Council. The offer shall be recorded by the City Engineer in the Office of the County Recorder of Los Angeles County upon its acceptance by the City Engineer. The City Engineer shall accept or reject the offer for recordation within 10 days after it is filed with the City Engineer. The offer shall thereafter be promptly processed by the City Departments concerned and submitted to the City Council, in order to complete the dedication within one year. If the offer is rejected by the City Council or not processed within one year, the City Engineer shall issue a release from such offer which shall be recorded in the Office of the County Recorder unless the parties making the offer wish to have the time extended. **(Amended by Ord. No. 152,425, Eff. 6/29/79, Oper. 7/1/79.)**

D. Improvement Procedure.

1. Any person required to make improvements by the provisions of this section shall either make and complete the same to the satisfaction of the City Engineer or shall file with the City Engineer a bond in such an amount as the City Engineer shall estimate and determine to be necessary to complete all of the improvements required.

2. Such bond may be either a cash bond or a bond executed by a company authorized to act as a surety in this State. The bond shall be payable to the City and be conditioned upon the faithful performance of any and all work required to be done, and that should such work not be done or completed within the time specified, the City may at its option, cause the same to be done or completed, and the parties executing the bond shall be firmly bound under a continuing obligation for the payment of all necessary costs and expenses incurred in the construction thereof. The bond shall be executed by the owner of the lot as principal, and if a surety bond, shall also be executed by a corporation authorized to act as a surety under the laws of the State of California.

3. Whenever the owner elects to deposit a cash bond, the City is authorized, in the event of any default on the owner's part, to use any or all of the deposit money to cause all of the required work to be done or completed, and for payment of all costs and expenses therefor. Any money remaining shall be refunded to the owner.

4. When a substantial portion of the required improvement has been completed to the satisfaction of the City Engineer and the completion of the remaining improvements is delayed due to conditions beyond the owner's control, the City Engineer may accept the completed portion and consent to a proportionate reduction of the surety bond in an amount estimated and determined by the City Engineer to be adequate to assure the completion of the required improvements remaining to be made.

5. Whenever a surety bond has been filed in compliance with this section, the City is authorized, in the event of any default on the part of the principal, to enforce collection, under such bond, for any and all damages sustained by the City by reason of any failure on the part of the principal faithfully and properly to do or complete the required improvements, and in addition may cause all of the required work to be done or completed, and the surety upon the bond shall be firmly bound for the payment of all necessary costs thereof.

6. The term of the bond shall begin on the date of the deposit of cash or the filing of the surety bond, and shall end upon the date of the completion to the satisfaction of the City Engineer of all improvements required to be made. The fact of such completion shall be endorsed by a statement thereof signed by the City Engineer, and the deposit shall be returned to the owner, or the surety bond may be exonerated at any time thereafter.

7. For purposes of this section, improvement shall be considered as satisfactorily assured when the City Engineer accepts the cash or surety bond provided for herein or the improvements required to be made have been completed to the City Engineer's satisfaction. When the City Engineer accepts the bond or the work has been completed to the City Engineer's satisfaction, the City Engineer shall notify the Department of Building and Safety thereof.

E. Issuance Of Building Permits After Certification Of Dedication And Improvement. When all dedication and improvements required by this section have been completed or satisfactorily assured a building permit may be issued.

F. Fees. (Amended by Ord. No. 184,718, Eff. 3/4/17.) In addition to all other required fees, the following fees shall be charged for services provided for processing applications pursuant to the provisions of this section:

1. A nonrefundable fee as set forth in Section 11.12 for every property requiring the City Engineer to investigate and determine whether the provisions of this section require a dedication of land or improvement to land.
2. A fee as set forth in Section 11.12 for Bureau of Engineering services for processing real estate transfer documents for every property for which the provisions of this section require a dedication of land.
3. A nonrefundable fee in the amount of \$1,970 paid to the Department of City Planning for processing waiver requests pursuant to the provisions of Subsection I. of this section.
4. A nonrefundable fee of \$1,570 paid to the Department of City Planning for processing appeals pursuant to the provisions of Subsection I. of this section.

G. Lots Affected By Street Widening. (Amended by Ord. No. 125,340, Eff. 9/23/63.) On a lot which is affected by street widening required by the provisions of this section all required yards, setbacks, parking area, loading space and building locations for new buildings or structures or additions to buildings or structures shall be measured and calculated from the new lot lines being created by said widening; provided, however, that for the purpose of establishing the required front yard depth on a frontage where the ultimate street line has been determined under the provisions of this section, the depths of all existing front yards may be measured from such ultimate street line instead of the front lot line.

In applying all other provisions of this Article, the area of such lot shall be considered as that which existed immediately prior to such required street widening.

H. Improvement Standards. (Amended by Ord. No. 150,799, Eff. 6/5/78.)

1. All arterial and collector streets shall be constructed and improved in accordance with the standards adopted by the City Planning Commission pursuant to LAMC 17.05 B. **(Amended by Ord. No. 184,718, Eff. 3/4/17.)**
2. **(Amended by Ord. No. 173,217, Eff. 6/11/00.)** All streets not designated major or secondary highways or collector streets, but that intersect said highways, shall be dedicated to a maximum width of sixty (60) feet. Roadway and parkway widths shall conform to those standards adopted by the City Planning Commission in accordance with LAMC 17.05 B., depending upon street classification type. Whenever uncertainty exists as to the application of the provisions of this section, or in instances of streets so classified as requiring less than 60 feet of dedication in order to conform to the minimum width standards as adopted in accordance with Section 17.05 B. of this Code, the City Engineer shall make any necessary determinations.
3. All improvements required to be made by the provisions of this subsection shall be done in accordance with the current applicable provisions of the Standard specifications for Public Works Construction adopted by the City Council.
4. The City Engineer may approve and allow such variations from the aforesaid requirements as the City Engineer determines are made necessary by the conditions of the terrain and the existing improvements contiguous to the property involved.

I. Waiver and Appeals. (Amended by Ord. No. 184,718, Eff. 3/4/17.)

1. This subdivision shall constitute the exclusive mechanism for waivers and appeals of dedication and improvement requirements under this section. Waivers of dedication or improvement requirements may not be granted by City Council motion.
2. **Waivers for By-Right Projects.** Any person seeking a waiver of this section's dedication or improvement requirements for a project that does not require a discretionary entitlement shall file an application for a waiver with the Director of Planning.

(a) **Notice.** Within 10 calendar days of the receipt of an application for a waiver, the Director shall mail notice of the requested waiver to the following individuals and entities with a notice that all comments shall be submitted to the Director no later than 14 calendar days following mailing of the notice:

- (1) Owners of property across the street or alley from the subject property;
- (2) Owners of property with frontage along the same street that has a common corner with or that abuts the subject property;
- (3) Owners of property with frontage along the same street that has a common corner with or that abuts any properties listed in Subparagraphs (1) and (2) above;
- (4) The Council member of the district where the subject property is located; and
- (5) The Department of Transportation and Bureau of Engineering.

(6) Notification pursuant to this section shall also be provided to Advisory Agency members for waivers that requires the modification of a Map.

a. Any person seeking a waiver that requires a modification of a Map shall submit a map modification request and payment of map modification fees to the Bureau of Engineering as required by Section 17.11.

(b) **Findings.** The Director may waive, reduce or modify the required dedication or improvement as appropriate after making any of the following findings, in writing, based on substantial evidence in the record:

(1) The dedication or improvement requirement does not bear a reasonable relationship to any project impact.

(2) The dedication or improvement is not necessary to meet the City's mobility needs for the next 20 years based on guidelines the Streets Standards Committee has established.

(3) The dedication or improvement requirement is physically impractical.

(c) **Written Determination.** The Planning Director shall issue a determination regarding the request no sooner than 15 calendar days following mailing of the notice described above, and no later than 75 days from receipt of the waiver application, or within any additional period mutually agreed upon by the applicant and the Planning Director. The Planning Director shall mail the determination letter to all individuals to whom notice of the application was provided.

(d) **Appeal.** Any person required to dedicate land or make improvements pursuant to this section may appeal the Planning Director's decision to the Area Planning Commission. The appeal shall be filed within 15 calendar days of the date of mailing of the Planning Director's determination letter. Such appeal shall be made in writing, shall be filed at the Department of City Planning's public counter, shall state in clear and concise language the grounds for the appeal, and shall be accompanied by a filing fee in the amount specified above.

(1) Before acting on any appeal, the Area Planning Commission shall set the matter for a hearing, giving at least 15 calendar days' notice to the individuals identified in Paragraph 2.(a) above.

(2) On appeal, the Area Planning Commission shall consider the waiver request *de novo* based on the findings set forth in Subdivision 2.(b) above. The Area Planning Commission shall act to approve or deny the appeal within 75 calendar days after the expiration of the appeal period or within any additional period mutually agreed upon by the applicant and the Area Planning Commission.

3. **Waivers for Discretionary Projects.** For projects that require a discretionary entitlement, an applicant shall file a waiver request as part of the master land use application or subdivider's statement for the project. In such case, the decision maker for the discretionary entitlement shall process the waiver request pursuant to the procedures established for the discretionary entitlement, but may only grant a waiver after making one of the required findings set forth in Subdivision 2.(b) above. The waiver request must be set forth in the application filed with the Department of City Planning, and may not be raised for the first time at the hearing on the entitlement or at any entitlement appeal hearing. The applicant may appeal the waiver determination pursuant to the same procedures that govern the entitlement; except in the case of projects that include a tentative map, the waiver determination is subject to only one level of appeal. On appeal, the decision maker shall consider the waiver request *de novo* based on the findings set forth in Subdivision 2.(b) above.

If the discretionary entitlement(s) for a project have already been approved prior to the effective date of this ordinance, an applicant may apply for a waiver following the procedures for waivers for by-right projects set forth above.

4. **Waivers for a Map Modification.** Notwithstanding the Parcel, Tentative or Final Tract Map modification procedures set forth in 17.11, 17.14, 17.53 or 17.59, projects that have an approved and/or recorded Map and where the street standards for which the original dedication and/or improvements were revised after the Map was either approved and/or recorded may apply for a waiver from a street dedication and/or improvement using the Waivers for By-Right Projects process described in Section 12.37 I.2., with the Director acting for the Advisory Agency.

5. **Exceptions.** Projects located in a Hillside area that seek to obtain a waiver from a required street dedication and/or improvement shall continue to use the procedures described in Sections 12.24 X.21. and X.28. as applicable.

6. **Authority of the City Engineer.** Notwithstanding any other requirement of this Code, the City Engineer may waive or modify any condition of approval or other obligation related to right-of-way improvement or dedication consistent with the Circulation Element of the City's General Plan without requiring any discretionary entitlement, including, but not limited to, a modification under Sections 12.37 I.4. and 17.14. Nothing in this section is intended to relieve applicants and the City of compliance with the Subdivision Map Act and state law.

J. City May Share The Cost Of Making Unusual Improvements. Upon proper application to the City Council and upon recommendation of the City Engineer, the City may accept and provide for contribution toward the cost of making any improvement required by the provisions of this section which the City Engineer determines will cost an amount greatly in excess of the cost to other property owners who are required to make improvements under the provisions of this section in the immediate vicinity of the said improvement.

K. City Engineer To Determine Street Alignment. Whenever uncertainty exists as to the proper application of the provisions of this section in the matter of street alignment, the City Engineer shall determine their application in conformity with the spirit and intent of this section. **(Added by Ord. No. 125,340, Eff. 9/23/63.)**

L. Written Notification To Permit Applicants Required. When the City Engineer determines that the provisions of this section are applicable to any building permit application, the City Engineer shall inform the permit applicant of the City Engineer's determination, of the specific requirements of this Section which the City Engineer determines to be applicable thereto and of the availability and procedure for appeal of the City Engineer's determination to the City Council. **(Amended by Ord. No. 153,949, Eff. 7/19/80.)**

SEC. 12.38. DEDICATION OF STREETS BY LONG TERM LEASES.

(Added by Ord. No. 157,737, Eff. 7/25/83.)

A. Eligibility. A lessee holding a parcel of real property under a long term lease may offer to dedicate or convey a street easement for the term of the lease only in satisfaction of the requirements of Section 12.37 of this Code providing the following conditions are met.

1. Such lease is of record in the office of the County Recorder, and the lessee certifies under penalty of perjury that, except for the rental provided for by such lease, the owners will receive no financial benefit or other income from the proposed development during the term of the lease.
2. The area of real property to be so dedicated will be used for sidewalk only, and not for vehicular traffic and not for the installation of any subsurface or above surface lines, pipes, or other public or private utility facilities, except for such facilities which will connect from the fully dedicated streets into the buildings to be constructed.
3. That notwithstanding that the adjacent public street is fully improved with all improvements as specified in Section 12.37 A.3., the sidewalk will be fully constructed and all other necessary or desirable public improvements in the adjacent street will be fully constructed by the lessee as a part of its development on the leasehold estate, and the lessee shall post the requisite bonds to guarantee such construction, and
4. The total value of the improvements to be constructed for which the dedication is required is \$3,000,000.00 or more, as determined by the Department of Building and Safety.

B. Dedication Document. The dedication of the leasehold estate for street purposes pursuant to this section shall be a form of deed making specific reference to the document creating the leasehold estate and the deed shall convey only the leasehold rights. The City Engineer is authorized to accept such deeds and place same of record with the County Recorder of Los Angeles County without further authority of the City Council, upon the approval of such deed as to form by the City Attorney. Dedication of a leasehold estate for street purposes shall not be approved and no building shall issue if the City Attorney determines that the granting of such public right will cause a forfeiture or termination of the leasehold rights in the area to be dedicated.

SEC. 12.39. LOW AND MODERATE HOUSING.

(Repealed by Ord. No. 180,308, Eff. 12/7/08.)

SEC. 12.40. LANDSCAPE – GENERAL REQUIREMENTS.

(Added by Ord. No. 170,978, Eff. 5/13/96, Oper. 7/13/96.)

A. Purpose.

1. To bring greater order and certainty to the development process.
2. To respond to State-level mandates for action in such areas as water conservation, energy conservation, enhancement of water quality, and amelioration of air quality.
3. To increase the amount and quality of appropriate landscaping appurtenant to all land uses in the City.
4. To establish a minimum level of regulation that protects the public and at the same time allows for design flexibility.

B. Prohibitions. Notwithstanding any provisions of Chapter 1 of this Code to the contrary, the Department of Building and Safety shall not issue any building, grading, or use of land permit for any Project unless the Department of City Planning determines that the proposed landscaping will meet the provisions of Sections 12.40 through 12.43 of this Code and has been assured that any proposed landscaping will be installed.

C. Exceptions. The provisions of Sections 12.40 through 12.43 of this Code shall not apply to:

1. Any Project involving replacement of an earthquake hazardous building demolished as a result of an enforcement of the

2. Any Project for which a building permit is required

(a) in order to comply with an order issued by the Department of Building and Safety to repair an unsafe or substandard condition, or

(b) in order to rebuild as a result of destruction by fire, earthquake, or other natural disaster.

3. Any Project regulated by Subparagraph (i) of Section 12.04.05 B.1.(a) of this Code.

4. Any Project which has obtained a still-valid discretionary land use approval from the City prior to the operative date of this section, and which also required approval of landscape documents.

5. Any Project where plans were accepted by the Department of Building and Safety for plan check prior to the operative date of this ordinance. This exception does not apply to any Project where changes were later made to the Project which increase the gross square footage or number of parking spaces by more than five percent. This exception shall no longer be valid if construction is not commenced within one year of the date of issuance of the permit.

6. Any landscape that is designated a Historic- Cultural Monument.

7. Cemeteries.

D. Definitions. Whenever the following terms are used in Sections 12.40 through 12.43 they shall be construed as defined below. Words and phrases not defined herein shall be construed as defined in Sections 12.03, and in the Guidelines adopted by the City Planning Commission pursuant to Subsection F. below.

Grass - Any relatively low-growing living ground cover of the family Poaceae (Graminae), usually mown. Includes, but is not limited to, members of the species Agropyron (Wheat Grass), Agrostis (Bent Grass, Redtop), Bouteloua (Blue Grama Grass), Buchloe (Buffalo Grass), Cynodon (Bermudagrass), Festuca (Fescue), Lolium (Rye Grass), Poa (Bluegrass), Stenotaphrum (St. Augustine Grass), Zoysia (Korean Grass). Does not include members of the family Poaceae (Graminae), that are usually not mown, such as members of the species Aristidia (Triple-Awned Grass), Miscanthus (Eulalia Grass), Muhlenbergia (Deer Grass).

Landscape Practitioner - Any person licensed by the State of California to design, install or maintain landscape or irrigation systems. Any person specifically exempted by the State from the licensing requirements in the field of landscape or land management. Any owner who designs, installs or maintains landscaping or irrigation systems on the owner's own property.

Lawn Area - Any relatively low-growing, living, ground cover, typically (but not necessarily) mown, that will withstand foot traffic, and that requires dry- season irrigation greater than that required by Common Bermudagrass (Cynodon dactylon). Includes Dichondra and Clovers (Trifolium species.)

Native (Plant) - Any (plant) species indigenous to the Los Angeles area existing before European settlement, as identified in James Hendrickson's The Jepson Manual, or its successor standard reference, as adopted by the Director of Planning.

Native (Plant) Community - A recurring combination of native (plant) species that reflects parallel responses to similar combinations of environmental conditions, as identified in Robert F. Holland's "Preliminary Descriptions of the Terrestrial Natural Communities of California," or its successor standard reference, as adopted by the Director of Planning.

Permeable - A material that permits water penetration to a soil depth of 18 inches or more, including non porous surface material poured or laid in sections not exceeding one square foot in area and collectively comprising less than two-thirds of the total surface area of loosely laid material such as crushed stone or gravel.

Project - Any use of land, construction or addition which includes more than 2,000 gross square feet of impermeable surface. A Project shall include new parking areas and additions to existing parking areas constructed with impermeable paving and new parking buildings. A Project shall not include construction of or addition to one-family dwellings, nor shall a Project include any structure or use of land which is permeable.

Stream - Any perennial or intermittent stream or river identified on United State Geological Survey Maps.

Wetland - Any natural lake, intermittent lake, pond, intermittent pond, marsh, swamp, seep or spring identified on United States Geological Survey Maps.

E. Landscape Point System. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) The Department of City Planning shall not approve proposed landscape for any Project unless the landscape satisfies the requirements of the landscape point system, as established by the City Planning Commission. A Project that satisfies any landscape requirements of Sections 12.40 through 12.43 of this Code or any other sections of this Code, may accrue points.

F. Approvals. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) The Director of Planning shall have the authority to issue

approvals under Sections 12.40 through 12.43 of this Code. The Director shall review and approve or disapprove the proposed landscape. These decisions shall be based on the requirements for application submittal established by the City Planning Commission. The City Planning Commission shall adopt and revise, as necessary, guidelines to implement the provisions of Sections 12.40 through 12.43. The Director may also grant exemptions from Sections 12.40 through 12.43 if the Director finds that these landscaping requirements are inappropriate due to the temporary nature of the Project.

G. Certificate of Substantial Completion.

1. When the approved landscape has been substantially installed, a landscape practitioner shall file a certificate of substantial completion certifying to the Department of City Planning, that the proposed landscape required in Sections 12.40 through 12.43 of this Code has been substantially provided on the Project.
2. Substantial completion may be guaranteed by the applicant, in lieu of actual installation. A performance bond, certificate of deposit, letter of credit, surety deposit, or other instrument satisfactory to the City Attorney, in any amount equal to the cost of the landscape, shall be posted with the City to ensure satisfactory completion of the landscape.
3. Nothing in this subsection shall be construed to prevent the Department of Building and Safety from issuing a certificate of occupancy, when otherwise permitted or required.

H. Relationship To The Provisions of The Los Angeles Municipal Code.

1. **Existing “Q” Conditions, “D” Development Limitations or “F” Funded Improvement Classifications.** In the case of conflicts between Sections 12.40 through 12.43 of this Code with existing “Q” conditions, “D” development limitations or “F” funded improvements classifications, the existing “Q” conditions, “D” development limitations or “F” funded improvement classifications shall control.

2. **Existing Specific Plans.** In the case of conflicts between Sections 12.40, 12.42 and 12.43 of this Code with existing specific plans, the provisions of the following existing specific plans shall control: Central City West Specific Plan, Colorado Boulevard Specific Plan, Devonshire-Topanga Specific Plan, Granada Hills Specific Plan, Mulholland Scenic Parkway Specific Plan (controls over Section 12.42 only), Pacific Palisades Commercial Village Specific Plan, Park Mile Specific Plan, Playa Vista Specific Plan, Porter Ranch Specific Plan (controls over Section 12.43 only), Reseda Central Business District Specific Plan, San Vicente Scenic Corridor Specific Plan, Valley Village Specific Plan, the Venice Coastal Zone regulations, Ventura-Cahuenga Boulevard Corridor Specific Plan, Warner Center Specific Plan, and Wilshire-Westwood Scenic Corridor Specific Plan. In the case of conflicts between Sections 12.40 through 12.43 of this Code with the provisions of the Mount Washington Specific Plan or the Foothill Boulevard Corridor Specific Plan, the more restrictive provisions shall control. **(Amended by Ord. No. 171,694, Eff. 9/26/97.)**

3. **Future Specific Plans, “Q” Conditions, “D” Development Limitations or “F” Funded Improvement Classifications.** Future specific plans, “Q” conditions, “D” development limitations or “F” funded improvement classifications may impose alternate landscape requirements, if they expressly state that the specific plan’s, “Q” conditions’s, “D” development limitation’s or “F” funded improvement classification’s landscape requirements are intended to supersede the standards set forth in Sections 12.40 through 12.43 of this Code.

I. If any provision of Sections 12.40 through 12.43 conflicts with Article 7, Chapter V of this Code, Article 7, Chapter V shall control.

J. Unless specifically prohibited by this Code, any existing features and techniques that fulfill the requirements of Sections 12.40 through 12.43 of this Code may be used to satisfy the requirements of these sections. The provisions of Sections 12.40 through 12.43 of this Code shall not require the removal of any existing structures or features nor prohibit any existing, installed landscape techniques. Where conflicts arise, all efforts shall be made to conform to the provisions of Sections 12.40 through 12.43 of this Code in a reasonable and practical manner.

SEC. 12.41. LANDSCAPE – WATER MANAGEMENT.

(Added by Ord. No. 170,978, Eff. 5/13/96, Oper. 7/13/96.)

A. Purpose. To contribute to conservation of the City’s imported water resources mandated by state law by setting minimum standards for water delivery systems to landscapes.

B. Requirements and Prohibitions.

1. No building permit, use of land permit, or grading permit for which landscape is required or for which landscape is provided shall be issued, except when the purpose is to construct a one-family dwelling, unless the Department of City Planning first determines that the required Water Management features and techniques, established by the City Planning Commission will be installed on the subject lot. No water management approval shall be required or issued for these permits unless a landscape approval required for the permits has first been issued by the Department of City Planning.

2. All permanent irrigation systems required under the provisions of this Code that use potable water shall meet the minimum specifications for features and techniques established by the City Planning Commission.

3. No irrigation system shall be required for undisturbed native or undisturbed natural vegetation, provided that the overall hydrologic regime that supported the vegetation remains unaltered. At the discretion of the Department of City Planning, an irrigation system may be required when the applicant proposes to establish native plantings, designed to take advantage of natural rainfall.

4. No portion of this section shall be construed to mandate any specific type of irrigation equipment, either existing or to be developed, except backflow preventers, nor any specific method of application of water, either existing or to be developed, provided it meets the criteria set forth in this section, unless specifically required by other sections of this Code. The provision of hose bibs or quick coupler valves shall be considered the provision of an irrigation system, provided all points of the irrigated area are less than 50 feet from a hose bib or quick coupler valve; no portion of the irrigated area slopes at more than a 5:1 grade; and the total area to be irrigated does not exceed 500 square feet.

5. **Irrigation Maintenance.** All portions of every irrigation system shall be continuously maintained in a condition such that the intent of the irrigation design is fulfilled. Uncontrolled emission of water from any pipe, valve head, emitter, or other irrigation device shall be considered evidence of non- maintenance.

6. For the purposes of this section only, a Landscape practitioner is as defined in Section 12.40 D. and also includes any person certified by a professional organization in the field of water management, or any person with a bachelor's degree or equivalent from a California college or university, in the field of water management, when not in conflict with applicable State licensing laws and guidelines adopted by the Director of Planning. The Director is hereby authorized to adopt guidelines and procedures necessary to implement the provisions of this section.

7. **Mulch.** Owners of landscaping shall be encouraged to provide for plant mulching with planted areas provided with a layer of mulch a minimum of three inches deep, to aid the growth of the plants.

SEC. 12.42. LANDSCAPE.

(Added by Ord. No. 170,978, Eff. 5/13/96, Oper. 7/13/96.)

A. Conservation of Energy.

1. **Purpose.** To contribute to mitigation of increasing urban temperatures, thereby reducing the need for new power generating facilities, the following regulations shall apply.

2. **Tree Planting.** (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) Applications for landscape approval shall contain a proposal for shading of walls of structures in accordance with the guidelines established by the City Planning Commission.

B. Heat and Glare Reduction.

1. **Purpose.** To contribute to the mitigation of increasing urban temperatures, thereby reducing the need for new power generating facilities, to reduce storm water runoff, and to increase ground water recharge, the following regulations shall apply.

2. **Vehicular Use Areas.** (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) Notwithstanding any other provisions of this Code to the contrary, applications for landscape approval shall contain a proposal for heat and glare reduction in vehicular use areas in accordance with guidelines established by the City Planning Commission.

C. Air Quality Enhancement.

1. **Purpose.** To ensure coordination between landscape and other features of the urban environment and to contribute to the processes of oxygen regeneration, clearing the air of harmful pollutants, and removal of air-borne particulates, the following regulations shall apply.

2. **Procedure.** (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) Applications for landscape approval shall contain a proposal for air quality enhancement, in accordance with the guidelines established by the City Planning Commission.

D. Soil and Watershed Conservation.

1. **Purpose.** To conserve the unique character of the City which is largely determined by its landforms; and to encourage the restoration of such native areas as are unavoidably disturbed by development; to conserve soil and accumulated organic litter and reduce erosion by utilization of a variety of methods; and to increase residence time of precipitation in the watershed, the following regulations shall apply.

2. General Requirements.

(a) (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) The Department of Building and Safety shall not issue any building permits for a Project where soil and watershed conservation techniques, as provided in this section and

in the guidelines established by the City Planning Commission, have not been used, as determined by the Department of City Planning. Notwithstanding the provisions of Article 1 of Chapter IX of this Code, all cut and fill slopes in Hillside Areas determined under the provisions of that article of this Code to be subject to erosion, shall be planted and irrigated pursuant to the provisions of this subdivision.

(b) All cut and fill slopes in Hillside Areas shall be landform graded and landform planted to the maximum extent feasible where such techniques do not affect the stability of the graded slopes. Where landform grading is unsuitable for the entire graded area, portions of the graded area may be required by the Department of City Planning to be landform graded and landform planted, consistent with public safety. Nothing in this paragraph shall prohibit the Department of Building and Safety from enforcing the planting and irrigation provisions of the Grading Division of Chapter IX of this Code.

(c) The Director shall take measures to ensure that the planting of slopes shall take into consideration such factors as degree of slope, slope orientation, type of soil, rooting depth of plants, fire dangers, availability of water, original native communities, depth of soil, and other relevant design factors.

(d) Non-native plants, when used, shall compliment native communities in growth habit, foliage color, cultural requirements, and flowering behavior.

3. **Required Vegetation. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)** Manufactured slopes shall be planted in accordance with the guidelines established by the City Planning Commission.

E. Landscape Techniques.

1. **Turf Block.** Turf block, turf stone or similar materials shall be considered non-planted areas, except in planted portions of emergency access ways when permitted by the Fire Department. **(Amended by Ord. No. 171,530, Eff. 4/4/97.)**

2. **Coordination with Signs and Lighting.** All planting shall be coordinated with all signs and lighting on the Project site, both upon installation of the planting and upon the planting reaching its maximum designed size. All shall be designed such that one will not interfere with the other, nor require excessive maintenance.

3. **Planting Techniques. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)** All planting shall be accomplished in accordance with the guidelines established by the City Planning Commission.

F. Walls. All concrete or masonry walls shall have a minimum nominal thickness of six inches unless designed to withstand lateral force and constructed pursuant to plans approved by the Department of Building and Safety.

SEC. 12.43. SOURCE REDUCTION OF WASTE.

(Added by Ord. No. 170,978, Eff. 5/13/96, Oper. 7/13/96.)

A. If any landscape includes grass, all grass clippings shall be recycled on- or off-site, and shall not be introduced into the off-site waste stream.

B. If a lot is 7,500 square feet or greater, all vegetative waste, except that which is not appropriate to recycle, shall be recycled on- or off-site and shall not be introduced into the off-site waste stream.

C. In any landscape with lawn area greater than 15 percent of the planted area, all lawn area waste shall be recycled on- or off-site.

D. Exceptions shall be made when the waste is produced by installation of the landscape, as a result of fulfilling the requirements of Division 88, Article 1 of Chapter IX of this Code, or as a result of fulfilling the requirements of Article 7, Chapter V of this Code.

E. Notwithstanding any other provision of this Code, except for Subsection A., the provisions of this section shall take effect only at the time and in the manner that the Board of Public Works, after a public hearing, certifies to the Director that sufficient off-site facilities exist to handle the expected volume of recycled vegetative waste.

SEC. 12.50. AIRPORT APPROACH ZONING REGULATIONS.

(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)

A. Scope and Applicability of Regulations. It is hereby found that potential airport hazards exist or may be created in connection with the maintenance and operation of the Van Nuys and Los Angeles International Airports. In order to prevent the creation or establishment of these hazards, special airport zoning regulations controlling height limits and regulating the use of the land are hereby established within the airport hazard areas surrounding the Van Nuys and Los Angeles International Airports. The provisions of this section are not intended to abrogate any other section of this Code, and when it appears that there is a conflict with other sections, the most restrictive requirement shall apply.

B. Airport Hazard Areas Map. The boundaries of the airport hazard areas and the height limitations imposed in those areas are

shown on the “**Airport Hazard Areas Map**”, made up of separate sheets and bearing appropriate marks, notations, references and other information and consisting of:

- (1) the Airport Hazard Areas Map relating to the Van Nuys Airport and adopted as part of Ordinance No. 130,500, which added Section 12.50 to this Code;
- (2) the Airport Hazard Areas Map relating to the Los Angeles International Airport, (both of which maps are attached and by this reference incorporated into this ordinance and made a part of it as though set forth at length); and
- (3) any future amendments and additions to the maps as may be adopted by ordinance.

C. Definitions. For the purpose of this section certain terms and words are defined as follows:

1. **Airport Hazard** means any structure or tree or use of land which obstructs the airspace required for the flight of aircraft in landing or taking off at an airport or is otherwise hazardous to the landing or taking off of aircraft.
2. **Airport Hazard Area** means any area of land or water upon which an airport hazard might be established if not prevented as provided in this section.
3. **Structure** means any object constructed or installed by persons, including, but without limitation, buildings, towers, smoke stacks, and overhead lines.
4. **Tree** means any object of natural growth.

D. General Provisions. Except where it is determined by a Zoning Administrator, or by the Area Planning Commission upon appeal pursuant to Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code, after consideration of any report and recommendation which might be submitted by the General Manager of the Department of Airports, that compliance with this section in a particular situation would result in practical difficulty or unnecessary hardship and that the proposed height of a structure or tree beyond that otherwise permitted by the provisions of this section will not constitute a hazard to aircraft or in any way interfere with air safety or the safety of persons and objects on the ground, no structure shall be erected, structurally altered, enlarged or maintained, and no tree shall be planted, allowed to grow or be maintained within the airport hazard areas surrounding the Van Nuys or Los Angeles International Airports which exceeds the heights as shown on the Airport Hazard Areas Map or as further provided in Subsection F. for transitional surface areas. The procedure and fees for requesting and procuring a determination of an exception mentioned herein, for appealing from the determination or requesting a transfer of jurisdiction to the Area Planning Commission, and the time limitations applicable to those actions shall be the same as those provided in Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code; provided, however, that upon the filing of a request for exception with the Department of City Planning, the Department shall immediately request a report and recommendation from the General Manager of the Department of Airports and time shall not commence to run for a Zoning Administrator to act until the report and recommendation has been received or 60 days have elapsed from the time of the request. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

E. Use Restrictions. Notwithstanding any other provisions of this article, no use may be made of land within an airport hazard area, as established by this section in a manner as to create electrical or electronic interference with radio or radar communication between the Van Nuys or Los Angeles International Airports and approaching or departing aircraft. No illuminated or flashing advertising or business sign, billboard or any other structure shall be installed or maintained within an airport hazard area which would make it difficult for flyers to distinguish between those lights and the aeronautical lights of the airport, or which would result in glare in the eyes of pilots and impairment of visibility or otherwise endanger the landing, taking off or maneuvering of aircraft.

F. Transitional Surface Area Height Limits. The height limit in the transitional surface areas, as shown on the above described map, shall be an inclined plane surface having a slope ratio of one vertical to seven horizontal, sloping upward and outward from the boundary of the transitional surface area on either side of a runway or from the edge of a runway approach area, whichever is adjacent. The direction of the slope shall be at right angles to the center line of the runway or its prolongation and shall extend upward from the elevation of the nearest runway or from the height limit elevation permitted in a runway approach area, whichever is adjacent.

G. Interpretations. Where uncertainty exists in applying the provisions of this section, the Zoning Administrator, upon written request, shall determine the location of the boundary lines of the airport hazard areas or the height limits by written decision pursuant to Sec. 13B.2.1. (Class 1 Conditional Use Permit) of Chapter 1A of this Code. A copy of the decision shall be furnished to the Department of Building and Safety. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

H. Exception. The provisions of this section shall not prevent structures, including all projections from the structure, to be erected, structurally altered, enlarged or maintained and trees to be planted and maintained to an overall height of not to exceed 45 feet above the natural or finished grade, whichever is lower.

I. Continuation of Existing Regulations. The provisions of this section, insofar as they are substantially the same as existing provisions relating to the same subject matter, shall be construed as restatements and continuations and not as new enactments.

J. Before any existing structure which conforms to all other provisions of this article but which does not conform with the provisions of this section may be replaced, substantially altered or repaired, or rebuilt in a manner not conforming with the height limitations of this section, a permit must be secured from the Department of Building and Safety in addition to all other permits required by this Code. All

applications for these permits shall be granted except those which would permit a nonconforming structure to be made higher or become a greater hazard to air navigation than it was when the applicable restrictions of this section were adopted or when the application for the permit was made, whichever is the more restrictive. No permit is required by this section to make maintenance repairs to or to replace parts of existing structures which do not enlarge or increase the height of those structures.

Any existing tree which does not conform with the provisions of this section may remain or be replaced by one of comparable or smaller size or be replanted but shall not be allowed to grow higher or become a greater hazard to air navigation than it was when the applicable restrictions of this section were adopted.

SEC. 12.70. ADULT ENTERTAINMENT ZONING.

(Added by Ord. No. 151,294, Eff. 9/1/78.)

A. Purpose. It is the purpose and object of this section to establish reasonable and uniform regulations to prevent the continued concentration of adult entertainment businesses, as defined herein, within the City of Los Angeles.

B. Definitions. For the purpose of this section, certain terms and words are defined as follows:

1. **“Adult Arcade”** – An establishment where, for any form of consideration, one or more motion picture projectors, slide projectors or similar machines, for viewing by five or fewer persons each, are used to show films, motion pictures, video cassettes, slides or other photographic reproductions which are characterized by an emphasis upon the depiction or description of **“specified sexual activities”** or **“specified anatomical areas.”**

2. **“Adult Bookstores”** – An establishment which has as a substantial portion of its stock-in-trade and offers for sale for any form of consideration any one or more of the following:

(a) Books, magazines, periodicals or other printed matter, or photographs, films, motion pictures, video cassettes, slides or other visual representations which are characterized by an emphasis upon the depiction or description of **“specified sexual activities”** or **“specified anatomical areas;”** or

(b) Instruments, devices or paraphernalia which are designed for use in connection with **“specified sexual activities.”**

3. **“Adult Cabaret”** – A nightclub, bar, restaurant or similar establishment which regularly features live performances which are characterized by the exposure of **“specified anatomical areas”** or by **“specified sexual activities,”** or films, motion pictures, video cassettes, slides or other photographic reproductions which are characterized by an emphasis upon the depiction or description of **“specified sexual activities”** or **“specified anatomical areas.”**

4. **“Adult Motel”** – A motel or similar establishment offering public accommodations for any form of consideration which provides patrons with closed circuit television transmissions, films, motion pictures, video cassettes, slides or other photographic reproductions which are characterized by an emphasis upon the depiction or description of **“specified sexual activities”** or **“specified anatomical areas.”**

5. **“Adult Motion Picture Theater”** – An establishment where, for any form of consideration, films, motion pictures, video cassettes, slides or similar reproductions are shown, and in which a substantial portion of the total presentation time is devoted to the showing of material which is characterized by an emphasis upon the depiction or description of **“specified sexual activities”** or **“specified anatomical areas”**

6. **“Adult Theater”** – A theater concert hall, auditorium or similar establishment which, for any form of consideration, regularly features live performances which are characterized by the exposure of **“specified anatomical areas”** or by **“specified sexual activities.”**

7. **“Establishment” (Amended by Ord. No. 157,538, Eff. 5/13/83.)** – As used in Subsection C. hereof, the **“establishment”** of an adult entertainment business shall mean and include any of the following:

(a) The opening or commencement of any such business as a new business;

(b) The conversion of an existing business, whether or not an adult entertainment business, to any of the adult entertainment businesses defined herein; or

(c) The relocation of any such business.

8. **“Massage Parlor”** – An establishment where, for any form of consideration, massage, alcohol rub, fomentation, electric or magnetic treatment, or similar treatment or manipulation of the human body is administered, unless such treatment or manipulation is administered by a medical practitioner, chiropractor, acupuncturist, physical therapist or similar professional person licensed by the State of California. This definition does not include an athletic club, health club, school, gymnasium, state licensed cosmetology or barber establishment, reducing salon, spa or similar establishment where massage or similar manipulation of the human body is offered as an incidental or accessory service. **(Amended by Ord. No. 155,718, Eff. 8/6/81.)**

9. **“Public Park”** – A park, playground, swimming pool, beach, pier, reservoir, golf course or similar athletic field within the City of Los Angeles which is under the control, operation or management of the City Board of Recreation and Park Commissioners or the County Department of Beaches.

10. **“Religious Institution”** – A building which is used primarily for religious worship and related religious activities.

11. **“School”** – An institution of learning for minors, whether public or private which offers instruction in those courses of study required by the California Education Code or which is maintained pursuant to standards set by the State Board of Education. This definition includes a nursery school, kindergarten, elementary school, junior high school, senior high school or any special institution of learning under the jurisdiction of the State Department of Education, but it does not include a vocational or professional institution or an institution of higher education, including a community or junior college, college or university.

12. **“Sexual Encounter Establishment”** – An establishment, other than a hotel, motel or similar establishment offering public accommodations, which, for any form of consideration, provides a place where two or more persons may congregate, associate or consort in connection with **“specified sexual activities”** or the exposure of **“specified anatomical areas.”** This definition does not include an establishment where a medical practitioner, psychologist, psychiatrist or similar professional person licensed by the State of California engages in sexual therapy.

13. **“Specified Anatomical Areas”** – As used herein, **“specified anatomical areas”** shall mean and include any of the following:

(a) Less than completely and opaquely covered human genitals, pubic region, buttocks, anus or female breasts below a point immediately above the top of the areolas; or

(b) Human male genitals in a discernibly turgid state, even if completely and opaquely covered.

14. **“Specified Sexual Activities”** – As used herein, **“specified sexual activities”** shall mean and include any of the following:

(a) The fondling or other erotic touching of human genitals, pubic region, buttocks, anus or female breasts;

(b) Sex acts, normal or perverted, actual or simulated, including intercourse, oral copulation or sodomy;

(c) Masturbation, actual or simulated; or

(d) Excretory functions as part of or in connection with any of the activities set forth in (a) through (c) above.

15. **“Substantial Enlargement”** – As used in Subsection C. hereof, the **“substantial enlargement”** of an adult entertainment business shall mean the increase in floor area occupied by the business by more than fifty percent (50%), as such floor area exists on the effective date of this section.

16. **“Transfer of Ownership or Control”** – As used in Subsections C. and E. hereof, the “transfer of ownership or control” of an adult entertainment business shall mean and include any of the following:

(a) The sale, lease or sublease of such business;

(b) The transfer of securities which constitute a controlling interest in such business, whether by sale, exchange or similar means; or

(c) The establishment of a trust, gift or other similar legal device which transfers the ownership or control of such business, except for transfer by bequest or other operation of law upon the death of the person possessing such ownership or control.

17. **“Adult Entertainment Business”** – Adult Arcade, Adult Bookstore, Adult Cabaret, Adult Motel, Adult Motion Picture Theatre, Adult Theatre, Massage Parlor, or Sexual Encounter Establishment, as defined herein, and each shall constitute a separate adult entertainment business even if operated in conjunction with another adult entertainment business at the same establishment. **(Added by Ord. No. 157,538, Eff. 5/13/83.)**

C. Prohibition. (Amended by Ord. No. 158,579, Eff. 1/23/84.) No person shall cause or permit the establishment, substantial enlargement or transfer of ownership or control of an adult entertainment business within 1,000 feet of another adult entertainment business, or within 500 feet of a religious institution, school, or public park within the City of Los Angeles. No person shall cause or permit the establishment or maintenance of more than one adult entertainment business in the same building, structure or portion thereof, or the increase of floor area of any adult entertainment business in any building, structure or portion thereof containing another adult entertainment business.

No person shall cause or permit the establishment, or substantial enlargement of an adult entertainment business within 500 feet of any lot in an “A” or “R” zone, or within the “CR”, “C1”, or “C1.5” zones in the City of Los Angeles.

After March 6, 1988, no person shall cause or permit the continued operation, maintenance, or use of a lot, building or structure, or any

portion thereof as an Adult Arcade, Adult Bookstore, Adult Cabaret, Adult Motel, Adult Motion Picture Theater, Adult Theater, Massage Parlor or Sexual Encounter Establishment, within 500 feet of any lot in an "A" zone or "R" zone, or within the "CR", "C1" or "C1.5" zones in the City of Los Angeles. **(Added by Ord. No. 161,111, Eff. 5/18/86.)**

D. Measurement Of Distance. The distance between any two adult entertainment businesses shall be measured in a straight line, without regard to intervening structures, from the closest exterior structural wall of each business. The distance between any adult entertainment business and any religious institution, school or public park shall be measured in a straight line, without regard to intervening structures, from the closest exterior structural wall of the adult entertainment business to the closest property line of the religious institution, school or public park.

E. Exceptions.

1. A person possessing ownership or control of an adult entertainment business which is within 1,000 feet of another such business or within 500 feet of any religious institution, school or public park on the effective date of this ordinance shall be permitted to transfer such ownership or control within two (2) years of said effective date. The person acquiring such ownership or control, however, shall be required to discontinue said adult entertainment business within five (5) years from the date of said transfer of ownership or control, if such business continues to be within 1,000 feet of another such business or within 500 feet of any religious institution, school or public park.

2. A person possessing ownership or control of an adult entertainment business shall be permitted to transfer such ownership or control if such business is not within 500 feet of any religious institution, school or public park and the only other adult entertainment business or businesses within 1,000 feet of such business have been established under a variance from the requirements of this section, pursuant to the variance provisions set forth in Sec. 13B.5.3. (Variance) of Chapter 1A of this Code. This exception shall not, however, apply to an adult entertainment business which has been established under such a variance. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

3. Except for an adult entertainment business required to be discontinued pursuant to Subdivision 1. of this subsection, if more than one adult entertainment businesses exists in the same building, structure or portion thereof, then all may be continued until March 10, 1985. At that time all shall be discontinued except those established prior to September 1, 1978; but if none of the adult entertainment businesses were established prior to September 1, 1978, then all shall be discontinued except for one, and in case of a dispute the adult entertainment business established first shall have the priority right to continue.

4. An adult entertainment business may be continued, or established and maintained, pursuant to Section 12.22 A.20. **(Amended by Ord. No. 161,111, Eff. 5/18/86.)**

F. Severability. If any provision or clause of this section or the application thereof to any person or circumstance is held to be unconstitutional or otherwise invalid by any court of competent jurisdiction, such invalidity shall not affect other section provisions, clauses or applications thereof which can be implemented without the invalid provision, clause or application thereof, and to this end the provisions and clauses of this section are declared to be severable.

SEC. 12.80. HOMELESS SHELTERS – EMERGENCIES – CITY OWNED AND LEASED PROPERTY.
(Amended by Ord. No. 186,339, Eff. 10/23/19.)

Notwithstanding any provisions of this article to the contrary, during any period for which the Mayor and/or the City Council have declared a shelter crisis within the meaning of Government Code Sections 8698 et seq., a shelter for the homeless (as defined in Section 12.03 of this Code) may be established and operated on property owned or leased by the City of Los Angeles in any zone as a matter of right without regard to the number of beds or number of persons served. Facilities used as a shelter for the homeless under this section must comply with the minimum building regulations set forth in Section 91.8605 of this Code, as it is currently written or as it may be amended in the future. If the lot on which any such shelter is located does not have sufficient area to provide the number of parking spaces required by Section 12.21 A.4.(w) of this Code, then the number of spaces required shall be the number for which adequate area exists. If insufficient area for any parking spaces exists on the lot, no spaces shall be required.

SEC. 12.81. HOMELESS SHELTERS – EMERGENCIES – CHARITABLE ORGANIZATIONS.
(Amended by Ord. No. 186,339, Eff. 10/23/19.)

A. Notwithstanding any provisions of this article to the contrary, during any period for which the Mayor and/or the City Council have declared a shelter crisis within the meaning of Government Code Sections 8698 et seq., a shelter for the homeless (as defined in Section 12.03 of this Code) may be established and operated in the R3, RAS3, R4, RAS4, R5, C2, C4, C5, CM, M1, M2, and M3 zones without regard to the number of beds or number of persons served, if the shelter is operated by a religious institution or a non-profit, charitable organization and the shelter is located on property owned or leased by that institution or organization. If the lot on which any such shelter is located does not have sufficient area to provide the number of parking spaces required by Section 12.21 A.4.(w) of this Code, then the number of spaces required shall be the number for which adequate area exists. If insufficient area for any parking spaces exists on the lot, no spaces shall be required. Unreinforced masonry and/or non-ductile concrete buildings shall not be used as shelters for the homeless.

B. Requirements.

1. Providers shall register with the City of Los Angeles by submitting “Cold/Wet Weather Temporary Shelter Application” online via the City’s website (www.lacity.org); and
2. Providers shall comply with the “Cold/Wet Weather Temporary Shelter” requirements promulgated by the Los Angeles Fire Department’s Fire Prevention and Public Safety Bureau; and
3. Providers shall provide written notification to the owners of properties abutting the subject property, as well as to any school located within 500 feet of the subject property, prior to operating a shelter for the homeless on the subject property.
4. Providers shall comply with all local, state, and federal requirements that apply to the permitted use of their property while operating a shelter for the homeless pursuant to this section.

SEC. 12.82. HOMELESS SHELTERS – EMERGENCIES – EL NIÑO 2016.

(Added by Ord. No. 184,168, Eff. 4/5/16.)

A. Notwithstanding any provisions of this article to the contrary, during the period not totaling more than 90 days from the effective date of this ordinance, a shelter for the homeless may be established and operated in any zone of the City without regard to the number of beds or number of persons served, if the shelter is located on property owned or leased by the provider and complies with the “Cold/Wet Weather Temporary Shelter” requirements promulgated by the Los Angeles Fire Department’s Fire Prevention and Public Safety Bureau. If the lot on which any such shelter is located does not have sufficient area to provide the number of parking spaces required by Section 12.21 A.4.(w) of this Code, then the number of spaces required shall be the number for which adequate area exists. If insufficient area for any parking spaces exists on the lot, no spaces shall be required.

B. For the purposes of this section only, a shelter for the homeless means a facility operated by a “**provider**”, other than a “**community care facility**” as defined in the California Health and Safety Code Section 1502, which provides temporary accommodations to homeless persons and/or families and which meets the state’s standards for shelters. The term “**temporary accommodations**” means that a homeless person or family will be allowed to reside at the shelter for a time period not to exceed 90 days from the effective date of this ordinance. For the purpose of this section, a “**provider**” shall mean a government agency, religious institution, non-profit charitable organization or private non-profit organization which provides, or contracts with recognized community organizations to provide, emergency or temporary shelter for the homeless, and which meets all applicable state health and safety requirements. Unreinforced masonry and/or non-ductile concrete buildings shall not be used as shelters for the homeless.

ARTICLE 2.9

CONDOMINIUMS, COMMUNITY APARTMENTS AND STOCK COOPERATIVES

(Art. 2.5 Renumbered Art. 2.9 by Ord. No. 162,832, Eff. 10/26/87.)

Section

12.95.2 Conversion Projects: Residential; Residential to Commercial/Industrial.

12.95.3 Conversion Projects: Commercial/Industrial; Commercial/Industrial to Residential.

SEC. 12.95.2. CONVERSION PROJECTS: RESIDENTIAL; RESIDENTIAL TO COMMERCIAL/INDUSTRIAL.

(Title and Section Amended by Ord. No. 154,960, Eff. 4/3/81.) (Section Renumbered by Ord. No. 162,832, Eff. 10/26/87.)

A. Purpose: The purpose of these provisions is to promote greater individual choice in type, quality, price and location of housing; to provide for the housing needs of all segments of the population; to provide increased homeownership opportunities for all segments of the population; to mitigate the hardship caused by displacement of tenants, particularly those in low to moderate cost housing and those who are elderly, families with minor dependent children, the handicapped and the disabled; to promote the safety of conversion projects and correction of Building Code violations in such projects; to provide adequate off-street parking; to encourage construction of new rental units to replace units lost due to conversions; to protect the existing rental housing stock by reducing conversions; to provide increased opportunities for the ownership of commercial or industrial real property in the form of condominiums or stock cooperatives; to assure that the continued use of buildings for commercial or industrial purposes is substantially consistent with applicable general and specific plans; and to generally regulate projects in accordance with applicable general and specific plans and with the public health, safety and welfare.

B. Applicability: The provisions of this section shall apply to all tentative maps and preliminary parcel maps as to which the Advisory Agency has not rendered a decision on the date this section becomes effective. The provisions of this amendment to this section shall only apply to all tentative maps and preliminary parcel maps as to which the Advisory Agency has not rendered a decision on the date the amendment becomes effective, except as otherwise expressly stated in this section. For purposes of this subsection, a

decision is rendered on the date of the Advisory Agency's public hearing and announced decision, or where no such decision is announced, the date of mailing of the Advisory Agency's letter of decision and findings to the applicant.

C. Definitions: The terms used in this section are defined in Sections 12.03 and 17.02 of the Municipal Code.

D. Application Requirements:

1. Residential Conversion Projects:

a. A residential conversion project shall comply with the Division of Land regulations in Article 7 of this chapter, the provisions of this section and other applicable state laws and local ordinances.

b. In addition to the information required by other applicable sections of this Code, the following information shall be submitted at the time of filing.

(1) Building plans or other documents containing the following information pertaining to the project as proposed, certified as to accuracy by a licensed engineer.

(a) Description of the features of the type of building and project, including age, type of construction, number of dwelling units, number of habitable rooms per dwelling unit; and

(b) Site plan, including buildings, structures, yards, open spaces, and accessory storage areas and buildings including trash storage areas; and

(c) Parking plan, including the total number of spaces actually provided and the total number required if different from that actually provided; dimensions of stalls, aisles and driveways; locations of columns, walls and other obstructions; total number of covered and uncovered parking spaces and location and number of guest parking spaces.

(2) **Tenant Information.** Name and address of each tenant; total number of project occupants; length of tenancy; rent schedule for 18 months preceding the application; relocation assistance plan. **(Amended by Ord. No. 178,632, Eff. 5/26/07.)**

(3) **Sales Information.** Anticipated range of sales prices of individual dwelling units or shares based on information known at the time of application; anticipated terms of sale to existing tenants; statement as to whether sales will be permitted to families with minor children; incentives to tenants for the purchase of the dwelling units; written notice to the tenants of an exclusive right to purchase the dwelling unit occupied by the tenant; and the number of tenants that have expressed interest in purchasing their dwelling unit. **(Amended by Ord. No. 178,632, Eff. 5/26/07.)**

(4) Floor and elevation plans, including indications of common and private areas, and required exits.

(c) The following additional information may be required by the Advisory Agency as a condition of approval:

(1) Certificate of Housing Compliance Inspection Report as provided by Section 91.0318 of the Municipal Code, or equivalent report satisfactory to the Advisory Agency, which report shall detail any violations of provisions of Chapter IX enacted after such permit was issued and which are explicitly made applicable to existing structures.

(2) Building inspection reports (if any such report has already been submitted to the California Department of Real Estate, a copy of such report shall be furnished to the City):

(a) Building component reports indicating conditions and estimated remaining useful life of the roof, foundation, plumbing, electrical, heating, air conditioning, other mechanical and structural systems, prepared by a registered civil or structural engineer, licensed general building contractor, licensed general engineering contractor or architect;

(b) Structural pest control report, prepared by a licensed pest control contractor;

(c) Acoustical report, indicating (1) the type of construction between dwelling units and the general sound attenuation characteristics of such construction, or indicating the level of sound attenuation between dwelling units, and (2) the feasibility of various levels of improvement, prepared by a licensed acoustical engineer; and

(d) Utility metering reports, if the units of the building are not individually metered, indicating the feasibility of individual or submetering, prepared by qualified engineers.

(3) Any other information, including conditions, covenants and restrictions, articles of incorporation and by-

laws, which the Advisory Agency deems necessary to determine if the proposed project is consistent with the Municipal Code.

2. Residential to Commercial/Industrial Conversion Projects.

a. A residential to commercial/industrial conversion project shall comply with the Division of Land regulations in Article 7 of this chapter, the provisions of this section and other applicable state laws and local ordinances.

b. In addition to the information required by other applicable sections of this Code, the following information shall be submitted at the time of filing.

(1) **Tenant Information:** Name and address of each tenant in the existing residential building; rent schedule for eighteen (18) months preceding the application and relocation assistance plan if any;

(2) Building plans or other documents containing the following information pertaining to the project as proposed, certified as to accuracy by a licensed engineer.

(a) Description of the features of the type of building and project, including age, type of construction, the number of separate units proposed, the square footage of each such unit and of the entire building.

(b) Parking plan, including the total number of spaces actually provided and the total number required if different from that actually provided, dimensions of stalls, aisles, and driveways, locations of columns, walls, and other obstructions, and location and number of guest parking spaces.

(c) The following additional information may be required by the Advisory Agency as a condition of approval.

(1) Building component reports indicating condition and estimated remaining useful life of the roof, foundation, plumbing, electrical, heating, air conditioning, other mechanical and structural systems, prepared by a registered civil or structural engineer, licensed general building contractor, licensed general engineering contractor or architect.

(2) Site plan, including, buildings, structures, yards, open spaces, and accessory storage areas and buildings including trash storage areas.

(3) Floor and elevation plans, including indication of common and private areas, and required exists.

(4) Building inspection reports (if any such report has already been submitted to the California Department of Real Estate, a copy of such report shall be furnished to the City)

(5) Any other information, including conditions, covenants and restrictions, articles of incorporation and by-laws, which the Advisory Agency deems necessary to determine if the proposed project is consistent with the Municipal Code.

3. **All Projects.** No application for tentative or preliminary parcel map approval of a residential conversion project or a residential to commercial/ industrial conversion project shall be accepted without adequate evidence from the applicant that each tenant of the project has received: written notice of intention to file a tentative or preliminary parcel map application at least 60 days prior to the filing of the application and a written copy of the relocation assistance provisions of Sections 47.06 and 47.07 of this Code. Any person who becomes a tenant of a residential rental unit proposed for conversion to a residential or commercial/industrial condominium, stock cooperative or community apartment project after the date of the filing of the application shall be given written notice of the pendency of the application prior to entering into any written or oral rental agreement. **(Amended by Ord. No. 178,632, Eff. 5/26/07.)**

E. Tenant Notification:

1. **Notification of hearing on tentative map or preliminary parcel map. (Amended by Ord. No. 178,632, Eff. 5/26/07.)** In addition to other notification requirements of this Code, the Department of City Planning shall give notice of any public hearing on a tentative map or preliminary parcel map to each tenant in each dwelling unit of the building or buildings proposed for conversion.

This notice shall be in writing and mailed no less than ten days prior to the public hearing on the tentative map or preliminary parcel map.

The notice may include a questionnaire, to be completed at the option of each tenant, regarding the approximate ages and disabilities or handicaps, if any, of the household members, comments concerning the physical condition of the building and its various components and characteristics as outlined in Subparagraph (2) of Paragraph c. of Subdivision 1. of Subsection D. of this section, and any other information as may be pertinent to the pending proceedings.

2. **Notification of proposed conversion prior to termination of tenancy due to the conversion.** Each tenant of a conversion project subject to this section shall be given 180 days written notice of intention to convert prior to termination of tenancy due to the conversion or proposed conversion. Each person who becomes a tenant of the conversion project after the date of the 180 days written notice shall be given a copy of the notice of intention to convert before entering into any written or oral rental agreement, but shall not be entitled to 180 days written notice prior to termination of tenancy due to the conversion or proposed conversion. **(Amended by Ord. No. 178,632, Eff. 5/26/07.)**

3. **Residential Conversion Project – Notification of exclusive right to purchase.** The applicant shall give each tenant of any proposed residential conversion project written notice of an exclusive right to contract for the purchase of the dwelling unit occupied by the tenant or purchase of a share in the corporation entitling the shareholder to enjoy exclusive occupancy of the unit upon the same or more favorable terms and conditions than those on which such unit or share will be initially offered to the general public. The right shall run for a period of not less than 90 days from the issuance of the subdivision public report pursuant to Section 11018.2 of the California Business and Professions Code, unless the applicant receives prior written notice of the tenant's intention not to exercise the right.

Where two or more units are combined pursuant to conditions of tentative map or preliminary parcel map approval, the notice required by this Subdivision 3 shall be given to the tenants of the combined units and priority among tenants shall be determined in an equitable manner. A tenant who is prevented from purchasing their unit due to combination of units shall be given a right of first refusal with respect to the comparable unit in the same residential conversion project, to the extent possible.

F. Tentative Map And Preliminary Parcel Map Approval:

1. All tentative maps and preliminary parcel maps filed in connection with residential or residential to commercial/industrial conversion projects shall be subject to the Division of Land Regulations contained in Article 7 of this chapter, except as herein otherwise provided. All such maps shall be subject to the General Plan and any applicable specific plan only to the extent that such plan contains a definite statement of policies and objectives explicitly applicable to conversion projects, except as otherwise provided in this subsection.

2. The Advisory Agency shall disapprove a tentative map or preliminary parcel map for a residential or residential to commercial/industrial conversion project, if it finds (a) that the map is not substantially consistent with the applicable density provisions of the General Plan or specific plans in effect at the time the original building permit was issued, and (b) the application for map approval is filed less than five years from the date the original certificate of occupancy for the building was issued. The Advisory Agency shall disapprove a tentative map or preliminary parcel map for a residential to commercial/industrial conversion project where the conversion would be inconsistent with either the existing zoning pattern or applicable general or specific plan, unless it finds that there are special circumstances which justify approval of the map. Such circumstances may exist only with respect to the following facts (1) the prevailing pattern of residential and commercial/industrial land use in the vicinity of the project site; and (2) the existing and anticipated need for commercial/industrial development in the planing area in which the project is located.

EXCEPTION: This provision shall not apply to any residential or residential to commercial/industrial conversion project involving buildings for which a building permit was applied for prior to July 1,1978.

3. The Advisory Agency shall disapprove a tentative map or preliminary parcel map for a residential or residential to commercial/industrial conversion project if it finds that any applicable general plan or specific plan provision contains a definite statement of policies and objectives explicitly applicable to conversion projects and the proposed map is not substantially consistent with such provision.

4. The Advisory Agency shall disapprove a tentative map or preliminary parcel map for a residential or a residential to commercial/industrial conversion project if it finds that there are uncorrected violations of Chapter IX of the Municipal Code, and that an adequate plan to correct such violations has not been developed or accomplished. For purposes of this provision, Chapter IX of the Municipal Code means the Code in effect when the building permit was issued and other subsequently enacted regulations explicitly made applicable to existing structures.

5. The Advisory Agency shall disapprove a tentative map or preliminary parcel map for a residential or residential to commercial/industrial conversion project, if it finds that (a) the building permit for the building was issued prior to October 1, 1933, and the building is of unreinforced masonry construction, or (b) the building is more than three stories in height without an elevator. This provision may be waived where the Advisory Agency finds that any such condition has been corrected in conformity with Municipal Code standards.

6. After considering the following criteria, the Advisory Agency may approve a tentative map or preliminary parcel map for a residential or residential to commercial/industrial conversion project, unless it makes both of the following findings: (1) the vacancy rate of the planning area in which the property is located is five percent or less, and (2) the cumulative effect of the rental housing market in the planning area of successive residential or residential to commercial/industrial conversion projects (past, present and future) is significant. A finding of significant cumulative effect shall be based on the following factors: (a) in the case of residential conversion projects only, the number of tenants who are willing and able to purchase a unit in the building; (b) the number of units in the existing residential building prior to conversion; (c) the number of units which would be eliminated in case conversion occurred in order to satisfy Municipal Code parking requirements; (d) the adequacy of the relocation assistance plan

proposed by the subdivider; and (e) any other factors pertinent to the determination. "Vacancy rate" shall refer to the most current vacancy rate for multiple-family dwelling units as published by the Department of City Planning in its Semi-Annual Population Estimate and Housing Inventory, or other estimate or survey satisfactory to the Advisory Agency. "Planning area" shall refer to those areas established by the Director of Planning for purposes of community planning pursuant to Section 11.5.6 of the Municipal Code.

G. Relocation Assistance:

1. **Requirement.** The Advisory Agency shall require, as a condition of map approval, that the applicant execute and record a covenant and agreement, in a form satisfactory to the Advisory Agency, binding the applicant and any successor-in-interest to provide relocation assistance in a manner consistent with Section 47.06 of this Code. The covenant and agreement shall be executed and recorded within ten days after the expiration of the appeal period, or final approval, whichever is later, for tentative map or preliminary parcel map approval and a copy provided to each tenant within five days of recordation. The covenant and agreement shall run to the benefit of any eligible tenant, as defined in Subdivision 2. of this section and shall be enforceable by any eligible tenant or by the City. **(Amended by Ord. No. 178,632, Eff. 5/26/07.)**

2. **Eligible Tenant.** As used in this Subsection G., the term "eligible tenant" means any tenant who was resident of the property both on the date of tentative or preliminary parcel map application and the date of approval of such map, or at any time thereafter, and who does not intend to purchase a unit in the conversion project. **(Amended by Ord. No. 185,224, Eff. 12/13/17.)**

3. **Special Protection.** An eligible tenant is entitled to "special protection", as defined in this subsection, if the tenant meets the definition of "Qualified Tenant" in Section 47.06 of this Code. **(Amended by Ord. No. 178,632, Eff. 5/26/07.)**

4. **Dispute Resolution.** The covenant and agreement specified in Subdivision 1. of this subsection shall establish an expeditious mechanism to resolve any disputes among tenants, the applicant and the City concerning the interpretation or application of the covenant and agreement. **(Amended by Ord. No. 178,632, Eff. 5/26/07.)**

5. **(Deleted by Ord. No. 178,632, Eff. 5/26/07.)**

6. **Continued Tenancy Pending Relocation; Eviction; Review Procedure.** Until each eligible tenant is successfully relocated pursuant to the provisions of this subsection, the tenant shall be permitted to reside in the unit presently occupied in the conversion project. There shall be no time limit for such continued tenancy for each tenant qualified for "special protection," as defined in Subdivision 3. of this Subsection G. In all other cases, the subdivider is not required to consent to continued tenancy beyond twelve months from the date of tentative map or preliminary parcel map approval or the date on which the 120-day notice of intent to convert is given to all tenants, whichever is the later.

A eligible tenant may be evicted, notwithstanding the paragraph above, for the following reasons only:

- a. The tenant has failed to pay the rent to which the landlord is entitled.
- b. The tenant has violated an obligation or covenant of the tenancy, other than the obligation to surrender possession upon proper notice and has failed to cure such violation after having received written notice thereof from the landlord.
- c. The tenant is committing or permitting to exist a nuisance in or is causing damage to, the rental unit or to the appurtenances thereof, or to the common areas of the property containing the rental unit, or is creating an unreasonable interference with the comfort, safety, or enjoyment of any of the other residents of the same or adjacent building.
- d. The tenant is using or permitting a rental unit to be used for any illegal purpose.
- e. The tenant who had a written lease or rental agreement which terminated on or after November 10, 1979, has refused, after written request or demand by the landlord, to execute a written extension or renewal thereof for a further term or like duration with similar provisions and in such terms as are not inconsistent with or violative of any provision of this subsection.
- f. The tenant has refused the landlord reasonable access to the unit for the purpose of making repairs or improvements, or for the purpose of inspection as permitted or required by the lease or by law, or for the purpose of showing the rental unit to any prospective purchaser or mortgagee.
- g. The person in possession of the rental unit at the end of the lease term is a subtenant not approved by the landlord.

Any dispute regarding an eligible tenant's right to continue tenancy pursuant to this Subdivision 5. may be heard by the Advisory Agency when application for such review is made by the subdivider or an eligible tenant. The Advisory Agency may release the applicant from further compliance with a relocation assistance plan with respect to any eligible tenant where it finds that the tenant is not entitled to continued tenancy pursuant to the provisions of this Subdivision 6.

7. **(Deleted by Ord. No. 178,632, Eff. 5/26/07.)**

8. **(Deleted by Ord. No. 178,632, Eff. 5/26/07.)**

9. (Renumbered as Subd. 4 by Ord. No. 178,632, Eff. 5/26/07.)

10. (Deleted by Ord. No. 178,632, Eff. 5/26/07.)

H. Parking:

1. Residential Conversion Projects.

a. The minimum number of resident parking spaces per dwelling unit shall be one and one-quarter parking spaces per dwelling unit having three or less habitable rooms and one and one-half parking spaces per each dwelling unit having more than three habitable rooms. The Advisory Agency may increase or decrease the required number of parking spaces up to and including three-quarters of a space per dwelling unit, where it finds that such modification is consistent with the purposes of this section.

b. The minimum number of guest parking spaces shall be one quarter space per dwelling unit for projects containing 50 or fewer units and one-half space per dwelling unit for projects containing more than 50 units. The Advisory Agency may modify the guest parking requirement up to and including one-half space per unit where it finds such modification consistent with the purposes of this section.

c. The Advisory Agency may require up to one of the required resident parking spaces per dwelling unit to be provided in a private garage or carport where it finds that such is reasonable and feasible and consistent with the purposes of this section.

d. Where the number of parking spaces required by other provisions of this code in existence on the date of map application exceeds the minimum numbers established by this section, the number of parking spaces shall not be diminished.

e. In the Central City Area as described in Section 12.21 A.4.(p) of the Municipal Code, the required parking ratio shall be no less than therein provided.

f. Where the total number of required spaces includes a fraction, the provision of Section 12.21 A.4.(k) of the Municipal Code shall govern.

g. The design and improvement of parking facilities and areas shall substantially conform to the provisions of Section 21.21 A.5. and 6. of the Municipal Code.

2. Residential to Commercial/Industrial Conversion Projects.

a. The required minimum number of parking spaces to be provided in a residential to commercial/industrial conversion project shall be one parking space for each 200 square feet of that portion of the total floor area of a building to be used as a medical office, clinic or other medical service facility and one parking space for each 500 square feet of that portion of the total floor area in a building to be used for other commercial or for industrial purposes. "Total floor area", as used herein, shall exclude floor area used for automobile parking or driveways, for basement storage or for rooms housing mechanical equipment incidental to the operation of buildings.

b. The Advisory Agency may increase the required minimum number of parking spaces by not more than seventy five percent (75%), including any allowance for guest parking, where it finds that such modification is consistent with the purposes of this section.

c. Where the number of parking spaces required by other provisions of this Code in existence on the date of map application exceeds the minimum numbers established by this section, the number of parking spaces shall not be diminished.

d. In the Central City Area as described in Section 12.21 A.4.(p) of the Municipal Code, the required parking ratio shall be no less than therein provided.

e. Where the total number of required parking spaces includes a fraction, the provisions of Section 12.21 A.4.(k) of the Municipal Code shall govern.

f. The design and improvement of parking facilities and areas shall substantially conform to the provisions of Section 12.21 A.5. and 6. of the Municipal Code.

I. Building Reports – Residential Conversion Projects. The Advisory Agency may require, as a condition of approval, that the applicant notify such person who communicates an interest in purchasing a unit or share that the following reports are available for inspection during normal business hours, and shall take all reasonable steps to assure that such reports fully, fairly and accurately describe the conditions reported:

1. Any report submitted pursuant to Subsection D. of this section.
2. A report concerning compliance with the sound transmission control standards established by Section 91.4903(h) of the Municipal Code.
3. Report concerning compliance with the residential energy conservation standards established by Article 1, Part 6, Title 24 of the California Administrative Code.
4. A report concerning compliance with the elevator safety standards established by Title 8 of the California Administrative Code.
5. A report concerning compliance with any provision of Chapter IX of the Municipal Code which the Advisory Agency and the Superintendent of Building find appropriate for such reporting purpose.

J. Low And Moderate Income Housing – Residential Conversion Projects: Each residential conversion project shall comply with Section 12.39* of the Municipal Code relating to low and moderate income housing.

* Section 12.39 was repealed by Ord. No. 180,308 Eff. 12/7/08.

K. Rental Housing Production:

1. As a condition of tentative map or preliminary parcel map approval, the Advisory Agency shall require that the applicant or the applicant's successor-in-interest pay to the City a fee of \$1,492 for each unit in a residential or residential to commercial/industrial conversion project, based on the number of units in the project prior to conversion. For the year beginning July 1, 2008, and all subsequent years, the fee amount shall be adjusted on an annual basis pursuant to the formula set forth in Section 151.06 D. of this Code. The adjusted amount shall be rounded to the nearest \$50 increment. This fee shall be paid prior to approval of the final map by the City Engineer. **(Amended by Ord. No. 178,632, Eff. 5/26/07.)**
2. All fees collected pursuant to this Subsection K. shall be deposited and held in the Rental Housing Production Account of the Los Angeles Housing Department, which account is hereby established to be administered by the Los Angeles Housing Department separately from all other money expended by the Department. Money in this account shall be used exclusively for the development of low and moderate income rental housing in the City, pursuant to guidelines carrying out this purpose prepared by the Department and approved by resolution of the City Council. **(Amended by Ord. No. 187,122, Eff. 8/8/21.)**

SEC. 12.95.3. CONVERSION PROJECTS: COMMERCIAL/INDUSTRIAL; COMMERCIAL/INDUSTRIAL TO RESIDENTIAL;

(Added by Ord. No. 154,960, Eff. 4/3/81.) (Section Renumbered by Ord. No. 162,832, Eff. 10/26/87.)

A. Purpose. The purpose of these provisions is to promote greater individual choice in type, quality, price and location of housing; to provide for the housing needs of all segments of the population; to provide increased homeownership opportunities for all segments of the population; to promote the safety of conversion projects and correction of Building Code violations; to provide adequate off-street parking; to provide increased opportunities for the ownership of commercial or industrial real property in the form of condominiums or stock cooperatives; to assure that the continued use of buildings for commercial or industrial purposes is substantially consistent with applicable general and specific plans; and to generally regulate projects in accordance with applicable general and specific plans and with the public health, safety and welfare.

B. Applicability. The provisions of this section shall apply to all tentative maps and preliminary parcel maps as to which the Advisory Agency has not rendered a decision on the date this section becomes effective. The provisions of any amendment to this section shall only apply to all tentative maps and preliminary parcel maps as to which the Advisory Agency has not rendered a decision on the date the amendment becomes effective, except as otherwise expressly stated in this section. For purposes of this subsection, a decision is rendered on the date of the Advisory Agency's public hearing and announced decision or, where no such decision is announced, the date of mailing of the Advisory Agency's letter of decision and findings to the applicant.

C. Definitions. The terms used in this section are defined in Sections 12.03 and 17.02 of the Municipal Code.

D. Application Requirements:

1. Commercial/Industrial to Residential Conversion Projects:

- a. A commercial/industrial to residential conversion project shall comply with the Division of Land regulations in Article 7 of this chapter, the provisions of this section and other applicable state laws and local ordinances.
- b. In addition to the information required by other applicable sections of this Code, the following information shall be submitted at the time of filing:
 - (1) Building plans or other documents containing the following information pertaining to the project as proposed, certified as to accuracy by a licensed engineer:

(a) Description of the features of the type of building and project, including age, type of construction, number of dwelling units, number of habitable rooms per dwelling unit; and

(b) Site plan, including buildings, structures, yards, open spaces, accessory storage areas and buildings, including trash storage areas; and

(c) Parking plan, including the total number of spaces actually provided and the total number required if different from that actually provided; dimensions of stalls, aisles and driveways; location of columns, walls and other obstructions; total number of covered and uncovered parking spaces and location and number of guest parking spaces.

(2) **Sales Information.** Anticipated range of sales prices of individual dwelling units or shares based on information known at the time of application; and statement as to whether sales will be permitted to families with minor children.

(3) Floor and elevation plans, including indication of common and private areas and required exits.

c. The following additional information may be required by the Advisory Agency as a condition of approval.

(1) Certificate of Housing Compliance Inspection Report as provided by Section 91.0318 of the Municipal Code, or equivalent report satisfactory to the Advisory Agency, which report shall detail any violations of Chapter IX of the Municipal Code in effect at the time the building permit was issued and any violations of provisions of Chapter IX enacted after such permit was issued and which are explicitly made applicable to existing structures.

(2) Building inspection reports (if any such report has already been submitted to the California Department of Real Estate, a copy of such report shall be furnished to the City):

(a) Building component reports indicating condition and estimated remaining useful life of the roof, foundation, plumbing, electrical, heating, air conditioning, other mechanical and structural systems, prepared by a registered civil or structural engineer, licensed general building contractor, licensed general engineering contractor or architect;

(b) Structural pest control report, prepared by a licensed pest control contractor;

(c) Acoustical report indicating (a) the type of construction between dwelling units and the general sound attenuation characteristics of such construction, or indicating the level of sound attenuation between dwelling units, and (b) the feasibility of various levels of improvement, prepared by a licensed acoustical engineer; and

(d) Utility metering reports, if the units of the building are not individually metered, indicating the feasibility of individual or submetering, prepared by qualified engineers.

(3) Any other information, including conditions, covenants and restrictions, articles of incorporation and by-laws, which the Advisory Agency deems necessary to determine if the proposed project is consistent with the purposes of the Municipal Code.

2. **Commercial/Industrial Conversion Projects.**

a. A commercial/industrial conversion project shall comply with the Division of Land Regulations in Article 7 of this chapter, the provisions of this section and other applicable State laws and local ordinances.

b. In addition to the information required by other applicable sections of this Code, building plans or other documents containing the following information pertaining to the project as proposed, certified as to accuracy by a licensed engineer, shall be submitted at the time of filing:

(1) Description of the features of the type of building and project, including age, type of construction, number of separate units proposed, the square footage of each such unit and of the entire building.

(2) Parking plan, including the total number of spaces actually provided and the total number required if different from that actually provided, dimensions of stalls, aisles and driveways; location of columns, walls, and other obstructions; total number of parking spaces and guest parking spaces.

c. The following additional information may be required by the Advisory Agency as a condition of approval:

(1) Building component reports, indicating condition and estimated remaining useful life of the roof, foundation, plumbing, electrical, heating, air conditioning, other mechanical and structural systems, prepared by a registered civil or structural engineer licensed general building contractor, licensed general engineering contractor

or architect;

(2) Site plan, including buildings, structures, yards, open spaces and accessory storage areas and buildings including trash storage areas;

(3) Floor and elevation plans, including indication of common and private areas and required exits;

(4) Building inspection reports (if any such report has already been submitted to the California Department of Real Estate, a copy of such report shall be furnished to the City;

(5) Any other information including conditions, covenants and restrictions, articles of incorporation and by-laws, which the Advisory Agency deems necessary to determine if the proposed project is consistent with the purposes of the Municipal Code.

E. Tentative Map And Preliminary Parcel Map Approval:

1. All tentative maps and preliminary parcel maps filed in connection with the commercial/ industrial to residential or commercial/industrial conversion projects shall be subject to the Division of Land Regulations contained in Article 7 of this chapter, except as herein otherwise provided. All such maps shall be subject to the General Plan and any applicable specific plan only to the extent that such plan contains a definite statement of policies and objectives explicitly applicable to such conversion projects, except as otherwise provided in this subsection.

2. The Advisory Agency shall disapprove a tentative map or preliminary parcel map for a commercial/industrial or commercial/industrial to residential conversion project if it finds that the map is not substantially consistent with the applicable density provisions of the General Plan or specific plans in effect at the time the original building permit was issued.

EXCEPTION:

This provision shall not apply to any commercial/industrial or commercial/industrial to residential conversion projects for which a building permit was applied for prior to July 1, 1978.

3. The Advisory Agency shall disapprove a tentative map or preliminary parcel map for a commercial/industrial or commercial/industrial to residential conversion project where such conversion would be inconsistent with either the existing zoning pattern or applicable general or specific plan, unless it finds that there are special circumstances which justify approval of the map. Such circumstances may exist only with respect to the following facts: (1) the prevailing pattern of commercial/industrial and residential land use in the vicinity of the project site; and (2) the existing and anticipated need for residential development and continued commercial/industrial development in the planning area in which the project is located.

4. The Advisory Agency shall disapprove a tentative map or preliminary parcel map for a commercial/industrial or commercial/industrial to residential conversion project if it finds that any applicable General Plan or Specific Plan provision contains a definite statement of policies and objectives explicitly applicable to such conversion projects and the proposed map is not substantially consistent with such provision.

5. The Advisory Agency shall disapprove a tentative map or preliminary parcel map for a commercial/industrial or commercial/industrial to residential conversion project if it finds that there are uncorrected violations of Chapter IX of the Municipal Code, and that an adequate plan to correct such violations has not been developed or accomplished. For purposes of this provision, Chapter IX of the Municipal Code means the Code in effect when the building permit was issued and other subsequently enacted regulations explicitly made applicable to existing structures.

6. The Advisory Agency shall disapprove a tentative map or preliminary parcel map for a commercial/industrial or commercial/industrial to residential conversion project if it finds that (a) the building permit for the building was issued prior to October 1, 1933, and the building is of unreinforced masonry construction, or (b) the building is more than three stories in height without an elevator. This provision may be waived where the Advisory Agency finds that any such condition has been corrected in conformity with current Municipal Code standards.

F. Parking.

1. Commercial/Industrial to Residential Conversion Projects.

a. The minimum number of resident parking spaces per dwelling unit shall be one and one-quarter parking spaces per each dwelling unit having three or less habitable rooms and one and one-half parking spaces per each dwelling unit having more than three habitable rooms. The Advisory Agency may increase or decrease the required number of parking spaces up to and including three-quarters of a space per dwelling unit, where it finds such modification is consistent with the purposes of this section.

b. The minimum number of guest parking spaces shall be one-quarter space per dwelling unit for projects containing 50 or fewer units and one-half space per dwelling unit for projects containing more than 50 units. The Advisory Agency may modify the guest parking requirements up to and including one-half space per unit where it finds such modification

consistent with the purposes of this section.

c. The Advisory Agency may require up to one of the required resident parking spaces per dwelling unit be provided in a private garage or carport where it finds that such is reasonable and feasible and consistent with the purposes of this section.

d. Where the number of parking spaces required by other provisions of this code in existence on the date of map application exceeds the minimum numbers established by this section, the number of parking spaces shall not be diminished.

e. In the Central City Area as described in Section 12.21 A.4.(p) of the Municipal Code, the required parking ratio shall be no less than therein provided.

f. Where the total number of required spaces includes a fraction, the provision of Section 12.21 A.4.(k) of the Municipal Code shall govern.

g. The design and improvement of parking facilities and areas shall substantially conform to the provisions of Section 12.21 A.5. and 6. of the Municipal Code.

h. **(Added by Ord. No. 172,571, Eff. 6/3/99.)** Notwithstanding any other provisions of this chapter to the contrary, the required number of parking spaces in Adaptive Reuse Projects in the Downtown Project Area pursuant to Section 12.22 A.26. shall be the same as the number of spaces that existed on the site as of the effective date of this ordinance, and shall be maintained and not reduced. Adaptive Reuse Projects shall otherwise be exempt from the provisions of Section 12.21 A.4.(m) of this Code.

2. Commercial/Industrial Conversion Projects.

a. The required minimum number of parking spaces to be provided in a commercial/ industrial conversion project shall be one parking space for each 200 square feet of that portion of the total floor area in a building to be used as a medical office, clinic or other medical service facility and one parking space for each 500 square feet of that portion of the total floor area in a building to be used for other commercial or for industrial purposes. **“Total floor area”**, as used herein, shall exclude floor area used for automobile parking or driveways, for basement storage or for rooms housing mechanical equipment incidental to the operation of buildings.

b. The Advisory Agency may increase or decrease the required minimum number of required parking spaces by not more than one hundred percent (100%) including any allowance for guest parking, where it finds that such modification is consistent with the purposes of this section.

c. Where the number of parking spaces required by other provisions of this code in existence on the date of map application exceeds the minimum number established by this subsection, the number of parking spaces shall not be diminished.

d. Where the total number of required parking spaces includes a fraction, the provisions of Section 12.21 A.4.(k) of the Municipal Code shall govern.

e. The design and improvement of parking facilities and areas shall substantially conform to the provisions of Section 12.21 A.5. and 6. of the Municipal Code.

f. In the Central City Area as described in Section 12.21 A.4.(P) of the Municipal Code, the required parking ratio shall be no greater than therein provided.

G. (None.)

H. Building Reports – Commercial/Industrial To Residential Conversion Projects. The Advisory Agency may require, as a condition of approval, that the applicant notify any person who communicates an interest in purchasing a residential condominium or share in a residential stock cooperative that the following reports are available for inspection during normal business hours, and shall take reasonable steps to assure that such reports fully, fairly and accurately describe the conditions reported:

1. Any report submitted pursuant to Subsection D. of this section.

2. A report concerning compliance with the sound transmission control standards established by Section 91.4903(h) of the Municipal Code.

3. A report concerning compliance with the residential energy conservation standards established by Article 1, Part 6, Title 24 of the California Administrative Code.

4. A report concerning compliance with the elevator safety standards established by Title 8 of the California Administrative Code.

5. A report concerning compliance with any provisions of Chapter IX of the Municipal Code which the Advisory Agency and the Superintendent of Building find appropriate for such reporting purpose.

I. Commercial / Industrial To Residential Projects – Low and Moderate Income Housing. Each commercial/industrial to residential conversion project shall comply with Section 12.39* of the Municipal Code relating to low and moderate income housing.

* Section 12.39 was repealed by Ord. No. 180,308 Eff. 12/7/08.

ARTICLE 3

SPECIFIC PLAN – ZONING

SUPPLEMENTAL USE DISTRICTS

(Title Amended by Ord. No. 138,800, Eff. 6/13/69, Oper. 6/23/69.)

Section

- 13.01 “O” Oil Drilling Districts.
- 13.02 “S” Animal Slaughtering Districts.
- 13.03 “G” Surface Mining Operations Districts.
- 13.04 “RPD” Residential Planned Development Districts.
- 13.05 “K” Equinekeeping Districts.
- 13.06 Commercial and Aircraft Districts.
- 13.07 Pedestrian Oriented District.
- 13.08 “CDO” Community Design Overlay District.
- 13.09 Mixed Use District.
- 13.10 Fence Heights District.
- 13.11 “SN” Sign District.
- 13.11.1 “TCN” Transportation Communication Network District.
- 13.12 “NSO” Neighborhood Stabilization Overlay District.
- 13.13 “RFA” Residential Floor Area District.
- 13.14 “CPIO” Community Plan Implementation Overlay District.
- 13.15 “MPR” Modified Parking Requirement District.
- 13.16 “HS” Hillside Standards Overlay District.
- 13.17 “RIO” River Improvement Overlay District.
- 13.18 “CUGU” Clean Up Green Up Overlay District.
- 13.19 “RG” Single-Family Zone Rear Detached Garage District.
- 13.20 “HCR” Hillside Construction Regulation District.
- 13.21 Violation.

SEC. 13.00. ESTABLISHMENT OF DISTRICTS.

(Repealed by Ord. No. 173,277, Eff. 6/25/00, Oper. 7/1/00.)

SEC. 13.01. “O” OIL DRILLING DISTRICTS.

A. Application. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) The provisions of this section shall apply to the districts where the drilling of oil wells or the production from the wells of oil, gases or other hydrocarbon substances is permitted. The provisions of this section shall not apply to the property in the M3 Zone, except as specifically provided here to the contrary. The provisions of this section shall not apply to the location of subterranean gas holding areas which are operated as a public utility and which are regulated by the provisions of Section 14.00 of this Code.

B. Definitions. For the purpose of this section the following words and phrases are defined:

“Controlled Drilling Site” shall mean that particular location within an oil drilling district in an “Urbanized Area” upon which surface operations for the drilling, deepening or operation of an oil well or any incidental operation are permitted under the terms of this section, subject to the conditions prescribed by written determination by the Zoning Administrator. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)

“Drilling and Production Site in the Los Angeles City Oil Field Area” shall mean locations within an oil drilling district in

the “**Los Angeles City Oil Field Area**” upon which surface operations for the drilling, deepening or operation of an oil well or any operation incident thereto, are permitted under the terms of this section, subject to the conditions prescribed by written determination by the Zoning Administrator. **(Added by Ord. No. 156,166, Eff. 1/24/82.)**

“**Los Angeles City Oil Field Area**” shall mean all land in the City within the areas identified on the maps in Ordinance No. 156,166 located in Council File No. 80-3951 and shall include all oil producing zones beneath those areas but no deeper than the third zone beneath the surface of the earth. **(Amended by Ord. No. 177,103, Eff. 12/18/05.)**

“**Nonurbanized Area**” shall mean all those portions of the City which the City Planning Commission or Council has determined will not be detrimentally affected by the drilling, maintenance, or operation of oil wells. In making its determination, the City Planning Commission, or the Council on appeal, shall give due consideration to the amount of land subdivided, the physical improvements, the density of population and the zoning of the district. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

“**Offshore Area**” shall mean all property in the City of Los Angeles which is between the mean high tide line and the outermost seaward City boundary. **(Added by Ord. No. 126,825, Eff. 4/4/64.)**

“**Oil Well**” shall mean any well or hole already drilled, being drilled or to be drilled into the surface of the earth which is used or intended to be used in connection with coring, or the drilling for prospecting for or producing petroleum, natural gas or other hydrocarbon substances, or is used or intended to be used for the subsurface injection into the earth of oil field waste, gases, water or liquid substances, including any such existing hole, well or casing which has not been abandoned in accordance with the requirements of Article 7 of Chapter 5 of this Code except that “**Oil Well**” shall not include “**Temporary Geological Exploratory Core Hole**” as defined by Section 12.03 of this Code. **(Amended by Ord. No. 123,618, Eff. 3/1/63.)**

“**Oil Well Class A**” shall mean any oil well drilled, conditioned arranged, used or intended to be used for the production of petroleum.

“**Oil Well Class B**” shall mean any oil well drilled, conditioned, arranged, used or intended to be used only for the subsurface injection into the earth of oil field waste, gases, water or liquid substances.

“**Producing Zone**” shall mean a reservoir or series of reservoirs of sufficient thickness and productivity of hydrocarbons as to form an economic source of supply and which is segregated from other reservoirs or series of reservoirs by natural boundaries or barriers to such an extent as to make its separate development either economically or mechanically desirable in accordance with good oil field practice. **(Added by Ord. No. 147,651, Eff. 10/11/75.)**

“**Urbanized Area**” shall mean all land in the City, except land in the M3 Zone, and land which has been determined to be “**Nonurbanized Area**” by the City Planning Commission or Council or land located in the “**Los Angeles City Oil Field Area**”. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

C. Status of Areas. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) Where uncertainty exists as to whether or not a particular area shall be continued as an urbanized area, any person contemplating filing a petition for the establishment of an oil drilling district, may prior to its filing, request the City Planning Commission to determine the status of the area in which the proposed district is to be located. The Commission shall refer the request to the Director of Planning for investigation and upon receipt of the Director of Planning’s report shall determine whether the area is “**Urbanized**” or “**Nonurbanized**”. The determination of the City Planning Commission may be appealed to the Council, which may, by resolution, approve or disapprove the determination.

D. Requirements for Filing:

1. **Non-urbanized Areas.** Each application for the establishment of an oil drilling district in an non-urbanized area shall include property having a net area or not less than one acre (excluding public streets, alleys walks or ways, except that an application may be filed on property containing less than one acre which is surrounded on all sides by streets. Such property may consist of one or more parcels of land which must be contiguous, except that said parcels may be separated by a public alley or walk.

2. Urbanized Areas.

(a) **(Amended by Ord. No. 124,937, Eff. 8/2/63.)** Each application for the establishment of an oil drilling district in an urbanized area shall contain a statement that the applicant has the proprietary or contractual authority to drill for and produce oil, gas or other hydrocarbon substances under the surface of at least 75 per cent of the property to be included in said district.

Any municipal body or official required by law to consider and make a report or recommendation relative to or to approve or disapprove such application may request the applicant in writing to submit for inspection copies of leases and contracts held by applicant in support of such asserted proprietary or contractual authority. The limitations of time for acting upon such application shall be suspended from the time of mailing such request until the documents requested have been submitted.

(b) **(Amended by Ord. No. 112,524, Eff. 1/17/59.)** Where said authority to drill for and produce oil, gas and other

hydrocarbons is pursuant to contract, said application shall be accompanied by a copy thereof, and said contract shall have attached thereto and referred to therein by reference the following information for the contracting parties:

(1) A summary of the provisions of the Los Angeles Municipal Code, as amended, which are applicable to the district, prepared or approved by the Board of Public Works or its designee; **(Amended by Ord. No. 185,205, Eff. 11/22/17.)**

(2) Any additional information which the person in charge of Petroleum Administration finds from time to time is required to give all contracting parties a reasonably complete knowledge of oil and gas leasing requirements and procedures in urbanized areas within the City of Los Angeles. **(Amended by Ord. No. 173,363, Eff. 7/29/00, Oper. 7/1/00.)**

(c) The district described in said application shall be not less than 40 acres in area, including all streets, ways and alleys within the boundary thereof; shall be substantially compact in area; and the boundaries thereof shall follow public streets, ways or alleys as far as practicable. **(Amended by Ord. No. 112,524, Eff. 1/17/59.)**

(d) Each applicant for the establishment of an oil drilling district in an urbanized area shall be accompanied by a report from a petroleum geologist who

(1) is an active member of the American Association of Petroleum Geologists or the American Institute of Professional Geologists or

(2) meets the educational and experience requirements to become an active member of the American Association of Petroleum Geologists or the American Institute of Professional Geologists, that the production of oil from under the proposed district would not, in their opinion, result in any noticeable subsidence. If the City's authorized person in charge of Petroleum Administration disagrees in any way with the report, that authorized person shall submit in writing their own views on the report as part of the report to the City Planning Commission. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

3. **Offshore Areas.** Each application for the establishment of an oil drilling district in an offshore area shall include property having a net area of not less than 1,000 acres. **(Amended by Ord. No. 126,825, Eff. 4/4/64.)**

4. **Los Angeles City Oil Field Area.** **(Amended by Ord. No. 156,166, Eff. 1/24/82.)** Each application for the establishment of an oil drilling district in the Los Angeles City Oil Field Area shall:

(a) Include property not less than one acre in size, bounded on each side by a public street, alley, walk or way and such district shall be wholly contained within the Los Angeles City Oil Field Area.

(b) Contain a statement that the applicant has the proprietary or contractual authority to drill for and produce oil, gas or other hydrocarbon substances under the surface of at least 75% of the total land area of the property to be included in said district.

Any municipal body or official required by law to consider and make a report or recommendation relative to or to approve or disapprove such application may request the applicant in writing to submit for inspection copies of leases and contracts held by applicant in support of such asserted proprietary or contractual authority. The limitations of time for acting upon such application shall be suspended from the time of mailing such request until the documents requested have been submitted.

[**Editor's note:** Maps formerly referred to in this section were deleted by Ord. No. 177,103, Eff. 12/18/05.]

5. **General – All Areas.** **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)** No application for the establishment of an oil drilling district shall be accepted for filing in the City Planning Department unless it has first been submitted to and reported on by the authorized person in charge of Petroleum Administration. The report shall consider the propriety of the proposed boundaries of the district, the desirability of the drill site location and whether or not the exploration for oil is geologically justified in the district. The report shall be made within 30 days of the receipt of the application. A copy of the report shall accompany the application when it is filed with the City Planning Department.

E. Standard Conditions:

1. **Non-urbanized Areas.** Each oil drilling district established in a non-urbanized area shall be subject to the following conditions:

(a) Each district shall contain a net area of one acre or more which shall be composed of contiguous parcels of land that may be separated by an alley or walk, except that a district may contain an area of less than one acre where it is surrounded on all sides by streets.

(b) Each drilling site in any district shall contain a net area of one acre or more and shall be composed of contiguous parcels of land which may be separated only by an alley or walk. A drilling site may contain less than one acre of area

where it is surrounded on all sides by public or approved private streets. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

Only one oil well Class A may be established or maintained on each acre of land, except that there may be one oil well Class A on any land surrounded on all sides by public or approved private streets. Provided, however, in determining conditions for drilling pursuant to Subsection H., the Zoning Administrator may permit surface operations for more than one oil well Class A in a semi-controlled drilling site where the additional wells are to be bottomed under adjacent land in a drilling district in lieu of surface operations. There shall be no less than one net acre of land in the combined drill site and production site for each well in a semi-controlled drilling site. The Zoning Administrator shall require a site of more than one acre for each oil well where a larger area is required in the particular oil drilling district. The Zoning Administrator may require larger minimum drilling sites or production areas when reasonably necessary in the public interest for a particular oil producing section.

Where drilling sites greater than one acre are required and two or more lessees or oil drilling developers in a block or area have at least one net acre each, but all lessees or developers do not have the greater area required for drilling under these regulations, the Zoning Administrator shall equitably allocate permitted wells among the competing lessees or developers. Where necessary, the lessee or developer having control of the larger portion of the property shall be given preference. In those situations outlined above, in addition to the proration required by Paragraph (d) of this subdivision, the Zoning Administrator shall require that the lessee or developer who is authorized to drill the well shall offer an equitable consolidation agreement to the lessee or developer who has not been permitted to drill. This consolidation agreement shall contain an offer in writing, open for acceptance for 30 days, giving the other lessees or developers a choice of either:

(i) a lease on terms and conditions agreed upon, or on substantially the same terms and conditions contained in leases owned by the applicant; or,

(ii) a consolidation agreement agreed upon providing that each lessee or developer shall contribute to the cost of drilling and operation of the well and share in the production from the well in the proportion that the area of the lessee's or developer's property bears to the total area in the drilling unit.

(c) No public street, alley, walk or way shall be included in determining the net area within any district or drilling site.

(d) Where the drilling site is so located as to isolate any parcel of land in the drilling district in such a manner that it could not be joined with any other land so as to create another drilling site of the area required in the particular district in which it is located, the Zoning Administrator shall require, as a condition to the drilling and production on the drilling site that the owner, lessee or permittee or the owner's, lessee's or permittee's successor shall pay to the owners of the oil and gas mineral rights in each isolated parcel, a pro-rata share of the landowners' royalty in all of the oil and gas produced from the drilling site, the share to be in that proportion as the net area of the isolated parcel is to the total net area of the drilling site plus the area of all the isolated parcels; provided that the landowners' royalty shall be determined in accordance with any existing contracts for payments to the landowners of the drilling site, but, in no event, as to the owner of the isolated parcel or parcels, shall it be less than a 1/6th part of the oil and gas produced and saved from the drilling site. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

2. **Urbanized Areas.** Each oil drilling district established in an urbanized area shall be subject to the following conditions:

(a) Each district shall be not less than 40 acres in area, including all streets, ways and alleys within the boundaries thereof.

(b) Not more than one controlled drill site shall be permitted for each 40 acres in any district and that site shall not be larger than two acres when used to develop a district approximating the minimum size; provided, however, that where the site is to be used for the development of larger oil drilling districts or where the Zoning Administrator requires that more than one oil drilling district be developed from one controlled drilling site, the site may be increased, at the discretion of the Zoning Administrator when concurred in by the Board of Fire Commissioners, by not more than two acres for each 40 acres included in the district or districts. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

(c) The number of oil wells Class A which may be drilled and operated from any controlled drilling site may not exceed one well to each five acres in the district or districts to be explored from said site. **(Amended by Ord. No. 147,651, Eff. 10/11/75.)**

Notwithstanding the above, should the City Council determine that an urbanized oil drilling district contains more than one producing zone, the City Council may then authorize, by ordinance, the drilling of additional oil wells Class A, not to exceed one well per five acres for each identified producing zone, and specify the maximum number of wells to be drilled as the result of such authorization.

(d) Each applicant, requesting a determination by the Zoning Administrator prescribing the conditions controlling drilling and production operations, as provided in Subsection H. of this section, must have proprietary or contractual authority to drill for oil under the surface of at least 75 percent of the property in the district to be explored. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

(e) Each applicant or the applicant's successor in interest shall, within one year from the date the written determination is made by a Zoning Administrator prescribing the conditions controlling drilling and production operations as provided in Subsection H. of this section, execute an offer in writing giving to each record owner of property located in the oil drilling district who has not joined in the lease or other authorization to drill the right to share in the proceeds of production from wells bottomed in the district, upon the same basis as those property owners who have, by lease or other legal consent, agreed to the drilling for and production of oil, gas or other hydrocarbon substances from the subsurface of the district. The offer hereby required must remain open for acceptance for a period of five years after the date the written determination is made by a Zoning Administrator. During the period the offer is in effect, the applicant, or the applicant's successor in interest, shall impound all royalties to which the owners or any of them may become entitled in a bank or trust company in the State of California, with proper provisions for payment to the record owners of property in the district who had not signed the lease at the time the written provisions were made by a Zoning Administrator, but who accepts the offer in writing within the five-year period. Any such royalties remaining in any bank or trust company at the time the offer expires which are not due or payable as provided above shall be paid pro-rata to those owners who, at the time of the expiration, are otherwise entitled to share in the proceeds of the production. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

(f) The entire controlled drilling site shall be adequately landscaped, except for those portions occupied by any required structure, appurtenance or driveway, and all landscaping shall be maintained in good condition at all times. Plans showing the type and extent of the landscaping shall be first submitted to and approved by the Zoning Administrator. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

(g) Each applicant, requesting a determination by a Zoning Administrator prescribing the conditions controlling drilling and production operations, as provided in Subsection H. of this section, shall post in the Office of Zoning Administration a satisfactory corporate surety bond (to be approved by the City Attorney and duplicates to be furnished to the City Attorney) in the sum of \$5,000 in favor of the City of Los Angeles, conditioned upon the performance by the applicant of all of the conditions, provisions, restrictions and requirements of this section, and all additional conditions, restrictions or requirements determined and prescribed by a Zoning Administrator. No extension of time that may be granted by a Zoning Administrator or any change or specifications or requirements that may be approved or required by the Zoning Administrator or by any other officer or department of the City or any other alteration, modification of waiver affecting any of the obligations of the grantee made by any City authority or by any other power or authority whatsoever shall be deemed to exonerate either the grantee or the surety on any bond posted pursuant to this section. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

(h) If a Zoning Administrator determines, after first receiving a report and recommendation from the Board of Public Works or its designee, that oil drilling and production activities within the district have caused or may cause subsidence in the elevation of the ground within the district or in the immediate vicinity, then after consulting with recognized experts in connection with that problem and with those producing hydrocarbons from the affected area, the Zoning Administrator shall have the authority to require the involved oil producer or producers to take corrective action, including repressurizing the oil producing structure or cessation of oil drilling and production. **(Amended by Ord. No. 185,205, Eff. 11/22/17.)**

(i) A Zoning Administrator may impose additional conditions or require corrective measures to be taken if the Zoning Administrator finds, after actual observation or experience with drilling one or more of the wells in the district, that additional conditions are necessary to afford greater protection to surrounding property. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

3. **Offshore Areas. (Amended by Ord. No. 142,081, Eff. 7/22/71.)** Each oil drilling district established in an offshore area shall be subject to the following conditions:

(a) All activities conducted within each such district shall conform to the spirit and intent of the provisions of Subsection A. of Section 12.20.1 of this Code.

(b) No surface or submarine drilling or producing operations shall be permitted between the mean high tide line and the outermost seaward City boundary. Surface drilling or producing operations may be conducted only from permitted or approved onshore drillsites. Oil and gas accumulations may be developed by directional or slant drilling beneath any portion of the submerged land within the district.

(c) **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)** Onshore drilling and producing operations utilizing directional or slant drilling may be approved by a Zoning Administrator only when a showing is made that production of oil and gas cannot be accomplished from already approved or permissible sites.

(d) The number of oil wells Class A which may be drilled into any offshore drilling district from a single installation or facility onshore shall not exceed one well to each five acres of district and the installation and operation of all wells shall meet the requirements of Section 12.20.1.

(e) Each applicant requesting a determination by a Zoning Administrator prescribing the conditions controlling drilling and production operations, as provided in Subsection H., shall post in the Office of Zoning Administration a satisfactory

corporate surety bond (to be approved by the City Attorney and duplicates to be furnished to the City Attorney) in the sum of \$50,000 in favor of the City of Los Angeles, conditioned upon the performance by the applicant of all of the conditions, provisions, restrictions and requirements of this section, and all additional conditions, restrictions, or requirements determined and prescribed by a Zoning Administrator. No extension of time that may be granted by a Zoning Administrator on any change of specifications on requirements that may be approved or required by a Zoning Administrator or by any other officer or department of the City or any other alteration, modification or waiver affecting any of the obligations of the applicant made by any City authority or by any other power or authority whatsoever shall be deemed to exonerate either the applicant or the surety on any bond posted pursuant to this section. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

(f) All derricks and other drilling facilities shall be removed within 30 days after completion or abandonment of the well; and thereafter any work done on any existing well which requires redrilling or reconditioning shall be done by temporary or portable equipment which shall be removed within 30 days after completion of such work.

(g) Pollution of water and contamination or soiling of the urban coastline or beaches are prohibited.

4. Los Angeles City Oil Field Area. (Added by Ord. No. 156,166, Eff. 1/24/82.) Each oil drilling district established in the Los Angeles City Oil Field Area shall be subject to the following conditions:

(a) The boundary of each district shall follow the center line of city streets as far as practicable;

(b) Each district shall include the streets, ways, and alleys within the boundaries thereof and shall be substantially compact in area;

(c) The drilling, pumping, redrilling, repairing, maintenance or other servicing of any new oil well Class A in said district shall be conducted only on a Drilling and Production Site in the Los Angeles City Oil Field Area upon which site at least one Class A oil well was (i) in existence on January 24, 1982; and (ii) had not been abandoned in accordance with State Division of Oil and Gas regulations prior to January 24, 1982; and (iii) has a Los Angeles Fire Department Serial Number, which number was in existence on January 24, 1982. **(Amended by Ord. No. 160,874, Eff. 4/6/86.)**

(d) The number of new oil wells Class A permitted on such a Drilling and Production Site in the Los Angeles City Oil Field Area shall not exceed one well to each acre in the District;

(e) Each applicant, requesting a determination by the Zoning Administrator prescribing the conditions controlling new drilling and production operations as provided in Subsection H., must have proprietary or contractual authority to drill for oil under the surface of at least 75% of the total land area of the property in the district to be explored. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

(f) Within one year from the date the written determination is made by a Zoning Administrator prescribing the conditions controlling drilling and production operations, as provided in Subsection H., each applicant or the applicant's successor in interest shall offer in writing to each record owner of property located in the oil drilling district who has not joined in the lease or other authorization to drill, the right to share in proceeds of production from new wells bottomed in the district upon the same basis as those property owners who have, by lease or other legal consent, agreed to the drilling for and production of oil, gas or other hydrocarbon substances from the sub-surface of the district. The offer hereby required must remain open for acceptance for a period of five years after the date the written determination is made by a Zoning Administrator. During the period the offer is in effect, the applicant, or the applicant's successor in interest, shall impound all royalties to which the owners or any of them may become entitled in a bank or trust company in the State of California, with proper provisions for payment to the record owners of property in the district who had not signed the lease at the time the written determination was made by a Zoning Administrator, but who accepts the offer in writing within the five-year period. Any royalties remaining in any bank or trust company at the time the offer expires which are not due or payable as provided above shall be paid pro-rata to those owners who, at the time of the expiration, are otherwise entitled to share in the proceeds of the production. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

(g) The entire site upon which new oil wells are to be drilled shall be adequately fenced and landscaped; plans showing the type and extent of the landscaping shall be first submitted to and approved by the Zoning Administrator. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

(h) Each applicant requesting a determination by a Zoning Administrator prescribing the conditions controlling drilling and production operations, as provided in Subsection H., shall post in the Office of Zoning Administration a satisfactory corporate surety bond (to be approved by the City Attorney and duplicates to be furnished to the City Attorney) in the sum of \$5,000 in favor of the City of Los Angeles, conditioned upon the performance by the applicant of all of the conditions, provisions, restrictions, and requirements of this section, and all additional conditions, restrictions, or requirements determined and prescribed by a Zoning Administrator. No extension of time that may be granted by a Zoning Administrator or any change of specifications or requirements that may be approved or required by a Zoning Administrator or by any other officer or department of the City or any other alteration, modification or waiver affecting any of the obligations of the grantee made by any city authority or by any other power or authority whatsoever shall be deemed to exonerate either the grantee or the surety of any bond posted pursuant to this section. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

(i) If a Zoning Administrator determined after first receiving a report and recommendation from the Board of Public Works or its designee that oil drilling and production activities within the district have caused or may cause subsidence in the elevation of the ground within the district or in the immediate vicinity, the Zoning Administrator shall have the authority, after consulting with recognized experts in connection with the problem and with those persons producing hydrocarbons from the affected area, to require the involved oil producer or producers to take corrective action, including re-pressurizing the oil producing structure or cessation of oil drilling and production. **(Amended by Ord. No. 185,205, Eff. 11/22/17.)**

(j) A Zoning Administrator may impose additional conditions or require corrective measures to be taken if the Zoning Administrator finds, after actual observation or experience with drilling one or more of the wells in the district, that additional conditions are necessary to afford greater protection to surrounding property. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

(k) **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)** Any operator of any site within an oil drilling district, approved by the Zoning Administrator pursuant to Section 12.23 C.4.(c), may apply to the Department of City Planning for the establishment of fencing and landscaping requirements. Once the requirements have been satisfied, the operator shall be relieved of the restrictions specified in Section 12.23 C.4.(b) and (c). Should an operator of such a site in a district desire to redrill or deepen a Class A oil well, if the oil well was

(i) in existence on January 24, 1982; and

(ii) had not been officially abandoned in accordance with State Division of Oil and Gas Regulations prior to January 24, 1982; and

(iii) has a Los Angeles Fire Department Serial Number and the number was in existence on January 24, 1982, that operator shall comply with the provisions of Subsection H. of Section 13.01. Compliance with the Determination of Conditions issued shall relieve the operator of the restrictions specified in Section 12.23 C.4.(b) and (c) of this Code.

F. Additional Conditions. In addition to the standard conditions applying to oil drilling districts, the Council, by ordinance, or the Zoning Administrator may impose other conditions in each district as deemed necessary and proper. Where these conditions are imposed by ordinance, they may be subsequently modified or deleted in the following manner:

1. where the condition relates to the location of a drill site within a district, by amending the ordinance, only after the submission of an application, the payment of fees, notice, hearing and procedure identical to that required by this article for the establishment of an oil drilling district; and

2. where the condition does not relate to the location of a drill site, by amending the ordinance, without the necessity of fees, notice or hearing.

In its report to the Council relative to the establishment of a district, the City Planning Commission may recommend conditions for consideration. Some of these additional conditions, which may be imposed in the ordinance establishing the districts or by the Zoning Administrator in determining the drilling site requirements, and which may be applied by reference, are as follows: **(Para. Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

1. That all pumping units established in said district shall be installed in pits so that no parts thereof will be above the surface of the ground.

2. That all oil produced in said district shall be carried away by pipe lines or, if stored in said district, shall be stored in underground tanks so constructed that no portion thereof will be above the surface of the ground.

3. That the operator of any well or wells in the district shall post in the Office of Zoning Administration a \$5,000 corporate surety bond conditioned upon the faithful performance of all provisions of this article and any conditions prescribed by a Zoning Administrator. No extension of time that may be granted by a Zoning Administrator, or change of specifications or requirements that may be approved or required by a Zoning Administrator or by any other officer or department of the City, or other alteration, modification or waiver affecting any of the obligations of the grantee made by any City authority shall be deemed to exonerate either the grantee or the surety on any bond posted as required in this article. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

4. That the operators shall remove the derrick from each well within thirty (30) days after the drilling of said well has been completed, and thereafter, when necessary, such completed wells shall be serviced by portable derricks.

5. That the drilling site shall be fenced or landscaped as prescribed by the Zoning Administrator. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

6. **(None)**

7. That, except in case of emergency, no materials, equipment, tools or pipe used for either drilling or production operations shall be delivered to or removed from the drilling site, except between the hours of 8:00 a.m. and 8:00 p.m. of any day.

8. That adequate fire fighting apparatus and supplies, approved by the Fire Department, shall be maintained on the drilling site at all times during drilling and production operations.

9. That no refining process or any process for the extraction of products from natural gas shall be carried on at a drilling site.

10. **(None)**

11. **(None)**

12. **(None)**

13. That no more than one well shall be bottomed in each five (5) acres of the drilling district.

14. That no new oil wells shall be spudded in after the President of the United States, or other proper authority, has declared that a state of war no longer exists.

15. **(None)**

16. **(None)**

17. That any person requesting a determination by the Zoning Administrator prescribing the conditions under which oil drilling and production operations shall be conducted as provided in Subsection H., shall agree in writing on behalf of the person and the person's successors or assigns, to be bound by all of the terms and conditions of this article and any conditions prescribed by written determination by the Zoning Administrator; provided, however, that the agreement in writing shall not be construed to prevent the applicant or the applicant's successors or assigns from applying at any time for amendments pursuant to this Article or to the conditions prescribed by the Zoning Administrator, or from applying for the creation of a new district or an extension of time for drilling or production operations. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

18. That all production equipment used shall be so constructed and operated that no noise, vibration, dust, odor or other harmful or annoying substances or effect which can be eliminated or diminished by the use of greater care shall ever be permitted to result from production operations carried on at any drilling site or from anything incident thereto to the injury or annoyance of persons living in the vicinity; nor shall the site or structures thereon be permitted to become dilapidated, unsightly or unsafe. Proven technological improvements in methods of production shall be adopted as they, from time to time, become available if capable of reducing factors of nuisance or annoyance.

19. Wells which are placed upon the pump shall be pumped by electricity with the most modern and latest type of pumping units of a height of not more than sixteen (16) feet. All permanent equipment shall be painted and kept in neat condition. All production operations shall be as free from noise as possible with modern oil operations.

20. All drilling equipment shall be removed from the premises immediately after drilling is completed, sump holes filled, and derricks removed within sixty (60) days after the completion of the well.

21. That, subject to the approval of the Board of Fire Commissioners, the operators shall properly screen from view all equipment used in connection with the flowing or pumping of wells.

22. Upon the completion of the drilling of a well the premises shall be placed in a clean condition and shall be landscaped with planting of shrubbery so as to screen from public view as far as possible, the tanks and other permanent equipment, such landscaping and shrubbery to be kept in good condition.

23. That not more than two wells may be drilled in each city block of the drilling district and bottomed under that block. However, at the discretion of the Zoning Administrator, surface operations for additional wells may be permitted in each of the blocks where each additional well is to be directionally drilled and bottomed under an adjacent block now or hereafter established in an oil drilling district in lieu of a well drilled on the adjacent block and under a spacing program which will result in not exceeding two wells bottomed under each block. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

24. That not more than one (1) well shall be drilled in each city block of the drilling district; provided, however, that a second well may be drilled in that block bounded by "L", Gulf Avenue, Denni Street and Wilmington Boulevard, only in the event said second well be directionally drilled or whipstocked so that the bottom of the hole will be bottomed under the (Gulf Avenue School property located in the block bounded by "L" Street, Roman Avenue, Denni Street and Gulf Avenue, and in lieu of a well which might otherwise be permitted to be drilled in said last mentioned block.

25. That not more than one (1) well may be drilled in each city block of the drilling district.

26. That all power operations other than drilling in said district shall at all times be carried on only by means of electrical power, which power shall not be generated on the drilling site.

27. **(None)**

28. **(None)**

29. That not more than two (2) wells may be drilled in each city block of the drilling district; provided, however, that two (2) additional wells may be drilled in each of the following described blocks, (a) the block bounded by Q Street, Lakme Avenue, Sandison Street and Broad Avenue and (b) the block bounded by Sandison Street, Lakme Avenue, Broad Avenue and the southerly boundary of Tract No. 1934, but only if such additional wells are directionally drilled or whipstocked so that they will be bottomed under the Hancock-Banning High school property, located in the block bounded by Delores Street, Broad Avenue, Pacific Coast Highway and Avalon Boulevard, in lieu of the four (4) wells which might otherwise be permitted to be drilled in the last mentioned block.

30. **(None)**

31. Not more than four (4) controlled drilling sites shall be permitted in this district, and such sites shall not be larger than two (2) acres.

32. The number of wells which may be drilled to any oil sand from the controlled drilling site shall not exceed one (1) well to each five (5) acres in the district, but in no event shall there be more than one (1) well to each two and one-half (2 1/2) acres.

33. That drilling operations shall be commenced within 90 days from the effective date the written determination is made by the Zoning Administrator or Area Planning Commission, or within any additional period as the Zoning Administrator may, for good cause, allow and thereafter shall be prosecuted diligently to completion or else abandoned strictly as required by law and the premises restored to their original condition as nearly as practicable as can be done. If a producing well is not secured within eight months, the well shall be abandoned and the premises restored to its original condition, as nearly as practicable as can be done. The Zoning Administrator, for good cause, shall allow additional time for the completion of the well. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

34. That an internal combustion engine or electrical equipment may be used in the drilling or pumping operations of the well, and if an internal combustion engine is used, that mufflers be installed on the mud pumps and engine so as to reduce noise to a minimum, all of said installations to be done in a manner satisfactory to the Fire Department.

35. **(None)**

36. That not more than two (2) production tanks shall be installed for each producing well, neither one of which shall have a rated capacity in excess of one thousand (1,000) barrels; provided, however, that if in the opinion of the Administrator it is necessary in order to provide for the maximum safety of operations or to decrease the number of individual production tank settings on any property, the Administrator may increase the number of such production tanks to not more than three (3), having a greater capacity not to exceed two thousand (2,000) barrels each. The Administrator shall permit such wash tanks or heating facilities as may appear necessary to ship or remove production from the premises. The plans for said tank or tanks, including the plot plan showing the location thereof on the property, shall be submitted to and approved in writing by the Administrator before said tank or tanks and appurtenances are located on the premises; and that said tank or tanks and appurtenances shall be kept painted and maintained in good condition.

37. All waste substances such as drilling muds, oil, brine or acids produced or used in connection with oil drilling operations or oil production shall be retained in water-tight receptors from which they may be piped or hauled for terminal disposal in a dumping area specifically approved for such disposal by the Los Angeles Regional Water Pollution Control Board No. 4.

38. Any wells drilled shall be cased tight to bedrock or effective means satisfactory to the Department of Water and Power used to prevent vertical movement of ground water.

39. The applicant shall provide the Department of Water and Power with a precise plot plan of the drilling plant and roads leading thereto, and to make such safeguards as the Department deems necessary to assure the safety of the existing 50" water main which crosses the district involved.

40. The Department of Water and Power of the City of Los Angeles shall be permitted to review and inspect methods used in the drilling and producing operations and in the disposal of waste, and shall have the right to require changes necessary for the full protection of the public water supply.

41. **(None)**

42. That the number of wells which may be drilled to any oil sand shall not exceed one (1) well to each five (5) acres in the district, but in no event shall there be more than one (1) well to each two and one-half acres.

43. That drilling, pumping and other power operations shall at all times be carried on only by electrical power and that such power shall not be generated on the controlled drilling site or in the district.

44. That an internal combustion engine or steam-driven equipment may be used in the drilling or pumping operations of the well, and, if an internal combustion engine or steam-driven equipment is used, that mufflers be installed on the mudpumps and engine; and that the exhaust from the steam-driven machinery be expelled into one of the production tanks, if such tanks are permitted, so as to reduce noise to a minimum, all of said installations to be found in a manner satisfactory to the Fire Department.
45. That drilling operations shall be carried on or conducted in connection with only one well at a time in any one such district, and such well shall be brought in or abandoned before operations for the drilling of another well are commenced; provided, however, that the Administrator may permit the drilling of more than one well at a time after the discovery well has been brought in.
46. That all oil drilling and production operations shall be conducted in such a manner as to eliminate, as far as practicable, dust, noise, vibration or noxious odors, and shall be in accordance with the best accepted practices incident to drilling for and production of oil, gas and other hydrocarbon substances. Proven technological improvements in drilling and production methods shall be adopted as they may become, from time to time, available, if capable of reducing factors of nuisance and annoyance.
47. That all parts of the derrick above the derrick floor not reasonably necessary for ingress and egress including the elevated portion thereof used as a hoist, shall be enclosed with fire-resistive soundproofing material approved by the Fire Department, and the same shall be painted or stained so as to render the appearance of said derrick as unobtrusive as practicable.
48. That all tools, pipe and other equipment used in connection with any drilling or production operations shall be screened from view, and all drilling operations shall be conducted or carried on behind a solid fence, which shall be maintained in good condition at all times and be painted or stained so as to render such fence as unobtrusive as practicable.
49. That no materials, equipment, tools or pipe used for either drilling or production operations shall be delivered to or removed from the controlled drilling site except between the hours of 8:00 o'clock a.m. and 6:00 o'clock p.m., on any day, except in case of emergency incident to unforeseen drilling or production operations, and then only when permission in writing has been previously obtained from the Administrator.
50. That no earthen sumps shall be used.
51. That within sixty (60) days after the drilling of each well has been completed, and said well placed on production, or abandoned, the derrick, all boilers and all other drilling equipment shall be entirely removed from the premises unless such derrick and appurtenant equipment is to be used within a reasonable time limit determined by the Administrator for the drilling of another well on the same controlled drilling site.
52. That no oil, gas or other hydrocarbon substances may be produced from any well hereby permitted unless all equipment necessarily incident to such production is completely enclosed within a building, the plans for said building to be approved by the Department of Building and Safety and the Fire Department. This building shall be of a permanent type, of attractive design and constructed in a manner that will eliminate as far as practicable, dust, noise, noxious odors and vibrations or other conditions which are offensive to the senses, and shall be equipped with such devices as are necessary to eliminate the objectionable features mentioned above. The architectural treatment of the exterior of such building shall also be subject to the approval of the Administrator.
53. That no oil, gas or other hydrocarbon substances may be produced from any well hereby permitted where same is located within or immediately adjoining subdivided areas where ten (10) percent of the lots or subdivided parcels of ground, within one-half (1/2) mile radius thereof, are improved with residential structures, unless all equipment necessarily incidental to such production is countersunk below the natural surface of the ground and such installation and equipment shall be made in accordance with Fire Department requirements.
54. That there shall be no tanks or other facilities for the storage of oil erected or maintained on the premises and that all oil products shall be transported from the drilling site by means of an underground pipe line connected directly with the production pump without venting products to the atmospheric pressure at the production site.
55. That not more than two production tanks shall be installed on said drilling site, neither one of which shall have a rated capacity in excess of one thousand (1000) barrels; that the plans for said tank or tanks, including the plot plans showing the location thereof on the property, shall be submitted to and approved in writing by the Administrator before said tank or tanks and appurtenances are located on the premises, and that said tank or tanks and appurtenances shall be kept painted and maintained in good condition at all times.
56. That any production tanks shall be countersunk below the natural surface of the ground and the installation thereof shall be made in accordance with safety requirements of the Fire Department.
57. That no refinery, dehydrating or absorption plant of any kind shall be constructed, established or maintained on the premises at any time.
58. That no sign shall be constructed, erected, maintained or placed on the premises or any part thereof, except those required by law or ordinance to be displayed in connection with the drilling or maintenance of the well.

59. That suitable and adequate sanitary toilet and washing facilities shall be installed and maintained in a clean and sanitary condition at all times.

60. That any owner, lessee or permittee and their successors and assigns, must at all times be insured to the extent of one hundred thousand dollars (\$100,000) against liability in tort arising from drilling or production, or activities or operations incident thereto, conducted or carried on under or by virtue of the conditions prescribed by written determination by the Administrator as provided in Subsection H. of this section. The policy of insurance issued pursuant hereto shall be subject to the approval of the City Attorney, and duplicates shall be furnished to the City Attorney. Each such policy shall be conditioned or endorsed to cover such agents, lessees or representatives of the owner, lessee or permittee as may actually conduct drilling, production or incidental operations permitted by such written determination by the Administrator.

61. **(None)**

62. All onshore drilling and production installations or facilities shall be removed and the premises restored to their original conditions after all oil and gas wells have been abandoned, unless the City Planning Commission determines otherwise. **(Amended by Ord. No. 142,081, Eff. 7/22/71.)**

63. **(None)**

64. **(None)**

G. Description of Districts. **(Added by Ord. No. 123,825, Eff. 4/4/64.)** The districts within which the drilling for and production of oil, gas or other hydrocarbon substances is permitted, and the conditions applying thereto (subject to further conditions imposed by the Administrator in the drilling site requirements), are described as follows:

1. **Districts in Non-urbanized Areas.** (For boundaries of districts and special conditions applicable thereto, refer to maps and records in City Planning Office).

2. **Districts in Urbanized Areas.** (For boundaries of districts and special conditions applicable thereto, refer to maps and records in City Planning Office).

3. **Districts in Offshore Areas.** (For boundaries of districts and special conditions applicable thereto, refer to maps and records in City Planning Office.) **(Added by Ord. No. 130,339, Eff. 7/30/65.)**

4. **Districts in the Los Angeles City Oil Field Area.** (For boundaries of such districts and any conditions applicable thereto, refer to maps and records in the City Planning Office.) **(Added by Ord. No. 156,166, Eff. 1/24/82.)**

H. Drilling Site Requirements. Any person desiring to drill, deepen or maintain an oil well in an oil drilling district that has been established by ordinance, or to drill or deepen and subsequently maintain an oil well in the M3 Zone within 500 feet of a more restrictive zone shall file an application in the Department of City Planning on a form provided by the Department, requesting a determination of the conditions under which the operations may be conducted. **(Para. Amended by Ord. No. 173,492, Eff. 10/10/00.)**

Where the district is in an urbanized or off-shore area, a Zoning Administrator, after investigation, may deny the application if the Zoning Administrator finds that there is available and reasonably obtainable in the same district or in an adjacent or nearby district within a reasonable distance one or more locations where drilling could be done with greater safety and security with appreciably less harm to other property, or with greater conformity to the comprehensive zoning map. A Zoning Administrator shall deny an application for a drill site in an urbanized or off-shore area unless the applicant first files with the Zoning Administrator in a form and executed in a manner approved by a Zoning Administrator

(1) either of the following continuing written offers

(a) to make the drill site available to competing operators upon reasonable terms, or

(b) to enter into or conduct joint operations for a unit or cooperative plan of development of hydrocarbon reserves upon reasonable terms, if whichever course offered is determined to be feasible by a Zoning Administrator, and is subsequently required by a Zoning Administrator in order to effectuate the above set forth purposes, and

(2) an agreement to abide by the determination of the Board of Public Works or its designee if any dispute arises as to the reasonableness of those terms after first having an opportunity to be heard. Where the district is in a nonurbanized area, in the Los Angeles City Oil Field Area, or in those cases where a Zoning Administrator approves an application in an urbanized or off-shore area, a Zoning Administrator shall determine and prescribe additional conditions or limitations, not in conflict with those specified in the ordinance establishing the district, which the Zoning Administrator deems appropriate in order to give effect to the provisions of this section and to other provisions of this chapter relating to zoning. Where the proposed operation is in the M3 Zone and is within 500 feet of a more restrictive zone, a Zoning Administrator shall prescribe conditions and limitations, if any, as the Zoning Administrator deems appropriate to regulate activity which may be materially detrimental to property in the more restrictive zone. All conditions previously imposed by a Zoning Administrator in accordance with the provisions of this chapter are continued in full force and effect. **(Amended by Ord. No. 185,205, Eff. 11/22/17.)**

A Zoning Administrator shall make their written determination within 60 days from the date of the filing of an application and shall forthwith transmit a copy to the applicant.

The determination shall become final after an elapsed period of 15 days from the mailing of the notification to the applicant, unless an appeal is filed within that period, in which case the provisions of Section 12.24 B. through I. concerning the filing and consideration of appeals shall apply.

I. Permits. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) No person shall drill, deepen or maintain an oil well or convert an oil well from one class to the other and no permits shall be issued for that use, until a determination has been made by the Zoning Administrator or Area Planning Commission pursuant to the procedure prescribed in Subsection H. of this section.

J. Termination of District. Any ordinance establishing the districts described in this section shall become null and void one year after the effective date thereof unless oil drilling operations are commenced and diligently prosecuted within such one-year period; provided, however, a Zoning Administrator, upon recommendation of the Board of Public Works or its designee, may extend the termination date for four consecutive additional periods not to exceed one year each, prior to the termination date of each period, if written request is filed therefor with the office of the Zoning Administration setting forth the reasons for said request and a Zoning Administrator determines that good and reasonable cause exists therefor. **(Amended by Ord. No. 185,205, Eff. 11/22/17.)**

Similarly, a Zoning Administrator, upon recommendation of the Board of Public Works or its designee, may extend the termination date for three consecutive additional periods not to exceed one year each, prior to the termination date of each period, for those districts which are part of a group undergoing development from one or more common controlled drilling sites, provided that written request is filed, which sets forth the reasons for the request therefor and the Zoning Administrator determines that good and reasonable cause exists therefor, and providing further that drilling operations have been diligently prosecuted from the common controlled drilling site during the previous extension period. Additional one-year extensions may be made by a Zoning Administrator subject to the approval of the City Planning Commission. **(Amended by Ord. No. 185,205, Eff. 11/22/17.)**

Any ordinance establishing an urbanized oil district shall become null and void one year after all wells drilled in the district after the effective date of said ordinance have been abandoned in accordance with legal requirements, unless a Zoning Administrator determines that the district is part of a group undergoing development from one or more common, controlled drilling sites, or on the basis of sufficient proof determines that production is allocated thereto from an adjacent, adjoining or near by drilling district or districts under a unit or pooling agreement. In such cases a Zoning Administrator may if the Zoning Administrator finds that good and reasonable cause exists therefor, extend the termination date of the expiring district to coincide with the termination date of the other district or districts in which the one or more common controlled drilling sites are located or from which production is allocated under a unit or pooling agreement. A Zoning Administrator may terminate any such district when the reasons for such extension no longer apply. **(Amended by Ord. No. 134,135, Eff. 4/28/67.)**

Any ordinance establishing a non-urbanized district or district in the Los Angeles City Oil Field Area shall become null and void one year after all wells in the district have been abandoned in accordance with legal requirements, unless the Zoning Administrator, on the basis of sufficient proof, determines that the district is part of a group in which secondary hydrocarbon recovery operations are taking place, and that production from an adjoining or adjacent district is allocated thereto under a unit or pooling agreement. In such cases, a Zoning Administrator may, if the Zoning Administrator finds that good and reasonable cause exists therefor, extend the termination date to coincide with the termination date of the adjoining or adjacent district in which secondary recovery operations are being conducted. A Zoning Administrator may terminate any such district when the reasons for said extension no longer apply. **(Amended by Ord. No. 156,166, Eff. 1/24/82.)**

Zoning ordinance, prohibiting drilling of wells on tracts recently included in residential zone not an unreasonable exercise of police power and does not deprive lessee which acquired lease prior to zoning of property without due process.

Marblehead Land Co. v. City of Los Angeles, 47 Fed. 2d 528.

Cromwell-Franklin Oil Co. v. Oklahoma City, 14 F.S. 370.

Beverly Oil Co. v. City of Los Angeles, 40 Cal. 2d 552.

Pacific Palisades Assn. v. City of Huntington Beach, 196 Cal. 211.

K. Maintenance of Drilling and Production Sites. (Added by Ord. No. 119,399, Eff. 8/3/61.) Effective August 1, 1962, the following regulations shall apply to existing and future oil wells within the City of Los Angeles, including oil wells operating pursuant to any zone variance, whether by ordinance or approval of a Zoning Administrator, and all oil wells in an M3 Zone which are within 500 feet of a more restrictive zone:

1. All stationary derricks, including their floors and foundations, shall be removed within 30 days after completion or abandonment of the well (notwithstanding any other provisions of this Code to the contrary) or by September 1, 1962, whichever occurs later; and thereafter any work done on any existing well which requires the use of a derrick shall be done by a temporary or portable derrick. Such temporary or portable derricks shall be removed within 30 days after the completion of such work.

2. The motors, engines, pumps and tanks of all such oil wells shall be sealed so that no offensive or obnoxious odor or fumes can be readily detected from any point on adjacent property.

3. The well pumping equipment for such wells shall be muffled or soundproofed so that the noise emanating therefrom, measured from any point on adjacent property, is no more audible than surrounding street traffic, commercial or industrial noises measured at the same point.

4. The maximum height of the pumping units for such wells shall not exceed 15 feet above existing grade level.

5. The site of such wells shall be so landscaped, fenced or concealed that the well and all of its appurtenant apparatus is reasonably protected against public entry, observation or attraction.

In addition to any other authority vested in the Zoning Administrator by Charter and the Los Angeles Municipal Code, a Zoning Administrator may waive or modify these regulations if the drilling site is physically inaccessible to a portable derrick, or is located in a mountainous and substantially uninhabited place, or is located in an M Zone and is surrounded by vacant land or is adjacent to land used as permitted in the M Zones and if the enforcement of such regulations would be discriminatory, unreasonable or would impose a undue hardship upon oil drilling in such locations. A Zoning Administrator may also waive or modify the 16-foot height limitation where, because of the amount of liquid to be raised or the depths at which such fluids are encountered, pumping unit in excess of 16 feet in height is shown by conclusive engineering evidence to be required. **(Amended by Ord. No. 125,877, Eff. 11/29/63.)**

All ordinances and parts of ordinances of the City of Los Angeles in conflict herewith are hereby repealed to the extent of such conflict.

SEC. 13.02. "S" ANIMAL SLAUGHTERING DISTRICTS.

A. Application. The provisions of this section shall apply to the districts wherein animal slaughtering is permitted.

B. Conditions. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)** In the ordinance establishing an animal slaughtering district, the Council may impose conditions as it deems necessary and proper. In its report to the Council relative to the establishment of a district, the City Planning Commission may suggest conditions for consideration.

C. (Initiative Ordinance No. 10,999, as amended by Ordinance No. 36,675, (N.S.) repealed by voters April 5, 1977).

D. Other Districts. In addition to the districts established by Subsection C. of this section, other districts within which animal slaughtering is permitted and the conditions applying thereto shall be subject to the approval of development plans by the Administrator. **(Amended by Ord. No. 177,103, Eff. 12/18/05.)**

E. Development Plans. Prior to the erection or enlargement of any building in any animal slaughtering district and prior to the development of an animal slaughtering plant in a new district established in accordance with the provisions in this section, plans for the use shall first be submitted to and approved by the Zoning Administrator. In approving the plans, the Zoning Administrator may require changes and additional improvements in connection with the proposed development as the Zoning Administrator deems necessary in order to give effect to the provisions of this section and to other provisions of this chapter relating to zoning, and which are not in conflict with the conditions specified in the ordinance establishing the district. Any determination by the Zoning Administrator may be appealed to the Area Planning Commission as provided for in Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

F. Permits – No permit shall be issued for the development of an animal slaughtering plant, or for the erection, enlargement or maintenance of buildings for animal slaughtering purposes, and no person shall perform any such development or construction work, except in full compliance with plans approved by the Administrator as herein provided.

SEC. 13.03. "G" SURFACE MINING OPERATIONS DISTRICTS.

(Title and Sec. Amended by Ord. No. 173,106, Eff. 3/5/00.)

A. Purpose and Objectives. The City recognizes that the extraction of Minerals is essential to the continued economic well-being of the City and to the needs of society.

It is the purpose of this section to:

Establish reasonable and uniform limitations, safeguards, and controls in the City for the future production of Minerals to safeguard the public interest;

Permit production in all Districts irrespective of the regulations of the Comprehensive Zoning Plan;

Provide for the Reclamation of Mined Lands in order to prevent or minimize adverse effects on the environment and to protect the public health and safety;

Recognize that Surface Mining Operations take place in diverse areas where the geologic, topographic, climatic, biological, and social considerations are significantly different;

Recognize that Reclamation to return Mined Lands to a usable condition which is readily adaptable for alternative land uses are significantly different and that their specifications may vary accordingly;

Ensure the continued availability of important Mineral resources, while regulating Surface Mining Operations as required by

the Act;

Effect practices which will provide for more economic conservation and production of Minerals; and

Take into consideration the surface use of land, as such uses are indicated by:

The value and character of the existing improvements within 500 feet of Districts where production is permitted;

The desirability of the area for residential, recreation, watershed, wildlife, aesthetic enjoyment, or other uses; or

Other factors directly relating to the public health, comfort, safety, and welfare in Districts.

When the provisions of this section are more restrictive than the correlative state provisions, the provisions of this section shall control.

B. Definitions. The following definitions shall apply to this section:

Abandonment of Operation. Failure to conduct Surface Mining Operations, either under Permit or as a Vested right, for a period of nine consecutive months.

Act. The Surface Mining and Reclamation Act (SMARA) of 1975 (Public Resources Code Section 2710 et seq.), as amended; Public Resources Code Section 2207 relating to annual reporting requirements; and State Board regulations for Surface Mining Operations and Reclamation practice (California Code of Regulations [CCR], Title 14, Division 2, Chapter 8, Subchapter 1, Sections 3500 et seq.)

Borrow Pit. An excavation created by Surface Mining Operations of rock, unconsolidated geologic deposits, or soil to provide material (Borrow) for fill elsewhere.

Commission. (Added by Ord. No. 173,492, Eff. 10/10/00.) Commission shall mean the City Planning Commission.

Completed Operations (Completion of Operations). When all rock and gravel in commercial quantities is entirely extracted, produced, and removed from a property within a District, or the operations allowed by Permit are Completed, whichever occurs first.

District. Any Surface Mining Operations District established pursuant to the provisions of this section.

Exploration. The search for Minerals by geological, geophysical, geochemical or other techniques, including but not limited to sampling, assaying, drilling, or other surface or underground works needed to determine the type, extent, or quality of Minerals present.

Idle. Mineral production, with the intent to resume those Surface Mining Operations at a future date.

Mined Lands. The surface, subsurface, and ground water of an area in which Surface Mining Operations will be, are being, or have been conducted, including private ways and roads appurtenant to any such area; land excavations; workings; Mining Waste; and areas in which structures, facilities, equipment, machines, tools, or other materials or property which result from, or are used in, Surface Mining Operations are located.

Mineral. Any naturally occurring chemical element or compound or groups of elements and compounds formed from inorganic processes and organic substances, including but not limited to coal, peat, and bituminous rock, but excluding geothermal resources, natural gas, and petroleum. Minerals shall specifically include rock, sand, gravel, aggregate, and clay.

Mining Waste. The residual of soil, rock, Mineral, liquid, vegetation, equipment, machines, tools, or other matters or property directly resulting from or displaced by Surface Mining Operations.

Operator. Any Person who is engaged in Surface Mining Operations or who contracts with others to conduct Surface Mining Operations on the Person's behalf, except a Person who is engaged in Surface Mining Operations as an employee with wages as the Person's sole compensation.

Overburden. Soil, rock, or other Minerals that lie above a natural Mineral deposit or in between Mineral deposits before or after their removal by Surface Mining Operations.

Owner. The holder of fee title to property in a District, and lessees, Permittees, assignees, or successors in interest to the holder of fee title.

Permit. Any formal authorization from, or approval by, a lead agency, the absence of which would preclude Surface Mining Operations.

Permittees. Holder of a permit.

Person. In addition to the definition contained in Section 11.01 of this Code, Person shall include any city, county, district, or the state of California, or any department or agency of and of them.

Prospecting. Exploration.

Reclamation. The combined process of land treatment that minimizes water degradation, air pollution, damage to aquatic or wildlife habitat, flooding, erosion, and other adverse effects from Surface Mining Operations, including adverse surface effects incidental to underground mines, so that Mined Lands are reclaimed to a usable condition which is readily adaptable for alternative land uses and create no danger to public health or safety. The processes may extend to affected lands surrounding Mined Lands and may require backfilling, grading, resoiling, revegetation, soil compaction, stabilization, and/or other measures.

SMARA. The Surface Mining and Reclamation Act of 1975, as amended. The Act.

State Board. The state Mining and Geology Board in the Department of Conservation, State of California.

State Geologist. The individual designated pursuant to Section 677 of the California Public Resources Code or any amendment to that Code.

Stream Bed Skimming. Excavation of sand and gravel from stream bed deposits above the mean summer water level or stream bottom, whichever is higher.

Surface Mining (Operations). All or any part of the process involved in the mining, quarrying, and/or excavating of Minerals on Mined Lands by removing Overburden and mining directly from the Mineral deposits; open pit mining of materials naturally exposed; mining by auger method, dredging, and quarrying; or surface work incidental to an underground mine. Surface Mining Operations shall also include, but are not limited to: processing of Minerals; in place distillation, retorting, or leaching; the production and disposal of Mining Wastes; Prospecting and exploratory activities; Borrow Pitting; Streambed Skimming; and segregation and stockpiling of mined Minerals and the recovery of same.

Vested. A project that diligently commenced Surface Mining Operations and incurred substantial liabilities for work and materials, prior to January 1, 1976, in good faith and reliance upon an authorization, if one was required. Expenses incurred in obtaining the enactment of an ordinance or issuance of an authorization relating to a particular Surface Mining Operation shall not be deemed liabilities for work or materials.

C. Establishment of Districts.

1. The provisions of this section shall apply to Districts where Surface Mining Operations are Permitted. The Council may establish new Surface Mining Districts and alter the boundaries of Districts now or hereafter established, provided they are consistent with any existing Surface Mining Operations Permits.

2. For the boundaries of Districts, see the maps on file in the Planning Department.

D. Permits.

1. A Permit for Surface Mining Operations shall be issued only for property located in a Surface Mining District.

2. No Permit shall be required for those Persons who have obtained a Vested right to continue Surface Mining Operations prior to January 1, 1976. However, no substantial change may be made in the Surface Mining Operation without securing a new Permit. These Surface Mining Operations shall be subject to those limitations set forth in Subdivision 4. of this subsection, and any conditions imposed by the City Planning Commission ("**Commission**") or Council on any pre-existing Permit.

3. No Person shall engage in Surface Mining Operations without having obtained a Permit issued by the Commission or Council to engage in Surface Mining Operations, approval of a Reclamation plan, and approved financial assurances for Reclamation.

4. All Surface Mining Operations, whether under Permit or Vested, shall be conducted subject to the following conditions:

(a) All equipment used in Surface Mining Operations shall be constructed, maintained, and operated in such a manner as to eliminate, as far as practicable, noise, vibration, odor, smoke, dust, and the like, which are injurious or annoying to Persons living or working in the vicinity.

(b) No Surface Mining Operations shall be Permitted closer than 50 feet to the boundary of a District; closer than 500 feet to any residentially zoned property unless a landscaped berm is constructed and maintained along the property line, in which case the setback may be 50 feet; closer than 50 feet to the boundary of an adjoining property, unless Surface Mining Operations are Permitted on the adjoining property, in which case the property may be excavated to the property line with the written consent of the adjacent Owner; or closer than 50 feet to a Street (including an alley or walk), Highway, or freeway. If the Commission or Council finds that these criteria would be impracticable due to the small extent of the District, economically infeasible, or not required by the Surface Mining Operation, the Commission or

Council may waive these requirements in whole or in part.

(c) No Surface Mining Operations from an open pit shall be Permitted which creates a final perimeter slope steeper than one foot horizontal to one foot vertical.

(d) Surface Mining Operations shall be conducted in accordance with applicable standards of the Regional Water Quality Control Board and/or any other agency with jurisdiction over water quality

(e) Mined Lands shall be enclosed along their exterior by a fence, wall, landscaping, berm, or combination of these features, which shall screen the Surface Mining Operations from adjoining property. Enclosures shall be designed, constructed, and maintained to be consistent with the Flood Hazard Management Specific Plan. If the Commission determines that the enclosure would be impracticable because of the location of the Mined Lands in the bed or flood channel of a wash or water course, or because one or more boundaries are located immediately adjacent to M2 or less restrictively zoned property, this requirement may be waived by the Commission.

(f) Whenever production on any Property is Abandoned or Surface Mining Operations Completed, all plants, buildings, structures (except fences), and equipment shall be entirely removed from the property, and all stockpiles shall be removed or backfilled into the pit within one year of Abandonment of Operations or completion of Surface Mining Operations. This provision shall not apply to any plants, buildings, structures, or equipment whenever any rock and gravel or other Minerals are available in the same District from other properties owned by the Operator which is processing by or through any of these plants, buildings, structures, or equipment.

(g) No Surface Mining Operations shall be conducted on any property except between the hours of 6 a.m. and 8 p.m., except in case of an emergency or whenever any reasonable or necessary repairs to equipment are required to be made. Surface Mining Operations in an M-3 zone and more than 1,200 feet from any residential use may be conducted between the hours of 5 a.m. and 10 p.m.

(h) Every Operator, before commencing Surface Mining Operations within any District, shall be insured to the extent of \$500,000 against liability arising from Surface Mining Operations or activities incidental to them. The insurance shall be kept in full force and effect during the period of Surface Mining Operations, including Reclamation.

(i) In granting Surface Mining Operations Permits, the Commission or Council:

(1) Shall impose other and further conditions and limitations regarding Surface Mining Operations as are set forth in the General Plan and any applicable specific plans. Special emphasis shall be given to applicable community plans.

(2) Shall impose other and further conditions as are authorized by the Act, are authorized by policies adopted by the State Board, or which are necessary for the public health, safety, and welfare.

(3) May impose other conditions to address the circumstances of any individual District or its surroundings. In the case of conflicts between the conditions of this section and those of Subparagraphs (1) and (2) above, the more restrictive shall control.

E. Application. An application for a Permit to conduct Surface Mining Operations shall contain at a minimum the following information:

1. Site Analysis:

(a) A comprehensive soils engineering and engineering geologic investigation report prepared by a registered civil engineer and a certified engineering geologist, who shall not be employees of the applicant. The report shall indicate the type and features of Overburden and Minerals expected to be extracted and Mining Waste generated by the proposed Surface Mining Operations, and recommendations relative to setbacks, slopes, and excavations.

(b) A geographic report which shall include a recent aerial photograph of the site of the proposed Surface Mining Operations, and a map or maps and notes which illustrate the following:

(1) Property lines and lease lines, including a legal description of the site.

(2) The existing topography of the site and land within 500 feet of the site, and any structures, watercourses, levees, drainage facilities, utility easements and facilities, roads, and driveways existing within this area.

(3) The location and condition of any Abandoned pits and previously mined areas on the site.

(4) Any other information that may be required to adequately characterize the site.

2. Operations Analysis:

(a) **A description of the proposed Surface Mining Operations in all of its phases.** The document shall include the following:

- (1) A phasing plan and schedule showing the approximate starting date, the proposed increments of extraction, and the sequence in which these increments will be accomplished.
- (2) A map of the areas to be excavated and typical cross sections of slopes to be formed or modified.
- (3) The depth of all proposed excavations.
- (4) The location of all proposed structures, including processing plants and appurtenant equipment and fences, and their various relocation sites, where these facilities are proposed to be relocated during the Permit period.
- (5) Existing vegetation.
- (6) Landscaping to be provided, if any, in addition to that indicated on the Reclamation plan.
- (7) Details of plans for storage of Overburden and Mining Waste, including maps showing areas anticipated to be used for storage.
- (8) Proposed points for ingress and egress, haul roads, driveways, and parking areas on the site.

(b) **A drainage and erosion control plan.** This document shall illustrate the following:

- (1) The location and approximate depth of proposed settling basins, desilting ponds, recycling ponds, and other bodies of water. Where these facilities are proposed to be relocated over the course of the life of the Permit, their various proposed locations shall be shown.
- (2) The historic groundwater level and anticipated annual fluctuation of water levels in all areas to be excavated.
- (3) Methods to be taken for the disposition of drainage and for the control of erosion and sedimentation.
- (4) Provisions to be taken for the conservation and protection of groundwater.
- (5) Approvals obtained or required from the appropriate Regional Water Quality Control Board.
- (6) Any other information that may be required to adequately characterize drainage and erosion.

(c) **A vehicular access plan.** This document shall illustrate the following:

- (1) The points of ingress and egress to the site; the Streets and Highways to be used by vehicles going to and coming from the site; and the type, size, and number of vehicles anticipated on a daily basis.
- (2) Minimizing or precluding additional vehicular traffic over local residential Streets.

(d) Any other information that may be required to adequately characterize vehicular access.

3. **Reclamation Plan:**

(a) If portions of the information and documentation is included in the site analysis and/or operations analysis, the Reclamation plan may refer to the site analysis and/or operations analysis. The Reclamation plan shall include:

- (1) The names and addresses of the Operator.
- (2) The names and addresses of each Owner of any interest in the site on which Surface Mining Operations are or will be operated, the names and addresses of any Persons designated by the Operator as the Operator's agents for the service of process, and the name and address of the managing employee.
- (3) The anticipated quantity and type of Minerals to be extracted.
- (4) The estimated time schedules for initiation and termination of Surface Mining Operations. An Operation under a Vested right shall also include a description of Surface Mining Operations occurring subsequent to January 1, 1976, including the type and quantity of Minerals extracted and location and depth of the surface drilling operations.
- (5) The maximum anticipated depth of Surface Mining Operations.

(6) The size and legal description of lands that will be affected by the anticipated Surface Mining Operation (affected lands shall include as a minimum all land within 500 feet of the Surface Mining Operation); a map that includes the boundaries and topographic details of these lands; a description of the general geography of the area; a detailed report of the geology and hydrology of the area in which Surface Mining Operations are to be conducted; the location of all streams, roads, railroads, and utility easements and facilities within and adjacent to these lands; the location of all proposed access roads to be constructed in conducting these Surface Mining Operations; and the names and addresses of the Owners of all surface interests and Mineral interests in the lands.

(7) A description of the anticipated Surface Mining Operations and an estimated time schedule showing anticipated completion of each segment of these Surface Mining Operations, so that Reclamation can be initiated at the earliest possible time on those portions of the Mined Lands that will not be subject to further disturbance by the Surface Mining Operations.

(8) A description of the proposed use or potential uses of the Mined Lands after Reclamation; the consent of the Owner to the Reclamation and proposed use; and evidence that all Owners of a possessory interest in the land have been notified of the proposed use or potential uses.

(9) A description of the manner in which Reclamation of the land, adequate for the proposed use or potential uses, will be accomplished, including:

(i) The manner in which contaminants will be controlled and Mining Waste will be disposed of.

(ii) The manner in which rehabilitation of affected stream channels and stream banks to a condition minimizing erosion and sedimentation will occur.

(iii) A topographic map showing final contours of the property after Reclamation.

(iv) A diagram showing how Reclamation will be coordinated with the Surface Mining Operations.

(v) A plan showing the types and location of revegetation to be used as part of the Reclamation.

(vi) A ground water hydrology plan and a surface water drainage plan.

(vii) An estimate of the cost of Reclamation.

(viii) An assessment of the effect the proposed Reclamation activity may have on future mining in the area.

(ix) The Person submitting a Reclamation plan shall prepare and sign a statement accepting responsibility for reclaiming the Mined Lands in accordance with the Reclamation plan. This statement shall be kept by the Department of City Planning (“**Department**”) in the Operator’s permanent record. Upon sale or transfer of the Surface Mining Operation, the new Operator shall prepare and submit a signed statement of responsibility to the Department for placement in the permanent record.

(x) The Reclamation plan shall be applicable to a specific piece of property or properties; shall be based upon the character of the surrounding area and characteristics of the property such as type of Overburden, soil stability, topography, geology, climate, stream characteristics, and principal Mineral commodities; and shall establish site-specific criteria for evaluating compliance with the approved Reclamation plan, including topography, revegetation, and sediment and erosion control.

(xi) The environmental setting of the site of Operations and the effect that possible alternate reclaimed site conditions may have upon the existing and future uses of surrounding lands.

(xii) The impact on the public health and safety, giving consideration to the degree and type of present and probable future exposure of the public to the site.

(xiii) The designed steepness and proposed treatment of Mined Lands’ final slopes shall take into consideration the physical properties of the slope material, its probably maximum water content, landscaping requirements, and other factors. In all cases, Reclamation plans shall specify slope angles flatter than the critical gradient for the type of material involved. Whenever final slopes approach the critical gradient for the type of material involved, an engineering analysis of slope stability shall be required. Special emphasis shall be placed on slope stability and design when public safety or adjacent property may be affected.

(xiv) Areas mined to produce additional materials for backfilling and grading, as well as settlement of filled areas. Where ultimate site uses include roads, building sites, or other improvements sensitive to settlement, the Reclamation plan shall include compaction of the fill materials in conformance with Section 91 of the Municipal Code.

(xv) Disposition of old equipment.

(xvi) Temporary stream or watershed diversions.

(xvii) All Reclamation plans shall comply with the Act. Reclamation plans approved after January 15, 1993; Reclamation plans for proposed new Surface Mining Operations; and any substantial amendments to previously approved Reclamation plans shall also comply with performance standards of the Act.

(xviii) Any other information that may be required to adequately characterize the Reclamation.

(b) Time for Performance.

(1) Reclamation activities shall be initiated at the earliest possible time on those portions of the Mined Lands that will not be subject to further disturbance.

(2) Interim Reclamation may be required for Mined Lands that have been disturbed and that may be disturbed again in future Surface Mining Operations.

(3) Phasing:

(i) Reclamation may be done on an annual basis, in stages compatible with continuing Surface Mining Operations, or on completion of all excavation, removal, or fill, as approved by the Commission or Council.

(ii) Each phase of Reclamation shall be specifically described in the Reclamation plan, and shall include the beginning and ending dates for each phase, all Reclamation activities required, criteria for measuring completion of specific Reclamation activities, and estimated costs for each phase of Reclamation.

(4) The Reclamation plan shall be implemented no later than six months after Surface Mining Operations are Completed, or a Permit or Vested right to conduct surface Mining Operations has been Abandoned.

(c) Financial Assurances.

(1) To ensure that Reclamation will proceed in accordance with the approved Reclamation plan, the City shall require as a condition of approval financial assurances which will be released upon satisfactory performance. The applicant may pose security in the form of a surety bond, trust fund, irrevocable letter of credit from an accredited financial institution, or other method satisfactory to the City Attorney and State Board as specified in state regulations; and which the City reasonably determined is adequate to perform Reclamation in accordance with the Surface Mining Operation's approved Reclamation plan. Financial assurances shall be made payable to the City of Los Angeles and the state Department of Conservation.

(2) Financial assurances shall be required to ensure compliance with elements of the Reclamation plan, including but not limited to revegetation and landscaping requirements, restoration of aquatic or wildlife habitat, restoration of water bodies and water quality, slope stability and erosion and drainage control, disposal of hazardous materials, and other measures if necessary.

(3) Cost estimates for financial assurances shall be submitted to the Department for review and approval prior to the Operator securing financial assurances. The Director shall forward a copy of the cost estimates, together with any documentation received supporting the amount of cost estimates, to the state Department of Conservation for review. If the state Department of Conservation does not comment within 45 days of receipt of these estimates, it shall be assumed that the cost estimates are adequate, unless the City has reason to determine that additional costs may be incurred. The Director shall have the discretion to approve the financial assurance if it meets the requirements of this section and the Act.

(4) The amount of the financial assurance shall be based upon the estimated costs of Reclamation for the years or phases stipulated in the approved Reclamation plan, including any maintenance of reclaimed areas as may be required, subject to adjustment for the actual amount required to reclaim lands disturbed by Surface Mining Operations in the upcoming year. Cost estimates should be prepared by a California registered Professional Engineer and/or other similarly licensed and qualified professionals retained by the Operator and approved by the Director. The estimated amount of the financial assurance shall be based on an analysis of physical activities necessary to implement the approved Reclamation plan, the unit costs for each of these activities, the number of units of each of these activities, and the actual administrative costs. Financial assurances to ensure compliance with revegetation, restoration of water bodies, restoration of aquatic or wildlife habitat, and any other applicable element of the approved Reclamation plan shall be based upon cost estimates that include but may not be limited to labor, equipment, materials, mobilization of equipment, administration, and reasonable profit by a commercial Operator other than the Permittee. A contingency factor of ten percent shall be added to the cost of financial assurances.

(5) In projecting the costs of financial assurances, it shall be assumed without prejudice or insinuation that the Surface Mining Operation could be Abandoned by the Operator, and consequently, the City or state Department of Conservation may need to contract with a third party commercial company for Reclamation of the site.

(6) The financial assurances shall remain in effect for the duration of the Surface Mining Operation and any additional period until Reclamation is Completed, including any maintenance required.

(7) The amount of financial assurances required of a Surface Mining Operation for any one year shall be adjusted annually to account for new lands disturbed by Surface Mining Operations, inflation, and Reclamation of lands accomplished in accordance with the approved Reclamation plan. The financial assurances shall include estimates to cover Reclamation for existing conditions and anticipated activities during the upcoming year, excepting that the Permittee may not claim credit for Reclamation scheduled for completion during the coming year.

(8) Revisions to financial assurances shall be submitted to the Director each year prior to the anniversary date for approval of the financial assurances. The financial assurance shall cover the cost of existing disturbance and anticipated activities for the next calendar year, including any required interim Reclamation. If revisions to the financial assurances are not required, the Operator shall explain, in writing, why revisions are not required.

(9) Any other information that may be required to adequately characterize the financial assurances.

4. Environmental analysis as required by the California Environmental Quality Act (CEQA) and the City's CEQA Guidelines.

F. Procedure.

1. The application for Permit shall be processed as provided in Sec. 13B.2.3. (Class 3 Conditional Use Permit) of Chapter 1A of this Code for conditional uses under the jurisdiction of the Commission, except that the notification radius shall be 1,500 feet from the exterior perimeter of the proposed project site. The application is further subject to the exceptions of Subdivisions 2. through 5. of this Subsection (procedures for state review). (**Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.**)

2. Within 30 days of the date the application is determined to be complete, a copy of the site analysis, operations analysis, and Reclamation plan shall be sent to the state Department of Conservation.

3. Whenever Surface Mining Operations are proposed in the 100- year floodplain, as shown in Zone A of the Flood Insurance Rate Maps issued by the Federal Emergency Management Agency, and within one mile, upstream or downstream, of any state highway bridge, within 30 days of the date the application is determined to be complete, a copy of the site analysis, operations analysis, and Reclamation plan shall be sent to the state Department of Transportation.

4. State Department of Conservation.

(a) Prior to taking any action to approve, conditionally approve, or deny an application submitted under this section, the Commission or Council shall certify to the state Department of Conservation that the site analysis, operations analysis, Reclamation plan, and financial assurances comply with the applicable requirements of state law, and shall submit them to the state Department of Conservation for review.

(b) The state Department of Conservation is allowed 30 days under state law to review and comment on the site analysis, operations analysis, and Reclamation plan. The state Department of Conservation is allowed 45 days under state law to review and comment on the financial assurances. Time limits of this code shall be suspended during these comment periods.

(c) If the state Department of Conservation fails to comment within the statutory time periods, the Commission or Council shall not interpret this failure as either approval or disapproval of the site analysis, operations analysis, Reclamation plan, or financial assurances.

5. Evaluation of Comments.

(a) The Commission or Council shall evaluate any written comments by the state Department of Conservation received during the statutory comment periods. Time limits of this code shall be suspended during the Commission's or Council's evaluation.

(b) A written response to the state Department of Conservation's comments shall be prepared for the Commission's or Council's approval. If the Commission's or Council's position differs from the Department of Conservation's comments, the written response shall address in detail why specific comments were not accepted.

(c) Copies of any written comments received, and responses prepared, by the Commission or Council shall be promptly forwarded to the Owner and/or Operator.

6. **Commission or Council Decision.** Within 30 days of the date of Paragraph (b) of Subdivision 5. above (regarding the Commission's or Council's responses to the state Department of Conservation), the Commission or Council shall approve, conditionally approve, or deny the site analysis, operations analysis, Reclamation plan, and/or financial assurances.

7. A Permit shall not be effective until 15 days after approval by the Commission, or after approval by the Council if the Council approval is a result of an appeal or transfer of jurisdiction.

G. Findings. In addition to the findings set forth in Sec. 13B.2.3. (Class 3 Conditional Use Permit) of Chapter 1A of this Code, a Permit shall be approved if the Commission or Council finds: **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

1. that the project complies with the Act and with the policies of the State Board for Surface Mining Operations;
2. that the proposed Surface Mining Operations will not be detrimental to the public health, safety, and welfare;
3. that the proposed Surface Mining Operations are in substantial conformance with the purposes, intent and provisions of the Open Space and the Conservation Elements of the General Plan;
4. that the drainage and erosion control plan is adequate to protect the public health, safety, and welfare;
5. that the vehicular access plan is adequate to protect the public health, safety, and welfare;
6. that the project substantially conforms with the purposes, intent and provisions of the General Plan, the applicable community plan, and with any applicable specific plan;
7. that a written response to the State Department of Conservation has been prepared, describing the disposition of major issues raised by the Department of Conservation, and where the City's position differs from the recommendations and objections raised by the Department of Conservation, the response has addressed, in detail, why specific comments and suggestions were not accepted; and
8. that regarding the Reclamation plan:
 - (a) that it complies with the Act and with the policies of the State Board for Reclamation practice;
 - (b) that it is compatible with and shall not adversely affect or further degrade adjacent properties, the surrounding neighborhood, or the public health, welfare, and safety;
 - (c) that the land and/or resources such as water bodies to be reclaimed will be restored to a condition that is compatible, and blends in with the surrounding natural environment, topography, and other resources; or that suitable off-site development will compensate for related disturbance to resource value; and
 - (d) that the Reclamation plan will restore the Mined Lands to a usable condition that is in substantial conformance with the purposes, intent and provisions of the Open Space and Conservation Elements of the General Plan.

H. Appeal. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

1. The signing of statements required by Subsection G. of this section shall not in any way affect rights to appeal the determination in whole or in part.
2. Appeals shall be processed as provided in Sec. 13B.2.3. (Class 3 Conditional Use Permit) of Chapter 1A of this Code for conditional uses under the jurisdiction of the Commission.
3. An applicant whose request for a Permit to conduct Surface Mining Operations in an area of statewide or regional significance (as determined by the State Board) has been denied, or any Person who is aggrieved by the granting of a Permit in an area of statewide or regional significance, shall have rights of appeal to the State Board as may be granted by the Act. In the case of conflicts between the determination of the Commission or Council and the determination of the State Board, the determination of the State Board shall control.

I. Exceptions. A Permit, financial assurances, and Reclamation plan are not required for:

1. Excavation or grading conducted for farming or on-site construction, or for the purpose of restoring land following a flood or a natural disaster.
2. Prospecting or Exploration for Minerals of commercial value where Overburden in the amount of less than 1,000 cubic yards is removed in any one location of one acre or less.
3. Prospecting for, or the extraction of, Minerals for commercial purposes, and the removal of Overburden in total amounts of

less than 1,000 cubic yards in any one location of one acre or less.

4. Surface Mining Operations that are required by federal law in order to protect a mining claim, if the Operations are conducted solely for that purpose.

5. Other Surface Mining Operations as the Commission determines to be of an infrequent nature, involve only minor surface disturbances, and are identified by the State Board pursuant to the Act.

6. Onsite excavation and onsite earth-moving activities which are an integral and necessary part of a construction project, which are undertaken to prepare a site for construction of structures, landscaping, or other land improvements, including the related excavation, grading, compaction; or creation of fills, road cuts, and embankments, whether or not surplus materials are exported from the site, subject to all of the following conditions:

(a) All required permits for the construction, landscaping, or related land improvements have been approved by a public agency in accordance with applicable provisions of state law and locally adopted plans and ordinances. This provision shall include compliance with CEQA and the City's CEQA Guidelines.

(b) The City's approval of the construction project included consideration of the onsite excavation and onsite earth-moving activities pursuant to CEQA and the City's CEQA Guidelines. In those instances where CEQA analysis has not otherwise been applied to the project, the procedures, although not the threshold, of Section 91.7006.8 (CEQA grading review) of the Municipal Code shall be followed.

(c) The approved construction project is consistent with the General Plan and zoning of the site.

(d) Surplus materials shall not be exported from the site unless and until actual construction work has commenced. Export shall cease if it is determined that construction activities have terminated, have been indefinitely suspended, or are no longer being actively pursued, except as provided in the procedures, although not the threshold, of Section 91.7006.7.4 (CEQA grading review) of the Municipal Code.

7. Operation of a plant site used for Mineral processing, including associated onsite structures, equipment, machines, tools, or other materials, including the onsite stockpiling and onsite recovery of mined Minerals, subject to all of the following conditions:

(a) The plant site is located in an area designated in the Land Use Element of the General Plan with a designation corresponding to the M3 Zone.

(b) The plant site is located on land zoned M3.

(c) None of the materials being processed are being extracted onsite; and

(d) All Reclamation work has been Completed pursuant to the approved Reclamation plan for any Mineral extraction activities that occurred before January 1, 1976.

8. The solar evaporation of sea water or bay water for the production of salt and related Minerals.

9. Emergency excavations or grading conducted by the state Department of Water Resources or the Reclamation Board for the purpose of averting, alleviating repairing, or restoring damage to property due to imminent or recent floods, disasters, or other emergencies, and

10. Persons who have obtained a Vested right to continue Surface Mining Operations prior to January 1, 1976, providing that:

(a) No substantial change may be made in the Surface Mining Operation without securing a new Permit. The Surface Mining Operations shall be subject to those limitations set forth in this section, and to any conditions imposed by the Commission or Council in any pre-existing Permit or authority to conduct the Operations.

(b) Persons with Vested rights shall submit to the Commission within six months after receipt of notice from the City a Reclamation plan for lands mined after January 1, 1976. The Reclamation plan shall be subject to review, hearing and approval by the Commission as provided in Subsection F. of this section.

(c) However, where a Person with Vested rights has continued Surface Mining Operations in the same area subsequent to January 1, 1976, the Person with Vested rights shall obtain the commission's approval or the approval of council on appeal of a Reclamation plan covering the Mined Lands disturbed by the subsequent Surface Mining Operations. In those cases where an overlap exists (in the horizontal and/or vertical sense) between pre-and post-Act mining, the Reclamation plan shall call for Reclamation proportional to that disturbance caused by the Mining Operations after the effective date of the Act.

(d) All other requirements of state law and this section shall apply to Vested Surface Mining Operations.

11. Nothing in this section shall be construed as requiring the reapproval of a Reclamation plan which is in substantial

conformity with the Act, approved prior to the effective date of this section.

J. Amendments. Amendments or changes to an approved Permit or Reclamation plan shall be submitted to the Commission and shall become effective only if approved by the Commission. Substantial deviations from the approved Permit or Reclamation plan shall be processed in the same manner as provided for in Subsection F. of this section.

K. Public Record. Reclamation plans, reports, applications for Permits, and other documents as described in Section 2778 of the Public Resources Code are public records unless it can be demonstrated to the satisfaction of the Commission that the release of all or part of the information would reveal production reserves or rate of depletion entitled to protection as proprietary information. Proprietary information shall be made available only to the State Geologist and to Persons authorized in writing by the Operator and/or the Owner.

L. Successors. Each subsequent Owner and/or Operator of a premise covered by a Permit, whether by sale, assignment, transfer, conveyance, exchange, or other means, shall be bound by the provisions of the approved Reclamation plan, the provisions of this section, and the Act.

M. Inspections.

1. The Director shall inspect each Surface Mining Operation at least once a year, within six months of receipt of the annual report required in Subsection O. of this section, to determine whether the Surface Mining Operation is in compliance with the approved site analysis, operations analysis, and/or Reclamation plan; approved financial assurances; and state regulations. The inspections may be made by a state-registered geologist, state-registered civil engineer, state-licensed landscape architect, or state-registered professional forester, who is experienced in land Reclamation of the type described in the Reclamation plan, and who has not been employed by the Surface Mining Operation in any capacity during the previous 12 months; or other qualified specialists, as selected by the Director. All inspections shall be conducted using a form approved by the State Board. A fee as established by Section 19.01 I. of this Code shall be charged for this inspection. The Department shall transmit a copy of the inspection report to the state Department of Conservation within thirty days of completion of the inspection.

2. The Director may authorize the Superintendent of Building to inspect each Surface Mining Operation at least once a year. An annual inspection fee as established by Section 98.0402(e)3 of this Code shall be collected by the Superintendent. An inspection may also be made by the Superintendent whenever a complaint is received by the Superintendent concerning a violation of the municipal code and/or its Permit. The Superintendent shall send notice of the inspection, and the Superintendent's findings, to the Director within five days of the performance of the inspection.

3. If a Surface Mining Operation inspected by the Superintendent of Building is found to be in violation of any provision of the municipal code and/or its Permit, the Superintendent shall send a notice to comply to the Operator within two weeks of the inspection, in accordance with the provisions of Sec. 13B.10.1. (General Provisions) of Chapter 1A of this Code. The notice to comply shall clearly state the following: **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

(a) The violation shall be corrected by a compliance date specified in the notice, and shall be no more than 30 days from the date the notice is mailed.

(b) The compliance date as specified in the notice may be extended for no more than 45 days if the Operator presents satisfactory evidence to the Superintendent of Building that unusual difficulties prevent substantial compliance without an extension.

N. Interim Management Plan.

1. Within 90 days of a Surface Mining Operation becoming Idle, the Operator shall submit to the Department a proposed Interim Management Plan (IMP.) The proposed IMP shall fully comply with the requirements of the Act, and shall provide measures the Operator will implement to maintain the site in a stable condition, taking into consideration public health and safety. The proposed IMP shall be processed in accordance with the provisions of Subsection J. of this section (amendments). IMPs shall not be considered a project for the purposes of complying with CEQA and the city's CEQA Guidelines.

2. Financial assurances for Idle operations shall be maintained as though the operation were active.

3. Upon receipt of a complete proposed IMP, the Department shall forward the IMP to the state Department of Conservation for review. The IMP shall be submitted to the state Department of Conservation at least 30 days prior to approval under Subsection J. of this section (amendments).

4. Within 60 days of the receipt of the IMP, or a longer period mutually agreed upon by the Director and the Operator, the IMP shall be reviewed and approved, conditionally approved, or denied.

5. The IMP shall remain in effect for a period not to exceed five years, at which time the Commission may renew the IMP for another period not to exceed five years, or require the Surface Mining Operator to begin Reclamation in accordance with its approved Reclamation plan.

O. Annual Report. Surface Mining Operators shall forward an annual Surface Mining Operations report to the state Department of

Conservation and to the Department on a date established by the state Department of Conservation, upon forms furnished by the State Board. New Surface Mining Operations shall file an initial Surface Mining Operations report and any applicable filing fees with the state Department of Conservation within 30 days of Permit approval, or before commencement of operations, whichever is sooner. Any applicable fees, together with a copy of the annual inspection report, shall be forwarded to the state Department of Conservation at the time of filing the annual Surface Mining Operations report.

SEC. 13.04. "RPD" RESIDENTIAL PLANNED DEVELOPMENT DISTRICTS.

(Amended by Ord. No. 141,474, Eff. 2/27/71.)

***A. Purpose** – The purpose of the regulations set forth in this section is to provide for the establishment and control of residential planned developments. It is the intent of this section to promote and achieve greater flexibility in design, to encourage well-planned neighborhoods with adequate open space which offer a variety of housing and environments through creative and imaginative planning as a unit, to increase housing opportunities for low and moderate income households, and provide for the most appropriate use of land through special methods of development. **(Amended by Ord. No. 145,927, Eff. 6/3/74.)**

* If any provision of this ordinance, or the application thereof to any person, property or circumstance, is held invalid, the remainder of this ordinance, or the application of such provisions to other persons, property or circumstances, shall not be affected thereby.

B. Application. The provisions of this section shall apply to districts wherein residential planned developments are permitted.

C. Requirements for Filing. Each application for the establishment of an RPD District shall be accompanied by a preliminary plot plan of the proposed development showing the expected locations and arrangement of lots, structures, streets, driveways, easements, open space, parks, schools, and so forth. Such plans shall indicate the layout of the proposed development, and its appearance, characteristics and compatibility with the City's General Plan and existing local conditions.

In addition to the foregoing, each application for the establishment of an RPD District in "H" Hillside or Mountainous Areas shall be accompanied by the following:

1. **Detailed Topographic Survey.** The topographic survey shall include an accurate topographic survey at a minimum scale of 1" = 100' with contour intervals of 5 and 25 feet. Such survey shall accurately indicate the location of the property lines.

2. **Basic Preliminary Grading Plan.** The preliminary grading plan shall be prepared by a licensed civil engineer. This plan shall be at a minimum scale of 1" = 100' and shall include the following:

- a. Tract number
- b. Legal description.
- c. Names, addresses and telephone numbers of the record owner, subdivider and design engineer.
- d. North arrow, engineering scale and date.
- e. The widths and approximate grades of existing and proposed rights of way within and adjacent to the property involved
- f. Locations, widths and approximate grades of existing and proposed highways and streets.
- g. Lot layout, approximate dimensions, proposed elevation and number of each lot.
- h. Existing and proposed contours of the land.
- i. Proposed method of sewage disposal and drainage.
- j. Existing and proposed zoning.

3. **Preliminary Geological and Soils Engineering Reports.** These reports shall be sufficiently detailed to provide a basis for a reasonable evaluation of geological and soils conditions on and adjacent to the site of the proposed RPD, and shall contain as a minimum the following:

a. A geologic map showing all exposures of rock soil and alluvium, fill, landslides, slumps, zones of bedrock and soil creep, suspected fault and shear zones, joints and fractures. The geologic map must be based upon an accurate topographic map or the preliminary grading plans upon a scale commensurate with items 1 and 2 above, and reflect careful attention to the bedrock and soil types present and the geologic structure, either exposed or inferred by other geological data obtained on the site.

b. A geologic report including definite statements, conclusions and recommendations concerning the following:

- (1) Location and general setting with respect to major geographic and/or geologic features.
 - (2) Topography and drainage in the subject area
 - (3) Abundance, distribution, and general nature of exposures of earth materials within the area
 - (4) A reasonable evaluation and prediction of the performance of any proposed cut and fill slopes in relation to geological conditions.
 - (5) An evaluation of existing and anticipated surface and subsurface water circulation in terms of the proposed development.
 - (6) Recommendations concerning future detailed subsurface exploration.
- c. A preliminary soils engineering report, based upon an examination of the site in sufficient detail to provide the following:
- (1) General anticipated bearing characteristics of earth materials.
 - (2) Lateral stability of earth materials, especially fill slopes.
 - (3) Problems of excavation and fill placement.
 - (4) Handling of seepage water, soil stripping and special treatment of soils on the site.
 - (5) Evaluation of deep canyon fills, side hill fills and any special preparation of areas in which fill is to be placed.
 - (6) Estimation of the swell characteristics of earth materials and special design problems that may be anticipated.
 - (7) Delineation in general of all areas where future subsurface exploration sampling and testing may be necessary.

Sufficient copies of the above maps, plans and reports shall be provided by the applicant for the purpose of distribution to members of the Subdivision Committee. The required plans and data shall be directed to the Advisory Agency for analysis, report and recommendation by the Subdivision Committee on all matters within the purview of said Committee. the Committee members shall, within 40 calendar days of the filing of the application for an RPD District, transmit their reports and recommendations to the Advisory Agency. Within ten calendar days thereafter, the Advisory Agency shall transmit the report and recommendation to the Subdivision Committee of the Planning Commission. However on an application for the establishment of an RPD District in "H" Hillside or Mountainous Areas those time limits may be extended by mutual consent of the applicant and the Advisory Agency. **(Amended by Ord. No. 142,117, Eff. 7/31/71.)**

Where a proposed development constitutes a portion of a single ownership which is to be developed in phases, the applicant shall submit a projected general plan of land use, circulation and anticipated sequence of development for the entire ownership. Said plan shall be of sufficient detail to indicate the proposed relationship of the entire development and individual phases thereof to the General Plan of the area and to existing adjoining development and proposed adjoining development which has been approved by the City.

D. Establishment of District and Other Requirements – In order to achieve the purpose of a residential planned development and to assure that such establishment will substantially comply with the applicable elements of the City General Plan, the RPD District shall be subject to the following requirements:

1. Establishment of District Height and Area Regulations. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)

The Council shall in the ordinance establishing an RPD District also establish the density area regulations, and height regulation applicable to the district. The height and area regulations, including peripheral setbacks, of the zone in which the land is located, shall not apply to structures, buildings and lots in an approved RPD District. However, the setback requirements of the zone in which the RPD District is located shall be the minimum setback from the periphery required for structures and buildings within the RPD District itself. Whenever the City Planning Commission recommends that the Council adopt an ordinance establishing an RPD District, it shall also recommend maximum density, height and area limitations, including peripheral setbacks, and shall transmit to the Council the recommended plan of development for the entire proposed development. At the time the Council is considering the establishment of an RPD District, it shall submit to the City Planning Commission for report and recommendation any revised or alternative development plans submitted by the applicant prior to final action. The Commission shall act on a revised or alternate plan within 50 days of receipt of the file from the Council. Should the City Planning Commission fail to act within the 50 days, the applicant may request transfer of jurisdiction to the Council.

2. Density. The ordinance establishing an RPD District shall contain a number suffixed with said district symbol which shall be indicated within the boundaries of each zone classification within such district. Said number shall be the average number of

dwelling units permitted per acre of land, exclusive of public streets, in the residential planned development, or portion thereof, e.g. RPD–1, RPD–2, etc. Such designation or designations shall be indicated upon the Zoning Map. In any RPD District, or differently zoned portion thereof, the average number of dwelling units per acre of land, or fraction thereof, exclusive of public streets, shall not exceed the maximum number of dwelling units permitted by the underlying zone or zones within such district or portion thereof, pursuant to the following schedule:

Zone	Detached Single Family Dwellings	or	Townhouses	or	Dwelling Units in Apartments
Zone	Detached Single Family Dwellings	or	Townhouses	or	Dwelling Units in Apartments
RE 40	1.0	“	—	“	—
RA; RE 20	2.0	“	2.0	“	—
RE 15	2.9	“	2.9	“	—
RE 11	3.9	“	3.9	“	—
RE 9	4.8	“	4.8	“	—
RS	5.8	“	5.8	“	—
R1	8.7	“	8.7	“	—
RU	12.4	“	12.4	“	—
RD 6	—	“	7.0	“	7.0
RD 5	—	“	8.7	“	8.7
RD 4	—	“	10.8	“	10.8
RD 3	—	“	14.5	“	14.5
RZ 2.5	17.4	“	17.4	“	—
R2	—	“	17.4	“	—
RD 2	—	“	18.6	“	21.7
RD 1.5	—	“	18.6	“	29.0
R3	—	“	32.6	“	36.0
R4	—	“	32.6	“	54.0

(Amended by Ord. No. 161,716, Eff. 12/6/86)

The total number of dwelling units within an RPD District located in an “H” Hillside or Mountainous Area established pursuant to Section 12.32 H. of this Code, shall not exceed the density indicated on the General Plan for such area or the maximum number of dwelling units permitted by the underlying zone or zones within such district pursuant to the above schedule, whichever is less, and only detached single family dwellings or townhouses shall be the types of housing permitted thereon.

3. Area or District.

a. Every RPD District shall have an area of 3 acres or more exclusive of public streets. Provided, however, that an RPD District may have an area of 5,000 square feet, or the minimum lot area required by the zone, whichever is greater, or more, exclusive of public streets, whenever the underlying zone of such district is in the RD6, RD5, RD4, R2, RD2, RD1.5, R3, or R4 Zone.

b. The Commission and the City Council may approve an RPD District having an area less than required herein if said district adjoins and will constitute an integral part of an existing RPD District and the proposed development is in harmony with that permitted in the existing RPD District, the existing and proposed plans for adjacent areas and the General Plan. In no event may the proposed RPD District be approved with an average density exceeding that permitted in the existing RPD District.

E. Standard Residential Conditions. The following standard residential conditions shall apply to each RPD District. In addition, after report and recommendation by the Commission, the Council may, by ordinance, impose any other conditions as it deems necessary and proper at the time of establishing such district. In its report to the Council relative to the establishment of an RPD District, the Commission may recommend such other conditions as it deems necessary or desirable in carrying out the general purpose and intent of this section. The standard residential conditions are as follows:

1. **Final Subdivision Map or Parcel Map.** No building permit shall be issued for any building within an RPD District, except for sales models, recreational buildings or community facilities, unless a Final Subdivision Tract Map or Parcel Map has first been recorded for the property on which the building is located.

2. **Coverage.** The Commission shall recommend to the City Council the proportion of the total development site to be covered by buildings and structures.

3. **Separation Between Buildings.** The Commission shall recommend to the City Council the minimum separation between

all buildings in the development but in no event shall there be less than 20 feet of space between townhouse buildings of two or more stories.

4. **Open Space.** Common open space shall comprise at least 25 percent of the land area exclusive of streets, provided, however, that where the applicant submits evidence to the satisfaction of the Commission that the particular development will contain compensatory characteristics which will provide as well or better for planned unit development within the intent of this section, the Commission may recommend modification of said requirements to the Council. At least half of the required common open space shall be of not more than 15% slope.

The common open space shall be land within the total development site used for recreational, park or environmental purposes for enjoyment by occupants of the development, but shall not include public streets, driveways, utility easements where the ground surface cannot be used appropriately for common open space, private yards and patios, parking spaces nor other areas primarily designed for other operational functions.

5. **Private Streets.** Private streets shall not be permitted in RPD developments.

6. **Parking.** There shall be at least two automobile parking spaces for each townhouse or detached single family dwelling in a residential planned development. Said spaces shall be provided in a private garage. There shall be at least two off-street parking spaces per dwelling unit provided for other residential buildings. Provided, however, that in an "H" Hillside or Mountainous Area there shall be at least three off-street automobile parking spaces provided for each dwelling unit in a residential planned development. In the case of a townhouse or detached single family dwelling, two of the said required three parking spaces shall be provided in a private garage. Provided, further, that the Commission in connection with any residential planned development may recommend to the Council such additional number of spaces as it deems necessary to adequately provide for the needs within the district. For non-residential buildings, the Commission may recommend to the Council the number of parking spaces required, but if no such determination is made, the provisions of Section 12.21 A. of this code shall apply.

7. **Utilities.** All new utility lines, pursuant to Section 17.05 N., and all new off-site service utility lines, necessary to serve the development, shall be installed underground.

8. **Townhouses.** The width of each townhouse in the project shall average at least 20 feet. There shall be a separate private yard with a total area of at least 320 square feet adjacent to each townhouse unless equivalent alternate arrangement of patios or roof decks are provided within the preliminary plot plan, and approved by ordinance. No building shall contain more than eight townhouses.

9. **Separate Lots.** No portion of land within a residential planned development shall be divided or separated in ownership unless it is first recorded as a separate and distinct lot on a recorded final Subdivision Tract Map or Parcel Map.

Every lot for a residential building (except a detached single family dwelling or townhouse), church, school, hospital or infirmary shall have a minimum width of 50 feet and a minimum area of 5,000 square feet, or such additional widths or areas as may be required by the Commission and the Council. Each such lot shall front for a distance of at least 20 feet upon a street.

All lots for detached single family dwellings in the project shall be at least 35 feet wide and said lots shall have a minimum area of 3500 square feet or such additional areas or widths as may be required by the Commission and the Council in the ordinance establishing the district. Each such lot shall front for a distance of at least 20 feet upon a street.

Each townhouse lot in the project shall average at least 20 feet in its narrowest dimension. Said lots shall have a minimum area of 1750 square feet or such additional areas or widths as may be required by the Commission and the Council in establishing an RPD District. Provided, however, that where the underlying zone of a lot for a townhouse is in the R3 or R4 Zone said lot may have an area of at least 1,000 square feet or such additional area as may be required by the Commission and the Council. Any lot for a townhouse need have only such access or street frontage as is shown on the approved final development plans.

10. **Separate Units.** Every owner of a dwelling unit or lot shall own as an appurtenance to such dwelling unit or lot, either, (1) an undivided interest in the common areas and facilities, or (2) a share in the corporation, or voting membership in an association, owning the common areas and facilities.

11. **Maintenance.** The right to maintain the buildings and use the property for a residential planned development shall continue in effect only so long as all of the mutually available features, such as recreational areas, community buildings, landscaping, as well as the general appearance of the premises and buildings are all maintained in a first class condition and as indicated on the approved Final Development Plans.

12. **Covenants.** The provisions of Standard Condition 11 shall be included in the conditions, covenants, and restrictions applying to the property, which are recorded in the Office of the County Recorder and copies of said provisions shall be furnished to the individual purchasers of units in the development.

The provisions of Standard Condition 11 shall also be in each of the preliminary and final drafts of the conditions, covenants, and restrictions submitted to the Real Estate Commissioner.

13. **Sale of Lots or Units.** No dwelling unit or lot shall be sold or encumbered separately from an interest in the common areas

and facilities in the development which shall be appurtenant to such dwelling unit or lot. No lot shall be sold or transferred in ownership from the other lots in the total development, or approved phase of the development, unless all approved community buildings, structures, and recreational facilities for the total development, or approved phase thereof, have been completed, or completion is assured, by bonding or other method satisfactory to the Advisory Agency.

14. Management Agreement. No lot or dwelling unit in the development shall be sold unless a corporation, association, property owners group or similar entity has been formed with the right to assess all those properties which are jointly owned with interests in the common areas and facilities in the development to meet the expenses of such entity, and with authority to control, and the duty to maintain all of said mutually available features of the development. Such entity shall operate under recorded conditions, covenants and restrictions which shall include compulsory membership of all owners of lots and/or dwelling units, and flexibility of assessments to meet changing costs of maintenance, repairs and services. The developer shall submit evidence of compliance with this requirement to and receive the approval of the Advisory Agency prior to making any such sale. This condition shall not apply to land dedicated to the City for public purposes.

15. Low and Moderate Income Dwelling Units. Every residential planned development shall provide low and moderate income dwelling units as provided in Section 12.39* of this code. **(Added by Ord. No. 145,927, Eff. 6/3/74.)**

* Section 12.39 was repealed by Ord. No. 180,308 Eff. 12/7/08.

F. Final Development Plans. (Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.) Any final development plans shall be in substantial conformance with the preliminary plans. Prior to the issuance of any permits for the erection or enlargement of any buildings within an established RPD District, final precise site and elevation plans for all buildings and landscaping within the district or approved phase of the development, shall be submitted to and approved by the Zoning Administrator and to the Area planning Commission on appeal. If the original action establishing an RPD District included the submission and approval of final precise plans for the complete development, building permits may be issued in accordance with those plans. In connection with the review of final development plans, deviations in any of the conditions previously established may be authorized pursuant to the provisions of Subsection I. of this section.

G. Permits – No permit shall be issued for grading, or for the erection, enlargement or maintenance of buildings or structures for a residential planned development, and no person shall perform any such development or construction work, except in full compliance with the final development plans approved as herein provided.

No building permit shall be issued for other than approved model units until the conditions, covenants, and restrictions required by Section 13.04 E.12. have been submitted to and approved by the City Attorney.

H. Termination of Districts – Any authority to establish or maintain an RPD district pursuant to the provisions of this section shall terminate: (1) within one and one-half years after the effective date of the ordinance establishing such district unless a tentative subdivision map of the proposed development has been filed; (2) within two years of the tentative map approval, unless construction work on the first phase of the development has begun; (3) unless such work is carried on diligently to completion.

Upon termination of a district, the Zoning Map shall be corrected by removing the district symbol.

I. Changes and Modifications. After an ordinance establishing an RPD District, and all of the conditions applicable thereto have been adopted by the City Council, the procedure for modifying such conditions shall be the same as that required for the establishment of an RPD District. If approved by the Council, the request for modification of such conditions shall be effectuated by the adoption of an ordinance amending the original ordinance establishing the particular district.

SEC. 13.05. “K” EQUINEKEEPING DISTRICTS.

(Title and Section Amended by Ord. No. 157,144, Eff. 11/22/82; “Department of Animal Regulation” renamed “Department of Animal Services” by Ord. No. 174,735, Eff. 9/13/02.)

A. Purpose. It is the purpose and object of this section to establish reasonable and uniform limitations, safeguards and controls for the keeping and maintenance of equines within the City of Los Angeles.

B. Establishment of Districts.

1. The City Council may establish new Equinekeeping Districts and enlarge the boundaries of such districts now or hereafter established.

2. No Equinekeeping District shall contain less than 5 acres of land including the area of all dedicated streets and highways contained therein. All lots or parcels of property contained within the district’s boundaries shall be contiguous. The boundaries of the district shall be drawn so as to coincide as nearly as practicable with street alignments or other clearly discernible boundaries. **(Amended by Ord. No. 161,352 Eff. 7/20/86.)**

C. Conditions. All property within a district shall be subject to the following conditions:

1. If the equine enclosure is less than 75 feet from the habitable rooms of a neighbor’s dwelling unit, the enclosure shall not be closer to the habitable rooms of a neighbor’s dwelling unit than to the habitable rooms of a dwelling unit on the equine keeping

lot.

2. In no event shall the equine enclosure be located closer than 35 feet to the habitable rooms of any dwelling unit.
3. Any additional conditions which may be deemed necessary to be imposed shall be established by ordinance.
4. Notwithstanding any other provision of this Code relating to the number of equines permitted in any zone, any lot included in a “K” Equinekeeping District which was formed after January 12, 1975 may be used to keep no more than one equine for each 4,000 square feet of lot area. **(Amended by Ord. No. 159,341, Eff. 10/11/84.)**

5. Notwithstanding any other provision of this Code to the contrary, in a “K” Equinekeeping District, an animal keeping structure may be located on any portion of a parcel except the required front yard and shall not be closer than 10 feet from the required side lot lines so long as the distance requirements of this Section are complied with. This subdivision shall not, however, authorize the location of an animal keeping structure in any side or rear yard areas as defined in Section 12.21 C.5.(a) (25 foot required yards) which immediately abut a lot which is not itself in a “K” Equinekeeping District.

6. Notwithstanding any provisions of this Code to the contrary, in the “A” and “R” Zones, located within a “K” Equinekeeping District, a maximum of two equines not owned by the resident of the involved property may be boarded or kept on that property as an accessory use without such boarding or keeping being regarded as a commercial equinekeeping operation; provided, however, that the total number of equines being boarded or kept on the property does not exceed one for each 4,000 square feet of lot area. Said equines shall be issued current Equine Licenses by the City Department of Animal Services. **(Amended by Ord. No. 159,341, Eff. 10/11/84.)**

7. Notwithstanding any provisions of this Code to the contrary, equine uses of the land on “K” Equinekeeping District lots shall be allowed to be continued if, after the legal establishment of the equine use, the City issued a building permit to construct a residential building on an adjacent lot within the legal required distance between an equine use and the residential building on an adjacent lot. If, in accordance with the provisions of Section 12.24 X.5. the Zoning Administrator grants permission for a residential building on an adjacent lot to be constructed closer than 35 feet from a legally existing equine enclosure, the equine enclosure may be considered to be nonconforming if it is relocated not closer than 35 feet from the habitable rooms attached to any residential building. The nonconforming equine use shall be subject to the following limitations: **(Amended by Ord. No. 173,492, Eff. 10/10/00.)**

- a. The equine enclosure shall not be closer than 35 feet from the habitable rooms of any residential building.
- b. The subject lot has been designated by an Equine License to stable at least one licensed equine during the 12 months prior to the issuance of the building permit for the residential building on an adjacent lot.
- c. The equine enclosure shall not be expanded, extended, or relocated so as to reduce the nonconforming distance between the enclosure and the habitable rooms of the residential building on an adjacent lot.
- d. The nonconforming equine use shall be discontinued if, during a successive 3-year period, no equine is licensed by the Department of Animal Services to be stabled on the subject lot.

8. Notwithstanding any provisions of this Code to the contrary, if an equine use in a “K” District was legally established before November 22, 1982, that use shall be allowed to continue even though the City issued a building permit between November 22, 1982 and July 1, 1986, to construct a residential building on an adjacent lot within the 35-foot required distance between an equine use and the habitable rooms of a residential building on the adjacent lot. This provision shall not apply to building permits authorized by the Zoning Administrator pursuant to Section 12.24 X.5. This nonconforming equine use shall be subject to the following limitations: **(Amended by Ord. No. 173,492, Eff. 10/10/00.)**

1. The subject lot has been designated by an Equine License to stable at least one licensed equine during the 12 months prior to the issuance of the building permit for the residential building on an adjacent lot.
2. The equine enclosure shall not be expanded, extended, or relocated so as to reduce the nonconforming distance between the enclosure and the habitable rooms of the residential building on an adjacent lot.
3. The nonconforming equine use shall be discontinued if, during a successive 3-year period, no equine is licensed by the Department of Animal Services to be stabled on the subject lot.

Nothing in this subdivision relieves any person from the obligation to comply with the requirements of any County or State law.

SEC. 13.06. COMMERCIAL AND ARTCRAFT DISTRICTS.

(Amended by Ord. No. 146,775, Eff. 1/6/75.)

A. Purpose – The provisions set forth in this section shall create enclaves whereby the artisan segments of the population may live, create and market their artifacts. Artcraft activities, combined with commercial and residential uses will be permitted in those areas

appropriate for the establishment of a Commercial and Arcraft District.

B. Application – The provisions of this section shall apply to the areas wherein CA Districts are permitted.

C. Establishment of District.

(1) **Requirements** – Each application for the establishment of a Commercial and Arcraft District shall include the signatures of seventy-five percent (75%) of the owners or lessees of property of an area not less than three acres (3 acs.) in total size, or by resolution of the Commission or Council. The area shall be computed by contiguous parcels of land which may be separated only by public streets, ways or alleys.

(2) **Boundaries** – Public right-of-ways can be included in the computation of the total acreage in the district area described in said application and the boundaries thereof shall follow public streets, ways or alleys so far as practical.

(3) **Alternate Procedures** – The procedures set forth in Section 12.24 of this Chapter shall be used for those applicants desirous of a CA District but cannot comply with the aforementioned procedures.

D. Standard Conditions – Applicants desirous of a “CA” District, are subject to the limitations and restrictions contained herein. Said regulations are imposed in order to promote and achieve optimal conditions for arcraft functions, while maintaining adequate protection from obnoxious pollutants, for the adjacent properties.

(1) **Production Techniques** – The creating, assembling, compounding or treating of articles shall be accomplished by hand, or to the extent practical for a particular artifact.

Only those art products which are made by the artisan or the artisan’s employees from raw materials can be sold. Mass produced parts may be used only if incidental to the basic artifact. In those production techniques which necessitate the use of a kiln, the total volume of kiln space shall not exceed twenty-four (24) cubic feet and no individual kiln shall exceed eight (8) cubic feet.

Power tools shall be limited to electrically operated motors of not more than one horse power.

(2) **Location of Equipment** – The machinery and equipment shall be so installed and maintained, and the activity shall be so conducted, that noise, smoke, dust, odor and all other objectionable factors, shall be confined or reduced to the extent that no annoyance or injury will result to persons residing in the vicinity

(3) **Area of Production** – Certain arcraft activities as listed in Section E.2. shall be restricted to either indoor or outdoor manufacturing.

(4) **Commercial Activities** – The display of all completed artifacts shall be permitted outdoors and all commercial activities shall be limited to retail business only. The sale of all items, except antiques, shall be limited to those lawfully produced on the premises.

(5) **Employees** – Paid helpers shall be limited to no more than three (3) persons other than members of the immediate family occupying the dwelling on such premises.

E. Permitted Uses. It is the intent of this section to distinguish between those uses which are considered more appropriate for indoor and outdoor use. Those uses which are likely to create pollutants or other activities that would disturb the neighborhood are restricted to indoor use. Outdoor uses are those which will not create a disturbance.

Premises in “CA” District may be used for the following manufacturing and retail uses, provided arcrafts activities are limited to those decorative or illustrative elements requiring manual dexterity or artistic talent. The following list is intended to provide a guide for the nature of uses permitted in the district.

(1) **Outdoor Uses** – The creating, assembling, compounding or treating of articles contained in the following list shall be permitted outdoors:

- (a) Antiques – restoration and sale of antiques and collectibles.
- (b) Art needlework.
- (c) Art studio, including painting and sculpturing.
- (d) Basket weaving.
- (e) Boutiques
- (f) Candle making.

- (g) Cartoon and animation.
- (h) Ceramics – The total volume of kiln space shall not exceed twenty-four (24) cubic feet and no individual kiln shall exceed eight cubic feet.
- (i) Costume designing.
- (j) Dance and drama studio, not including any dance activities requiring a license.
- (k) Fine Arts Gallery.
- (l) Glass – The hand production of glass crystal, art novelties and the assembly of stained art glass provided that the total volume of kiln space shall not exceed twenty-four (24) cubic feet and no individual kiln shall exceed eight (8) cubic feet.
- (m) Musical Instruments
- (n) Photography studio
- (o) Picture mounting and framing.
- (p) Pottery manufacturing provided the total volume of kiln space shall not exceed twenty-four (24) cubic feet and no individual kiln shall exceed (8) cubic feet.
- (q) Shoe and footwear provided all manufacturing is done by hand.
- (r) Silk screen processing.
- (s) Textile weaving, provided hand looms only.
- (t) Toys, manufacturing of by hand
- (u) Woodcarving
- (v) Writing, professional studio

(2) **Indoor Uses** – The manufacturing, assembling, compounding or treating of articles contained in the following list shall be permitted indoors only. Such uses shall not be permitted above the first floor of any structure.

- (a) Block printing.
- (b) Jewelry manufacturing.
- (c) Metal engraving.
- (d) Ornamental Iron.
- (e) Printing and publishing.
- (f) Taxidermy.
- (g) Watchmaking.

(3) A Zoning Administrator shall have authority to determine other uses in addition to those specifically listed in the article, which may be permitted in the CA District, when in the Zoning Administrator's judgement such other uses or similar to and no more objectionable to the public welfare than those listed above.

(4) **Arecraft Instructions** – Arcraft classes shall be permitted on premises in the CA District and no additional off-street parking shall be required in conjunction therewith, provided that:

- (a) Classes are held not more than two days a week for a period not to exceed three hours per day
- (b) Classes are purely incidental to the arcraft uses of the property and not more than 15 persons are permitted to attend each class.
- (c) Classes involve only the use of those tools and equipment applicable to production of said artifacts.
- (d) All classes are held on the first floor of the building.

(e) No certificate of occupancy shall be required in connection with the use authorized by this ordinance.

(5) **Residential Uses** – In the R Zones, the residential regulations as required in the underlying zone to which the “CA” District overlays, shall apply. In the C and M zones, residential uses shall be permitted in connection with the main commercial, industrial or aircraft use. Said residential use shall observe the requirements set forth in Section 12.10 of the Planning and Zoning Code.

(6) **Parking Requirements. (Amended by Ord. No. 169,670, Eff. 5/13/94.)** Parking requirements for new buildings shall be as required in Section 12.21 A. For an existing building, for which a building permit was issued prior to April 1, 1994, the number of parking spaces required shall be the same as the number of parking spaces existing on the site.

Any structure providing a mixture of residential and art craft uses shall meet the requirements for automobile parking spaces as if each portion of the facility were an independent entity.

(7) **Yard Requirements. (Added by Ord. No. 169,670, Eff. 5/13/94.)** For new buildings, the yard requirements shall be the same as required by the underlying zone. For existing buildings, for which a building permit was issued prior to April 1, 1994, the yards required shall be the same as the yards observed by the existing buildings on the site.

SEC. 13.07. PEDESTRIAN ORIENTED DISTRICT.

(Added by Ord. No. 168,153, Eff. 9/13/92.)

A. Purpose. This section sets forth procedures, guidelines and standards for establishment of Pedestrian Oriented Districts within commercially zoned areas throughout the City. The purpose of the Pedestrian Oriented District is to preserve and enhance existing areas or create new areas where pedestrian activities are common, to encourage people to walk and shop in areas near their workplaces and/or residences thereby reducing multiple automobile trips, to reinforce and stimulate high quality future development compatible with pedestrian uses, to reflect the characteristics of a particular area and to encourage pedestrian use during evenings and weekends, as well as weekdays.

B. Establishment of District.

1. **Requirements.** The procedures set forth in Sec. 13B.1.4. (Zone Change) of Chapter 1A of this Code shall be followed except that each Pedestrian Oriented District (POD) shall include only lots which are zoned either CR, C1, C1.5, C2, C4 or C5. No District shall contain less than one block or three acres in area, whichever is the smaller. The total acreage in the district shall include contiguous parcels of land which may only be separated by public streets, ways or alleys, or other physical features, or as set forth in the rules approved by the Director of Planning. Precise boundaries are required at the time of application for or initiation of an individual POD. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

2. **Pedestrian Oriented Streets.** Pedestrian Oriented Streets shall be identified as part of the adoption process of a specific POD. The following shall be utilized to identify such streets: A Pedestrian Oriented Street is a public street where the Director of Planning finds that the street has, or will have in the case of an undeveloped area, at least two of the following characteristics at sidewalk level:

(a) The street has, or in the case of an undeveloped area will have, a variety of commercial uses and activities;

(b) A majority of the structures on the street are, or in the case of an undeveloped area will be, of a similar size and incorporate architectural details such as the location of windows, courts, building interiors and pedestrian entrances which enhance a pedestrian atmosphere;

(c) The street has, or in the case of an undeveloped area will have, amenities, such as street furniture, outdoor restaurants, open air sales, arcades and the like, which are integrated with the public sidewalk in such a way as to be conducive to pedestrian activity.

C. Definitions. For purposes of this section, the following words and phrases are defined:

Blank Wall. A blank wall is any exterior building wall, including a garage opening or door which fronts on the street and which is not enhanced by architectural detailing, artwork, landscaping, windows, doors or similar features.

Building Frontage. Building Frontage is the maximum length of a line or lines formed by connecting the points representing projections of the exterior building walls onto a public street or onto a courtyard that is directly accessible by pedestrians from a public street, whichever distance is greater.

Cultural Resource. Cultural resource is a structure officially recognized to have local, state, or national significance or deemed eligible for inclusion on the National Register of Historic Places with respect to its architectural and/or historical characteristics and which is designated as such in the establishment of an individual Pedestrian Oriented District.

Financially-Oriented Services. Financially- Oriented Services are the provision to the public of financial or real estate services

including, but not limited, to those offered by banks, savings and loan associations, thrift associations, real estate offices, insurance companies, brokerage firms and escrow offices.

Ground Floor. Ground floor is the lowest story within a building which is accessible to the street, the floor level of which is within three feet above or below curb level, which has frontage on or is primarily facing any Pedestrian Oriented Street, and which is at least 20 feet in depth or the total depth of the building, whichever is less.

Neighborhood Retail. Neighborhood retail uses shall be limited to retail sale of goods needed by residents and patrons of a Pedestrian Oriented District, including:

- Art galleries;
- Art supplies;
- Athletic/sporting goods;
- Bakeries;
- Books or cards;
- Bicycle sales and repairs;
- Clock or watch sales and/or repair;
- Clothing;
- Computer sales and repair;
- Drug stores;
- Fabrics or dry goods;
- Florists;
- Food / grocery stores, including supermarkets, produce, cheese and meat markets and delicatessens;
- Hardware;
- Household goods and small appliances;
- Newsstands;
- Photographic equipment and repair;
- Sit Down Restaurants, excluding drive- through service;
- Stationery;
- Toys; and
- Other similar retail goods as determined by the Zoning Administrator.

Neighborhood Services. Neighborhood services are those services used by residents and patrons on a regular basis, including:

- Barber shop or beauty parlor;
- Blueprinting;
- Child care facility;
- Club or lodge, bridge club, fraternal or religious associations;
- Copying services;
- Custom dressmaking;
- Dry cleaner;

Financial services;

Laundry or self-service laundromat;

Locksmith;

Optician;

Photographer;

Shoe repair;

Tailor; and

Other similar services as determined by the Zoning Administrator.

Project. A Project is the erection or construction of any building or structure, on a lot in the CR, Cl, Cl.5, C5, C4, and CS Zones, or addition of floor area to the Ground Floor of any building on a CR, Cl, Cl.5, C2, C4 or C5 Zoned lot(s), unless the building is used solely for residential dwelling units.

D. Application. The district shall apply only to CR, Cl, Cl.5, C2, C4 and C5 Zoned lot(s) within a POD. In establishing any individual Pedestrian Oriented District, the City Council may adopt all of the regulations contained in Subsection E. below, however, one or more of the standards set forth in these regulations may be superseded by development standards established in the individual Pedestrian Oriented District ordinance. An individual Pedestrian Oriented District ordinance shall apply to a particular geographical area. In the event that ordinance does not include new standards pertaining to development, all of the standards set forth in Subsection E., hereof shall apply. The regulations contained in this section are in addition to the use and area regulations applicable to the underlying commercial zone. If the provisions of this section conflict with any other city-wide regulations, then the requirements of *this* section shall prevail.

E. Development Regulations. The Department of Building and Safety shall not issue a building permit for a Project within a Pedestrian Oriented District unless the Project conforms to all of the following development regulations, or to the regulations in a specific Pedestrian Oriented District ordinance, if applicable. The Department of Building and Safety shall not issue a change of use permit for any use not permitted in Paragraph 2. of this subsection. **(Added by Ord. No. 168,153, Eff. 9/13/92.)**

1. Building Frontages shall conform to the following regulations:

(a) **Blank Walls.** Blank walls in excess of 10 feet in width shall not be permitted. Blank walls shall be relieved by transparent windows, doors, recessed entryways, recessed courtyards, planters, murals, mosaic tile, public art and/or other means of creating visual interest.

(b) **Openings in Exterior Walls of Buildings or Between Buildings for Vehicles.** Any opening in an exterior wall of a building or between buildings for purposes of vehicular entry shall not be permitted, except where it is determined by the Department of Transportation that the location of these driveways cannot be practicably placed elsewhere. Garage or parking lot entrances shall not be permitted on Pedestrian Oriented Streets unless the Department of Transportation determines that there is no other alternative to the location of the garage or parking lot entrances.

(c) **Openings in Exterior Building Walls Not for Vehicles.** On Pedestrian Oriented Streets, openings in exterior building walls or building setbacks which are used for plazas or courtyards with outdoor dining, seating, water features, kiosks, paseos, open air vending or craft display areas shall be permitted. Building setbacks not used for the above listed permitted purposes shall be fully landscaped.

(d) **Pedestrian Access.** All new developments fronting on Pedestrian Oriented Streets shall provide at least one entrance for pedestrians to each Ground Floor.

(e) **Pedestrian Views Into Buildings.** At least 75 percent of the building frontage at the ground floor of a building adjoining a Pedestrian Oriented Street shall be devoted to entrances for pedestrians, display windows or windows affording views into retail, office or lobby space. Non reflective glass shall be used to allow maximum visibility from sidewalk areas into the interior of buildings.

(f) **Second Floors.** Building frontage on the floor immediately above the ground floor shall be differentiated from the ground floor by recessed windows, balconies, offset planes, awnings or other architectural details, as determined by the Department of City Planning.

(g) **Building Continuity With Openings.** In the event a building opening of 15 feet in width or greater is permitted pursuant to 1.(b) and 1.(c) of this subdivision, continuation of an architectural feature of the ground floor building facade shall be required to retain continuity of a building wall at the ground floor, as determined by the Department of City Planning.

(h) **Requirement for Ground Floor.** Each building on a lot fronting on a Pedestrian Oriented Street shall have a ground floor.

2. **Uses Permitted Along The Ground Floor Building Frontage.** Any use permitted by the underlying zone shall also be permitted on the Ground Floor, except that uses on the Ground Floor along the Building Frontage shall conform to the following:

The floor area on the ground floor of a commercial building along at least 75 percent of the Building Frontage, excluding the frontage used for vehicular access to on-site parking, shall be devoted to neighborhood retail and/or neighborhood services, except that any Financially-Oriented Service may occupy only up to 50 percent of the Ground Floor along the Building Frontage on each street frontage.

3. **Uses Permitted Above The Ground Floor.** Any use permitted in the underlying zone shall be permitted above the ground floor.

4. **Yards.** Yard requirements shall be as required by the underlying zone, unless otherwise specified in an individual Pedestrian Oriented District ordinance.

5. **Height.**

(a) The height of a building shall not exceed 40 feet. If the underlying zone otherwise permits a height in excess of 40 feet, then any portion of the building above 40 feet in height, including the roof and roof structure, shall be set back from the front lot line at a 45 degree angle, for a horizontal distance of not less than 20 feet.

(b) The height of a building adjacent to one or more cultural resources shall not exceed a height that is within five feet of the weighted average height of the adjacent cultural resource(s) or 30 feet, whichever is greater. If the underlying zone otherwise permits a height above 30 feet, then any portion of the building above 30 feet in height shall be set back from the lot line at a 45 degree angle, for a horizontal distance of not more than 20 feet.

6. **Parking.**

(a) No surface parking shall be permitted within 50 feet from any Pedestrian Oriented Street right-of-way. The provisions of this paragraph shall not apply if the Department of Transportation determines that there is no other feasible alternative to the location of the parking.

(b) Any surface parking adjoining a Pedestrian Oriented Street shall be screened by a solid wall having a continuous height of three and one-half feet. In addition, the wall shall be separated from any adjacent public right-of-way by a minimum continuous width of five feet of landscaped area. If an architectural theme has been established for an individual POD, then the wall shall be compatible with that theme. Surface parking lots shall be landscaped with shade trees at the ratio of one tree for each four parking spaces.

(c) All above-grade parking spaces visible from a public right-of-way shall be screened architecturally or with landscaping.

7. **Landscaping Standards.**

(a) Prior to the issuance of a building permit, the Department of Planning shall approve a landscape plan for new projects and parking areas. In approving this plan, the Department shall find that trees, compatible in size and variety with (b) below, are planted in all landscaped areas at the highest practical density and that planted windows boxes, and hanging plant baskets and flower beds in parking lots are provided, where possible. An overall landscape plan may be developed for each individual POD to enhance a chosen theme or style.

(b) Shade producing street trees shall be planted, where feasible, at a ratio of at least one for each 25 feet of frontage at a distance no greater than 10 feet from the curb. Elevated planters, tree grates and tree guards shall be provided, where needed. Notwithstanding the above, (i) the size, location and variety of trees shall be determined by the Department of Public Works; (ii) where street lights are existing or proposed to be installed, trees shall not be planted within 20 feet of the location of the existing or proposed street light.

(c) An automatic irrigation system shall be provided for all landscaped areas including shade trees and shall be indicated on landscape plans. Property owners shall maintain all landscaping in good healthy condition and shall keep planted areas free of weeds and trash.

8. **Special Theme or Other Provisions.** A special theme or architectural style may be defined for an individual POD. Special requirements or guidelines directed at preserving such theme may be adopted with the establishment of an individual POD. Such requirements may include, but not be limited to, standards pertaining to uniform theme lighting, art works, sculpture, landscaping, street furniture, sidewalk design, and setbacks.

9. **Signs.**

(a) Notwithstanding any provision of the Los Angeles Municipal Code to the contrary, no person shall erect the following signs as defined in Section 91.6203 of the Los Angeles municipal Code:

(i) off-site commercial signs, except that existing legally erected off-site commercial signs may be replaced on the same or a new site provided that the location and sign otherwise meet all current ordinance requirements of Division 62 (Signs), Section 91.6220 (Off-site signs);

(ii) pole signs,

(iii) projecting signs; or

(iv) roof signs advertising individual businesses.

Signs advertising the entire POD are permitted if approved by the Director of Planning.

(b) Monument signs and information signs for individual businesses may be approved as part of an overall POD plan or design.

11. **Utilities.** Where possible, all new utility lines for any individual building or proposed within a POD shall be installed underground.

F. Director's Determination. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.) If a proposed Project fails to meet the development standards in Subsection E. above, or the standards in a specific pedestrian oriented district ordinance, whichever are applicable, the applicant may apply to the Director of Planning for a Director Determination pursuant to Sec. 13B.2.5. (Director Determination) of Chapter 1A of this Code. Such application shall be filed in the public office of the Department of City Planning upon a form prescribed for that purpose. The filing fee shall be equivalent to that established for "Approval of plan required for Supplemental Use District", set forth in Section 19.01 A. of this Chapter. The application shall be accompanied by architectural, landscape and structural plans for the Project, or other information, to the satisfaction of the Director of Planning. All ground floor uses for the Project shall be clearly identified.

1. **Supplemental Findings.** In addition to the findings set forth in Sec. 13B.2.5. (Director Determination) of Chapter 1A of this Code, in order to approve a proposed construction project pursuant to this subsection, the Director must find that:

(a) If adjacent to a cultural resource that the project will be compatible in scale (i.e., bulk, height, setbacks) to that resource.

(b) The project conforms with the intent of the development regulations contained in Subsection E. of this section.

(c) The project is compatible with the architectural character of the Pedestrian Oriented District where the character is defined pursuant to the ordinance establishing that district.

(d) The project complies with theme requirements or other special provisions when required in the individual Pedestrian Oriented District.

(e) The project is consistent with the General Plan.

2. **Notification to Department of Building and Safety.** When a determination of the Director becomes final, the Director or Director's designee shall send a written notice of the determination to the Department of Building and Safety. If the Director approves the Project, this approval shall be so indicated on the building permit application and building plans.

SEC. 13.08. "CDO" COMMUNITY DESIGN OVERLAY DISTRICT.

(New Sec. 13.08 Added by Ord. No. 172,032, Eff. 6/29/98.)

A. Purpose. This section sets forth procedures and standards for the establishment of Community Design Overlay Districts throughout the City. The purpose of the Community Design Overlay district is to:

1. Assure that development within communities is in accordance with community design policies adopted in the Community Plans, and with the Community Design Guidelines and Standards;

2. Promote the distinctive character, stability and visual quality of existing neighborhoods and communities by ensuring that development visually provides a sense of place in terms of design within the Community Design Overlay District by considering the unique architectural character and environmental setting of the district;

3. Assist in improving the visual attractiveness of multi-family housing available to meet the needs of all social and economic groups within the community;

4. Protect areas of natural scenic beauty, cultural or environmental interest;

5. Prevent the development of structures or uses which are not of acceptable exterior design or appearance; and
6. Protect the integrity of previously attained entitlements.
7. Provide for on-going community involvement in project design and evolution of guidelines.

B. Establishment of District. The City Council may establish new districts, or change boundaries of districts, by following the procedures set forth in Sec. 13B.1.4. (Zone Change) of Chapter 1A of this Code. A district may encompass all or portions of the area of a community plan, as recommended by the policies of that plan. Precise boundaries are required at the time of application or initiation of an individual Community Design Overlay District. A Community Design Overlay District shall not encompass an area designated as an Historic Preservation Overlay Zone pursuant to Sec. 13B.8.2. (Historic Preservation Overlay Zone Designation) of Chapter 1A of this Code. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

C. Definitions. For the purpose of this section, the following words and phrases are defined as follows:

1. **Design Overlay Plans.** A document or documents which pictorially describe, by professionally accepted architectural graphic techniques, the location, appearance, configuration and dimensions of any proposed buildings, structures and site improvements including but not limited to landscaping, walls and fences, roof equipment, pole signs, monument signs, and parking areas.

2. **Project.** The erection, construction, addition to, or exterior structural alteration of any building or structure, including, but not limited to, pole signs and/or monument signs located in a Community Design Overlay District. A Project does not include construction that consists solely of **(1)** interior remodeling, interior rehabilitation or repair work; **(2)** alterations of, including structural repairs, or additions to any existing building or structure in which the aggregate value of the work, in any one 24-month period, is less than 50 percent of the building or structure's replacement value before the alterations or additions, as determined by the Department of Building and Safety, unless the alterations or additions are to any building facade facing a public street; or **(3)** a residential building on a parcel or lot which is developed entirely as a residential use and consists of four or fewer dwelling units, unless expressly provided for in a Community Design Overlay District established pursuant to this section.

3. **Citizen Advisory Committee.** A committee appointed by the Councilmember(s) pursuant to Subsection D.2. of this section in whose District a Community Design Overlay District is established, who shall assist the Planning Department in the development of Design Guidelines and Standards.

D. Approval of Guidelines and Standards. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.) In establishing any individual Community Design Overlay District, the Director of Planning shall prepare, and the City Planning Commission shall approve by resolution pursuant to Sec. 13B.1.5. (Policy Action) of Chapter 1A of this Code, Community Design Guidelines and Standards applicable to design overlay areas. These Guidelines and Standards shall be adopted or amended according to the following procedures and criteria:

1. **Initiation.** Preparation or amendment of the Guidelines and Standards may be initiated by the Director of Planning, the City Planning Commission or City Council.

2. **Preparation and Content.** Upon initiation, the Director shall prepare, or cause to be prepared, proposed Guidelines and Standards based on the design policies contained in the Community Plan. At the option of the Council District, the Director shall utilize Advisory Boards in the development of design standards for individual communities and neighborhoods. The Guidelines and Standards shall be organized into those which are anticipated to be superseded by future citywide standards, and those that are necessary to protect the unique architectural and environmental features of the Community Design Overlay District.

The Guidelines and Standards are in addition to those set forth in the planning and zoning provisions of Los Angeles Municipal Code (LAMC) Chapter 1, as amended, and any other relevant ordinances and do not convey any rights not otherwise granted under the provisions and procedures contained in that chapter and other relevant ordinances, except as specifically provided herein.

Furthermore, nothing in the Guidelines and Standards shall interfere with any previously granted entitlements, nor shall they restrict any right authorized in the underlying zone or height district.

At the option of the Councilmember(s), a Citizen Advisory Committee shall be appointed to assist in development of Guidelines and Standards. The Citizen Advisory Committee shall be appointed by the Councilmember in whose district the Community Design Overlay District is established, and the committee shall consist of a minimum of five and a maximum of seven voting members, each serving a term of office of four years, the terms being staggered so that at least one term becomes vacated on each successive year. The chairperson and vice chairperson shall be elected annually by a majority of the committee. The suggested composition of membership is as follows: two architects and two professionals from the following or related fields: planning, urban design and landscape architecture, or construction. The remaining member or members need not be design professionals. All members shall reside, operate a business, or be employed within the community plan area(s) in which the Community Design Overlay District is located.

3. **Procedures.** See Sec. 13B.1.5. (Policy Action) of Chapter 1A

E. Director Determination. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.) Within a Community Design Overlay District, no building permit shall be issued for any project, and no person shall perform any construction work on a Project, unless a Director Determination has been submitted and approved pursuant to Sec. 13B.2.5. (Director Determination) of Chapter 1A of this Code. No building permit shall be issued for any project, and no person shall do any construction work on a project except in conformance with the approved Director Determination.

EXCEPTION: No Director Determination approval shall be required for any project until the Guidelines and Standards have been approved.

1. **Supplemental Findings.** In addition to the findings set forth in Sec. 13B.2.5. (Director Determination) of Chapter 1A of this Code, the Director of Planning, or the Area Planning Commission on appeal, shall approve a Director Determination as requested or in modified form if, based on the application and the evidence submitted, if the Director or Area Commission determines that it satisfies all of the following requirements:

(a) The project substantially complies with the adopted Community Design Overlay Guidelines and Standards.

(b) The structures, site plan and landscaping are harmonious in scale and design with existing development and any cultural, scenic or environmental resources adjacent to the site and in the vicinity.

2. **Notice of Director Determination.** In addition to the procedures set forth in Sec. 13B.2.5. (Director Determination) of Chapter 1A of this Code, within five working days following the decision, a Notice of the Director's Determination, and copies of the approved plans, shall be mailed to the applicant, the Councilmember in whose district the Project is located, the Citizen Advisory Committee, and any persons or organizations commenting on the application or requesting a Notice.

The Director of Planning shall also notify the Department of Building and Safety of the final approval action of the Director Determination.

SEC. 13.09. MIXED USE DISTRICT.

(New Sec. 13.09 Added by Ord. No. 172,171, Eff. 9/27/98.)

A. Purpose. The purpose of the Mixed Use District is to implement the General Plan by encouraging land uses that combine Commercial Uses and dwelling units in order to reduce vehicle trips and vehicle miles traveled by locating residents, jobs, and services near each other; to improve air quality through a reduction of vehicle trips and vehicle miles traveled; to support the transit system; to promote economic vitality and the revitalization of areas of special need; to provide for a variety of housing opportunities, including senior housing; to improve the efficiency of public services, systems, and utilities; to promote design quality and flexibility; and to promote pleasing and interesting urban form and architecture. Areas proximate to mass transit stations and major bus routes are appropriate locations for Mixed Use Districts.

B. Establishment of District.

1. **Requirements.** A Mixed Use District may only include lots in the R5, CR, C1, C1.5, C2, C4, or C5 zones. Lots in the R3 or R4 zones may also be included in a Mixed Use District if they (1) abut a designated major or secondary highway; and (2) are also located in a Community Plan designated regional or community center.

A Mixed Use District shall contain no less than one Block Face. The total acreage in a Mixed Use District shall include contiguous parcels of land which may only be separated by public streets, alleys, or other physical features, or as determined by the Director of Planning, or the Director's designee. Precise boundaries are required to be delineated at the time of application or initiation of an individual rezoning application to Mixed Use District.

A Mixed Use District shall be consistent with the intent and purposes of the applicable Community Plan. If, as determined by the Director of Planning or the Director's designee, the provisions of this section conflict with those of an adopted specific plan, then the provisions of the specific plan shall prevail. If the provisions of this section conflict with any other citywide regulations except an adopted specific plan, then the provisions of this section shall prevail. If "Q" or "D" limitations have been imposed on a lot, then the most restrictive requirement shall prevail.

2. **Standard Provisions and Permitted Modifications.** In establishing an individual Mixed Use District, all of the standard provisions set forth in Subsection C., Uses; Subsection D., Yards; Subsection E., Development Incentives; Subsection F., Development Standards; and Subsection G., Pedestrian Orientation, shall apply.

However, based on an appropriate consideration of the proposed district's character, needs, and development potential, and the goals, objectives, and policies set forth in the applicable Community Plan, some of the standard provisions set forth in Subsections C. or E. may be eliminated or modified, as further described below.

3. **Definitions.** Notwithstanding any other provision of this article to the contrary, the following definitions shall apply to this section:

Automotive Uses means automobile and trailer sales areas, automobile dismantling yards, automotive fueling and service stations, and automotive repair uses as defined in Section 12.03.

Block Face is a lot or a group of lots that abuts on at least three sides a public street or other physical feature, or as determined by the Director of Planning, or the Director of Planning's designee.

Building Frontage means the maximum length of a line or lines formed by connecting the points representing projections of the exterior building walls onto a public street or onto a courtyard that is directly accessible by pedestrians from a public street, whichever distance is greater.

Central Parking Structure is a parking structure or surface lot accessible to and available for use by the public and identified as a Central Parking Structure in the individual ordinance establishing the Mixed Use District.

Commercial Uses means those uses as first permitted in the CR, C1, C1.5, C2, C4, or C5 zones, including guest rooms and hotels as defined in Section 12.03 and Community Facilities as defined by this section.

Community Facilities means the following uses as first permitted by the CR zone and designed to serve the community-at-large: non-profit museums or libraries; child or adult day care facilities or nursery schools; churches or houses of worship (except rescue missions or temporary revivals); community centers or meeting rooms owned and operated by a governmental agency or non-profit organization; cultural centers owned and operated by a governmental agency or non-profit organization; schools, elementary or high; educational institutions; police substations; and telecommuting centers.

Corner Lot means a lot located at the intersection of at least two streets designated on the Transportation Element of the General Plan as either a major, secondary, or other highway classification, or a collector street. At least one of the streets at the intersection must be a designated highway.

Facade Treatment is a rooftop architectural embellishment such as a Mansard roof that is constructed on the street-facing side of a Mixed Use Project.

Ground Floor is the lowest story within a building which is accessible from the street, the floor level of which is within three feet above or below curb level.

Major Bus Center means the intersection of two bus routes, one of which is a major bus route.

Major Bus Route means a bus route that is served by bus lines with evening peak hour headways of fifteen minutes or less and shown on a map approved by and reviewed annually by the City Planning Commission. A bus route is one that is currently in operation within the route network of the Los Angeles County Metropolitan Transportation Authority, its successor agencies or other municipal transit operators but not including the City of Los Angeles' DASH system or its successor agencies.

Mass Transit Station is a portal or platform at a transit stop for a fixed rail transit system. Portal means the street-level entrance, exit, or escalator. A Mass Transit Station is a facility that is currently in use, that a full funding contract for a proposed station's location and portals has been signed by all funding partners, or one that a resolution to fund a preferred alignment has been adopted by the Los Angeles County Metropolitan Transportation Authority or its successor agency which resolution details specific station and portal locations.

Mixed Use Project means a Project which combines one or more Commercial Uses and multiple dwelling units in a single building or in a Unified Development and which provides the following:

- (1) a separate, Ground Floor entrance to the residential component, or a lobby that serves both the residential and Commercial Uses components; and
- (2) a pedestrian entrance to the Commercial Uses component that is directly accessible from a public street, and that is open during the normal business hours posted by the business.

A minimum of 35 percent of the Ground Floor Building Frontage abutting a public commercially zoned street, excluding driveways or pedestrian entrances, must be designed to accommodate Commercial Uses to a minimum depth of 25 feet.

Pedestrian Amenities means outdoor sidewalk cafes, public plazas, retail courtyards, water features, kiosks, paseos, arcades, patios, covered walkways, or spaces for outdoor dining or seating that are located on the Ground Floor, and that are accessible to and available for use by the public.

Project means the construction of a commercial, residential, or Mixed Use Project in a single building or in a Unified Development.

Unified Development means a development of two or more buildings which have functional linkages such as

pedestrian or vehicular connections, with common architectural and landscape features which constitute distinctive design elements of the development, and that appears to be a consolidated whole when viewed from adjoining streets. Unified Developments may include two or more contiguous parcels or lots of record separated only by a street or alley.

4. **Supplemental Findings.** In order to establish a Mixed Use District, the City Council must also find that adequate infrastructure exists (including, but not limited to, schools, streets, and sewers) to support any added development permitted by the district. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

C. Uses. Notwithstanding any other provision of this chapter to the contrary, the following provisions shall apply:

1. Community Facilities that are part of a Mixed Use Project are permitted in the R3 or R4 zones if the lot or lots abut a Major Bus Route.
2. Commercial Uses that are part of a Mixed Use Project are permitted on lots in the R5 zone, except Automotive Uses as defined in Section 13.09 B.3. and open storage, including incidental open storage.
3. Projects comprised exclusively of dwelling units are not permitted on lots in the CR, C1, C1.5, C2, C4, or C5 zone, except with the approval of the Zoning Administrator pursuant to Section 12.27 I.23. However, the individual ordinance establishing a Mixed use District may amend this provision and permit Projects comprised exclusively of dwelling units in all or parts of the District.
4. If the City Council finds that further restricting the uses in a Mixed Use District is appropriate in light of the proposed district's character, needs, and development potential, and the goals, policies, and objectives set forth in the applicable Community Plan, then the Council may do so in the ordinance establishing the district.

D. Yards. Notwithstanding any other provisions of this article to the contrary, the following yards shall apply to Mixed Use Projects:

1. The yards of the CR zone shall apply to the non-residential component on lots in the R3 or R4 zones.
2. The following yards shall apply to lots in the R5 zone:
 - (a) The yards of the C2 zone shall apply to the non-residential component.
 - (b) No yards shall apply to the residential component if it abuts a street, private street, or alley.

E. Development Incentives. Notwithstanding any other provisions of this chapter to the contrary, the following development incentives shall apply in Mixed Use Districts:

1. **Housing.** The individual ordinance establishing a Mixed Use District shall establish an incentive for dwelling units in Mixed Use Projects. The amount of the incentive shall be based on an appropriate consideration of the proposed district's character, needs, and development potential, and the goals, policies, and objectives set forth in the applicable Community Plan.

The incentive shall be shown on the “**Zoning Map**” by use of the capital letters “MU” for Mixed Use Projects and “C” for Commercial Uses, preceded by the applicable numerical limits. The first two-digit number before the diagonal line shall indicate the maximum height permitted. The first number after the diagonal line, which may include a decimal fraction, shall indicate the maximum permitted floor area ratio (FAR). For example, a Mixed Use District zoned C2 45/2.0-MU 35/1.5-C means that a Mixed Use Project may not exceed a maximum height of 45 feet for the entire Project or an FAR of 2.0. The Commercial Uses in a Mixed Use Project would be restricted to a maximum FAR of 1.5. Projects comprised exclusively of Commercial Uses would be restricted to a maximum height of 35 feet and a maximum FAR of 1.5. If the letter “U” appears before the diagonal line instead of a number, then an unlimited height is permitted.

- (a) If a height or FAR housing incentive would result in a maximum height or FAR which exceeds that of the underlying base zone, then the Project may not proceed until the height district of the base zone is changed.
- (b) The minimum dwelling unit FAR for Mixed Use Projects with a total FAR of 6.0 or greater is 1.5
- (c) The lot area requirements of the R5 zone shall apply to Mixed Use Projects with a total FAR of 6.0 or greater.

2. **Pedestrian Amenities.** Pedestrian Amenities shall not be included in the calculation of permitted FAR.

3. **Parking.** If a proposed Mixed Use District includes lots within 1,500 feet of a Mass Transit Station or Major Bus Center, or lots within 750 feet of a Central Parking Structure, then the individual ordinance establishing the Mixed Use District shall include a parking incentive which specifies a reduction in the number of parking spaces required by Section 12.21 A.4. Provided, however, a minimum of two spaces for every 1,000 square feet of non-residential floor area shall be required. In determining the appropriate level of parking reduction, the City Council shall consider such factors as local transit dependency and automobile usage, traffic, available parking, and level of transit service, and the goals, policies, and objectives set forth in the applicable Community Plan.

(a) **Transit Facilities.** The transit facility incentive shall be restricted to dwelling units and Commercial Uses in Mixed Use Projects within 1,500 feet of a Mass Transit Station or Major Bus Center.

(b) **Central Parking Structures.** The Central Parking Structure incentive shall be restricted to Commercial Uses within 750 feet of a Central Parking Structure. To make use of this incentive, the owner(s) of the Central Parking Structure must execute and record in the Los Angeles County Recorder's Office, a covenant and agreement for the benefit of the City of Los Angeles which provides that the required parking shall be maintained in perpetuity or until the Director of Planning determines that it is no longer necessary. This incentive may not be combined with the transit facility incentive set forth in (a) above.

(c) **Measurement of Distance.** Distance from a transit facility or Central Parking Structure shall be measured as specified in Section 12.21 A.4.(g).

(d) **Downtown Exceptions.** The parking incentive for dwelling units as set forth in Section 13.09 E.3.(a) above shall not be authorized in the Parking Exception Area for the Central City as described in Section 12.21 A.4.(p). The parking incentive for Commercial Uses as set forth in Section 13.09 E.3.(a) and (b) above shall not be authorized in the Downtown Business District Exception Area as described in Section 12.21 A.4.(I).

(e) **Affordable Housing.** The transit facility and Central Parking Structure incentives set forth above shall not be combined with the parking reduction provided for affordable housing as set forth in Section 12.22 A.37., 12.22 A.38., or 12.22 A.39. of this Code. **(Amended by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

4. Facade Treatments, Corner Lots, and Community Facilities. (Amended by Ord. No. 173,492, Eff. 10/10/00.) Each Mixed Use Project shall be entitled to one of the following incentives by right. To obtain an entitlement for two or more of these incentives, the approval of the Zoning Administrator pursuant to Section 12.24 W.28. is required.

(a) **Facade Treatments.** Unless eliminated or modified by the individual ordinance establishing a Mixed Use District, if the maximum height otherwise permitted by the underlying zone or established pursuant to Section 13.09 E.1. above is less than 100 feet, then a Mixed Use Project is entitled to an increase in height of no more than ten feet, provided that the additional height is used for a Facade Treatment.

The individual ordinance establishing the Mixed Use District may not modify the following restrictions:

(1) The Facade Treatment incentive may not be utilized on lots adjacent to or abutting an RW1 or more restrictive zone as defined by Sections 12.04 or 12.23;

(2) The Facade Treatment incentive may not be combined with the Corner Lot incentive described in Paragraph (b) below; and

(3) The Facade Treatment incentive may not be used for signs or to increase the floor area of a structure.

(b) **Corner Lots.** Unless eliminated or modified by the individual ordinance establishing a Mixed Use District, a Mixed Use Project on a Corner Lot is entitled to an increase in height, FAR, and residential density for dwelling units that is 20 percent greater than what is otherwise permitted by the underlying zone or what is established pursuant to Section 13.09 E.1. above.

The individual ordinance establishing the Mixed Use District may not modify the following restrictions:

(1) Unless a conditional use permit pursuant to Section 12.24 W.28. is also obtained, a Mixed Use Project which secures an affordable housing density bonus pursuant to California Government Code Section 65915 shall not also be entitled to the Corner Lot incentive; and

(2) The Corner Lot incentive may not be utilized on lots adjacent to or abutting an RW1 Zone or a more restrictive zone as defined by Sections 12.04 or 12.23.

(c) **Community Facilities.** Unless modified by the individual ordinance establishing the Mixed Use District, no more than 75 percent of the total floor area of a child or adult day care facility, community meeting room, cultural center, museum or telecommuting center shall be included in the calculation of permitted FAR.

5. Mini-Shopping Centers and Commercial Corner Developments. (Amended by Ord. No. 172,350, Eff. 1/30/99.) Mixed Use Projects are exempt from the regulations governing Mini-Shopping Centers and Commercial Corner Developments as set forth in Section 12.22 A.23.

F. Development Standards. Notwithstanding the requirements of any other provision of this chapter to the contrary, all Projects shall comply with the following development standards.

1. Landscaping and Surface Parking Lots. (Amended by Ord. No. 175,223, Eff. 6/30/03.) Landscaping of Projects and surface parking lots shall be provided in accordance with the requirements set forth in Sections 12.41, 12.42, 12.43 and 12.22

A.23.(10)(ii) (mini-shopping centers and commercial corner developments) of the Code. Projects must also comply with the following additional requirements:

(a) **Open Areas.** All open areas not used for buildings, driveways, parking, recreational facilities, or Pedestrian Amenities shall be landscaped by shrubs, trees, ground cover, lawns, planter boxes, flowers, or fountains.

(b) **Pavement.** Paved areas, excluding parking and driveway areas, shall consist of enhanced paving materials such as stamped concrete, permeable paved surfaces, tile, and/or brick pavers.

(c) **Street Trees.** At least one 24-inch box street tree shall be planted in the public right-of-way on center, or in a pattern satisfactory to the Bureau of Street Maintenance, for every 25 feet of street frontage.

2. **Open Space.** All Projects shall comply with the open space requirements for six or more residential units pursuant to Section 12.21 G.

3. **Facade Relief.** Building Frontage shall be designed to comply with the following requirements. These standards do not apply to accessory buildings, additions, remodels, or any change of use in an existing building.

(a) Horizontal architectural treatments and/or facade articulations such as cornices, friezes, balconies, awnings, Pedestrian Amenities, or other features shall be provided for every 30 feet of building height visible from a street.

(b) If a Project includes 40 or more feet of Building Frontage visible from a street, then vertical architectural treatments and/or facade articulations such as columns, pilasters, indentations, or other features shall be provided for every 25 feet. The minimum width of each vertical break shall be eight feet and the minimum depth shall be two feet.

4. **Signage.** Signage shall comply with the requirements of Section 12.22 A.23.(a)(6) (mini- shopping centers and commercial corner developments). **(Amended by Ord. No. 175,223, Eff. 6/30/03.)**

5. **Noise Control.** Any dwelling unit exterior wall including windows and doors having a line of sight to a major highway, secondary highway, or other designated highway shall be constructed so as to provide a Sound Transmission Class of 50 or greater, as defined in the Uniform Building Code Standard No. 35-1, 1979 Edition. The developer, as an alternative, may retain an acoustical engineer to submit evidence, along with the application for a building permit, specifying any alternative means of sound insulation sufficient to reduce interior noise levels below 45 dBA in any habitable room.

6. **Rooftop Appurtenances.** All ventilation, heating, or air conditioning ducts, tubes, equipment, or other related rooftop appurtenances shall be screened when viewed from adjacent streets.

G. Pedestrian Orientation. The individual ordinance establishing a Mixed Use District, may designate some or all of the lots in the district as “**pedestrian oriented.**” The decision as to which lots shall be designated as “**pedestrian oriented**” shall be based on an appropriate consideration of the proposed district’s character, needs, and development potential, and the goals, policies, and objectives set forth in the applicable Community Plan.

The following development standards, in addition to the development standards set forth in Subsection F. above, shall apply to all Projects constructed on lots designated as pedestrian oriented. These standards shall not apply to accessory buildings, additions, remodels, or any change of use in an existing building.

1. **Ground Floor Commercial Uses.** One hundred percent of the Ground Floor Building Frontage abutting a public commercially zoned street, excluding driveways or pedestrian entrances, shall be designed to accommodate Commercial Uses to a minimum depth of 25 feet.

2. **Building Frontage.** Building Frontage shall, for its first 15 feet of height, be located within five feet of the front lot line and within five feet of a side yard lot line adjacent to a public street and shall extend at least 65 percent of the length of the lot line.

3. **Pedestrian Amenities.** Notwithstanding the Building Frontage requirements in 2 above, if a Pedestrian Amenity is provided, the required Building Frontage may be set back up to 15 feet along the portion of that amenity.

4. **Location of Pedestrian Entrances.** Each individual tenant or business space located on the Ground Floor shall have an entrance directly accessible from the street at the same grade as the sidewalk, and the entrance shall remain open during the normal business hours posted by the business.

5. **Openings in Building Frontages for Vehicular Access.** Vehicular access shall be provided from side streets or alleys if available. Where side street or alley access is not available, not more than one 20-foot wide driveway shall be provided per 100 feet of Building Frontage, and not more than two driveways shall be permitted per building.

6. **Parking.** Surface parking lots or parking structures shall be located behind the required Building Frontage, in the rear, interior portion of the lot that does not front on the street.

7. **Transparency of Building Frontage.** Building Frontage shall comply with the requirements of Section 12.22 A.23.(a)(3)

(mini-shopping centers and commercial corner developments). (Amended by Ord. No. 175,223, Eff. 6/30/03.)

SEC. 13.10. FENCE HEIGHTS DISTRICT.

(New Sec. 13.10 Added by Ord. No. 172,460, Eff. 3/22/99.)

A. Purpose. This section sets forth procedures, guidelines and standards for the establishment of Fence Height Districts (FH) in residential areas of the City. The purpose of the Fence Height District (FH) is to permit open wrought iron fences in the front yards of properties in residential zones to be higher than normally permitted by this Code in areas where special circumstances such as a high rate of residential burglary or other crimes, or the character of the neighborhood necessitates the erection of those fences.

B. Establishment of Districts. The procedures set forth in Sec. 13B.1.4. (Zone Change) of Chapter 1A of this Code shall be followed except that each Fence Height District (FH) shall include only lots which are in residential zones, and shall not include lots which are in Hillside Areas, in the Coastal Zone, in Historic Preservation Overlay Zones, or in Specific Plan Areas. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

C. Development Regulations. Fences not exceeding six feet in height above the adjacent natural ground level are permitted in the required front yards of lots in a Fence Height District (FH), provided that:

1. The fences are of open wrought iron, with any solid portion of the fence, including vegetation or similar obstruction, not exceeding three and one-half feet in height.
2. The fences may be supported by solid six- foot high pilasters with a maximum dimension of 24 inches and spaced not less than eight feet apart on center.
3. No vertical wrought iron member shall be greater than 5/8 inches in diameter nor spaced less than four inches apart on center.
4. No horizontal wrought iron member shall be greater than one inch in diameter nor spaced less than 18 inches apart on center.
5. No vegetation of any type which produces a hedge-like effect shall be allowed to grow upon or adjacent to the fence to a height above three foot six inches.
6. The wrought iron fence and pilasters shall be setback from the front property line a minimum of 18 inches and shall be maintained with landscaping and serviced by an automatic irrigation system.
7. A minimum five-foot by five-foot cut corner shall be provided wherever the wrought iron fence meets the driveway.
8. All lighting fixtures supported by the fence, if provided, shall be in full compliance with the Los Angeles Municipal Code with regard to illumination and an after-hours inspection shall be requested by the owner to assure levels of illumination are acceptable. This inspection shall be conducted by the Lighting Enforcement Division of the Department of Building and Safety and a fee paid for the inspection by the applicant.
9. Any driveway gate(s) shall be of open wrought iron, and if provided, shall be no more than six feet in height and shall either be sliding or be designed to open inward to the property. If an electric driveway gate of open wrought iron is provided, it shall have a gate operator approved by an approved testing laboratory and shall incorporate a safety device to interrupt gate operation in case the gate becomes blocked.
10. A 10-foot by 10-foot visibility triangle pursuant to Section 12.21 C.7.(a) shall be provided on corner lots and the fence shall be clear of any obstruction above three feet six inches.
11. If any pilaster is within five feet of a driveway, a convex mirror at least 12 inches in diameter shall be placed so as to provide visibility in the direction blocked by the pilaster for the drivers of vehicles exiting the driveway.

SEC. 13.11. "SN" SIGN DISTRICT.

(Added by Ord. No. 174,552, Eff. 6/16/02.)

A. Purpose. This section sets forth procedures, guidelines and standards for the establishment of "SN" Sign Districts in areas of the City, the unique characteristics of which can be enhanced by the imposition of special sign regulations designed to enhance the theme or unique qualities of that district, or which eliminate blight through a sign reduction program.

B. Establishment of Districts. The procedures set forth in Sec. 13B.1.4. (Zone Change) of Chapter 1A of this Code shall be followed, however each "SN" Sign District shall include only properties in the C or M Zones, except that R5 Zone properties may be included in a "SN" Sign District provided that the R5 zoned lot is located within an area designated on an adopted community plan as a "Regional Center", "Regional Commercial", or "High Intensity Commercial", or within any redevelopment project area. No "SN" Sign District shall contain less than one block or three acres in area, whichever is the smaller. The total acreage in the district shall include

contiguous parcels of land which may only be separated by public streets, ways or alleys, or other physical features, or as set forth in the rules approved by the Director of Planning. Precise boundaries are required at the time of application for or initiation of an individual district. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

C. Development Regulations. The Department of Building and Safety shall not issue a building permit for a sign within a “SN” Sign District unless the sign conforms to the regulations set forth in a specific “SN” Sign District ordinance. The development regulations for each “SN” Sign District shall be determined at the time the district is established, except that definitions shall conform with those found in Section 91.6203 of this Code, if defined in that section. The sign regulations shall enhance the character of the district by addressing the location, number, square footage, height, light illumination, hours of illumination, sign reduction program, duration of signs, design and types of signs permitted, as well as other characteristics, and can include murals, supergraphics, and other on-site and off-site signs. However, the regulations for a “SN” Sign District cannot supersede the regulations of an Historic Preservation Overlay District, a legally-adopted specific plan, supplemental use district or zoning regulation needed to implement the provisions of an approved development agreement.

SEC. 13.11.1. “TCN” TRANSPORTATION COMMUNICATION NETWORK DISTRICT.

(Added by Ord. No. 188,081, Eff. 2/5/24.)

A. Purpose. This section sets forth procedures and standards for the establishment of a Transportation Communication Network “TCN” District, the unique characteristics of which can be enhanced by the imposition of special sign regulations designed to facilitate the implementation of the Los Angeles County Metropolitan Transportation Authority’s (LACMTA) Transportation Communication Network (TCN) program citywide, which will provide intelligent transportation technology, public and commercial messaging, service alerts, revenue generation, and blight reduction through a City-wide sign reduction program.

B. Establishment of Districts.

1. The City Council, the City Planning Commission, and the Director of Planning shall have the authority to initiate, establish, or adjust the boundaries of a Transportation Communication Network (TCN) District. Applications for the establishment or expansion of a TCN District shall not be permitted.

2. The procedures set forth in Section 12.32 S. of this Code shall be followed for the initiation of the TCN District, provided that a TCN District shall only include parcels that are zoned C (Commercial), M (Industrial), PF (Public Facilities), CW (Central City Specific Plan), CM (Commercial Manufacturing), ADP (Alameda District Specific Plan) or LAX (Los Angeles International Airport Specific Plan), or are located in an equivalent specific plan zone, and that are owned by LACMTA at the time of district initiation. For the purposes of this section, any parcel with a zoning designation of PF (Public Facilities) in a portion of the TCN District shall be considered equivalent to a C (Commercial) zone.

3. A TCN District may encompass an area which is subject to, in whole or in part, a Specific Plan. If the provisions of a TCN District conflict with any City-wide regulations in the Los Angeles Municipal Code, specific plan, or supplemental use districts, other than a Historic Preservation Overlay Zone, then the requirements of the TCN District shall prevail.

4. A TCN District may include contiguous and non-contiguous parcels. Precise parcel and district boundaries are required at the time of initiation to create or expand a TCN District.

C. Development Regulations.

1. The only signs and sign support structures that a TCN District shall be permitted to authorize, above and beyond those signs and sign support structures authorized by the signage regulations in Article 4.4, shall be digital displays and associated sign support structures. These signs may display offsite advertising, and the applicability of Article 4.4 to those signs permitted by a TCN District shall be outlined in the ordinance establishing the TCN District.

2. The ordinance establishing a TCN District shall specify the height limitations, maximum sign area, and operational standards, including, but not limited to, hours of operation, digital display refresh rates, and monitoring, allowed for each of the proposed signs. Furthermore, the ordinance shall include requirements for off-site sign reduction that, at minimum, results in a net reduction in off-site signs City-wide.

D. Conformance. The Department of Building and Safety shall not issue a building permit for a sign within a TCN District unless the Director of Planning issues an Administrative Clearance or other approval indicating the sign conforms to the regulations set forth in the specific TCN District Ordinance.

SEC. 13.12. "NSO" NEIGHBORHOOD STABILIZATION OVERLAY DISTRICT.

(Added by Ord. No. 180,219, Eff. 11/16/08.)

A. Purpose. This section sets forth procedures, guidelines and standards for the establishment of “NSO” Neighborhood Stabilization Overlay Districts in areas of the City that are proximate to colleges and universities. The purpose of the NSO District is to protect and preserve the existing low density housing stock; to maintain and enhance the quality of life of area residents; to promote well-planned student housing; to establish regulations that address the negative impacts multi-habitable room projects cause; to address inadequate

parking; to prevent irreversible damage associated with oversized multi-habitable room projects and to help stabilize neighborhoods. The purpose of the NSO District is also to ensure that future Projects are designed to be compatible with buildings that are adjacent or across the street.

B. Establishment of the District.

1. **Requirements.** Each application for the establishment of a “NSO” Neighborhood Stabilization Overlay District shall follow the procedures set forth in Sec. 13B.1.4. (Zone Change) of Chapter 1A of this Code, except that each “NSO” Neighborhood Stabilization Overlay District shall include only properties in the R2, RD, R3, RAS, R4, R5, CR, C1, C1.5, C2, C4, C5 or CM zones. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

2. **Radius.** The radius of a “NSO” Neighborhood Stabilization Overlay District shall be at least one-quarter mile and no more than one mile from the physical boundaries of a college or university. The District shall not generally be less than one-quarter mile radius wide.

3. **Boundaries.** The boundaries shall be along street frontages and shall not split parcels. The precise boundary of a District may be adjusted for urban features such as topography, freeways or streets / highways. Precise boundaries are required at the time of application for or initiation of an individual District. The “NSO” Neighborhood Stabilization Overlay District shall include contiguous parcels of residentially and commercially zoned parcels, which may only be separated by public streets, ways or alleys or other physical features, or as set forth in the rules approved by the Director of Planning. A “NSO” Neighborhood Stabilization Overlay District may encompass an area that is designated, in whole or in part, as a Historic Preservation Overlay Zone and/or Specific Plan area.

4. **Definitions.** Notwithstanding any other provision of this article to the contrary, the following definitions shall apply to this section:

Affordable Housing Units. Dwelling units or guest rooms for which rental payments do not exceed the limits established by the Los Angeles Housing Department for persons and families whose income does not exceed 30% - 120% of Area Median Income (AMI), adjusted for family size by the United States Department of Housing and Urban Development in accordance with adjustment factors established and amended from time to time pursuant to Section 8 of the United States Housing Act of 1937. The income limits are defined as lower, low, moderate, very low, or extremely low income households in Sections 50079.5, 50093, 50105 and 50106 of the California Health and Safety Code. **(Amended by Ord. No. 187,122, Eff. 8/8/21.)**

Area Median Income (AMI). The median income in Los Angeles County as determined annually by the California Department of Housing and Community Development (HCD) or any successor agency, adjusted for household size.

Project. The construction, erection, addition to, enlargement of or reconfiguration of any one-family dwelling or multiple-family dwelling units or portions of dwelling units in the R2, RD, R3, RAS, R4, R5, CR, C1, C1.5, C2, C4, C5 or CM zones that create at least one dwelling unit with five or more habitable rooms.

A project shall not include any of the following uses:

- (1) Dormitories on an official college or university campus; or
- (2) Any qualifying Affordable Housing Units.

5. **Findings.** In order to establish a “NSO” Neighborhood Stabilization Overlay District, the City Council shall find that Neighborhood Stabilization Overlay regulations will protect and enhance the character of the District by regulating building bulk caused by buildings with five or more habitable rooms per unit; and that the District is negatively impacted by excessive on-street parking resulting from residential units designed for student housing, which do not provide adequate off-street parking.

C. Development Regulations. All property within a District shall be subject to the following conditions:

1. **Building Permit.** The Department of Building and Safety shall not issue a building permit for a Project within a “NSO” Neighborhood Stabilization Overlay District unless a conditional use approval has been granted pursuant to Section 12.24 W.52. of this Code.

2. **Parking Requirements.** Any Project shall, in addition to complying with the parking requirements of Section 12.21 A.4.(a) of this Code, also provide one additional parking space for each habitable room at or above five habitable rooms.

SEC. 13.13. “RFA” RESIDENTIAL FLOOR AREA DISTRICT.

(Added by Ord. No. 179,883, Eff. 6/29/08.)

A. Purpose. This section sets forth procedures and guidelines for the establishment of “RFA” Residential Floor Area Districts in residential areas of the City. The purpose of the “RFA” Residential Floor Area District is to permit residential floor area maximums in residential zones to be higher or lower than normally permitted by this Code in areas where the proposed district will further enhance the

existing scale of homes and help to preserve the existing character of the neighborhood as effectively as the residential floor area limitations established in this Code; and where the increased or decreased residential floor area maximums will be consistent with the policies and objectives set forth in the applicable Community Plan.

B. Establishment of the District. The procedures set forth in Sec. 13B.1.4. (Zone Change) of Chapter 1A of this Code shall be followed, however each “RFA” Residential Floor Area District shall include only properties in the RA, RE, RS, or R1 zones. The district shall not generally be less than 100 acres in area. The precise boundary of a district may be adjusted for urban features such as topography, freeways or streets / highways. Boundaries shall be along street frontages and shall not split parcels. An “RFA” Residential Floor Area District may encompass an area, which is designated, in whole or in part, as a Historic Preservation Overlay Zone and/or Specific Plan. The “RFA” Residential Floor Area District shall include contiguous parcels, which may only be separated by public streets, ways or alleys or other physical features, or as set forth in the rules approved by the Director of Planning. Precise boundaries are required at the time of application for or initiation of an individual district. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

C. Development Regulations. The Department of Building and Safety shall not issue a building permit for a residential structure within an “RFA” Residential Floor Area District unless the residential structure conforms to the regulations set forth in a specific “RFA” Residential Floor Area District. The development regulations for each “RFA” Residential Floor Area District shall be determined at the time the district is established. The development regulations shall enhance the character of the district.

SEC. 13.14. "CPIO" COMMUNITY PLAN IMPLEMENTATION OVERLAY DISTRICT.

(Added by Ord. No. 181,412, Eff. 1/2/11.)

A. Purpose. This section sets forth procedures, guidelines, and standards for establishment of the “CPIO” Community Plan Implementation Overlay Districts within any zone in the City. The purpose of the CPIO District is to provide for supplemental development regulations tailored to each Community Plan area to:

1. Ensure that development enhances the unique architectural, environmental, and cultural qualities of each Community Plan area, integrates improvements and enhancements to the public right-of-way, and maintains compatible land uses, scale, intensity, and density;
2. Create an approval process to enable infill development that will positively impact communities.

B. Relationship to Other Zoning Regulations. Where the provisions of a CPIO District conflict with those of a Specific Plan or Historic Preservation Overlay Zone (HPOZ), then the provisions of the Specific Plan or HPOZ shall prevail. Regulations contained in the CPIO District dealing with uses, height, floor area ratio, and/or signage shall be more restrictive than applicable regulations in the underlying zone(s) and other supplemental use districts. If the provisions of the CPIO conflict with any other City-wide regulations in the Los Angeles Municipal Code or supplemental use districts other than a Specific Plan or HPOZ, then the requirements of the CPIO District shall prevail.

C. Establishment of the District. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

1. **Initiation.** The initiation of the establishment of a CPIO District or a change in boundaries of a district shall follow the procedures set forth in Sec. 13B.1.4. (Zone Change) of Chapter 1A of this Code. In addition, each CPIO District shall have a minimum of one mapped CPIO District Subarea, as defined in Subsection D. of this section, to enable the initiation and activation of a CPIO District for an entire Community Plan Area.

2. **Zoning Classification.** At the time of establishment, the City Council may, pursuant to Sec. 13B.1.3. (Zoning Code Amendment) of Chapter 1A of this Code, adopt an ordinance to amend Section 12.04 of this Code to establish a zoning classification to indicate the Community Plan Area in which the CPIO is located and the corresponding Subarea as defined in Subsection E. of this section.

3. **Boundaries.** A CPIO District shall share the boundaries of a Community Plan and contain at least one Subarea. Precise boundaries of the Subarea are required at the time of application for or initiation of an individual District.

4. **Amendments to a CPIO.** The procedures for amending a CPIO District or its Subareas, or adopting additional Subareas within an established CPIO District, are set forth in Sec. 13B.1.4. (Zone Change) of Chapter 1A of this Code.

5. **Supplemental Findings.** In adopting a CPIO District, the City Council shall also find that the supplemental development regulations of the CPIO District are consistent with, and necessary to implement, the programs, policies, or urban design guidelines of the Community Plan for that area.

D. Definitions.

Community Plan Implementation Overlay (CPIO) Subarea. A further defined area within the CPIO District in which Community Plan programs and/or policies are implemented through supplemental development regulations. Subareas may be contiguous or non-contiguous parcels characterized by common Community Plan goals, themes and policies and grouped by a common boundary.

E. Content of a CPIO District. Each CPIO District shall contain the following:

1. **Subarea Boundaries.** A map showing all sites within the District's Subarea(s).
2. **Project.** A definition of the term "Project", which shall set forth the type of developments or uses subject to the supplemental development regulations and/or processes. The District may define the term "Project" differently for each Subarea.
3. **Supplemental Development Regulations.** Supplemental development regulations and definitions that may apply to any zone and/or public right-of-way within a CPIO District's Subarea(s).

F. Issuance of Permits. For all Projects within a CPIO Subarea, the Department of Building and Safety shall not issue a grading, building or change of use permit unless an Administrative Review, CPIO Adjustment, or CPIO Exception has been obtained pursuant to the applicable procedures in Subsection G. of this Section. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

G. Review Procedures for Projects within a CPIO District. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.) For all Projects within a CPIO District's Subarea(s), an applicant shall follow the applicable procedures set forth below:

1. **Administrative Review – Authority of the Director.** An applicant for a Project that complies with the provisions of an adopted CPIO District shall submit plans to the Director for an Administrative Review pursuant to Sec. 13B.3.1. (Administrative Review) of Chapter 1A of this Code. Projects which do not comply with the applicable CPIO District regulations may request relief through the procedures set forth in Subsections 2. and 3. of this section.

2. **Community Plan Implementation Overlay Adjustment – Director Authority with Appeals to the Area Planning Commission.** The Director or the Director's designee shall have initial decision-making authority to grant a CPIO Adjustment with an appeal to the Area Planning Commission in accordance with the procedures set forth in Sec. 13B.4.4. (Project Adjustment) of Chapter 1A of this Code.

- (a) **Applicability.** Notwithstanding the provisions set forth in Sec. 13B.4.4. (Project Adjustment) of Chapter 1A of this Code, unless otherwise limited by a CPIO District or CPIO District Subarea, a CPIO Adjustment shall be limited to deviations of up to 20 percent from the quantitative supplemental development regulations or minor adjustments from the qualitative supplemental development regulations in an adopted CPIO Subarea.

Each adopted CPIO ordinance shall indicate those development regulations which are not eligible for an adjustment through this Section. If an application requests more than one CPIO Adjustment, the Director may advise the applicant, prior to the application being deemed complete, that the request be filed and processed as a Project Exception, pursuant to Subsection 3. of this section. To the extent that a CPIO contains sign regulations, signs shall not qualify for relief through a CPIO Adjustment. All other Projects seeking relief from any development regulation which contains prohibition language, or development regulations otherwise designated in the CPIO as not eligible for adjustments, shall be processed through the Project Exception procedures listed under Subsection 3. of this section.

- (b) **Findings.** The Director's determination shall include written findings in support of the determination. Instead of the findings set forth in Sec. 13B.4.4. (Project Adjustment) of Chapter 1A of this Code, in order to approve a proposed project pursuant to this subsection, the Director must find that:

- (i) There are special circumstances applicable to the project or project site which make the strict application of the CPIO regulation(s) impractical;

- (ii) The project, as approved, is consistent with the purpose and intent of the CPIO and substantially complies with the applicable CPIO regulations;

- (iii) In granting the adjustment, the Director has considered and found no detrimental effects of the adjustment on surrounding properties or public rights-of-way;

- (iv) The project incorporates mitigation measures, monitoring of measures when necessary, or alternatives identified in the environmental review which would mitigate the negative environmental effects of the project, to the extent physically feasible; and

- (v) The project is compatible with the neighborhood character of the CPIO District Subarea.

3. **Exceptions from a "CPIO" – Area Planning Commission Authority with Appeals to the City Council.**

- (a) **Area Planning Commission Authority.** The Area Planning Commission shall have initial decision-making authority for granting exceptions from CPIO regulations with an appeal to the City Council in accordance with the procedures set forth in Sec. 13B.4.5. (Project Exception) of Chapter 1A of this Code.

In granting an exception from CPIO regulations, the Area Planning Commission shall impose conditions to remedy any resulting disparity of privilege, to protect the public health, safety, welfare, and to assure compliance with the objectives of the General Plan and the purpose and intent of the CPIO District. An exception from a CPIO regulation shall not be used to grant a special privilege, nor to grant relief from self-imposed hardships.

(b) **Findings.** Instead of the findings set forth in Sec. 13B.4.5. (Project Exception) of Chapter 1A of this Code, the Area Planning Commission may permit an exception from a CPIO regulation not involving signage if it makes all the following findings:

- (i) The strict application of the CPIO regulations to the subject property would result in practical difficulties or unnecessary hardships inconsistent with the general purpose and intent of the CPIO District and its regulations;
- (ii) There are exceptional circumstances or conditions applicable to the subject property involved or to the intended use or development of the subject property that do not apply generally to other properties in the CPIO District and/or Subarea;
- (iii) An exception from the CPIO regulation is necessary for the preservation and enjoyment of a substantial property right or use generally possessed by other property within the CPIO District and/or Subarea in the same zone and vicinity but which, because of special circumstances and practical difficulties or unnecessary hardships, is denied to the property in question;
- (iv) The granting of an exception will not be detrimental to the public welfare or injurious to the property or improvements adjacent to or in the vicinity of the subject property; and
- (v) The granting of an exception will be consistent with the principles, intent and goals of the CPIO District and/or Subarea and any applicable element of the General Plan.

Instead of the findings set forth in Sec. 13B.4.5. (Project Exception) of Chapter 1A of this Code, the Area Planning Commission may permit an exception from a CPIO regulation concerning signage if it makes all the following findings:

- (i) Strict compliance would result in practical difficulty or unnecessary hardship inconsistent with the purposes of the zoning restrictions due to unique existing physical circumstances on the subject property;
- (ii) An exception from the CPIO regulation is necessary for the preservation and enjoyment of a substantial property right or use generally possessed by other property within the CPIO District and/or Subarea in the same zone and vicinity but which, because of special circumstances and practical difficulties or unnecessary hardships, is denied to the property in question;
- (iii) The exception would not constitute a special grant of privilege.

SEC. 13.15. "MPR" MODIFIED PARKING REQUIREMENT DISTRICT.

(Title Amended by Ord. No. 184,246, Eff. 6/4/16.)

A. Establishment of Districts. The procedures to establish a Modified Parking Requirement (MPR) District shall be as set forth in Sec. 13B.1.4. (Zone Change) of Chapter 1A of this Code. With the exception of the Adaptive Reuse Incentives Areas Specific Plan and the South Central Alcohol Sales Specific Plan, no MPR District shall be established in an area governed by a specific plan established before or after the effective date of this ordinance. Each ordinance creating an MPR District shall establish one or more of the strategies listed in Subsection D. for the District area. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

B. Size and Boundaries. An MPR District shall encompass a minimum of two entire block faces (as defined in Section 13.09 B.3. of this Code) or a minimum of five acres in area. The boundaries of the MPR District shall be set by ordinance.

C. Findings. In making the report required by Sec. 13B.1.4. (Zone Change) of Chapter 1A of this Code, the City Planning Commission shall also report to the Council on whether the District, and the strategies included in the District, are appropriate considering such factors as local transit service and dependency, automobile usage, traffic, available parking, and the goals, policies, and objectives set forth in the applicable community plan. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

D. Modified Parking Requirement (MPR) District Strategies. Any ordinance creating an MPR District shall adopt one or more of the seven strategies listed in this subsection for the MPR District area.

1. **Change of Use Parking Standards.** The required number of parking spaces for any permitted use in the District shall be the same as the number of spaces that exist on the lot on the date the ordinance creating the District becomes effective.

2. **Off-site Parking.** The parking spaces required by Section 12.21 A.4. of this Code shall be provided either on the same lot as the use for which they are intended to serve or 1,500 feet therefrom. If parking spaces are provided off-site, they must be

guaranteed through a recorded covenant agreement that reserves the spaces exclusively for the use in question. Distance is to be measured along any street, alley, public walk, or private easement that allows public pedestrian travel from the parking area to the use it is to serve.

3. **Parking Reduction Approval.** A Zoning Administrator may approve reduced parking requirements for individual projects pursuant to Section 12.24 X.30. of this Code.

4. **Decreased Parking Requirements.** An MPR District may establish parking requirements that are less restrictive than those set forth in Section 12.21 A.4. of this Code. The ordinance creating the District shall identify each use that is granted modified parking requirements, along with each use's new parking requirement. Otherwise, the number of required parking spaces shall be governed by Section 12.21 A.4. Before adopting any ordinance creating an MPR District that includes Decreased Parking Requirements, the City Council must find that:

- a. The parking reduction, taking into account impacts such as parking overflow and increased traffic congestion and potential benefits such as enhanced mobility and neighborhood vitality, will not adversely affect the surrounding neighborhood; and
- b. There exists a combination of parking management programs, transportation alternatives, or other infrastructure improvements, and commercial building access programs that negate the need for increased parking requirements; and
- c. Flexible transportation approaches and parking management programs are more consistent with the area's air quality goals, community character and general plan than an increased number of required parking spaces.

5. **Increased Parking Requirements.** An MPR District may establish parking requirements that are more restrictive than those required in Paragraph 12.21 A.4. of this Code. The ordinance creating the District shall identify each use that is assigned increased parking requirements, along with each use's new parking requirement. Otherwise, the number of required spaces shall be governed by Section 12.21 A.4. Before adopting any ordinance creating an MPR District that includes Increased Parking Requirements, the City Council must find that:

- a. There is a lack of transit service in the area; or
- b. There is a high potential for spillover parking impacts on adjacent residential areas; or
- c. There is a low probability that parking management programs, transportation demand management programs, or public parking facilities will be available or effective in the area.

6. **Commercial Parking Credits.** An MPR District may authorize parking requirements to be satisfied through the creation of a parking credit program. The number of available parking credits shall be established by a survey that identifies the number of underutilized public parking spaces available within the District at various times of the day. The ordinance creating the District shall list the number of credits available in the area, and the number of credits required to support a specific use for various times of the day.

7. **Maximum Parking Requirements.** An MPR District may establish maximum parking requirements. The ordinance creating the District shall set forth each use for which maximum parking requirements apply, as well as the specific parking limits for that use. Otherwise, the parking requirements set forth in Section 12.21 A.4. shall apply.

E. **Applicability of Modified Parking Strategies to Residential Uses.** This Section shall apply to lots where the zoning regulations permit multi-residential uses as follows:

1. An MPR District shall not authorize any of the strategies listed above, except for the strategies described in Subsections D.5. and D.6., for any lot that contained a residential use subject to the Rent Stabilization Ordinance, or that contained any Restricted Affordable units within the five years preceding the adoption of the MPR District. Required parking on such properties, however, may be reduced pursuant to Sections 12.22 A.37., 12.22 A.38., or 12.22 A.39. of this Code, or pursuant to any other applicable affordable housing incentive program. **(Amended by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

2. Minimum parking requirements for multi-residential uses in an MPR district shall be less restrictive for projects that qualify for a density bonus under Sections 12.22 A.37., 12.22 A.38., or 12.22 A.39. of this Code. **(Amended by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

SEC. 13.16. "HS" HILLSIDE STANDARDS OVERLAY DISTRICT.

(Added by Ord. No. 181,624, Eff. 5/9/11.)

A. **Purpose.** This Section sets forth procedures and guidelines for the establishment of "HS" Hillside Standards Overlay Districts in single-family residential neighborhoods in designated Hillside Areas, as defined in Section 12.03 of this Chapter, throughout the City. The purpose of the "HS" Hillside Standards Overlay District is to permit Residential Floor Area, height, and Grading limits in the R1, RS, RE, and RA zones to be higher or lower than normally permitted by this Code in areas where the proposed overlay will further enhance the existing scale of homes and/or help to preserve the existing character of the neighborhood as effectively as the limitations or

requirements otherwise established in this Code; and where these changes will be consistent with the policies and objectives set forth in the applicable Community Plan.

B. Establishment of the District. The procedures set forth in Sec. 13B.1.4. (Zone Change) of Chapter 1A of this Code shall be followed, however, each “HS” Hillside Standards Overlay District shall include only properties in the RA, RE, RS, or R1 zones. The overlay shall not generally be less than 100 acres in area; however, the 100 acres do not need to be within one contiguous boundary as long as no one subarea is less than 25 acres in area, and the entire 100 acres is located within an overall area of 200 contiguous acres. The precise boundary of a district may be adjusted for urban features such as topography, freeways or Streets / Highways. Boundaries shall be along Street Frontages and shall not split parcels. An “HS” Hillside Standards Overlay District may encompass an area, which is designated, in whole or in part, as a Historic Preservation Overlay Zone and/or Specific Plan. The “HS” Hillside Standards Overlay District shall include contiguous parcels, which may only be separated by public Streets, ways or alleys or other physical features, or as set forth in the rules approved by the Director of Planning. Precise boundaries are required at the time of application for, or initiation of, an individual overlay. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

C. Development Regulations. The Department of Building and Safety shall not issue a Building permit for a residential Structure within an “HS” Hillside Standards Overlay District unless the residential Structure conforms to the regulations set forth in a specific “HS” Hillside Standards Overlay District. The development regulations for each “HS” Hillside Standards Overlay District shall be limited to changes in the numerical values of the Residential Floor Area, height, and Grading limits in the R1, RS, RE, and RA zones stated in this Chapter (Subdivision 10. of Subsection C. of Section 12.21 - Paragraphs (a) Residential Floor Area, (d) Height Limits, and (f) Grading) and shall not result in a substantial deviation in approach, method of calculation, or measurement from the corresponding language already in place in this Chapter 1. The development regulations shall be determined at the time the overlay is established. The development regulations shall serve to enhance the existing or envisioned character of the overlay.

SEC. 13.17. "RIO" RIVER IMPROVEMENT OVERLAY DISTRICT.

(Added by Ord. No. 183,145, Eff. 8/20/14.)

A. Purpose. This section sets forth procedures and standards for the establishment of River Improvement Overlay (RIO) districts within river or tributary (river) adjacent areas throughout the City. The purpose of a RIO district is to:

1. Support the goals of the Los Angeles River Revitalization Master Plan;
2. Contribute to the environmental and ecological health of the City’s watersheds;
3. Establish a positive interface between river adjacent property and river parks and/or greenways;
4. Promote pedestrian, bicycle and other multi- modal connection between the river and its surrounding neighborhoods;
5. Provide native habitat and support local species;
6. Provide an aesthetically pleasing environment for pedestrians and bicyclists accessing the river area;
7. Provide safe, convenient access to and circulation along the river;
8. Promote the river identity of river adjacent communities; and
9. Support the Low Impact Development Ordinance, the City’s Irrigation Guidelines, and the Standard Urban Stormwater Maintenance Program.

B. Establishment of Districts. The City Council may establish new districts, or change boundaries of districts, by following the procedures set forth in Sec. 13B.1.4. (Zone Change) of Chapter 1A of this Code. Precise boundaries are required at the time of application to expand or create a RIO district. The RIO District shall include all public and private land uses within its boundaries. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

C. Definitions. For the purposes of this section, the following words and phrases are defined as follows:

Adjacent. Properties whose property lines abut a river or a river frontage road.

Inner Core. Projects located adjacent to the river.

Los Angeles County's River Master Plan's Landscaping Guidelines and Plant Palettes. A plant palette comprised primarily of native plants suitable for a riparian habitat. The Guidelines can be found at: http://ladpw.org/wmd/watershed/LA/LARPlanting_guidelineswebversion.pdf

Native Plant. A native plant is one that occurs naturally in a given geographic area. These can be trees, flowers, grasses or any other plants included in the California Native Plant Library at: http://www.theodorepayne.org/mediawiki/index.php_?title=Main_Page

Outer Core. Projects not located adjacent to the river.

Project. The erection, construction, addition to, or exterior structural alteration of any building or structure located within a River Improvement District. A Project does not include construction work that consists solely of (1) interior remodeling, interior rehabilitation work or repair work; or (2) alterations of, including structural repairs, or additions to, any existing building in which the aggregate value of the work, in any one 24-month period, is less than 50 percent of the building's replacement cost before the alterations or additions as determined by the Department of Building and Safety (DBS). Construction costs are based on a valuation table available on the DBS website. The table lists the cost of construction per square foot.

Public Right-of-Way (ROW). A parcel of land over which the public can legally traverse. Usually a street, road, sidewalk or footpath.

River. A general term for a body of flowing water. A river may be classified in relation to time as follows: perennial (flows continuously) or intermittent (flows seasonally).

River Design Guidelines. The design guidelines used in RIO districts, which may be modified for use in particular districts.

River Frontage Road. A roadway that runs roughly parallel to, and directly adjacent to, the river corridor as defined in each RIO ordinance.

Riverfront Door. An exterior door of a Project that faces and is directly accessible from the adjacent river corridor or river frontage road.

WatershedWise Plants. Plants included in the WatershedWise Plant List published by the Council for Watershed Health and available at: <http://www.watershedhealth.org>

D. Application. Each individual RIO district shall incorporate all of the regulations contained in Subsection F., below. Notwithstanding the foregoing, an individual RIO district ordinance may include development standards tailored to that district, in which case those specially tailored development standards shall supersede any inconsistent provisions of the regulations contained in Subsection F., below. An individual RIO district ordinance shall apply to a particular geographical area. The regulations contained in this section are in addition to the use and area regulations applicable to the underlying zone. If the provisions of this section conflict with any other city-wide regulations, then the most restrictive requirements shall prevail.

E. Issuance of Building Permits. The Department of Building and Safety shall not issue a building permit for a Project within either the Inner or Outer Core area of a RIO district, unless an Administrative Review, RIO Adjustment or RIO Exception, whichever is applicable, has been obtained pursuant to the applicable procedures in Subsection G., below. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

F. Development Regulations. A Project shall conform to all of the following development regulations, except as modified by an individual RIO district.

1. Landscaping shall conform to the following regulations: 75 percent of any Project's newly landscaped area shall be planted with any combination of the following: native trees, plants and shrubs, or species defined as WatershedWise, or species listed in the Los Angeles County River Master Plan Landscaping Guidelines and Plant Palettes. This requirement is for new landscaping only and does not apply to existing landscaping.

2. **Screening/Fencing.**

(a) Loading areas and off-street parking facilities of three spaces or more, either on a surface lot or in a structure, shall be screened from the abutting public right-of-way and the River. However, such screening shall not obstruct the view of a driver entering or leaving the loading area or parking facility, or the view from the street of entrances and exits to a loading area or parking facility, and shall consist of one or a combination of the following:

(i) A strip at least 5 feet in width of densely planted shrubs or trees which are at least 2 feet high at the time of planting and are of a type that may be expected to form, within three years after time of planting, a continuous, unbroken, year round visual screen; or

(ii) A wall, barrier or fence of uniform appearance. Such wall, barrier or fence may be opaque or perforated, provided that not more than 50 percent of the face is open. The wall, barrier or fence shall, when located in either the rear or side yards, be at least 4 feet and not more than 6 feet in height.

(b) Electrical transformers, mechanical equipment, water meters and other equipment shall be screened from public view. The screening may be opaque or perforated, provided that not more than 50 percent of the face is open. The screen shall be at least 6 inches taller than the equipment and not more than 2 feet taller than the equipment.

(c) Exterior trash enclosures shall:

(i) be designed to complement the primary building with a wall height that exceeds the disposal unit it is

designed to contain by at least 18 inches;

- (ii) have a solid roof to deter birds and block views from adjacent properties;
- (iii) have solid metal doors that accommodate a lock and remain closed when not in use; and
- (iv) not be constructed of chain link or wood.

(d) With the exception of single-family homes, all projects facing a street that crosses the river or terminates at the river or a river frontage road shall have all fences within the front or side yards visible from said street consistent with the fence designs identified in the Los Angeles County River Master Plan Landscape Guidelines.

3. Exterior Site Lighting.

(a) All site and building mounted lighting shall be designed such that it produces a maximum initial luminance value no greater than 0.20 horizontal and vertical foot candles at the site boundary, and no greater than 0.01 horizontal foot candles 15 feet beyond the site. No more than 5.0 percent of the total initial designed lumens shall be emitted at an angle of 90 degrees or higher from nadir (straight down).

(b) All low pressure sodium, high pressure sodium, metal halide, fluorescent, quartz, incandescent greater than 60 watts, mercury vapor, and halogen fixtures shall be fully shielded in such a manner as to not exceed the limitations in Subdivision 3.(a), above.

4. Projects located partially or wholly within the Inner Core shall also conform to the following regulations:

(a) **Landscape Buffer.** All Projects shall provide a 10-foot landscape buffer as measured from the Project's property line adjacent to the river except where a roadway is located within that 10 feet. New building structures or parking shall not be permitted within the 10-foot landscape buffer.

(b) **Fence.** All fences located within 10 feet of the river corridor or a river frontage road street or any adjacent street shall be consistent with the fence designs identified in the Los Angeles County River Master Plan Landscape Guidelines. With the exception of single-family homes, all Projects shall be required to maintain a visual connection between the river corridor and/or frontage road and the abutting property.

(c) **Fence Height.** All fences located less than 10 feet from the river shall be no higher than 6 feet in height. All fences located at the 10 foot landscape buffer setback line shall not exceed 10 feet in height. A fence located within a landscape buffer that is also a project's front yard shall be limited in height to 3 feet 6 inches.

(d) **Gates.** All gates or fences located within 10 feet of the river or a river frontage road shall be consistent with the gate designs identified in the Los Angeles County River Master Plan Landscape Guidelines. The gate height shall be consistent with the adjacent fence height and the gate shall be designed so as not to encroach into either the river, street or public right-of-way when opened.

(e) **Noise.** All projects subject to a conditional use permit for the sale or dispensing of alcoholic beverages, including beer and wine, shall incorporate noise-attenuating features (physical as well as operational) designed by a licensed acoustical sound engineer to assure that operational sounds shall not exceed 5 decibels above the existing measured or presumed ambient levels of the property line(s) of properties on the opposite bank.

(f) River Access.

(i) With the exception of single-family homes, all river adjacent projects that partially or wholly abut the river shall have Americans with Disabilities Act compliant access gates from their property to the river. The gates shall also be accessible for bicycle entry. Access may be controlled and limited to residents, employees and/or visitors of the project.

(ii) All single-family home projects that partially or wholly abut the river shall have access gates from their property to the river. Access may be controlled and limited, as desired by the owner.

(g) **Riverfront Door.** All projects located either adjacent to the river corridor or frontage road shall include a riverfront door visible to, and accessible from, the river corridor or frontage road.

EXCEPTION: In a landscaped area, horticulture such as herbs, fruit or vegetables can be used to replace up to 100 percent of the plantings that satisfy the, WatershedWise, Native or Los Angeles County River Master Plan Landscape Guidelines planting requirements.

G. Administrative Review Procedures for any Project within a RIO District. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.) A Project within a RIO District shall require an Administrative Review, as set forth below:

1. **Administrative Review – Authority of the Director.** A RIO approval shall be processed as an Administrative Review pursuant to Sec. 13B.3.1. (Administrative Review) of Chapter 1A of this Code. Projects which do not comply with the applicable RIO District regulations may request relief through the procedures set forth in Subdivisions 2. and 3. of this Subsection.

2. **Adjustments – Director Authority with Appeals to the Area Planning Commission.** The Director or the Director's designee shall have initial decision-making authority to grant a RIO Adjustment with an appeal to the Area Planning Commission in accordance with the procedures set forth in Sec. 13B.4.4. (Project Adjustment) of Chapter 1A of this Code.

(a) **Applicability.** Notwithstanding the provisions set forth in Sec. 13B.4.4. (Project Adjustment) of Chapter 1A of this Code, unless further limited by a RIO District, a RIO Adjustment shall be limited to deviations of up to 20 percent from the quantitative supplemental development regulations or minor adjustments from the qualitative supplemental development regulations in an adopted RIO Subarea.

Each adopted RIO ordinance shall indicate those development regulations which are not eligible for an adjustment through this section. If an application requests more than two RIO Adjustments, the request will be filed and processed as a RIO exception pursuant to Subdivision 3. of this Subsection. To the extent that a RIO contains sign regulations, signs shall not qualify for relief through a RIO Adjustment. All other Projects seeking relief from any development regulation which contains prohibition language, or development regulations otherwise designated in the RIO as not eligible for adjustments, shall be processed through the RIO Exception procedures listed under Subdivision 3. of this Subsection.

(b) **Findings.** Instead of the findings set forth in Sec. 13B.4.4. (Project Adjustment) of Chapter 1A of this Code, the Director may grant an adjustment upon making all of the following findings:

(i) There are special circumstances applicable to the project or project site which make the strict application of the RIO regulation(s) impractical;

(ii) The project, as approved, is consistent with the purpose and intent of the RIO and substantially complies with the applicable RIO regulations;

(iii) In granting the adjustment, the Director has considered and found no detrimental effects of the adjustment on surrounding properties or public right-of- way; and

(iv) The project incorporates mitigation measures, monitoring of measures when necessary, or alternatives identified in the environmental review which would mitigate the negative environmental effects of the project, to the extent physically feasible.

3. **Exceptions – Area Planning Commission Authority with Appeals to the City Council.**

(a) **Area Planning Commission Authority.** The Area Planning Commission shall have initial decision-making authority for granting exceptions from RIO regulations with an appeal to the City Council in accordance with the procedures set forth in Sec. 13B.4.5. (Project Exception) of Chapter 1A of this Code.

In granting an exception from RIO regulations, the Area Planning Commission shall impose conditions to protect the public health, safety and welfare, and to assure compliance with the objectives of the General Plan and the purpose and intent of the RIO District. An exception from a RIO regulation shall not be used to grant a special privilege, nor to grant relief from self-imposed hardships.

(b) **Findings for a Project Not Involving Signage.** Instead of the findings set forth in Sec. 13B.4.5. (Project Exception) of Chapter 1A of this Code, the Area Planning Commission may permit an exception from a RIO regulation not involving signage if it makes all the following findings:

(i) The strict application of the RIO regulations to the subject property would result in practical difficulties or unnecessary hardships inconsistent with the general purpose and intent of the RIO District and its regulations;

(ii) There are exceptional circumstances or conditions applicable to the subject property involved or to the intended use or development of the subject property that do not apply generally to other properties in the RIO District;

(iii) An exception from the RIO regulation is necessary for the preservation and enjoyment of a substantial property right or use generally possessed by other property within the RIO District within the same zone and vicinity, but which, because of special circumstances and practical difficulties or unnecessary hardships, is denied to the property in question;

(iv) The granting of an exception will not be detrimental to the public welfare or injurious to the property or improvements adjacent to, or in the vicinity of, the subject property; and

(v) The granting of an exception will be consistent with the principles, intent and goals of the RIO District and

any applicable element of the General Plan.

H. River Design Guidelines. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.) The Director of Planning shall prepare River Design Guidelines applicable to all RIO districts. The initial adoption and any subsequent amendment to these guidelines shall be made pursuant to the following procedures:

1. **Initiation.** The initial adoption or amendment of the guidelines may be initiated by the Director of Planning, the City Planning Commission or City Council.

2. **Preparation and Content.** Upon initiation, the Director shall prepare, or cause to be prepared, proposed guidelines based on the design policies contained in the Los Angeles River Revitalization Master Plan.

The guidelines are in addition to the regulations set forth in the planning and zoning provisions of Los Angeles Municipal Code Chapter 1, as amended, and any other relevant ordinances, and do not convey any rights not otherwise granted under the provisions and procedures contained in that chapter and other relevant ordinances, except as specifically provided herein.

Furthermore, nothing in the guidelines shall interfere with any previously granted entitlements, nor shall they restrict any right authorized in the underlying zone or height district.

3. **Procedures.** See Sec. 13B.1.5. (Policy Action) of Chapter 1A of this Code.

SEC. 13.18. "CUGU" CLEAN UP GREEN UP DISTRICT.

(Added by Ord. No. 184,246, Eff. 6/4/16.)

A. Purpose. This section sets forth procedures and standards for the establishment of the CUGU District. The purpose of the CUGU District is to reduce cumulative health impacts resulting from land uses including, but not limited to, concentrated industrial land use, on-road vehicle travel, and heavily freight-dominated transportation corridors, which are incompatible with the sensitive uses to which they are in close proximity, such as homes, schools and other sensitive uses.

B. Relationship to other Zoning Regulations. Wherever the provisions of the CUGU District conflict with any provisions of other Supplemental Use Districts, the underlying zone, or any other regulation, the more restrictive provision shall prevail.

C. District Identification. The provisions of this ordinance shall apply to all properties identified on the zoning map with a "CUGU" suffix on the zone classification. The CUGU District shall include all public and private land uses.

D. Definitions. For the purposes of this section, the following words and phrases are defined as follows:

1. **Adjacent Property.** A property next to, across the street or alley from, or having a common corner with the subject property.

2. **Abutting Property.** A property sharing a parcel or lot line.

3. **Freeway.** A divided arterial highway with full control of access and with grade separation at intersections.

4. **Fugitive Emissions.** Emissions not caught by a mechanically ventilated system or other capture system, which are often due to equipment leaks, evaporative processes and/or windblown disturbances.

5. **Hedge.** A row of bushes or small trees planted close together to form a fence or boundary; hedgerow.

6. **Landscape Practitioner.** Any person licensed by the State of California to design, install or maintain landscape or irrigation systems; or any person specifically exempted by the State from the licensing requirements in the field of landscape or land management; or any homeowner who designs, installs or maintains landscaping or irrigation systems on the homeowner's own property.

7. **Publicly Habitable Spaces.** Any use containing one or more dwelling unit or guest room, as well as a school, park, recreation center, day care center, hospital, medical building and nursing home.

E. Qualifying Criteria. A project that satisfies at least one criterion under the "Project Type" list in Subdivision 1. below, and at least one criterion under the "Project Context" list in Subdivision 2. below shall comply with the provisions of this section.

1. **Project Type.**

(a) **NEW.** The construction of a new stand-alone building.

(b) **MAJOR IMPROVEMENT.** The alteration of any building(s) or structure(s) on a project site which does not expand the building(s) or structure(s), and for which the aggregate value of the alterations within any 24-month period exceeds 50 percent of the replacement cost of the building(s) and structure(s) on the project site, as determined by the

Department of Building and Safety. Notwithstanding the provisions of Section 12.23, the existence of a Major Improvement on a project site shall require the entire project site to be upgraded in accordance with all applicable provisions of Section 13.18 of this Code.

(c) **ADDITION.** The expansion of any existing building(s) or structure(s), with or without other alterations to the building(s) or structure(s), on a project site in which the total aggregate value of work in any 24-month period exceeds 50 percent of the replacement cost of all buildings and structures on the entire project site, as determined by the Department of Building and Safety. Notwithstanding the provisions of Section 12.23, an addition shall be upgraded in accordance with all applicable provisions of Section 13.18 of this Code.

(d) **CHANGE OF USE.** The expansion of or change to a use on the Subject Use list.

2. Project Context.

(a) Project is a municipal project located within 1,000 feet of a Freeway or State Route specified in LAMC Section 13.18 F.4.

(b) Project is a Publically Habitable Space adjacent to a Subject Use.

(c) Primary use of site is a Subject Use adjacent to a Publicly Habitable Space.

(d) Primary use of site is a Subject Use, as listed below:

Subject Use List

AUTOMOTIVE USES

Automobile Dismantling Yard
Automobile Impound Yard
Automobile Parts
Automobile Parts, repairing or rebuilding for wholesale
Automobile Rebuilding or Reconditioning, wholesale
Automobile Rental
Automobile Sales, used
Automobile Storage Area
Automobile Storage Garage
Automobile Window Tinting
Automobile Wrecking
Automotive Assembly, wholesale
Automotive Exhaust Test Station
Automotive Fueling and Service Station and Fuel Store
Automotive Refueling Station
Automotive Glass Shop
Automotive Painting
Automotive Painting, wholesale
Automotive Repair
Automotive Sound Shop
Automotive Undercoat Spraying, wholesale
Automotive Upholstering
Automotive Upholstering, wholesale
Automotive Uses, other
Body and Fender Repairing, automotive
Body and Fender Repairing, automotive, wholesale
Bus Storage or Operating Yard
Car Wash
Commercial Vehicle Rental and Storage
Engine Testing
Gasoline Station
House Mover or Wrecker
Household Moving Rental Trucks and Trailers, rental, storage, or storage for rental purposes
Household Moving Truck Repair and Storage
Motor Coach Repairing or Overhauling
Motorcycle or Motor Scooter Repair
Motorcycle or Motor Scooter Repair, wholesale
Motorcycle or Motor Scooter Sales, new
Motorcycle or Motor Scooter Sales, used
Motorcycle Storage Garage
Moving Van Storage or Operating Yard
Recreational Vehicle Sales, new

Recreational Vehicle Sales, used
Recreational Vehicle Storage
Tank Truck Parking or Storage
Temporary Storage of Abandoned, Partially Dismantled, Obsolete, or Wrecked Automobiles
Tire Retreading or Recapping
Tow Truck Dispatching
Tractor Rental Yard
Trailer (utility) Rental and Storage
Trailer Rental
Trailer Sales, new
Trailer Sales, used
Truck Rental
Truck Repairing or Overhauling
Truck Sales or Storage Yard
Trucking Yard or Terminal
U-Drive Business

FABRICS

Carpet and Rug Cleaning Plant
Cloth Shrinking, Sponging, or Waterproofing
Dry Cleaning Plant
Dry Cleaning Plant, wholesale
Dyeing Works Plant
Fabric Shrinking, Sponging, Waterproofing, or Dyeing
Flocking and Silk Screen Processing
Fur Cleaning
Garneting or Carding of Previously Produced Fibrous Materials
Knitting Mill
Laundry Plant
Laundry Plant, wholesale
Rug Cleaning Plant
Silk Screen Printing

FOOD & ANIMAL

Cannery (except fish products or sauerkraut)
Cannery, fish or sauerkraut
Composting Facility
Curing Facility
Dehydrating of Food
Feeding Pen, stock
Fish Canning, Cleaning, or Curing
Fish Distributing, wholesale or stock wagon operators
Fish Smoking
Flour Mill
Food Commissary
Food Dehydrating Plant
Frozen Food Locker Rental
Fruit Cannery
Fruit Preserving
Grain Drying or Fermenting
Grain Elevator
Hatchery, poultry or fish
Hides (raw) Curing, Tanning, or Storage
Hog Ranch, Feed, or Sales Yard
Honey Processing and Packing
Kennel
Livestock Exhibition, Sale, or Stable
Meat Cutting Plant
Menagerie
Nut Roasting, Frying, or Candy Coating
Olive Oil Extraction
Packing Plant, fruit or vegetable
Pet Animal Crematory
Potato Chip Factory
Poultry Killing
Poultry Slaughterhouse, wholesale
Produce Market, wholesale
Produce Yard or Terminal

Rabbit Killing
Rabbit Slaughterhouse, wholesale
Retinning and Reconditioning of Milk
Shrimp (frozen) Cleaning, Breeding, Packaging, and Refreezing
Stockyard or Feeding Pen
Swine Ranch
Tanning, Curing, or Storing of Raw Hides or Skins
Vegetable Cannery

MANUFACTURING USES

Abrasives Manufacturing
Acetylene Gas Manufacturing or Storage
Acid Manufacturing
Adhesive Manufacturing, liquid
Advertising Structures Manufacturing
Agar-Agar Manufacturing
Alcohol Manufacturing
Ammonia Manufacturing
Ammunition Manufacturing
Anti-Knock Compound (for gasoline) Manufacturing
Asbestos Product Manufacturing
Asphalt Roofing Paper or Shingle Manufacturing
Automotive Body and Frame Manufacturing
Awning Manufacturing
Babbitt Metal Manufacturing
Barrel or Drum (steel) Manufacturing or Reclaiming
Bathing Cap Manufacturing
Bathtub Manufacturing
Battery Manufacturing
Billboard Manufacturing
Bleach Manufacturing
Bolt Manufacturing
Bone Products Manufacturing
Boneblack Manufacturing
Bottle Manufacturing
Box Spring Manufacturing
Brick Manufacturing
Briquette Manufacturing
Broom Manufacturing
Brush Manufacturing
Building Block Manufacturing
By-Product Products Manufacturing, from fish, meat, or animals
Can Manufacturing or Reconditioning
Canvas Manufacturing
Canvas Products Manufacturing,
Cap Manufacturing
Carbon Paper Manufacturing
Carpet and Rug Manufacturing
Cattle or Sheep Dip Manufacturing
CD, DVD, Video Tape, or Cassette Manufacturing
Cellophane Products Manufacturing
Cellulose Compound Manufacturing
Cellulose Nitrate Products Manufacturing
Cellulose Products Manufacturing
Cement Manufacturing
Cement Products Manufacturing
Cesspool Block Manufacturing
Chamois Skins Manufacturing
Charcoal Manufacturing
Chemical Manufacturing
Chewing Tobacco Manufacturing
Chlorine Gas Manufacturing
Cigar Manufacturing
Cigarette Manufacturing
Cloth Manufacturing
Cloth Products Manufacturing
Clothing Manufacturing
Coil Manufacturing, small

Coil Spring Manufacturing
Computer Manufacturing
Concrete Products Manufacturing
Condenser Manufacturing, small
Cork Manufacturing
Cork Products Manufacturing
Cosmetics Manufacturing
Creosote Manufacturing, Bulk Storage, or Treatment
Creosote Products Manufacturing
Crystal Holder Manufacturing
Dextrin Manufacturing
Disinfectant Manufacturing
Dog and Cat Food Manufacturing
Door Manufacturing
Dress Manufacturing
Drug Manufacturing
Dye Stuff Manufacturing
Electric Generator or Motor Manufacturing
Assembly and Manufacturing
Electric Parts
Electrical Equipment Manufacturing
Electrical Sign Manufacturing
Electronic Instruments and Devices Manufacturing
Electronic Products Assembly and Manufacturing
Emery Cloth Manufacturing
Excelsior Manufacturing
Explosives Manufacturing
Feather Products Manufacturing
Felt Manufacturing, burlap, fur, hair, or wood
Felt Manufacturing, cotton
Felt Products Manufacturing
Fencing (wire) Manufacturing
Fertilizer Manufacturing, liquid
Fertilizer Manufacturing, Processing, or Packaging
Fiber Manufacturing
Firearm Manufacturing
Fireworks Manufacturing or Storage
Fish Oil or Fishmeal Manufacturing
Food Products Manufacturing
Frit or Glaze Manufacturing
Fiber Products Manufacturing
Fur Products Manufacturing
Furniture Manufacturing
Garment Manufacturing
Gas Manufacturing
Gelatin Manufacturing
Glass Fiber Manufacturing
Glass Manufacturing
Glass Products Manufacturing
Glove Manufacturing
Glucose Manufacturing
Glue Manufacturing
Golf Balls Manufacturing
Graphite Manufacturing
Grease Manufacturing or Refining
Guncotton Products Manufacturing
Gunpowder Manufacturing and Storage
Gutta-perche, treating or manufacturing products therefrom
Gypsum Manufacturing, Processing, or Grinding
Hair Care Products Manufacturing
Hat Manufacturing
Heating Equipment Manufacturing
Heating Gas Manufacturing
Horn Products Manufacturing
Hosiery Manufacturing
Hydrochloric Acid Manufacturing
Ice Cream Manufacturing
Ice Manufacturing or Distributing

Incinerator Manufacturing
Ink Manufacturing
Inner Spring Manufacturing
Jewelry Manufacturing
Juice Manufacturing
Jute Products Manufacturing
Lacquer Manufacturing
Lampblack Manufacturing
Lard Manufacturing
Leather Machine Belt Manufacturing
Leather Products Manufacturing
Light Sheet Metal Products Manufacturing
Lime Manufacturing
Linoleum Manufacturing
Linseed Oil Manufacturing
Liquid Fertilizers Manufacturing
Liquid Coating for Beverage Tanks, manufacturing of
Machine Belt Manufacturing
Machinery Manufacturing
Mannequin Manufacturing
Mat Manufacturing
Match Manufacturing
Match Manufacturing, safety paper
Metals (precious or semi-precious), manufacturing products of
Metal Stamp Manufacture
Musical Instrument Manufacturing
Nail Manufacturing
Neon Light Manufacturing
Neon Sign Manufacturing
Nitric Acid Manufacturing
Nitrogen Manufacturing, Compressing, and Bulk Storage
Novelties Manufacturing
Oil Manufacture (vegetable)
Optical Goods Manufacturing
Orthopedic or Surgical Supplies Manufacturing
Oxygen Manufacturing, Compressing, and Bulk Storage
Paint Manufacturing
Paint Products Manufacturing
Paper Manufacturing or Converting
Paper Products Manufacturing
Pectin Manufacturing
Perfume Manufacturing
Perfumed Toilet Soap Manufacturing
Petroleum Manufacturing
Pharmaceuticals Manufacturing
Phenol Manufacturing
Phenol Products Manufacturing
Pickle Manufacturing
Pie Manufacturing
Plaster of Paris Manufacturing
Plastic Manufacturing
Plastic Products Manufacturing
Point Manufacturing
Polish Manufacturing
Potash Manufacturing
Pottery Manufacturing
Powdered Metal Parts or Articles Manufacturing
Pulp or Paper Manufacturing
Pyrotechnics Manufacturing
Pyroxylin Manufacturing
Rubber Cement Manufacturing
Rubber Products Manufacturing
Rubber Stamp Manufacturing
Rug Manufacturing
Sandpaper Manufacturing
Sash Manufacturing
Sauerkraut Manufacturing
Sausage Manufacturing

Scientific Instrument and Equipment Manufacturing
Screw Machine Products Manufacturing
Sheet Metal Products Manufacturing, light
Shell Manufacturing
Shellac Manufacturing
Shoddy Manufacturing
Shoe Manufacturing
Shoe Polish Manufacturing
Sign Manufacturing
Size Manufacturing
Soap Manufacturing
Sodium Compounds Manufacturing
Stamp Manufacturing
Starch Manufacturing
Statuary Manufacturing
Steel Pipe Manufacturing
Stencil Manufacturing
Stereo Equipment Manufacturing
Stones (precious or semi-precious), manufacturing products of
Stove Manufacturing
Stove Polish Manufacturing
Sulfuric Acid Manufacturing
Sulfurous Acid Manufacturing
Synthetic Rubber Products Manufacturing
Tallow Manufacturing
Tank Coating Manufacturing
Tank Retinning and Manufacturing
Tar Products Manufacturing
Tar Roofing Manufacturing
Tar Waterproofing Manufacturing
Textile Manufacturing
Textile Product Manufacturing
Tire Manufacturing
Tobacco Products Manufacturing
Toiletries Manufacturing
Tool Manufacturing
Toy Manufacturing
Trailer Manufacturing
Transformer Manufacturing, small
Turpentine Manufacturing
Typewriter Ribbon Manufacturing
Varnish Manufacturing
Vegetable Oil Manufacturing
Venetian Blind Manufacturing
Ventilating Duct Manufacturing
Vinegar Manufacturing
Wall Board Manufacturing
Washer Manufacturing
Waterproofing Compound Manufacturing
Window Manufacturing
Window Shade Manufacturing, cloth
Window Shade Manufacturing, wood or metal
Wire Fencing Manufacturing
Wire Manufacturing
Wood Products Manufacturing
Wool Products Manufacturing
Woven Wire Manufacturing
Yarn Products Manufacturing
Yeast Manufacturing

METALS

Blacksmith Shop
Blast Furnace
Blending and Mixing of Compounds for Case Hardening, Tempering
Boiler Works
Bolt or Screw Thread Rolling or Cutting
Brass Foundry
Bronze Casting

Case Hardening
Casting, heavyweight
Die Casting
Drop Forge Industry
Fabrication of Iron or Steel
Fabrication of Light Weight Steel
Forge Plant
Foundry (except iron, steel, brass, manganese, bronze and zinc)
Foundry, iron, steel, brass, manganese, bronze and zinc
Galvanizing of Metal or Metal Products
Heat Treating
Iron Foundry or Fabrication Plant
Iron Ore Pellet Loading and Unloading Facility
Iron Storage, Sorting, Collecting, or Baling
Iron Works, ornamental
Metal Products Inspection by X-Ray
Metal Roll Forming
Metal Spinning
Ore Reduction Plant
Quarry
Roll Forming of Metals, cold process
Rolling Mill
Screw Thread Rolling or Cutting
Sharpening or Grinding of Tools or Cutlery
Smelter, tin, copper, zinc, or iron ores
Steel Foundry or Fabrication Plant and Heavyweight Casting
Steel Mill
Tempering
Welding, acetylene or electric

OTHER

Aerosol Packaging
Asbestos Processing or Grinding
Battery Rebuilding
Blending and Mixing of Compounds for Water Softening, Boiler Cleaning
Book Bindery
Bottling Plant
Box and Crate Assembly
Box Factory or Cooperage
Building Materials Sales Yard
Cement Mixer Rental
Central Steam (heated, or chilled water)
Concrete Batching Plant
Cooperage Works
Cornice Works
Distillation of Bones
Earth or Soil Stockpiling, Distribution, or Excavating
Electric Appliance Assembly
Electric Foundry
Electric Motor Repair
Electronic Instruments and Devices Assembly
Electroplating of Small Articles
Electroplating Works
Embalming
Enameling Works
Engraving
Film Development / Printing Machines
Film Laboratory
Fumigating Plant
Funeral Parlor
Furniture Assembly Plant
Furniture Cleaning
Granite (decomposed) Excavating or Stockpiling
Granite Grinding, Dressing, or Cutting
Gravel Plant
Insecticide or Pesticide Blending or Mixing
Lapidary Shop
Liquor or Spirits Rectifying

Lubricating Oil Canning and Packaging
Lumber Yard, retail
Machine Shop
Machine Shop, precision
Machinery (farm) Repairing and Overhauling
Marble Grinding, Dressing, or Cutting
Mattress Factory or Renovating
Mausoleum
Monument Works
Morgue
Mortuary or Mortuary School
Oxygen, storage of compressed
Packaging Business
Paint Mixing
Phonograph Assembly
Photo Developing and Finishing
Pipe Reclaiming
Pipe Storage Yard
Planing Mill
Plaster Staff Works
Polish Mixing, automobile or furniture
Printing Establishment
Printing Establishment, wholesale
Printing or Stenciling Designs on Fabric, Cloth, or Wallpaper
Public Utilities Service Yard
Publishing Establishment
Publishing Establishment, wholesale
Pumping Plant
Radio and Television Assembly
Railroad Repair Shop
Repair Garage
Repair Shop
Research and Development Center Containers
Rock, Sand, Gravel, or Earth Distribution or Storage
Roofing Material Factory
Rope Factory
Roundhouse
Safe and Vault Repairing and Servicing
Salt Works
Salvage Business
Sand Blasting
Sand Pit
Saw Mill
Secondhand Box or Container Storage, Display, Processing, or Sales
Secondhand Furniture and Appliance Storage, Display, Processing, or Sales
Shellac Mixing
Shingle Mill
Starch (liquid) Mixing and Bottling
Stereo Equipment Assembly
Stone Mill or Quarry
Stone Monument Works
Sugar Refining
Testing Laboratory
Top Soil Stripping, Removing, or Stockpiling
Tree Wrecking Yard
Undertaking
Upholstery Shop
Water Softening Unit, servicing and refrigeration plant
Wax Polish Blending, Mixing, and Packaging
Wiping Rag Storage
Wire, application of rubber to
Wood Pulling or Scouring
Wood Yard
Woodworking Equipment Rental Shop
Woodworking Shop
Xeroxing

OTHER TRANSPORTATION

Aircraft Engine or Aircraft Part Repairing, Reconditioning, or Rebuilding
Aircraft Engine Testing
Aircraft Factory
Aircraft Fueling Station
Aircraft Hangar
Aircraft Landing Field
Aircraft Repairing
Airport
Boat Building, small
Draying Yard or Terminal
Electric Railroad Yard
Freight Classification Yard, railroad
Freight Forwarding Station or Terminal
Freighting Yard or Terminal
Marine Cargo Loading or Unloading, wharf or dock
Parcel Delivery Service
Railroad Yard
Shipbuilding
Train Station
Wharf or Dock for Marine Cargo

PETROLEUM-RELATED USES

Booster Pump Station, with in-line heater system for oil pipeline
Butane Gas Filling Station
Compressed Natural Gas Automotive Refueling Station
Fuel Yard
Gas Storage
Oil Drilling Equipment Yard
Oil Drilling or Pumping and Oil Pipeline Booster Pump Station
Oil Reclaiming
Petroleum Product Bulk Distributing Station
Petroleum Pumping

WAREHOUSE / DISTRIBUTION

Agricultural Equipment Sales Yard, wholesale
Appliances (secondhand) Storage, Display, Processing, or Sales
Barrel or Drum (secondhand) Storage, Display, Processing, or Sale
Barrel Storage, empty
Bottle Washing, Collection, or Storage
Boxes and Crates (secondhand) Storage, Display, Processing, or Sales
Cement (bulk) Transfer
Cement (bulk) Unloading and Distribution
Distributing Plant
Equipment Storage Yard
Clay Products Storage
Clay Products Storage Yard
Cold Storage Plant
Contractor's Equipment Rental Yard or Plant
Contractor's Equipment Storage Yard or Plant
Distribution Center, Plant, or Warehouse
Egg Candling and Distribution
Electric Motor Repair, wholesale
Feed Storage and Sales Yard
Fertilizer Sales, wholesale
Furniture (secondhand) Storage, Display, Processing, or Sales
Gravel Distribution
Hay Barn
Ice and Cold Storage Plant
Ice Storage Plant
Lumber Yard, wholesale
Milk Bottling or Distributing Station
Open Storage
Paper Collecting, Sorting, Storage, or Baling
Refrigeration Plant, storage
Sack Storage, Sorting, Collection, or Baling
Sand Distribution Plant
Storage Building
Storage Building for Household Goods, including truck rentals

Storage, open
Warehouse

WASTE DISPOSAL / MANAGEMENT

Building Materials Salvage Yard
Cesspool Pumping, Cleaning, and Draining
Chipping and Grinding Activities
Garbage Incineration, Reduction, or Dumping
Garbage, Fat, Offal, or Dead Animal Reduction or Rendering
Gardener's Refuse Collection Yard or Station
Hazardous Waste Facility, disposal
Hazardous Waste Facility, storage and/or treatment
Junk Yard
Junk Collection, Sorting, Storage, or Baling
Leaf Mold Storage, Composting, and Packaging
Lumber Yard, used materials and salvaging
Machinery Wrecking or Storage Yard
Manure Storage or Processing
Medical Waste Treatment
Mulching Facility
Offal or Dead Animal Dumping
Paper Scrap or Waste Storage
Storage, Sorting, Collecting, or Baling
Recyclable Materials Collection, Buyback Centers, Mobile Recycling Centers
Recycling Material Processing Facility
Refuse Dump
Refuse Transfer Station
Rubbish Incinerator or Storage
Sanitary Landfill
Scrap Iron Collection, Sorting, Storage, or Baling
Scrap Metal Collection, Sorting, Storage, or Baling
Scrap Metal Processing Yard
Sewage Treatment Facility
Sewage Disposal or Treatment Plant
Solid Waste Alternative Technology Processing Facility

F. Development Regulations. A project shall be subject to the following development regulations. A project that has been granted vested rights under Sec. 13B.10.1. (General Provisions) of Chapter 1A of this Code prior to the effective date of this ordinance is exempt. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

(Table 1 below provides a cross reference of development regulations by applicable project context. The regulation for a project within 1,000 feet of a Freeway or specified State Route shall be found in Section 13.18 F.4. of this Code.)

Table 1: Development Regulations by Applicable Project Context

Development Regulations	Subject Use		Subject Use Adjacent to Publicly Habitable Spaces		Publicly Habitable Spaces Adjacent to Public Use	
	Applicability	Reference	Applicability	Reference	Applicability	Reference
Development Regulations	Subject Use		Subject Use Adjacent to Publicly Habitable Spaces		Publicly Habitable Spaces Adjacent to Public Use	
	Applicability	Reference	Applicability	Reference	Applicability	Reference
Site Planning	√	13.18 F.1.(a)	√	13.18 F.2.(a)	√	13.18 F.3.(a)
Signage			√	13.18 F.2.(b)		
Lighting	√	13.18 F.1.(b)	√	13.18 F.2.(a)		
Enclosure	√	13.18 F.1.(c)	√	13.18 F.2.(c)		
Fencing			√	13.18 F.2.(d)		
Distancing Requirement			√	13.18 F.2.(e)		
Building Height			√	13.18 F.2.(f), 13.18 F.2.(g)		
Yard Setback			√	13.18 F.2.(h)		
Landscaping			√	13.18 F.2.(i)	√	13.18 F.3.(b)
Parking Design			√	13.18 F.2.(j)	√	13.18 F.3.(c)
Driveway			√	13.18 F.2.(k)		

Noise			√	13.18 F.2.(l)		
Storage of Merchandise			√	13.18 F.2.(m)		

1. **Subject Use.** Any Subject Use, as listed in 13.18 E.2.(d) of this Code, shall comply with the following development standards if the Project Type (pursuant to 13.18 E.1.) is applicable.

(a) **Site Planning** (applies to project types: NEW, MAJOR IMPROVEMENT, ADDITION, CHANGE OF USE).

(1) All trash receptacles shall be located within a gated, covered enclosure at least six feet in height.

(2) Chain link, barbed wire, and concertina wire fences are prohibited at the perimeter of the property.

(b) **Lighting** (applies to project types: NEW, MAJOR IMPROVEMENT, ADDITION, CHANGE OF USE). All outdoor lighting systems shall be directed away from the window of any residential uses and shall comply with the non-residential Light Pollution Reduction standards in the Green Building Code of this Code.

(c) **Enclosure** (applies to project types: NEW, ADDITION, CHANGE OF USE). A use, material or equipment that emits or generates dust, smoke, gas, fumes, cinder or refuse matter shall be completely enclosed with mechanical ventilation to prevent fugitive emissions unless another regulatory agency requires natural ventilation. A stack, vent or flare is exempt from this enclosure requirement.

2. Subject Use Adjacent to Publicly Habitable Spaces.

(a) All the standards in Section 13.18 F.1.(a) and 13.18 F.1.(b) (applies to project types: NEW, MAJOR IMPROVEMENT, ADDITION, CHANGE OF USE).

(b) **Signage** (applies to project types: NEW, MAJOR IMPROVEMENTS, ADDITION, CHANGE OF USE). Any use adjacent to Publicly Habitable Spaces with commercial vehicles, as defined by California Code of Regulations Title 13 Chapter 10 Section 2480 and 2485, shall post "No Idling" signage onsite at the back of the curb and adjacent to the entrance of at least one driveway where truck loading, staging or parking occurs.

(c) **Enclosure** (applies to project types: NEW, MAJOR IMPROVEMENT, ADDITION, CHANGE OF USE). A use, material or equipment that emits or generates dust, smoke, gas, fumes, cinder or refuse matter shall be completely enclosed with mechanical ventilation for the improved portions of the project to prevent fugitive emissions, unless another regulatory agency requires natural ventilation. A stack, vent and flare is exempt from this enclosure requirement.

(d) **Fencing** (applies to project types: NEW, MAJOR IMPROVEMENT, ADDITION, CHANGE OF USE). A use that abuts a Publicly Habitable Space shall construct a 6-foot high solid concrete or masonry wall for the entire length of the property line in the following zones: C2, C4, CM, MR1, M1, MR2, M2 and M3. The wall shall be without openings and shall have a minimum nominal thickness of 6 inches.

(e) **Distancing Requirement** (applies to project types: NEW, CHANGE OF USE). Any new automobile dismantling yard, exhaust test station, automobile laundries (car wash), automotive repair, used auto retail sales, assembly of auto parts and accessories, tire shop, tire repair, and wholesale auto parts and accessory facilities are prohibited within 500 feet of a residential zone.

(f) **Building Height** (applies to project types: NEW). Any new building or structure shall be within an encroachment plane sloping upward and inward at a 45 degree angle commencing 20 feet above the existing grade at the inside line of the side yard setback as illustrated below:

[\[Click here to view image\]](#)

Encroachment plane standards shall only be required when a Subject Use is abutting a Publicly Habitable Space.

(g) **Building Height** (applies to project types: ADDITIONS). Any additions to an existing building or structure shall be within an encroachment plane sloping upward and inward at a 45 degree angle commencing above the existing roof at the inside of the side yard setback as illustrated below:

[\[Click here to view image\]](#)

Encroachment plane standards shall only be required when a Subject Use is abutting a Publicly Habitable Space.

(h) **Yard Setback** (applies to project types: NEW, ADDITION). A new building, structure or addition shall provide the following setbacks indicated in Table 2 when abutting a Publicly Habitable Space. This regulation is not eligible for an Adjustment pursuant to Section 13.18 G.3.(c) of this Code.

Table 2: Manufacturing Zone Setbacks

	MR1 M1 MR2 M2	M3
Front	lot depth $\leq$ 100 ft: 5 ft	5% of lot depth, 5% of lot width; no less than 15 ft if within 500 ft if a PHS
	lot depth > 100 ft: 15 ft	
Side	lot width $\leq$ 30 ft: 3 ft	
	lot width > 30, < 50 ft: 5 ft	
	lot width $\geq$ 50: 15 ft	
Rear	lot depth $\leq$ 100 ft: 5 ft	
	lot depth > 100 ft: 15 ft	

(i) **Landscaping** (applies to project types: NEW, MAJOR IMPROVEMENT, ADDITION, CHANGE of USE).

(1) **Setbacks.** All required side and back yard setbacks in Section 13.18 F.2.(h) abutting a Publicly Habitable Space shall be landscaped to provide a buffer.

(2) **Planting.** A Landscape Practitioner shall select trees or hedges that are between 6 and 8 feet high, low in water use, low in biogenic emissions, high in carbon and particulate matter filtration qualities, and retain foliage for most months of the year. Trees shall be limited to selections from the Department of Public Works Bureau of Street Services, Street Tree Selection Guide, except non-drought tolerant trees and Palms shall be prohibited. A minimum of one tree shall be planted and maintained every 10 linear feet within the setback. A list of preferred trees is also provided in the CUGU application packet available at the Planning Department's Development Services Counter. Landscape Plans shall be submitted to the Department of City Planning for approval.

(3) **Irrigation.** Project applicants shall design and install irrigation systems pursuant to Guidelines BB – Irrigation Specification, promulgated pursuant to Section 12.41 B.2. of this Code.

(j) **Surface Parking Lot Design** (applies to project types: NEW, MAJOR IMPROVEMENT, ADDITION, CHANGE of USE).

(1) **Layout.** New on-site parking and loading areas (including service bays) shall be at the rear or side of the building.

(2) **Screening.** An existing or new parking lot that abuts a public right-of-way with five or more new spaces shall be screened at the perimeter by either landscape or hardscape.

(i) A landscaped screen shall be a combination of trees and shrubs. One tree shall be planted and maintained every 15 linear feet in accordance with Section 13.18 F.2.(i)(2) of this Code. Shrubs shall be planted and maintained between trees to create a visual screen. Illustrations of this requirement are provided in the CUGU application packet.

(ii) A hardscape screen shall be a wall, barrier, or fence of uniform appearance that is opaque or perforated (provided no more than 50 percent of the face is open). The structure shall be no less than 3 feet 6 inches in height. Chain link, barbed wire and concertina wire fences are prohibited.

(3) **Tree Planting.** One tree for every 4 new parking spaces shall be planted within the surface parking lot. When the application of these regulations results in the requirement of a fractional of a tree, any fraction over one-half shall be construed as requiring a whole tree. Parking spaces covered by solar carports functioning as shade structures are exempt from the calculation. Non-solar carports are not exempt from the calculation.

(i) The surface lot shall be graded to allow for ground water recharge into a minimum 3-foot by 3-foot unpaved planting area. This unpaved area shall be concave in design to receive runoff per Bureau of Engineering specifications.

(k) **Driveway** (applies to project types: NEW, MAJOR IMPROVEMENT, ADDITION, CHANGE OF USE).

(1) A new driveway shall maintain the minimum width required by Section 12.21 A.5.(f) of the LAMC, unless otherwise required by the Department of Transportation or Fire Department.

(2) For parcels less than 100 feet in width, the total sum of any new and existing driveway shall be no more than 30 percent of the total street frontage of the property. If existing conditions exceed 30 percent, no new driveway shall be added.

(3) For parcels equal to or greater than 100 feet in width, the total sum of any new and existing driveway shall be no more than 20 percent of the total street frontage of the property. If existing conditions exceed 30 percent, no new driveway shall be added.

(l) **Noise** (applies to project types: NEW, MAJOR IMPROVEMENT, ADDITION, CHANGE OF USE).

(1) A noise generating use or activity shall not exceed the presumed ambient noise level specified by zone in Table II of Section 111.03 of the LAMC.

(i) An applicant shall submit to the Department of City Planning an acoustic evaluation report issued by a licensed noise consulting professional which identifies compliance options for noise mitigation. An applicant shall comply with the stated performance-based mitigation measures.

(ii) Baseline and other ambient noise levels shall be measured at the property line. If the ambient sound levels at the site exceed the allowable ambient levels in Table II, the existing site's ambient level becomes the new allowable baseline and no increase in that level shall be allowed.

(2) An applicant whose project include a noise generating use or activity shall submit an acoustic evaluation report prepared by a licensed consulting professional which includes current and projected noise levels at the site. The report shall include compliance options for noise mitigation measures. An applicant shall comply with all mitigated measures. Noise levels shall be measured per Section 13.18 F.2.(l)(1)(ii) of this Code.

(m) **Storage of Merchandise and Materials** (applies to project types: NEW, MAJOR IMPROVEMENT, ADDITION, CHANGE OF USE).

(1) All open air storage of merchandise or materials shall be confined within a storage area enclosed by a solid, non-combustible wall with self-closing gates, except for construction equipment.

(i) All outdoor storage shall comply with the height restrictions for materials and equipment per Section 12.19 A.4.(b)(3) of this Code.

(2) Materials that are subject to releasing dust or particulate matter shall be covered or completely enclosed.

(3) Barbed wire, chain linked and concertina wire fences are prohibited at the perimeter of the property.

3. **Publicly Habitable Spaces Adjacent to Subject Uses.**

(a) **Site Plan** (applies to project types: NEW). Required and/or voluntary open space shall be fully buffered from a Subject Use or freeway by a building on the same project site.

(b) **Landscaping** (applies to project types: NEW, MAJOR IMPROVEMENT, ADDITION, CHANGE OF USE).

(1) Except for front yards, all required yards abutting a Subject Use shall be landscaped as follows:

(i) A Landscape Practitioner shall select trees or shrubs that will grow to be between six and eight feet high when mature, low in water use, low in biogenic emissions, high in carbon and particulate matter filtration qualities, and retain foliage for most months of the year. Trees shall be limited to selections from the Department of Public Works Bureau of Street Services, Street Tree Selection Guide, except for non-drought tolerant trees and Palms. A list of preferred trees is also provided in the CUGU application packet.

(ii) Irrigation. Project applicants shall design and install irrigation systems pursuant to Guidelines BB – Irrigation Specification of Section 12.41 B.2. of the LAMC.

(c) **Parking Design** (applies to project types: NEW, ADDITIONS, MAJOR IMPROVEMENT, CHANGE of USE). Any parking lots with five or more parking stalls shall comply with the requirements in Section 13.18 F.2.(j) of this Code.

4. **Municipal Projects Adjacent to Freeway and State Route 47.**

(a) **Signage** (applies to project types: NEW, MAJOR IMPROVEMENT, ADDITION, CHANGE OF USE). Any municipal buildings open to the public and located within 1,000 feet of a freeway shall post a sign to notify the public as follows:

“NOTICE: Air pollution studies show a strong link between the chronic exposure of populations to vehicle exhaust and particulate matter from major roads and freeways and elevated risk of adverse health impacts, particularly in sensitive populations such as young children and older adults. Areas located within 500 feet of the freeway are known to experience the greatest concentration of ultrafine particulate matter and other pollutants implicated in asthma and other health conditions.”

The sign shall be posted at a shared main entrance or shared facility. Public parks shall post signage in restrooms. The sign must meet the following requirements:

- (1) A minimum size of 8.5" x 11";
- (2) Garamond bold condensed font type at 28 point font size;
- (3) English or English and Spanish;
- (4) Durable sign made from plastic or aluminum or other hard surface; and
- (5) Fixed to a wall, door, or other physical structure.

G. Issuance of Building Permits. For any Project within a CUGU District, the Department of Building and Safety shall not issue any permits, including, but not limited to, grading, shoring or building unless an Administrative Review, CUGU Adjustment, or CUGU Exception has been obtained pursuant to the applicable procedures in Section 13.18 G. of this Code. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

H. Review Procedures for Projects within CUGU District. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

1. **Administrative Review – Authority of the Director.** An applicant who complies with the CUGU District regulations shall submit plans to the Director for an Administrative Review pursuant to Sec. 13B.3.1. (Administrative Review) of Chapter 1A of this Code. Applicants requesting an Adjustment shall submit plans per Subdivision 2. below. A project that cannot comply with the requirements of the CUGU District may request relief through the Exception procedures set forth in Subdivision 3. of this Subsection.

2. **Adjustments – Director Authority with Appeal to the Area Planning Commission.** The Director or the Director's designee shall have initial decision-making authority to grant a CUGU Adjustment with an appeal to the Area Planning Commission in accordance with the procedures set forth in Sec. 13B.4.4. (Project Adjustment) of Chapter 1A of this Code.

(a) **Limitations.** Notwithstanding the provisions set forth in Sec. 13B.4.4. (Project Adjustment) of Chapter 1A of this Code, unless otherwise limited by the CUGU District, a CUGU Adjustment shall be limited to deviations of up to 20 percent from each of the quantitative development regulations.

If applicable, each adopted CUGU District shall indicate those development regulations which are not eligible for an Adjustment through this section. If an application requests more than one CUGU Adjustment, the Director may advise the applicant, prior to the application being deemed complete, that the request be filed and processed as a CUGU Exception, pursuant to Subdivision 3. of this Subsection.

(b) **Findings.** Instead of the findings set forth in Sec. 13B.4.4. (Project Adjustment) of Chapter 1A of this Code, the Director may grant an Adjustment upon making all of the following findings:

- (1) Special circumstances applicable to the Project or project site exist which make the strict application of the CUGU regulation(s) impractical;
- (2) The Project, as approved, is consistent with the purpose and intent of the CUGU District and substantially complies with the applicable CUGU regulations; and
- (3) In granting the Adjustment, the Director has considered and finds no detrimental effects of the Adjustment on surrounding properties, the public, or public rights-of-way.

(c) All Projects seeking relief from any development regulation designated in the CUGU District as not eligible for Adjustment shall be processed through the CUGU Exception procedures listed in Subdivision 3. of this Subsection.

3. **Exceptions – Area Planning Commission Authority with Appeals to the City Council.**

(a) **Authority.** The Area Planning Commission shall have initial decision-making authority for granting an Exception from the CUGU District regulations with an appeal to the City Council in accordance with the procedures set forth in Sec. 13B.4.5. (Project Exception) of Chapter 1A of this Code.

In granting an Exception from CUGU regulations, the Area Planning Commission shall impose conditions to protect the public health, safety, and welfare; and to assure compliance with the objectives of the General Plan and the purpose and intent of the CUGU District. An Exception from a CUGU regulation shall not be used to grant a special privilege, nor to grant relief from a self-imposed hardship.

(b) **Findings.** Instead of the findings set forth in Sec. 13B.4.5. (Project Exception) of Chapter 1A of this Code, the

Area Planning Commission may permit an Exception from a CUGU regulation if it makes all the following findings:

- (1) The strict application of the CUGU regulations to the subject property would result in practical difficulties or an unnecessary hardship inconsistent with the general purpose and intent of the CUGU District and its regulations;
- (2) Exceptional circumstances or conditions applicable to the subject property involved or to the intended use or development of the subject property exist that do not apply generally to other properties in the CUGU District;
- (3) An Exception from the CUGU regulation is necessary for the preservation and enjoyment of a substantial property right or use generally possessed by other property within the CUGU District and in the same zone and vicinity but which, because of a special circumstance and practical difficulties or unnecessary hardship, is denied to the property in question;
- (4) The granting of an Exception will not be detrimental to the public welfare or injurious to the property or improvements adjacent to, or in the vicinity of, the subject property; and
- (5) The granting of an exception will be consistent with the principles, intent and goals of the CUGU District and any applicable element of the General Plan.

I. Severability. If any provision of this ordinance is found to be unconstitutional or otherwise invalid by any court of competent jurisdiction, that invalidity shall not affect the remaining provisions of this ordinance, which can be implemented without the invalid provisions and, to this end, the provisions of this ordinance are declared to be severable. The City Council hereby declares that it would have adopted each and every provision and portion thereof not declared invalid or unconstitutional, without regard to whether any portion of the ordinance would be subsequently declared invalid or unconstitutional.

SEC. 13.19. "RG" SINGLE-FAMILY ZONE REAR DETACHED GARAGE DISTRICT.

(Added by Ord. No. 184,802, Eff. 3/17/17.)

A. Purpose. The regulations set forth in this Section are to facilitate the compatible placement of garages on lots in single-family residential zones where the predominant building form includes a main building with a rear detached garage. These regulations mandate that the covered parking requirement for single-family zoned properties within the district be satisfied by a private garage and not by any open air building or carport. The regulations for this district also mandate that the garage be detached and placed within the rear half of the lot. For purposes of this section, "garage" is defined as a building enclosed by walls with a door or doors that meet the requirements of Section 12.21 A.4.(a).

B. Applicability. A district established pursuant to this section shall be a grouping of lots zoned RA, RE, RS, or R1 not located in a Hillside Area or Coastal Zone.

C. Limitations. All lots within a district shall be subject to the following conditions:

1. The covered parking requirement of the Code shall be satisfied by a private garage and not by any open air building or carport.
2. Garages required in Subdivision 1.:
 - (a) shall be located within the rear half of the lot, or at least 55 feet from a Front Lot Line;
 - (b) shall be detached from the main building of the lot; and
 - (c) shall comply with Section 12.21 C.5. of this Code.
3. Exceptions to Subdivision 2. of this Subsection.
 - (a) Lots 3,000 square feet or less, shall not be subject to paragraphs (a) and (b) in Subdivision 2. of this Subsection.
 - (b) Notwithstanding, Section 12.21 C.5.(k), Through Lots with no Rear Lot Line shall set back the garage from both Front Lot Lines a distance of at least 40 feet and shall not be subject to paragraph (a) in Subdivision 2. of this Subsection.
 - (c) Through Lots with no Rear Lot Line and a lot depth less than 100 feet shall be exempt from Paragraph (a) of Subdivision 2. of this Subsection.

SEC. 13.20. "HCR" HILLSIDE CONSTRUCTION REGULATION DISTRICT.

(Added by Ord. No. 184,827, Eff. 3/24/17.)

A. Purpose. This section sets forth procedures and guidelines for the establishment of the Hillside Construction Regulation (HCR)

District in residential areas of the City. The purpose of the HCR District is to impose more restrictive grading limits and hauling operation standards than what is generally permitted by this Code in areas where the proposed district is adopted, thus reducing construction impacts.

B. Establishment of the District. The procedures set forth in Sec. 13B.1.4. (Zone Change) of Chapter 1A of this Code shall be followed, however, each HCR District shall include only properties in residential zones. Boundaries shall be along street frontages and shall not split parcels. A HCR District may encompass an area which is designated, in whole or in part, as a Historic Preservation Overlay Zone (HPOZ) and/or Specific Plan. The HCR District shall include contiguous parcels, which may only be separated by Streets, ways or alleys or other physical features, or as set forth in applicable rules approved by the Director of Planning. Precise boundaries are required at the time of application to expand or create a HCR District. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

C. Relationship to other Zoning Regulations. Unless the provisions of this section state otherwise, the underlying base zone regulations applicable to a given project in a HCR District shall prevail pursuant to Sections 12.03, 12.04, 12.05, 12.07.01, 12.07.1, 12.08, 12.21, 12.23 and 12.32. Where the provisions of the HCR District conflict with those of a Specific Plan or HPOZ, then the provisions of the Specific Plan or HPOZ shall prevail. If provisions of the HCR District conflict with any other City- wide regulations in this Code or with provisions of other supplemental use districts other than the Specific Plan or HPOZ, then the requirements of the HCR shall prevail.

D. Development Regulations. Single-family home developments within a HCR District shall comply with each of the following Grading, Hauling and Hauling Operation Standards, as applicable:

1. **Maximum Grading.** For any single lot, the total cumulative quantity of Grading, or the total combined value of both Cut and Fill for the import and export of earth, or incremental Cut and Fill for Import and Export of earth shall be limited to the “by-right” maximum pursuant to Section 12.21 C.10. and shall not exceed 6,000 cubic yards.

2. **Maximum Import and/or Export for Hillside Areas Fronting Substandard Streets.** For a lot which fronts onto a Substandard Hillside Limited Street, as defined in Section 12.03 of this Code, the total cumulative quantity of Import and Export of earth combined, shall be no more than 75 percent of the “by-right” maximum pursuant to Section 12.21 C.10. and shall not exceed 6,000 cubic yards.

3. **Hauling Truck Trips.** A maximum of four trucks are permitted to haul per hour per project site. A grouping or convoy of hauling vehicles shall not be allowed; only one hauling vehicle is permitted per project site at any one time.

4. **Hauling Truck Operations.** As conditions of project approval for the issuance of a grading or building permit for projects in a HCR District, each of the following hauling operation standards shall be met:

(a) Projects required to obtain a Haul Route approval from the Board of Building and Safety Commissioners for the import and/or export of 1,000 cubic yards or more of earth material shall prominently post the final action letter with the approved Haul Route staff report on the job site at all times.

(b) No grading shall be performed within any areas designated “hillside” unless a copy of the grading permit is prominently posted on the job site at all times.

(c) All hauling vehicles must be identified by a placard identifying the project address which shall be prominently displayed on each hauling vehicle.

5. **Equipment.** As conditions of project approval for the issuance of a grading or building permit for projects in a HCR District, each of the following equipment standards shall be met:

(a) 10-wheeler dump trucks (with a 10 cubic yard capacity) or smaller are the only type of trucks permitted for hauling of earth. Notwithstanding the foregoing, the Board of Building and Safety Commissioners may authorize the use of other types of hauling vehicles for a project through the Haul Route approval process.

(b) Hauling and grading equipment shall be kept in good operating condition and muffled as required by law.

6. **Operating Hours and Construction Activity.** Compliance with each of the following standards shall be required for all projects in a HCR District requiring the issuance of a grading or building permit. However, if a Haul Route approval by the Board of Building and Safety Commissioners is required for import and/or export of 1,000 cubic yards or more, then the conditions set by the Board of Building and Safety Commissioners during the Haul Route approval process shall prevail and the following standards shall not apply.

(a) Hauling operations shall be conducted only on Monday through Friday, between the hours of 9:00 a.m. and 3:00 p.m. Hauling operations on Saturdays, Sundays, or state or federal designated holidays is strictly prohibited.

(b) Haul trucks shall be staged off-site and outside of the HCR District. As deemed necessary, the Board of Building and Safety Commissioners may permit staging on-site or in any alternate staging area by special condition during the Haul Route Approval process.

(c) Construction activity shall be limited to Monday through Friday, between the hours of 8:00 a.m. to 6:00 p.m. Exterior construction work at any other time is strictly prohibited. However, interior construction work may be conducted on Saturdays between the hours of 8:00 a.m. to 6:00 p.m. Excess exterior illumination of the site through the use of flood lights and/or similar lighting devices is strictly prohibited after 6:00 p.m. on any day of the week.

(d) A log noting the dates of hauling activity and the number of hauling truck trips per day shall be available on the job site at all times.

(e) The owner or contractor shall control dust caused by grading and hauling and provide reasonable control of dust caused or exacerbated by wind at all times. Grading and hauling activities shall be discontinued during periods of high winds and Red Flag days as determined by the Los Angeles Fire Department.

(f) Loads shall be secured by trimming and shall be covered to prevent spillage and dust. Haul trucks are to be contained at the export site to prevent blowing of dirt and are to be cleaned of loose earth at the export site to prevent spilling.

(g) Streets shall be cleaned of spilled materials at the termination of each workday.

(h) "Truck Crossing" warning signs shall be placed 300 feet in advance of the exit from the project site in each direction.

(i) Flag person(s) shall be required for all project sites. Flag persons with radio control and warning signs shall be in compliance with the latest edition of the "Work Area Traffic Control Handbook." Flag persons provided at the job site shall assist trucks in and out of the project area.

7. Review Procedures for single-family home developments larger than 17,500 square feet. The construction, erection, addition to, enlargement of or reconfiguration of any one-family dwelling that has a cumulative Residential Floor Area of 17,500 square feet or larger shall submit an application for a Project Review before the issuance of related permits and entitlements. Application procedures and processing of the application shall be pursuant to Sec. 13B.2.4. (Project Review) of Chapter 1A of this Code. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

SEC. 13.21. VIOLATION.

(Renumbered by Ord. No. 184,827, Eff. 3/24/17.)

The violation of any condition imposed by a Zoning Administrator, Director of Planning, the Area Planning Commission, City Planning Commission or City Council in approving the site requirements, methods of operation, development plans or other actions taken pursuant to the authority contained in this article shall constitute a violation of this Code.

ARTICLE 4

PUBLIC BENEFIT PROJECTS

(Title Amended by Ord. No. 173,492, Eff. 10/10/00.)

Section

14.00 Public Benefit Projects.

SEC. 14.00. PUBLIC BENEFIT PROJECTS.

(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)

A. Public Benefit Projects and Performance Standards. Where not permitted by right or by Conditional Use Permit pursuant to Subsections U., or W. of Section 12.24. of this Chapter, the following public benefit uses are permitted in any zone, unless restricted to certain zones or locations. The uses shall meet the following performance standards or conditional use permit approved pursuant to Subsection B. of this Section. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

1. Cemeteries.

(a) Performance Standards:

(1) All buildings on the site are at least 300 feet from any adjoining street or any A or R zoned property or

residential use;

(2) Security night lighting is shielded so that the light source cannot be seen from adjacent residential properties;

(3) There is a solid, decorative, masonry or wrought iron wall or fence at least eight feet in height, or the maximum height permitted by the zone, whichever is less. The wall or fence encircles the periphery of the property and does not extend into the required front yard setback;

(4) The front yard setback is at least as deep as the setback required by the zone;

(5) The property is improved with a ten foot landscaped buffer along the periphery of the property which is maintained and is equipped with an automatic irrigation system;

(6) The site has only one double- faced monument sign, with a maximum of 20 square feet per side;

(7) All graffiti on the site is removed or painted over in the same color as the surface to which it is applied within 24 hours of its occurrence; **(Amended by Ord. No. 173,492, Eff. 10/10/00.)**

(8) All streets, alleys or sidewalks adjoining the property meet standard street dimensions; **(Amended by Ord. No. 173,492, Eff. 10/10/00.)**

(9) The use meets the parking requirements of Section 12.21 A.; and **(Added by Ord. No. 173,492, Eff. 10/10/00.)**

(10) The property has sufficient areas for assembly. **(Added by Ord. No. 173,492, Eff. 10/10/00.)**

(b) **Purposes: (Amended by Ord. No. 173,492, Eff. 10/10/00.)** The purposes of these Performance Standards are to provide landscaping, open space, scale, bulk, height, yards and setbacks, particularly with regard to the main building, which are similar to those in the adjacent properties in the neighborhood. Signage, where permitted by city regulations, should not exceed in size or number those located on the same block or across the street from the site. The noise levels created on the site should not increase the ambient noise level on adjoining or abutting properties after completion of the project. Sufficient off-street parking should be provided so as to preclude the need for utilization of on-street parking by the use allowed on the site. Assembly areas for funeral services should be located so as not to block the City streets. City streets should meet City standards in order to ensure safe vehicular ingress and egress to the site and to ensure that traffic does not exceed the current level of service. Ingress and egress to the main buildings or uses on the site should be sufficient to accommodate expected usage by the public and/or occupants of the facility. Access to and from the site should be sufficient to meet police and fire safety needs beyond the explicit requirements of City codes as determined by the Police, Fire and Building and Safety Departments. Lighting on the site should be located so as to not reflect on adjoining residential uses. A decorative wall or fence should be located to ensure protection for the site and adjacent uses. Graffiti should be prevented and eliminated when it is found on the site.

2. Density increase for a Housing Development to provide for additional density in excess of that permitted in Sections 12.22 A.37., 12.22 A.38., or 12.22 A.39. (Amended by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)

(a) Performance Standards:

(1) The development project contains the requisite number of Restricted Affordable Units and requirements set forth in Section 12.24 U.26.(a)(1) through (5) of this Code; **(Amended by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

(2) The development project complies with the standards contained in the Affordable Housing Incentives Guidelines approved by the City Planning Commission;

(3) The use is conducted in conformance with the City's noise regulations pursuant to Chapter 11 of this Code;

(4) No buildings are higher than any main building on adjoining property;

(5) All portions of the required front yard not used for necessary driveways and walkways, including decorative walkways, are landscaped and maintained, not otherwise paved, and equipped with an automatic irrigation system;

(6) The development meets the open space requirements of Section 12.21 G.;

(7) Only one identification sign is displayed on the site and it is on the building face. The sign does not exceed 20 square feet, does not extend more than two feet beyond the wall of the building, and does not project above the roof ridge or parapet wall (whichever is higher) of the building;

(8) Security night lighting is shielded so that the light source cannot be seen from adjacent residential

properties;

(9) Yards, at a minimum, should meet Code requirements or those prevalent on adjoining or abutting properties, whichever is the most restrictive;

(10) All graffiti on the site is removed or painted over in the same color as the surface to which it is applied within 24 hours of its occurrence; **(Amended by Ord. No. 173,492, Eff. 10/10/00.)**

(11) Parking areas are landscaped pursuant to the requirements of Section 12.21 A.6.; **(Amended by Ord. No. 173,492, Eff. 10/10/00.)**

(12) All streets, alleys and sidewalks adjoining the property meet standard street dimensions; **(Added by Ord. No. 173,492, Eff. 10/10/00.)**

(13) A solid, decorative, masonry or wrought iron wall or fence at least six feet in height, or the maximum height permitted by the zone, whichever is less. The wall or fence encircles the periphery of the property and does not extend into the required front yard setback; and **(Amended by Ord. No. 177,103, Eff. 12/18/05.)**

(14) There are no outdoor public telephones on the site. **(Added by Ord. No. 173,492, Eff. 10/10/00.)**

(b) **Purposes: (Amended by Ord. No. 173,492, Eff. 10/10/00.)** The purposes of these Performance Standards are to provide for landscaping, open space, scale, bulk, height, yards and setbacks, particularly with regard to the main buildings, which are similar to those in the adjacent properties in the neighborhood. Signage, where permitted by City regulations, should not exceed in size or number those located on the same block or across the street from the site. The noise levels created on the site should not increase the ambient noise level so as to be disturbing to persons on adjoining or abutting properties after completion of the project. Public telephones on the site should be located to discourage loitering. Sufficient off-street parking should be provided to preclude the need for utilization of on-street parking by the use allowed on the site. The proposed use should be designed in a manner that will minimize the generation of loitering of individuals on or adjacent to the site. City streets should meet City standards in order to ensure safe vehicular ingress and egress to the site and to ensure that traffic does not exceed the current level of service. Access to and from the site should be sufficient to meet police and fire safety needs beyond the explicit requirements of City codes as determined by the Police, Fire and Building and Safety Departments. Lighting on the site should not reflect on adjoining residential uses. Walls, fences, or other visible security devices should be similar to those on the adjoining properties. Graffiti should be prevented and eliminated when it is found on the site. The use should encourage the availability of affordable housing.

3. **Libraries, museums, fire or police stations or governmental enterprises** which are controlled by this article.

(a) **Performance Standards:**

(1) The use is conducted in conformance with the City's noise regulations pursuant to Chapter 11 of this Code;

(2) There are no outdoor public telephones on the site; **(Amended by Ord. No. 173,492, Eff. 10/10/00.)**

(3) No buildings are higher than any structure on adjoining property;

(4) No guard dogs are used to patrol at night;

(5) There is no use of barbed, razor or concertina wire;

(6) Security lighting is provided in parking areas;

(7) Setbacks are at least as deep as required for institutions by Section 12.21 C.3.;

(8) The property is improved with a ten foot landscaped buffer along the periphery of the property which is maintained and is equipped with an automatic irrigation system;

(9) Parking areas are landscaped pursuant to the requirements of Section 12.21 A.6.;

(10) Only one identification sign is displayed on the site and it is on the building face. The sign does not exceed 20 square feet, and does not extend more than two feet beyond the wall of the building, and does not project above the roof ridge or parapet wall (whichever is higher) of the building;

(11) Security night lighting is shielded so that the light source cannot be seen from adjacent residential properties;

(12) All graffiti on the site is removed or painted over in the same color as the surface to which it is applied within 24 hours of its occurrence;

- (13) The use meets the parking requirements of Section 12.21 A.;
- (14) The site is a corner site;
- (15) The majority of the frontage is on a major or secondary highway; and
- (16) All streets, alleys and sidewalks adjoining the property meet standard street dimensions.

(b) **Purposes:** The purposes of these Performance Standards are to provide for landscaping, open space, scale, bulk, height, yards and setbacks, particularly with regard to the main buildings, which are similar to those in the adjacent properties in the neighborhood. Signage, where permitted by city regulations, should not exceed in size or number those located on the same block or across the street from the site. The noise levels created on the site should not increase the ambient noise level on adjoining or abutting properties after completion of the project. Public telephones on the site should be located to discourage loitering. Sufficient off- street parking should be provided to preclude the need for utilization of on-street parking by the use allowed on the site. The proposed use should be designed in a manner that will minimize the generation of loitering of individuals on or adjacent to the site. City streets should meet City standards in order to ensure safe vehicular ingress and egress to the site and to ensure that traffic does not exceed the current level of service. Ingress and egress to the main buildings or uses on the site are sufficient to accommodate expected usage by the public and/or occupants of the facility. Access to and from the site should be sufficient to meet police and fire safety needs beyond the explicit requirements of City codes as determined by the Police, Fire and Building and Safety Departments. Lighting on the site should not reflect on adjoining residential uses. Walls, fences, or other visible security devices should be similar to those on the adjoining properties. Graffiti should be prevented and eliminated when it is found on the site.

4. **Mobile home parks where any trailer or mobile home is permitted** to remain longer than one day, and which were lawfully in existence on December 6, 1986.

(a) **Performance Standards:**

- (1) No buildings are higher than any main building on adjoining property or across a street or alley from the use.
- (2) The use is conducted in conformance with the City's noise regulations pursuant to Chapter 11 of this Code.
- (3) There is a solid, decorative, masonry or wrought iron wall/fence at least eight feet in height, or the maximum height permitted by the zone, whichever is less. The wall/fence encircles the periphery of the property and does not extend into the required front yard setback.
- (4) The front yard is at least as deep as the setback required by the zone.
- (5) The property is improved with a ten foot landscaped buffer along the periphery of the property, which is maintained and is equipped with an automatic irrigation system.
- (6) Parking areas are landscaped pursuant to the requirements of Section 12.21 A.6.
- (7) All graffiti on the site is removed or painted over in the same color as the surface to which it is applied within 24 hours of its occurrence.
- (8) Only one identification sign is displayed on the site and it is on the building face. The sign does not exceed 20 square feet, and does not extend more than two feet beyond the wall of the building, and does not project above the roof ridge or parapet wall (whichever is higher) of the building.
- (9) **(Amended by Ord. No. 173,492, Eff. 10/10/00.)** The use meets the parking requirements of Section 12.21 A.;
- (10) **(Amended by Ord. No. 173,492, Eff. 10/10/00.)** All streets, alleys or sidewalks adjoining the property meet standard street dimensions;
- (11) **(Added by Ord. No. 173,492, Eff. 10/10/00.)** There are no outdoor public telephones on the site; and
- (12) **(Added by Ord. No. 173,492, Eff. 10/10/00.)** Security night lighting is shielded so that the light source cannot be seen from adjacent residential properties.

(b) **Purposes:** The purposes of these Performance Standards are to provide for landscaping, open space, scale, bulk, height, yards and setbacks, particularly with regard to the main buildings, which are similar to those in the adjacent properties in the neighborhood. Signage, where permitted by City regulations, should not exceed in size or number those located on the same block or across the street from the site. The noise levels created on the site should not increase the ambient noise level so as to disturb persons on adjoining or abutting properties after completion of the project. Public telephones on the site should be located to discourage loitering. Sufficient off-street parking should be provided to

preclude the need for utilization of on-street parking by the use allowed on the site. The proposed use should be designed in a manner that will minimize the generation of loitering of individuals on or adjacent to the site. City streets should meet City standards in order to ensure safe vehicular ingress and egress to the site and to ensure that traffic does not exceed the current existing level of service. Ingress and egress to the main buildings or uses on the site are sufficient to accommodate expected usage by the public and/or occupants of the facility. Access to and from the site should be sufficient to meet police and fire safety needs beyond the explicit requirements of City codes as determined by the Police, Fire and Building and Safety Departments. Lighting on the site should not reflect on adjoining residential uses. Walls, fences, or other visible security devices should be similar to those on the adjoining properties. Graffiti should be prevented and eliminated when it is found on the site.

5. Parks, playgrounds, or recreational or community centers in the A, R or C1 Zones.

(a) Performance Standards:

- (1) The outdoor play/recreational area is at least 100 feet away from any A or R zones or residential use;
- (2) There are no outdoor public telephones on the site;
- (3) There is no public address system or amplified sound on the site;
- (4) The use is conducted in conformance with the City's noise regulations set forth in Chapter 11 of this Code;
- (5) The hours of operation are restricted to between 7 a.m. and 10 p.m. of every day;
- (6) There is no outdoor activity from dusk to dawn;
- (7) No buildings are higher than any main building on adjoining property or across the street or alley from the use;
- (8) The property is improved with a ten foot landscaped buffer along the periphery of the property, which is maintained and is equipped with an automatic irrigation system;
- (9) Only one identification sign is displayed on the site and it is on the building face. The sign does not exceed 20 square feet, does not extend more than two feet beyond the wall of the building, and does not project above the roof ridge or parapet wall (whichever is higher) of the building;
- (10) Parking areas are landscaped pursuant to the requirements of Section 12.21 A.6.;
- (11) The use meets the parking requirements of Section 12.21 A.;
- (12) The site is a corner site;
- (13) **(Amended by Ord. No. 173,492, Eff. 10/10/00.)** The majority of the frontage is on a major or secondary highway;
- (14) **(Amended by Ord. No. 173,492, Eff. 10/10/00.)** All streets, alleys or sidewalks adjoining the property meet standard street dimensions;
- (15) **(Added by Ord. No. 173,492, Eff. 10/10/00.)** Security night lighting is shielded so that the light source cannot be seen from adjacent residential properties; and
- (16) **(Added by Ord. No. 173,492, Eff. 10/10/00.)** All graffiti on the site is removed or painted over in the same color as the surface to which it is applied within 24 hours of its occurrence.

(b) Purposes: (Amended by Ord. No. 173,492, Eff. 10/10/00.) The purposes of these Performance Standards are to provide for landscaping, open space, scale, bulk, height, yards and setbacks, particularly with respect to the main buildings, which are similar to those in other properties in the neighborhood. Signage, where permitted by City regulations, should not exceed in size or number those located on the same block or across the street from the site. The noise levels created on the site should not increase the ambient noise level on adjoining or abutting properties after completion of the project. When adjacent to residential uses, the site should not be used at times or in a manner that would be disturbing to neighbors. Public telephones should not be located in places where they would encourage loitering. Sufficient off- street parking should be provided to preclude the need for utilization of on-street parking by the use allowed on the site.

The proposed use should be designed so that loitering of individuals on or adjacent to the site will not be generated by the use. City streets should meet City standards in order to ensure safe vehicular ingress and egress to the site and to ensure that traffic does not exceed the current level of service. Ingress and egress to the main building(s) or uses on the site should be sufficient to accommodate expected usage by the public and/or occupants of the facility. Access to and from

the site should be sufficient to meet police and fire safety needs beyond the explicit requirements of City codes as determined by the Police, Fire and Building and Safety Departments. Lighting on the site should be located so that it does not reflect on adjoining residential uses. Graffiti should be prevented or eliminated when it is found on the site.

6. Public utilities and public services uses and structures, except wireless telecommunication facilities and radio or television transmitters in the A, R, C or MR Zones.

(a) Performance Standards:

- (1) Security night lighting is shielded so that the light source cannot be seen from adjacent residential properties;
- (2) The use is conducted in conformance with the City's noise regulations pursuant to Chapter 11 of this Code;
- (3) There are no outdoor public telephones on the site;
- (4) No buildings are higher than any building on adjoining property;
- (5) No guard dogs are used to patrol at night;
- (6) There is no use of barbed, razor or concertina wire;
- (7) Security lighting is provided in parking areas;
- (8) The property is improved with a ten foot landscaped buffer along the periphery of the property which is maintained and is equipped with an automatic irrigation system;
- (9) Parking areas are landscaped pursuant to the requirements of Section 12.21 A.6.;
- (10) Only one identification sign is displayed on the site and it is on the building face. The sign does not exceed 20 square feet, and does not extend more than two feet beyond the wall of the building, and does not project above the roof ridge or parapet wall (whichever is higher) of the building;
- (11) All graffiti on the site is removed or painted over in the same color as the surface to which it is applied within 24 hours of its occurrence;
- (12) The use meets the parking requirements of Section 12.21 A.;
- (13) The site is a corner site;
- (14) Yards, at a minimum, should meet Code requirements or those prevalent on adjoining properties, whichever is the most restrictive;
- (15) The majority of the frontage is on a major or secondary highway; and
- (16) All streets, alleys or sidewalks adjoining the property meet standard street dimensions.

(b) Purposes: The purposes of these Performance Standards are to provide for landscaping, open space, scale, bulk, height, yards and setbacks, particularly with regard to the main buildings, which are similar to those in the adjacent properties in the neighborhood. Signage, where permitted by City regulations, should not exceed in size or number of those located on the same block or across the street from the site. The noise levels created on the site should not increase the ambient noise level on adjoining or abutting properties after completion of the project. Public telephones on the site should be located to discourage loitering. Sufficient off-street parking should be provided to preclude the need for utilization of on-street parking by the use allowed on the site. The proposed use should be designed in a manner that will minimize the generation of loitering of individuals on or adjacent to the site. City streets should meet City standards in order to ensure safe vehicular ingress and egress to the site and to ensure that traffic does not exceed the current level of service. Ingress and egress to the main buildings or uses on the site are sufficient to accommodate expected usage by the public and/or occupants of the facility. Access to and from the site should be sufficient to meet police and fire safety needs beyond the explicit requirements of City codes as determined by the Police, Fire and Building and Safety Departments. Lighting on the site should not reflect on adjoining residential uses. Walls, fences, or other visible security devices should be similar to those on the adjoining properties. Graffiti should be prevented and eliminated when it is found on the site.

7. Recreational vehicle parks and mobile home parks in the A, R or C Zones where any trailer, mobile home or recreational vehicle is permitted to remain longer than one day and which were lawfully created after the effective date of the ordinance adding this use to the Code.

(a) Performance Standards:

- (1) No buildings are higher than any main building on adjoining property or across a street or alley from the use;
- (2) The use is conducted in conformance with the City's noise regulations pursuant to Chapter 11 of this Code;
- (3) There is a solid decorative masonry or wrought iron wall/fence at least eight feet in height, or the maximum height permitted by the zone, whichever is less. The wall/fence encircles the periphery of the property and does not extend into the required front yard setback;
- (4) The front yard setback is at least as deep as the setback required by the zone;
- (5) The property is improved with a ten foot landscaped buffer along the periphery of the property, which is maintained and is equipped with an automatic irrigation system;
- (6) Parking areas are landscaped pursuant to the requirements of Section 12.21 A.6.;
- (7) Only one identification sign is displayed on the site and it is on the building face. The sign does not exceed 20 square feet, and does not extend more than 2 feet beyond the wall of the building, and does not project above the roof ridge or parapet wall (whichever is higher) of the building;
- (8) All graffiti on the site is removed or painted over in the same color as the surface to which it is applied within 24 hours of its occurrence;
- (9) **(Amended by Ord. No. 173,492, Eff. 10/10/00.)** The use meets the parking requirements of Section 12.21 A.;
- (10) **(Amended by Ord. No. 173,492, Eff. 10/10/00.)** All streets, alleys or sidewalks adjoining the property meet standard street dimensions;
- (11) **(Added by Ord. No. 173,492, Eff. 10/10/00.)** There are no outdoor public telephones on the site; and
- (12) **(Added by Ord. No. 173,492, Eff. 10/10/00.)** Security night lighting is shielded so that the light source cannot be seen from adjacent residential properties.

(b) **Purposes:** The purposes of these Performance Standards are to provide for landscaping, open space, scale, bulk, height, yards and setbacks, particularly with regard to the main buildings, which are similar to those in the adjacent properties in the neighborhood. Signage, where permitted by City regulations, should not exceed in size or number those located on the same block or across the street from the site. The noise levels created on the site should not increase the ambient noise level so as to be disturbing to persons on adjoining or abutting properties after completion of the project. Public telephones on the site should be located to discourage loitering. Sufficient off-street parking should be provided to preclude the need for utilization of on-street parking by the use allowed on the site. The proposed use should be designed in a manner that will minimize the generation of loitering of individuals on or adjacent to the site. City streets should meet City standards in order to ensure safe vehicular ingress and egress to the site and to ensure that traffic does not exceed the existing level of service. Ingress and egress to the main buildings or uses on the site are sufficient to accommodate expected usage by the public and/or occupants of the facility. Access to and from the site should be sufficient to meet police and fire safety needs beyond the explicit requirements of City codes as determined by the Police, Fire and Building and Safety Departments. Lighting on the site should not reflect on adjoining residential uses. Walls, fences, or other visible security devices should be similar to those on the adjoining properties. Graffiti should be prevented and eliminated when it is found on the site.

8. **Shelters for the homeless** (as defined in Section 12.03) containing not more than 30 beds are permitted by right in the R3, M1, M2 and M3 Zones with reduced parking requirements.

(a) **Performance Standards:**

- (1) There no other shelters for the homeless within 300 feet of the subject property;
- (2) The use is conducted in conformance with the City's noise regulations pursuant to Chapter 11 of this Code;
- (3) There are no outdoor public telephones on the site;
- (4) No signs are present on the property relating to its use as a shelter for the homeless;
- (5) No outdoor toilets are present on the site;
- (6) All graffiti on the site is removed or painted over in the same color as the surface to which it is applied within 24 hours of its occurrence;

(7) At least ten percent of the number of parking spaces otherwise required by Section 12.21 A.4. are provided, and in no event are fewer than two spaces provided; and

(8) All streets, alleys or sidewalks adjoining the property meet standard street dimensions.

(b) **Purposes:** Shelters should be separated from one another a sufficient distance to avoid too many in one neighborhood. Noise levels created on the site should not increase the ambient noise level on adjoining or abutting properties after completion of the project. In order to avoid attracting persons hostile to the occupants, the site should be designed to remain anonymous. Sufficient off-street parking should be provided so as to preclude the need for utilization of on-street parking by the use allowed on the site. The proposed use should be designed so that loitering of individuals on or adjacent to the site will not be generated by the use. City streets should meet City standards in order to ensure safe vehicular ingress and egress to the site and to ensure that traffic does not exceed the current level of service. Public telephones should be located so as to avoid loitering. Measures should be taken to protect public health by preventing and eliminating graffiti when it is found on the site.

9. The installation and maintenance of **trailers for use as temporary accommodations for homeless persons.** The term “**temporary accommodations**” shall have the same meaning that it has in the definition of “**shelter for the homeless**” in Section 12.03. The height and area regulations contained in other provisions of this chapter shall not apply to trailers permitted pursuant to this subdivision. Parking spaces otherwise required by this Code for the trailers permitted pursuant to this subdivision shall not be required.

(a) **Performance Standards:**

(1) The installation and maintenance of no more than six trailers for use as temporary accommodations for homeless persons is carried out and maintained by a religious or philanthropic institution on the site of the institution; or by a government unit, agency or authority on each individual property owned by the government unit, agency or authority;

(2) There are no shelters for the homeless within 300 feet of the public property;

(3) **(Amended by Ord. No. 173,374, Eff. 8/3/00.)** There is a solid, decorative, masonry or wrought iron wall or fence at least eight feet in height, or the maximum height permitted by the zone, whichever is less. The wall or fence encircles the periphery of the property and does not extend into the required front yard setback;

(4) The use is conducted in conformance with the City’s noise regulations pursuant to Chapter 11 of this Code;

(5) No signs are present on the property relating to its use as a shelter for the homeless;

(6) No outdoor toilets are present on the site;

(7) **(Amended by Ord. No. 173,492, Eff. 10/10/00.)** All graffiti on the site is removed or painted over in the same color as the surface to which it is applied within 24 hours of its occurrence;

(8) **(Amended by Ord. No. 173,492, Eff. 10/10/00.)** All streets, alleys or sidewalks adjoining the property meet standard street dimensions; and

(9) **(Added by Ord. No. 173,492, Eff. 10/10/00.)** The use shall not be within 500 ft. of a residential zone or use.

(b) **Purposes: (Amended by Ord. No. 173,492, Eff. 10/10/00.)** Shelters should be separated from one another a sufficient distance to avoid too many in one neighborhood. Noise levels created on the site should not increase the ambient noise level on adjoining or abutting properties after completion of the project. In order to maintain appropriate quality of the neighborhood and safety to occupants, the site should be designed to remain anonymous. The proposed use should be designed so that loitering of individuals on or adjacent to the site will not be generated by the use. City streets should meet City standards in order to ensure safe vehicular ingress and egress to the site and to ensure that traffic does not exceed the level of service. Public telephones should be located so as to avoid loitering. Graffiti should be prevented and eliminated when it is found on the site. The proposed use should protect the integrity of the surrounding neighborhood.

10. **Existing non-permitted dwelling units where affordable housing is provided. (Added by Ord. No. 184,907, Eff. 5/17/17.)**

(a) **Purpose.** The purpose of this subdivision is to further health and safety standards in multi-family buildings and preserve and create affordable housing units by establishing procedures to legalize certain pre-existing unpermitted dwelling units in conformance with the State Density Bonus provisions in California Government Code Section 65915. The grant of permitted status to pre-existing unpermitted units under this subdivision shall not be considered an increase in density or other change which requires any corresponding zone change, general plan amendment, specific plan exception

or discretionary action.

(b) **Application and Approval.** The applicant shall submit an application on a form developed by the Department of City Planning that contains basic information about the project, the owner and/or applicant and conformance with this section. The Director of Planning shall review all applications for compliance with the eligibility criteria in Paragraph (c), zoning compliance in Paragraph (d) and adherence to the performance standards in Paragraph (f). The application shall be approved by the Director of Planning if the eligibility criteria and performance standards of this subsection are met.

(c) **Eligibility Criteria.** A structure with an unpermitted dwelling unit or guest room located in a zone that allows multiple-family uses (R2 or less restrictive) is eligible for the provisions of this section when the following criteria are met:

(1) **Pre-Existing Unit.** The unit(s) to be legalized have been occupied as a residential unit at any time between December 11, 2010, and December 10, 2015. Examples of the types of evidence to establish occupancy include, but are not limited to: an apartment lease; utility bill; Rent Stabilization Ordinance (RSO) Rent Registration Certificate; code enforcement case documentation (e.g., Orders to Comply); or other evidence identified on the application form and made available for public inspection in the case file.

(2) **Restricted Affordable Units.** At least one additional Restricted Affordable Unit is being provided on the project site. A Restricted Affordable Unit is defined for this section as a residential unit for which rental or mortgage amounts are restricted so as to be affordable to and occupied by Very Low, Low or Moderate Income households, as those income ranges are defined by the California Department of Housing and Community Development (HCD) or any successor agency. Affordable means that rents or housing expenses cannot exceed 30 percent of the maximum gross income of each respective household income group. Moderate Income units may be utilized, provided the project is not located in a Low-Moderate Census Tract pursuant to the Community Reinvestment Act. A covenant acceptable to the Los Angeles Housing Department shall be recorded with the Los Angeles County Recorder, guaranteeing that each required Restricted Affordable Unit shall be reserved and maintained for at least 55 or 99 years as specified in Section 16.61 A. of this Code. **(Amended by Ord. No. 188,481, Eff. 2/11/25, Oper. 2/11/25.)**

(d) **Zoning Compliance.** A property meeting the eligibility criteria above must comply with all applicable zoning codes, except:

(1) The number of allowable dwelling units or guest rooms can be increased up to 35 percent over the otherwise maximum allowable residential density under any applicable zoning ordinance and/or specific plan, depending on the percentage of Restricted Affordable Units provided in the building, pursuant to the density bonus charts in California Government Code Section 65915(f). These charts can be extended proportionally to permit both a density increase and an affordable set-aside less than what is shown on the charts.

(2) For properties which have more permitted units than are allowed under current maximum allowable residential density, an increase in current maximum allowable density beyond 35 percent may be authorized as long as the project offers sufficient Restricted Affordable Units to achieve at least a 35 percent density bonus pursuant to the density bonus charts in California Government Code Section 65915(f) and the increase in number of units does not exceed 35 percent of the number of permitted units on the property. Notwithstanding the actual number of permitted units on the property, the base number of units for calculating the percentage of Restricted Affordable Units shall be the units allowed by the current maximum residential density.

(3) A property containing one structure with two permitted dwelling units in a zone that allows multiple-family uses may legalize a third unit as long as one of the units is a Restricted Affordable Unit, even if the third unit increases the density by more than 35 percent.

(4) An applicant may choose any one of the following methods of calculating required parking, if applicable, in conjunction with the bicycle parking provisions in LAMC Section 12.21 A.4.:

(i) Parking may be recalculated for all units in the project (not just the restricted units) using Table 12.22 A.37.(e)(2)(ii)a. in Section 12.22 A.37. of this Code; **(Amended by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

(ii) Parking may be calculated by maintaining all existing parking and providing additional parking just for the newly legalized unit(s) in accordance with Table 12.22 A.37.(e)(2)(ii) in Section 12.22 A.37. of this Code as long as one Restricted Affordable Unit or dwelling unit for Lower Income individuals who are 62 years of age or more, or who has a physical or mental impairment that limits one or more major life activities is provided for each legalized unit; or **(Amended by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

(iii) Parking may be calculated by maintaining all existing parking and providing additional parking at a ratio of 0.5 parking spaces per bedroom for the newly legalized units for a project located within one half mile of a Major Transit Stop, which is a site containing an existing rail transit station, a ferry terminal

served by either a bus or rail transit service, or the intersection of two or more major bus routes with a frequency of service interval of 15 minutes or less during the morning and afternoon peak commute period or a major transit stop included in the applicable Regional Transportation Plan/Sustainable Community Strategy (RTP/STS).

If the net new number of required parking spaces is other than a whole number, it shall be rounded up to the next whole number.

(5) The passageway provisions of LAMC Sections 12.21 C.2.(b) through (e) shall not apply to projects meeting the requirements of this section.

(6) The applicant shall be eligible for up to three concessions or incentives in accordance with Government Code Section 65915(d)(2), depending on the percentage of Restricted Affordable Units provided. For the purposes of this subdivision, a concession or incentive means a reduction in a site development standard or a modification of zoning code requirements or architectural design requirements that exceed the minimum building standards approved by the California Building Standards Commission, including, but not limited to, a reduction in open space requirements and in the ratio of vehicular parking spaces that would otherwise be required.

(7) The City may not apply a development standard that will physically preclude the legalization of a project which meets the eligibility criteria of Paragraph (c) at the densities or with the concessions or incentives permitted by this section. Development standards, include, but are not limited to: a site condition; a height limitation; a setback requirement; a floor area ratio; an onsite open-space requirement; or a parking ratio that applies to a residential development pursuant to any ordinance, general plan element, specific plan, charter, or other local condition, law, policy, resolution, or regulation. Development standards do not include conditions imposed through discretionary approvals. Incentives shall not be used to exempt compliance with performance standards.

(8) The street dedication provisions of LAMC Section 12.37 shall not apply when units are legalized under this subdivision.

(e) **Relationship to the Affordable Housing Incentive Guidelines.** The City's Affordable Housing Incentive Guidelines shall not apply to projects under this subsection.

(f) **Performance Standards.** The property shall meet the following performance standards:

(1) **Front Yard Landscaping.** All portions of the required front yard not used for necessary driveways and walkways, including decorative walkways, are landscaped and maintained, and not otherwise paved;

(2) **Lighting.** Security night lighting is shielded so that the light source cannot be seen from adjacent residential properties;

(3) **Parking Area.** Any surface parking areas are landscaped pursuant to the requirements of LAMC Section 12.21 A.6.(i);

(4) **Signage.** Any illegal signage shall have been removed;

(5) **Code Violations.** The project site must not have any outstanding code violations other than those being addressed by the application under this section; and

(6) **Unpermitted Building Area Expansion.** The units to be legalized shall not result or have resulted in an unpermitted expansion of the building footprint or height, except that additions of less than 250 square feet, not resulting in any additional height, may be permitted, provided it is not located on the building frontage adjoining the front yard. The purpose of this standard is to limit exterior alterations to those that are minor and do not have a significant impact on the visual character of the building or neighborhood.

(g) **Conditional Use Permit.** If compliance with the Performance Standards is not met, the applicant may apply for a conditional use permit pursuant to the procedures in Subsection B. of this Section. The eligibility criteria in Paragraph (c) and the zoning compliance standards in Paragraph (d) must be met in order to qualify for conditional use permit. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

11. **Certified Farmers' Markets**, as defined in Section 1392.2, Title 3, of the California Code of Regulations as that section may be amended from time to time, are permitted by right in the A, C, M and P Zones and subject to the following Performance Standards: (Added by Ord. No. 185,514, Eff. 6/4/18.)

(a) **Performance Standards:**

(1) All market activities shall be conducted only between the hours of 7:00 a.m. and 9:00 p.m., except that necessary preparation of the site for sales activities and cleanup may be conducted for not more than one hour before and one hour after this period. No Certified Farmers' Market may operate more than twice in the same

week;

(2) Any light used during market activities shall be shielded so as not to shine directly or indirectly on adjacent property or streets;

(3) The operator of a Certified Farmers' Market shall provide trash containers during the hours of operation;

(4) Signs advertising the market shall conform to Article 4.4 of this Code;

(5) The noise level of any activity related to a Certified Farmers' Market abutting an A or R zone shall not exceed the ambient noise levels applicable to an A or R zone as set forth in Section 111.03 of the Municipal Code, and as measured at the property line of any adjacent A or R zone. The noise level from any Certified Farmers' Market includes noise resulting from the use of amplified sound equipment;

(6) Any portion of the lot used for market activities shall be cleaned at the close of hours of operation. For purposes of this section only, "cleaned" shall include, but not be limited to, the removal of stalls, materials, debris and trash, etc., used in conjunction with market activities;

(7) The operator of a Certified Farmers' Market shall maintain a list of vendors participating in the Certified Farmers' Market during the day of operation;

(8) Certification of the Certified Farmers' Market and contact information for the operator shall be posted at the main entry, and provided as part of the application. The contact person shall be available during the hours of operation and shall respond to any complaints. The operator shall keep a log of complaints received, the date and time received, and their disposition;

(9) When located on a parking lot, the Certified Farmers' Market shall not use more than 80 percent of the provided parking spaces. Safety barricades that protect vendors and their customers from vehicles shall be used to separate the market and the remaining parking area; and

(10) Electronic Benefit Transfer (EBT) Card payments shall be accepted at the Certified Farmers' Market. A Food and Nutrition Service (FNS) Number issued by the United States Department of Agriculture shall be provided on the application as proof of EBT card acceptance.

(b) **Purpose.** Farmers' markets increase communities' access to fresh and healthy produce. The purpose of these Performance Standards is to minimize any impacts on the surrounding neighborhood that may result from the operation of a farmers' market, such as noise, light, trash or parking. Additional permits may be required by other City departments.

12. Interim Use of Motels for Supportive Housing or Transitional Housing. (Added by Ord. No. 185,489, Eff. 4/20/18.)

The purpose of this subdivision is to facilitate the interim use of existing transient residential structures, such as motels, Hotels, Apartment Hotels, Transient Occupancy Residential Structures and Hostels as Supportive Housing or Transitional Housing for persons experiencing homelessness or those at risk of homelessness. Under this subdivision, the structure may return to its previous use, or any use consistent with the underlying zoning, upon termination of the interim Supportive Housing or Transitional Housing use.

(a) **Interim Motel Housing Project.** An Interim Motel Housing Project is the physical re- purposing or adaptation of an existing transient residential structure, such as a motel, Hotel, Apartment Hotel, Transient Occupancy Residential Structure, or Hostel, for use as Supportive Housing or Transitional Housing for persons experiencing homelessness or those at risk of homelessness. The Local Public Agency determines who qualifies as experiencing homelessness or is at risk of homelessness. For purposes of this subdivision only, Local Public Agency is defined as an agency, identified on a list maintained by the Department of City Planning, that funds Supportive Housing and Transitional Housing for persons experiencing homelessness or at risk of homelessness. All Dwelling Units and Guest Rooms in the structure must be used for Supportive Housing or Transitional Housing or a combination of both. The Interim Motel Housing Project must not increase or add Floor Area or expand the building footprint or height, nor shall it increase the total combined number of Dwelling Units or Guests Rooms. Any Floor Area used for onsite Supportive Services shall be considered accessory to the residential use.

(b) Application and Approval.

(1) The Department of Building and Safety shall review all Interim Motel Housing Projects for zoning compliance described in Paragraph (d) and adherence to the performance standards in Paragraph (e). The Interim Motel Housing Project shall be approved if the application requirements, zoning compliance and performance standards of this subsection are met through the approval process, including but not limited to payment of fees, set forth in Chapter IX of the LAMC. Interim Motel Housing Projects shall not be considered an increase in density or other change which requires any corresponding discretionary action.

(2) Prior to issuance of a building permit, the applicant shall provide a copy of an executed contract agreement between the Local Public Agency, the provider of the Supportive or Transitional Housing, and the Interim Motel

Housing Project applicant for the provision of onsite Supportive Housing or Transitional Housing, or a combination of both; proof that the applicant has received funding from a Local Public Agency; and proof that the Supportive Housing or Transitional Housing contract is in effect.

(3) If structures or units are subject to the provisions of LAMC Section 47.70 et seq. (Residential Hotel Ordinance) on the date of the Interim Motel Housing Project application, they shall remain subject to all requirements and restrictions in Section 47.70 et seq. during the Supportive Housing or Transitional Housing contract. Interim Motel Housing Project applicants seeking to convert structures subject to the Residential Hotel Ordinance shall also submit an Application for Clearance using the process described in LAMC Section 47.78. At the conclusion of the Supportive Housing or Transitional Housing contract, the number of Residential Units, as defined in LAMC Section 47.73 T., at each participating structure shall be identical to the number of units originally determined by the Los Angeles Housing Department to be Residential Units pursuant to LAMC Section 47.76 or any subsequent number approved as part of an Application for Clearance. **(Amended by Ord. No. 187,122, Eff. 8/8/21.)**

(c) **Termination of Supportive Housing or Transitional Housing Contract.** Upon any termination of the Supportive Housing or Transitional Housing contract, the Interim Motel Housing Project applicant shall be required, within 90 days, to notify the Department of Building and Safety and to complete one of the following:

(1) Submit an application to the Department of Building and Safety to return to the use, authorized by a Certificate of Occupancy, existing on the date of the Interim Motel Housing Project application, or to any use permitted by the current zoning regulations; or

(2) Provide a copy of a new executed contract agreement to the Department of Building and Safety in accordance with the requirements in Paragraph (b)(2) to begin a new contract term for provision of Supportive Housing or Transitional Housing.

(d) **Zoning Compliance.**

(1) Interim Motel Housing Projects shall not be subject to any otherwise applicable zoning ordinance, specific plan, or other overlay district regulations, including, but not limited to, the following:

(i) **Minimum Area per Dwelling Unit or Guest Room.** A structure, regardless of any nonconforming status as to the area and density regulations of the underlying zone, may be used for an Interim Motel Housing Project, provided that the structure has a Certificate of Occupancy as a motel, Hotel, Apartment Hotel, Transient Occupancy Residential Structure, or Hostel, and the conversion does not create any additional total combined number of Dwelling Units or Guest Rooms.

(ii) **Off-Street Automobile Parking.** Interim Motel Housing Projects shall be exempt from the provisions of LAMC Section 12.21 A.4.(m). During the Supportive Housing or Transitional Housing contract, however, the Interim Motel Housing Project shall maintain and not reduce the number of onsite parking spaces existing on the date of the Interim Motel Housing Project application.

(iii) **Use.** Notwithstanding the use provisions of the underlying zoning, an Interim Motel Housing Project shall be permitted.

(iv) **Change of Use.** Section 12.23 B.7. of this Code shall not apply to Interim Motel Housing Projects.

(v) **Nonconforming Use of Buildings in Manufacturing Zones.** Notwithstanding the regulations contained in Section 12.23 B.4. of this Code, an Interim Motel Housing Project shall be permitted in M Zones.

(2) **Minor Interior Alterations for Cooking Facilities.** Approved Interim Motel Housing Project applicants may make minor interior alterations adding cooking facilities, including a sink, a refrigerator not exceeding 10 cubic feet, counter space not exceeding 10 square feet, and a hotplate or microwave, to Guest Rooms. In the event a structure is returned to the motel or hotel use in accordance with Paragraph (c)(1), the motel or hotel may maintain any Guest Rooms with added cooking facilities.

(3) **Preservation of Nonconforming Rights.** Upon termination of the Supportive Housing or Transitional Housing use, any structure that is nonconforming as to area or use regulations or any other zoning code requirements may return to the use and condition, authorized by a Certificate of Occupancy, existing on the date of the Interim Motel Housing Project application, notwithstanding any physical alterations to the subject property. Any Floor Area used for Supportive Services may be returned to use as Guest Rooms or Dwelling Units, or may be converted to accessory amenity spaces, so long as the total number of Dwelling Units or Guest Rooms do not exceed the number approved on the Certificate of Occupancy existing at the time of the application for Interim Motel Housing Project.

(e) **Performance Standards.** The Interim Motel Housing Project shall meet the following performance standards:

(1) **Supportive Service Area.** For every 20 Dwelling Units or Guest Rooms, a minimum of one dedicated office space shall be provided for the provision of on- site Supportive Services, including case management. A minimum of one dedicated office space shall be provided for Interim Motel Housing Projects with fewer than 20 total combined Dwelling Units or Guest Rooms. Any Floor Area dedicated to Supportive Services may be provided on- site within an existing building, but shall not exceed 10% of the total Floor Area of the building.

(2) **Lighting.** Security night lighting shall be shielded so that the light source cannot be seen from adjacent residential properties.

(3) **Security Lighting.** Security lighting with illumination of not less than 0.2 footcandles (2.15 lx) shall be provided in parking areas, alleys and any unenclosed spaces under or within the first floor of the building(s).

(4) **Recycling and Trash Facilities.** Any recycling and trash facilities shall be secured and completely enclosed by a solid wall or fence not less than six feet in height.

(5) **Historic Building.** An Interim Motel Housing Project shall not involve alteration of an historic character defining feature identified in a nomination or a survey for any project affecting a property listed in or formally determined eligible for a national, state or local historic register, individually or as a contributor to a historic district, unless the Director in consultation with the Office of Historic Resources determines the proposed alteration will not adversely impact the property's historic eligibility.

(f) **Conditional Use Permit.** If compliance with the Performance Standards is not met, the applicant may apply for a conditional use permit pursuant to the procedures in Subsection B. of this Section. The requirements in Paragraphs (a) and (b), above, must be met in order to qualify for conditional use permit. In approving the conditional use permit application, the Director shall find that the Interim Motel Housing Project substantially meets the purposes of the Performance Standards, including that it provides an appropriate level of Supportive Services that is accessible to the residents of the Supportive Housing or Transitional Housing. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

13. Density Bonus for Qualified Permanent Supportive Housing. This subdivision is intended to facilitate construction or maintenance of Supportive Housing units pursuant to Sec. 13B.3.1. (Administrative Review) of Chapter 1A of this Code in conformance with the State density bonus provisions in California Government Code Section 65915. The grant of any bonuses, incentives, or concessions under this subdivision shall not be considered an increase in density or other change which requires any corresponding zone change, general plan amendment, Project Exception or discretionary action. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

(a) **Definitions.** Notwithstanding any provision of this Code to the contrary, the following definitions shall apply to this subdivision:

(1) **Qualified Permanent Supportive Housing Project.** The construction of, addition to, or remodeling of a building or buildings offering Supportive Housing; located in a zone that allows multiple dwellings (RD1.5 or less restrictive); and where all of the total combined Dwelling Units or Guest Rooms, exclusive of any manager's units, are affordable. For the purposes of this subdivision, affordable means that rents or housing costs to the occupying residents do not exceed 30 percent of the maximum gross income of Extremely Low, Very Low or Low Income households, as those income ranges are defined by the United States Department of Housing and Urban Development (HUD) or any successor agency, as verified by the Los Angeles Housing Department. A minimum of 50 percent of the total combined Dwelling Units or Guest Rooms is occupied by the Target Population. **(Amended by Ord. No. 187,122, Eff. 8/8/21.)**

(2) **Target Population.** Persons with qualifying lower incomes who:

(i) Have one or more disabilities, including mental illness, HIV or AIDS, substance abuse, or other chronic health condition, and are homeless as defined by any Los Angeles City, Los Angeles County, State of California, or Federal guidelines; or

(ii) Are chronically homeless, as defined by any Los Angeles City, Los Angeles County, State of California, or Federal guidelines.

(3) **Local Public Agency.** A local public agency identified on a list maintained by the Department of City Planning that funds Supportive Services, keeps a prequalified list of service providers, or both.

(b) **Application and Approval.** The applicant shall submit an application on a form developed by the Department of City Planning that contains information about the project, the applicant and conformance with this section. All applications shall be reviewed for compliance with the definitions in Paragraph (a), requirements in Paragraph (c), zoning compliance in Paragraph (d), and adherence to the performance standards in Paragraph (g). The application shall be approved by the Department of City Planning if the eligibility criteria of this Subdivision are met.

(1) **Other Affordable Housing Incentive Programs.** Except as described in Paragraph (f), applicants for other affordable housing incentive programs, including, but not limited to, the Floor Area Bonus for the Greater Downtown Housing Incentive Area in Section 12.22 A.29. of this Code; the Density Bonus provisions in Sections 12.22 A.37., 12.22 A.38., 12.22 A.39. of this Code; the Transit Oriented Communities Affordable Housing Incentive Program in Section 12.22 A.31. of this Code; or affordable housing incentive provisions in Community Plan Implementation Overlays (CPIOs), shall not also be eligible for a Qualified Permanent Supportive Housing Project approval at the same location. **(Amended by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

(c) **Requirements.** A Qualified Permanent Supportive Housing Project must comply with the following requirements:

(1) **Supportive Services.** Applicants shall provide documentation describing the Supportive Services that will be provided onsite and offsite. Prior to any approval of a Qualified Permanent Supportive Housing Project, the applicant shall submit information demonstrating that Supportive Services will be provided to residents of the project. The applicant shall indicate the name of the entity or entities that will provide the Supportive Services, the Local Public Agency funding source(s) for those services, and proposed staffing levels. If a preliminary funding commitment is needed, the applicant shall also submit a signed letter of intent from the Local Public Agency verifying that it is providing a preliminary funding commitment for the Supportive Services. If no funding commitment is needed, the applicant shall demonstrate that the entity or entities that will provide the Supportive Services are service providers prequalified by a Local Public Agency.

(2) **Affordable Housing Covenant.** Projects shall record a covenant acceptable to LAHD that reserves and maintains the total combined number of Dwelling Units and Guest Rooms designated as restricted affordable for at least 55 years from the issuance of the Certificate of Occupancy. **(Amended by Ord. No. 187,122, Eff. 8/8/21.)**

(3) **Housing Replacement.** Projects shall meet any applicable dwelling unit replacement requirements of Section 16.60 of this Code, as verified by the Los Angeles Housing Department and all applicable covenant and monitoring fees in Section 19.14 of this Code shall be paid by the applicant prior to the issuance of any building permit. **(Amended by Ord. No. 188,481, Eff. 2/11/25, Oper. 2/11/25.)**

(4) **Notification of Application.** The following requirements shall be completed at least 30 days prior to the Department of City Planning's approval of the Qualified Permanent Supportive Housing Project:

(i) The Department shall send written notices of the Qualified Permanent Supportive Housing Project application by U.S. mail to the abutting property owners, applicable Neighborhood Council and the Council District Office of the site; and

(ii) The applicant shall post, in a conspicuous place near the entrance of the property, a public notice of the Qualified Permanent Supportive Housing Project application. The applicant shall submit proof of posting to the Department, which includes submission of a completed public notice form provided by the Department and photographs of the posted notice.

(d) **Bonuses and Incentives.** A Qualified Permanent Supportive Housing Project meeting the requirements in Paragraph (c) and the performance standards in Paragraph (g) is eligible for the following bonuses and incentives:

(1) **Minimum Lot Area per Dwelling Unit or Guest Room.** In zones where multiple dwelling uses are permitted (R3 and less restrictive), the number of allowable Dwelling Units or Guest Rooms shall not be subject to the otherwise maximum allowable residential density under any applicable zoning ordinance or specific plan. In the RD1.5 Zone, the minimum lot area per Dwelling Unit or Guest Room shall be 500 square feet. All applicable standards pertaining to height and floor area under any applicable zoning ordinance, specific plan or overlay shall apply.

(2) **Automobile Parking Requirements.** The following requirements shall apply to all Qualified Permanent Supportive Housing Projects. Up to 40% of the total required parking spaces may be provided by compact stalls.

(i) No parking spaces shall be required for Dwelling Units or Guest Rooms restricted to the Target Population.

(ii) For a Qualified Permanent Supportive Housing Project located within one-half (1/2) mile of a Rapid Bus as defined in Section 12.22 A.38.(b), a High Quality Transit Service, or a Major Transit Stop as defined in Section 21155(b) of the Public Resources Code, no more than one-half (1/2) parking space shall be required for each income-restricted Dwelling Unit or Guest Room not occupied by the Target Population. Otherwise, no more than one (1) parking space shall be required for each income-restricted Dwelling Unit or Guest Room not occupied by the Target Population. **(Amended by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

(iii) One (1) parking space for every 20 Dwelling Units or Guest Rooms shall be required for the purpose of accommodating guests, supportive services, and case management.

(iv) **Exception for Projects Located in the Greater Downtown Housing Incentive Area.** For projects located in the Greater Downtown Housing Incentive Area, no parking space shall be required for Dwelling Units or Guest Rooms dedicated or set aside for households that earn less than 50% of the Area Median Income as determined by LAHD. **(Amended by Ord. No. 187,122, Eff. 8/8/21.)**

(3) **Floor Area.** Areas designated exclusively for Supportive Services use or public areas accessible to all residents, including those for residential or Supportive Services uses, shall not be considered as floor area of the building for the purposes of calculating the total allowable Floor Area. The Floor Area shall be measured to the center line of wall partitions between public and non-public areas.

(4) **Continuing Existing Use.** Notwithstanding the use provisions of the underlying zoning, a Qualified Permanent Supportive Housing Project developed pursuant to this subdivision shall be permitted when the project is converted from or is a replacement of a Residential Hotel as defined in Section 47.70 et seq. of this Code, and is a continuation of an existing residential use. The replacement shall comply with the provisions of Section 47.70 et seq. as approved by LAHD. The total number of Dwelling Units or Guest Rooms may be increased as part of the conversion or replacement. This subparagraph shall not apply to a Residential Hotel located in a RD2 or more restrictive residential zone. **(Amended by Ord. No. 187,122, Eff. 8/8/21.)**

(5) **Guest Rooms.** For the purposes of this subdivision, a Guest Room may contain cooking facilities including a sink, refrigerator not exceeding 10 cubic feet, counter space not exceeding 10 square feet, and a hotplate or microwave.

(e) **Additional Concessions or Incentives.** The project shall be eligible for any combination of up to five concessions or incentives described below, as applicable. Incentives shall not be used to exempt compliance with the performance standards described in Paragraph (g) below.

(1) **Yard/Setback.** A Qualified Permanent Supportive Housing Project may only qualify for this incentive when the landscaping qualifies for the number of landscape points equivalent to 10% or more than otherwise required by Section 12.40 E. of this Code and Landscape Ordinance Guidelines "O". All adjustments to individual yards or setbacks may be combined to count as one concession or incentive.

(i) Up to 20% decrease in the required width or depth of any individual yard or setback, except along a property line that abuts an R1 or more restrictively zoned property, in which case no reduction is permitted.

(ii) In residential zones, however, the resulting front yard setback may not be less than the average of the front yards, as measured to the main building, of adjoining lots along the same street Frontage. If located on a corner lot or adjacent to a vacant lot, the front yard setback may align with the facade of the adjacent building along the same front lot line, and may result in more or less than a 20% decrease in the required setback. If there are no adjacent buildings, no reduction is permitted.

(2) **Lot Coverage.** Up to 20% increase in lot coverage limits, provided that the landscaping for the Qualified Permanent Supportive Housing Project qualifies for the number of landscape points equivalent to 10% more than otherwise required by Section 12.40 of this Code and Landscape Ordinance Guidelines "O".

(3) **Floor Area Ratio.**

(i) Up to 35% increase in the allowable Floor Area Ratio.

(ii) In the RD1.5 Zone, up to a 20% increase in the allowable Floor Area Ratio.

(iii) In lieu of the otherwise applicable Floor Area Ratio, a Floor Area Ratio not to exceed 3:1, provided the parcel is in a commercial zone.

(4) **Height.** Up to 35% increase in the maximum allowable height in feet, applicable over the entire parcel regardless of any of the lower underlying height limits. For purposes of this Subparagraph, Section 12.21.1 A.10. of this Code shall not apply. In its place, the following transitional height requirements shall be applied:

(i) In any zone in which the height or number of stories is limited, this provision shall permit a maximum height increase of one additional story up to eleven feet.

(ii) When adjacent to or across an alley from an R2 or more restrictive zone, the building's transitional height shall be stepped- back within a 45 degree angle as measured from a point 25 feet above grade at the property line.



(iii) In the RD1.5 Zone, when adjacent to or across an alley from an R2 or more restrictive zone, the building's transitional height shall be stepped-back within a 45 degree angle as measured from a point 20 feet above grade at the property line.



(5) **Open Space.** Up to 20% decrease in the required open space, provided that the landscaping for the Qualified Permanent Supportive Housing Project qualifies for the number of landscape points equivalent to 10% more than otherwise required by Section 12.40 of this Code and Landscape Ordinance Guidelines "O".

(6) **Common Open Space.** Notwithstanding the requirements in Section 12.21 G.2.(a)(4)(i) of this Code, recreation rooms at least 600 square feet in area for a development of 16 or more dwelling units or guest rooms, or at least 400 square feet in area for a development of fewer than 16 dwelling units or guest rooms, may qualify as common open space, but shall not qualify for more than 40 percent of the total required usable open space.

(7) **Averaging of Floor Area Ratio, Parking or Open Space, and Permitting Vehicular Access.** A Qualified Permanent Supportive Housing Project that is located on two or more contiguous parcels may average the Floor Area, open space and parking over the project site, and permit vehicular access through a more restrictive zone to a less restrictive zone, provided that:

(i) The proposed use is permitted by the underlying zone(s) of each parcel; and

(ii) No further lot line adjustment or any other action that may cause the Qualified Permanent Supportive Housing Project site to be subdivided subsequent to this grant shall be permitted.

(8) **Ground Floor Use.** Where nonresidential floor area is required by a zoning ordinance, Specific Plan, Community Plan, Pedestrian Overlay Zone or other set of development standards, that requirement may be satisfied by any active ground floor use such as community rooms, resident amenities, supportive service areas, and common open space.

(9) **Other Development Standard.** Up to a 20% relief may be provided from one other development standard not described in this section, as that term is defined in California Government Code Section 65915(o)(1), or as may be amended from time to time.

[Editor's note: Subsections (8) and (9) were originally set forth as subsections 5. and 6. in Ord. No. 185,492; renumbered at the discretion of the Code editor.]

(f) **Request for Additional Waivers.** The City may not apply a development standard that will physically preclude the construction of the Qualified Permanent Supportive Housing Project. Applicants may request additional waivers pursuant to the discretionary review procedures described in Section 12.22 A.37.(d)(3) of this Code. The applicant shall not be required to provide a pro forma or other documentation to show that the waiver or modification of any development standard(s) is needed in order to make the Qualified Permanent Supportive Housing Project economically feasible, but must provide reasonable documentation of its eligibility for the requested waiver. Additional waivers shall not be used to exempt compliance with the performance standards described in Paragraph (g). (Amended by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)

(g) **Performance Standards.** All projects shall meet the following performance standards or shall comply with the alternative compliance measures pursuant to Section 14.00 B. of this Code. If otherwise applicable performance standards or design standards established under any zoning code, specific plan, or other overlay requirements conflict with this Subsection, those requirements shall supersede the standards provided in this Section.

(1) **Location Requirement.** The Qualified Permanent Supportive Housing Project shall be located within a

High Quality Transit Area for the horizon year in the current Regional Transportation Plan/Sustainable Communities Strategy for the Southern California Association of Governments region.

(2) **Unit / Guest Room Requirements.** Each Dwelling Unit or Guest Room shall have a private bathroom and cooking facilities containing, at minimum, a sink, refrigerator, counter space, and a hotplate or microwave.

(3) **Onsite Supportive Services Requirement.** Nonresidential floor area shall be provided for onsite Supportive Services in the following ratios:

(i) For Qualified Permanent Supportive Housing Projects with 20 or fewer total combined Dwelling Units or Guest Rooms, no less than 90 square feet of dedicated office space shall be provided; or

(ii) For Qualified Permanent Supportive Housing Projects with greater than 20 Dwelling Units or Guest Rooms, a minimum of 3 percent of the total Residential Floor Area shall be dedicated for onsite Supportive Services provided solely to Project residents, including but not limited to community rooms, case management offices, computer rooms, and/or a community kitchen.

(4) **Facade Transparency.**

(i) For any building located in a Commercial Zone, a minimum of 25 percent of that portion of the exterior street-facing walls which are between 2 feet to 8 feet above the sidewalk grade shall be comprised of transparent (untinted, unfrosted, non- reflective) windows or openings, exclusive of areas for walkways, driveways, paseos and plazas.

(ii) A minimum of 10 percent of the upper story portions of the exterior street-facing building facade as measured from the top of the finished ground floor to the top of the building facade shall be comprised of transparent (untinted, unfrosted, non- reflective) windows or openings.

(iii) Glass Transparency. Glass is considered transparent where it has a transparency higher than 80 percent and external reflectance of less than 15 percent.

(5) **Massing.** Buildings more than 200 feet in length along any exterior street- facing building facade shall include a design element that provides visual relief every 100 feet. The design element shall either setback from or step forward from the face of the building by at least a depth of 12 inches and shall be a width of no less than 5 percent of the building face (ex: 5 percent of 100' = 5') and shall extend up the face of the building to at least 50 percent of the facade height.

(6) **Mechanical Equipment – Roof Mounted.** Roof mounted mechanical equipment shall be set back a minimum of 5 feet from the edge of the roof, and shall be fully screened from the ground level view from all abutting properties and abutting public rights-of-way except alleys. New buildings must provide a parapet wall or other architectural element that fully screens roof mounted equipment from ground level view. Existing buildings with no or low parapet walls shall screen the equipment on all sides by an opaque screen. Sustainable energy systems (including solar panels, rainwater catchment devices and wind turbines) shall be exempt from roof mounted screening requirements.

(7) **Mechanical Equipment – Wall Mounted.** Wall mounted mechanical equipment that is visible from a public right-of-way must be fully screened by landscaping or an opaque screening material. Screening must be of a height equal to or greater than the height of the mechanical equipment being screened. Sustainable energy systems (including solar panels, rainwater catchment devices and wind turbines) shall be exempt from wall mounted screening requirements.

(8) **Building Orientation.** All buildings shall be oriented to the street by providing primary entrances, windows, architectural features or balconies on the front and along any street-facing elevations. Primary entrances shall be connected to and visible from a public street such that a pedestrian entering the building need not walk through a vehicle parking area in order to arrive at the entrance.

(9) **Landscaping.** All portions of the required front yard not used for necessary driveways and walkways, including decorative walkways, shall be landscaped and maintained, and not otherwise paved.

(10) **Lighting.** Security night lighting shall be shielded so that the light source cannot be seen from adjacent residential properties.

(11) **Surface Parking.** Any portions of surface parking areas on which automobile parking is prohibited, or which is otherwise not improved, shall be fully landscaped with lawn, trees, shrubs or suitable groundcover, and no portion except the access driveways shall be paved.

(12) **At-Grade Parking.** No at-grade parking space shall be located within the front yard. Loading areas and off-street parking facilities containing three or more spaces shall be effectively screened from abutting streets and

lots. The screening shall not obstruct the view of the driver entering or leaving the loading area or parking facility, or the view from the street of entrances and exits to a loading area or parking facility. The screening shall consist of one or more of the following:

- (i) A strip at least 5 feet in width of densely planted shrubs or trees that are at least 2 feet high at the time of planting and are of a type that may be expected to form, within three years after time of planting, a continuous, unbroken, year round visual screen; or
- (ii) A wall, barrier, or fence of uniform appearance. Such wall, barrier, or fence may be opaque or perforated, provided that not more than 50 percent of the face is open. The wall, barrier or fence shall be between 4 and 6 feet in height.

(13) **Construction Standards.** The applicant shall comply with all of the construction standards provided in Subparagraphs (i) through (vi), below. The applicant shall retain an independent construction monitor, approved by the Department of Building and Safety (DBS), who shall be responsible for monitoring implementation of the construction standards. The construction monitor shall also prepare documentation of the applicant's compliance with the construction standards during construction every 90 days in a form and manner satisfactory to the DBS. The documentation must be signed by the applicant and the construction monitor. DBS shall verify that the applicant has or will (by having an appropriately qualified expert(s) under contract as may be necessary) comply with the construction standards prior to issuance of any permits.

(i) No pile driving shall be allowed unless required due to geological conditions. Where piles are needed, they shall be installed through quiet techniques such as vibratory piles.

(ii) If excavating below previously excavated depths, the applicant shall have appropriately qualified experts use all reasonable methods, consistent with professional standards, to determine the potential that archaeological resources, paleontological resources or unique geological feature (resources) are present on the project site, including through record searches and surveys. If a qualified expert determines there is a medium to high potential that resources are on the project site and the project has the potential to impact resources, the qualified expert(s) shall monitor and direct any excavation, grading or construction activities to identify resources and avoid potential impacts to resources.

(iii) If archaeological resources, paleontological resources, or unique geological features (resources) are discovered during excavation, grading or construction activities, applicant shall cease work in the area of discovery until a qualified expert has evaluated the find and the City has taken any necessary measures to preserve and protect the find in accordance with federal, state and local law and guidelines.

(iv) If the project involves soil disturbance on land currently or historically zoned industrial or, previously used, in whole or in part, for a gas station, gas or oil well or dry cleaning facility, the applicant shall hire a qualified Environmental Professional (as defined in Title 40 Code of Federal Regulations Section 312.10 Definitions) to prepare a Phase I and, as needed, a Phase II Environmental Site Assessment. The Site Assessment(s) shall be submitted to DBS and made publicly available. If recommended by the Phase I or, as applicable, Phase II Environmental Site Assessment, a remediation plan shall be prepared by an Environmental Professional including in consultation with or as legally required by any appropriate oversight agencies, (e.g., the Department of Toxic Substances Control and the Los Angeles Regional Water Quality Control Board). If remediation is required, no demolition, grading, or building permit shall issue until either, a No Further Action letter, if required, is issued by an oversight agency, or if no such letter is required, an Environmental Professional has certified that the identified hazardous materials or hazardous waste have been remediated to an acceptable level appropriate to the intended use.

(v) If excavating below previously excavated depths, the applicant shall notify the California Native American tribes that are traditionally and culturally affiliated with the geographic area of the project site if the Tribe requested in writing to be notified of projects in that area. The applicant shall provide notice to the tribes in a form and manner required by the Department. If the Department determines there is a medium to high potential for tribal resources to exist on or near the project site through credible evidence, including evidence that may be submitted by a tribe, as determined by the Director in consultation with the Office of Historic Resources, the excavation in previously undisturbed soils shall be monitored by a qualified Tribal Monitor and/or an archaeologist qualified to identify tribal resources. The applicant shall be required to retain a qualified expert if determined necessary by the Director.

(vi) If tribal resources are discovered during excavation, grading, or construction activities, work shall cease in the area of the discovery until an authorized Tribal Representative has been provided an opportunity to evaluate the find. Construction personnel shall not collect or move any tribal resources. Applicant shall cease work in the area of discovery until a qualified expert has evaluated the find and the City has taken any necessary measures to preserve and protect the find in accordance with federal, state and local law and guidelines.

(14) **Historic Resources.** The Qualified Permanent Supportive Housing shall not involve a historical resource,

as defined by Public Resources Code Section 21084.1 as determined by the Director, in consultation with the Office of Historic Resources.

(h) **Purpose.** The purpose of this subdivision is to facilitate the expedient production of Supportive Housing units meeting the definitions and regulations established herein in order to provide high-quality, well-serviced and affordable housing units which are responsive to the needs of the Target Population. Qualified Permanent Supportive Housing Projects should be located at sites that are accessible by public transit, including paratransit. Individual Dwelling Units or Guest Rooms should be provided with basic amenities that are sufficient to support independent living. Sufficient non-residential floor area should be made available on the subject property to provide the appropriate level of Supportive Services to the resident Target Population. Architectural features should be incorporated in the building design to ensure that buildings are street-oriented, provide visual interest at the street level, and facilitate pedestrian access. Landscaping should be provided in any front yard area or on any surface parking area to provide additional visual interest at the street level. Lighting on the site should be located so as to not reflect on adjoining residential uses.

(i) **Conditional Use Permit.** If compliance with Performance Standards is not met, the applicant may apply for a conditional use permit pursuant to the procedures in Subsection B. of this Section. The Application and Approval provisions in Paragraph (b) and the requirements in Paragraph (c) must be met in order to qualify for a conditional use permit. The Construction Performance Standards in Subparagraph (g)(13) must also be met unless the City makes the necessary findings to modify or delete one or more Standards which are also mitigation measures included in the mitigation and monitoring program adopted to approve this ordinance, through a subsequent environmental process prepared for the conditional use permit. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

B. Conditional Use Permit for Public Benefit Projects. (Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

1. **Applicability.** If a proposed public benefit project does not comply with the performance standards delineated in Subsection A., the applicant may apply for approval of a conditional use permit pursuant to Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code.

2. **Supplemental Findings.** In approving any public benefit project, the Zoning Administrator shall also find that the proposed project substantially meets the purposes of the performance standards set forth in Subsection A.

3. **Fee Deferral for Density Increase for Affordable Housing Pursuant to Section 14.00 A.2.** The payment of filing fees may be deferred pursuant to the provisions of Sections 19.01 O. and 19.05 A.1. and 5. of this Chapter.

4. Exceptions to Notice and Hearing Requirements in Subdivision 4.

(a) **Shelter for the Homeless Pursuant to Subsection A.8.** An application for approval of an conditional use permit for a shelter for the homeless as defined in Section 12.03 of this Chapter shall be set for public hearing, and notice shall be given in the same manner as provided for in Section 13.7.3 (Variance) of Chapter 1A of this Code. However, in the M1, M2, M3 Zones, the Zoning Administrator may waive the public hearing if the applicant submits with the application the written approval of all of the owners of all properties abutting, across the street or alley from or having a common corner with the subject property.

(b) **Temporary Accommodations for Homeless Persons Pursuant to Subsection A.9.** An application for approval of conditional use permit for temporary accommodations for homeless persons as defined in Section 12.03 of this Chapter need not be set for public hearing. The application shall be submitted on a form and shall be accompanied by information as required by the Zoning Administrator. There shall be no filing fee and no appeal fee in connection with an application.

Before approving an application pursuant to this section, the Zoning Administrator shall notify all adjacent property owners of the pendency of the application and shall provide them an opportunity to present their comments. After making a decision pursuant to this subdivision, the Zoning Administrator shall notify, in writing, the applicant and owners of all properties located within 300 feet of the subject property, of the Zoning Administrator's decision.

5. **Revocation.** The revocation procedure that applies to conditional uses and other similar quasi-judicial approvals in Sec. 13B.6.1 (Evaluation of Non- Compliance) of Chapter 1A of this Code shall also apply to revocations of public benefits that were granted pursuant to the conditional use permits procedures in this Section.

SEC. 14.01. PROCEDURE.

(Repealed by Ord. No. 173,374, Eff. 8/3/00.)

SEC. 14.02. COMPLIANCE.

(Repealed by Ord. No. 173,374, Eff. 8/3/00.)

SEC. 14.03. VARIANCES – APPEALS.
(Repealed by Ord. No. 173,374, Eff. 8/3/00.)

SEC. 14.04. STREET VACATION.
(Repealed by Ord. No. 173,374, Eff. 8/3/00.)

SEC. 14.05. ENFORCEMENT.
(Repealed by Ord. No. 173,374, Eff. 8/3/00.)

ARTICLE 4.3

ELDERCARE FACILITY UNIFIED PERMIT PROCESS

(Article 4.3 Added by Ord. No. 178,063, Eff. 12/30/06.)

Section

14.3.1 Eldercare Facilities.

SEC. 14.3.1. ELDERCARE FACILITIES.
(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

A. Purpose Statement. The purpose of this article is to provide development standards for Alzheimer's/ Dementia Care Housing, Assisted Living Care Housing, Senior Independent Housing and Skilled Nursing Care Housing, create a single process for approvals and facilitate the processing of applications of Eldercare Facilities. These facilities provide much needed services and housing for the growing senior population of the City of Los Angeles.

B. Eldercare Facility Unified Permit. The Zoning Administrator, as the initial decision maker, may, upon application, permit an Eldercare Facility to be located on a lot or lots in the A1 through R3 Zones, or in the RAS3, R4, RAS4, R5, and all C Zones, when an Eldercare Facility does not meet the use, area, or height provisions of the respective zone contained in this chapter, or the requirements of any specific plan, supplemental use district, "T" classification, "Q" condition, "D" limitation, or Citywide regulation adopted or imposed by City action. In order to approve the project, the Zoning Administrator shall ensure that it is in conformance with the provisions of this section.

In addition, if the proposed Eldercare Facility is located within the boundaries of an adopted specific plan, notwithstanding the provisions of Sec. 13B.4.2. (Project Compliance) of Chapter 1A of this Code, the Zoning Administrator shall have the initial decision making authority to decide whether the proposed Eldercare Facility is in conformance with the applicable regulations of the specific plan. In making this determination, the Zoning Administrator shall make each of the findings set forth in Sec. 13B.4.2. (Project Compliance) of Chapter 1A of this Code, following the provisions set forth in this section. Further, if the proposed Eldercare Facility is subject to site plan review, notwithstanding the provisions of Sec. 13.2.4. (Project Review) of Chapter 1A of this Code, the Zoning Administrator shall have the initial decision making authority relating to site plan approval. In making this determination, the Zoning Administrator shall make each of the findings set forth in Sec. 13B.2.4. (Project Review) of Chapter 1A of this Code, following the provisions set forth in this Section.

C. Procedures. An application for an Eldercare Facility Unified Permit shall follow the procedures set forth in Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code.

D. Supplemental Findings for Approval. In addition to the findings set forth in Sec. 13B.2.2. (Class 2 Conditional Use Permit) of Chapter 1A of this Code, the Zoning Administrator shall not grant the approval unless the Zoning Administrator also finds that the strict application of the land use regulations on the subject property would result in practical difficulties or unnecessary hardships inconsistent with the general purpose and intent of the zoning regulations. The Zoning Administrator must also find:

1. that the project's location, size, height, operations and other significant features shall be compatible with and shall not adversely affect or further degrade adjacent properties, the surrounding neighborhood, or the public health, welfare, and safety;
2. that the project shall provide services to the elderly such as housing, medical services, social services, or long term care to meet citywide demand;
3. that the project shall not create an adverse impact on street access or circulation in the surrounding neighborhood;

4. that the project provides for an arrangement of uses, buildings, structures, open spaces and other improvements that are compatible with the scale and character of the adjacent properties and surrounding neighborhood; and

5. that the project is in substantial conformance with the purposes, intent and provisions of the General Plan, applicable community plan, and with any applicable specific plan.

E. Revocation. The revocation procedure that applies to conditional uses and other similar quasi-judicial approvals in Sec. 13B.6.1. (Evaluation of Non-Compliance) of Chapter 1A of this Code shall also apply to revocations of Eldercare Facilities that were granted pursuant to the procedures in this section.

ARTICLE 4.4

SIGN REGULATIONS

(Article Added by Ord. No. 179,416, Eff. 12/20/07, Oper. 1/1/08.)

Section

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SEC. 14.4.1. PURPOSE.

The purpose of this article is to promote public safety and welfare by regulating signs in keeping with the following objectives:

- A. That the design, construction, installation, repair and maintenance of signs will not interfere with traffic safety or otherwise endanger public safety.
- B. That the regulations will provide reasonable protection to the visual environment by controlling the size, height, spacing and location of signs.
- C. That both the public and sign users will benefit from signs having improved legibility, readability and visibility.
- D. That consideration will be given to equalizing the opportunity for messages to be displayed.
- E. That adequacy of message opportunity will be available to sign users without dominating the visual appearance of the area.
- F. That the regulations will conform to judicial decisions, thereby limiting further costly litigation and facilitating enforcement of these regulations. (Added by Ord. No. 180,841, Eff. 8/14/09.)

SEC. 14.4.2. DEFINITIONS.

The following terms shall apply to this article. Other terms used in this article shall have the meanings set forth in Section 12.03 of this Code, if defined in that section.

Bisecting Line. A line that equally divides the angle created by the projection of intersecting lot lines of a lot adjoining the

street of a corner lot as illustrated in Diagram C of this article.

Building Frontage. The projection of the building walls upon the street used for street frontage.

Digital Display. A sign face, building face, and/or any building or structural component that displays still images, scrolling images, moving images, or flashing images, including video and animation, through the use of grid lights, cathode ray projections, light emitting diode displays, plasma screens, liquid crystal displays, fiber optics, or other electronic media or technology that is either independent of or attached to, integrated into, or projected onto a building or structural component, and that may be changed remotely through electronic means. **(Added by Ord. No. 180,841, Eff. 8/14/09.)**

Face of Building. The general outer surface, not including cornices, bay windows or architectural projections, of any exterior wall of a building.

Freeway. A highway in respect to which the owners or those in possession of abutting lands have no right or easement of access to or from their abutting lands or in respect to which the owners have only limited or restricted right or easement of access, and which is declared to be a freeway, in compliance with the Streets and Highways Code of the State of California.

Identification Sign. A wall sign that is limited to a company logo, generic type of business, or the name of a business or building.

Illuminated Architectural Canopy Sign. An enclosed illuminated structure that is attached to the wall of a building with the face of the sign approximately parallel to the wall and with the message integrated into its surface.

Inflatable Device. A sign that is a cold air inflated object, which may be of various shapes, made of flexible fabric, resting on the ground or structure and equipped with a portable blower motor that provides a constant flow of air into the device. Inflatable devices are restrained, attached, or held in place by a cord, rope, cable or similar method. The term inflatable device shall not include any object that contains helium, hot air or a lighter-than-air substance.

Information Sign. A sign that is limited to a message giving directions, instructions, menus, selections or address numerals.

Main Traveled Roadway of a Freeway. The portion of a freeway, including interchange roadways connecting one freeway with another, which is designed for the movement of large volumes of vehicular traffic, efficiently and safely at high speed, but not including service roadways, landscape areas, or ingress or egress ramps connecting the freeway with other streets.

Monument Sign. A sign that is erected directly upon the existing or artificially created grade, or that is raised no more than 12 inches from the existing or artificially created grade to the bottom of the sign, and that has a horizontal dimension equal to or greater than its vertical dimension.

Nuisance, Public. Trash, debris, rubbish, weeds, graffiti, unpermitted posters/handbills, or illegal postings. **(Added by Ord. No. 187,145, Eff. 9/30/21.)**

Off-Site Sign. A sign that displays any message directing attention to a business, product, service, profession, commodity, activity, event, person, institution or any other commercial message, which is generally conducted, sold, manufactured, produced, offered or occurs elsewhere than on the premises where the sign is located.

Off-Site Sign Structure. A structure of any kind or character, erected, used or maintained for an off- site sign or signs, upon which any poster, bill, printing, painting, projected image or other advertisement may be placed.

On-Site Sign. A sign that is other than an off- site sign.

Original Art Mural. A one-of-a-kind, hand- painted, hand-tiled, or digitally printed image on the exterior wall of a building that does not contain any commercial message. For definition purposes, a commercial message is any message that advertises a business conducted, services rendered, or goods produced or sold. **(Added by Ord. No. 182,706, Eff. 10/12/13.)**

Perpendicular Line. A straight line between the point on a sign face that is closest to the street and the point where the line intersects the street lot line at a 90 degree angle, as illustrated in Diagram C of this article.

Pole Sign. A freestanding sign that is erected or affixed to one or more poles or posts and that does not meet the requirements of a monument sign.

Projecting Sign. A sign, other than a wall sign, that is attached to a building and projects outward from the building with one or more sign faces approximately perpendicular to the face of the building.

Projection. The distance by which a sign extends beyond the building line.

Public Art Installation. A facility, amenity or project that does not contain any commercial message and which is either an "approved public arts project" as defined by Section 19.85.4 of the Los Angeles Administrative Code or approved pursuant to Section 91.107.4.6 of the Los Angeles Municipal Code. For definition purposes, a commercial message is any message that

advertises a business conducted, services rendered, or goods produced or sold. **(Added by Ord. No. 182,706, Eff. 10/12/13.)**

Roof Sign. A sign erected upon a roof of a building.

Sign. Any whole or part of a display board, wall, screen or object, used to announce, declare, demonstrate, display or otherwise present a message and attract the attention of the public.

Sign Area. An area circumscribed by the smallest geometric shape created with a maximum of eight straight lines, which will enclose all words, letters, figures, symbols, designs and pictures, together with all framing, background material, colored or illuminated areas and attention-attracting devices, forming an integral part of an individual message except that:

1. Wall signs having no discernible boundary shall have the areas between letters, words intended to be read together and any device intended to draw attention to the sign message included in any computation of surface area.
2. For spherical, cylindrical or other three-dimensional signs the area of the sign shall be computed from the smallest two-dimensional geometrical shape or shapes, which will best approximate the greatest actual surface area visible from any one direction.
3. Sign support structures are excluded if neutral in color.
4. **“Time and Temperature”** sign copy is excluded from computation of sign area if the copy is less than 56 square feet in area.

Sign Face. The surface upon which the sign message is placed.

Street Frontage. The length of a line separating a lot from one street.

Supergraphic Sign. A sign, consisting of an image projected onto a wall or printed on vinyl, mesh or other material with or without written text, supported and attached to a wall by an adhesive and/or by using stranded cable and eye-bolts and/or other materials or methods, and which does not comply with the following provisions of this Code: Sections 14.4.10; 14.4.16, 14.4.17; 14.4.18; and/or 14.4.20.

Temporary Construction Wall. A temporary solid fence or barrier of wood or similar material that provides protection for pedestrians and is erected and maintained on the perimeter of a construction or demolition site. **(Amended by Ord. No. 187,145, Eff. 9/30/21.)**

Temporary Sign. Any sign that is to be maintained for a limited duration, not to exceed 30 days, including paper signs and other signs that are not permanently affixed to the ground or building.

Vintage Original Art Mural. An Original Art Mural that existed prior to the operative date of this definition. **(Added by Ord. No. 182,706, Eff. 10/12/13.)**

Wall Sign. Any sign attached to, painted on or erected against the wall of a building or structure, with the exposed face of the sign in a plane approximately parallel to the plane of the wall.

Window Sign. Any sign, except for a supergraphic sign, that is attached to, affixed to, leaning against, or otherwise placed within six feet of a window or door in a manner so that the sign is visible from outside the building.

SEC. 14.4.3. APPLICATION.

A. **Scope.** All exterior signs and sign support structures shall conform to the requirements of this article and all other applicable provisions of this Code, except that the provisions of Subsections 14.4.4 E. and G.; 14.4.4 I.; 14.4.5; 14.4.6; 14.4.12; 14.4.18; 91.6205.2; and 91.6216 of this Code shall not apply to the relocation of signs or sign support structures that existed on January 17, 1993, that were erected or are maintained by the Los Angeles Memorial Coliseum Commission (Commission) on property owned or controlled, in whole or in part, by the Commission. The regulations in this Article do not apply to signs located primarily within a public right-of-way. **(Amended by Ord. No. 187,145, Eff. 9/30/21.)**

B. **On-Site Signs.** The following provisions of this Code, as applicable, shall apply to on-site signs: Sections 14.4.4 A.; 14.4.5; 14.4.6; 14.4.7; 14.4.9; 14.4.10; 14.4.11; 14.4.12; 14.4.13; 14.4.14; 14.4.15; 14.4.19; 91.6205; 91.6207; and 91.6216.

C. **Off-Site Signs.** The following provisions of this Code, as applicable, shall apply to off-site signs: Sections 14.4.4 A.; 14.4.5; 14.4.6; 14.4.18; 91.6205; and 91.6207.

D. **Temporary Signs.** The following provisions of this Code, as applicable, shall apply to temporary on-site and off-site signs: Sections 14.4.4 A.; 14.4.5; 14.4.6; 14.4.16; 14.4.17; 91.6205; and 91.6207.

E. **(Deleted by Ord. No. 182,706, Eff. 10/12/13.)**

SEC. 14.4.4. GENERAL PROVISIONS.

A. **Ideological and Political Signs.** No provision of this article shall prohibit an ideological, political or other noncommercial message on a sign otherwise permitted by this article.

B. **Prohibited Signs.** Signs are prohibited if they:

1. Contain obscene matters, as defined in Section 311 of the Penal Code of the State of California.
2. Contain or consist of posters, pennants, banners, ribbons, streamers or spinners, except as permitted by Sections 14.4.16 and 14.4.17 of this Code.
3. Contain flashing, mechanical and strobe lights in conflict with the provisions of Sections 80.08.4 and 93.0107 of this Code.
4. Are revolving and where all or any portion rotate at greater than six revolutions per minute.
5. Are tacked, pasted or otherwise temporarily affixed on the walls of buildings, barns, sheds, trees, poles, posts or fences, except as permitted by Sections 14.4.16 and 14.4.17 of this Code.
6. Are affixed to any vehicle or trailer on private property if the vehicle or trailer is not intended to be otherwise used in the business and the sole purpose of attaching the sign to the vehicle or trailer is to attract people to a place of business.
7. Emit audible sounds, odor or visible matter.
8. Use human beings, live animals, animated figures, motion pictures or slide projectors in connection with any sign.
9. Are supergraphic signs. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

EXCEPTIONS: This prohibition shall not apply to supergraphic signs that are specifically permitted pursuant to a legally adopted specific plan, supplemental use district or an approved development agreement. This exception shall become operative only to the extent that Subdivision 9. is deemed constitutional upon the reversal of the trial court decision in the case of *World Wide Rush, LLC v. City of Los Angeles*, United States District Court Case No. CV 07-238 ABC.

In addition, notwithstanding the provisions of Sec. 13B.10.1. (General Provisions) of Chapter 1A of this Code, this prohibition shall not apply to any building permit issued prior to the effective date of this ordinance if the Department of Building and Safety determines that both substantial liabilities have been incurred, and substantial work has been performed on site, in accordance with the terms of that permit pursuant to Section 91.106.4.3.1 of Chapter 9 of this Code.

10. **(Deleted by Ord. No. 182,706, Eff. 10/12/13.)**

11. Are off-site signs, including off-site digital displays. This prohibition shall also apply to alterations, enlargements or conversions to digital displays of legally existing off-site signs with regard to the following exceptions: **(Amended by Ord. No. 187,145, Eff. 9/30/21.)**

EXCEPTIONS: This prohibition shall not apply to:

- (a) alterations that conform to the provisions of Section 91.6216 and all other requirements of this Code; or
- (b) off-site signs specifically permitted pursuant to a relocation agreement entered into pursuant to California Business and Professions Code Section 5412; or
- (c) off-site signs, including off-site digital displays, that are specifically permitted pursuant to a legally adopted specific plan, supplemental use district or an approved development agreement; or
- (d) non-digital off-site signs that are authorized by a valid building permit for a temporary sign on temporary construction walls or on fences of solid wood or similar material surrounding vacant lots pursuant to Section 14.4.17.

12. Are inflatable devices, except when inflatable devices are specifically permitted pursuant to a legally adopted specific plan, supplemental use district or an approved development agreement.

C. **Prohibited Locations.**

1. No sign or sign support structure shall project into any public alley, except that a sign or sign support structure above a height of 14 feet may project no more than six inches into a public alley.

2. No sign or sign support structure shall be located less than six feet horizontally or 12 feet vertically from overhead electrical conductors, which are energized in excess of 750 volts. The term “**overhead electrical conductors**” as used here shall mean any electrical conductor, either bare or insulated, installed above ground, except electrical conductors that are enclosed in iron pipe or other material covering of equal strength. Arcs of six foot radius may be used to define corners of prohibition area.

3. No sign or sign support structure shall be erected in a visibility triangle as defined by Sections 12.21 C.7. and 62.200 of this Code.

4. No sign or sign support structure shall be located within two feet of the curb or edge of any roadway.

D. Maintenance.

1. **Appearance.** Every sign shall be maintained in a clean, safe and good working condition, including the replacement of defective parts, defaced or broken faces, lighting and other acts required for the maintenance of the sign. The display surfaces shall be kept neatly painted or posted at all times.

2. **Debris Removal.** The base of any sign erected on the ground shall be kept clear of weeds, rubbish or other combustible material at all times.

3. **Abandoned Signage.** Ninety days after the cessation of a business activity, service or product, the related signs shall be removed, or the face of the signs shall be removed and replaced with blank panels or shall be painted out.

E. **Sign Illumination Limitations.** No sign shall be arranged and illuminated in a manner that will produce a light intensity of greater than three foot candles above ambient lighting, as measured at the property line of the nearest residentially zoned property.

F. **Combination Signs.** A sign, which is subject to more than one classification, shall meet the requirements for the classification to which each portion is subject.

G. **Flag Lots.** For purposes of this article, flag lots containing less than 50 feet of street frontage shall be allotted 50 feet of street frontage for the purpose of determining the type of sign permitted and for the allowable sign area.

H. **Street Address Numbers.** No sign shall be maintained on any property unless the street address of the property is maintained in accordance with the provisions of Section 63.113 of this Code.

I. Sign Permit Priority Status.

1. To maintain location, area, frontage, or spacing status, signs must be installed within six months of issuance of a building permit or prior to expiration of any permit extension granted by the Department of Building and Safety.

2. Where more than one permit has been issued and the effect of those permits when considered together results in a violation of this article, all permits except the permit with the earlier date and time of issuance shall be invalid.

J. **Relief.** Notwithstanding the provisions of Sections 12.24, 12.27, 12.28 or any other section of this Code to the contrary, no relief from the provisions of Subsection B.9. or 11. of this section shall be granted. **(Added by Ord. No. 180,841, Eff. 8/14/09.)**

SEC. 14.4.5. HAZARD TO TRAFFIC.

A. **Prohibition.** No sign or sign support structure shall be erected, constructed, painted or maintained, and no permit shall be issued, if the sign or sign support structure, because of its location, size, nature or type, constitutes a hazard to the safe and efficient operation of vehicles upon a street or a freeway, or which creates a condition that endangers the safety of persons or property.

B. **Hazard Referral.** The Department of Building and Safety shall refer the following to the Department of Transportation for hazard evaluation and determination prior to the issuance of a building permit:

1. All permit applications for signs that will be visible from and are located within 500 feet of the main traveled roadway of a freeway; and

2. All other permit applications and any signs that are determined by the Department of Building and Safety to have a potential for hazard.

C. **Hazard Determination.** The Department of Transportation shall return to the Department of Building and Safety each application so referred to it together with a statement of its determination. If the Department of Transportation determines that the sign or sign support structure will constitute a hazard, the Department of Building and Safety shall deny the application for permit.

SEC. 14.4.6. FREEWAY EXPOSURE.

(Amended by Ord. No. 180,841, Eff. 8/14/09.)

A. **New Signs.** No person shall erect, construct, install, paint, maintain, and no building or electrical permit shall be issued for, any sign or sign support structure within 2,000 feet of a freeway unless the Department of Building and Safety has first determined that the sign will not be viewed primarily from a main traveled roadway of a freeway or an on-ramp/off-ramp. However, at the termination of an off-ramp, any wall sign located along the front line may be viewed primarily from the off-ramp.

The phrase “**viewed primarily from**” shall mean that the message may be seen with reasonable clarity for a greater distance by a person traveling on the main traveled roadway of a freeway or on-ramp/off-ramp than by a person traveling on the street adjacent to the sign.

B. **Exemption.** The wall signs specified in Subdivisions 1. and 2. below are exempt from the limitation of Subsection A. above. These signs shall not have moving parts or any arrangement of lights that create the illusion of movement.

1. Identification signs identifying the building where the sign is located, providing the area of the sign is not more than 50 square feet or is not larger than five percent of the area of the side of the building, which faces primarily to the freeway, whichever is greater; and

2. Wall signs on which the advertising is limited to the name of any person, firm or corporation occupying the building, or the type of business, services rendered, or the name of any product manufactured or sold on the premises. The total area of all wall signs on a building permitted in this subdivision shall not exceed 100 square feet. Any one sign shall not exceed 50 square feet in area.

C. **Existing Signs.** Within three years of the opening of a freeway to public travel, all signs that existed prior to the opening of the freeway and that are in conflict with the provisions of this section and/or Section 14.4.5 of this Code shall be removed, or shall be rearranged or relocated so as to eliminate any conflict with the provisions of this section and/or Section 14.4.5 of this Code.

The Department of Building and Safety and the Department of Transportation shall determine whether or not the sign or sign support structure is in conflict with the provisions of this section and/or Section 14.4.5 of this Code. If it is determined that any sign or sign support structure is in conflict with any of the provisions of this section and/or Section 14.4.5 of this Code, then the permittee and/or other responsible person shall be advised and shall remove, rearrange or relocate the sign or sign support structure within this three-year period.

D. **Operative Date.** This section shall become operative only to the extent that this section is deemed constitutional upon the reversal of the trial court decision in the case of *World Wide Rush, LLC v. City of Los Angeles*, United States District Court Case No. CV 07-238 ABC.

SEC. 14.4.7. INFORMATION SIGNS.

A. **Area.** Information signs shall not exceed 25 square feet in area.

B. **Height.** Information signs shall be limited to a maximum overall height of six feet six inches above the sidewalk grade or edge of roadway grade nearest the sign.

SEC. 14.4.8. MONUMENT SIGNS.

A. **Area.**

1. The sign area of monument signs shall not exceed 1.5 square feet per foot of street frontage nor a maximum of 75 square feet for the sign face visible to the same direction of traffic.

2. The combined sign area of monument signs, projecting signs, wall signs, illuminated architectural canopy signs, pole signs, roof signs and window signs shall not exceed four square feet for each foot of street frontage.

B. **Height.** Monument signs shall be limited to a maximum overall height of eight feet above sidewalk grade or edge of roadway grade nearest the sign.

C. **Location.** Monument signs shall be located at least 7.5 feet from interior lot lines and at least 15 feet from any other monument sign, projecting sign or pole sign. The location of monument signs shall not interfere or present a hazard to pedestrian or vehicular traffic.

D. **Shape.** Monument signs shall have a horizontal dimension equal to or greater than their vertical dimension.

E. **Projection.** Monument signs shall not project over the roof of a building or over the building line.

SEC. 14.4.9. PROJECTING SIGNS.

A. **Permitted.** Projecting signs shall not be permitted on that portion of a lot having less than 50 feet of street frontage. Lots having a street frontage of at least 50 feet may have a projecting sign for each 200 feet or fraction of that area of street frontage, if the street frontage does not contain an existing projecting sign or a pole sign.

B. **Area.**

1. The sign area of projecting signs visible to the same direction of traffic shall not exceed 25 square feet plus 1.5 square feet for each foot of street frontage up to a maximum sign area of 300 square feet. Any projecting sign located at the street corner of a corner lot may use the greater street frontage in computing area limitations.

2. The combined sign area of projecting signs, wall signs, monument signs, illuminated architectural canopy signs, pole signs, roof signs and window signs shall not exceed four square feet for each foot of street frontage.

C. **Height.** A projecting sign shall not be located lower than eight feet above sidewalk grade or edge of roadway grade nearest the sign and shall not extend above the top of the wall.

D. **Location.**

1. A projecting sign shall be located at least 7.5 feet from any interior lot line.

2. A projecting sign shall be located at least 15 feet from any other projecting sign, monument sign or pole sign.

3. The plane of the sign face of a projecting sign shall be within 15 degrees of being perpendicular to the face of the building, except at the corner of the building.

E. **Projections.** A projecting sign may project over the building line, but shall not extend beyond the limits shown in Diagram A of this article. Sign projections shall fall within an area that is perpendicular to the building line and has a width of three feet as measured parallel with the building line. In no event, may a projecting sign project more than eight feet from the face of a building.

EXCEPTION: For projecting signs located above a 16-foot height and on a lot having a street frontage greater than 50 feet, projections over the building line may vary linearly from five feet at 50 feet to eight feet at 100 feet of street frontage.

SEC. 14.4.10. WALL SIGNS.

A. **Area.**

1. The total sign area of wall signs facing a street shall not exceed two square feet for each foot of street frontage, plus one square foot for each foot of building frontage for a single-story building.

2. For buildings more than one story in height, the combined wall sign area shall not exceed that permitted for a single story by more than ten percent for each additional story. In no event, shall the combined wall sign area exceed by 50 percent that area permitted for a single-story building.

3. For wall signs that are made up of individual letters that use the wall of the building as background, the allowable sign area may be increased by 20 percent, provided there is no change in color between the background and the surrounding wall area.

4. The combined sign area of illuminated architectural canopy signs, roof signs and wall signs facing the same direction shall not exceed two square feet for each foot of street frontage, plus one square foot for each foot of building frontage.

5. The combined sign area of wall signs, projecting signs, monument signs, illuminated architectural canopy signs, pole signs, roof signs and window signs shall not exceed four square feet for each foot of street frontage.

B. **Height.** A wall sign shall not extend above the top of the wall of the building.

EXCEPTION: Where there is less than three feet between the top of the wall and the top of a window, the wall sign may extend above the top of the wall by a maximum of three feet.

C. **Location.**

1. No wall sign shall be located on a wall that faces and is within five feet of an interior lot line.

2. Wall signs installed on a wall that faces the rear lot line and that is located within 30 feet of property that is zoned R3 or more restrictive shall not be illuminated.

D. **Projection.**

1. No wall sign shall have a projection over any public street, other public property or building line greater than that permitted in Diagram A of this article.

2. No wall sign shall project more than 24 inches from the face of the building. If any message is placed on the edge of a wall sign, then that portion of the wall sign shall be regulated as a projecting sign.

E. **High Rise Signs.** Any wall signs located over 100 feet above grade shall be used as identification signs only. Identification signs shall comprise no more than 80 percent of the width of that portion of the building where the signs are attached. Notwithstanding the provisions of Subsection A. above, the area of these signs may constitute up to five percent of the area of the wall where the signs are attached and may be in addition to the area permitted in Subsection A. above.

F. **Parking Lots.** Where a parking lot exists between a wall sign and the street, and there is a wall between the parking lot and the street, a portion of the total sign area permitted by this section may be used on the wall located between the parking lot and the street so long as the sign does not project beyond the lot line. The sign shall be restricted to that portion of the wall between two feet six inches and three feet six inches in height above the finished grade at the base of the wall generally facing the street.

SEC. 14.4.11. ILLUMINATED ARCHITECTURAL CANOPY SIGNS.

A. Area.

1. The area of illuminated architectural canopy signs shall not exceed two square feet for each foot of street frontage, plus one square foot for each foot of building frontage.

2. In applying sign area limits, only the area occupied by the message of the illuminated architectural canopy signs will be used.

3. The combined sign area of illuminated architectural canopy signs, roof signs and wall signs facing the same direction shall not exceed two square feet for each foot of street frontage, plus one square foot for each foot of building frontage.

4. The combined sign area of illuminated architectural canopy signs, projecting signs, monument signs, wall signs, pole signs, roof signs and window signs shall not exceed four square feet for each foot of street frontage.

B. **Height.** An illuminated architectural canopy sign shall not extend above the top of the wall of a building.

C. **Clearance.** Illuminated architectural canopy signs shall have a minimum clearance of eight feet above the sidewalk grade or edge of roadway grade nearest the sign and shall not be located closer than two feet from the curb of any roadway.

D. **Emergency Personnel Access.** Illuminated architectural canopy signs shall not occupy a four-foot distance along the exterior wall at one corner of the building's street frontage and an additional four-foot distance along every 50 feet of the building frontage.

E. **Illumination.** The sign shall be internally illuminated so as to illuminate the canopy and the exterior wall below. The illuminated architectural canopy sign shall bear the electric sign label of an approved testing agency with a re-inspection service.

F. **Projections.** Illuminated architectural canopy signs may project over a building line. However, in no event may an illuminated architectural canopy sign project more than three feet from the face of the building.

SEC. 14.4.12. POLE SIGNS.

A. **Permitted.** Pole signs shall not be permitted on that portion of a lot having less than 50 feet of street frontage. Lots having a street frontage of at least 50 feet may have a pole sign for each 200 feet or fraction of that area of street frontage, if the street frontage does not contain an existing pole sign or projecting sign.

B. Area.

1. Sign area visible to the same direction of traffic shall not exceed two square feet for each foot of street frontage, plus one square foot for each foot of building frontage.

2. The maximum area of any one pole sign shall not exceed 400 square feet.

3. Any pole sign that is located at the street corner of a corner lot may use the greater street frontage for area limitations.

4. The combined sign area of pole signs, projecting signs, monument signs, illuminated architectural canopy signs, wall signs, roof signs and window signs shall not exceed four square feet for each foot of street frontage.

C. **Height.** Height shall be measured from the nearest sidewalk or edge of roadway grade to the top of the sign. The overall height

limitation shall be determined by street frontage as follows:

1. 25 feet for lots having 50 feet of street frontage;
2. 35 feet for lots having more than 50 feet and less than 100 feet of street frontage; and
3. 42 feet for lots having at least 100 feet of street frontage.

Any pole sign that is located at the street corner of a corner lot may use the greater street frontage for determining height limitations. In no event shall a sign exceed the height specified for the height district in which the sign is located.

D. Location.

1. Pole signs shall be located at least ten feet from interior lot lines; however, on corner lots and flag lots, pole signs may be located five feet from interior lot lines.
2. A pole sign shall be located at least 15 feet from any other pole sign, projecting sign or monument sign.
3. Pole signs shall be located so as not to interfere or present a hazard to pedestrian or vehicular traffic.
4. Where the lower part of a pole sign is less than eight feet above sidewalk grade or the edge of roadway grade nearest the sign, the sign shall extend to grade or shall be installed in a planter that extends beyond the edges of the sign and sign support structure and that is a minimum of 18 inches in height.

E. Projections. A pole sign may project over a building line, but shall not extend beyond the limits shown in Diagram A of this article. Sign projections shall fall within an area that is perpendicular to the building line and has a width of three feet as measured parallel to the building line.

F. Other Requirements. A maximum of two poles shall be permitted for any pole sign. The maximum cross-sectional dimension of a pole shall not exceed ten percent of the overall height of the sign.

SEC. 14.4.13. ROOF SIGNS.

A. Permitted. Roof signs shall be permitted only when placed directly upon a roof that slopes downward toward and extends to or over the top of an exterior wall.

B. Area.

1. Sign area shall not exceed two square feet for each foot of street frontage, plus one square foot for each foot of building frontage.
2. The maximum area of any one roof sign shall not exceed 300 square feet.
3. The combined area of roof signs, illuminated architectural canopy signs and wall signs facing the same direction shall not exceed two square feet for each foot of street frontage, plus one square foot for each foot of building frontage.
4. The combined sign area of wall signs, projecting signs, monument signs, illuminated architectural canopy signs, pole signs, roof signs and window signs shall not exceed four square feet for each foot of street frontage.

C. Height. The top of the roof sign shall be located at least two feet below the ridge of the roof.

D. Location.

1. Roof signs shall be located at least ten feet from interior lot lines.
2. Roof signs shall be located at least two feet from the edge of the roof.
3. The plane of the sign face of a roof sign shall be approximately parallel to the face of the building.

SEC. 14.4.14. WINDOW SIGNS.

A. Area. The total area of all window signs shall not exceed ten percent of the area of the window.

B. Combined Area. The combined sign area of wall signs, projecting signs, monument signs, illuminated architectural canopy signs, pole signs, roof signs and window signs shall not exceed four square feet for each foot of street frontage.

SEC. 14.4.15. MARQUEE SIGNS.

A. **General Requirements.** Marquee signs shall comply with the requirements set forth in Section 3102 of the CBC and the following provisions of this Code: Sections 14.4.3 A.; 14.4.4 A.; 14.4.5; 14.4.6; 91.6205; and 91.6207.

B. **Location.** Signs shall not be attached to any portion of the marquee except on the periphery. Wall signs on the periphery shall not extend above or below the periphery. Cloth or banner signs or drop-roll curtains may be suspended below the exterior periphery and extend within seven feet of the grade.

SEC. 14.4.16. TEMPORARY SIGNS.

A. **Permit Required.** Notwithstanding any other provision of this article, a building permit shall be required for a temporary sign, pennant, banner, ribbon, streamer or spinner, other than one that contains a political, ideological or other noncommercial message. The permit application shall specify the dates being requested for authorized installation and the proposed location.

B. Area.

1. The combined sign area of temporary signs shall not exceed two square feet for each foot of street frontage.
2. The combined sign area of temporary signs, when placed upon a window and any other window signs shall not exceed a maximum of ten percent of the window area.

C. Time Limit.

1. Temporary signs that require a permit shall be removed within 30 days of installation and shall not be reinstalled for a period of 30 days of the date of removal of the previous sign. The installation of temporary signs shall not exceed a total of 90 days in any calendar year.
2. Temporary signs that do not require a permit shall be removed within 30 days of the date of installation of the sign.

D. **Location.** Temporary signs, including those that do not require a building permit, may be tacked, pasted or otherwise temporarily affixed to windows and/or on the walls of buildings, barns, sheds or fences.

E. **Construction.** Temporary signs may contain or consist of posters, pennants, ribbons, streamers or spinners. Temporary signs may be made of paper or any other material. If the temporary sign is made of cloth, it shall be flameproofed when the aggregate area exceeds 100 square feet. Every temporary cloth sign shall be supported and attached with stranded cable of 1/16-inch minimum diameter or by other methods as approved by the Department of Building and Safety.

SEC. 14.4.17. TEMPORARY SIGNS ON TEMPORARY CONSTRUCTION WALLS AND ON SOLID WOOD FENCES SURROUNDING VACANT LOTS.

(Amended by Ord. No. 187,145, Eff. 9/30/21.)

A. **Permit Required.** A valid building permit for a sign, issued by the Department of Building and Safety (LADBS) in accordance with Section 91.6201.2, shall be required to place and maintain a temporary sign on a temporary construction wall, as defined in Section 14.4.2 of this Code, or on a fence of solid wood or similar material surrounding a vacant lot.

For the purposes of Section 14.4.17 and pursuant to Section 91.3306 of the Los Angeles Municipal Code, Temporary Construction Walls are deemed required when the City determines construction work is more than 8 feet in height and within 5 feet from the lot line, or more than 8 feet in height and within a distance of half the height of the construction work from the lot line.

The Department of Building and Safety shall issue a building permit for a temporary sign, pursuant to this section, after verifying that the plans comply with all applicable code provisions and all permit clearances have been approved upon confirmation of the following, as applicable:

1. Initial Permit Application.

(a) If the temporary sign is to be placed on a temporary construction wall:

- (1) There is a separate valid building permit issued by the Department of Building and Safety authorizing construction work on the lot(s);
- (2) At least a portion of the temporary construction wall is required pursuant to Section 91.3306 of the Los Angeles Municipal Code:

(3) A previous building permit for a temporary sign was not issued in conjunction with the same building permit referenced in A.1.(a)(1) of this subsection;

(4) A previous building permit for a temporary sign on the site was not expired or revoked within the preceding 12 months pursuant to Paragraph 14.4.17 C.1.(a) or Subdivision 14.4.17 G.4.; and

(5) When a business is operating on the site, temporary signage must comply with the following:

(i) the location of temporary signage is limited to the portion of the temporary construction wall that is required pursuant to Section 91.3306 of the Los Angeles Municipal Code; and

(ii) a minimum 40 linear feet of required temporary construction wall, not exceeding the boundaries of the site, may be installed and used for temporary signage; and

(iii) no site may exceed a maximum of 250 square feet of temporary signage.

(b) If the temporary sign is to be placed on a fence surrounding a vacant lot:

(1) There are no buildings or uses of land on the lot.

(2) A previous building permit for a temporary sign was not expired or revoked within the preceding 12 months pursuant to Subdivision 14.4.17 G.4.

2. Subsequent Permit Application.

(a) If Department of Building and Safety records indicate that a building permit for a temporary sign on a fence of solid wood or similar material surrounding a vacant lot on the site was previously issued:

(1) The sign complies with Paragraph A.1.(b) of Section 14.4.17 as applicable;

(2) A previous building permit for a temporary sign on the site was not expired or revoked within the preceding 12 months pursuant to Subdivision 14.4.17 G.4.;

(3) No more than one initial building permit for a temporary sign and one subsequent building permit for a temporary sign, for a total of two years, have been issued at the same site; and

(4) The Director of the Office of Community Beautification reviews and consents to the subsequent building permit in a written statement and determines an abatement area pursuant to Subdivision 14.4.17 G.1.

The Office of Community Beautification's response for consent shall be provided within ten days of written request and based solely on its assessment as to whether a public nuisance exists indicated by the presence of graffiti, posters/handbills and any other illegal postings, as well as trash, debris, rubbish, and weeds on public property pursuant to the review described in Subsection 14.4.17 G.1.

B. Area. Notwithstanding the provisions of Subsection 14.4.16 B. of this Code, signs placed on temporary construction walls, and/or solid wood fences surrounding vacant lots pursuant to the terms of this section shall not extend above the top of the wall or fence and shall comply with the following:

1. The combined sign area of temporary signs shall not exceed 8 square feet for each foot of street frontage.

2. Individual signs shall not exceed a sign area of 250 square feet.

3. Signs may be grouped to form a maximum sign area of 250 square feet.

4. Signs or groups of signs having an area of 250 square feet shall be separated from any other sign on the temporary construction walls and/or solid wood fences surrounding vacant lots by at least 10 feet measured horizontally.

C. Time Limit. Notwithstanding the provisions of Subsection 14.4.16 C. of this article, a building permit for a temporary sign is time limited by the following:

1. A building permit for a temporary sign placed on a temporary construction wall shall remain valid for two years, or during the duration of the construction work, under a separate valid building permit, requiring a barrier, pursuant to Section 91.3306 of Los Angeles Municipal Code, whichever is less.

(a) If the construction work authorized by the separate building permit has not commenced by the 180th day following the permit issuance date, or the 90th day when an operating business exists on the site, or work has been suspended, discontinued or abandoned for a continuous period of 180 days, or 90 days when an operating business exists on the site, the building permit for the temporary sign permitted pursuant to Subsection 14.4.17 A. shall be expired. If the separate

building permit is revoked or expired, the building permit for the temporary sign shall be expired. Subsequent building permits for a temporary sign at the same site, issued in conjunction with the original separate construction permit, shall not be authorized.

2. A building permit for a temporary sign placed on a fence of solid wood or similar material surrounding a vacant lot shall remain valid for one year, or for as long as the lot remains vacant, whichever is less. Subsequent building permits for temporary signs on a fence of solid wood or similar material surrounding a vacant lot at the same site shall be issued under the terms of Subsection A. of this Section, not to exceed two additional permits, for a total of three years.

D. **Height.** Signs may only be placed to a maximum height of 8 feet.

E. **Location.** Temporary signs placed on the exterior surfaces of any required temporary construction walls, and/or solid wood fences surrounding vacant lots are limited to lots located in a commercial, industrial or RAS zone.

F. **Construction.** Notwithstanding the provisions of Subsection 14.4.16 E. of this Code, Temporary signs on Temporary Construction Walls or on fences of solid wood or similar material surrounding vacant lots shall be made of paper, vinyl, or other similar material.

G. **Special Requirements for Signs on Temporary Construction Walls, and/or Solid Wood Fences Surrounding Vacant Lots.**

1. **Review by the Office of Community Beautification.** For the purposes of determining whether to consent to a subsequent building permit under this section, or at any time after the issuance of a building permit for a sign under this section, the Office of Community Beautification may investigate an area around the permitted site or lot to determine whether there exists a public nuisance due to the presence of graffiti, posters/handbills and any other illegal postings, as well as trash, debris, rubbish, and weeds on public property within the abatement radius.

For a subsequent building permit for a sign, if the Office of Community Beautification cannot establish that a public nuisance exists because of the presence of graffiti, posters/handbills and any other illegal postings, as well as trash, debris, rubbish and weeds on public property within a 750-foot abatement radius around the permitted site or lot, then the Office of Community Beautification shall expand the radius around the site or lot in 250-foot increments, up to a maximum abatement radius of 1,500 feet. If the Office of Community Beautification finds the existence of a public nuisance on public property within the expanded radius area beyond the original 750-foot radius, then it shall require the sign company or property owner to abate the public nuisance in the expanded radius area in accordance with Subdivision G.3., Nuisance Abatement, below.

2. **Notification and Reporting.** Upon issuance of a building permit for a sign and installation of any signs on temporary construction walls, and/or solid wood or similar material fences surrounding vacant lots, the sign company or property owner shall install an 18" x 24" placard in a conspicuous location on the wall or fence. The placard shall be made of a durable laminated paper, vinyl or other weather resistant material with contrasting black letters on white background at least 2 inches in height. The placard shall conspicuously display the following information that the City wishes to display in lettering at least 1 inch high:

- a. This is an Official Notice of the City of Los Angeles and shall not be defaced.
- b. Temporary Signs have been placed on this wall or fence pursuant to Los Angeles Municipal Code Section 14.4.17, "Temporary Signs on Temporary Construction Walls and on Solid Wood Fences Surrounding Vacant Lots."
- c. Building permit number: _____ and expiration date: _____.
- d. Phone number of the Department of Public Works' Office of Community Beautification: _____.
- e. Name and phone number of the sign operator's representative for public reporting of graffiti, posters/handbills and any other illegal postings, as well as trash, debris, rubbish, and weeds for removal within the required abatement radius: _____.

Within ten days after the issuance of the building permit for a sign, the sign company or property owner shall provide written notification to the Office of Community Beautification and the Council District Office of the council district in which the construction site or vacant lot is located. The notification shall contain the name and address of the sign company or property owner and the property address where the signs will be placed. The notification to the Office of Community Beautification shall include a copy of the sign company's contract with the property owner to post signs at the specified location.

Permit holders shall report the amount, type, and location of clean-ups within the abatement area to the Office of Community Beautification every 30 days for the duration of the building permit for the sign. Reporting shall be thorough and include before and after photo documentation, City of Los Angeles MyLA311 App request confirmation and/or other documentation stating date and time of clean up, as well as receipts for where materials were disposed.

Any building permit for a sign issued pursuant to this section may be immediately expired by the Department of Building and Safety, provided that a written and signed notification of the sign company or property owner's failure to meet the notification and reporting requirements of this subdivision is sent to the Department of Building and Safety by the Director of the Office of Community Beautification. For all permits expired pursuant to this section, the Department of

Building and Safety shall issue a notification to the permit holder upon expiration of the permit, including information about the appeals process.

3. **Nuisance Abatement.** It shall be the sign company and property owner's responsibility to clean and maintain free from graffiti public property and rights-of-way within an area consisting of a 750-foot radius or any expanded radius required by the Office of Community Beautification around the permitted site or lot. The property owner's representative shall patrol the abatement area every 24 hours to search for and remove any graffiti within 24 hours of its discovery. The removal of graffiti shall include, but not be limited to, spray paint on walls, poles, and fences on public property. In addition, the property owner's representative shall also be responsible for removing any posters/handbills on light poles, utility poles, bus stops, and any other illegal postings on public property. At the time of graffiti removal, the property owner's representative shall also remove from public property any trash, debris, rubbish, and weeds, as well as report bulky items within the abatement area around the permitted site. The sign company and property owner shall comply with the administrative policies and procedures set by the Office of Community Beautification. The Office of Community Beautification shall enforce the provisions of this subsection.

4. **Permit Revocation.** Any building permit for a sign issued pursuant to this section may be revoked by the Department of Building and Safety for any of the following reasons, provided a written and signed notification of the sign company or property owner's failure to comply with Paragraphs (c), (d), (e), (f) or (g) of this subdivision is sent to the Department of Building and Safety by the Director of the Office of Community Beautification:

(a) Failure by the sign company or property owner to comply with the terms of the permit.

(b) Failure by the sign company or property owner to maintain the bond required in Section 91.6201.2 2. of the Los Angeles Municipal Code.

(c) Failure by the sign company or property owner to maintain the temporary construction wall and/or solid wood fences surrounding vacant lots free from graffiti.

(d) Failure by the sign company or property owner to eliminate graffiti within a 750-foot radius or any expanded radius required by the Office of Community Beautification of the temporary construction wall, and/or solid wood or similar material fences surrounding vacant lots within 24 hours of receiving notification of the presence of graffiti from the Office of Community Beautification or the City Council district office of the district in which the construction site or vacant lot is located.

(e) Failure by the sign company or property owner to remove posters/handbills placed on light poles, utility poles, bus stops and any other illegal postings on public property within a 750-foot radius or any expanded radius required by the Office of Community Beautification of the site, within 24 hours of receiving notification from the Office of Community Beautification or the City Council district office of the district in which the construction site or vacant lot is located.

(f) Failure by the sign company or property owner, at the time of graffiti removal, to report bulky items and/or remove trash, debris, rubbish and weeds from public property within a 750-foot radius or any expanded radius required by the Office of Community Beautification of the permitted site.

(g) The Office of Community Beautification sends three or more notifications of failure to comply with paragraphs (c), (d), (e) or (f) of this subdivision to the sign company or property owner within a three-month period.

5. **Removal of Signs.** The sign company or property owner must remove the temporary signs authorized by this section by the date the sign permit becomes invalid due to its time limit or no later than the permit expiration or revocation date.

6. **Public Nuisance.** Any signs remaining on temporary construction walls, and/or solid wood or similar material fences surrounding vacant lots after the building permit has expired or is revoked are deemed to be a public nuisance that can be abated by utilizing the procedure contained in Section 91.8904 et seq. of the Code.

7. **Office of Community Beautification.** The Office of Community Beautification is hereby designated the authorized representative of the City for the purpose of enforcing and implementing the provisions of Section 91.8904.1.2 of the Los Angeles Municipal Code for compelling the removal of a sign which is a public nuisance under Subdivision 14.4.17 G.6.

SEC. 14.4.18. OFF-SITE SIGNS.

A. **Area.** The sign area of a single face shall not exceed 800 square feet.

B. **Height.**

1. The height to the top of the off-site sign shall be limited to a maximum of 42 feet above the sidewalk grade or edge of roadway grade nearest the sign, except that a sign that is more than 80 percent above a roof of a building may extend to the top of the sign a maximum of 30 feet above the surface of the roof under the sign.

2. In no event shall the height to the top of the off-site sign exceed a height greater than that height specified for the height

district in which the sign is located, or a height of 60 feet above the sidewalk grade or edge of roadway grade nearest the sign, whichever is more restrictive.

3. The bottom of the off-site sign shall be at least eight feet above the sidewalk grade or edge of roadway grade nearest the sign.

C. Location.

1. No portion of an off-site sign with a sign area greater than 80 square feet shall be placed within 200 feet of a residentially zoned lot, which is located on the same side of the same street as the lot on which the sign is placed. However, where a lot has two or more street frontages, a sign may be located on that street frontage, which is not on the same street as the residentially zoned lot; provided the sign and sign support structure are placed in that half of the lot that is the farthest from the street frontage on which the residentially zoned lot is located.

2. No portion of an off-site sign or sign support structure shall be located in that half of a lot located farthest from the street frontage when residentially zoned property is located to the rear of that street frontage.

3. Off-site signs are not permitted along that portion of a lot having a street frontage of less than 50 feet.

4. No more than four off-site signs shall be located at the intersection of two or more streets when the off-site signs are located within 150 feet of the intersection of two street frontages.

5. An off-site sign face shall not be located within one foot of an interior lot line.

D. Frontage Determination on Lots with Lot Lines Adjoining More Than One Street.

1. An off-site sign shall be considered to be on a single street for purposes of Sections 14.4.18 A. and 14.4.18 D. of this Code if the sign and its support structure are located entirely on the side of the bisecting line closest to that street and the sign face is placed at the same angle as the perpendicular line or at an angle not to exceed 20 degrees from either side of the perpendicular line as shown on Diagram C of this article.

2. An off-site sign located on a through lot shall be located on a single street if the sign and its support structure are located entirely on that half of the lot closest to the lot line adjoining that street.

Any off-site sign not in conformance with either Subdivision 1. or 2. above shall be considered to be located on more than one street frontage.

E. Spacing.

1. An off-site sign, which is either single-faced or parallel double-faced, shall be spaced as specified in Table No. B of this article from any other existing or previously permitted off-site sign, which is single- faced or parallel double-faced.

2. For any double-faced off-site sign, the spacing requirements shall be based on the area of the largest sign face.

3. For double-faced off-site signs whose faces are not parallel, the spacing between any proposed, permitted or existing off-site sign shall be determined by the following formula:

$$D = S \left(1 + \frac{(B - 5)}{90} \right)$$

WHERE:

D= required spacing between signs, in feet.

S= sign spacing determined from Table No. B below in feet.

B= widest edge separation of sign faces in feet.

4. Spacing shall be measured between off-site signs that are located on the same side of the same street. Spacing shall be measured from a line that is perpendicular to the building line and that passes through a point on the building line that is closest to the nearest sign face edge. Spacing shall be measured along the center line of the street.

F. Double-faced Off-Site Signs.

1. Off-site signs may be either single or double-faced.

2. For double-faced off-site signs whose faces are parallel, the distance between sign faces shall not exceed six feet.

3. For double-faced off-site signs whose faces are not parallel, the distance between sign faces at their widest point shall not exceed 35 feet. The separation of sign faces at their closest point shall not exceed six feet. In no event shall the angle between sign faces exceed 37 degrees.

G. **Projection.** Off-site signs shall not project beyond the building line.

H. **Covering.** The backs of off-site signs exposed to public view shall be covered with a finished surface or material and shall be properly maintained.

I. **Other Requirements.**

1. A maximum of two poles shall be permitted for any off-site sign. The maximum cross-sectional dimension of a pole shall not exceed ten percent of the overall height of the sign.

2. Off-site sign supports shall be structurally independent of a building.

3. Sign support structures must be located directly under the sign face as viewed from the front of the sign. The maximum horizontal distance between the center of the sign support structure and the sign face shall not exceed ten feet.

SEC. 14.4.19. AWNING SIGNS.

No sign shall be placed on any portion of an awning except the valance. The sign area is limited to a maximum of 12 inches in height on the portion of the valance that is parallel to the building face, and only when the awning complies with all applicable provisions of Sections 91.3202 and 91.3202.3.1 of this Code. Signs are not permitted on awnings with a valance above a height of 14 feet as measured from the nearest sidewalk or edge of roadway grade to the top of the valance.

SEC. 14.4.20. ORIGINAL ART MURALS, VINTAGE ORIGINAL ART MURALS, AND PUBLIC ART INSTALLATIONS.

(Title and Section Amended by Ord. No. 182,706, Eff. 10/12/13.)

An Original Art Mural that conforms to the requirements of Section 22.119 of the Los Angeles Administrative Code is not considered a sign and therefore is not subject to the provisions of this Article or any other ordinance that regulates signs. Any supposed “mural” that does not conform to the requirements of Section 22.119 of the Los Angeles Administrative Code shall be considered a sign and subject to the provisions of this Article or any other ordinance that regulates signs and digital displays. A Public Art Installation registered pursuant to the requirements of Section 19.85.4 of the Los Angeles Administrative Code or the requirements of Section 91.107.4.6 of the Los Angeles Municipal Code is not a sign, but is subject to Section 14.4.4 E. of this Article and any other applicable zoning and land use regulations set forth in the Los Angeles Municipal Code. A building permit from the Department of Building and Safety is required for a new hand-tiled or digitally printed Original Art Mural or any Public Art Installation.

Severability. If any part, sentence, phrase, clause, term or word in Section 14.4.2 or Section 14.4.20 of this Code relating to Original Art Murals is declared invalid or unconstitutional by a valid court judgment or decree of any court of competent jurisdiction, the declaration of such unconstitutionality shall not affect the constitutionality or lawfulness of the remainder of this Code, the Los Angeles Administrative Code or any other City regulation regulating signage, billboards or Original Art Murals.

DIAGRAM A

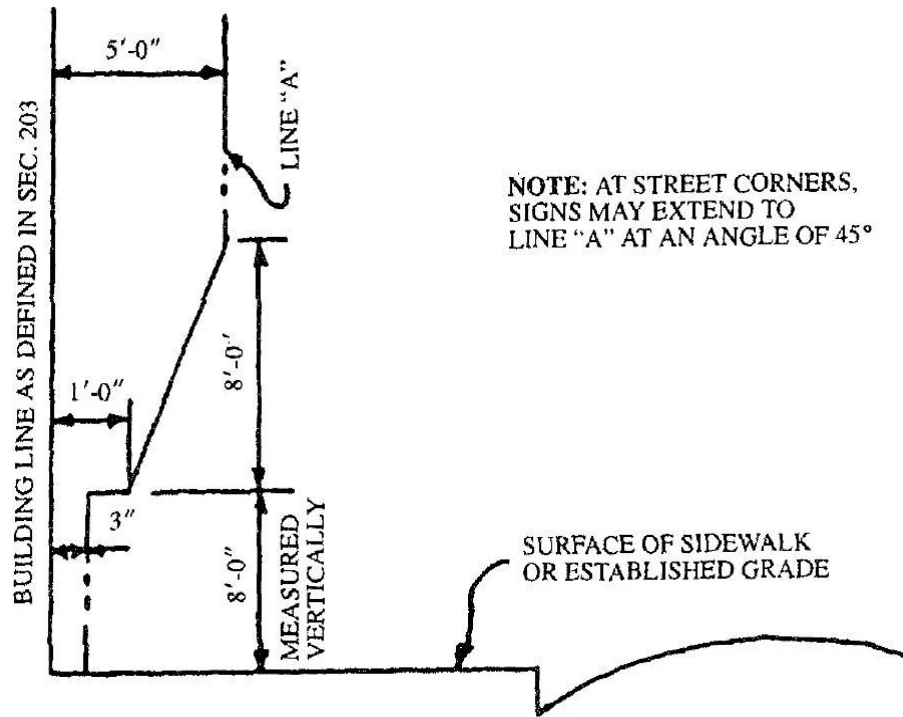
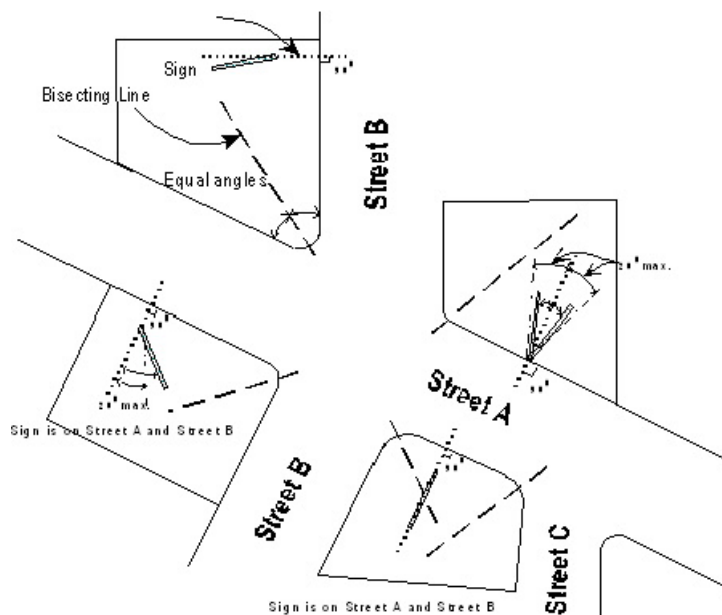


TABLE NO. B

SPACING REQUIREMENTS BETWEEN OFF-SITE SIGNS

	Sign Area	PROPOSED SIGN		
		Less than 80 sq. ft.	80 sq. ft. to 300 sq. ft.	Greater than 300 sq. ft.
Existing or Permitted Sign	Less than 80 sq. ft.	100 ft.	100 ft.	200 ft.
	80 sq. ft. to 300 sq. ft.	100 ft.	300 ft.	300 ft.
	Greater than 300 sq. ft.	200 ft.	300 ft.	600 ft.

DIAGRAM C



ARTICLE 4.5

TRANSFER OF FLOOR AREA RIGHTS – CENTRAL CITY COMMUNITY PLAN AND CITY CENTER REDEVELOPMENT PROJECT AREAS

(Article and Title Amended in Entirety, Ord. No. 181,574, Eff. 3/27/11.)

Section

- 14.5.1 Scope.
- 14.5.2 Purpose.
- 14.5.3 Definitions.
- 14.5.4 Prohibition.
- 14.5.5 Early Consultation Session.
- 14.5.6 Approval of Transfers – Authority and Procedures for Projects Involving Transfers of 50,000 Square Feet or Greater.
- 14.5.7 Director's Determination.
- 14.5.8 General Requirements.
- 14.5.9 Public Benefit Payment.
- 14.5.10 TFAR Transfer Payment.
- 14.5.11 Payments and Vesting.
- 14.5.12 Public Benefit Payment Trust Fund.

SEC. 14.5.1. SCOPE.

- A. This article implements the Transfer of Floor Area Rights (TFAR) in the Central City TFAR Area, as defined herein, and as permitted by Sections 512.4 and 512.5 of the City Center Redevelopment Plan during the period of effectiveness of said plan.
- B. This article provides the exclusive procedure to Transfer Floor Area Rights for all Projects involving any single Transfer of Floor Area Rights within the Central City TFAR Area. This article establishes separate procedures for transfers of less than 50,000 square feet and transfers of 50,000 square feet or greater.
- C. This article facilitates the implementation of the Central City Community Plan and the City Center Redevelopment Plans.
- D. This article provides the procedure for allocating Public Benefit Payments and TFAR Transfer Payments derived from the Transfer of Floor Area Rights.

SEC. 14.5.2. PURPOSE.

It is the purpose of this article to establish standards and approval procedures for the Transfer of Floor Area Rights in the Central City TFAR Area; to effect maximum coordination between the Community Redevelopment Agency and the City; to provide for the keeping of records of available Floor Area Rights within the Central City TFAR Area; to provide for an accounting of allocations of Public Benefit Payments and TFAR Transfer Payments derived from the Transfer of Floor Area Rights; and to facilitate those Transfers that generate Public Benefits.

SEC. 14.5.3. DEFINITIONS.

The following terms, whenever used in this article, shall apply only to the Transfer of Floor Area Rights procedures in this article and shall be defined as set forth below. Other terms used in this article shall have the meanings set forth in Section 12.03 of this Code, if defined there.

Administrator means the chief executive officer of the Agency and their designee.

Agency means the Community Redevelopment Agency of the City of Los Angeles.

Agency Board means the Board of Commissioners of the Community Redevelopment Agency of the City of Los Angeles.

Applicant means the owner of a Receiver Site who has submitted a proposed Transfer Plan to the Agency or the Department of City Planning.

Appraisal means an economic valuation of the Receiver Site submitted by the Applicant, which (a) has been prepared by an

MAI appraiser with at least five years experience in appraising property in the City and (b) sets forth the fair market value of the Receiver Site (i) as of the date the application was submitted and (ii) as if the Receiver Site were vacant and used for its highest and best use under all then current zoning and planning restrictions and Agency policies affecting the Receiver Site.

Buildable Area means the same as Lot Area, with the following exception: for the purposes of computing the maximum Floor Area Rights available through the approval of a Transfer Plan for a Transit Area Mixed Use Project, as defined herein, the buildable area shall include the lot area plus the area between the exterior lot lines and the centerline of any abutting public right-of-way.

Central City TFAR Area means those portions of the Central City Community Plan Area, including portions of the City Center Redevelopment Project Area, as shown on Map A, dated April 30, 2010, and attached to Council File No. 10-1175, generally bounded by: U.S. Highway 101 on the north; Alameda Street, Los Angeles Street, San Pedro Street, and Main Street on the east; the Santa Monica Freeway (Interstate 10) on the south; and the Harbor Freeway (110 Freeway) and Hill Street on the west.

City Council means the City Council of the City of Los Angeles.

Commission means the City Planning Commission of the City of Los Angeles.

Community Plan means the Central City Community Plan, a part of the General Plan of the City of Los Angeles, and including amendments to the Community Plan.

Department means the Department of City Planning.

Donor Site means a site within the Central City TFAR Area from which Floor Area Rights are transferred pursuant to the provisions of this article.

Floor Area Deviation means the Transfer of Floor Area of less than 50,000 square feet as determined by the Director.

Floor Area Ratio (FAR) means the Floor Area of a building divided by the Lot Area of the lot (prior to any dedications) upon which it is located. Notwithstanding the above, the maximum Floor Area Ratio of a Transit Area Mixed Use Project shall mean the Floor Area of a building divided by the Buildable Area.

Floor Area Rights means the ability to construct additional Floor Area within a Project, pursuant to an approved Transfer Plan, in excess of the amount of Floor Area that Project would be allowed based on its Lot Area, or, in the case of a Transit Area Mixed Use Project, the Buildable Area.

High-Density Floor Area Ratio Factor means a denominator of six and is used in calculating the amount of any TFAR Transfer Payment.

Lot Area means the total horizontal area within the lot lines of a lot (prior to any dedication).

Project means a building or structure or structural alteration or enlargement of an existing building or structure on a Receiver Site within the Central City TFAR Area.

Public Benefits means amenities provided to the public including, but not limited to, providing for affordable housing; public open space; historic preservation; recreational, cultural, community and public facilities; job training and outreach programs; local hiring; payment of prevailing wages; affordable child care; streetscape improvements; sustainability features; public arts programs; homeless services programs; or public transportation improvements.

Public Benefit Payment means that dollar sum established by the application of the formula set forth in Section 14.5.9 of this Code.

Public Benefit Payment Trust Fund means that certain interest-bearing Trust Account administered by the City Clerk's Office designated as CB Public Benefit Program Fund 5158, from which funds may be distributed as set forth in Section 14.5.12 of this Code.

Receiver Site means a site within the Central City TFAR Area, which receives Floor Area Rights pursuant to the provisions of this article.

Redevelopment Plan means the City Center Redevelopment Project adopted by Ordinance No. 174,593 on May 15, 2002, or as subsequently amended.

Redevelopment Project Area means the City Center Redevelopment Project Areas, as described in the City Center Redevelopment Plans.

TFAR Transfer Payment means the payment made by the owner of a Receiver Site in exchange for the Agency's or City's Transfer of Floor Area Rights to a Receiver Site pursuant to the valuation method set forth in Section 14.5.10 of this Code.

Transfer means the conveyance of unused allowable Floor Area of a lot from a Donor Site to a Receiver Site, which is approved in accordance with the requirements of this article.

Transfer Plan means a plan that identifies and describes the Donor Site(s), Receiver Site(s), the amount of Floor Area Rights to be transferred and the Public Benefit Payment.

Transit Area Mixed Use Project means any Project or portion of a Project in the Central City TFAR Area that: (1) provides floor area for at least two different land uses, such as commercial office and commercial retail, commercial office and multi-family residential, or commercial retail and hotel, or any other combination of uses; (2) is located within 1500 feet of a fixed rail transit station, as measured from the exterior lot line to the nearest station entrance; and (3) meets the standards and guidelines in the Downtown Design Guide.

SEC. 14.5.4. PROHIBITION.

A. No building permit shall be issued for a Project on any lot within the Central City TFAR Area, which is not located within the City Center Redevelopment Project Area, that exceeds a Floor Area Ratio greater than 6:1 or 3:1, as set forth by the applicable zoning and in the Community Plan, except for the following:

1. Development permitted by Section 12.23 A. of this Code, when in conformance with the applicable height district designations of the zoning and the Community Plan; and
2. Development permitted as a result of a Transfer of Floor Area Rights or a Director's Determination for a Floor Area Deviation approved pursuant to this article; and
3. Development permitted as a result of a Transfer of Floor Area Rights pursuant to Section 418, or a density variation pursuant to Section 437, of the former Central Business District Redevelopment Plan, approved by the Agency Board or Commission prior to June 21, 1988; and
4. Development permitted as a result of a Transfer of Floor Area Rights or density variation of less than 50,000 square feet, approved by the Agency Board or the Commission, pursuant to the former Central Business District Redevelopment Plan prior to amendments adopted May 1, 2002, or the Amended Central Business District Redevelopment Plan prior to its expiration on July 18, 2010; and
5. A Residential Project that exceeds the number of dwelling units or Floor Area permitted by the zoning or the Community Plan as a result of a density or Floor Area bonus received pursuant to Sections 12.22 A.37., 12.22 A.38., 12.22 A.39., 12.22 A.29., 12.24 U.26. or 12.24 U.27. of this Code. **(Amended by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

B. No building permit shall be issued for a Project, on any lot within the City Center Redevelopment Project Area, which exceeds a Floor Area Ratio greater than 6:1 or 3:1, as set forth with respect to a particular lot in Section 512 of the Redevelopment Plan and in the Community Plan, except for the following:

1. Development permitted by Sections 512.2 (Rehabilitation and/or Remodeling of Existing Buildings) and 512.3 (Replacement of Existing Buildings) of the Redevelopment Plan, when in conformance with the applicable height district designations of the Redevelopment Plan and the Community Plan; and
2. Development permitted as a result of a Transfer of Floor Area Rights approved pursuant to this article; and
3. Development permitted as a result of a Transfer of Floor Area Rights pursuant to Section 512.7, or density variation of less than 50,000 square feet, approved by the Agency Board or Commission pursuant to Sections 512.6 and 520 of the Redevelopment Plan; and
4. A Residential Project that exceeds the number of dwelling units or Floor Area permitted by the zoning or the Community Plan as a result of a density or Floor Area bonus received pursuant to Sections 12.22 A.37., 12.22 A.38., 12.22 A.39., 12.22 A.29., 12.24 U.26. or 12.24 U.27. of this Code. **(Amended by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

SEC. 14.5.5. EARLY CONSULTATION SESSION.

For Receiver Sites within the Central City TFAR Area, which are not located within the City Center Redevelopment Project Area, Department staff shall concurrently consult with the Mayor's Office, the City Council Office for the City Council District in which the Receiver Site is located, and the Chief Legislative Analyst, at the earliest reasonable point in the design and development of any Project applying for a Transfer.

For Receiver Sites within the City Center Redevelopment Project Area, Agency staff shall concurrently consult with the Department of City Planning, the Mayor's Office, the City Council Office for the City Council District in which the Receiver Site is located, and the Chief Legislative Analyst, at the earliest reasonable point in the design and development of any Project involving a Transfer.

In either case, this consultation shall be known as an Early Consultation Session. The Early Consultation Session shall be used to identify any development issues regarding Project approval, including but not limited to: parking and transportation requirements, Transfers, and Public Benefits. An early consultation shall be accomplished at the earliest reasonable time prior to approval of a Transfer Plan for the Project.

SEC. 14.5.6. APPROVAL OF TRANSFERS – AUTHORITY AND PROCEDURES FOR PROJECTS INVOLVING TRANSFERS OF 50,000 SQUARE FEET OR GREATER.

The City Council, acting on recommendations of the Commission or Agency Board, as required, shall have the authority to grant Transfers of Floor Area Rights of 50,000 square feet or greater. A Transfer to any Project in the City Center Redevelopment Project Area shall not, by itself, require an Owner Participation Agreement or Disposition and Development Agreement, or other similar agreement that involves the application of Agency policies.

A. Projects Involving a Transfer on a Receiver Site within the Central City TFAR Area which is not Located within the City Center Redevelopment Project Area.

1. **Application.** An Applicant seeking a Transfer shall file a request for approval of a Transfer with the Department on a form prescribed by the Director of Planning. The request shall be accompanied by a proposed Transfer Plan. The Transfer Plan shall be the only mechanism for approving the Transfer for any Project involving a Transfer of Floor Area Rights of 50,000 square feet or greater, pursuant to this article. The Department shall forward a copy of the application and Transfer Plan to the Mayor's Office, the City Council Office for the City Council District in which the Receiver Site is located, and the Chief Legislative Analyst within 7 calendar days of receiving the application. For purposes of this section, an application shall be deemed to be complete when the Department has received sufficient information with which to prepare an initial study to assess the environmental impacts of the proposed Project.

2. **Action by Commission.** The Director shall issue a report to the Commission recommending approval, approval with conditions or disapproval of the request for Transfer, including the Public Benefit Payment and the TFAR Transfer Payment to be provided, with the recommendation to be based solely upon the degree that the Transfer Plan complies with the findings and conditions set forth in this section. After reviewing the Director's report, the Commission must make the following findings in order to recommend approval to the City Council:

(a) Findings.

(1) The increase in Floor Area generated by the proposed Transfer is appropriate with respect to location and access to public transit and other modes of transportation, compatible with other existing and proposed developments and the City's supporting infrastructure, or otherwise appropriate for the long-term development of the Central City;

(2) The Transfer serves the public interest; and

(3) The Transfer is in conformance with the Community Plan and any other relevant policy documents previously adopted by the Commission or the City Council.

(b) Conditions of Approval.

(1) The Transfer shall provide a Public Benefit Payment, and, if applicable, a TFAR Transfer payment in conformance, respectively, with Section 14.5.9 and Section 14.5.10 of this Code;

(2) Transfer must comply with any urban design standards and guidelines adopted by the City Planning Commission for the area, including the Downtown Design Guide, and other applicable design guidelines;

(3) The Commission may require additional conditions for the Transfer to ensure consistency with the purposes and objectives of the Community Plan.

(c) Commission Hearing.

(1) A public hearing on the proposed Transfer for a Project shall be held by the Commission in accordance with the procedures set forth in Section 12.24 D. of this Code.

(d) Time for the Commission to Act.

(1) Commission shall act upon any proposed Transfer for a Project within 75 calendar days from the date of submittal to it of the Director's report and recommendation on the Transfer Plan. This time limit may be extended by mutual consent of the Applicant and the Commission. The Commission shall forthwith transmit a copy of its action to the Applicant and any other person requesting notice in writing. If the Commission fails to act on the proposed Transfer within 75 calendar days, the request shall be automatically submitted to the City Council for its

action.

3. Appeals.

(a) **Filing of an Appeal.** If the Commission recommends disapproval of a request, in whole or in part, its action on any disapproved portion shall be final unless an appeal is taken to the City Council. The Applicant may appeal any disapproval within 15 calendar days after the Commission mails its decision to the Applicant by filing the appeal with the City Clerk on a form prescribed by the Commission.

(b) **Appellate Decision – Public Hearing and Notice.** Before the Council acts on the appeal, it shall hold a public hearing. The City Clerk shall set the matter for hearing, giving notice by mail of the time, place and purpose of the hearing to the applicant and to any interested party who has requested in writing to be so notified. The notice shall be mailed at least ten calendar days prior to the hearing.

(c) **Time for Appellate Decision.** The Council shall make its decision within 75 calendar days after the expiration of the appeal period. The 75 day time limit to act on an appeal may be extended by mutual written consent of the applicant and the Council. If the Council fails to act within this time limit, the failure shall constitute a denial of the application or disapproval of the initial request.

B. Projects Involving a Transfer on a Receiver Site within the City Center Redevelopment Project Area.

1. **Application.** An Applicant seeking a Transfer shall file a request for approval of a Transfer with the Agency on a form prescribed jointly by the Director of Planning and the Administrator. The request shall be accompanied by a proposed Transfer Plan. The Transfer Plan shall be the only mechanism for approving the Transfer for any Project involving a Transfer of Floor Area Rights of 50,000 square feet or greater, pursuant to this article. The Agency shall forward a copy of the application and Transfer Plan to the Mayor's Office, the City Council Office for the City Council District in which the Receiver Site is located, the Department of City Planning and the Chief Legislative Analyst within 7 calendar days of receiving the completed application.

2. **Action by Agency Board.** The Administrator shall issue a report recommending approval, approval with conditions or disapproval of the request for Transfer, including the Public Benefit Payment and the TFAR Transfer Payment to be provided, with the recommendation to be based solely upon the degree that the Transfer Plan complies with the findings and conditions set forth in this section. After reviewing the Administrator's report, the Agency Board shall make the following findings in order to approve a Transfer:

(a) Findings.

(1) The increase in Floor Area generated by the proposed Transfer is appropriate with respect to location and access to public transit and other modes of transportation, compatible with other existing and proposed developments and the City's supporting infrastructure, or otherwise determined to be appropriate for the long-term development of the Central City;

(2) The Project is consistent with the purposes and objectives of the Redevelopment Plan;

(3) The Transfer serves the public interest by complying with the requirements of Section 14.5.9 of this Code; and;

(4) The Transfer is in conformance with the Community Plan and any other relevant policy documents previously adopted by the Commission or the City Council.

(b) Condition of Approval.

(1) The Transfer shall provide a Public Benefit Payment, and, if applicable, a TFAR Transfer payment in conformance, respectively, with Section 14.5.9 and Section 14.5.10 of this Code.

(2) The Transfer must comply with any applicable urban design standards and guidelines adopted for the area, including the Downtown Design Guide.

3. **Review of Agency Board's Disapproval or Failure to Act.** If the Agency Board disapproves a request for approval of a Transfer for a Project or fails to act on the request within 12 months after the submission of a completed request for approval of a Transfer to the Agency, the Applicant may request review of the action of the Agency Board to the Commission, the initial decision-maker for the City, in accordance with this subdivision. For purposes of this subdivision, a request to file an application shall be deemed to be complete when the Agency has received sufficient information with which to assess the environmental impacts of the proposed Project.

(a) A request for review shall be filed with the Commission no later than 20 calendar days after the earlier of: (i) the date of disapproval of a request for approval of a Transfer, or (ii) 12 months after the submission to the Agency of a completed request for approval of a Transfer.

(b) The request for review shall include the proposed Transfer Plan for a Project, and any documentation received by the Applicant from the Agency Board disapproving the request for approval of the Transfer. The request for review shall specify in detail the grounds for the review. The request for review shall include other information as the Commission may request.

(c) The Commission shall act on the request for review within 75 calendar days after receipt of the request for review. The Commission shall determine whether the Agency Board acted reasonably, in light of all the circumstances, in disapproving or failing to act on the request for approval of a Transfer. In the event the Commission fails to act within 75 calendar days after receipt of the request for review, the request for review shall be automatically submitted to the City Council for its action.

(d) If the Commission finds for the Applicant on any matter in dispute, the Commission shall remand the matter to the Agency Board for further action consistent with the Commission's decision. The Commission may impose conditions on the remanded request as it deems necessary to accomplish the purposes and objectives of this article. Upon remand, the Agency Board shall complete its proceedings with respect to the proposed Transfer in a manner that is consistent with the Commission's action on the matter, including any additional conditions it deems necessary. If the Agency Board fails to approve the request for approval of the Transfer within 90 calendar days after the Commission remands the matter to it, the Applicant may submit the request directly to the Commission without Agency Board approval. Thereafter, the Commission shall proceed pursuant to this Section 14.5.6.

(e) If the Commission upholds the Agency Board's action or failure to act, the Applicant may appeal the action of the Commission by filing a written appeal with the City Council. The City Council shall determine whether the Agency Board acted reasonably in light of all of the circumstances in disapproving or failing to act on the request for approval of the Transfer. Any appeal to the City Council shall be filed with the City Clerk within 20 calendar days after the Commission's action, and shall contain the proposed Transfer Plan and the record of the proceedings before the Agency Board and the Commission.

(f) If the City Council finds for the Applicant on any matter in dispute, the City Council shall remand the matter to the Agency Board to complete its proceedings with respect to the proposed Transfer in a manner that is consistent with the City Council's action on the matter. The City Council may impose conditions on the remanded request as it deems necessary to accomplish the purposes and objectives of this article.

4. Commission Review of Agency Board Approval. If the Agency Board approves a request for an approval of a Transfer for a Project, the Agency and the Applicant shall jointly submit the proposed Transfer Plan for the Project to the Commission, the initial decision-maker for the City, after approval of the request by the Agency Board.

The Commission may recommend approval, conditional approval or disapproval of the Transfer for a Project.

(a) **Findings.** In acting on a Transfer for a Project, the Commission shall make the findings in Subsection B.2.(a) of this Section 14.5.6 .

(b) **Conditions of Approval.**

(1) The Transfer shall provide a Public Benefit Payment, and, if applicable, a TFAR Transfer payment in conformance, respectively, with Section 14.5.9 and Section 14.5.10 of this Code; and;

(2) The Commission may require additional conditions for the Transfer to ensure consistency with the purposes and objectives of the Redevelopment Plan and the Community Plan, and to secure an appropriate development in harmony with the General Plan.

(c) **Commission Hearing.** A public hearing on the proposed Transfer for a Project shall be held by the Commission in accordance with the procedures set forth in Section 12.24 D. of this Code.

(d) **Commission Action.**

(1) The Commission shall act upon any proposed Transfer for a Project within 75 calendar days from the date of submittal to it of the Agency's Board approved Transfer Plan. This time limit may be extended by mutual consent of the Applicant and the Commission. The Commission shall forthwith transmit a copy of its action to the Applicant, the Agency Board and any other person requesting notice in writing. If the Commission fails to act on the proposed Transfer within 75 calendar days, the request shall be automatically submitted to the City Council for its action.

(2) If the Commission recommends disapproval of a request, in whole or in part, its action on any disapproved portion shall be final unless an appeal is taken to the City Council. The Applicant may appeal any disapproval within 15 calendar days after the Commission mails its decision to the Applicant by filing the appeal with the City Clerk on a form prescribed by the Commission.

(e) **Council Action.**

(1) The City Council may approve, conditionally approve or disapprove a proposed Transfer for a Project by a majority vote. In acting on the Transfer, the City Council shall make findings in support of its decision. The City Council shall not approve or conditionally approve a Transfer unless it finds that the development resulting from the Transfer meets each of the standards set forth in Subsection A.2.(a) and A.2.(b) or B.2.(a) and B.2.(b) of this section, as applicable.

(2) The Council may impose conditions as it deems appropriate to accomplish the purposes and objectives of the Redevelopment and Community Plans and to assure that the development resulting from the Transfer meets the standards set forth in Subsection A.2.(a) and A.2.(b) or B.2.(a) and B.2.(b) of this section, as applicable.

(f) Mayoral Action.

(1) When the City Council approves or conditionally approves a proposed Transfer for a Project, the matter together with the files and reports shall forthwith be transmitted to the Mayor. The Mayor may approve or disapprove the proposed Transfer within ten calendar days of its presentation to the Mayor. This action shall be based solely upon the administrative record and whether the Mayor believes the proposed Transfer conforms with the requirements for approval set forth in this section. If the Mayor disapproves the proposed Transfer, the Mayor shall return the matter to the City Clerk for presentation to the City Council, together with the objections in writing. The City Council, within 60 calendar days after the matter has been returned to it, may override the disapproval by a two-thirds vote.

(2) If the City Council fails to override the Mayor's disapproval within the 60 calendar days, the Mayor's disapproval shall constitute a denial of the proposed Transfer. If the Mayor fails to return the matter to the City Clerk within ten calendar days of the presentation to the Mayor, the approval of the proposed Transfer shall become final.

SEC. 14.5.7. DIRECTOR'S DETERMINATION.

A. Director's Authority to Approve Transfers of Less than 50,000 Square Feet of Floor Area. The Director, acting on applications for a Transfer of less than 50,000 square feet, shall have the authority to grant Transfers of Floor Area Rights in accordance with this Section. This is in addition to any action required by the Agency for projects located within the City Center Redevelopment Project Area.

1. **Application.** The Applicant shall file an application with the Department of City Planning on a form provided by the Department, and include all information required by the instructions on the application, including details of the requested transfer, accompanied by applicable fees.

2. **Director's Authority.** The Director shall have the initial decision-making authority to determine whether an application for a Transfer is consistent with this subsection.

3. **Action by Director.** The Director shall approve, conditionally approve, or disapprove the request for Transfer, including the public benefits to be provided, and make the following findings:

(a) Findings.

(1) That the Project is proper in relation to the adjacent uses or the development of the community;

(2) That the Project will not be materially detrimental to the character of development in the immediate neighborhoods;

(3) That the Project will be in harmony with the various elements and objectives of the General Plan;

(4) That the Project is consistent with any applicable adopted Redevelopment Plan;

(5) That the Transfer serves the public interest by providing public benefits in accordance with Subparagraph (b)(1) of this subdivision; and

(6) That the Project incorporates feasible mitigation measures, monitoring measures when necessary or alternatives identified in the environmental review which would substantially lessen the significant environmental effects of the Project, and any additional findings as may be required by CEQA.

(b) Conditions of Approval.

(1) The Transfer shall provide public benefits equivalent in value to the dollar amount otherwise required for a Public Benefit Payment, in conformance with Section 14.5.9 of this Code;

(2) The Transfer must comply with any urban design standards and guidelines adopted by the City Planning Commission for the area, including the Downtown Design Guide, and other applicable design guidelines;

(3) The Director may require additional conditions for the Transfer to ensure consistency with the purposes and objectives of the Community Plan.

4. **Transmittal of Written Decision.** Within three business days of making a decision, the Director shall transmit a copy by First Class Mail to: (1) the applicant; (2) all owners of properties abutting, across the street or alley from, or having a common corner with the subject property; (3) the local Certified Neighborhood Council; and (4) the Agency when the Project is located within the City Center Redevelopment Project Area.

5. **Effective Date of Initial Decision.** The Director's decision shall become effective after a period of 15 calendar days from the date of the mailing of the written decision has elapsed, unless an appeal is filed to the Area Planning Commission.

6. **Appeals.**

(a) **Filing of an Appeal.** An applicant or any other person aggrieved by the Director's decision may appeal the decision to the Area Planning Commission. The appeal shall be filed within 15 calendar days of the date of mailing of the Director's decision on forms provided by the Department. The appeal shall specifically set forth the points at issue, the reasons for the appeal, and the basis upon which the appellant claims there was an error or abuse of discretion by the Director. Any appeal not filed within the 15-day appeal period shall not be considered by the Area Planning Commission. The filing of an appeal stays proceedings in the matter until the Area Planning Commission has made a decision. Once an appeal is filed, the Director shall transmit the appeal and the file to the Area Planning Commission, together with any reports responding to the allegations made in the appeal.

(b) **Appellate Decision – Public Hearing and Notice.** Before acting on any appeal, the Area Planning Commission shall set the matter for hearing, with written notice of the hearing sent by First Class Mail at least 15 calendar days prior to the meeting date to: (1) the applicant; (2) the owner(s) of the property involved; (3) the owners of properties within 100 feet of the exterior boundaries of the property involved; (4) the Councilmember for the City Council District in which the property is located; (5) the local Certified Neighborhood Council; (6) the Agency, when the project is located within the City Center Redevelopment Project Area; and (7) interested parties who have requested notice in writing.

(c) **Time for Appellate Decision.** The Area Planning Commission shall act within 75 calendar days after the expiration of the appeal period or within any additional period mutually agreed upon by the applicant and the Area Planning Commission. The failure of the Area Planning Commission to act within this time period shall be deemed a denial of the appeal.

(d) **Appellate Decision.** The Area Planning Commission may reverse or modify, in whole or in part, a decision of the Director. The Area Planning Commission shall make the same findings required to be made by the Director, supported by facts in the record, and indicate why the Director erred in determining a project's compliance with the applicable regulations of this Subsection.

(e) **Effective Date of Appellate Decision.** The appellate decision of the Area Planning Commission shall be final and effective as provided in Section 245 of the City of Los Angeles Charter.

SEC. 14.5.8. GENERAL REQUIREMENTS.

A. The Department shall establish an accounting of all Transfers and Public Benefit Payments in the Central City TFAR Area. The accountings shall be transmitted annually to the Commission for its review and shall include the amount of floor area restricted on each Donor Site and added to each Receiver Site and the dollar amount and related calculation for each approved Transfer Plan.

1. The Department shall maintain a record of the available Floor Area Rights in the Central City TFAR Area, and any Transfers and other records as may be necessary or desirable to provide an up-to-date account of the Floor Area Rights available for use in the Central City TFAR Area. The records shall be available for public inspection.

2. The Department shall maintain an accounting of all Public Benefit Payments derived from Transfers, and an accounting of all allocations of the Public Benefit Payments. The records shall be available for public inspection.

B. The Department shall establish a procedure to coordinate the obtaining of timely responses from affected City departments and agencies on each Project involving a Transfer, as a part of the early consultation process, referenced above.

C. Any Transfer approved pursuant to this article shall be evidenced by a recorded document, signed by both the owner of the Donor Site and the owner of the Receiver Site and in a form satisfactory to the City Attorney and designed to run with the land. When the owner of the Donor Site is the City, the Director shall be the signatory on behalf of the City on the recorded document. This document shall clearly set forth the amount of Floor Area Rights transferred and restrict the allowable Floor Area remaining on the Donor Site.

SEC. 14.5.9. PUBLIC BENEFIT PAYMENT.

A. A Public Benefit Payment shall be provided as part of an approved Transfer Plan and shall serve a public purpose, such as: providing for affordable housing; public open space; historic preservation; recreational; cultural; community and public facilities; job training and outreach programs; affordable child care; streetscape improvements; public arts programs; homeless services programs; or public transportation improvements. Prior to approving or recommending approval of a Transfer Plan, the Agency Board, Commission or the City Council shall make a finding that the Public Benefit Payment proposed by the Applicant in the Transfer Plan, or by the Agency Board, Commission or the City Council in its conditional approval, will result in Public Benefits with an economic value consistent with the sum of the Public Benefit Payment set forth in Subsection C. of this Section 14.5.9.

B. As approved by the City Council, a Public Benefit Payment may be provided by any combination of the payment of monies to the Transfer of Floor Area Rights Public Benefit Payment Trust Fund ("Public Benefit Payment Trust Fund") or by the direct provision of Public Benefits by the Applicant; provided, however, that without City Council approval at least 50% of the Public Benefit Payment must consist of cash payment by the Applicant to the Public Benefit Payment Trust fund.

C. The Public Benefit Payment under any Transfer Plan shall equal: (1) the sale price of the Receiver Site, if it has been purchased through an unrelated third-party transaction within 18 months of the date of submission of the request for approval of the Transfer, or an Appraisal, if it has not; (2) divided by the Lot Area (prior to any dedications) of the Receiver Site; (3) further divided by the High-Density Floor Area Ratio Factor; (4) multiplied by 40%; and (5) further multiplied by the number of square feet of Floor Area Rights to be transferred to the Receiver Site.

[Example: If Receiver Site with a Lot Area of 100,000 square feet (before any dedications) was purchased for \$40,000,000 (through an unrelated third-party transaction within 18 months of the date of submission of the request for approval of the Transfer), the Public Benefit Payment under a Transfer Plan transferring 100,000 square feet of Floor Area Rights would equal: (a) \$40,000,000 (the purchase price); (b) divided by 100,000 (the Lot Area of the Receiver Site); (c) divided by 6 (the High-Density Floor Area Ratio Factor); (d) multiplied by 40%; and (e) multiplied by 100,000 (the number of square feet of Floor Area Rights to be transferred) = \$2,666,666.67 (or \$26.67 for each square foot of transferred Floor Area Rights).]

SEC. 14.5.10. TFAR TRANSFER PAYMENT.

A. If the Donor Site is owned by the Agency or the City, the TFAR Transfer Payment shall be the greater of (a) 10% of the Public Benefit Payment calculated pursuant to Section 14.5.9 C. of this Code, or (b) \$5 multiplied by the number of square feet of Floor Area Rights to be transferred to the Receiver Site. This TFAR Transfer Payment shall be paid in cash by the Applicant to the Public Benefit Payment Trust fund as set forth in Section 14.5.12 of this Code.

B. If the Donor Site is owned by a party other than the Agency or the City, then the amount and payment of any TFAR Transfer Payment will be negotiated between the owner of the Donor Site and owner of the Receiver Site.

C. The Transfer Payment is independent of the Public Benefit Payment.

SEC. 14.5.11. PAYMENTS AND VESTING.

Any Public Benefit Payment together with any TFAR Transfer Payment to the Agency or City shall be provided as set forth in the Transfer Plan and as set forth below:

A. If the approved Transfer Plan specifies a single-phase Project on the Receiver Site, then the owner of the Receiver Site shall pay the Public Benefit Payment together with any TFAR Transfer Payment due to the Agency or the City on or before the earlier of

1. The issuance of the building permit for the Project; or
2. Twenty-four months after the final approval of the Transfer and the expiration of any appeals or appeals periods, unless extended by the Director in writing, and the Administrator when the Agency has taken an action on the Transfer Plan.

B. If the approved Transfer Plan specifies a multi-phased Project on the Receiver Site, then the owner of the Receiver Site must pay the Public Benefit Payment together with any Transfer Payment due to the Agency or the City, through any one of the three methods set forth below, except as may be extended by the Director in writing, and the Administrator when the Agency has taken an action on the Transfer Plan:

1. In total for all phases of the Project, on or before the earlier of: (i) the issuance of the building permit for the first phase of the Project or (ii) 24 months after the final approval of the Transfer and the expiration of any appeals or appeals periods for all phases of the Project;
2. Incrementally by each phase of the Project, proportionate to the Floor Area Rights utilized in each phase, on or before the issuance of the building permit for each phase, with the amount of each payment being subject to payment indexing in accordance with an executed agreement between the owner of the Receiver Site and the Agency or the City; or

3. Incrementally by each phase of the Project, proportionate to the Floor Area Rights utilized in each phase, on or before the issuance of the building permit for each phase, with the amount of each payment being recalculated as of the date that the building permit for each phase is issued in accordance with an Appraisal establishing the fair market value of the Receiver Site within six months prior to the issuance of the building permit for that phase.

C. Upon the Applicant's payment to the Agency or the City of all of the Public Benefit Payment together with all of the TFAR Transfer Payment required under an approved Transfer, all Floor Area Rights transferred to the Receiver Site pursuant to the Transfer Plan shall vest in the Receiver Site and thereafter run with the land.

SEC. 14.5.12. PUBLIC BENEFIT PAYMENT TRUST FUND.

(Amended by Ord. No. 182,691, Eff. 10/8/03.)

Funds held in the Public Benefit Payment Trust Fund shall be disbursed in accordance with Section 5.416 of the Los Angeles Administrative Code and (1) after receipt of non-binding recommendations by a committee comprised of one representative from each of the following: the City Council Office for the City Council District in which the Receiver Site is located, the City Council Office for the City Council District in which the Donor Site is located, the Economic and Workforce Development Department, the Department of City Planning, the Mayor's Office, the City Administrative Officer, the Chief Legislative Analyst, the Neighborhood Council for the area in which the Receiver Site is located, the Project Area Committee (if one exists) for the area in which the Receiver Site is located, and the Community Advisory Committee (if one exists) for the area in which the Receiver Site is located, in accordance with the procedure previously established for the Public Benefit Payment Trust Fund, (2) within five years after receipt, and (3) for use on projects or programs providing a Public Benefit as set forth in Section 14.5.9 A. of this Code. This Chief Legislative Analyst shall convene the Public Benefit Payment Trust Fund Committee within six months of receipt of funds.

ARTICLE 5

REFERRALS – LAND FOR PUBLIC USE

(Amended by Ord. No. 114,449, Eff. 9/17/59)

(Title Amended by Ord. No. 138,800, Eff. 6/13/69, Oper. 6/23/69)

Section
15.00 Procedure.

SEC. 15.00. PROCEDURE.

(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

See Sec. 13B.1.6. (Land for Public Use) of Chapter 1A of this Code.

ARTICLE 6

LOCAL EMERGENCY TEMPORARY REGULATIONS

(Title Amended by Ord. No. 187,096, Eff. 7/1/21.)

Section
16.00 Declaration of Purpose.
16.01 Long-term Temporary Uses.
16.02 Special Provisions for Other Land Use Proceedings.
16.02.1 Relief from Specified Land Use Provisions.
16.03 Restoration of Damaged or Destroyed Buildings.
16.04 Critical Response Facilities.
16.04.1 Short-term Temporary Uses.
16.04.2 Activation and Termination of Effect.

SEC. 16.00. DECLARATION OF PURPOSE.

(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)

It is the purpose and objective of this Article to establish reasonable and uniform regulations to protect the public welfare and to provide a streamlined method for consideration of applications for temporary use approvals and other land use approvals in an emergency, such as fire, storm, severe earthquake, civil disturbance, or other disaster declared by the Governor.

SEC. 16.01. LONG-TERM TEMPORARY USES.

(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)

A. Authority of the Zoning Administrator. Notwithstanding any other provision of this Code to the contrary, the Zoning Administrator shall have the authority to approve the use of a lot in any zone for the temporary use of property which will aid in the immediate restoration of an area adversely impacted by a severe fire, storm, earthquake, similar natural disaster, or a civil or military disturbance, and declared by the Governor as an emergency area if the Zoning Administrator finds:

1. That the nature and short duration of the proposed temporary use assures that the proposed use will not be materially detrimental to the character of development in the immediate neighborhood;
2. That the proposed use will not adversely affect the implementation of the General Plan or any applicable specific plan; and
3. That the proposed use will contribute in a positive fashion to the reconstruction and recovery of areas adversely impacted during the emergency.

In making a determination pursuant to this section, the Zoning Administrator shall balance the public interest and benefit to be derived from the proposed temporary use against the degree, significance of, and temporary nature of the inconvenience to be caused in the area where the temporary use is located. The Zoning Administrator may promulgate regulations and guidelines as are necessary and proper to administer the provisions of this article.

B. Conditions of Approval. In approving the location of any temporary use, the Zoning Administrator may impose those conditions the Zoning Administrator deems necessary to protect the peaceful and quiet enjoyment of nearby properties. The Zoning Administrator shall also require the posting of a completion bond, or other guarantee satisfactory to the Zoning Administrator, to cover the cost of the removal of any improvements made to a site or cleaning of the site after termination of the temporary authorized use.

Furthermore, the Zoning Administrator shall require termination of the temporary use within one year from the date of the approval of the temporary use, the removal of all temporary improvements on the site, and the restoration of the site to a permitted use within a reasonable period of time determined by the Zoning Administrator. Approval of any application for a temporary use shall not result in any vested or nonconforming rights to carry on the temporary use after the term authorized.

The design and improvement provisions of Sections 12.21 A.5. and 6. and the yard requirements of Chapter 1 of this Code shall not apply to temporary permits for public parking in the R Zones. However, in approving permits, the Zoning Administrator may impose those conditions as the Zoning Administrator deems necessary to protect the peaceful and quiet enjoyment of the subject and nearby properties.

C. Revocation. The Zoning Administrator may suspend or revoke any temporary use approval, if the Administrator determines that the temporary use bears no significant relation to the reconstruction and recovery of areas adversely impacted by the emergency, or that the conditions imposed on any temporary use approval have not been complied with, or that an unreasonable level of interference with the peaceful enjoyment of neighboring properties is created by the conduct of any authorized activity.

Prior to the revocation of a temporary use approval, the Zoning Administrator shall give written notice to the record owner or lessee to appear within five days or less (if justified by a threat to public health and safety) at a time and place fixed by the Zoning Administrator and show cause why the temporary use approval should not be revoked or why further conditions should not be imposed.

A determination of the Zoning Administrator pursuant to this subsection may be appealed to the Area Planning Commission on a form prescribed by the Department of City Planning in accordance with the procedures described in this section.

D. Other Permits and Licenses. This article shall not, except as stated here, modify or affect in any way the duty of any applicant to obtain any other permit or license which may be required under any other provision of this Code or state law.

E. Application. An application to permit any temporary use referred to in this article shall be filed with the Department of City Planning upon forms and accompanied by data as the Department of City Planning may require.

The application may be filed by an owner or a lessee and shall be verified by the applicant attesting to the truth and correctness of all facts and information presented with, or contained in the application and shall also be signed by the owner of record of any site where the proposed temporary use will be located.

A copy of any application so filed shall be transmitted by the Department of City Planning to the Councilmember of the district in which the proposed use would be located and to the Department of Transportation for their information.

F. Notice and Hearing. Upon the filing of a verified application, the Zoning Administrator shall set the matter for public hearing. Notice of the time, place, and purpose of the hearing shall be given by mailing a written notice at least 14 days prior to the date of the hearing to the applicant, to the owner of the subject property, to adjoining and abutting property owners, and to property owners directly across the street or alley from the subject property. For this notice the following shall be used: the last known name and address of the property owners as shown upon the records of the City Engineer or the records of the County Assessor. **(Amended by Ord. No. 181,595, Eff. 4/10/11.)**

An application for a temporary use shall be set for public hearing unless the Zoning Administrator makes written findings, attached to the file involved, that the requested temporary use:

1. will not have a significant effect on adjoining properties or on the immediate neighborhood; or
2. is not likely to evoke public controversy.

G. Time Limit. The Zoning Administrator shall make a determination within 30 days from the filing of a verified application. This time limit may be extended by mutual written consent of the applicant and Zoning Administrator.

H. Fee. An application for an approval pursuant to this section shall not require any filing fee.

I. Decisions by the Zoning Administrator. Decisions by the Zoning Administrator shall be supported by written findings of fact based upon written or oral statements and documents presented to the Zoning Administrator, which may include photographs, maps and plans, together with the results of the Zoning Administrator's investigations. Upon making a decision, the Zoning Administrator shall forthwith mail a copy of the Zoning Administrator's written findings and decisions to the applicant, and to the other persons who were required to be notified under Subsection F.

J. Decision Effective and Appeal. The decision of the Zoning Administrator shall become final after an elapsed period of ten days from the date of mailing a copy of the written findings and decision to the applicant. During this period, any person aggrieved by the decision may file a written appeal to the Area Planning Commission. The appeals shall set forth specifically the points at issue, the reasons for the appeal, and how the appellant believes there was an error or abuse of discretion by the Zoning Administrator. No fee shall be charged for this appeal.

K. Failure to Act. If the Zoning Administrator fails to make a decision on a temporary land use application within the time limit specified in Subsection C. of this section, then the applicant may file a request in the Office of Zoning Administration for a transfer of jurisdiction to the Area Planning Commission and for a decision by the Area Planning Commission on the original application. In that case, the Zoning Administrator shall lose jurisdiction and the Area Planning Commission shall assume jurisdiction, provided, however, that the matter may be remanded to the Zoning Administrator or the Area Planning Commission may accept the applicant's request for withdrawal of the transfer of jurisdiction. In either case, the Zoning Administrator shall regain jurisdiction for the time and purpose specified by the Area Planning Commission.

L. Transfer of Jurisdiction. (Amended by Ord. No. 173,492, Eff. 10/10/00.) When considering any matter transferred to its jurisdiction pursuant to Section 16.02 because of the failure of the Zoning Administrator to act, the Area Planning Commission shall make its decision within 30 days after the request to transfer jurisdiction is filed. All decisions shall become final on the date of mailing a copy of the Area Planning Commission's decision to the applicant.

M. Record on Appeal. Within five days of receipt of the filing of an appeal, the file of the Zoning Administrator appealed from and the appeal shall be delivered to the Area Planning Commission. At any time prior to the action by the Area Planning Commission on the appeal, the Zoning Administrator may submit supplementary pertinent information the Zoning Administrator deems necessary or as may be requested by the Area Planning Commission.

N. Hearing Date-Notice. Upon receipt of the appeal, the Area Planning Commission shall set the matter for hearing and give notice by mail of the time, place and purpose of the hearing to the appellant, to the applicant, to the owner or owners of the property involved, to the Zoning Administrator and to any other interested party who has requested in writing to be so notified. This notice shall be in writing and mailed at least five days prior to the hearing.

O. Hearing Date-Continuance. Upon the date set for the hearing, the Area Planning Commission shall hear the appeal, unless, for cause, the Area Planning Commission shall on that date continue the matter. No notice of continuance need be given if the order to continue is announced at the time for which the hearing was set.

P. Decision. When considering an appeal from an action by the Zoning Administrator, the Area Planning Commission shall make its decision within 15 days (in the case of a revocation, within 10 days) after the expiration of the appeal period, or within an extended period of time as may be mutually agreed upon in writing by the applicant and the Area Planning Commission. The Area Planning Commission shall base its decision only upon:

- (i) evidence introduced at the hearing, or hearings, if any, before the Zoning Administrator, on the issue;
- (ii) the record, findings and determination of the Zoning Administrator; and

(iii) the consideration of arguments, if any, presented to the Area Planning Commission orally or in writing.

If an applicant or aggrieved person wishes to offer into the proceedings any new evidence in connection with the matter, a written summary of that evidence, together with a statement as to why that evidence could not reasonably have been presented to the Zoning Administrator shall be filed with the Area Planning Commission prior to the hearing. If the Area Planning Commission fails to act on any appeal within the time limit specified in the subsection, the determination of the Zoning Administrator shall be final.

The Area Planning Commission may modify or reverse the ruling, decision or determination appealed from only upon making findings indicating how the action of the Zoning Administrator was in error or constituted an abuse of discretion and shall make specific findings supporting any modification or reversal. The decision of the Area Planning Commission shall be final as of the date of its determination on the matter. After making a decision, a copy of the findings and determination shall forthwith be placed on file in the City Planning Department and a copy of the determination shall be furnished to the applicant, the appellant and the Department of Building and Safety.

SEC. 16.02. SPECIAL PROVISIONS FOR OTHER LAND USE PROCEEDINGS.

(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)

Notwithstanding any provision of Articles 1 through 9 of Chapter I of this Code or any other ordinance to the contrary, with respect to those uses, buildings and sites destroyed or damaged in connection with a declared emergency, and in the area covered by the declaration of emergency, the following exceptions shall apply:

A. Payment of all Planning Department and Zoning Administrator fees may be deferred until the applicant seeks a certificate of occupancy or a temporary certificate of occupancy, whichever occurs first.

B. For applications relating to new conditional uses, other similar quasi-judicial approvals, site plan review, exceptions from specific plans, project permits pursuant to moratorium ordinances or interim control ordinances, Sections 12.23, 12.27 and 14.00 actions and any revocation or modification proceedings:

If the law otherwise requires or authorizes a public hearing, the matter shall be set for public hearing unless the Zoning Administrator, the Area Planning Commission, the City Planning Commission, or Director of Planning, makes written findings, attached to the file involved, that the matter:

1. will not have a significant effect on adjoining properties or on the immediate neighborhood; or
2. is not likely to evoke public controversy.

Provided, however, that no hearing shall be waived in any proceeding involving establishments dispensing alcoholic beverages for consideration, swap meets, gun shops, pawnshops and automobile repair establishments.

When a matter is set for public hearing, written notice of the hearing shall be given to the applicant, the owner or owners of the property involved and to the owners of all property within and outside of the City within 500 feet of the property involved.

C. Payment of the Linkage Fee pursuant to Section 19.18 of this Code. **(Added by Ord. No. 185,342, Eff. 2/17/18.)**

SEC. 16.02.1. RELIEF FROM SPECIFIED LAND USE PROVISIONS.

(Added by Ord. No. 187,096, Eff. 7/1/21.)

A. The provisions of this section may be invoked upon the adoption of a City Council resolution following the Mayor's declaration of emergency pursuant to local and state law, and upon the filing of an application on a form provided by the Department of City Planning and the payment of a fee, provided the resolution does not conflict with any Mayoral orders issued in relation to the declared emergency. The provisions of this section do not supersede state law or the Mayor's authority under the Charter and Los Angeles Administrative Code.

B. **Effective Dates.** Notwithstanding any other provisions of this article to the contrary, the provisions of this section shall automatically terminate 12 months after the expiration or termination date of the relevant emergency declaration, or upon City Council's action by resolution to terminate the provisions of this section earlier than that date. However, the City Council may, by resolution, extend the provisions of this section for up to an additional 24 months, thereby allowing the provisions to apply for a total of 36 months after the termination or expiration of the local emergency order. The City Council retains the discretion to terminate these provisions by resolution at any time after the expiration or termination of the local emergency order.

C. **Time Limit Extension.**

1. **Extension of Time Limitations.** Notwithstanding the expiration periods set forth in Section 12.25 of this Code, the expiration of a conditional use or other quasi-judicial approval(s) that was either approved or valid during the application of these provisions, shall be calculated by adding the term of the local emergency, plus up to an additional 12 months when the criteria in Section 16.02.1 D.3. of this Code are met, to the term prescribed in Section 12.25 A.1. This extension does not confer a vested right, unless a Vesting Conditional Use was applied for and granted pursuant to Section 12.24 T.

(a) **Multiple Approvals.** Notwithstanding the expiration periods defined in Sections 12.36 of this Code, if an eligible conditional use or other quasi-judicial approval is part of a project that has multiple approvals and is subject to the expiration period set forth in Section 12.36 of this Code, then the expiration period set forth in Sec. 13A.2.7.A.2. is extended by a term equivalent to the time period of the local emergency, plus up to an additional 12 months from the expiration of the local emergency for all approvals concurrently granted.

(b) **Exception.** The uses listed in Section 16.02.1 D.3.(a) shall not be granted an extension, regardless of whether said use was approved concurrently with an eligible approval.

2. **Extension of Term-Limited Grants.** Notwithstanding any condition of approval that specifies an expiration date or term limit for a conditional use or other quasi-judicial approval(s), where the expiration date occurs during the local emergency that expiration date is automatically extended for the term of the local emergency, plus up to an additional 12 months when the criteria in Section 16.02.1 D.3. are met.

(a) **Multiple Approvals.** Notwithstanding any other provision of this Code to the contrary, if an eligible conditional use or other quasi-judicial approval is part of a project that has multiple approvals and any of the approvals include a condition with a separate expiration date or term limit, said expiration date shall be extended concurrently with the eligible approval.

(b) **Exception.** The uses listed in Section 16.02.1 D.3.(a) shall not be granted an extension regardless of whether said use was approved concurrently with an eligible approval.

3. Eligibility.

(a) Only a conditional use or quasi-judicial approval listed in Section 12.24 is eligible for the time extension.

Exception. No conditional use or other quasi-judicial approval related to fossil fuel extraction, fossil fuel production, fossil fuel storage, or hazardous waste facilities is eligible for the time extension within this section. This includes, but is not limited to, the following:

Section 12.24 U.10. Hazardous waste facilities in M2 and M3 zones.

Section 12.24 U.11. Hazardous waste facilities in M3 zones.

Section 12.24 U.17. Natural resources development.

Section 12.24 U.18. Onshore installations required in connection with the drilling for or production of oil, gas or hydrocarbons, under specified conditions.

Section 12.24 U.29. Petroleum-Based Oil Refineries.

Section 12.24 W.47. Temporary geological exploratory core holes in all zones except the M3 Zone, under specified conditions.

(b) **Revocation.** Businesses or properties that are or have been the subject of revocation proceedings that resulted in corrective conditions or revocation are not eligible for a time extension.

(c) **Application.** In order to benefit from the relief provided by these provisions, an application to verify eligibility shall be filed and a fee paid, in accordance with procedures set forth by the Department of City Planning.

(d) **Original Approval.** The Director or designee shall verify that the prior discretionary approval and existing environmental documentation under the California Environmental Quality Act is adequate for the issuance of the extension.

(e) **Notification.** The applicant shall notify, in accordance with the procedures set forth by the Department of City Planning, the Los Angeles Police Department, the Department of Building and Safety, and the City Councilmember whose district includes any portion of the property as part of the application process for the extension of the time limits.

D. Automobile Parking Relief.

1. **Changes of Use.** Notwithstanding Section 12.21 A.4., 12.23 B.8.(b), or any other Code section, ordinance, or specific plan to the contrary, when plans are submitted and accepted by the Department of Building and Safety for a change of use during an emergency declaration and after the adoption of a resolution by City Council invoking the provisions of this section, the change of use shall not trigger increased automobile parking beyond that required by the existing approved use if all the following requirements are met:

(a) **Requirements.**

(1) The change of use is limited to a nonresidential use allowable pursuant to the zoning applicable to the property's location.

(2) The building wherein the change of use is occurring has one of the following: a valid certificate of occupancy; temporary certificate of occupancy; or a building permit if the building predates the certificate of occupancy requirement. The aforementioned documents must have been issued prior to the declaration of the local emergency related to the City Council's resolution invoking this section.

(3) The automobile parking relief only applies to the first 5,000 square feet of Floor Area for any tenant space. Any Floor Area in excess of 5,000 square feet for said tenant space shall conform to the automobile parking requirements in LAMC Section 12.21 A.4., Section 12.23 B.8.(b), and any applicable Specific Plan, inclusive of any aggregate Floor Area, including Floor Area sectioned from a separate tenant space that may have been previously eligible or approved for the automobile parking reduction enumerated within this subdivision.

(4) Any additions to the building occurring during the invocation of this section by City Council resolution, and which result in an increase of Floor Area are limited to the area within the existing walls and existing roofline of the building, and do not include any outdoor space.

(5) No net loss of guest rooms and/or dwelling units result from the change of use.

(b) **Consistency.** The relief provided in this subdivision is limited to the provisions enumerated herein, and any project for which relief is sought shall otherwise be consistent with this Code and the General Plan.

2. **Outdoor Dining Areas. (Amended by Ord. No. 188,073, Eff. 1/31/24.)** Notwithstanding any provisions of this Code or any Zoning Administrator interpretations of this Code to the contrary, any new or expanded Outdoor Dining Areas shall not require any automobile parking, and the maintenance of existing automobile parking shall not be required for any portion of the parking lot utilized for an approved Outdoor Dining Area during the period that these provisions are invoked, pursuant to this section, if the following requirements are met:

(a) **Eligibility.** Only permitted establishments with verifiable indoor seating for on-premises dining are eligible for the relief provided within this subdivision.

(b) **Consistency.** The relief provided in this subdivision is limited to the automobile parking provisions enumerated herein, and the project shall otherwise be consistent with this Code and the General Plan.

(c) **Termination.** Whenever the provisions of this section cease to apply, the automobile parking requirements that existed prior to the declaration of the local emergency shall be met, and any Outdoor Dining Areas shall comply with this Code and any applicable Specific Plan, notwithstanding this Section.

3. **Conditions of Approval.** Notwithstanding any provisions of this Code, ordinance, or Specific Plan to the contrary, any condition of approval that requires valet automobile parking or off-site automobile parking is suspended and shall not be enforced during the period when these provisions are invoked, if all the following requirements are met:

(a) **Eligibility.** Only the following grants are eligible for relief, and only if they were approved or active during the period that these provisions are invoked.

Section 11.5.7 E. Project Permit Adjustments.

Section 11.5.7 F. Exceptions from Specific Plans.

Section 12.24 Conditional Use Permits and Other Similar Quasi-Judicial Approvals. Inclusive of the entire Section.

Section 12.27 Variances.

Section 12.28 Adjustments and Slight Modifications.

Section 12.32 Land Use Legislative Actions.

(b) **Existing Covenant.** The suspension of enforcement activity as a result of the invocation of the provisions of this section shall not be construed to terminate or void any recorded covenant documenting valet or off-site parking requirements.

(c) **Termination.** Whenever the provisions of this section cease to apply, all conditions of approval and associated covenants shall be enforced and, if the conditions were never met, the applicant shall provide verification to the Department of City Planning, in accordance with procedures set forth by the Department of City Planning, within 90 days of the termination of the provisions of this section.

SEC. 16.03. RESTORATION OF DAMAGED OR DESTROYED BUILDINGS.

(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)

A. **Nonconforming.** Notwithstanding any other provisions of this article to the contrary, a building nonconforming as to use, yards, height, number of stories, lot area, floor area, residential density, loading space, parking, off-site signs or other nonconforming provisions of the Los Angeles Municipal Code, which is damaged or destroyed as a result of the declared emergency may be repaired or reconstructed with the same nonconforming use, yards, height, number of stories, lot area, floor area, residential density, loading space, parking or off-site signs as the original building. Provided, however, that repair or reconstruction shall be commenced within two years of the date of damage or destruction and completed within two years of obtaining a permit for reconstruction. Provided, further, that neither the footing nor any portion of the replacement building may encroach into any area planned for widening or extension of existing or future streets as determined by the Planning Department upon the recommendation of the City Engineer.

The provisions of this section shall supersede any Interim Control Ordinances, Interim Plan Revision Ordinances, Specific Plans (except for the South Central Alcohol Beverage Specific Plan, Ord. No. 171,681), Section 16.05 and the City's hillside regulations under Section 12.21 A.17. (except for Paragraphs (d) and (e)). Notwithstanding any provision in this section to the contrary, any existing provision of law regulating the issuance of building or demolition permits for buildings or structures currently with historical or cultural designations on the federal, state and City lists shall remain in full force and effect. All Historic Preservation Overlay Zone regulations shall continue in full force and effect with respect to the demolition, repair and reconstruction of damaged or destroyed buildings or structures.

For purposes of this subsection, a building or structure may only be demolished and rebuilt to its non-conforming status, relative to the provisions of this Code, any Interim Control Ordinances, Interim Plan Revision Ordinances, Specific Plans (except for the South Central Alcohol Beverage Specific Plan, Ord. No. 171,681) and the City's hillside regulations under Section 12.21 A.17. (except for Paragraphs (d) and (e)), if the building or structure either is destroyed or is "**damaged**" in the following manner:

1. Any portion of the building or structure is damaged by earthquake, wind, flood, fire, or other disaster, in such a manner that the structural strength or stability of the building or structure is appreciably less than it was before the catastrophe and is less than the minimum requirements of this Code for a new building or structure of similar structure, purpose or location, as determined by the Department of Building and Safety; and
2. The cost of repair would exceed 50 percent of the replacement cost of the building or structure, not including the value of the foundation system, as determined by the Department of Building and Safety.

Nothing here shall be interpreted as authorizing the continuation of a nonconforming use beyond the time limits set forth in Section 12.23 of this Code that were applicable to the site prior to the events which necessitated the declaration of the emergency.

If issues of interpretation relating to the above provisions arise, the Zoning Administrator is hereby authorized to resolve those issues in light of the scope and purposes of this subsection.

Notwithstanding the time periods described above or in Section 16.04.2, nonconforming properties damaged during the January 17, 1994 Northridge Earthquake shall have until January 17, 1999 to obtain building permits for repair or reconstruction; and that work shall be completed within two years of obtaining building permits. The City Council may, by resolution extend these time periods for one additional year.

B. **Conditional Uses and Public Benefits.** The following conditional uses and public benefits are considered to be of such importance and their expeditious replacement is of such value to the health and safety of the community that they are hereby granted an exemption from the plan approval process required by Subsection H. (Modification of Entitlement) of Sec. 13B.2.2. (Class 2 Conditional Use Permit) and 13B.3.3. (Class 3 Conditional Use Permit) of Chapter 1A of this Code, provided that the structures containing these uses are rebuilt as they lawfully existed prior to their destruction, with the same building footprint and height. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

Conditional Uses and Public Benefits

Airports or aircraft landing fields

Correctional or penal institutions

Educational institutions

Libraries, museums, fire or police stations or governmental enterprises

Piers, jetties, human-made islands, floating installations

Public utilities and public service uses and structures

Schools, elementary and high

Electric power generating sites, plants or stations

OS Open Space Zone uses

Child care facilities or nursery schools

Churches or houses of worship

Hospitals or sanitariums

If issues of interpretation or administration relating to the above exemptions arise, the Director is authorized to resolve those issues in light of the scope and purposes of this subsection. **(Amended by Ord. No. 173,492, Eff. 10/10/00.)**

C. Notwithstanding Subsections A. and B. above, the following five uses shall not be exempt from the provisions of this Code, interim control ordinances, specific plans, and interim plan revision ordinances: establishments dispensing alcoholic beverages for consideration, swap meets, gun shops, pawnshops and automobile repair establishments.

D. **Highway and Collector Street Dedication and Improvement.** For any lot identified by the City as having sustained damage during and as a result of the situation causing the declared emergency, the issuance of a building permit for a new development on that site shall not require improvement of frontage for major or secondary highway and collector street widening purposes under Section 12.37 A.

Nothing here shall prevent a property owner from voluntarily improving the right of way and undertaking public improvements which conform to the applicable sections of this Code.

E. The Zoning Administrator may grant deviations of no more than ten percent from the City's floor area, height, yard, setback, parking, and loading space requirements for buildings and structures damaged or destroyed in an emergency declared by the Governor when the deviations are necessary to accommodate the requirements of the Americans With Disabilities Act, Federal Fair Housing Amendments Act of 1988, the California Code of Regulations, Title 24, provided the Zoning Administrator finds:

1. That the deviations are not likely to cause an undue burden on nearby streets or neighboring properties;
2. That the grant is not likely to evoke public controversy; and
3. That the development cannot feasibly be designed to meet the requisite disabled access standards without the deviations.

Prior to acting on an application for a deviation, the Zoning Administrator shall give notice to all adjoining property owners and shall hold a public hearing. The Zoning Administrator may waive the public hearing if the Zoning Administrator makes the two findings in Section 16.02 B. The notice and procedures provided in Section 16.01 shall be followed for granting any deviation.

SEC. 16.04. CRITICAL RESPONSE FACILITIES.

(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)

A. **Authority of the Department of Building and Safety.** Notwithstanding any other provision of this Code to the contrary, the Department of Building and Safety shall, during the first six months following the declaration of an emergency, have the authority to issue a temporary permit for the duration of the emergency, on any lot, regardless of zone, for any police, fire, emergency medical or emergency communications facility which will aid in the immediate restoration of an area adversely impacted by a severe fire, storm, earthquake, similar natural disaster, or a civil or military disturbance, and declared by the Governor as an emergency area, provided that the department shall maintain records of all temporary permits.

SEC. 16.04.1. SHORT-TERM TEMPORARY USES.

(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)

A. **Authority of the Department of Building and Safety.** Notwithstanding any other provision of this Code to the contrary, the Department of Building and Safety shall, during the first six months following the declaration of an emergency, have the authority to issue a temporary 90-day permit on any lot, regardless of zone, for any temporary use which will aid in the immediate restoration of an area adversely impacted by a severe fire, storm, earthquake, similar natural disaster, or a civil or military disturbance, and declared by the Governor as an emergency area, provided that the department shall maintain records of all temporary permits.

SEC. 16.04.2. ACTIVATION AND TERMINATION OF EFFECT.

(Amended by Ord. No. 187,096, Eff. 7/1/21.)

The provisions of this article shall be applicable to a particular area upon the declaration of an emergency by the Governor relating to

that area, pursuant to state law. The provisions of this article shall cease to be applicable to a particular area two years following the date of declaration of emergency, and for one additional year if an extension is approved by the City Council, provided, however, that the provisions of this article shall be considered as still remaining in full force and effect thereafter for the purpose of maintaining or defending any civil or criminal proceeding with respect to any right, liability or offense that may have arisen under the provisions of this article during its operative period, or with respect to enforcing any condition of approval of the temporary land use permit. The City Council may also extend by resolution any other time limits in this article for one additional year. Notwithstanding the provisions within this section to the contrary, the provisions in Section 16.02.1 shall only be activated by following the procedure outlined in Section 16.02.1 B.

ARTICLE 6.1

REVIEW OF DEVELOPMENT PROJECTS

(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

Section

- 16.05 Project Review.
- 16.10 Green Building Program.
- 16.11 Green Building Team.
- 16.50 Design Review Board Procedures.
- 16.60 Demolition of Housing Units.
- 16.61 Restricted Affordable Units.
- 16.70 Housing Element Sites and Minimum Density.

SEC. 16.05. SITE PLAN REVIEW.

- A. See Sec. 13B.2.4. (Project Review) of Chapter 1A of this Code.
- B. **Definitions.** For the purpose of this Section and Sec. 13B.2.4. (Project Review) of Chapter 1A of this Code, the following words and phrases shall have the meanings specified below. Other terms used in this section shall have the meanings set forth in Section 12.03 of this Code if defined there.

1. **Development Project.** The construction of, addition to, or alteration of, any building or structure, or a change of use of an existing building or structure that requires a building permit and that results in an increase in floor area, or a net increase in average daily vehicle trips as determined by using trip generation factors promulgated by the Department of Transportation for the purpose of effectuating this section.

2. **Discretionary Approval.** An approval initiated by application of a property owner or representative related to the use of land including, but not limited to a:

- (a) zone change;
- (b) height district change;
- (c) supplemental use district;
- (d) conditional use approval;
- (e) use, area or height variance;
- (f) parcel map;
- (g) tentative tract map;
- (h) coastal development permit;
- (i) development agreement;
- (j) adjustments;
- (k) density bonus greater than the minimums pursuant to Government Code Section 65915;
- (l) density transfer plan;

- (m) exception from a geographically specific plan;
- (n) project permit pursuant to a moratorium or interim control ordinance;
- (o) public benefit projects; or
- (p) floor area deviation of less than 50,000 square feet pursuant to 14.5.7 of Article 4.5 of the Los Angeles Municipal Code.
- (q) single-family dwelling with a cumulative Residential Floor Area of 17,500 square feet or larger within the HCR District pursuant to 13.20 of Article 3 of the Los Angeles Municipal Code.

3. **Fast-food Establishment.** Any establishment which dispenses food for consumption on or off the premises, and which has the following characteristics: a limited menu, items prepared in advance or prepared or heated quickly, no table orders, and food served in disposable wrapping or containers.

C. Project Review Requirements.

1. No grading permit, foundation permit, building permit, or use of land permit shall be issued for any of the following development projects unless a Project Review has first been obtained pursuant to Sec. 13B.2.4. (Project Review) of Chapter 1A of this Code. This provision shall apply to individual projects for which permits are sought and also to the cumulative sum of related or successive permits which are part of a larger project, such as piecemeal additions to a building, or multiple buildings on a lot, as determined by the Director.

- (a) Any development project which creates, or results in an increase of, 50,000 gross square feet or more of nonresidential floor area.
- (b) Any development project which creates, or results in an increase of, 50 or more dwelling units or guest rooms, or combination thereof.
- (c) Any change of use to a Drive-Through Fast-food Establishment or any change of use to a Fast-food Establishment, either of which results in a net increase of 500 or more average daily trips as determined by, and using the trip generation factors promulgated by the Department of Transportation.
- (d) Any change of use other than to a Drive-Through Fast-food Establishment or to a Fast-food Establishment which results in a net increase of 1,000 or more average daily trips as determined by, and using the trip generation factors promulgated by the Department of Transportation.
- (e) (This paragraph intentionally left blank.)
- (f) Any single-family residential development with a cumulative Residential Floor Area of 17,500 square feet or larger located in the HCR District.

2. This subdivision shall not apply to one-family dwellings located outside of a HCR District.

D. Exemptions.

1. Unless made discretionary by any other provision of law, the approval of any building permit for a development project which does not exceed the thresholds set forth in this subsection and Section 12.24 U.14. is ministerial and exempt from the requirements of the California Environmental Quality Act.

2. Any development project with a still-valid discretionary approval, including but not limited to those listed in Subsection B.2. of this section, shall be exempt from Project Review only if the applicable decision-making body determines in writing that the prior discretionary approval, and the required environmental review, considered significant aspects of the approved project's design (such as, but not limited to, building location, height, density, use, parking, access) and that the existing environmental documentation under the California Environmental Quality Act is adequate for the issuance of the present permit in light of the conditions specified in Section 21166 of the California Public Resources Code. The Department of City Planning may require supplements to the environmental documentation to remain current. The Director is authorized to establish procedures to process determinations required under this subdivision.

3. Any development project located within the boundaries of an adopted Redevelopment Project Area with an Unexpired Redevelopment Plan, as defined in Section 11.5.14, shall be exempt from site plan review when:

- (a) The Community Redevelopment Agency of the City of Los Angeles (CRA) and the City Council approved an owner participation agreement, a disposition and development agreement, a loan agreement, a cooperation agreement or other discretionary agreement for the development project prior to February 1, 2012; and

(b) The project was considered during a public hearing prior to February 1, 2012, conducted in accordance with the CRA's adopted policies and procedures for public hearings.

4. Any development project within a specific plan area for which an EIR was certified by the City Council not more than six years prior to the date of the present application for a building permit. The date of the application shall be the date on which architectural and structural plans sufficient for a complete plan check are accepted by the Department of Building and Safety. This exemption shall be applicable only if the Director determines in writing that the EIR considered significant aspects of the approved project's design (such as, but not limited to, building location, height, density, use, parking, access) and that it is adequate for the issuance of the present permit. The Director is hereby authorized to establish procedures to process determinations.

5. Any development project on a motion picture and/or television production lot that is industrially or commercially zoned and is enclosed by a minimum six foot high wall or other barrier (such as building walls, fences, topographical barrier, etc.) which separates the facility and the development from adjacent properties. However, all new office uses shall be directly related to motion picture and/or television production and shall not be rented or leased to other entities not directly related to motion picture and/or television production uses.

6. Adaptive Reuse Projects in the Downtown Project Area pursuant to Section 12.22 A.26.

7. **(Deleted by Ord. No. 188,420, Eff. 1/20/25, Oper. 1/27/25.)**

8. No restricted affordable unit shall be counted towards the dwelling unit or guest room thresholds described in Section 16.05 C.1(b). For purposes of this section, a restricted affordable unit is a unit or guest room subject to a recorded covenant or recorded regulatory agreement restricting rents or housing costs so that they do not exceed 30 percent of the maximum gross income of each income category, for households earning up to 120 percent of the area median income, for a period of at least 55 years for rental units, or at least 45 years for for-sale units, as determined by the Los Angeles Housing Department. **(Amended by Ord. No. 187,938, Eff. 8/19/23.)**

9. Projects in those specific plan areas, as determined by the Director, where similar project site planning regulations are established by the specific plan and significant project environmental impacts, if any, are mitigated by the measures imposed in the Project Compliance.

10. Any development project that includes nonresidential floor area in which 50 percent or more of the total floor area is dedicated to restricted affordable units shall be exempt from the threshold in Section 16.05 C.1.(a), provided the development project maintains or increases the number and square feet of preexisting restricted affordable units and creates, or results in an increase of, no more than 150,000 gross square feet of nonresidential floor area. **(Added by Ord. No. 187,938, Eff. 8/19/23.)**

11. A Housing Development that provides Restricted Affordable Units consistent with the affordability requirements set forth in Section 19.18 B.2.(b) of this Code, in lieu of the Linkage Fee that may otherwise be required pursuant to Section 19.18 of this Code. **(Added by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

E. **(This subsection intentionally left blank.)**

F. **(This subsection intentionally left blank.)**

G. **Procedure.** See Sec. 13B.2.4. (Project Review) of Chapter 1A of this Code.

H. **(This subsection intentionally left blank.)**

I. **Alternative Thresholds.** A different threshold from that indicated in Section 16.05 C. of this Code may be established within a Community Plan or Specific Plan, or portion thereof, when specifically stated in the plan text and only when the plan area contains one or more of the following:

1. A transportation impacted area;
2. An environmentally sensitive area;
3. An historically sensitive area; or
4. Any other area of special significance which is clearly identified as to its significance and the need for a different threshold level.

SEC. 16.10. GREEN BUILDING PROGRAM.

(Intentionally left blank.)

SEC. 16.11. GREEN BUILDING TEAM.

(Intentionally left blank.)

SEC. 16.50. DESIGN REVIEW BOARD PROCEDURES.

A. **Purpose and Objectives.** See Sec. 13B.4.3. (Project Compliance (with Design Review Board)) of Chapter 1A of this Code.

B. (This subsection intentionally left blank.)

C. (This subsection intentionally left blank.)

D. **Design Review Boards.** See Sec. 13A.1.11 (Design Review Board) and Sec. 13B.4.3 (Project Compliance (with Design Review Board)) of Chapter 1A of this Code.

E. **Design Review Procedure.** See Sec. 13B.4.3. (Project Compliance (with Design Review Board)) of Chapter 1A of this Code.

1. **Application.** All applications for design review shall be submitted to the Department of City Planning on a form supplied by the Department.

(a) If an applicant requests an optional preliminary design review, the following materials must be submitted in addition to any material required by applicable specific plans or ordinances: Conceptual drawings without finished details and plans and materials which include, but are not limited to the following:

- (1) Proposed site plan showing proposed improvements;
- (2) Building elevations;
- (3) General description of materials and colors to be used;
- (4) Proposed landscape plan;
- (5) Photographs of the site and surrounding properties;
- (6) Information on existing trees on the site and within 20 feet of the property; and
- (7) Additional information that demonstrates adherence to the specific plan design criteria.

(b) An application for a mandatory final review shall be deemed complete only if it includes, in addition to any material required in the applicable specific plan or ordinance, the following materials:

- (1) Drawings with finished details;
- (2) Environmental review clearance;
- (3) Results of technical review, if required;
- (4) Written narrative addressing specific plan design criteria and guidelines and a finding of the project's consistency with either the Specific Plan or an approved Project Exception;
- (5) Vicinity map of appropriate scale, indicating the location of the project site in relation to nearby access streets, significant physical features of the project, and other relevant issues affecting the project. Where possible, the map shall show the location of buildings on adjoining properties having a bearing on the project;
- (6) Color photographs of the site and surrounding area and buildings to clearly represent the context of the design;
- (7) Site plan of appropriate scale that clearly represents all the features of the site and significant design issues;
- (8) Plans of appropriate scale, including all significant items or floor levels necessary to clearly represent design intent;
- (9) Elevations of appropriate scale, including all sides of the item or building to clearly represent design intent;
- (10) Sections, as deemed necessary by the architect or designer, of appropriate scale to clearly represent design intent;
- (11) Either perspective drawings or model material sample board to be presented at the design review board

meeting;

(12) Sign plan, if applicable, indicating proposed sign(s) and all existing signs on the property;

(13) Landscape plans which shall include the approximate size, maturity and location of all plant materials, the scientific and common names of the plant materials, the proposed irrigation plan, and the estimated planting schedule. The plan shall specify the length of time required to attain plant maturity; and

(14) Mailing labels with the names of the owners of all properties abutting, across the street or alley from, or having a common corner with the subject property. Should these properties not be owner-occupied, mailing labels shall also be provided for the occupants.

2. Fees.

(a) The filing fee for processing an optional preliminary application shall be one-half of the fee for processing a design review application.

(b) The filing fee for processing an optional technical review requested by the applicant shall be as set forth in Section 19.09.

(c) The filing fee for processing a final design review application shall be as set forth in Section 19.01.

(d) The filing fee for processing an applicant's appeal from the Director's decision shall be the fee for an appeal from a specific plan design review decision as set forth in Section 19.01. The filing fee for processing an appeal by a person other than the applicant shall be as provided in Section 19.01 K.2.

(e) The filing fee for processing a modification to a design review determination, if requested by the applicant, shall be one-half of the fee for processing a final design review application.

SEC. 16.60. DEMOLITION OF HOUSING UNITS.

(Added by Ord. No. 188,481, Eff. 2/11/25, Oper. 2/11/25.)

A. Development Projects that Result in the Demolition of Housing Units.

1. **Purpose.** This subdivision enforces compliance with state law and offers protections related to the demolition of housing units that occurs as a result of Development Projects and extends these protections beyond their expiration of January 1, 2030 under state law.

2. **Definitions.** As used in this section the following words and phrases shall have the meanings specified below. Other terms used in this section shall have the meanings in Section 12.03 of this Code if defined there.

Affordable Housing Cost has the same meaning as defined in Section 50052.5 of the California Health and Safety Code.

Affordable Rent has the same meaning as defined in Section 50053 of the California Health and Safety Code.

Comparable Unit contains the same or greater number of existing bedrooms and bathrooms as the unit being replaced. Where one or more single family homes with four or more bedrooms are being replaced by a project that consists of two or more units, a Comparable Unit may have three bedrooms.

Equivalent Size means that the replacement units contain at least the same total number of bedrooms as the units being replaced.

3. **Approval of Housing Development Projects that Result in the Demolition of Housing Units.** Notwithstanding any law to the contrary, the City shall not approve any Housing Development Project that would require the demolition of occupied or vacant Protected Units, or that is located on a site where Protected Units were demolished in the previous five years, unless all of the following requirements are satisfied.

(a) **Replacement of Existing or Demolished Protected Units.** The Housing Development Project shall replace all existing Protected Units and Protected Units demolished on or after January 1, 2020 pursuant to the replacement requirements of California Government Code Section 65915(c)(3) and consistent with the requirements included in Los Angeles Municipal Code Section 16.60 A.3.(a), which are in addition to any requirements included in Chapter XV, Article 1 of this Code.

(1) **Income Requirements.** Units occupied on the date of application shall be replaced with units at an Affordable Rent or Affordable Housing Cost to, and occupied by, persons and families in the same or lower income category as those households in occupancy based upon the units and incomes of those households in

occupancy pursuant to California Government Code Section 65915(c)(3)(B)(i) inclusive of the following income categories: Low Income, Very Low Income, Extremely Low Income and Acutely Low Income. Units that have been demolished or vacated on or before the date of application shall be replaced with units at an Affordable Rent or Affordable Housing Cost based upon the highpoint in occupancy during the previous five years pursuant to California Government Code Section 65915(c)(3)(B)(ii).

(i) **Replacement When Incomes Are Not Known.** If the incomes of the individuals and households are not known, and unless otherwise demonstrated, the presumption in California Government Code Section 65915(c)(3)(B)(i) regarding Lower Income Households shall be inclusive of the percentage of Extremely Low Income, Very Low Income and Low Income Households in the same proportion as their share of all renter households within the City of Los Angeles, as determined by the General Manager of the Los Angeles Housing Department utilizing the most recently available data from the United States Department of Housing and Urban Development's Comprehensive Housing Affordability Strategy database or equivalent census data disaggregated by tenure and income category.

(ii) **Replacement of Rent or Price Controlled Units in Higher, Moderate, and Lower Opportunity Areas.** Notwithstanding Section 16.60 A.3(a)(1)(i) above, units subject to a form of rent or price control through a local government's valid exercise of its police power shall be replaced accordingly. In Higher Opportunity Areas and Moderate Opportunity Areas, units deemed or presumed to be occupied by persons or families above the lower income category shall be replaced with low income units. In Lower Opportunity Areas, units shall be replaced proportionate to the share of all lower income renter households within the City of Los Angeles described in Section 16.60 A.3(a)(1)(i) above.

(2) **Equivalent Size.** All replacement units must be Equivalent Size, and Development Projects shall contain at least the same total number of units and total aggregate number of bedrooms as the Protected Units being replaced. Except when a tenant is exercising the right to return as defined in Section 16.60 A.3.(b)(4), new units do not have to match bedroom configurations of the demolished units.

(3) **Relationship to Other Affordability Requirements.** Any Protected Units replaced under this subparagraph shall be considered in determining whether the Housing Development Project satisfies the requirements of any state, local or federal requirement that requires, as a condition of the development of residential rental units, that the project provide a certain percentage of residential rental units affordable to, and occupied by, households with incomes that do not exceed the limits for moderate-income, lower income, very low income, extremely low income, or acutely low income households, as specified in Sections 50063.5, 50079.5, 50093, 50105, and 50106 of the California Health and Safety Code.

(4) **Exceptions.** Notwithstanding the requirements above, the replacement requirements of this section shall not apply to the following:

(i) A Housing Development Project that consists of a single residential unit on a site with a single Protected Unit.

(ii) A Housing Development Project that complies with the requirements of Section 16.60 A.5.(a) of this Code.

(5) **Procedures.** An owner of a Housing Development Project subject to the above requirements must complete an application for a Replacement Unit Determination with the Los Angeles Housing Department (LAHD). Information from the owner and existing tenant(s), as well as information gathered by LAHD, will be used to determine whether any Protected Units exist.

(b) **Existing Occupant Protections.**

(1) **Right to Remain.** An existing occupant shall be allowed to occupy their unit until six months before the start of construction activities with proper notice, subject to Chapter 16 (beginning with Section 7260) of Division 7 of Title 1 of the California Government Code. The project applicant shall give existing occupants written notice of the planned demolition, the date the occupant must vacate, and the occupant's rights under this Section 16.60. Notice shall be provided at least six months before the date the occupant must vacate, or more than six months before if required under applicable state or local law.

(2) **Right to Return if Demolition Does Not Proceed.** An existing occupant that is required to leave their unit shall be allowed to return to the same rental unit or a Comparable Unit at their prior rental rate if the demolition does not move forward and the property is returned to the rental market. This right to return is in addition to any applicable requirement in Los Angeles Municipal Code Sections 151.26 (Ellis Act Provisions - Regulation of Property on Re-Offer for Rent or Lease After Withdrawal) or 151.27 (Ellis Act Provisions - Re-Rental Rights of Displaced Tenants) of Article 1 of Chapter XV for properties subject to the Rent Stabilization Ordinance.

(3) **Right to Relocation.** For occupants who are not Lower Income Households, relocation benefits shall follow the amounts and processes, as applicable, in Los Angeles Municipal Code Sections 151.09 G. (Rent

Stabilization Ordinance) and 165.06 A. (Just Cause Ordinance), California Government Code Section 65863.7 (Mobile Home Closures), or for publicly funded projects the greater amount under either local law or under Chapter 16 (commencing with Section 7260) of Division 7 of Title 1 of the California Government Code.

Consistent with California Government Code Section 66300.6(b)(4)(A), occupants of Lower Income Households displaced from their residence by a Development Project shall be entitled to, and the owner shall pay, relocation benefits that equal the relocation benefits required to be paid by public entities pursuant to Chapter 16 (commencing with Section 7260) of Division 7 of Title 1 of the California Government Code and any implementing regulations.

The owner shall comply with this requirement by following sub-subparagraphs (i), (ii) or (iii) below, and complying with all of the requirements in sub-subparagraphs (iv) - (vii):

(i) **Comparable Replacement Unit.** Before or at the time of serving a notice to terminate tenancy, or if no notice is served, before or when the occupant is displaced by a Development Project, provide a copy of a written lease signed by the occupant to LAHD, documenting that the existing occupant has access to a comparable replacement unit (as the term is used in California Government Code Section 7260) that is permanently affordable, consistent with the following requirements:

a. The comparable replacement unit is consistent with all standards in Chapter 16 (commencing with Section 7260) of Division 7 of Title 1 of the California Government Code, and any implementing regulations;

b. The rent is permanently affordable to the occupant based on the income level of the occupant household;

c. If the occupant is also entitled to relocation benefits under Sections 151.09 (Evictions) or Section 165.06 (Relocation Assistance) of this Code, the owner shall comply with the respective processes and amounts in these sections;

d. Any requirement that an occupant make an advance payment to the owner, such as first and last month's rent or a security deposit, must be in accordance with all laws. An owner must pay the relocation benefit to the occupant before the occupant's advance payment to the owner is due;

e. LAHD reserves the right to review the comparable replacement unit and the lease for compliance with Chapter 16 (commencing with Section 7260) of Division 7 of Title 1 of the California Government Code and any implementing regulations. LAHD may require the owner to provide additional proof that the occupant executed the lease at the comparable replacement unit; and

f. In the event the occupant is unable to move into the comparable replacement unit or LAHD determines that the unit is not a comparable replacement unit consistent with Chapter 16 (commencing with Section 7260) of Division 7 of Title 1 of the California Government Code and any implementing regulations, the owner shall pay relocation benefits to the occupant under Section 16.60 A.3.(b)(3)(ii) or (iii), below.

(ii) **Standardized Payment.** Pay relocation benefits to the existing occupant(s) within 15 days after service of a notice to terminate tenancy, or, if no notice is served, then prior to or at the time the occupant(s) are displaced, according to the following requirements;

a. Pay an amount equal to the difference between the Section 8 Department Voucher Payment Standard and the rent affordable to that occupant's income level per Section 50053 of the California Health and Safety Code, multiplied by 42 months, plus estimated incidental moving costs;

b. The amount for the Section 8 Department Voucher Payment Standard, the determination of the affordable rent per Section 50053 of the California Health and Safety Code, and the estimated incidental moving costs shall be determined upon the adoption of this ordinance, and then adjusted annually according to the Consumer Price Index-All Urban Consumers. For the year beginning July 1, 2025, and all subsequent years, the fee amounts shall be adjusted on an annual basis pursuant to the formula set forth in Section 151.06 D. (Automatic Adjustments) of this Code. The adjusted amount shall be rounded to the nearest \$50 increment. LAHD shall publish the amount annually; and

c. The relocation benefits shall be paid in accordance with the process and timing requirements in Section 151.09 G.1.(a) and (b), G.2., and G.5. of this Code.

(iii) **Individualized Relocation Process Consistent with State Relocation Law.** Before or when the owner serves a notice to terminate tenancy, or if no notice is served, then before or when the occupant is

displaced by a project, the owner shall be subject to an individualized relocation process to determine and pay the amount of relocation equal to the amount paid by public entities under California Government Code Sections 7260-7277. The owner shall:

- a. At the time the Replacement Unit Determination is filed or at the termination of tenancy, whichever comes first, submit all relocation documents required by LAHD for publicly-financed projects, including but not limited to: a relocation plan; a resume and qualifications of the required relocation consultant; a completed relocation tenant rent roll; and a completed project summary assessment;
 - b. Before filing with LAHD a Notice of Intent to Withdraw or Declaration of Intent to Evict for the purpose of demolition, obtain LAHD's approval of all required relocation documents. If no LAHD approval is obtained, then the owner may file the Notice or Declaration, but, for relocation benefit purposes, must comply with either Sub-subparagraphs (3)(i) or (3)(ii), above, instead of (3)(iii).
 - c. Obtain LAHD's approval of the calculated relocation payment once a tenant has identified replacement housing; and
 - d. Provide to LAHD evidence showing the tenant was relocated to the identified replacement housing and the owner has paid the tenant the full relocation payment.
- (iv) For determining whether a tenant is displaced by a Development Project, the following actions shall constitute evidence of development if:
- a. The Owner applies for an entitlement or building permit for a Development Project requiring demolition of an existing rental unit and the tenancy is or will be terminated as a result;
 - b. The Owner applies for a Replacement Unit Determination and the tenancy is or will be terminated as a result; or
 - c. The Owner serves a notice or otherwise seeks to terminate a tenancy or recover possession of a rental unit based on any of the reasons in Los Angeles Municipal Code Sections 47.08 (Tenant Relocation Assistance Where Mobilehome Parks Are Changed to a Different Use), 47.09 (Mobilehome Park Closure Impact Report), 151.09 A.10. (Evictions), 165.03 I.1., or 165.03 I.2. (Just Cause Evictions), requiring payment of relocation assistance and that includes evidence of intent to develop the property.
- (v) Nothing in this subsection relieves the owner from the obligation to provide relocation assistance under City administrative agency action or any other provision of local, state or federal law. If an occupant has the right to monetary relocation benefits under City administrative agency action or any provision of local, state or federal law, then those benefits shall operate as a credit against the highest relocation benefits required to be paid to the tenant under this section. The occupant has the right to the highest relocation benefit provided by local, state, or federal law.
- (vi) No demolition permit shall be issued unless LAHD provides a written clearance to the Department of Building and Safety stating that the owner has complied with the relocation assistance requirements of this section. The owner shall provide proof of compliance with the relocation assistance requirements of this section on a form provided by LAHD. The form shall be accompanied by a fee of \$45 per unit. The fee shall be adjusted annually based on the Consumer Price Index-All Urban Consumers for the Los Angeles-Long Beach-Anaheim metropolitan statistical area, or if such index ceases to be published, by an equivalent index chosen by the Director of LAHD, and pursuant to Section 151.06 D. of this Code. LAHD shall publish the fee annually.
- (vii) If after the effective date of this ordinance an owner of residential real property has exercised its rights under California Government Code Section 7060, et seq. to withdraw the property from residential rent or lease or exercised its rights under Los Angeles Municipal Code Section 165.03 I.1. or 165.03 I.2. (Just Cause Evictions), with no stated intent to redevelop the property in its Notice of Intent to Withdraw, paid no property relocation payments consistent with Section 16.60 A.3.(b)(3)(i), (ii) or (iii), above, to the occupants of the property, and within five years of submitting the Notice of Intent to Withdraw, the owner seeks to develop the property as demonstrated by actions described in Section 16.60 A.3.(b)(3)(iv), above, then the following shall apply:
- a. As a condition of the clearance of demolition or new construction permits, the applicant or the applicant's successor-in-interest shall be required to pay to LAHD a fine equal to three times the relocation benefit amount that would have been paid under Section 16.60 A.3.(b)(3)(ii) or (iii), above, where the income of the former occupants is known. Where income of the former occupants is not known, the applicant shall be required to pay \$250,000 per displaced occupant household.

The LAHD shall not clear a demolition or new construction permit until the applicant complies with this section. The withholding of permits shall not apply to demolition permits or approvals that are necessary to comply with a Department of Building and Safety, LAHD, or other government order.

Notice Process. When an owner seeks a demolition or new construction permit clearance from LAHD at a property where the owner may have misrepresented its intention to develop the property in its Notice of Intent to Withdraw, and it has not paid relocation benefits to tenants consistent with having displaced them for development, LAHD will provide written notice to the owner that the LAHD's clearance of the permits is conditioned on payment of the fine. The notice shall include the address of the property at issue, a copy of the owner's Notice of Intent to Withdraw, the amount of the potential fine, and the process to appeal the imposition of the fine.

Appeal Process. The notice shall include a right to file an appeal within 30 calendar days of the notice of the condition to pay the fine which shall include the right to an administrative hearing.

The appellant shall pay an administrative fee for the costs of the appeal in an amount equal to the amount for appeals under Section 165.06 C. (Relocation Assistance) of this Code.

After the hearing officer issues a decision in the administrative hearing, the owner may seek judicial review of the determination pursuant to California Code of Civil Procedure Section 1094.5.

b. Any Lower Income household displaced as a result of a tenancy termination for the purpose of property development under Los Angeles Municipal Code Sections 47.08 (Tenant Relocation Assistance Where Mobilehome Parks Are Changed to a Different Use) or 47.09 (Mobilehome Park Closure Impact Report), 151.09 A.10. (Evictions), or 165.03 I.1. or 165.03 I.2. (Just Cause Evictions), shall be entitled to relocation benefits under Section 16.60 A.3.(b)(3)(ii), above. The payment shall be in accordance with Section 151.09 G.1. - 2. (Evictions) of this Code.

c. A private right of action under Section 16.60 A.7., below, for causes of action arising out of Section 16.60 A.3.(b)(3)(vii), brought by an occupant in possession of the unit when the Notice of Intent to Withdraw was filed shall accrue when the owner files for an entitlement, building permit, or Replacement Unit Determination to construct a Development Project.

(4) **Right to Return.** The owner shall provide the following to the existing occupants of any Protected Units that are lower income households and agree to this requirement on a form provided by LAHD:

(i) A right of first refusal for a deed-restricted Comparable Unit available in the new housing development affordable to the household at their prior rental rate or an Affordable Rent or an Affordable Housing Cost, whichever is lower. Where the prior rental rate is used to establish the initial rent, subsequent rent increases for such tenants shall not exceed the allowable rent increase for rent stabilized units under Chapter XV (Rent Stabilization Ordinance) of this Code, and this limitation shall be included in the covenant recorded for the affordable replacement unit. This right of first refusal requirement shall not apply to any of the following:

a. A Development Project that consists of a single residential unit located on a site where a single Protected Unit is being demolished;

b. Units in a housing development in which 100 percent of the units, exclusive of a manager's unit or units, are reserved for Lower Income Households, except when Protected Units are occupied by households who qualify for residence in the new development and for whom providing a Comparable Unit would not be precluded due to unit size limitations or other requirements of any funding source of the housing development, as determined by the Los Angeles Housing Department; or

c. A Development Project that meets all of the criteria in 16.60 A.4.(a)(1).

(5) **Additional Tenant Notification Obligations.**

(i) A project applicant shall notify existing tenants in writing of all their legal rights under Section 16.60 A.3.(b) of this Code. Information regarding the tenant's eligibility for these rights, rent guidelines for the new unit, and any procedures the tenant will need to follow to exercise these rights shall be provided in writing to the tenant in accordance with any and all requirements and procedures of LAHD's Replacement Unit Determination (RUD). The applicant shall provide and maintain accurate contact information to tenants for purposes of communicating throughout the construction and lease up of the Development Project.

(ii) A project applicant or their predecessor-in-interest shall provide written notice to any tenant who is

exercising their right to return of major milestones in the development process, including but not limited to: (1) the start of construction; (2) on at least a bi-annual basis provide updates on the anticipated date of when occupancy would be opened; (3) at least 180, 90, 30 and 15 days in advance of the anticipated availability of the unit pursuant to the issuance of the Temporary or Final Certificate of Occupancy; (4) when the Temporary Certificate of Occupancy is issued; and (5) when the Final Certificate of Occupancy is issued. Failure to inform tenants of the project's major milestones may result in commensurate additional time provided to the tenant to return to the replacement unit. This subsection shall not preclude tenants from contacting the applicant or their predecessor-in-interest to inquire about progress throughout construction and lease up of the Development Project.

(iii) Where a tenant household has a right of return pursuant to Section 16.60 A.3.(b) of this Code, the project applicant or their predecessor-in-interest shall notify the tenant household of this right. The notice must comply with the applicable standards set forth by LAHD and include the rent guidelines for the project and any procedures the tenant must follow to claim a new unit. Where LAHD has created a standard notice, the project applicant must provide that standard notice to tenant households.

(iv) Within 30 days of receipt of the notice that the Temporary or Final Certificate of Occupancy has been issued and the replacement unit is available, a tenant household must notify the owner if it wishes to reoccupy the replacement unit or room. The owner must hold the unit or room vacant at no cost to the tenant for 60 days from the date the tenant household's written notice of its intent to reoccupy the rental unit is received.

(v) Where a tenant household has a right to remain pursuant to Section 16.60 A.3.(b) of this Code the project applicant or their predecessor-in-interest shall provide written notice to existing occupants of the planned demolition, the date they must vacate, and their rights under this section.

(vi) A project applicant who experiences unforeseen delays in issuance of a Temporary Certificate of Occupancy or Certificate of Occupancy impacting the timeline of their construction milestone updates shall not be subject to the Private Right of Action described in Section 16.60 A.7., so long as they can demonstrate compliance with the tenant notification obligations in Section 16.60 A.3.(b)(5).

4. Approval of Non-Housing Development Projects that Result in the Demolition of Housing Units until January 1, 2030. Notwithstanding any other law until January 1, 2030, the City shall not approve any Development Project that is not a Housing Development Project and will require the demolition of occupied or vacant Protected Units, or is located on a site where Protected Units were demolished in the previous five years, unless all the following requirements are satisfied.

(a) **Replacement of Existing or Demolished Protected Units.** The project shall replace all existing Protected Units and Protected Units demolished on or after January 1, 2020, pursuant to the replacement requirements of California Government Code Section 65915(c)(3) and Section 16.60 A.3.(a) of this Code, consistent with the following requirements:

(1) The Development Project may not include an industrial use nor be located on a site that is entirely within a zone, adopted prior to January 1, 2022, that does not allow residential uses and the Protected Units that are or were on the project site are or were nonconforming uses;

(2) At the time of permit issuance, a Development Project applicant must sign an affidavit for the Los Angeles Department of Building and Safety to ensure the replacement housing will be developed prior to or concurrently to the Development Project. "Developed prior" means that a Certificate of Occupancy or Temporary Certificate of Occupancy for the replacement housing must be obtained prior to issuance of a Certificate of Occupancy or Temporary Certificate of Occupancy for the nonresidential Development Project;

(3) The required replacement housing may be located on a site other than the project site but shall be located within the City of Los Angeles, with a preference for sites within close proximity;

(4) The project applicant may contract with another entity to develop the required replacement housing units, except that the replacement housing units shall not fulfill the affordability requirements of any other development pursuant to another law;

(5) A commercial developer seeking a commercial density bonus may propose providing restricted affordable units through an agreement with a housing developer for partnered housing. The agreement must be approved by the City pursuant to California Government Code Section 65915.7; and

(6) Notwithstanding the requirement that an Accessory Dwelling Unit be located on a lot with an existing or proposed primary residence, the replacement housing may be established through creation of an Accessory Dwelling Unit with the primary nonresidential use on the parcel being able to be used in place of a primary residence.

(b) **Existing Occupant Protections.** The Development Project meets the occupant protections described in Los

(c) **Sunset Provisions.** The requirements of this subsection shall not apply to projects approved after January 1, 2030, except for those Development Projects that submitted a preliminary application pursuant to Section 65941.1 of the California Government Code before January 1, 2030. This subsection shall remain in effect until January 1, 2034, and as of that date is repealed.

5. **No Net Loss of Dwelling Units.** Notwithstanding any other law and notwithstanding density limitations on a site, no permit shall be issued for a Housing Development Project that will require the demolition of one or more residential dwelling units irrespective of Protected Unit status, unless the project will create at least as many residential dwelling units as those demolished. In addition, the Housing Development Project shall include at least as many residential dwelling units as the greatest number of residential dwelling units that existed on the project site within the last five years, except for the following:

(a) LAHD may approve an off-site replacement plan for buildings with covenanted affordable housing units that request approval to build a smaller number of units on the site in the following circumstances:

(1) The proposed construction of the new affordable units cannot replace all units on site due to physical changes in unit type, such as replacing Single Room Occupancy or Residential Hotel guest rooms with studio dwelling units; or

(2) The proposed construction of the new affordable housing units cannot replace all units on site and meet the City's required Accessible Housing Program standard;

(3) Off-site replacement units approved by LAHD pursuant to this subparagraph shall be subject to the following requirements:

(i) Subject to LAHD approval, the off-site replacement housing units will be of Equivalent Size or larger and have equivalent amenities as the on-site replacement housing units, and will be covenanted at the same affordability levels and for at least the same length of time as the on-site replacement housing; and

(ii) Subject to LAHD approval, the off-site replacement housing units will be constructed within a three-mile radius of the on-site replacement housing units.

6. **Withholding or Revoking of Demolition Permit Approval for Illegal Tenant Harassment or Eviction.**

(a) **Thresholds for Placement in Anti-Harassment Violators Database.** LAHD shall place a beneficial owner onto the LAHD Anti-Harassment Violators Database when:

(1) A final judgment has been issued against the beneficial owner within the last five years, which does not precede the operative date of this Section 16.60 A.6., for unlawful tenant harassment under the City's Tenant Anti-Harassment Ordinance, known as "TAHO", as set forth under Article 5.3 in Chapter IV of the Los Angeles Municipal Code, or similar actions within City limits under California Civil Code Sections 1940.2, 1942.4, or 1942.5; or

(2) The City has either (A) issued three final citations for TAHO violations at properties in the City against the beneficial owner within the last ten years, which do not precede the operative date of this Section 16.60 A.6., for which all appellate remedies have expired or (B) in zones where there is a heightened risk of displacement of lower income tenants as determined by the City's Displacement Assessment Risk Tool, the City has issued one final citation for TAHO violations at a property against the beneficial owner within the last five years, which do not precede the operative date of this Section 16.60 A.6., for which all appellate remedies have expired; or

(3) A final judgment has been issued against the beneficial owner within the last five years, which does not precede the operative date of this Section 16.60 A.6., for: wrongfully or illegally evicting a tenant within City limits, or causing a tenant to involuntarily quit within City limits in violation of local or state law.

(4) As used in Section 16.60 A.6., a "beneficial owner" includes any of the following:

(i) A natural person with a recorded ownership interest in the real property where the tenant harassment takes place;

(ii) An ownership entity, including a corporation, limited liability company, limited partnership, partnership, or trust with a recorded interest in the real property where the tenant harassment takes place;

(iii) An entity or natural person that meets any of the following criteria:

a. has an "ownership interest" or "ownership or control of ownership interest" as these terms are defined in Section 1010.380(d)(2)(i) - (ii) (Reports of Beneficial Ownership Information) of Title

31 of the Code of Federal Regulations, in an entity described in Sub-subparagraph (4)(i) or (4)(ii) above;

b. exercises “substantial control”, as the term is defined in Section 1010.380(d)(1) (Reports of Beneficial Ownership Information) of Title 31 of the Code of Federal Regulations, over an entity described in Sub-subparagraph (4)(i) or (4)(ii) above; or

c. receives substantial economic benefits from the assets of an entity described in Sub-subparagraph (4)(i) or (4)(ii) above.

(iv) A beneficial owner for purposes of the above excludes the following:

a. A minor child;

b. A person acting solely as an employee of an ownership entity and whose control over, or economic benefits from, that ownership entity derives solely from the employment status of the person;

c. A person whose only interest in an ownership entity is a future interest through a right of inheritance; or

d. A creditor of an ownership entity, unless the creditor meets the requirements specified in Sub-subparagraph (i) above.

(b) **Notice of Determination and Right to Staff Review.** After LAHD places an individual or entity into the LAHD Anti-Harassment Violators Database, LAHD shall send a Notice of Determination to the known beneficial owner(s) of the property, if different from the project applicant or permittee, as shown on the last equalized assessment roll, and to any person holding a deed of trust, mortgage, or other security interest in the property as revealed by a title search with respect to the property.

The Notice of Determination shall state that the LAHD General Manager, or designee, has determined based on criteria in Section 16.60 A.6.(a) that the beneficial owner should be placed in the LAHD Anti-Harassment Violators Database, the basis for that determination, and the potential consequences under this ordinance. This section does not create any new appeal rights under the Administrative Citation Enforcement (ACE) Program. Within 14 days of the date of this notice, the beneficial owner(s), subject to being placed in the database, shall have a right to request an LAHD staff level review of this determination. At the review, the beneficial owner may submit any evidence relevant to this determination.

(c) **Review of Determination.** The LAHD staff review shall be set on a date no earlier than 20 days after the date of the Notice of Determination, and the review shall be conducted no later than 60 days after the date of the Notice of Determination. At the review, the beneficial owner may submit any evidence relevant to this determination regarding the correct identity of the violator and the correct number of violations. The review shall be limited to whether the beneficial owner meets one of the stated criteria set forth in Section 16.60 A.6.(a) above.

Within 30 days of the review, LAHD shall provide a written LAHD Notice of Outcome notifying the beneficial owner of the outcome of the review. If the determination is upheld in review, the beneficial owner may seek judicial review by writ of mandamus.

(d) **Consequences of Placement in LAHD’s Anti-Harassment Violators Database.** When there has been a final determination to place a beneficial owner on the LAHD Anti-Harassment Violators Database, LAHD shall notify in writing the Superintendent of Building and Safety and the Director of Planning.

If any owner, applicant, or permittee, seeking a demolition permit or approval that is subject to Section 16.60 for a Development Project involving new construction, major renovations, or additions, is on the LAHD Anti-Harassment Violators Database, the Superintendent of Building and Safety shall withhold or revoke the issuance of any demolition permits for five years and the Director of Planning and/or Superintendent of Building and Safety shall withhold the issuance of any approval for five years unless otherwise prohibited by law. Where the City has denied or revoked a demolition permit or approval to any applicant under this paragraph (d), the denial or revocation for a five year term for the subject property shall apply to any new owner of the property, unless the new owner is developing a publicly-financed affordable housing project on the same site where more than 50 percent of the units are affordable, except for manager’s unit(s).

Demolition permits or approvals that are necessary to comply with a Department of Building and Safety, LAHD, or other government order shall not be withheld or revoked under this Section.

The five-year hold period shall commence on the date that a court’s final judgment is entered or the City’s citation for a TAHO violation is final and no further judicial remedies are available.

If at the end of the five-year hold period, no new citations have been issued to and no court findings have been made

against the beneficial owner(s), the beneficial owner(s) or subsequent owners shall be removed from the LAHD Anti-Harassment Violators database. However, if during the five-year period, there is a new citation or court-entered judgment against the same beneficial owner, the five-year ban shall be extended from the date that the most recent citation or court-entered judgment becomes final and no further appeals are available. No citation used to place a beneficial owner into the database may be used against the beneficial owner more than once.

Notwithstanding any other law, any action by the Department of Building and Safety or the Department of City Planning resulting from any of the provisions of this section, including demolition permit revocation and withholding of an approval shall not be further appealable.

(e) **Operative Date and Subsequent Ordinance.** This Section 16.60 A.6. shall become operative after LAHD establishes a determination and review process and publishes a notice of its effective date on the LAHD website and at least once in a newspaper of a general circulation in the City of Los Angeles.

If the City adopts a subsequent ordinance in conflict with the procedures in this Section 16.60 A.6. relating to the withholding or revoking of a demolition permit, this Subparagraph shall be of no further force and effect.

7. Private Right of Action; Civil Penalties.

(a) An aggrieved tenant under Section 16.60 of this Code, or any person, organization, or entity who willfully and adequately represent the interests of an aggrieved tenant(s) under this Section 16.60, may institute civil proceedings as provided by law, against any owner, or their successor-in-interest, for violating any of the provisions of this Section 16.60 and any person who aids, facilitates, or incites another to violate the provisions of this Section 16.60, such as submitting false information in response to the requirements of this section.

(b) The prevailing tenant may be awarded compensatory damages. A court may impose civil penalties up to \$10,000 per violation of provisions of the covenant described in this Section 16.60 depending upon the severity of that violation, tenant relocation, or other appropriate relief, as adjudged by the court. Treble damages may also be awarded for willful violations. If a tenant prevailing under this article is 65 years or older or disabled, the court may impose additional civil penalties up to \$5,000 per violation depending upon the severity of the violation of the covenants as described in this Section 16.60. The prevailing tenant shall be awarded reasonable attorneys' fees and costs.

(c) Any owner or their agent violating any of the provisions of Section 16.60, may be enjoined therefrom by a court of competent jurisdiction.

(d) The right to bring a civil action under Section 16.60 shall extend to current tenants at a property, to former tenants at a property who were displaced by violations of Section 16.60, and to the City.

(e) The remedies in this paragraph are not exclusive nor do they preclude any tenant or the City from seeking any other legal or equitable remedies, penalties and punitive damages, as provided by law.

(f) Any agreement, whether written or oral, waiving any of the provisions contained in this Section 16.60 shall be void as contrary to public policy.

8. Relationship to Other Zoning Provisions and Laws. The provisions of Section 16.60 shall apply citywide except for Historic Preservation Overlay Zones (HPOZs). Specific Plans, Supplemental Use Districts, or other overlays may establish additional replacement requirements and/or additional occupant protections greater than those provided in Section 16.60 A., in which case, the greater replacement requirements and occupant protections shall be used. This section is intended to comply with the minimum requirements of California Government Code Section 66300.6. If at any time this section does not meet the minimum requirements of California Government Code Section 66300.6, the greater replacement requirements and occupant protections shall be used. The Director of Planning may prepare Implementation Memoranda, Technical Bulletins and/or User Guides for the requirements set forth in California Government Code Section 66300.6, for the purpose of providing additional information pertaining to this section and meeting minimum requirements.

SEC. 16.61. RESTRICTED AFFORDABLE UNITS.

(Added by Ord. No. 188,481, Eff. 2/11/25, Oper. 2/11/25.)

A. Length of Affordability.

1. A Restricted Affordable Unit is subject to this section and must be restricted by a covenant acceptable to the Los Angeles Housing Department recorded with the Los Angeles County Recorder, guaranteeing that the occupancy restrictions will be observed for at least 99 years from the issuance of the Certificate of Occupancy except for:

(a) A development for which public subsidies are tied to a specified covenant period, as determined by the Los Angeles Housing Department, unless the project applicant voluntarily agrees to a covenant period of at least 99 years;

(b) For sale units, which must be consistent with the for-sale requirements of California Government Code Section

(c) Residential units for Lower Income Students, Transitional Foster Youth, Disabled Veterans, and/or Homeless Persons, shall be provided at affordability levels as determined in Los Angeles Municipal Code Section 12.22 A.37. for at least 55 years from the issuance of the Certificate of Occupancy or a longer period of time if required by the construction or mortgage financing assistance program, mortgage assistance program, or rental subsidy program;

(d) If a lesser term is required by state or federal law, Chapter I of this Code or as a condition of approval, that term shall be no less than 55 years.

B. Requirements Regarding Unit Design, Unit Mix, Unit Size, Quality and Amenities, Access to, and Distribution of Affordable Units in Mixed-Income Developments. The Los Angeles Housing Department shall have the authority to establish and administer requirements applicable to all Restricted Affordable Units in mixed-income developments regarding the unit mix, unit size, quality and amenities, access to and distribution of affordable housing units in mixed-income Development Projects, to ensure compliance with fair housing law and any other applicable requirements, including but not limited to requirements from funding sources. The requirements shall be enforced through an approval by LAHD before permit issuance. The requirements shall be established in a set of Fair Housing Requirements for Affordable Housing created by the Los Angeles Housing Department and the Department of City Planning, and adopted by resolution by the City Planning Commission. If the City Planning Commission fails to adopt these requirements by resolution, the requirements may be presented to the City Council for their consideration and adoption. LAHD shall have the authority to interpret these requirements to best implement their goals.

1. Amendments to the Fair Housing Requirements for Affordable Housing shall be approved by the City Planning Commission, pursuant to the procedures in Section. 13B.1.5 (Guidelines or Standards Adoption/Amendment) of Chapter 1A of this Code.

2. The Director of Planning and General Manager of LAHD may prepare Implementation Memoranda, Technical Bulletins and/or User Guides for the purpose of providing additional information pertaining to this Subsection and maintaining consistency with Chapter 12, commencing with Section 66300 of the California Government Code (Housing Crisis Act of 2019).

C. Allocation of Restricted Affordable Units. Restricted Affordable Units shall be subject to the following:

1. **Affirmative Marketing and Fair Housing Outreach.** Sale or lease of the Restricted Affordable Units shall follow the affirmative marketing and outreach requirements of the Los Angeles Housing Department (LAHD), as outlined in a deed restriction drafted by LAHD and filed with Los Angeles County Recorder.

2. **Affordable and Accessible Housing Registry.** All Restricted Affordable Units shall be registered to the extent feasible on the Affordable and Accessible Housing Registry managed by LAHD, or any existing equivalent listing, when available for rent; and

3. **Priority Populations.** To the extent practical and consistent with any applicable local, state and federal law, and pursuant to any locally adopted guidelines, the Affirmative Marketing and Fair Housing Outreach provisions in subdivision 1. and the Affordable and Accessible Housing Registry in subdivision 2. above, as well as any other City Planning or LAHD administrative procedure, should attempt to prioritize those populations with the greatest housing needs that have been displaced by government-related actions. This may include, but not be limited to:

(a) Any person or household who has been displaced through a withdrawal of units pursuant to the Ellis Act and Sections 151.22 to 151.28 (Ellis Act Provisions) of this Code.

(b) A lower income person or household subject to a rent increase related to conversion to market-rate housing due to termination of a public funding subsidy contract, mortgage prepayment, or expiring use restrictions based on land use entitlement concessions; or

(c) A person or household displaced due to a code enforcement order, including those affected by a natural disaster that resulted in their residential unit being rendered uninhabitable.

D. Private Right of Action; Civil Penalties.

1. A covenant acceptable to the Los Angeles Housing Department shall be recorded guaranteeing compliance with the requirements of Section 16.61.

2. The covenant shall provide a private right of enforcement by the City and any aggrieved current or former tenant or tenants of any building to which a covenant and agreement applies. The aggrieved current or former tenant(s) may institute civil proceedings as provided by law, against any owner, or their successor-in-interest, for violating any of the provisions of the covenant as described in this Section 16.61 and any person who aids, facilitates, or incites another to violate any of the provisions of the covenant described in this Section 16.61, such as submitting false information to the City in response to the requirements of this section.

3. The prevailing tenant may be awarded compensatory or punitive damages. A court may impose civil penalties up to

\$10,000 per violation of provisions of the covenant described in this Section 16.61 depending upon the severity of that violation, tenant relocation, or other appropriate relief, as adjudged by the court. Treble damages may also be awarded for willful violations. If a prevailing tenant is 65 years or older or disabled, the court may impose additional civil penalties up to \$5,000 per violation depending upon the severity of the violation of the covenant as described in this Section 16.61. The prevailing tenant shall be awarded reasonable attorney's fees and costs.

4. Any owner or their agents violating any of the provisions of the covenant as described in this Section 16.61, may be enjoined therefrom by a court of competent jurisdiction.

5. The remedies provided by this Section 16.61 are in addition to any other legal or equitable remedies and are not intended to be exclusive, nor do they preclude any tenant or the City from seeking any other remedies, penalties and punitive damages, as provided by law.

6. Any agreement, whether written or oral, waiving any of the provisions contained in Section 16.61 of this Code shall be void as contrary to public policy.

E. Relationship to Other Zoning Provisions. The provisions of Section 16.61 shall apply citywide except HPOZs. Specific Plans, Supplemental Use Districts, or other overlays may establish longer covenant lengths, requirements for unit design, mix, etc. and/or additional allocation requirements greater than those provided in Section 16.61, in which case the greater covenant length, requirements for unit design, mix, etc. and allocation requirements shall be used.

SEC. 16.70. HOUSING ELEMENT SITES AND MINIMUM DENSITY.

(Added by Ord. No. 188,479, Eff. 2/11/25, Oper. 2/11/25. See Resolution Eff. 6/18/25.)

A. Purpose. This section is intended to implement state housing element law requirements for sites identified in the most recent Housing Element of the General Plan and its associated rezoning program. These regulations shall apply to the Inventory of Housing Element Sites, Prior Housing Element Sites and Lower Income Rezoning Housing Element Sites.

B. Definitions. For purposes of this section the following words and phrases shall have the meanings specified below. Other terms used in this section shall have the meanings in Section 12.03 of this Code if defined there.

1. **Housing Element Sites.** Housing Element Sites includes the sites listed on the City's inventory of land suitable for residential development pursuant to paragraph (3) of subdivision (a) of the California Government Code Section 65583, any candidate sites for rezoning to address a shortfall, until those candidate sites are replaced through adoption of a rezoning program adopted by the City Council to implement the City's program to rezone for adequate sites pursuant to paragraph (1) of subdivision (c) of the California Government Code Section 65583, and any sites rezoned through such program.

2. **Lower Income Households.** Lower Income Households has the same meaning as defined in California Health and Safety Code Section 50079.5.

3. **Lower Income Rezoning Housing Element Sites.** Sites that were rezoned as part of a rezoning program to meet the Housing Element need for very low- and low-income households allocated pursuant to California Government Code Section 65584, and which comply with the requirements of California Government Code Section 65583.2(h).

4. **Ministerial Approval.** An administrative review process to approve a "use by right" as that phrase is defined in California Government Code Section 65583.2(i).

5. **Prior Housing Element Sites.** Non-vacant Housing Element Sites that were identified in the prior Housing Element and vacant Housing Element Sites that were identified in the prior two Housing Elements, and listed in Column O of Appendix 4.1 of the current 2021-2029 Housing Element.

C. Map and Inventory of Housing Element Sites.

1. The Housing Element Sites shall be shown on a map, titled "Inventory of Housing Element Sites Map" prepared by the Planning Department and adopted by the City Council pursuant to Division 1.5 of Article 1 of Chapter 1A of this Code.

2. The Planning Department shall also maintain a list of the Housing Element Sites included on the Housing Element Sites Map, referred to as the "Inventory of Housing Element Sites", on the City's Zoning Information Mapping and Access System (ZIMAS).

3. The inventory of the Lower Income Rezoning Housing Element Sites established by City Council Resolution shall be submitted to the state each year as part of the Housing Element Annual Progress Report and identified in a public mapping system including the Zoning Information Mapping and Access System (ZIMAS).

D. Requirements for Development Projects on Housing Element Sites. Notwithstanding any law including any density limits, no Development Project shall be approved on a Housing Element Site that would require the demolition of occupied or vacant Protected Units, or that is located on a site where Protected Units were demolished in the previous five years, unless all the following requirements

are satisfied.

1. Replacement of Existing or Demolished Protected Units.

(a) **Housing Development Projects.** A Housing Development Project shall replace all existing Protected Units and Protected Units demolished on or after January 1, 2020, pursuant to the replacement requirements of California Government Code Section 65915(c)(3) and LAMC Section 16.60 A.3.(a).

(b) **Non-Housing Development Projects.** A Development Project that is not a Housing Development Project must satisfy the replacement requirements in California Government Code Section 65915(c)(3) and LAMC Section 16.60 A.4.(a), except that the provisions in LAMC Section 16.60 A.4.(c) shall not apply.

E. Maintenance of Adequate Housing Element Sites Throughout the Housing Element Period.

1. The Departments of City Planning and Building and Safety shall not, through any administrative, quasi-judicial, legislative or other actions, reduce the density of a Housing Element Site, or approve any project on a Housing Element Site parcel(s) with fewer units in aggregate, by income category, than shown as realistic capacity in the most recent list of Housing Element Sites for the remaining housing element planning period pursuant to California Government Code Section 65584, unless the applicable Department either:

(a) Makes the applicable findings pursuant to California Government Code Section 65863(b), including that, while the proposed project would result in fewer units by income category than those identified in the Housing Element Sites inventory prepared for the 2021-2029 Housing Element, the remaining sites identified in the Housing Element of the General Plan are adequate to meet the requirements of California Government Code Section 65583.2 and to accommodate the City's share of the regional housing need pursuant to California Government Code Section 65584. A written finding with substantial evidence shall be included as part of approval of the project on the number of sites by income category and their adequacy to meet the requirements; or

(b) If a finding cannot be made, then, within 180 days of any of the actions described in subdivision 1. above, the Department of City Planning shall, in accordance with the provisions of this Code, identify and make available additional adequate sites through a rezoning to accommodate the City's share of the regional housing need by income level.

2. A Housing Development Project may not be denied on the basis that approval of the project would require compliance with this Subsection.

F. Approval Requirements for Housing Element Sites.

1. **Ministerial Approval for Prior Housing Element Sites.** If a Housing Development Project is proposed on a Prior Housing Element Site that is identified in the most recent Housing Element to accommodate a portion of the housing need for low and very low income households and at least twenty percent of the project's units will be made affordable and available to Lower Income Households, the project shall be subject to Ministerial Approval by the City. Any eligible Housing Development Project that would have otherwise required a discretionary entitlement from the Department of City Planning to permit owner-occupied or rental multiple family residential dwelling use on the site shall be processed through an Expanded Administrative Review, as set forth in Section 13B.3.2. of Chapter 1A of this Code. Any non-residential use in a mixed-use Housing Development Project shall comply with any discretionary review required for that use under the Code, or any plan or overlay adopted under the Code. In no case shall Project Review pursuant to Section 13B.2.4 of Chapter 1A be required for any Housing Development Project.

(a) **Exception:** For the purposes of this subsection, any application for a density increase that requires review under Section 12.24 U.26. of this Code is not eligible for the Ministerial Approval or Expanded Administrative Review in this subsection and shall be processed pursuant to the procedures of Section 12.24 U.26.

(b) Pursuant to Government Code Section 65583.2(i), any subdivision of a Prior Housing Element Site shall be subject to all laws, including, but not limited to, Article 7 (Division of Land Regulations) of Chapter I of this Code.

2. **Ministerial Approval for Lower Income Rezoning Housing Element Sites.** If a Housing Development Project is proposed on a Lower Income Rezoning Housing Element Site that has a minimum density of at least 20 units per acre, and at least twenty percent of the project's units will be made affordable and available to Lower Income Households, the project shall be subject to Ministerial Approval by the City. Any eligible Housing Development Project that would have otherwise required a discretionary entitlement from the Department of City Planning to permit owner-occupied or rental multiple family residential dwelling use on the site shall be processed through an Expanded Administrative Review, as set forth in Section 13B.3.2. of Chapter 1A of this Code. Any non-residential use in a mixed-use Housing Development Project shall comply with any discretionary review required for that use under the Code, or any plan or overlay adopted under the Code. In no case shall Project Review pursuant to Section 13B.2.4 of Chapter 1A be required for any Housing Development Project.

(a) **Exceptions:**

(i) For the purposes of this subsection any application for a density increase that requires review under Section 12.24 U.26. of this Code is not eligible for the Ministerial Approval or Expanded Administrative Review in this

subsection and shall be processed pursuant to the procedures of Section 12.24 U.26.

(ii) Pursuant to Government Code Section 65583.2(i), any subdivision of a Lower Income Rezoning Housing Element Site shall be subject to all laws, including, but not limited to, Article 7 (Division of Land Regulations) of Chapter I of this Code.

3. **Densities for Lower Income Rezoning Housing Element Sites.** A Housing Development Project proposed on a Lower Income Rezoning Housing Element Site shall not be approved unless it meets at least the minimum density requirement of 20 units per acre, inclusive of Accessory Dwelling Units.

4. **Relationship to Other Incentive Programs.** A project that seeks approval under Section 16.70 F. shall be eligible for a density bonus, incentive, concession, waiver, or reduction of development standards pursuant to California Government Code Section 65915, or a local incentive program in Chapter I of this Code or any Community Plan Implementation Overlay, Specific Plan, or other overlay adopted under the authority of Chapter I, provided that the project meets the applicable requirements for both Section 16.70 F. and the applicable incentive program.

Exception: A CPIO Mixed-Income Housing Project as defined in the Hollywood Community Plan Implementation Ordinance District (Hollywood CPIO), which is identified in the Lower Income Rezoning Sites List, shall be processed through the Administrative Clearance in Section I-6.C.2. of the Hollywood CPIO when the Project's unit mix includes 20 percent Restricted Affordable Units for lower-income households, in lieu of any higher minimum number of on-site Restricted Affordable Units for a CPIO Mixed-Income Housing Project.

G. **Implementation Memoranda, FAQs, Forms / Applications and User Guides.** The Director may prepare Implementation Memoranda, Technical Bulletins and/or User Guides related to the Department of City Planning's implementation of state Housing Element law (Article 10.6 of California Government Code Section 65580 et seq.) through the provisions of this Code, including, but not limited to, providing additional information for the purpose of maintaining consistency with state law.

H. References to state or federal statutes or regulations in this section shall be to those statutes or regulations as written and in effect on the date the ordinance adding those references is adopted.

ARTICLE 7

DIVISION OF LAND REGULATIONS

(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

Section

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SEC. 17.00. TITLE.

This Article shall be known as the Division of Land Regulations of the City of Los Angeles, and contains the City's regulations regarding Subdivision Maps for property subject to this Chapter.

SEC. 17.01. TRACT MAPS – GENERAL PROVISIONS.

A. Scope.

1. No person shall subdivide land in the City of Los Angeles into five or more parcels unless a Final Map has been recorded as provided in this Article and pursuant to Div. 13B.8. (Division of Land) of Chapter 1A of this Code.
2. No building or structure shall be constructed or enlarged on any land which has been subdivided in violation of the provisions of this Article and Div. 13B.8 (Division of Land) of Chapter 1A of this Code, nor shall any permit be issued therefor.
3. The provisions of this Article shall not be construed as preventing the recording of a final tract map containing less than five lots or creating fewer than five condominium units in accordance with the procedures outlined in Div. 13B.8 (Division of Land) of Chapter 1A of this Code and in the Subdivision Map Act.
4. (a) **General Rule.** The provisions of this Article shall be applicable to a commercial / industrial, commercial / industrial to residential, residential, or residential to commercial / industrial conversion project as defined in Section 12.03 (Definitions) of the Municipal Code, except as follows.
 - (b) **Stock Cooperative Conversions.** The provisions of this Article shall not apply to any conversion for stock cooperative purposes which satisfies either of the following criteria: (1) the application for stock cooperative (DRE Form 658 or its equivalent) was filed with the California Department of Real Estate prior to July 1, 1979, or (2) a subdivision public report for stock cooperative was issued pursuant to Business and Professions Code Section 11018 prior to November 10, 1979.
 - (c) **New Stock Cooperatives.** The provisions of this Article shall not apply to any stock cooperative project, other than a commercial / industrial, commercial / industrial to residential, residential, or residential to commercial / industrial conversion project, where the application for stock cooperative (DRE Form 658 or its equivalent) was filed with the California Department of Real Estate prior to March 21, 1980.
 - (d) **Subdivision of Air Space.** The provisions of this Article shall apply to a division of the space above or below a lot with a definite width, length, and upper and lower elevation occupied or to be occupied by a use, group of buildings or portions thereof, and accessory buildings or portions thereof, or accessory uses, (Air Space Lot, as defined in Section 12.03 (Definitions) of this Code).

B. Purpose. The purpose of this Article is to regulate and control the division of land, within the City of Los Angeles, to provide for the dedication of land, the payment of fees in lieu thereof, or a combination of both, for the acquisition and development of park and recreation sites and facilities to serve the future inhabitants of the subdivision, to supplement the provisions of the Subdivision Map Act concerning the design, improvement and survey data of subdivisions, the form and content of Tentative Maps and Final Maps. The establish procedure to be followed in securing the official approval of the City of Los Angeles on such maps must be done pursuant to Div. 13B.8 (Division of Land) of Chapter 1A of this Code, in a manner that is consistent with the applicable general and specific plans as well as the public health, safety and welfare.

It is also the intention of this Article that the subdividing of land in the City of Los Angeles be done in accordance with the grading regulations of the City contained and set forth in Article 1 (Building Code) of Chapter 9 (Building Regulations) of this Code and to establish when possible beauty and attractiveness in the hills consistent with watershed drainage, erosion and fire control requirements, and good engineering practices.

C. Interpretation. This Article and Div. 13B.8 (Division of Land) of Chapter 1A of this Code shall not be interpreted or construed to invalidate any previous act on the part of the City approving or authorizing private streets, or authorizing the issuance of building permits for structures on lots served by private streets.

SEC. 17.02. DEFINITIONS.

For the purpose of this Article the following words and phrases are defined as follows; for any words or phrases not defined here, see

Div. 13C.1. (Administration Definitions) of Chapter 1A of this Code:

Alley – A public way, other than a street or highway, providing a means of vehicular access to abutting property;

Average Natural Slope – The average of the ungraded slopes at selected contours within a given parcel of land divided by its area as computed from either the City’s Engineer’s topographic maps or a topographic map prepared by a California registered civil engineer or California licensed land surveyor. Regardless of which map is used, calculations cannot be derived or interpolated from a map that originally had contour intervals of greater than 25 feet for subdivisions or greater than five feet for parcel maps. Average natural slope shall be computed by the following formula:

$$S = \frac{C \times L}{A} \times 100$$

Where: S = average natural slope in percent.

C = contour interval in feet, at no greater than 25-foot intervals for subdivisions or five-foot intervals for parcel maps, resulting in at least five contour lines.

L = total accumulated length of all contours of interval “C” in feet.

A = the area being considered in square feet.

Slopes may be computed only by the entire subdivision or parcel map area. The calculation “L” (contour lengths) and “A” (area in square feet) can be computed by 500-foot grid increments, as shown on the City Engineer’s topographic maps. The “L” for each grid increment must be added to the “L” for every other grid increment and the “A” for each grid increment must be added to the “A” for every other grid increment to determine the “L” and the “A” for the entire subdivision or parcel map, prior to calculating the average natural slope for that subdivision or parcel map. In any matter where the average natural slope is used to calculate density pursuant to Sections 17.05 (Design Standards) or 17.50 (Parcel Maps – General Provisions) of this Chapter, the subdivision file shall contain copies of all maps and all calculations so that the figures can be verified. All maps and all calculations are required to be submitted at the time of the filing of a subdivision application or the application is deemed incomplete.

Building Site – Any parcel of land which conforms to the definition of a lot as defined in this article.

City Engineer – The City Engineer.

Design – Design of a subdivision shall include:

- (1) street alignments, grades and widths;
- (2) drainage and sanitary facilities and utilities, including alignments and grades thereof;
- (3) location and size of all required easements and rights-of-way;
- (4) fire roads and firebreaks;
- (5) lot and size configuration;
- (6) traffic access;
- (7) grading;
- (8) land to be dedicated for park and recreation purposes, and
- (9) such other specific requirements in the general plan and configuration of the entire subdivision as may be necessary or convenient to insure conformity to or implementation of the general plan or any adopted specific plan.

Drip Line – A line which may be drawn on the ground around a tree directly under its outermost branch tips and which identifies that location where rainwater tends to drip from the tree.

Engineer – The Registered Civil Engineer employed by the owner or by the subdivider to prepare the Subdivision Maps and improvement plans.

Fire Protection – Such fire hydrants and other protective devices as required by the Chief Engineer of the Fire Department.

Flood Hazard – A hazard to land or improvements due to overflow water having sufficient velocity to transport or deposit debris, scour the surface soil, dislodge or damage buildings, or erode the banks of water courses.

Freeway – A highway in respect to which the owners of abutting land have no right or easement of access to or from their abutting lands or in respect to which such owners have only limited or restricted right or easement of access, and which is declared

to be such in compliance with the Streets and Highways Code of the State of California.

Frontage Road – A street lying adjacent and approximately parallel to and separated from a freeway, and which affords access to abutting property.

Future Street or Alley – Any real property which the owner thereof has offered for dedication to the City for street or alley purposes but which has been rejected by the City Council of the City of Los Angeles, subject to the right of said Council to rescind its action and accept by resolution at any later date and without further action by the owner, all or part of said property as public street or alley.

Highway, Major – Any street designated as a major highway on the Highways and Freeways maps of the Transportation Element of the General Plan.

Highway, Secondary – Any street designated as a secondary highway on the Highways and Freeways maps of the Transportation Element of the General Plan.

Hillside Grading Areas – Hillside Grading Areas as defined in Section 91.7003 (Grading, Excavations and Fills; Definitions) of this Code.

Improvement – Such street work and utilities to be installed, or agreed to be installed by the subdivider on the land to be used for public or private streets, highways, ways, and easements as are necessary for the general use of the lot owners in the subdivision and local neighborhood traffic and drainage needs and required as a condition precedent to the approval and acceptance of the Final Map or Parcel Map. Such street work and utilities include necessary monuments, street name signs, guardrails, barricades, safety devices, fire hydrants, grading, retaining walls, storm drains and flood control channels and facilities, erosion control structures, sanitary sewers, street lights, street trees, traffic warning devices other than traffic signals and relocation of existing traffic signal systems directly affected by other subdivision improvements and other facilities as are required by the Bureau of Street Lighting or Bureau of Street Maintenance in conformance with other applicable provisions of this Code, or as are determined necessary by the Advisory Agency for the necessary and proper development of the proposed subdivision and to insure conformity to or the implementation of the general plan or any adopted specific plan.

Inundation – Pondered water or water in motion of sufficient depth to damage property due to the presence of the water or to deposit of silt.

Lot – A parcel of land conforming to the definition of Lot contained in Section 12.03 (Definitions) of this Chapter, which is identified on a final Map or a Parcel Map recorded in the Office of the County Recorder with a separate and distinct letter or number.

Model Dwelling – A one-family residential unit having all the following characteristics:

- (a) Said unit is constructed upon a proposed lot or in a proposed building previously designated as a model dwelling site by the Advisory Agency in a subdivision or a multiple unit development for which the Advisory Agency has approved or conditionally approved a tentative map, but for which a final map has not yet been recorded.
- (b) The proposed lot upon which the unit is constructed is recognized as a legal building site for the duration of the model dwelling permit.
- (c) No Certificate of Occupancy for such unit has been issued by the Superintendent of Building.
- (d) Where applicable, temporary access thereto is permitted over future streets previously restricted to public access.
- (e) Said unit is intended to be temporarily utilized as an example of the dwellings which have been built or which are proposed to be built in the same subdivision or multiple dwelling development.

Problem Areas – Those portions of the City of Los Angeles determined by resolution of the Board of Public Works to be actually or potentially dangerous by reason of geological conditions, being subject to inundation or overflow by storm water, or because of any other potentially dangerous condition, including but not limited to areas subject to rapid spread of fire.

Protected Tree – Any of the following Southern California native tree species, which measures four inches or more in cumulative diameter, four and one half feet above the ground level at the base of the tree:

- (a) Oak tree including Valley Oak (*Quercus lobata*) and California Live Oak (*Quercus agrifolia*), or any other tree of the oak genus indigenous to California but excluding the Scrub Oak (*Quercus dumosa*).
- (b) Southern California Black Walnut (*Juglans californica* var. *californica*).
- (c) Western Sycamore (*Platanus racemosa*).
- (d) California Bay (*Umbellularia californica*).

This definition shall not include any tree grown or held for sale by a licensed nursery, or trees planted or grown as a part of a tree planting program.

Public Way – Any street, channel, viaduct, subway, tunnel, bridge, easement, right of way or other way in which a public agency has a right of use.

Residential Planned Development – A group of residential buildings and appurtenant structures located and arranged in accordance with the requirements of the RPD residential planned development district Sec. 13.04 (“PRD” Residential Planned Development Districts) of this Chapter in which the property is located. A residential planned development may include schools. It may also include churches, hospitals, infirmaries, recreational and commercial uses, as an integral part of the development and intended for use by its occupants, to an extent commensurate with the planned population of the RPD district.

Roadway – That portion of a right of way for a street or alley used or intended to accommodate the movement of vehicles.

Service Road – That part of a major or secondary highway, containing a roadway which affords access to abutting property and is adjacent and approximately parallel to and separated from the principal roadway.

Slope – The plane or incline of land usually expressed as a percentage where % slope =

$$\frac{\text{vertical distance}}{\text{horizontal distance}} \times 100$$

Street, Collector – A street including the principal access streets of a subdivision which carries traffic from local streets either directly or via other existing or proposed collector streets to a major or secondary highway.

Street, Local – Any street other than a collector street, major or secondary highway, or freeway, providing access to abutting property and serving local as distinguished from through traffic.

Surveyor – A licensed land surveyor authorized to practice in California.

Tree Expert – A person with at least four years of experience in the business of transplanting, moving, caring for and maintaining trees and who is (a) a certified arborist with the International Society of Arboriculture and who holds a valid California license as an agricultural pest control advisor or (b) a landscape architect or (c) a registered consulting arborist with the American Society of Consulting Arborists.

Water Supply – Such water system supply and distribution facilities as are necessary to provide a reliable and adequate water supply for private use and public fire protection purposes.

Vehicular Access Rights – The right or easement for access of owners or occupants of abutting lands to a public way other than as pedestrians.

SEC. 17.03. ADVISORY AGENCY.

A. **Authority and Duties.** See Sec. 13B.7.1.C. (General Provisions; Advisory Agency) of Chapter 1A of this Code.

When the Advisory Agency approves or conditionally approves a tentative map, it may also designate certain lots or proposed buildings, whether existing or to be constructed on a lot shown on said map, as sites for the construction of model dwellings. The Advisory Agency is authorized to designate said sites only if it determines that they comply, or can be made to comply with the design standards for sites for model dwellings as hereinafter set forth in Section 17.05 of this article.

In addition to the authorities established in Div. 13B.7. (Division of Land) of Chapter 1A of this Code, the Advisory Agency, acting in the capacity of an Associate Zoning Administrator, shall also have the authority to reduce the width of required passageways pursuant to Section 12.21 C.2.(b) (Spaces Between Buildings – Passageways) of this Chapter to no less than five feet between habitable buildings and detached condominiums, unless the Fire Department determines that the reduction would result in a safety hazard. And shall have the authority to grant deviations of no more than 20 percent from the applicable area, yard, and height requirements. The subdivider must ask for adjustments at the time of filing. In permitting adjustments, the Advisory Agency shall make the findings contained in Sec. 13B.5.2. (Adjustment) of Chapter 1A of this Code.

The reductions / deviations shall be included in the written decision of the Advisory Agency. Notification and appeal rights to such reductions / deviations shall conform to Sec. 13B.7.2. (Tentative Tract Map) of Chapter 1A of this Code.

B. **(This subsection intentionally left blank.)**

C. **(This subsection intentionally left blank.)**

D. **Subdivision of Air Space.** Notwithstanding any provision of this chapter to the contrary, in any zone, the Advisory Agency is authorized to approve, conditionally approve or disapprove a preliminary parcel map or a tentative tract map showing one or more air space lots (as defined in Section 12.03 of this Code), provided that such air space lots are created in accordance with the provisions of Chapter 1, Article 7 of this Code.

The Advisory Agency shall require, as a condition of approval of any tentative tract map or preliminary parcel map showing one or more air space lots, that the final map or parcel map showing such air space lots be based upon a site plan which accurately describes the location of such lots. After recordation of such map and upon construction of the buildings or structures within the air space lots, if it is determined by the Department of Building and Safety that there are minor discrepancies between the site plan and the actual physical location of the air space lots in such buildings or structures, lot lines for the air space lots may be adjusted as necessary through the parcel map exemption procedure set forth in Los Angeles Municipal Code Section 17.50 B.3.c.

SEC. 17.04. SUBDIVISION COMMITTEE.

See Sec. 13B.7.1.D. (General Provisions; Subdivision Committee) of Chapter 1A of this Code.

SEC. 17.05. DESIGN STANDARDS.

A. **Street Standards Committee.** There is hereby created a Street Standards Committee (Committee) to be composed of the Director of Planning, as Chair, the City Engineer and the General Manager of the Department of Transportation, or their designees.

This Committee shall:

- 1. Recommend to the Commission minimum width and improvement standards for all classes of public and private streets and alleys. The Commission shall adopt such minimum width and improvement standards as it determines are necessary for the safe and adequate movement of pedestrians, bicyclists, transit service and vehicular traffic, the increased retention and detention of stormwater, the installation of necessary utilities and for reasonable and proper access to abutting properties. Such standards shall not be applicable to any street or alley for which the City Council, by ordinance, adopts specific standards.
- 2. Modify the Complete Street Design Guide (CSDG) on an as-needed basis to align the CSDG with current and innovative street design practice.

B. **Adoption of Standards.** A public hearing shall be conducted by the Commission prior to the approval of any change in the standards, pursuant to the procedures in Sec. 13B.1.5. (Policy Action) of Chapter 1A of this Code.

C. **Conformance to General Plan.** Each Tentative Map shall be designed in compliance with the zoning applying to the property or approved by the City Council for change or shall be subject to a condition requiring compliance with such zoning prior to the recordation of the final map.

In addition, where a Tentative Map involves land for which a General Plan including dwelling unit densities has been adopted by the Council, and said land is also in an “H” Hillside or Mountainous Area established by Article 2 (Specific Planning – Zoning Comprehensive Zoning Plan) of this Chapter, the number of lots on said map shall be limited so that the number of dwelling units permitted by the applicable zoning regulations shall not substantially exceed the dwelling unit densities shown on said plan.

Each Tentative Map shall substantially conform to all other elements of the General Plan. In computing the number of dwelling units, only the area being designated for residential use and land that is being dedicated for public uses shall be considered, excepting, however, land set aside for street purposes, or land required to be dedicated for park and recreation purposes pursuant to Ordinance 141,422. However, in the Greater Downtown Housing Incentive Area, the area used for computing the allowable floor area of a residential (including Apartment Hotel or mixed-use) building shall be the lot area including any land to be set aside for street purposes.

In Hillside Grading Areas, as defined in Section 17.05 (Definitions) of this Article, which are designated in the Minimum Density housing category by the applicable element of the General Plan adopted by the City Council, the dwelling unit density shall not exceed that allowed by the following formula:

$$D = \frac{50 - S}{35}$$

Where: D = the maximum number of dwelling units per gross acre allowable, and
S = the average natural slope of the land in percent.

Where the total allowable number of dwelling units per parcel map or tentative tract map calculated under the above formulas results in a number other than a whole number, it shall be rounded to the nearest whole number as follows: where the fractional portion of the total allowable number of dwelling units equals .5 or more, the total number of allowable dwelling units shall be rounded to the next larger

whole number; where the fractional portion of the total allowable number of dwelling units equals less than .5, the total number of allowable dwelling units shall be rounded to the next smaller whole number.

In no case shall the permitted density be less than 0.05 dwelling units per gross acre. Where the total allowable number of dwelling units per tentative tract map calculated under the above formula results in a number less than one, it shall be rounded up to allow one dwelling unit per tentative tract map. Where previous grading on a site makes it difficult to determine average natural slope using the above formula, the Director of Planning shall determine the average natural slope in a manner to carry out the purpose and intent of this Subsection.

D. Streets.

1. **Right-of-Way and Roadway Widths.** All streets and alleys shall be designed to conform with the Commission's adopted standards. The requirements and exceptions set forth in Section 12.37 (Highway and Collector Street Dedication and Improvement), however, shall apply.

2. **Street Grades.** Grades of all streets shall be as flat as consistent with adequate surface drainage requirements and the approved development of the proposed subdivision. The minimum grade permitted shall be four-tenths of one percent, except in extremely flat areas where a grade of two-tenths of one percent may be used. The maximum grade permitted for major and secondary highways shall be six percent, except where a grade not to exceed ten percent will eliminate excessive curvature, fill or excavation. The maximum grade permitted for collector streets shall be ten percent and for local streets shall be 15 percent. Variations from these requirements may be granted by the Advisory Agency upon recommendation by the City Engineer in individual cases in accordance with the provisions of Section 17.11.

Changes in grade greater than four-tenths of one percent shall be connected by vertical curves. The length of vertical curves shall conform to standards for sight distance and riding qualities established by the City Engineer.

3. **Future Streets.** In the event certain streets or alleys in a subdivision are to be reserved for future public use and they have been approved as to location and width, they shall be indicated on the Final Map and offered for dedication as future streets or future alleys. Certificates providing that the City may accept the offer to dedicate such easement at any time shall be shown on the Final Map.

4. **Corner Cut-Off.** At all block corners the property line shall be rounded. On all major and secondary highways, the corner shall have a 20-foot radius curve and on all other streets, a 15-foot radius curve; provided, however, that where commercial development is permitted, a diagonal cutoff of 15-foot × 15-foot in lieu of a 20-foot radius curve and a 10-foot × 10-foot cutoff in lieu of a 15-foot radius curve may be used. In industrial zones the curves shall have a minimum radius of at least 40 feet.

5. **Curves – Horizontal.** The center line radii of curves shall be as large as possible, consistent with conditions. All curves shall have sufficient length to avoid the appearance of an angle point. Reversing curves shall be connected by tangents of length approved by the City Engineer as sufficient to safely reverse the unbalanced centrifugal force. In any case, horizontal curves shall have the following minimum center line radii:

Major and Secondary Highways	1,000 feet
Collector Streets	500 feet
Local Streets, Not Hillside	300 feet
Local Streets, Hillside Area	125 feet

6. **Intersections.** Street intersections shall be at as near to a right angle as possible. No jogs shall be allowed in the continuity of an arterial street. Jogs in a non-arterial street where crossing an arterial street shall be held to a minimum. Multiple intersections of more than four approaches should be avoided. In hillside areas special conditions may be required.

7. **Cul-de-sac Streets.** Cul-de-sac streets should be avoided except in locations where physical constraints prohibit the continuation of the street (such as where a river or railroad infrastructure is present) or where made necessary by historical development patterns. Where cul-de-sac streets are approved, they shall be terminated by a turning area conforming to the latest standards approved by the Commission. Where feasible, existing cul-de-sacs should be modified and new cul-de-sacs should be designed to include a passageway for bicycles and pedestrians to access the surrounding area.

8. **General.** All streets within and/or immediately adjacent to the subdivision shall be improved with curbs and gutters, unless not required by the Advisory Agency upon recommendation of the City Engineer.

Streets within and/or immediately adjacent to the subdivision shall be improved with sidewalks, except that in mountainous, hillside or rural areas, sidewalks may be omitted or may be provided on only one side of the street with the approval of the Advisory Agency.

E. Alleys.

1. Alleys shall be not less than 20 feet in width. Alleys serving industrial zones shall be 30 feet wide, unless otherwise approved by the Advisory Agency. All dead-end alleys shall be constructed with adequate turning areas. Whenever practicable, alleys shall be required at the rear of all lots that are in residential zones and that front an arterial street. Alleys may also be

required at the rear of lots in commercial and industrial zones.

2. **Alley Intersections.** Where two alleys intersect, a triangular corner cut-off of not less than 10 feet along each alley line shall be provided.

F. **Pedestrian Walks.** If the Advisory Agency determines that inner-block pedestrian walks are necessary for the public health, safety or welfare, they shall be dedicated to a width of not less than 12 feet. The Advisory Agency, however, shall only impose such a dedication requirement after finding that the dedication bears an essential nexus and rough proportionality to a project impact.

G. **Blocks.** Blocks in residentially and industrially zoned areas shall not exceed 1,700 feet in length, except in hilly areas. Commercial blocks shall not exceed 800 feet in length except in locations where the prevailing block length (within 1/2 mile) is less than 800 feet. In such instance, the new block shall not exceed the average prevailing block length.

H. **Lot Size.** Every lot shall have a minimum width and area to comply with the requirements as specified in Article 2 (Specific Planning – Zoning Comprehensive Zoning Plan) of this Chapter for the zone in which the lot is located, provided, however, that every lot located in a “C” Commercial Zone and for which no minimum width is specified in said article shall have a minimum width of 40 feet. All lots in a residential planned development shall comply with the standard residential conditions of Sec. 13.04 (“RPD” Residential Planned Development Districts) of this Code, and the conditions of approval of the development.

1. When the Advisory Agency determines that traffic access, topography, and drainage conditions will safely allow lot averaging, and when the subdivider has demonstrated to the satisfaction of the Advisory Agency in a written report that such averaging is consistent with proper subdivision design, and in addition will produce, one or more of the following benefits: require less grading than would a subdivision of conventional design not utilizing lot averaging; result in improved lot design; or produce other environmental benefits; the Advisory agency may permit the width and area of not more than 20 percent of the lots in a subdivision located in the “H” Hillside or Mountainous Area to be reduced as specified below, provided that the average area of all lots in said subdivision is not less than the following requirements:

[LOT AREA IN SQUARE FEET]

[Zone]	Minimum to Which Lot Width May Be Reduced	Minimum to Which Area May Be Reduced	Average Requirement
RA-H	63 feet	14,000	17,500
RE40-H	No Reduction	32,000	40,000
RE20-H	72 feet	16,000	20,000
RE15-H	72 feet	12,000	15,000
RE11-H	63 feet	8,800	11,000
RE9-H	60 feet	7,200	9,000

In computing such average, that portion of any lot exceeding 150 percent of the average requirement shall not be included, provided however, that in the RA Zone the maximum area of any lot that may be used in computing the average shall be 24,500 square feet.

In a tract wherein one or more lots have less than the average requirement for the zone, no lot shall be rearranged or divided unless: (1) the average requirement for the original Final Map is maintained, and (2) such rearrangement or division is accomplished by recording a new Final Map or a Parcel Map, or by securing determination that said proposed rearrangement or division is exempt from the Parcel Map procedure as provided for in Section 17.50 B.3.(c) (Parcel Maps General Provisions; Scope).

2. Where it finds it necessary in order to promote the general welfare, the Advisory Agency may require that lots which are contiguous or nearby to existing lots on the same street may be increased in size so as to be compatible with the size of such existing lots. However, in no case may the Advisory Agency require such lots to contain an area of over 50 percent more than that required by the applicable provisions of Article 2 (Specific Planning – Zoning Comprehensive Zoning Plan) of this Chapter.

3. Property in commercial or industrial zones need not be divided into more than one lot where such property is to be operated as a unit.

4. Each portion of the lot which is platted so as to be divided by a City or County boundary line shall be given a separate letter or number on the recorded tract map.

5. The side lines of lots shall be approximately at right angles to the streets, or radial to the street on curved streets, except where topography or other conditions make this impracticable.

6. Where it finds that there will be no material increase in the dwelling unit density permitted by the zone, and that the public health, safety or welfare and good subdivision design would be promoted by the dedication of public streets to a width in excess of the approved standards provided for in this section, or the dedication of service roads, or the dedication or reservation of land

for public parks, public uses or other open areas, the Advisory Agency may permit the required area of one or more of the lots in a subdivision in an RA, RE, or RS Zone to be reduced to the extent of such dedication or reservation. Provided however, that in no event shall such a reduction exceed 15%; and, no lot in a RA-H or RE-H Zone shall be permitted to be reduced below the minimum area specified therefor in Subdivision 1. of this Subsection.

7. Where the Advisory Agency finds the project is consistent with the dwelling unit density permitted by the General Plan, and that the public health, safety or welfare and good subdivision design will be promoted by the preservation of protected trees, the Advisory Agency may permit the required area of one or more of the lots in a subdivision in an "RA", "RE", "RS" or "R1" Zone to be reduced by an amount sufficient to provide for protected tree preservation in accordance with Subsection P. (Protected Tree Regulations) of this Section. Provided, however, that in no event shall the reduction exceed 50 percent of the required lot area; no "RA" or "RE" lot shall be reduced below 50 feet in width; no "RS" or "R1" lot shall be reduced below 40 feet in width; and no lot in a designated "K" Horsekeeping District shall be reduced below 17,500 square feet.

8. Notwithstanding any other provision of this Chapter, where the Advisory Agency finds that there will be no increase in density and that the density provisions of the General Plan will not be exceeded, it may approve subdivisions in the R2, RD, R3, R4 and R5 zones, meeting the requirements of Section 12.22 C.25. (Exceptions; Area; Zero Side and Rear Yard Development in Multiple Residential Zones) of this Chapter. The minimum lot area of lots in any such subdivision shall be 2,500 square feet.

9. In calculating the density of a subdivision proposed to be developed with residences permitted by Sections 12.08.3 B.1. (RZ Residential Zero Side Yard Zone; Use) and 12.22 C.25. (Exceptions; Area; Zero Side and Rear Yard Development in Multiple Residential Zones) of this Chapter, the area contained within public streets shall be deducted from the gross area of the subdivision; however, the area contained within private streets, public alleys and driveways shall not be deducted from the gross area of the subdivision.

10. In calculating the allowable floor area of a subdivision proposed to be developed as a residential (including Apartment Hotel or mixed use) building in the Greater Downtown Housing Incentive Area, any land required to be dedicated for street purposes shall be included as part of the lot area of the subdivision.

I. **Easements.** Easements for public utilities, water system, sewers, street lights, storm drains or flood control channels, and slope rights shall be provided wherever determined necessary by the Advisory Agency upon recommendations of the City Engineer.

Wherever it is determined that future easements are necessary, a certificate shall be placed on the Final Map indicating that the City may accept such easements at any time.

J. **Hillside Grading Areas.** Design requirements for subdivisions in Hillside Grading Areas shall meet the grading standards established by the Board of Public Work and the grading regulations established by Article 1 (Building Code) of Chapter 9 (Building Regulations) of this Code. Such requirements may also include providing soil reports prepared by a Registered Civil Engineer specializing in Soil Mechanics and/or reports on geological investigations.

K. **Problem Areas.** Areas designated by resolution of the Board of Public Works as problem areas shall not be subdivided except when approved by the Advisory Agency upon recommendation of the Superintendent of Building and the City Engineer.

L. **Grading Plans.** The Advisory Agency may require a proposed grading plan with the Tentative Map of any subdivision. Upon recommendation of the Superintendent of Building or the City Engineer, or where it appears that cuts and fills will occur in the grading of the property which may be contrary to the objectives of this Article, the Advisory Agency shall require the subdivider to submit grading plans for all or part of the tract before action on the Tentative Map will be taken. Any grading plan submitted shall contain thereon a statement of the quantities (in cubic yards) of cut and fill and quantities of export or import material involved. If the amount of earth material to be imported to or exported from a subdivision site is 1,000 cubic yards or more, statements of the following shall also be included: the proposed borrow or disposal site; the proposed haul route; the total gross weight with load of the proposed haul vehicles; as well as other pertinent data which the Advisory Agency may require.

Failure to furnish such a grading plan (where necessary to complete the investigation of the Tentative Map within the time specified in the written notice requesting its submission) shall be cause for the disapproval of the Tentative Map unless an extension of the time for acting on said map is mutually agreed upon between the subdivider and the Advisory Agency.

If changes in the design of the lots or street system can be made to correct the conditions set forth in Subsection J. of this section, either by increased lot sizes or changes in grades, such modifications shall be made.

M. **Storm Drains.** Storm drains shall be designed in conformance with standards approved by the City Engineer. Storm drain facilities to intercept and convey all runoff to a suitable point of disposal shall be required when runoff from the entire area tributary to and including the subdivision exceeds the limiting depth of street flow as determined by the City Engineer. These storm drain requirements shall also include the following:

1. In areas without sumps, storm drains shall be designed to remove all runoff from a storm of 10-year frequency.
2. In sump areas, storm drains shall be designed to remove all runoff from a storm of 50-year frequency.
3. Storm drains shall be of sufficient capacity in all cases to prevent flooding of building sites from a storm of 50-year

frequency.

4. On sidehill streets, the maximum depth of water as determined by the City Engineer shall be based on a storm of 50-year frequency.

N. **Installation of Utilities.** Utility lines, including but not limited to those required for electricity, communication, street lighting and cable television services necessary for the general use of the lot owners in the subdivision, shall be installed or guaranteed to be installed in the same manner as other required improvements.

In all portions of a Tract Map area classified in the A, R or C zones, all such utility lines shall be installed underground, provided, however, that incidental, appurtenant equipment such as transformers, terminal boxes and meter cabinets may be placed above ground but shall conform with regard to placement and height with those standards adopted by the Commission as it determines are necessary to safeguard the public against hazards created by said equipment and to further the purposes of this article. The Subdivision Committee shall make its report and recommendation of the Commission prior to the adoption of said standards.

The subdivider shall make the necessary Cost and other arrangements for such underground installation and for relocation of existing facilities with each of the persons, firms, or corporations furnishing utility services involved.

O. **Sites for Models.** Not more than 15% of the lots and in no case more than 20 lots at any one time in a subdivision may be designated as sites for the construction of models, and, with respect to multiple unit structures, not more than 15% of the units and in no case more than 20 units at any one time in a proposed building designated as a model site, may be designated as models.

Each of the sites shall be located in a manner as to not adversely affect existing developed residential properties. Further, each of the sites shall be easily accessible and provision for the accessibility shall be assured at the time that the tentative map is conditionally approved.

P. **Park and Recreation Sites.** Park and recreation sites to serve the future inhabitants of each new subdivision shall be provided and located in conformance with the standards contained in the Recreation Element of the General Plan.

Q. **Where Subdivision Includes Land Within Drainage District.** Whenever a Subdivision or a portion thereof includes land which is within a Local Drainage District, the provisions and requirements of the ordinance establishing such District shall be complied with.

R. **Protected Tree Regulations.** No protected tree may be relocated or removed except as provided in this Article or Article 6 (Preservation of Protected Trees) of Chapter 4 (Public Welfare) of this Code. The term "removed" or "removal" shall include any act that will cause a protected tree to die, including but not limited to acts that inflict damage upon the root system or other parts of the tree by fire, application of toxic substances, operation of equipment or machinery, or by changing the natural grade of land by excavation or filling the drip line area around the trunk.

1. **Required Determinations.** Subject to historical preservation requirements set forth in Subdivision 3. of this Subsection, when a protected tree exists within a proposed subdivision, the tree may be relocated or removed if the Advisory Agency, in consultation with the City's Chief Forester, determines the existence of either (a) or (b) below:

(a) There has been prior applicable government action in which:

(i) The removal of the tree had been approved by the Advisory Agency; or

(ii) The property upon which the protected tree is located has been the subject of a determination by the City Planning Commission, the City Council, a Zoning Administrator, or an Area Planning Commission, the appeal period established by this Code with respect to the determination has expired, the determination is still in effect, and pursuant to the determination, the protected tree's removal would be permissible; or

(iii) A building permit has been issued for the property upon which the protected tree is located, the permit is still in effect, and the removal or relocation is not prohibited by the permit.

(b) The removal of the protected tree would not result in an undesirable, irreversible soil erosion through diversion or increased flow of surface waters that cannot be mitigated to the satisfaction of the City's Chief Forester, and the physical condition or location of the tree is such that:

(i) Its continued presence in its existing location prevents the reasonable development of the property; or

(ii) According to a report required pursuant to Section 17.06 C. (Protected Tree Report for Tentative Tract Maps), acceptable to the Advisory Agency and prepared by a tree expert, there is a substantial decline from a condition of normal health and vigor of the tree, and its restoration through appropriate and economically reasonable preservation procedures and practices is not advisable; or

(iii) It is in danger of falling due to an existing and irreversible condition.

(iv) Its continued presence at its existing location interferes with proposed utility services or roadways within or without the subject property, and the only reasonable alternative to the interference is the removal of the tree; or

(v) It has no apparent aesthetic value, which will contribute to the appearance and design of the proposed subdivision; or it is not located with reference to other trees or monuments in such a way as to acquire a distinctive significance at the location.

2. **Supplemental Authority.** In the event the Advisory Agency, in consultation with the City's Chief Forester, determines pursuant to Subdivision 1.(b) above, that a protected tree may be removed or relocated, the Advisory Agency may:

(a) Require relocation elsewhere on the same property where a protected tree has been approved for removal, and where the relocation is economically reasonable and favorable to the survival of the tree. Relocation to a site other than upon the same property may be permitted where there is no available or appropriate location on the property and the owner of the proposed off-site relocation site consents to the placement of a tree. In the event of relocation, the Advisory Agency may designate measures to be taken to mitigate adverse effects on the tree.

(b) Permit protected trees of a lesser size, or trees of a different species, to be planted as replacement trees for protected trees permitted by this Code to be removed or relocated, if replacement trees required pursuant to this Code are not available. In that event, the Advisory Agency may require a greater number of replacement trees.

3. **Historical Monuments.** The Advisory Agency, except as to Subdivision 1.(b)(iii) above, shall require retention of a protected tree at its existing location, if the tree is officially designated as an Historical Monument or as part of an Historic Preservation Overlay Zone.

4. **Requirements.** In the event the Advisory Agency, in consultation with the City's Chief Forester, determines pursuant to Subdivision 1.(b) above that a protected tree may be removed or relocated, the Advisory Agency shall require that:

(a) The protected tree is replaced within the property by at least two trees of a protected variety included within the definition set forth in Section 17.02 (Definitions) of this Article, except where the protected tree is relocated pursuant to Subdivision 2.(a) above. The size of each replacement tree shall be a 15-gallon, or larger, specimen, measuring one inch or more in diameter at a point one foot above the base, and not less than seven feet in height, measured from the base. The size and number of replacement trees shall approximate the value of the tree to be replaced.

(b) The subdivider record those covenants and agreements approved by the Advisory Agency necessary to assure compliance with conditions imposed by the Advisory Agency and to assure protected tree preservation.

(c) The subdivider provide protected tree maintenance information to purchasers of lots within the proposed subdivision.

(d) The subdivider post a bond or other assurance acceptable to the City Engineer to guarantee the survival of trees required to be replaced or permitted or required to be relocated, in a manner to assure the existence of continuously living trees at the approved replacement or relocation site for three years from the date that the trees are replaced or relocated. The City Engineer shall use the provisions of Section 17.08 G. (Improvements; Guarantees) of this Article as its procedural guide in satisfaction of the bond requirements and processing. Any bond required shall be in a sum estimated by the City Engineer to be equal to the dollar value of the replacement tree or of the tree that is to be relocated. In determining value for these purposes, the City Engineer shall consult with the Advisory Agency, the City's Chief Forester, the evaluation of trees guidelines approved and adopted for professional planters by the International Society of Arboriculture, the American Society of Consulting Arborists, the National Arborists Association and the American Association of Nurserymen, and other available, local information or guidelines.

5. **Grading.** The Advisory Agency is authorized to prohibit grading or other construction activity within the drip line of a protected tree.

S. **Mulholland Scenic Parkway.** Notwithstanding the street standards adopted by the City Planning Commission pursuant to this section, the width and improvement standards for the Mulholland Scenic Parkway shall be substantially as follows: two travel lanes, one in each direction, each 15 feet wide; passing lane segments and turn pockets where necessary to facilitate movement of traffic; substantial conformance to existing roadway alignment; no median strip except to facilitate turning movements; hard surfaced shoulders but with a natural look, separated from the roadway by a painted line where the shoulder is utilized for bikeway purposes; minimum street and driveway access to the Parkway; reasonable protection of a scenic corridor 500 feet more or less, depending on topography, from each side of the existing right-of-way, to preserve the scenic quality and for the development of parks, vista points, parking facilities, and continuous bicycle, equestrian and hiking trails; all utilities to be underground; all necessary signs and road related fixtures to be of a special design to blend with the scenic character of the Parkway; grading to be kept to an absolute minimum; all necessary grading to be gently contoured and fully landscaped with fire-resistant plants to present a natural appearance.

It shall be the duty of the Advisory Agency to interpret and apply these standards in conformance with the spirit and intent of the Report of the Citizens' Advisory Committee on the Mulholland Scenic Parkway as adopted as City policy by the City Council on March 26, 1973, under Council File No. 70-5000, or with such Parkway plans as may subsequently be adopted.

Said standards are applicable to any subdivision or parcel map within 500 feet of the right-of-way of Mulholland Drive between the Hollywood Freeway on the west and Mulholland Highway on the west and along Mulholland Highway to the southerly city boundary, as shown on the City Engineer's official cadastral or district maps.

T. Valley Circle Boulevard – Plummer Street Scenic Corridor. Notwithstanding the street standards adopted by the City Planning Commission pursuant to this section, the width and improvement standards for Valley Circle Boulevard from Roscoe Boulevard to Plummer Street and for Plummer Street from Valley Circle Boulevard to Topanga Canyon Boulevard shall be substantially as follows:

1. Two travel lanes, one in each direction;
2. Left turn pockets as needed;
3. 48 feet of paved roadway, including 2-foot wide concrete gutters and curbs;
4. No continuous raised median strip;
5. Wide shoulders to accommodate recreation trails;
6. Minimum street and driveway access to the roadway;
7. All utilities to be underground;
8. Lighting only at intersections and parking areas, and kept to a minimum useful Intensity;
9. Fire Hydrants and light standards located away from the roadway for increased safety;
10. Picnic areas, drinking fountains, restrooms facilities, watering troughs, hitching rails and simple shade structures provided at suitable locations;
11. The general design and development of the roadway, trails, turnouts, and all appurtenant fixtures, facilities and amenities to be rustic, natural and in keeping with the scenic character of the corridor;
12. Reasonable protection of a scenic corridor, 1,500 feet more or less depending on topography, from each side of the existing rights-of-way, to preserve the scenic quality, protect long-distance views, and for the development of parks, vista points, parking facilities, and continuous trails;
13. Specific dimension standards for a 100-foot- wide right-of-way, the preferred width, shall be a 14-foot-wide two-way bicycle path, a hiking trail meandering in a 10-foot-wide landscaped parkway, a 16-foot-wide equestrian trail bordered by bolted wood fences and a 12-foot-wide parkway on the opposite side of the roadway;
14. The dimension standards for an 86-foot- wide right-of-way shall be a 12-foot-wide two-way bicycle path, hiking trail meandering in an 8-foot-wide landscaped parkway, a 12-foot-wide equestrian trail bordered by bolted wood fences and a 6-foot-wide parkway on the opposite side of the roadway;
15. Trails to be built prior to or concurrently with the roadway, and to have suitable crossings and access to areas of interest;
16. Attractively designed masonry walls and/or screening landscaping along the edges of private developments adjacent to the scenic corridor;
17. Maximum preservation of natural terrain and vegetation;
18. Grading to be kept to an absolute minimum; all necessary grading to be gently contoured and fully landscaped with native, low-water-need, fire-resistant plants to present a natural appearance;
19. All buildings in the corridor to be placed so as to preserve a clear line of sight from the roadway to the visible mountain crest;
20. Off-site advertising signs to be prohibited within the corridor;
21. On-site advertising, traffic, informational and regulatory signs to be kept to a minimum number and size, and to be of special rustic design.

It shall be the duty of the Advisory Agency to interpret and apply these standards in conformance with the spirit and intent of the Valley Circle Boulevard Plummer Street Scenic Corridor Study adopted as City policy by the City Council on March 28, 1977, under Council File No. 77-82, or with such parkway plans as may subsequently be adopted.

The standards stated herein are applicable to any subdivision or parcel map within 1500 feet of the right-of- way of Valley

Circle Boulevard from Roscoe Boulevard to Plummer Street and of Plummer Street from Valley Circle Boulevard to Topanga Canyon Boulevard as shown on the City Engineer's official cadastral or district maps.

U. **Preliminary Soils Report.** A preliminary soils report, prepared by a civil engineer registered in California, and based upon adequate test borings is required with the Tentative Map of any subdivision. Provided that the Advisory Agency may waive the preliminary soils report upon its determination that no preliminary analysis is necessary due to its knowledge of the soils qualities of the soils of the subdivision.

If the preliminary soils report indicates the presence of critically expansive soils or other soils problems which, if not corrected, would lead to structural defects, a soils investigation of each lot in the subdivision may be required. Such soils investigation shall be done by a civil engineer registered in California, who shall recommend the corrective action which is likely to prevent structural damage to each structure proposed to be constructed in the area where such soils problem exists. The Advisory Agency may approve the subdivision or a portion thereof where such soils problems exist if it determines that the recommended corrective action is likely to prevent structural damage to each structure to be constructed, and as a condition to the issuance of any building permit may require that the approved recommended action be incorporated in the construction of each structure.

SEC. 17.06. TENTATIVE MAP AND APPEALS.

A. Procedure.

1. **Filing Notice and Reports.** The subdivider shall pay the necessary fees for and file with the City Planning Department at least 25 copies of the Tentative Map, two copies of an area map showing the location of ownerships which are located within the area covered by the Tentative Map and within a 500-foot radius of the proposed subdivision; and two copies of a certified list showing the names and addresses of owners of all property and the addresses of all residential, commercial, and industrial occupants of all property located within 500 feet of the proposed subdivision.

2. **Action of Advisory Agency.** The Advisory Agency shall approve, conditionally approve or disapprove the Tentative Map pursuant to Sec. 13B.7.3. (Tentative Tract Map) of Chapter 1A of this Code.

(a) The Advisory Agency may disapprove a Tentative Map because of the flood hazard, inundation, lack of adequate access, lack of adequate water supply or fire protection, insufficient sewerage facilities, potentially hazardous geological conditions or non-compliance with the requirements of this Article, the Subdivision Map Act, or the standards, rules or regulations adopted by the Commission pursuant to the provisions of Section 17.05 (Design Standards) of this Article.

(b) Whenever two or more lots are to be created on a common slope and the City Engineer or Superintendent of Building determines that conditions so dictate, the Advisory Agency may require as a condition of approval of the Tentative Map that appropriate deed covenants, on a form approved by the City Attorney, be recorded which provide to each owner of said common slope a joint right of entry for necessary access of persons and equipment, and a joint easement over the slope area to maintain and repair any portions of said common slope.

(c) All streets on the Tentative Map shall be identified by their proposed names. All proposed street names shall be approved by the City Engineer. The Advisory Agency may withhold approval of the map if the City Engineer has determined that a proposed street name would create confusion, be misleading, be unduly long or carry connotations offensive to good taste and decency.

(d) The Department of Building and Safety may issue a building permit for a small lot subdivision if the applicant for the permit has received a vesting Tentative Tract Map approval or Preliminary Parcel Map approval for the project and has submitted proof to the satisfaction of the Department of Building and Safety that a covenant and agreement has been recorded. This covenant and agreement shall state that the applicant and the applicant's successors and assignees agree that the building permit is issued on the condition that a certificate of occupancy (temporary or final) for the building cannot be issued until after the final map has been recorded. The Department of Building and Safety shall then issue the building permit based upon the approved Tentative or Preliminary Map and its conditions of approval. The dedication, improvement, and sewer requirements identified in the approved Tentative or Preliminary Map or its conditions of approval must be guaranteed to the satisfaction of the Bureau of Engineering at the time of building permit issuance. Projects with the following features are not eligible to receive building permits prior to the recordation of a final map: off-site common access or a street or alley vacation or merger.

B. **Map Requirement.** Tentative Maps filed with the City Planning Department shall be prepared by or under the direction of a licensed surveyor or registered civil engineer. Such maps shall clearly show all information required by this article, and shall be drawn to an engineer's scale of not less than one inch equals 200 feet.

The Tentative Map shall contain all the following:

1. The tract number.
2. Sufficient legal description of the property to define its boundaries.

3. Names, addresses and telephone numbers of the record owner, subdivider, and person preparing the map.
4. North point, engineering scale, date and area.
5. The widths and approximate locations of all existing and proposed public easements or rights of way, or private street easements, within and adjacent to the property involved.
6. Locations, widths and approximate grades of existing and proposed highways, streets, alleys or ways, whether public or private within and adjacent to the property involved.
7. Existing street names, and names or designations for all proposed streets and highways.
8. Approximate radii of all center line curves for streets, highways, alleys or ways.
9. Lot layout, approximate dimensions of each lot and number of each lot.
10. The locations of potentially dangerous areas, including geologically hazardous areas and areas subject to inundation or flood hazard; the location, width and direction of flow of all watercourses, flood control channels, and mud or debris paths where ravines or swales will exist within and adjacent to the property involved; building setbacks from such hazards, the proposed method of providing flood, erosion and mud or debris control; and areas where access and emergency paths will be located in the event flood design capacity is exceeded. Lot lines shall be located so that the flow of watercourses and mud and debris paths, access and emergency paths, and setbacks shall be adjacent to lot lines or in areas or restrictions against construction.
11. The existing contour of the land at intervals of not more than five feet, and of not more than two- foot intervals if the slope of the land is less than five percent.
12. The approximate location of all buildings or structures on the property involved which are to be retained, notations concerning all buildings which are to be removed, and approximate locations of all existing wells.
13. The approximate location and general description of any large or historically significant trees and of any protected trees and an indication as to the proposed retention or destruction of the trees.
14. If any streets shown on the Tentative Map are proposed to be private streets, they shall be clearly indicated. Such streets shall conform to the requirements of Article 8 (Private Street Regulations) of this Chapter or shall have been previously approved in accordance with the then applicable provisions of the said article.
15. The proposed method of providing sewage disposal and drainage for the property.
16. A statement regarding existing and proposed zoning.

C. Protected Tree Reports for Tentative Tract Maps. No application for a tentative tract map approval for a subdivision where a protected tree is located shall be considered complete unless it includes a report, in a form acceptable to the Advisory Agency and the City's Chief Forester, which pertains to preserving the tree and evaluates the subdivider's proposals for the preservation, removal, replacement or relocation of the tree. The report shall be prepared by a tree expert and shall include all protected trees identified pursuant to Subdivision 13. of Subsection B. (Map Requirements) of this Section.

In the event the subdivider proposes any grading, land movement, or other activity within the drip line of a protected tree referred to in the report, or proposes to relocate or remove any protected tree, the report shall also evaluate any mitigation measures proposed by the subdivider and their anticipated effectiveness in preserving the tree.

SEC. 17.07. FINAL MAP STANDARDS.

A. Time Limit. See Sec. 13B.7.3.F.2. (Tentative Tract Map; Scope of Decision; Time Limit for Final Map Filing) of Chapter 1A of this Code.

B. Procedure. See Sec. 13B.7.4. (Final Tract Map) of Chapter 1A of this Code.

C. Final Map Requirements. The following information shall be submitted with the Final Map: names, addresses and telephone numbers of the record owners, subdivider and person preparing the Final Map. The general form and layout of the map, including size and type of lettering, drafting and location of acknowledgments, etc. shall be determined by the City Engineer. The map shall be prepared on high-quality tracing cloth or other material approved by the City Engineer.

1. Each sheet of said Final Map shall be 18 × 26 inches. A marginal line shall be drawn completely around each sheet, leaving a blank margin of one inch. The scale of the map shall be such as to show all details clearly. Each sheet shall be numbered, and its relation to other sheets clearly shown. The tract number, scale and north point shall be shown on each sheet. If more than three sheets are necessary to show the entire subdivision, an index map shall be included on one of the sheets. The boundary line of a subdivision shall be indicated by distinctive symbols and clearly so designated.

2. Where any land to be subdivided is separated or divided into two or more parcels or portions by any parcel of land other than a street, highway, or other public way, or a railroad, public utility or flood control right-of-way, each separate parcel or portion thereof shall be subdivided as a separate parcel and shown on a separate subdivision map.

D. Boundary Evidence. Such stakes, monuments or other evidence determining the boundaries of the subdivision as are found on the ground, together with sufficient designations of adjoining subdivisions by lot and tract number and page of record, or by section, township and range, or other proper legal description as may be necessary to locate precisely the limits of the subdivision, shall be clearly and fully shown on the Final Map.

E. Monuments.

1. **Boundary.** Each Final Map shall show durable monuments of not less than two-inch steel pipe at least 24 inches long found or set at or near each boundary corner and at intermediate points, approximately 1,000 feet apart, or at such lesser distance as may be necessary by topography or culture to assure accuracy in reestablishment of any point or line without unreasonable difficulty. The precise position and character of each monument shall be shown on the Final Map. Where the elevation of the top of each such monument is not approximately level with the surface of the ground, its relative position shall be indicated.

The establishment of boundary monuments may be required by the Advisory Agency, the Appeal Board or the City Council upon appeal, prior to the recordation of the Final Map, however, such requirement may be modified to accept the submission of complete field notes as evidence of a thorough survey, or the setting of only a portion of the boundary monuments, or the referencing of monuments to adjacent reference points. The City Engineer shall submit a recommendation concerning this matter. Said reference points shall be indicated in a set of field notes showing clearly the ties between such monuments and sufficient number to set accurately each boundary monument after recordation of the Final Map. Said boundary monuments shall be properly located by coordinates in the California Coordinate System or in such manner as determined by the City Engineer to be suitable and sufficient.

2. **Center Line.** Complete center line data, including lengths of tangents and semi-tangents, shall be shown on the map for all streets within or adjoining the tract where no official center line has been previously established. In locations where the point of intersection falls on private property, chords shall be shown instead of semi-tangents. The subdivider shall have approved monuments placed with permanent references thereto and furnish a set of field notes to the City Engineer.

3. **Deferment.** In the event any or all of the monuments required to be set are subsequent to the recordation of the Final Map, the map shall clearly show and describe such monuments. All such monuments or the furnishing of notes thereon so deferred shall be agreed to be set and furnished by the subdivider.

When the placement of monuments is to be deferred, the Bureau of Engineering shall charge and collect a fee of \$443 for the service of receiving and processing a bond to guarantee placement of the monuments.

4. **Geodetic Controls.** Ties to the Geodetic Triangulation System shall be provided where stations thereof have been established within reasonable distance from the subdivision boundary, and such ties are deemed necessary by the City Engineer.

F. Surveys.

1. **Requirements.** The procedure and practice of all survey work, done on any subdivision, shall conform to the accepted standards of engineering and surveying professions. The Final Map shall close in all its parts.

In the event the City Engineer shall have established the center line of any street or alley in or adjoining a subdivision, the Final Map shall show such center line together with the reference to a field book or map showing such center line and the monuments which determine its position. If determined by ties, that fact shall be stated on the Final Map.

2. **Notes to be Furnished.** For such center line monument set, the engineer or surveyor under whose supervision the survey has been made shall furnish to the City Engineer a set of notes showing clearly the ties such monument and a sufficient number (normally four) of durable distinctive reference points or monuments. Such reference points may be lead and tacks in sidewalks, or curbs, or 2-inch × 2-inch stakes set back of the curb line and below the surface of the ground or such substitute thereof as appears to be not more likely to be disturbed.

Such set of notes shall be of such quality, form and completeness, and shall be on paper of such quality and size as may be necessary to conform to the standardized office records of the City Engineer. All such notes shall be indexed by the City Engineer as part of the permanent public records of the City Engineer's office.

3. **Identification Marks.** All monuments set as required herein shall be permanently and visibly marked or tagged with the registration or license number of the engineer or surveyor under whose supervision the survey was made.

G. Bearings.

1. **Basis.** The Final Map shall indicate thereon the basis of bearings, making reference to some recorded subdivision map, or other record acceptable to the City Engineer.

The Final Map shall have as the basis of bearings a line based on the Geodetic Triangulation System where ties to said system are deemed feasible by the City Engineer.

2. **Distances.** The bearing and length of each lot line, block line and boundary line shall be shown on the Final Map, and each required bearing and distance shall be indicated.

H. **Lot Numbers.** The lots shall be numbered consecutively commencing with the number 1, except as otherwise provided herein, with no omissions or duplications. Each numbered lot shall be shown entirely on one sheet.

I. **Curve Data.** The length, radius and total central angle and bearings of terminal radii of each curve and the bearing of each radial line to each lot corner on each curve, and the central angle of each segment within each lot shall be shown on the Final Map.

J. **Easements.**

1. **Lines.** The Final Map shall show all the necessary data including width and side lines of all public easements to which the lots in the subdivision are subject. If the easement is not definitely located on record, a statement as to the easement shall appear on the title sheet.

2. **Designation.** Easements shall be denoted by broken lines.

3. **Identification.** Each easement shall be clearly labeled and identified and, if already of record, proper reference to the records given. Easements being dedicated shall be so indicated in the Certificate of Dedication.

K. **City Boundary Lines.** City boundary lines crossing or abutting the subdivision shall be clearly designated and tied in.

L. **Natural Water Course Designation.** In the event that a dedication of right of way for flood control or storm drainage is not required, the location of any natural water course shall be shown on the Final Map, unless such natural water course, channel, stream or creek is, shown on the grading plans to be filled or otherwise eliminated by the grading of the tract.

M. **Title Sheet.** The title sheet for each Final Map of a subdivision shall contain all the certificates and acknowledgment required by the Subdivision Map Act. The wording of such certificates and acknowledgments shall be approved by the City Attorney. Forms of certificates and acknowledgment may be obtained from the City Engineer.

N. **(This subsection intentionally left blank.)**

SEC. 17.07.1. NOTIFICATION REGARDING STREET LIGHTING MAINTENANCE ASSESSMENTS.

The City Engineer shall cause to be filed, at the time of filing of any subdivision map with the County Recorder, a notice or notices which shall provide information with respect to each parcel in the subdivision regarding the obligation of any purchaser of such property to pay street lighting maintenance assessments pursuant to the provisions of Article 1 (Lighting District Procedures) of Chapter 3 (Street Lighting Improvements) of Division 6 (Special Assessment District Procedures) of the Los Angeles Administrative Code.

SEC. 17.07.2. NOTIFICATION REGARDING SEWER PUMPING AND/OR DRAINAGE FACILITIES AND MAINTENANCE DISTRICTS.

The subdivider shall execute and record with the County Recorder a notice identifying all sewer pumping and/or drainage facilities within the subdivision, either in existence or to be constructed, which could be maintained under maintenance district procedures authorized by Division 6 (Special Assessment District Procedures) of the Los Angeles Administrative Code. Such notice shall provide information regarding the possible obligation of each lot owner for assessments and shall be recorded at the time the final subdivision map is filed with the County Recorder.

SEC. 17.08. IMPROVEMENTS.

A. **Requirements.** The streets, alleys, lots and easements in all subdivisions subject to the provisions of this Article shall be laid out to provide for sewer and drainage facilities. All streets and alleys and other public ways and easements within and immediately adjoining the subdivision, together with any drainage and sanitary sewer easements, shall be graded and improved to a width and grade in accordance with plans approved by the City Engineer. Other improvements as authorized by the Subdivision Map Act may be required.

1. In addition to permanent improvements, temporary improvements may be required to be made prior to or concurrent with permanent improvements. In Hillside Grading Areas, temporary erosion control devices shall be designed and installed in a manner approved by the Board of Public Works and the Department of Building and Safety.

2. If the subdivision has been submitted only for the purpose of clarifying records by consolidating existing lots and/or metes

and bounds parcels, or for the purpose of absorbing vacated streets or alleys or for the purpose of reversion to acreage, the Advisory Agency upon the recommendation of the City Engineer may waive all or a portion of the improvements which otherwise would be required.

B. Improvement Plans. Final plans, profiles and specifications for improvements shall be furnished to the City Engineer for approval and processing concurrently with the checking of the Final Tract or Parcel Map. Such plans, profiles and specifications shall show full details for such improvements, and shall be in accordance with the standards adopted by the City of Los Angeles.

In lieu of final plans, profiles and specifications, the subdivider may furnish preliminary plans for improvements in a form satisfactory to the City Engineer, provided the subdivider agrees to furnish final plans, profiles and specifications to the City Engineer not later than six months from the date the Final Map or Final Parcel Map is filed for recording with the County Recorder. Preliminary plans shall be of sufficient detail and extent so as to permit the City Engineer to determine the type, extent, quantity and estimated cost of the required improvements.

C. Street Lighting. Plans for a street lighting system shall be submitted to and be approved by the Bureau of Street Lighting. The time requirement for submittal shall be as prescribed in Subsection B. of this Section.

D. (This subsection intentionally left blank.)

E. (This subsection intentionally left blank.)

F. Street Trees. Arrangements between the subdivider and the City shall be made whereby the subdivider either places street trees in subdivisions to the satisfaction of the Bureau of Street Maintenance of the Department of Public Works, or makes a cash payment to the City. The amount of cash payment shall be in accordance with rates established by the Board of Public Works. When planted by the City, street trees may be planted under contract or by City forces.

Any street tree planted by a subdivider, or for which a payment is made to the City of Los Angeles to provide such tree, shall be subject to the street tree maintenance fee set forth in Section 62.176 (Street Maintenance Fee) of Article 2 (Streets and Sidewalks) of Chapter 6 (Public Works and Property) of this Code.

G. Guarantees.

1. No Final Tract or Final Parcel Map shall be presented to the Council for approval until the subdivider / owner has completed the improvements, or has guaranteed that all improvements will be constructed and installed within a specified time. The requirement of guaranteeing the construction and installation of improvements shall not be waived under any condition except as provided herein. Final Parcel Maps, the preliminary maps for which have been approved by the Advisory Agency specifying that improvements are not required until such time as a building permit or other grant of approval for development is issued, are exempt from this provision. California non-profit corporations shall be exempt from these requirements to the extent provided in the Subdivision Map Act.

2. The guarantee shall be furnished in accordance with the provisions of this subsection:

a. Improvement Agreement. The subdivider / owner shall execute an Improvement Agreement. Under the terms of this agreement, the subdivider / owner shall, among other things, agree to construct and install the improvements at the subdivider / owner's expense; shall warrant all work performed against any defective work or labor done, or defective materials furnished for a period of one year following acceptance by the City Engineer of all improvements; and shall agree to reimburse the City for all costs and reasonable expenses and fees incurred by the City in enforcing the terms of the agreement including reasonable attorney's fees.

b. Improvement Security. Performance of the Improvement Agreement shall be guaranteed by one of the following, at the option of and subject to the approval of the City:

(1) A surety bond or bonds payable to the City, executed by the subdivider / owner as principal and one or more corporate sureties authorized to act as surety under the laws of the State of California and having a certificate of authority as acceptable surety on Federal bonds; or

(2) A deposit of cash; or

(3) A deposit of negotiable United States Treasury bonds or notes, for which the faith and credit of the United States are pledged for the payment of principal and interest, payable to the bearer; or

(4) A deposit of fully insured certificates of deposit issued by a financial institution whose deposits are insured by an instrumentality of the Federal Government, together with a nonrevocable assignment to the City that pledges that the funds are on deposit and guaranteed for the performance of the Improvement Agreement. Such certificates of deposit may provide that interest shall be paid to the depositor. The assignment shall allow the City to withdraw the principal amount, or any portion thereof, upon declaration of default by the Board of Public Works without the necessity of any further consent by the depositor. The Improvement Security shall be on a form prepared by the City Engineer, shall be a joint and several obligation, and shall be in an amount estimated by the City Engineer to

be reasonably necessary to complete the construction and installation of all of the improvements required to be done pursuant to the Improvement Agreement and to warrant the work against defective work or labor done, or defective materials furnished in the performance of the work.

The term of the Improvement Security shall begin on the day it is approved by the City Council and shall continue until the work is accepted by the City Engineer.

The Improvement Security shall contain the further conditions that in addition to the face amount, all parties executing the security shall be firmly bound under a continuing obligation for payment of all reasonable costs, expenses and fees, including reasonable attorney's fees incurred by the City in enforcing the obligation secured thereby; that all parties agree to any extensions of time within which to construct and install the improvements; and that all parties further agree to such alterations of or additions to the work as may be deemed necessary by the City Engineer provided the cost increase does not exceed 10 percent of the value of the Improvement Security.

c. **Improvement Warranty Guarantee.** As a part of the Improvement Security there shall be included an amount to be determined by the City Engineer sufficient for the guarantee and warranty of the work for a period of one year following the date of acceptance of the work by the City Engineer against any defective work or labor done, or defective materials furnished in the performance of the work.

d. **Labor and Material Payment Security.** Security shall be furnished for payment of labor and materials furnished in the construction and installation of the improvements. The security shall be furnished in one of the forms described in Paragraph b. of Subdivision 2. of this Section, and shall be in an amount equal to not less than 50 percent of the Improvement Security as estimated by the City Engineer. The security shall inure to the benefit of all persons, and entities furnishing services, supplies or equipment for the improvements as referenced in Sections 3110, 3111 and 3112 of the California Civil Code. All claims under this labor and materials payment security must be filed with the City Clerk on or before the expiration of 90 days after the completion of the improvements.

e. **Existing Security.** Notwithstanding the foregoing requirements, if the subdivider / owner already has on file with the City Engineer an Improvement Security in one of the forms described in Paragraph b of Subdivision 2. of this Section, posted pursuant to Section 62.111 (Class "B" Permits – Plans – Bonds – Insurance) of Article 2 (Streets and Sidewalks) of Chapter 6 (Public Works and Property) of this Code which guarantees completion of all of the improvements designated in the Improvement Agreement and in an amount at least equal to the amount determined by the City Engineer to be necessary to complete all of the improvements, no additional Improvement Security shall be required; however, improvement warranty guarantee and labor and material security may be required.

3. **Extension of Time.** If it appears that the improvements cannot be completed by the date specified in the Improvement Agreement, written application may be made to the City Engineer for an extension of the completion date. One extension of time shall be granted to a time at which the City Engineer determines the work of improvement should reasonably be completed. Further extensions of time may be granted at the discretion of the City Engineer. If the subdivider disagrees with the determination of the City Engineer such decision may be appealed to the Board of Public Works. Any extension may be considered upon agreement by the surety and principal to:

- a. Begin or resume construction of the improvements on a schedule to be specified by the City Engineer, and/or
- b. Update the estimated cost of construction and installation of the improvements with an adjustment in the Improvement Security commensurate with the updated estimates, and/or
- c. To the extent possible, construct and install the required improvements in accordance with the standards and specifications of the Board of Public Works in effect at the time such extension of time is granted; and/or
- d. Comply with other conditions as may be deemed necessary by the City Engineer to insure diligent prosecution of the work.

4. **Reduction of Improvement Security.** When a portion of the improvements have been completed to the satisfaction of the City Engineer, the City Engineer may consent to a reduction in the amount of the Improvement Security upon written request from the subdivider / owner. The City Engineer may consent to two reductions provided the original security for the improvements exceeds \$200,000 and the work completed is identifiable, capable of being maintained by the City, and accepted by the City Engineer. In extreme hardship circumstances the City Engineer may consent to one reduction without regard to the preceding provisions. The remaining security shall be adequate to cover the estimated cost of completing the remaining improvements, the improvement warranty guarantee, and reasonable expenses and fees for enforcement of the terms of the Improvement Agreement. If a cash deposit or negotiable security is on deposit, that portion of the cash or negotiable security not required as a guarantee for the remaining improvements, improvement warranty guarantee and reasonable expenses and fees for enforcement of the terms of the Improvement Agreement, shall be returned to the depositor. If a certificate of deposit is on file, reduction in the Improvement Security will be accomplished by the City Engineer issuing a notice of reduction to the depositor and financial institution. If a surety bond is on file, reduction in the Improvement Security will be accomplished by the execution of a rider to the improvement surety bond by the principal and surety thereon and shall be effective upon approval by the City Engineer and the City Attorney.

5. **Release of Improvement Security.** When all of the requirements of the Improvement Agreement and the Improvement Security have been completed to the satisfaction of the City Engineer and the improvement warranty guarantee has expired, the City Engineer shall issue a Certificate of Acceptance and Termination of Improvement Warranty Bond to the subdivider / owner and a copy thereof shall be sent to the surety company if a surety bond is on file. However, if the improvement warranty guarantee has not expired, the City Engineer may issue a Certificate of Acceptance, which exonerates the portion of the Improvement Security guaranteeing completion of the construction and installation of the improvements, but not the improvement warranty guarantee. Said warranty guarantee shall thereafter be released in total by the City Engineer on or after one year from the date of the completion notice from the Bureau of Engineering, provided no claims against said guarantee have been made by the City.

6. **Release of Labor and Material Payment Security.** On or after ninety (90) days from the date of completion notices from both the Bureau of Contract Administration and the Bureau of Engineering, security posted under Paragraph d. of Subdivision 2. of this Section to secure payment for labor and materials may be released by the City Engineer in whole if no claims are filed or reduced to an amount equal to one-hundred and fifty (150) percent of those claims filed with the City Clerk. If a cash, negotiable security, or certificate of deposit payment security is on file, the City Engineer shall:

- a. Release the cash, negotiable security or certificate of deposit payment bond in total, if no claims have been filed; or
- b. Reduce the cash or negotiable security or certificate of deposit payment bond to an amount equal to one hundred and fifty (150) percent total amount of the claims filed with the City Clerk.

H. **Enforcement.** If the subdivider / owner neglects, refuses or fails to construct the improvements with such diligence as to insure completion within the time specified, or within such extensions of said time as may have been granted by the City Engineer or the Board of Public Works or if the subdivider / owner neglects, refuses or fails to perform satisfactorily any act required under the Improvement Agreement, the Board of Public Works may declare the Improvement Agreement in default, and shall take whatever actions are necessary to enforce the terms and conditions of the Improvement Security. The Board is hereby empowered to order all or any part of the work to be done either by City forces or by separate contract, and the City shall be entitled to reimbursement for all costs and expenses as a result of such construction. If the Improvement Security is a cash deposit, negotiable security or certificate of deposit the Board is empowered to deduct therefrom, on behalf of the City, an amount sufficient to reimburse and to indemnify the City for any and all damages, costs and expenses sustained or incurred by the City in enforcing the terms and conditions of the Improvement Agreement.

SEC. 17.09. PRIVATE STREETS.

A. Whenever a private street is proposed to be used or included in a subdivision, the private street shall conform in all respects with all the requirements contained and set forth in Article 8 (Private Street Regulations) of this Chapter. A Private Street Map need not be filed with the Advisory Agency in addition to the maps required by the provisions of this Article, however, provided that the maps filed in conformance with the provisions of this Article show such street and contain the information pertaining thereto which is required to be provided in such Private Street Maps.

B. If a private street located within the proposed subdivision has been approved in accordance with the then applicable regulations prior to filing the Tentative Map of the subdivision, such street shall be deemed to comply with the requirements of this Section and Article 8 (Private Street Regulations) of this Chapter and no further approval thereof shall be required.

SEC. 17.10. REVERSION TO ACREAGE.

A. Proceedings for reversion to acreage of subdivided real property may be initiated by the City Council on its own motion or by petition of all of the owners of record of the real property within the subdivision pursuant to Sec. 13B.7.3. (Tentative Tract Map) of Chapter 1A of this Code.

1. The petition shall take the form of a tentative tract map application to the Department of City Planning in a form prescribed by the Department. Upon the title sheet of each map filed for the purpose of reverting subdivided land to acreage, the subtitle shall consist of the words "A reversion to acreage of....". Any map so submitted shall be accompanied by evidence of title and non-use or lack of necessity of any streets or easements which are to be vacated or abandoned. Any streets or easements to be left in effect after the reversion shall be adequately delineated on the map.

2. Notice shall be given and a public hearing shall be held in accordance with the procedures set forth in Sec. 13B.7.3. (Tentative Tract Map) of Chapter 1A of this Code.

3. A tentative tract map shall be filed under the provisions of this section for the purposes of reverting to acreage land previously subdivided. A final parcel map may be recorded in lieu of a final tract map, if the property involved originally consisted of four or fewer parcels or condominium units or if the project meets the exception criteria of Section 66426 of the State Government Code and Section 17.50 C. of the Los Angeles Municipal Code. Except as provided in Government Code Section 66445 (e), a certificate shall appear signed and acknowledged by all parties having any record title interest in the land being reverted, consenting to the preparation and filing of the parcel map.

4. Maps recorded solely for the purpose of combining portions of vacated streets with adjoining lots shall be treated in

procedure as Reversion to Acreage Maps.

B. Subdivided real property may be reverted to acreage only if the City Council finds that:

1. Dedications or offers of dedication to be vacated or abandoned by the reversion to acreage are unnecessary for present or prospective public purposes; and

2. Either:

(a) All owners of an interest in the property within the subdivision have consented to reversion; or

(b) None of the improvements required to be made have been within two years from the date the final or parcel map was filed for record, or within the time allowed by agreement with the City Engineer for completion of the improvements, whichever is the later; or

(c) No lots shown on the final or parcel map have been sold within five years from the date the map was filed for record.

C. As conditions of reversion the City Council shall require:

1. Dedications or offers of dedications necessary following reversion;

2. Retention of all previously paid fees necessary to accomplish the purposes of this article;

3. Retention of any portion of required improvement security or deposits if necessary to accomplish the purposes of this article.

D. When a reversion is effective, all fees and deposits shall be returned and all improvement security released, except those retained pursuant to Subdivisions 2. and 3. of Subsection C. above.

E. After approval of the reversion by the City Council, the final map or parcel map shall be delivered to the county recorder. The filing of the final tract map or parcel map shall constitute legal reversion to acreage of the land affected thereby and shall also constitute abandonment of all streets and easements not shown on the map.

SEC. 17.10.1. MERGER AND RESUBDIVISION.

Subdivided lands may be merged and resubdivided without reverting to acreage by complying with all the applicable requirements for the subdivision of land as provided by this Article. The filing of the final map or parcel map, pursuant to Div. 13B.7. (Division of Land) of Chapter 1A of this Code, shall constitute legal merging of the separate parcels into one parcel and the resubdivision of the parcel. Any unused fees or deposits previously made pursuant to this Article pertaining to the property shall be credited pro rata towards any requirements which are applicable at the time of resubdivision. Any streets or easements to be left in effect after the resubdivision shall be adequately delineated on the map. After approval of the merger and resubdivision by the City Council, the map shall be delivered to the County Recorder. The filing of the map shall constitute legal merger and resubdivision of the land affected thereby and shall also constitute abandonment of all streets and easements not shown on the map.

SEC. 17.10.5. MAPS – LOCAL DRAINAGE DISTRICTS – EXEMPTION FROM FEES.

A. Payment of fees shall be required in the sums fixed by ordinance for local drainage districts involved and as a condition to approval of final subdivision maps, parcel maps and private street maps, except as provided in Subsection B. of this Section, whenever the City Council determined such need pursuant to former Section 11543.5 of the Business and Professions Code of the State of California or finds and determines such need pursuant to Section 66483 of the Government Code of the State of California, effective March 1, 1975 for a local drainage district, and finds:

1. that subdivision and development of property requires or will require construction of facilities described in the local drainage plan, and

2. that the fees are fairly apportioned within the area on the basis of benefits conferred on the property proposed for subdivision or on the need for facilities created by the proposed subdivision and development of other property within such area.

B. In the event the owner filing the map petitions the City Council for an exemption from payment of fees required by ordinances to be paid to defray actual or estimated costs of constructing planned drainage facilities for removal of surface and storm waters from local or neighborhood drainage areas, and the City Council finds and determines that the final subdivision map, or the parcel map, or the private street map filed for approval is not filed for subdivision or development purposes, the City Council may thereupon exempt that map from payment of said fees or other consideration notwithstanding provisions of Section 17.05 O. (Design Standards; Where Subdivision Includes Land Within Drainage District), Section 17.53 B. (Approval of Preliminary Parcel Map; Where Parcel Map Includes Land Within Drainage District), or Section 18.05 J.4. (Private Street, Lot or Building Site Standards; Improvements, Drainage

And Sewage) of this Chapter or requirements of Subsection A. of this Section or of said ordinance for such payment.

1. For purposes of this Subsection the term “subdivision” and the term “development” shall neither include nor apply to final subdivision maps, parcel maps or private street maps that are filed within the City:

(a) in connection with a sale of land which is to be further divided by the filing of either a subdivision map, parcel map or private street map prior to development occurring,

(b) solely for the purposes of reversion to acreage, or to combine portions of vacated streets with adjoining lots or parcels, or to make boundary line adjustments without creating any new lots or parcels, or to effect technical corrections on existing recorded maps in order to cause those maps to conform to actual fact, clarify the record, and cause them to read correctly, provided however that approval or recordation of such new maps does not or will not otherwise change or amend any existing recorded map or any legend thereon.

SEC. 17.11. MODIFICATIONS.

See Sec. 13B.7.3.H. (Tentative Tract Map; Modification of Entitlement) of Chapter 1A of this Code.

SEC. 17.12. PARK AND RECREATION SITE ACQUISITION AND DEVELOPMENT PROVISIONS.

See Sec. 13B.7.4.E. (Final Tract Map; Standards for Review and Required Findings) of Chapter 1A of this Code.

SEC. 17.13. SUBDIVISION REQUIRING IMPORT OR EXPORT OF EARTH.

Upon the filing of a Tentative Map which requires for its implementation the import and/or export of more than 1,000 cubic yards of earth materials, the Advisory Agency shall request that the Superintendent of Building and the General Manager of the Department of Transportation investigate the circumstances of the proposed import or export of earth materials and the effect thereof upon the public health, safety, and welfare. The Advisory Agency shall request the City Engineer to determine the effect of any import and export on the structural integrity of the public streets and to determine the effect on public safety relative to street alignment, width, and grade.

In taking action on such Tentative Map, the Advisory Agency shall impose conditions of approval to mitigate any detrimental effects of the hauling operations necessary to import or export earth, including but not limited to: designating routes to be followed by trucks hauling earth materials; limiting truck weight, length and/or speed; and other conditions of approval as may be necessary to insure repair of damages to public streets along the hauling route that may reasonably be expected to be caused by hauling operations. Such additional conditions may include a condition that the developer shall file a bond for the benefit of the City. Any such bond shall be in a form approved by the City Attorney, executed by the developer and a corporate surety authorized to do business in the State in an amount sufficient to cover the repair of any damage to the public streets reasonably expected to be caused by the hauling operations. The conditions of the bond shall guarantee to indemnify the City for all costs and expense in repairing the damaged streets or other public facilities. In lieu of a surety bond, the developer may file a cash bond with the Department upon the same terms and conditions and in an amount equal to that which would be required in the surety bond. The deposit submitted may be in the form of cash or negotiable United States securities. The term of such bond shall begin on the date of filing and shall remain in effect until the completion of the hauling operations and subsequent inspection of the affected public streets by the Department of Public Works. The Advisory Agency may disapprove the Tentative Map as provided in Section 17.06 A.2.(a) (Tentative Map Standards; Tentative Map Requirements; Action of Advisory Agency) of this Article.

SEC. 17.14. MODIFICATION OF RECORDED FINAL MAPS.

See Sec. 13B.7.4.H. (Final Tract Map; Modification of Recorded Final Tract Map) of Chapter 1A of this Code.

SEC. 17.15. VESTING TENTATIVE MAPS.

See Sec. 13B.7.3.I. (Tentative Tract Map; Vesting Tentative Map) of Chapter 1A of this Code.

SEC. 17.50. PARCEL MAPS – GENERAL PROVISIONS.

A. **Purpose.** The following parcel map regulations are intended to assure compliance with the Subdivision Map Act, Article 2 (Specific Planning – Comprehensive Zoning Plan) of this Chapter, and the City’s General Plan, to assure lots of acceptable design and of a size compatible with the size of existing lots in the immediate neighborhood; to preserve property values; to assure compliance with the Design Standards for Streets and Alleys as specified in Section 17.05 (Design Standards) of this Chapter where street or alley dedication and/or improvement are required; and to prevent interference with the opening or extension of streets necessary for emergency vehicle

access, proper traffic circulation and the future development of adjacent properties; and to provide that the dividing of land in the Hillside Grading Areas be done in a manner which will assure that the separate parcels can be safely graded and developed as building sites.

B. Scope.

1. See Sec. 13B.7.5.A. (Preliminary Parcel Map; Applicability) of Chapter 1A of this Code.
2. See Sec. 13B.7.5.F. (Preliminary Parcel Map; Scope of Decision) of Chapter 1A of this Code.
3. These regulations shall not apply to the leasing of apartments, offices, stores or similar space within an apartment building, industrial building, commercial building or mobilehome park, nor to mineral, oil or gas leases, nor shall they apply to the following divisions of land, except as may be required by Subsection C. of this Section.
 - (a) Those made in compliance with the Subdivision Map Act and the subdivision regulations contained in this Article.
 - (b) Those divisions of land made solely because of the sale, acquisition, lease or combining of lands by governmental agencies, including City of Los Angeles and any department thereof, or any further division of such lands by a lessee of such governmental agency.
 - (c) Those where the Advisory Agency or the Appeal Board determines that all the following conditions exist:
 - (1) A lot line adjustment is made between four or fewer existing adjoining lots or parcels and the land taken from one lot or parcel is added to an adjoining lot or parcel;
 - (2) The resulting number of lots or parcels remains the same or is decreased;
 - (3) The parcels or lots resulting from the lot line adjustment will conform to the General Plan, any applicable coastal plan, and zoning and building ordinances.
 - (d) Those involving land dedicated for cemetery purposes under the applicable provisions contained in the Health and Safety Code of the State of California.

C. Parcel Maps – Divisions of Land of Five or More Parcels Not Subdivisions.

1. No parcel of land shall be separated in ownership or otherwise divided into five or more parcels, where such a division is not a subdivision by reason of the exceptions contained in Subdivisions (a), (b), (c) and (d) of Section 66426 of the Subdivision Map Act, and no such divided parcel shall be separately maintained unless a Tentative Map of such division has been approved by the Advisory Agency and a Parcel Map prepared in conformity therewith and has been recorded in the office of the county recorder.
2. Where the Advisory Agency determines that a Tentative Map filed for the division of land described in Subdivision (b) and (c) of Section 66426 of the Subdivision Map Act complies with all the requirements of this Article, but that dedication for street opening or widening or easements is necessary, it shall require that an offer to dedicate such additional land as is necessary therefor to be made in a manner provided by Section 17.53 C.1. of this Chapter.
3. Where the Advisory Agency determines that a Tentative Map filed for the division of land described in Subdivision (c) of Section 66426 of the Subdivision Map Act complies with all of the requirements of this Article, but that improvement of public or private streets, highways, ways or easements is necessary for local traffic, drainage or sanitary needs, such improvements shall be constructed, or their construction and completion guaranteed in the manner provided by Section 17.08 (Improvements) of this Code, as a condition of approval of the Tentative Map.
4. No building permit shall be issued, and no building or structure shall be constructed, altered or maintained on any land which has been separated in ownership or otherwise divided into five or more parcels, where a final map is not required for such a division by reason of the exceptions contained in Subdivision (a), (b), (c) and (d) of Section 66426 of the Subdivision Map Act, in violation of the provisions of this Article. All conditions of approval shall be completed prior to submitting the parcel map to the City Engineer.

D. Waiver of Parcel Maps. See Sec. 13B.7.5.A.4. (Preliminary Parcel Map; Applicability; Waiver of Parcel Map) of Chapter 1A of this Code.

E. Slope Density. In Hillside Grading Areas, as defined in Section 17.02 (Definitions) of this Article, which are designated in the Minimum Density housing category by the applicable element of the General Plan adopted by the City Council, the dwelling unit density shall not exceed that allowed by the following formula:

Where: D = the maximum number of dwelling units per gross acre allowable, and
S = the average natural slope of the land in percent.

Where the total allowable number of dwelling units per parcel map or tentative tract map calculated under the above formulas results in a number other than a whole number, it shall be rounded to the nearest whole number as follows: where the fractional portion of the total allowable number of dwelling units equals .5 or more, the total number of allowable dwelling units shall be rounded to the next larger whole number; where the fractional portion of the total allowable number of dwelling units equals less than .5, the total number of allowable dwelling units shall be rounded to the next smaller whole number.

In no case shall the permitted density be less than 0.05 dwelling units per gross acre. Where the total allowable number of dwelling units per parcel map calculated under the above formula results in a number less than one, it shall be rounded up to allow one dwelling unit per parcel map. Where previous grading on a site makes it difficult to determine average natural slope using the above formula, the Director of Planning shall determine the average natural slope in a manner to carry out the purpose and intent of this subsection.

F. **Public Notice and Hearing.** See Sec. 13B.7.5. (Preliminary Parcel Map) of Chapter 1A of this Code.

SEC. 17.51. FILING OF PRELIMINARY PARCEL MAPS.

A. **Forms and Map Requirements.** Each person applying for approval of a parcel map required by reason of Subsection B. of this Section shall submit a reproducible preliminary Parcel Map to the City Planning Department showing the land to be divided and its proposed division. The map may be prepared by the applicant, except that the Advisory Agency may require the map to be prepared by a licensed land surveyor or registered civil engineer and that it be based upon a field survey when it determines that such is necessary to provide the information required by this section. The map shall be made on one or more sheets of tracing paper or cloth at least 8 1/2 inches by 11 inches but shall not exceed 18 × 26 inches. It shall be legibly drawn using a decimal or an engineer's scale and shall clearly show the following information:

1. The dimensions and record boundaries of the total parcel together with a legal description of the total parcel attached to the map.
2. The dimensions and boundaries of each proposed parcel.
3. The names, addresses and telephone number of the property owners, the person filing the map, and the registered civil engineer or licensed land surveyor, if any, who prepared the map.
4. The abutting streets and alleys and existing surface improvements and proposed dedications and improvements.
5. The location of other existing public easements and/or private street easements.
6. In Hillside Grading Areas, the existing contours of the land at intervals of not more than five feet.
7. The accurate location of any structures on the property.
8. Names or designations for all proposed streets.
9. Such other information as the Advisory Agency determines is necessary to properly consider the proposed division.

B. **Incomplete Map.** If at any time during the processing of the map it is discovered that the map has been improperly prepared or required pertinent information has not been submitted, the applicant shall be promptly notified in writing by mail of the defect and of further information or correction required. The time limits specified hereinafter shall not begin until the omitted or inaccurate information is furnished in a proper manner.

C. **Additional Reports.** In addition to the preliminary Parcel Map, and when determined by the Superintendent of Building or the City Engineer to be necessary, the following reports shall be submitted to the City Planning Department by the applicant when the property is located in a Hillside Grading Area, as defined in Article 1 (Building Code) of Chapter 9 (Building Regulations) of this Code.

1. A geologic report prepared by an engineering geologist, as defined in Article 1 (Building Code) of Chapter 9 (Building Regulations) of this Code, setting forth all relevant geologic data pertaining to the proposed separate parcels and including separately stated conclusions listing any potential hazards to public health, safety or welfare which may exist on the proposed parcels or which could result from grading or building upon the proposed separate parcels.

2. A report prepared by a soils engineer, as defined in Article 1 (Building Code) of Chapter 9 (Building Regulations) of this Code, setting forth sufficient engineering data to explain the proposed solutions to:

- (a) Any potential geologic hazards disclosed by the geologic report; and

- (b) Any potential geologic hazards that could be created by the proposed grading.

D. Protected Tree Reports for Parcel Maps. No application for a preliminary parcel map approval for a parcel where a protected tree is located shall be considered complete unless it includes a report pertaining to preserving the tree. The report shall be prepared by a tree expert and shall evaluate the subdivider's proposals for protected tree preservation, removal, replacement and/or relocation. In the event the subdivider proposes any grading, land movement, or other activity within the drip line of any protected tree referred to in the report, or proposes to relocate or remove any tree, the report shall also evaluate any mitigation measures proposed by the subdivider and the anticipated effectiveness in preserving the tree.

SEC. 17.52. PARCEL MAP – STANDARDS OF REVIEW AUTHORITY OF ADVISORY AGENCY.

A. Disapproval of Maps.

1. No preliminary Parcel Map shall be approved which violates or would result in a violation of, or fails to comply with, the Subdivision Map Act or any other applicable law of this City or State.
2. In addition the Advisory Agency may disapprove a preliminary Parcel Map if, after investigation, it determines that said map does not substantially comply with the various elements of the City's General Plan, or does not provide such street or alley dedication or improvements as are necessary to achieve the purposes of these regulations, or fails to provide acceptable lot design or lot sizes which closely conform to the size of the contiguous or nearby lots on the same street, or results in reorientation of a lot or parcel in such a manner as to be detrimental to adjoining properties or the surrounding neighborhood.
3. Where a Parcel Map involves land for which a General Plan, including dwelling unit densities, has been adopted by the Council, and said land is also in an "H" Hillside or Mountainous Area established by Article 2 (Specific Planning – Zoning Comprehensive Zoning Plan) of this Chapter, the number of lots or parcels on said map shall be limited so that the number of dwelling units permitted by the applicable zoning regulations shall not substantially exceed the dwelling unit densities shown on said plan.
4. Where a Parcel Map includes land upon which either a combination of parking and commercial zones or a combination of parking and industrial zones has been established, the Parcel Map shall not be approved unless each parcel being created substantially conforms to the established ratio of space for parking to space for commercial use or space for parking to space for industrial use as such ratio existed immediately prior to the land division.
5. The Advisory Agency shall disapprove a preliminary Parcel Map when the property is situated in a Hillside Grading Area as defined in Article 1 (Building Code) of Chapter 9 (Building Regulations) of this Code and the Department of Building and Safety or the Bureau of Engineering has submitted a report in writing to the Advisory Agency recommending disapproval of the preliminary Parcel Map because of any existing or potential geologic hazards lacking satisfactory engineering solutions.
6. The Advisory Agency may disapprove a preliminary Parcel Map unless the proposed name of each street thereon has been approved by the City Engineer. Advisory Agency approval shall be withheld if the City Engineer has determined that a proposed street name would create confusion, be misleading, be unduly long or carry connotations offensive to good taste and decency.

B. Lots May Be Increased in Size.

1. Where the Advisory Agency finds it necessary in order to promote the general welfare, to provide for a more consistent development for the area, and to preserve property values, it may require that lots or parcels described in a Parcel Map and located in an RA or R Zone be increased in size from that proposed so as to more closely conform to the size of existing contiguous lots or nearby parcels on the same street. However, in no case may the Advisory Agency require such parcels in the aforementioned zones other than RA, RE20 and RE40 to contain an area of more than 20,000 square feet.
2. Where the Advisory Agency finds that a future public easement will be needed on a portion of such lots or parcels for street or other public uses, it may require that such lots or parcels be increased in size from the proposed so as to provide space for such easement; and in addition, it may impose conditions prohibiting or restricting the erection for buildings, or structures on that portion needed for such easement.

C. Maps Involving Private Road Easements. Whenever a proposed division of land involves one or more parcels which are contiguous or adjacent to a private road easement with the remaining parcel contiguous or adjacent to a dedicated street, only the Parcel Map need be filed, without requiring the payment of additional fees or the filing of a Private Street Map. The Advisory Agency may approve, conditionally approve, or disapprove the map subject to the applicable provisions of this Article or Article 8 (Private Street Regulations) of this Chapter.

D. Lots in the Very High Fire Hazard Severity Zone.

1. Advisory Agency may disapprove a preliminary Parcel Map for land located in the Very High Fire Hazard Severity Zone, pursuant to Section 57.4908 of Chapter 5 (Fire Code) of this Code, because of inadequate fire protection facilities unless:
 - (a) The designated area in which buildings are to be erected on each proposed parcel or lot, as shown on said map, are

located not more than 1,000 feet from a fire hydrant, said distance to be measured along a route providing reasonable access, as determined by the Fire Chief, for the laying of fire hoses in an emergency, or

(b) Said Fire Chief reports that adequate fire protection exists, or is in the process of being provided, for said parcels or lots.

2. Upon proper application to the City Council, and upon recommendation of the Chief Engineer of Waterworks of the Department of Water and Power, the City may provide for contribution toward the cost of installation of water mains and hydrants necessary to comply with this Subsection where said Chief Engineer determines that the cost of such installation is greatly in excess of normal charges for providing like facilities.

E. **Maps Involving Future Streets.** In the event that the Advisory Agency determines that certain streets or alleys in a proposed division of land must be reserved for future public use, they shall be indicated on the preliminary Parcel Map and offered for dedication as future streets or future alleys prior to recording the Parcel Map. The applicant shall furnish the Bureau of Right-of-Way and Land an offer of dedication therefor in accordance with the provisions of Section 17.53 of this Article.

F. **(This subsection intentionally left blank.)**

G. **Maintenance of Accessory Structures.** Where the Advisory Agency determines that a proposed Parcel Map complies with all provisions of these Parcel Map Regulations, but finds that the proposed division of land will result in an accessory building or structure being on a parcel separated from the main building or a residential building being on a parcel without the required off-street parking spaces and, in order to afford the applicant time to properly provide a main building on the same parcel with the accessory structure or building, or to remove same, or to provide the required off-street parking spaces with the residential building, the Advisory Agency may approve the proposed Parcel Map and the continued use and maintenance of said accessory structures or buildings separated from the main building for a period of time not to exceed one year and the residential building without the off-street parking spaces for a period of time not to exceed 90 days subject to the following conditions:

1. That as a prerequisite to the filing of the final Parcel Map with the City Engineer, the owner or owners of record of the subject property shall record in the office of the County Recorder of Los Angeles County, California, a covenant running with the land and in which such owner or owners agree to comply with the conditions imposed by the Advisory Agency in approving the Parcel Map.

2. That upon approval of the proposed Parcel Map, in addition to the permanent copy placed on file in the City Planning Department, the Advisory Agency shall furnish a copy of said action to the applicant and to the Department of Building and Safety.

H. **Lots Involving a Common Slope.** Whenever two or more lots are to be created on a common slope and the City Engineer or Superintendent of Building determines that condition so dictate, the Advisory Agency may require as a condition of approval of the preliminary Parcel Map that appropriate deed covenants on a form approved by the City Attorney be recorded which provide to each owner of said common slope a joint right on entry for access of persons and equipment, and a joint easement over the slope area to maintain and repair said common slope.

I. When a protected tree exists on a proposed parcel, the preservation of the tree at its existing location, its relocation for preservation purposes, or the removal of the tree shall be regulated in the same manner as that provided under subdivision regulations set forth in this Article.

J. **Greater Downtown Housing Incentive Area.** In calculating the allowable floor area of a parcel map proposed to be developed as a residential (including Apartment Hotel or mixed use) building in the Greater Downtown Housing Incentive Area, any land required to be dedicated for street purposes shall be included as part of the lot area of the parcel map.

SEC. 17.53. APPROVAL OF PRELIMINARY PARCEL MAP STANDARDS OF REVIEW.

A. **Processing.** See Sec. 13B.7.5.D. (Preliminary Parcel Map; Decision) of Chapter 1A of this Code.

B. **Approval.** See Sec. Sec. 13B.7.5.D.5. (Preliminary Parcel Map; Decision; Action of Advisory Agency) of Chapter 1A of this Code.

C. **Conditional Approval.** When the Advisory Agency determines that the preliminary Parcel Map complies with all of the provisions of these parcel map regulations, but that street or alley dedications or improvements, storm drain easements, sanitary sewer easements or slope easements are necessary, or that grading or construction of an engineered retaining structure as specified in this Section is necessary. It may approve the proposed preliminary Parcel Map subject to the following conditions being complied with to the satisfaction of the City Engineer:

1. That an offer be made to dedicate such land as is necessary for street or alley purposes in compliance with the applicable street and alley design standards established in Section 17.05 (Design Standards) of this Article and such storm drain easements, sanitary sewer easements and slope easements as are deemed necessary. The offer shall be properly executed by all parties having a record interest therein including beneficiaries under deeds of trust as shown by a current preliminary title report prepared

by a title company approved by the City Engineer for that purpose. The trustee under said deed of trust shall not be required to execute the dedicatory instrument, unless, in the view of the City Engineer, such execution is necessary to satisfactorily dedicate the land. This report shall be on a form approved by the City Attorney and the City Engineer; be in such terms as to be binding on the owner, the owner's heirs, assigns or successors in interest; and shall continue until the City Council accepts or rejects it. The offer shall provide that the dedication will be complete upon acceptance by the City Council. The City Engineer or a designated deputy shall approve or disapprove the offer for recordation within ten days after it is filed with the City Engineer. The offer shall be recorded by the City Engineer in the Office of the County Recorder upon its approval by the City Engineer or said deputy. If the streets, alleys and easements being offered for dedication are required for immediate public use as streets, alleys and easements, a resolution of acceptance shall thereafter be submitted to the City Council concurrently with the final Parcel Map in order to complete the dedication. Offers to dedicate which are not required for immediate public use will be retained by the City until such time as acceptance for public use occurs. If an offer is rejected by the City Council, the City Engineer shall issue a release from such offer which shall be recorded in the office of the County Recorder.

(a) When it is determined that additional street dedication for widening will be required from property adjoining that depicted in the preliminary Parcel Map in order to comply with the applicable street standards provided for in Section 17.05 (Design Standards) of this Article, the offer of dedication provided for hereinabove shall include an agreement as a covenant running with the land that upon completion of the dedication, a one-foot wide portion of the property included within the dedication and abutting such adjoining property shall not be used for access thereto. This agreement shall be in the form of a covenant running with the land and shall be recorded, but shall by its own terms become null and void upon the completion of the dedication of the additional land needed for street purposes from the adjoining property. The City Engineer shall show that portion of the dedication which is subject to the recorded covenant on the District Maps of the City of Los Angeles. As long as said agreement remains in effect, the aforesaid one-foot strip shall not be used as a means of access to said adjoining property, nor shall any permits be issued by any City Department permitting its use for access purposes.

2. That such improvements as are required be constructed and installed to the satisfaction of the City Engineer or that construction and installation of such improvements be guaranteed in accordance with the provisions of Section 17.08 G. (Improvements; Guarantees) of this Article. Said improvements shall be limited to grading and the installation of local drainage and sewer facilities, curbs, gutters, sidewalks, street lights, street trees and roadway surfacing. In addition, the City Engineer may also require such other incidental improvements as are essential to the proper installation of the required public street or alley improvements. All such improvements shall be graded and improved in accordance with plans approved by the City Engineer. When the conditions of approval of the Preliminary Parcel Map specify that improvements are required to be constructed prior to the grant of any development right, no building permit shall be issued until the improvements have been constructed or suitably guaranteed in accordance with Section 17.08 G. (Improvements; Guarantees) of this Article.

2.5. That if grading or construction of an engineered retaining structure is required by the Advisory Agency to remove potential geologic hazards, such grading or construction shall be completed or guaranteed to the satisfaction of the City Engineer and/or the Superintendent of Building.

3. When recommended by the Fire Department, the Advisory Agency may as a condition of approval of the preliminary Parcel Map, require the installation of fire hydrants to the satisfaction of the Fire Department.

(a) Upon proper application to the City Council, and upon recommendation of the City Engineer of Waterworks of the Department of Water and Power, the City may provide for contribution toward the costs of installation of water mains and hydrants necessary to comply with this subsection where said Chief Engineer determines that the cost of such installation is greatly in excess of normal charges for providing like facilities.

4. Failure to fulfill all conditions of a conditional approval within one year after the date of such approval shall automatically terminate and void the proceedings. Upon application, prior to the expiration of the original one-year period, an extension of time for a period not exceeding one year may be granted by the Advisory Agency. The Advisory Agency's determination on an application for a time extension shall be subject to the appeal provision of Section 13B.7.8 (Subdivision Appeal) of Chapter 1A of this Code.

D. **Modification of Requirements.** See Sec. 13B.7.5.D. (Preliminary Parcel Map; Decision) of Chapter 1A of this Code.

E. **(This subsection intentionally left blank.)**

F. **(This subsection intentionally left blank.)**

G. **Where Parcel Map Includes Land Within Drainage District.** Whenever a Parcel Map, or a portion thereof includes land which is within a Local Drainage District, the provisions and requirements of the ordinance establishing such District shall be complied with.

H. **Modifications of Approved Preliminary Parcel Maps.** See Sec. 13B.7.5.H. (Preliminary Parcel Map) of Chapter 1A of this Code.

I. **(This subsection intentionally left blank.)**

J. **Further Authority.** The Advisory Agency, acting in the capacity of an Associate Zoning Administrator, shall have the authority to

reduce the width of required passageways pursuant to Section 12.21 C.2.(b) (Spaces Between Buildings – Passageways) of this Chapter to no less than five feet between habitable buildings and detached condominiums, unless the Fire Department determines that the reduction would result in a safety hazard. And shall have the authority to grant deviations of no more than 20 percent from the applicable area, yard, and height requirements. The subdivider must ask for adjustment(s) at the time of filing. In permitting adjustments, the Advisory Agency shall make the findings contained in Section 12.28 C.4.

The reductions / deviations shall be included in the written decision of the Advisory Agency. Notification and appeal rights to such reductions / deviations shall conform to Section 17.54 A.

SEC. 17.54. APPEALS.

See Sec. 13B.7.8. (Subdivision Appeal) of Chapter 1A of this Code.

SEC. 17.55. MAP IDENTIFICATION AND REPRODUCTION.

Each preliminary Parcel Map shall be identified with a number assigned by the City Planning Department and the date of filing. Said number shall be shown on the recorded Parcel Map.

SEC. 17.56. PARCEL MAP.

A. **Time Limit.** See Sec. 13B.7.5.F. (Preliminary Parcel Map; Scope of Decision) of Chapter 1A of this Code.

B. **Procedure.** See Sec. 13.B.7.6. (Final Parcel Map) of Chapter 1A of this Code.

C. **Final Parcel Map Requirements.**

1. The following information shall be submitted with the Parcel Map: names, address and telephone number of the record owners, and person preparing the Parcel Map. The general form and layout of the map, including size and type of lettering, drafting and location of acknowledgment, etc., shall be determined by the City Engineer. The map shall be prepared on high quality tracing cloth or other material approved by the City Engineer.

1.5 The map shall show the location of each parcel and its relation to surrounding surveys. The location of any remainder of the original parcel shall be shown, but need not be shown as a matter of survey but only by reference to the existing record boundaries of such remainder if such remainder has a gross area of five acres or more.

2. Each sheet of said Parcel Map shall be 18 × 26 inches. A marginal line shall be drawn around each sheet, leaving a blank margin of one inch. The scale of the map shall be such as to show all details clearly. Each sheet shall be numbered, and its relation to other sheets clearly shown. The Parcel Map number, scale and north point shall be shown on each sheet. If more than three sheets are necessary to show the entire division of land, an index map shall be included on one of the sheets.

The exterior boundary of the land included within the subdivision shall be indicated by distinctive symbols and clearly so designated. Each parcel shall be identified by a letter.

3. Where the division of land creates four or less parcels, the Parcel Map may be compiled from recorded or filed data when sufficient survey information exists on filed maps to locate and retrace the exterior boundary lines of the parcel map if the location of at least one of these boundary lines can be established from an existing monumented line.

4. All other Parcel Maps shall be based upon a field survey made in conformance with the Land Surveyor's Act.

5. The Parcel Map shall be prepared by a registered civil engineer or licensed land surveyor. A signed Surveyor's Certificate as required by the Subdivision Map Act shall appear on the Parcel Map.

5.5 Where there are no dedications being made by the Parcel Map, a certificate signed and acknowledged by the fee owners only, of the real property being subdivided, consenting to the preparation and recordation of the parcel map, shall be required.

SEC. 17.57. APPROVAL OF MAP SHALL NOT AUTHORIZE VIOLATION OF OTHER LAWS.

See Sec. 13B.7.5.F. (Preliminary Parcel Map; Scope of Decision) of Chapter 1A of this Code.

SEC. 17.58. PARK AND RECREATION SITE ACQUISITION AND DEVELOPMENT.

See Sec. 13B.7.E. (Final Parcel Map; Standards for Review and Required Findings) of Chapter 1A of this Code.

SEC. 17.59. MODIFICATION OF RECORDED PARCEL MAPS – STANDARDS OF REVIEW.

See Section 13B.7.6.H (Final Parcel Map; Modification of Recorded Final Parcel Map) of Chapter 1A of this Code.

SEC. 17.60. SALES CONTRARY TO PARCEL MAP REGULATIONS ARE VOIDABLE.

Any deed of conveyance, sale or contract to sell made contrary to the provisions of these Parcel Map regulations is voidable to the extent and in the same manner as is provided for violation of Section 66499.32 of the Subdivision Map Act.

ARTICLE 8

PRIVATE STREET REGULATIONS

Section

- 18.00 Scope.
- 18.01 Definitions.
- 18.02 Reserved.
- 18.03 Procedure.
- 18.04 Subdivisions.
- 18.05 Private Streets, Lot or Building Site Standards.
- 18.07 Posting of Private Streets.
- 18.08 Director Approval and Appeals.
- 18.09 Private Street Names.
- 18.10 Building Permits.
- 18.12 Modifications.

SEC. 18.00. SCOPE.

A. The purpose of this article is to prescribe rules and regulations governing the platting and division of land as lots or building sites which are contiguous or adjacent to private road easements; to provide for the filing and approval of Private Street Maps; to provide for the approval of private road easements as private streets, to provide for the naming of private streets, and to require that lots or building sites which are contiguous or adjacent to private streets conform to the minimum requirements of this chapter before permits may be issued. **(Amended by Ord. No. 158,691, Eff. 3/12/84.)**

B. When private streets have been laid out and designated as such to a recorded subdivision map or on a filed record of survey map, the provisions of this article shall not apply thereto.

C. When a developed residential lot or building site has its access driveway located within a private road easement that existed and was recorded prior to September 6, 1961, said private road easement shall be deemed to have been approved in accordance with the provisions of this article and may be continued. Further, on such lot or building site additions and alterations may be made to such dwelling, and accessory buildings may be erected on said lot if no additional dwelling units or guest rooms are created. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

An ordinance requiring a residence to be built upon a lot having a frontage on a street or private easement determined by the planning commission to be adequate for purposes of access is valid and is not an unlawful delegation of legislative power.

Mitchell v. Morris, Cal. App. 2d 466.

SEC. 18.01. DEFINITIONS.

For the purpose of this article, the following words and phrases are defined as follows:

“**Approved**” shall mean “Approved by the City Engineer of the City of Los Angeles,” unless otherwise specified.

“**Board**” shall mean the Area Planning Commission. **(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

“**Building site**” shall mean any parcel of land which conforms to the definition of a lot as defined herein.

“City” (Deleted by Ord. No. 173,106, Eff. 3/5/00.)

“Council” (Deleted by Ord. No. 173,106, Eff. 3/5/00.)

“Commission” (Deleted by Ord. No. 173,106, Eff. 3/5/00.)

“Director” (Deleted by Ord. No. 173,106, Eff. 3/5/00.)

“Highway, Major – Any street designated as a major highway on the Highways and Freeways maps of the Transportation Element of the General Plan. **(Added by Ord. No. 172,840, Eff. 11/4/99.)**

Highway, Secondary – Any street designated as a secondary highway on the Highways and Freeways maps of the Transportation Element of the General Plan. **(Added by Ord. No. 172,840, Eff. 11/4/99.)**

“Local street” shall mean a street providing access to abutting property and serving local, as distinguished from through traffic.

“Lot” shall mean a parcel of land conforming to the definition of LOT contained in Section 12.03 of the Los Angeles Municipal Code. **(Amended by Ord. No. 128,289, Eff. 10/15/64.)**

“Major Highway” (Deleted by Ord. No. 172,840, Eff. 11/4/99.)

“Person” shall mean natural person, joint venture, joint stock company, partnership, association, club, company, corporation, business trust, organization or the manager, lessee, agent, servant, officer or employee of any of them.

“Private road easement” See Div. 13C.1. (Administration Definitions) of Chapter 1A of this Code. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

“Private street” See Div. 13C.1. (Administration Definitions) of Chapter 1A of this Code. **(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)**

“Secondary Highway” (Deleted by Ord. No. 172,840, Eff. 11/4/99.)

“Shall” and **“may”**. **“Shall”** is mandatory. **“May”** is permissive.

SEC. 18.02. RESERVED.

(Repealed by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

SEC. 18.03. PROCEDURE.

(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

See Sec. 13B.7.7. (Private Street Map) of Chapter 1A of this Code.

SEC. 18.04. SUBDIVISIONS.

The provisions of this article shall not be construed as authorizing the subdivision of land without fully complying with the provisions contained and set forth in Article 7 of this chapter. However, the provisions of this article may be complied with by complying with the provisions of Article 7 of this chapter relating to subdivisions without the necessity for filing a Private Street Map in addition to the subdivision maps required by said article. **(Amended by Ord. No. 122,064, Eff. 6/14/62.)**

SEC. 18.05. PRIVATE STREETS, LOT OR BUILDING SITE STANDARDS.

All private streets, lots or building sites shall conform to the following regulations:

A. Major and Secondary Highways. **(Amended by Ord. No. 172,840, Eff. 11/4/99.)** The location, widths and alignment of all private streets shall conform to the location, widths and alignment of all major and secondary highways designated on the Highways and Freeways maps of the Transportation Element of the General Plan; and to any proceedings for any public improvement; and to any **“subdivision map”** which has been tentatively approved.

B. Local Street Alignment – All private streets as far as practical shall be in alignment with existing public or private streets and their proper projections or prolongations provided that where the property being divided into lots or building sites is large enough a modified curve street layout may be permitted;

C. Private Street Width – All private streets shall be designed to conform with private street standards adopted by the Commission

as provided in Section 17.05 of the Code; (**Amended by Ord. No. 122,064, Eff. 6/14/62.**)

D. Street Grades – On hillside or mountain streets comprising a through route, a grade in excess of six percent (6%) shall not be permitted unless a grade not to exceed eight percent (8%) will obviate an excessive curvature or eliminate excessive cuts. Grades of all streets shall be as low as possible consistent with the advantageous development of the proposed platting and division of land;

The grade of any street of more than local traffic needs shall not exceed ten percent (10%). No local street grade shall exceed fifteen percent (15%);

E. Curves And Tangents – A minimum center line radius of at least seventy-five (75) feet shall be used on winding mountain streets, a minimum center line radius of at least five hundred (500) feet shall be used on all through traffic streets. In flat areas, curves on local streets shall have radii as long as possible consistent with local conditions. The tangent distance between reversed curves shall not be less than fifty (50) feet;

F. Intersections – Private street intersections shall be as nearly at right angles as practicable;

G. Effect on Adjoining Property – Private street layout shall be designed to provide access to and not impose undue hardship upon property adjoining the proposed division of lands;

H. Cul-De-Sacs (Dead-End Streets) – Cul-de- sacs shall be permitted only where through streets are not practical, or where good neighborhood design suggests their use. Adequate provisions for turning shall be made at the end of each such cul-de-sacs by providing a circle or other area within a minimum over all radius of 42 feet. In the case of unusual topographic conditions, a “T” or “Y” turn may be permitted. The legs of the “T” or “Y” turn shall have a minimum paved surface 12 feet in width and 20 feet in length, the minimum radius between each leg and the street shall be 20 feet.

I. Rounding Block Corner – At all block corners, the property line shall be rounded or cut back. Intersection corners on the private street prolongation of major and secondary highways shall be rounded with 20’ radius curves and all other corners shall be rounded with 15’ radius curves provided that where business development is indicated a diagonal cut-off substantially equivalent to rounding may be used in order to aid building construction, in which case at right angle intersections a substantial equivalent shall be a ten-foot by ten-foot cutoff.

J. Improvements, Drainage And Sewage –

1. All private streets and all lots and building sites laid out contiguous or adjacent to private streets shall have approved drainage facilities and the method for sewage disposal shall be approved by the Department of Health. All such private streets shall be graded and improved to an approved width and grade. The street grading and improvement shall include surface improvements, fire hydrants and water mains, catch basins, pipe culverts, sanitary sewers where reasonably available and storm drains where required. Drainage easements shall be improved to an approved manner. Major and secondary highways shall be graded to an approved width and improved to an approved width and grade necessary for the general use of lot owners adjoining said private street and local neighborhood traffic and drainage needs;

2. Where street improvements, drainage or sewers are required to be constructed in a private street, plans and profiles showing the grades and the nature and extent of the required improvements shall be filed with the City Engineer for the City Engineer’s approval, the checking of plans, inspections, supervision and other services rendered in connection with the construction of required improvements shall be accomplished under permits in accordance with the provisions of Section 62.105(b) of this Code.

3. Where improvements have been previously constructed in a private street, plans and profiles showing the grades and the nature and extent of the existing improvements shall be filed with the City Engineer for the approval and said plans shall be checked and where additional construction is required, the same shall be inspected and supervised, and all services rendered in connection with the existing or required improvements shall be accomplished under permit in accordance with the provisions of Section 62.105(b) of this Code.

4. Whenever a Private Street Map or a portion thereof includes land which is within a Local Drainage District, the provisions and requirements of the ordinance establishing such District shall be complied with. (**Added by Ord. No. 142,862, Eff. 2/13/72.**)

K. Conformance To General Plan. (Amended by Ord. No. 138,800, Operative 6/23/69.) Each Private Street Map shall be designed in compliance with the zoning applying to the property or approved by the City Council for change.

In addition, where a Private Street Map involves land for which a General Plan including dwelling unit densities has been adopted by the Council, and said land is also in an “H” Hillside or Mountainous Area established by Article 2 of this chapter, the number of lots or building sites on said map shall be limited so that the number of dwelling units permitted by the applicable zoning regulations shall not substantially exceed the dwelling unit densities shown on said plan. Provided, however, that the Council, upon determining that a different density would be more in accord with the public health, safety and welfare after considering the existing, proposed and ultimate traffic, sewage, drainage and other facilities in the area or any other pertinent information, and after report and recommendation from the City Planning Commission, may by resolution establish a different density than that shown on the adopted General Plan. In such instances the number of lots permitted on the Private Street Map may be based on the densities established by such resolution so long as the size of such lots is not less than that required by the applicable zoning provisions. Should the Commission fail to act upon a request for different density within 50 days of its submission such request shall be transferred to the Council for action thereon.

Each Private Street Map shall substantially conform to all other elements of the General Plan as adopted by the Commission.

SEC. 18.07. POSTING OF PRIVATE STREETS.

At or near the entrance of each intersection of a private street with a dedicated public street or with another private street, there shall be erected and maintained by applicant a sign post to which is attached a sign having an area of at least 15 inches by 21 inches upon which is printed and clearly legible in at least 2-inch letters the name of the private street and the words “PRIVATE STREET,” in at least one-inch letters the words “NOT DEDICATED FOR PUBLIC USE OR MAINTAINED BY THE CITY OF L.A. (LAMC 18.07).” The words, letters and figures of the sign shall be arranged in substantially the following manner:

“(NAME OF STREET), PRIVATE STREET NOT DEDICATED FOR PUBLIC USE OR MAINTAINED BY CITY OF L.A. (LAMC 18.07)”
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SEC. 18.08. DIRECTOR APPROVAL AND APPEALS.

(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

See Sec. 13B.7.7. (Private Street Map) of Chapter 1A of this Code.

SEC. 18.09. PRIVATE STREET NAMES.

(Amended by Ord. No. 158,691, Eff. 3/12/84.)

A. Private street names shall be established or changed pursuant to procedures set forth in this section in the event no Private Street Map is required under Section 18.03.

B. For purposes of this section only, “private street” shall mean only ingress and/or egress easement, roadway, walkway, or other right of way open to travel by pedestrians, non-motorized vehicles, or motor vehicles which is not a public street or way whether or not the instrument creating it has been recorded or filed in the Office of the Recorder of Los Angeles County.

C. Applications to establish or change the name of a private street shall be filed with the City Engineer. They shall be signed by a majority of the owners of properties abutting the private street or that portion of the street to be named or renamed, and be accompanied by:

1. Payment of the required application processing fees;
2. A map, drawn to scale, delineating the location, extent, width, and alignment of the private street, the approximate location and frontage dimensions of said parcels on said street and the location of existing public streets which it may ingress or egress; and
3. Identity of the maker of the map and of the names and addresses of owners of record of property abutting the private street or that portion of the street to be named or renamed.

D. The Council may initiate proceedings to name or rename a private street. In such event the Council action shall be referred to the City Engineer. That office shall process said action in the manner set forth in Subdivision E. and, if necessary or appropriate under the circumstances, shall prepare a map in the manner which satisfies the requirements set forth in Subdivision 2. of Subsection C. of this section.

E. Where there is an application filed to name or rename a private street and no new Private Street Map is required pursuant to Section 18.03, or there is a Council- initiated request, a private street may be named or renamed to a requested new name and the necessary documents recorded by the City Engineer with respect thereto, pursuant to the following procedure:

1. The City Engineer shall determine whether the proposed new name or change of name of a street is in the public interest and will not create confusion, be misleading, or be unduly long or carry connotations offensive to good taste and decency;
2. The City Engineer shall give notice of the proposed new street name or name change to the record owners and occupants of all real property abutting such private street. The notice shall designate the location of the private street or portion thereof to which the proposed new name is to apply. The street, or the affected portion thereof, shall be described in the notice with reference to other streets, and by the name or names, if any, which it bears or by which it, or any portion thereof, may be or may

have been known, and the notice shall also state the proposed new street name. The notice shall further set forth whether or not the City Engineer's determination recommends disapproval of the proposed name for reasons provided in Subdivision 1. above, and shall state that any written objections with respect to the proposed new name or name change or the City Engineer's recommendation, shall be filed with the City Engineer within 30 days after a date designated on the notice as applicable for said purpose, and that said objections shall be signed by each person so objecting.

In the event any objections are filed within the 30-day time limit, or within said time period any objections are filed with respect to a City Engineer's recommendation of disapproval, the City Engineer shall forward these, together with the City Engineer's determination and recommendations and the applicable file to the City Council. The Council shall set the matter for hearing and the City Clerk shall thereupon notify by mail each person objecting to the proposed street name or to the City Engineer's recommendation of disapproval and inform that person of the time and place for hearing. At the time specified, the Council shall hear all objections and shall thereafter approve or disapprove the proposed street name. The City Council's decision shall be final and conclusive.

In the event no objections are filed with the City Engineer within 30 days of the date prescribed on the notice and the City Engineer has not recommended disapproval of the proposed new name, the application for that name shall be deemed approved. In the event the City Engineer has recommended disapproval of the proposed name, and no objections to that recommendation have been filed, the application shall be deemed denied.

If the new name is either approved by the Council, or in the event no Council hearing was required, and the application is deemed approved, the new private street name shall be effective and, the City Engineer shall cause any necessary indexing and/or recordation of documents to be accomplished and shall provide a copy of the determination to all City Departments rendering emergency service to the affected properties and to the United States Postal Service.

F. The approval or deemed approval of a private street name as provided for in this Chapter is not, and shall not be construed to be, an acceptance of a private street as a public street, nor shall it create any public warranty or liability or legal status as a public street or be so construed with respect thereto.

G. 1. Application processing fees shall be non-refundable.

2. The application processing fee shall be \$4,326. (Amended by Ord. No. 184,054, Eff. 3/6/16.)

SEC. 18.10. BUILDING PERMITS.

(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

See Sec. 13B.7.7.F. (Private Street Map; Scope of Decision) of Chapter 1A of this Code.

SEC. 18.12. MODIFICATIONS.

(Amended by Ord. No. 187,712, Eff. 1/23/23, Oper. 1/22/24; Ord. No. 187,930, Eff. 7/7/23.)

See Sec. 13B.7.7. H. (Private Street Map; Modification of Entitlement) of Chapter 1A of this Code.

ARTICLE 9

FEES

(Added by Ord No. 125,030, Eff. 8/15/63.)

Section

- 19.00 Filing of Applications and Appeals.
- 19.01 Filing Fee – Applications and Appeals.
- 19.02 Filing Fees – Division of Land and Private Street Maps and Appeals.
- 19.03 Fees for General Plan Consistency.
- 19.04 Fees for Sign-off or Clearance Requests.
- 19.05 Filing Fees for Environmental Clearances.
- 19.06 Filing Fees for Coastal Development Permits.
- 19.07 Fees for Flood Hazard Reports and Compliance Checks.
- 19.08 Surcharge for Development Services Centers.
- 19.09 Project Development and Counseling Services.
- 19.10 Development Agreement Fees.
- 19.11 Annual Inspection of Compliance with Floor Area Ratio Averaging and Residential Density Transfer Covenants.

- 19.12 Deviations Pursuant to Section 16.03 E.
- 19.13 Surcharge for Automated Systems for the Department of City Planning.
- 19.14 Fees for Enforcement of Housing Covenants.
- 19.15 Department of Transportation Assessment, Transportation Demand Management Compliance and Monitoring, Condition Clearance, and Permit Issuance Fees.
- 19.16 General Plan Maintenance Surcharge for the Department of City Planning.
- 19.17 Park Fee.
- 19.18 Affordable Housing Linkage Fee.
- 19.19 Westside Mobility Transportation Fees.
- 19.20 Downtown Community Benefits Fee Ordinance.

SEC. 19.00. FILING OF APPLICATIONS AND APPEALS.
(Amended by Ord. No. 188,063, Eff. 2/10/24.)

- A. **Filing Date.** See Sec. 13A.2.3. (Applications) of Chapter 1A of this Code.
- B. **Time Limit – Appeals.** See Sec. 13A.2.8. (Appeals) of Chapter 1A of this Code.
- C. **Place of Filing.** See Sec. 13A.2.3. (Applications) of Chapter 1A of this Code.
- D. **Notice of Public Hearing.** See Sec. 13A.2.4. (Notice of Public Hearing) of Chapter 1A of this Code.

E. **Annual Inflation Adjustment.** The fees in Sections 19.01 through 19.10 and Section 19.12 shall be automatically adjusted annually with the base fee amount to be the fee amount set forth herein for previously-adopted fees or, for newly-adopted fees, the base fee is the fee amount in the effective implementing ordinance, subject to an Annual Inflation Adjustment, in accordance with the latest change in year-over-year Consumer Price Index for Urban Consumers (CPI-U) in the Los Angeles area, as published by the United States Department of Labor, Bureau of Labor Statistics.

1. **Fees.** The fees in Section 19.01 through 19.10 and 19.12, as established by Ordinance No. 187,237 in 2021 and as updated on July 1, 2023 in accordance with the automatic Annual Inflation Adjustment, are referred to as the “Base Fees”.

2. **Annual Adjustment of Fee Schedule.** The next annual inflation adjustment shall automatically take effect on July 1, 2024. The Department of City Planning shall provide an updated fee schedule on an annual basis, which reflects the annual inflation adjustment calculated in accordance with the latest change in year-over-year CPI-U in the Los Angeles area from the previous calendar year. Notice of the updated fee schedule showing the current fee amounts inclusive of annual adjustments shall be published on the Department of City Planning website, as well as the Council File, no less than 30 days in advance of July 1 of every year. An updated fee schedule shall be maintained by the Department of City Planning, which shall provide a copy of the adjusted schedule to the Mayor and City Council each year.

The Director of Planning shall have the authority to adopt guidelines consistent with this chapter for the posting of notices of updated fee schedules if the Director determines that guidelines are necessary and appropriate.

SEC. 19.01. FILING FEE – APPLICATIONS AND APPEALS.
(Amended by Ord. No. 188,063, Eff. 2/10/24.)

Before accepting for filing any application or appeal involving any of the matters specified in this section, the Department of City Planning shall charge and collect the following filing fees for each application or appeal:

A. **Establishment or Change of Zones, Height Districts, or Supplemental Use Districts and Other Related Actions.** The following fees shall be charged for a zone change, height district, or supplemental use district when that action is consistent with the General Plan. (See Section 19.03 for zone change requests that are not consistent with the General Plan.)

[FILING FEE]

Establishment or Change of Zones, Height Districts, or Supplemental Use Districts and Other Related Actions	Base Fee*
Establishment or Change of Zones, Height Districts, or Supplemental Use Districts and Other Related Actions	Base Fee*
Zone Change - No New Construction (Sections 12.32 C. and F.; Section 13B.1.4.)	\$26,062
Zone Change - With New Construction (Sections 12.32 C. and F.; Section 13B.1.4.)	\$30,912
Clarification of Q Classifications or D Limitations (Section 12.32 H.; Section 13B.1.4.)	\$10,085

Amendment of Council's Instructions involving (T) Tentative Classifications (Section 12.32 H.; Section 13B.1.4.)	\$7,058
Height District Change (Section 12.32 F.; Section 13B.1.4.)	\$30,781
Supplemental Use District - Boundary Change or Repeal (Section 12.32 S.; Section 13B.1.4.)	\$72,601
Supplemental Use District - Establishment (Section 12.32 S.; Section 13B.1.4.)	\$142,533
Conditions of Approval for Oil Drilling (Section 13.01; Section 13B.2.2.)	\$59,191
Zone Boundary Line Adjustment (Sections 12.30 H. and K.; Section 13B.5.2.)	\$11,050
Building Line - Establishment, Change or Removal (Section 12.32 R.; Section 13B.1.4.)	\$12,912
Surface Mining Permits (Sections 13.03 D. and F.; Section 13B.2.3.)	\$3,678

* See Section 19.01 Q. for multiple applications.

B. Appeal Fees.

1. Except as expressly provided in Subdivision 2., below, the following fees shall be charged and collected with the filing of all appeals.

a. A fee equal to 85 percent of the total underlying application fees or \$16,586 for first level appeal and \$12,153 for additional level appeals, whichever is less when the appeal is made by the applicant.

b. A fee of \$166 in the case of an appeal by an aggrieved person, other than the applicant.

2. An appeal filed pursuant to Section 12.26 K.2. or Section 13B.10.2. of this Code shall be accompanied by a filing fee as specified in Table 4-A of Section 98.0403.2 of this Code, to be collected by the Department. An appeal filed pursuant to Section 12.26 K.6. or Section 13B.10.2.G. of this Code shall be charged a fee in accordance with Subdivision 1., above.

3. An appeal filed pursuant to Section 12.37 of this Code shall be accompanied by a filing fee in the amount of \$1,647, to be collected by the Department.

[FILING FEE]

Type of Application	Base Fee
Appeal Fee - Applicant (first level appeal)	\$16,586
Appeal Fee - Applicant (additional level of appeal)	\$12,153
Person other than the Applicant	\$166

C. Commission Conditional Uses and Other Similar Quasi-judicial Approvals and Public Benefit Approvals.

[FILING FEE]

Type of Application	Base Fee*
Class 3 Conditional Use Permit (Sections 12.24 U. and 12.24 V.; Section 13B.2.3.)	\$26,248
Public Benefits Class 2 Conditional Use Permit (Section 14.00 B.; Section 13B.2.2.)	\$12,688
Modification of Existing Class 3 Conditional Use Permit (Sections 12.24 C. and 12.24 D.; Section 13B.2.3.H.)	\$21,679
Letters of Correction, Modification or Clarification of a determination by a ZA or the Director initiated by Applicant	\$4,904

* See Section 19.01 Q. for multiple applications.

D. Variances, Adjustments, or Modifications from the Regulations and Requirements of the Zoning Ordinances.

[FILING FEE]

Type of Application	Base Fee*
Variance (Sections 12.24 Y. and 12.27; Section 13B.5.3.)	\$13,934
Adjustment except Single-Family dwelling (Section 12.28; Section 13B.5.2.)	\$9,629
Adjustment for Single-Family dwelling (Section 12.28; Section 13B.5.2.)	\$9,629
Reasonable Accommodation Determination (Section 12.22 A.27.; Section 13B.5.5.)	\$0

* See Section 19.01 Q. for multiple applications.

E. Zoning Administrator Conditional Uses, Interpretations, and Various Quasi-judicial Approvals.

1. The following fees shall be charged pursuant to Section 12.24, Section 13B.2.1., or Section 13B.2.2. of this Code to applicants seeking the following permits, interpretations or approvals:

[FILING FEE]

Type of Application	Base Fee*
Type of Application	Base Fee*
Zoning Administrator Interpretation of Yard or Use Regulations (Section 12.21 A.2.; Section 13A.1.7.D.2.)	\$10,725
Class 2 Conditional Use Permit - Alcohol and Entertainment (Sections 12.24 W.1. and 12.24 W.18.; Section 13B.2.2.)	\$10,967
Class 2 Conditional Use Permit - all other uses (Section 12.24 W.; Section 13B.2.2.)	\$15,364
Modification or Review by Zoning Administrator (Sections 12.24 J., 12.24 L., and 12.24 M.; Section 12.23 C.4.(a); Sections 13B.2.1.H. and 13B.2.2.H.)	\$6,731
Relief from Fence Height Limitation (Sections 12.24 X.7., 12.24 X.8., and 12.28; Sections 13B.2.1. and 13B.5.2.)	\$10,377
Child Care less than or equal to 50 children in the R3 zone or Large Family Daycare (Section 12.24 X.24.; Section 13B.2.1.)	\$5,653
Certified Farmers' Market (Section 12.24 X.6.; Section 13B.2.1.)	\$4,685
Service of Alcohol in a small restaurant less than or equal to 50 seats (Section 12.24 X.2.; Section 13B.2.1.)	\$8,127
Approval to Erect Amateur Radio Antenna (Section 12.24 X.3.; Section 13B.2.1.)	\$2,700
Zoning Administrator Determination under Section 12.24 X. unless listed separately (Section 12.24 X.; Section 13B.2.1.)	\$8,362

* See Section 19.01 Q. for multiple applications.

2. A fee shall be charged pursuant to Section 12.24 B.1. of this Code to applicants seeking a conditional use permit that requires a consultation with the Department for preliminary project review. See Section 19.09.

3. The following fees shall be charged pursuant to Sections 12.24 F. and 12.24 Z.2. or Sections 13B.2.1.D.5., 13B.2.2.D.5., 13B.2.3.D.5., and 13B.6.1. of this Code for costs associated with permit clearance, condition compliance monitoring and inspections conducted by the City, and revocation proceedings:

[CLEARANCE/REVOCATION/ENFORCEMENT FILING FEE]

Type of Application	Base Fee
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Monitoring of Conditional Use Permits (Sections 12.24 F., 12.24 D., 12.24 W., or 12.24 X.; Sections 13B.2.1., 13B.2.2., and 13B.6.1.)	\$1,878
Inspection and Field Compliance Review of Operations (Sections 12.24 F., 12.24 D., 12.24 W., or 12.24 X.; Sections 13B.2.1., 13B.2.2., and 13B.6.1.)	\$816

F. Fees for Historic Related Applications.

[FILING FEE]

Type of Application	Base Fee*
Type of Application	Base Fee*
Historic Preservation Overlay Zone (HPOZ): Establishment, Change or Removal (Section 12.20.3 F.; Section 13B.8.2.)	\$140,589
HPOZ Preservation Plan (Section 12.20.3 E.; Section 13B.8.3.)	\$40,345
HPOZ Certificate of Appropriateness: not involving new construction or additions (Section 12.20.3; Section 13B.8.5.)	\$1,776
HPOZ Certificate of Appropriateness or Compatibility: for additions to existing square footage, up to a 20% increase in building coverage (Section 12.20.3; Section 13B.8.5.)	\$1,855
HPOZ Certificate of Appropriateness or Compatibility: for additions to existing square footage, greater than a 20% increase in building coverage (Section 12.20.3; Sections 13B.8.5. and 13B.8.7.)	\$2,295
HPOZ Certificate of Appropriateness or Compatibility: for new residential construction, 1 to 4 units, or for new commercial and mixed-use construction, up to 5,000 square feet (Section 12.20.3; Sections 13B.8.5. and 13B.8.7.)	\$2,562
HPOZ Certificate of Appropriateness or Compatibility: for new residential construction, 5 units or more, or for new commercial and mixed-use construction, 5,000 square feet or greater (Section 12.20.3; Sections 13B.8.5. and 13B.8.7.)	\$3,062
HPOZ Certificate of Appropriateness or Compatibility: for new accessory building construction (Section 12.20.3; Sections 13B.8.5. and 13B.8.7.)	\$1,805
Major Conforming Work on Contributing and Non-Contributing Elements (Section 12.20.3; Section 13B.8.4.)	\$595
Modification of a Certificate Determination	\$642
Historic Resources Building Permit Clearance (Larger Project**) (Section 91.106.4.5)	\$1,127
COA-DEM: Demolition of Main Structure (Section 12.20.3; Section 13B.8.6.)	\$11,475
Mills Act Application Processing Fee (LAAC Section 19.144)	\$711
Mills Act Contract Execution Fee (LAAC Section 19.144)	\$2,984
Mills Act Application Valuation Exemption (LAAC Section 19.144)	\$3,242
Mills Act Application (Appeal of Staff Determination to Cultural Heritage Commission) (LAAC Section 19.144)	\$2,504
Mills Act Contract Compliance Inspection (once every 5 years) (LAAC Section 19.144)	\$2,825
Technical Corrections to previously certified Historic Resource (Applicant Initiated)	\$3,547
Historic Resources - Environmental Impact Report Review (hourly)	\$209
Preliminary Evaluation of Demolition or Relocation without Permit (Section 12.20.3 Q.; Section 13B.8.1.E.)	\$10,223

Historic Resource Assessment Review	\$1,044
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* See Section 19.01 Q. for multiple applications.

**** Larger Project**, for purposes of this section, is defined as any project so determined by the Director of Planning of the Department of City Planning for which the planning or processing of requests for administrative permit clearances will significantly impact departmental resources.

G. Commission or Director Approvals.

[FILING FEE]

Type of Application	Base Fee*
Type of Application	Base Fee*
Project Compliance, Design Overlay Plan Approvals, or other Director's Determination (DIR) cases - Minor (Sections 11.5.7 and 11.5.14 and Chapter I, Article 3; Section 13B.4.2.)	\$2,649
Project Compliance, Design Overlay Plan Approvals, or other DIR cases - Standard (Sections 11.5.7 and 11.5.14 and Chapter I, Article 3; Section 13B.4.2.)	\$5,610
Project Compliance, Design Overlay Plan Approvals, or other DIR cases - Standard (Single-Family) (Sections 11.5.7 and 11.5.14 and Chapter I, Article 3; Section 13B.4.2.)	\$2,623
Project Compliance, Design Overlay Plan Approvals or other DIR cases - Major (Sections 11.5.7 and 11.5.14 and Chapter I, Article 3; Section 13B.4.2.)	\$6,444
Project Compliance, Design Overlay Plan Approvals, or other DIR cases - Major (Single-Family) (Sections 11.5.7 and 11.5.14 and Chapter I, Article 3; Section 13B.4.2.)	\$2,884
Project Compliance with Design Review Board - Minor (Sections 11.5.7 and 11.5.14 and Chapter I, Article 3; Section 13B.4.3.)	\$3,426
Project Compliance with Design Review Board - Standard (Sections 11.5.7 and 11.5.14 and Chapter I, Article 3; Section 13B.4.3.)	\$7,060
Project Compliance with Design Review Board - Standard (Single-Family) (Sections 11.5.7 and 11.5.14 and Chapter I, Article 3; Section 13B.4.3.)	\$3,426
Project Compliance with Design Review Board - Major (Sections 11.5.7 and 11.5.14 and Chapter I, Article 3; Section 13B.4.3.)	\$7,999
Project Compliance with Design Review Board - Major (Single-Family) (Sections 11.5.7 and 11.5.14 and Chapter I, Article 3; Section 13B.4.3.)	\$3,635
Design Review Board - Preliminary Design Review (Section 16.50 E.3.; Section 13B.4.3.)	\$4,650
Design Review Board - Preliminary Design Review for Single-Family Residential Dwelling (Section 16.50 E.3.; Section 13B.4.3.)	\$2,326
Project Adjustment (Section 11.5.7 E. and 11.5.14; Section 13B.4.4.)	\$4,880
Project Exception (Section 11.5.7 F.; Section 13B.4.5.)	\$15,885
Specific Plan Amendment (Section 11.5.7 G.; Section 13B.1.2.); Redevelopment Plan Amendment (Section 11.5.14; Section 13B.1.2.)	\$35,417
Specific Plan Interpretation (Section 11.5.7 H.; Section 13B.4.6.)	\$5,600
Waiver of Dedications and Improvements (Section 12.37 I.)	\$7,165
Alternative Compliance (Section 13B.5.1)	\$7,060

* See Section 19.01 Q. for multiple applications.

The following definitions shall be used in the categories for Project Compliance:

Minor cases are defined as three or less signs or a change of use.

Standard cases are defined as more than three signs, wireless cases, or projects with additions of less than 200 square feet.

Major cases are all other projects not falling into the categories of Minor or Standard cases.

H. **Fees – Exceptions.** The fees as provided for in this section shall be subject to the following exceptions:

1. The fees contained in this section shall apply to the City departments of Airports, Harbor, and Water and Power, but shall not apply to any other governmental agency.
2. No fee shall be required in connection with an application for variance from the minimum lot area requirements of an improved lot, or on appeal from a ruling on the variance application, where it is shown that the lot neither conformed with the minimum lot area requirements at the time of issuance of the original building permit nor constituted a nonconforming lot.
3. No fee shall be required in connection with an application, appeal, or approval of plans for a conditional use for a child-care facility or nursery school which is determined to be nonprofit, including, but not limited to, parent-cooperatives and facilities funded by a governmental agency or owned or operated by a philanthropic institution, religious institution, or similar institution. A facility funded by a governmental agency shall indicate the principal current and anticipated source of funds. Where any uncertainty exists as to the nonprofit status of the facility, the applicant shall file a copy of the articles of incorporation or an affidavit, to the satisfaction of a Zoning Administrator, showing that the child-care facility will be nonprofit.
4. No fee shall be required in connection with an application, appeal, or approval of plans for a conditional use or variance for a nonprofit counseling and referral facility.
5. At the discretion of the appropriate decision-maker, an applicant for any determination for which fees are required by this section may be allowed credit for the fees paid upon a reapplication for the same project under a different procedure when the decision-maker finds:
 - (a) That the applicant made a good-faith attempt to file the application properly, and
 - (b) That the application could be more appropriately approved if filed under a different procedure.

This subdivision shall not be construed to allow credit to be given at the applicant's option, nor to allow refunds of any fees paid on the original application.

6. No fee shall be required in connection with an initial application for continuation of a nonconforming use made pursuant to Section 12.24 X.27. of this Code.
7. Where an exception from a specific plan and a variance or conditional use or other similar quasi-judicial approval are both required for a project, the lower of the fees charged for the exception and variance, conditional use or other similar quasi-judicial approval shall be waived.
8. No fee shall be required in connection with an initial application for a site plan review for a project within a designated Enterprise Zone or Employment and Economic Incentive Zone.
9. In addition to the fees set forth in this article, the Department of City Planning may negotiate with an applicant, pursuant to LAAC Section 5.121.9.3, for reimbursement of the actual costs associated with the City's processing of discretionary actions or other Planning reviews and processes for applications involving extraordinary projects, which require unusually heavy commitments of department resources but not involving a "major project", as that term is defined in LAAC Section 5.121.9(b).

I. **Transfer Plan.**

[FILING FEE]

Type of Application	Base Fee*
Approval of Transfer of Floor Area Plan - less than and including 49,999 square feet (Section 14.5.7 and Chapter I, Article 4.5)	\$16,500
Approval of Transfer of Floor Area Plan - 50,000 square feet or greater (Section 14.5.6 and Chapter I, Article 4.5)	\$26,723

* See Section 19.01 Q. for multiple applications.

J. **Extension of Time or Suspension of Time Limits for Planning and Zoning Matters.**

[FILING FEE]

Type of Application	Base Fee
Time Extension for Planning and Zoning Matters other than Maps	\$582

K. Adult Entertainment Business Exception.**[FILING FEE]**

Type of Application	Base Fee*
Adult Entertainment Business Exception within 500 feet of another Adult Entertainment Establishment (Section 12.22 A.20.)	\$17,520

* See Section 19.01 Q. for multiple applications.

L. Modification of Entitlement.**[FILING FEE]**

Type of Application	Base Fee*
Director Approval - First Entitlement (Section 13B.5.4)	\$3,978
Director Approval - Each Additional Entitlement (Section 13B.5.4)	\$199
Zoning Administrator Approval - First Entitlement (Section 13B.5.4)	\$4,773
Zoning Administrator Approval - Each Additional Entitlement (Section 13B.5.4)	\$199
City Planning Commission / Area Planning Commission Approval - First Entitlement (Section 13B.5.4)	\$5,966
City Planning Commission / Area Planning Commission Approval - Each Additional Entitlement (Section 13B.5.4)	\$398

M. Density Increase. (Amended by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**[FILING FEE]**

Type of Application	Base Fee*
Application for a Density Bonus in conjunction with: Up to one waiver of a development standard under the Mixed Income Incentive Program; or Up to three waivers of a development standard under the Affordable Housing Incentive Program. (Section 12.22 A.38.(d)(3); Section 12.22 A.39.(d)(3); Section 13B.2.5.)	\$9,459
Application for a Density Bonus in conjunction with: Waivers under the State Density Bonus Program; More than one waiver under the Mixed Income Incentive Program; or More than three waivers under the Affordable Housing Incentive Program. (Section 12.22 A.37.(d)(3); Section 12.22 A.38.(d)(4); Section 12.22 A.39.(d)(4); Section 13B.2.3.)	\$24,349
Application for a Density Bonus in excess of that permitted by Section 12.22 A.37. (Section 12.24 U.26.; Section 13B.2.3)	\$24,359

* See Section 19.01 Q. for multiple applications.

N. Modifications or Discontinuance of Use Pursuant to Nuisance Abatement Proceedings.

[FILING FEE]

Type of Application	Base Fee
Home-Sharing Administrative Hearing (Section 12.22 A.32.; Sections 13B.6.1. and 13B.6.2.)	\$20,980
Imposition of Conditions (City Initiated) (Section 12.27.1; Section 13B.6.2.)	\$55,495
Modification (Applicant Initiated) (Section 12.27.1; Section 13B.6.2.)	\$44,646
Plan Approval for Revocation Case (Section 12.27.1; Section 13B.6.2.)	\$52,783
Revocation, Suspension or Restriction Proceedings for Non-Compliance of Conditions (Initial Deposit)* (Section 12.24 Z.; Section 13B.6.1.)	\$5,000

* With respect to Section 12.24 Z. and Section 13B.6.1., fees shall be paid for the actual costs associated with the revocation process that exceed the initial deposit amount. The Department of City Planning shall calculate the actual costs and resultant fee, in accordance with Section 5.121.9.3(b)3. of LAAC Chapter 6 of Division 5 and shall maintain appropriate accounting records of the actual costs. The Director of Planning shall resolve any dispute related to the fee. The Director shall exclude from consideration any cost incurred or attributed to the processing of appeals.

O. Project Review.**[FILING FEE]**

Type of Application	Base Fee*
Project Review Application for Residential Project of 50 or more dwelling units (Section 16.05 C.; Section 13B.2.4.)	\$11,399
Non-Residential or Mixed-Use Building Project Review Application (Section 16.05 C.; Section 13B.2.4.)	\$11,399

* See Section 19.01 Q. for multiple applications.

P. Hillside Permit Filing Fees. The following applications are subject to Hillside Permit Filing Fees:

1. Applications pursuant to Section 12.21 A.17. of this Code to permit increased Lot coverage, reduced parking or additional height for Single-Family Dwellings on properties designated Hillside Area on the Department of City Planning Hillside Area Map (Section 12.24 X.11.);
2. Applications to permit construction of or addition to Single-Family Dwellings on properties designated Hillside Area on the Department of City Planning Hillside Area Map which front onto Substandard Hillside Limited Streets, which are improved to a width of less than 20 feet;
3. Applications to permit construction of, or addition to, Single-Family Dwellings on properties designated Hillside Area on the Department of City Planning Hillside Area Map on Substandard Hillside Limited Streets where providing parking requires the Grading of 1,000 or more cubic yards from the Lot (Section 12.24 X.21.).
4. Applications pursuant to Section 12.21 C.10. and Section 12.24 X.28. on properties zoned R1, RS, RE, or RA and designated Hillside Area on the Department of City Planning Hillside Area Map to:
 - (a) Reduce Front and Side Yard setback requirements;
 - (b) Permit additions of up to 1,000 square feet to Structures existing prior to August 1, 2010;
 - (c) Exceed the maximum envelope height;
 - (d) Increase the maximum Lot coverage;
 - (e) Exceed the Grading, import and export limits;
 - (f) Reduce the number of required off-street parking; or
 - (g) Permit construction of or addition to Single-Family Dwellings on properties which front onto Substandard Hillside Limited Streets, which are improved to a width of less than 20 feet.

[FILING FEE]

Type of Application	Base Fee
Hillside Permit Filing Fee (Section 12.24 X.21.; Section 13B.2.1.)	\$11,834

Q. Multiple or Combination Applications. If more than one application is filed at the same time for the same project and the fee for each separate application is set forth in Sections 19.01, 19.03, or 19.06, then the charges will be as follows: 100% for the highest application fee, 50% for the second application (second highest fee), and 25% for each additional application fee.

R. Expedited Permit Fee. At the request of the applicant, the Department may charge a fee to offset expenses for additional human and physical resources necessary to expedite the permit process for development projects upon application by an applicant. A minimum initial deposit of \$8,500 or, as adjusted by the Director of Planning, in addition to fees charged elsewhere in this Code, shall be collected at the time of the request. In addition, fees shall be paid by the applicant for any additional costs that exceed the initial deposit.

The Department of City Planning shall calculate the costs and resultant fee, at the hourly rate in this section, in accordance with LAAC Section 5.121.9.3(b)3. of Chapter 6 of Division 5 and shall maintain appropriate accounting records of the actual costs. The Director of Planning shall resolve any dispute related to the fee. The Director shall exclude from consideration any cost incurred or attributed to the processing of appeals.

The Department shall cause all money collected pursuant to this section to be deposited into the Planning Case Processing Fund as prescribed in LAAC Section 5.121.9.2(c) of Chapter 6 of Division 5 for purposes of disbursement as permitted therein.

[FILING FEE]

Type of Application	Base Fee
Expedited Review Services (hourly)	\$240

S. Eldercare Facility Unified Permit Application.

[FILING FEE]

Type of Application	Base Fee*
Eldercare Facility Unified Permit Application (Section 14.3.1; Section 13B.2.2.)	\$14,206

* See Section 19.01 Q. for multiple applications.

T. Home-Sharing Registration Application Fee.

[FILING FEE]

Type of Application	Base Fee
Home-Sharing Application or Renewal (Section 12.22 A.32.)	\$192
Extended Home-Sharing Administrative Clearance (Section 12.22 A.32.)	\$1,030
Extended Home-Sharing Discretionary Review Application (Section 12.22 A.32.)	\$15,166
Extended Home-Sharing Renewal (Section 12.22 A.32.)	\$1,030

The Department of City Planning shall cause all money collected pursuant to this section to be deposited into the Short-Term Rental Enforcement Trust described in LAAC Section 5.576(b) of Chapter 170 of Division 5 for purposes of disbursement as permitted therein.

The following fees and charges shall be paid to the Department, except as otherwise specified here, in connection with the following:

A. Subdivision Maps.

1. Tentative Map.

(a) Single-Family Residential Dwellings:

Type of Application	Base Fee
Tentative Map - Single-Family Zones - 5-49 Lots	\$13,579
Tentative Map - Single-Family Zones - Each additional Set of 50 Lots over 49 Lots	\$6,895

(b) Multi-Family Residential Dwellings:

Type of Application	Base Fee
Tentative Map - MF Residential - 5-49 Units	\$13,893
Tentative Map - MF Residential - 50-99 Units	\$15,788
Tentative Map - MF Residential - 100 Units or More	\$19,316

(c) Commercial/Industrial:

(1) With Building:

Type of Application	Base Fee
Tentative Map - Commercial/Industrial w/ Building - Less than 50,000 square feet of Floor Area	\$13,579
Tentative Map - Commercial/Industrial w/ Building - 50,000-99,999 square feet of Floor Area	\$14,727
Tentative Map - Commercial/Industrial w/ Building - 100,000-249,999 square feet of Floor Area	\$16,083
Tentative Map - Commercial/Industrial w/ Building - 250,000 square feet of Floor Area or More	\$18,013

(2) Without Building:

Type of Application	Base Fee
Tentative Map - Commercial/Industrial w/o Building - Less than 1 Acre	\$12,641
Tentative Map - Commercial/Industrial w/o Building - 1 to Less than 5 Acres	\$13,579
Tentative Map - Commercial/Industrial w/o Building - 5 Acres or More	\$14,006

(d) Phasing of Map. For each request for the Advisory Agency to approve the recording of a final map which covers only a portion of the property shown on an approved tentative map pursuant to the provisions of Section 17.07 B. and Section 13B.7.4. of this Code, a fee of \$9,859.

(e) Very High Fire Hazard Severity Zone. For tentative maps within Very High Fire Hazard Severity Zones, as described in Section 57.4908 of this Code, a surcharge of one-half the sum of the fees paid pursuant to Paragraphs (a) through (c) shall be paid.

(f) Mixed-Use. Where the project involves a combination of Single-Family, Multi-Family, Commercial, and/or Industrial uses, the highest fee, including modifications to the base fee, shall be charged at 100%, the second highest at 50%, and the third and subsequent fee at 25%. This fee discounting shall not apply to the surcharge required by Paragraph (e) of this subdivision.

(g) Bureau of Engineering Fees. In addition to the fees imposed pursuant to the provisions of this subdivision, before acceptance for examination by the City Engineer, the Bureau of Engineering shall charge and collect for each application the following nonrefundable fees applicable to the project for which the application is made:

(1) For each subdivision tract of fewer than 20 lots, a fee of \$8,240. For each modified or revised subdivision

tract of fewer than 20 lots requiring a revised engineering report, a fee of \$1,854.

(2) For each subdivision tract of 20 or more lots, actual Bureau of Engineering costs and a deposit for such costs as determined and collected pursuant to the provisions of Section 61.15 of this Code. For each modified or revised subdivision tract of 20 or more lots requiring a revised engineering report, a fee of \$1,854.

2. Final Map.

(a) Before acceptance for examination by the City Engineer, the Bureau of Engineering shall charge and collect for each application the following nonrefundable fees that apply to the project for which the application is made:

(1) For each subdivision tract of fewer than 20 lots, a fee of \$8,240.

(2) For each subdivision tract of 20 or more lots, actual Bureau of Engineering costs and a deposit for such costs as determined and collected pursuant to the provisions of Section 61.15 of this Code.

(3) For each airspace subdivision, actual Bureau of Engineering costs and a deposit for such costs as determined and collected pursuant to the provisions of Section 61.15 of this Code.

(b) For each subdivision that is located entirely or partly within a Very High Fire Hazard Severity Zone as determined pursuant to the provisions of Section 57.4908 of this Code, the Bureau of Engineering shall charge and collect a surcharge in the amount of 50% of the fee imposed pursuant to the provisions of Paragraph (a) of this Subdivision.

(c) In addition to the fee and surcharge imposed pursuant to the provisions of Paragraphs (a) and (b) of this subdivision, the Bureau of Engineering shall charge and collect a resubmission fee of \$824 for each and every map or any part of a map submitted to the City Engineer more than three times, including the original submission, and the fee shall be paid to the Bureau of Engineering upon each and every submission to the City Engineer thereafter.

(d) In addition to all other fees charged pursuant to the provisions of this subdivision, if a final map is filed for the purpose of reverting subdivided land to acreage or for merger and re-subdivision of land pursuant to the provisions of Section 17.10 or 17.10.1 of this Code, the Bureau of Engineering shall charge and collect a fee of \$2,549.

3. **Improvement Plans.** Engineering, checking and inspection fees shall be deposited with the City in accordance with the provisions of Sections 62.109 and 62.110 of this Code.

4. **Appeals.** Each appeal of a tentative or final map shall be accompanied by the payment of a fee pursuant to Section 19.01 B.

5. **Modifications.** Each request for a modification of an approved Tentative Map or Recorded Final Map shall be accompanied by the payment of the appropriate fee indicated in Section 19.02 F.

B. Parcel Maps.

1. Preliminary Parcel Map.

(a) Residential Dwellings, up to 4 Lots:

Type of Application	Base Fee
Preliminary Parcel Map - Residential Dwellings, up to 4 Lots - Single-Family Zones	\$13,204
Preliminary Parcel Map - Residential Dwellings, up to 4 Lots - Multi-Family	\$13,621

(b) Commercial/Industrial, up to 4 Lots:

(1) With Building:

Type of Application	Base Fee
Preliminary Parcel Map - Commercial/Industrial (w/ Building), up to 4 Lots - Less than 50,000 square feet of Floor Area	\$13,726
Preliminary Parcel Map - Commercial/Industrial (w/ Building), up to 4 Lots - 50,000 to Less than 100,000 square feet of Floor Area	\$14,717
Preliminary Parcel Map - Commercial/Industrial (w/ Building), up to 4 Lots - 100,000 to Less than 250,000 square feet of Floor Area	\$16,125
Preliminary Parcel Map - Commercial/Industrial (w/ Building), up to 4 Lots - 250,000 square feet of Floor Area or More	\$18,013

(2) Without Building:

Type of Application	Base Fee
Preliminary Parcel Map - Commercial/Industrial (w/o Building), up to 4 Lots - Less than 1 Acre in Area	\$12,975
Preliminary Parcel Map - Commercial/Industrial (w/o Building), up to 4 Lots - 1 to Less Than 5 Acres in Area	\$12,975
Preliminary Parcel Map - Commercial/Industrial (w/o Building), up to 4 Lots - 5 Acres or More in Area	\$12,975

(c) **Other Parcel Map Actions:**

Type of Application	Base Fee
Parcel Map Exemption (Lot Line Adjustment) (Section 17.50 B.3.(c); Section 13B.7.2.)	\$2,804
Parcel Map Waiver (Section 17.50 B.3.(d); Section 13B.7.2.; Gov. Code §§ 66412(a) and 66412.1(a) & (b))	\$3,784

(d) **Very High Fire Hazard Severity Zone.** For preliminary parcel maps within the Very High Fire Hazard Severity Zones, as described in Section 57.4908 of this Code, a surcharge of one-third the sum of the fees paid pursuant to Paragraphs (a) and (b) shall be paid.

(e) **Mixed-Use.** Where the project involves a combination of Single-Family, Multi-Family, Commercial, and/or Industrial uses, the highest fee, including modifications to the base fee, shall be charged at 100%, the second highest at 50%, and the third and subsequent fee at 25%. This fee discounting shall not apply to the surcharge required by Paragraph (d) of this subdivision.

(f) **Bureau of Engineering Fees.** In addition to the fees imposed pursuant to the provisions of this subdivision, before acceptance for examination by the City Engineer, the Bureau of Engineering shall charge and collect for each application the following nonrefundable fees applicable to the project for which the application is made:

- (1) For each map, a fee of \$8,240.
- (2) For each modified or revised map requiring a revised engineering report, a fee of \$824.
- (3) For each parcel map exemption, a fee of \$1,262.

2. **Certificate or Conditional Certificate of Compliance.** A fee of \$4,920 shall be paid for each determination of the Advisory Agency with respect to a certificate or conditional certificate of compliance pursuant to the Subdivision Map Act in California Government Code Section 66499.35. The above fee shall be waived when the Advisory Agency has approved a division of land and collected a fee without the requirement of a final map being filed with the County Recorder. In every case, the applicant shall also pay a fee equal to the amount required by law for recording any certificate or conditional certificate of compliance issued in connection with the decision. Before acceptance for examination by the City Engineer, the Bureau of Engineering shall charge and collect a fee of \$1,262 for the review and processing of each application for a Certificate of Compliance.

Type of Application	Base Fee
Certificate or Conditional Certificate of Compliance - Determination	\$4,920

3. **Final Parcel Map.**

(a) Before acceptance for examination by the City Engineer, the Bureau of Engineering shall charge and collect a nonrefundable fee of \$8,240 for each final parcel map submitted, except for airspace parcel maps. For each airspace parcel map application submitted, the Bureau of Engineering shall charge actual Bureau of Engineering costs and a deposit for such costs as determined and collected pursuant to the provisions of Section 61.15 of this Code.

(b) For each subdivision that is located entirely or partly within a Very High Fire Hazard Severity Zone as determined pursuant to the provisions of Section 57.4908 of this Code, the Bureau of Engineering shall charge and collect a surcharge in the amount of 50% of the fee imposed pursuant to the provisions of Paragraph (a) of this subdivision.

(c) In addition to the fee and surcharge imposed pursuant to the provisions of Paragraphs (a) and (b) of this subdivision, the Bureau of Engineering shall charge and collect a resubmission fee of \$824 for each and every map or any

part of a map submitted to the City Engineer more than three times, including the original submission, and the fee shall be paid to the Bureau of Engineering upon each and every submission to the City Engineer thereafter.

(d) In addition to all other fees charged pursuant to the provisions of this subdivision, if a final map is filed for the purpose of reverting subdivided land to acreage or for merger and re-subdivision of land pursuant to the provisions of Section 17.10 or 17.10.1 of this Code, the Bureau of Engineering shall charge and collect a fee of \$1,854.

(e) Before acceptance for examination by the City Engineer, the Bureau of Engineering shall charge and collect a fee of \$1,262 to review and process each application for a final map waiver requested pursuant to the provisions of Section 17.50 D. and Section 13B.7.5. of this Code.

4. **Appeals.** Each appeal of a parcel map shall be accompanied by the payment of a fee pursuant to Section 19.01 B.

5. **Modifications.** Each request for a modification of an approved Preliminary Map or Recorded Final Map shall be accompanied by the payment of the appropriate fee indicated in Section 19.02 F.

C. Private Street Map.

[FILING FEE]

Type of Application	Base Fee
Deemed to be Approved Private Street (Section 18.00 C.)	\$4,687
Private Street Map (Section 18.08; Section 13B.7.7.)	\$14,069
Very High Fire Hazard Severity Zone Private Street Map (Section 17.52 D.)	\$22,470

1. In the event the person plotting or dividing land as lots or building sites pursuant to Article 8 of this chapter shall elect to subdivide land in accordance with Article 7 of this chapter within one year from the filing date of the private street map, the fees required and paid under this subsection may be applied against the payment of the fees required by Subsection A of this section.

2. For each request for modification of the requirements governing private streets pursuant to the provisions of Section 18.12 and Section 13B.7.7.H., a fee of \$3,323 shall be paid. For each and every lot or building site shown on a private street map, excepting the lots or building sites as are shown at the request of the City Engineer to facilitate the description of the land to be acquired by condemnation proceedings, a fee of \$59 shall be paid.

3. Before acceptance for examination by the City Engineer, the Bureau of Engineering shall charge and collect for each private street map application a fee of \$6,304, and shall charge and collect for each modified or revised street map application requiring a revised engineering report a fee of \$630.

D. Mobile Home Park Impact Reports.

[FILING FEE]

Type of Application	Base Fee
Mobile Home Park Impact Report (Section 17.04)	\$13,682

If no request for hearing is filed within the time periods set forth in Section 47.09 D.5. of this Code, upon written demand by park management, a refund of \$5,229 shall be made to park management.

E. Condominium Conversion for Subdivision and Parcel Maps.

1. Residential Dwellings:

Type of Application	Base Fee
1 to 4 Units	\$15,822
5 to 49 Units	\$18,743
50 to 99 Units	\$22,561
100 Units or More	\$25,336

For the approval of any relocation assistance plan required by Section 12.95.2 F.6., a fee of \$186.

2. Commercial/Industrial:

Type of Application	Base Fee
Less than 50,000 Square Feet of Floor Area	\$13,819
50,000 to Less Than 100,000 Square Feet of Floor Area	\$14,769
100,000 to Less Than 250,000 Square Feet of Floor Area	\$15,655
250,000 Square Feet of Floor Area or More	\$16,667

3. **Mixed-Use:** Where the project involves a combination of Residential, Commercial, and/or Industrial uses, the highest fee shall be charged at 100%, the second highest at 50%, and the third and subsequent fee at 25%. This fee discounting shall not apply to the fee required by Section 19.02 E.1.(a) of this Code.

F. Map Related Fees.

Type of Application	Base Fee
Review of Revision of Tentative/Preliminary Map	\$3,174
Modification to Approved Tentative/Preliminary Map or Recorded Final Map (Sections 17.14, 17.59)	\$8,912
Reversion to Acreage (Section 17.10)	\$8,922
Time Extension for Maps (Sections 17.07 A.2. and 17.56 A.2.; Sections 13B.7.3.F. and 13B.7.5.F.)	\$1,067
Letter of Clarification or Correction (initiated by Applicant)	\$4,786

SEC. 19.03. FEES FOR GENERAL PLAN CONSISTENCY.

(Amended by Ord. No. 188,063, Eff. 2/10/24.)

The following fees shall be charged when a zone change is requested by an applicant that necessitates the initiation of a General Plan Amendment to achieve consistency between the requested zone change and the General Plan:

Type of Application	Base Fee*
Zone Change and associated costs for a General Plan Amendment for less than 400 dwelling units, 500,000 square feet for commercial/ industrial, or 250,000 square feet for mixed-use (Section 11.5.6; Section 13B.1.1.)	\$33,790
Zone Change and associated costs for a General Plan Amendment for 400 dwelling units or greater, 500,000 square feet or greater for commercial/industrial, or 250,000 square feet or greater for mixed-use (Section 11.5.6; Section 13B.1.1.)	\$40,284
Annexation, Zone Change and associated costs for a General Plan Amendment less than 400 dwelling units, 500,000 square feet for commercial/industrial, or 250,000 square feet for mixed-use (Section 11.5.6; Section 13B.1.1.)	\$91,084
Annexation, Zone Change and associated costs for a General Plan Amendment for 400 dwelling units or greater, 500,000 square feet or greater for commercial/industrial, or 250,000 square feet or greater for mixed-use (Section 11.5.6; Section 13B.1.1.)	\$92,753
Street Re-Classification	\$16,761

* See Section 19.01 Q. for multiple applications.

SEC. 19.04. FEES FOR SIGN-OFF OR CLEARANCE REQUESTS.

(Amended by Ord. No. 188,063, Eff. 2/10/24.)

The following fees and charges shall be paid to the Department of City Planning in connection with sign-off or clearance requests:

Type of Application	Base Fee
Type of Application	Base Fee
Public Benefit Project Clearance for by-right project (Section 14.00 A.)	\$603
Miscellaneous Clearance - ZA (Section 12.24 and all other projects)	\$2,347
Miscellaneous Clearance - ZA SF dwellings with no exceptions (Section 12.24 and all other projects)	\$842
Request for Approval to erect temporary Subdivision Directional Signs (First Sign) (Section 12.21 A.7.)	\$452
Request for Approval to erect temporary Subdivision Directional Signs (Each Additional Sign) (Section 12.21 A.7.)	\$400
Miscellaneous Clearance - Director	\$2,132
Miscellaneous Clearance - Commission	\$2,522
Landscape Plan Approval as part of a Discretionary Approval	\$1,005
Miscellaneous Clearance - Advisory Agency	\$713
Miscellaneous Clearance - Approval of plans for Substantial Conformance	\$2,681
Building Permit Clearance - Minor	\$313
Administrative Review - Minor	\$1,408
Administrative Review - Major	\$4,173
Administrative Clearance - Restaurant Beverage Program (Sections 12.22 A.34., 12.22 A.35.)	\$2,347
Monitoring - Restaurant Beverage Program (Sections 12.22 A.34., 12.22 A.35.)	\$1,878
Inspection and Field Compliance Review - Restaurant Beverage Program (Sections 12.22 A.34., 12.22 A.35.)	\$816

A. **Development Plans.** Each final development plan for a residential planned development filed with the City Planning Commission for its report and recommendation subsequent to the application for the establishment of a Residential Planned Development District (RPD District), as defined in Section 13.04 shall be accompanied by a filing fee of \$199 plus \$1.70 for each acre or portion of an acre shown on the plan.

B. **Modification of Plans or Conditions.** Each request to the City Planning Commission for its report and recommendations on modifications of an approved final development plan in an RPD District or of a condition imposed on a residential planned development shall be accompanied by a filing fee of \$263.

SEC. 19.05. FILING FEES FOR ENVIRONMENTAL CLEARANCES.
(Amended by Ord. No. 188,063, Eff. 2/10/24.)

A. **Fees.** For the preparation and processing of required studies, analysis, reports, findings, mitigation measures, certifications, and notices under the California Environmental Quality Act (CEQA), all fees, deposits, and costs provided in Subsections 1. and 2. below, shall be paid. All monies required to be paid in this Section, shall be paid to the City Planning Department at the time the permit application is filed unless otherwise indicated in this Section. The determination of the necessary actions to comply with CEQA is at the City's discretion acting as the lead or responsible agency.

1. Categorical Exemptions (CEs), Negative Declarations (NDs)/Mitigated Negative Declarations (MNDs), Environmental Assessment Forms (EAFs), and Addenda:

Table 1. Fees for CEs, EAFs, NDs, and MNDs

Type of Application	Base Fee
Categorical Exemption (Classes 1-31, 33)	\$556
Class 32 Categorical Exemption	\$4,481
EAF / Initial Study leading to ND or MND or Statutory Exemptions (except Sustainable Communities Project Exemption)	\$6,911
MND / Expanded Initial Study, Subsequent Approval Review (CEQA Guidelines Section 15162), or Addendum to ND or MND - Expanded	\$12,163

Subsequent Approval Review (CEQA Guidelines Section 15162) or Addendum to ND or MND	\$2,692
Publication Fee for Notice of Intent to Adopt ND or MND (pass through of publishing costs)	\$1,700

2. EIRs, SCPEs, and SCEAs:

(a) **Deposit.** An initial deposit as provided in Table 2 below, is required at the time of an application for an EAF, resulting in an Environmental Impact Report (EIR), Sustainable Communities Project Exemption (SCPE), Sustainable Communities Environmental Assessment (SCEA), or any other environmental clearance available in CEQA that is not otherwise expressly listed in Subsections 1. or 2. (Other CEQA Clearance).

Table 2. Deposits and Fees for EIRs, SCEAs, SCPEs and Other CEQA Clearances

Type of Application	Base Fee
Type of Application	Base Fee
EIRs (includes Focused EIRs) - Initial Deposit	\$15,000
SCPE, SCEA, or Other CEQA Clearance - Initial Deposit	\$10,000
Subsequent Approval to EIR (CEQA Guidelines Section 15162) - Initial Deposit	\$7,500
EIR (including Supplemental, Subsequent, Tiered, Focused, or Addendum to EIR) Review Services (hourly)	\$209
SCPE Review Services (hourly)	\$209
SCEA Review Services (hourly)	\$209
Other CEQA Clearance Review Services (hourly)	\$209

(b) **Full Cost Recovery.** For any costs incurred by the City, other than for those CEQA clearances or notices identified in Table 1, above, the applicant is responsible for all of the City's actual costs to comply with CEQA. All other costs shall be paid at the cost invoiced by the City for the City's actual costs.

(c) **Indemnification and Defense.** Applicants are responsible for any and all costs incurred by the City in defense of any and all actions or claims arising in full or in part out of the City's processing of a project application filed under Chapter 1 or Chapter 1A and the City's actions to comply with CEQA. Applicants shall deposit \$50,000 (or an amount found necessary by the City Attorney's Office to ensure the City's costs are fully covered) to the City Attorney's Office upon receipt of a tender of defense letter. The Applicant shall pay all invoices from the City Attorney's Office for its costs and ensure that the initial deposit is maintained in full at all times prior to final disposition of the case or action.

B. Child Care Fees. No fee shall be charged in connection with the processing of an initial study or filing of an EIR for any child care facility or nursery school which is determined to be nonprofit, including, but not limited to, parent cooperatives and facilities funded by a governmental agency or owned or operated by a philanthropic institution, church, or similar institution. A facility funded by a governmental agency shall indicate the primary current and anticipated source of funds.

Where any uncertainty exists as to the nonprofit status of the facility, the applicant shall file a copy of the articles of incorporation or an affidavit showing, to the satisfaction of a Zoning Administrator, that the child care facility will be nonprofit.

SEC. 19.06. FILING FEES FOR COASTAL DEVELOPMENT PERMITS. (Amended by Ord. No. 188,063, Eff. 2/10/24.)

A. Filing Fees. In addition to any other fees set forth in this Code, the following fees shall be charged and collected by the permit granting authority in connection with the filing of all applications for coastal development permits:

Type of Application	Base Fee*
Coastal Development Permit for Single-Family residential dwelling (Section 12.20.2; Section 13B.9.1.)	\$12,605
Coastal Development Permit for Multi-Family residential dwelling (Section 12.20.2; Section 13B.9.1.)	\$16,709
Coastal Development Permit for Non-residential (Section 12.20.2; Section 13B.9.1.)	\$16,709
Coastal Development Permit Exemption Determination (Section 12.20.2.1; Sections 13B.9.1. and 13B.9.2.)	\$1,565

Coastal Development Permit Amendment (Sections 12.20.2.1 Q. and 12.20.2 O.; Sections 13B.9.1. and 13B.9.2.)	\$10,988
Coastal Development Permit - Mello Compliance Review - City Review (Section 12.20.2)	\$3,394

* See Section 19.01 Q. for multiple applications.

B. Filing Fees for Environmental Impact Reports and Negative Declarations. Where an environmental impact report or negative declaration is prepared for a project for which application for a coastal development permit has been made, a negative declaration or environmental impact report shall consider the effect of the project in light of the criteria established in Section 12.20.2 G.1.(a) through (e) and Section 13B.9.1.D.-E. of this Code, and no additional charge shall be made. Where the underlying project is otherwise exempt from the preparation of a negative declaration or environmental impact report but either document is required for the coastal development permit, those fees set forth in Section 19.05 of this Code shall be applicable, and shall be collected by the appropriate permit granting authority.

SEC. 19.07. FEES FOR FLOOD HAZARD REPORTS AND COMPLIANCE CHECKS. (Amended by Ord. No. 188,063, Eff. 2/10/24.)

A. Basic Review Fee. Except for services subject to the provisions of Subsection B. or C. of this section, the Bureau of Engineering shall charge and collect a fee of \$273 to perform each of the following services pertaining to Flood Hazard compliance:

- 1. Flood Hazard Compliance Check Fee.** Review to verify that a permitted project would or does comply with the requirements of the Los Angeles Specific Plan for the Management of Flood Hazards (Ordinance 172,081, as may be amended) and the National Flood Insurance Program.
- 2. Elevation Certificate Processing Fee.** Process an Elevation Certificate for building permits located in floodplain zones, in compliance with the requirements of the Los Angeles Specific Plan for the Management of Flood Hazards (Ordinance 172,081, as may be amended) and the National Flood Insurance Program.
- 3. Floodproofing Certificate Processing.** Process a Floodproofing Certificate for a commercial project or a non-single-family development proposed in a floodplain zone, in compliance with the requirements of the Los Angeles Specific Plan for the Management of Flood Hazards (Ordinance 172,081, as may be amended) and the National Flood Insurance Program.
- 4. Letter of Map Change/Conditional Letter of Map Change Processing.** Process a Conditional Letter of Map Revision, Conditional Letter of Map Amendment, Letter of Map Revisions, or Letter of Map Amendment.

B. Reviews or Services Requiring Additional Staff Time of 16 or Fewer Hours. For all Bureau of Engineering services identified in Subsection A. of this section for which a fee of \$273 is charged, and which will require Bureau staff to review plans or surveys, or take other action in addition to that normally required to accomplish the task for which the \$273 fee is charged, the Bureau shall charge and collect a fee pursuant to the provisions of Section 61.14 of this Code, except for reviews or services provided pursuant to the provisions of Subsection C. of this section.

C. Reviews or Services Requiring Additional Staff Time of More than 16 Hours. For all Bureau of Engineering services identified in Subsection A. of this section for which a fee of \$273 is charged, and which will require Bureau staff to review plans or surveys, or take other action, and where Bureau staff will be required to provide more than 16 hours of staff time in addition to that normally required to accomplish the task for which the \$273 fee is charged, the Bureau shall charge and collect actual Bureau of Engineering costs and a deposit for such costs as determined and collected pursuant to the provisions of Section 61.15 of this Code.

D. All Fees Owed Prior to Bureau Action. The Bureau of Engineering shall not issue any approval or decision with respect to any matter for which this section requires payment to the Bureau until all monies owed pursuant to the provisions of this section are paid.

SEC. 19.08. SURCHARGE FOR DEVELOPMENT SERVICES CENTERS. (Amended by Ord. No. 188,063, Eff. 2/10/24.)

A. There shall be added to each fee imposed for any permit, license, or application provided for in this article, a surcharge in an amount equal to the greater of 3% of the fee or \$1.00.

B. The previous surcharge amount of 2% is increased solely to pay for the \$21.76 million cost of developing and implementing BuildLA, a comprehensive enterprise-wide development services system, and shall not be used to pay for ongoing BuildLA costs, such as maintenance or system hosting services.

C. The surcharge shall be returned to the greater of 2% or \$1.00 when the City Administrative Officer determines the surcharge increase has recovered the \$21.76 million cost of BuildLA.

SEC. 19.09. PROJECT DEVELOPMENT AND COUNSELING SERVICES.**(Amended by Ord. No. 188,063, Eff. 2/10/24.)****[FILING FEE]**

Type of Application	Base Fee
Zoning Pre-Check with Feasibility Study (Minor/Review) (Section 12.24; Sections 13B.2.1., 13B.2.2., and 13B.2.3.)	\$1,460
Zoning Pre-Check with Pre-Application Review (Major)	\$3,129

SEC. 19.10. DEVELOPMENT AGREEMENT FEES.**(Amended by Ord. No. 188,063, Eff. 2/10/24.)****[FILING FEE]**

Type of Application	Base Fee
Development Agreement Fee (Section 12.32; Sections 13B.1.2., 13B.1.3. and 13B.1.4.)	\$32,807

In addition to the fees set forth above, the City may negotiate with the applicant for reimbursement of the actual costs to City associated with administering the development agreement, pursuant to LAAC Section 5.121.9.3. The actual costs assessed shall be offset by the fees collected as indicated in the table above.

SEC. 19.11. ANNUAL INSPECTION OF COMPLIANCE WITH FLOOR AREA RATIO AVERAGING AND RESIDENTIAL DENSITY TRANSFER COVENANTS.**(Amended by Ord. No. 188,063, Eff. 2/10/24.)**

A fee of \$300 shall be charged and collected by the Department of Building and Safety to cover the cost of an annual inspection to monitor compliance with, and maintain records of, the covenant required pursuant to Sections 12.24 B.25. and 12.24 C.58. of this Code, recorded prior to July 1, 2000, and Section 12.24 W.19. of this Code on and after July 1, 2000.

SEC. 19.12. DEVIATIONS PURSUANT TO SECTION 16.03 E.**(Amended by Ord. No. 188,063, Eff. 2/10/24.)**

Applicants for determinations by the Zoning Administrator for deviations pursuant to Section 16.03 E. of this Code shall pay a fee of \$869.

SEC. 19.13. SURCHARGE FOR AUTOMATED SYSTEMS FOR THE DEPARTMENT OF CITY PLANNING.**(Amended by Ord. No. 173,268, Eff. 7/1/00, Oper. 7/1/00.)**

A. **Operating Surcharge.** There shall be added to each fee imposed for any permit, plan check, license or application provided for in Chapter I of this Code a surcharge in an amount equal to the greater of 7 percent of the fee or \$1.00, except that any other surcharge shall be excluded from the computation of this surcharge. Moneys received from this surcharge shall be deposited and maintained in the City Planning Systems Development Fund pursuant to Los Angeles Administrative Code Section 5.457 for the maintenance and operation of automated systems. Exempted from this surcharge are all fees and costs imposed pursuant to Section 12.37.

B. **Development Surcharge.** There shall be added to each fee imposed for any permit, plan check, license or application provided for in Chapter I of this Code an automated systems development surcharge in an amount equal to the greater of 6 percent of the fee or \$1.00, except that any other surcharge shall be excluded from the computation of this surcharge. Moneys received from this surcharge shall be deposited into the City Planning Systems Development Fund pursuant to Los Angeles Administrative Code Section 5.457. Exempted from this surcharge are all fees and costs imposed pursuant to Section 12.37. **(Amended by Ord. No. 176,489, Eff. 4/13/05.)**

SEC. 19.14. FEES FOR ENFORCEMENT OF HOUSING COVENANTS.**(Amended by Ord. No. 184,654, Eff. 1/16/17.)**

(a) Unless a fee Exemption pursuant to Section 19.14(b) applies, the following fees shall be charged and collected by the Los Angeles Housing Department (Department) for the preparation, enforcement, monitoring, and associated work relating to the affordable housing

covenants required by Sections 12.22 A.37., 12.22 A.38., 12.22 A.39., 12.22 A.29.(d)(1) through (2), and 14.00 A.10.(c)(2) of this Code. **(Amended by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)**

Type of Service:	Fee:
Housing Replacement Determinations pursuant to AB 2222	\$1,027.00 per unit
Affordable Housing Covenant Preparation	\$5,770.00* per project
Affordable Housing Covenant Amendments	\$5,770.00 per amendment
Affordable Housing Covenant Assumptions and Terminations	\$1,214.00 per assumption or termination
Affordable Housing Covenant Monitoring	\$173.00* per restricted unit, per year
Filing Fee	\$43.00* per project

(b) **Fee Exemption:** New projects subject to an affordable housing covenant described in Section 19.14(a) wherein at least 50% of the units are restricted for use as permanent supportive housing shall be exempt from the fees above marked with an asterisk.

(c) Any owner or landlord of a project subject to an existing affordable housing covenant in effect prior to the effective date of the fees set forth in Section 19.14(a) and which contains a conflicting monitoring fee amount, shall be subject to the fee set forth in the existing covenant.

(d) The fees in Section 19.14(a) shall be fully due and payable at the time of the request for service, except for the affordable housing monitoring fees, which may be paid pursuant to the options set forth in Section 19.14(e).

(e) The affordable housing covenant monitoring fees may be pre-paid in full at or before the time of the recording of an underlying affordable housing covenant or billed annually to an owner or landlord upon the issuance of the Certificate of Occupancy for the project subject to an underlying affordable housing covenant. **(Amended by Ord. No. 184,907, Eff. 5/17/17.)**

(f) The Department shall have the right to bring legal action in any court to collect the amount of any outstanding fees. The Department may make such rules and regulations as may be necessary to carry out the provisions of this section.

SEC. 19.15. DEPARTMENT OF TRANSPORTATION ASSESSMENT, TRANSPORTATION DEMAND MANAGEMENT COMPLIANCE AND MONITORING, CONDITION CLEARANCE, AND PERMIT ISSUANCE FEES.

(Title and Section Amended by Ord. No. 188,664, Eff. 8/10/25.)

A. **Fees.** The following specific fees shall be paid to the Department of Transportation (Department) for the preparation and processing of transportation assessments, review of site Transportation Demand Management (TDM) plans and monitoring data, clearance of conditions, and permit sign-offs in connection with obtaining any environmental clearance and/or permit issuance related tasks:

- (1) Building Permit Sign-Offs (See Note 1) \$595
- (2) Dedication & Widening Waivers \$675
- (3) Department Referral Form (See Note 2) \$670
- (4) Driveway Permit Sign-Offs (See Note 3) \$810
- (5) Haul Route Review \$650
- (6) Master Plan / Complex Circulation Review (See Note 4) \$2,360
- (7) Project Condition Clearance (See Note 5) \$455
- (8) Revocable Permit \$370
- (9) Bureau of Engineering Referral (e.g., Street Vacation, Quitclaim, Rejection of Future Dedication, etc.) \$1,495
- (10) Subdivision Report \$370
- (11) Hillside Development Construction Management Plan \$685
- (12) Engineering Services (e.g., Timing Charts, Related Projects List, Inspections, etc.) See Subsection (c)

- (13) Planning Services (e.g., Travel Data Requests, Travel Demand Model Runs, etc.) See Subsection (d)
- (14) Bike Parking in Public Right-of-Way, pursuant to Div. 4C.3. (Bicycle Parking) of Chapter 1A of this Code (See Note 6) \$560
- (15) Site TDM Plan Review Level 1 Projects \$835
- (16) Site TDM Plan Review Level 2 and Level 3 Projects \$1,770
- (17) Site TDM Plan Review that includes TDM Strategies Requiring Agency Pre-Approval (See Note 7) \$3,240
- (18) Annual TDM Plan Compliance Documentation Review Level 1 and Level 2 Projects \$615
- (19) Annual TDM Plan Compliance Documentation Review and Monitoring Report Review Level 3 Projects \$2,505
- (20) Annual TDM Plan Compliance Documentation Review Level 1 and Level 2 Projects with Transportation Management Organization (TMO) Credit (See Note 8) \$330
- (21) Annual TDM Plan Compliance Documentation Review and Monitoring Report Review Level 3 Projects with TMO Credit (See Note 8) \$835
- (22) Vehicle Miles Traveled (VMT) Tool / Calculator Review \$1,375
- (23) Technical Study (See Note 9) \$2,105
- (24) Transportation Assessment Memorandum of Understanding (MOU) \$1,850
- (25) Transportation Assessment Review (See Note 10) \$7,870
- (26) Transportation Assessment Review / Plan Review - Expedited See Subsection (e)
- (27) Major Projects Transportation Assessment Review (See Note 11) \$9,690
- (28) Long-Term Worksite Traffic Control Plan Review (Over 72 Hours) \$2,465

Note 1: For a project with multiple addresses and permits (i.e., multi-family units), a charge of \$595 shall be assessed per distinct site plan and not per unit. For example: if, for a 100-unit small lot subdivision condominium project, each unit falls into one of three different site plan options, then the Department review fee would be \$1,785 ($\595×3) even if there are 100 separate building permits to approve.

Note 2: The Department Referral Form also may be submitted to the Department in the form of a Site Plan Review Form. If this is the case, the Department Referral Form fee would still apply.

Note 3: When reviewing a Building Permit application that also includes a Driveway Permit Sign-Off, the applicant should not be charged two fees (Building Permit and Driveway Permit). Instead, the applicant should be charged only the Building Permit fee if the driveway plan does not include a new curb cut. If the driveway plan does include a new curb cut, then the applicant should be charged only the Driveway Permit Sign-Off fee.

Note 4: This fee applies to a Master Plan or similar large scale project with complicated circulation plans that require considerable staff time to review.

Note 5: A charge of \$455 for the first three condition clearances plus \$200 for each additional condition clearance.

Note 6: A charge of \$560 to review the first five bicycle racks installed in the public right-of-way, plus \$415 for each additional five bike racks, not to exceed a total of \$975.

Note 7: This fee applies if the TDM Plan includes any TDM strategies that need to be pre-approved by the Department, Los Angeles Metropolitan Transportation Authority, or other authorizing agency as defined in the TDM Program Guidelines.

Note 8: If the party responsible for submitting either Annual TDM Plan Compliance Documentation and/or an Annual TDM Monitoring Report is a current member of a Transportation Management Organization (TMO) that is certified in accordance with the Department's TMO Certification Guidelines, the party shall only be required to pay a \$330 annual monitoring fee for Level 1 and Level 2 Projects, and a \$835 annual monitoring fee for Level 3 Projects. The responsible party may include, but is not necessarily limited to, a property owner or property manager.

Note 9: A "technical study" can include, but is not limited to, technical memorandums (defined in the Department's Transportation Assessment Guidelines), trip generation assessments, transportation assessment supplements, a user defined TDM Strategy review, shared parking analysis, etc. The fee includes the cost to process a study MOU, if required.

Note 10: A charge of \$7,870 for the first five study intersections plus \$500 per each additional study intersection, not to exceed a total of \$25,000.

Note 11: Any project that is required to assess access to pedestrian, bicycle, and transit facilities as indicated in the Department of City Planning's Transportation Study Assessment Referral Form and/or a Transportation Assessment MOU, shall pay the Major Project Transportation Assessment Review fee.

Special Note: If a project is approved by the Department through the subdivision clearance or building permit process and all applicable fees have been paid, future approvals will not require additional fees as long as there have been no substantial changes to the approved portion of the project.

B. Transportation Review Fee Fund. Each fee collected pursuant to this section shall include a flat technology support fee to be deposited into Transportation Review Fee Fund No. 50Y. This fund shall be used exclusively by the Department to provide funding for the continual enhancement of development review-related information technology systems and for the procurement costs associated with equipment, software, materials, staff training, and, if needed, consultant services. With the exception of the flat technology support fee deposited into Transportation Fee Fund No. 50Y, the remaining fees collected shall be credited to the General Fund. The technology support fee, which is included in the fees listed above, is applied as follows: \$100 for Department review services that cost under \$1,000; \$300 for services between \$1,000 and \$3,000; and \$500 for services that are \$3,000 or more.

C. Engineering Services. The Department shall offer engineering services for unique services that take under 10 hours to complete. These engineering services include, but are not limited to, providing access to signal timing charts, gathering related project lists, performing field engineering work related to a Traffic Control Plan, conducting Short Term Worksite Traffic Control Plan Review (72 hours or less), inspecting sites, etc. A charge of \$155 shall be assessed for each hour of services, or a proportional fee for each fractional hour.

D. Planning Services. The Department shall offer planning services for unique services that take under 10 hours to complete. These planning services include, but are not limited to, providing access to forecasted and empirical travel data and travel diagnostics for a specific defined area. A charge of \$145 shall be assessed for each hour of services, or a proportional fee for each fractional hour.

E. Expedited Services. The Department shall offer expedited services in the review of any of the processes listed above, including transportation assessments, Site TDM Plans, and B-permit design plans. Project applicants can choose to pay a higher review fee to allow Department staff to work overtime hours to expedite their review. The actual review fee to process a transportation assessment, which will be greater than the standard transportation assessment review fee, will be determined by the Department during the preparation of the Transportation Assessment MOU executed between the Department and the applicant's representative. The fee shall be based on the applicant's desired completion date, the availability of staff to work overtime, and the affected division's workload. During times of peak workloads, the expedited review fee may be utilized by the Department to procure an outside firm from the Department's pre-screened list of consultants to conduct the review of the assessment. Similarly, the actual fee to process Long-Term Worksite Traffic Control Plans (over 72 hours) or B-permit design plans shall be established by the Department at the pre-design meeting with the applicant's representative.

F. Fee Revisions. The Department shall provide an annual review of the fees established pursuant to this section, and shall submit recommendations for changes in these fees to the City Council. The fees shall be revised by the Department to account for any staff salary cost of living adjustments. Notice of any increased fees shall be in accordance with Government Code Sections 66018 and 6062a.

SEC. 19.16. GENERAL PLAN MAINTENANCE SURCHARGE FOR THE DEPARTMENT OF CITY PLANNING. (Amended by Ord. No. 185,114, Eff. 9/17/17.)

There shall be added to each fee imposed for any permit, plan check, license or application, provided in Chapter I of this Code, a surcharge in an amount equal to the greater of 7 percent of the fee or \$1.00, except that any other surcharge shall be excluded from the computation of this surcharge. Monies received from this surcharge shall be deposited into the Department of City Planning Long-Range Planning Special Revenue Trust Fund. The monies received pursuant to this section shall be used for maintenance of the City's General Plan and all associated underlying plans or elements, ordinances, and other associated planning initiatives. Fifty percent of the monies received, after the effective date of this ordinance, shall be used for costs directly related to updating the City's 35 Community Plans. Exempted from this surcharge are all fees and costs imposed pursuant to Section 12.37.

SEC. 19.17. PARK FEE. (Added by Ord. No. 184,505, Eff. 1/11/17.)

The following fees shall be paid to the Department of Recreation and Parks. Current figures are located in the Department of Recreation and Parks Rate and Fee Schedule.

Subdivision (Quimby in-lieu) fee:

At effective date of ordinance: \$7,500, adjusted for inflation pursuant to Section 12.33 E.5. of this Code.

First annual RAP rate and fee schedule update after effective date of ordinance: The prior year's fee amount plus \$2,500, adjusted for inflation pursuant to Section 12.33 E.5. of this Code.

Each subsequent annual RAP rate and fee schedule update: The fee of the previous year, adjusted for inflation pursuant to Section 12.33 E.5. of this Code.

Non-subdivision (park mitigation) fee:

At effective date of ordinance: \$2,500, adjusted for inflation pursuant to Section 12.33 E.5. of this Code.

First annual RAP rate and fee schedule update after effective date of ordinance: The prior year's fee amount plus \$2,500, adjusted for inflation pursuant to Section 12.33 E.5. of this Code.

Each subsequent annual RAP rate and fee schedule update: The fee of the previous year, adjusted for inflation pursuant to Section 12.33 E.5. of this Code.

SEC. 19.18. AFFORDABLE HOUSING LINKAGE FEE.

(Added by Ord. No. 185,342, Eff. 2/17/18.)

A. **Definitions.** Terms shall have the meaning ascribed to them in Sections 12.03 or 12.22 of this Code. For the purposes of this section only, certain terms and words are defined as follows:

1. **"Additional Housing Units"** means a net increase in the number of dwelling units or guest rooms to be added on a parcel or parcels of land by issuance of a building permit, after subtracting the number of dwelling units or guest rooms legally removed from the same parcel of real property during the year preceding the issuance of the building permit.

2. **"Additional Nonresidential Floor Area"** means the net increase in the amount of nonresidential Floor Area, as defined in Section 12.03 of this Code, to be added on a parcel or parcels of land by issuance of a building permit, less the amount of nonresidential Floor Area legally removed from the same parcel of real property during the year preceding the issuance of the building permit.

3. **"Applicant"** means any individual, person, firm, partnership, association, joint venture, corporation, limited liability company, entity, combination of entities or authorized representative thereof, who undertakes, proposes or applies to the City for a Planning or zoning entitlement approval or building permit related to a Development Project.

4. **"Building Permit Application"** means plans submitted to the Department of Building and Safety pursuant to Section 12.26 A.3. of this Code.

5. **"Development Project"** means any activity involving or requiring the issuance of a building permit that results in Additional Housing Units, Additional Nonresidential Floor Area, additional single-family residential Floor Area, or a change of use from nonresidential to residential.

6. **"Grocery Store"** means a project that is for a retail use of which greater than one half of the Floor Area is devoted to the sale of food items intended for consumption or use off the premises, excluding alcoholic beverages.

7. **"Linkage Fee"** means the fee assessed, pursuant to this section, on certain Development Projects in order to mitigate the impact of the additional demand for affordable housing caused by such activity.

B. **Applicability.** The regulations, requirements and provisions of this section shall apply to any Development Project. Unless a Development Project is exempt from this section, an Applicant must pay to the City the required Linkage Fee as a condition of the building permit for which a Building Permit Application has been submitted in order to mitigate the need for affordable housing that is generated by or attributable to such projects. The provisions of this section are subject to the requirements set forth in California Government Code Section 66000 et seq.

1. Phased Implementation.

a. For the first 120 days following the effective date of this ordinance, no Linkage Fee shall be imposed on any project for which a Building Permit Application or complete planning or zoning entitlement application is submitted. For purposes of this Section, a complete planning or zoning entitlement application is an application that has been accepted by the Department of City Planning and for which the application fees have been paid. If an Applicant submitted a Building Permit Application or a complete planning or zoning entitlement application for a Development Project prior to the effective date of this ordinance, that Development Project shall not be subject to a Linkage Fee.

b. An Applicant for a Development Project who submits a Building Permit Application or a complete Planning or zoning entitlement application (whichever is first) 121 days following the effective date of this ordinance shall pay one-third of the total Linkage Fee amount due, based on the fee schedule and market area maps in effect at the time of the submittal of the Building Permit Application or complete Planning or zoning entitlement application.

c. An Applicant for a Development Project who submits a Building Permit Application or a complete Planning or zoning entitlement application (whichever is first) 306 days after the effective date of this ordinance shall pay two-thirds of the total Linkage Fee amount due, based on the fee schedule and market area maps in effect at the time of the submittal of the Building Permit Application or complete Planning or zoning entitlement application.

d. An Applicant for a Development Project who submits a Building Permit Application or a complete planning or zoning entitlement application (whichever is first) 485 days or more after the effective date of this ordinance shall pay the total Linkage Fee amount due, based on the fee schedule and market area maps in effect at the time of the submittal of the Building Permit Application or complete Planning or zoning entitlement application.

2. **Exemptions.** The Department of Building and Safety shall determine whether any of the following exemptions apply to a Development Project based on documentation submitted by the Applicant prior to the issuance of the building permit. The fee imposed by this section shall not apply to construction that includes any the following:

a. Less than 15,000 square feet of Additional Nonresidential Floor Area in any nonresidential building, other than parking garages and parking facilities, as determined by the Department of Building and Safety.

b. Any for-sale or rental housing development containing restricted affordable units where at least 40% of the total units or guest rooms are dedicated for moderate income households, or at least 20% of the total units or guest rooms are dedicated for low income households, or at least 11% of the total units or guest rooms are dedicated for very low income households, or at least 8% of the total units or guest rooms are dedicated for extremely low income households, for at least 55 or 99 years, as specified in Section 16.61 A. of this Code, where a covenant has been made with the Los Angeles Housing Department and required covenant and monitoring fees have been paid, or any project approved pursuant to Section 12.22 A.38. of this Code. Such a covenant shall also subject projects using this exemption to the replacement policies in Section 16.60, and to LAHD fees related to housing replacement determinations pursuant to state law, as set forth in this Code. For the purposes of this section, total units includes any units added by a density bonus or other land use incentive, consistent with the affordability levels defined in Government Code Section 65915. **(Amended by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25 and Ord. No. 188,481, Eff. 2/11/25, Oper. 2/11/25. See Resolution Eff. 6/18/25.)**

c. Any Development Project being constructed by, or on behalf of: 1) a government or public institution such as a school, museum, homeless shelter or other similar projects that are intended for community use; or 2) any private Elementary and/or High School.

d. Any hospital. For purposes of this section, “**hospital**” means a facility, place, or building that is organized, maintained, and operated for the diagnosis, care, prevention, and treatment of human illness, physical or mental, including convalescence and rehabilitation and including care during and after pregnancy, or for any one or more of these purposes, for one or more persons, to which the persons are admitted for a 24-hour stay or longer.

e. A single-family detached home meeting one or more of the following conditions:

(1) Any addition of 1,500 square feet or less of Floor Area to an existing single- family detached home located in a single- family or multiple-family zone.

(2) New construction of any single- family detached home located in a single- family zone that is 1,500 square feet or less of Floor Area.

(3) Any replacement of a single- family detached home resulting in a net increase of 1,500 square feet or less of Floor Area from the prior home that existed on the property.

f. Either (1) an addition of 1,501 square feet or more of Floor Area to an existing single- family detached home located in a single-family zone, or (2) a replacement of a single-family detached home resulting in a larger single-family detached home with a net increase of 1,501 square feet or more of Floor Area from the prior home that existed on the property; provided, however, in either event, a covenant shall be recorded against the property prior to the issuance of a building permit for such addition or replacement requiring the owner of the property to pay the Linkage Fee if the home is sold within three years of the issuance of such building permit. The covenant shall automatically expire at the end of such three-year period, if no sale of the property has occurred during such three-year period. However, in the event of a sale of the property within such three-year period, the covenant shall not expire until a notice of covenant termination is recorded. A notice of covenant termination shall be provided by the City upon full payment of Linkage Fee due, based on the fee schedule in effect at the time of payment. The covenant shall run with the land and bind all successive owners of the property until the Linkage Fee is fully paid.

g. An Accessory Dwelling Unit as defined by California Government Code Section 65852.2.

h. Any project located within the boundaries of the Central City West Specific Plan Area, as defined in Ordinance No. 163,094, if the Applicant agrees by covenant and agreement with the City or by development agreement to abide by the linkage fee and replacement housing obligations in Section 16.60 of this Code. **(Amended by Ord. No. 188,481, Eff.**

2/11/25, Oper. 2/11/25.)

i. A residential project that is subject to a greater affordable housing fee requirement or is required to provide one or more physical housing units pursuant to the Mello Act in order to satisfy its inclusionary housing obligations. In that case, the residential component of the project shall be exempt from the Linkage Fee requirements of this Section. Nonresidential portions of mixed-use Coastal Zone projects shall be analyzed separately from residential portions of mixed-use projects for the purposes of the Linkage Fee requirements of this section. Nonresidential portions of such projects shall be subject to this section. The provision of housing units or in-lieu fees to satisfy replacement housing obligations under the Mello Act (as opposed to inclusionary housing obligations) shall not exempt a project from the Linkage Fee requirements of this section.

j. A residential Development Project that is subject to affordable housing requirements pursuant to any land use policy or ordinance or development agreement that exceeds the Linkage Fee requirements of this section in either fee amount or on-site affordable housing percentages provided in paragraph 19.18 B.2.b.

k. A residential Development Project that is subject to affordable housing and labor requirements pursuant to LAMC Section 11.5.11.

l. Any Grocery Store, provided there is no existing Grocery Store within a one-third (1/3) mile radius of the Development Project site.

m. Any Adaptive Reuse Project that is a designated Historic-Cultural Monument and is being converted to a residential use.

n. Any nonresidential Floor Area within a Development Project that is located in the South Los Angeles Transit Empowerment Zone, also referred to as the "Slate-Z" Promise Zone Area, located in Low Market Areas according to the nonresidential area map. This exemption shall only apply to Development Projects for which a Building Permit Application or complete planning or zoning entitlement application is submitted within three years of the effective date of this ordinance. This exemption will no longer be valid three years after the effective date of this ordinance.

3. Protests, Adjustments and Waivers.

a. An Applicant may protest the imposition of the Linkage Fee and request that the requirements of this section be adjusted or waived pursuant to Government Code Section 66020 et seq., based on a showing that the application of the requirements of this section would effectuate an unconstitutional taking of property or otherwise have an unconstitutional application to the Development Project. Protests shall be filed with the Director.

b. On or before the date on which payment of the Linkage Fee is due, the Applicant shall pay the amount required by this section and serve a written notice to the Director with all of the following information: (1) a statement that the required payment is tendered, or will be tendered when due, under protest; and (2) a statement informing the Director of the factual elements of the dispute and the legal theory forming the basis for the protest or request for adjustment or waiver, along with the substantial evidence that supports the protest or request, including any supporting documentation. The protest must be filed at the time of approval or conditional approval of the Development Project or within 90 days after the imposition of the Linkage Fee. The City shall provide the Applicant with written notice as required by Government Code Section 66010(d)(1), as that section may be amended from time to time.

c. If the Director determines that application of the requirements of this section would effectuate an unconstitutional taking of property or otherwise have an unconstitutional application to a Development Project, the fee requirements shall be adjusted or waived to reduce the obligations under this section to the extent necessary to avoid an unconstitutional result. The Director shall render a decision within 75 days from the date the protest was received.

d. If an adjustment or waiver is granted, any change in the Development Project shall invalidate the adjustment or waiver. If the Director determines that no violation of the federal or state constitution would occur through application of this section, the requirements of this section shall remain fully applicable.

e. Failure of an Applicant to comply with the protest requirements of this Section or Government Code Section 66020 et seq., shall bar that Applicant from any action or proceeding or any defense of invalidity or unreasonableness of the imposition of the Linkage Fee.

C. Fee Calculation.

1. The City Council shall adopt, by resolution, a Linkage Fee schedule based on an analysis of the cost of mitigating the impact of the additional demand for affordable housing caused by Development Projects, and on the varying levels of economic feasibility in different geographic areas of the City based on current market conditions. The City Council shall also adopt, by resolution, a map or maps establishing the respective market areas throughout the City that inform the amount of the Linkage Fee to be assessed for a given Development Project.

2. For each Development Project, the Linkage Fee shall be calculated as the amount of new or added Floor Area in the

Development Project devoted to the uses described in the Linkage Fee schedule, as determined by the Department of Building and Safety, multiplied by the amount of the applicable fee, as found in the most recent Linkage Fee schedule adopted by City Council, at the time the building permit for the Development Project is issued, minus any deductions or credits.

3. Fee Adjustments and Reports.

a. **Annual Inflation Adjustment.** The Linkage Fee shall be adjusted annually for inflation beginning on July 1, 2018, by the Director in accordance with the latest change in year-over-year Consumer Price Index for Urban Consumers (CPI-U) for the Los Angeles- Riverside-Orange County area, or if such index ceases to be published, by an equivalent index chosen by the Director. An updated Linkage Fee schedule shall be maintained by the Department of City Planning, which shall provide a copy of the adjusted schedule to the Mayor and City Council each year.

b. **Five-Year Market Area Adjustment.** Every five years, beginning on July 1, 2018, the Director, in association with LAHD shall undertake a new market area analysis and adjust market areas and geographies, where necessary, to reflect the most up to date rental and sales price information for each of the market areas. Any change to the Linkage Fee schedule other than the Annual Inflation Adjustment described in Paragraph (a) above shall be adopted by resolution of the City Council. (Amended by Ord. No. 187,122, Eff. 8/8/21.)

4. Deductions or Credits.

a. **Change of Use.** If the Development Project is the result of a change of use from nonresidential to residential, the Linkage Fee to be paid is the result of subtracting the equivalent fee amount that either was paid or would have been paid, based on the pre-existing use, from the fee amount required to be paid for the new use based on the most recent Linkage Fee schedule approved by the City Council. Deductions or credits shall not be applied to any portion of a Development Project comprised of additional Floor Area resulting from new construction. The calculation of a deduction or credit shall not result in a refund to an Applicant or be applied as a credit to another Development Project in a different location.

b. **Affordable Housing Units.** Any Restricted Affordable Units may be subtracted from the total number of dwelling units or guest rooms in a building in determining the required Linkage Fee. (Amended by Ord. No. 188,477, Eff. 2/11/25, Oper. 2/11/25.)

c. **Mixed Use.** The first 15,000 square feet of nonresidential use in a mixed-use building shall be excluded from the calculation of Floor Area for the purposes of determining the required Linkage Fee.

d. **Transfer of Floor Area Rights.** Any additional Floor Area that is obtained by a Development Project through the provision of public benefit payments pursuant to LAMC Section 14.5.9 shall be excluded from the calculation of Floor Area for purposes of determining the Linkage Fee for the Development Project.

e. **Other Affordable Housing Requirements.** In calculating Floor Area for purposes of determining the Linkage Fee for a Development Project, the following shall be excluded from that calculation:

(1) the Floor Area of the residential portion of a mixed-use Development Project that is subject to affordable housing requirements pursuant to any land use policy or ordinance or development agreement that exceeds the Linkage Fee requirements of this section in either fee amount or on-site affordable housing percentages provided in paragraph 19.18 B.2.b.

(2) the Floor Area of the residential portion of a mixed-use Development Project that is subject to affordable housing and labor requirements pursuant to LAMC Section 11.5.11.

f. **Land Dedication.** If the Los Angeles Housing Department accepts, on behalf of the City, an offer by an Applicant to dedicate land offsite from the proposed location of the Development Project for the purpose of building affordable housing, the value of the land to be dedicated, to be determined as the average of two independent appraisals funded by the applicant, may be deducted from the Linkage Fee amount owed for the Applicant's Development Project. If the value of the dedicated land is more than the Linkage Fee owed for the Applicant's Development Project, the City shall bear no responsibility for the difference in value, nor shall that overage be applied as a credit to any future Development Project. (Amended by Ord. No. 187,122, Eff. 8/8/21.)

5. **Payment of Linkage Fee.** The Linkage Fee is due and payable by the Applicant prior to the issuance of a building permit for a Development Project. No additional fee shall be required for a project seeking an extension of an expired building permit.

6. **Refunds of Linkage Fee.** Any fee paid under the provisions of this section may be refunded to an Applicant if the application for the building permit has expired and was not utilized to begin construction of a Development Project.

D. **Severability.** If any provision of this ordinance is found to be unconstitutional or otherwise invalid by any court of competent jurisdiction, that invalidity shall not affect the remaining provisions of this ordinance, which can be implemented without the invalid provisions and, to this end, the provisions of this ordinance are declared to be severable. The City Council hereby declares that it would have adopted each and every provision and portion thereof not declared invalid or unconstitutional, without regard to whether any portion of the ordinance would subsequently be declared invalid or unconstitutional.

SEC. 19.19. WESTSIDE MOBILITY TRANSPORTATION FEES.
(Added by Ord. No. 186,105, Eff. 6/28/19.)

A. **Purpose.** This ordinance is intended to adopt the Transportation Improvement Assessment Fee (TIA Fee), TIA Fee Credits, TIA Fee exemptions, and TIA Fee Improvement list authorized in the West Los Angeles Transportation Improvement and Mitigation Specific Plan (WLA TIMP) and the Coastal Transportation Corridor Specific Plan (CTCSP).

B. **Definitions.** Terms in this ordinance shall be as defined in Section 4 of the WLA TIMP and the CTCSP, unless as provided otherwise herein.

C. Fee Schedule.

1. TIA Fee Amounts.

a. The TIA Fee for each land use category shall be as provided in the TIA Fee Table below, where:

- i. The unit of measurement is provided in the “Unit” column, “DU” refers to Dwelling Unit, and “SF” refers to square feet;
- ii. The amount of TIA Fee per unit of measurement is provided in the “TIA Fee per Unit” column;
- iii. The definition of the land use category is provided in the “Description” column; and,
- iv. The term “Interpolate” refers to the mathematical definition of “interpolate.” For retail uses greater than 250,000 square feet but less than or equal to 800,000 square feet, the TIA Fee per Unit shall be determined by interpolating between the other retail fee rates provided in the table. For office uses greater than 50,000 square feet but less than or equal to 250,000 square feet, the TIA Fee per Unit shall be determined by interpolating between the other office fee rates provided in the table.

TIA Fee Table

Land Use Category	Unit	TIA Fee per Unit	Description
Land Use Category	Unit	TIA Fee per Unit	Description
Residential Land Uses			
Single Family	DU	\$8,847	Single family detached homes on individual lots, including homes created through Small Lot Subdivisions.
Apartment	DU	\$4,646	Multi-family rental units in a building 10 stories or less.
High-Rise Apartment	DU	\$2,804	Multi-family rental units in a building with more than 10 stories.
Condominium/Townhouse	DU	\$6,248	Multi-family units with individual ownership in buildings 10 stories or less.
High-Rise Condominium/Townhouse	DU	\$3,044	Multi-family units with individual ownership in buildings more than 10 stories.
Affordable Dwelling Unit	DU	\$0	Affordable Dwelling Unit as defined in Section 4 of the WLA TIMP and the CTCSP.
Hotel	Room	\$5,452	A use that provides sleeping accommodations and supporting facilities for short-term occupancy.
Retail & Service Land Uses			
Retail = < 250,000 SF	1,000 SF	\$13,347	Less than or equal to 250,000 SF of general retail uses, based on total square footage of retail uses on site. Retail uses are those uses typically found in shopping centers, and neighborhood centers, including but not limited to grocery stores, restaurants, and general retail shops.
Retail > 250,000 SF - 800,000 SF	1,000 SF	Interpolate	More than 250,000 SF but less than 800,000 SF of retail uses, as defined above, based on total square footage of uses on site.
Retail > 800,000 SF	1,000 SF	\$16,897	More than 800,000 SF of general retail uses, as defined above based on total square footage of retail uses on site.
Commercial Office & Medical Office Land Uses			
Office = < 50,000 SF	1,000 SF	\$25,000	A building of 50,000 SF or smaller with office uses, including those with multiple tenants. Office uses include but are not limited to, businesses, commercial, or professional services, medical and dental office uses that provide outpatient care on a routine basis, and on-site cafeteria or café or retail services for use by on-site employees.
Office > 50,000 SF - 250,000 SF	1,000 SF	Interpolate	A building greater than 50,000 SF but less than 250,000 SF for office uses (as defined above).
Office > 250,000 SF	1,000 SF	\$16,754	Buildings greater than 250,000 SF for office uses (as defined above).
Industrial Land Uses			

Industrial	1,000 SF	\$10,975	Facility that includes a mixture of two or more of the following: manufacturing, service facilities, or warehouse facilities.
Manufacturing	1,000 SF	\$9,426	Facility that is primarily devoted to the conversion of raw materials or parts into finished products; may include ancillary warehouse, office and research related functions.
Warehouse	1,000 SF	\$4,132	Facility that is primarily devoted to the storage of materials; including ancillary office and maintenance related functions.
Mini-Warehouse	1,000 SF	\$3,357	Self-storage facilities in which a number of storage units/vaults are rented for the storage of goods, including ancillary office and maintenance-related functions.
Cargo Facilities	1,000 SF	\$7,876	Cargo facilities associated with aviation uses on or adjacent to the LAX airport.
Maintenance Facilities	1,000 SF	\$2,195	Maintenance facilities associated with aviation uses on or adjacent to the LAX airport.

b. **Special Generators.** If LADOT determines that a proposed use cannot be classified under the land use categories listed in the TIA Fee Table, then LADOT shall calculate the fee as follows:

- i. Based on the land use category that is most similar to the proposed use; or if LADOT determines in its discretion that no land use category is similar:
- ii. Based on the trip generation of the use, average trip length for the use, and pass-by trip rate of the use, and fee rate consistent with the methodology and rates in the Westside Mobility Plan Fee Study approved by the City Council to adopt the fees in the TIA Fee Table.

2. **Effective Date.** The TIA Fee shall be effective on the 60th day following the adoption of this Ordinance.

3. **Phased Implementation of the Residential TIA Fee.** The TIA Fee for Residential Land Uses (as those uses are defined in the TIA Fee Table), shall be phased based on when the Project plans are submitted to the Los Angeles Department of Building and Safety (LADBS) pursuant to Section 12.26 A.3. of this Code:

- a. For Projects with plans submitted within the first 120 days following the effective date of the ordinance, no TIA Fee for Residential Land Uses shall be paid.
- b. For Projects with plans submitted between 121 and 305 days following the effective date of the ordinance, one-third of the TIA Fee for Residential Land Uses (based on the fee schedule in effect at the time the plans are submitted) shall be imposed.
- c. For Projects with plans submitted between 306 and 484 days following the effective date of the ordinance, two-thirds of the TIA Fee for Residential Land Uses (based on the fee schedule in effect at the time the plans are submitted) shall be paid.
- d. For Projects with plans submitted 485 or more days following the effective date of the ordinance, the full TIA Fee for Residential Land Uses (based on the fee schedule in effect at the time the plans are submitted) shall be paid.

4. **Annual Indexing.** The TIA Fees shall be increased (or decreased) annually as follows: The Annual Index upon adoption of this ordinance shall be 1.000. The TIA Fee shall be increased (or decreased) as of January 1 of each year by the amount of the percent increase (or decrease) in the most recently available Construction Cost Index for the Los Angeles region, or equivalent index, as determined by LADOT. The revised Annual Index shall be published by LADOT in a newspaper of citywide circulation or on the LADOT website before January 31 of each year.

5. **Appeal Filing Fee.** An appeal filed pursuant to Section 11.A. or B. of the WLA TIMP or the CTCSP shall be accompanied by a filing fee of \$500 payable to LADOT or LADCP, as applicable.

D. Fee Exemptions, Calculations, and Credits.

1. **TIA Fee Exemptions.** The following Projects shall be exempt from payment of a TIA Fee:

- a. Any Project exempt from the requirements of the CTCSP or WLA TIMP pursuant to Section 5.B. in the applicable Specific Plan;
- b. Affordable Dwelling Units, if they meet the criteria in Subsection 8.B.2.b. of the CTCSP and the WLA TIMP;
- c. One hundred percent affordable housing projects. For the purposes of this section, a “one hundred percent affordable housing project” means a Project in which each residential unit in the Project, exclusive of a manager’s unit or units, is an Affordable Dwelling Unit. A one hundred percent affordable housing project may include on-site services or mixed commercial uses;
- d. Projects providing housing or services for persons experiencing homelessness, including but not limited to

permanent or temporary supportive housing projects, transitional housing projects, and supportive services;

- e. Accessory dwelling units to single family homes, commonly referred to as “granny flats;”
- f. Educational institutions, public and private;
- g. Child Care Facilities as defined by LAMC Section 12.03;
- h. Churches, Temples, and other buildings used for assembly, whether for religious or secular purposes;
- i. Hospitals. For purposes of this section, “hospital” means a facility, place, or building that is organized, maintained, and operated for the diagnosis, care, prevention, and treatment of human illness, physical or mental, including convalescence and rehabilitation and including care during and after pregnancy, or for any one or more of these purposes, for one or more persons, to which a person may be admitted for a 24-hour stay or longer;
- j. Eldercare Facilities, as defined in LAMC Section 12.03;
- k. Park and Ride Facilities;
- l. Temporary uses of less than six months in duration based on a building permit where no extension of time is permitted;
- m. Governmental or Public Facilities defined as capital improvements and/or buildings or structures used for the operation of City, County, State or Federal governments including, but not limited to, police and fire stations, government offices, government equipment yards, sanitation facilities, schools, parks, United States Federal Aviation Authority or Los Angeles World Airports (LAWA) administrative facilities, and other similar administrative facilities in which general government operations are conducted. Governmental or Public Facility does not include the use of publicly owned land, buildings, improvements or structures for private activities pursuant to lease agreements; and
- n. Projects on property owned by LAWA and used for aircraft operations (commercial or noncommercial) or airport operation facilities (such as, terminals and other passenger processing related facilities such as gate areas and non-commercial spaces of passenger transportation such as the Intermodal Transportation Facility), not including cargo facilities or maintenance facilities.

2. **TIA Fee Calculation.** The TIA Fee shall be calculated as follows:

$$\text{Total TIA Fee} = (\text{number of Units}) \times (\text{TIA Fee per Unit})$$

The type of Unit and the TIA Fee per Unit for the land use are identified in the TIA Fee Table in Section C.1.a.

For special generators, pursuant to Section C.1.b, the fee shall be calculated as provided in Section C.1.b.

3. **TIA Fee Credits.**

a. **Existing Land Use Credit.** The Fee Credit for existing uses, as provided in Section 8.A of the WLA TIMP and the CTCSP, shall be determined and calculated as follows:

i. Existing land uses on a Project site for which a TIA Fee was paid pursuant to Ordinance Nos.160,394, 168,999, or 171,492 shall receive a Fee Credit based on the existing land uses for which a fee was previously paid; and

ii. For existing land uses that are not eligible for a credit under Subsection i., above, a Fee Credit shall be given when requested by the Applicant subject to all of the following:

(a) Applicants for Projects seeking credits for existing uses must provide LADOT with documentation supporting the existence and duration of the use (such as, lease agreements, utility bills, or previous environmental reviews). LADOT will validate credits for existing uses based on the provided documentation.

(b) Fee Credits shall not be given for existing Affordable Dwelling Units.

(c) If the existing use was active for at least six consecutive months during the past two years prior to submittal of plans to LADBS pursuant to LAMC Section 12.26 A.3., a 100 percent credit will be granted for the existing use pursuant to the calculation below. The 100 percent credit is calculated as follows:

$$\text{Credit} = (\text{number of existing Units}) \times (\text{TIA Fee per Unit})$$

The type of Unit and the TIA Fee per Unit for each land use are identified in the TIA Fee Table in

Section C.1.a.

For special generators, pursuant to Section C.1.b, the fee shall be calculated as provided in Section C.1.b.

(d) If the existing use was active for at least six consecutive months during the past four years prior to submittal of plans to LADBS pursuant to Section 12.26 A.3. of this Code, a 50 percent credit will be granted for the previous use. The 50 percent credit is calculated as follows:

$$\text{Credit} = (\text{number of existing Units}) \times (\text{TIA Fee per Unit}) \times (.50)$$

The type of Unit and the TIA Fee per Unit for the land use are identified in the TIA Fee Table in Section C.1.a.

For special generators, pursuant to Section C.1.b, the fee shall be calculated as provided in Section C.1.b.

b. **Affordable Housing Credit.** The Affordable Housing Fee Credit pursuant to Section 8.B.2. of the WLA TIMP and the CTCSP shall be calculated as follows:

i. **Calculation.** Credits shall be granted for each Affordable Dwelling Unit in an amount equal to the fee for two Apartment units, as shown in the TIA Fee Table in Subsection C.1.a, as follows:

$$\text{Credit} = (\text{Affordable Dwelling Units}) \times (2 \times [\text{TIA Fee per Apartment Unit}])$$

The type of Unit and the TIA Fee per Unit for the land use are identified in the TIA Fee Table in Section C.1.a.

For special generators, pursuant to Section C.1.b, the fee shall be calculated as provided in Section C.1.b

ii. **Maximum Credits.** In no case shall the Affordable Housing Fee Credit exceed 50 percent of the TIA Fee for a Project.

c. **Transit Oriented Development Credit.** The Transit Oriented Development Fee Credit pursuant to Section 8.B.3. of the WLA TIMP and the CTCSP shall be calculated as follows:

i. A Project on a parcel within one-half mile of a transit station or stop serving a Dedicated Transit Line is eligible for a five percent Fee Credit; or

ii. A Project with a pedestrian entrance within one-quarter mile walking distance to a transit station or stop serving a Dedicated Transit Line is eligible for a 10 percent fee credit.

The applicant is required to submit a map subject to LADOT review and approval, showing the Project is eligible for a Transit Oriented Development Fee Credit.

d. **No Credit for Administrative Costs.** Notwithstanding the above, no credit shall be granted for that portion of the TIA Fee for the administrative costs of the TIA Fee program (five percent of total fee).

E. **Transportation Improvement Project List.**

1. The City Council shall adopt by resolution a list of TIA Fee Improvements as described in Section 6.B. of the WLA TIMP and the CTCSP that meet the purposes identified in Section 3 of the Specific Plans and are consistent with the most recently adopted fee study. The City Council may amend the resolution from time to time or approve the use of TIA Fee monies for transportation improvements not on the list of TIA Fee Improvements subject to the procedures in this Subsection E.

2. The list of TIA Fee Improvements shall include improvements in all of the following four categories:

a. **Transit.** A transit improvement is an improvement that encourages or supports the use of transit.

b. **Active transportation.** An active transportation improvement is an improvement that encourages or supports the use of biking and walking, and other forms of active transportation.

c. **Roadway.** A roadway improvement is an improvement that improves or maintains vehicular movement in the circulation system.

d. **Trip reduction.** A trip reduction improvement is an improvement that decreases vehicle miles travelled.

3. **Updating the List of TIA Fee Improvements.** Upon recommendation of LADOT or the LADCP, the City Council may amend the resolution and list of TIA Fee Improvements adopted pursuant to Subsection E.1., provided the following criteria are

met:

- a. The improvement achieves the purposes described in Section 3 of the CTCSP or the WLA TIMP; and
- b. The improvement fulfills the transportation objectives of the improvement which it is to replace, including falling within the same category of improvement as identified in Subsection E.2. and at least one of the same type of project improvements existing in that category; and
- c. The improvement meets at least one of the following:
 - i. The improvement implements one or more goals, objectives and policies of the Mobility Plan 2035; and/or
 - ii. The improvement is feasible and the planning and engineering is advanced enough that with sufficient funding or funds to meet a funding gap, construction can begin in the near future, (i.e., “shovel ready”); and/or
 - iii. The improvement does not hinder equitable geographic distribution of transportation projects within the Specific Plan geographies.

4. **Funding Transportation Improvements that are not on the Approved List of TIA Fee Improvements.** The City Council may by resolution allocate TIA Fee funds for an improvement project that is not included on the approved list of TIA Fee Improvements without amending the resolution adopted under Subsection E.1., provided the improvement meets the relevant criteria in Subsection E.3.

F. Administration.

1. **Guidelines.** The General Manager of the LADOT may adopt guidelines to implement the WLA TIMP and CTCSP TIA Fee programs consistent with the Specific Plans and this Ordinance.
2. **Reporting Template.** LADOT may develop a reporting template for the fee monitoring report. The template may include, but is not limited to, TIA Fee revenues, interest revenues, trust fund administration, encumbered monies, and expended monies.

G. Use of TIA Fees.

1. **Administrative Costs.** Up to five percent of TIA Fees may be used for administrative costs each year.
2. **Prohibited Use of TIA Fee Monies.** TIA Fee monies shall not be used for any of the following:
 - a. Improvements which do not provide a regional or sub-regional transportation benefit;
 - b. Project Serving Improvements;
 - c. Financing of any transportation improvement which is not of direct benefit to the Specific Plan Area from which the TIA Fee was collected;
 - d. Substituting for other transportation monies which have been allocated to the Specific Plan Area;
 - e. Operation and maintenance costs;
 - f. Curb, driveway, gutter, trees, street lights/power poles and sidewalk construction or repair, except as part of a transportation improvement pursuant to the Specific Plan;
 - g. Off-street parking facilities, except in conjunction with a TDM program;
 - h. Alley improvements; and
 - i. Private streets.

H. **Severability.** If any portion, subsection, sentence, clause or phrase of this ordinance is for any reason held by a court of competent jurisdiction to be invalid, such a decision shall not affect the validity of the remaining portions of this ordinance. The City Council hereby declares that it would have passed this ordinance and each portion or subsection, sentence, clause and phrase herein, irrespective of the fact that any one or more portions, subsections, sentences, clauses or phrases be declared invalid.

SEC. 19.20. DOWNTOWN COMMUNITY BENEFITS FEE ORDINANCE.

(Added by Ord. No. 188,427, Eff. 1/20/25, Oper. 1/27/25.)

A. **Purpose.** The Downtown Community Benefits Fee (Downtown CBF) is a voluntary fee paid in exchange for development incentives provided in the Community Benefits Program Subarea of the Downtown Community Plan Implementation Overlay

(Downtown CPIO) District and collected to fund public amenities, programs, and services that benefit disadvantaged communities within the Downtown Community Plan Area and the areas within its one and a half-mile radius.

B. Definitions. Whenever the following terms are used in this section, they shall be construed as defined below. Words or phrases not defined in this section shall be construed as defined in Chapter 1A of this Code or the Downtown CPIO.

1. **Applicant** means any individual, person, firm, partnership, association, joint venture, corporation, limited liability company, entity, combination of any of the above, or an authorized representative of any of the above, who submits a proposal for a Downtown Community Benefits Project for consideration to receive funding allocation from the Downtown Community Benefits Trust Fund.

2. **City Planning** means the Los Angeles Department of City Planning.

3. **Community Based Organization** means a nonprofit organization, such as a 501(c)(3), that is representative of a community or significant segments of a community engaged in meeting human, educational, occupational, environmental, housing, public health, or other community needs or offers other needed social services. Organizations can include neighborhood groups and organizations, community action agencies, and community development corporations.

4. **Community Land Trust** means a California nonprofit corporation that is all of the following: (1) has no part of its net earnings inuring to the benefit of any member, founder, contributor, or individual; (2) is neither sponsored by, controlled by, nor under the direction of a for-profit organization; (3) has a corporate membership of adult residents of a particular geographic area as described in the bylaws of the corporation; (4) has a board of directors that includes: (A) a majority of members who are elected by the corporate membership; (B) representation by persons occupying and/or leasing any structural improvements on the land; and (C) representation by persons residing within the geographic area specified in the bylaws of the corporation who neither lease land from the corporation nor occupy structural improvements controlled by the corporation; (5) acquires and retains parcels of land, primarily for conveyance under long-term ground leases; (6) transfers ownership of many or all of the structural improvements located on such leased parcels to the lessees; and (7) retains a preemptive option to purchase such structural improvements at a price determined by formula that is designed to ensure that the improvements remain affordable to low and moderate income households in perpetuity.

5. **Downtown Community Benefits Area** means the area within the boundaries of the Downtown Community Plan and the area within its one and a half-mile radius. Any site of contiguous ownership that is partially within a one and a half-mile radius of the Downtown Community Plan Area, shall be considered part of the Downtown Community Benefits Area.

6. **Downtown Community Benefits Fee (Downtown CBF)** means the fee calculated pursuant to Subsection C., below.

7. **Downtown Community Benefits Project** means a public amenity, program, or service, authorized for use of the Downtown CBF monies pursuant to Subsection G., below.

8. **Downtown Community Benefits Trust Fund (Downtown CBTF)** means the trust fund established in Section 5.115.19 of the Los Angeles Administrative Code (LAAC).

9. **LADOT** means the Los Angeles Department of Transportation.

10. **LAHD** means the Los Angeles Housing Department.

11. **Low-income Micro-entrepreneur** means a business owner with less than two and a half million dollars in annual gross receipts and no more than 50 employees or shareholders, and who has an annual household income equal to or less than the “low income” category as defined by LAHD.

12. **Metro** means the Los Angeles County Metropolitan Transportation Authority.

13. **Organized Tenant Group** means a group of tenants in a housing development who have formed a nonprofit corporation or organization, or cooperative corporation, which represents the interest of a majority of the tenants in the housing development, and whose purpose includes the acquisition of a housing development. Such groups can include but are not limited to tenants’ associations and tenants’ unions.

14. **Resiliency Center** means an area or building designed for free public use as temporary shelters or relief centers, for immediate emergency situations and during future disasters and climate events, including, but not limited to, exceptional heat and cold, heavy rainfalls, earthquakes, wildfires, and unhealthy air quality, which are easily accessible to people experiencing homelessness, youth, seniors, people with disabilities, and other residents at risk during emergency and climate events.

15. **Sidewalk Vendor Commissary Kitchen** means a “Commissary Kitchen”, as defined in Chapter 1A, Article 5, Part 5D, which is approved by the Los Angeles County Department of Public Health to accommodate all operations necessary to service mobile food facilities and is made available exclusively to sidewalk vendors whose annual household income is equal to or less than the “low income” category as defined by LAHD.

16. **Small Legacy Business** shall mean a privately-owned corporation, cooperative, non-profit, social enterprise, or other

entity that serves the neighborhood in which it is located by providing needed goods or services for local residents, is not franchised or affiliated with a national chain, and meets at least four of the following standards:

- (a) Has been in continuous operation in the Downtown Community Benefits Area for at least 20 years with no break in its operations exceeding two years;
- (b) Has no more than 50 full-time employees and/or shareholders;
- (c) Has contributed to the neighborhood's history or the identity of a particular neighborhood or community;
- (d) Has one or more employees that can serve multi-lingual members of the community;
- (e) Accepts government issued assistance such as EBT; and/or
- (f) Pays employees a living wage per LAAC Division 10, Chapter 1, Article 11 ("City's Living Wage Ordinance").

C. Downtown Community Benefits Fee (CBF).

1. **Applicability.** A Project located in the Downtown CPIO District Community Benefits Subarea (Subarea A) is eligible to pay the fee (Downtown CBF) described in this Subsection, provided all applicable requirements in the Downtown CPIO District are met.

2. **Fee Rate.** The Downtown CBF shall be fifty dollars (\$50) per square foot of additional floor area incentive granted, up to the Project's maximum bonus floor area ratio (FAR), subject to an annual adjustment pursuant to Subdivision 4., below.

3. **Time of Payment.** The Downtown CBF shall be paid prior to the issuance of any CPIO Approval for a project seeking development incentives under Section 11-6 (Community Benefits Fund Incentive) of the Downtown CPIO District.

4. **Annual Indexing.** The Downtown CBF rate shall be adjusted as follows:

- (a) The fee shall be increased (or decreased) as of July 1 of each year by the amount of the percent increase (or decrease) in the Engineering News-Record ("ENR") Building Cost Index for Los Angeles, or other comparable City Building Cost Index as determined by City Planning.

- (b) If City Planning determines that the City's Building Cost Index described in Subdivision 1., does not adequately reflect the actual increase or decrease in costs, then City Planning shall recommend to the City Council, based on a written report, that the City Council adopt different cost figures for purposes of this Section. Upon receipt of a report, and after public hearing, the City Council may, by resolution, adopt these different cost figures to be used for the annual adjustment of the Downtown CBF.

5. **Community Benefits Trust Fund.** All Downtown CBF monies shall be deposited into the Downtown Community Benefits Trust Fund (Downtown CBTF), established in Los Angeles Administrative Code Section 5.115.19, and shall be used to award Community Benefits Projects pursuant to this Section.

D. Downtown CBF Oversight Committee.

1. **Establishment.** The Downtown Community Benefit Fund Oversight Committee (Oversight Committee) is hereby established for the purpose of making recommendations for the appropriate disbursement of the monies in the Downtown CBTF consistent with this section.

2. **Membership.** The Oversight Committee shall be composed of members who meet the requirements in the by-laws adopted by the Oversight Committee pursuant to Subdivision 3., below, and the following criteria:

- (a) One official or employee, from each of the following City offices or departments:

- (i) The Mayor's Office, (appointed by the Mayor);
- (ii) The Office of the City Administrative Officer (appointed by the City Administrative Officer);
- (iii) The Office of the Chief Legislative Analyst (appointed by the Chief Legislative Analyst);
- (iv) City Planning (appointed by the Director of City Planning);
- (v) LAHD (appointed by the General Manager of LAHD); and

- (b) Public members, to be appointed as follows:

- (i) One public member, appointed by each Council District within the Downtown Community Plan area to

serve as representative stakeholders from the Downtown Community Plan area;

(ii) One public member, appointed by the Mayor's Office to serve as a representative stakeholder from the Downtown Community Plan area; and

(iii) Three "lived experience" public members who serve as representatives of Downtown's multiple neighborhoods and have been affected by the affordable housing and eviction crisis. These members will apply and be selected by the other members and shall reside in the Downtown Community Benefits Area.

3. **By-laws.** The Oversight Committee, once comprised, shall adopt by-laws to establish criteria and the process for the appointment and selection of the public members of the Oversight Committee consistent with this Section; Oversight Committee membership terms; meeting schedules; training program(s); application requirements for seeking CBTF monies; procedures for use of awarded CBTF monies; and other roles and responsibilities of the Oversight Committee.

4. **Authority.** The Oversight Committee shall make recommendations to the City Council on the approval, approval with conditions, or disapproval of a proposed Downtown Community Benefit Project with the recommendation to be based solely upon the degree that the project complies with the findings in Subsection F., below.

5. **Meetings.** This Chief Legislative Analyst shall convene the Downtown Community Benefit Oversight Committee within six months of receipt of Downtown CBF monies into the Downtown CBTF. All Oversight Committee meetings shall be open to the public and comply with the Ralph M. Brown Act (Government Code sections 54950, et seq.).

E. Procedures For Awarding Downtown CBTF Funds.

1. **Application.** An application for a Downtown CBTF award for a Downtown Community Benefit Project shall be filed with City Planning. The Director of City Planning shall prepare and make available the application for an award of Downtown CBTF monies, subject to the requirements of the Oversight Committee by-laws, if any.

2. **Oversight Committee Application Review.** The Oversight Committee shall review all applications that comply with any requirements established by the Oversight Committee by-laws.

3. **Oversight Committee Recommendations.** The Oversight Committee may recommend to the City Council to disburse Downtown CBTF monies for any application for which the Oversight Committee has made written findings that meet the requirements of Subsection F. In prioritizing multiple applications during a disbursement period that seek greater monies than available, the Oversight Committee shall give priority to Downtown Community Benefit Projects within the Downtown Community Plan area over those projects in the Downtown Community Benefits Area but outside of the Downtown Community Plan area.

4. **Council Action.** The City Council shall consider any recommendations of the Oversight Committee to disburse Downtown CBTF monies to a Downtown Community Benefit Project. The City Council shall award Downtown CBTF monies by resolution provided monies are available in the CBTF and the Oversight Committee has recommended granting the monies to the Downtown Community Benefit Project with written findings that meet the requirements of Subdivision F.

F. **Findings.** Prior to making any recommendation to the City Council for the award of Downtown CBTF monies for a Downtown Community Benefit Project, the Oversight Committee must make all of the following findings, as applicable:

1. The Downtown Community Benefit Project is in conformance with the Downtown Community Plan, zoning, and any other relevant guidelines or other policy documents adopted pursuant to the City Charter or this Code.

2. The Downtown Community Benefit Project is eligible for Downtown CBTF monies as identified in Subsection G., below;

3. The Downtown Community Benefit Project serves a need or service that is not adequately available within one-half mile of the site of the Downtown Community Benefit Project;

4. The Downtown Community Benefit Project is located in the Downtown Community Benefits Area;

5. The Downtown Community Benefit Project is located in an area with a higher "Population Characteristics Percentile" score, as indicated in the "CalEnviroScreen", in comparison to other Downtown Community Benefit Project applications. In the event this score is not available, a proposed Downtown Community Benefit Project in an area with lower educational attainment, higher housing cost burden, higher linguistic isolation, higher poverty, and higher unemployment scores as identified in the most recent American Community Survey data by the US Census Bureau, shall receive priority over other proposed Community Benefit Projects;

6. The applicant has provided adequate assurances, covenants, and/or documentation, to ensure the Downtown Community Benefit Project will do the following, as applicable:

(a) Funds will be expended within three years of receipt pursuant to any process established in the Oversight Committee by-laws.

(b) If Downtown CBF monies are proposed for at-risk affordable units pursuant to Subsections G.1.(b) and G.1.(c), covenants guaranteeing affordability to acutely low, extremely low, very low, or low income households will be recorded in a manner consistent with Section 9.2.1.H (Records and Agreements) of Chapter 1A of this Code. If existing tenants do not meet the income restriction above, the unit shall not be income restricted until the unit is vacant.

(c) If CBFT is proposed for a Small Legacy Business, the business while still in operation will maintain the physical features or traditions that define the business, including craft, culinary, or art forms, subject to any term and conditions established in the Oversight Committee's by-laws, including length of commitments or exceptions.

(d) If Downtown CBF monies are proposed for public right-of-way improvements, the improvements received approval, as applicable from LADOT, the Department of Public Works, and Metro.

(e) Any other assurances necessary to accomplish the purpose and objectives of the Downtown Community Benefits Program and this section, consistent with the Downtown CPIO and this section, and any Oversight Committee by-laws.

G. Eligible Community Benefits. To be eligible to receive funding from the Downtown CBTF, a Downtown Community Benefits Project must be one of the following:

1. A program to support affordable housing, for one of more of the following purposes:

(a) Land acquisition for the purposes of establishing permanent, community-controlled affordable housing, by organizations, such as, Community Land Trusts or similar non-profit organizations whose primary mission is to steward land and property for the benefit of lower income community members;

(b) Acquisition of buildings in default or facing expiring affordability covenants in the next 10 years in order to preserve and extend housing affordability, where qualifying applicants include but are not limited to, owners of the said project; developers; non-profit organizations; Organized Tenant Groups; Community Based Organizations; or LAHD;

(c) Extensions of affordability covenants, set to expire in the next ten years, where qualifying applicants include but are not limited to, non-profit organizations; owners of the project; developers; Organized Tenant Groups; Community Based Organizations; or LAHD;

(d) Construction of new 100 percent affordable housing projects, permanent supportive housing projects, or temporary shelters for people experiencing homelessness; or

(e) Construction of housing projects including accessory dwelling units that serve as "restricted affordable units", as defined in Chapter 1A.

2. A program to support one or more small legacy and community-serving businesses that meets one of the following criteria:

(a) Rent subsidies to a Small Legacy Business, with priority for a business owned by an individual or individuals with annual household incomes equal to or less than the moderate-income category as defined by LAHD;

(b) Grants for Low-income Micro-entrepreneurs working in the Downtown Community Benefits Area; or

(c) Subsidies for a Sidewalk Vendor Commissary Kitchen.

3. Design and procurement of sidewalk vending carts for donation to sidewalk vendors whose annual household income is equal to or less than the low-income category as defined by LAHD and who work in the Downtown Community Plan area. Vending carts shall comply with the regulations of the City of Los Angeles Sidewalk Vending Program (Section 42.13 of this Code), and any regulations for food vending of the Los Angeles County Department of Public Health.

4. Construction of permanent or temporary Resiliency Centers or conversion of existing buildings or structures to serve as Resiliency Centers. A Resiliency Center eligible for Downtown CBTF monies shall meet the following requirements:

(a) Include free internet access, outlets for emergency cell phone and computer batteries, free and adequate seating, space to provide disaster relief services and distribute emergency supplies, bathroom facilities, clean potable water, and have a dedicated space that can operate independently from the main electrical system of the larger complex. The independent system must have an onsite power system capable of reliably sustaining operations, defined as emergency heating and cooling capability, refrigeration of temperature-sensitive medicines, and emergency lighting, during an extended outage.

(b) During periods of a non-emergency, Resiliency Centers may serve other uses identified in this section.

5. Amenities to serve people who are experiencing homelessness, including, but not limited to, amenities such as hygiene stations, drinking water fountains, shade structures, free electronic device charging stations, no-fee ATMs, free high-quality wireless internet, and libraries that lend out laptops, tablets, and other internet-ready devices.

6. Mobility and public right-of-way improvements limited to the following:

- (a) Projects that enhance safety or connectivity for people walking, bicycling, and accessing transit;
- (b) Transit supportive infrastructure, including, access improvements to transit stations (new entrances to above-ground rail stations or portals to underground rail stations, where technically feasible), enhanced bus stops and shelters, protected bike lanes, sidewalks and crosswalk improvements, and other infrastructure that provides key connections to the transit system;
- (c) Programs that are or will be identified by any LADOT capital improvement plan for the Downtown Community Plan area; or
- (d) Mobility hubs, as specified by LADOT.

7. Parks and open space, limited to the following:

- (a) Additions and improvements to existing public parks;
- (b) Operations and maintenance of existing public parks; or funds towards land acquisition or capital costs for the creation of new public parks, community gardens, play areas, pocket parks, plazas, walkways, or other types of public open spaces.

8. A program approved by the City Council upon a recommendation by the Oversight Committee that meets the intent of this article and the findings in Subsection F., above.

H. **Enforcement.** In addition to any other remedy available for a violation of a covenant, binding agreement, or other assurances provided to the City by an applicant to obtain an award of Downtown CBF monies, such a violation is a violation of the Code subject to any and all criminal, civil, and administrative remedies available for a violation of the Code.